

CONSTITUTIONAL LAW 1

Midterm Digest Masterfile

Prof. Dante B. Gatmaytan · UP College of Law · First Semester, 2026

Coverage: Obergefell v. Hodges through John Hay PAC v. Lim

Vinzen Borja

AT A GLANCE

165 cases in the midterm coverage; 165 have at least one digest in this file.

Complete: every case in the midterm coverage has at least one digest.

238 digests in total, including an appendix of digests beyond the midterm coverage.

SOURCES (IN ORDER OF PRIORITY)

■ **Zen's Consti 1 Digests [01]** — your AI digests (first file)

■ **Zen's Consti Digests 2.0** — your AI digests (second file)

■ **Manual digests (Rubi to Mangudadatu file)** — kept alongside your AI digests when both exist

■ **Block I-B Digests** — used only where you had no digest of your own

HOW TO USE

Open the bookmarks sidebar to jump by Part, Section, Case, and Source.

Every entry in the contents is clickable. Each digest opens on a new page with a header showing its topic, case name, and source file.

Demetria v. Alba and Tolentino v. COMELEC (2004) appear twice in the syllabus; each is compiled once, at its first listing, and the second listing links back to it.

Digest pages are reproduced exactly from your files. Corrected: AKBAYAN (G.R. No. 147066, 2001), Laurel v. Desierto (G.R. No. 145368), Adaza (stray "f"), Madera v. COA, and the Javellana block digest header, which carried another case's topic and A.M. number. Removed: leftover template instructions (Lacson v. Perez, Angara) and leftover AI chat prompts ("Would you like to...").

Contents

I. Preliminary Readings and Basic Concepts	7
Obergefell v. Hodges (2015) (01)	8
303 Creative LLC v. Elenis (2023) (01)	11
Dobbs v. Jackson Women's Health Organization (2022) (Block I-B)	14
II. Interpreting the Constitution	21
Manila Prince Hotel v. GSIS (1997) (01)	22
Perfecto v. Meer (1950) (01)	26
Endencia v. David (1953) (Block I-B)	28
Francisco v. House of Representatives (2003) (Block I-B)	30
In Re Supreme Court Judicial Independence v. Judiciary Development Fund (2015) (Block I-B)	41
Interpretation	
Nitafan v. Commissioner of Internal Revenue (1987) (Block I-B)	44
Filoteo Jr. v. Sandiganbayan (1996) (2.0)	46
J.M. Tuason & Co., Inc. v. Land Tenure Administration (1970) (Block I-B) (Block I-B)	51
Adoption and Amendment of the Constitution	
Santiago v. COMELEC (1997) (Block I-B)	56
Gonzales v. COMELEC (1967) (Block I-B)	63
Tolentino v. COMELEC (1971) (Block I-B)	68
Planas v. COMELEC (1973) (Block I-B)	72
Javellana v. Executive Secretary (1973) (Block I-B)	77
Lambino v. COMELEC (2006) (Block I-B)	86
III. Judicial Review	91
A. Separation of Powers	
In Re: Laureta and Maravilla (1987) (Block I-B)	92
Demetria v. Alba (1987) (Manual)	98
B. Theory and Justification of Judicial Review	
Angara v. Electoral Commission (1936) (Block I-B)	101
C. Justiciable and Political Questions	
Miranda v. Aguirre (1999) (Block I-B)	104
Torrecampo v. MWSS (2011) (Block I-B)	109
D. Requisites of Judicial Review	
KAPIT v. City of Manila (2026) (Block I-B)	112
White Light Corporation v. City of Manila (2009) (Block I-B)	122
1. Actual Case or Controversy: Prematurity	
PACU v. Secretary of Education (1955) (Block I-B)	125
Montesclaros v. COMELEC (2002) (Block I-B)	129
Lozano v. Nograles (2009) (Block I-B)	132
Philippine Constitution Authority v. Philippine Government (2016) (Block I-B)	134
1. Actual Case or Controversy: Mootness	
Atlas Fertilizer v. Secretary of DAR (1997) (Block I-B)	136
Lacson v. Perez (2001) (Block I-B)	138
Sanlakas v. Executive Secretary (2004) (Block I-B)	142
2. Proper Party	
Joya v. PCGG (1993) (Block I-B)	148
CHR Employees Association v. CHR (2004) (Block I-B)	151
Automotive Industry Workers Alliance v. Romulo (2005) (Block I-B)	155

Contents (continued)

Citizen Standing

Tañada v. Tuvera (1985) 2.0 Manual	158
Chavez v. PEA and Amari (2002) Block I-B	171

Associational Standing

KMU Labor Center v. Garcia (1994) Block I-B	178
IBP v. Zamora (2000) Block I-B	181
Executive Secretary v. Court of Appeals (2004) Block I-B	185
GMA Network, Inc. v. COMELEC (2014) Block I-B	190

Taxpayer's Standing

Information Technology Foundation v. COMELEC (2004) Block I-B	195
---	-----

Voter's Standing

Tolentino v. COMELEC (2004) 01 Manual	201
---	-----

Legislative Standing

Ople v. Torres (1998) Block I-B	213
---	-----

Governmental Standing

People v. Vera (1937) Block I-B	216
---	-----

Standing for Future Generations and Fauna

Resident Marine Mammals v. Secretary Reyes (2015) Block I-B	219
---	-----

3. Earliest Opportunity

Falcis III v. Civil Registrar General (2019) Block I-B	225
--	-----

4. Necessity of Deciding Constitutional Questions

Arceta v. Mangrobang (2004) Block I-B	230
---	-----

IV. Territory, People, and Government

231

A. Territory

Magallona v. Ermita (2011) 01	232
The South China Sea Arbitration (2016) 01	237
Province of North Cotabato v. GRP Peace Panel (2008) 01	242
Cruz v. Secretary of Environment and Natural Resources (2000) 01	247

B. People: 1. Citizenship

Chua v. COMELEC (2016) 01	253
Tecson v. COMELEC (2004) 01	258
David v. Senate Electoral Tribunal (2016) 01	263
Co v. HRET (1991) 01	268
Willie Yu v. Defensor-Santiago (1989) 01	273
Angat v. Republic (1999) 01	278
Bengson III v. Cruz (2001) 01	283
Tan Co v. Civil Register of Manila (2004) 01	288
Republic v. Sagun (2012) 01	293
Go v. Republic (2014) 01	298
Republic v. Go Pei Hung (2018) 01	303
In Re Mahtani v. Republic (2018) 01	308
Maquiling v. COMELEC (2013) 01	313
Frivaldo v. COMELEC (1996) 01	318
Sobejana-Condon v. COMELEC (2012) 01	323
Calilung v. Datumanong (2007) 01	328
Gana-Carait v. COMELEC (2022) 01	335

B. People: 2. Suffrage

Contents (continued)

Gallego v. Verra (1941) 01	337
Romualdez v. RTC (1993) 01	344
AKBAYAN v. COMELEC (2001) 01	351
Kabataan Party List v. COMELEC (2015) 01	358
Palatino v. COMELEC (2009) 01	365
Ceniza v. COMELEC (1980) 01	372
Macalintal v. COMELEC (2003) 01	379

C. Government

Government of the Philippines, Defined

U.S. v. Dorr (1903) 01	386
--	-----

Governmental and Proprietary Functions

Laurel v. Desierto (2002) 01	392
--	-----

De Facto and De Jure Government

Co Cham v. Valdez (1945) 01	399
---	-----

Revolutionary Government

Republic v. Sandiganbayan (2003) 01	406
---	-----

Parens Patriae

SPARK v. Quezon City (2017) 01	413
--	-----

Immunity from Suit

Philippine Agila Satellite v. Trinidad-Lichauco (2006) 01	420
Minucher v. Court of Appeals (2003) 01	426
GTZ v. Court of Appeals (2009) 01	431
Vigilar v. Aquino (2011) 01	436
Arigo v. Swift (2014) 01	441

Money Claims

Republic v. Fetalvero (2019) 01	446
---	-----

Inherent Powers of the State

Rubi v. Provincial Board (1919) 01 Manual	451
Agustin v. Edu (1979) 01 Manual	460
Zabal v. Duterte (2019) 01 Manual	467
Iloilo I Electric Cooperative v. Executive Secretary (2024) 01 Manual	480

V. The Branches of Government: A. Congress 490

1. Composition, Qualification and Term (House of Representatives)

Atong Paglaum, Inc. v. COMELEC (2013) 01 Manual	491
Abang Lingkod Party-List v. COMELEC (2013) Manual	503
Ang Ladlad LGBT Party v. COMELEC (2010) 01 Manual	506
Lokin, Jr. v. COMELEC (2012) 01 Manual	514
Lico v. COMELEC (2015) 01 Manual	522
An Waray Party-List v. COMELEC (2024) 01 Manual	530
Coalition of Associations of Senior Citizens v. COMELEC (2013) 01 Manual	542
COCOFED v. COMELEC (2013) 01 Manual	552
Duterte Youth v. COMELEC (2024) 01 Manual	562
Araro v. COMELEC (2013) 01 Manual	579
Aksyon Magsasaka-Partido Tinig ng Masa v. COMELEC (2015) 01 Manual	589
Albano v. COMELEC (2023) 01 Manual	598
Aquino v. COMELEC (1995) 01 Manual	610
Marcos v. COMELEC (1995) 01 Manual	623
Mangudadatu v. COMELEC (2025) 01 Manual	636

Contents (continued)

2. Election (Special Election)

Tolentino v. COMELEC (2004) see first listing	201
Bañas-Nogales v. COMELEC (2019) 01 Manual	653
Hagedorn v. House of Representatives (2025) 01 Manual	661

3. Organization and Sessions

Election of Officers

Santiago v. Guingona (1998) 01 Manual	672
Baguilat v. Alvarez (2017) 01 Manual	683

Quorum

Avelino v. Cuenco (1949) 01 Manual	692
Tinio v. Duterte (2023) 01 Manual	703

Rules of Proceedings

Pacete v. Commission on Appointments (1971) 01 Manual	721
Arroyo v. De Venecia (1997) 01 Manual	731

Discipline of Members

Alejandrino v. Quezon (1924) 01 Manual	746
Osmeña v. Pendatun (1960) 01 Manual	758
De Venecia v. Sandiganbayan (2002) Manual	770
Pobre v. Defensor-Santiago (2009) 01 Manual	772
Pimentel v. Senate Committee of the Whole (2011) 01 Manual	780

The Enrolled Bill Theory

CoTeSCUP v. Secretary of Education (2018) 01 Manual	790
---	-----

Probative Value of the Journal

United States v. Pons (1916) 01 Manual	801
--	-----

Journal Entry Rule v. Enrolled Bill Theory

Astorga v. Villegas (1974) 01 Manual	809
Morales v. Subido (1969) 01 Manual	817

4. Salaries, Privileges and Disqualifications

Salaries

PHILCONSA v. Mathay (1966) 01 Manual	825
Ligot v. Mathay (1974) 01 Manual	834

Freedom from Arrest

People v. Jalosjos (2000) 01 Manual	843
Trillanes IV v. Pimentel, Sr. (2008) 01 Manual	852

Speech and Debate Clause

Jimenez v. Cabangbang (1966) 01 Manual	860
Trillanes IV v. Castillo-Marigomen (2018) 01 Manual	867

Disqualifications

Adaza v. Pacana, Jr. (1985) 2.0 Manual	877
Puyat v. De Guzman, Jr. (1982) 2.0 Manual	883
Pangilinan v. Cayetano (Notice, August 7, 2018) Manual	889
Liban v. Gordon (2009 Decision & 2011 Resolution) 2.0 Manual Manual	892

5. Electoral Tribunals

Abbas v. SET (1988) 2.0 Manual	909
Bondoc v. Pineda (1991) 2.0 Manual	915
Reyes v. COMELEC (2013) 2.0 Manual	923
Codilla v. De Venecia (2002) 2.0 Manual	934
Velasco v. Speaker (2016) 2.0 Manual	946

Contents (continued)

Reyes v. HRET (2018)	01	Manual	954
Pimentel v. HRET (2002)	01	Manual	963
Abayon v. HRET (2016)	2.0	Manual	973
6. Commission on Appointments			
Daza v. Singson (1989)	2.0	Manual	980
Coseteng v. Mitra, Jr. (1990)	2.0	Manual	987
Drilon v. De Venecia (2009)	2.0	Manual	994
Guingona v. Gonzales (1992)	2.0	Manual	1001
7. Powers of Congress			
General Plenary Powers			
Sema v. COMELEC (2008)	2.0	Manual	1008
Torralla v. Municipality of Sibagat (1987)	2.0	Manual	1016
Procedural Limitations			
ABAKADA Guro Party List v. Purisima (2008)	2.0	Manual	1022
8. Legislative Process: Titles of Bills			
Lidasan v. COMELEC (1967)	Manual		1031
Cruz v. Paras (1983)	Manual		1035
Giron v. COMELEC (2013)	Manual		1038
8. Legislative Process: Appropriation Laws			
Demetria v. Alba (1987)	see first listing		98
Guingona v. Carague (1991)	Manual		1040
Philconsa v. Enriquez (1994)	2.0	Manual	1044
LAMP v. Secretary of Budget and Management (2012)	Manual		1058
Belgica v. Executive Secretary (2013)	Manual		1061
Belgica v. Executive Secretary (2019)	2.0	Manual	1072
Araullo v. Aquino III (2014)	Manual		1081
Macalintal v. COMELEC (2023)	Manual		1093
Dela Cruz v. Ochoa (2018)	Manual		1100
Pichay, Jr. v. Office of the Deputy Executive Secretary (2012)	Manual		1104
Nazareth v. Villar (2013)	Manual		1108
Madera v. Commission on Audit (2020)	Manual		1111
8. Legislative Process: Tax Laws			
Tolentino v. Secretary of Finance (1994)	Manual		1115
Lung Center of the Philippines v. Quezon City (2004)	Manual		1121
Garcia v. Executive Secretary (1992)	Manual		1124
John Hay PAC v. Lim (2003)	Manual		1126

Appendix: Digests Beyond Midterm Coverage			1130
Fabian v. Desierto (1998)	Manual		1131
Carpio-Morales v. Court of Appeals (2015)	Manual		1133
Gonzales v. Macaraig, Jr. (1990)	Manual		1141
Bengzon v. Drilon (1992)	Manual		1147
Miller v. Mardo (1961)	Manual		1151
Ang Nars Party-List v. Executive Secretary (2019)	Manual		1154
Kida v. Senate (2011)	Manual		1155
Neri v. Senate Committee on Accountability (2008)	2.0		1164
Pangilinan v. Cayetano (2021)	2.0		1171

I. Preliminary Readings and Basic Concepts

OBERGEFELL V. HODGES					
Constitutional Law 1			Topic in the Syllabus		
Case No.	Author: Vinzen Borja	G.R. No. XXXXXX	June 26, 2015	Division - US Supreme Court	Ponente - Justice Kennedy

Marriage Equality. The Fourteenth Amendment's Due Process and Equal Protection Clauses guarantee same-sex couples the fundamental right to marry and require all states to recognize those marriages.

CASE SUMMARY	
PETITION	Petition for Certiorari
FACTS and ISSUE	The petitioners filed respective suits in their home states claiming that respondent state officials violate the Fourteenth Amendment by denying them the right to marry or to have marriages lawfully performed in another State given full recognition. Each District Court ruled in petitioners' favor, but the Sixth Circuit consolidated the cases and reversed. The petitioners filed a petition for certiorari before the Supreme Court. The Supreme Court granted review, limited to the following two questions: (1) whether the Fourteenth Amendment requires a State to license a marriage between two people of the same sex. (2) whether the Fourteenth Amendment requires a State to recognize a same-sex marriage licensed and performed in a State which does grant that right.
RULING and DISPO	The Supreme Court ruled in favor of the petitioners. The Fourteenth Amendment requires a State to license a marriage between two people of the same sex and to recognize a marriage between two people of the same sex when their marriage was lawfully licensed and performed out-of-State.

FACTS

- **Procedural:**
 - The petitioners are 14 same-sex couples and two men whose same-sex partners had died.
 - They filed suits in the District Courts in their home states Michigan, Kentucky, Ohio, Tennessee, where marriage is defined as a union between a man and a woman. The petitioners claimed that the respondents violated the Fourteenth Amendment by (1) denying them the right to marry or (2) to have their marriages, lawfully performed in another State, given full recognition. In each case, the District Court ruled in favor of the petitioner.
 - The respondents, who are state officials responsible for enforcing the laws in question, elevated the case to the Sixth Circuit. The Sixth Circuit consolidated the cases and reversed the ruling. They held that a State has no constitutional obligation to license same-sex marriages or to recognize same-sex marriages performed out of State.
- **Substantive:**
 - The petitioners sought certiorari from the Supreme Court.
 - The urgency of the issue were illustrated in the three highlighted cases:
 - James Obergefell and John Arthur had been together for over two decades and traveled from Ohio to Maryland to marry. Arthur later died of ALS. Obergefell was not recognized as the surviving spouse of Arthur in his death certificate, as Ohio law did not recognize their marriage.
 - April DeBoer and Jayne Rowse adopted three children. However, due to Michigan law only permitting opposite-sex couples or single persons to adopt, only one of them could legally be recognized as the parent of each child. This means that if the legal parent died, the other parent would have no legal right over the children.
 - Ijpe DeKoe and Thomas Kostura got married in New York before the former's deployment to Afghanistan. After his deployment, they settled in Tennessee, where DeKoe worked in the Army Reserve. Their lawful marriage is stripped from them whenever they reside in Tennessee due to the State's ban on same-sex marriage.

ARGUMENTS

PETITIONER	RESPONDENT
• The petitioners claim the respondents violate the Fourteenth Amendment by denying them the right to marry or to have their marriages, lawfully performed in another State, given full recognition. • Petitioners seek marriage because of their 'respect and need' for its privileges and responsibilities, including state benefits only afforded to opposite-sex married couples.	• Respondents argue that petitioners seek to demean the institution of marriage, a timeless institution defined as only between a man and a woman. • They further assert that petitioners do not seek to exercise the right to marry but rather a new and non-existent right to same sex marriage. ◦ <i>Court says the burden is not for the people to ask for a right, but for the state to justify why there be exclusion from such.</i>

ISSUES		
Type	Issue	Ruling
Main - Substantive -	Whether the 14th Amendment requires a State to license a marriage between two people of the same sex.	Yes -

ANSWER

- **Yes.** The Fourteenth Amendment requires a State to license a marriage between two people of the same sex.

LEGAL BASIS

Due Process Clause - No State shall "deprive any person of life, liberty, or property, without due process of law."
Equal Protection Clause - No state shall deny any person within its jurisdiction "the equal protection of the laws."

APPLICATION

- The fundamental liberties protected by the Fourteenth Amendment's Due Process Clause **extend to personal choices central to individual dignity and autonomy**, including intimate choices that define personal identity and beliefs.
- Marriage is a fundamental right because it (1) **protects individual autonomy** and personal choice, (2) supports an **intimate two-person union**, (3) **safeguards children and families**, and (4) serves as a **keystone of the Nation's social order**.
 - *Further, if the state already recognizes other rights as fundamental, such as the right to privacy, or contraception, why should the state not extend that recognition to marriage which is at the core of these rights anyway? Marriage is the most intimate choice.*
- These principles apply with equal force to same-sex couples. The right of same-sex couples to marry is also derived from the Fourteenth Amendment's guarantee of equal protection.
 - *Basically they explained why marriage was so important to an individual, to their family, and to society that the State ought to recognize it as the fundamental right that it is.*
 - *"There is no difference between same-sex and opposite-sex couples [...] yet by virtue of their exclusion from that institution, same-sex couples are denied the constellation of benefits that the State have linked to marriage. – constitutes harm from the State.*
- Thus, the right to marry is a fundamental right inherent in the liberty of the person, and under the Due Process and Equal Protection Clauses, same-sex couples may not be deprived of that right. Same-sex couples may therefore exercise the fundamental right to marry.

Main - Procedural -	Whether the 14th Amendment requires a State to recognize a same-sex marriage licensed and performed in a State which does not grant that right.	Yes -
---------------------	---	-------

ANSWER

- The Fourteenth Amendment requires States to recognize same-sex marriages validly performed out of State.

LEGAL BASIS

Due Process Clause - No State shall "deprive any person of life, liberty, or property, without due process of law."
Equal Protection Clause - No state shall deny any person within its jurisdiction "the equal protection of the laws."

APPLICATION

- Since same-sex couples may now exercise the fundamental right to marry in all States, there is no lawful basis for a State to refuse to recognize a lawful same-sex marriage performed in another State on the ground of its same-sex character.

DISPOSITION
The judgment of the Court of Appeals for the Sixth Circuit is reversed.

SEPARATE OPINIONS			
C.J. Roberts	Dissenting	Scalia	Dissenting
• Believes that it is not up to the Supreme Court to decide whether same-sex marriage is a 'good idea' and that it must be left to the legislature to decide ◦ Claims that the majority's decision is an act of will not legal judgement ◦ Courts must not be concerned with wisdom or policy of legislation		• Concurs in full with C.J. Roberts dissenting opinion. • It is undemocratic for the Supreme Court to claim power in creating "liberties" that the Constitution and its amendments neglect to mention. • Constitutionally, the States are free to adopt whatever laws they wish to as democratically pushed for by the people.	

- The fundamental right to marry does not include the right to make a State change its definition of marriage - Constitution protects marriage, but what constitutes marriage is only for Congress to decide – based on tradition and history. Majority was subjective in their decision, basing their ruling on its own understanding of what freedom is and must become. - Further, he simplifies the majority's decision as "yes, because it will be good for them" which is wrong Attempts to define marriage as innately traditional between man and woman - Marriage serves a procreative function, to rear children - Interpretation of what counts as fundamental rights under substantive due process is too broad and did not exercise judicial restraint.			
Thomas	Dissenting	Alito	Dissenting
- The framers of the constitution understood liberty as "freedom from government action" and not as "entitlement to government benefits." - In the Due Process Clause of the fourteenth amendment, "liberty" most likely refers to "the power of locomotion, of changing situation, or removing one's person to whatsoever place one's own inclination may direct; without imprisonment or restraint unless by due course of law." - The fifth amendment deviated from States' use of Magna Carta's language in the clause. It is safe to assume that the Fourteenth Amendment likely uses "liberty" the same way. - Liberty has long been understood as "freedom from" and not as "right to" - The majority's meaning of liberty will cause damage to other aspects of liberty such as: the people's liberty to decide on same-sex marriage and the religious liberty of the nation protected under the first amendment.		- Same-sex marriage is not among the rights that is "deeply rooted in this nation's history and tradition." - The purpose of a marriage is to procreate and abandoning this leads to marriage's further decay. - The Supreme Court decision usurps the constitutional right of the people to decide whether to keep or alter the traditional understanding of marriage.	

RELEVANT PROVISIONS [OPTIONAL]
Loving v. Virginia (precedent cited) "Restricting the freedom to marry because of racial classifications violates the central meaning of the Equal Protection Clause. - Analogous to the instant case, because race is a determined characteristic like sex, and the court found no basis that race should be a factor in excluding people from this right. Zablocki v. Redhail (precedent cited) - The Court invoked the Equal Protection Clause as its basis for invalidating the law that barred fathers who were behind on child-support payments from marrying without judicial approval. Lawrence v. Texas (precedent cited) - The Court ruled that U.S. state laws criminalizing sodomy between consenting adults are unconstitutional. - The Court acknowledged the interlocking nature of these constitutional safeguards in the context of the legal treatment of gays and lesbians, overturning a previous precedent that allowed States to punish homosexual activity (Baker v. Nelson) Doctrine of Coverture - Married women lost their independent property rights to men, who were deemed superior in marriage.

SUPPLEMENTARY NOTES
The nature of injustice is that we may not always see it in our own times. - The generations that wrote the 14th Amendment did not presume to know the extent of freedom in all of its dimensions and so they entrusted to future generations a charter protecting the right of all persons to enjoy liberty as we learn its meaning. - While the contention of the dissenting judges is that it must be left to Congress to decide on this matter, I believe that the majority sufficiently established why marriage was indeed a fundamental right under liberty (in the Due Process Clause) and that people are free to sue the State in the courts to seek redress from injury caused by the State to their rights. People need not wait for rights to be corrected, this is precisely why the courts exist!

303 CREATIVE LLC V. ELENIS					
Constitutional Law 1			Preliminary		
Case No.	Borja, Vinzen Josh L.	G.R. No. XXXXXX	June 20, 2023	US Supreme Court	Gorsuch, J.
Doctrines here in sentence case.					
CASE SUMMARY					
PETITION	Petition for Injunction				
FACTS and ISSUE	Lorie Smith owns a graphic design business, 303 Creative LLC, and makes special wedding websites for couples. She worries that the State through the Colorado Anti-Discrimination Act (CADA) will compel her to create websites for marriages she does not endorse . The issue before the court is whether or not the use of a state public accommodation law, like Colorado Anti-Discrimination Act , to compel an artist to create speech she does not believe violates the Free Speech Clause of the First Amendment.				
RULING and DISPO	Court affirms the lower court's decision that the wedding websites Ms. Smith seeks to create qualify as pure speech protected by the First Amendment. The First Amendment prohibits Colorado from forcing a website designer to create expressive designs speaking messages with which the designer disagrees.				
FACTS					
Substantive: - Lorie Smith owns a graphic design business, 303 Creative LLC, and makes special wedding websites for couples. <i>Lorie Smith, sole member owner of graphic design company 303 Creative LLC, wants to expand her services to include wedding website designing.</i> - She worries that the State through the Colorado Anti-Discrimination Act (CADA) will compel her to create websites for marriages she does not endorse. - The Colorado Anti-Discrimination Act (CADA) is a <i>public accommodations law</i> prohibiting public businesses (such as hotels, bars, movie theaters, and now website providers) from denying equal access to their goods and services on the grounds of their statutory characteristics (religion, race, etc.) - Ms. Smith says she is willing to work with all people and will gladly create custom graphics and websites for gay and lesbians, but will not produce content that violate her sincerely held religious convictions. Procedural: - Lorie Smith/303 Creative LLC seeks an injunction from the court to prevent the state from forcing her to create such websites. - District Court ruled partially in favor of Lorie Smith/303 Creative saying that it was in fact free speech but stopped short of granting her request for injunction, saying that she did not have the right to it and the state may compel her speech only if it passes the strict scrutiny test. - Standard that forcing would serve a compelling government interest - No less restrictive alternatives exist to secure that interest.					
ARGUMENTS					
303 Creative LLC (Lorie Smith, owner), et. al.			Aubrey Elenis (Director of the Colorado Civil Rights Division), et. al. (particular officials of Colorado)		
- There's a credible threat that Colorado will use CADA against her business. Colorado has a history with same premise - Anyone in the State may file a complaint against her - No disavowment from the state re possible CADA case against her - First Amendment's Free Speech Clause protects Ms. Smith from being compelled by Colorado to create websites expressing any message she does not agree with. - Ms. Smith's products are unique, customized (not ordinary) - Ms. Smith will do business with clients of any sexual orientation as long as the designs they ask do not go against her beliefs (e.g. support of violence → not limited to same-sex marriage). - If she couldn't provide what a potential client asks, Colorado has other companies that offer the same services.			- Colorado has a compelling interest in protecting its marginalized citizens from discrimination. - Colorado wants to regulate Ms. Smith's conduct, not necessarily her speech. - This is not about pure speech, this is about the sale of an ordinary commercial product. Burden on Ms. Smith's speech is incidental. - Ms. Smith's reason to not sell to certain customers is her objection to the latter's protected characteristics (thus discriminatory). - To comply with CADA, repurpose websites created for marriages she supports into ones she do not (she should offer the same products to everyone).		

ISSUES		
Type	Issue	Ruling
Main - Procedural -	Whether or Not the use of a state public accommodation law, like Colorado Anti-Discrimination Act, to compel an artist to create speech she does not believe violates the Free Speech Clause of the First Amendment.	No -

ANSWER

- There's a credible threat that Colorado will use CADA against her business. Colorado has a history with same premise
- Anyone in the State may file a complaint against her
- No disavowment from the state re possible CADA case against her
- The Supreme Court ruled in favor of 303 Creative LLC; reversed the Tenth Circuit's decision.
- The First Amendment protects an individual's right to speak his mind regardless of how hurtful or misguided they may be.
- Ms. Smith's wedding websites are pure speech.
- The government cannot compel an individual to speak or stay silent.
- Public accommodation laws can be too broad when used to compel speech.
- Constitution > public accommodations law (CADA in this case)

DISPOSITION
The Supreme Court reversed the decision of the lower courts; ruled in favor of 303 Creative LLC. Colorado's application of its public accommodations law violated the designer's First Amendment rights. "The First Amendment envisions the United States as a rich and complex place where all persons are free to think and speak as they wish, not as the government demands. Because Colorado seeks to deny that promise, the judgment is Reversed.

SEPARATE OPINIONS	
Sotomayor	Dissenting
• Court Majority is wrong according to Sotomayor for two main reasons: • 1) The CADA targets conduct, not speech and the speech involved is purely incidental to the actual purpose of the Accommodations Clause which is to prevent discrimination of access to goods and services based on status ◦ Analogizes it to the "Whites Only" sign, which is barred from being put up post-Jim Crow, even though it is a form of expression. ■ This is because of the O'Brien Test which states that pure speech incidental to the valid regulation of conduct may be burdened provided there is: ■ 1) Substantial government interest (i.e. preventing discrimination) ■ 2) No other more effective alternative to achieve such interest absent this regulation ■ 2) The act of discrimination itself is not protected and the Constitution provides no right to refuse service to disfavored groups • Discrimination not only manifests through lack of access to goods and service, but also manifests in terms of stigma and shame such discrimination imposes on marginalized groups ◦ It is in the state's interest to protect its most vulnerable citizens from discrimination in all its forms and manifestations ◦ And to this end, the state exercises public accommodation laws which are in place exactly for these purposes: ■ Equal access to publicly available goods and services, especially as such access is vital ■ Equal dignity in the common market ◦ If a business chooses to profit from the public market, the state may then require the business to abide by a legal norm of nondiscrimination embodying a social contract/duty to serve all the general public. • According to Sotomayor, the court further committed the grave mistake of permitting the advertisement of discrimination in such wedding website services, which is a violation of the Communication Clause of the CADA. • Sotomayor proposes an alternative and acceptable scenario: The company can put whatever harmful or low-value speech it wants on its websites, all the company may not do is offer wedding websites to the public yet refuse those same websites to gay and lesbian couples. • She analogizes it to a photographer who opens a business to the public. Photographers may not deny to any person, because of race, sex, national origin, or other protected characteristic, the full and equal enjoyment of whatever services they offer, even if photography is expressive in nature.	

RELEVANT PROVISIONS [OPTIONAL]
Source First Amendment's Free Speech Clause "Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition the Government for a redress of grievances."

Cited Cases

Barnette

West Virginia's rule that requires schoolchildren to salute the flag and pledge allegiance is a First Amendment violation

Hurley v. Irish-American Gay, Lesbian and Bisexual Group of Boston, Inc.

Massachusetts' public accommodations law could not force the veterans to include members of the LGBT community in the parade (considered protected speech)

Boy Scouts of America v. Dale

Boy Scouts action of excluding its assistant scoutmaster James Dale from membership upon learning he's gay is protected by First Amendment

SUPPLEMENTARY NOTES

- Refer to my case file for written live reactions

DIGEST MAKER:

DOBBS v. JACKSON WOMEN'S HEALTH ORGANIZATION (2022)

Topic Subtopic	Preliminary Readings
Doctrine	Fourteenth Amendment's reference to "liberty" protecting a particular right; Doctrine of Stare Decisis and overruling a precedent Supreme Court's Judicial Review
Petitioner/s	Thomas E. Dobbs, State Health Officer of the Mississippi Department of Health
Respondent/s	Jackson Women's Health Organization, et al.
Year	2022
Ponente	Justice Alito Samuel

IMPORTANT BACKGROUND

Roe v Wade (1973) was a landmark decision by the US SC where they ruled that a person may choose to have an abortion until a fetus becomes viable, based on the right to privacy contained in the Due Process Clause of the Fourteenth Amendment. The rule imposed a trimester framework. Viability means the ability to live outside the womb, which usually happens between 24 and 28 weeks after conception. – The aforesaid right to privacy includes medical procedures as per Griswold v Connecticut.

Planned Parenthood of Southeastern Pennsylvania v. Casey (1992) upheld the Roe v Wade case, but allowed the state to determine the abortion restrictions based on viability analysis (a fetus could be considered viable at 23 or 24 weeks instead of 28 weeks). The Court abandoned any reliance on a privacy right and instead grounded the abortion right entirely on the Fourteenth Amendment's Due Process Clause. The court also moved to an "undue burden standard": "An undue burden exists, and therefore a provision of law is invalid, if its purpose or effect is to place a substantial obstacle in the path of a woman seeking an abortion before the fetus attains viability." (i.e., spousal notice). Casey described it as a freedom to make "intimate and personal choices"

FACTS

- Mississippi's **Gestational Age Act** provides that "except in a medical emergency or in the case of a severe fetal abnormality, a person shall not intentionally or knowingly perform . . . or induce an abortion of an unborn human being if the probable gestational age of the unborn human being has been determined to be greater than fifteen (15) weeks."
- Respondents—an abortion clinic and one of its doctors filed suit in Federal District Court against various Mississippi officials, alleging that the Gestational Age Act violated the Supreme Court's precedents establishing a constitutional right to abortion.
 - Roe v. Wade*
 - Planned Parenthood of Southeastern Pa. v. Casey*
- The District Court granted summary judgment in favor of respondents and permanently enjoined enforcement of the Act, reasoning that "viability marks the earliest point at which the State's interest in fetal life is constitutionally adequate to justify a legislative ban on nontherapeutic abortions" and that 15 weeks' gestational age is "prior to viability." The Fifth Circuit affirmed.

- The Supreme Court granted Certiorari to resolve the question whether “all pre-viability prohibitions on elective abortions are unconstitutional.”

ISSUE/S

ISSUE 1: Whether or Not All Pre-Viability Prohibitions on Elective Abortions (Like Mississippi’s Act) are unconstitutional

Whether or not the Constitution confers a right to obtain an abortion

1.1 Review the standard that the Court’s cases have used to determine whether the Fourteenth Amendment’s reference to “liberty” protects a particular right.

1.2 Whether the right to obtain an abortion is rooted in the Nation’s history and tradition and whether it is an essential component of “ordered liberty.”

1.3 Whether a right to obtain an abortion is part of a broader entrenched right that is supported by other precedents.

PETITIONER/S ARGUMENTS:

Petitioners’ primary defense of the Mississippi Gestational Age Act is that Roe and Casey were wrongly decided and that “the Act is constitutional because it satisfies rational-basis review.”

RESPONDENT/S ARGUMENTS:

Respondents answer that allowing Mississippi to ban pre-viability abortions “would be no different than overruling Casey and Roe entirely.” They say that “no half-measures” are available: The court must either reaffirm or overrule Roe and Casey.

RULING and RATIO DECIDENDI for ISSUE 1:

1. The court held that **the Constitution does not confer a right to abortion.**

1.1. The Constitution makes no express reference to a right to obtain an abortion, and therefore those **who claim that it protects such a right must show that the right is somehow implicit in the constitutional text.**

Roe held that the abortion right is part of a right to privacy that springs from the First, Fourth, Fifth, Ninth, and Fourteenth Amendments.

The Casey Court did not defend this **unfocused analysis** and instead grounded its decision solely on the theory that the right to obtain an abortion is part of the “liberty” protected by the Fourteenth Amendment’s Due Process Clause.

Rather, regulations and prohibitions of abortion are governed by the same standard of review as other health and safety measures.

1.2. The Court concluded that a right to abortion is **not deeply rooted in the Nation’s history and traditions.** Guided by the history and tradition that map the essential components of the Nation’s concept of ordered liberty, the Court finds **the Fourteenth Amendment clearly does not protect the right to an abortion.**

The Due Process Clause protects two categories of substantive rights: (1) rights that are guaranteed by the first eight Amendments, and (2) a select list of fundamental rights that are not mentioned anywhere in the Constitution. In deciding whether a right falls into either of these categories, the question is whether the right is deeply rooted in our history and tradition

and whether it is essential to this Nation's "scheme of ordered liberty."

An unbroken tradition of prohibiting abortion on pain of criminal punishment persisted from the earliest days of the common law until 1973.

- 1.3. The Court concludes **the right to obtain an abortion cannot be justified as a component of such a right.**

None of the other decisions cited by Roe and Casey involved the critical moral question posed by abortion. Accordingly, those cases do not support the right to obtain an abortion, and the Court's conclusion that the Constitution does not confer such a right does not undermine them in any way.

Mississippi's Gestational Age Act is supported by the Mississippi Legislature's specific findings, which include the State's asserted interest in "protecting the life of the unborn." §2(b)(i). These legitimate interests provide a rational basis for the Gestational Age Act, and it follows that respondents' constitutional challenge must fail.

LEGAL BASES

The Due Process Clause of the 14th Amendment (U.S. Constitution, Amendment XIV, Section 1)
No state may deprive any person of life, liberty, or property, without due process of law.

Cases Cited

Timbs v. Indiana, 586 U. S. ___, ___ (2019),

The Court concluded that the Eighth Amendment's protection against excessive fines is "fundamental to our scheme of ordered liberty" and "deeply rooted in this Nation's history and tradition."

McDonald v. City of Chicago, 561 U.S. 742 (2010)

The opinion concluded that "the Framers and ratifiers of the Fourteenth Amendment counted the right to keep and bear arms among those fundamental rights necessary to our system of ordered liberty."

Washington v. Glucksberg, 521 U.S. 702 (1997)

The Court held that the Due Process Clause does not confer a right to assisted suicide; the Court surveyed more than 700 years of "Anglo-American common law tradition," and made clear that a fundamental right must be "objectively, deeply rooted in this Nation's history and tradition."

ISSUE 2: Whether or not *Roe v. Wade* and *Planned Parenthood v. Casey* should be overruled

2.1 Consider whether *Stare Decisis* counsels continued acceptance of *Roe* & *Casey*

2.2 Whether authority to regulate abortions for legitimate reasons should be returned to the people and its elected representatives

PETITIONER/S ARGUMENTS:

Stare decisis, the doctrine on which *Casey*'s controlling opinion was based, does not compel unending adherence to *Roe*'s abuse of judicial authority. *Roe* was egregiously wrong from the start. Its reasoning was exceptionally weak, and the decision has had damaging consequences.

RESPONDENT/S ARGUMENTS:

The solicitor general suggests that overruling those decisions would "threaten the Court's precedents holding that the Due Process Clause protects other rights."

RULING and RATIO DECIDENDI for ISSUE 2:

2. The court held that **Roe and Casey must be overruled.**

2.1. The doctrine of stare decisis does not counsel continued acceptance of Roe and Casey.

[The court] has long recognized that stare decisis is “not an inexorable command,” *Pearson v. Callahan*, 555 U.S. 223, 233 (2009) (internal quotation marks omitted), and it “is at its weakest when we interpret the Constitution,” *Agostini v. Felton*, 521 U.S. 203, 235 (1997).

Some of the Court’s most important constitutional decisions have overruled prior precedents.^{1,2,3}

2.2. The Constitution must be heeded and the issue of abortion returned to the people’s elected representatives.

“The permissibility of abortion, and the limitations, upon it, are to be resolved like most important questions in our democracy: by citizens trying to persuade one another and then voting.” *Casey*, 505 U. S., at 979 (Scalia, J., concurring in judgment in part and dissenting in part).

5 factors weigh strongly in favor of overruling Roe and Casey: 1) Nature of the Court’s error; 2) Quality of reasoning; 3) Workability; 4) Effect on other areas of law; 5) Reliance interests

Under the Court’s precedents, rational-basis review is the appropriate standard to apply when state abortion regulations undergo constitutional challenge. Since abortion is not a fundamental constitutional right, the States may regulate abortion for legitimate reasons.

LEGAL BASES

Cases Cited

[1] **Brown v. Board of Education, 347 U.S. 483 (1954)**

The Court repudiated the “separate but equal” doctrine, which had allowed States to maintain racially segregated schools and other facilities. In so doing, the Court overruled the infamous decision in *Plessy v. Ferguson*, 163 U.S. 537 (1896), along with six other Supreme Court precedents that had applied the separate-but-equal rule.

[2] **West Coast Hotel Co. v. Parrish, 300 U.S. 379 (1937)**

The Court overruled *Adkins v. Children’s Hospital* which had held that a law setting minimum wages for women violated the “liberty” protected by the Fifth Amendment’s Due Process Clause. *West Coast Hotel* signaled the demise of an entire line of important precedents that had protected an individual liberty right against state and federal health and welfare legislation.

[3] **West Virginia Bd. of Ed. v. Barnette, 319 U.S. 624 (1943)**

After the lapse of only three years, the Court overruled *Minersville School Dist. v. Gobitis* and held that public school students could not be compelled to salute the flag in violation of their sincere beliefs. *Barnette* stands out because nothing had changed during the intervening period other than the Court’s belated recognition that its earlier decision had been seriously wrong.

FINAL DECISION

The court therefore held that **the Constitution does not confer a right to abortion**. It does not prohibit the citizens of each State from regulating or prohibiting abortion. **Roe and Casey must be overruled**, and the authority to regulate abortion must be returned to the people and their elected representatives.

SEPARATE OPINION/S

THOMAS, C, <i>concurring</i>	Under our substantive due process precedents, the purported right to abortion is not a form of “liberty” protected by the Due Process Clause. Such a right is neither “deeply rooted in this Nation’s history and tradition” nor “implicit in the concept of ordered liberty.” “Substantive Due Process” is an oxymoron that lacks any basis in the Constitution. Because the Due Process Clause does not secure any substantive rights, it does not secure a right to abortion. Wants to eliminate “substantive due process” in jurisprudence.
KAVANAUGH, J, <i>concurring</i>	The Constitution does not take sides on the issue of abortion. The text of the Constitution does not refer to or encompass abortion, it neither outlaws nor legalizes abortion. The Court’s decision properly leaves the question of abortion for the people and their elected representatives in the democratic process. Through that democratic process, the people and their representatives may decide to allow or limit abortion. SC establishes that a constitutional precedent may be overruled only when 1) the prior decision is egregiously wrong; 2) caused significant negative jurisprudential or real-world consequences; and 3) overruling the prior decision would not unduly upset legitimate reliance interests. Applying these factors, I agree that Roe should be overruled.
ROBERTS, J, <i>concurring in the judgment</i>	I agree with the Court that the viability line established by Roe and Casey should be discarded under a straightforward stare decisis analysis. None of this, however, requires that we also take the dramatic step of altogether eliminating the abortion right first recognized in Roe. Mississippi itself previously argued as much to this Court in this litigation. But upon grant of certiorari, the State asked in its Principal Brief that the Court should overrule Roe and Casey. Here, there is a clear path to deciding this case correctly without overruling Roe all the way down to the studs: recognize that the viability line must be discarded, as the majority rightly does, and leave for another day whether to reject any right to an abortion at all; and practice judicial restraint. In response to the notion that deciding on the abortion right will force the SC to decide again in short order, the Court would then be free to exercise discretion from a more informed perspective.
BREYER, SOTOMAYOR, and KAGAN, JJ., <i>dissenting</i>	Constitutionality - Roe and Casey, from the beginning, are rooted in the core constitutional concepts of individual freedom, and of the equal rights of citizens to decide on the shape of their lives. - The Constitution places limits on a State’s right to interfere with a person’s most basic decisions about family and parenthood, as well as bodily integrity. - The majority ruling means that the enforcement of abortion restrictions will be left

largely to the States' devices, since the Court has stated that protecting fetal life is rational. We believe in a Constitution that puts some issues off limits to majority rule. "However divisive, a right is not at the people's mercy."

- The Framers (both in 1788 and 1868) understood that the world changes. So they did not define rights by reference to the specific practices existing at the time. Instead, the Framers defined rights in general terms, to permit future evolution in their scope and meaning. The dissenter's point is that: It is that applications of liberty and equality can evolve while remaining grounded in constitutional principles, constitutional history, and constitutional precedents.
- The SC decisions must respond to changed law and changed facts and attitudes that had taken hold throughout society.

Women's Right to Choose

- *Roe* held, and *Casey* reaffirmed, that the Constitution safeguards a woman's right to choose whether or not to bear a child, and particularly, in the early stages of pregnancy, the government could not make that choice for her.
- The Mississippi law in question bars abortions after the 15th week, but with the overturning of *Roe* and *Casey*, another State's law could do so after 10, 5, weeks, or even from the moment of fertilization.
- In view of the majority's decision, the State now has the power to enforce draconian restrictions. A certain result of this decision is the curtailment of women's rights and of their status as free and equal citizens.
- In the majority's statement that we are dismissing the State's interest to protect prenatal life, *Roe* and *Casey* already invoked a balance between the woman's choice pre-viability and limiting it after viability of the fetus.
- On the other hand, the majority's decision lacks any serious discussion of how its ruling will affect women.

Affecting Other Freedoms

- The lone rationale that the majority uses is that the right to elect an abortion is not 'deeply rooted in history'. Hence, this can apply to other cases and rights such as the ability to obtain contraceptives, same-sex intimacy and marriage, interracial marriage, et cetera, that were not recognized until recently, regardless of the majority's assurance that these precedents are not under threat.
- Justice Thomas' opinion also shows that this overrule becomes an opportunity to also reject other precedents.

Disregards Stare Decisis

- Things decided should stay decided unless there is a very good reason for change.
 - (1) A change in legal doctrine that undermined or made obsolete the earlier decision;
 - (2) A factual change that had the same effect;
 - (3) An absence of reliance because the earlier decision was less than a decade old.
- Stare Decisis requires that the Court calculate the costs of a decision's repudiation on those who have relied on the decision, not on those who have disavowed it.
- *Roe* and *Casey* have been the law of the land for decades, and no recent

developments have eroded or cast doubt on those precedents.

Decision is Based on the 'Historical Existence' of the Right

- In Bruen, "Historical evidence that long predates [ratification] may not illuminate the scope of the right." In McCulloch, "our Constitution is "intended to endure for ages to come", and must adapt itself to a future "seen dimly", if at all."
- Historical evidence does exist. Common-law authorities did not treat abortion as a crime before 'quickening' (when the fetus begins moving in the womb, as a show of life).
- Men ratified the Fourteenth Amendment, so it may not be surprising that the ratifiers were not attuned to the importance of reproductive rights for women's liberty or for their capacity to participate as equal members. Thus, history takes nothing away from the core point of Roe and Casey; those responsible for the original Constitution did not perceive women as equals and therefore did not recognize their rights.

II. Interpreting the Constitution

Interpretation

3 of 3 digested

Adoption and Amendment of the Constitution

6 of 6 digested

MANILA PRINCE HOTEL V. GOVERNMENT SERVICE INSURANCE SYSTEM (GSIS)					
Constitutional Law I			I. Interpreting the Constitution		
Case No. 1	Vinzen Josh L. Borja	G.R. No. 122156	February 3, 1997	Supreme Court <i>En Banc</i>	Bellosillo, J.

Presumption of Self-Execution. In case of doubt, the presumption is that <i>the Constitution is self-executing unless expressly provided otherwise.</i> A provision which is complete in itself and becomes operative without the aid of supplementary or enabling legislation is self-executing if the nature and extent of the right conferred and the liability imposed are fixed by the Constitution itself. On the other hand, a provision which lays down a general principle, such as those found in Article II, is not intended to be self-executing but aids in judicial review and law-making.	
CASE SUMMARY	
PETITION	Petition for Mamdamus
FACTS and ISSUE	GSIS auctioned 51% of Manila Hotel Corporation. Renong Berhad, a Malaysian firm, bid higher than Filipino-owned Manila Prince, but Manila Prince later matched Renong's ₱44-per-share bid. The issue was whether the Filipino First policy under Article XII, Section 10(2) required GSIS to prefer Manila Prince.
RULING and DISPO	Yes. The Court held that the provision is self-executing , the Manila Hotel forms part of the national patrimony, and GSIS's sale was State action. Since Manila Prince was qualified and matched the foreign bid, it had to be preferred.

FACTS	
Substantive - Respondent Government Service Insurance System (GSIS) pursuant to the privatization program of the Philippine Government under Proclamation No. 50 dated December 8, 1986, decided to sell through public bidding 30-51% of the issued and outstanding shares of the Manila Hotel Corporation (MHC) - The winning bidder is to provide management expertise and/or an international marketing/reservation system and financial support to strengthen the profitability and performance of the Manila Hotel. - In a close bidding held on September 18, 1995, only two bidders participated, petitioner Manila Prince Hotel Corporation, a Filipino corporation and Renong Berhad, a Malaysian firm. - Manila Prince Hotel initially offered to buy 51% of MHC or 15.3M shares, at PHP41.58 per share, while Renong Berhad, offered to buy the same number of shares at PHP44.00 each or 2.42 more than the bid of the petitioner, in a higher bid. - Pending the declaration of Renong Berhad as the winning bidder and the execution of necessary contracts, petitioner Manila Prince Hotel matched the bid price of PHP44.00 per share tendered by Renong Berhad. Procedural - Apprehensive that respondent GSIS has disregarded the tender of the matching bid and the sale of MHC may be consummated with Renong Berhad, petitioner came to the court on prohibition and mandamus. - On October 18, 1995 the Court issued a temporary restraining order enjoining the respondents from perfecting and consummating the sale to the Malaysian firm.	
ARGUMENTS	
PETITIONER	RESPONDENT
1) Petitioner invokes Sec. 10, Par. 2, Article XII of the 1987 Constitution, enshrining the Filipino First Policy, which provides that in the grant of rights, privileges, and concessions covering the national economy and patrimony, the State shall give preference to qualified Filipinos. 2) Petitioners submit that the Manila Hotel has been identified with the Filipino nation and has become a historical monument which reflects the vibrancy of Philippine heritage and culture, arguing that the Manila Hotel is part of the national patrimony, and the hotel business a part of the national economy. 3) Since the Manila Hotel is part of the national patrimony, the petitioner should be preferred after it has matched the bid offer of the Malaysian firm.	1) Respondents maintain that Sec. 10, Par. 2, Article XII of the 1987 Constitution is merely a statement of principle and policy since it is not a self-executing provision and requires implementing legislation, thus it cannot be enforced absent existing laws. - Based on the alleged intent of the framers of the Constitution during the Constitutional Convention. - And, based on the implied tenor of the first and third paragraphs of the same section which are undoubtedly, not self-executing. 2) The Manila Hotel is not part of the national patrimony which only refers to lands of public domain, natural resources, and wealth within the territory of the Philippines as defined in the first and second paragraphs of Sec. 2, Art. 12, of the 1987 Constitution. - Further, GSIS, which possesses a personality of its own must be considered as separate and distinct from the Philippines as a State and thus is not compelled by the Filipino First Policy. 3) Granting that the Manila Hotel is part of the national patrimony, the Filipino First Policy is still inapplicable as what is being sold is 51% of the outstanding shares of the corporation, not the hotel building or the land upon which it stands.

Legend: Legal Terms | Doctrines/Principles | Application | Provisions/Citations

	4) The privilege of submitting a matching has not yet arisen since it only takes place if for any reason, the highest bidder cannot be awarded the block of shares. Thus the submission of a matching bid is premature, and the rise of the privilege to submit a matching bid has not taken place since Renong Berhad can still be awarded the bid. 5) Petitioners have no legal standing as the respondent GSIS did not exercise a patent abuse of its discretion.
--	--

ISSUES		
Type	Issue	Ruling
Main - Substantive	Whether the provisions laid out in Par.2, Sec. 10, Art. XII of the 1987 Constitution are self-executing and thus required GSIS to prefer Manila Prince Hotel in its bid.	Yes
RULING HELD: A provision which is complete in itself and becomes operative without the aid of supplementary or enabling legislation is self-executing if the nature and extent of the right conferred and the liability imposed are fixed by the Constitution itself, so that they can be determined by an examination and construction of its terms, and there is no language indicating that the subject is referred to the legislation for action. - The presumption now is that all provisions of the Constitution are self-executing. - If the Constitutional provisions are treated as requiring legislation, instead of self-executing, the legislature would have the power to ignore and practically nullify the mandate of the fundamental law. APPLICATION Article XII, Section 10(2), says: "The State shall give preference to qualified Filipinos." - For the court, that was a mandatory, positive, and complete command. It identifies who must act (the State), what it must do (give preference), to whom (qualified Filipinos), and in what situation (grants involving the national economy and patrimony). It therefore required no further legislation before courts could enforce it. Granted, the Filipino-First policy is self-executing, it is thus binding on this contract as a Constitutional provision. - The Constitution is a system of fundamental laws for the governance and administration of a nation. It is supreme, imperious, absolute, and unalterable, except by the authority from which it emanates. It has been defined as the fundamental and paramount law of the nation. Under the doctrine of constitutional supremacy, if a law or contract violates any norm of the Constitution, that law or contract is null and void and without any force and effect. - Thus, since the Constitution is the fundamental, paramount, and supreme law of the nation, it is deemed written in every statute and contract. On the argument that Framers intended for prospective laws to lay down the conditions to define "Qualified Filipinos": - Even if legislation may supplement and add to or prescribe a penalty for the violation of a self-executing constitutional provision, it does not render such a provision ineffective in the absence of such legislation. - The omission from a constitution of any express provision for a remedy for enforcing a right or liability is not necessarily an indication that it was not intended to be self-executing. On the argument that the first and third paragraphs which expressly provide for additional enabling legislation, imply the entire section is non-self-executing: - A constitutional provision may be self-executing in one part and non-self-executing in another. The second paragraph can only be self-executing as it does not by its language require any legislation in order to give preference to qualified Filipinos.		
Side - Substantive	Whether the Manila Hotel, as part of the sale of the MHC, is considered part of the national patrimony of the Philippines, and thus covered under the Filipino First Policy	Yes
RULING HELD: The court agrees that in its plain and ordinary meaning, the term patrimony pertains to heritage. When the Constitution speaks of national patrimony, it refers not only to the natural resources of the Philippines, as the Constitution could have very well used the term natural resources, but also to the cultural heritage of the Filipinos, of which the Manila Hotel is a part. APPLICATION - Manila Hotel has become a landmark — a living testimonial of Philippine heritage. While it was restrictively an American hotel when it first opened in 1912, it immediately evolved to be truly Filipino. Formerly a concourse for the elite, it has since then become the venue of various significant events which have shaped Philippine history. Verily, Manila Hotel has become part of our national economy and patrimony. - Further, 51% of the equity of the MHC comes within the purview of the constitutional shelter, for it comprises the majority and		

controlling stock, so that anyone who acquires or owns the 51% will have actual control and management of the hotel. In this instance, 51% of the **MHC cannot be disassociated from the hotel** and the land on which the hotel edifice stands.

Side - Substantive

Whether the GSIS is part of the "State" as referred to by the Filipino First Policy

Yes

RULING

- **HELD:** The transaction, although entered into by respondent **GSIS, is in fact a transaction of the State** and therefore subject to the constitutional command.
 - When the Constitution addresses the State, it refers not only to the people but also to the government as elements of the State.
 - It is undeniable that in this case the subject constitutional injunction is addressed among others to the Executive Department and respondent **GSIS, a government instrumentality** deriving its authority from the State.

Side - Procedural

Whether the submission to match the bid of the foreign bidder is premature according to the rules of the contract

Yes

RULING

- **HELD:** The bidding rules expressly provide that the highest bidder shall only be declared the winning bidder after it has negotiated and executed the necessary contracts, and secured the requisite approvals.
 - Since the Filipino First Policy provision of the Constitution bestows preference on qualified Filipinos the mere tending of the highest bid is not an assurance that the highest bidder will be declared the winning bidder. The Constitution alone is **grounds enough not to award the bid to the highest bidder yet, allowing for Filipino firms to match the bid.**
 - In the instant case, where a foreign firm submits the highest bid in a public bidding concerning the grant of rights, privileges and concessions covering the national economy and patrimony, thereby exceeding the bid of a Filipino, there is no question that the Filipino will have to be allowed to match the bid of the foreign entity. And **if the Filipino matches the bid of a foreign firm the award should go to the Filipino.**

DISPOSITION

WHEREFORE, respondents GOVERNMENT SERVICE INSURANCE SYSTEM, MANILA HOTEL CORPORATION, COMMITTEE ON PRIVATIZATION and OFFICE OF THE GOVERNMENT CORPORATE COUNSEL are directed to **CEASE and DESIST from selling 51% of the shares of the Manila Hotel Corporation to RENONG BERHAD,** and to **ACCEPT the matching bid of petitioner MANILA PRINCE HOTEL CORPORATION** to purchase the subject 51% of the shares of the Manila Hotel Corporation at P44.00 per share and thereafter to execute the necessary agreements and documents to effect the sale, to issue the necessary clearances and to do such other acts and deeds as may be necessary for the purpose.

SEPARATE OPINIONS

TORRES

Concurring

- Centered his concurrence on the **historical, cultural, and symbolic character of the Manila Hotel.** Reading Article XII, Section 10 together with the Constitution's policy of developing an economy effectively controlled by Filipinos, he emphasized that "national patrimony" is not limited to natural resources but embraces the nation's history, culture, heritage, and traditions.
- For Torres, preserving the Hotel in Filipino hands fulfilled the Constitution's nationalist purpose and avoided repeating the country's colonial experience; hence, he voted to grant Manila Prince Hotel's petition.

MENDOZA

Concurring

- Argued that the **only meaningful way to give the constitutionally required "preference to qualified Filipinos" in this case was to allow Manila Prince Hotel to match Renong Berhad's higher bid.** Mere preference when two bids happened to be identical would not genuinely favor Filipinos, especially because the bidding rules used other criteria to resolve ties. Both Manila Prince and Renong had already been found qualified, so allowing the Filipino bidder to match the price did not sacrifice competence for nationalism; nor would it promote speculative bidding because the GSIS rules imposed minimum bids and required bidders actually to participate.

PADILLA

Concurring

- Emphasized a broad conception of **"national patrimony."** Drawing from the history of the constitutional phrase, he understood patrimony to **embrace not merely natural resources but virtually everything belonging to the Filipino people,** including their tangible, intangible, material, spiritual, and cultural assets. Further held that **constitutional "preference" must be substantial rather than merely symbolic:** when national patrimony is sold through public bidding, a qualified Filipino must be given

VITUG

Concurring

- He considered **Puno's rule—that preference arises only when Filipino and foreign bids are exactly equal—too impractical** because multimillion-peso bids will rarely be identical to the last centavo. Thus, to make constitutional preference meaningful, the Filipino bidder must be allowed to match the foreign bidder's higher offer. Vitug nevertheless sympathized with Renong Berhad, observing that the government should have disclosed the constitutional implications clearly in advance

Legend: Legal Terms | Doctrines/Principles | Application | Provisions/Citations

the opportunity to match the higher bid of a foreigner, because limiting preference only to perfectly equal bids would make the constitutional mandate largely meaningless.	
PUNO, CJ NARVASA	Dissenting
• Agreed with much of the majority's constitutional analysis: he regarded Article XII, Section 10's Filipino-preference clause as self-executing, considered the Manila Hotel part of the nation's cultural patrimony, and held that GSIS, as a government-owned corporation, was bound by the constitutional command. • His disagreement concerned how much preference the Constitution required. Because neither Congress nor the applicable GSIS rules granted a Filipino bidder an automatic second opportunity to match a higher foreign bid, Puno believed the Court could not create such a right itself; under the existing rules, Filipino preference should operate only when the initial Filipino and foreign bids are tied. • Allowing Manila Prince a second chance after seeing Renong's bid would undermine sealed competitive bidding, reduce incentives to bid one's highest amount initially, and disregard rules Manila Prince itself accepted. For Puno, the Filipino First policy is pro-Filipino but not inherently anti-foreigner: government may favor Filipinos within lawful rules, but courts cannot rewrite those rules afterward to disadvantage a foreign bidder.	
PANGANIBAN	Dissenting
• Joined Puno's position and stressed three additional objections. First, because no statute defined Filipino preference as including a post-bidding right to match the foreigner's higher bid, he considered the majority's creation of such a right to be improper judicial legislation, effectively making public bidding meaningless because a Filipino could always wait for a foreigner to make the highest bid and then equal it. • Second, he warned that such preferential treatment could ultimately hurt Filipinos internationally by encouraging other countries to retaliate and give their own nationals similar post-bid advantages against Filipino firms. • Third, he believed that, absent legislation specifying a stronger preference, the Constitution should operate as a tie-breaker: where bids are equal, the qualified Filipino wins, but where the foreign bidder has already submitted the genuinely higher bid, the Court should respect that result.	

RELEVANT PROVISIONS [OPTIONAL]
Basco v. Philippine Amusements and Gaming Corporation Dealt with provisions concerning human dignity, the sanctity of family life, the role of youth in nation-building, social justice, and education. Tolentino v. Secretary of Finance Involved constitutional provisions on social justice and human rights, as well as education. Kilosbayan, Inc. v. Morato Concerned provisions relating to the general welfare, sanctity of family life, the role of youth in nation-building, and total human liberation and development. Respondents cited <i>Basco</i>, <i>Tolentino</i>, and <i>Kilosbayan</i> to show that constitutional policy provisions may be non-self-executing; the Court rejected the analogy because those cases involved broad principles requiring legislative implementation, whereas Article XII, Section 10(2) contains an immediately enforceable mandatory command to give preference to qualified Filipinos.

PERFECTO V. MEER (1950)					
Constitutional Law I			I. Interpreting the Constitution		
Case No. 2	Vinzen Josh L. Borja	G.R. No. L-2348	February 27, 1950	Supreme Court 1st Division	Bengzon, J.

A constitutional provision must be interpreted in light of its purpose, historical background, contemporaneous understanding, and local constitutional conditions; foreign precedents may be persuasive but cannot be mechanically transplanted when the constitutional circumstances on which they rest do not exist in the Philippines.

CASE SUMMARY

PETITION	Petition for Certiorari
FACTS and ISSUE	Justice Gregorio Perfecto was assessed ₱802 in income tax on his 1946 salary as an Associate Justice of the Supreme Court . He paid the tax but sued for a refund, arguing that taxing his judicial salary effectively diminished his compensation , contrary to the constitutional guarantee that the compensation of judges "shall not be diminished during their continuance in office." The issue was whether imposing an income tax on the salary of a sitting judge constitutes an unconstitutional diminution of judicial compensation.
RULING and DISPO	Lower Court's decision is upheld. The Supreme Court held YES on the issue and affirmed the refund. The Court reasoned that the constitutional protection against diminution exists primarily to preserve judicial independence , not merely to confer a personal privilege on judges.

FACTS

Substantive:

- In April, 1947, the Collector of Internal Revenue required Mr. Justice Gregorio Perfecto to pay income tax upon his salary as a member of this Court during the year 1946.
 - After paying the amount (P802), he instituted this action in the Manila Court of First Instance, contending that the assessment was illegal, his salary not being taxable for the reason that imposition of taxes thereon would reduce it in violation of the Constitution.

Procedural:

- The Manila judge upheld his contention and required the refund of the amount collected. The defendant appealed.

ISSUES

Type	Issue	Ruling
Main - Procedural ▾	Whether or not imposing an income tax on the salary of a sitting judge constitutes an unconstitutional diminution of judicial compensation.	Yes ▾

RULING: Yes, the imposition of an income tax upon this salary in 1946 amounts to a diminution thereof.

LEGAL BASIS

Article VII. Sec. 9

Our Constitution provides in its Article VIII, section 9, that the members of the Supreme Court and all judges of inferior courts "shall receive such compensation as may be fixed by law, which shall not be diminished during their continuance in office". It also provides that "until Congress shall provide otherwise, the Chief Justice of the Supreme Court shall receive an annual compensation of sixteen thousand pesos, and each Associate Justice, fifteen thousand pesos".

APPLICATION

- Hello, please copy paste
 - The bullet points like these
 - If you need more of them
 - So you can save space 🎨
 - Napakadami na nito
 - Para hindi niyo gamitin

Main - Procedural ▾	W/N question?	Yes ▾
---------------------	----------------------	-------

ANSWER

- Hello, please copy paste

- The bullet points like these
 - If you need more of them
 - So you can save space 🎨
 - Napakadami na nito
 - Para hindi niyo gamitin

LEGAL BASIS

APPLICATION

- Hello, please copy paste
 - The bullet points like these
 - If you need more of them
 - So you can save space 🎨
 - Napakadami na nito
 - Para hindi niyo gamitin

DISPOSITION

Text here

SEPARATE OPINIONS

Carpio	Concurring	Carpio	Concurring
● Hello, please copy paste ○ The bullet points like these ■ If you need more of them ● So you can save space 🎨 ○ Napakadami na nito ■ Para hindi niyo gamitin		● Hello, please copy paste ○ The bullet points like these ■ If you need more of them ● So you can save space 🎨 ○ Napakadami na nito ■ Para hindi niyo gamitin	

RELEVANT PROVISIONS [OPTIONAL]

Source

Section X. Text here

Petitioner v. Respondent

Text here

SUPPLEMENTARY NOTES

You can use this portion to explain the development of the jurisprudence

- Hello, please copy paste
 - The bullet points like these
 - If you need more of them
 - So you can save space 🎨
 - Napakadami na nito
 - Para hindi niyo gamitin

DIGEST MAKER: Fredric Deekimcheng

ENDENCIA v. DAVID (1953)

Topic Subtopic	Interpreting the Constitution
Doctrine	The collection of income tax on the salary of a judicial officer is a diminution thereof and so violates the Constitution.
Petitioner/s	Pastor M. Endencia and Fernando Jugo, <i>plaintiffs-appellees</i>
Respondent/s	Saturnino David, as Collector of Internal Revenue, <i>defendant-appellant</i>
Year	August 31, 1953
Ponente	J. Montemayor

FACTS
Associate Justice Pastor M. Endencia and Justice Fernando Jugo were levied income taxes. According to the Solicitor General, the <i>Perfecto v. Meer</i> decision was not received well by Congress. As after which, Republic Act No. 590 was enacted. • Section 13. No salary received by any public officer in the Philippines shall be exempt from income tax, payment of which is not a diminution of his compensation fixed by the Constitution or by law.

ISSUE/S

ISSUE 1: Whether or not Republic Act No. 590, Sec. 13, can justify and legalize the collection of income tax on the salary of judicial officers.	
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
Their salaries cannot be taxed, as per the decision in <i>Perfecto v. Meer</i> .	Income tax is not a diminution of the salary of the judicial officer.
RULING and RATIO DECIDENDI for ISSUE 1:	
NO. The Court highlights the separation of powers. The legislative department makes and enacts laws, while the judicial department interprets and applies these laws. Congress stating that taxing the salary of a judicial officer is “not a decrease of compensation” is an interpretation of the law (“...which shall not be diminished during their continuance in office.”, Article VIII Section 9). This is an invasion of the province and jurisdiction of the Judiciary. Congress cannot pass a law that violates a constitutional provision. This law violates Section 9 or Article VIII of the Constitution.	

LEGAL BASES
Article VIII, Sec. 9 (1935 Constitution) “...They shall receive such compensation as may be fixed by law, which shall not be diminished during their continuance in office.” Perfecto v. Meer – Imposing income tax on judge’s salary is unconstitutional, as it is a diminution of their salary (goes against Article VIII, Section 9 of the Constitution). Evans v. Gore – the primary purpose of the prohibition against diminution was not to benefit the judges but “to attract good and competent men to the bench and to promote their independent action and judgment...” Other Tax Exemption examples Article VI, Section 22 [3] – persons, natural and juridical, are exempt from taxes on their lands, buildings, and improvements thereon when used exclusively for educational purposes. National Internal Revenue Code as amended by R.A. No. 566 – Holders of government bonds are exempted from the payment of taxes on the income or interest they receive therefrom. R.A. No. 360 – payments or income received by any person residing in the Philippines under the laws of the US administered by the US Veterans Administration are exempt from taxation. R.A. No. 210 – funds received by members of the Philippine Army who served in the Armed Forces of the US, and allowances earned from 1942 to 1945, are exempt from income tax. R.A. No. 815 – wages and allowances of members of the AFP sent to Korea are exempt. R.A. No. 35 – new, necessary industries are exempted from taxation for a certain number of years.

FINAL DECISION	- The collection of income tax on the salary of judicial officers is a diminution thereof and is therefore unconstitutional. - The interpretation and application of the Constitution is within the exclusive province and jurisdiction of the judicial department. - In enacting a law, the legislature cannot tell the courts how to interpret a law, especially if it would violate the Constitution or contradict a previous Supreme Court ruling. SO ORDERED.
-----------------------	---

SEPARATE OPINION/S

BAUTISTA ANGELO, J., <i>concurring</i>	Republic Act No. 590, Section 13 (“not to be a diminution of his compensation fixed by the Constitution or by law”) constitutes an invasion of the province and jurisdiction of the judiciary. This section is null and void.
PARAS, C.J., <i>concurring & dissenting</i>	Dissents for the same reasons as Justice Ozaeta in <i>Perfecto v. Meer</i> . Disagrees that no legislation may provide that it be held valid, even if against the constitution.

DIGEST MAKER: Name

Francisco v. The House of Representatives, 415 SCRA 44 (2003)

Topic Subtopic	Interpreting the Constitution
Doctrine	Court's power to perform Judicial Review. In line with Article VIII Section 1, the Court has the right, the duty, to judicial review, acting as a check on its co-equal branches. This does not create discord amongst different branches. Rather, it is completely in line with how the Constitution ought to be interpreted as a whole.
Petitioner/s	Ernesto B. Francisco Jr., et. al.
Respondent/s	The House of Representatives, et. al.
Year	2003
Ponente	Conchita Carpio-Morales

FACTS

Context

- **Article XI of the Constitution, Section 3(5):** "No impeachment proceedings shall be initiated against the same official more than **once** within a period of **one year**."
- **Rules of Procedure in Impeachment Proceedings (House Impeachment Rules)**
 - **RULE V | Bar Against Initiation of Impeachment Proceedings Against the Same Official, Section 16:** Impeachment proceedings are considered initiated:
 - "on the day the **House Committee on Justice** finds the verified complaint and/or resolution **sufficient in substance** OR on the date the **House** overturns or affirms the finding of the Committee that the verified complaint and/or resolution is not sufficient in substance."
 - "If a verified complaint or a resolution of impeachment is filed or endorsed (...) by at least 1/3 of the Members of the House..." it is deemed initiated at the **time of filing of filing of verified complaint or resolution**
 - **Rule V | Bar Against Impeachment, Section 17**
 - No impeachment proceedings can be initiated against same official within **1 year** from date it is deemed initiated

Timeline of Events

- July 22, 2002
 - House of Representatives adopted a resolution that directed the Committee on Justice to investigate the manner of disbursements and expenditures by the Chief Justice of the Supreme Court of the Judiciary Development Fund
- **June 2, 2003**
 - **First impeachment complaint**
 - Filed by Joseph E. Estrada against Chief Justice Hilario Davide Jr. for the violation of the constitution, betrayal of public trust, and other high crimes
- October 13, 2003
 - First impeachment was deemed "sufficient in form"
- October 22, 2003
 - First impeachment was nonetheless dismissed for being "insufficient in substance"
- **October 23, 2003**
 - **Second impeachment was filed** (Four months and three weeks since filing on June 2, 2003 and a day after the dismissal of the first impeachment complaint)
 - Filed by Representative Gilberto C. Teodoro Jr. and Felix William B. Fuentebella against Chief Justice Hilario G. Davide
- **October 28, 2003**
 - A motion to transmit the second impeachment complaint was put forth but lacked quorum
 - Respondent House of Representatives submitted a manifestation: Court has no jurisdiction to hear, prohibit, or enjoin the House.

Summary of Petitions**TLDR: Ultimate Goal: Nullification of second impeachment complaint against CJ Davide.**

G.R. No.	Petitioner	Petition
GR No. 160261	Atty. Ernesto B Francisco Jr., et. al.	Petition for Certiori, Prohibition, Mandamus - Declare Rule V, sections 16 and 17 and Rule III Section 5, 6, 7, 8, and 9 unconstitutional - Court issues a writ of mandamus directing respondents HOR et. al. to comply with Article IX, Section 3(2), (3) and (5) of the constitution
GR No. 160262	Sedfrey M. Candelaria et. al.	Petition for Certiorari/Prohibition Prays that the court: - Issue a writ “perpetually” prohibiting respondent HOR from filing any Articles of Impeachment against the Chief Justice with the Senate - Issue a writ “perpetually” prohibiting respondents Senate and Senate President Franklin Drilon from accepting any Articles of Impeachment against the Chief Justice or from proceeding with the impeachment trial in the event that the Senate has accepted the same
GR No. 160263	Arturo M. De Castro and Soledad Cagampang, et. al.	Petition for Prohibition - enjoin congress from conducting further proceedings on impeachment complaint
GR No. 160277	Francisco I. Chavez	Petition for Injunction - that the second impeachment complaint be declared unconstitutional.
GR No. 160292	Atty. Harry L. Roque	Petition for Prohibition - prohibit the respondent House of Representatives from drafting, adopting, approving, and transmitting the second impeachment complaint to the Senate
GR No. 160295	Rep. Salacnib F. Bateria and Deputy Speaker Raul M. Gonzalez	Petition for Certiorari/Prohibition - declare the second impeachment and any act proceeding be declared null and void
GR No. 160310	Leonilo R. Alfonso et al	Petition for certiorari and prohibition - Declare the House Resolution endorsing the second impeachment complaint as well as issuances from it null and void - The Court enjoin the Senate and SP from taking cognizance of, hearing, trying, and deciding the second impeachment complaint. - A writ of prohibition commanding the Senate and its prosecutors and agents to desist from conducting any proceedings or to act on the complaint
GR No. 160318	Public Interest Sector, Inc.	Petition’s nature unspecified - have Sections 16 and 17 of the House Impeachment Rules and second Impeachment complaint/Articles of Impeachment be declared null and void
GR No. 160 342	Atty. Fernando PR. Perito and Engr. Maximo N. Menez Jr.	Temporary Restraining Order and Permanent Injunction - enjoin the HOR from proceeding with the second impeachment complaint

GR No. 160343	Integrated Bar of the Philippines	Petition for Certiorari and Prohibition - Declare Sections 16 and 17 of Rule V and Sections 5, 6,7,8, and 9 of Rule III of the House Impeachment Rules unconstitutional - The house of representatives be permanently enjoined from proceeding with the second impeachment complaint
GR No. 160360	Att. Claro Flores	Petition for Certiorari and Prohibition Prays that the House impeachment Rules be declared unconstitutional
GR No. 160365	UP Law Alumni Cebu Foundation Inc. et al	Petition and Injunction Prays that the court: - Issue a writ prohibiting respondents HOR and Senate from conducting further proceedings on the 2nd impeachment complaint - The court declare the second impeachment complaint and acts of the respondent HOR in interfering with fiscal matters of the Judiciary as unconstitutional
GR. No. 160 370	Father Ranhilio Callangan Aquino	Petition for Prohibition Prays that the court Issue a writ prohibiting the HOR from transmitting Articles of Impeachment to the Senate and the Senate from receiving the same or giving the complaint due course
GR No. 160376	Nilo A. Malanyaon	Petition for Prohibition - Respondents Fuentebella and Teodoro were without any legal power to file a 2nd impeachment complaint
GR No. 160392	Atty. Venicio S. Flores and Hector L. Hofileña	Petition for Certiorari and Prohibition - HOR be enjoined from endorsing and Senate from trying the Articles of Impeachment - Second impeachment be declared null and void
GR No. 160397	Atty. Dioscoro Vallejos Jr.	Petition "To Declare Complaint Null and Void for Lack of Cause of Action and Jurisdiction"
GR No. 160403	Philippine Bar Association	Petition for Certiorari / Prohibition - 2nd impeachment complaint and all proceedings arising therefrom be declared null and void - Respondent HOR be prohibited from transmitting the Articles to the Senate - Respondent Senate be prohibited from accepting Articles and from conducting any proceedings thereon
GR No. 160405	Democrit C. Barcenas et al	Petition for Certiorari/Prohibition - 2nd impeachment complaint and the resolution of endorsement and impeachment by respondent HOR be declared null and void - Respondents Senate and SP Franklin Drilon be prohibited from accepting any Articles against the Chief Justice or if they have that they be prohibited from proceeding with the impeachment trial

ISSUE/S**[Integrated Legal Basis in Ratio for easier reading]****ISSUE 1: Whether or not the Supreme Court's power of Judicial Review extends to those arising from impeachment proceedings.****PETITIONER/S ARGUMENTS:****RESPONDENT/S ARGUMENTS:**

Speaker De Venecia - impeachment is a political question; the judicial review power of the SC has no part in any stage of the impeachment proceeding.

Sen. Pimintel - Senate's sole power to try is beyond the reach of judicial review.

Judicial review of impeachments can undermine their finality and lead to conflicts between Congress and the judiciary.

RULING and RATIO DECIDENDI for ISSUE 1:

- *TL;DR Summary:*
 - Yes, the Court has the power of judicial review over the impeachment proceedings as expressly provided in Article VIII Section 1 of the Constitution. The Court determines the proper allocation of powers and its scope / extent between departments; it is the final arbiter in determining whether executive and legislative acts are voidable if violative of the Constitution. There exists no constitutional basis for the contention that judicial review over impeachment proceedings would upset the system of checks and balances.

On the Power of Judicial Review

- In **Angara vs Electoral Commission (1936)**, the Court held that in cases of conflict, the **judicial department is the only constitutional organ which can determine the proper allocation of powers** between the several departments and among the integral or constituent units.
- The Constitution sets, in no ambiguous language, the restrictions and limitations of government agencies. It would be **inconceivable if the Constitution had not provided a mechanism for which to correct the course of erring government agencies.**
- The Constitution **expressively grants** the power to determine the nature, scope, and extent of such government powers to the Judiciary. It is the final arbiter; checks other departments in the exercise of its power, and declares executive and legislative acts voidable if violative of the Constitution.
- The judicial review is also inherent to Article 7 of the Constitution, wherein when courts declare a law to be unconstitutional... the latter shall govern.

On Constitutional Construction

- (1) *Verba Legis* - the words used in the Constitution must be given their ordinary meaning except where technical terms are involved. (**J.M. Tuason & Co., Inc. v. Land Tenure Administration**)
- (2) When there is ambiguity, *ratio legis est anima* - the Constitution should be interpreted in accordance with the intent of the framers. (*Civil Liberties Union v. Executive Secretary*)
- (3) *ut magis valeat quam pereat* - The Constitution is to be interpreted as a whole. No one provision is separate from the others. (*Chiongbian v. De Leon*)

Power of Judicial Review Over Congressional Action

- *Santiago vs Guingona* - whether or not Senate officials committed a violation of the Constitution or grave abuse of discretion
- *Tanada vs Angara* - sought to nullify the act of the Senate that contravened the Constitution.
- *Bondoc vs Pineda* - declared a resolution of the HoR in the House Electoral Tribunal
- *Coseteng vs Mitra* - House representation in the Commission on Appointments in line with the Const.
- And many more.

There exists no constitutional basis for the contention that judicial review over impeachment proceedings would upset the system of checks and balances.

LEGAL BASES

- Article VIII Sect. 1 of the 1987 Constitution reads: "The judicial power shall be vested in one Supreme Court and in such lower courts as may be established by law."

Judicial power includes the duty of the courts of justice to settle actual controversies involving rights which are legally demandable and enforceable, and to determine whether or not there has been a grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the Government."

- In **Angara vs Electoral Commission (1936)**, the Court held that in cases of conflict, the **judicial department is the only constitutional organ which can determine the proper allocation of powers between the several departments and among the integral or constituent units.**

ISSUE 2: Whether or Not whether or not the essential pre-requisites for the exercise of the power of judicial review have been fulfilled**PETITIONER/S ARGUMENTS:****RESPONDENT/S ARGUMENTS:**

Intervenor Soriano (for Respondents) - argues that Petitioners have no locus standi since only the CJ will sustain direct personal injury.

Pimintel - He urges the courts to exercise judicial restraint.

De Venecia - "[t]here is a moral compulsion for the Court to not assume jurisdiction over the impeachment because all the Members thereof are subject to impeachment. Judicial review will lead to conflicts between Judiciary and Legislative.

Solicitor General (for Petitioners) - asserts that petitioners have standing since this Court had, in the past, accorded standing to taxpayers, voters, concerned citizens, legislators in cases involving paramount public interest and transcendental importance.

RULING and RATIO DECIDENDI for ISSUE 2:

TLDR: The essential pre-requisites for the exercise of judicial review have been fulfilled. Petitioners have standing, the controversy is ripe for adjudication, it is the *lis mota* of the case, and is justiciable.

Standing - Petitioners have standing to sue.

- Real-in-party-interest vs Rule on Standing -> Former is concept of civil procedure; latter has constitutional basis.
 - In *Kilosbayan Inc v Morato* - Question on Standing = does someone have a personal stake in the outcome of the controversy | Real in Party Interest = whether someone gets injured or benefits from the ruling.
- None of the petitioners assert the violation of the personal right of the CJ. They instead invoked vindication of their own rights (taxpayers, members of congress, etc.). When suing as:
 - 1) Citizen - the interest of the petitioner assailing the constitutionality of a statute must be direct and personal. He must show that he is in imminent danger of sustaining injury.
 - 2) Taxpayer - he is allowed to sue where there is a claim that public funds are illegally disbursed, or that public money is being deflected to any improper purpose, or that there is a wastage of public funds through the enforcement of an invalid or unconstitutional law.
 - **The Court opted to grant standing to most of the Petitioners, since the impeachment proceedings will necessarily involve the expenditure of public funds.**
 - 3) Legislator - he is allowed to sue to question the validity of any official action which he claims infringes his prerogatives as a legislator.
 - **The Court granted standing to a petitioner from the HoR given this ruling.**
 - 4) Transcendental Importance - Court is satisfied that the issues raised herein are indeed of transcendental importance. Requisites for Transcendental Importance include:
 - (1) the character of the funds or other assets involved in the case;
 - (2) the presence of a clear case of disregard of a constitutional or statutory prohibition by the public respondent agency or instrumentality of the government; and

- (3) the lack of any other party with a more direct and specific interest in raising the questions being raised
- **The Court has relaxed the rules on Standing and resolved the issues presented by it due to the weight of the issue at hand..**

Ripeness and Prematurity - the prerequisite that the alleged unconstitutional act should be accomplished and performed before suit has been compiled.

- *Tan v Macapagal* - "it is a prerequisite that something had by then been accomplished or performed by either branch before a court may come into the picture." Only then may the courts pass on the validity of what was done, if and when the matter is challenged in an appropriate legal proceeding.
 - TLDR - the alleged act should be accomplished and performed before the suit has been filed.
- Question on whether the Petitions are premature:
 - *Amicus Curiae Salonga* - recommends that all remedies in the House and Senate should first be exhausted.
 - *Dean Pangalanan* - suggests to this Court to take judicial notice of ongoing attempts to encourage signatories to the second impeachment complaint to withdraw.
 - Court ruled that **the withdrawal by the Representatives of their signatures would not, by itself, cure the House Impeachment Rules of their constitutional infirmity.**

Justiciability

- *Javellana Case* - SolGen used the doctrine of political question as a defense in a number of cases which had no legal defense at all, and got away with it.
- *Judicial Power* - is a duty which cannot be abdicated by mere invocation of the political question doctrine. This however, does not apply to truly political questions.
- The determination of a truly political question from a non-justiciable political question lies in the answer to the question of whether there are constitutionally imposed limits on powers or functions conferred upon political bodies.
- **The issues raised by the petitions ask the Court to decide non-judicial political questions, which is clearly beyond the scope fo the Court.**

Lis Mota

- Courts will not touch the issue of constitutionality unless it is truly unavoidable and is the very *lis mota* or crux of the controversy.
- The Court ruled that two issues are the *lis mota* of the case:
 - (1) whether Sections 15 and 16 of Rule V of the House Impeachment Rules adopted by the 12th Congress are unconstitutional for violating the provisions of Section 3, Article XI of the Constitution
 - (2) whether, as a result thereof, the second impeachment complaint is barred under Section 3(5) of Article XI of the Constitution

Judicial Restraint

- **The exercise of judicial restraint over justiciable issues is not an option before this Court.**
- Adjudication may not be declined, because this Court is not legally disqualified. Nor can jurisdiction be renounced, as there is no other tribunal to which the controversy may be referred. If the court exercised judicial restraint, it will preclude itself from the duties vested under Art. VIII Sec. 1 of the Constitution. No other authority ahs the power to rule upon the challenge.

ISSUE 3: Whether or Not the Rules of Procedure for Impeachment Proceedings adopted by the 12th Congress is Constitutional

PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
	- <i>De Venecia</i> argues that: - Sections 16 and 17 of Rule V of the House Impeachment Rules do not violate Section 3 (5), Article XI of the Constitution. - The term "initiate" does not mean "to file." - Under Section 3 (1), the exclusive power to initiate impeachment belongs strictly to the House of Representatives as a collective body. - Section 3 (2) limits filing to three distinct methods: a verified complaint of a member, a citizen's complaint endorsed by a member, or a complaint by at least 1/3 of the HoR

- The House did not violate the one-year ban on multiple impeachment proceedings against Chief Justice Davide and the seven Associate Justices.
- The impeachment process was never legally initiated because the House has yet to act on it.

RULING and RATIO DECIDENDI for ISSUE 3:

Constitutionality of the Rules of Procedure for Impeachment Proceedings adopted by the 12th Congress

- **The resolution of this issue thus hinges on the interpretation of the term "initiate." Resort to statutory construction is, therefore, required.**
 - **Statutory Construction - the framers intended "initiation" to start with the filing of the complaint.**
 - Constitutional Commissioner Maambong - the act of "initiating" means to file the complaint and take initial action on it. It is not the body which initiates it. It only approves or disapproves the resolution.
 - Websters' Dictionary - "to perform or facilitate the first action"
 - Father Bernas: The beginning or the initiation is the filing of the complaint and its referral to the Committee on Justice.
 - Diving deeper,
 - *reddendo singula singulis* - a clear distinction between impeachment 'case' and 'proceeding' [a proceeding must be initiated; it is a progressive noun]
 - Impeachment Proceeding - characterized as a progressive noun, which takes place exclusively in the HoR
 - Impeachment Case = a controversy that must be adjudicated by the Senate.
 - 4 Steps: File Complaint -> Process Complaint -> Forward Resolution to House -> Voting (if $\frac{1}{3}$ threshold is met, it is conferred to the Senate. If it is conferred to the Senate, it is at that point that the HoR initiates an impeachment case.
 - The impeachment Proceeding is not initiated when the case is conferred to the Senate. Rather, a proceeding is initiated when a complaint is filed
 - **On Constitutionality**
 - **HoR rules on Impeachment deem proceedings to initiate when:**
 - House committee on justice determines a verified complaint is sufficient in substance
 - Once the full HoR either affirms or overturns findings by the Committee on Justice
 - Upon the filing of the verified complaint before the secretary general by $\frac{1}{3}$ of the HoR
 - **HoR Rules conflict with Section 3 (5) of Art XI of Const. - HoR rules have a very different meaning vs what the constitution says.**
 - **Any HoR impeachment rule must not contravene the Constitution.**
 - **On Validity of 2nd Impeachment Complaint**
 - Concluding from the definition of **initiation**, since the 1st Impeachment complaint was filed on June 2, 2003 by Pres. Estrada, and the second was filed on Oct. 23, 2003 by Gilberto Teodoro and Fuentebella, **it violates the constitutional prohibition against the initiation of impeachment proceedings against the same impeachable officer within a one year period.**

FINAL DECISION

Wherefore, sections 16 and 17 of Rule V of the Rules of Procedure in Impeachment Proceedings, which were approved by the House of Representatives on November 28, 2001, are unconstitutional. Consequently, the second impeachment complaint against Chief Justice Hilario G. Davide, Jr., which was filed by Representatives Gilberto C. Teodoro, Jr. and Felix William B. Fuentebella with the Office of the Secretary General of the House of Representatives on October 23, 2003, is barred under paragraph 5, section 3 of Article XI of the Constitution.

SO ORDERED.

SEPARATE OPINION/S

PUNO, J, Concurring and Dissenting

Concurring Opinion

- I. The Nature of Impeachment in the Philippine Setting
 - The Philippine Constitution adopted an impeachment system that retains the political character of the American model.
 - “The right to accuse is exclusively given to the House of Representatives. The right to try and decide is given solely to the Senate 45 and not to the Supreme Court.”
 - The grant of these powers to Congress is deliberate and constitutionally significant.
 - Justice Puno respectfully submitted that there is now a commixture of political and judicial components in our reengineered concept of impeachment. It is therefore “*sui generis*” in character.
 - → It has been shaped by our distinct political experience especially in the last 50 years. The EDSA people power I resulted in the radical rearrangement of the power of government in the 1987 Constitution
 - Therefore he stated: “I respectfully submit that the petitions at bar concern its non-political aspect, the issue of whether the impeachment complaint against Chief Justice Davide involving the JDF is already barred by the 1-year rule under Article XI, Section 3(5) of the Constitution”

Re: Justiciability and Issue of Jurisdiction

- The political question problem raises the issue of justiciability of the petitions at Bar.
 - Justiciability refers to the suitability of a dispute for judicial resolution. In contrast, jurisdiction refers to the power of a court to entertain, try and decide a case.
- The specific controversy concerns the constitutional prohibition against initiating impeachment proceedings against the same official more than once within one year.
- **Justice Puno concurred with the majority that the issues posed by the petitions at bar are justiciable and this Court has jurisdiction over them**

Dissenting Opinion

- I. The question is whether the court should exercise its jurisdiction.
 - While agreeing that the Court has jurisdiction, the next question raised was: whether the court should now exercise its jurisdiction
 - The disagreement is therefore not over the existence of jurisdiction. The issue is whether the Court should exercise its jurisdiction immediately, while the impeachment proceedings are still being considered within Congress.

Judicial Restraint vs. Judicial Activism

Judicial Restraint

- Not merely a practical approach to decision-making. It is anchored on a heightened regard for democracy
 - “accords intrinsic value to democracy based on the belief that democracy is an extension of liberty into the realm of social decision-making.”
- Deference to majority rule is therefore an important consideration in determining whether the Judiciary should intervene in matters entrusted to the political branches.

- Judicial restraint recognizes the constitutional role of the other branches and respects the fact that Congress consists of democratically elected representatives.
 - Therefore, it “gives due deference to the judiciary’s co-equal political branches of government comprised of democratically elected officials and lawmakers, and encourages separation of powers.”
 - It can also be described as “judicial respect” or respect by the judiciary for other co-equal branches

Judicial Activism

- Judicial restraint, however, does not mean that the Judiciary should always defer to Congress.
- The Court has the constitutional duty to interpret and enforce the Constitution.
- Judicial activism recognizes the necessity of judicial intervention when constitutional limitations or rights require protection.

The position Justice Puno took wasn’t the extreme position of judicial restraint nor judicial activism but the **contextual approach of the Coordinacy Theory**

Coordinacy Theory

- “which considers the Constitution’s allocation of decision-making authority, the constitution’s judgments as to the relative risks of action and inaction by each branch of government, and the fears and aspirations embodied in the different provisions of the constitution”
 - Therefore, it allows the political branches adequate leeway to carry out their constitutional duties, while at the same time ensuring that any abuse does not undermine important constitutional principles
- The Congress, the Executive and the Judiciary are therefore all required to interpret and uphold the Constitution in the exercise of their respective powers
- Coordinacy does not eliminate Judicial Review
 - It stated that: “By no means however, does it signify complete judicial deference.”
 - Rather, the relationship is instead: “Coordinacy means courts listen to the voice of the President and Congress but their voice does not silence the judiciary.”

Thereafter he proceeded to balance these constitutional values:

1. Judicial deferment gives due recognition to the fact that the Constitution expressly grants:
 - To the House of Representatives, the “exclusive” power to initiate impeachment proceedings; and to the Senate, the “sole” power to try and decide said cases.
 - “The political components of impeachment are dominant and their appreciation are not fit for judicial resolution. Indeed, they are beyond the loop of judicial review.”
 - → The Court should therefore initially allow Congress to perform the constitutional functions assigned to it.
2. Judicial deferment would at the very least stop our descent to a constitutional crisis.
 - As expressed by Justice Puno: “Only those with the armor of invincible ignorance will cling to the fantasy that a stand-off between this Court and Congress at this time will not tear as under our tenuous unity.”
 - Impeachment itself is intended to protect the principles of separation of powers and checks and balances, which is the glue that holds together our government
3. The Court should strive to preserve a “constitutional equilibrium where each branch of government cannot dominate each other”

	• “Which requires that each branch in exercise of its distinct power should be left alone yet bereft of a license to abuse” • While the 1987 Constitution expanded the parameters of Judicial power, that by no means is a justification for the errant thought that the Constitution created an imperial judiciary. 4. There is jurisdiction to strike down impermissible violations of constitutional standards and procedure in the exercise of the power of impeachment by Congress but the <u>timing when the Court must wield its corrective certiorari power rests on prudential considerations.</u> • They agreed that they rightfully ruled that they have jurisdiction but had the wrong timing of the exercise of jurisdiction In summary, he voted as follows: (1) grant the locus standi of the petitioners considering the transcendental constitutional issues presented; (2) hold that it is within the power of this Court to define the division of powers of the branches of government; (3) hold that the alleged violation of Article XI, Section 3 (5) of the Constitution which provides that <i>“no impeachment proceedings shall be initiated against the same official more than once within a period of one year”</i> is a justiciable issue and hence within the competence of this Court to decide; and (4) hold that the coordinacy theory of constitutional interpretation and prudential considerations demand that this Court defer the exercise of its certiorari jurisdiction on the issue of alleged violation of Article XI, Section 3 (5) of the Constitution until after the remedies against impeachment still available in both the House of Representatives and the Senate shall have been exhausted. He then voted to dismiss the petitions at bar
YNARES-SANTIAGO, J. Concurring and Dissenting	Justice Ynares-Santiago concurred with the ponente that the petitioners have satisfactorily established their locus standi, except for Atty. Dioscoro, as well as to the fact that the Court has the power of judicial review. The Justice disagrees with the majority in its decision to discard the flaw as to the manner in which the House initiated the impeachment proceedings. The mere endorsement of the members of the House did not suffice for it did not constitute filing of the impeachment complaint. The complaint was also not filed by at least one-third of the Members of the House, as required by the Constitution. Moreover, the Chief Justice, against whom the complaint was brought, was not served notice of the proceedings against him, in violation of the due process clause of the Constitution. However, the Justice dissents as to the decision of the majority to resolve the issue at a premature stage. The Justice emphasized that the Court is the final arbiter of all justiciable questions and should only exercise its power of judicial review when the procedure outlined in the Constitution has been exhausted. The complaint should have been referred back to the House Committee on Justice, where its constitutionality may have been discussed. Even after they decided it so, it would still have been deliberated by the House on plenary. Then again, the questions regarding the complaint may be brought out again when it reaches the Senate, who may deny the motion or dismiss the complaint based on its merits. Only after the Senate have acted in due course, should the disposition of the case may be elevated to the Court pursuant to its judicial power of review. Moreover, there are several other remedies that should have been availed that may render the petitions moot: (1) attempts to encourage the signatories of the complaint to withdraw their signatures; (2) the raising of the Constitutional questions by the members of Congress themselves; and (3) assuming the Articles of Impeachment are transmitted to the Senate, CJ Davide could raise the same issues by way of motion to dismiss or motion to quash.

DIGEST MAKER: *Name*

	The Court should practice judicial self-restraint. Exercising the power of judicial review over impeachment would place the final reviewing authority with respect to impeachments in the hands of the same body that the impeachment process is meant to regulate.
--	---

DIGEST MAKER:

In Re Supreme Court Judicial Independence v. Judiciary Development Fund (2015)

Topic Subtopic	Interpreting the Constitution
Doctrine	The Supreme Court's authority to interpret the Constitution is not unlimited. It may only exercise judicial review when all its requisites are met, including an actual case or controversy and the person challenging the act to have legal standing. Courts cannot rule on the constitutionality of proposed bills because they are not yet laws, and doing so would render an advisory opinion to the Congress.
Petitioner/s	Rolly Mijares (representing the Save the Supreme Court Judicial Independence and Fiscal Autonomy Movement)
Respondent/s	N/A
Year	2015
Ponente	Leonen, J.

FACTS

Rolly Mijares, a Filipino citizen and taxpayer, filed a petition for mandamus to invoke the Supreme Court to exercise its judicial independence and fiscal autonomy against the Congress. He alleged that the judiciary was being threatened following the promulgation of the Priority Development Assistance Fund case and Disbursement Acceleration Program, as he deemed that certain acts of members of Congress and the President pose a threat to judicial independence.

Specifically, in July 2014, some members of Congress (i.e., Ilocos Norte Representatives Rodolfo Fariñas and Niel Tupas, Jr.) filed bills seeking to abolish the Judiciary Development Fund (JDF) and replace it with a Judiciary Support Fund, whose collections would be remitted to the National Treasury and allocated by Congress.

The issue for resolution is whether the petitioner has sufficiently shown grounds for the Supreme Court to grant the petition and issue a writ of mandamus. He argues that 1) Congress "gravely abused its discretion with a blatant usurpation of judicial independence and fiscal autonomy of the Supreme Court" and 2) Congress is exercising its power "in an arbitrary and despotic manner by reason of passion or personal hostility by abolishing the 'Judiciary Development Fund' (JDF) of the Supreme Court."

He hopes that the Supreme Court would exercise its powers to "REVOKE/ABROGATE and EXPUNGE whatever irreconcilable contravention of existing laws affecting the judicial independence and fiscal autonomy as mandated under the Constitution to better serve public interest and general welfare of the people."

This court resolves to deny the petition.

ISSUE/S

ISSUE 1: Whether or Not the Petitioner complied with all the requisites for judicial review	
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
He wants the Court to strike down the proposed bills in Congress that will abolish the Judiciary Development Fund.	The Court must act only within its powers granted under the Constitution. It is not empowered to review proposed bills because a bill is not a law. The petitioner has no legal standing to question the validity of the proposed bill.
RULING and RATIO DECIDENDI for ISSUE 1:	
<u>NO. The petition does not comply with the requisites of judicial review.</u> First, there was no actual case or controversy ripe for determination. For the court to rule on constitutional issues, pleadings before the court must show a violation of an existing legal right or a controversy that is ripe for judicial determination. The petitioner's allegations did not meet such criteria as he aims to strike down a proposed bill, which is beyond the power of the Court. Under the separation of powers, the Court cannot restrain Congress from passing any law, or from setting into motion the legislative mill according to its internal rules. The judiciary's role is merely to interpret laws and thereby cannot speculate on the constitutionality or unconstitutionality of a bill that Congress may or may not pass. Second, the petitioner has no legal standing. The Court applied the direct injury test from previous cases. The petitioner has not shown that he has sustained or will sustain a direct injury if the proposed bill is passed into law. While his concern for judicial independence is laudable, it does not, by itself, clothe him with the requisite standing to question the constitutionality of a proposed bill that may only affect the judiciary. Moreover, the threat of imminent injury is not yet manifest since there is no guarantee that the bill will even be passed into law.	
LEGAL BASES	
Article VIII, Section 1 of the Constitution: <i>Judicial power includes the duty of the courts of justice to settle actual controversies involving rights which are legally demandable and enforceable, enforceable, and to determine whether or not there has been a grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the Government.</i> Concurring Opinion in Belgica v. Ochoa: <i>This Court cannot render an advisory opinion. A policy that reduces this Court to an adviser for official acts by the other departments that have not yet been done would unnecessarily tax our resources.</i> Montesclaros v. COMELEC: <i>"A proposed bill is not subject to judicial review because it is not a law. A proposed bill creates no right and imposes no duty legally enforceable by the Court. A proposed bill, having no legal effect, violates no constitutional right or duty. The Court has no power to declare a proposed bill constitutional or unconstitutional because that would be in the nature of rendering an advisory opinion on a proposed act of Congress."</i> David v. Macapagal-Arroyo: The plaintiff must adequately show that he is entitled to seek judicial protection. He has to make out a sufficient interest in the vindication of the public order and the securing of relief as a "citizen" or "taxpayer."	

ISSUE 2: Whether or Not the issuance of a writ of mandamus should issue	
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:

DIGEST MAKER:

RULING and RATIO DECIDENDI for ISSUE 2:	
NO. The exercise of judicial review is not a ministerial duty that may be compelled through mandamus. The writ of mandamus will issue when the act sought to be performed is ministerial, meaning it does not require the exercise of judgment and the act is performed in compliance with a legal mandate. In a petition for mandamus, the burden of proof is on the petitioner. They must show that they are entitled to the performance of a legal right and that the respondent has a corresponding duty to perform the act. The petitioner in this case has not shown how he is entitled to the relief prayed for. Hence, the court cannot be compelled to exercise its power of judicial review since there is no actual case or controversy.	
LEGAL BASES	
Rule 65, Section 3 of the 1997 Rules of Civil Procedure: <i>When any tribunal, corporation, board, officer or person unlawfully neglects the performance of an act which the law specifically enjoins as a duty resulting from an office, trust, or station, or unlawfully excludes another from the use and enjoyment of a right or office to which such other is entitled, and there is no other plain, speedy and adequate remedy in the ordinary course of law, the person aggrieved thereby may file a verified petition in the proper court, alleging the facts with certainty and praying that judgment be rendered commanding the respondent, immediately or at some other time to be specified by the court, to do the act required to be done to protect the rights of the petitioner, and to pay the damages sustained by the petitioner by reason of the wrongful acts of the respondent.</i>	
FINAL DECISION	WHEREFORE, the petition is DISMISSED . SO ORDERED.

DIGEST MAKER:

NITAFAN v. COMMISSIONER OF INTERNAL REVENUE (EN BANC, July 23, 1987)

Topic Subtopic	Interpreting the Constitution Interpretation
Doctrine	The fundamental principle of constitutional construction provides that the intent of the framers of the organic law and of the people adopting it should be given effect.
Petitioner/s	David G. Nitafan, Wenceslao M. Polo, and Maximo A. Savellano, Jr.
Respondent/s	Commissioner of Internal Revenue and the Financial Officer, Supreme Court of the Philippines
Year	1987
Ponente	<u>Melencio-Herrera, J.</u>

FACTS
The petitioners are duly appointed Judges presiding over Branches 52, 19, and 53 respectively of the Regional Trial Court, National Capital Judicial Region who sought to prohibit the CIR, the respondent, from deducting their salaries in the form of withholding taxes; arguing that any tax withheld from their emoluments or compensation as judicial officers constitutes a decrease or diminution of their salaries, which contradicts <u>Sec. 10, Art. VIII</u> of the 1987 Constitution as it is an “anathema to the ideal of an independent judiciary” • “During their continuance in office, their salary shall not be decreased.” Before the issue, the Court had administratively dealt with the matter in response to the representations that the Court direct its Finance Officer to discontinue withholding taxes. On June 4, 1987, the Court en banc reaffirmed the directive of the Chief Justice that the Fiscal Management and Budget Office of this Court to continue with the deduction of the withholding taxes from the salaries of Justices of the SC and other members of the judiciary.

ISSUE/S

ISSUE 1: Whether or not the act of taxing the salaries of judicial officers is violative of Sec, 10, Art. VIII of the Constitution?	
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:

The petitioners argue that the 1987 Constitution does not contain a provision similar to Section 6, Article XV of the 1973 Constitution: "No salary or any form of emolument of any public officer or employee, including constitutional officers, shall be exempt from payment of income tax." Hence, the petitioners claim that the intent of the framers is the original concept of non-diminution.	The Court had administratively released a directive from the Chief Justice reaffirming that the Fiscal Management and Budget Office of this Court was to continue with the deduction of the withholding taxes from the salaries of Justices and other members of the judiciary. "RE:Question of exemption from income taxation. — The Court REAFFIRMED the Chief Justice's previous and standing directive to the Fiscal Management and Budget Office of this Court to continue with the deduction of the withholding taxes from the salaries of the Justices of the Supreme Court as well as from the salaries of all other members of the judiciary."
RULING and RATIO DECIDENDI for ISSUE 1:	
No. The act of taxing the salaries of judicial officers is not violative of Sec. 10, Art. VIII of the Constitution. - Based on the record of the Constitutional Commission, after debates and opinions expressed, the true intent of the framers is to make the salaries of the Judicial members taxable. - This was to provide equal treatment in all branches of the government since other officials such as Cabinet members have their income reduced in their service in the government. - The amendment from "diminished" to "decreased" had an additional amendment which involved the insertion of a period (.) after DECREASED on the understanding that the "salary of the justices" is subject to tax. - With this interpretation, the fundamental framers of the law have expressed clearly the meaning of Sec. 10, Art. VIII of the 1987 Constitution - This also discards the ruling of Perfecto vs. Meer, as affirmed in Endencia vs. David, which ruled that taxes are a diminution of the salaries of judicial officers, therefore, not allowed.	
LEGAL BASES	
- Record of the Constitutional Commission, Vol. I, p. 506. "THE PRESIDING OFFICER (Mr. Bengzon). The understanding, therefore, is that there will be a provision under the Article on General Provisions. Could Commissioner Rosario Braid kindly take note that the <u>salaries of officials of the government including constitutional officers shall not be exempt from income tax?</u> The amendment proposed herein and accepted by the Committee now reads as follows: 'During their continuance in office, their salary shall not be DECREASED'; and the phrase 'nor subjected to income tax' is deleted."	
FINAL DECISION	- Respecting the true intent of the people through the discussion and deliberations of their representatives, it is ruled that all citizens should aliquot part of the cost of maintaining the government and bear the burden of taxation equitably WHEREFORE, the instant petition for Prohibition is hereby dismissed.

Filoteo, Jr. v. Sandiganbayan

DOCTRINE

While penal laws favorable to the accused are given retroactive effect, constitutional provisions are strictly prospective in application unless a contrary intent is expressly declared; thus, the 1987 Constitution's requirement that an uncounselled waiver of the right to counsel during custodial investigation is void cannot apply retroactively to extrajudicial confessions executed voluntarily under the 1973 Constitution.

RECITATION SUMMARY

Petitioner Jose D. Filoteo, Jr., a police investigator of the Western Police District, was accused of being the mastermind behind the May 3, 1982 armed hijacking of a Bureau of Posts delivery van carrying over ₱253,000 in Medicare, pension checks, and treasury warrants. Following an entrapment operation on May 29, 1982, arresting officers apprehended his co-conspirators, who pointed to Filoteo as the architect of the robbery. On May 30, 1982, Filoteo was invited to Camp Crame, informed of his rights under the 1973 Constitution, and executed a sworn extrajudicial confession waiving his right to counsel without a lawyer present, thereafter leading lawmen to retrieve stolen checks hidden in his neighborhood. The Sandiganbayan convicted him of highway robbery/brigandage under P.D. 532. On appeal, Filoteo argued that his extrajudicial confession was inadmissible because the 1987 Constitution's proscription against uncounselled waivers (Art. III, Sec. 12) should apply retroactively to him as a favorable rule. The Supreme Court affirmed his conviction but reclassified the offense: (1) constitutional provisions apply prospectively, not retroactively, meaning Filoteo's waiver executed in 1982 complied with the 1973 Constitution where voluntary uncounselled waivers were valid; (2) any defect in his warrantless arrest was waived by pleading to the Information and participating in trial; and (3) because the robbery targeted a specific, predetermined mail van rather than indiscriminate highway plundering, the crime was simple **Robbery** under Article 294(5) in relation to Article 295 of the Revised Penal Code, reducing his penalty.

MATERIAL FACTS & PROCEDURAL HISTORY

- **Legally Relevant Parties & Relationship:**
 1. *Petitioner:* Jose D. Filoteo, Jr. (Police investigator of the Western Police District, Metro Manila, charged as co-principal/mastermind).
 2. *Respondents:* Sandiganbayan and the People of the Philippines.
 3. *Co-Accused:* Martin Mateo, Jr., PC/Sgt. Bernardo Relator, Jr., PC/C1C Ed Saguindel, Ex-PC/Sgt. Danilo Miravalles, and civilian accomplices.
- **Chronological Material Facts:**
 1. At around 6:30 AM on May 3, 1982, Bureau of Posts mail van MVD No. 129 was intercepted and hijacked in Meycauayan, Bulacan by armed men in fatigue uniforms using a Mercedes Benz car. The hijackers took the van and postal mail containing SSS Medicare/pension checks and treasury warrants valued at ₱253,728.29.
 2. Postmaster General Roilo Golez requested assistance from the Special Operations Group (SOG) of the Philippine Constabulary (PC).
 3. On May 29, 1982, SOG operatives conducted an entrapment in Cubao, apprehending Rey Frias, Ricardo Perez, Raul Mendoza, Martin Mateo, Jr., and Angel Liwanag, retrieving stolen checks.
 4. Upon questioning, Mateo, Liwanag, and Mendoza pointed to police investigator Jose D. Filoteo, Jr. as the mastermind who secured the Mercedes Benz getaway car and held a share of the stolen checks.

5. On May 30, 1982, SOG officers brought Filoteo to Camp Crame. Informed of his constitutional rights under the 1973 Constitution, Filoteo waived his right to counsel without the presence of a lawyer and executed a sworn extrajudicial confession detailing his role. He then accompanied lawmen back to his neighborhood to retrieve bundles of stolen checks.

- **Procedural History:**

1. Filoteo and his co-accused were charged before the Sandiganbayan in Criminal Case No. 8496 for violation of P.D. 532 (Anti-Piracy and Anti-Highway Robbery Law of 1974).
 2. On June 19, 1987, the Sandiganbayan convicted Filoteo, Mateo, Relator, and Saguindel of violating P.D. 532 and sentenced each to *reclusion temporal* (12 years and 1 day to 13 years, 1 month, and 11 days).
 3. Filoteo filed an alternative petition for *certiorari* (Rule 65) and/or review on *certiorari* (Rule 45) before the Supreme Court.
-

● PARTIES' MATERIAL ARGUMENTS

- **Petitioner's (Jose D. Filoteo, Jr.) Claims:**

1. *Inadmissibility of Confession:* His extrajudicial confession is inadmissible because his waiver of the right to counsel was made without the assistance of counsel, asserting that the 1987 Constitution (Art. III, Sec. 12) prohibiting uncounselled waivers should apply retroactively in his favor like a favorable penal law.
2. *Illegal Arrest & Torture:* His warrantless arrest was unlawful, and his confession was extracted through physical torture and intimidation.
3. *Insufficiency of Evidence:* The prosecution's evidence failed to prove his guilt beyond reasonable doubt as no postal employee identified him at the scene.

- **Respondents' (People of the Philippines / OSG) Claims:**

1. *Validity of Confession under 1973 Constitution:* The extrajudicial confession was executed on May 30, 1982, under the 1973 Constitution, which permitted a suspect to voluntarily waive the assistance of counsel during custodial investigation.
 2. *Non-Retroactivity:* Constitutional rules governing Bill of Rights protections operate prospectively.
 3. *Waiver of Arrest Defect:* Filoteo waived any objection to his warrantless arrest by pleading not guilty and participating fully in the trial.
 4. *Sufficient Independent Evidence:* Filoteo's guilt was independently established by interlocking confessions, procurement of the getaway vehicle, and recovery of stolen checks from his possession.
-

● ISSUES

1. **Whether an appeal from a final decision of the Sandiganbayan should be governed by Rule 45 or Rule 65.**
 2. **Whether the 1987 Constitutional mandate requiring a waiver of the right to counsel to be in writing and in the presence of counsel applies retroactively to extrajudicial confessions executed in 1982 under the 1973 Constitution.**
 3. **Whether petitioner can challenge the legality of his warrantless arrest for the first time on appeal.**
 4. **Whether the prosecution established petitioner's guilt beyond reasonable doubt, and whether the crime committed was Highway Robbery under P.D. 532 or simple Robbery under the Revised Penal Code.**
-

♥ HOLDING AND RATIO DECIDENDI

ISSUE 1: Proper Procedural Mode of Appeal (Rule 45 vs. Rule 65)

HOLDING: Appeals from final decisions of the Sandiganbayan are governed exclusively by **Rule 45** (Petition for Review on *Certiorari*).

RATIO & DETAILED COURT LOGIC:

- 1. Under P.D. 1606, as amended by R.A. 7975, final decisions and orders of the Sandiganbayan are appealable to the Supreme Court by petition for review on *certiorari* raising pure questions of law under Rule 45.
- 2. While petitioner filed an "alternative petition" under both Rule 45 and Rule 65, the Court treated it strictly as a Rule 45 petition. Findings of fact by the Sandiganbayan are generally binding on appeal, subject to narrow exceptions (such as palpable error or misapprehension of facts).

ISSUE 2: Non-Retroactivity of the 1987 Right to Counsel Provisions

HOLDING: NO. The 1987 Constitutional rule requiring an uncounselled waiver of counsel to be made with the assistance of counsel does **NOT** apply retroactively.

RATIO & DETAILED COURT LOGIC:

- 1. *Distinction Between Penal Laws and Constitutional Provisions:*
 - o Article 22 of the Revised Penal Code grants retroactive effect to *penal laws* when favorable to the accused.
 - o However, **provisions of the Constitution are strictly prospective in application**, unless a contrary intent is expressly declared in the fundamental law.
- 2. *Governance of the 1973 Constitution:*
 - o Filoteo's custodial investigation and extrajudicial confession took place on May 30, 1982, governed by the 1973 Constitution.
 - o Under the 1973 Constitution and established doctrine (*Magtoto v. Manguera*), a suspect under custodial investigation could validly waive his right to counsel without the assistance of a lawyer, provided the waiver was voluntary, knowing, and intelligent.
- 3. *Validity of the Confession:*
 - o Because Filoteo's waiver and extrajudicial confession complied with the constitutional standards in force at the time of execution in 1982, the confession was lawfully obtained and admissible in evidence. The 1987 Constitution cannot be invoked retroactively to invalidate a confession validly secured under prior constitutional law.
 - o Filoteo failed to substantiate his allegations of torture or coercion, and his confession contained details that only a direct participant could possess.

ISSUE 3: Waiver of Objections to Warrantless Arrest

HOLDING: NO. Petitioner is **estopped** from challenging the validity of his warrantless arrest on appeal.

RATIO & DETAILED COURT LOGIC:

- 1. Any objection to the legality of a warrantless arrest or jurisdictional defects over the person of the accused must be raised in a motion to quash before entering a plea.
- 2. By voluntarily entering a plea of not guilty and actively participating in the trial without challenging his arrest, Filoteo submitted to the jurisdiction of the trial court and cured any attendant procedural irregularity.

ISSUE 4: Sufficiency of Evidence & Reclassification of Offense

HOLDING: Petitioner's guilt was proven beyond reasonable doubt, but the crime committed was **Robbery** under Article 294(5) in relation to Article 295 of the Revised Penal Code, **NOT** Highway Robbery under P.D. 532.

RATIO & DETAILED COURT LOGIC:

1. *Sufficiency of Evidence:* Even setting aside his extrajudicial confession, independent evidence established Filoteo's guilt beyond reasonable doubt: his borrowing of the getaway vehicle, interlocking confessions of co-conspirators pointing to him as mastermind, his leading of officers to recover stolen checks in his neighborhood, and his implausible alibi.
2. *Reclassification from P.D. 532 to RPC Robbery:*
 - P.D. 532 (Anti-Highway Robbery Law) targets organized brigands who indiscriminately commit robbery on highways against any passerby.
 - Where the offenders predetermined a specific victim and targeted a specific postal mail van, the crime is simple **Robbery** under Article 294, paragraph 5, in relation to Article 295 of the Revised Penal Code (robbery committed on a highway by attacking a moving vehicle with arms).
3. *Lighter Penalty Benefits Petitioner:* Reclassifying the crime reduces the penalty, benefiting Filoteo (though not his non-appealing co-accused).

DECISION & DISPOSITION:

The Supreme Court **DENIED** the petition, but **MODIFIED** the Sandiganbayan Decision by finding petitioner Jose D. Filoteo, Jr. **GUILTY** beyond reasonable doubt as co-principal in the crime of **Robbery** under Articles 293, 294(5), and 295 of the Revised Penal Code, imposing an indeterminate penalty of 4 years and 2 months of *prision correccional* as minimum to 10 years of *prision mayor* as maximum.

CLOSED-BOOK RETRIEVAL & RECITATION LAYER

- **60–90 Second Recitation Answer:**

In *Filoteo, Jr. v. Sandiganbayan*, petitioner police investigator Filoteo was convicted of brigandage under P.D. 532 for masterminding the 1982 hijacking of a postal mail van. On appeal, Filoteo argued that his 1982 extrajudicial confession was inadmissible because his waiver of counsel was made without a lawyer, invoking the retroactive application of the 1987 Constitution. The Supreme Court affirmed his conviction but reclassified the crime. The Court held that while penal laws favorable to the accused act retroactively, constitutional provisions operate **prospectively**. Because Filoteo's uncounselled waiver was voluntarily executed in 1982 under the 1973 Constitution—which allowed voluntary uncounselled waivers—it remained valid and admissible. The Court further ruled that Filoteo waived objections to his warrantless arrest by pleading to the Information, and reclassified the offense to simple Robbery under Article 294(5) in relation to Article 295 of the Revised Penal Code because the robbery targeted a specific predetermined vehicle rather than indiscriminate highway plundering.
- **3 Likely Follow-Up Questions & Concise Answers:**
 1. *Why doesn't Article 22 of the Revised Penal Code (retroactivity of favorable rules) apply to Art. III, Sec. 12 of the 1987 Constitution?*

Answer: Article 22 of the RPC applies exclusively to *penal statutes* defining crimes and

penalties. Constitutional provisions operate prospectively unless the fundamental law explicitly provides otherwise.

2. *What is the key distinction between Highway Robbery under P.D. 532 and Robbery under the Revised Penal Code?*

Answer: P.D. 532 requires that the offenders be brigands committing indiscriminate robbery against any highway traveler, whereas RPC Robbery applies when the ambush targets a specific, predetermined victim or vehicle.

3. *Does Filoteo's reclassification to a lighter penalty benefit his co-accused who jumped bail?*

Answer: No. The lighter penalty benefits only Filoteo because his co-accused did not contest or appeal the Sandiganbayan Decision.

- **1 Changed-Material-Fact Hypothetical:**

Hypothetical: Suppose Filoteo executed his uncounselled waiver and extrajudicial confession on February 25, 1987 (after the ratification of the 1987 Constitution on February 2, 1987).

Would the confession be admissible?

Answer: No. Because the custodial investigation would have occurred *after* the effectivity of the 1987 Constitution, Article III, Section 12(1) and (3) would directly govern, making an uncounselled waiver null and void, and the resulting confession completely inadmissible.

- **1-Sentence Doctrine Anchor:**

Under *Filoteo, Jr. v. Sandiganbayan*, constitutional provisions apply prospectively, rendering extrajudicial confessions with uncounselled waivers executed voluntarily under the 1973 Constitution valid and unaffected by the 1987 Constitution.

DIGEST MAKER: Ledbetter

JM TUASON v. LAND TENURE ADMINISTRATION [INTERPRETATION & DECISION] (1970)

Topic Subtopic	Interpreting the Constitution	Doctrine	Words in the Constitution must be interpreted with their ordinary meaning, unless technical terms with significant definitions are involved.
Petitioner/s	J.M. Tuason & Co, Inc. (petitioner-appellee)	Respondent/s	Land Tenure Administration, Solicitor General, & Auditor General (respondents-appellants)
GR No.:	L-21064	Ponente	Fernando, J.

FACTS

- **Aug. 3, 1959: RA No. 2616** took effect w/o executive approval. The act provided for the **expropriation of the 109-hectare Tatalon Estate**, by plaintiff J.M. Tuason, et al, in Q.C.
- **Nov. 15, 1960:** Land Tenure Administration (LTA) directed by the Executive Secretary began proceedings for expropriating the Tatalon estate.
- **Nov. 17, 1960:** Tuason & Co, Inc. filed for **special action for prohibition** before lower court, praying for a preliminary injunction to nullify RA No. 2616 and halt expropriation by respondents.
- **Nov. 18, 1960:** Injunction was granted upon filing P20k bond.
- **Jan. 10, 1963:** Lower court then held that **RA No. 2616 is UNCONSTITUTIONAL**.
 - Respondents **LTA, SolGen, and Auditor General** appealed.

Commonwealth Act No. 539, May 26, 1940

SECTION 1. The President of the Philippines is authorized to acquire private lands or any interest therein, through purchase or expropriation, and to subdivide the same into home lots or small farms for resale at reasonable prices and under such conditions as he may fix to their bona fide tenants or occupants or to private individuals who will work the lands themselves and who are qualified to acquire and own lands in the Philippines.

REPUBLIC ACT NO. 2616, August 03, 1959

SECTION 1. The expropriation of the Tatalon Estate in Quezon City jointly owned by the J. M. Tuazon and Company, Inc., Gregorio Araneta and Company, Inc., and Florencio Deudor, et al, is hereby authorized.

SEC. 2. Immediately upon the appropriation of funds by the Congress of the Philippines for the payment of just compensation for the said Tatalon Estate, the Solicitor General, or any other proper Government authority shall institute the necessary expropriation proceedings before the Court of First Instance of Quezon City.

SEC. 3. After the expropriation of the Tatalon Estate as provided in this Act, the lots therein shall be sold at cost to their present bona fide occupants in not more than two hundred forty equal monthly installments with interest of not more than six per centum per annum on the unpaid balance.

ISSUE/S

ISSUE 1: W/N Republic Act No. 2616, or the act providing for the expropriation of the 109-hectare Tatalon Estate, is constitutional.

PETITIONER/S ARGUMENTS:

RESPONDENT/S ARGUMENTS:

RULING and RATIO DECIDENDI for ISSUE 1:

Yes, RA No. 2616 is **CONSTITUTIONAL**.

- On the basis of **verba legis**
 - The 1935 Constitution (in Art. XIII, Sec. 4) plainly provides the authority granted to the Congress

regarding expropriation of lands for subdivision and resale. There is no obscurity in the wording, thus, it must be taken as is.

- On the basis of **history** and **ratio legis est anima**
 - Although historical discourse is more valuable than decisive, it must be acknowledged that the Constitution was drafted with welfare of the people in mind, and this entails consideration for social realities of inequality, particularly in estates, property, and housing.
 - The Constitution, neither disregards rights to private property nor adheres to a laissez-faire doctrine; it forwards laws rooted in equity and social justice.
- The requirement of “just compensation”, determined through fair market value of the land, adheres to the same mentioned condition in the Bill of Rights..

LEGAL BASES

Art. III, Sec. 1 of the 1935 PH Constitution

- (1) No person shall be deprived of life, liberty, or property without due process law, nor shall any person be denied the equal protection of the laws.
- (2) Private property shall not be taken for public use without just compensation.

Art. XIII, Sec. 4

SEC. 4. The Congress of the Philippines may authorize, upon payment of just compensation, the expropriation of lands to be subdivided into small lots and conveyed at cost to individuals.

ISSUE 2: W/N the petitioner was denied the right of equal protection.

PETITIONER/S ARGUMENTS:

Congress unfairly singled out Tatalon Estate for expropriation.

Petitioner denies allegations of duplicitous behavior.

RESPONDENT/S ARGUMENTS:

Several years before the effectivity of RA No. 2616, petitioner allegedly...

- Let the occupants of Tatalon estate believe that the Veterans Subdivision (VS) were the real owners of the estate
- Allowed VS to construct roads and offices in the lot and advertise said lots for sale
- Did not do anything when occupants paid substantial money for the houses and lots
- Only revealed that it was the actual owner once the estate had been improved

RULING and RATIO DECIDENDI for ISSUE 1:

No. The constitutional requirement of “equal protection under the laws” includes juridical persons. Ergo, an aggrieved party may invoke the equal protection clause if there is sufficient basis that acts by the government curtailing their rights (such as expropriation of private lands) were done without good faith.

There is no basis to claim that the Congress unfairly singled out petitioner’s property.

LEGAL BASES

FINAL DECISION

WHEREFORE, the decision of the lower court of Jan. 10, 1963, holding that RA No. 2616 as amended by RA No. 3453 is unconstitutional is **REVERSED**.

Writ of prohibition is denied. Preliminary injunction issued by lower court is set aside.

With costs against petitioner.

	SO ORDERED.
--	-------------

SEPARATE OPINION/S

TEEHANKEE, J, <i>dissenting & concurring</i>	Concurring: Agreement with result of reversing lower court decision. Dissenting: 1. Facts about the case must first be completed and resolved. a. What remains of Tatalon estate must first be determined, as it has been asserted that as of Feb. 17, 1969, only 39 hectares or less remain unsold. b. There is unresolved dispute as to whether there are actual bona fide residents of Tatalon Estate or if they are merely illegal squatters. 2. The power of the Congress in selecting and appraising properties calls for judicial scrutiny. 3. There seems to be no benefit for respondents in expropriating the property given that it was for sale in the first place.
---	--

DIGEST MAKER: Legaspi, Bea Allison

JM Tuason v Land Tenure Administration [RESOLUTION] (1970)

Topic Subtopic	Interpreting the Constitution Interpretation
Doctrine	An inaccuracy apparent on the face of the challenged statute does not suffice to call for its invalidity.
Petitioner-appellee/s	JM Tuason & Co, Inc., petitioner-appellee
Respondent-appellant/s	The Land Tenure Administration, the Solicitor General, and the Auditor General, respondents-appellants
Year	1970
Ponente	Fernando, J.

FACTS

13 February 1970: Decision reversed judgement of the lower court holding RA No. 2616 as amended is unconstitutional

31 March 1970: Motion for reconsideration was filed by petitioner-appellee reiterating arguments as to its alleged invalidity for being violative of the due process and equal protection guarantees

27 May 1970: SolGen filed a detailed opposition to the 31 March motion for reconsideration on behalf of respondents-appellants

15 June 1970: Rejoinder of petitioner came to the pleading of the SolGen - thus, motion for reconsideration is ripe for determination

ISSUE/S

ISSUE 1: Whether or Not there is a constitutional infirmity vitiating RA No. 2616

PETITIONER/S ARGUMENTS:

N/A

RESPONDENT/S ARGUMENTS:

N/A

RULING and RATIO DECIDENDI for ISSUE 1:

No, there is none.

- It was a unanimous Court that could not locate a constitutional infirmity.
 - The intent of the framers of the Constitutional Convention, as shown in the social justice provision and the specific provisions allowing the expropriation of landed estates precludes (i.e. prevents) a favorable action on the impassioned plea of the petitioner.
- Section 4 of RA No. 2616 (which prohibits a suit for ejectment proceedings or the continuance of one already commenced even in the absence of expropriation proceedings) is unconstitutional, as held in Cuatico v. Court of Appeals. However, an inaccuracy apparent on the face of the challenged statute to the ownership of the Tatalon Estate does not suffice to call for its invalidity.
- Are the provisions in the amendatory Act (RA No. 3453) that “no ejectment proceedings shall be instituted/prosecuted against any occupant of any lot in the Tatalon Estate”, or that “no ejectment proceedings already commenced shall be continued”?* In this case, refer to RA No. 2616 before it was amended. Originally, RA No. 2616 prohibited the institution of an ejectment proceeding against any occupant of any lot in the Tatalon Estate or the continuance of one that has already been commenced *after*

the expropriation proceedings shall have been initiated and during the pendency of the same. An attempt came to circumvent it to safeguard the interest of some occupants of the land. They did this by blocking their ejectment upon the plea that the gov't would soon start expropriation proceedings even if no sufficient funds were appropriated to provide compensation to the owner and even if it was not in a position to take possession of the estate, w/c the owner contested by invoking its rights under the Constitution. The Court upheld that the attempt was unconstitutional.

- a. So, Section 4 of RA No. 3453 (which *prohibits the filing of an ejectment proceeding or the continuance of one that has already been commenced, even in the absence of expropriation proceedings*) offends our Constitution and is therefore unenforceable.
4. The alleged mistake of Congress in recognizing the rights of ownership in entities or individuals not possessed of the same could not invalidate the challenged RA No. 2616. The petitioner-appellee's apprehension is without legal foundation.

LEGAL BASES

Cuatico v. Court of Appeals: "It is, therefore imperative that we declare, as we now do, that Section 4 of Republic Act No. 3453 which prohibits the filing of an ejectment proceeding, or the continuance of one that has already been commenced, even in the absence of expropriation proceedings offends our Constitution and, hence, is unenforceable."

FINAL DECISION

WHEREFORE, the motion for the reconsideration of our decision of February 18, 1970, filed by petitioner-appellee is denied.
SO ORDERED.

DIGEST MAKER: RJ Paderayon (Facts & Issues), Laye Padua (Opinions)

Santiago v. COMELEC (1997)

Topic Subtopic	Interpreting the Constitution Adoption and Amendment of the Constitution
Doctrine	As at the time of the proceeding, there has been no law regarding the implementation of people's initiative in making amendments to the constitution, there can be no initiative made even if recognized or mentioned by the constitution. Article XVII Section 2 states that "<i>The Congress shall provide for the implementation of the exercise of this right.</i>" R.A. 6735 was deemed INADEQUATE regarding initiatives to amend the constitution, having focused more on proposals only towards laws, ordinances, or resolutions. COMELEC cannot have a say on amendments of the constitution, but only on the rules and processes in conducting a people's initiative and thus validate the proposal/petition <i>before</i> the filing of such to make amendments to the constitution.
Petitioner/s	MAIN/INITIAL PETITIONERS: MIRIAM DEFENSOR SANTIAGO, ALEXANDER PADILLA, and MARIA ISABEL ONGPIN. PETITIONERS-INTERVENORS: SENATOR RAUL S. ROCO, DEMOKRASYA-IPAGTANGGOL ANG KONSTITUSYON (DIK), MOVEMENT OF ATTORNEYS FOR BROTHERHOOD INTEGRITY AND NATIONALISM, INC. (MABINI), INTEGRATED BAR OF THE PHILIPPINES (IBP), and LABAN NG DEMOKRATIKONG PILIPINO (LABAN)
Respondent/s	COMMISSION ON ELECTIONS, JESUS DELFIN, ALBERTO PEDROSA & CARMEN PEDROSA, in their capacities as founding members of the People's Initiative for Reforms, Modernization and Action (PIRMA)
Year	March 19, 1997
Ponente	Davide Jr., J.

FACTS

On 6 December 1996, **Delfin filed a petition to amend provisions of the Constitution concerning the period of term of national and local government officials by people's initiative.** Petition would first be submitted to the people, then eventually formally filed to COMELEC after garnering enough votes.

COMELEC assumed cognizance over the petition. They ordered Delfin to print this at his own expense, submitting the petition for the initiative not later than the 9th of December, 1996 and to settle the case for hearing on 12th of December 1996 at 10 AM. Come the day of the hearing, COMELEC directed Delfin and the oppositors to file memoranda and opposition within 5 days.

On the 18th of December 1996, the petitioners, led by Miriam Defensor Santiago, filed a special civil action for prohibition to **stop the petition & initiative for amendments to the constitution.**

1. People's Initiative **must be implemented by law** – House Bill No. 1290, which pertains to people's initiative to amend the constitution, was passed by her on 24 Nov. 1995, but still pending.
2. R.A. 6735 provides three systems for initiative, but **did not have a subtitle for initiative on amendments towards Constitution**
3. R.A. 6735 was only for **LAWS** and **NOT CONSTITUTIONAL AMENDMENTS.**
4. People's initiative was also limited to **AMENDMENTS** and **NOT REVISIONS** – the extending or lifting of term limits constitutes a **REVISION.** This is outside the power of a people's initiative.
5. Congress has *not yet appropriated* funds for initiative. If granted by COMELEC, national treasury would

suffer P180 million.

19th of December 1996, the respondents were given 10 days to comment on the petition, and they were issued a **TRO (Temporary Restraining Order) in proceeding with the Delfin petition.**

2 January 1997, Atty. Quadra filed a petition on behalf of the respondents. Delfin also commented on his own behalf. The OSG also contended on their behalf. Below are consolidated comments towards petitioners:

1. P180 Million was not an accurate amount, and the **petition would be on account of Delfin and volunteers.** The estimated cost was only P 2,571,000. Accurate numbers can only be determined by COMELEC.
2. The petition was **laid only for signature gathering**, which COMELEC will supervise closely.
3. R.A. allows initiative to amend the constitution – the House Bill No. 1290 was a duplication of such.
4. The existence of House Bill No. 1920 does not prove that R.A. 6735 does not deal with initiative.
5. Lifting of limitation was just an **amendment to specific rules** – it would not overhaul and thus require re-examination for the entire document (which would constitute for a revision)
6. Upheld in court that COMELEC can implement provisions – Subic Bay V.S. COMELEC.

14 January 1997: Court lifts the TRO, granting motion of intervention to Raul Roco (8 Jan 1997), allowing him to file for petition for intervention not later than 20 Jan 1997 and a hearing 3 days after at 9:30 AM.

17 January 1997: DIK & MABINI also filed a petition for intervention. 20 Jan 1997 ROCO filed his petition, and later IBP followed as well. A consolidation of Roco, DIK, MABINI, and IBP's comments are found below:

1. A change allowing unlimited tenure **IS A REVISION OF THE CONSTITUTION** – it will affect other provisions on synchronization of elections and state policy guaranteeing access for public service and prohibiting political dynasties.
 - a. A revision can only be enacted by **(1) CONGRESS** or **(2) CONSTITUTIONAL CONVENTION.**
2. Removing term limits negates vision of 1987 Constitution: Open up Political Arena
3. There exists a **conflict of interest:** initiative is only when people are *dissatisfied* with public official performance, not for the premium of good performance.
4. R.A. 6735 is **DEFICIENT** in enabling people's initiative on amendments to constitution – there exists no proper parties, agency, contents, publication, means of plebiscite, role of COMELEC, appropriation of funds, among others. **Thus, COMELEC HAS NO JURISDICTION to hear Delfin's petition.**
5. There was no enabling law mandated for initiative to amend the constitution, having been established by R.A. 6735's deficiency, as required in Article VIII Section 2 of the constitution.
 - a. Resolution No. 2300 CANNOT substitute for the required implementation of a law.
6. The petition does not have the required signatures to allow it to be filed.

23 Jan. 1997: Parties argued and agreed on 4 issues that needed to be resolved (see below). Parties would submit memoranda within 20 days.

27 Jan. 1997: Laban filed petition for intervention: COMELEC must dismiss Delfin petition as it fails to **state sufficient cause of action in doing so.** If they do not, it is a **grave abuse of discretion and a lack of jurisdiction for COMELEC.**

The Supreme Court ruled that there was a need to resolve it immediately to give due course to special civil action (the petition).

ISSUE/S

In the order that it was resolved by the court.

ISSUE 1: Whether or not it is proper for the Supreme Court to take cognizance of the petition when there is a case before the COMELEC.

PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
1. COMELEC has no jurisdiction to take petition of Delfin – petition for prohibition was the right remedy 2. Writ of Prohibition is issued to prevent lower courts from usurping in jurisdiction it is not legally vested. Consequently the climate of legal confusion & political stability BEGS for judicial statesmanship. 3. When a system in the constitution is threatened by the ambitions of man, only the Supreme Court can save the nation and uphold the constitution.	<i>Did not file any issues regarding this matter (was skipped by respondent when submitting responses to petition)</i>
RULING and RATIO DECIDENDI for ISSUE 1:	
YES. The Supreme Court can take cognizance despite pendency in COMELEC of the Delfin Petition. The writ for prohibition was of urgent necessity as there was a consequent climate of legal confusion & political instability. This begged for judicial statesmanship. If the constitutional law is threatened, only the SUPREME COURT can save the nation from peril and uphold the majesty of the constitution. <i>From ROCO: Cannot be under COMELEC as the petition did not meet the required minimum number of signatures.</i>	
LEGAL BASES	
If the constitutional law is threatened, only the SUPREME COURT can save the nation from peril and uphold the majesty of the constitution.	

ISSUE 2: Whether or not R.A. 6735 was intended to include or cover <i>initiative</i> on amendments to the Constitution. If so, does the Act cover such an initiative?	
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
R.A. 6735 does not cover initiative: 1. Sec. 2 of R.A. 6735 does not suggest initiative on amendments of constitutions, only proposals to amend. The power to “<i>directly propose, enact, approve, or reject</i>” was only towards laws, ordinances, or resolutions. 2. Sec. 3 of R.A. 6735 does NOT provide contents for a petition. The Constitution says that laws must provide the contents of a petition. Moreover, the Constitution mentions that people’s initiative applies only to proposed laws, not to the constitution. 3. There is no subtitle in R.A. 6735 pertaining to an initiative on the constitution. The main intention was for national and local law. The Constitution is of higher importance, thus there must be a section pertaining to it. With no law regarding an initiative to amend the constitution, Congress reserves the right to implement a law which allows for such.	R.A. 6735 was a consolidation of House Bill No. 21505 & Senate Bill No. 17. This was approved on June 8 1989 by the Senate and House of Representatives. Thus, it is a valid legislation. Section 2 of R.A. 6735 suggests “<i>initiative... on amendments of constitution</i>”
RULING and RATIO DECIDENDI for ISSUE 2:	

NO. R.A. 6735, while a valid legislation, does **not cover initiative on amendments to the constitution**. The law, in regards to the authorization of COMELEC to initiatives, must be **complete in itself**, setting a policy to be carried out, and **fixes a standard**, ensuring that limits are sufficiently determinate and determinable. R.A. 6735 fails to adequately give such authorization, ignoring policies surrounding a petition to amend the constitution and no standard on it, leaving questions and details on the initiative unanswered and unclear.

LEGAL BASES

Section 2 of Article XVII, 1987 Constitution – **The Congress shall provide for the implementation of the exercise of this right** (amendments to constitution proposed through people's initiative)

R.A. 6735 – [Link](#)

ISSUE 3: Whether or not COMELEC's Resolution No. 2300, insofar as it prescribed and promulgates rules on the conduct of initiative towards amendments to the constitution, is void

PETITIONER/S ARGUMENTS:

SANTIAGO: Resolution No. 2300 CANNOT substitute for the required implementation of a law.

RESPONDENT/S ARGUMENTS:

R.A. 6735 gave COMELEC jurisdiction over the guidelines and rules in conduct of initiative towards amendments to the constitution.

Such was also upheld by a previous ruling in Subic Bay Metropolitan V. COMELEC.

RULING and RATIO DECIDENDI for ISSUE 2:

YES, IT IS VOID. COMELEC CANNOT validly promulgate rules on initiative on amendments of constitution. Under R.A. No. 6735, they have no jurisdiction over such, thus Res. No. 2300 is void, marked *ultra vires*. R.A. 6735 only gives COMELEC jurisdiction over guidelines to national and local initiatives only (to laws and ordinances, not constitution)

Section 2 Article 9 is misplaced – they can only call cases during controversy in voting, or where legislation is authorized by law. The law does NOT authorize them to promulgate rules on initiatives regarding the amendments of constitution.

LEGAL BASES

Ultra Vires - “*beyond the powers*”

Section 2, Article 9 of Article IX of Constitutional Commissions Section C: The COMELEC may sit *en banc* or in two divisions, and shall promulgate its rules of procedure in order to expedite disposition of election cases, including pre-proclamation controversies. All such election cases shall be heard and decided in division, provided that motions for reconsideration of decisions shall be decided by the Commission *en banc*.

ISSUE 4: Whether or not COMELEC can take cognizance or have jurisdiction over the petition solely to obtain order on (a) fixing the time and dates for signature gathering; (b) instructing municipal election officers to assist Delfin's movement and volunteers in establishing signature stations; and (c) directing or causing the publication of, inter alia, the unsigned proposed Petition for Initiative on the 1987 Constitution.

PETITIONER/S ARGUMENTS:

ROCO: Only when it is signed does it fall under COMELEC. Their jurisdiction is only with

RESPONDENT/S ARGUMENTS:

They were only called to supervise closely. Such was allowed by precedent in Subic Bay Metropolitan V.

VERIFYING SIGNATURES not with facilitating it.	COMELEC.
RULING and RATIO DECIDENDI for ISSUE 2:	
NO. COMELEC has jurisdiction only after its filing – before such filing, it must sit <i>en banc</i>. Delfin had even admitted that he had filed a petition with COMELEC to urge people to sign it, as he did not have enough signatures. The petition does not fall within actions under COMELEC Rules of Procedure or under Resolution No. 2300. The jurisdiction of COMELEC rests with 1. Prescribing the form of petition, 2. Issuing a certificate of registered votes, 3. To assist with the petition then, 4. To verify the signatures of the petition.	
LEGAL BASES	
R.A. 6735 – Link SBMA v COMELEC – In regards to the RA 7227 or Subic Economic Zone, Sanggunian asks to amend RA 7227. COMELEC responds by changing legislation and dictating conduct on how to pass (RN 2848). Yet, COMELEC only has jurisdiction on petitions that <i>are already passed</i>, and thus only on conducting the signing of the petition to be ratified by the people. Such was only an amendment to the national law and not to the constitution, so even on those grounds the precedent of this case may not apply.	

The third enumerated issue, “Whether the lifting of term limits of effective national & local officials, as proposed in the petition, constitutes revision of or amendment to the constitutions” was not resolved as the court deemed it to be, if not unnecessary, academic (not necessary to this case).

FINAL DECISION	WHEREFORE the petition is granted, permanently enjoining COMELEC from taking cognizance for any petition for initiative on amendments until sufficient law is validly enacted. The court declares R.A. 6735 INADEQUATE as to amendments to the constitution, declares Res. No. 2300 as VOID in regards to the prescribing of rules on conduct of initiative towards amendments to CONSTITUTION. The court also ORDERS COMELEC to DISMISS the Delfin Petition, making the TRO permanent against COMELEC but lifted on private respondents. SO ORDERED.
-----------------------	--

SEPARATE OPINION/S

PUNO, J, concurring and dissenting	• Concurs with the decision for Comelec to dismiss the Delfin petition. • Dissents on the view that R.A. No. 6735 and Comelec Resolution No. 2300 are legally defective and cannot implement the people’s initiative to amend the Constitution. ◦ R.A. No. 6735 is sufficient to implement people’s initiative to amend the Constitution based on legislative intent. He cited the sponsorship remarks of Roco, Escudero, as well as the records upon presentation of the consolidated bill to the House for approval, to establish such intent. Also, R.A. No. 6735 is “replete” as to the right it aims to confer to the people. ■ The policy statement so declares in Section 2 that people have the power to directly propose, enact, approve, or reject, the Constitution, xxx. ■ The law provides definitions of “initiative” and “plebiscite,” both of
---	--

	which pertain to amendments to the Constitution. Further, the Act states (1) the number of signatures necessary, (2) instructions for the commencement of initiative proceeding, (3) Comelec's role upon filing of the petitions, (4) how a proposition is approved, (5) when a plebiscite may be held, (6) when the amendment takes effect, and (7) limitations as to the subject of the initiative. ○ Comelec Resolution No. 2300 is created in accordance with the delegated power granted to it by Section 20 of R.A. 6735, which states that: "The Commission is hereby empowered to promulgate such rules and regulations as may be necessary to carry out the purposes of this Act." ■ The Comelec Resolution merely provided the procedure to implement the policy of the relevant Act (R.A. No. 6735). Moreover, the sufficient standards laid out in the Act are to prevent a total transference of legislative power from the lawmaking body to the delegate. ■ While there is a prohibition against the legislature to impair the substantive right of the people to initiate amendments to the Constitution, there is no prohibition as to legislating the procedure to enforce the people's rights of initiative or to delegate it to another body (i.e., Comelec) with the proposer standard. ● Submits that the petition should be dismissed with respect to the Pedrosas. ○ There is no cause of action against the Pedrosas. They are merely the founding members of PIRMA, which proposes to conduct the signature drive for the people's initiative. This solicitation is a right guaranteed by Art. 17, Sec. 2, which pertains to the people's initiative. This signature drive is also an example of their protected speech.
VITUG, J, concurring	● The Delfin Petition for a people's initiative should have been dismissed outright as it lacks form and substance (i.e., the lack of signatures, ratification, Congress implementation).
FRANCISCO, J, dissenting and concurring	● Dissents on the view that R.A. No. 6735 is inadequate to cover the system of initiative on amendments to the Constitution. ○ The Act sufficiently provides for the definitions, as well as the material requirements, for an initiative on the Constitution. These show the intent of the Congress to provide for the implementation of the right to propose an amendment to the Constitution by way of initiative. ● Concurs that Comelec cannot take any action over the petition as it lacks form and substance (lack of signatures). Any determination of whether the respondents' proposal is an amendment or revision is then premature.
PANGANIBAN, J, concurring and dissenting	● Concurs with the decision that the Comelec acted without jurisdiction or with grave abuse of discretion in entertaining the initial Delfin Petition. As the petition lacks the requirements stated in the Constitution, the Comelec should not have entertained such. ● Dissents with the rulings that (1) R.A. 6735 is inadequate as to the implementation of initiative on amendments to the Constitution and (2) Comelec Resolution No. 2300 is void as to its rules and regulations on the conduct of

	initiative on Constitutional amendments. ○ R.A. 6735 sufficiently provides the procedure as to effectuating an initiative on the Constitution. ■ Provisions for initiatives must be liberally construed to facilitate the exercise of the voters' rights and that any effort to trivialize such should be rejected. ○ The source and authority for the Resolution is the same law, R.A. 6735. The Resolution is valid as to national laws, local legislations, and constitutional amendments. ● Votes to lift the TRO as it prohibits Delfin and the Pedrosas from exercising their right to propose such amendments to the Constitution.
--	---

NCC - Article 17 Section 2

- Amendments to this Constitution may likewise be directly proposed by the people **through initiative** upon a petition of **at least twelve per centum of the total number of registered voters**, of which **every legislative district must be represented by at least three per centum of the registered voters therein**. No amendment under this section shall be authorized within five years following the ratification of this Constitution nor oftener than once every five years thereafter.

R.A. No. 6735 - AN ACT PROVIDING FOR A SYSTEM OF INITIATIVE AND REFERENDUM AND APPROPRIATING FUNDS THEREFOR (The Initiative and Referendum Act)

- The power of the people under a system of initiative and referendum to **directly propose, enact, approve or reject, in whole or in part**, the Constitution, laws, ordinances, or resolutions passed by any legislative body upon compliance with the requirements of this Act is hereby affirmed, recognized and guaranteed.

DIGEST MAKER: PANTOJA, MA. SOFIA YSABEL J.

Gonzales v. COMELEC, 21 SCRA 774 (1967)

Topic Subtopic	Interpreting the Constitution Adoption and Amendment of the Constitution
Doctrines	Congress is subject to judicial review when acting as a constituent assembly to propose constitutional amendments
Petitioner/s	Ramon A. Gonzales Philippine Constitution Association (PHILCONSA)
Respondent/s	Commission on Elections, Director of Printing, and Auditor General
Year	1967
Ponente	Concepcion, C.J.

FACTS
- R.B.H. No. 1 proposed that the Constitution of the Philippines be amended to increase the membership of the House of Representatives from a maximum of 120 members to a maximum of 180 - R.B.H. No. 2 called for a convention to propose amendments to the Constitution, with the convention consisting of 2 elective delegates from each representative district to be elected in the next general elections. - R.B.H. No. 3 proposed that Section 16 Article VI of the same Constitution be amended so that members of the House of Representatives can become delegates to the constitutional convention without forfeiting their seats in Congress. - Gonzales is a Filipino citizen, a taxpayer, and a voter. He filed a petition restraining COMELEC from enacting RA 4913 or from performing any act that would result in the holding of a plebiscite for the ratification of constitutional amendments. His petition also sought to declare RA 4913 as unconstitutional and void. It was filed on October 21, 1967. - During the hearing of his petition, Counsel for PHILCONSA was allowed to argue as amici curiae and prayed that the decision of the case be deferred until after PHILCONSA's case had been submitted for final determination. This was because both cases were substantially identical. - PHILCONSA is a corporation duly organized under Philippine law and a civic, non-profit and non-partisan organization with the objective of upholding the rule of law in the Philippines and to defend the Constitution against erosions or onslaughts from whatever source.

ISSUE/S

ISSUE 1: Whether or Not the procedural issues surrounding amendments to the Constitution are subject to judicial review	
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
RULING and RATIO DECIDENDI for ISSUE 1:	
The issue of whether or not a Resolution of Congress– acting as a constituent assembly– violates the Constitution	

is justiciable, not political.

- The power to amend the Constitution is part of the inherent powers of the people to make and amend their own Fundamental Law
- When Senators and Members of the House of Representatives act as a constituent assembly, they derive their authority from the Constitution → Constitution explicitly grants them the power to make amendments
- Congress is expected to act within constitutional limits, which makes them subject to judicial review

LEGAL BASES

Suanes vs. Chief Accountant of the Senate

- Officers and employees of the Senate Electoral Tribunal are under its control and not the control of the Senate President

Avelino vs. Cuenco

- Court determined the number of Senators necessary for a quorum in the Senate

Tañada vs. Cuenco

- Court nullified the election of two Senators from the majority into seats meant for the minority party in the Senate Electoral Tribunal

Macias vs. Commission on Elections

- Court declared that Congress was acting in violation of the Constitution when it failed to apportion the number of representative districts for the House of Representatives as closely to the population as possible

The cases above show that the Supreme Court has a history exercising judicial review over internal events in Congress.

ISSUE 2: Whether or Not Congress was acting as a de facto Congress considering that they failed to fulfill their mandatory duty as provided in the constitution; and if so, are their actions illegal and unconstitutional

PETITIONER/S ARGUMENTS:

- Congress is mandated by Section 5, Article VI of the 1935 Constitution to make an apportionment within 3 years after every enumeration/ census
- The last enumeration took place in 1960 and no apportionment was made within 3 years
- Congress became illegal once it failed to carry out its duty, rendering the proposed amendments null and void

RESPONDENT/S ARGUMENTS:

RULING and RATIO DECIDENDI for ISSUE 2:

The Court **disagrees** that failure to make a valid apportionment in time rendered Congress to be unconstitutional and its officers de facto

- The provision does not state that Congress will become illegal if it fails to make an apportionment in time
 - Instead it implies that Congress will continue to function with the representative districts that exist at the time of expiration
- Neither political law nor law on public officers state that failure to discharge a mandatory duty would

result in the forfeiture of an office

- Provisions of the Election Law relative to the election of Members of Congress in 1965 were not repealed because Congress failed to make an apportionment within the prescribed period. Because of this, the Court cannot see how Members of the HoR can be regarded as de facto officers because their predecessors failed to make a reapportionment
- In regards to impeachment: even when an impeachable officer is in violation of their mandatory duty, the title to their respective offices remains until they are dismissed pursuant to a judgement of conviction rendered → loss of office or extinction of title is not automatic

Even if the Members of Congress were de facto officers, that would not make the contested resolutions and R.A. 4913 null and void

- The de facto doctrine treats the actions of someone holding office under color of title as valid, even if their title turns out to be invalid.
 - This is because if this were not the case, the people would demand government officials to prove their validity before trusting their authority
- The title of de facto cannot be assailed indirectly. It must be directly contested by quo warranto proceedings

LEGAL BASES

Tayko vs. Capistrano

- Tayko argued that Judge Capistrano should no longer hear the case because he had reached the age of retirement
- The Court held that Capistrano was at least, a de facto Judge whose title cannot be attacked collaterally
- Even if Judge Capistrano had yet to make a decision and Tayko was a direct party, the objection was still overruled because the title was challenged collaterally, rather than directly by quo warranto proceedings.

ISSUE 3: Whether or Not Congress can propose amendments to the Constitution and call a convention at the same time

PETITIONER/S ARGUMENTS:

- Congress may either propose amendments OR call a convention, but not both at the same time
- Why not let the whole thing be submitted to the convention instead of submitting specific amendments for ratification before the convention is held?

RESPONDENT/S ARGUMENTS:

RULING and RATIO DECIDENDI for ISSUE 2:

The basis of the amicus curiae, Atty. Juan David is weak

- The term “or” can be used to mean “and” when the context warrants it
- R.B.H. 1, 2 and 3 are of different subject matter because 1 & 3 propose amendments to the constitutional provisions on Congress, while no. 2 calls for a convention to consider proposals for amendment in general.
- Proposed amendments of R.B.H. Nos. 1 & 3 will be submitted for ratification years before the proposed constitutional convention in R.B.H. no. 2.

On Counsel's question (second bullet point)

- The question is on the wisdom of Congress's action, not its authority to make it. It is not subject to review by the Court.

LEGAL BASES

ISSUE 4: Whether or Not Constitutional Amendments can be submitted for ratification during a general election

PETITIONER/S ARGUMENTS:

- The term election in Section 1 of Art. XV of the Constitution should be interpreted as a special election

RESPONDENT/S ARGUMENTS:

RULING and RATIO DECIDENDI for ISSUE 2:

There is nothing in the provision that indicates the election must be special and not general for constitutional amendments

- Although the Court believes it would be better if the ratification of proposed amendments happened separately from the general elections, these considerations address the wisdom of Congress and not their authority.
- While it is hoped that voters would make their decisions on constitutional amendments based on logic, understanding, and free from extraneous factors like partisan politics, it cannot be fairly deduced from the Constitution's text.
 - Although 6/10 disagreed with this sentiment and believed that constitutional amendments should be ratified in a time where the people can devote their undivided attention to understanding the amendments.

LEGAL BASES

Article XV of the 1935 Constitution:

- ". . . The Congress in joint session assembled, by a vote of three- fourths of all the Members of the Senate and of the House of Representatives voting separately, may propose amendments to this Constitution or call a convention for that purpose. Such amendments shall be valid as part of this Constitution when approved by a majority of the votes cast at an election at which the amendments are submitted to the people for their ratification."

ISSUE 5: Whether or Not the submission of the contested amendments violate the spirit of the Constitution

PETITIONER/S ARGUMENTS:

RESPONDENT/S ARGUMENTS:

RULING and RATIO DECIDENDI for ISSUE 5:

The Court cannot say that the measures are palpably inadequate to comply with the constitutional requirement needed for proposals for amendments.

- R.A. No. 4913 shares substantially the same means used to inform the people of the amendments submitted to them for ratification from the 1935 Constitution until the Parity Rights.

- Published in three consecutive issues of the Official Gazette at least 20 days prior to the election
- Printed copy of the proposed amendments will be posted in every municipality, city, and provincial office building no later than October 14, 1967, and will stay posted until after the election
- At least 5 copies will be kept in each polling place, to be made available for examination by the qualified electors during election day
- When practicable, copies in the principal native languages, as may be determined by the COMELEC, shall be kept in each polling place
- COMELEC shall make available copies of the amendments in English, Spanish, and whenever practicable, in the principal native languages, for free distribution
- Contested Resolutions shall be printed in full on the back of the ballots which shall be used on November 14, 1967 (the general elections)
- What makes this situation unique is that major political parties had taken sides and debated on previous amendments to the constitution. In this case, political parties have refrained from discussing the amendments during their political campaigns.
 - Debates that did happen were initiated by civic organizations and militant members of the citizenry
- Legislation cannot be nullified because certain sectors of the community fail to discuss it sufficiently. Its constitutionality or unconstitutionality depends on the factors existing at the time of enactment.
- The provisions of Article XV of the Constitution are satisfied as long as the people understand that R.B.H. no. 3 allows Congressmen to retain their seats, even if they run for and assume functions of delegates to the Convention
 - Considering anything else would affect the wisdom of R.A. 4913 and R.B.H. Nos. 1 & 3, not the authority of Congress to approve

LEGAL BASES

Section 1 Act No. 4200 of the 1935 Constitution

Section 1 of the Commonwealth Act no. 34 (provision on women's suffrage)

Section 2 of Commonwealth Act no. 517 (1940 amendments)

Section 2 of R. A. No. 73, (Parity Amendment)

The ones listed above all listed similar practices for disseminating information on the proposed amendments as Section 2 of R.A. 4913

FINAL DECISION

The petitions in these two cases must be, as they are hereby, dismissed, and the writs therein prayed for denied, without special pronouncement as to costs.

SO ORDERED.

DIGEST MAKER: *Provido, Alliyah Vanessa*

Tolentino v. COMELEC (1971)

Topic Subtopic	Interpreting the Constitution Adoption and Amendment of the Constitution
Doctrine	Article XV, Section 1 – Amendments to the Constitution must be ratified by the people as a whole to provide voters with sufficient time and ample basis for an intelligent appraisal of the amendment and its relation to the other parts of the Constitution with which it has to form a harmonious whole.
Petitioner/s	Arturo M. Tolentino
Respondent/s	Commission on Elections (COMELEC), Chief Accountant, Auditor, and Disbursing Officer of the 1971 Constitutional Convention <i>as intervenors:</i> Raul S. Manglapus, Jesus G. Barrera, Pablo S. Trillana III, Victor De La Serna, Marcelo B. Fernan, Jose Y. Feria, Leonardo Siguion Reyna, Victor F. Ortega, Juan V. Borra
Year	1971
Ponente	Barredo

FACTS

Petitioner filed a petition for prohibition to restrain respondent COMELEC from holding a plebiscite on 8 November 1971 wherein a proposed constitutional amendment to reduce the voting age from twenty-one to eighteen years old shall be submitted for ratification by the people, pursuant to Organic Resolution No. 1 of the Constitutional Convention of 1971.

The petition's main thrust is that Organic Resolution No. 1, which the Constitutional Convention approved, has no force and effect as laws in so far as there will be a plebiscite coinciding with the local elections on 8 November 1971 on the ground that calling and holding of such plebiscite is a power that exclusively belongs to the Congress, as the Constitution provides. Therefore, should COMELEC carry out the plebiscite, it must be rendered null and void.

The intervenors, meanwhile, posit that holding a plebiscite is within the Convention's discretion and authority as a necessary consequence and as part of its power to propose amendments. Further, they argued that the Convention being a legislative body of the highest order is sovereign and beyond the control of the Congress and the courts (this point was not joined by the respondents, as they expressly conceded the jurisdiction of the court in the issue).

ISSUE/S

ISSUE 1: Whether or not it is within the power of the Constitutional Convention of 1971 to call for a plebiscite for the ratification by the people of the constitutional amendment proposed in Organic Resolution No. 1

PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
Calling and holding of such a plebiscite is, under the Constitution, a power lodged exclusively in Congress as a legislative body; therefore, the Convention has no right to exercise this power.	[Intervenors' argument] The Convention being a legislative body of the highest order is sovereign, and its acts contested by the petitioner are beyond the control of the Congress and the courts.
RULING and RATIO DECIDENDI for ISSUE 1:	
The Court upheld its jurisdiction over the present case because both the Convention and the Court are subject to the Constitution and the rule of law. Even if the present Convention is an assembly of delegates elected directly by the people, the Court contends that it is their solemn duty under the existing Constitution to resolve the issues in the case. The Constitutional Convention of 1971, as any other convention of the same nature, derives all its power and authority from the existing Constitution of the Philippines. The compass of the Convention's powers can be co-extensive only with the purpose for which the convention was called and as it may propose cannot have any effect as part of the Constitution until the same are duly ratified by the people; therefore, there are powers which the Convention may not and cannot validly assert in accordance with the existing Constitution.	
LEGAL BASES	
• Section 1, Article XV – the current convention came into being only because it was called by a resolution of a joint session of Congress acting as a constituent assembly by authority of the existing Constitution. • Angara v. Electoral Commission, 63 Phil., 134 – in cases of conflict, the judicial department is the only constitutional organ which can be called upon to determine the proper allocation of powers between the several departments and among the integral or constituent units thereof.	

ISSUE 2: Whether or not there had been any limitation or condition in Sec. 1, Art. XV of the Constitution which was violated by the act of the Convention of calling for a plebiscite on the sole amendment contained in Organic Resolution No. 1	
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
Under Sec. 1, Art. XV of the Constitution, the proposed amendment cannot be presented to the people for ratification separately from each and all of the other amendments to be drafted by the Convention. Petitioner also clearly stated that he is not against the proposed constitutional extension of the right to suffrage; rather, he only wants to comply with his sworn duty to prevent any violation of the Constitution even if it is committed in the course of or in connection with the most laudable undertaking.	It is within the authority of the Convention to provide for, fix the date, and lay down the details of the plebiscite for the ratification of any amendment it deems proper to propose. • This includes submitting amendments either individually or jointly as such time or manner as the Convention may direct

RULING and RATIO DECIDENDI for ISSUE 2:

Yes, the Court held that there had been a violation, specifically with the condition in Sec. 1, Art. XV that all the amendments to be proposed by the same Convention must be submitted to the people in a **single election or plebiscite**. Therefore, the plebiscite being called for 8 November 1971 for the ratification of only one proposed amendment is **not** authorized under the Constitution; hence, all acts of the Convention and respondent Comelec are **null and void**.

The Court further explained that the provision clearly states that there must only be one *election* (singular form) for all *amendments* (plural form), and that any amendment of the Constitution is as important as the whole of it for it to become an integrated and harmonious instrument. It would also be easier for the people, according to the Court, to examine the Constitution in its entirety before casting their vote and thereby arrive at an intelligent judgment as to its acceptability.

LEGAL BASES

- **Section 1, Article XV** – *“Such amendments shall be valid as part of this Constitution when approved by a majority of the votes cast at an election at which the amendments are submitted to the people for their ratification.”*

FINAL DECISION

IN VIEW OF ALL THE FOREGOING, the petition herein is **granted**. Organic Resolution No. 1 of the Constitutional Convention of 1971 and the implementing acts and resolutions of the Convention are hereby declared **null and void**.

The respondents are hereby enjoined from taking any action in compliance with the said organic resolution... the Court declares this decision **immediately executory**.

SEPARATE OPINION/S

FERNANDO, J,
dissenting

- There was no legal impediment that would call for the nullification of the Convention’s actions
- Once the Convention has been convened, it cannot in any wise be interfered with, much less be controlled by the Congress
 - It must be looked upon as if it were one of the three coordinate departments which under the principle of separation of powers is supreme within its field and has exclusive cognizance of matters properly subject to its jurisdiction
- The convention should be deemed possessed of all the necessary authority to assure that whatever amendments it proposes will be submitted to the people for an election called for that purpose
 - Viewing the Convention as being denied of its own prerogative would be to place it in an inferior category
- Congress and constitutional convention are agencies for submitting proposals under the law; therefore, a power granted to one should not be denied the other
- While the word “election” was worded in the Constitution as singular, it is not

	decisive as rules of grammar do not exert a compelling force in constitutional interpretation ○ Meaning must be derived from the total context ● It may be implied that under the 1971 Constitutional Convention Act, it is not to turn a deaf ear to a summons from the Convention to aid it in the legitimate discharge of its functions
--	---

DIGEST MAKER: Name

PLANAS v. COMMISSION ON ELECTIONS (1973)

Topic Subtopic	Interpreting the Constitution Adoption and Amendment of the Constitution
Doctrine	The validity of a presidential decree calling a plebiscite to ratify a proposed Constitution is a justiciable question, not a mere political question.
Petitioner/s	Charito Planas Consolidated Cases: Pablo C. Sanidad, Gerardo Roxas, et al., Eddie B. Monteclaro, Sedfrey A. Ordoñez, et al., Vidal Tan, et al., Jose W. Diokno, et al., Jacinto Jimenez, Raul M. Gonzales, and Ernesto Hidalgo
Respondent/s	Commission on Elections, et al.
Year	1973
Ponente	Concepcion, J.

FACTS

March 16, 1967 — Congress passed **Resolution No. 2** amended by **Resolution No. 4**, calling a Constitutional Convention.

August 24, 1970 — **Republic Act No. 6132** was approved to hold the election of convention delegates.

- November 10, 1970 — election of delegates held
- June 1, 1971 — 1971 Constitutional Convention began performing its functions

September 21, 1972 — President Ferdinand Marcos issues Proclamation No. 1081, placing the country under Martial Law.

November 29, 1972 — The 1971 Constitutional Convention approved a proposed Constitution, while under Martial Law.

November 30, 1972 — The President issues **Presidential Decree No. 73**, calling a plebiscite on January 15, 1973 to ratify or reject the proposed Constitution and appropriate funds for its conduct.

From December 7 and December 16, 1972 — There were 10 consolidated cases, including that of Charito Planas, filed against the decree calling that only the Congress has constitutional and exclusive power to call a plebiscite, prescribe ballots and voting, and appropriate funds; the proposed Constitution can not be properly submitted while the conditions under Martial Law hindered freedom of speech, as well as press and assembly.

December 17, 1972 — The President temporarily suspended the effects of **Proclamation No. 1081** to allow and encourage free and open debate on the proposed Constitution.

January 7, 1973 — The President postponed the plebiscite under **General Order No. 20** until further notice.

The President issued Presidential Decree No. 86, which formed Citizen Assemblies and submitted to them the proposed Constitution for approval. He issued Proclamation 1102, which declared the Constitution ratified by majority of the members and had taken effect.

- The assemblies were asked questions

January 12, 1973 — Petitioners (G.R. No. L-35948) filed a motion to decide the case.

- Petitioners alleged PD 86 had created Citizens Assemblies to be consulted on public questions
- They were asked numerous questions, such as if they want a plebiscite to ratify the new Constitution and if they approved of the new Constitution.

January 15, 1973 — Petitioners (G.R. No. L-35948) filed supplemental motion for restraining order to enjoin COMELEC from collecting the certification of the assembly results, as it was illegal and void because:

- (1) Participants only need to be 15 years old, no regard to voter qualifications under Election Code
 - (2) No secrecy of the vote, votes were cast by raising hands
 - (3) No Election-Code-type safeguards
 - (4) There was doubt the Assemblies were properly organized because of the short notice.
- The Court passed a resolution requiring respondents (of G.R. No. L-35948) to file an answer to the motion not later than 4PM January 16, 1973.
 - Set the motion for hearing on January 17, 1973

January 17, 1973 — Court conducted hearing on supplemental motion.

- During this, Secretary of Justice delivered copy of Proclamation No. 1102 to Chief Justice (pontente) announcing the ratification of the Constitution through the Citizens' Assemblies (14,976,561 in favor v. 743,869 opposition).
- 14,289,814 voted that here was no longer a need for a plebiscite

ISSUE/S

ISSUE 1: Whether or not the validity of PD 73 is a political question beyond judicial review

PETITIONER/S ARGUMENTS:

The petitioners argued that PD 73 usurped legislative powers of the Congress and violated the Constitution by exercising powers that are exclusively for the Congress and, therefore, a matter for judicial review.

RESPONDENT/S ARGUMENTS:

The questions raised by the petitioners are political in character and a matter for the executive branch, one beyond the Court's power of judicial review.

RULING and RATIO DECIDENDI for ISSUE 1:

NO. The Court held that the validity of PD 73 is justiciable.

The Presidential Decree No. 73 is not immune from judicial review just because a question relating to the amendment of the Constitution is controversial. Considering that the decree "purports to have the force and effect of a legislation," therefore functioning as legislation, its validity is a matter for the Courts to review.

Since the 1935 Constitution grants the Court the power to review the constitutionality of laws and executive acts, which includes the review of presidential decrees, the Court cannot just abandon the constitutional duty to review the legality of it.

LEGAL BASES

Subdivision 1, Section 2, Article VIII of the 1935 Constitution

- Provides authority for the Court to review cases involving the constitutionality of any treaty, law, ordinance, or executive order.
- “The Congress shall have the power to define, prescribe and apportion the jurisdiction of various courts, but may not deprive the Supreme Court of its original jurisdiction over cases affecting ambassadors, other public ministers, and consuls, nor of its jurisdiction to review, revise, reverse, modify, or affirm on appeal, certiorari, or writ of error, as the law or the rules of court may provide, final judgments and decrees of inferior courts in:
 - All cases in which the constitutionality or validity of any treaty, law, ordinance, or executive order or regulation is in question.”

ISSUE 2: Whether or not the 1971 Constitutional Convention had authority to propose a new Constitution

PETITIONER/S ARGUMENTS:

The petitioners argued that the Constitutional Convention surpassed its authority by adopting transitory provisions, particularly Section 2, 3(2), and 12 of Article XVII. This exercise of power was not delegated to the Convention.

RESPONDENT/S ARGUMENTS:

The Convention acted freely and within its authority as it can propose an entirely new Constitution superseding the 1935 Constitution. The proposals had no legal effect unless ratified by the people.

RULING and RATIO DECIDENDI for ISSUE 2:

SPLIT. Five Justices: Concepcion, Fernando, Barredo, Makasiar, and Antonio voted to uphold the authority of the Convention to pass the proposed Constitution, while Four Justices: Makalintal, Castro, Teehankee, and Esguerra deemed the issue to be moot and academic.

As a Constitutional Convention is delegated sovereign power by the people, it is “legally free to postulate any amendment it may deem fit to propose.”

Proposals are not laws. No proposal becomes part of the Fundamental Law unless approved by majority of the people at an election which is required by Section 1, Article XV of the 1935 Constitution

The validity of a constitutional amendment does not rely on what the convention proposes but on the people’s vote to ratify or reject them.

LEGAL BASES

Section 1, Article XV, 1935 Constitution

- Requires amendments to be approved by a majority of votes at an election where proposals are submitted for ratification.
- “The Congress in joint session assembled, by a vote of three-fourths of all the Members of the Senate and of the House of Representatives voting separately, may propose amendments to this Constitution or call a convention for that purpose. Such amendments shall be valid as part of this Constitution when approved by a majority of the votes cast at an election at which the amendments are submitted to the people for their ratification.”

Congressional Resolution No. 2 and No. 4

- Implemented by RA 6132
- The enabling legislation
- Resolution No. 2: Calls the 1971 Constitutional Convention to propose amendments to the 1935 Constitution.

Jus Cogens

- Convention's freedom to propose amendments bounded by the norms of international law.

ISSUE 3: Whether or not the President has authority to issue PD 73

PETITIONER/S ARGUMENTS:

The petitioners argued that the PD 73 has no force and effect as law because the power it calls to exercise is lodged exclusively in Congress and not the President.

There was no proper submission of the Proposed Constitution to the people as Martial Law blocked the freedom of speech, press, or assembly.

RESPONDENT/S ARGUMENTS:

The respondents argue that the President's call for a plebiscite was a valid exercise of executive authority as it was a lawful implementation of the Constitutional Convention's proposed Constitution; it was an appropriate means of obtaining the people's approval.

There was no improper submission and that a plebiscite may still be held even when the Martial Law is in effect as it does not hinder freedom to vote.

RULING and RATIO DECIDENDI for ISSUE 3:

UNRESOLVED. The Court believed that the issue was moot as the plebiscite was already postponed by General Order No. 20.

The Court refused to make an official ruling on the authority of the President to issue PD 73 as it was canceled shortly after issuing the decree. Any ruling on the issue would have no practical effect.

Six Justices: Makalintal, Castro, Fernando, Teehankee, Esguerra, and Concepcion voted that the issue is moot and academic because of the postponement and the issuance of Proclamation 1102.

Meanwhile, three Justices, particularly Barredo, Makasiar, and Antonio, would have upheld the validity of PD 73.

The President could not assume legislative powers just because the Congress was not in session or because the country was under Martial Law.

LEGAL BASES

General Order No. 20

- Postponed the January 15, 1973 plebiscite until further notice.

Section 1, Article XV, 1935 Constitution

- Requires amendments to be approved by a majority of votes at an election where proposals are submitted for ratification.
- "The Congress in joint session assembled, by a vote of three-fourths of all the Members of the Senate and of the House of Representatives voting separately, may propose amendments to this Constitution or call a convention for that purpose. Such amendments shall be valid as part of this Constitution when approved by a majority of the votes cast at an election at which the amendments are submitted to the people for their ratification."

FINAL DECISION

WHEREFORE, all of the aforementioned cases are **DISMISSED**, without special pronouncement as to costs.

SEPARATE OPINION/S

BARREDO, J.
concurring

- Voted to uphold validity of PD 73 and Convention's authority. All members of the court rejected the SolGen's argument that the issue was beyond judicial review as the decree purported to have the force and effect of legislation – the court had authority to review its constitutionality.
 - The political character of a controversy does not automatically remove it from the judiciary. Courts can review its constitutionality under the 1935 Constitution, which grants SC the power to review the constitutionality of any law, executive order, or ordinance.
- He argued that the ratification process through the Citizens Assemblies "falls short of being in strict conformity" with the requirements of Article XV, 1935 Constitution.
- It is unnecessary to rule on the President's authority to issue PD 73 as it is already moot and academic. The plebiscite was no longer a scheduled election to enjoin.
- On the proper submission of the Constitution: Martial Law does not necessarily preclude possibility of adequate freedom for a plebiscite.

ZALDIVAR, J.
dissenting

- Maintained unqualifiedly that the proposed 1973 Constitution had not been ratified in accordance with the mandatory procedures in Article XV, 1935 Constitution. The document had no force and effect whatsoever.
- Argued that Citizen Assemblies should be null and void as it did not meet constitutional requirements for a formal plebiscite involving qualified registered voters.
- He favored granting the petitioners a period of time to file additional pleadings for the aforementioned purpose of contesting the legality of Proclamation No. 1102.
 - HOWEVER, he disagrees that the PD 73 challenge had become moot. He believed the Court was duty-bound to still decide every one of the cases on their merits rather than allow them to be considered or dismissed as moot or academic.

DIGEST MAKER: Lia Rufino; Alyssa Salazar; Kim Salvador

Javellana vs. Executive Secretary (1973)

Topic Subtopic	Interpreting the Constitution Amendment	GR No. & Ponente	G.R. No. L-36142 Concepcion, C.J.
Petitioner/s	Javellana; Araneta et al.; Roxas et al.; Monteclaro; Dilag et al.	Respondent/s	Executive Secretary, et al.
Doctrine	A Constitution may be considered in force when it has been acquiesced in by the people, even if its ratification did not strictly comply with the formal requirements of the previous Constitution.		

FACTS

Background of the "Plebiscite Cases" (Prequel to the 5 Present Cases)

- RA No. 6132 or the 1971 Constitutional Convention Act
 - June 17, 1969 → Congress adopted Resolution No. 2 (as amended by Resolution No. 4), calling a Convention to propose amendments to the Constitution
 - Implemented by RA 6132, approved Aug. 24, 1970
 - Delegates elected Nov. 10, 1970; Convention began functions on June 1, 1971
- Sept. 21, 1972 → Pres. Marcos issued Proclamation No. 1081, placing the Philippines under Martial Law while the Convention was in session
 - Nov. 29, 1972 → Convention approved the Proposed Constitution of the Philippines
 - Nov. 30, 1972 → Pres. Marcos issued Presidential Decree No. 73, submitting the Proposed Constitution for ratification/rejection and setting the plebiscite for Jan. 15, 1973
- Dec. 7, 1972 → Planas filed a case against COMELEC to enjoin them from implementing PD 73; substantially identical cases followed
 - PD has no force and effect as law because calling the plebiscite and setting its guidelines/questions are lodged exclusively in Congress
 - There was no proper submission of the Proposed Constitution because there was no freedom of speech, press & assembly, and no time to inform the people of its contents
 - All cases (except for one) were required to file answers and were set for hearing
 - After hearing, parties were given a short period to submit notes on points they desired to stress
- Dec. 17, 1972 → Pres. Marcos ordered the temporary suspension of the effects of Proclamation No. 1081 for purposes of free and open debate on the Proposed Constitution
 - Jan. 7, 1973 → General Order No. 20 postponed the plebiscite until further notice
 - Suspended the Dec. 17 order temporarily suspending the effects of Proc. 1081
- Jan. 12, 1973 → Petitioners in L-35948 filed an urgent motion for the case to be decided, alleging:
 - Pres. Marcos announced PD 86, organizing the so-called Citizens Assemblies (*referred to simply as "Assemblies" in this file*), which would be asked questions on various issues.
 - Initial questions included whether they approved of the New Society, Martial Law reforms, Congress reconvening, timing of the plebiscite, and the way Marcos was running the gov't
 - Six additional questions would be submitted, including whether they:
 - 1) Approved the Citizens Assemblies as a base of popular government; 2) approved the New Constitution; 3) wanted a plebiscite to ratify it; 4) wanted elections in November 1973; 5) wanted elections postponed, and if so, when; 6) wanted Martial Law to continue
 - Comments from the Assemblies expressed sentiments such as:
 - Approval by the Assemblies should be considered as a plebiscite ratifying Constitution
 - Citizens were fed up with politics and frequent elections, favoring a 7-year moratorium
 - Citizens wanted Marcos to continue Martial Law & exercise his powers w/ more authority
 - Petitioners feared that asking the Assemblies to 1) approve the Constitution and 2) indicate whether they wanted a plebiscite was an attempt to by-pass the Court from questioning validity
 - An affirmative vote could create a *fait accompli* attained in an unconstitutional manner
 - Case could become moot if the Constitution were deemed ratified through the Assemblies;
 - The Philippines could face a crisis as to which Constitution was in force.
- Jan. 15, 1973 → Same petitioners filed supplemental motion for issuance of a restraining order and

inclusion of additional respondents, praying to restrain respondents from certifying & reporting the Assemblies' referendum results allegedly obtained.

- Petitioners argue that the proceedings of the Assemblies are illegal, null and void because:
 - Constitutional elections permit only qualified & duly registered voters, while Assemblies permitted voting of persons 15 years and older, regardless of qualifications
 - Elections/plebiscites for ratification of Constitutional amendments require secrecy of choice and vote, while Assemblies were open and votes cast by raising hands
 - Election Code provides for orderly elections, but there were no similar provisions regulating the Assemblies
 - Doubtful that more than a handful of Assemblies had actually been formed, given the lack of material time & experience of local organizers
- Respondents in L-35948 alleged, *inter alia*, that the questions raised were political in character, the Constitutional Convention acted freely and had plenary authority, and the President's call for plebiscite was valid and possible under Martial Law.
- Jan. 17, 1973 → While the case was being heard, the Secretary of Justice delivered Proclamation No. 1102, wherein Marcos proclaimed that the Proposed Constitution had been ratified by an overwhelming majority of the Assemblies' votes (more than 95%).
 - The Court then deliberated and each member wrote his own views, after which the Chief Justice recapitulated the results:
 - Unanimously agreed that the issue is justiciable
 - Issue of the validity of PD 73 has become moot (6 members), while others voted to uphold the validity of the said decree (3)
 - Martial law affecting the proper submission of the Constitution to a plebiscite → petitions are now moot and academic (1), issue involves questions of fact which cannot be predetermined & Martial law does not preclude possibility of adequate freedom (3)
 - Proc. 1102 → question of validity has not been properly raised before the Court (7), Assemblies fall short of being in strict conformity but new Constitution is now legally recognizable (1), Court is not competent to act since issue poses a question of fact (1)
 - Justice Zaldivar's dissent: Proposed Constitution had not been ratified in accordance with Article XV of the 1935 Constitution, so it had no force & effect.
 - Dismissal of the cases → Affirmative (6), affirmative but voted to grant petitioners reasonable time to file appropriate pleadings if they wish to contest Proc. 1102 (3)
 - Zaldivar favors granting of said period to petitioners & for the Court to decide on merits of each case under consideration.
 - After voting of 10 Justices, all cases were dismissed, without special pronouncement as to costs.

The Present Cases

- Jan. 20, 1973 → Javellana filed L-36142 against Executive Secretary et al., seeking to restrain respondents from implementing provisions of the Proposed Constitution not found in the 1935 Constitution
 - Alleged that Marcos acted without or in excess of jurisdiction in creating the Citizens Assemblies, implementing and approving the Proposed Constitution, and proclaiming its ratification, given that ratification was not a free election and hence null and void
- Jan. 23, 1973 → Similar actions were filed, including L-36165, petitioned by Gerardo Roxas (duly elected Minority Leader of the Senate) & other Senators against Executive Secretary et al.
 - Respondents include Senate President Gil J. Puyat and Senate President Pro Tempore Jose Roy
 - Pursuant to the 1935 Constitution, "which is still in force," Congress must convene for its 8th session on Jan. 22, but Senators were unlawfully prevented from using the Senate Session Hall, which was closed by authorities in possession and control of the Legislative Building
 - Petitioners argue, *inter alia*, that respondents were preventing them from performing their sworn duties by invoking the alleged approval of the 1973 Constitution, and that the Citizens Assemblies as instrumentalities for ratification were illegal & unconstitutional
 - Prayed for issuance of 1) writ of preliminary mandatory injunction ordering respondents to vacate the premises of the Senate; 2) writs of prohibition and mandamus after rendering of judgment to nullify of Proc. 1102; 3) permanence of the aforementioned writ of injunction; 4) writ of mandamus against Puyat and Roy directing them to comply with their duties

- Respondents argue, *inter alia*, that the Court has no jurisdiction; the questions are political and non-justiciable; Article XV of the 1935 Constitution was complied with and was not exclusive of other modes of amendment; and Proc. 1102 is conclusive upon courts
 - Puyat and Roy separately alleged that the subject matter was a highly political question and "further proceedings may only be an academic exercise in futility."

ISSUE/S

ISSUE 1

Main - Procedural ▾	Whether or not the issue of the validity of Proclamation No. 1102 is a political, and therefore non-justiciable, question	No ▾
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
NO. The validity of Proc. 1102 is a justiciable question because it involves the interpretation and applicable of the Constitution, which is within the Court's power to determine.		YES. The issue is a political question, so it is not subject to judicial inquiry. The Court should follow the approach in <i>Barcelon v. Baker & Mabanag v. Lopez Vito</i> , where it declined to interfere with matters considered political.
RULING and RATIO DECIDENDI:		
<i>Writer's Opinion (C.J. Concepcion)</i>		
• The Court is not being asked to "declare" the new Constitution invalid. ◦ What the petitioners dispute is the theory that the new Constitution has been validly ratified by the people, in accordance with Article XV of the 1935 Constitution. • Plebiscite Cases → Court rejected theory that questioning the validity of P.D. No. 73 non-justiciable ◦ Similarly, in the 1971 <i>habeas corpus</i> cases, the Court overruled the respondents' contention that the issue was beyond judicial review • The term political question connotes a "question of policy" ◦ Involves questions to be decided by the people in their sovereign capacity; or to which full discretionary authority has been delegated to the legislature/executive branch ◦ Political questions are concerned with issues dependent upon wisdom, not legality • Judicial inquiry into the legality/validity of a contested act and the settlement thereof are the main functions of courts of justice under the Presidential form of government ◦ <i>Miller v. Johnson</i> → courts have a duty, rather than a power, to determine whether another branch of the government has kept within constitutional limits • <i>Luther v. Borden</i>, which was invoked by the Solicitor-General, hinged more on the question of recognition of government (political question) rather than a recognition of constitution (justiciable question) ◦ US Supreme Court case on whether the Court could determine which of two rival governments in Rhode island was the legitimate government → creating the political question doctrine		
<i>Results of the Court Voting</i>		
• Justices Makalintal, Zaldivar, Castro, Fernando, Teehankee, Concepcion → 6 members of the Court hold that the issue of validity of Proc. 1102 presents a justiciable and non-political question • Justice Barredo → 1 member qualified his vote, stating that the Court may inquire into the question of whether or not there has been approval; and if there was, then the Court should keep its hands-off • Justices Makasiar, Antonio, Esguerra → 3 members hold that the issue is political and "beyond the ambit of judicial inquiry"		

ISSUE 2:

Main - Substantive ▾	Whether or not the Constitution proposed by the 1971	No ▾
----------------------	--	------

Constitutional Convention has been ratified conformably to the applicable constitutional and statutory provisions?		
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
NO. The proposed Constitution was not validly ratified because it did not follow Article XV of the 1935 Constitution. The President had no power to call a plebiscite for the ratification/rejection, and the Assemblies were without power to approve the Constitution given that it was not a free election.		YES. The proposed Constitution was validly ratified by the people. The Citizens' Assemblies expressed the people's will to adopt the new Constitution and the Court should recognize that approval.
RULING and RATIO DECIDENDI:		
<i>Writer's Opinion (C.J. Concepcion)</i>		
- Sec. 1 of Art. V of the 1935 Constitution sets a limitation on suffrage, claiming that no other persons than "citizens... twenty-one years of age or over (<i>inter alia</i>)" may exercise the right of suffrage in the Philippines. - Rejection of Solicitor General's theory that the provision merely guarantees the right of suffrage to versions, and that said right may be vested by competent authorities in persons lacking some/all qualifications and/or possessing some of the disqualifications - On the conflict in RA 3590 or Revised Barrio Charter between Sec. 6 (majority vote of all the barrio assembly members, which include residents 18 years of age or over, is necessary for approval of any budgetary appropriations or special tax ordinances) and Sec. 10 (duly registered barrio assembly members qualified to vote must be citizens, twenty-one years of age or over) - Conflict should be resolved in favor of 21-year old members of the assembly since the provisions of a Constitution are generally accorded a mandatory status - Illogical to believe that RA 3590 requires lesser qualifications than those prescribed in dealing with ordinary measures; and that framers of the Constitution intended Sec. 1, Art. V to apply only to elections of public officers and not to plebiscites for the ratification of its amendments - Proceedings held in such Assemblies were fundamentally irregular since persons lacking the qualifications prescribed in Sec. 1 of Art. V of the 1935 Constitution were allowed to vote - Since there is no means by which the invalid votes can be separated from those of qualified voters, the proceedings in the Assemblies must be considered null and void - Constitution requires a "majority of the votes cast" for a proposed amendment to be valid, with the term "votes cast" as choices made on ballots, not orally or by raising hands - Constitution provides that there shall be an independent Commission on Elections (COMELEC), ordaining that the Commission shall have exclusive charge of the enforcement and administration of all laws relative to the conduct of elections; implemented by RA 6388 or the Election Code of 1971 - None of the foregoing constitutional & statutory provisions was followed by the Assemblies, rendering the proceedings or alleged plebiscite null and void		
<i>Results of the Court Voting</i>		
- Justices Makalintal, Zaldivar, Castro, Fernando, Teehankee, Concepcion → 6 members of the Court hold that the new Constitution was not validly ratified in accordance with Article XV of the 1935 Constitution - Justice Barredo → 1 member qualified his vote, maintaining that even though the Assemblies fell short of the requirements, he has no means of refusing to recognize that there was voting and majority of votes were for considering as approved the new Constitution - Justices Makasiar, Antonio, Esguerra → 3 members held that there has been substantial compliance with the constitutional requirements for valid ratification		

ISSUE 3:

Main - Substantive ▾	Whether or not the proposed Constitution has been	Yes ▾
----------------------	---	-------

	acquiesced in (with or without valid ratification) by the people	
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
NO. The people's alleged acquiescence does not disregard the lack of valid constitutional ratification. The constitution must first be ratified in the manner required by the 1935 Constitution.		YES. The people have acquiesced in and accepted the proposed Constitution, regardless of whether the formal ratification requirements were strictly complied with. Their acceptance of the new Constitution shows acquiescence.
RULING and RATIO DECIDENDI:		
Writer's Opinion (C.J. Concepcion)		
- Has the proposed Constitution been approved by a majority of the people in the Citizens' Assemblies allegedly held throughout the Philippines? - Solicitor General stated that one Francisco Cruz from Pasig as President of a National Association/Federation of municipal association presidents of citizens' assemblies for each barrio reported to the President the total result of the voting in Assemblies all over the country - Solicitor General was asked to submit a true copy of the aforementioned report of Mr. Cruz to the President and a proclamation creating/authorizing the establishment of such associations, but neither copies had been submitted to the Court - Decisions of election officers and canvassing boards are not conclusive and the final decision must rest with the courts; unless the law declares that decisions of the board shall be final, but there is no such law in the cases at bar - There's no certification by COMELEC in support of the alleged results of the Assemblies relied upon Proc. 1102, making it not even prima facie evidence of the ratification - Ample reason to believe that most of the people did not know that the Assemblies were (at the time they were held) plebiscites for the ratification/rejection of the proposed Constitution - Insertion of questions 2 & 3 of the additional questions indicates that the proceedings did not partake of the nature of a plebiscite for ratification of the Proposed Constitution - There have been no such Assemblies in many parts of Manila & other parts of the PH - Acts of acquiescence as illustrated by the case of Taylor v. Commonwealth (US Case) - Governor swore fidelity to and proclaimed the Constitution; Legislature formally recognized it and legislated under it; Judiciary swore to support it and enforce it; People peacefully accepted it and registered & voted in elections under it - In the present cases, none of the foregoing acts of acquiescence was present - Acts of the officers/offices of the Executive & Legislative Departments does not connote an acquiescence - Members of the Executive are bound to obey and act in conformity with the orders of the President, under whose "control" they are, especially in view of Martial Law - If members of Congress were generally agreeable to the proposed Constitution, why did it become necessary to padlock its premises to prevent its meeting in session on Jan. 22? - People's inaction with Proc. 1102 and their compliance with Presidential orders does not attest to a ratification/approval of the new Constitution - Failure to use the gun against those who comply does not detract from the intimidation that Martial Law necessarily connotes - Masses are unfamiliar with the parliamentary system (new form of government introduced in the new Constitution), and even experienced lawyers & social scientists find it difficult to grasp - Certification of the Secretary of the Department of Local Governments and Community Development about the tabulated results of the voting in the Assemblies → not legally worth anything - The Department Secretary is not the officer designated by law to superintend plebiscites held for the ratification/rejection of the proposed Constitution		
Results of the Court Voting		
Justices Barredo, Makasiar, Antonio, Esguerra → 4 members held that people have already accepted the		

1973 Constitution

- Justices Zaldivar and Concepcion → 2 members held that there can be no free expression, by the people qualified to vote all over the country, of their acceptance of the proposed Constitution under Martial Law
- Justices Makalintal, Castro, Teehankee → 3 members of the court express their lack of knowledge/competence to rule on the question

ISSUE 4:

Main - Procedural	Whether or not the petitioners are entitled to relief.	No
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:	
YES.	NO.	
RULING and RATIO DECIDENDI:		
Writer's Opinion (C.J. Concepcion)		
- Writ of mandamus should not be issued against Puyat and Roy based upon the theory of separation of powers, since judiciary cannot issue writ to the head of a co-equal department - Petitions should be given due course, there being more than prima facie showing that the proposed Constitution has not been ratified in accordance with Article XV of the 1935 Constitution. nor has it been acquiesced in by the people or a majority thereof - Others might feel that Concepcion's position overlooks the demands of "judicial statesmanship," but Concepcion believes that judicial statesmanship, though consistent with the Rule of Law, cannot prevail over the latter		
Results of the Court Voting		
- Justices Makalintal, Castro, Barredo, Makasiar, Antonio, Esguerra → 6 members voted to dismiss the petition, with Makalintal & Castro's voting on the view that "the effectivity of the said Constitution is the... ultimate question posed by these cases... and therefore beyond the competence of this Court." - Justices Zaldivar, Fernando, Teehankee, Concepcion → 4 members voted to deny respondents' motion to dismiss and give due course to the petitions		

ISSUE 5:

Main - Substantive ▾	Whether or not the proposed Constitution is in force.	Yes ▾
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
NO. The proposed Constitution is not in force because it was not validly ratified in accordance with Article XV of the 1935 Constitution.		YES. The proposed Constitution is already in force because it was approved/acquiesced in by the people and has been put into effect by the government.
RULING and RATIO DECIDENDI:		
• Justices Barredo, Makasiar, Antonion, Esguerra → it is in force by virtue of the people's acceptance • Justices Makalintal, Castro, Fernando, Teehankee → cast no vote on the premise that they could not state with judicial certainty whether the people have accepted or not accepted the Constitution • Justices Zaldivar, Concepcion → 1973 Constitution is not in force		

FINAL DECISION	ACCORDINGLY, by virtue of the majority of six (6) votes of Justices Makalintal, Castro, Barredo, Makasiar, Antonio and Esguerra with the four (4) dissenting votes of the Chief Justice and Justices Zaldivar, Fernando and Teehankee, all the aforementioned cases are
----------------	---

hereby dismissed. This being the vote of the majority, there is no further judicial obstacle to the new Constitution being considered in force and effect. IT IS SO ORDERED.

SEPARATE OPINION/S

MAKASIAR, J,
concurring

Validity of Presidential Proclamation No. 1102 is a political, not justiciable issue

- **Premise:** Issue is decisive of (1) validity of ratification of 1973 Consti and (2) legitimacy of government
 - **Why bad:** Nullification of proclamation would render 1973 Constitution inoperative and all acts under that government illegitimate (e.g., laws passed, taxes collected, officer salaries — *examples from Pacific States Telephone and Telegraph Co. decision by Mr. Chief Justice White*) → exercising veto power on act of the sovereign people
- **Definition of Political Question:** "to be decided by the people in their sovereign capacity, or in regard to which full discretionary authority had been delegated to the Legislature or Executive branch of the government." (Tañada, et al. vs. Cuenco)
- Judicial power concerns only with the legality or illegality or constitutionality of an act, not the propriety of the act/law

Ratification, adoption, and/or acquiescence of the Constitution cures any infirmity in its submission

- "The **two important, vital elements** in any constitutional amendment are the assent of 2/3 of the Legislature and a majority of the popular vote. Beyond these, *other provisions are mere machineries and forms*. They may not be disregarded, because by them certainty as to the essential is secured. But they are not themselves the essentials." (Larken vs. Gronna, 1939)
 - Similar principles of people's sovereignty and representation mattering more than form are echoed in *Wheeler vs. Board of Trustees*, *Weston vs. Ryan*, *Taylor vs. Commonwealth*, etc.
 - "Legal complaints to the submission may be made prior to taking the vote but, if once sanctioned, the amendment is embodied therein, and cannot be attacked[...]" (Taylor vs. King, 1925)
 - "It is not necessary that voters ratifying the new Constitution are registered in the book of voters; it is enough that they are electors voting on the new Constitution." (Bott vs. Wurt)
 - "the irregularity in failing to publish the proposed constitutional amendment once in each of the 4 calendar weeks next preceding the calendar week in which the election was held or once in each of the 7 day periods immediately preceding the day of the election as required by the Constitution, did not invalidate the amendment which was ratified by the people." (Swaim vs. Tuscaloosa County)
- **Example** of illegal submission not impairing validity: **Federal Constitution of U.S** was only ratified by state conventions from 1788-1790 (initial req: state legislatures, diff: elected delegates vs. permanent, regular lawmaking body of a state.); Didn't contain bill of rights and provision affirming power of judicial review ⇒ still valid now
- Petitioners cannot say that during martial law the majority of the people cannot freely

	vote for these reforms and that there was no discourse on their wants. - Salient reforms in the 1973 Consti that were long desired by people were thoroughly discussed on ConCon floor, forums, media, and decrees <u>All government instrumentalities (e.g., LGUs, HOR, ambassadors, civil courts, UN) have either recognized or are now functioning under the 1973 Consti, showing its legitimacy</u> - Petitioners have the duty to demonstrate by clear and convincing evidence their claim that the people did not ratify through the Citizens' Assemblies nor adopt by acquiescence the 1973 Constitution—they have failed to do so. Petitioners' Claim: Inaccuracy of vote counts since there was no official certification from Dept of Local Govts. Response: There was certification of vote count a (Annexes 1-1-A) by Solicitor General. Even if no certification → rule of presumption (due regard to a separate, coordinate and co-equal branch of the government demands adherence to the presumption of correctness of the President's declaration) Petitioners' Claim: Even 15-year olds, ex-convicts, and illiterates were allowed Response: "Filipino people" in the Constitution includes all Filipino citizens regardless of status. They shouldn't be denied this democracy. - There is no other government (kahit rebel govt) at least claiming to be distinct from and maintaining a position against the existing government headed by the incumbent Chief Executive. The present Supreme Court can't function under the 1935 Constitution without being a part of the government established pursuant thereto.
ZALDIVAR, J, <i>concurring and dissenting</i>	Proposed constitution was not validly ratified -> should not be given force and effect <u>On the issue being political and not justiciable:</u> <u>Gonzales vs. COMELEC</u> - Whether congress acting as constituent assembly violates the constitution - not political, subject to judicial review <u>Avelino vs. Cuenco</u> - Exception to the rule regarding political questions: if the issue involves construction and interpretation of the provisions of the constitution <i>Whether constitution should be amended or not - political</i> <i>Whether or not constitution has been legally amended - justiciable question</i> <u>Concurs with the conclusion that the question is justiciable</u> <u>On the question of whether or not the Constitution has been validly ratified:</u> - The following requirements stated in <u>Section 1 Article XV of the 1935 Constitution</u> were not complied with: - Qualified and registered voters - Voting was done by members who are 15 y/o and above - Requirement is 21 y/o and above - Official ballots - Voted through the raising of hands - Secrecy in voting - Conducted by appointed election inspectors - Votes are canvassed and reported in accordance with election law

- Resolution No. 2 & Tolentino v. COMELEC
 - Amendments should be subject to the provisions of the abovementioned article.
- Tydings-McDuffie Law
 - The term “**election**” of the 1935 Constitution should be construed along with the term “election” used in the Tydings-McDuffie Law
 - “the qualified voters of the Philippine Islands shall have an opportunity to vote directly for or against the proposed constitution . . .”
- Cannot order the ratification through a voting in barangays and use it as the basis for the proclamation of the Constitution’s ratification.
- “Provisions of a constitution regulating its own amendment are not merely directory, but are **mandatory**; and a strict observance of every substantial requirement is essential to the validity of the proposed amendment.” (cited in Graham v. Jones)
- Additionally, there is no freedom to exercise their right of choice due to the proclamation of martial law. Therefore, it should not be used as the basis for ratification.

On people’s acquiescence to the new Constitution:

It cannot be said that the people have accepted the new Constitution

- Can be seen in Congress where only a small portion of the members took their oath that manifests their acceptance of the new Constitution.
- There is nothing that the people can do under the circumstances existing in the country

Lambino v COMELEC

DIGEST MAKER: Tatoy (Facts & Issues), Virata (Dissenting)

Lambino v Comelec (2006)

Topic Subtopic	Interpreting the Constitution, Sec. 2 Art XVII
Doctrine	Art XVII Sec 2 requires that the final draft of proposed amendments should be ready and shown to the people before they sign the proposal
Petitioner/s	Lambino et. al.
Respondent/s	COMELEC
Year	October 25, 2006
Ponente	Carpio, J.

FACTS

There are consolidated petitions on the resolution dated Aug. 31, 2006 of the Commission on Elections denying due course to an initiative petition to amend the 1987 Constitution. The petitioner prayed for writs of certiorari and mandamus to set aside the COMELEC's decision and compel it to give due course to the petition^a.

On 15 Feb. 2006, Lambino and Aumentado, with other groups, gathered signatures for an initiative to change the 1987 Constitution^b with alleged 6.3 million signatures (12% of all registered voters) with at least 3% of all registered voters per legislative district.

They filed the petition to the COMELEC to hold a plebiscite that will ratify the initiative under Sec. 5b & c, and Sec. 7 of RA 6735 (Initiative Referendum Act)^c on 25 Aug. 2006.

On 31 Aug. 2006, the COMELEC denied Lambino's petition for lack of an enabling law governing initiative petitions, and invoked the court's ruling in Santiago v COMELEC^d declaring RA 6735 inadequate.

ISSUE/S

ISSUE 1: Whether the initiative petition complies with Art. XVII Sec 2 of the 1987 Constitution on amendments through people's initiative

PETITIONER/S ARGUMENTS:

RA 6735 is inadequate for the implementation of the initiative clause on proposal to amend the constitution (cited Santiago)

RESPONDENT/S ARGUMENTS:

Santiago is not a binding precedent and binds only to the parties in case. The Solicitor General joined the petitioner and stated that the court may treat the implementing rules and regulation of RA 6735 as temporary devices to implement the initiative,

RULING and RATIO DECIDENDI for ISSUE 1:

No. The Lambino group failed to comply with the basic requirements for conducting people's initiative. Moreover, Art XVII Sec 2 only allows amendments, and not revisions.

LEGAL BASES

The meaning of the phrase "directly proposed by the people" in Art XVII Sec 2^e requires that the **final draft of proposed amendments should be ready and shown to the people before they sign the proposal** as envisioned by the framers of the Constitution, in order for them to be informed of its nature and effect, **and failure to do so is deceptive and misleading which renders the initiative void.**

Essential Elements:

- The people must author and sign the entire proposal. No agent or representative can sign on their behalf.
- The proposal must be embodied in the petition. (It must contain the full text of the proposed amendments, either on the face

or attached)

Capezzuto v State Ballot Commission - a signature requirement is meaningless if the person supplying the signature has not first seen what it is that he or she is signing. Further, loose interpretation of subscription requirements can pose significant potential for fraud.

Kerr v Bradbury - the purpose of full text rule is to provide sufficient information so that registered voters can intelligently evaluate whether to sign or not.

Amendments vs Revisions

The constitution: 1. Upon $\frac{3}{4}$ votes of all members of congress; 2. constitutional convention; and, 3. People's initiative. Only through congress and constitutional convention where revisions are allowed.

Amendments generally refer to a change that adds, reduces, or deletes that affects only the specific provision of the constitution. Meanwhile, revisions refer to substantial changes that affect several provisions of the constitution.

Two-part test: Lambino's petition is a revision and not an amendment

Quantitative - examines the number of provisions affected to determine whether the proposed change is so extensive

Qualitative - examines whether the proposed amendment will accomplish far reaching change that is almost equal to a revision (Ex. change of government structure)

ISSUE 2: Whether the court should revisit its ruling in Santiago

RULING and RATIO DECIDENDI for ISSUE 2:

No. There is no need to revisit Santiago, as the failure to comply with the basic requirement of the Constitution alone already warranted the dismissal of the case.

LEGAL BASES

The court must avoid revisiting a ruling involving constitutionality of a statute if the case can be resolved using other grounds.

Even though RA 6735 is adequate, Lambino's logrolling violated Sec 10(a) xxx No petition embracing more than one subject shall be submitted to the electorate xxx. Sec 4(4) of the proposed transitory provision that mandates the Parliamentary to create further amendments and revisions is of a different subject matter; thus, even if RA 6735 is valid, the petition will still fail.

ISSUE 3: Whether or not the COMELEC committed grave abuse of discretion in denying due course to Lambino et. al.

No. Following the court's ruling in Santiago, COMELEC did not commit grave abuse of discretion.

FINAL DECISION

WHEREFORE, the petition is dismissed.
SO ORDERED.

SEPARATE OPINION/S

PUNO, J, *dissenting*

- A. **Petitioners are proper parties to file Petition in behalf of the >6 million voters who allegedly signed the proposal**
 - The intent of the signatories are stated above signatures in the signature sheet. No need for separate documents to be executed authorizing petitioners to file in their behalf.

- B. **The doctrine of *stare decisis* does not bar the reexamination of Santiago**
 - **Limits to *stare decisis* are recognized**
 - i. If “**plainly unreasonable**”
 - ii. Courts of equal authority developed **conflicting decisions**
 - iii. Binding force of decision was “**actual principle necessary for the decision; not the words or reasoning** used to reach the decision”

 - **Kinds of *stare decisis***
 - i. **Vertical - duty of lower courts** to apply decisions of higher courts
 - ii. **Horizontal-** high court must **follow own precedents**
 - 1. **Constitutional** – judicial interpretation of Constitution; more flexibility in courts refusing to apply *stare decisis* in constitutional litigations
 - 2. **Statutory** - interpretation of statutes

 - *Stare decisis* not an inexorable command; flexible

 - **Why follow *stare decisis***
 - i. **Legitimizes** judicial institutions
 - ii. **Promotes** judicial economy
 - iii. Allows for **predictability**

 - **When not to follow *stare decisis***
 - i. Perpetuates **illegitimate and unconstitutional holdings**
 - ii. Cannot accommodate **changing social and political understandings**
 - iii. Leaves **power to overturn bad constitutional law** in hands of Congress
 - iv. Judges can **dictate policy for future courts**; judges that respect *stare decisis* are stuck

 - ***Stare decisis* has been refused in 192 cases (US Supreme Court)**
 - i. **Brown v Board of Education**
Junked **Plessy v Ferguson’s “separate but equal doctrine”**
Races be segregated on public transport
 - ii. In **PH, La Bugal-B’laan Tribal Association, Inc. v Ramos** reversed original ruling that certain provisions of Mining Law were unconstitutional

 - **Factors in overturning prior rulings (Planned Parenthood v Casey):**
 - i. **Intolerability—**
 - 1. **Santiago** ruling that RA 6735 is insufficient but not unconstitutional is **intolerable aberration**
 - a. Assails the ability of legislators to write laws
 - b. **Courts can construe laws, but cannot construct them**

- ii. **Reliance**– ruling smothered hope of people that they could amend Constitution by direct action
- iii. **Changes in law and fact**– Constitution needs adjusting for new millennium

C. RA 6735 sufficient to implement people's initiative

- When challenged as unconstitutional, courts are counseled to heed intent of legislators
 - **Sec 1, Art VI**– reserved legislative power given to people
 - **Sec 32, Art VI** – specifically told to pass at soonest time possible a **bill on referendum and initiative**
 - Congress intended said law to implement right of people, thru initiative, to propose amendments by direct action, through **text, legislative history, and sponsorship speeches by authors**
- Alleged **omissions** too weak to suppress right of sovereign people to amend Constitution through initiative

D. Proposed constitutional changes are mere amendments and can be undertaken through people's initiative

- i. Only proposes changing 2 out of 18 articles of 1987 Constitution; ergo, majority will not be affected
- ii. Only affects constitution of **government**; liberty and sovereignty remain unaffected
- iii. **Amendment** (process of revision or addition proposed or made to particular provisions),, not **revision** (rewriting of **entire document**)
- iv. Difference between “**simple**” and “**substantial**” **amendments** inconclusive
 - 1. Interpret according to **intention of people who adopted it**
 - a. Direct democracy, systems of initiative
- v. Power to propose substantial amendments to Constitution is, at the very least, **shared with people**

E. Issues at bar are not political questions

- **Sanidad v Commission on Elections**
 - i. Where controversy **centered on legality or validity** of contested act, matter is **definitely justiciable or non-political**
 - ii. Whether a constitutional provision has been followed or not is subject to **judicial review by Supreme Court**

F. Are there required number of signatures (Sec 2, Art XVII) and proper verification of signatures (RA 6735)?

- Bc of irregularities in unverified signatures and alleged failure to obtain verified number of signatories, **Resolution** will require **presentation of evidence** and calibration by **COMELEC**
- **Yet to rule on sufficiency of form and substance of petition**; should be resolved by COMELEC at first instance

G. COMELEC gravely abused its discretion in denying due course to petition

- **Reliance on Santiago** constitutes grave abuse of discretion amounting to **lack of jurisdiction**
- In **Santiago** ruling, court was **split 6-6**. Equally divided court **cannot** set a precedent.

	○ Differences between Delfin Petition in Santiago and Lambino Petition: i. Delfin lacked signature, Lambino appears to have required number ii. Delfin prayed for time and dates for signature gathering; Lambino prayed for calling of plebiscite ○ COMELEC dismissed Lambino petition on basis of a ruling that is non-binding on present petitioners— grave abuse of discretion amounting to lack of jurisdiction H. Let the people speak ○ First principle is sovereignty of the people ○ The right of the people to make decisions
SURNAME, CJ/J, <i>dissenting/concurring</i>	
SURNAME, CJ/J, <i>dissenting/concurring</i>	

^b Writ of Certiorari and Mandamus - to review, and if necessary, cancel a lower court's decision made with grave abuse of discretion (certiorari), and command it to perform a legal, mandatory duty (mandamus)

^b Lambino et. al. aims to modify Art. VI Sec 1-7 (Legislative), Art. VII Sec 1-4 (Executive), and add Art. XVIII (Transitional Provisions) to change the system from bicameral-presidential to unilateral-parliamentary form of government.

^c RA 6735 Sec 5(a) states that at least 10% of all registered voters with at least 3% per legislative district is required for the exercise the power of initiative or referendum, (b) states that at least 10% of all registered voters with at least 3% per legislative district is required for an initiative amending the constitution, Sec 7 election registrar shall verify the signatures on the basis of the registry list of voters, voter's affidavit and id used in the immediately preceding election

^d Santiago v COMELEC - Jesus Delfin filed with the COMELEC a petition to lift term limits of elective officials specified in the constitution through people's initiative. Petitioner argued that Sec 2 Art XVII is not-self executory (it needs enabling law) and RA 6735 is not sufficient. Ruling: RA 6735 is inadequate

^e Art XVII Sec 2: Amendments to this Constitution may likewise be directly proposed by the people through initiative upon a petition of at least twelve per centum of the total number of registered voters, of which every legislative district must be represented by at least three per centum of the registered voters therein. No amendment under this section shall be authorized within five years following the ratification of this Constitution nor oftener than once every five years thereafter. The Congress shall provide for the implementation of the exercise of this right.

III. Judicial Review

A. Separation of Powers	2 of 2 digested
B. Theory and Justification of Judicial Review	1 of 1 digested
C. Justiciable and Political Questions	2 of 2 digested
D. Requisites of Judicial Review	25 of 25 digested

DIGEST MAKER: Yasmine Yañez

In Re: Laureta and Maravilla (1987)

Topic Subtopic	Judicial Review Separation of Powers	GR No. & Ponente	G.R.: 68635 Per Curiam (No single author)
Petitioner/s	N/A	Respondent/s	Eva Maravilla-Illustre and Atty. Wenceslao Laureta
Doctrine	The doctrine of Separation of powers calls for the departments to be left alone to discharge their duties as they see fit		

FACTS

Near identical letters were sent to:

- Justices Narvasa, Herrera, and Cruz on October 20, 1986
- Justice Feliciano on October 22, 1989
 - All justices were members of the First Division

The letters dangled threats to attempt to effect a change in the Court's dismissal of a previous case (Maravilla v. Hon. Intermediate Appellate Court)

In the letter, it was claimed that the Supreme Court's dismissal of the petition was an unjust resolution that was deliberately and knowingly promulgated.

- The 3 minute-resolutions were allegedly done with such haste never done before by the SC.
 - May 14, July 9, and Sept 3
- They threaten to hold the members of the first Division responsible for the hasty decision in the petition
 - Their actions allegedly run afoul with penal sanctions

Towards the end, he gives them a deadline of 1 week to respond, if they do not, he will consider their silence as support for the dismissal of the petition

The letter also attacked the professionalism of Justice Yap (Chairman of the First Division)

- Called his partner, Atty. Ordonez (counsel for respondents), arrogant, claiming similar actuation for Justice Yap
- He questioned the impartiality of Justice Yap, and claimed the possibility of ignorance of the court towards the case
 - He hypothesized that Justice Yap could have convinced the Division members is without merit, and that the rest of the members agreed despite "knowing nothing" of the case

In the letter to Justice Herrera, he adds:

- "The moment we take action in the plans we are completing, we will then **call a press conference with TV and radio** coverage Arrangements in this regard are being done. The people should or ought to know why we were **thwarted** in our quest for plain justice"

These letters were included in the Agenda of the First Division of 22 October 1986

- Was referred en consulta to the Court En Bank

October 28, 1986

The Court EN BANC reviewed the case— found NO REASON to take any further action

- Referred it back to the First Decision for its Resolution of October 27, 1986

First Division Resolution

Found that:

- Justice Yap assumed position only on May 2, 1986
- When the dismissal was issued on May 14 1986, it was JUSTICE SANTOS who was the incumbent Chairman of the 1st Div.
- Justice Yap was UNAWARE that Ordoñez was the counsel of respondents

- Yap only became the designated Chairman on JULY 14, 1986

Thus Concluded:

- The dispositions in Maravilla's case were carefully studied
- Just because the disposition of the case is against one party's interest, does NOT mean it is an unjust decision

Maravilla-Ilustre sent letters again on November 3, 1986 to Justices Narvasa, Herrera, and Cruz

- The October 28, 1986 resolution was just as untenable as the minute-resolution of May 14
- Continued threatening to expose the SC for their judicial performance, lack of merit, and lack of judicial integrity
- Reiterated that they will bring this case before another forum of justice to hold the members of the court responsible
- Yap could not have possibly been unaware of Ordoñez's appearance

Ilustre filed an Affidavit-Complaint before the Tanodbayan (Ombudsman) on December 16, 1986

- Some members of the court were charged with having knowingly and deliberately rendered, with bad faith, an unjust, extended Minute Resolution
- Some justices of the Court of Appeals charged with knowingly rendering their "unjust resolution"
- Ordoñez and Yap charged with having used their power and influence to sway the decision of the court
- All of them were also charged for causing the petitioner undue injury

Laureta was reported to have circulated copies of the Complaint

- The issue of December 23, 1986 of the Daily Express publish a banner headline
 - "ORDONEZ, 8 JUSTICES FACE GRAFT CHARGES"
- Making it appear that the Justices of the Court were charged with graft and corruption

The Tanodbayan eventually dismissed petitioner's Complaint

Resolution en banc dated January 29, 1987 (1986 nakasulat sa case but I think its meant to be 1987)

- Maravilla Ilustre is required to show cause why she should not be held in contempt
- Laureta, as an officer of the Court, to also show cause why no disciplinary action should be taken against him

ISSUE/S

ISSUE 1

Main - Substantive -	Whether or Not Maravilla-Ilustre should be held in Contempt	Yes -
RESPONDENT/S ARGUMENTS:		
• She prays the contempt proceedings against her be dismissed • She had no intentions to affront the honor and dignity of the court • Letters to the Justices were private in character ◦ Invoked the constitutionally mandated protection for privacy of communication • Courts forfeited the right to take disciplinary proceedings as they did not immediately do it ◦ Court is estopped • The complaint was instituted before the Tanodbayan in her honest belief that her case was lost NOT because of lack of merits • Newspaper publicity was not her fault — also not the fault of Laureta • She has just challenged the validity of the resolutions containing distortion of facts, conjectures, and mistaken inferences		

- There is no res judicator
- COA decision declared that the judgment of the trial had long attained finality
- Her opponents are NOT entitled to own her aunt's "vast properties"
- The en banc resolution was premature, and a prejudgment over a case over which the court has no jurisdiction
- Laurel was not her counsel before the Tanodbayan
- She established probable cause before the Tanodbayan

RULING and RATIO DECIDENDI:

In going beyond the Court's resolution and claiming its members acted in "bad faith" and rendered an "unjust resolution", the Court finds that the respondent had **transcended the permissible bounds of fair comment and criticism** to the **detriment of the orderly administration of justice**

- The right of freedom of speech or right to privacy is NOT a shield for contemptuous acts against the Court

Reliance on "Privacy of communication is misplaced"

- The letters were addressed to the Justices, in connection with their judicial functions— this becomes part of the judicial record and are a matter of concern for the ENTIRE court

The Court CAN take disciplinary proceedings

- Only in their exercise of forbearance did they refrain issuing immediately a show cause order
 - They expected the respondents to realize their accusations upon reading the Oct 28 Resolution
- Chief Justice also announced his statement on December 23, 1986 that the SC will take appropriate steps upon its resumption of sessions on the first working day of the year

There is no vindictive reprisal involved

- The court must act to preserve its honor and dignity from attacks

Her contention that the statement in the Banc Resolution that the resolutions are distortions of the fact is erroneous and intended to mislead

Her allegation that the Resolution was done with such haste that have gone beyond the limits of legal and judicial ethics (because the SC set aside the due course order and denied review) is farthest from the truth

- The recall of a due course order after a review of the records is a COMMON OCCURRENCE in the Court
- They are not qualified to speak on the "entire history" of the Supreme Court

Justice Yap's being unaware of Ordoñez's participation is a true and untarnished fact

- With so many cases being handled by the court, the appearances of lawyers often escape attention, with their focus being on the issues to be resolved

LEGAL BASES

ISSUE 2:

Main - Substantive ▾	Whether or Not Laureta should be found guilty of professional misconduct	Yes ▾
RESPONDENT/S ARGUMENTS:		
• Maintained that he was not Ilustre's counsel before the Tanodbayan • He dissuaded her from calling the press conference and circulating copies of the complaint ◦ He should even be given credit • He did not prepare the letters to the individual justices ◦ Also claimed that the Court lost its right to consider the letter as constituting contempt — now estopped from proceeding • The court revealed its intent through its action as a vindictive judicial vengeance • Did not intend to disregard the resolution of the SC • Doctrine of res judicata is inapplicable • Yap did not enter on the record his inhibition, when he should have (with regard to his partnership with ordonez and the fact that he is Sol Gen) • He has NOT committed acts unworthy of his profession		
RULING and RATIO DECIDENDI:		
The Court found that Laureta's acts were unbecoming of a lawyer and officer of the Court • A lawyer's first duty should be to the administration of justice, not to his client • Making it appear as though the members of the Court were facing Graft charges is a clear attempt to destroy public confidence in the SC Court is not convinced that Laureta had nothing to do with the letters of Ilustre The same terms and phrases stated within the letters to the Justices were used, almost verbatim, in other documents filed by Laureta (regarding the haste of the supreme court's decision) • In the June 11, 1986 Motion for Reconsideration (filed by Laureta) • In the June 25, 1986 Manifestation and Motion Queries that Laureta asked in the Manifestation and Motion also resurfaced in the second set of letters sent to Justices on November 3 Other disparaging remarks regarding the influence of Justice Yap and Ordoñez— as well as certain phrases and wordings— were repeated by Laureta in his pleadings • These remarks were also echoed and re-echoed in the letters sent to the justices • The remarks also appeared in the Complaint and Motion for Reconsideration before the Tanodbayan There were also reports that copies of the complaint filed with the Tanodbayan were distributed to editors of newspapers inside envelopes bearing the name: Laureta • He was also heard over the radio speaking on the same complaint Laureta, as Ilustre's lawyer, had control of the proceedings • Whatever steps the client takes should be within the knowledge and responsibility of the counsel • He appears to have encouraged and abetted his client in denigrating the members of the court		

LEGAL BASES

ISSUE 3:

Main - Substantive ▾	Whether or Not Maravilla-Ilustre and Laureta undermined the separation of powers and the independence of the judiciary	Yes ▾
RESPONDENT/S ARGUMENTS:		
N/A		
RULING and RATIO DECIDENDI:		
For the litigants to go beyond the Court's resolution destroys the authenticity, integrity, and conclusiveness of such acts and resolutions The attack on the SC would destroy the separation of powers and undermine the role of the SC as the final arbiter of all justiciable disputes Dissatisfied litigants CANNOT relitigate in another form the final judgment of this Court on legal issues - The judicial power to determine and adjudicate is vested exclusively in the Judiciary It is elementary that the Supreme Court is supreme - Exclusively entrusted with the judicial power to adjudicate with finality ALL justiciable disputes - No other department may pass upon its judgments or declare them unjust The independence of the Judiciary is the indispensable means for enforcing the supremacy of the Constitution and the rule of law - As an officer of the Court, Laureta violated and impaired the cardinal principle of the independence of the Judiciary - Subjecting the members of the SC to threat and ordeal of investigation and prosecution is to subvert and undermine the very independence of the judiciary - This subordinates the judiciary to the executive General principle - A judicial officer, in exercising the authority vested in him, shall be free to act upon his own convictions, without apprehension of personal consequences to himself - Liability to answer to everyone who might feel aggrieved by the decision of the court would destroy judiciary independence Resolutions of the SC are beyond investigation or inquiry under the principle of conclusiveness of enrolled bills of the legislature "If there has been any mistake... on which we cannot speculate without jeopardizing the principle of separation of powers..." - This is fully applicable to SC orders, decisions, and resolutions The doctrine of Separation of powers calls for the departments to be left alone to discharge their duties as they see fit		

- The judiciary has a right to expect that the other branches would not cast down on their orders and decisions

LEGAL BASES

FINAL DECISION

ACCORDINGLY, (1) respondent Eva Maravilla Ilustre is hereby held in contempt, and is hereby fined in the amount of P1,000.00 only, mindful that the power of contempt should be exercised on the preservative and not on the vindictive principle of punishment; and.

(2) Atty. Wenceslao Laureta is found guilty of grave professional misconduct, rendering him unfit to continue to be entrusted with the duties and responsibilities belonging to the office of an attorney, and is hereby suspended from the practice of law until further Orders, the suspension to take effect immediately.

Let copies of this Resolution be circulated to all Courts of the country for their information and guidance, and spread in the personal record of Atty. Wenceslao Laureta.

SO ORDERED.

Demetria v. Alba (1987)

Topic Subtopic	Congress - Requirements as to certain laws - Appropriation Laws	GR No. & Ponente	[G.R. No. 71977. February 27, 1987.] EN BANC FERNAN
Petitioner/s	DEMETRIO G. DEMETRIA et al	Respondent/s	HON. MANUEL ALBA in his capacity as the MINISTER OF THE BUDGET and VICTOR MACALINGCAG in his capacity as the TREASURER OF THE PHILIPPINES
Doctrine	Section 44 of PD No. 1177 empowers the President to indiscriminately transfer funds from one place to another, with no regard if there's a savings from other items or not. It is amounting to an undue delegation of legislative powers.		

FACTS

- Petitioners assail the constitutionality of the first paragraph of Section 44 of Presidential Decree No. 1177, otherwise known as the "Budget Reform Decree of 1977." which **authorized the President to take funds appropriated for departments, bureaus, offices, and agencies of the Executive Department and transfer them to programs, projects, or activities:**
 - Included in the General Appropriations Act; or
 - Approved after its enactment.
- Actual wording:** "The President shall have the authority to transfer any fund, appropriated for the different departments, bureaus, offices and agencies of the Executive Department, which are included in the General Appropriations Act, to any program, project or activity of any department, bureau, or office included in the General Appropriations Act or approved after its enactment."
- Demetria and the other petitioners filed a petition for prohibition with a prayer for preliminary injunction**, challenging the constitutionality of this paragraph, suing as concerned citizens, members of the National Assembly/Batasan Pambansa representing their constituents; and as taxpayers whose interests could be affected by the use of public funds.
 - Petitioners argued that the provision:
 - Authorized illegal transfers of public money, contrary to the Constitution.
 - Failed to specify the constitutionally permissible objectives and purposes of transfers.
 - Allowed the President to override the constitutional safeguards, form, and procedure governing appropriations.
 - Constituted an undue delegation of legislative power to the Executive.
 - Supplied no valid authority for the threatened and continuing transfers allegedly being undertaken by the President and implemented by the Budget Minister and National Treasurer.
- [Then, EDSA happened 22-25 Feb 1986.]**
- 27 Feb 1986:** Petitioners claimed that change in administration means that there's a need to hold the resolution of the present case until developments arise. Respondents filed a motion to dismiss
- Before the Court decided the case, the 1987 Constitution was ratified.** It retained the prohibition on transfers of appropriations and the limited exception for augmentation from savings.

ISSUE 1

Main - Procedural ▾	Whether or Not the instant petition filed by the petitioners is moot and academic due to the abrogation of the 1973 Constitution by the Freedom Constitution of March 25, 1986	No ▾
RESPONDENT/S ARGUMENTS:		
- Petitioners were merely begging an advisory opinion = no justiciable controversy fit for resolution or determination 7 pillars according to Justice Brandeis in <i>Ashwander v. TVA</i>		

RULING and RATIO DECIDENDI:	
1. It is the role of the Court to avoid great disservice to national interest, hence the Court took cognizance of the petition and deny respondents' motion to dismiss 2. The new 1987 Constitution's Section 25[5], Art VI carries Section 16[5], Art VIII of the 1973 Constitution 3. While Congress has NOT officially reconvened, there is no cogent reason for further delaying the resolution	
LEGAL BASES	
1987 Consti - Sec 25[5], Art VI: (5) No law shall be passed authorizing any transfer of appropriations; however, the President, the President of the Senate, the Speaker of the House of Representatives, the Chief Justice of the Supreme Court, and the heads of Constitutional Commissions may, by law, be authorized to augment any item in the general appropriations law for their respective offices from savings in other items of their respective appropriations. 1973 Consti Sec 16[5], Art VIII: (same wording, only had "Prime Minister" instead of "President", and "Speaker" instead of "Speaker of HOR")	

ISSUE 2

Side - Procedural ▾	Whether or Not the petitioners have legal standing		Yes ▾
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:	
- Claims to be (1) concerned citizens, (2) National Assembly members, (3) taxpayers		- Questioned standing of the petitioners	
RULING and RATIO DECIDENDI:			
1. Yes: administering an unconstitutional act is a misapplication of funds which may be enjoined at the request of a taxpayer (<i>Pascual v. Secretary of Public Works et. al.</i>) 2. Court enjoys open discretion to entertain taxpayers' suits (<i>Tan v. Macapagal, Sanidad v. COMELEC</i>)			

ISSUE 3

Main - Substantive ▾	Whether or Not paragraph 1, Sec 44 of P.D. No. 1177 is constitutional?	No ▾
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARG:
- Infringes upon fundamental law by authorizing illegal transfer of public moneys - Repugnant to the Consti as it fails to specify the objectives and purposes for which the proposed transfer of funds are to be made - Allows the President to override the safeguards, form and procedure prescribed by the constitution in approving appropriations - Undue delegation of legislative powers to the executive - Threatened and continuing transfer of funds by the President and the implementation of the budget by the respondents are without/in excess of their authority and jurisdiction		- Provision was enacted pursuant to Sec 16[5] Art VIII of 1973 Constitution
RULING and RATIO DECIDENDI:		
NO. The prohibition to transfer an appropriation for one item to another was explicit and categorical under the 1973 Constitution. It should be null and void.		

Section 16[5], Article VIII of the 1973 Constitution - **No law shall be passed authorizing any transfer of appropriations**, however, the President, the Prime Minister, the Speaker, the Chief Justice of the Supreme Court, and the heads of constitutional commissions may by law be *authorized to augment any item in the general appropriations law for their respective offices from savings in other items of their respective appropriations.*"

Paragraph 1, Sec 44 of PD1177 - "**The President shall have the authority to transfer any fund**, appropriated for the different departments, bureaus, offices and agencies of the Executive Department, which are included in the General Appropriations Act, to any program, project or activity of any department, bureau, or office included in the General Appropriations Act or approved after its enactment."

→ unduly overextends the privilege granted under said Section 16[5]. It empowers the President to indiscriminately transfer funds from one place to another, with no regard if there's a savings from other items or not. It is amounting to **an undue delegation of legislative powers**.

Framers prescribed the rules to avoid abuses in the expenditure of public funds = PD 1177 opens the floodgates for unlimited appropriations

LEGAL BASES

Section 44(1) of PD 1177. *Authority to Approve Fund Transfers.* The President shall have the authority to transfer any fund appropriated for the different departments, bureaus, offices and agencies of the Executive Department which are included in the General Appropriations Act, to any program, project, or activity of any department, bureau or office included in the General Appropriations Act or approved after its enactment.

ISSUE 4

Main - Substantive ▾	Whether or Not the prohibition of the Court of the Executive violates the separation of powers	No ▾
RESPONDENT/S ARGUMENTS:		
- Prohibition will not lie from one branch of the government to a coordinate branch to enjoin the performance of duties within the latter's sphere of responsibility		
RULING and RATIO DECIDENDI:		
1. When the legislature or executive acts beyond the scope of its constitutional powers, it is the duty of the judiciary to declare what other branches of gov't had assumed to do as void = essence of judicial power in Art VIII, Sec 1 of 1935 Consti, Art X, Sec 1 of 1973 Consti, and adopted in Freedom Consti and Art VIII, Sec 1 of the 1987 Consti 2. A provision which allows even the slightest possibility of a repetition of this sad experience cannot remain written in our statute books.		

FINAL DECISION	WHEREFORE, the instant petition is granted. Paragraph 1 of Section 44 of Presidential Decree No. 1177 is hereby declared null and void for being unconstitutional. SO ORDERED.
----------------	---

DIGEST MAKER: Marielle Odois

Angara v. Electoral Commission

Topic Subtopic	Judicial Review Theory and Justification of Judicial Review	GR No. & Ponente	G.R. No. 45081. & J. Laurel
Petitioner/s	JOSE A. ANGARA	Respondent/s	THE ELECTORAL COMMISSION, PEDRO YNSUA, MIGUEL CASTILLO, and DIONISIO C. MAYOR
Doctrine	Being the only organ of the government to determine the proper allocation of powers of the several branches of the government, the Judicial Branch exercises its power of Judicial Review on matters relating to evaluate actions that may be violative of the mandate of the Constitution.		

FACTS

The petitioner, Jose Angara, and the respondents,, Pedro Ynsua and Dionisio Mayor, were candidates for the position of the National Assembly for the first district of the Province of Tayabas. Angara won in October 1935 and was proclaimed by the provincial board.

In its session on December 3, 1935, the National Assembly passed resolution No. 8 confirming the election results with no protests made. On December 8, Ynsua filed a motion of protest before the electoral commission against Angara, claiming that he should be the one to be elected or the election of the position be nullified.

A day after, December 9, 1935, the Electoral Commission adopted a resolution that they will no longer accept protests after this day.

Angara later filed a Motion to Dismiss the protest to the Electoral Commission and afterwards, a writ of prohibition to the SC to restrain and prohibit the Electoral Commission from taking further cognizance of the protest filed by Ynsua, arguing that the National Assembly has been reserved the power in relation to election contests and that Resolution No. 8 is valid and must be obeyed.

ISSUE/S

ISSUE 1

Main - Procedural	Whether or Not the Supreme Court jurisdiction over the Electoral Commission and the subject matter of the controversy upon the foregoing related facts, and in the affirmative	Yes
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:	
RULING and RATIO DECIDENDI:		
As the only organ in the government that can determine if there is a proper allocation of powers between the several departments and among the integral or constituent units thereof, the Supreme Court has jurisdiction over the Electoral Commission and the subject matter which involves check of power given to the Electoral Commission. - The doctrine of separation of powers is a fundamental principle in the system of our government - The constitution is not vague in setting the limits and restrictions with regard to the power given		

to each department and units. Therefore, when there are controversies, it is the role of the Judicial Branch to mediate and decide on the matter. ○ This power is not indicative that the SC is superior over the other departments, it is only doing its solemn obligation set by the Constitution to settle conflicting matters of authority under the Constitution. ○ Therefore, the Court has jurisdiction over the Electoral Commission. ● The issue in this instant case is an actual controversy. ○ The conflict between the National assembly and the Electoral Commission, wherein the former had already adopted a resolution in confirming those elected, while the latter had only adopted their own resolution days after, presents a conflict as to who has the authority on matters relating to contests of elections as provided by the Constitution. ○ There is a need to look into the scope and powers of the Electoral Commission as provided by the Constitution.
LEGAL BASES

ISSUE 2:

Main - Substantive ▾	Whether or Not...Electoral Commission acted without or in excess of its jurisdiction in assuming to take cognizance of the protest filed against the election of the herein petitioner notwithstanding the previous confirmation of such election by resolution of the National Assembly?	No ▾
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
The Constitution only gave the Electoral Commission with regards to the merits of contested elections only rather than the proceedings of said election contests. In addition, with the adoption of Resolution No. 8, the confirmation of elected officials is final.		Since the Constitution has conferred the Electoral Commission the power to to adopt the rules and regulations essential to carry out the power and functions in being the sole judge of all contests relating to the elections, returns and qualifications of the members of the National Assembly. Therefore, the Resolution adopted by the tribunal was within the jurisdiction of the Electoral Commission.
RULING and RATIO DECIDENDI:		
<i>The Electoral Commission acted within its jurisdiction based on the powers provided by the Constitution. All matters related to contests of elections, returns and qualifications of members of the National Assembly, which also includes the adoption of rules and procedure as incidental powers, validates the resolution adopted by the Electoral Commission and taking cognizance of the petition</i> ● History of the creation of the Electoral Commission ○ The creation of the Electoral Commission stems from Sec. 4 of Article VI of the Constitution ■ It had undergone various changes and discussions according to the remarks made on the floor of the Convention (i.e. lessening the seats of the minority and SC, clarifications of the powers given to the EC) ■ In the transfer of the power of determining the election, returns, and qualification of the members of the legislature to an independent and non-partisan party, is not a mere experiment		

- In England, the House of Commons experienced the trial of controverted elections as a political tool of attack and through the Grenville Act, a non-partisan party was made for the settlement of controverted elections.
 - Abraham Lincoln mentioned that the creation of the Electoral Commission is the expression of the wisdom and “ultimate justice of the people.” (First Inaugural Address, March 4, 1861)
- As an independent organ, the powers granted by the Constitution to Electoral Commission is a restriction on legislative power
 - If the proceeding will be given to the legislative, this will inevitably lead to the ultimate control of the former over the Electoral Commission.
- The creation of rules and procedures are an incidental power given by the Constitution
 - This is for the proper execution of its powers over contests related to elections, returns and qualifications of members of the house.
 - Considering the Commission only had its delegates on December 4 and 6, 1935, the action of the National Assembly (re: resolution No. 8) was implied to bar any protests that may be raised even before the Electoral Commission had started exercising its powers.
 - Furthermore, the proclamation of elected officers is unnecessary as a certification of the provincial board is sufficient already.
 - Therefore, the resolution made by the Electoral Commission is within its jurisdiction.

LEGAL BASES

Section 4 of Article VI of the 1935 Constitution

SEC. 4. There shall be an Electoral Commission composed of three Justices of the Supreme Court designated by the Chief Justice, and of six Members chosen by the National Assembly, three of whom shall be nominated by the party having the largest number of votes, and three by the party having the second largest number of votes herein. The senior Justice in the Commission shall be its Chairman. The Electoral Commission shall be the sole judge of all contests relating to the election, returns and qualifications of the members of the National Assembly.

Cushing - Law and Practice of Legislative Assemblies (ninth edition, chapter VI, pages 57, 58) - about the House in Commons in England

FINAL DECISION

The petition for a writ of prohibition against the Electoral Commission is hereby denied, with costs against the petitioner. So ordered.

MIRANDA v. AGUIRRE (1999)

Topic Subtopic	Judicial Review Justiciable and Political Questions	GR No. & Ponente	G.R. No. 133064 J. Puno
Petitioner/s	Jose C. Miranda, et al.	Respondent/s	Honorable Alexander Aguirre, et al.
Doctrine	A plebiscite is mandatory for "downgrading" a city from an independent component city to a mere component city.		

FACTS

On May 5, 1994, R.A. 7720 was signed into law, converting the Municipality of Santiago, Isabela, into an **independent component city**. On July 4, 1994, the registered voters of Santiago **ratified** this cityhood charter in a valid plebiscite.

On February 14, 1998, Congress enacted R.A. 8528, which amended R.A. 7720 by deleting the words "an independent" from Section 2, thus changing the status of Santiago from an **independent component city** to a mere **component city**. Section 2 of R.A. No. 8528 also amended Section 51 of R.A. No. 7720, allowing the registered voters of Santiago City to vote and run for elective provincial positions in the Province of Isabela.

Petitioners Jose C. Miranda (then-Mayor of Santiago City), Alfredo S. Dirige, Manuel H. Afiado (President of the Liga ng mga Barangay ng Santiago City), Mariano V. Babaran, and Andres R. Cabuyadao (residents and voters of Santiago City) filed a petition for a **writ of prohibition** with a prayer for **preliminary injunction** before the SC.

1. They argued that R.A. 8528 is **unconstitutional** because it did **NOT** contain a provision submitting the law for ratification by the people of Santiago City in a proper plebiscite.
2. They asserted that the "reclassification" under R.A. 8528 actually operated as a **conversion** that significantly **altered** and **diminished** the political autonomy and economic rights of Santiago City and its residents. These material changes included:
 - a. Placing the city mayor under the **administrative supervision of the provincial governor of Isabela**.
 - b. Subjecting resolutions and ordinances of the city council (*Sangguniang Panlungsod*) to **review by the Provincial Board** (*Sangguniang Panlalawigan*) of Isabela.
 - c. Adding the city's land area and population to the province, which benefits the Provincial Government of Isabela by increasing its share in the Internal Revenue Allotment (IRA), which is based on land area and population of LGUs, provinces included.
 - d. Requiring the city to **share its local tax collections** (sand, gravel, professional, and amusement taxes) with the province, and
 - e. Reducing the city's own share of the IRA and diluting its proceeds from the utilization of national wealth.

Respondents, defended the constitutionality of R.A. 8528, arguing that:

- Petitioners **lack locus standi** or **real interest** to file the petition.
- The petition raised is a **non-justiciable political question** over which the Court lacked jurisdiction.
- RA 8528 merely "**reclassified**" or transitioned the city from an independent to a component city without creating, dividing, merging, abolishing, or substantially altering boundaries, which makes **holding a plebiscite unnecessary**.

Intervenor Giorgidi B. Aggabao **assailed** the petitioner's standing. He contended that neither the Constitution nor the Local Government Code of 1991 (R.A. 7160) requires a plebiscite to approve a law that simply restores the rights of city voters to participate in provincial elections.

Legislative records reveal that during the Senate deliberations on House Bill 8729 (which became RA 8528), there was **strong opposition to downgrade Santiago City**. Senator Roco and Senator Drilon urged respect for the majority vote that originally approved Santiago City's independent component city status and advocated for a plebiscite. However, Senator Alvarez **defended the bill**, stating that a plebiscite was **not a constitutional requirement** for a change from independent to component city.

ISSUE 1

W/N the petitioners have the <i>locus standi</i> to challenge the constitutionality of RA 8528.		Yes ▾
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:	
	They argued that the petitioners lacked a personal and real interest in the case.	
RULING and RATIO DECIDENDI:		
YES. The SC held that the challenge to the petitioners' standing cannot succeed because the constitutionality of a law can be challenged by one who will sustain a direct injury as a result of its enforcement. • Petitioner Jose C. Miranda was the sitting mayor of Santiago City when he filed the petition in his own right. The enforcement of R.A. 8528 directly and immediately affects and diminishes his official powers and duties. This direct injury is distinct from a generalized grievance shared with the public. • Other petitioners are residents and registered voters of Santiago City. They have a direct interest and a constitutional right to be heard via a plebiscite conducted by the COMELEC before their city's status is altered. Bypassing this plebiscite deprives them of this right; this establishes their proper standing.		
LEGAL BASES		
Sanidad v. COMELEC – The Court invoked this "ancient rule" to reiterate that the constitutionality of a law can be challenged by a party who has sustained, or is in immediate danger of sustaining, a direct and personal injury as a result of its enforcement.		

ISSUE 2:

Whether or Not the constitutional challenge to R.A. 8528 presents a justiciable issue or a non-justiciable political question		Yes ▾
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:	
	It does not present a justiciable issue.	
RULING and RATIO DECIDENDI:		

YES. The petition presents a justiciable issue and is fully within the Court's jurisdiction.

- The SC rejected the respondents' plea to back off on political question grounds, ruling that the controversy is justiciable under the expanded definition of judicial power
- Under Section 1, Article 8 of the 1987 Constitution, judicial power includes the duty to settle actual controversies involving rights which are **legally demandable and enforceable**, and to determine whether there has been grave abuse of discretion on the part of any branch of government.
- The issue here is whether Section 10, Article 10 of the Constitution grants the petitioners the right to approve or disapprove RA 8528 in a plebiscite before it can be enforced. This is a **legal question of constitutional compliance and interpretation**. The SC is the ultimate arbiter of the Constitution.

LEGAL BASES

1987 Constitution

1. Article 8, Section 1: The judicial power shall be vested in one Supreme Court and in such lower courts as may be established by law. Judicial power includes the duty of the courts of justice to **settle actual controversies involving rights which are legally demandable and enforceable**, and to determine **whether or not there has been a grave abuse of discretion amounting to lack or excess of jurisdiction** on the part of any branch or instrumentality of the Government.
2. Article 10, Section 10: No province, city, municipality, or barangay may be created, divided, merged, abolished, or its boundary substantially altered, except in accordance with the criteria established in the Local Government Code and subject to approval by a majority of the votes cast in a plebiscite in the political units directly affected.

Cases

1. **Tañada v. Cuenco**: the SC used this case to define a political question as one **"concerned with issues dependent upon the wisdom, not legality, of a particular measure,"** or questions which under the Constitution are left to the sole discretion of the political branches or the people in their sovereign capacity.
2. **Casibang v. Aquino**: a justiciable issue requires (1) a given right, legally demandable and enforceable; (2) an act or omission violating such right; and (3) a legally sanctioned remedy for that breach.

ISSUE 3:

Whether or Not R.A. 8528 is unconstitutional for failing to provide for a plebiscite to ratify the reclassification of Santiago City from an independent component city to a component city.		Yes
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:	
	A plebiscite is not needed. They cited the cases of Oroquieta (RA 6726) and San Carlos City (RA 6843), where city charters were amended to allow residents to vote in provincial elections without a plebiscite .	
RULING and RATIO DECIDENDI:		
YES. The Court declared RA 8528 unconstitutional, and commanded respondents to desist from implementing		

it. SC ruled that a **plebiscite is constitutionally mandated** for the downgrading of a city.

- Section 10, Article X of the Constitution requires a plebiscite for the **creation, division, merger, abolition, or substantial alteration of boundaries of LGUs**. It involves a **material change in the political and economic rights of the LGUs directly affected and their residents**.
- If RA 7720 (an upgrade) required a plebiscite, then RA 8528 (a downgrade) also **requires a plebiscite**.

LEGAL BASES

1987 Constitution

1. Article 10, Section 10: No province, city, municipality, or barangay may be created, divided, merged, abolished, or its boundary substantially altered, except in accordance with the criteria established in the Local Government Code and subject to approval by a majority of the votes cast in a plebiscite in the political units directly affected.

Local Government Code of 1991 (RA 7160)

1. Section 10, Chapter 2: reiterates and codifies the absolute requirement for a plebiscite.

Tan v. COMELEC

- Here, Batas Pambansa Blg. 885 was **struck down**. BPB 885 split Negros Occidental to create “Negros del Norte” without a province-wide plebiscite.
- Justice Teehankee’s concurring opinion was emphasized, that the **mandatory plebiscite is a crucial constitutional check** against “gerrymandering” and the practice of restructuring LGUs for the benefit of a few politicians, rather than the welfare of the people.

A plebiscite was **not required** for the cases the respondents cited because **they were already ordinary component cities** to begin with. The amendment **merely restored voting rights without altering their core component status or diminishing their existing autonomy**.

- In this case, Santiago City was already ratified as an **independent component city**. Downgrading them would strip its people of their hard-won independence from the province. Thus, a plebiscite is mandatory.

FINAL DECISION

IN VIEW WHEREOF, the **petition is granted**. Republic Act No. 8528 is declared **unconstitutional** and the writ of prohibition is hereby issued commanding the respondents to desist from implementing said law.
SO ORDERED.

SEPARATE OPINION/S

MENDOZA, J, *dissenting*

Not every change, no matter how “material” or “far-reaching” requires a plebiscite. A plebiscite is strictly mandatory only when an LGU is created, divided, merged, abolished, or its boundaries are **substantially altered**. These changes must be directly tied to the LGU’s “**verifiable indicators of viability**”; on income, population, and land area (LGC Sections 7 to 9).

- RA 8528 did **NOT** alter Santiago City’s income, population, or land area, so there was no creation, division, merger, or abolition taking place. Hence, no need for a plebiscite.

	The majority pointed to the city being placed under provincial supervision and its ordinances being reviewed by the provincial board as "substantial" changes. Mendoza countered that whether Santiago is independent or component, it is always subject to administrative supervision. • Under Article X, Section 4 of the Constitution, the President exercises general supervision over all LGUs. An independent city is supervised <i>directly</i> by the President, whereas a component city is supervised by the President <i>through the province</i>. • Furthermore, while a component city's ordinances are reviewed by the provincial board under Section 468(a)(1)(i) of the LGC, an independent city's ordinances are likewise reviewed by the Office of the President We are a republican state, where sovereignty is exercised indirectly through elected representatives. Legislative power rests in the Congress. • Duly enacted laws are immediately effective without needing ratification by the people, unless the Constitution <i>expressly</i> mandates a plebiscite. • Requiring plebiscites for routine reclassifications, he warned, disregards the representative design of our democracy and exposes policy-making to voter volatility and political manipulation.
BUENA, J, dissenting	Buena pointed out that the word "conversion" is absent from both Article X, Section 10 of the Constitution and Section 10, Chapter 2 of the LGC. • Both laws strictly limit the plebiscite requirement to creation, division, merger, abolition, or substantial alteration of boundaries. The majority relied on the LGC's Implementing Rules and Regulations (IRR), which explicitly included "conversion" in the plebiscite requirement. Buena argued that an administrative body cannot expand the scope of a basic law. • <i>Tayug Rural Bank v. Central Bank of the Philippines</i> – Holding that in case of a discrepancy between a basic law and its implementing rule, the basic law prevails. • <i>Iglesia ni Kristo v. Court of Appeals</i> – to reiterate that administrative regulations are void if they "expand the letter and spirit of the law they seek to enforce" Conversion of an LGU that requires a plebiscite is exclusive to an upward elevation of status (e.g., converting a municipality to a city). Buena warned that declaring RA 8528 unconstitutional would cast a dark shadow over the charters of Oroquieta City and San Carlos City, which had been downgraded without plebiscites years prior.
VITUG, J, concurring	

DIGEST MAKER: Kim Salvador

TORRECAMPO V. MWSS (2011)

Topic Subtopic	Judicial Review: Justiciable and Political Questions	GR No. & Ponente	G.R. No. 188296; Carpio, J.
Petitioner/s	Brgy. Captain Beda Torrecampo	Respondent/s	Metropolitan Waterworks and Sewerage System, Department of Public Works and Highways
Doctrine	Political questions are those questions which, under the Constitution, are to be decided by the people in their sovereign capacity, or in regard to which full discretionary authority has been delegated to the Legislature or Executive branch of the Government. It is concerned with issues dependent upon the <i>wisdom</i> , not legality, of a particular measure. (Justice Concepcion in Tanada and Macapagal v. Cuenco).		

FACTS

Facts related to Torrecampo's petition:

- June 30 2009 - constituents of Barangay Captain Beda Torrecampo of Barangay Matandang Balara QC reported that personnel and equipment of the DPWH entered their barangay to implement the C-5 Road Extension Project.
- Torrecampo alleged that this project will affect aqueducts of MWSS and the water supply of 8 million Metro Manila Residents.
- He insisted that the RIPADA area (Pook Ricarte, Pook Polaris, Pook Dagohoy), located in Brgy. UP Diliman is a better alternative location.
- Petitioner filed for issuance of a Temporary Restraining Order and Writ of Preliminary Injunction directly with the Supreme Court.

Background/History:

- September 25, 2007 - Presidential Proclamation No. 1395 by past President Gloria Macapagal-Arroyo declared and reserved parcels of land of the RIPADA area for purposes such as access highway and housing facilities.
 - Note: MWSS was not involved with the C-5 extension project yet
- December 3, 2007 - proposed utilization of MWSS properties for Medium Rise Buildings (MRB) for those who will be displaced by the C-5 project.
 - MWSS objected since the proposed areas and 60-meter aqueduct right of way (ROW) was reserved for aqueducts and must be free from disruptions
- March 12, 2009 - MWSS allowed DPWH to use the aqueduct ROW for the implementation of the C-5 project, subject to specific conditions and requirements.
 - The June 30 2009 date mentioned above was when DPWH entered the properties for necessary assessment and not yet the implementation.
- DPWH Memorandum stated that the project will follow the direction of the existing Katipunan-Tandang Sora Avenue road connection and the required road widening will affect MWSS' properties.

Tldr: RIPADA was already allocated for the C-5 extension project. Torrecampo questioned why DPWH was "pursuing" another route that could potentially affect the water supply of 8mil MM residents.

ISSUE/S**ISSUE 1**

Main - Procedural ▾	Whether or Not the respondents should be enjoined from commencing with and implementing the C-5 Road Extension Project along Tandang Sora Road, affecting MWSS' properties	No ▾
---------------------	--	------

PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
• He has legal standing • Only the SC may issue a restraining order and/or writ of preliminary injunction against gov't projects • The project defeats R.A. 8975 (An Act to Ensure the Expeditious Implementation and Completion of Government Infrastructure Projects by Prohibiting Lower Courts from Issuing Temporary Restraining Orders, Preliminary Injunctions or Preliminary Mandatory Injunctions, Providing Penalties for Violations.) unless it is enjoined • Issue is not premature • Affects fundamental right to health under Sec. 15, Art II of the 1987 Const.	MWSS: • No justiciable controversy ◦ Premature filing of petition -> no project has been implemented yet ■ Not yet final; it is still subject to review and certain requirements, studies, assessments. • Failure to allege Torrecampo's right that would warrant an injunction • Petitioner failed to exhaust administrative remedies (went straight to the SC) DPWH: • Petitioner violated the hierarchy of courts • MWSS did not object to the proposed project on the alleged reason that it would destroy the aqueducts • No credible proof that the project is implemented in the RIPADA area • The RIPADA route was more difficult to undertake than the route in DPWH's memo. • Petitioner is not a valid class suit; no proof that he represents the interest of the 8mil residents he mentioned • Petition is not a valid taxpayer's suit; no project yet • DPWH's determination of location comes with expertise, should be respected • Torrecampo is not entitled to the issuance of an injunctive writ & has no cause of action.
RULING and RATIO DECIDENDI:	
• "The petition must fail. Torrecampo is not entitled to an injunction. Torrecampo seeks judicial review of a question of Executive policy, a matter outside this Court's jurisdiction. Torrecampo failed to show that respondents committed grave abuse of discretion that would warrant the exercise of this Court's extraordinary certiorari power." • It is out of SC's jurisdiction to determine which area is the better route/alternative. Deciding where to construct a road extension is under the Executive's jurisdiction. • The petition is speculative in nature - Did not seek for remedy from the executive branch - Did not know whether DPWH had remedial measures/plans to fortify the aqueduct concerned in the project. - No proof of actual expenditure - No approval of the project yet because no study has been submitted yet • Without the required DPWH study and MWSS decision, no grave abuse of discretion amounting to lack of jurisdiction can be alleged against or attributed to respondents warranting the exercise of this Court's extraordinary certiorari power	
LEGAL BASES	
Section 1, Article VIII of the Constitution "Judicial power includes the duty of the court of justice to settle actual controversies involving rights which are legally demandable and enforceable, and to determine whether or not there has been a grave abuse of discretion	

amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the Government."

Justice Concepcion in Tanada and Macapagal v. Cuenco

"Political question refers to 'those questions which, under the Constitution, are to be decided by the people in their sovereign capacity, or in regard to which full discretionary authority has been delegated to the Legislature or executive branch of the Government.' **It is concerned with issues dependent upon the wisdom, not legality, of a particular measure.**"

The question is about wisdom (which alternative is better) rather than legality (is there grave abuse of discretion). In sum, the question is political and not justiciable, which is not within the Court's authority to review/decide.

FINAL DECISION

WHEREFORE, we **DENY** the petition filed by Barangay Captain Beda Torrecampo. No pronouncement as to costs.
SO ORDERED.

sub-issues:

W/N there is an actual case or controversy? NO – the project has not been enacted yet; pending review and approval; premature

W/N Torrecampo has legal standing as a taxpayer? NO – no proof that there's illegal disbursement of public funds or that the tax measure is unconstitutional; no project yet

DIGEST MAKERS: Paderayon (Decision), De Leon & Romero (Leonen Op'n.), Provido & Paderayon (Dimaampao Op'n.)

KAPIT v. City of Manila (2026)

Topic Subtopic	Judicial Review Requisites of Judicial Review	GR No. & Ponente	G.R. No. 261892 – KAPIT, MASDA, ALTODAP, ACTO G.R. No. 262192 – Atty. Paa G.R. No. 263752 – PNTOA
Petitioner/s	1. KAPIT, PASANG MASDA, ALTODAP, ACTO 2. Atty. Paa 3. PNTOA, Manuel C. Cruz, Jacqueline V. Serrano	Respondent/s	1. City of Manila, Quezon City, Valenzuela City, Paranaque City, Muntinlupa City, LTO 2. Sangguniang Panlungsod ng Maynila, and mayor of City of Manila 3. Respondent LGUs and MMDA
Doctrine	<i>Procedural rules are not suspended just by controversy, more so when there is an absence in the essential requisites for judicial review. To rule on such issues despite procedural defects would still be judicial overreach. Petitions brought up in relation to this case were dismissed due to lack of actual case/controversy, lack of standing, violation of hierarchy of courts, and forum-shopping. Thus, nothing was said regarding the constitutionality of the ordinances implementing or on NCAP.</i> <i>The court reminds that dismissing petitions on grounds of mootness does not determine the constitutionality of an ordinance or law.</i>		

FACTS

MMDA sought to establish a technology-driven, no contact traffic enforcement system, shifting from physical apprehension to post-violation notification and adjudication. Thus, MMDA Resolution No. 16-01 (NCAP) was issued to implement a “**No Physical Contact Policy**” for apprehension through use of digital cameras as opposed to physical intervention from officers.

MMC authorized use of CCTV cameras, digital imaging, and other technologies to detect and document traffic violators along major roads in Metro Manila. Thus, respondent LGUs would then file Ordinances to put NCAP into full effect. None of the petitions pleaded against MMDA's NCAP. The court resolved and included MMDA as a party, as well as QPAX traffic systems – the technology company for the NCAP.

August 30, 2022 - Court orders a TRO on all parties from implementing MMDA NCAP and NCAP City Ordinances until further orders from the Court.

February 1, 2023 – MMC adopted Metro Manila Traffic Code of 2023, limiting the scope of their pilot testing to only a single *ticketing system* to physical or contact apprehensions.

May 20, 2025 – granted MMDA's Motion to lift TRO, with respect only to certain roads under MMDA's traffic enforcement jurisdiction.

ISSUE/S**ISSUE 1**

Main - Procedural	Whether or not the issues raised in the petitions have an actual and justiciable controversy	No for all.
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
- NCAP violates due process, imposing penalties without immediate notice or opportunity to contest validation. - Presumptive violation on the registered owner, not the driver. - Violates fundamental rights to privacy.		- There is no actual case or controversy present. - NCAP is a valid exercise of police power. - There is no violation of due process as owners are given the opportunity to contest the notice of violation and penalties before the appropriate adjudicatory body.

Grave abuse of discretion among LGUs to promulgate NCAP.	- NCAP does <i>not</i> violate R.A. No. 4136, not limiting apprehension to face-to-face apprehension. - It does not violate the right to privacy, information necessary to carry out functions of public authorities lie outside Data Privacy Act 2012. Adoption of MMTC 2023 renders all of the petitions moot.
--	--

RULING and RATIO DECIDENDI:

Petitions were instituted to assail NCAP City Ordinances, which were already suspended in 2022. LGUs instead incorporated **MMTC 2023**, which features standardized observance of NCAP in Metro Manila. Developments and adaptation of MMTC rendered NCAP a legal nullity – there was no resumption of NCAP implementation, and thus, **any relief to petitioners would not produce either legal nor practical effect of any moment. Relief would be illusory.**

Thus, Judicial restraint leads court to dismissal of petitions *without prejudice* to future challenges, should modified implementation give rise to an *actual justiciable case*. **DISMISSAL WAS DUE TO MOOTNESS.**

Court entertained if cases fell into exceptions due to mootness:

- Grave violations of the constitution** – MMTC 2023, the supervening legislation, is **not** the matter presented before the court. Exception is only attributable to the very issuance under challenge, not to a successor instrument yet to be assailed by the petitioners.
- Exceptional character and public interest** – Transcendental importance only applicable when case involves interest of general public – this case **only involves those of motorists.**
- Need to formulate controlling principles** – Petitions offered no compelling justification for new due process doctrines. Moreover, provision on excessive fines (which respondents claimed NCAP went against) is not applicable to the case (which is in regards to the constitutionality of the ordinances that promulgated NCAP).
- Capable of repetition yet evading review** – Highly speculative, if not improbable, that they will be subject to the same ordinances again. Any allegation of injury on grave constitutional violations remains speculative in regards to MMTC 2023 (was only a test run, full NCAP yet to be implemented).

LEGAL BASIS

Atty. Macalintal v. COMELEC – two situations where judicial review can be sought:

- Constitutional Situation (courts have the power determining **validity of executive or legislative acts** which are being **challenged for being repugnant to the constitution**) &
- Non-constitutional situation (Gifted by the 1987 Constitution, courts have the power to determine **grave abuse of discretion by any government branch or instrumentality**).

Article VIII, Section 1 – Judicial power includes the *duty of the courts of justice to settle actual controversies involving rights which are legally demandable and enforceable, and to determine whether or not there has been a grave abuse of discretion amounting to lack or excess in jurisdiction on the part of any branch or instrumentality of the government.*

Two requirements for actual case or controversy, a necessary pre-requisite for judicial review, exists:

- Requirements of standing** – for the petitioners to lodge the case
- Ripeness** – controversy for adjudication

Exceptions on proceeding despite being ruled as moot, as stated in David v. Macapagal-Arroyo:

- Grave violation to the constitution
- The exceptional character of the situation and paramount public interest is involved.
- Constitutional issue raised requires formulation of controlling principles to guide the bench, bar, and public

4. Case is capable of repetition yet evading review.

ISSUE 2

Main - Procedural	Whether or not parties have legal standing and capacity to sue.	Yes for Atty. Paa No for KAPIT and PNTOA
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
- Atty. Pua – constrained to pay fines with penalties, thus risk of direct injury from City of Manila NCAP ordinance. - KAPIT – representative of members who are public operators and drivers of utility vehicles.		ON KAPIT: failed to establish identity of members or present authority. Neither do they have certificates of incorporation which show legal capacity to sue.
RULING and RATIO DECIDENDI:		
Only Atty. Pua has legal standing to sue/continue with his petition. On KAPIT - The Court ruled that other locus standi (mentioned above) were insufficient. - RESPONDENTS: Still have legal capacity to sue, as even if charters are revoked, it does not mean end of juridical personality of their corporation (de facto) - Filing case for stakeholders, private, operators, motorists, and general public. - Another exception exists: third party standing - The Court ruled that they lacked third-party standing as they failed to identify their members and demonstrate that a third party wanted them to sue on their behalf. On PASANG MASDA and ACTO - Associations are not registered with the Securities and Exchange Commission. Thus, no legal standing to sue with their petition.		
LEGAL BASIS		
Galicto v. President Aquino – Locus standi or legal standing is a personal and substantial interest in a case such that the party has sustained or will sustain direct injury as a result of the governmental act being challenged. Initiatives for Dialogue and Empowerment through Alternative Legal Services – court will only take cognizance of petitioned filed by those who have no personal or substantial interest in the act but raise “constitutional issues of critical significance”: - Taxpayers – illegal disbursement of funds or tax measure is unconstitutional - Voters – obvious interest in the election law in question - Concerned Citizens – transcendental importance, which must be settled early - Legislators – claim that official action complained of infringes their prerogatives as legislators Third-party standing – actions may be brought on behalf of third parties as long as: - Party bringing suit must have suffered “injury-in-fact” – gives them sufficiently concrete interest in the outcome of the dispute - Party must have close relation to the third party - There must exist some hindrance to the third party’s ability to protect their own interests.		

Side - Procedural ▾	Whether or not the petitioners’ direct resort to the Supreme Court is proper.	No ▾ for Atty. Paa
---------------------	---	--------------------

PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
Atty. Paa filed a petition directly to the Supreme court, claiming <i>transcendental importance</i> , affecting not only him but all motorists.	<i>None stated.</i>
RULING and RATIO DECIDENDI:	
The court was not persuaded – None of the exceptions was proven to be applicable to the case. Atty. Paa did not bother to show that he had exhausted his administrative remedies to contest the alleged violation. Thus, there is a violation of the doctrine of hierarchy of courts. The petition did not raise <i>purely</i> questions of law – wanted remedy to the fines he received. But, facts must be established first before the Court can definitely rule on legal question, Supreme Court is not a trier of facts, which should be resolved by lower courts that can receive evidence.	
LEGAL BASIS	
Samar II Electric Cooperative, Inc v. Seludo Jr – One must first avail of <i>all administrative processes</i> as a necessary pre-condition. Exceptions (in skipping hierarchy of courts) to such include: 1. Estoppel on the party invoking doctrine 2. Challenged administrative act is patently illegal, amounting to lack of jurisdiction 3. Unreasonable delay or official inaction that will prejudice complainant 4. Amount is so small to make the rule <i>impractical and oppressive</i> 5. Question involved is purely legal and will ultimately have to be decided by courts of justice 6. Judicial intervention is urgent 7. Application of doctrine may cause great, irreparable damage 8. Controverted acts violate due process 9. Issue of non-exhaustion of administrative remedies are rendered <i>moot</i> 10. No other plan, speedy, adequate remedy 11. Strong public interest is involved 12. Quo warranto (public officer) proceedings. Gios-Samar, Inc. v. Department of Transportation and Communications • Failure to comply with the hierarchy of courts is sufficient dismissal of the petition.	

Side - Procedural ▾	Whether or not petitioner KAPIT committed forum shopping in violation of Rule 7, Section 5 of the 2019 Amendments to the 1997 Rules of Civil Procedure	No ▾ for KAPIT Yes ▾ for PNTOA
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:	
PNTOA – asserted that there is no identity of parties and relief sought. Respondents were the Manila Traffic and Parking Bureau, and the Manila Traffic Adjudication Board – both parties are not in this present petition.		
RULING and RATIO DECIDENDI:		
KAPIT did not commit forum shopping. Malcolm Law Officers was the petitioner in the RTC Makati case. KAPIT was declared unsuited, with the case proceeding without KAPIT. The RTC case also <i>did not implead MMDA as a respondent</i>, which only became a party through the Court's orders. Their respondents were the LGUs, not MMDA NCAP.		

PNTOA, et. al. are guilty of forum shopping. There is an identity of interest between the parties of City of Manila and MTPB & MTAB, with differences being *merely nominal* (the names are the only difference). There is also an identity of issues between the RTC Manila case and PNTOA – Manila's NCAP ordinance, which the petitioners wish to get rid of. Even if they disclosed that they *knew* of the case, mere disclosure that it was pending DOES NOT preclude it from forum-shopping.

LEGAL BASIS

Forum Shopping – when a party avails of several judicial remedies in courts, simultaneously or successively, all substantially founded on the same transactions and the same essential facts and circumstances, and all raising substantially the same issues either pending in or already resolved adversely by some other court. Such are **grounds for dismissal**. In summary, elements are:

1. Identity of parties or at least such parties that represent the *same interests* in both actions
2. Identity of rights asserted and reliefs prayed for, the relief *founded on the same facts*
3. Any judgement rendered in one action will amount to *res judicata* in another action.

No substantive issues followed, as no petitions passed for judicial review.

CONCLUDING NOTE: “Our dismissal of the petitions should be taken to mean that the challenged framework (NCAP) is valid.... [it] is confined to the determination that petitioners failed to overcome threshold issues, and that the supersening adoption of a uniform regulatory framework (MMTC 2023) has rendered the Petitions moot.”

FINAL DECISION

WHEREFORE petitions for Certiorari and Prohibition are all dismissed for being moot and for failure to satisfy the requisites of judicial review.

TRO issues on August 30, 2022 against City of Manila, Quezon City, Valenzuela City, Paranaque City, Muntinlupa City, and the Land Transportation Office, and all parties acting for and on their behalf, are LIFTED.

SEPARATE OPINION/S

LEONEN, J,
dissenting/concurring

- **Concurs with decision, but says certain issues herein require more discussion, albeit preliminary (as the discourse sought is not relevant to the instant case)**
- **Judicial Review: YES, BUT ONLY IF** the NCAP Ordinances weren't superseded.
 - **Actual Case/Controversy: YES.** Petitioners' assertions that (1) their Rights to Procedural and Substantive Due Process (i.e. camcordered violations presumptively pin the blame on the registered owner of the car) were being violated (2) their Right to Privacy (i.e. processing of personal data by a private entity, QPAX) was being violated, and (3) LGUs infringed on the Power of Congress to apportion the jurisdiction of courts by giving the Traffic Adjudication Boards “exclusive jurisdiction” over camcordered traffic violations WOULD establish an actual case/controversy.
 - **Legal Standing: YES.** Petitioners are people whose livelihood and use of motor vehicles have been, and will be, directly affected by the NCAP.
 - **Constitutionality Invoked at Earliest Opportunity: YES.**
 - **Lis Mota: YES.** Constitutionality of the NCAP Ordinances (their validity and violations of Due Process and Right to Privacy) was the *lis mota*.

- **On the Right to Privacy**

- CONCERN:

- Atty. Paa raised concern on the City of Manila's public web portal, that the public are subject to unlawful exposure as anyone can have access to personal violation histories by entering a vehicle's license plate.
- Atty. Paa and KAPIT et al., argued that the LTO database was opened to the public without the consent of the vehicle owners.

- ARGUMENT:

- License plates are public identifiers that are required to be displayed at all times. Motorists have no reasonable expectation of privacy over them.
- Vehicle registration data are also excluded from the general restrictions of **Section 4(e), Data Privacy Act of 2012**, PROVIDED that the processing is "**necessary**" and that LTO is a statutorily mandated regulatory agency and LGUs are public authorities with delegated police powers.
- For the exception to apply, there is a **strict scrutiny analysis**, where government processing **must be necessary** "to accomplish the regulatory agencies' given mandate." Ergo:
 - (1) it is NECESSARY to achieve compelling State interest
 - (2) is the LEAST RESTRICTIVE means of protecting such interest, OR the means chosen is NARROWLY TAILORED to accomplish such interest
- **REQ. 1: YES.** NCAP seeks the protection of the general welfare of the people and improvement of public safety.
- **REQ. 2: YES.** Insofar as the LGUs and their private partner were made privy to LTO's database.

- CONCERN:

- Associate Justice Leonen expressed concern on **surveillance capitalism**, where digital infrastructures are utilized to aggregate human behavior and personal choices, turning individuals into "data objects" that can be monetized for commercial gain. There is also an indiscriminate buying and selling of personal and sensitive data with no regard for privacy.
 - **Standard "legitimate expectation of privacy" needs to be reconsidered** to protect individuals from unregulated state-corporate data aggregation.

- CONCERN:

- A.J. Leonen warns that **technical black-boxing** deprives citizens of their informational privacy. Since developers develop deep machine learning to increase its accuracy, the systems become more complicated and inscrutable. It becomes harder for an explanation that citizens' could easily understand why a specific decision was recommended.

- It strips citizens of control over who analyzes or processes their movements.
- Considering that the detection is automated and captured by machine-learning cameras, citizens argue they are not able to be immediately notified in order to have the opportunity to contest it at the time it was recorded.
- They were never made aware that a private contractor (QPAX) was processing their personal and locational data and not LTO.

○ PROPOSAL:

- A.J. Leonen points out the **current two-fold test** in determining one's entitlement to the Right to Privacy:
 - (1) **Subjective Test:** one must have an actual or legitimate expectation of privacy over a certain matter
 - (2) **Objective Test:** one's expectation of privacy must be one that society is prepared to accept as objectively reasonable
- He then **proposed a third balancing test** to address this:
 - (1) developer's proprietary trade secrets,
 - (2) individual explainability and data control, and
 - (3) government cybersecurity needs
- Dun and Bradstreet Austria Case and EU AI Act
 - On a case-by-case basis, courts should balance individuals' rights in cases of Automated Decision Making (explainability of AI to decisions involving people) and Right to Non-Disclosure of Trade Secret (corpo. security)

- NCAP system is characterized as a detection mechanism to apprehend violators, in addition to F2F apprehension. It **DOES NOT** violate any statute. It does not contradict provisions of R.A. No. 4136, which requires traffic enforcers to confiscate licenses of traffic violations. The authority of LGUs to regulate traffic is broad enough for them to adopt the NCAP system as it does not explicitly prohibit the use of alternative methods such as technological advancements and detection.

R.A. No. 4136: created the LTO (formerly Land Transportation Commission)

- Under this law, it is authorized to arrest traffic violators (Sec. 4[5]) and confiscate their driver's license (Sec. 29)

Local Government Code: "latest expression of the legislative will" provides LGUs wider scope within its jurisdiction

- Should prevail over the provisions of Section 62, R.A. No. 4136
- It is within power of respondent LGUs to adopt the NCAP system

- He argues that neither the assailed issuances are contrary to Act No. 3326
 - Assailed NCAP Ordinances are administrative in nature, therefore, beyond scope of Act No. 3326. Considering they are administrative sanctions and not criminal penalties, the act does not apply.

	Act. No. 3326: sets deadlines (statute of limitations, or periods of prescription) for filing of charges on violations of laws. If the government aims to prosecute a violator, they must do it within this period. ● On the Private Funding of Public Honoraria ○ A.J. Leonen disagrees with Valenzuela City's Ordinance No. 918 Sec. 144(5), where the budget for the monthly honoraria of LGU's PUBLIC traffic adjudication should be funded by a PRIVATE sector partner. ○ Sourcing honoraria from private sector partners is a constitutionally questionable practice. It is a system which contravenes existing statues, particularly provisions of R.A. No. 6713 and 3019. ○ As these private companies profit from these traffic violations, allowing them to pay public officials destroys the trust and confidence of the public. ○ When a private sector partner determines whether honoraria shall be given to a public official, the latter cannot be considered as independent of the private sector partner (they are bound to them). Justice Leonen agrees to DISMISS the petitions.
DIMAAMPAO, J, <i>dissenting/concurring</i>	Concurs with the <i>ponencia</i> in: ● Permitting respondent LGUs (City of Manila, Muntinlupa City, Paranaque City, Quezon City, Valenzuela City) to implement NCAP through their respective ordinances Dissents in: ● Rendering of the petitions as moot and academic ○ Argues that the NCAP ordinances are still being implemented ■ Respondent LGUs said that they would still continue to exercise their own respective traffic regulations along with NCAP regulations ● Dimaampao puts out three points why they should not be moot and academic: 1. There is no substantial alteration in the legal and factual terrains upon which the challenged ordinances once operated ■ The supervening event (Metro Manila Traffic Code of 2023) is still heavily anchored on Section 16 of the Local Government Code. Thus, the Court should still determine if LGUs validly exercised their autonomy and power in enacting NCAP. 2. Controversy surrounding NCAP Ordinances not moot as LGUs manifested they would be exercising their own delegated authorities which are consistent with the NCAP system. ■ Cities have already implemented NCAP – ensure that the TRO lifted only allows NCAP to be implemented <i>within the manner adopted by MMTC.</i> ■ Never a point in time where LGUs were stripped off their power to enact NCAP systems, or attempted to follow orders and <i>abolish</i> adoption thereof.

3. Countless Filipinos await the status of the validity of their fines incurred due to the implementation of NCAP.
 - 833,097 recorded traffic violations from Aug. 2022 to Apr. 2025
 - Declaring the issue moot would **trivialize the concerns of thousands of Filipinos who incurred fines.**
 - Should NCAP be declared constitutional, settlement of fines are required.
4. A justiciable issue exists (whether constitutional rights are infringed by NCAP), and the Court is thus duty-bound to resolve it
 - e.g. KAPIT's argument that the NCAP conflicts with prevailing laws such as Section 130(d) of the Local Government Code and Section 29 of Republic Act No. 4136 (Land Transportation and Traffic Code)
 - The question involved is purely legal and must be decided by the courts of justice
 - **THE ACTUAL CONTROVERSY:** The authority of LGU to enact an NCAP system, not the constitutionality of the NCAP system itself (*Javellana-core*).
 - All the requisites for judicial review have been satisfied by the petitioners (except for PASANG MASDA and ACTO since they were found to be unregistered with the Securities and Exchange Commission & committed forum shopping)
- Absence of requisites for judicial review
 - Contends that the **requisites of judicial review have been complied with.**
 - **Actual Case or Controversy (Constitutionality)**
 - **RIPENESS:** NCAP HAD ALREADY BEEN IMPLEMENTED (except in Muntinlupa City), as shown by Atty. Pua who paid fines provided under the NCAP Ordinance of Manila.
 - Doctrine of Exhaustion of Administrative Remedies: Petitioners used the proper procedural vehicles (petitions for certiorari and prohibition) to raise constitutional issues.
 - Is under exceptions of : question involved is purely legal, judicial intervention is urgent, and where acts violate due process.
 - **MOOTNESS:** THEY ARE NOT MOOT AND ACADEMIC.
 - Even if there is no relief provided, dissents on mootness as **it fills out certain exceptions:** (3) constitutional issue requires controlling principles and (4) capable of repetition yet evading review
 - **Locus Standi of Petitioners is satisfied.**
 - KAPIT et al. posit that their members have directly suffered from unjust NCAP regulations, and that the case is of transcendental importance; therefore, *locus standi* can be relaxed – it would have an immeasurable impact on public and formulation of traffic regulations not only in Metro Manila, but to the **entire country.**

- Atty. Paa asserts that he already suffered direct injury when he was compelled to pay PHP20,360 of NCAP violation fees without regard to his right to be informed and to be heard
- **Constitutional challenge was raised at the earliest opportunity**
 - Constitutional issue was raised at the first instance (directly filed to the Supreme Court)
- **Constitutionality is the lis mota of the case**
 - Petitioners asserted that NCAP ordinances are legally infirm for contravening the Constitution and several laws
- Direct recourse to courts *did not* violate doctrine of hierarchy of courts.
 - The claim is anchored on **NCAP ordinances which institute a system that violates fundamental rights found under Bill of Rights and, thus, breach national statutes.**
 - Hierarchy of courts can be skipped due to genuine issues of constitutionality, and that issues are of transcendental importance. Moreover, they are an act of a constitutional organ.
 - Issues cannot be properly resolved **without dealing with factual considerations.**
 - Brings up many cases, similar to the instant case, wherein the court enacted judicial review, skipping hierarchy of courts, and thus now, wants the court to rule on the substantive issues.

[Dimaampao's ruling on the substantive issues were not tackled as it is not pertinent to the topic – Judicial Review.]

TL;DR:

- Justice Dimaampao concurs with the implementation of NCAP. **However, he dissented with the Court's ruling that rendered the petitions moot.** He believes that the Court should have decided on the issues of constitutionality instead of dismissing the petitions on the grounds of mootness.
 - Basically, just because the procedural issues rendered the petitions moot does not mean that the court should have dismissed conducting judicial review on NCAP and the ordinances that promulgated it.
- Justice Dimaampao voted to PARTLY GRANT KAPIT 's and Atty. Paa's petitions
- Submitted that the court should:
 - DISMISS the petition of Philippine National Taxi Operators Association, Inc. v. City of Manila → found **guilty of forum shopping**
 - Declare as UNCONSTITUTIONAL the sentence *"For the purpose of this ordinance, the budget for the monthly honoraria shall come from the private sector partner"* (Par. 5, Valenzuela City Ordinance No. 918, s. 2021) → **contrary to public policy**
 - DISMISS the KAPIT and Atty. Paa petitions for want of merit, except as to the declaration of unconstitutionality
 - LIFT the TRO on MMDA Resolution No. 16-01

DIGEST MAKER: Legaspi, Bea Allison

White Light Corporation v. City of Manila (2009)

Topic Subtopic	Judicial Review Requisites of Judicial Review	GR No. & Ponente	G.R. No. 122846, J. Tinag
Petitioner/s	White Light Corporation, Titanium Corporation and Sta. Mesa Tourist and Development Corporation	Respondent/s	City of Manila (represented by Mayor Alfredo S. Lim)
Doctrine	The general rules on standing admit of several exceptions such as the overbreadth doctrine, taxpayer suits, third party standing and, especially in the Philippines, the doctrine of transcendental importance.		

FACTS

3 Dec 1992: Mayor Lim (Manila) signed into law Manila City Ordinance No. 7774 which prohibits short-time admission, short-time admission rates, and wash-up rate schemes in motels, inns, hotels, lodging houses, pension houses, and similar establishments.

15 Dec 1992: Malate Tourist and Dev't Corporation (MTDC) filed a complaint for declaratory relief with prayer for a writ of preliminary injunction and/or a TRO with the RTC of Manila = praying to declare ordinance as invalid and unconstitutional

21 Dec 1992: Petitioners (owned by Anito Group of Companies which owns and operates hotels/motels in MM) filed a motion to intervene which was granted; 23 Dec: MTDC moved to withdraw

20 Oct 1993: RTC declared ordinance null and void

In the Court of Appeals, CA reversed RTC decision and affirmed constitutionality - (1) ord did not violate right to privacy as it only penalizes owners/operators; (2) limitless reach of police power is constrained by having a lawful object (which is "curbing immoral activities"); (3) adverse effect on establishments is justified by the well-being of its constituents

= Petitioners came to SC via petition for review on certiorari

ISSUE/S**ISSUE 1**

Main - Procedural ▾	Whether or Not the petitioners (WLC, TC, SMTDC) have the requisite standing to plead for protection of their patrons' equal protection rights	Yes ▾
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
- As owners of establishments offering "wash-up" rates, their business is being unlawfully interfered with - ALSO: Equal protection rights of their clients are being interfered with		-
RULING and RATIO DECIDENDI:		
1. Standing = ability of a party to demonstrate to the court sufficient connection to and harm from the law or action challenged - BUT has exceptions including: (1) overbreadth doctrine, (2) taxpayer suits, (3) third party standing, (4) transcendental importance a. In this case, (3) third party standing and (1) overbreadth are appropriate 2. 3 criteria for third party standing (<i>Powers v. Ohio</i>, <i>Griswold v. Connecticut</i>, <i>Craig v. Boren</i>): a. Litigant must have suffered an injury-in-fact = giving them a sufficient concrete interest in the outcome i. Applicable here: They rely on patronage of their customers for continued viability, threatened by the ordinance b. Litigant must have close relation to the third party		

- c. There must exist some hindrance to the third party's ability to protect his or her own interests
 - i. Applicable here: Relative silence on constitutional litigation in the Philippines = hindrance for customers to bring suit (unlike ACLU in the US)
- 3. Even if petitioners do not have a relationship with their patrons (criteria #2), the overbreadth doctrine is applicable
 - a. Challengers to gov't action are in effect permitted to raise the rights of third parties
 - b. Applied to statutes infringing on freedom of speech - when the statute needlessly restrains even constitutionally guaranteed rights
 - i. Here: Petitioners claim that there is a sweeping intrusion into their rights to liberty = hence, ordinance suffers from overbreadth

LEGAL BASES

Griswold v. Connecticut: SCOTUS held physicians had standing to challenge a reproductive health statute penalizing them as accessories as well as to plead the constitutional protections available to their patients

Craig v. Boren: Licensed vendor has standing to EPC of a male customer challenging a statutory scheme prohibiting the sale of beer to males under 21 and females under 18

ISSUE 2

Main - Substantive ▾	Whether or Not the Manila City Ordinance No 7774 infringes on the constitutional right of the petitioners' clients	Yes ▾
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
- Violates right to privacy and freedom of movement - Invalid exercise of police power - Unreasonable and oppressive interference in their business		- Ordinance is a valid exercise of police power pursuant to Sec 458 (4) (iv) of the Local Gov't Code which allows cities, among other LCGUs, the power to regulate the establishment, operation, and maintenance of [...] hotels, etc
RULING and RATIO DECIDENDI:		
1. Similar cases were City of Manila and Ermita-Malate = 3 cases have regulation due to public morals as a common bread - test of a valid ordinance is established: For an ordinance to be valid, it must a. Not contravene the Constitution or any statute b. Must not be unfair or oppressive c. Must not be partial or discriminatory d. Must not prohibit but may regulate trade e. Must be general and consistent with public policy f. Must not be unreasonable 2. This ordinance prohibits 2 practices: wash rate admissions + renting out a room more than twice a day - goal is to minimize/eliminate use of establishments for illicit sex, prostitution, drug use, etc = goals fall within ambit of police power, but the MEANS for achieving them must align with the Constitution; Courts decide that based on rigorous legal standards 3. "Due Process" is guaranteed by Sec 1, Art III of Constitution, but otherwise evades a precise definition; interpreted as imposing "procedural due process" (procedures gov't must follow before depriving a person) and "substantive due process" (gov't must have sufficient justification); latter has been more rigorously studied due to expansion of fundamental freedoms a. Footnote 4 test (<i>US v. Carolene Products</i>): acknowledged judiciary defers to legislature unless there is discrimination against a "discrete and insular" minority or infringement of a fundamental right; along with other US cases (<i>Craig v. Boren</i>, <i>Reed v. Reed</i>), 3 standards of jud rev were established: (1) strict scrutiny (laws dealing w/ freedom of the mind), (2) rational basis (econ legislation, most deferential standard), (3) heightened or immediate scrutiny (classifications based on gender and legitimacy)		

4. Because we recognize the capacity of the petitioners to invoke the constitutional rights of their patrons, we use strict scrutiny to test validity of laws dealing w/ regulation of fundamental rights - yes, the rights may seem "trivial" but the Bill of Rights still shelters fundamental freedoms as part of their liberty
 - a. How does it restrict liberty? Liberty is broad in definition (*City of Manila v. Laguio Jr, Roth v. Board of Regents, Morfe v. Mutuc*)
 - i. Primary reason behind the ordinance is to stop sexual behavior - legitimate sexual behavior among consenting married or single adults is constitutionally protected
 - ii. Other legitimate activities would be impaired - there are legitimate uses to rent out a room for a short time (e.g. families, in-transit passengers)
5. Constitutional requisite as a police power measure: (1) Are the means reasonably necessary for the purpose, and are they not unduly oppressive of private rights? (2) Are there no other alternatives for the accomplishment of the purpose? (3) Is there a reasonable relation between the goals and the means?
 - a. Absent these requisites, police measure is struck down (*Morfe v. Mutuc*: exercise of police power is subject to judicial review)
 - b. Here: (1) Ordinance makes no classification of places of lodging, deeming them all susceptible to illicit patronage, (2) Manila will have urban decay and vices are common problems - the solution is not to prevent legit businesses from offering a legit product but by offering incentives for new businesses, (3) behavior the ordinance seeks to stop is already prohibited, less intrusive measures are better
 - c. Ordinance can also easily be circumvented by paying the whole rate, and drug dealers/prostitutes can just charge their clients extra for the rent

LEGAL BASES

Sec 1, Art III of Constitution: No person shall be deprived of life, liberty, or property without due process of law, nor shall any person be denied the equal protection of the laws.

Sec 458 (4) (iv) of Local Gov't Code: [To] regulate the establishment, operation and maintenance of cafes, restaurants, beerhouses, hotels, motels, inns, pension houses, lodging houses and other similar establishments, including tourist guides and transports.

City of Manila v. Laguio Jr: Sought a blanket ban on motels, inns, and similar establishments in Ermita-Malate area = Court affirmed nullification of city ordinance

Ermita-Malate Hotel and Motel Operations Associations, Inc. v. Hon. City Mayor of Manila: City ordinance requiring patrons to fill up a prescribed form stating personal information before being admitted to a mote, hotel, lodging house = upheld, goal was to minimize practices deemed harmful to public morals

FINAL DECISION

WHEREFORE, the Petition is GRANTED. The Decision of the Court of Appeals is REVERSED, and the Decision of the Regional Trial Court of Manila, Branch 9, is REINSTATED. Ordinance No. 7774 is hereby declared UNCONSTITUTIONAL. No pronouncement as to costs.
SO ORDERED.

DIGEST MAKER: Yasmine Yañez

PACU v. Secretary of Education (1955)

Topic Subtopic	Requisites of Judicial Review Prematurity	GR No. & Ponente	GR No.: L-5279 Bengzon, J
Petitioner/s	Philippine Assoc. Of Colleges and Universities	Respondent/s	Secretary of Education and the Board of Textbooks
Doctrine	Ripeness of an issue is dependent on an actual justiciable controversy or case, where there must be injuries on one party		

FACTS

Petitioning colleges and universities request that Act. No. 2706, as amended by Act No. 3075 and Commonwealth Act No. 180, be declared unconstitutional because:

- They deprive owners of schools and colleges; they deprive teachers and parents of liberty and property without due process of law
- Deprive parents of their natural right and duty to rear children for civic efficiency
- Their provisions conferring on the Sec of Education unlimited power and discretion to prescribe rules and standards constitute an unlawful delegation of legislative power

The Government's legal representative says:

- Matter constitutes no justiciable controversy
- Petitioners are in estoppel to challenge
- The acts are constitutionally valid

Act No. 2706 - "An Act making the inspection and recognition of private schools and colleges obligatory for the Secretary of Public Instruction"

Court is reluctant to consider petitioner's demand for avoidance of the law as petitioners suffered no wrong, as asserted by respondents

Sol Gen points out that none of petitioners has cause to present this issue

- They are operating by virtue of the permits they have
- They do not assert that the Educ Sec has threatened to revoke their permits
- Suffered no wrong under the terms of the law
- Need no relief in the form they now seek to obtain

Act No 2706 has been followed by the Department of Education for the past 37 years to regulate all private schools in the country without protest

Petitioners contend that the right of a citizen to own and operate a school is guaranteed by the Constitution

- Any law requiring amounts to censorship of previous governmental approval or permit, before such person could exercise said right, amounts to censorship of previous restraint

ISSUE/S**ISSUE 1**

Main - Substantive ▾	Whether or Not the petitioners can validly assail the constitutionality of the statutes	No ▾
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
as the legislature has not fixed the standards, "the provision is extremely vague, indefinite and uncertain" — the constitutionality is objectionable		Petitioners do not show how these standards have injured any of them or interfered with their operation. Wherefore, no reason exists for them to assail the validity of the power nor the exercise of the power by the Secretary of Education.
RULING and RATIO DECIDENDI:		
Unless a constitutional point is specifically raised, insisted upon and adequately argued, the court will not consider it. The case at hand is premature There is no justiciable controversy, or unavoidable necessity of deciding the constitutional questions, in this case. Petitioners failed to show that they are injured by the operation of the law or require protection from actual inference. • The petitioners suffered no wrong (nor allege any) from the enforcement of the criticized statute. Naturally they need need no relief in the form they now seek to obtain • None of petitioners has cause to present the issue, because all of them have permits to operate and are actually operating by virtue of their permits. Petitioners do not assert that the respondent Secretary of Education has threatened to revoke their permits. ◦ Mere apprehension that the Secretary of Education might under the law withdraw the permit of one of petitioners does not constitute a justiciable controversy - it is only hypothetical Petitioners do not show how the standards set by the Secretary of Education have injured any of them or interfered with their operation, hence they cannot assail validity. The constitutionality of a statute will be passed on only if it is directly and necessarily involved in a justiciable controversy and is essential to the protection of the rights of the parties concerned • Judicial power is limited to the decision of actual cases and controversies. not sufficient that one has merely a general to invoke the judicial power to determine the validity of executive or legislative action, he must show that he has sustained or is interest common to all members of the public		
LEGAL BASES		

ISSUE 2:

Main - Substantive	Whether or Not the statutes are unconstitutional	No
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
1. The requirement for school owners to secure a permit from the Secretary of Education before opening a school deprives them of liberty and property 2. Conferring on the Secretary of Education unlimited power and discretion to prescribe rules and standards constitute an unlawful delegation of legislative power 3. The act leaves everything to the uncontrolled discretion of the Secretary of Education and his department. Law allows them to fix standards, hence constitutionally objectionable. 4. The power of the board is censorship in “its baldest form”		
RULING and RATIO DECIDENDI:		
The statutes are NOT Unconstitutional (Response to 1st argument) The law was passed following the recommendation of an impartial examination of the local education system that legislation must be enacted to prohibit the opening of any school by an individual or organization without the permission of the Secretary of Public Instruction. This is a response to the problem that a majority of private schools were found to be money-making devices for the profit of those who organize and administer them. (Response to 2nd argument) The conferring of power on the Sec of Education is NOT an unlawful delegation of legislative power the Legislature did and could, validly rely upon the educational experience and training of those in charge of the Department of Education to ascertain and formulate minimum requirements of adequate instruction as the basis of government recognition of any private school “adequate and sufficient instruction” is sufficient as legislative standards to justify delegation of authority to regulate (Response to 3rd argument) The statute do not give the secretary complete control It gives power to inspect private schools, regulate activities, and give and revoke permits (Response to 4th argument) If censorship were true, it would be concerning since individual rights > police power. BUT no justiciable		

controversy has been presented. Court has not been informed that the Board on Textbooks has prohibited certain texts or that petitioners are in danger of losing substantial rights.

LEGAL BASES

FINAL DECISION

For all the foregoing considerations, reserving to the petitioners the right to institute in the proper court, and at the proper time, such actions as may call for decision of the issues herein presented by them, this petition for prohibition will be denied. So ordered.

DIGEST MAKER: Kim Salvador

Montesclaros v. COMELEC (2002)

Topic Subtopic	Requisites of Judicial Review: Actual Case or Controversy - Prematurity	GR No. & Ponente	G.R. No. 152295; Carpio, J.
Petitioner/s	Antoinette V.C. Montesclaros, et al.	Respondent/s	COMELEC et al.
Doctrine	The Court could not exercise the power of judicial review over proposed bills. There are no legally demandable and enforceable rights and duties arising from the proposed bill because it is not a law. It may only exercise judicial review after the bill was enacted and has become law, and not before it created rights. (LME)		

FACTS

Petitioners, who are 20 years old, filed a petition (for certiorari, prohibition, and mandamus with prayer for a temporary restraining order or preliminary injunction) to **prevent the postponement of the SK elections** scheduled on May 6, 2002 **and the reduction of the age requirement** for SK membership from 21 years old to a maximum of less than 18 years of age. They allege that the law disenfranchises them, preventing them from voting and being voted for in the SK elections.

Additionally, petitioners compel the respondents to hold the elections not later than July 15, 2002 and allow those who have turned more than 21 years old on May 6, 2002 to participate in the rescheduled elections, as well as to prevent the respondents from passing laws that would reduce the age requirement.

Timeline:

Dec. 4, 2001 - COMELEC resolutions to govern SK elections on May 6, 2002

Feb. 18, 2002 - petitioner demanded that the SK elections be held as scheduled.

Feb. 20, 2002 - COMELEC Chairman wrote letters to the heads of the legislative branch saying they can't hold both barangay elections and SK elections simultaneously and proposed to hold the Barangay elections in May 2002 and postpone the SK elections to November 2002

March 6, 2002 - Legislative passed bills postponing the SK elections

March 11, 2002

1. Bicameral Committee both recommended approval of the reconciled bill – SK and Barangay elections are reset to July 15, 2002 AND membership age in SK is lowered to at least 15 but less than 18 years of age
2. Petitioners filed the instant petition
3. Senate approved the consolidated bill

March 13, 2002 - HOR approved the consolidated bill

March 19, 2002 - President signed the approved bill into law

ISSUE/S

ISSUE 1

Main - Procedural ▾	1. Whether or Not the Court can exercise the power of judicial review - NO	No ▾
Side - Procedural ▾	1.1. Whether or Not there exists an actual justiciable controversy - NO	
Side - Procedural ▾	1.2. Whether or Not the petitioners have personal and substantial interest in maintaining this suit - NO	
Side - Substantive ▾	1.3. Whether or Not the law has any provision that is unconstitutional - NO	
Side - Substantive ▾	1.4. Whether or Not there was grave abuse of discretion on the part of the respondents - NO	

PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
• Postponement prevents them from voting and being voted for • Postponement would disqualify youths who will turn 21 y/o between the dates • Reduction of age would disqualify about 7 million youths • SK membership is a property right	N/A
RULING and RATIO DECIDENDI:	
<u>1. The Court can not exercise the power of judicial review</u> • The Court cannot direct COMELEC to allow over-aged voters. That would need a law; outside the Court's jurisdiction. • Declaring a bill constitutional or not would be an advisory opinion on a proposed act of Congress. The Court also has no power to dictate to Congress the object or subject of bills they should enact into law. That would violate the separation of powers.	
<u>1.1. There is no actual controversy requiring the exercise the power of judicial review</u> • With respect to the date, they were amenable to holding the elections on the date stated on the bill – July 15, 2002. There is therefore no actual case or controversy. • A proposed bill is not subject to judicial review because it is not a law. It creates no right and imposes no duty legally enforceable by the Court. It has no legal effect. Thus, it does not violate any constitutional right or duty. The court can only exercise the power of judicial review only after the law is enacted. There is therefore no actual case or controversy when it comes to constitutionality. ◦ Petition is premature, filed before the bill was enacted into law.	
<u>1.2. The petitioners have no personal and substantial interest</u> • Petitioners have no vested right to the permanence of the age requirement • With the passage of RA No. 9164, the right is limited only to those eligible on the date of the election ◦ No more personal and substantial interest if they don't qualify • SK membership is not a property right protected by the Constitution; it is a mere statutory right conferred by law. ◦ No one has vested right to any public service	
<u>1.3. The petition does not raise any constitutional issue</u> • At the time the petition was filed, the bill was not yet a law. • Constitutionality has not been properly raised in an appropriate action/petitioners did not assail the constitutionality once it was passed into a law.	
<u>1.4. Petitioners have not shown that the COMELEC acted illegally or with grave abuse of discretion in recommending to Congress the postponement of the SK elections</u> • COMELEC exercised its power and duty. ◦ Petitioners have no proof that there's a conspiracy ◦ The decision was made in good faith in accordance with its constitutional duties.	
LEGAL BASES	
1. Judicial Review Power of judicial review may be exercised in constitutional cases only if all of the following requisites are complied with: • Existence of actual case or controversy • Personal and substantial interest of party raising the question • Pleaded at the earliest opportunity • Constitutional question is the lis mota of the case	

Section 1, Article VIII of the 1987 Constitution

- Judicial power includes the duty of the courts of justice to settle actual controversies involving rights which are legally demandable and enforceable, and to determine whether or not there has been a grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the Government.

1.2 Substantive rights

Cornejo v. Gabriel

- Public office is not property within the sense of the constitutional guaranties of due process of law, but is a public trust or agency

1.4 Grave abuse of discretion

The 1987 Constitution imposes upon the COMELEC the duty of enforcing and administering all laws and regulations relative to the conduct of elections.

Pangkat Laguna v. COMELEC

- The "Comelec, as the government agency tasked with the enforcement and administration of elections laws, is entitled to the presumption of regularity of official acts with respect to the elections."

FINAL DECISION

WHEREFORE, the petition is **DISMISSED** for utter lack of merit.
SO ORDERED.

DIGEST MAKER: mIndp

Lozano v. Nograles (2009)

Topic Subtopic	Judicial Review Prematurity	GR No. & Ponente	GR No. 187883 Puno, CJ
Petitioner/s	Atty. Oliver Lozano and Atty. Evangeline Lozano-Endriano	Respondent/s	Speaker Prospero Nograles, Representative, Majority, House of Representatives
Doctrine	Judicial power extends only to actual cases and controversies .		

FACTS

- Two separate petitions: one from the Lozanos and another from Louis Biraogo.
- As concerned citizens and taxpayers, petitioners filed for the nullification of House Resolution No. 1109 → A Resolution Calling upon the Members of Congress to Convene for the Purpose of Considering Proposals to Amend or Revise the Constitution, Upon a ¾ vote of All Members of the Congress
- Petitions sought to trigger a justiciable controversy that would obtain a definitive interpretation of Section 1, Article XVII of the Consti.

ISSUE/S

ISSUE 1

Main - Procedural ▾	Whether or Not the petitions present an actual case ripe for judicial adjudication.		No ▾
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:	
N/A		N/A	
RULING and RATIO DECIDENDI:			
Petitions are dismissed. The Court’s power of review is limited to actual cases and controversies dealing with parties having adversely legal claims ..., and limited further to the constitutional question raised or the very <i>lis mota</i> presented. Two elements for an actual case or controversy are the ripeness of the case and the <i>locus standi</i> of the parties. Case-or-controversy • No advisory opinion: Under “case-or-controversy” requirement, the Court cannot decide “abstract, hypothetical, or contingent questions,” to avoid giving advisory opinion on legislative or executive action. • Ripeness: In PH jurisdiction, the issue of ripeness is generally treated in terms of actual injury to the plaintiff. An additional way to determine would be whether such action has already been performed by a branch of government before the court may step in. • Locus standi: An individual is determined to have standing on the case if he has (1) personally suffered some actual or threatened injury because of the allegedly illegal conduct, (2) the injury is fairly traceable to the challenged action, and (3) the injury is likely to be redressed by the remedy sought. The House Resolution is a mere call for a future convention. There is no actual convention, nor any proposed amendments as of the filing of the petitions. Hence, there is no actual act that would warrant intervention from the Court. Additionally, the petitioners have not shown elemental injury. There has been no disbursement nor allocation of any public funds that would involve an illegal disbursement of public funds derived from taxation. Transcendental importance is also not applicable as the House Resolution is not yet realized. As the case is not yet “ripe” and there is a lack of standing, there is no actual case or controversy, hence the lack of fitness for judicial review.			

LEGAL BASES

Angara v. Electoral Commission

- “Any attempt at abstraction could only lead to dialectics and barren legal questions and to sterile conclusions unrelated to actualities.”
- “[T]he judiciary does not pass upon questions of wisdom, justice or expediency of legislation.”

Tan v. Macapagal

- There is no room for judicial oversight for any proposed amendment still unacted on. The courts will only have jurisdiction once the proposal has been made concrete.

Section 1, Article VIII of the Consti

- Courts shall settle only “**actual** controversies”

Kilosbayan, Incorporated v. Guingona, Jr.,

- [C]ourts are neither free to decide all kinds of cases dumped into their laps nor are they free to open their doors to all parties or entities claiming a grievance.
- Liberality as to file on the basis of “transcendental importance” should not be abused as it would be ineffective if courts are to decide upon every case.

FINAL DECISION

IN VIEW WHEREOF, the petitions are dismissed.

SO ORDERED.

DIGEST MAKER: Legaspi, Bea Allison

Philippine Constitution Authority v. Philippine Government (2016)

Topic Subtopic	Judicial Review Requisites of Judicial Review: Actual Case or Controversy - Prematurity	GR No. & Ponente	G.R. Nos. 218406, 218761, 204355, 218407, 204354 & J. Carpio
Petitioner/s	218406: Philippine Constitution Association (PHILCONSA) 218761: Tanggulang Demokrasya (TAN DEM) Inc. 204355: Rev. Vicente Libradores Aquino, Rev. Mercedita S. Redoble, International Ministries for Perfection and Party Against Communism and Terrorism, Inc. 218407: Jacinto V. Paras 204354: Rev. Elly Velez Pamatong	Respondent/s	218406: Philippine Gov't 218761: Phil Gov't and MILF 204355: GPH Peace Panel Chief Negotiator (Marvic MVF Leonen - took no part) and Hon. Sec. Teresita Quintos-Deles, Pres Adviser on the Peace Process Hon. Paquito L. Ochoa, Exec Sec, members of the GPH Peace Panel 218407: Miriam Coronel Ferrer, Senen C. Bacani, Yasmin Busran-Lao, Mehol K. Sadain, Teresita Deles 204354: Gov't of the Republic of the Philippines Peace Panel on Bangsamoro
Doctrine	For a case to be considered ripe for adjudication, it is a prerequisite that an act had then been accomplished or performed by either branch of government before a court may interfere, and the petitioner must allege the existence of an immediate or threatened injury to himself as a result of the challenged action.		

FACTS

15 Sept 1993: Pres FVR issued EO 125 creating the Office of the Presidential Adviser on the Peace Process
 28 Feb 2001: Pres GMA issued EO 3 - amended EO 125 to reaffirm gov't commitment to achieve just and lasting peace through comprehensive peace process

- EO 3 = Gov't Peace Negotiating Panel held negotiations with MILF, led to preparation of Memorandum of Agreement on Ancestral Domain (MOA-AD) on 27 July 2008
- 14 Oct 2008: Court declared MOA-AD unconstitutional

PNoy: Gov't resumed peace negotiations with the MILF, Leonen became the chief peace negotiator with the MILF in July 2010 (replaced 7 Dec 2012 by Miriam Coronel-Ferrer)

15 Oct 2012: Preliminary peace agreement (FAB) was signed between gov't and MILF - FAB called for creation of an autonomous pol entity named Bangsamoro replacing ARMM, and after further negotiations, the Annexes and Addendum discussed Transitional Arrangements and Modalities; Revenue Generation and Wealth Sharing, Power Sharing, Normalization, and Bangsamoro Waters and Zones of Joint Cooperation

17 Dec 2012: PNoy issued EO 120 which constituted the Bangsamoro Transition Commission tasked to draft the Bangsamoro Basic Law and recommend proposed amendments to the 1987 Philippine Constitution to Congress/the people

10 Sept 2014: Draft of BBL (HB 4994) was presented by PNoy to the 16th Congress; 27 May 2015: Comm Report 747 passed HB 5811; 10 Aug 2015: Bangsamoro Basic Law revised version (SB 2984) was presented in the Senate BUT 16th Congress adjourned without passing it on 6 June 2016

Meanwhile, several petitions were filed with the Court assailing the Comprehensive Agreement on the Bangsamoro (CAB)'s constitutionality (including FAB and Annexes) - CAB was entered into between PH Gov't and MILK on 27 March 2014 and 12 October 2012

7 Nov 2016: PDuts issued EO 08 = expanded membership and functions of the BTC from 15 to 21 + provided for functions of the BTC including drafting proposals to be submitted to the OPres

ISSUE/S

ISSUE 1

Main - Substantive ▾	Whether or Not the CAB (including the FAB) is constitutional	No ▾
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
- CAB and FAB are unconstitutional for being similar to the void MOA-AD, which was		-

struck down for violating the constitutional provisions on constitutional amendments (due to <i>res judicata</i>)	
RULING and RATIO DECIDENDI:	
NOT RIPE FOR ADJUDICATION DUE TO NON-ENACTMENT OF BBL 1. Judicial review is limited to actual cases or controversies = must require a conflict of legal rights; Court can only decide the constitutionality of an act when an actual case between opposing parties is submitted for judicial determination 2. Ripeness = ripe when the act being challenged has had a direct adverse effect on the entity challenging it a. Prerequisite is (1) act had then been accomplished by either branch of gov't before a court may interfere (2) petitioner must show that he has sustained or is immediately in danger of sustaining some direct injury i. MOA-AD case had the same issue of ripeness BUT there was a justiciable controversy because (1) it did not require the passage of any statute to implement its provisions UNLIKE this case (2) the Exec branch assumed mandatory obligation to amend the Consti which usurped the sole discretionary power of Congress to propose amendments to the Consti (hence why it was unconstitutional due to <i>ultra vires</i> UNLIKE this case where there was no similar guarantee b. NOT RIPE because CAB and FAB require an enactment of the BBL for their implementation, Prov 1 (C) of the Annex on Transitional Arrangements and Modalities provides that the proposed BBL shall be submitted to the OPres and OPres shall submit proposed BBL to Congress as a legislative proposal = hence, it is fundamentally required for CAB to have a law and ratification process b/c CAB and FAB are merely preliminary framework of the proposed BBL c. EVEN IF THERE WAS A BILL EXISTING, it would not be subject to judicial review (<i>Montesclaros v. COMELEC</i>) because a bill is not a law, so it would be rendering an advisory opinion on a proposed act of Congress	
LEGAL BASES	
Prov 1(C) of Annex on Transitional Arrangements and Modalities: C. The Bangsamoro Basic Law The TC shall work on the drafting of the Bangsamoro Basic Law, in accordance with the provisions of the FAB. The proposed Basic Law shall be submitted to the Office of the President. The President shall submit the proposed Basic Law to Congress as a legislative proposal. The bill for the proposed Basic Law shall be certified as urgent by the President.	
FINAL DECISION	WHEREFORE, we DISMISS the petitions on the ground of prematurity. SO ORDERED.

DIGEST MAKER: PANTOJA, MA. SOFIA YSABEL J.

Atlas Fertilizer v. Secretary of DAR (1997)

Topic Subtopic	JUDICIAL REVIEW Prerequisites for Judicial Review: Actual Case or Controversy	GR No. & Ponente	G.R. 93100 PONENTE: Romero, J.
Petitioner/s	Atlas Fertilizer Corporation	Respondent/s	Hon. Secretary of the Dept. of Agrarian Reform
Doctrine	A constitutional challenge to a statute deemed moot and academic precludes the exercise of judicial review due to the lack of an actual controversy		

FACTS

- Atlas Fertilizer Corp questioned several provisions in **R.A. 6657 or Comprehensive Agrarian Reform Law (CARL)**, stating that they were unconstitutional
 - Section 3 extended agrarian reform to include aquaculture lands, even though Article XIII of the Constitution limits agrarian reform to only agricultural lands
 - Argued that aquaculture lands are more similar to industrial lands, and yet they are being treated in the same way as agricultural lands instead. → goes against equal protection of the laws
 - Provisions distort employment benefits in favor of aquaculture employees against other industrial workers → goes against Section 1 and 3, Article XIII of the Constitution on equality in economic and employment opportunities
 - Provisions deprive petitioner of its government-induced investments → goes against Article XIII of the Constitution mandating respect of enterprise and the right of enterprises to reasonable returns on investments
- They also questioned the constitutionality of Administrative Orders Nos. 8 and 10 issued by the Sec. of the Dept. of Agrarian Reform
- Previously, the constitutionality of the previously mentioned provisions were ruled on in the case of **Luz Farms, Inc. v. Secretary of Agrarian Reform**, which was centered on the provisions applying to land devoted for livestock, poultry, and swine.
 - Court ruled that livestock, poultry, and swine should be excluded from CARL because the use of land is only incidental and not the principal factor in productivity

February 20, 1996

- R.A. 7881 was approved by Congress wherein they amended the definitions of R.A. 6657 to no longer include fishponds and prawn farms in the coverage of CARL

R.A. 6657 or the CARL

- The law placed aquaculture under agriculture and exceeded the scope for agrarian reform, even though the two are very distinct in the eyes of the Constitution
 - Ex: definition of agricultural activity included raising of fish, definition of commercial farms included fish ponds and prawn ponds

ISSUE/S

ISSUE 1

Main - Substantive ▾	Whether or Not the above provisions are in violation of the Constitution, specifically in how it includes lands devoted to the aquaculture industry	UNDECIDED ▾
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:

• Luz Farms case ruled impliedly that lands devoted to fishing are not agricultural lands, therefore petitioners should be excluded from RA 6657. ◦ Administrative Orders Nos. 8 and 10 should be held unconstitutional because of the ruling in the Luz Farms case • Only 5% of the total investment for aquaculture and other related activities is in the form of land, so it cannot be classified as an agricultural activity • There are no farm workers and hence, no history of agrarian unrest. • RA 6657 or CARL violates the Constitution by treating aquaculture operations the same as agriculture operations • Intent of the Constitutional framers was to exclude “industrial” lands, a category that aquaculture is included in	
RULING and RATIO DECIDENDI:	
<i>The question is now moot and academic.</i> When Congress passed R.A. 7881, they amended CARL to no longer include fishponds and prawn farms in the coverage. The Court then concluded that the questions concerning the constitutionality of the provisions are now moot and academic.	
LEGAL BASES	

FINAL DECISION	WHEREFORE, the petition is hereby DISMISSED. SO ORDERED.
-----------------------	---

DIGEST MAKER: Marielle Odosis

Lacson v. Perez

Topic Subtopic	Judicial Review 1. Actual Case or Controversy - Mootness	GR No. & Ponente	G.R. No. 147780, G.R. No. 147781, G.R. No. 147799, G.R. No. 147810 Melo, J.
Petitioner/s	Panfilo Lacson et al.	Respondent/s	Secretary Hernando Perez et al.
Doctrine	When the subject in question of the petition has been extinguished or lifted, the petition is rendered moot and academic.		

FACTS

- May 1, 2001, President Macapagal Arroyo, issued Proclamation No. 38 declaring that there was a state of rebellion in the NCR due to an “angry and violent mob” that assaulted and attempted to break into Malacanang. General Order No. 1 was also issued directing the AFP and PNP to suppress the rebellion.
 - Warrantless arrests for alleged leaders and promoters of the rebellion were affected
- Four related petitions were filed, aggrieved by the warrantless arrests
 - Prohibition, injunction, mandamus and habeas corpus - Lacson, Aquino, Mancao
 - Mandamus and/or review of factual basis of the suspension of the writ of habeas corpus with a prayer for TRO - Defensor-Santiago
 - Prohibition and injunction with prayer for a writ of preliminary injunction and/or restraining order - Lumbao
 - Certiorari and prohibition - Laban ng Demokratikong Pilipino
 - Tldr - multiple petitions were filed consisting of prohibition, mandamus, restraining orders

ISSUE/S

ISSUE 1

Main - Procedural ▾	Whether or Not the instant petitions should be considered as moot and academic in relation to the warrantless arrests?	Yes ▾
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:	
RULING and RATIO DECIDENDI:		
Since President Macapagal-Arroyo has lifted the declaration of a “state of rebellion” (Proclamation No. 38), the Court has rendered the instant petitions <u>moot and academic</u>. Furthermore, in relation to the claim of the petitioners’ that the state of rebellion is being used by authorities to do warrantless arrests, the respondents’ Joint comment indicated that the Justice Department and police authorities declared intention to obtain regular warrants of arrests from the courts for all acts committed prior to and until May 1, 2001. With the statement, the petitioners’ apprehension must be laid to rest.		
LEGAL BASES		

ISSUE 2:

Main - Substantive ▾	Whether or Not the petitioners are justified in in their resort to extraordinary remedies?	No ▾
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:	
The petitioners are under imminent danger of being arrested without a warrant.		
RULING and RATIO DECIDENDI: <i>integrated the legal bases in the ratio decidendi</i>		
● Lacson, Defensor-Santiago, Lumbao ○ The contention of being under imminent danger does not justify their resort to remedies of mandamus and prohibition. <u>There are adequate remedies in the ordinary course of law</u> ■ They ask for a preliminary investigation under Rule 112 of the ROC where he may adduce evidence in his defense or submit to inquest proceedings ■ They may also be delivered to proper judicial authorities within the periods provided by Article 125 of the RPC. ■ They may also charge the arresting officer and file an action based on Article 32 of the Civil Code ○ Therefore, mandamus and prohibition is improper at this time. ● Lacson, Aquino, Macao ○ Their prayer (desist the appropriate courts from arraigning and proceeding with the trial of the case) was <u>premature</u> considering there are no complaints or charges have been filed against any of the petitioners for a crime ○ With regards to the hold departure - they are <u>not assailing the validity of the subject</u> hold departures in their petition nor express any intention to leave the country ○ Writ of habeas corpus - the writ is not called for since the purpose of the writ is to relieve from unlawful restraint (Ngaya-an v. Balweg), which is speculative on the part of the petitioners ● Defensor-Santiago ○ Mandamus - She has not shown that she is in imminent danger of being arrested without a warrant and authorities had already clarified that the petitioner will not be arrested without a warrant.		
LEGAL BASES		

ISSUE 3:

Main - Substantive ▾	Whether or Not the declaration of the state of rebellion is violative on the doctrine of separation of powers?	No ▾
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:	
It is an encroachment on the domain of the judiciary and that the declaration of a state of rebellion cannot be an exception to the general rule on the allocation of powers		
RULING and RATIO DECIDENDI: <i>integrated the legal bases in the ratio decidendi</i>		
- Section 18, Article VII of the Constitution expressly provides that the President, as the commander in chief, may call out such armed forces to prevent or suppress lawless violence, invasion, and rebellion. - The court in its opinion in <i>IBP vs. Zamora</i>, the factual calling out of armed forces is not easily quantifiable		

since it consists of several other factors. Pertinent information might not be available to the courts and the evidence that the President might base his decision might be a nature not constituting technical proof

- The courts may look into the factual basis but this is no longer feasible since Proc. 38 has been lifted.

LEGAL BASES

ISSUE 4:

Main - Substantive ▾	Whether or Not Laban ng Demokratikong Pilipino is a real-party-in-interest?	No ▾
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:	
RULING and RATIO DECIDENDI:		
• The petitioner has not demonstrated any injury to itself which would justify resort to the Court. It is a juridical person not subject to arrest, therefore, cannot claim to be threatened by a warrantless arrest. • It cannot also alleged warrantless arrests to its members since every action must be brought in the name of the party whose legal right has been invaded.		
LEGAL BASES		
KMU Labor Center v. Garcia Jr. - a party must show a personal stake in the outcome of the case or an injury to himself that can be redressed by a favorable decision so as to warrant an invocation of the court's jurisdiction and to justify the exercise of the court's remedial powers in his behalf		

FINAL DECISION	WHEREFORE, premises considered, the petitions are hereby DISMISSED. However, in G.R. No. 147780, 147781, and 147799, respondents, consistent and congruent with their undertaking earlier adverted to, together with their agents, representatives, and all persons acting for and in their behalf, are hereby enjoined from arresting petitioners therein without the required judicial warrant for all acts committed in relation to or in connection with the May 1, 2001 siege of Malacañang.
----------------	--

SEPARATE OPINION/S

KAPUNAN, J, <i>dissenting</i>	• The Constitution does not require the President to make a declaration of a “state of rebellion” since it has no legal significance, vague, amorphous, and does not give more power other than calling out armed forces. ○ If a law or rule may seem fair but when applied it is oppressive, it is within the prohibition of the Constitution. ○ Sec. 18 Art VIII did not provide the authorization of the President to make warrantless arrests. ○ A declaration of a “state of rebellion” only gives notice to the nation that it exists. It does not justify any deviation from the Constitutional proscription
---	--

	against unreasonable searches and seizures. • Warrantless arrests are only justified if the police officer had facts and circumstances before which would constitute adequate basis for a finding probable cause of the commission of an offense and that the person is arrested is probably committing the offense ◦ There must have been an overt act to constitutive of rebellion taking place in the presence of the officer ◦ The bill of rights acts as a safeguard against warrantless arrests • Considering the transcendental importance and urgency of the issues raised in these cases, it is imperative for the Court to rule now. ◦ Petitioners considered the last bulwark of democracy.
FELICIANO, J, <i>dissenting</i>	• The lifting of Proc. 38 should not render moot and academic the very serious and precedented issues at hand since it has grave implications that related to human rights and civil liberties of the people. ◦ A resolution is necessary considering individuals in Metro Manila are being arrested without warrants of arrest ◦ These illegal and unconstitutional acts are capable of being repeated by the respondents. • Nowhere in the Constitution which grants the executive the power to declare a state of rebellion. This is a deviation from the concise and plain provisions. ◦ The implementation of warrantless arrests premised in the declaration of a “state of rebellion” is constitutional and contrary to existing laws. Mere declaration of a state of rebellion could not bring about the suspension of the operation of the Constitution or of the writ of habeas corpus • Even in the Revised Rules of Criminal Procedure, warrantless arrests are not justified ◦ Petitioners cannot be considered to have committed, is actually committing, or is attempting to commit an offense. None of them participated during the riot • Based on the elements of the crime of rebellion in Art. 34 of the RPC, two elements of the crime of rebellion are lacking ◦ (1) There is no taking of arms against the government. Rocks, stones, sticks were used to deter the police forces. It was merely a riot and not an organized uprising ◦ (2) the Estrada loyalists did neither (a) to remove from the allegiance to the government or its laws (1) the territory of the Philippines or any part thereof; or (2) any part of land, naval or other armed forces; nor (b) to deprive the Chief Executive or Congress, wholly or partially, of any of their powers or prerogatives. ■ The Estrada loyalists mainly demanded that their president should not be incarcerated.

DIGEST MAKER: mIndp | Thessa Montojo

SANLAKAS V. EXECUTIVE SECRETARY (2004)

Topic Subtopic	Judicial Review Mootness	GR No. & Ponente	GR No. 159085 Tinga, J.
Petitioner/s	SANLAKAS, represented by REP. J.V. Bautista, and PARTIDO NG MANGGAGAWA, represented by REP. RENATO MAGTUBO	Respondent/s	EXECUTIVE SECRETARY ANGELO REYES, GENERAL NARCISO ABAYA, DIR. GEN. HERMOGENES EBDANE
Doctrine	Mootness is when an issue ceases to present a justiciable controversy because of supervening events, lending no practical use to determination of the issue. Court may still decide cases otherwise moot if: - There is a grave violation of the Constitution. - The situation has an exceptional character and the paramount public interest is involved. - The Constitutional issue raised requires formulation of controlling principles to guide the bench, the bar, and the public. Case is capable of repetition yet evading review.		

FACTS

- July 27, 2003
 - Around 300 junior officers and enlisted men of the AFP, armed with ammunition and explosives, stormed into Oakwood Premiere apartments in Makati → bewailing the corruption in the AFP, they demanded the President (GMA), Secretary of Defense, PNP Chief to resign (Oakwood Occupation)
 - President then issued Proclamation No. 427 and General Order No. 4, both declaring a state of rebellion and calling out the AFP to suppress the rebellion
 - Proclamation no. 427 - Pres. confirms the existence of an actual and ongoing rebellion → declaring a state of rebellion → issuing Gen Order no. 4, to call out the AFP and PNP to suppress such rebellion
 - Gen. Order no. 4 - invoking her power as the president and as the commander-in-chief of all armed forces in the PH → call upon AFP and PNP to suppress the rebellion
 - Oakwood occupation ended, soldiers returned to barracks
- Aug. 1, 2003
 - Pres. lifted the declaration of a state of rebellion through Proclamation No. 435

In the interim, several petitions were filed contending the ff:

- Section 18, Article VII of the Constitution does not require the declaration of a state of rebellion to call out the armed forces
- Proclamation is a circumvention of the report requirement under the Sec. 18, Art. VII
- Presidential issuances cannot be construed as an exercise of emergency powers as Congress has not delegated any such power to the President
- Declaration of a state of rebellion is a “superfluity” → declaration is actually an exercise of emergency powers → usurpation of Congress

ISSUE/S

ISSUE 1

Main - Procedural ▾	Whether or Not the petitions must be granted.	No ▾
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:	
RULING and RATIO DECIDENDI:		
The issuance of Proclamation No. 435, declaring that the state of rebellion has ceased to exist, has rendered the		

case **moot**. Petitions are then **DENIED**.

Nevertheless, courts will decide a question, otherwise moot, if it is "capable of repetition yet evading review."

- Only members of the Congress have standing.
- The President can declare a state of rebellion by invoking the powers vested to her by the Constitution (executive powers and commander-in-chief powers) as opposed to delegated to her by the legislative
- In calling out power, the only criterion is that "whenever it becomes necessary," the President may call the armed forces 'to prevent or suppress lawless violence, invasion or rebellion.

LEGAL BASES

Lacson v. Perez

- President declared a state of rebellion and called upon AFP and PNP to suppress rebellion → petitions were filed assailing validity of the declaration → declaration was lifted → case rendered moot and precluded the Court from addressing the constitutionality of such declaration

ISSUE 2:

Side - Substantive ▾	Whether or Not the petitioners possess <i>locus standi</i> (standing) to challenge the presidential issuances.	No ▾
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
The declaration of a state of rebellion is tantamount to an exercise of Congress' emergency powers, thus impairing the legislative powers of lawmakers. The declaration also aims to avoid congressional scrutiny into the President's exercise of martial law.		
RULING and RATIO DECIDENDI:		
Only petitioners that are Members of Congress (Rep. Suplico, Sec. Pimentel) have standing to challenge issuances. The rest of the petitioners have no standing. They cannot claim to have standing as citizens and taxpayers as there is no actual injury alleged or illegal disbursement in the case.		
LEGAL BASES		
Philippine Constitution Association v. Enriquez - Court decided that any act of the Executive which injures the Congress can be questioned by a member of Congress.		
Lacson v. Perez - Petitioner has not demonstrated any injury to itself → it cannot claim to be threatened by a warrantless arrest - At best, the petition may be considered an action for declaratory relief by claiming that freedom of speech is hindered by the declaration of a "state of rebellion" - SC has no jurisdiction in the first instance of such declaratory relief		
Kilosbayan v. Morato - The status of petitioners as "people's organizations" would not vest them with the requisite personality to question the validity of the presidential issuances		

- Only real parties in interest may invoke judicial power

Others

- **Legal standing/locus standi**
 - personal and substantial interest in the case such that the party has sustained or will sustain direct injury as a result of the governmental act that is being challenged
- **As a taxpayer**
 - A taxpayer may bring suit where the act complained of directly involves the illegal disbursement of public funds derived from taxation.
- **As a citizen**
 - he has personally suffered some actual or threatened injury as a result of the allegedly illegal conduct of the government;
 - the injury is fairly traceable to the challenged action;
 - the injury is likely to be redressed by a favorable action

ISSUE 3:

Side - Substantive ▾	Whether or Not the President possesses the power to declare a state of rebellion and what are its effects	Yes ▾
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:	
RULING and RATIO DECIDENDI:		
Yes. The authority to declare a state of rebellion springs from the powers as chief executive and as a Commander-in-Chief. These are purely executive powers from Article VII, as opposed to the delegated legislative powers from Article VI. The points raised by the petitioners are answered below: • The declaration of a state of rebellion mostly gives notice to the nation → devoid of legal significance • As the dissenters in Lacson correctly pointed out, the mere declaration of a state of rebellion cannot diminish or violate constitutionally protected rights ◦ The call to suppress the rebellion is actually with due regard to constitutional rights • Apprehensions that the military and police authorities may resort to warrantless arrests are unfounded. ◦ A person may be subjected to a warrantless arrest for the crime of rebellion whether or not the President has declared a state of rebellion, so long as its requisites are present. • The argument that the declaration of a state of rebellion is a declaration of martial law, and thus circumvents the report requirement, is unfounded. ◦ There is no illustration that the President has attempted or has exercised martial law powers.		
LEGAL BASES		
Art. VII, Sec. 1 - The executive power shall be vested in the President of the Philippines. Art. VII, Sec. 18 - The President shall be the Commander-in-Chief of all armed forces of the Philippines and whenever it becomes necessary, <u>he may call out such armed forces to prevent or suppress lawless violence, invasion or rebellion</u>. In case of invasion or rebellion, when the public safety requires it, he may, for a period not		

exceeding sixty days, suspend the privilege of the writ of habeas corpus or place the Philippines or any part thereof under martial law. Within forty-eight hours from the proclamation of martial law or the suspension of the privilege of the writ of habeas corpus, the President shall submit a report in person or in writing to the Congress. The Congress, voting jointly, by a vote of at least a majority of all its Members in regular or special session, may revoke such proclamation or suspension, which revocation shall not be set aside by the President. Xxx

Art. VI, Sec. 23 (2)

- In times of war or other national emergency, the Congress may, by law, authorize the President, for a limited period and subject to such restrictions as it may prescribe, to exercise powers necessary and proper to carry out a declared national policy. Unless sooner withdrawn by resolution of the Congress, such powers shall cease upon the next adjournment thereof.

US Consti history

- Commander-in-chief powers are broad enough and become more so if paired with executive power → gives the President the power to address threats which undermine the existence of the gov't or the integrity of the state

Marcos v. Manglapus

- Court ruled that the President's unstated residual powers are implied from the grant of executive power

FINAL DECISION

WHEREFORE, the petitions are hereby DISMISSED.
SO ORDERED.

SEPARATE OPINION/S

PANGANIBAN, J, *dissenting*

The Petitions should be **dismissed** on the ground of mootness.

The first and fourth requisites in deciding constitutional law issues are absent in this case.

- 1st - Absence of case and controversy
 - While the Petitions have previously embodied a live case or controversy, they now have been rendered extinct by the lifting of the questioned issuances. *Thus, nothing is gained by breathing life into a dead issue.*
 - Moreover, without a justiciable controversy, the Petitions have become pleas for declaratory relief, over which the Supreme Court has no original jurisdiction.
 - He acknowledged that moot cases may sometimes still be resolved when the challenged act is capable of repetition yet evading review. However, he argued that the exception cannot be invoked in the present case because:
 - Petitioners failed to demonstrate actual prejudice or damage resulting from the Proclamation and Order + that the Court has original jurisdiction over petitions for declaratory relief
 - The controversy reached the Court through an original petition rather than an appeal from a lower court

	• 4th - The Resolution of the Case on Other Grounds ◦ It is a well-settled doctrine that courts will not pass upon a constitutional question unless it is the <i>lis mota</i> of the case, or if the case can be disposed of on some other grounds. ◦ Since the petitions could be dismissed simply because they had become moot, there was no need to determine whether the declaration of a state of rebellion was constitutional. ◦ The constitutional issue therefore ceased to be the <i>lis mota</i> of the case.
YNARES-SANTIAGO, J, <i>dissenting</i>	• Proclamation No. 427 and General Order No. 4 should be declared null and void for having been issued with grave abuse of discretion amounting to lack of jurisdiction. ◦ All other orders issued and action taken based on those issuances, especially after the Oakwood incident ended in the evening of July 27, 2003 (e.g., warrantless arrests) should also be declared null and void. • The declaration of a state of rebellion was legally unnecessary because authorities must still satisfy the ordinary requirements for warrantless arrests. Since the declaration grants no additional lawful power, it is merely a superfluity. • The declaration of a "state of rebellion" does not have any legal meaning or consequence. This declaration does not give the President any extra powers; it does not have any good purpose. ◦ If the declaration is used to justify warrantless arrests even after the rebellion has ended, such declaration or, at the least, the warrantless arrest, must be struck down. • The Oakwood Incident concluded peacefully when the mutineers surrendered on the evening of July 27, 2003 ◦ The President, however, did not lift the declaration of the "state of rebellion" until 5 days later ◦ After the peaceful surrender of the soldiers, no person suspected of having conspired with the soldiers or participated in the Oakwood incident could be arrested without a warrant of arrest. ◦ Warrantless arrests made after July 27 thereby lacked constitutional and procedural basis. • Unless specifically defined, it is risky to concede and acknowledge the "residual powers" to justify the validity of the presidential issuances.
SANDOVAL-GUTIERREZ, J, <i>dissenting</i>	• Votes to grant the petitions and declare Proclamation No. 427 and General Order No. 4 unconstitutional. • There is no Constitutional provision that authorizes the President to declare a "state of rebellion," therefore Proclamation No. 427 and General Order No. 4 are unconstitutional ◦ It is only legally allowed only under a state of martial law ◦ President Arroyo deviated from Sec. 18 of the Constitution, which grants the President only three relevant powers:

	■ Call out the armed forces ■ Suspend the privilege of the writ of habeas corpus ■ Declare martial law ● If President Arroyo's only purpose was merely to exercise her "calling out power," then she could have done so directly under Sec. 18. She could have simply ordered the AFP to prevent or suppress what she perceived as an invasion or rebellion ○ The declaration avoided the safeguards deliberately included by the framers to prevent executive abuse ● The May 1, 2001 declaration of a "state of rebellion" in Metro Manila was because of the violent street clashes involving the loyalists of former President Joseph Estrada and the police authorities, which caused civil unrest ○ Following the declaration, several political personalities were arrested without warrants despite questionable legal justification. None of them participated in the riot which took place in the vicinity of the Malacañang Palace. ■ This is a violation of the Constitution and Section 5, Rule 113 of the Revised Rules on Criminal Procedure that cannot be justified by the declaration of a "state of rebellion" ● While the Oakwood event ended peacefully on the night of July 27, 2003, President Arroyo's declaration of a "state of rebellion" continued until the lifting thereof on August 1, 2003 ○ Although the alleged rebellion had ceased, the President's declaration continued to be in effect. As it turned out, several searches and seizures took place during the extended period. ● President Arroyo placed the Philippines under martial law without a declaration to that effect and without observing the proper procedure ● Cited a trail of US jurisprudence to assert that the "Executive and Commander-in-Chief clauses" of the Constitution grant the President the power to disregard the restrictive provisions of the Constitution ○ The Constitution has not extended excessive authority in military, defense and emergency matters to the President. Though the President is designated as the Commander-in-Chief of all armed forces of the Philippines, the textual reed does not suffice to support limitless authority ○ Youngstown Sheet & Tube Co. vs. Sawyer demonstrates that executive powers, even during an alleged emergency, may still be subject to judicial control. ● The Constitution has laid down specific procedures on how the President should deal with a crisis, and it is imperative that they must follow those procedures. Otherwise, it would be an unbounded exercise of power.
--	---

DIGEST MAKER: Yasmine Yanez

Joya v. PCGG (1993)

Topic Subtopic	Requisites of Judicial Review Proper Party	GR No. & Ponente	G.R. No. 96541 Bellosillo, J.
Petitioner/s	Dean Jose Joya	Respondent/s	Philippine Commission on Good Governance
Doctrine	A constitutional question must be raised by the proper party		

FACTS

Petitioners sought to enjoin PCGG from proceeding with the auction sale of 82 Masters Paintings and antique silverware seized from Malacañang AND THE Metropolitan Museum of Manila

- Auction sale by Christie's of New York
- Allegedly part of the ill-gotten wealth of Marcos Sr.

Pres. Cory authorized the PCGG chairman to sign the consignment agreement allowing Christie's of New York to auction off the pieces on behalf of the Philippines

COA submitted to Cory the audit findings of the consignment agreement

- Authority of former PCGG chairman to enter the agreement was of doubtful legality
- The contract was highly disadvantageous to the government
- PCGG had a poor track record in asset disposal by auction
- The assets to be auctioned were historical relics— disposable is prohibited by law

Court issued a resolution denying the application for preliminary injunction to restrain the sale

- Petitioners did not present a clear legal right to the restraining order
- Proper parties had not been impleaded
Implead: bring (a third party who is or may be liable to the plaintiff or defendant) into a lawsuit

The sale proceeded as scheduled and \$13.3M were turned over to the Bureau of Treasury

ISSUE/S**ISSUE 1**

Main - Substantive -	Whether or Not the petition complies with the first requisite for judicial review: Proper Party	No -
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:	
As Filipino taxpayers and artists, they are deeply concerned with the preservation and protection of the country's artistic wealth They have the legal personality to restrain PCGG from acting contrary to their public duty to conserve the artistic creations (as mandated by Art. 14, sec 14-18 of the 1987 Constitution The paintings and silverware are public properties, collectively owned by the Filipino people • The sale deprives them of their right to public property without due process of law	N/A	

RULING and RATIO DECIDENDI:

Petitioners **do not possess any clear legal right** to question their alleged unauthorized disposition

Requisites of judicial inquiry

- Question must be raised by the **proper party**
- Must be an **actual case or controversy**
- Question must be raised at the earliest possible opportunity
- The decision on the constitutional or legal question must be necessary to the determination of the case

First requisite: question must be raised by the proper party

One having no right or interest other protect cannot invoke the jurisdiction of the court

- Interest pertains to material interest— an interest in issue and to be affected by the decree

Judicial review can be done only if the case is brought to the court by a party who has the legal standing

- Legal standing is a personal and substantial interest in the case that the party has sustained or will sustain direct injury

The interest of the plaintiff must be personal and not based on a desire to vindicate the right of some third party

Thus, the petitioner's arguments are devoid of merit

Petitioners alleged that the paintings were donated by private persons

- On this basis, the ownership of the paintings legally belongs to the Metropolitan Museum of Manila Foundation, or corporation, or the members thereof
- When the paintings and silverware were taken from Malacanang, they were transferred to the Central Bank Museum

The confiscation of these items by the Aquino administration should not be understood to mean that the ownership of these paintings has automatically passed on to the government

Petitioners **failed to show that they are legal owners** of the artworks or that the pieces have become publicly owned.

Furthermore

Their action does not fulfill the criteria for a mandamus suit

A writ of mandamus may be issued to a citizen only when the public right to be enforced and the duty of the state are unequivocally set forth in the Constitution

In the case, the petitioners do not seek the fulfillment of a positive duty required of respondent officials

- What they seek is the enjoining of an official act because it is constitutionally infirmed

The petition also **cannot be allowed as a taxpayer's suit**

- Not every action filed by a taxpayer can qualify to challenge the legality of official acts

A **taxpayer's suit** can only prosper if the governmental acts being questioned **involve disbursement of public funds**

- Petitioners are not challenging any expenditure involving public funds

ISSUE 2:

Main - Substantive ▾	Whether or Not the petition complies with the second requisite of Judicial Review	No ▾
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
The case should be resolved as an exception to the rule on moot and academic cases Although the sale has long been consummated and there is no possibility of recovering the treasure, there is a novelty and importance of the issues raised The resolution of the court on the issues in this case will establish future guiding principles and doctrines on the preservation of the nation's artistic and cultural possessions		
RULING and RATIO DECIDENDI:		
To exercise power of adjudication, there must be an actual case or controversy that involves: - a conflict of legal rights - An assertion of opposite legal claims - Not be moot or academic The purpose of this petition is to enjoin respondents from holding the auction sale on a date that is long past already - The issue in the petition has become moot and academic Paramount public interest is NOT involved - Thus, there is no justification to relax the rules of an actual case or legal standing Lastly, The court also notes that the Director of the Museum issued a certification that the Italian paintings and silverware do not constitute protected cultural properties - Not among those listed in the cultural properties register of the National Museum Under the law, it is the Director of the museum who is authorized to undertake the inventory and classification of important cultural properties and national cultural treasures		

FINAL DECISION	WHEREFORE, for lack of merit, the petition for prohibition and mandamus is DISMISSED. SO ORDERED.
----------------	---

DIGEST MAKER: Thessa Montojo

Commission on Human Rights Employees' Association v. Commission on Human Rights (2004)

Topic Subtopic	Requisites of Judicial Review: Actual Case or Controversy - Proper Party	GR No. & Ponente	G.R. No. 155336 Chico-Nazario, J.
Petitioner/s	Commission on Human Rights Employees' Association	Respondent/s	Commission on Human Rights
Doctrine	A proper party or one with legal standing is a person or entity that has sustained, or is in immediate danger of sustaining, an injury as a result of the act complained of. The injury must be personal and substantial enough to justify the invocation of judicial power.		

FACTS

Feb 14, 1998 - Congress passed **R.A. 8522 (General Appropriations Act of 1998)**

- It provided for *Special Provisions Applicable to All Constitutional Offices Enjoying Fiscal Autonomy*. This included authority to:
 - Formulate and implement organizational structures of their respective offices
 - Fix and determine the salaries, allowances, and other benefits of their personnel
 - Make personnel adjustments subject to compensation standardization laws
 - Use savings in their respective appropriations for various needs, including fringe benefits for their officials and employees as may be authorized by law and other official purposes, subject to accounting and auditing rules and regulations

Sept 4, 1998 - CHR promulgated **Resolution No. A98-047**, adopting an upgrading and reclassification scheme among selected positions in the Commission

- The Commission approved it, funding these changes from Personal Services, effective 1998
- This subsequently caused salary adjustments to several plantilla positions

Oct 19, 1998 - CHR issued **Resolution No. A98-055**, providing for the upgrading or raising of salary grades of several positions in the Commission.

However, by virtue of **Resolution No. A98-047**, the CHR "collapsed" the vacant positions in the body to provide additional source of funding for said staffing modification. The CHR forwarded this to the **Department of Budget and Management (DBM)** for approval. However, DBM Secretary Benjamin Diokno disapproved the proposal, finding, among others that:

- The upgrading of some positions would elevate services into offices without any actual change in functions;
- The proposed Finance Management Office and Public Affairs Office could not be created because Section 78 of the 1998 GAA allowed organizational changes only when authorized by law or directed by the President; and
- Under R.A. No. 6758 (Salary Standardization Law), DBM has the sole power and discretion over the government compensation and position classification system of the National Government

Despite DBM's disapproval of the plantilla reclassification, officers of CHREA requested the CSC-Central Office to affirm the recommendation of the CSC-Regional Office. CHREA stood its ground in saying that the DBM is the only agency with appropriate authority mandated by law to evaluate and approve matters of reclassification and upgrading, as well as creation of positions.

The CSC-Central Office denied CHREA's request and reversed the recommendation of the CSC-Regional Office that the upgrading scheme be censured. CHREA filed a motion for reconsideration, but the CSC-Central Office denied the same.

Hence, CHREA, representing the rank-and-file employees of the CHR, elevated the matter to the Court of Appeals, who affirmed the pronouncement of the CSC-Central Office and upheld the validity of the **CHR staffing modification scheme** as it was justified by fiscal autonomy.

ISSUE/S

ISSUE 1

Main - Procedural ▾	Whether or Not CHREA had legal standing (locus standi) to challenge the CHR resolutions	Yes ▾
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
The upgrading and collapsing of positions benefited only a select few in the upper level positions in the Commission resulting in the demoralization of the rank and file employees.		The petitioner has no <i>locus standi</i> , considering that there exists no official written record in the Commission recognizing them as a bona fide organization of its employees. There is also nothing in the records that show that its president, Marcial A. Sanchez, Jr., has the authority to sue the CHR.
RULING and RATIO DECIDENDI:		
<u>YES. CHREA had standing to sue.</u> The Court held that a proper party is one who has sustained or is in immediate danger of sustaining an injury as a result of the act complained of. CHREA's members stood to suffer injury because the upgrading scheme could consume funds allocated for Personnel Services, from which the benefits of the employees, including those in the rank and file, are derived. Furthermore, the personality of the petitioner to file this case was already recognized by both the CSC and the Court of Appeals in the proceedings, making the challenge to its personality belated.		
LEGAL BASES		

ISSUE 2:

Main - Substantive ▾	Whether or Not the approval by the DBM is a condition precedent to the enactment of an upgrading, reclassification, creation and collapsing of plantilla positions in the CHR	Yes ▾
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
DBM approval is indispensable because the Salary Standardization Law grants DBM authority to administer the compensation and position classification system.		CHR argued that it enjoys fiscal autonomy and therefore may independently upgrade, reclassify, create, and collapse positions without DBM approval.
RULING and RATIO DECIDENDI:		
YES. Prior DBM approval is required before any upgrading, reclassification, creation, or collapsing of positions in the CHR.		

The Salary Standardization Law (R.A. No. 6758) expressly directs the DBM to establish and administer a unified compensation and position classification system applicable to all government entities, including constitutional bodies. The authority to "administer" means to control or regulate in behalf of others; to direct or superintend the execution, application or conduct of; and to manage or conduct public affairs, as to administer the government of the state. The regulatory power of the DBM on matters of compensation is encrypted not only in law, but in jurisprudence as well.

Consequently, any reclassification or upgrading scheme must first obtain DBM approval. It is within the turf of the DBM Secretary to disallow the upgrading, reclassification, and creation of additional plantilla positions in the CHR based on its finding that such scheme lacks legal justification.

LEGAL BASES

Philippine Retirement Authority (PRA) v. Jesusito L. Buñag: Compensation, allowances, and other benefits received by PRA officials and employees without the requisite approval or authority of the DBM are unauthorized and irregular.

Victorina Cruz v. Court of Appeals: The DBM has the sole power and discretion to administer the compensation and position classification system of the national government.

Intia, Jr. v. Commission on Audit: Although the charter of the Philippine Postal Corporation (PPC) grants it the power to fix the compensation and benefits of its employees and exempts it from the coverage of the rules and regulations of the Compensation and Position Classification Office,, the compensation system established by the PPC is, nonetheless, subject to the review of the DBM.

ISSUE 3

Main - Procedural ▾	Whether or Not the CHR enjoys fiscal autonomy under the Constitution	No ▾
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
CHR is not one of the Constitutional Commissions expressly granted fiscal autonomy by the Constitution.		CHR maintained that its constitutional status and membership in the Constitutional Fiscal Autonomy Group justified its claim of fiscal autonomy.
RULING and RATIO DECIDENDI:		
<u>NO. The CHR does not enjoy fiscal autonomy.</u> From the 1987 Constitution and the Administrative Code, it is abundantly clear that the CHR is not among the class of Constitutional Commissions. The Court of Appeals' decision was based on the mistaken premise that the CHR belongs to constitutional commissions, and thereby enjoys fiscal autonomy. However, Article IX of the Constitution states in no uncertain terms that only the CSC, the Commission on Elections, and the Commission on Audit shall be tagged as Constitutional Commissions with the appurtenant right to fiscal autonomy. There is also not legal basis to support the contention that the CHR enjoys fiscal autonomy. In essence, fiscal autonomy entails freedom from outside control and limitations, other than those provided by law. It is the freedom to allocate and utilize funds granted by law, in accordance with law, and pursuant to the wisdom and dispatch its needs may require from time to time. Neither does the fact that the CHR was admitted as a member by the Constitutional Fiscal Autonomy Group (CFAG) ipso facto clothed it with fiscal autonomy.		

Fiscal autonomy is a constitutional grant, not a tag obtainable by membership.

LEGAL BASES

Article IX, Section 1: *Identifies only the CSC, COMELEC, and COA as Constitutional Commissions.*

FINAL DECISION

WHEREFORE **the petition is GRANTED**, the Decision dated 29 November 2001 of the Court of Appeals in CA-G.R. SP No. 59678 and its Resolution dated 11 September 2002 are hereby **REVERSED and SET ASIDE**. The ruling dated 29 March 1999 of the Civil Service Commission-National Capital Region is REINSTATED. The Commission on Human Rights Resolution No. A98-047 dated 04 September 1998, Resolution No. A98-055 dated 19 October 1998 and Resolution No. A98-062 dated 17 November 1998 without the approval of the Department of Budget and Management are disallowed. No pronouncement as to costs.

SO ORDERED.

AUTOMOTIVE INDUSTRY WORKERS ALLIANCE v. ROMULO (2005)

Topic Subtopic	Judicial Review Proper Party	GR No. & Ponente	G.R. No. 157509 J. Chico-Nazario
Petitioner/s	Automotive Industry Workers Alliance (AIWA) and its Affiliated Unions	Respondent/s	Honorable Alberto Romulo, et al.
Doctrine	A proper party is necessary for a case to prosper.		

FACTS

Ten labor unions call upon the court to declare **unconstitutional Executive Order No. 185**

- The grant of authority by the President to the Secretary of Labor (SoL) to exercise **administrative supervision** (AS) over NLRC, its regional branches and personnel.
- AS is transferred from the **NLRC Chairperson** → **Secretary of Labor and Employment**.

Petitioner Argument

- The NLRC is an **integral part of DOLE**, under the administrative supervision of the Secretary of Justice.
- **EO 292** was issued, where NLRC became attached to the DOLE for:
 - 1) **policy and program coordination, and**
 - 2) **administrative supervision.**
- March 2, 1989: **Article 213** of the Labor Code was amended by **RA 6715**. Now, NLRC is attached to DOLE **only** for **policy and program coordination**.
 - **Administrative supervision** was turned over to the NLRC Chairman.
- Essentially, EO 185 **reverts back to pre-RA 6715** set-up, which amends the law (only Congress can do so; this **bypasses legislative authority**).

ADMINISTRATIVE SUPERVISION: DOLE → NLRC Chairperson → Secretary of Labor and Employment (DOLE).

Respondent Argument

- Petition does **not** pose an actual case or controversy. Petitioners have not cited how EO 185 has prejudiced or threatened their rights and existence as labor unions and taxpayers.
- The delegation of administrative supervision power to the NLRC chairperson **does not strip the President of broader constitutional power** of control and supervision of executive departments (Art. 7, Sec. 17).

Doctrine of Qualified Political Agency (Alter Ego Doctrine)

- The President can **oversee operations of the NLRC**, its regional branches, and personnel **thru his “alter ego,”** the Secretary of Labor.
- The official acts of cabinet and department secretaries are presumptively the acts of the President, unless explicitly disapproved or reprobated by the Chief Executive.

MAIN ISSUE

W/N the petitioners have standing?		No
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:	
They have standing on two grounds: labor union (on behalf of ~50,000 workers) and taxpayers .	They have no locus standi. 1) Labor Union: labor unions are exempted from paying tax (Section 30, Tax Reform Act of 1997). 2) Taxpayer: the implementation of EO 185 does not require additional appropriation.	
RULING and RATIO DECIDENDI:		
NO. 1) Labor Union Standing - The petitioners do not show that they sustained or will sustain direct injury from EO 185. - Their rights will not be prejudiced because the authority of SoL does not extend to the power to review, reverse, revise or modify NLRC decisions. - The EO has limited reach. It is an authoritative order from the President to the SoL. Only those directly under SoL's disciplinary authority (Section 1d of EO 185) may have direct interest. - In fact, Congress can claim injury from the alleged executive encroachment of legislative function to amend, modify, and/or repeal laws. 2) Taxpayer Standing - Petitioners have not established that EO 185 will cause the disbursement of public funds. - Respondents are correct that EO 185 does not require additional appropriation for its implementation.		
LEGAL BASES		
Executive Order 185; Section 1(d) The Secretary of Labor is authorized to exercise administrative supervision upon NLRC, its regional branches and its personnel. The SoL shall "take such action as may be necessary for the proper performance of official functions, including rectification of violations, abuses and other forms of mal-administration;" Olsen v. Herstein and Rafferty: executive order commands from a superior (President) to inferior (SoL); the object is an administration of affairs . It is administrative in nature; thus, it does not pass beyond limits of the department that it is directed to.		

ISSUE 2:

W/N the Court can take the liberal approach and recognize the standing of the petitioners?	No
RULING and RATIO DECIDENDI:	
NO. The Court is not persuaded that they can take this approach.	

ECONOMIC IMPORTANCE OF LOCUS STANDI. The judicial budget is limited. They cannot just open doors to all types of suits as this will overburden them and their budget.

LEGAL BASES

Locus standi requisites are relaxed for **non-traditional plaintiffs**, like ordinary citizens, taxpayers, and legislators, whenever public interest so requires. These are matters of **transcendental importance**.

FINAL DECISION

Executive Order 185 unconstitutionality is **unresolved**. There needs to be a case brought up by a **proper party** to assail its validity.
SO ORDERED.

NO SEPARATE OPINION/S

Tañada v. Tuvera

DOCTRINE

Publication in full in the Official Gazette (or a newspaper of general circulation under subsequent law) is an indispensable requirement of due process for the effectivity of all statutes—including local, private, and presidential issuances of general applicability—and the statutory clause "*unless it is otherwise provided*" in Article 2 of the Civil Code refers solely to the date of effectivity, never to the total omission of publication.

RECITATION SUMMARY

Petitioners Lorenzo M. Tañada, Abraham F. Sarmiento, and MABINI filed a petition for *mandamus* invoking the citizens' constitutional right to information on matters of public concern to compel public officials to publish various unpublished Marcos-era Presidential Decrees, Letters of Instructions, General Orders, Proclamations, and Executive Orders in the Official Gazette. Respondents argued that petitioners lacked standing and that publication was unnecessary when the decrees explicitly provided for their own immediate effectivity dates under Article 2 of the Civil Code. In its **1985 Decision** (penned by Escolin, J.), the Supreme Court granted *mandamus*, ruling that petitioners had standing as citizens enforcing a public right and that publication is mandatory because "*unless it is otherwise provided*" refers only to the effectivity date, not the requirement of publication. Upon petitioners' motion for clarification, the Supreme Court issued its landmark **1986 Resolution** (penned by Cruz, J.), definitively ruling that: (1) **all laws**—including local, private, administrative IRRs enforcing existing laws, and Monetary Board circulars filling in details—must be published as a condition for their effectivity; (2) publication must be **in full**; (3) under the law then in force, publication must be in the **Official Gazette**; and (4) publication must be made **immediately**, with laws taking effect 15 days thereafter unless a different period is explicitly fixed by the legislature.

MATERIAL FACTS & PROCEDURAL HISTORY

- **Legally Relevant Parties & Relationship:**
 1. *Petitioners*: Lorenzo M. Tañada, Abraham F. Sarmiento, and the Movement of Attorneys for Brotherhood, Integrity and Nationalism, Inc. (MABINI) (suing as citizens enforcing a public right).
 2. *Respondents*: Hon. Juan C. Tuvera (Executive Assistant to the President), Hon. Joaquin Venus (Deputy Executive Assistant), Melquiades P. De La Cruz (Director, Malacañang Records Office), and Florendo S. Pablo (Director, Bureau of Printing).
- **Chronological Material Facts:**
 1. During the martial law period under President Ferdinand E. Marcos, numerous Presidential Decrees, Letters of Instruction (LOIs), General Orders (GOs), Executive Orders (EOs), Letters of Implementation, and Administrative Orders were promulgated and enforced without prior publication in the Official Gazette.
 2. Many of these secret or unpublished decrees contained clauses stating that they were to take effect "*immediately upon approval*" or on specific dates, despite the public having no access to their texts.
 3. Petitioners demanded the disclosure and publication of these unpublished issuances, invoking the people's right to information on matters of public concern. When respondents failed to publish them, petitioners filed a petition for *mandamus*.
 4. On April 24, 1985, the Supreme Court rendered its original Decision ordering respondents to publish all unpublished presidential issuances of general application in the Official Gazette.

5. Petitioners subsequently filed a Motion for Reconsideration/Clarification seeking definitive guidance on: (a) what laws are covered; (b) where publication must be made; (c) the extent of publication required; and (d) when publication must take place.
 - **Procedural History:**
 1. Petitioners filed an original Petition for *Mandamus* directly before the Supreme Court En Banc (G.R. No. L-63915).
 2. The Supreme Court promulgated its Decision on **April 24, 1985** (granting *mandamus*).
 3. The Supreme Court promulgated its Resolution on Reconsideration/Clarification on **December 29, 1986** (formulating the comprehensive publication doctrine).
-

● PARTIES' MATERIAL ARGUMENTS

- **Petitioners' Claims:**
 1. *Legal Standing:* As citizens seeking to enforce a public right (the right to be informed on matters of public concern under Section 6, Article IV of the 1973 Constitution) and compel a public duty, they are real parties in interest without needing to show personal or direct injury.
 2. *Mandatory Publication:* Laws, presidential decrees, and administrative issuances must be published in full in the Official Gazette as a prerequisite for their effectivity and enforceability under Commonwealth Act No. 638 and due process.
 - **Respondents' Claims (Solicitor General):**
 1. *Lack of Legal Standing:* Petitioners are not "aggrieved parties" under Rule 65 because they failed to show direct personal injury or prejudice from the non-publication.
 2. *Statutory Exception under Article 2, Civil Code:* Article 2 provides that "*Laws shall take effect after fifteen days following the completion of their publication in the Official Gazette, unless it is otherwise provided...*" Since the assailed presidential decrees specifically provided for their own effectivity dates (e.g., "immediately upon approval"), publication was dispensed with.
-

● ISSUES

1. **Whether petitioners have legal standing (*locus standi*)** to maintain a petition for *mandamus* to compel the publication of unpublished laws.
 2. **Whether the clause "*unless it is otherwise provided*" in Article 2 of the Civil Code dispenses with the requirement of publication** when a statute provides its own effectivity date.
 3. **What specific laws, regulations, and issuances are required to be published** as a condition for their effectivity.
 4. **Where, in what manner (extent), and when must publication take place** for a law to become valid and effective.
-

♥ HOLDING AND RATIO DECIDENDI

ISSUE 1: Legal Standing (*Locus Standi*) in Public Suits

HOLDING: YES. Petitioners have legal standing as citizens enforcing a public right.

RATIO & DETAILED COURT LOGIC:

1. *Public Right Exception (Severino v. Governor General):* While the general rule requires a private party to demonstrate a specific, personal legal interest or direct injury, an established

exception applies when the question is one of **public right** and the object of *mandamus* is to compel the performance of a **public duty**.

2. In such cases, the people are regarded as the real party in interest, and the relator need only show that he is a citizen interested in the execution of the laws.
3. Because the right sought to be enforced—the right to be informed on matters of public concern—is guaranteed by the fundamental law, denying citizen standing would leave no one to initiate proceedings, particularly when the Solicitor General represents the public respondents.

ISSUE 2: Construction of "Unless It Is Otherwise Provided" in Article 2 of the Civil Code

HOLDING: NO. The clause "*unless it is otherwise provided*" does **NOT** dispense with the requirement of publication. Publication is **indispensable** in every case.

RATIO & DETAILED COURT LOGIC:

1. *Correct Interpretation of Article 2, Civil Code:* The clause "*unless it is otherwise provided*" refers solely to the **date of effectivity** (the 15-day period), allowing the legislature to shorten or extend the period before a law takes effect (e.g., making it effective immediately upon publication, or 1 year after publication like the Civil Code itself). It does **NOT** mean publication itself may be omitted.
2. *Due Process and Ignorantia Legis Non Excusat:* The constitutional requirement of due process demands that before a person can be bound by a law, he must be given official and adequate notice of its contents. The conclusive legal presumption that every person knows the law (*ignorantia legis non excusat*) logically presupposes that the law has first been published and made accessible.
3. *Injustice of Unenforceable/Furtive Laws:* It is the height of injustice to punish or burden a citizen for violating an unpublished, secret law of which he had no notice, construct or actual. Unenforceable "furtive laws" cannot be recognized by courts.

ISSUE 3: Scope of Covered Issuances (1986 Resolution)

HOLDING: ALL STATUTES and administrative regulations enforcing existing laws must be published as a condition for their effectivity.

RATIO & DETAILED COURT LOGIC:

1. *Broad Scope of "Laws":* The term "laws" includes all statutes passed by Congress, presidential decrees, and executive orders issued under delegated or constitutional legislative powers.
2. *Included Categories:*
 - Statutes of general application, **statutes of local application**, and **private laws** (e.g., a private naturalization act, a city charter).
 - Administrative rules and regulations (**Implementing Rules and Regulations / IRRs**) enacted to enforce or implement existing laws pursuant to a valid delegation.
 - Monetary Board circulars that fill in the details of the Central Bank Act.
3. *Excluded Categories (No Publication Required):*
 - Interpretative regulations and internal regulations that govern only the internal personnel of an administrative agency and not the general public.
 - Letters of Instructions issued by administrative superiors concerning rules/guidelines for subordinates in performing duties.
 - Municipal ordinances (which are governed separately by the Local Government Code).

ISSUE 4: Place, Extent, and Timing of Publication (1986 Resolution)

HOLDING: Publication must be **in full**, made **immediately in the Official Gazette** (under the statutory framework then in force), and effectivity begins 15 days thereafter unless a different date is specified.

RATIO & DETAILED COURT LOGIC:

1. *Extent of Publication:* Publication must be **in full**. Mere publication of the title, number, date, or whereabouts of a decree (or publishing it in a mere supplement without text) is legally insufficient.
2. *Medium / Place of Publication:* Under Article 2 of the Civil Code as enacted, publication was required to be made exclusively in the **Official Gazette**. *(Note: Executive Order No. 200 subsequently expanded this to include newspapers of general circulation).*
3. *Timing and Operative Fact:* Publication must be made forthwith or as soon as possible. The actual existence and publication of a law is an operative fact; unpublished laws have **no binding force and effect**.

 DECISION & DISPOSITION:

The Supreme Court **ORDERED** public respondents to publish in full in the Official Gazette all unpublished presidential decrees, executive orders, proclamations, letters of instructions, and administrative rules of general applicability, declaring that **unless so published, they shall have no binding force and effect**.

TANADA v. TUVERA (1985) - DECISION AND RESOLUTION (SEE BELOW)

Topic Subtopic	"Branches of the Government - Congress" Legislative Process - Effectivity of laws	GR No. & Ponente	GR No. 63915 - Escolin, J.
Petitioner/s	LORENZO M. TAÑADA, ABRAHAM F. SARMIENTO, and MOVEMENT OF ATTORNEYS FOR BROTHERHOOD, INTEGRITY AND NATIONALISM, INC. [MABINI],	Respondent/s	HON. JUAN C. TUVERA, in his capacity as Executive Assistant to the President, HON. JOAQUIN VENUS, in his capacity as Deputy Executive Assistant to the President, MELQUIADES P. DE LA CRUZ, in his capacity as Director, Malacañang Records Office, and FLORENDO S. PABLO, in his capacity as Director, Bureau of Printing, respondents.
Doctrine			

FACTS

During the martial law period under President Ferdinand E. Marcos, numerous Presidential Decrees, Letters of Instruction (LOIs), General Orders (GOs), Executive Orders (EOs), Letters of Implementation, and Administrative Orders were promulgated and enforced **without prior publication in the Official Gazette**.

Petitioners filed an original Petition for Mandamus directly before the Supreme Court, invoking:

- the people's right to be informed on matters of public concern, a right recognized in **Section 6, Article IV** of the 1973 Philippine Constitution,
- the principle that laws to be valid and enforceable must be published in the Official Gazette or otherwise effectively promulgated,

to compel respondent public officials to publish, and or cause the publication in the Official Gazette of various presidential decrees, letters of instructions, general orders, proclamations, executive orders, letter of implementation and administrative orders.

ISSUE 1

Main – Procedural	W/N petitioners have legal standing (<i>locus standi</i>) to maintain a petition for mandamus to compel the publication of unpublished laws.	YES
-------------------	--	-----

PETITIONER/S ARGUMENTS:

- Since the subject of the petition concerns a public right and its object is to compel the performance of a public duty, they need not show any specific interest for their petition to be given due course.

RESPONDENT/S ARGUMENTS:

- Petitioners have no legal personality or standing to bring the instant petition / they are not personally affected by the non-publication of the issuances

RULING and RATIO DECIDENDI:**YES. *Petitioners have standing as citizens***

- Court agrees with the petitioners that a private citizen's legal personality is appropriately applied in the petition (concerns a public right and compels a public duty)
- If petitioners were not allowed to institute the proceeding, it would be difficult to conceive any other person to initiate the same
 - Especially given that the Solicitor General entered his appearance for the respondents
- Clearly, the right sought to be enforced by petitioners herein is a public right recognized by no less than the fundamental law of the land. If petitioners were not allowed to institute this proceeding, it would indeed be difficult to conceive of any other person to initiate the same,

LEGAL BASIS

Severino v. Gov. General - "when the question is one of **public right** and the object of the mandamus is to procure

*the enforcement of a **public duty**, the people are regarded as the real party in interest"*

ISSUE 2

Main – Substantive	W/N the clause "unless it is otherwise provided" in Article 2 of the Civil Code dispenses with the requirement of publication when a statute provides its own effectivity date.	NO, STILL REQUIRED
RESPONDENT/S ARGUMENTS:		
publication in the Official Gazette is not a sine qua non requirement for the effectivity of laws where the laws themselves provide for their own effectivity dates.		
RULING and RATIO DECIDENDI:		
NO, Publication in the Official Gazette remains indispensable for a law to take effect Respondents interpret Art. 2. of the Civil Code to mean that publication in the Official Gazette is necessary in those cases where the legislation itself does not provide for its effectivity date, but <i>not when the law itself provides for the date when it goes into effect.</i> - However, the court clarifies that Article 2 does not preclude the requirement of publication in the Official Gazette, even if the law itself provides for the date of its effectivity (Sec. 1, CA 638) 1) Ignorantia Legis non Excusat - Without such notice and publication, there would be no basis for the application of the maxim "<i>ignorantia legis non excusat.</i>" It would be the height of injustice to punish or otherwise burden a citizen for the transgression of a law of which he had no notice whatsoever, not even a constructive one. - without publication, the people have no means of knowing what presidential decrees have actually been promulgated, much less a definite way of informing themselves of the specific contents and texts of such decrees. - It is a rule of law that before a person may be bound by law, he must first be officially and specifically informed of its contents. - All the more important now that Marcos was in power and he had accorded upon himself a power heretofore enjoyed solely by the legislature 2) Use of the word "shall" - The very first clause of Section 1 of Commonwealth Act 638 reads: "There shall be published in the Official Gazette . . ." The word "shall" used therein imposes upon respondent officials an imperative duty. That duty must be enforced if the Constitutional right of the people to be informed on matters of public concern is to be given substance and reality. 3) Only general applicability/laws of public nature apply - Other presidential issuances which apply only to particular persons or class of persons such as administrative and executive orders need not be published on the assumption that they have been circularized to all concerned. Operative fact (not ratio but a new doctrine) - An absolute retroactive invalidity of the laws in question cannot be justified. - The implementation/enforcement of presidential decrees prior to their publication in the Official Gazette is "an operative fact which may have consequences which cannot be justly ignored. - The past cannot always be erased by a new judicial declaration		
LEGAL BASES		
Art. 2. Civil Code - Laws shall take effect after fifteen days following the completion of their publication in the Official Gazette, unless it is otherwise provided		

Section 1. CA 638 - There shall be published in the Official Gazette [1] all important legislative acts and resolutions of a public nature of the Congress of the Philippines; [2] all executive and administrative orders and proclamations, except such as have no general applicability; [3] decisions or abstracts of decisions of the Supreme Court and the Court of Appeals as may be deemed by said courts of sufficient importance to be so published; [etc...]

FINAL DECISION

WHEREFORE, the Court hereby orders respondents to publish in the Official Gazette all unpublished presidential issuances which are of general application, and unless so published, they shall have no binding force and effect.

SEPARATE OPINION/S

PLANA, J.
Concurring and Dissenting

Concurs in the majority decision to the extent that it requires notice before laws become effective, for no person should be bound by a law without notice. However, disagrees insofar as it holds that such notice shall be by publication in the Official Gazette.

- Commonwealth Act No. 638, does not support the proposition that for their effectivity, laws must be published in the Official Gazette. The said law is simply "An Act to Provide for the Uniform Publication and Distribution of the Official Gazette."
 - It also enumerates what shall be published in the Official Gazette, among them, "important legislative acts and resolutions of a public nature of the Congress of the Philippines"
- It is noteworthy that **not all legislative acts are required to be published in the Official Gazette but only "important" ones** "of a public nature."
- Moreover, the said law does not provide that publication in the Official Gazette is essential for the effectivity of laws.

RESOLUTION (1986)

Context/Facts

Following the Supreme Court's April 24, 1985 Decision ordering the publication of unpublished Marcos-era presidential decrees, petitioners Lorenzo M. Tañada, Abraham F. Sarmiento, and MABINI filed a **Motion for Reconsideration/Clarification**

Petitioners further suggest that there should be no distinction between laws of general applicability and those which are not; that publication means complete publication; and that the publication must be made forthwith in the Official Gazette.

Specifically petitioners asked the court **5 questions:**

- **What is meant by a "law of public nature" or "general applicability"?**
- **Must a distinction be made between laws of general applicability and laws that are not?**
- **What is meant by "publication"?**
- **Where must publication be made?**
- **When must publication be made?**

ISSUE 1: What is meant by "Unless it is otherwise provided"

- the clause "unless it is otherwise provided" refers to the date of effectivity and not to the requirement of publication itself, which cannot in any event be omitted.
- This clause does not mean that the legislature may make the law effective

	immediately upon approval, or on any other date, without its previous publication. • TL;DR - publication is indispensable in all cases, but legis may provide that the usual 15-day period may be shortened/lengthened
ISSUE 2: What laws must be published?	"laws" should refer to all laws and not only to those of general application, for strictly speaking all laws relate to the people in general albeit there are some that do not apply to them directly (e.g. citizenship laws) Need published: • All statutes, including those of local application and private laws, shall be published as a condition for their effectivity, including: ○ Presidential decrees and executive orders ■ even, those naming a public place ○ Charters of cities/municipalities ○ Circulars issued by the Monetary Board Not needed to be published: • Interpretative regulations and those merely internal in nature, that is, regulating only the personnel of the administrative agency and not the public, need not be published. • letters of instructions issued by administrative superiors concerning the rules or guidelines • rules laid down by the head of a government agency on the assignments or workload of his personnel • Municipal ordinances passed by local sanggunians are not covered by Article 2 of the Civil Code, as their effectivity is governed separately by the Local Government Code
ISSUE 3: Extent, Place, and Timing of Publication	• Publication must be IN FULL - A mere mention of the decree number, title, date, or whereabouts (e.g., "with Secretary Tuvera"), or publishing it in a mere supplement without the full text, is legally void and fails to satisfy due process • Place of Publication - Under Article 2 of the Civil Code as then written, publication was required to be made in the Official Gazette ○ <i>Note: Executive Order No. 200 later expanded this rule to include newspapers of general circulation</i> • Timing: Publication must be made forthwith, or as soon as possible

SEPARATE OPINION/S

(FOR: NERI V. SENATE COMMITTEE MAIN DECISION)

PUNO, C.J.
dissenting

Votes to **DISMISS Neri's petition**. The Senate Committees demonstrated a specific need for the answers to the three disputed questions sufficient to overcome the qualified presidential communications privilege. They did not gravely abuse their discretion in ordering Neri's arrest.

On executive privilege and public interest

- The controlling consideration is that **"the end all of executive privilege is to promote public interest and no other."**
- Unlike the US Constitution, which says little about government secrecy and public access, the **1987 Constitution is replete with provisions on transparency, accountability, and disclosure** → a reaction to the secrecy of government during martial law.
 - Right to information on matters of public concern + policy of full public disclosure of transactions involving public interest + public office as a public trust.
 - Democratic government requires an informed people who can meaningfully vote, speak, and organize around political causes.
- Separation of powers does not mean absolute independence. Each branch is supreme within its sphere, but the Constitution also establishes **checks and balances**.
 - Powers must operate with **separateness but interdependence, autonomy but reciprocity**.
 - Neither presidential confidentiality nor legislative investigation should be applied in a manner that disables the constitutional functions of the other branch.

On the Senate's power of inquiry and contempt

- **Arnault v. Nazareno**: "the power of inquiry—with process to enforce it—is an essential and appropriate auxiliary to the legislative function."
 1. Congress cannot legislate wisely without information on the conditions legislation seeks to affect.
 2. Mere requests may be unavailing; volunteered information may be inaccurate or incomplete → **some means of compulsion is essential**.
- Two requirements govern the valid exercise of legislative investigation and contempt:
 1. **Legislative purpose** — the inquiry must be in aid of legislation and concern a matter within Congress's legislative competence.
 2. **Pertinency of the question** — the question must relate to the subject matter of the inquiry.
- **A question need not independently establish its connection to a particular proposed law**. As stated in *Arnault*: "the materiality of the question must be determined by its direct relation to the subject of the inquiry and not by its indirect relation to any proposed or possible legislation."
- The necessity and form of legislation emerge from the **sum total of information gathered**, not a fraction obtained from one question.
- **Watkins v. United States**: *improper motives of individual legislators do not invalidate an investigation when the legislative purpose is being served. The Court does not inquire into legislators' motives merely because the investigation may expose wrongdoing.*

On the kinds of executive privilege and the applicable precedents

- Executive privilege is not one undifferentiated protection. Puno distinguishes:
 - **Military and state secrets** - protects information whose disclosure would endanger national security or diplomatic relations.
 - **Presidential communications** - protects confidentiality in presidential decision-making.
 - **Deliberative process** - protects pre-decisional advisory opinions, recommendations, and deliberations in governmental policymaking.
 - **Law enforcement** - protects confidential sources, investigative techniques, and ongoing investigations.
- The **ground invoked and the context** determine whether a claim is valid.
 - *Almonte v. Vasquez* concerned allegedly confidential government personnel records, not actual presidential communications.
 - *Chavez v. PCGG* concerned access to settlement information, likewise not presidential communications.
 - *Senate v. Ermita* recognized the privilege but resolved the constitutionality of EO 464; it did not determine whether a particular presidential conversation was privileged.

- **U.S. v. Nixon** involved a criminal proceeding, while this case involves a legislative inquiry. Its principles are useful, but its criminal-procedure requirements cannot simply be transplanted into a Senate investigation.

On the alleged diplomatic, military, and national security secrets

- **The claim was insufficiently established.** Ermita merely asserted that disclosure might impair diplomatic and economic relations with China.
 - He gave **no explanation of how answering the three questions would expose diplomatic secrets at the expense of national interest.**
 - Neri likewise failed to supply the necessary explanation during oral argument.
 - **“The Court cannot engage in guesswork in resolving this important issue.”**
- Under **U.S. v. Reynolds**, a formal claim must follow actual personal consideration by the responsible official. The Court must determine whether the circumstances justify the privilege without compelling disclosure of the very secret being protected.
 - The circumstances must establish a **reasonable danger** that disclosure would expose protected matters.
 - Judicial control cannot be surrendered to the executive officer’s mere assertion.
- Neri’s counsel additionally invoked **national security and military affairs**, but Ermita’s letter invoked presidential communications and suggested diplomatic secrecy.
 - Under *Senate v. Ermita*, **only the President or the Executive Secretary acting by order of the President may invoke executive privilege.**
 - Neri, personally or through counsel, could not expand the President’s stated grounds.
 - Even assuming he could, there was still no sufficient factual explanation showing how the answers would compromise national security.

On the qualified presumption protecting presidential communications

- Puno **recognizes the presumption in favor of presidential communications.** He does not accept the Senate’s position that Neri must overcome a presumption against such privilege.
- Presidential confidentiality protects the public interest in **candid, objective, and even blunt or harsh advice.** The President and advisers must be able to explore alternatives without constantly tempering their views for public appearances.
- The privilege attaches to the **office**, not to the President’s personal interests. Puno invokes *Kaiser Aluminum*:
Executive privilege is granted “for the benefit of the public, not of executives who may happen to then hold office.”
- *Senate v. Ermita*’s statement favoring disclosure expresses the **general disfavor of government secrecy.** It does not erase the more specific, **qualified presumption protecting presidential communications.**
- However, the presumption is **not absolute**, and its strength varies:
“The stronger the presumption, the greater the demonstrable need required to overcome the presumption; conversely, the weaker the presumption, the less the demonstrable need required to overcome the presumption.”

On why the presumption is weaker here

- A primary consideration is **where the Constitution places the power involved.**
 1. More concentrated in the President → greater need for confidentiality.
 2. More shared with other institutions → weaker presumption, since those institutions may need the same information to perform their duties.
- The transaction involved a **foreign loan**, and the power to contract or guarantee foreign loans is **not exclusively presidential.**
 1. It requires the **prior concurrence of the Monetary Board** and is subject to limitations provided by law.
 2. The Monetary Board must submit reports to Congress on its loan decisions.
 3. Constitutional Commission deliberations show that Congress was expected to study these reports, investigate, and enact further safeguards when necessary.
- Other considerations affecting the strength of confidentiality include:
 1. **Timing** — contemporaneous disclosure/open deliberation has a greater chilling effect than subsequent disclosure.
 2. **Detail** — complete conversations versus summaries.
 3. **Audience** — general public versus a select few.

4. **Certainty** — routine disclosure versus disclosure upon a particular request.
 5. **Frequency** of disclosure.
 6. **Form** — live testimony, recordings, or affidavits.
- The nature of the information also matters, particularly whether it actually involves diplomatic, military, or national security secrets.

On the function impairment test

- The Court must balance **whether disclosure would impair the President's ability to perform her constitutional duties more than nondisclosure would impair the Senate's ability to perform its legislative functions.**
- The Senate must demonstrate a **specific need**, assessed through:
 - **Evidentiary need:** pertinency of the questions and lack of an effective substitute for the information.
 - **Constitutional need:** the effect of withholding the information on the Senate's performance of its functions.
- In *U.S. v. Nixon*, the evidentiary requirements were relevance, admissibility, and specificity under criminal-procedure rules. Here, **the applicable legislative standard is pertinency**; technical evidentiary rules do not govern the Senate inquiry in the same manner.

On the three disputed questions: pertinent, with no effective substitute

1. **Whether the President followed up the NBN project**
 - Concerns the **importance of the project to the President herself.**
 - Relevant to the inquiry into the project's legal and economic justification.
 2. **Whether Neri was dictated to prioritize ZTE**
 - Concerns the President's own considerations in choosing the ZTE arrangement involving a foreign loan.
 - Neri had testified that the President initially preferred a **no-loan, no-guarantee, unsolicited BOT arrangement**, which Amsterdam Holdings was offering.
 - The question therefore bears on **why the project shifted from that arrangement to the ZTE transaction**, possible violations of the BOT Law, procurement safeguards, and safeguards on foreign borrowing.
 3. **Whether the President said to go ahead and approve the project after being informed of the alleged bribe**
 - Concerns the decision to proceed despite the reported bribery attempt.
 - Relevant to the same inquiry into how and why the transaction was consummated and whether existing safeguards were inadequate.
- These questions relate to the Senate's inquiries into **possible anomalies, national security implications, and the project's legal and economic justification.**
 - They also directly relate to pending bills:
 - **SB 1793:** subjecting procurement funded through international agreements to Philippine procurement laws.
 - **SB 1794:** imposing safeguards on loans classified as Official Development Assistance.
 - **SB 1317:** requiring concurrence in international and executive agreements.
 - **No effective substitute exists:** the questions concern how the **President herself weighed the options** and what she communicated to Neri. General information about the project would not supply those answers.
 - The alleged motive of establishing presidential culpability does not defeat the inquiry. **Pertinence + lack of an effective substitute** satisfy the evidentiary aspect of the Senate's demonstrated need.

On balancing the actual impairment to each branch

- **Impairment to the Senate:** without the answers, it would be hampered in intelligently amending procurement and ODA laws and addressing the use of executive agreements to circumvent public bidding.
 - The Senate could theoretically draft legislation on assumptions, but **sound legislation requires a factual basis.**
 - Its task is to identify and remedy the actual defects in the procurement system, not legislate on speculation.
- **Claimed impairment to the President:** Neri's counsel relied on a generalized chilling effect and the possibility of public criticism.
 - An affirmative answer might allegedly suggest **undue interest** in the project.

- Prioritizing ZTE might invite condemnation from supporters of other projects.
- Puno pointed out that presidential interest is **not necessarily undue interest**. Counsel's claims rested on his own impressions of public opinion.
- There was **no specific proof that answering would significantly impair presidential functions**.
 - The inquiry was limited to three questions.
 - The underlying foreign-loan power was shared.
 - Diplomatic, military, and national security secrecy had not been substantiated.
 - Senate inquiries also have safeguards against indiscriminate investigation.
- **Balance favors the Senate:** its specific, demonstrated legislative need outweighs the generalized claim of confidentiality → **Neri should answer the three questions**.

On executive privilege and wrongdoing

- Executive privilege **cannot be used to conceal wrongdoing**, but an **allegation of wrongdoing does not automatically pierce presidential communications privilege**.
- *Nixon v. Sirica* and *Senate Select Committee v. Nixon* make the decisive inquiry the **institution's need for the information to perform its constitutional function**, not the suspected misconduct that disclosure might reveal.
- *In re Sealed Case (Espy)* likewise requires a **focused demonstration of need even where high-level misconduct is alleged**.
- Puno explains:
"It is after the privilege has been pierced by this demonstrated need that one can discover if the privilege was used to shield a wrongdoing, or if there is no wrongdoing after all. We should not put the cart before the horse."
- Thus, compelling disclosure **does not itself establish the President's guilt**. Wrongdoing remains a matter to be proved with evidence in the proper forum.

On negotiation and accommodation

- The branches should make reasonable efforts to accommodate each other's legitimate needs and avoid a constitutional confrontation.
- Accommodation is **not merely an exchange of concessions or a test of political strength**.
- Courts may facilitate intermediate arrangements: summaries, redacted documents, limited inspection, or **in camera** consideration.
 - In discussing *U.S. v. Nixon*, Puno emphasizes protecting irrelevant or genuinely privileged material from disclosure and restoring protected portions to their privileged status.
- These arrangements protect legitimate confidentiality while permitting the other branch to perform its constitutional work.

On the validity of the contempt and arrest order

- **Republication of Senate rules:** Puno would not invalidate the inquiry rules merely because they were not republished after an election.
 - Without conclusively resolving the broader continuing-body controversy, he relies on Senate precedents, customs, and practice.
 - Previously published rules without material changes should be deemed adopted and continued.
 - Republication would be an **unnecessary ritual**; the Court should be cautious in striking down a coequal branch's internal rules absent a clear constitutional violation.
- **Privilege over three answers did not excuse nonappearance.**
 - Ermita's letter merely **requested** that Neri's further testimony be dispensed with.
 - Neither Ermita nor Neri could assume that the next hearing would concern only the three disputed questions.
 - Neri could not anticipate that all further questions would be improper and simply refuse to attend.
- **Opportunity to explain:** although the arrest order listed several missed hearings, the show-cause notice concerned only the **November 20, 2007 hearing**.
 - Puno therefore examines the order's procedural validity on that basis, rather than treating Neri as having been required to explain all earlier absences.
- **Required majority vote was obtained in each committee:**
 - Blue Ribbon: **9 of 17**.
 - National Defense and Security: **10 of 19**.
 - Trade and Commerce: **5 of 9**.

	○ Even counting ex officio members, the majority requirement remained satisfied because all of them signed. ● Both substantive and procedural requirements were met → the Senate Committees did not gravely abuse their discretion in issuing the arrest order.
--	--

DIGEST MAKER: Kim Salvador

Chavez v. Public Estates Authority and Amari

Topic Subtopic	Requisites of Judicial Review: Actual Case or Controversy - Proper Party - Citizen Standing	GR No. & Ponente	G.R. No. 133250 Carpio, J.
Petitioner/s	Francisco I. Chavez	Respondent/s	Public Estates Authority and Amari Coastal Bay Development Corporation
Doctrine	A citizen or taxpayer has standing when asserting a public right (a right held collectively by the people) without needing to show specific personal injury. Standing is recognized where the issue involves transcendental importance, affecting public interest, national resources, or constitutional duties of government.		

FACTS

- Nov. 20, 1973 - The government, through the Commissioner of Public Highways, signed a contract with the Construction and Development Corporation of the Philippines (CDCP) to reclaim certain foreshore and offshore areas of Manila Bay.
- Feb. 4, 1977 - Then President Marcos issued PD No. 1048 creating the Public Estates Authority (PEA) which was tasked to "to reclaim land, including foreshore and submerged areas," and "to develop, improve, acquire, . . . lease and sell any and all kinds of lands." He also issued PD No. 1085 transferring to PEA the lands reclaimed under the Manila-Cavite Coastal Road and Reclamation Project (MCCRRP).
- Dec. 29, 1981 - PEA-CDCP contract amended so that "All future works in MCCRRP... shall be funded and owned by PEA"
- Apr. 9, 1988 - the Register of Deeds of the Municipality of Parañaque issued Transfer Certificates of Title Nos. 7309, 7311, and 7312, in the name of PEA, covering the three reclaimed islands known as the "Freedom Islands" (~158 hectares) located at the southern portion of the Manila-Cavite Coastal Road, Parañaque City.
- Apr. 25, 1955, - PEA entered into a Joint Venture Agreement (JVA) with AMARI, a private corporation, to develop the Freedom Islands, & without public bidding
 - Required reclamation of additional 250 hectares
- Nov. 29, 1996 - Senate President Maceda delivered a privilege speech denouncing JVA saying the "grandmother of all scams."
- Thereafter, a joint investigation was conducted by Senate Committee on Government Corporations and Public Enterprises, and the Committee on Accountability of Public Officers and Investigations
 - Conclusions:
 - (1) the reclaimed lands PEA seeks to transfer to AMARI under the JVA are lands of the public domain which the government has not classified as alienable lands and therefore PEA cannot alienate these lands
 - (2) the certificates of title covering the Freedom Islands are thus void
 - (3) the JVA is illegal
- April 4&5, 1998 - renegotiation reports under Fidel V. Ramos' orders.
- Apr. 13, 1998 - Zulueta filed a Petition for Prohibition with Application for the Issuance of a TRO and Preliminary Injunction, seeking to nullify JVA
 - Petition was dismissed - "unwarranted disregard of judicial hierarchy, without prejudice to the refile of the case before the proper court"
- Apr. 27, 1998 - Petitioner Chavez, as a taxpayer (also former SolGen), filed Petition for Mandamus with Prayer for the Issuance of a Writ of Preliminary Injunction and Temporary Restraining Order.
 - Grounds: government stands to lose billions of pesos in the sale by PEA of the reclaimed lands to AMARI

ISSUE/S (in the order that was resolved by the court)**ISSUE 1**

Side - Procedural ▾	Whether or Not the principal reliefs prayed for in the petition are moot and academic because of subsequent events	No ▾
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
- Presidential approval does not resolve the constitutional issue or remove it from the ambit of judicial review - Violates Section 3, Article XII of the Constitution, which prohibits the gov't from alienating lands of public domain to private corporations		- Amended JVA contains terms and conditions agreed upon in the renegotiations. - The amended JVA was already signed by the parties and approved by the President
RULING and RATIO DECIDENDI:		
- Signing and approval <u>does not render the petition moot</u> & divest the Court of its jurisdiction - If the amended JVA does violate the Constitution, it's the Court's duty to enjoin the implementation. - The amended JVA is not an ordinary commercial contract - 367.5 hectares of reclaimed lands will be sold to a single private corporation - concerns national patrimony - AMARI & PEA can't claim judicial confirmation of their titles because the lands covered are newly reclaimed or still to be reclaimed. - Amended JVA - to transfer 70% share in the reclaimed areas to AMARI - Allows AMARI to mortgage reclaimed are for financing		
LEGAL BASES		
Section 3, Article XII of the Constitution ...Alienable lands of the public domain shall be limited to agricultural lands. Private corporations or associations may not hold such alienable lands of the public domain except by lease, for a period not exceeding twenty-five years, renewable for not more than twenty-five years, and not to exceed one thousand hectares in area. Citizens of the Philippines may lease not more than five hundred hectares, or acquire not more than twelve hectares thereof by purchase, homestead, or grant. Taking into account the requirements of conservation, ecology, and development, and subject to the requirements of agrarian reform, the Congress shall determine, by law, the size of lands of the public domain which may be acquired, developed, held, or leased and the conditions therefor.		

ISSUE 2:

Side - Procedural ▾	Whether or Not the petition merits dismissal for failing to observe the principle governing the hierarchy of courts	No ▾
RESPONDENT/S ARGUMENTS:		
Petitioner ignored hierarchy by directly seeking relief from the Court.		
RULING and RATIO DECIDENDI:		
- The instant case raises constitutional issues of transcendental importance. - Petition for mandamus is under the original jurisdiction of the Court. - The Court can resolve the case.		
LEGAL BASES		
Section 5 Article VIII of the Constitution		

ISSUE 3:

Side - Procedural ▾	Whether or Not the petition merits dismissal for	No ▾
---------------------	--	------

	non-exhaustion of administrative remedies	
RESPONDENT/S ARGUMENTS:		
- Petitioner did not ask PEA first for the info, proceeded to the Court immediately. - Violates mandamus which may only be issued if there is no other plain, speedy and adequate remedy. - No statutory duty to disclose publicly info on renegotiations		
RULING and RATIO DECIDENDI:		
- JVA was a result of a negotiated contract, not a public bidding. - Under the Government Auditing Code, there was a legal duty to disclose to the public the terms and conditions for the sale of its lands, considering that public bidding was required - Petitioner had the right to seek direct juridical intervention - Exhaustion of administrative remedies not applicable when the question is purely legal/constitutional.		
LEGAL BASES		
Section 79 of the Government Auditing Code The disposition of government lands to private parties requires public bidding		

ISSUE 4: (issue in the syllabus)

Main - Procedural	Whether or Not the petitioner has locus standi to bring this suit	Yes
RESPONDENT/S ARGUMENTS:		
- Did not show that PEA refused to perform an affirmative duty imposed on PEA by the Constitution - Petitioner has not shown that he will suffer injury because of the JVA signing/implementation		
RULING and RATIO DECIDENDI:		
- Petitioner HAS legal standing - The petition seeks to compel PEA to comply w/ its constitutional duties (1) right of citizens to information on matters of public concern ->this mandates PEA to disclose info regarding the billion peso sale of gov't lands (2) insure equitable distribution of alienable lands of public domain among Filipinos ->prevents PEA from alienating lands of public domain in violation of the Consti - Petition has transcendental importance (Chavez v. PCGG) - The mere fact that he is a citizen satisfies the requirement of personal interest - Requisites to sustain legal standing - Enforcement of a public right - Espoused by a Filipino citizen		
LEGAL BASES		
Chavez v. PCGG Taxpayers have a right to initiate and prosecute actions questioning validity of acts of gov't agencies if issues raised are of paramount public interest and if they immediately affect the social, economic, and moral well-being of the people		
Tañada v. Tuvera and Legaspi v. Civil Service Commission		
- When the issue concerns a public right and the object of mandamus is to obtain the enforcement of a public duty, the people are regarded as the real parties in interest - citizenship is sufficient -> interested in the execution of the laws -> no need to show legal/special interest		

in the result of the action

Albano v. Reyes

- Public interest was involved in considering the important role of a contract in the economic development of the country and the magnitude of the financial consideration involved
 - Constitution's disclosure provision was sufficient to uphold petitioner's standing

Sec. 7, Article III of the 1987 Constitution

- The right of the people to information on matters of public concern shall be recognized. Access to official records, and to documents, and papers pertaining to official acts, transactions, or decisions, as well as to government research data used as basis for policy development, shall be afforded the citizen, subject to such limitations as may be provided by law.

ISSUE 5

Side - Substantive ▾	Whether or Not the constitutional right to information includes official information on on-going negotiations before a final agreement	Yes ▾
RESPONDENT/S ARGUMENTS:		
• Right to info is limited to definite propositions of the government. No need to disclose intra-agency or inter-agency recommendations during its exploratory stage. • Petitioner cannot invoke the right at pre-decisional stage/before closing the transaction, there must be a consummated contract first.		
RULING and RATIO DECIDENDI:		
• Provisions in the Constitution seek to promote transparency and accountability in government policies and operations. • These provisions allow discourse between the government and the people. • Before the consummation of the contract, PEA must disclose to the public the info on disposition of its property because the Government Auditing Code requires public bidding. • On on-going evaluation or review of bids, proposals won't be accessible under the right to info ◦ Committee's official recommendation -> definite proposition ■ From here, public's right to info attaches		
LEGAL BASES		
Section 7, Article III of the Constitution • The right of the people to information on matters of public concern shall be recognized. Access to official records, and to documents, and papers pertaining to official acts, transactions, or, decisions, as well as to government research data used as basis for policy development, shall be afforded the citizen, subject to such limitations as may be provided by law. Section 28, Article II of the Constitution • Subject to reasonable conditions prescribed by law, the State adopts and implements a policy of full public disclosure of all its transactions involving public interest. Valmonte v. Belmonte, Jr. • Dialogue can only be effective when participants have access to information Chavez v. PCGG • Considering the intent of the framers, gov't representatives must disclose public info on definite propositions of the government.		

ISSUE 6 (i think only the doctrines in bold are important)

Main - Substantive	Whether or Not the stipulations in the Amended JVA for the transfer to AMARI of lands, reclaimed or to be reclaimed, violate the Constitution	Yes
RESPONDENT/S ARGUMENTS:		
PD No. 1085 and 525 constitute legislative authority allowing PEA to sell its reclaimed lands		
RULING and RATIO DECIDENDI:		
Amended JVA is declared null and void ab initio - The 157.84 hectares of reclaimed lands are alienable lands of public domain. - PEA may lease these lands to private corporations but may not sell or transfer ownership. - PEA may only sell these lands to Philippine citizens - The 592.15 hectares of submerged areas of Manila bay remain inalienable and outside the commerce of man until classified as alienable/disposable lands open to disposition and declared no longer needed for public service. - Since the Amended JVA seeks to transfer to AMARI, a private ownership of 77.34 hectares, such transfer is void for being contrary to <u>Section 3, Article XII of the 1987 Constitution which prohibits private corporations from acquiring any kind of alienable land of the public domain</u> - Since the Amended JVA seeks to transfer 290.156 hectares of submerged areas of Manila bay, transfer is void for being contrary to <u>Section 2, Article XII of the 1987 Constitution which prohibits the alienation of natural resources other than agricultural lands of the public domain.</u> - Violates above sections of the 1987 Constitution and Art. 1409 of the Civil Code.		
LEGAL BASES		
Regalian Doctrine "All lands that were not acquired from the Government, either by purchase or by grant, belong to the public domain" - History: Spanish conquest -> ownership of lands in the Ph went to the Spanish Crown Philippine Commission Act No. 1654, Philippine Legislature Act No. 2874, Commonwealth Act No. 141/Public Land Act - Provided for/authorized the lease, but not the sale, of reclaimed lands of the government to corporations and individuals The Spanish Law of Waters of 1866 - land reclaimed from the sea belonged to the party undertaking the reclamation, provided the government issued the necessary permit and did not reserve ownership of the reclaimed land to the State The Civil Code of 1889 - The legislature, or the executive department pursuant to law, must declare the property no longer needed for public use or territorial defense before the government could lease or alienate the property to private parties. Act No. 1654 of the Philippine Commission - The government should retain title to all lands reclaimed by the government. - Private parties could lease (through public bidding) lands reclaimed by the government only if these lands were no longer needed for public purpose. - Made government reclaimed lands sui generis in that unlike other public lands which the government could sell to private parties, these reclaimed lands were available only for lease to private parties.		

Act No. 2874 of the Philippine Legislature

- The government could not sell government reclaimed, foreshore and marshy lands to private parties, unless the legislature passed a law allowing their sale.

Dispositions under the 1935 Constitution

- After the effectivity of the 1935 Constitution, government reclaimed and marshy disposable lands of the public domain continued to be only leased and not sold to private parties. These lands remained sui generis, as the only alienable or disposable lands of the public domain the government could not sell to private parties.

Commonwealth Act No. 141 of the Philippine National Assembly

- Remains the general law governing the classification and disposition of lands of the public domain other than timber and mineral lands.
- Before the government could alienate or dispose of lands of the public domain, the President must first officially classify these lands as alienable or disposable, and then declare them open to disposition or concession. There must be no law reserving these lands for public or quasi-public uses.
- Section 60 of CA No. 141 requires congressional authority before lands under Section 59 (which the government previously transferred to government units or entities) may be sold to private parties.
- Section 61 prohibits the sale of government reclaimed, foreshore and marshy disposable lands of the public domain. Only allows lease to private parties.

Dispositions under the 1973 Constitution

- Only agricultural lands of the public domain can be alienated.
- private corporations could hold alienable lands of the public domain only through lease. Only individuals could now acquire alienable lands of the public domain, and private corporations became absolutely barred from acquiring any kind of alienable land of the public domain

PD No. 1084 Creating the Public Estates Authority

- Authorizes PEA to reclaim both foreshore and submerged areas of the public domain. Foreshore areas are those covered and uncovered by the ebb and flow of the tide. Submerged areas are those permanently under water regardless of the ebb and flow of the tide. Foreshore and submerged areas indisputably belong to the public domain and are inalienable unless reclaimed, classified as alienable lands open to disposition, and further declared no longer needed for public service
- PEA can hold title to private lands, as well as title to lands of the public domain.
- Without legislative authority, PEA could not sell but only lease its reclaimed foreshore and submerged alienable lands of the public domain.

Dispositions under the 1987 Constitution

- Adopted the Regalian Doctrine
- Declares that all natural resources are "owned by the State," and except for alienable agricultural lands of the public domain, natural resources cannot be alienated.
- Bans private corporations from acquiring any kind of alienable land of the public domain, allows lease only

The Amended JVA

- Covers not only the Freedom Islands, but also an additional 592.15 hectares which are still submerged and forming part of Manila Bay.
- There is no legislative or Presidential act classifying these submerged areas as alienable or disposable lands of the public domain open to disposition.
 - These submerged areas are not covered by any patent or certificate of title.
 - These submerged areas form part of the public domain, and in their present state are inalienable and outside the commerce of man. Until reclaimed from the sea, these submerged areas are, under the Constitution, "waters . . . owned by the State, "forming part of the public domain and consequently inalienable."

PEA's Authority to Sell Reclaimed Lands

- PEA may sell to private parties its patrimonial properties in accordance with the PEA charter free from constitutional limitations. The constitutional ban on private corporations from acquiring alienable lands
- of the public domain does not apply to the sale of PEA's patrimonial lands.
- PEA may also sell its alienable or disposable lands of the public domain to private individuals since, with the legislative authority, there is no longer any statutory prohibition against such sales and the constitutional ban does not apply to individuals.
 - However, private corporations remain barred from acquiring any kind of alienable land of the public domain, including government reclaimed lands.

Article 1409 of the Civil Code

- contracts whose "object or purpose is contrary to law," or whose "object is outside the commerce of men," are "inexistent and void from the beginning."

ISSUE 7

Side - Substantive ▾	Whether or Not the Court is the proper forum to raise the issue of whether the Amended JVA is grossly disadvantageous to the government	No ruling ▾
RULING and RATIO DECIDENDI:		
No need to resolve, amended JVA is null and void ab initio. The Court is not the trier of facts, this issue involves determination of facts.		

FINAL DECISION	WHEREFORE, the petition is GRANTED. The Public Estates Authority and Amari Coastal Bay Development Corporation are PERMANENTLY ENJOINED from implementing the Amended Joint Venture Agreement which is hereby declared NULL and VOID ab initio. SO ORDERED.
-----------------------	---

KMU Labor Center v. De Garcia(1994)

Topic Subtopic	Requisites for Judicial Review Actual Case or Controversy - Proper Party - Associational Standing	GR No. & Ponente	G.R. No. 115381 Kapunan, J.
Petitioner/s	Kilusang Mayo Uno (KMU) Labor Center	Respondent/s	Hon. Jesus B. Garcia, Jr., the Land Transportation Franchising and Regulatory Board (LTFRB), and the Provincial Buses Operators Association (PBOA)
Doctrine	Courts may take on a case despite its lack of merit under the principle of <i>locus standi</i> , the Court may still take on the case due to its transcendental importance.		

FACTS

June 26, 1990 - Department of Transportation and Communications issued **Memorandum Circular No. 90-395**. This would allow provincial bus operators to charge passengers rates within a range of above 15% to below 15% for 1 year.

Remedios A.S. Fernando's memorandum to the Secretary of DOTC - He would raise 4 points essentially dissuading the DORC from continuing with this Memorandum Circular.

1. Procedural issues - Rates to be approved should be proposed by the public service operator, there should be a publication and notice to the concerned or affected parties. Hence, it is not legally feasible.
The **Public Service Act, Section 16**, would require all of the above
2. Allowing operators to charge above 15% after a devastating calamity which was the July 16th earthquake would not be socially warranted and would be politically unsound.
3. Rather than reduction, this will only cause an upward adjustment by 15% at a time of calamity would attack criticism.
4. DOTC and other agencies involved in public transportation can consider measures and reforms that are more socially uplifting

December 5, 1990 - PBOA P filed an application for fare reate increase

December 6, 1990 - PBOAP reduced its applied proposed fare due to an expected decrease of diesel prices

October 14, 1990 - LTFRB rendered a decision granting this fare in crease

March 1994 - PBOAP, availing itself of the deregulation policy of the DOTC allowing bus operators plus 20% and minus 25%

March 16, 1994 - KMU filed a petition before the LTFRB opposing the increase of bus fares

March 24, 1994 - issued one of the assailed orders dismissing the petition for lack of merit

KMU files an instant petition for certiorari with an urgent prayer for issuance of a temporary restraining order.

Their main arguments:

1. Authority given by respondent LTFRM to provincial bus operators to set a fare range over and above the existing authorized fare without filing a petition for that purpose is unconstitutional, invalid, and illegal.
2. Establishment of a presumption of public need in favor of an applicant for a proposed transport service without having to prove public necessity is illegal

June 20, 1994 - TRO was issued, prohibiting and preventing respondents from implementing bus fare increase.

PBOAP's Comment

- Did not directly discuss KMU's issues, but questions the wisdom and manner by which the petition was filed. **KMU has no legal standing.**

ISSUE/S**ISSUE 1**

Main - Procedural ▾	Whether or Not KMU has legal standing to sue.	Yes ▾
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
RULING and RATIO DECIDENDI:		
The principle of <i>locus standi</i> states that one has standing to sue if they are directly affected by and has interest is immediate and substantial in controversy. In application to the case at hand, KMU members often availed transports like buses, trains, and jeepsevery day, and as such, suffered grave and irreparable injury and damage from the implementation of these memoranda. Even if they did not have such, the Court would still take cognizance of the case due to its transcendental importance. The COurt adopts a liberal <i>locus standi</i>, allowing taxpayers, members of Congress, association of planters, and non-profit civil organizations		
LEGAL BASES		
Jurisprudence with similar situations wherein they did not have standing, but were thus given due to their transcendental importance 1. Emergency POver Cases a. Kilosbayan Inc. et. al. vs Teofisto Guingona b. Araneta v Dinglasan c. Araneta v. Angeles d. Guerrero v. Commissioner of Customs e. Barredo v. Commission on Elections		

ISSUE 2:

Main - Substantive ▾	Whether or Not LTFRB may grant the power to set a fare range to the buses.	No ▾
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
RULING and RATIO DECIDENDI:		
No. They may not. From the maxim of <i>Potestas delegata non delegari potest</i> (what has been delegated cannot be delegated). The legislature had granted the Public Service Commission the power to fix fare ranges. Nowhere in the provision does it say that they are allowed to also delegate these tasks to a common carrier, transport operator, or other public service.		
LEGAL BASES		
Panay Autobus Co. v. Philippine Railway Co. - They grant the authority to change its freight rates at will, but the Court declares that the Public Service Commission was not authorized by law to delegate to Philippine Railway Co. the power of altering its freight rates.		

FINAL DECISION	WHEREFORE The instant petition is GRANTED and the challenged administrative issuances and orders are declared contrary to law and invalid insofar as they affect provisions therein (a) delegating to provincial bus and jeepney operators the authority to increase or decrease the duly prescribed transportation fares; and (b) creating presumption of public need for service in favor of the applicant for a certificate of public convenience and placing the burden of proving that there is no need for the proposed service to the oppositor. The Temporary Restraining order issued on June 20, 1994 is hereby MADE PERMANENT in so far as it enjoined the bus fare rate increase granted under the provisions of the aforementioned administrative circulars, memoranda and/or orders declared invalid. SO ORDERED.

IBP v. Zamora (August 15, 2000)

Topic Subtopic	JUDICIAL REVIEW Requisites of Judicial Review: Actual Case or Controversy - Proper Party - Associational Standing	GR No. & Ponente	141284 PONENTE: Kapunan, J.
Petitioner/s	Integrated Bar of the Philippines	Respondent/s	Hon. Ronaldo B. Zamora, Gen. Panfilo M. Lacson, Ge. Edgar B. Aglipay, and Gen. Angelo Reyes
Doctrine	The President, as Commander-in-Chief, enjoys full discretionary power to determine the necessity of calling out the armed forces to prevent or suppress lawless violence, invasion, or rebellion. Such decision is considered a political question not subject to judicial review unless it is proven that there was grave abuse of discretion.		

FACTS
Year 2000: In view of the alarming increase in violent crimes in Metro Manila, like robberies, kidnappings, and carnappings, President Joseph Ejercito Estrada, in a verbal directive, ordered the PNP and the Marines to conduct joint visibility patrols for the purpose of crime prevention and suppression. Subsequently, he confirmed in a Memorandum dated January 24, 2000: - In the Memorandum he expressed his desire to improve the peace and order situation in Metro Manila through a more effective crime prevention program including increased police patrols. He declared that this shall merely be <u>temporary in nature and for a reasonable period only</u>, until such time when the situation shall have improved. - In doing so, he invoked his powers as Commander-in-Chief under Sec. 18, Article VII of the Constitution. LOI 02/2000: (Letter of Instruction in connection with the presidential mandate) – this detailed the manner how the joint visibility patrols, called <i>Task Force Tulungad</i>, would be conducted. - SITUATION: Criminal incidents in Metro Manila have been perpetrated not only by ordinary criminals but also by organized syndicates whose members include active and former police/ personnel whose training, skill, discipline and firepower prove well-above the present capability of the local police alone to handle. - The visibility patrols shall be conducted <u>jointly by the NCRPO</u> (National Capital Regional Police Office) and <u>the Philippines marines</u> to curb criminality in Metro Manila. And to preserve the internal security of the state against insurgents and other serious threat to national security January 17, 2000: the Integrated Bar of the Philippines (IBP) filed the instant petition to annul LOI 02/2000 and to declare the deployment of the Philippine Marines, null and void and unconstitutional, arguing that: (1) there’s no emergency situation in Manila that would justify the deployment of soldiers for law enforcement work; hence said deployment is in derogation of Article II, Section 3 of the Constitution (2) Said deployment constitutes as an insidious incursion by the military in a civilian function of government in derogation of Article XVI, Section 5(4) of the Constitution (3) Said deployment creates a dangerous tendency to rely on the military to perform the civilian functions of the government

ISSUE/S

ISSUE 1

Main - Procedural ▾	Whether or not petitioner has legal standing;	No ▾
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:	
IBP primarily anchors its standing on its alleged responsibility to uphold the rule of law and the Constitution. Apart from this declaration, however, the IBP asserts no other basis in support of its <i>locus standi</i> .		
RULING and RATIO DECIDENDI:		

NO. Petitioners have no legal standing "Legal standing" or locus standi has been defined as a personal and substantial interest in the case such that the party has sustained or will sustain direct injury as a result of the governmental act that is being challenged. • In the case at bar, The mere invocation by the IBP of its duty to preserve the rule of law and nothing more, while undoubtedly true, is not sufficient to clothe it with standing in this case. This is too general an interest which is shared by other groups and the whole citizenry. IBP, has not shown any specific injury which it has suffered or may suffer by virtue of the questioned governmental act. • Not only is the presumed "injury" not personal in character, it is likewise too vague, highly speculative and uncertain to satisfy the requirement of standing. Since petitioner has not successfully established a direct and personal injury as a consequence of the questioned act, it does not possess the personality to assail the validity of the deployment of the Marines.
--

LEGAL BASES

ISSUE 2

Main - Procedural -	Whether or not the President's factual determination of the necessity of calling the armed forces is subject to judicial review	UNDECIDED -
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
The IBP questions the basis for the calling of the Marines under Sec 18, Art. VII of the Constitution. According to the IBP, <u>no emergency exists that would justify the need for the calling of the military to assist the police force</u> , as it contends that no lawless violence, invasion or rebellion exist to warrant the calling of the Marines.		
RULING and RATIO DECIDENDI:		
The President did not commit grave abuse of discretion in calling out the Marines. • The court ruled that the calling-out power of the President is a discretionary power solely vested in his wisdom under Sec. 18, Article VII of the Constitution. Thus, the court cannot be called upon to overrule the President's wisdom or substitute its own. • The Court distinguished the calling-out power from the more extreme measures – suspension of the writ of habeas corpus and martial law declaration – which are subject to congressional and judicial review. In contrast, the calling-out power highlights the intent to grant the President the widest leeway and broadest discretion in using the power to call out because it is considered as the lesser and more benign power compared to the two. Both of which involve the curtailment and suppression of certain basic civil rights and individual freedoms. • “ <i>The determination of the necessity for the calling out power if subjected to unfettered judicial scrutiny could be a veritable prescription for disaster, as such power may be unduly straitjacketed by an injunction or a temporary restraining order every time it is exercised</i>”		
LEGAL BASES		
Section 18, Article VII of the Constitution, which embodies the powers of the President as Commander-in-Chief, provides in part: - “ <i>The President shall be the Commander-in-Chief of all armed forces of the Philippines and whenever it becomes necessary, he may call out such armed forces to prevent or suppress lawless violence, invasion or rebellion. In case of invasion or rebellion, when the public safety requires it, he may, for a period not exceeding sixty days, suspend the privilege of the writ of habeas corpus, or place the Philippines or any</i>		

part thereof under martial law.”

ISSUE 3

Main - Substantive	Whether or not the calling of the armed forces to assist the PNP in joint visibility patrols violates the constitutional provisions on civilian supremacy over the military	No
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
RULING and RATIO DECIDENDI:		
NO. The deployment of the Marines does not violate the civilian supremacy clause nor does it infringe the civilian character of the police force. • The calling of the Marines in this case constitutes permissible use of military assets for civilian law enforcement. The participation of the Marines in the conduct of joint visibility patrols is appropriately circumscribed. • Under the LOI, the police forces are tasked to brief or orient the soldiers on police patrol procedures. It is their responsibility to direct and manage the deployment of the Marines. It is, likewise, their duty to provide the necessary equipment to the Marines and render logistical support to these soldiers. In view of the foregoing, it cannot be properly argued that military authority is supreme over civilian authority. The present petition also appeared to be anchored on fear that once the armed forces are deployed, the military will gain ascendancy, and thus place in peril our cherished liberties. Such apprehensions, however, are unfounded. The power to call the armed forces is just that — calling out the armed forces. Unless, petitioner IBP can show, which it has not, that in the deployment of the Marines, the President has violated the fundamental law, exceeded his authority or jeopardized the civil liberties of the people, this Court is not inclined to overrule the President's determination of the factual basis for the calling of the Marines to prevent or suppress lawless violence.		
LEGAL BASES		

FINAL DECISION	SO WHEREFORE, premises considered, the petition is hereby DISMISSED. SO ORDERED.
----------------	---

SEPARATE OPINION/S

MENDOZA, J, Concurring and Dissenting	Concurring • Petitioner had no standing to question the validity of LO 02/2000. • Its interest in upholding the Constitution was indistinguishable from the interest of the rest of the citizenry • A constitutional challenge requires an “injury in fact”, meaning the party must be himself among those injured • Thus, the petition should be dismissed for lack of standing and lack of an actual case or controversy Dissenting • Stated that the court should not rule on the substantive constitutional issues without an actual case involving parties who suffered real and substantial injuries.
---	---

	Because of absence of real parties, there was no evidence showing whether the military presence in malls and commercial centers was “coercive or benign” • The President’s power to call out the armed forces requires proof and not mere assertion that it is necessary for public safety. • Without a real controversy, ruling on the constitutional issues would impoverish the judicial process.
--	---

Executive Secretary v Court of Appeals - 2004

DIGEST MAKER: Donds

Executive Secretary v. Court of Appeals (2004)

Topic Subtopic	Requisites of Judicial Review: Actual Case or Controversy - Proper Party - Associational Standing	GR No. & Ponente	131719 CALLEJO, SR., J
Petitioner/s	THE EXECUTIVE SECRETARY, THE SECRETARY OF JUSTICE, THE SECRETARY OF LABOR AND EMPLOYMENT, AND THE SECRETARY OF FOREIGN AFFAIRS, OWWA ADMINISTRATOR, and POEA ADMINISTRATOR	Respondent/s	THE HON. COURT OF APPEALS and ASIAN RECRUITMENT COUNCIL PHILIPPINE CHAPTER (ARCO-PHIL.), INC
Doctrine	In relation to Associational Standing: Third-party standing would be recognized if it can be shown that the party suing has a substantial relation to the third party.		

FACTS

Index Card Summary:

- RA 8042 took effect on July 15, 1995. Before it took effect, ARCO filed a petition that assails the constitutionality of certain penal and procedural provisions in RA 8042. It also sought a writ of preliminary injunction to stop the petitioners from implementing it.
- The law basically aims to stop illegal recruitment (and imposes heavy penalties for such actions) and only allows deployment of skilled workers. ARCO feared that it would suffer greatly from the law should it be implemented.
- RTC QC ruled in favor of ARCO and issued a TRO. the CA later affirmed the RTC's decision.

Full Summary of Facts:

- Republic Act No. 8042 (aka the Migrant Workers and Overseas Filipinos Act [MWOFA]) took effect on July 15, 1995. Its implementing rules and regulations was published on **April 7, 1996** in an issue of the Manila Bulletin.
- **Before the law took effect**, Respondent ARCO, representing 11 members, filed, on **July 17, 1995**, a petition for declaratory relief under with RTC of Quezon City to **declare Section 2 paragraph (g), Section 6, paragraphs (a) to (j), (l) and (m), Section 7, paragraphs (a) and (b), and Sections 9 and 10 of the law as unconstitutional**, with the following pleas:
 - **Issuance of a temporary restraining order and/or**
 - **Writ of preliminary injunction** in order to enjoin the respondents from enforcing the assailed law.
 - **The provision's contents** are as follows:
 - Gov't can only allow the deployment of skilled Filipinos.
 - Illegal recruitment: deemed committed by a syndicate if carried out by a group of 3 persons or more
 - The maximum penalty is life imprisonment if found guilty
 - Gov't employees and relatives up to 4th degree of consanguinity are not allowed to engage in the business of recruiting migrant workers.
 - The Labor Arbiter has 90 days to hear and decide complaints arising from the law.
- The RTC QC issued a temporary restraining order effective only 20 days. It reasoned that it wanted to uphold **status quo**, and with the effectivity of the assailed law, many recruitment agencies have stopped or suspended operations for fear of prosecution. The loss or injury that the recruitment agencies will suffer will then be immeasurable and irreparable. A **NOTE: RTC QC DID NOT specify ANY legal bases for the decision. It was speculative.**
- After hearing the oral arguments, the trial court issued a writ of preliminary injunction upon a bond of

50,000 on Aug 21, 1995. On Aug 24, 1995, after paying the said bond, it issued another preliminary injunction enjoining the enforcement of the said assailed provisions in the law.

- ARCO's arguments:
 - The assailed law discriminated against unskilled workers and families
 - Equal protection clause is violated as only skilled workers are allowed
 - Unskilled workers also have the right to find employment abroad
 - The grant of incentives to service contractors and manning agencies except other licensed ones, is invalid.
 - The assailed provisions place legal recruiters with illegal recruiters on equal footing.
 - The penalties are harsh and discourage business operations
 - The 90 day period in Section 10 regarding the arbiter's decision on money claim is short and deprives the respondent of the right of due process
 - The aforementioned provisions of the law are unconstitutional.
- Petitioner's Arguments:
 - Respondent is not the real party in interest
 - Only licensed agencies and unskilled workers will be affected, and not the respondent.
 - ARCO needs preponderance of evidence of injury, but failed to show it
 - The Petition a quo was premature
 - ARCO failed to establish the requisites for a writ preliminary injunction.
- Petitioners filed for certiorari with the Court of Appeals assailing the order and the writ of preliminary injunction, however, the appellate court dismissed the petition and affirmed the assailed order.

ISSUE/S

[All bold text in the ratio = important doctrine for your quick reference and notes]

ISSUE 1:

Main - Substantive -	Whether or Not the Respondent has Locus Standi to file the petition in the RTC in representation of its 11 members.	Yes -
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
- Respondents have no standing. - Respondents do not have real party in interest - Respondents failed to show Articles of Incorporation and the resolutions of the members - Respondent is service oriented vs profit oriented members		- It has locus standi
RULING and RATIO DECIDENDI:		
<i>It has locus standi to represent its members but NOT unskilled workers.</i> Qualification: 1. <i>The respondent has locus standi with regards to the representation of its members since it and its members are identical.</i> a. <i>Third party standing would be recognized if it can be shown that the party suing has</i>		

substantial relation to the third party.

- b. Here, ARCO was formed for the purposes of promoting and supporting the growth of its members and to act as representative of any individual or member on matters related to manpower recruitment industry.
 - c. Thus, ARCO is the appropriate party to represent its members.
2. HOWEVER, the respondent does not have standing to file for petition in behalf of unskilled workers.
- a. It failed to implead any unskilled workers in its petition.
 - b. Respondent failed to comply with Section 2 Rule 63 of RoC

LEGAL BASES**Telecommunications and Broadcast Attorneys of the Philippines v Commission on Elections**

- " we held that **standing jus tertii would be recognized only if it can be shown that the party suing has some substantial relation to the third party**, or that the right of the third party would be diluted unless the party in court is allowed to espouse the third party's constitutional claims

ISSUE 2:

Main - Substantive ▾	Whether or Not the assailed order and writ of preliminary injunction is mooted by case law. [as stated in the case] OR Whether or not the assailed provisions in the law are unconstitutional.	Yes ▾
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
		- Members are exposed to immediate danger of being deprived of their livelihood. - They may face stigma of being labelled as illegal recruiters - Agencies have stopped their operations for the fear of excessive fines and punishment.
RULING and RATIO DECIDENDI:		
- The Court, based on previous rulings, affirmed the validity and constitutionality of the assailed penal and procedural provisions and penalties of the said law. - Jurisprudence stemming from when RA 8042 and its penal and procedural provisions took effect shows that it was not unconstitutional: - People v Chowdury - illegal recruitment is a crime of economic sabotage; an employee can be held liable as principal if it is shown that he has actively and consciously participated in illegal recruitment. - People v Diaz - RA 8042 is but an amendment of Labor Code of the Philippines and it is not an ex post facto law. - JMM Promotion & Management v Court of Appeals - the state has police power to regulate a business or profession especially when their conduct affects the execution of governmental functions, preservation of the state, and public health and welfare and morals.		

ISSUE 3:

Main - Substantive ▾	Whether or Not the Trial Court committed a grave abuse of discretion amounting to excess or lack of jurisdiction in: Issuing the assailed order Issuing the writ of preliminary injunction for a bond of only 50K AND Whether or not the Appellate Court Erred in affirming the RTC's decision.	Yes ▾
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
- Respondents have no standing. - Respondents do not have real party in interest - Respondents failed to show Articles of Incorporation and the resolutions of the members - Respondent is service oriented vs profit oriented members - The 50K bond is inadequate for the damages the public has suffered in the injunction of the law		- It has locus standi - The bond was sufficient for the damages its members has incurred. - The assailed law exposed its members to the immediate and irreparable damage of being deprived of the right to livelihood without due process. - The goal of eradicating illegal recruiters should not be at the expense of licensed agencies
RULING and RATIO DECIDENDI:		
- <i>Social Security Commission v. Judge Bayona</i> - law is considered constitutional unless otherwise declared by judicial interpretation. - <i>The suspension of the operation of a law is delicate because it interferes with official acts.</i> - To be granted a preliminary injunction to enjoin the enforcement of a law assailed as unconstitutional, - 1. the party must establish that it will suffer irreparable harm in the absence of injunctive relief and - 2. must demonstrate that it is likely to succeed on the merits, or that there are sufficiently serious questions going to the merits and the balance of hardships tips decidedly in its favor. - The respondent has not shown: - <i>conclusively that it will suffer serious damages from the penal provisions in the Act.</i> - <i>Evidence that its members stopped operations because of fear of indictment</i> - <i>That any of its members executed the prohibited acts prescribed in the Law.</i> - <i>Any irreparable injury from the implementation of the law.</i> - <i>An injunction will alter, not maintain, the status quo.</i> - <i>The fear or chilling effect of the provision's penalties does not render it unconstitutional.</i> - <i>It does not prohibit the state from enforcing acts, in good faith, against those who are punishable under law.</i> - <i>The issuance of the writ of preliminary injunction has stopped the prosecution of illegal recruiters, therefore it is more damaging in whole.</i>		

FINAL DECISION

IN LIGHT OF ALL THE FOREGOING, the petition is GRANTED. The assailed decision of the appellate court is REVERSED AND SET ASIDE. The Order of the Regional Trial Court dated August 21, 1995 in Civil Case No. Q-95-24401 and the Writ of Preliminary Injunction issued by it in the said case on August 24, 1995 are NULLIFIED. No costs.
SO ORDERED

Digest Maker: Mikaella Patricia Ledbetter

GMA Network, Inc. v. Commission on Elections [2014]

Topic Subtopic	Requisites of Judicial Review: Actual Case or Controversy - Proper Party - Associational Standing	Doctrine	Locus standi is relaxed when the matter raised to the court is one of urgency or transcendental importance to public interest. Associational standing — A petitioner may file the action on behalf of its members / patrons whose rights are violated, whether or not the petitioner suffers a direct injury.
Petitioner/s	GMA NETWORK, INC., SENATOR ALAN PETER CAYETANO , petitioner-Intervenor	Respondent/s	COMMISSION ON ELECTIONS
GR No.:	205357	Ponente	PERALTA, J

FACTS

RA No. 9006 (Fair Election Act) regulates orderly and honest conduct in elections. Specifically, **Section 6** provides:
Sec 6. Equal Access to Media Time and Space. — All registered parties and bona fide candidates shall have equal access to media time and space. The following guidelines may be amplified on by the COMELEC:

Airtime limits as provided by the statute:

National positions: 120 mins for TV, 180 mins for radio

Local positions: 60 mins for TV, 90mins for radio

During 2007 and 2010 elections, COMELEC issued Resolutions implementing wherein the limit is **per station**.
— BUT suddenly for 2013 elections, COMELEC issued **Resolution No. 9615** where airtime limits were changed from “per station” to **“total aggregate”**.

Multiple broadcast companies and the national organization for such (KBP), wrote to COMELEC and questioned the new resolution’s several provisions.

Senator Alan Peter S. Cayetano as petitioner-intervenor → filed a Motion for Leave to Intervene and to File and Admit the Petition-in-Intervention.

- a) Section 1 (4)
 - o **Defines** the term "political advertisement" or "election propaganda,"
- b) Section 7 (d),
 - o **provides penalty** of suspension or revocation of an offender's franchise or permit,
 - o **imposes criminal liability** against broadcasting entities and their officers in the event they sell airtime in excess of the size, duration, or frequency authorized in the new rules;
- c) Section 9 (a),
 - o **"aggregate total"** airtime instead of the previous "per station" airtime for political campaigns / ads,
 - o also required **prior COMELEC approval for candidates' television and radio guestings** / appearances; and
- d) Section 14,
 - o provides for a candidate's "right to reply" to charges aired against them
- e) Section 35,
 - o states that any violation of said Rules shall constitute an election offense.

COMELEC then held public hearings and issued **Resolution No. 9631 amending some provisions of 9615**.
Petitioners found revisions still unacceptable and took the case to SC.

SC issued TRO given urgency of the matter and in order to prevent injury to petitioners. After several exchanges, **petitions were consolidated**.

ISSUE/S

PROCEDURAL

ISSUE 1: WN certiorari and prohibition are proper remedies that the petitioners took to assail the provisions of the COMELEC Resolutions.	
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
COMELEC's own Rules of Procedure allow for certiorari in response to its orders. Declaratory relief doesn't nullify assailed statutes or grant injunctive relief.	The remedies petitioners seek are not available to them because writs of certiorari and prohibition do not lie against COMELEC's administrative / rulemaking powers. Petitioners should have petitioned for declaratory relief instead.
RULING and RATIO DECIDENDI	
<i>Respondents have a point but the transcendental issues and urgency of the case call upon the Court to review petition despite the improper remedy.</i> - Result of the 2013 elections does not render the issues moot and academic. Elections are a regular occurrence, thus the matters raised are susceptible to repetition.	
LEGAL BASES	
Section 1, Rule 37 of the COMELEC Rules of Procedure Section 1. Petition for Certiorari; and Time to File. — Unless otherwise provided by law, or by any specific provisions in these Rules, any decision, order or ruling of the Commission may be brought to the Supreme Court on certiorari by the aggrieved party within thirty (30) days from its promulgation.	

ISSUE 2: WN the petitioners have standing in the case.	
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
Threatened injury of criminal liability from failure to strictly monitor airtime = unconstitutional burden.	Petitioners don't have locus standi. The rights they enumerate aren't personal to them, they are imposed on candidates. "Fear of injury" = speculative
RULING and RATIO DECIDENDI	
<u>YES</u> For CAYETANO - Definitely has standing for an intervenor since he is a candidate whose campaign is directly affected. For BROADCAST COMPANIES - Direct injury = potentially impacted ability to carry out task of disseminating information. - Even without a direct relationship with them, petitioners can raise issues in behalf of their clients/patrons (<i>in this case, the public relying on media for information</i>) based on the threatened liberties of this said 3rd party [i.e. freedom of speech and the public's constitutional right to information] - <i>Overbreadth Doctrine</i> = a rule or statute cannot be designed to be so broad in that it affects even	

protected speech
LEGAL BASES
White Light Corp. v. Manila → issue of WN establishments can assert their standing as that in behalf of their patron's equal protection rights (yes)

SUBSTANTIVE

ISSUE 3: WN it is in the power of COMELEC to drastically reduce the airtime limits in electoral campaigning.	
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
COMELEC conducted grave abuse of discretion and acted without jurisdiction. Cayetano: COMELEC didn't show empirical data to back its reasons for the change.	COMELEC has the right to amplify the meaning of the airtime limits provided in RA 9006. Not required by law to use empirical data. <i>"Nobody can encroach in our right to amplify."</i> Airtime limit is in accordance with RA 9006 and is meant to equalize access to media during elections. It levels opportunities between wealthier candidates and those with less resources.
RULING and RATIO DECIDENDI	
<u>NO.</u> 1. It is true that COMELEC's authority stems from RA 9006 (Fair Election Act), however, using this as the sole basis for a major modification of the rules is insufficient reasoning and is a nonchalant exercise of discretion. "leveling the playing field" is repeatedly referenced, but there is no solid basis for this. 2. COMELEC went beyond its authority granted to it by providing a rule that tried to expand / add onto / replace an existing statute with its own idea of what the law should be. a. Legislative intent (based on earlier deliberations) pointed to a "per station" basis 3. COMELEC is duty bound to come up with reasonable basis for changing the interpretation and implementation of the airtime limits	
LEGAL BASES	

ISSUE 4: WN Section 9a of Resolution No. 9615 on airtime limits goes against constitutional rights of people.	
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
Aggregate airtime limit imposes a chilling effect on the freedom to speech, press, expression, and information. - GMA estimates a candidate will only have 21 seconds per day in the 88-day campaign period if the aggregate airtime limit is imposed..	Constitution itself limits this freedom to ensure equal opportunities among candidates. Airtime limit does not violate equal protection because it doesn't discriminate between natl./local broadcast stations

RULING and RATIO DECIDENDI	
YES —> Freedom of expression / press + right to suffrage. Equal opportunities is a legitimate concern BUT freedom to speak is useless without the ability to communicate effectively, “Aggregate” based airtime limits unreasonably restrict the freedom and ability of candidates / parties to reach out to the people. • Less airtime = less range of issues discussed in broadcasted campaigns • PH has a diverse set of languages. It is difficult to express oneself in a linguistically accessible campaign if airtime limits are oppressive. Hampered communication also violates the right to suffrage. The people are entitled to an informed and intelligent exercise of vote.	
LEGAL BASES	

ISSUE 5: WN Resolution No. 9615 imposes an unreasonable burden on the broadcasting industry.	
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
The notice requirement is an impossible burden and infringes freedom to speech, press, expression, and information. The failure to strictly monitor airtime duration risking criminal liability is an unconstitutional burden.	Petitioners are only required to inform COMELEC of appearances. The contents of expression are not regulated.
RULING and RATIO DECIDENDI	
NO. COMELEC’s monitoring requirement is reasonable. Despite SC view on past issues, the monitoring provision merely facilitates COMELEC’s goal of ensuring equal opportunities between candidates. A directive to give prior notice is not duly burdensome and unreasonable.	
LEGAL BASES	

ISSUE 6: WN Resolution No. 9615 needs prior hearing before adoption	
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
No prior hearing = violating petitioners’ right to due process.	
RULING and RATIO DECIDENDI	
YES. The change in the ruling is noticeably drastic, thus, the mere explanation or publication after adoption is not	

enough. Due process = When the change in a ruling increases the burden, it must at least give a chance for those affected to be heard before such a rule takes effect.
LEGAL BASES

ISSUE 7: WN the “right to reply” is reasonable.	
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
“Right to reply” provision is unconstitutional for being an improper exercise of the COMELEC's regulatory powers	The assailed Resolutions merely give the candidate or party the right to reply to such charges published or aired against them in news broadcasts. "Charges" against candidates or parties must be understood in the ordinary sense (accusations or criticism) “Right to reply is enshrined in the Constitution and RA 9006; petitioner sounds like they attack the constitutionality of the very law they depend their arguments on.
RULING and RATIO DECIDENDI	
<u>YES.</u> “Right to reply” provision = reasonable and consistent with the constitutional mandate that balances between press freedom and the demands of a right-to-reply.	
LEGAL BASES	

FINAL DECISION	WHEREFORE, premises considered, the petitions are PARTIALLY GRANTED , - Section 9 (a) of Resolution No. 9615, as amended by Resolution No. 9631, is declared UNCONSTITUTIONAL and, therefore, NULL and VOID. - The constitutionality of the remaining provisions of Resolution No. 9615, as amended by Resolution No. 9631, is upheld and remain in full force and effect. In view of this Decision, the Temporary Restraining Order issued by the Court on April 16, 2013 is hereby made PERMANENT.
-----------------------	--

Information Technology Foundation of the Philippines v COMELEC (2004)

Topic Subtopic	Requisites of Judicial Review: Actual Case or Controversy - <u>Proper Party - Taxpayer's Standing</u> Main Decision	GR No. & Ponente	GR 159139, Panganiban J.
Petitioner/s	INFORMATION TECHNOLOGY FOUNDATION OF THE PHILIPPINES, MA. CORAZON M. AKOL, MIGUEL UY, EDUARDO H. LOPEZ, AUGUSTO C. LAGMAN, REX C. DRILON, MIGUEL HILADO, LEY SALCEDO, and MANUEL ALCUAZ JR.,	Respondent/s	COMMISSION ON ELECTIONS; COMELEC CHAIRMAN BENJAMIN ABALOS SR.; COMELEC BIDDING and AWARD COMMITTEE CHAIRMAN EDUARDO D. MEJOS and MEMBERS GIDEON DE GUZMAN, JOSE F. BALBUENA, LAMBERTO P. LLAMAS, and BARTOLOME SINOCRUZ JR.; MEGA PACIFIC eSOLUTIONS, INC.; and MEGA PACIFIC CONSORTIUM
Doctrine			

FACTS

History¹

Main Case:

On January 24, 2003, President Gloria Macapagal-Arroyo issued EO 172, which allocated Php2.5 Billion and an additional Php500 million (upon the request of COMELEC) to fund the Automated Election System (AES) for the May 10, 2004 election.

COMELEC issued an invitation to apply for eligibility and bid. The public bidding will be done in a two-envelope/two-stage system. The first envelope is the eligibility envelope which must establish the eligibility of the bidder, and the second envelope contains the bid itself.

Out of 57 bidders, the Bids and Awards Committee (BAC) found Mega Pacific Consortium (MPC) and Total Information Management Corporation (TIMC) to be eligible and they were referred to the BAC's Technical Working Group and DOST for technical evaluation. However, the result of evaluation from DOST showed that both MPC and TIMC had obtained a number of failed remarks. Nevertheless, COMELEC still awarded the project to MPC and publicized this resolution (Res. 6074) on May 16, 2003.

On May 29, 2003 five petitioners wrote a letter of protest to the COMELEC Chairman citing the noncompliance with the eligibility requirement and sought a re-bidding. However, the COMELEC chairman rejected the complaint which led to the petitioners to file a petition under Rule 65 (Certiorari, Prohibition, and Mandamus) to

1. Declare Null and Void Resolution 6074 awarding the project to MPC
2. To prohibit the implementation of any further contract that may be entered with MPC or MPEI
3. To compel the COMELEC to conduct a re-bidding

ISSUE/S

ISSUE 1

Main - Procedural	Whether or Not the petitioners have locus standi?	Yes
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:	
Suing in their capacities as taxpayers, registered voters and concerned citizens — respond that the issue is “of transcendental importance and of national interest.” Allegedly, Comelec's flawed bidding and questionable award of the Contract to	Petitioners do not possess <i>locus standi</i> since they are not challenging the validity or constitutionality of RA 8436. Moreover, petitioners supposedly admitted during the Oral Argument that no law had been violated by the award of the Contract. Furthermore, they allegedly	

an unqualified entity would impact directly on the success or the failure of the electoral process.	have no actual and material interest in the Contract and, hence, do not stand to be injured or prejudiced on account of the award.
RULING and RATIO DECIDENDI:	
YES. The fact that the result of the election is vital in the country's political and economic future makes the issue a "paramount public interest" or "of transcendental importance," and this alone will give the petitioners legal standing. Additionally, the petitioners are allowed to sue as taxpayers, especially that the petitioner seeks to restrain COMELEC from implementing an unwarranted expenditure of public funds (since MPC is not a qualified entity).	
LEGAL BASES	
Legal standing as tax payers is allowed when: 1. There is a claim of illegal disbursement of public funds 2. Public money is being deflected to any improper purpose 3. Wasting public funds through the enforcement of invalid or unconstitutional law	

ISSUE 2:

Side - Substantive ▾	Whether or Not the petition is premature due to the non-exhaustion of administrative remedies	No ▾
RESPONDENT/S ARGUMENTS:		
The petitioners did not exhaust all administrative remedies. The petition should have been appealed to the COMELEC en banc, and in the absence of such appeal, the determination and recommendation of BAC has become final. Notes only: Appeal Process - Section 55 of RA 9184 states that protests against decisions of the Bidding and Awards Committee in all stages of procurement may be lodged with the head of the procuring entity by filing a verified position paper and paying a protest fee. - Section 57 of the same law mandates that in no case shall any such protest stay or delay the bidding process, but it must first be resolved before any award is made. - Section 58 provides that court action may be resorted to only after the protests contemplated by the statute shall have been completed. Cases filed in violation of this process are to be dismissed for lack of jurisdiction.		
RULING and RATIO DECIDENDI:		
No. The letter of protest is already a sufficient compliance to exhaust all remedies. And even without the letter of protest, the petitioners need not to exhaust administrative remedies based on (7), (10), and (11) of <i>Paat v Court of Appeals</i>. Notes only: Regarding the appeal process The COMELEC en banc issued the resolution on April 15, 2003 even before BAC issued its written report on April 23, 2003 which will not allow the petitioner to follow the proper process as claimed by COMELEC. It was found out that the COMELEC en banc just received a verbal report from BAC when it awarded the contract to MPC. The BAC submitted the written report on a later date.		
LEGAL BASES		

Paat v. Court of

Appeals. 29 Paat enumerates the instances when the rule on exhaustion of administrative remedies may be disregarded, as follows:

- (1) when there is a violation of due process,
- (2) when the issue involved is purely a legal question,
- (3) when the administrative action is patently illegal amounting to lack or excess of jurisdiction,
- (4) when there is estoppel on the part of the administrative agency concerned,
- (5) when there is irreparable injury,
- (6) when the respondent is a department secretary whose acts as an alter ego of the President bears the implied and assumed approval of the latter,
- (7) when to require exhaustion of administrative remedies would be unreasonable,
- (8) when it would amount to a nullification of a claim,
- (9) when the subject matter is a private land in land case proceedings,
- (10) when the rule does not provide a plain, speedy and adequate remedy, and
- (11) when there are circumstances indicating the urgency of judicial intervention.

ISSUE 3:

Main - Substantive	Whether or Not Resolution 6074 awarding the project to MPC is valid	No
PETITIONER/S ARGUMENTS: RESPONDENT/S ARGUMENTS:		
1. MPC did not participate in the bidding process 2. MPEI was allowed to participate even it is not eligible 3. Issued the award on April 15, even BAC's written report was submitted on April 21 4. Refuse to declare a failed bidding even the bidders failed the technical evaluation 5. Failed to follow the bidding process under RA 8436		
RULING and RATIO DECIDENDI:		
NO. Resolution No. 6074 is null and void. The court focused on the following issues: a. Failure to Establish the Identity and Eligibility of MPC as a bidder In its intent letter to bid, the signatory is Willy Yu, president of MPEI. The respondents argued that the bidder was Mega Pacific Consortium (MPC) and that Mega Pacific eSolutions, Inc. (MPEI) was merely the lead company of that consortium, without any other proof for consortium. The contract was awarded to MPC although the consortium had not properly established; thus, affecting its eligibility as the bidder. b. Failure of Automated Counting Machines to pass DOST test The evaluation test showed that both MPC and TIMC failed some key requirements such as meeting the accuracy of 99.9995%, failure of the system to detect previously downloaded data, and inability to print audit trail without any loss of data. c. Re-medial measures and re-testing undertaken by COMELEC and DOST after the award Respondents argued that the short-comings may be rectified according to BAC's report. However, the DOST was not consulted whether the short-comings may be rectified by reprogramming the software. Moreover, the software presented was a demo version and there is no final date when the final version will be available.		
LEGAL BASES		
Section 5.4 (a) (iii) of the IRR for RA 6957 as amended. If the project proponent is a joint venture or consortium, the members or participants thereof are required to submit a sworn statement that, if awarded the contract, they shall bind themselves to be jointly, severally and		

solidarily liable for the project proponent's obligations thereunder. This provision was supposed to mirror

Section 5 of RA 6957, as amended, which states:

"In all cases, a consortium that participates in a bid must present proof that the members of the consortium have bound themselves jointly and severally to assume responsibility for any project. The withdrawal of any member of the consortium prior to the implementation of the project could be a ground for the cancellation of the contract."

FINAL DECISION

WHEREFORE, the petition is granted. Resolution 6074 is null and void.
SO ORDERED.

SEPARATE OPINION/S

DAVIDE Jr, CJ
dissenting

Joins Vitug in opinion to dismiss this case.

The Court didn't issue a TRO - showed that on its face the allegations on the petition were insufficient to justify or warrant the grant of a TRO

At the time, the parties were not barred from performing their obligations under the contract. So COMELEC already paid a large part of their obligation and the private respondent also delivered the equipment for automation.

It is reasonably presumed that at that same period, COMELEC exerted a lot of effort in making sure the Automated Election System for May 2004 elections is successful. Nullifying the contract that late into the plan may be disruptive.

- not enough time to prep for manual elections (acquiring and printing needed resources like ballot boxes)
- a lot of budget allocated for the automated election system would be useless since no time to conduct re-bidding

Graft and corruption + excessive and an unreasonable contract price were not brought up. Petitioners only alleged flawed bidding and award process (they said respondents "*acted without or excess of its jurisdiction or with grave abuse of discretion amounting to lack or excess of jurisdiction when it awarded the project*"). It may be premature to void the contract.

VITUG, J, *dissenting*

Direct resort to SC (skipping lower courts) for issuance of writs is only allowed in certain situations

- 1) exceptional and compelling reasons
- 2) no factual disputes needed to be resolved in lower court

The issue in the petition is the legality of the COMELEC's contract award to Mega Pacific for automated counting machines under questionable circumstances. The **Supreme Court does not review facts or evidence**; those petitions are only appropriate if no other adequate legal remedy is available.

In cases of certiorari or prohibition, jurisdictional issues CAN be decided on undisputed facts. BUT THIS petition involves **substantial factual disputes**

	(i.e. Mega Pacific's eligibility for bidding, the validity of testing, tech eval by DOST on the automated counting machines. Resolving these issues would need detailed factual inquiry = since facts not yet settled = court's intervention inappropriate. Although the electoral process and its improvement is important, it does not justify the Court's premature intervention.
TINGA, J, dissenting	<i>"Court has opted to trudge the trail it blazed"</i> • Amari case - voided the Manila Bay reclamation project (unconstitutional) • PIATCO - struck down NAIA Terminal III contract (constitutional + other law violations) In present case, no violation of constitution or statute Nullification was due to COMELEC's violation of their own bidding rules LOSING BIDDERS DID NOT JOIN THE PETITION! 2004 could have been the year automated election is enjoyed by PH but Court decision blocked that Principles that should have been used to decide this case: 1. Rule 65 petition for prohibition and mandamus a. Prohibition - <i>"seeks to prevent (restrain) the commission or continuance of an act by a tribunal, corporation, board, or person, when the act is without or in excess of jurisdiction, or with grave abuse of discretion"</i> b. Mandamus - <i>"seeks to compel the performance of a ministerial duty or to compel the exercise of discretion (when unlawfully neglected), or to compel the performance of duties by a corporation, board, tribunal, officer, or person"</i> Key Distinctions from Ordinary Actions and Other Remedies • Not a substitute for appeal. Rule 65 remedies lie only when there is no appeal or any other plain, speedy, and adequate remedy in the ordinary course of law. • Grounded on "lack or excess of jurisdiction" or "grave abuse of discretion". These special civil actions address jurisdictional errors, not mere errors of judgment. • Provisional nature. They are extraordinary remedies granted only in exceptional circumstances. • Focus on immediate irreparable injury or injustice. Petitions under Rule 65 are designed to address situations that cannot be rectified by the normal appeal process (e.g., a patently void order or an obvious usurpation of power). 2. The Court can only decide the actual legal questions properly brought before it, based on established facts. It cannot rule on hypothetical problems or invent remedies for issues that were not actually presented. 3. The Court does NOT run the elections or guarantee that the election system will work perfectly. That responsibility primarily belongs to COMELEC. 4. Historically, SC allows COMELEC to decide how to administer elections, steps in only when the latter abuses its discretion or acts contrary to law Reasons for dissent: (Court mentioned grave abuse of discretion as act was contrary to jurisprudence but 99-page decision did not say any Court decision defied by respondents) 1) Petitioners did not exhaust administrative remedies Sec 55-58 of RA 9184 <i>Hon. Carale v. Hon. Abarintos</i> Emphasized the doctrine of exhaustion of administrative remedies. Administrative agencies: • specialized expertise over matters in their jurisdiction • opportunity to correct their own errors

- faster and less expensive
- prevent premature court litigation
- reduce the burden on courts

Paat vs. CA

Instances where the rule on exhaustion of administrative remedies may be disregarded (petitioners case not here)

1. violation of due process
2. issue is purely legal question
3. admin acts amounting to lack or excess of jurisdiction
4. estoppel on part of admin agency
5. irreparable injury
6. respondent is dept sec as president's alter ego??
7. if exhaustion of admin remedies = unreasonable
8. would amount to nullification of claim
9. theres no plain, speedy, adequate remedy in the rule
10. circumstances indicate urgency

remedy sana: reconsideration when MPC became eligible -> protest w the COMELEC en banc

- 2) MPC participated in the bidding! Through the consortium with MPEI acting as lead company (March 7, 2003 letter by Willy Yu identifying companies that form the consortium)
 - a) look at the collective qualifications of the consortium members (they are qualified)
- 3) Technical failures not enough to null contract

Tañada v. Angara - GRAVE abuses of discretion, not just mere abuse of discretion

Notes:

¹History:

- a. On June 7, 1995, Congress passed Republic Act 8046, 5 which authorized Comelec to conduct a nationwide demonstration of a computerized election system and allowed the poll body to pilot-test the system in the March 1996 elections in the Autonomous Region in Muslim Mindanao (ARMM).
- b. On December 22, 1997, Congress enacted Republic Act 8436 6 authorizing Comelec to use an automated election system (AES) for the process of voting, counting votes and canvassing/consolidating the results of the national and local elections. It also mandated the poll body to acquire automated counting machines (ACMs), computer equipment, devices and materials; and to adopt new electoral forms and printing materials.
- c. Initially intending to implement the automation during the May 11, 1998 presidential elections, Comelec — in its Resolution No. 2985 dated February 9, 1998 7 — eventually decided against full national implementation and limited the automation to the Autonomous Region in Muslim Mindanao (ARMM). However, due to the failure of the machines to read correctly some automated ballots in one town, the poll body later ordered their manual count for the entire Province of Sulu.
- d. 8 In the May 2001 elections, the counting and canvassing of votes for both national and local positions were also done manually, as no additional ACMs had been acquired for that electoral exercise allegedly because of time constraints.
- e. On October 29, 2002, Comelec adopted in its Resolution 02-0170 a modernization program for the 2004 elections. It resolved to conduct biddings for the three (3) phases of its Automated Election System; namely, Phase I — Voter Registration and Validation System; Phase II — Automated Counting and Canvassing System; and Phase III — Electronic Transmission.

Tolentino v. Commission on Elections

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Arturo M. Tolentino and Arturo C. Mojica v. Commission on Elections, Senator Ralph G. Recto, and Senator Gregorio B. Honasan*
- **Citation:** G.R. No. 148334, January 21, 2004 (En Banc)
- **Ponente:** Carpio, J.
- **Bench Composition:** Carpio, J. (ponente); Panganiban, Quisumbing, Sandoval-Gutierrez, Austria-Martinez, Corona, Carpio Morales, Callejo, Sr., and Azcuna, JJ., concurring; Davide, Jr., C.J., Puno, Vitug, Ynares-Santiago, and Tinga, JJ., dissenting.
- **Syllabus Relevance & Topic:**
 1. **Legislative Department — Manner of Filling Vacancies in the Senate (Art. VI, Sec. 9 in rel. to R.A. No. 6645 & R.A. No. 7166):** Implementation of special elections to fill Senate vacancies simultaneously with regular national elections.
 2. **Self-Executing Statutory Call for Special Senate Elections (R.A. No. 7166, Sec. 4):** Distinction between Senate vacancies (where R.A. No. 7166 mandates simultaneous conduct with the next regular election) and House of Representatives vacancies (where COMELEC retains discretion over the date).
 3. **Notice Requirement & Validity of Special Elections:** The principle that absence of formal official notice from COMELEC does not invalidate a simultaneous special election if the law itself fixes the election date and the lack of notice did not mislead the electorate or alter the election result.
 4. **Absence of Separate Documentation, Ballots, or Canvassing:** Non-existence of a statutory command requiring separate Certificates of Candidacy (CoCs), separate ballot slots, or separate canvassing tally sheets for simultaneous special senatorial elections.
 5. **Jurisdiction over Election Processes vs. Quo Warranto (Art. VI, Sec. 17):** Distinction between a *quo warranto* contest challenging an individual's personal qualifications (under SET jurisdiction) and a petition challenging the validity of the election process itself (under Supreme Court jurisdiction).
 6. **Mootness Exception ("Capable of Repetition Yet Evading Review"):** Adjudication of election mechanics despite the proclamation and oath-taking of winning candidates.

CHRONOLOGICAL MATERIAL FACTS

1. **Senate Vacancy Arising from Vice-Presidential Appointment:** In January 2001, Vice President Gloria Macapagal-Arroyo succeeded to the Presidency. She nominated Senator Teofisto T. Guingona, Jr. as Vice-President. Congress confirmed the nomination, and Guingona took his oath as Vice-President on February 9, 2001, leaving a vacant seat in the Senate with an unexpired term of three (3) years ending on June 30, 2004.
2. **Senate Resolution No. 84 (February 8, 2001):** The Senate passed Resolution No. 84 certifying to the existence of a vacancy in the Senate and calling on COMELEC to fill the vacancy through a special election held simultaneously with the regular May 14, 2001 elections. Senate Resolution No. 84 (incorporating an amendment by Senator Raul Roco) provided that the "*senatorial candidate garnering the thirteenth (13th) highest number of votes shall serve only for the unexpired term of former Senator Teofisto T. Guingona, Jr.*"
3. **Conduct of the May 14, 2001 Elections:** COMELEC conducted the national elections on May 14, 2001. All senatorial candidates filed CoCs for the regular 6-year term; COMELEC provided 13 blank spaces on the official ballot and integrated all candidates into a single list without specifying a separate category or ballot slot for the 3-year special election seat.

4. **Provisional Proclamation under NBC Res. No. 01-005 (June 5, 2001):** COMELEC sitting as National Board of Canvassers (NBOC) issued Resolution No. NBC 01-005 provisionally proclaiming 13 candidates as elected Senators, stating that the first 12 would serve a 6-year term and the 13th placer would serve Guingona's unexpired 3-year term. Ralph Recto ranked 12th (10,387,108 votes) and Gregorio Honasan ranked 13th (10,364,272 votes).
 5. **Filing of Original Prohibition Petition (June 20, 2001):** Petitioners Arturo M. Tolentino and Arturo C. Mojica, as voters and taxpayers, filed a petition for prohibition before the Supreme Court seeking to enjoin COMELEC from proclaiming with finality the 13th placer as winner of a special election, alleging that no valid special election was conducted.
 6. **Final Proclamation and Oath-Taking (July 20–23, 2001):** Without the Supreme Court issuing a TRO, COMELEC issued Resolution No. NBC 01-006 on July 20, 2001, declaring "official and final" the ranking of the 13 Senators. All 13 Senators took their oaths of office on July 23, 2001.
 7. **Amended Petition:** Petitioners filed an amended petition impleading Senators Recto and Honasan, seeking the nullification of Resolution Nos. NBC 01-005 and NBC 01-006.
-

● PROCEDURAL HISTORY

1. **Special Civil Action before the Supreme Court:** Petitioners filed a Petition for Prohibition (later Amended Petition) under Rule 65 to set aside COMELEC Resolution Nos. NBC 01-005 and NBC 01-006.
 2. **Supreme Court Disposition (January 21, 2004):** The Supreme Court En Banc dismissed the petition for lack of merit.
-

● PARTIES' MATERIAL ARGUMENTS

- **Petitioners (Arturo M. Tolentino & Arturo C. Mojica):**
 1. **Lack of COMELEC Jurisdiction / Void Special Election:** COMELEC failed to give formal notice to the electorate specifying the office to be filled in the special election, violating Section 2 of R.A. No. 6645 as amended by R.A. No. 7166.
 2. **Failure of Separate Documentation:** COMELEC failed to require candidates to specify in their CoCs whether they were running for the 6-year regular term or 3-year special term (violating Section 73 of the Omnibus Election Code) and failed to list them separately in the Voters Information Sheet (violating Section 4(4) of R.A. No. 6646).
 3. **Single Election Illegality:** COMELEC conducted a single election for 13 seats irrespective of term without separate canvassing or tallying, departing from the historical precedents of the 1951 and 1955 simultaneous special senatorial elections where separate ballot slots and tallies were used.
- **Respondents (COMELEC, Senator Ralph G. Recto, & Senator Gregorio B. Honasan):**
 1. **Procedural Objections:**
 - *SET Jurisdiction:* The petition is a *quo warranto* action directly attacking Honasan's title to office, falling under the sole jurisdiction of the Senate Electoral Tribunal (SET) under Article VI, Section 17.
 - *Mootness:* Proclamation and assumption of office rendered the petition moot.
 - *Locus Standi:* Petitioners lack standing to litigate.
 - *Misjoinder:* Recto (12th placer) is not a proper party because he earned a 6-year regular term.
 2. **Substantive Validity:**
 - *Self-Executing Mandate:* Section 4 of R.A. No. 7166 explicitly commands that a Senate vacancy special election *shall be held simultaneously with the next succeeding regular election*, charging voters with statutory knowledge.

- *Constructive & Actual Notice:* The electorate had extensive actual notice via media reports, Senate Resolution No. 84, and campaign propaganda.
- *Broad Administrative Latitude:* Election laws do not require separate CoCs, separate ballot spaces, or separate canvassing; COMELEC validly adopted the 13th-placer mechanism proposed in Senate Resolution No. 84 to prevent public expense and voter disenfranchisement.

ISSUES

A. Procedural Issues

1. Whether the petition is in fact a petition for *quo warranto* over which the Senate Electoral Tribunal (SET) possesses sole jurisdiction.
2. Whether the petition is moot and academic due to the proclamation and assumption of office of the 13 Senators.
3. Whether petitioners have legal standing (*locus standi*) to litigate as voters and taxpayers.

B. Substantive Issue

4. Whether a special election to fill a vacant three-year term Senate seat was validly held simultaneously with the regular elections on May 14, 2001 despite COMELEC's omission of formal notices, separate CoCs, separate ballot slots, and separate canvassing.

HOLDINGS AND CONTROLLING REASONING

1. On SET Jurisdiction vs. Supreme Court Jurisdiction: The Supreme Court HAS JURISDICTION; the action is NOT a *quo warranto* petition.

- **Ratio:** A *quo warranto* proceeding under Article VI, Section 17 determines an individual public officer's right to hold office based on personal qualifications, eligibility, or disloyalty.
- Here, petitioners do not challenge Honasan's personal qualifications; they challenge **the legal validity of the election process itself**—alleging COMELEC's failure to validly call and conduct a special election. The prayer to annul Honasan's proclamation is merely incidental to challenging COMELEC's administrative resolutions. Thus, the Supreme Court properly exercises jurisdiction.

2. On Mootness: The petition is NOT barred by mootness under the "Capable of Repetition Yet Evading Review" exception.

- **Ratio:** While prohibition generally does not lie against accomplished acts, courts will decide an otherwise moot controversy if it is **capable of repetition yet evading review** (*Alunan III v. Mirasol*).
- The validity of simultaneous special elections to fill Senate vacancies in relation to COMELEC's notice requirements is an issue likely to arise in future election cycles, yet evades judicial review before election day.

3. On Legal Standing (Locus Standi): Petitioners HAVE STANDING as voters.

- **Ratio:** Standing rules are relaxed when a petition raises issues of **transcendental importance** touching upon the fundamental right of suffrage and the integrity of the electoral process.

4. On the Substantive Validity of the Special Election: The special election was VALIDLY HELD on May 14, 2001.

- **A. The Statutory Command of R.A. No. 7166 is Self-Executing for Senate Vacancies:**

- Article VI, Section 9 of the Constitution provides that special elections to fill congressional vacancies shall be held "*in the manner prescribed by law.*"
- Section 1 of R.A. No. 6645, as amended by Section 4 of R.A. No. 7166, explicitly mandates: "*However, in case of such vacancy in the Senate, the special election shall be held simultaneously with the next succeeding regular election.*"
- **Distinction between Senate and House Vacancies:** For a House vacancy, COMELEC possesses discretion to fix the election date within 60 to 90 days, making a formal COMELEC call and notice mandatory conditions precedent. For a Senate vacancy, **the law itself fixes the date of the special election** (simultaneously with the next regular election). Where the law fixes the election date, the statutory command charges the electorate with knowledge, and the absence of a formal administrative call does not invalidate the election.

- **B. Absence of Proof That Voters Were Misled:**

- The legal test for evaluating an election lacking formal notice is **whether the want of notice resulted in misleading a sufficient number of voters as would change the result of the election.**
- Petitioners offered zero evidence that voters were misled. The vacancy, the election of 13 senators, and the rule that the 13th placer would serve Guingona's unexpired 3-year term were widely published in national newspapers, television, campaign propaganda, and Senate Resolution No. 84. Over 10 million voters voted for Honasan. The Court will not disenfranchise millions of voters for administrative omissions absent proof that the electorate's will was suppressed or frustrated.

- **C. Separate Documentation, Ballots, or Canvassing Are NOT Required by Law:**

- Neither R.A. No. 6645 nor R.A. No. 7166 requires separate CoCs, separate ballot spaces, or separate canvassing tallies for simultaneous special senatorial elections.
- Section 73 of B.P. Blg. 881 and Section 4(4) of R.A. No. 6646 govern general election filings and do not mandate separate categories for simultaneous Senate seats.

- **D. Legitimacy of Adopting Senate Resolution No. 84's 13th-Placer Rule:**

- COMELEC merely adopted the pragmatic mechanism devised by the Senate in Resolution No. 84 (proposed by Senator Raul Roco) to rank all 13 winning candidates and award the unexpired 3-year term to the 13th placer.
- COMELEC possesses broad administrative discretion to adopt means and methods to carry out its constitutional mandate. Reverting to the 1951/1955 methods (separate ballots and tallies) or adopting the 13th-placer mechanism both fall within COMELEC's lawful administrative discretion.

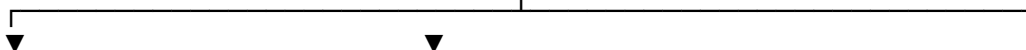
● DOCTRINE, TESTS, AND LEGAL STANDARDS

SPECIAL SENATE ELECTION VALIDITY FRAMEWORK
(Tolentino v. COMELEC)



CONSTITUTIONAL & STATUTORY MANDATE (Art. VI, Sec. 9 / R.A. 7166, Sec. 4)

- Senate vacancy **MUST** be filled simultaneously with next regular election.
- Date is **FIXED BY LAW** (self-executing statutory call).



OFFICIAL COMELEC NOTICE OMITTED

- Does NOT void election per se.
- PREJUDICE TEST: Did lack of notice MISLEAD a sufficient number of voters to CHANGE THE RESULT?
- Actual/constructive notice via media, propaganda, & Senate Res. 84 cures formal omission.

PROCEDURAL MECHANICS

- Separate CoCs, separate ballot slots, and separate tallies are NOT statutorily mandatory.
 - COMELEC has broad administrative discretion to adopt the "13th-placer" mechanism (Roco Amendment) to avoid voter disenfranchisement.

1. **Self-Executing Special Senate Election Rule (R.A. No. 7166, Sec. 4):** Unlike House vacancies where COMELEC fixes the date, a special election to fill a Senate vacancy is mandated by law to be held simultaneously with the next regular national election. The statutory provision itself operates as the call for the election.
2. **Prejudice / Misleading Voter Test for Defective Election Notice:** An election held without formal administrative notice is invalid ONLY if the challenger proves that the want of notice misled a sufficient number of voters as would change the election outcome. In the absence of such proof, the electorate's sovereign vote will be respected.
3. **Broad Administrative Discretion of COMELEC:** COMELEC has wide latitude in choosing administrative means (such as ranking candidates to assign unexpired terms) to execute election laws, provided the method is not illegal or arbitrary. Historical procedures (e.g., 1951/1955 separate ballot tallies) do not bind COMELEC as mandatory statutory requirements.

DISPOSITION

- **Ruling:** The Petition for Prohibition is **DISMISSED** for lack of merit.
- **Validity Upheld:** COMELEC Resolution No. NBC 01-005 dated June 5, 2001 and Resolution No. NBC 01-006 dated July 20, 2001 are **UPHELD AS VALID**.

SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLE LINES

Dissenting Opinion of Justice Reynato S. Puno (joined by Davide, Jr., C.J., Vitug, Ynares-Santiago, and Tinga, JJ.) [186, 188, 195–216]

- **Informed Judgment as Heart of Democracy:** Emphasized that majoritarian rule is valid only when the electorate's judgment is *informed*. Rule by an uninformed majority is a "mobocracy".
- **Total Failure of Notice:** COMELEC failed to give any official notice whatsoever of the time, place, or manner of the special election, leaving voter awareness to speculation.
- **Deprivation of Informed Choice:** Merging the special election into the regular election deprived voters of casting a deliberate, distinct vote for a 3-year term versus a 6-year term. A voter might choose a neophyte for a 3-year trial period or a veteran for 6 years, but single integrated voting destroyed this distinction.
- **Rejection of Convenience:** Conveniences or cost-savings (Senate Res. No. 84) cannot bargain away the electorate's fundamental right to an informed vote. The 1951 and 1955 precedents requiring separate CoCs, separate ballot spaces, and separate tallies should have been strictly enforced.

Source-Verified Quotable Lines

- **On Self-Executing Calls and Respecting the Electorate's Will (Carpio, J.):**

"Otherwise, the consistent rule has been to respect the electorate's will and let the results of the election stand, despite irregularities that may have attended the conduct of the elections... Innocent voters should not be deprived of their participation in the affairs of their government for mere irregularities on the part of the election officers, for which they are in no way responsible."

- **On COMELEC's Administrative Discretion (Carpio, J.):**

"This Court has consistently acknowledged and affirmed COMELEC's wide latitude of discretion in adopting means to carry out its mandate... That COMELEC adopts means that are novel or even disagreeable is no reason to adjudge it liable for grave abuse of discretion."

- **On Informed Suffrage (Puno, J., dissenting):**

"Rule by the ignorant majority is a sham democracy — a mobocracy — for in the words of Jefferson, a nation cannot be both free and ignorant... We cannot bargain the electorate's fundamental right to vote intelligently with the coin of convenience."

RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*In *Tolentino v. COMELEC* (2004), Senator Teofisto Guingona was appointed Vice-President in Feb 2001, leaving a vacant Senate seat with a 3-year unexpired term. Senate Resolution No. 84 certified the vacancy and called on COMELEC to hold a special election simultaneously with the May 14, 2001 regular elections, adopting Sen. Roco's amendment that the 13th placer would serve Guingona's 3-year term. Elections proceeded with 13 blank spaces on a single ballot without separate listings. COMELEC proclaimed 13 senators under NBC Res. 01-005 and 01-006, awarding the 12th seat to Recto (6-year term) and 13th seat to Honasan (3-year term). Petitioners Tolentino and Mojica filed prohibition, claiming the special election was void for lack of formal COMELEC notice, separate CoCs, separate ballot slots, and separate canvassing.

The Supreme Court En Banc, through Justice Carpio, DISMISSED the petition and UPHeld the special election. The Court held: (1) SC has jurisdiction because the petition attacks the election process, not Honasan's personal qualifications (which would be SET quo warranto); (2) The case is not moot under the 'capable of repetition yet evading review' doctrine; (3) Under R.A. 7166, Sec. 4, a Senate vacancy special election is MANDATED BY LAW to be held simultaneously with the next regular election, making the statutory command self-executing; (4) Lack of formal notice does not void an election unless proven to have misled enough voters to change the result, which petitioners failed to prove; and (5) R.A. 6645 and R.A. 7166 do NOT require separate CoCs, ballots, or tallies, and COMELEC validly exercised administrative discretion in adopting the 13th-placer rule."* [1, 156–160, 164, 166, 169, 173, 175–177, 180, 184, 186]

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: How does a special election for a Senate vacancy differ from a special election for a House vacancy regarding COMELEC's notice requirement?**
 - **A:** For a House vacancy, COMELEC has statutory discretion to fix the election date within 60 to 90 days, making a formal COMELEC call and notice mandatory conditions precedent. For a Senate vacancy, R.A. No. 7166 explicitly mandates that the special election *shall be held simultaneously with the next regular election*. The law itself fixes the date, making the statutory command self-executing and charging voters with legal notice.
2. **Q: What is the legal test for invalidating an election due to lack of official administrative notice?**
 - **A:** The test is **whether the want of notice resulted in misleading a sufficient number of voters as would change the result of the election**. In *Tolentino*, petitioners presented no proof that voters were misled, whereas extensive media coverage, propaganda, and Senate Res. 84 provided widespread actual notice.
3. **Q: Why didn't the 1951 and 1955 senatorial special election precedents (where separate ballots, CoCs, and tallies were used) bind COMELEC in 2001?**
 - **A:** Neither R.A. No. 6645 nor R.A. No. 7166 statutorily requires separate CoCs, separate ballot spaces, or separate canvassing. The 1951 and 1955 procedures were merely administrative choices made by COMELEC at those times. COMELEC possesses broad administrative discretion to adopt novel or practical methods (such as the 13th-placer mechanism in Senate Res. 84) to prevent public expense and voter disenfranchisement.

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose a vacancy occurs in a Legislative District for the House of Representatives 2 years before term expiration. Without issuing any resolution, formal call, or public notice, COMELEC simply includes an extra blank line on the local district ballot during the next regular election and proclaims the runner-up candidate as the special election winner. A voter challenges the election under *Tolentino v. COMELEC*. Is the special election valid?
- **Answer: No, the special election is VOID.** Under *Tolentino v. COMELEC*, the self-executing statutory call rule applies strictly to **Senate vacancies** under R.A. No. 7166. For **House of Representatives vacancies**, COMELEC's duty to issue a formal call and fix the election date within the 60-to-90-day statutory range is a mandatory condition precedent. Because voters in a single congressional district cannot know the time or office to be filled without official notice, COMELEC's failure to call and give notice renders a House special election completely void.

One-Sentence Doctrine Anchor

A simultaneous special election to fill a Senate vacancy is fixed by law under R.A. No. 7166, and the omission of formal administrative notice or separate ballot slots does not void the election absent proof that voters were misled so as to alter the election outcome. [1, 169, 173, 175–177]

Tolentino v. COMELEC (2004)

Topic Subtopic	Congress - Election	GR No. & Ponente	[G.R. No. 148334. January 21, 2004.] EN BANC CARPIO
Petitioner/s	ARTURO M. TOLENTINO and ARTURO C. MOJICA	Respondent/s	COMMISSION ON ELECTIONS, SENATOR RALPH G. RECTO and SENATOR GREGORIO B. HONASAN
Doctrine	The Court can relax the requirement on standing and can exercise its discretion to give due course to voters' suits involving the right of suffrage.		

FACTS

- Jan 2001 - after her succession to the Presidency, PGMA nominated then-Senator Teofisto T. Guingona, Jr. as Vice-President. His nomination was confirmed by Congress and he took oath as VP on February 9 2001.
- Feb 8, 2001 - the Senate passed Resolution No. 84 certifying that there is a vacancy in the Senate. It called on the COMELEC to fill the vacancy through a special election to be held simultaneously with regular elections on May 14, 2001 (where 12 other Senators were to be elected). The resolution further provided that the "Senatorial candidate garnering the 13th highest number of votes shall serve only for the unexpired term of former Senator Teofisto T. Guingona Jr." which was set to end on June 30, 2004.
- On June 5, 2001 - the COMELEC, after canvassing of all votes except for those from Lanao del Norte, provisionally proclaimed 13 candidates as elected Senators through Resolution No. 01-005. This resolution provided that the first 12 Senators shall serve for a term of 6 years while the 13th Senator shall serve the unexpired term of 3 years of Senator Guingona. The 12th Senator was Ralph G. Recto, while the 13th was Gregorio B. Honasan.
- On June 20, 2001, petitioners Arturo Tolentino and Arturo Mojica, as voters and taxpayers, **filed a petition for prohibition**, initially only impleading the COMELEC. They sought to enjoin the COMELEC from proclaiming the candidate for Senator receiving the 13th highest number of votes as winner of the special election for the single term seat of 3 years. They also sought the nullification of Resolution 01-005 as it proclaimed a 13th Senator from the results of the election, on the following terms. The Petitioners contend that COMELEC issued Resolution No. 01-005 without jurisdiction as:
 - (1) it failed to notify the electorate of the position that was being filled through the special election as required under Section 2, R.A 6645,
 - (2) it failed to require the senatorial candidates to indicate in their certificates of candidacy whether they seek election under the general or special elections as required under Section 73 of Batas Pambansa Blg. 881, and
 - (3) it failed to indicate in the Voter Information Sheet which candidates were seeking election under the special or regular senatorial elections as required by Section 4, para 4, R.A 6645.
 - Due to these omissions, petitioners contend that there were no separate special and general elections held simultaneously, but only one election for 13 seats, irrespective of term length. It must have been distinguished from one another.
- Petitioners sought for TRO. SC did not issue, but required COMELEC to comment.
- July 20, 2001 - COMELEC issued Resolution No. 01-006 declaring "official and final" the ranking of the 13 Senators proclaimed in Resolution No. 01-005. The 13 Senators took their oaths of office on July 23, 2001.
- Petitioners filed an AM PT in which they reiterated their initial petition + sought the nullification of Res No 01-006, impleading Recto and Honasan as addl respondents.
- The respondents, in their Comment, all claim that a valid special election was held on May 14, 2001. Furthermore, they raised issues regarding the mootness of the petition and the standing of the petitioners to litigate. Honasan claimed that the petition, which seeks to nullify his election, is a *quo warranto* petition and that it should be dismissed as the Court has no jurisdiction over said petition. Recto, on the other hand, claimed he was not a proper respondent given that the validity of the election of the 13th Senator is what was in contention, and not the election of the rest of the Senators.

ISSUE 1: Whether or Not the Petition is in fact a petition for quo warranto over which the Senate Electoral Tribunal is the sole judge? NO

PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
Petitioners' various prayers are, namely: (1) a "declaration" that no special election was held simultaneously with the general elections on 14 May 2001; (2) to enjoin COMELEC from declaring anyone as having won in the special election; and (3) to annul Resolution Nos. 01-005 and 01-006 in so far as these Resolutions proclaim Honasan as the winner in the special election.	Honasan claimed that the petition, which seeks to nullify his election, is a <i>quo warranto</i> petition and that it should be dismissed as the Court has no jurisdiction over said petition

RULING and RATIO DECIDENDI for ISSUE 1:

A quo warranto proceeding is, among others, one to determine the right of a public officer in the exercise of his office and to oust him from its enjoyment if his claim is not well-founded. Under Section 17, Article VI of the Constitution, the Senate Electoral Tribunal is the sole judge of all contests relating to the qualifications of the members of the Senate.

A perusal of the allegations contained in the instant petition shows, however, that what petitioners are questioning is the validity of the special election on 14 May 2001 in which Honasan was elected. The Petitioners' prayers were anchored on COMELEC's alleged failure to comply with certain requirements for the special election. They did not seek to determine Honasan's right in the exercise of his office as Senator. Petitioners' prayer for the annulment of Honasan's proclamation and, ultimately, election is merely incidental to petitioners' cause of action. **Consequently, the Court can properly exercise jurisdiction over the instant petition.**

ISSUE 2: Whether or Not the Petition is Moot? NO

RESPONDENT/S ARGUMENTS:

COMELEC contends that its proclamation on 5 June 2001 of the 13 Senators and its subsequent confirmation on 20 July 2001 of the ranking of the 13 Senators render the instant petition to set aside Resolutions Nos. 01-005 and 01-006 moot and academic.

RULING and RATIO DECIDENDI for ISSUE 2:

As an exception to the rule on mootness, courts will decide a question otherwise moot if it is capable of repetition yet evading review.

Ex. *Alunan III v Mirasol* - Court took cognizance of the petition, asking to set aside an order canceling the SK elections, even when the SK election had already taken place when the PT was filed. We noted in *Alunan* that since the question of the validity of the order sought to be annulled "is likely to arise in every SK elections and yet the question may not be decided before the date of such elections," the mootness of the petition is no bar to its resolution.

Same for this case. The question of the validity of a special election to fill a vacancy in the Senate in relation to COMELEC's failure to comply with requirements on the conduct of such special election is likely to arise in every such election. Such question, however, may not be decided before the date of the election. Thus, the Court will review this case.

ISSUE 3: Whether or Not the Petitioners have standing? YES

RESPONDENT/S ARGUMENTS:

Honasan questions petitioners' standing to bring the instant petition as taxpayers and voters because petitioners

do not claim that COMELEC illegally disbursed public funds. Neither do petitioners claim that they sustained personal injury because of the issuance of the resolutions.

RULING and RATIO DECIDENDI for ISSUE 3:

Applied strictly, there is no standing.

- As voters, the petitioners assert that the validity of the special election is classified as a “generalized grievance.” This is shared in substantially equal measure by a large class of voters who voted in the election.
- As taxpayers, they did not allege that the Court should give due course to the petition as COMELEC misappropriated or diverted public funds. With these in mind, they should not have had legal standing.
- On the other hand, the SC has relaxed the requirement on standing and exercised our discretion to give due course to voters' suits involving the right of suffrage, considering that the issue raised is likely to arise again.

LEGAL BASES

Integrated Bar of the Philippines v. Zamora - The IBP presented “too general an interest” in questioning the validity of a Presidential directive that deployed elements of the PNP and the Marines to conduct patrols in Metro Manila. However, the Court recognized that the issues raised are of paramount importance to the public, the Court may brush aside the technicalities of procedure. In view of the circumstances, the legal controversy raised by the petition will not go away and that it is in the best interest of the Court to resolve the issue immediately.

ISSUE 4: Whether or Not a special election for a single, 3-year term, senatorial seat was validly held on May 14, 2001?

RULING and RATIO DECIDENDI for ISSUE 4:

In case a vacancy arises in Congress at least one year before the expiration of the term, Section 2 of R.A. No. 6645, as amended, requires COMELEC:

- (1) to call a special election by fixing the date of the special election, which shall not be earlier than 60 days nor later than 90 after the occurrence of the vacancy but in case of a vacancy in the Senate, the special election shall be held simultaneously with the next succeeding regular election; and
- (2) to give notice to the voters of, among other things, the office or offices; to be voted for

COMELEC's resolutions contained nothing to comply with the above. It did not inform of a special election, nor a formal notice that it will proclaim the candidate receiving the 13th highest number as a winner.

Validity? COMELEC's Failure to Give Notice of the Time of the Special Election Did Not Negate the Calling of such Election

- In a special election to fill a vacancy, the rule is that a statute that expressly provides that an election to fill a vacancy shall be held at the next general elections fixes the date at which the special election is to be held and operates as the call for that election. Consequently, an election held at the time thus prescribed is *not invalidated by the fact that the body charged by law with the duty of calling the election failed to do so*. This is because the right and duty to hold the election emanate from the statute and not from any call for the election by some authority and the law thus charges voters with knowledge of the time and place of the election.
- On the other hand, if the law does **not** fix the time and place for holding a special election, but empowers some authority to do it, the statutory provision on the giving of notice is considered mandatory, and failure to do so will render the election a nullity.
- In this case - the special election to fill the vacancy in the Senate arising from Senator Guingona's appointment as VP in February 2001 could not be held at any other time but must be held simultaneously with the next succeeding regular elections on 14 May 2001. The law charges the voters with knowledge of this statutory notice and COMELEC's failure to give the additional notice did not negate the calling of such special election, much less invalidate it

Misled the Voters? No Proof that COMELEC's Failure to Give Notice of the Office to be Filled and the Manner of Determining the Winner in the Special Election Misled Voters

- In testing the validity of a special election, it must be determined if the lack of notice resulted in the misleading of the voters. If it were, a choice by a small percentage of voters would be void.
- Petitioners have neither claimed nor proved that COMELEC's failure to give this required notice misled a sufficient number of voters as would change the result of the special senatorial election or led them to believe that there was no such special election. → they argued instead that since COMELEC failed to give such notice, then no special election took place. → carries no value
 - Such actual notice could come from many sources, such as media reports of the enactment of R.A. No. 6645 and election propaganda during the campaign
- More than 10 million voters cast their votes in favor of Honasan, the party who stands most prejudiced by the instant petition. We simply cannot disenfranchise those who voted for Honasan, in the absence of proof that COMELEC's omission prejudiced voters in the exercise of their right of suffrage so as to negate the holding of the special election.
 - Innocent voters should not be deprived of their participation in the affairs of their government for mere irregularities on the part of the election officers, for which they are in no way responsible.

Separate Documentation and Canvassing for General and Special Elections?

- Not required under Sec 2 RA6645. COMELEC merely implemented the procedure specified by the Senate in Res No 84 - "the senatorial candidate garnering the thirteenth (13th) highest number of votes shall serve only for the unexpired term of former Senator Teofisto T. Guingona, Jr".
 - Sen. Roco introduced the above to spare the COMELEC and the candidates needless expenditures and the voters further inconvenience.
 - COMELEC exercised its discretion with the above. It does not constitute grave abuse of discretion
- Court reminded the COMELEC that the calling of a special election, and if necessary, the giving of notice to the electorate, are central to an informed exercise of the right of suffrage. It should not take chances in future elections.

LEGAL BASES

Under Section 9, Article VI of the Constitution, a special election may be called to fill any vacancy in the Senate and the House of Representatives "in the manner prescribed by law,"

Congress passed RA6645 - COMELEC, upon receipt of the Congress' resolution, shall hold a special election to fill such vacancy. COMELEC shall fix the date of the special election, not earlier than 45 days nor later than 90 days from the date of such resolution, stating among other things the office or offices to be voted for: Provided, however, That if within the said period a general election is scheduled to be held, the special election shall be held simultaneously with such general election.

Section 4 of Republic Act No. 7166 subsequently amended Section 2 of R.A. No. 6645, as follows: Postponement, Failure of Election and Special Elections. — . . . In case a permanent vacancy shall occur in the Senate or House of Representatives at least one (1) year before the expiration of the term, the Commission shall call and hold a special election to fill the vacancy not earlier than sixty (60) days nor longer than ninety (90) days after the occurrence of the vacancy. However, in case of such vacancy in the Senate, the special election shall be held simultaneously with the next succeeding regular election.

FINAL DECISION

WHEREFORE, we DISMISS the petition for lack of merit. SO ORDERED.

SEPARATE OPINION/S

PUNO, J, dissenting
Joined by Davide, Jr.,

Justice Puno voted to grant the petition.

*C.J. Vitug, J.,
Ynares-Santiago, and
Tinga, JJ*

He argues that allowing the special elections to stand, even in the face of the blatant noncompliance of COMELEC with Section 2, R.A No. 6645 as well as paragraph 3 of Section 7, R.A No. 7166 leaves the purity of elections and the ascertainment of the will of the electorate to chance, conjecture, and speculation. As both the special and general elections were essentially integrated into one election, it was now impossible to ascertain if it was the will of the people to elect Honasan as the 13th Senator or not. Furthermore, he states that **the Senate had no right to impose on the COMELEC how the special elections should have been done through Resolution No. 84**, even going as far as to state that "Comelec will not have the flexibility." This is because, under R.A 7166, it is the power of the COMELEC to call and hold the election, not the Senate's.

He also argues that each voter could have had different reasons in voting for their slate of Senators and without formally informing them of the option to vote for a 13th Senator, COMELEC has deprived the voter of their right to make an informed judgement based on their own reasons and valuations. As a consequence, the true will of the voters in the special elections cannot be ascertained anymore.

He states that instead of conducting the special elections as they were done on May 14, 2001, it should have been done according to the special elections of November 13, 1951 and November 8, 1955 where the successors of Senators Fernando Lopez and Carlos P. Garcia was separately made to file their certificates of candidacy for the remaining unexpired term, the voters made to vote separately for the general elections of the Senators with 6 year terms and for the special elections, and the COMELEC made to separately tally and canvass the votes for both elections.

He closes his arguments by saying that informing the electorate on the issues and conduct of an election is a prerequisite to free, orderly, honest, and peaceful elections as free elections does not only mean free from interference, but also free from ignorance.

DIGEST MAKER: Bianca Therese L. Angeles

OPLE V. TORRES (1998)

Topic Subtopic	Requisites of Judicial Review: Actual Case or Controversy - Proper Party - Legislative Standing	GR No. & Ponente	127685 Puno, J.
Petitioner/s	Blas F. Ople	Respondent/s	Ruben D. Torres, Alexander Aguirre, Hector Villanueva, Cielito Habito, Robert Barbers, Carmencita Reodica, Cesar Sarino, Renato Valencia, Tomas P. Africa, Head of the National Computer Center and Chairman of the Commission on Audit
Doctrine			

FACTS

- A.O. No. 308 entitled "Adoption of a National Computerized Identification Reference System" was issued by President Fidel V. Ramos on December 12, 1996. The order established a decentralized Identification Reference System aimed at providing citizens and foreign residents with a facility to conveniently transact business with basic service and social security providers, thereby reducing fraudulent transactions and misrepresentation.
- Senator Blas F. Ople filed a petition to invalidate A.O. No. 38 on two constitutional grounds:
 - It is an usurpation of the power of Congress to legislate
 - it impermissibly intrudes on our citizenry's protected zone of privacy
- The Supreme Court issued a Temporary Restraining Order (TRO), enjoining the implementation of the system.

ISSUE/S

ISSUE 1

Main - Procedural	Whether or Not Senator Ople has legislative standing to question the constitutionality of A.O. No. 308?	Yes
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
A.O. No 38 is unconstitutional because - It is an usurpation of the power of Congress to legislate - it impermissibly intrudes on our citizenry's protected zone of privacy		- Petitioner did not have legal standing because had no legal interest to uphold - The implementing rules of A.O. No. 308 have yet to be promulgated, therefore there was no actual controversy
RULING and RATIO DECIDENDI:		
Legislative standing: Petitioner Ople is a distinguished member of our Senate. As a Senator, petitioner is possessed of the requisite standing to bring suit raising the issue that the issuance of A.O. No. 308 is a usurpation of legislative power. Standing as a taxpayer and member of GSIS: As a taxpayer and member of the Government Service Insurance System (GSIS), petitioner can also impugn the legality of the misalignment of public funds and the misuse of GSIS funds to implement A.O. No. 308.		

LEGAL BASES

ISSUE 2:

Main - Procedural ▾	Whether or Not there is an actual case ripe for adjudication?	Yes ▾
RULING and RATIO DECIDENDI:		
The ripeness for adjudication of the petition at bar is not affected by the fact that the implementing rules of A.O. No. 308 have yet to be promulgated. Petitioner Ople assails A.O. No. 308 as invalid per se and as infirmed on its face. His action is not premature for the rules yet to be promulgated cannot cure its fatal defects. Moreover, the respondents themselves have started the implementation of A.O. No. 308 without waiting for the rules - SSS published a notice to bid for the manufacture of the National Identification Card - Executive Secretary publicly announced that the guidelines were completed		
LEGAL BASES		

ISSUE 4:

Side - Substantive ▾	Whether or Not A.O. 308 constitutes an unconstitutional usurpation of legislative power?	Yes ▾
RULING and RATIO DECIDENDI:		
It cannot be argued that A.O. No. 308 merely implements the Administrative Code of 1987. It establishes for the first time a National Computerized Identification Reference System. Such a system requires a delicate adjustment of various contending state policies — the primacy of national security, the extent of privacy interest against dossier-gathering by the government, the choice of policies, etc. Moreover, citizens cannot transact business with government agencies delivering basic services to the people without the ID card. By making the ID card practically mandatory for transacting with government agencies. The EO defines rights, imposes duties, and impacts the general public. Such is an usurpation of the power of Congress to make laws.		
LEGAL BASES		

ISSUE 3:

Side - Substantive ▾	Whether or Not A.O. 308 unconstitutionally violates the right to privacy?	Yes ▾
----------------------	---	-------

RULING and RATIO DECIDENDI:

The Court ruled that A.O. 308 is fatally overbroad and vague, which if implemented will put our people's right to privacy in clear and present danger.

The right to privacy is a fundamental right guaranteed by the Constitution, and that any law or order that invades individual privacy will be subjected by this Court to strict scrutiny.

It is the burden of the government to show that A.O. No. 308 is justified by some compelling state interest.

LEGAL BASES

FINAL DECISION

WHEREFORE, I vote to dismiss the petition.

SO ORDERED.

SEPARATE OPINION/S

Kapunan, J,
dissenting

The President, as administrative head of the government, has the duty to improve the efficiency and reliability of the bureaucracy. A.O. 308 is a valid exercise of this administrative authority.

Moreover, the petition is not ripe for adjudication because there is nothing in A.O. No. 308 to serve as sufficient basis for a conclusion that the new system to be evolved violates the right to privacy. Said order simply provides the system's general framework.

The GSIS and SSS do not rely on the General Appropriations Act, so there is no illegal transfer of legislative appropriations.

Mendoza, J,
dissenting

Blas Ople has no cause of action and, therefore, no standing to bring this action. Although he assails A.O. No. 308 on the ground that it violates the right of privacy, he claims no personal injury suffered as a result of the Order in question.

Moreover, Ople **cannot claim legislative standing** since no power of Congress had been impaired by the Administrative Order in question. In issuing A.O. No. 308, the President did not exercise the legislative power vested by the Constitution in Congress. He acted on the basis of his own powers as administrative head of the government, as distinguished from his capacity as the Executive.

People v. Vera (1937)

Topic Subtopic	Requisites of Judicial Review: Proper Party - Governmental Standing	GR No. & Ponente	GR NO. 45685 LAUREL, J.
Petitioner/s	People of the Philippine Islands Hongkong & Shanghai Banking Corporation	Respondent/s	Jose O. Vera, Judge ad Interim of the CFI Manila, and Mariano Cu Unjieng
Doctrine	The People of the Philippines has substantial interest in the constitutionality of Act 4221, as the enforcement of an invalid statute would constitute damages caused by the illegal expenditure of public funds in its enforcement.		

FACTS

- **Nov. 27, 1936:** Mariano Cu Unjieng filed an application for **probation** (Act 4221), after he was convicted for the complex crime of estafa and multiple falsification of mercantile documents, sentencing him to an indeterminate penalty of 5yrs6mos of prision correccional–7yrs6mos27days of prision mayor.
- **Apr 1937:** Fiscal (City of Manila) and private prosecution filed an opposition,
 - Alleging that Act 4221 assuming that it has not been repealed by Sec. 2, Art. XV
 - violates Sec. 1(1), Art. III of the Constitution (equal protection clause) its applicability not uniform throughout the country
 - Sec. 11 of the law constitutes an unlawful and improper delegation to the provincial boards of the power to enforce said law in their respective provinces
- **June 28, 1937:** Judge Jose O. Vera resolved the case finding Mariano innocent due to reasonable doubt. However, he did not grant his probation due to the petitioner's background and circumstances, and it may disrupt the respect of the public for the law and final decisions of the court.
- Respondent Mariano files a motion for reconsideration
- **August 6, 1937:** Petitioners filed a motion for the issuance of an order to execute the already-made judgment on Mariano (conviction).
- Petitioners allege that the respondent judge acted without jurisdiction or in excess of his jurisdiction:
 1. Respondent judge lacks the power to place Mariano under probation
 - Act 4221 is made to apply only to provinces, not cities like Manila
 - Act 4221 is not a law of general application, applied only to provinces bcs provincial boards provide for the salary of a probation officer
 - City of Manila has not provided for the salary of a probation officer, required of Sec 11
 - Insular Probation office present in Manila is immaterial because it is distinct from Probation Officer
 2. Respondent judge acted without or in excess of his jurisdiction in entertaining the Motion for Recon and by failing to commit Mariano to prison after denying probation the first time
 - His jurisdiction is limited by Act 4221
 - After his denial on June 1937 it became final and executory
 - No right of appeal exists
 - Lacks the power to grant a rehearing to modify order
 3. Respondent judge made a finding that Mariano is innocent, which is presumptuous and baseless in fact and in law, and in contempt of the court, violating his oath of office
 4. Respondent judge violated and continues to violate his duty
 5. Petitioners have no other plain, speedy and adequate remedy in the ordinary course of law
- Respondents maintain that Act 4221 is constitutional:
 1. Does not constitute an undue delegation of legislative power
 2. Does not infringe the equal protection clause
 3. Does not encroach upon pardoning power of Executive

ISSUE/S

ISSUE 1

Main – Procedural	1.1 W/N the issue may be properly raised in an original action of certiorari and prohibition 1.2 W/N petitioners are a proper party to question the constitutionality of Act 4221 1.3 W/N the constitutionality was raised at the earliest opportunity 1.4 W/N the constitutionality is necessary to the resolution of the case	1.1 YES 1.2 HSBC - Undecided People - YES 1.3 YES 1.4 YES
-------------------	---	---

RULING and RATIO DECIDENDI:

1.1 The question on the constitutionality of Act No. 4221 can be properly raised through an action of certiorari and prohibition

- Although the constitutionality of a statute is frequently raised in ordinary actions, resort can be made to extraordinary legal remedies.
- The Court has held that the question of constitutionality may be raised in mandamus proceedings, quo warranto, habeas corpus. The same can be held with prohibition and certiorari.
- Where the lower court derives its jurisdiction exclusively from an unconstitutional statute, it may be prevented by the writ of prohibition from enforcing that statute.

1.2 The People of the Philippines is a proper party.

- It has substantial interest in the constitutionality of Act 4221, as the enforcement of an invalid statute would constitute damages caused by the illegal expenditure of public funds in its enforcement.
- A well-settled rule is that the State can challenge the validity of its own laws.
- The mere fact that the Probation Act has been repeatedly relied upon in the past and has not been attacked, is no reason for the People to be estopped now.

1.3 The Court accepts that it was raised before the SC, but also before the trial court, only that it was passed upon by the respondent judge on the ground that the private prosecutor is not a proper party.

- Courts, in the exercise of sound discretion, may determine the time when a question affecting the constitutionality of a statute should be presented.
- In criminal cases, the question may be raised for the first time at any stage of the proceedings, either in the trial court or on appeal.

1.4 The Court held that the constitutionality of Act no. 4221 is necessary to the decision of the case.

- Mariano draws his privilege (rights) to probation solely from Act 4221, thus it is essential.

ISSUE 2

Main – Substantial	W/N Act No. 4221 encroaches upon the pardoning power of the Executive	NO
--------------------	---	----

RULING and RATIO DECIDENDI:

The Court ruled that the Act No. 4221 does not conflict with the pardoning power of the Executive, and the Congress is allowed to enact a probation law.

- Probation and pardon are not coterminous, nor are they the same.
- A pardon releases the punishment, and blots out the existence of guilt, so that in the eye of the law, the offender is innocent
- In probation, the probationer is not a free man. He is not exempt from the entire punishment.
- The court also held probation distinct from reprieve (Snodgrass v State) "Reprieve postpones the execution of sentence to a day certain, whereas suspension (probation) is for an indefinite time.

ISSUE 3

Main – Substantial	W/N Sec. 11 of Act No. 4221 constitute an undue delegation of legislature power	YES
RULING and RATIO DECIDENDI:		
<i>The Court ruled that Sec. 11 of Act No. 4221 constitutes an improper and unlawful delegation of legislative authority to the provincial boards and is unconstitutional and void.</i> • (Judge Cooley) “The power conferred upon the legislature to make laws cannot be delegated by that dept to any other body or authority...” • Although this principle admits an exception in permitting the national legislative body to delegate to local authorities. However it must be tested: ◦ Whether the statute is complete in all its terms and provisions when it left the hands of the legislature so that nothing was left to the judgment of any other appointee or delegate of the legislature. • The Court did not find any rules or standards fixed by the Act to guide the provincial boards to exercise their discretionary power to determine whether the Act will apply to their province • Moreover, while the legislature may enact laws for a particular locality different from others, the treatment of subjects of <u>option laws</u> are purely local in character which should receive different treatments from others. • In matters of general legislation which treats of criminal in general, and as regards with the general matter of probation, discretion may not be vested as provided in Act No. 4221		

ISSUE 4

Main – Substantial	W/N Act No. 4221 violates the equal protection clause in our Bill of Rights	YES
RULING and RATIO DECIDENDI:		
<i>The Court rules that the whole Act No. 4221 is repugnant to the equal protection clause of the Constitution, and thus, unconstitutional.</i> • The Court held that it would be obnoxious discrimination for an offender to be able to afford of the benefits of probation in one province and not in another. Sec. 11 creates a situation in which discrimination and inequality are allowed. • The Section is so inseparably linked with the other portions of the Act. In this Act, to make the system of probation apply is dependent upon the appropriation of provincial boards for the salaries of probation officers.		

FINAL DECISION	WHEREFORE, Act No. 4221 is hereby declared unconstitutional and void and the writ of prohibition is granted. SO ORDERED.
-----------------------	--

Resident Marine Mammals of the Protected Seascape Tañon Strait v. Sec. Reyes (2015)

Topic Subtopic	Requisites of Judicial Review - Proper Party - Standing for Future Generations and Fauna	GR No. & Ponente	G.R. No. 180771/181527, April 21, 2015 EN BANC LEONARDO-DE CASTRO
Petitioner/s	RESIDENT MARINE MAMMALS OF THE PROTECTED SEASCAPE TAÑON STRAIT CENTRAL VISAYAS FISHERFOLK DEVELOPMENT CENTER (FIDEC) et al	Respondent/s	SECRETARY ANGELO REYES, in his capacity as Secretary of the Department of Energy (DOE), SECRETARY JOSE L. ATIENZA, in his capacity as Secretary of the Department of Environment and Natural Resources (DENR), et al
Doctrine	The Court passed the landmark Rules of Procedure for Environmental Cases, which allow for a "citizen suit," and permit any Filipino citizen to file an action before our courts for violations of our environmental laws		

FACTS

Two Petitions concerning Service Contract No. 46 (SC-46), which allowed the exploration, development, and exploitation of petroleum resources within Tañon Strait, a narrow passage of water between Negros and Cebu.

- **180771** - certiorari, mandamus, and injunction, which seeks to enjoin respondents from implementing the above, and to have it nullified for willful and gross violation of the Consti, and certain int'l. and municipal laws
 - Petitioners, "Resident Marine Mammals," are the toothed whales, dolphins, porpoises, and other cetacean species, which inhabit the waters in and around the Tañon Strait. They are joined by Gloria Estenzo Ramos and Rose-Liza Eisma-Osorio as their legal guardians and as friends (the Stewards) who allegedly empathize with, and seek the protection of, the aforementioned marine species.
 - Also impleaded PGMA in view of her undertaking in the ASEAN Charter to protect the Strait
- **181527** - certiorari, mandamus, and prohibition, which seeks to nullify the Environmental Compliance Certificate (ECC) issued by the Environmental Management Bureau (EMB) of the Department of Environment and Natural Resources (DENR), Region VII in connection with SC-46; to prohibit respondents from implementing SC-46; and to compel public respondents to provide petitioners access to the pertinent documents involving the Tañon Strait Oil Exploration Project
 - Petitioners are Central Visayas Fisherfolk Development Center (FIDEC), a non-stock, non-profit, non-governmental organization, established for the welfare of the marginal fisherfolk in Region VII; and others, in their personal capacities and representatives of fisherfolk in Aloguinsan and Panamungajan, Cebu

Antecedent Facts and Proceedings

- Dec 21, 2004 - DOE and Japan Petroleum Exploration Co., Ltd. (JAPEX) formally converted GSEC-102 into SC 46 for the exploration, development, and production of petroleum resources in a block covering approximately 2,850 square kilometers offshore the Tañon Strait.
- May 9-18, 2005 - JAPEX conducted seismic surveys in and around the Strait, which included a multi-channel sub-bottom profiling.
 - JAPEX committed to drill one exploration well during the second sub-phase of the project. Since the well was to be drilled in the marine waters of Aloguinsan and Pinamungajan, where the Tañon Strait was declared a protected seascape in 1988, JAPEX agreed to comply with the Environmental Impact Assessment requirements pursuant to Presidential Decree No. 1586, entitled "Establishing an Environmental Impact Statement System, Including Other Environmental Management Related Measures and for Other Purposes."
- Jan 31, 2007 - the Protected Area Management Board of the Tanon Strait (PAMB-Tanon Strait) recommended the approval of JAPEX's application for an ECC → Mar 6, 2007, DENR granted an ECC to DOE and JAPEX for the offshore oil and gas exploration
- Nov 16, 2007 - Feb 8, 2008 - JAPEX began to drill an exploratory well, with a depth of 3,150 meters, near Pinamungajan town in the western Cebu Province.
- The two petitions were filed on Dec 17, 2007
- Mar 31, 2008 - Supply Oilfield Services, Inc. (SOS) asked its name as a respondent to be stricken down, since they were only a mere logistics contractor for JAPEX → RMMS opposed it since JAPEX had not yet been joined in the case (asked the Court to implead it as a co-respondent). FIDEC also adopted the same opposition and motion to implead

- Feb 7, 2012 Resolution - SC directed the Court's process servicing unit to again serve the parties with a copy of the September 23, 2008 Resolution of the Court, which gave due course to the petitions in G.R. Nos. 180771 and 181527
- JAPEX PH (resident agent of JAPEX) was considered by the Court a real party-in-interest (who stands to be benefited or injured by the judgment of the suit). It also alleged that JAPEX PH had already stopped exploration activities in the Tañon Strait way back in 2008, rendering this case moot.

On Mootness → Will Review Still

Courts have decided cases otherwise moot and academic under the following exceptions:

- 1) There is a grave violation of the Constitution;
- 2) The exceptional character of the situation and the paramount public interest is involved;
- 3) The constitutional issue raised requires formulation of controlling principles to guide the bench, the bar, and the public; and
- 4) The case is capable of repetition yet evading review.

In this case, despite the termination of SC-46, this Court deems it necessary to resolve these consolidated petitions as almost all of the foregoing exceptions are present in this case. Both petitioners allege that SC-46 is violative of the Constitution, the environmental and livelihood issues raised undoubtedly affect the public's interest, and the respondents' contested actions are capable of repetition.

MAIN - PROCEDURAL - ISSUE 1: Whether or Not the Petitioners Resident Marine Mammals and Stewards have locus standi to file the instant petition? – ONLY THE STEWARDS DO

PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
• The Resident Marine Mammals, through the Stewards, "claim" that they have the legal standing to file this action since they stand to be benefited or injured by the judgment in this suit. • Citing <i>Oposa v. Factoran, Jr.</i>, they also assert their right to sue for the faithful performance of international and municipal environmental laws created in their favor and for their benefit. • The stewards say they can represent RMM as they have stakes in the case as forerunners of a campaign to build awareness among the affected residents of Tañon Strait • RMMS asks the Court to lower the benchmark in locus standi • Cited US Jurisprudence - <i>Sierra Club v. Rogers C.B. Morton</i> (1972), where Justice Douglas stated that inanimate objects, nature and animals have standing	• Public respondents, through the Solicitor General, contend that petitioners Resident Marine Mammals and Stewards have no legal standing to file the present petition • Cited Section 1, Rule 3 of the Rules of Court which requires parties to either be natural or juridical persons • Contest the applicability of <i>Oposa</i>, pointing out that the petitioners therein were all natural persons, albeit some of them were still unborn. • As regards the Stewards, the public respondents likewise challenge their claim of legal standing on the ground that they are representing animals, which cannot be parties to an action. Moreover, the public respondents argue that the Stewards are not the real parties-in-interest for their failure to show how they stand to be benefited or injured by the decision in this case. • Claims that absent any proof that former President Arroyo had disapproved of their acts in entering into and implementing SC-46, such acts remain to be her own • Since they are not real party-in-interest, the case should be dismissed for failure to state a cause of action

RULING and RATIO DECIDENDI for ISSUE 1:

- In our jurisdiction, locus standi in environmental cases has been given a more liberalized approach.
- Recently, the Court passed the landmark **Rules of Procedure for Environmental Cases**, which allow for a "citizen suit," and permit any Filipino citizen to file an action before our courts for violations of our environmental laws:
 - **SEC. 5. Citizen suit. — Any Filipino citizen in representation of others, including minors or generations**

yet unborn, may file an action to enforce rights or obligations under environmental laws.

- In the Annotations, the Court said that this provision liberalizes standing for all cases filed enforcing environmental laws and collapses the traditional rule on personal and direct interest, on the principle that humans are stewards of nature. The terminology of the text reflects the doctrine first enunciated in *Oposa v. Factoran*, insofar as it refers to minors and generations yet unborn
- PT was filed in 2007, years before the effectivity of the above. – Court decided to apply it retroactively
- Even before this, this Court had already taken a permissive position on the issue of locus standi in environmental cases. In *Oposa*, we allowed the suit to be brought in the name of generations yet unborn "based on the concept of intergenerational responsibility insofar as the right to a balanced and healthful ecology is concerned." – in *Oposa*, **standing to sue on behalf of future generations is an obiter dictum as per DG. If it was adopted by the Court in a later case (such as this one) then it can become a doctrine**
- **While Resident Marine Mammals have no legal standing, the Stewards - Ramos and Eisma-Osorio - are declared to possess the legal standing to file this petition.**

On PGMA as Unwilling Co-Plaintiff

- When the consent of a party who should be joined as a plaintiff cannot be obtained, he or she may be made a party defendant to the case. -> will be under court jurisdiction
- The unwilling party's name cannot be simply included in a petition, without his or her knowledge and consent, as such would be a denial of due process.
- Reason to implead her is not sufficient. → name stricken off the title of this case

LEGAL BASES

Rule 3 of the 1997 Rules of Court

Parties to Civil Actions Section 1. Who may be parties; plaintiff and defendant. — **Only natural or juridical persons, or entities authorized by law** may be parties in a civil action. ...

Sec. 2. Parties in interest. — A real party in interest is the party who stands to be benefited or injured by the judgment in the suit, or the party entitled to the avails of the suit. Unless otherwise authorized by law or these Rules, every action must be prosecuted or defended in the name of the real party in interest.

Sec. 3. Representatives as parties. — Where the action is allowed to be prosecuted or defended by a representative or someone acting in a fiduciary capacity, the beneficiary shall be included in the title of the case and shall be deemed to be the real party in interest. A representative may be a trustee of an express trust, a guardian, an executor or administrator, or a party authorized by law or these Rules...

MAIN - SUBSTANTIVE - ISSUE 2: Whether or Not Service Contract No. 46 is constitutional vis-a-vis Section 2, Article XII of the 1987 Constitution? NO

PETITIONER/S ARGUMENTS:

- JAPEX is 100% Japanese-owned; SC-46 is unconstitutional.
- FIDEC asserts that SC-46 cannot be considered as a technical and financial assistance agreement validly executed under par. 4
- Cited *La Bugal-B'laan Tribal Association* case - where the service contract has requisites -
 - Legislative enactment of a general law
 - Presidential notification
- P.D. No. 87 or the Oil Exploration and Development Act of 1972 cannot legally justify SC-46 as it is deemed to have been repealed by the '87 Consti. and subsequent laws, which enunciate new policies concerning the environment.
- Par. 2 and 3 of Section 2, Article XII of the Consti. mandate the exclusive use and enjoyment by the Filipinos of our natural resources, and par. 4 does not speak of service contracts but of FTAA's or Financial Technical Assistance Agreements.

RESPONDENT/S ARGUMENTS:

- SC-46 does not violate the Consti. Does not fall under the coverage of par. 1 but instead, under para. 4 of Sec. 2, Art. XII of the '87 Consti. on FTAA's.
- Par. 2 and 3, which refer to the grant of exclusive fishing right to Filipinos, are not applicable to SC-46 as the contract does not grant exclusive fishing rights to JAPEX nor does it otherwise impinge on the FIDEC's right to preferential use of communal marine and fishing resources
- Based on the "alter ego principle," their acts are also that of GMA

RULING and RATIO DECIDENDI for ISSUE 2:

- This Court has previously settled the issue of whether service contracts are still allowed under the 1987 Constitution. In *La Bugal*, we held that the deletion of the words "service contracts" in the 1987 Constitution did not amount to a ban on them per se. As also shown in the ConCom deliberations
 - Concluded that the phrase "agreements" involving either *technical or financial assistance*, referred to in paragraph 4, are in fact service contracts.
 - In the new service contracts (post Marcos), the foreign contractors provide capital, technology and technical know-how, and managerial expertise in the creation and operation of large-scale mining/extractive enterprises; and the government, through its agencies (DENR, MGB), actively exercises control and supervision over the entire operation.
 - We established that par. 4, with the **safeguards** in place, is the exception to par. 1, Sec. 2 of Consti. Art. XII. The requirements are:
 1. The service contract **shall be crafted in accordance with a general law** that will set standard or uniform terms, conditions and requirements, presumably to attain a certain uniformity in provisions and avoid the possible insertion of terms disadvantageous to the country.
 - a. PD87 (Marcos - 1972) - Oil Exploration and Development Act of 1972 - remains to be a valid law
 - b. While the above is a general law, the exploitation and utilization of this energy resource in this case **may only be allowed through a law passed by the Congress**, since Tanon Strait is a National Integrated Protected Areas System (NIPAS) area
 2. The **President shall be the signatory for the government** because, supposedly before an agreement is presented to the President for signature, it will have been vetted several times over at different levels to ensure that it conforms to law and can withstand public scrutiny.
 - a. Only signed by DOE, through its Secretary. Alter ego doctrine cannot work, when the Constitution itself requires the President to act personally (*Jocson v Torres*)
 3. Within thirty days of the executed agreement, the **President shall report it to Congress** to give that branch of government an opportunity to look over the agreement and interpose timely objections, if any.
- ^ 2 and 3 above are absent, thus it renders the service contract as null and void. SC-46 should have conformed to both PD87 and the 1987 Constitution. Failed to show that the President participated in any way. The above requirements are not mere formalities, as the Constitution itself requires them. Non-observance thereof will nullify the contract.
- Adhering to the aforementioned guidelines, **this Court finds that SC-46 is indeed null and void for noncompliance with the requirements of the 1987 Constitution.**

LEGAL BASES

Section 2, Article XII of the 1987 Constitution

SECTION 2. [par. 1] ...The exploration, development, and utilization of natural resources shall be under the full control and supervision of the State. The State may directly undertake such activities, or it may enter into co-production, joint venture, or production-sharing agreements with Filipino citizens, **or corporations or associations at least sixty per centum of whose capital is owned by such citizens.** xxx

[par. 4] The President may enter into agreements with **foreign-owned corporations** involving either **technical or financial assistance** for large-scale exploration, development, and utilization of *minerals, petroleum, and other mineral oils* according to the general terms and conditions provided by law, based on real contributions to the economic growth and general welfare of the country. In such agreements, the State shall promote the development and use of local scientific and technical resources.

[par.5] The President **shall notify the Congress** of every contract entered into in accordance with this provision, within thirty days from its execution.

MAIN - SUBSTANTIVE - ISSUE 3: Whether Service Contract No. 46 conforms with Other Laws? NO**PETITIONER/S ARGUMENTS:**

RMMS argues the following:

- SC-46 violates Section 27 of RA 9147 or the Wildlife Resources Conservation and Protection Act, which bans all marine exploration and exploitation of oil and gas deposits.
- Section 14 of RA 7586 or the NIPAS Act of 1992, which allows the exploration of protected areas for the purpose of information-gathering, has been repealed by Section 27 of Republic Act No. 9147.
- SC-46 is anathema to RA 8550 or the Philippine Fisheries Code of 1998, which protects the rights of the fisherfolk in the preferential use of municipal waters, with the exception being limited only to research and survey activities

FIDEC argues the following:

- Failed to avail of the exceptions under Section 14 of the NIPAS Act, since there is no DENR-approved program nor a general law passed by the Congress. Thus, seismic surveys and oil drilling operations were all done illegally.
- SC-46 infringes on its right to the preferential use of the communal fishing waters as it is denied free access within the prohibited zone, in violation not only of the Fisheries Code but also of the 1987 Constitutional provisions on subsistence fisherfolk and social justice.
- provisions in PD87, which allow offshore drilling even in municipal waters, should be deemed to have been rendered inoperative by the provisions of RA8550 and RA7160, which reiterate the social justice provisions of the Constitution.

RESPONDENT/S ARGUMENTS:

- Invokes the rules on statutory construction and argues that Section 14 of the NIPAS Act is a more particular provision and cannot be deemed to have been repealed by the more general prohibition in Section 27 of RA9147. They say that Section 14, under which SC-46 falls, should instead be regarded as an exemption to Section 27.
- On RA9147 violation, respondent asserts that the yes, it prohibits the exploration of minerals, but Philippine Mining Act of 1995 excludes energy materials such as coal, petroleum, natural gas, radioactive materials and geothermal energy. Thus, since SC-46 involves oil and gas exploration, Section 27 does not apply.
- defends the validity of SC-46 and insists that it does not grant exclusive fishing rights to JAPEX. It does not violate the rule on preferential use of municipal waters.
- Moreover, they allege that JAPEX has not banned fishing in the project area, contrary to the FIDEC's claim. The public respondents also contest the attribution of the declining fish catch to the seismic surveys and aver that the allegation is unfounded. They claim that according to the Bureau of Fisheries and Aquatic Resources' fish catch data, the reduced fish catch started in the 1970s due to destructive fishing practices.

RULING and RATIO DECIDENDI for ISSUE 3:

Already established that SC-46 is null and void, but want to discuss the above matters to serve as a guiding post to the Government when executing future service contracts. Will focus primarily on the Tanon Strait as protected seascape.

- Ramos - Proc. No. 1234 declared Tanon Strait as protected seascape. Estrada - made Tanon Strait Commission to ensure the optimal use of resources in the area without threatening marine life. Gloria abolished it.
- Congress enacted the NIPAS Act to secure the perpetual existence of all native plants and animals through the establishment of a comprehensive system of integrated protected areas.
 - Protected Seascape - an area of national significance characterized by the harmonious interaction of man and land while providing opportunities for public enjoyment through recreation and tourism within the normal lifestyle and economic activity of this areas -> has a management plan for this purpose
 - Requires that an Environmental Impact Assessment (EIA) be made prior to undertaking any activity outside the scope of the management plan. Unless an ECC under the EIA system is obtained, no activity inconsistent with the goals of the NIPAS Act shall be implemented.
- Under PN2146, the Tañon Strait is an environmentally critical area, having been declared as a protected area in 1998; therefore, any activity outside the scope of its management plan may only be implemented pursuant to an ECC secured after undergoing an EIA to determine the effects of such activity on its ecological system.

- On the NIPAS Act - while an exploration done for the purpose of surveying for energy resources is allowed under Section 14 of the NIPAS Act, this does not mean that it is exempt from the requirement to undergo an EIA under Section 12. Section 14 provides for additional requisites before any exploration for energy resources may be done in protected areas.
- The public respondents themselves admitted that JAPEx only started to secure an ECC prior to the second sub-phase of SC-46, which required the drilling of an oil exploration well. ***This means that when the seismic surveys were done in the Tañon Strait, no such environmental impact evaluation was done.*** Unless seismic surveys are part of the management plan of the Tañon Strait, such surveys were done in violation of Section 12 of the NIPAS Act and Section 4 of Presidential Decree No. 1586
- The respondents' subsequent compliance with the EISS for the second sub phase of SC-46 cannot and will not cure this violation. The penalty involving violations of the ECC requirement is the suspension or cancellation of the certificates, as well as monetary damages, imprisonment, forfeiture, etc.
- While PD87 may serve as the general law upon which a service contract for petroleum exploration and extraction may be authorized, ***the exploitation and utilization of this energy resource in the present case may be allowed only through a law passed by Congress, since the Tañon Strait is a NIPAS area.*** Since there is no such law specifically allowing oil exploration and/or extraction in the Tañon Strait, no energy resource exploitation and utilization may be done in said protected seascape.

In view of the foregoing, other issues raised in the petitions are no longer necessary to be discussed.

LEGAL BASES

Sections 12 and 14 of the NIPAS Act read:

SECTION 12. Environmental Impact Assessment. — Proposals for activities which are outside the scope of the management plan for protected areas shall be subject to an environmental impact assessment as required by law before they are adopted, and the results thereof shall be taken into consideration in the decision-making process.

No actual implementation of such activities shall be allowed without the required Environmental Compliance Certificate (ECC) under the Philippine Environmental Impact Assessment (EIA) system. In instances where such activities are allowed to be undertaken, the proponent shall plan and carry them out in such manner as will minimize any adverse effects and take preventive and remedial action when appropriate. The proponent shall be liable for any damage due to lack of caution or indiscretion.

SECTION 14. Survey for Energy Resources. — Consistent with the policies declared in Section 2 hereof, protected areas, except strict nature reserves and natural parks, may be subjected to exploration only for the purpose of gathering information on energy resources and only if such activity is carried out with the least damage to surrounding areas. Surveys shall be conducted only in accordance with a program approved by the DENR, and the result of such surveys shall be made available to the public and submitted to the President for recommendation to Congress. Any exploitation and utilization of energy resources found within NIPAS areas shall be allowed only through a law passed by Congress.

FINAL DECISION

WHEREFORE, the Petitions in G.R. Nos. 180771 and 181527 are GRANTED, Service Contract No. 46 is hereby declared NULL AND VOID for violating the 1987 Constitution, Republic Act No. 7586, and Presidential Decree No. 1586. SO ORDERED

FALCIS III v. Civil Registrar (2019)

Topic Subtopic	JUDICIAL REVIEW Earliest Opportunity	GR No. & Ponente	G.R. No. 217910 J. Leonen
Petitioner/s	JESUS NICARDO M. FALCIS III	Respondent/s	CIVIL REGISTRAR GENERAL
Petitioners-in-intervention	LGBTS CHRISTIAN CHURCH, INC., REVEREND CRESENCIO "CEEJAY" AGBAYANI, JR., MARLON FELIPE, AND MARIA ARLYN "SUGAR" IBAÑEZ	Intervenors-oppositors	ATTY. FERNANDO P. PERITO, ATTY. RONALDO T. REYES, ATTY. JEREMY I. GATDULA, ATTY. CRISTINA A. MONTES, AND ATTY. RUFINO POLICARPIO III
Doctrine			

FACTS

- Petitioner filed a petition for *certiorari* and prohibition (Rule 65 of ROC) to declare Articles 1 & 2 of the Family Code as unconstitutional and nullify Article 46 (2) and 55 (6) of the Family code.
- Petitioner claims that he complied with the requisites of judicial review and the case is of transcendental importance.
 - **Case/Controversy:** alleged injury by the “prohibition against the right to marry the same-sex” preventing him from settling in the Philippines.
 - **Standing:** personal stake and injury as “an open and self-identified homosexual;”
 - **Earliest Opportunity:** petitioners claim the issues were raised at the earliest opportunity.
 - **Lis Mota:** Constitutionality of the provisions; violates due process and equal protection, right to decisional and marital privacy and the right to found a family in accordance with religious convictions.
- Falcis further claims that **strict scrutiny should be the test used in appraising the constitutionality of Articles 1 and 2 of the Family Code**, and that the compelling state interest involved is the protection of marriage pursuant to Article XV, Section 2 of the Constitution, not the protection of heterosexual relationships, quoting Ret. J. Puno’s concurring opinion in *Ang Ladlad LGBT Party v. COMELEC*.
- **Argues opposite-sex and same-sex couples are equally capable of founding family, procreation is not an essential marital obligation and no necessity to limit marriage between man and woman.**
- Claims that **FC denies the existence of individuals belonging to religious denominations that believe in same-sex marriage.**
- Respondents argue that petitioner failed to comply with the requirements of Rule 65 of ROC; that petitioner did not cite any statistics showing discrimination against the LGBT community, that petitioner did not show any specific injury, and that petitioner is estopped from questioning the validity of the FC as it has been in effect since 1987.
- **Petitioners-in-intervention:** claims that they Rev. Agbayani, Felipe and Ibanez were denied marriage license on Aug. 3, 2015; LGBTs Church claims third-party standing.
- **Intervenors-oppositors:** standing as concerned citizens and taxpayers who want to uphold the constitution; definition of marriage in the petition is contrary to their religious beliefs which is constitutionally protected (Art III sec 4 & 5); deciding on the case is tantamount to judicial legislation

Strict Scrutiny Test - standard of judicial review to determine the constitutionality of a law or gov’t action.

Other issues:

- **CONTEMPT:** During the preliminary conference, Falcis was held guilty of direct contempt of court for being attired with a casual jacket, cropped jeans and loafers without socks. They were also held in contempt for failing to file their required memoranda on July 26, 2018.

ISSUE/S

ISSUE 1

Main – Procedural	W/N the mere passage of the Family Code creates an actual case or controversy reviewable by the court.	NO
-------------------	--	----

RULING and RATIO DECIDENDI:

No, petition presents no actual case or controversy. There must be an actual case, "a contrast of legal rights that can be interpreted and enforced on the basis of existing law and jurisprudence."

The petition does not create a facial challenge to Art 1 & 2, 46 (4) and 55 (6) of the FC.

If litigants wish to assail a statute or regulation on its face, the burden is on them to prove that the narrowly-drawn exception for an extraordinary judicial review of such statute or regulation applies.

Facial challenge - law is unconstitutional in all aspects

As-applied challenge - unconstitutional only in the actual facts affecting real litigants

There must be sufficient facts to enable the Court to intelligently adjudicate the issues. Parties coming to court must show that the act had a diverse effect on them. Demonstrating an actual case or controversy is even more compelling in cases concerning minority groups.

Petitioner merely parrots Ret. J. Puno's separate concurring opinion in *Ang Ladlad LGBT Party v. COMELEC* (5 pages). Separate opinions do not have binding effect and petitioners failed to explain why the court must adopt the concurring opinion. Also, **Petitioner's 29-page initiatory pleading does not cite credible/reputable studies, statistics, papers or statements.**

Respondent is not the proper party to respond. The Civil Registrar General was **not involved in the formulation of the FC** and therefore did not partake in the alleged "grave abuse of discretion in the enactment of FC." No antecedents existed prior to the petition as the **petitioner has never applied for a marriage license, did not visit the CSG's office, or had a partner prior to filing.** Hence, no discretion was exercised by the respondent.

Despite seeking access to the benefits of marriage, petitioner miserably fails to articulate what those benefits are, in both his filed pleadings and his submissions during oral arguments. By deeming the aforementioned provisions unconstitutional, all laws relating to marriage will be amended.

LEGAL BASES

Provincial Bus Operators Association of the Philippines v DOLE: for a controversy to be justiciable, there must be: (1) an actual case or controversy involving legal rights capable of judicial determination (2) parties must have locus standi (3) it must be raised at the earliest opportunity (4) constitutionality must be the list mota of the case.

Pimentel, Jr. v. Aguirre: an action has ripened into a judicial controversy by its mere enactment or approval. A single violation of the constitution/law is enough to awaken judicial duty.

Disini, Jr. v. Secretary of Justice: A petitioner may for instance mount a "facial" challenge to the constitutionality of a statute even if he claims no violation of his own rights under the assailed statute where it involves free speech on grounds of overbreadth or vagueness of the statute.

Southern Hemisphere Engagement Network Inc. v. Anti-terrorism Council: Allegations of abuse must be anchored on real events before courts may step in to settle actual controversies involving rights which are legally demandable and enforceable.

Lozano v. Nograles: "case-or-controversy" is the requisite for "ripeness." There must be a direct *adverse effect* on the individual challenging an act.

ISSUE 2

Main – procedural	W/N the petitioner has standing	NO
RULING and RATIO DECIDENDI:		
<i>No. Petitioner does not have legal standing to this petition.</i> Legal standing requires substantial interest in the case that he has sustained or will sustain <i>direct injurt</i> as a result of enforcement. There must also be some kind of <i>injury-in-fact</i>. Petitioner was not able to show that. Petitioner’s argument that the FC caused his inability to find a partner is <i>non sequitur</i>. Anticipation of harm is not equivalent to direct injury. FC was enacted in 1987 and the petition was filed in 2015. Petitioner is then aware of the existence of the FC. <i>It is then extraordinary for him to claim, first, that he has been continually injured by the existence of the Family Code; and second, that he raised the unconstitutionality of Articles 1 and 2 of the Family Code at the earliest possible opportunity.</i>		

ISSUE 3

Main – procedural	W/N the petition-in-intervention cures the procedural defects of the petition	NO
RULING and RATIO DECIDENDI:		
<i>No. The petition-in-intervention was also authored by petitioner and is also as defective as the original petition.</i> Petitioner-intervenor’s relief is best decided in a different proceeding. A <i>mandamus</i> to direct their marriage licenses be issued to them is the proper remedy instead of the same relief as the petitioner. Petitioner-intervenor cannot create an actual case or controversy when the main petition has none. Even if it were the case, petitioner-intervenor also does not satisfy third-party standing. There’s no legally demandable right for a sect to be given and the FC is not the proximate cause of the petitioner-intervenor’s injury. They presented no proof that there is "relative silence in constitutional litigation" from groups concerned with LGBTQI+ causes that entitles them to raise arguments on behalf of third parties. Intervention requires: (1) a movant's legal interest in the matter being litigated; (2) a showing that the intervention will not delay the proceedings; and (3) a claim by the intervenor that is incapable of being properly decided in a separate proceeding.		
LEGAL BASES		
De Borja v. Pinalakas na Ugnayan ng Maliliit na Mangingisda ng Luzon, Mindanao at Visayas: petition-in-intervention and OSF’s comment did not endow the petitioner with an actual case or controversy.		

ISSUE 4

Main – procedural	W/N the petitioner’s relief is the most appropriate	NO
RULING and RATIO DECIDENDI:		
Petitions for certiorari are filed to address the jurisdictional excesses of officers or bodies exercising judicial or quasi-judicial functions. Petitions for prohibition are filed to address the jurisdictional excesses of officers or bodies exercising judicial, quasi-judicial, or ministerial functions. Petitioner’s presentation makes it clear that the proper relief is NOT certiorari (Rule 65) nor prohibition (Rule 46) but RATHER <u>should’ve been declaratory relief</u> (Rule 63).		
LEGAL BASES		
RULE 65: SECTION 1. Petition for Certiorari. — When any tribunal, board or officer exercising judicial or quasi-judicial functions has acted without or in excess of its or his jurisdiction, or with grave abuse of discretion amounting to lack or excess of jurisdiction, and there is no appeal, or any plain, speedy, and adequate remedy in the ordinary course of law, a person aggrieved thereby may file a verified petition in the proper court, alleging the facts with certainty and praying that judgment be rendered annulling or modifying the proceedings of such tribunal, board or officer, and granting such incidental reliefs as law and justice may require. RULE 46: SECTION 2. Petition for Prohibition. — When the proceedings of any tribunal, corporation, board, officer or person, whether exercising judicial, quasi-judicial or ministerial functions, are without or in excess of its or his jurisdiction, or with grave abuse of discretion amounting to lack or excess of jurisdiction, and there is no appeal or any other plain, speedy, and adequate remedy in the ordinary course of law, a person aggrieved thereby may file a verified petition in the proper court, alleging the facts with certainty and praying that judgment be rendered commanding the respondent to desist from further proceedings in the action or matter specified therein, or otherwise granting such incidental reliefs as law and justice may require. RULE 63: SECTION 1. Who May File Petition. — Any person interested under a deed, will, contract or other written instrument, or whose rights are affected by a statute, executive order or regulation, ordinance, or any other governmental regulation may, before breach or violation thereof, bring an action in the appropriate Regional Trial Court to determine any question of construction or validity arising, and for a declaration of his rights or duties, thereunder. An action for the reformation of an instrument, to quiet title to real property or remove clouds therefrom, or to consolidate ownership under Article 1607 of the Civil Code, may be brought under this Rule.		

ISSUE 5

Main – procedural	W/N the petitioner violated the hierarchy of courts	YES
RULING and RATIO DECIDENDI:		
<i>Yes, the concurrent jurisdiction of the Court of Appeals and the regional trial courts with this Court does not give parties absolute discretion in immediately seeking recourse from the highest court of the land.</i> Invoking transcendental importance to be exempted from the doctrine of hierarchy of courts <u>requires that the issue be a question of law</u>. However, this cannot be used for “the ignorant and the ignoble to file petitions that prove nothing but their cerebral deficit.” The hierarchy of courts is essential to build the facts of the case. However, the petitioner skipped the fact building stage through the hierarchy and failed to present evidence substantiating his case.		

LEGAL BASES

Lozano v Nograles: Moreover, while the Court has taken an increasingly liberal approach to the rule of locus standi, evolving from the stringent requirements of "personal injury" to the broader "transcendental importance" doctrine, such liberality is not to be abused. It is not an open invitation for the ignorant and the ignoble to file petitions that prove nothing but their cerebral deficit.

FINAL DECISION

WHEREFORE the Petition for Certiorari and Prohibition and the Petition-in-Intervention are DISMISSED. This Court finds petitioner Atty. Jesus Nicardo M. Falcis III, his co-counsels Atty. Darwin P. Angeles, Atty. Keisha Trina M. Guangko, Atty. Christopher Ryan R. Maranan, as well as intervenor oppositor Atty. Fernando P. Perito, all GUILTY of INDIRECT CONTEMPT OF COURT. Atty. Falcis is sentenced to pay a fine of Five Thousand Pesos (P5,000.00) within thirty (30) days from notice. Atty. Angeles, Atty. Guangko, Atty. Maranan, and Atty. Perito are REPRIMANDED and ADMONISHED to be more circumspect of their duties as counsel. They are STERNLY WARNED that any further contemptuous acts shall be dealt with more severely. Let copies of this Decision be included in the personal records of Atty. Falcis, Atty. Angeles, Atty. Guangko, Atty. Maranan, and Atty. Perito, and entered in their files in the Office of the Bar Confidant. **SO ORDERED.**

SEPARATE OPINION/S

PERALTA, J,
concurring

There is no case or controversy ripe for judicial determination.

Petitioner has no standing.

Petitioner has not made clear the unconstitutionality of the provisions of the FC relative to its definition of marriage as a union between a man and a woman.

JARDELEZA,, J
concurring

Petitioner is not the proper party to assert a liberty interest in same-sex marriage. He did not suffer any injury as a result of enforcement of the FC. Petitioner-intervenors did not cure the defect.

Direct recourse to the SC is unwarranted. In his exuberant rush to bring this case directly to the Court as both lead party and counsel, petitioner chose to skip building a factual foundation of record upon which the Court can make an informed judgment.

Arceta v. Mangrobang (2004)

Topic Subtopic	III. Judicial review, 4: Necessity of Deciding Constitutional Questions	GR No. & Ponente	G.R. No. 152895 Quisumbing, J.
Petitioner/s	Ofelia V. Arceta [G.R. No. 152895] Gloria S. Dy [G.R. 153151]	Respondents	Hon. Ma. Celestina C. Mangrobang, Judge, Br. 54, MTC Navotas, Metro Manila [G.R. No. 152895] Hon. Edwin B. Ramizo, Judge, Br. 53, Caloocan MTC [G.R. 153151]
Doctrine	To petition for judicial review, one must make sure their case has merit by meeting the req's. for judicial review.		

FACTS

- 2 consolidated petitions under Rule 65 of the Rules of Court, for certiorari, prohibition, and mandamus, with prayers for a TRO. Both assail the constitutionality of the Bouncing Checks Law (BP Blg. 22)
- Both Arceta and Dy are guilty and charged for violation of the Bouncing Checks Law. Both of them willfully, unlawfully, and feloniously issued checks that were subsequently dishonored.
- Both of them did NOT move to dismiss the charges against them on the grounds that BP 22 was unconstitutional and the existence of the Lozano Doctrine meant it was futile to plead otherwise.
 - Arceta was eventually arraigned and pleaded not guilty, but she manifests that her arraignment has no effect on the present petition. She files this instant petition
 - Dy did not bother to dismiss the charges for the reason stated above, she filed a petition with this court invoking its power of judicial review to have BP Blg 22 voided for Constitutional infirmity
- Lozano v. Martinez was a 1986 SC decision that upheld the constitutionality of the Bouncing Checks Law.

Main – Procedural	W/N the case is worthy of Judicial Review	NO
-------------------	---	----

RULING and RATIO DECIDENDI:

- *The instant petitions for certiorari, prohibition, and mandamus are for questioning if the respondent acted in excess of jurisdiction or grave abuse of discretion. These petitions didn't allege anything against the respondent judges.*
- *The petitions do not have a sufficient cause of action*
- *Petitions blatantly **ignore the hierarchy of courts** by immediately elevating the matter to the SC. Earliest opportunity means they should have brought it up the issue of the constitutionality of BP 22 in the MTCs*
 - *No issues raised or argued in the trial courts means these petitions are premature*
- *The constitutional question raised is not the Lis Mota of the controversy.*
 - *Every law enjoys presumption of constitutionality unless proven otherwise*
 - *Petitions failed to persuade WHY BP 22 is unconstitutional*
 - *(Dy's "Financial crisis" is not grounds for consideration)*

LEGAL BASES

- *4 requisites for the court to exercise judicial review*
 - *An actual case or controversy*
 - *A personal or substantial interest of the party in raising the constitutional question*
 - *The exercise of judicial review is pleaded at the earliest opportunity*
 - *The constitutional question is the Lis Mota of the case*
- *Rule 65 of the Code of Civil Procedure*
- *Lozano v. Martinez: It is exactly in trying times that faith and confidence in the financial system remain strong, and that any practice destroying confidence, such as bouncing checks, should be deterred*

FINAL DECISION	WHEREFORE, the instant petitions are DISMISSES for utter lack of merit
----------------	--

IV. Territory, People, and Government

A. Territory	4 of 4 digested
B. People: 1. Citizenship	17 of 17 digested
B. People: 2. Suffrage	7 of 7 digested
C. Government	15 of 15 digested

[YELLOW - IDENTITY & SYLLABUS RELEVANCE]

- **Case Title:** *Prof. Merlin M. Magallona, et al. v. Hon. Eduardo Ermita, in his capacity as Executive Secretary, et al.*, G.R. No. 187167, August 16, 2011.
 - **Court:** Supreme Court En Banc (unanimous decision; Ponente: Carpio, J.).
 - **Syllabus Relevance:** Article I (National Territory), baselines laws (R.A. 3046, R.A. 5446, R.A. 9522), UNCLOS III, and the interaction between municipal baselines laws and international treaties. It also addresses *locus standi* (standing) in public interest suits under Article VIII, Section 1.
-

[YELLOW - CHRONOLOGICAL MATERIAL FACTS]

1. **1898:** Under the Treaty of Paris, Spain cedes the Philippine archipelago to the United States, defining its boundaries within a wide rectangular area.
 2. **1958:** UNCLOS I (Convention on the Territorial Sea and Contiguous Zone) is framed, codifying sovereign rights over territorial seas.
 3. **1961:** The Philippine Congress enacts **Republic Act No. 3046 (R.A. 3046)** to demarcate the maritime baselines of the Philippines as an archipelagic state.
 4. **1968:** Congress passes **Republic Act No. 5446 (R.A. 5446)** to correct typographical errors in R.A. 3046 and to reserve the drawing of baselines around Sabah (North Borneo).
 5. **1982/1984:** The Third United Nations Convention on the Law of the Sea (UNCLOS III) is adopted. The Philippines ratifies UNCLOS III on February 27, 1984. UNCLOS III prescribes strict mathematical rules on baseline length, contour, and water-to-land ratio for archipelagic states, and sets a deadline for submitting applications for the extended continental shelf.
 6. **March 2009:** To comply with UNCLOS III, Congress enacts **Republic Act No. 9522 (R.A. 9522)**, which amends R.A. 3046. R.A. 9522 adjusts the baseline by shortening one segment, optimizing several basepoints, and classifying the **Kalayaan Island Group (KIG)** and **Scarborough Shoal (Bajo de Masinloc)** as "regimes of islands" under UNCLOS Article 121 (meaning they generate their own maritime zones instead of being enclosed within the main archipelagic baselines).
 7. **2009:** Petitioners (law professors Merlin Magallona and Harry Roque, legislator Risa Hontiveros, and UP College of Law students) file an original petition for certiorari and prohibition before the Supreme Court, challenging R.A. 9522.
-

[YELLOW - PROCEDURAL HISTORY]

- **Original Action:** Petitioners filed an original petition for the writs of Certiorari and Prohibition under Rule 65 of the Rules of Court to declare R.A. 9522 unconstitutional.
- **Interim Relief:** Petitioners prayed for a preliminary injunctive writ, which the Supreme Court left unacted upon.

- **Respondents' Objections:** Respondent government officials (Executive Secretary Eduardo Ermita, DFA Secretary Alberto Romulo, etc.) opposed the petition on procedural grounds (lack of locus standi, improper remedy of Rule 65 for assailing a statute) and defended the law on the merits.
-

[ORANGE - PARTIES' MATERIAL ARGUMENTS]

- **Petitioners' Arguments:**
 1. **Territorial Diminution:** R.A. 9522 reduces Philippine maritime territory and the reach of its sovereign power in violation of Article I of the Constitution, which they argue permanently protects the territorial boundaries established under the Treaty of Paris.
 2. **Loss of Sovereignty over Excluded Territories:** By classifying the KIG and Scarborough Shoal as a "regime of islands" outside the main archipelagic baselines perimeter, the law effectively abandons Philippine sovereignty over them, and prejudices the livelihoods of subsistence fishermen.
 3. **Security and Environmental Threats:** Drawing baselines that comply with UNCLOS III opens internal/archipelagic waters landward of the baselines to foreign maritime passage (innocent passage and archipelagic sea lanes passage), violating the country's sovereignty, national security, nuclear-free policy, and environmental laws.
 - **Respondents' Arguments:**
 1. **Procedural Barriers:** Petitioners lack *locus standi* (no direct injury, no legislator/taxpayer standing), and Rule 65 certiorari/prohibition is not the proper remedy to challenge a legislative act.
 2. **Compliance with International Law:** R.A. 9522 is a valid exercise of state power to comply with UNCLOS III, securing international recognition of the Philippines' maritime zones and extended continental shelf.
 3. **No Abandonment of Claims:** The law does not relinquish sovereignty over the KIG, Scarborough Shoal, or Sabah; in fact, Section 2 of R.A. 9522 explicitly asserts continued Philippine sovereignty and jurisdiction over them.
-

[ORANGE - THE ISSUES]

1. **Procedural Issue 1:** Do petitioners possess *locus standi* to challenge the constitutionality of R.A. 9522?
2. **Procedural Issue 2:** Are the extraordinary writs of certiorari and prohibition under Rule 65 the proper remedies to assail the constitutionality of a statute?
3. **Substantive Issue 1:** Does R.A. 9522 violate Article I of the 1987 Constitution by "reducing" Philippine maritime territory from the Treaty of Paris limits?
4. **Substantive Issue 2:** Does the classification of the KIG and Scarborough Shoal as a "regime of islands" outside the main baseline perimeter constitute a surrender of sovereignty over those territories?

5. **Substantive Issue 3:** Does R.A. 9522 violate the Constitution by opening the country's archipelagic waters to innocent passage and archipelagic sea lanes passage by foreign vessels?
-

[PINK - HOLDINGS & DISPOSITION]

1. **Procedural Issue 1: YES.** The petitioners have *locus standi* as **citizens**.
 2. **Procedural Issue 2: YES.** Certiorari and prohibition are proper remedies to test the constitutionality of a statute under the Court's expanded power of judicial review.
 3. **Substantive Issue 1: NO.** R.A. 9522 is not unconstitutional because baselines laws do not define territory; they merely demarcate maritime zones.
 4. **Substantive Issue 2: NO.** The "regime of islands" configuration is valid and explicitly preserves, rather than surrenders, Philippine sovereignty and jurisdiction over the KIG and Scarborough Shoal.
 5. **Substantive Issue 3: NO.** Adhering to the right of innocent passage is an international accommodation that does not surrender sovereignty, and Article II's provisions are non-self-executing guides.
- **DISPOSITION: "WHEREFORE, we DISMISS the petition. SO ORDERED."**

[PINK - RATIO & CONTROLLING REASONING]

- **On Citizen Standing & Proper Remedy:**
 - Petitioners do not have *taxpayer* standing because there is no allegation of public funds misuse, nor *legislator* standing because no legislative prerogative was infringed.
 - However, they have *citizen* standing because the case involves a matter of "national significance necessitating urgent resolution". It is highly unlikely that other litigants with a more direct and specific interest would bring this suit, satisfying the exception to the direct injury rule.
 - Under long-standing jurisprudence, Rule 65 certiorari and prohibition are accepted procedural vehicles to test the constitutionality of a statute because they invoke the Court's solemn duty to interpret constitutional boundaries.
- **On Baselines Laws vs. Territorial Boundaries (Merits - Substantive Issue 1):**
 - There is a fundamental distinction between a constitution's definition of territory and a baseline law. **Baselines laws do not delineate land territory; they merely mark out the geographic points from which maritime zones (territorial sea, contiguous zone, EEZ, continental shelf) are measured.**
 - UNCLOS III regulates sea-use rights; it has nothing to do with the acquisition, loss, enlargement, or diminution of territory. Enacting R.A. 9522 did not result in Spain's cession under the Treaty of Paris being modified, as baselines are merely the technical starting lines for measuring the country's sovereign maritime entitlements under international law.
- **On "Regime of Islands" Configuration (Merits - Substantive Issue 2):**

- If the Philippines had enclosed the KIG and Scarborough Shoal within the main archipelagic baselines, the baseline segments would have exceeded the maximum length allowed under Article 47 of UNCLOS III, and the water-to-land ratio would have violated international standards.
- To prevent the entire baseline from being declared internationally invalid, Congress correctly configured KIG and Scarborough Shoal as a "regime of islands" under UNCLOS Article 121.
- This does not surrender sovereignty. Section 2 of R.A. 9522 explicitly commits to text that the Philippines "**exercises sovereignty and jurisdiction**" over these areas. They remain part of Philippine territory.
- **On Sovereign Accommodation of Innocent Passage (Merits - Substantive Issue 3):**
 - Innocent passage is a customary international law obligation that states must respect. Adhering to this does not mean a loss of sovereignty; rather, under the **incorporation clause (Article II, Section 2)** of the Constitution, the Philippines adopts the generally accepted principles of international law as part of the law of the land.
 - The petitioners' arguments relying on Article II are unavailing because the Declaration of Principles and State Policies are generally **non-self-executing** provisions that serve as legislative guides, not judicially enforceable rights (and the *Oposa v. Factoran* exception does not apply here due to a lack of factual evidence of environmental harm).

[BLUE - DOCTRINES, TESTS & EXCEPTIONS]

- **The Baselines Doctrine:** Baselines laws are maritime zone-delineating tools, not territory-delineating laws. They play no role in the acquisition, enlargement, or diminution of territory.
- **The "No Other Litigant" Rule for Citizen Standing:** A citizen has standing to challenge the constitutionality of a law when (1) the issue is of transcendental importance and national significance, and (2) it is "understandably difficult to find other litigants possessing a more direct and specific interest" to bring the suit.
- **Non-Self-Executing Nature of Article II:** Constitutional provisions under Article II are generally non-self-executing principles that serve as aids or guides for legislative or executive action, rather than standalone sources of judicially enforceable rights (excepting the narrow application in *Oposa v. Factoran*).

[GREEN - RECITATION CAPSULE]

Recitation Capsule: *Magallona v. Ermita* (2011) is the landmark case where the Supreme Court unanimously upheld the constitutionality of R.A. 9522 (the Philippine Baselines Law). The Court held that **baselines laws are not territory-delineating instruments but are maritime zone-delineating tools** designed to measure the breadth of the territorial

sea, contiguous zone, EEZ, and continental shelf. Enacting R.A. 9522 was a valid exercise of state power to align local baselines with UNCLOS III, which does not diminish Philippine territory under the Treaty of Paris. The classification of the Kalayaan Island Group and Scarborough Shoal as a "regime of islands" is internationally compliant and explicitly preserves, rather than surrenders, Philippine sovereignty and jurisdiction over those areas.

[BLUE - RECIPROCAL RETRIEVAL & LIKELY FOLLOW-UPS]

1. Three Likely Recitation Follow-Up Questions:

- **Q1: Does R.A. 9522's compliance with UNCLOS III mean the Philippines has abandoned its claim over Sabah?**
 - **Answer:** No. R.A. 9522 does not relinquish the Sabah claim. Under R.A. 5446 (which R.A. 9522 amends), there is an explicit reservation that the drawing of baselines around Sabah is suspended pending the resolution of the claim, and this reservation remains valid and unrepealed by R.A. 9522.
- **Q2: Why couldn't the Philippines simply use a "straight baseline" to enclose the KIG along with the main archipelago?**
 - **Answer:** If the KIG were enclosed in the main straight baseline perimeter, the segments would exceed the 100-nautical-mile limit (with a maximum of 125 nautical miles for 3% of segments) and the water-to-land ratio would fall outside the 1:1 to 9:1 ratio mandated by Article 47 of UNCLOS III. This would make the entire baseline system invalid under international law, depriving the Philippines of internationally recognized maritime zones.
- **Q3: Can a petitioner sue the government for violating the right to "subsistence fishermen" under Article XIII, Section 7 using this case as a precedent?**
 - **Answer:** Generally, no. The Court in *Magallona* reiterates that Article II and similar social/economic policy clauses (like Article XIII) are non-self-executing. To sue, a petitioner must present a concrete factual basis showing a direct, actionable violation of a statutory right or a specific execution of that policy, which was absent in *Magallona*.

2. One Changed-Material-Fact Hypothetical:

- **Scenario:** Suppose Congress passes "R.A. 20000" which explicitly states that to comply with a new international treaty, the Philippines "hereby waives all territorial claims, land sovereignty, and administrative jurisdiction over Scarborough Shoal and cedes it to a neighboring country."
- **Answer:** Under these changed facts, the law would be **unconstitutional**. While *Magallona* held that baselines laws do not affect territory because they are merely starting points for measurement, "R.A. 20000" is a direct, explicit cession of land territory. Article I of the Constitution defines national territory, and the executive and legislative branches cannot unilaterally cede sovereign land territory of the Republic without a constitutional amendment ratified by the sovereign people.

IDENTITY AND SYLLABUS RELEVANCE

- **Case Name:** *The South China Sea Arbitration (The Republic of the Philippines v. The People's Republic of China)*, PCA Case No. 2013-19.
- **Date of Final Award:** July 12, 2016 (Unanimous Award).
- **Tribunal Composition:** Judge Thomas A. Mensah (Presiding Arbitrator, Ghana), Judge Jean-Pierre Cot (France), Judge Stanislaw Pawlak (Poland), Professor Alfred H.A. Soons (Netherlands), and Judge Rüdiger Wolfrum (Germany). The Permanent Court of Arbitration (PCA) acted as the Registry.
- **Syllabus Relevance:** Covered under **Territory, People, and Government** (specifically Article I of the 1987 Constitution on National Territory) and **International Law Incorporation**. This landmark arbitral award is the definitive ruling on the invalidity of China's "nine-dash line," the legal classification of maritime features (islands vs. rocks vs. low-tide elevations), and the parameters of the Philippines' sovereign rights within its Exclusive Economic Zone (EEZ) under the United Nations Convention on the Law of the Sea (UNCLOS).

CHRONOLOGICAL MATERIAL FACTS

- **December 10, 1982 / February 27, 1984 / November 16, 1994:** The Philippines signs UNCLOS in 1982, ratifies it in 1984, and it enters into force globally in 1994. Both the Philippines and China are State Parties bound by the Convention.
- **1940s onwards:** China asserts vast claims in the South China Sea represented by its "nine-dash line," claiming "historic rights" to resources within these waters.
- **2002:** The China-ASEAN *Declaration on the Conduct of Parties (DOC) in the South China Sea* is signed, outlining political consensus to resolve disputes via peaceful negotiations.
- **May 2012:** Escalating stand-offs occur at Scarborough Shoal; Chinese law enforcement vessels physically obstruct and block access to Philippine law enforcement and traditional fishermen.
- **2013–2016:** China engages in massive dredging, land reclamation, and construction of artificial islands at seven features in the Spratlys: Mischief Reef, Cuarteron Reef, Fiery Cross Reef, Gaven Reef, Johnson Reef, Hughes Reef, and Subi Reef. These acts inflict permanent, severe, and irreparable harm on the fragile coral reef ecosystem and destroy evidence of the features' natural, unmodified states. Chinese vessels also block Philippine petroleum exploration at Reed Bank and exclude Philippine fishermen from their traditional grounds.

PROCEDURAL HISTORY

- **January 22, 2013:** The Philippines unilaterally institutes compulsory arbitration proceedings against China under Annex VII of UNCLOS.
- **China's Non-Participation:** China declares it will "neither accept nor participate" in the arbitration. In December 2014, China publishes an official Position Paper asserting the Tribunal has no jurisdiction because the dispute concerns territorial sovereignty and maritime boundary delimitation—both of which are allegedly excluded from UNCLOS compulsory arbitration or affected by China's 2006 Declaration.

- **October 29, 2015:** Following a July 2015 hearing, the Tribunal issues its *Award on Jurisdiction and Admissibility*, assuming jurisdiction over certain claims and deferring other jurisdictional questions to the merits.
 - **November 24–30, 2015:** The Tribunal holds its hearing on the merits of the case at The Hague.
 - **July 12, 2016:** The Tribunal issues its unanimous, final, and legally binding Award on the merits.
-

♥ PARTIES' MATERIAL ARGUMENTS

- **The Philippines' Arguments:**
 - **Invalidity of the Nine-Dash Line:** China's claims to "historic rights" and jurisdiction within the "nine-dash line" violate UNCLOS and exceed the limits of its maritime entitlements.
 - **Status of Features:** Scarborough Shoal and various Spratly features are merely "rocks" or "low-tide elevations" under UNCLOS, meaning they cannot generate an EEZ or continental shelf.
 - **Sovereign Violations:** Mischief Reef, Second Thomas Shoal, and Reed Bank are low-tide elevations within the Philippine EEZ; China has violated Philippine sovereign rights by building artificial islands, stopping resource exploration, and blockading traditional fishermen.
 - **China's Position (per its Position Paper & official statements):**
 - **Sovereignty Bar:** The core dispute is sovereignty over land territory (islands), which is beyond the scope of UNCLOS.
 - **Delimitation Exclusion:** The case is an disguised attempt to force maritime boundary delimitation, which China excluded from compulsory dispute settlement under its 2006 declaration.
 - **Procedural Breach:** By filing unilaterally, the Philippines breached its bilateral agreements and the 2002 DOC, which require settling disputes exclusively through negotiation.
-

♥ ISSUES

1. **Jurisdictional:**
 - **W/N** the Tribunal has jurisdiction to hear the case despite China's non-participation and active objections.
 - **W/N** the dispute requires a prior determination of territorial sovereignty over land features or constitutes a maritime boundary delimitation.
 - **W/N** the 2002 DOC or other bilateral joint statements represent legally binding agreements that bar unilateral recourse to arbitration.
2. **Substantive:**
 - **W/N** China's claim to "historic rights" within its "nine-dash line" has a valid legal basis under UNCLOS.
 - **W/N** any of the maritime features claimed by China in the Spratlys are legally "islands" capable of generating an EEZ or continental shelf.
 - **W/N** China violated the sovereign rights of the Philippines in its EEZ and traditional fishing rights at Scarborough Shoal.
 - **W/N** China violated its environmental protection duties under UNCLOS.

♥ HOLDINGS

1. **YES.** The Tribunal has jurisdiction. Non-participation does not stall proceedings (Annex VII, Article 9), and under Article 288 of UNCLOS, the Tribunal is the sole judge of its own jurisdiction.
2. **NO.** The dispute is not about land sovereignty (which the Tribunal did not decide) or boundary delimitation (which involves overlapping entitlements; here, no overlapping entitlements exist because China has no possible EEZ in the Spratlys).
3. **NO.** The 2002 DOC is a non-binding political agreement that does not exclude other dispute settlement procedures.
4. **NO LEGAL BASIS.** There is no legal basis for China to claim historic rights to resources within the "nine-dash line." Any historic rights to resources were extinguished upon UNCLOS's entry into force to the extent they are incompatible with UNCLOS EEZ allocations.
5. **ROCKS AND LOW-TIDE ELEVATIONS.** None of the high-tide features in the Spratlys (including Itu Aba, Thitu, West York, Spratly Island) are legally "islands"; they are **rocks** that cannot generate an EEZ or continental shelf. Subi Reef, Hughes Reef, Mischief Reef, and Second Thomas Shoal are legally **low-tide elevations** (submerged at high tide in their natural condition) generating no maritime zones at all. Scarborough Shoal is a high-tide feature generating only a 12-nm territorial sea.
6. **YES.** China violated the Philippines' sovereign rights in its EEZ by: (a) interfering with oil exploration at Reed Bank, (b) banning Philippine fishing, (c) failing to prevent Chinese fishermen from poaching, and (d) constructing installations at Mischief Reef without Philippine authorization. It also unlawfully barred access to Filipino traditional fishermen at Scarborough Shoal.
7. **YES.** China violated Articles 192 and 194 of UNCLOS by causing severe harm to the coral reef environment through massive land reclamation and by failing to stop its nationals from harvesting endangered sea turtles, coral, and giant clams on a substantial scale.

♥ CONTROLLING REASONING

- **On the Extinguishment of Historic Rights:** UNCLOS was designed to comprehensively allocate sovereign rights over maritime zones. The creation of the 200-nm EEZ specifically gives coastal states exclusive sovereign rights over resources. Pre-existing historic fishing rights or resource claims of other states within these zones were explicitly rejected during negotiations. Therefore, any historic rights China held were extinguished because they are fundamentally incompatible with UNCLOS's spatial division of rights. Historically, Chinese activities in the high seas areas of the South China Sea represented the exercise of high seas freedoms, not exclusive control.
- **On the "Objective Capacity" Test for Rocks (Article 121):** The distinction between an island and a rock hinges on the objective capacity of a feature, in its natural and unmodified condition, to sustain either: (1) a stable community of people, or (2) an economic activity of its own that is not dependent on outside resources or purely extractive. Modern military or official presences on these features do not establish capacity because they rely entirely on external supply lines and reclaimed land. Historically, only transient fishermen and extractive commercial ventures used the Spratlys, which does not amount to a stable community. The features cannot generate zones collectively as a single unit.
- **On Sovereign Rights and Environmental Duty:** Since Mischief Reef and Second Thomas Shoal are low-tide elevations within the Philippine EEZ and generate no competing zones for China, the Philippines enjoys exclusive sovereign rights over them. China's unilateral construction of a massive artificial island on Mischief Reef directly infringed on this exclusivity. Under UNCLOS, states have a

binding due diligence obligation to protect the marine environment; China's destructive dredging pulverized thousands of hectares of living coral reef, violating this duty.

DOCTRINE, TESTS, AND LIMITS

- **The "Natural Condition" Baseline Test:** Features must be legally classified based on their natural, unmodified geographic state. Subsequent land reclamation, dredging, or construction of artificial islands cannot "upgrade" a low-tide elevation or a rock into an island.
 - **The "Objective Capacity" Standard:** For an island to generate an EEZ or continental shelf, it must possess the natural, self-sustaining capacity to support a stable human community or an independent, non-extractive economic life.
 - **Survival of Traditional Fishing Rights:** Traditional fishing rights are protected under customary international law and survive within the 12-nm territorial sea of a high-tide rock (like Scarborough Shoal), even if the rock's sovereignty is disputed.
-

DISPOSITION

- The Tribunal unanimously ruled in favor of the Philippines on the core issues. It declared the "nine-dash line" invalid, classified the Spratlys features as rocks/low-tide elevations, declared China's installations on Mischief Reef illegal, and ordered China to cease its environmental violations. The award is **final and legally binding** on both parties.
-

RECITATION CAPSULE (60–90 Seconds)

"In the *South China Sea Arbitration*, the Philippines challenged the validity of China's 'nine-dash line' and its aggressive island-building under UNCLOS. The Arbitral Tribunal unanimously ruled in favor of the Philippines. First, it held that China's 'nine-dash line' and 'historic rights' have no legal basis, as any incompatible historical rights were extinguished upon UNCLOS's entry into force. Second, applying the 'objective capacity in natural condition' test, the Tribunal ruled that no feature in the Spratlys is a true island; they are legally 'rocks' generating only a 12-nm territorial sea, or 'low-tide elevations' incapable of appropriation. Third, because these features generate no EEZs, the surrounding waters are within the exclusive economic zone of the Philippines. China was held to have violated the Philippines' sovereign rights by building artificial structures at Mischief Reef, blocking oil exploration at Reed Bank, and shutting out Filipino fishermen. Finally, the Tribunal condemned China's massive dredging for inflicting severe, permanent ecological destruction on the coral reef environment. Although China boycotted the proceedings, the Award is final and legally binding."

LIKELY RECITATION FOLLOW-UPS & CONCISE ANSWERS

1. **Q: Did the Tribunal rule on who actually owns sovereignty over Scarborough Shoal or the Spratly Islands?**
 - **A:** No. The Tribunal explicitly clarified that it does not rule on any question of land sovereignty, nor does it delimit any maritime boundary. It restricted its review entirely to the interpretation of UNCLOS, which regulates sea-use rights and maritime zones, leaving territorial sovereignty to general international law.
 2. **Q: How can the Award be legally binding on China if China boycotted and refused to participate in the proceedings?**
 - **A:** Under Article 288 of UNCLOS, the Tribunal has sole authority to decide its own jurisdiction. Furthermore, Annex VII, Article 9 explicitly states that a party's absence or failure to defend its case does not bar proceedings. However, the Tribunal was required to test the accuracy of the Philippines' claims and ensure they were well-founded in fact and law, which it did by hiring independent experts and reviewing historical hydrographic archives.
 3. **Q: Why was the distinction between "rocks" and "low-tide elevations" crucial for Mischief Reef?**
 - **A:** Rocks are naturally above water at high tide and generate a 12-nm territorial sea, but no EEZ. Low-tide elevations are submerged at high tide in their natural state and generate no maritime zones. Because Mischief Reef is a low-tide elevation within the Philippine EEZ and has no natural territorial sea of its own, China had no legal right to construct an artificial island there, making its presence an unlawful intrusion on Philippine sovereign rights.
-

CHANGED-FACT HYPOTHETICAL APPLICATION

- **Scenario:** Suppose a newly emerged, naturally occurring feature in the Spratlys is discovered to have natural, drinkable freshwater springs, arable soil, and a historical record of a small, stable family of indigenous fishermen who lived there continuously for generations without any outside support. If China constructs a military runway on this unmodified feature, can the feature generate a 200-nautical-mile EEZ?
 - **Answer: Yes.** Under the "objective capacity" test, a feature is an island capable of generating an EEZ and continental shelf if, in its natural and unmodified state, it has the capacity to sustain a stable community of people or an independent, non-extractive economic life. Since this hypothetical feature has natural water, soil, and a history of actual, stable, self-sustaining habitation, it qualifies as an island under Article 121(2). China's subsequent militarization would not strip the feature of its natural island status, though the underlying sovereignty of the island remains contested.
-

ONE-SENTENCE DOCTRINE ANCHOR

"UNCLOS comprehensively governs maritime entitlements, extinguishing incompatible historic rights within its delimited zones; features are classified based on their natural, unmodified condition, and only those capable of naturally sustaining human habitation or independent economic life can generate an exclusive economic zone."

IDENTITY AND SYLLABUS RELEVANCE

- **Case Name:** *The Province of North Cotabato, et al. v. The Government of the Republic of the Philippines Peace Panel on Ancestral Domain (GRP), et al.* (G.R. Nos. 183591, 183752, 183893, 183951, and 183962).
 - **Date of Promulgation:** October 14, 2008.
 - **Ponente:** Justice Conchita Carpio Morales (En Banc).
 - **Syllabus Relevance:** Taught under **Territory, People, and Government** and the **Scope of Judicial Review**. This landmark case defines the outer constitutional limits of the President's peace-negotiating power, the people's right to information on matters of public concern, the mandatory nature of local and indigenous consultations, and the unconstitutionality of the Executive guaranteeing constitutional changes to a third party.
-

CHRONOLOGICAL MATERIAL FACTS

- **June 20–22, 2001:** The GRP and the Moro Islamic Liberation Front (MILF) sign the *Tripoli Agreement on Peace*, setting up three negotiation aspects: Security, Humanitarian/Rehabilitation, and Ancestral Domain. The parties agree that ancestral domain will be "discussed further".
 - **2001–2005:** Security and humanitarian agreements are implemented, followed by exploratory talks on ancestral domain.
 - **2005–2008:** Secret negotiations culminate in the drafting of the **Memorandum of Agreement on the Ancestral Domain (MOA-AD)**.
 - **July 2008:** The public learns that the MOA-AD is scheduled to be signed on August 5, 2008, in Kuala Lumpur, Malaysia.
 - **The MOA-AD Framework:** The draft agreement proposes creating a **Bangsamoro Juridical Entity (BJE)**. It defines the BJE's relationship with the Central Government as "**associative**". It grants the BJE state-like attributes, including the power to write its own basic law, manage its own institutions, enter into foreign trade relations, and unilaterally modify or cancel existing timber licenses, mining concessions, and land tenure instruments granted by the Philippine Government.
 - **The Lack of Consultation:** Various Local Government Units (LGUs) and indigenous cultural communities (ICCs/IPs) discover that their administrative territories and ancestral domains are to be swept into the BJE's territory without their prior knowledge, access to the draft, or any public consultation.
-

PROCEDURAL HISTORY

- **July 23, 2008:** The Province of North Cotabato files a petition for Mandamus and Prohibition with a prayer for a Temporary Restraining Order (TRO), invoking the right to information and seeking to stop the signing of the MOA-AD until public consultations are conducted.
- **July–August 2008:** Other affected cities (Zamboanga, Iligan) and provinces file similar petitions and interventions.
- **August 4, 2008:** The Supreme Court issues a **TRO** directing the GRP Peace Panel and its agents to cease and desist from formally signing the MOA-AD.
- **August 7–8, 2008:** In compliance with the TRO, the Solicitor General submits official copies of the draft MOA-AD to the Court and the petitioners.
- **August 15, 22, and 29, 2008:** The Court hears extensive oral arguments.
- **August 19, 2008:** The Executive branch files a Manifestation and Motion to Dismiss, stating it will thoroughly review the MOA-AD.
- **August 28, 2008:** Executive Secretary Eduardo Ermita announces that the Government will not sign the MOA-AD "in its present form or in any other form," and President Gloria Macapagal-Arroyo subsequently dissolves the GRP Peace Panel.

- **The Motion to Dismiss:** The respondents argue that because the agreement was never signed and the panel was dissolved, the petitions have been rendered moot and academic.
-

♥ PARTIES' MATERIAL ARGUMENTS

- **Petitioners & Intervenors:**
 - **Violation of Rights:** The GRP Peace Panel violated the constitutional right to information (Art. III, Sec. 7) and the state policy of full public disclosure (Art. II, Sec. 28) by negotiating in complete secrecy.
 - **Statutory Violations:** The GRP failed to comply with the mandatory public consultation requirements under the Local Government Code (LGC) and the Indigenous Peoples Rights Act (IPRA).
 - **Constitutional Subversion:** The "associative relationship" is a political concept unrecognized by the 1987 Constitution; it effectively carves out a sovereign "state within a state".
 - **Usurpation of Constituent Power:** The Executive cannot guarantee that the Constitution will be amended to fit the terms of the MOA-AD.
 - **Respondents (GRP Panel / Solicitor General):**
 - **Unripeness:** An unsigned MOA-AD is a mere proposal or list of "consensus points" that does not create legally demandable rights or obligations.
 - **Mootness:** The Executive's desistance from signing and the dissolution of the panel satisfy the petitioners' reliefs, leaving no live controversy.
 - **Executive Privilege:** The details of peace negotiations are protected under the Executive's exclusive domain over foreign affairs and national security.
-

♥ ISSUES

1. **Procedural:**
 - **W/N** the controversy is ripe for adjudication despite the MOA-AD remaining unsigned.
 - **W/N** the case has been rendered moot and academic by the Executive's desistance from signing and the dissolution of the GRP Peace Panel.
 - **W/N** the petitioners (LGUs, taxpayers, and indigenous groups) possess *locus standi*.
 2. **Substantive:**
 - **W/N** the GRP Peace Panel committed grave abuse of discretion by failing to conduct public consultations and violating the right to information.
 - **W/N** the "associative relationship" and the territorial/governance structures of the BJE under the MOA-AD are constitutional.
 - **W/N** the Executive branch has the authority to guarantee constitutional amendments to conform to a peace agreement.
-

♥ HOLDINGS

1. **YES.** The case is **ripe for adjudication**. Overt acts of contract execution are unnecessary when a co-equal branch of government is seriously alleged to have already infringed the Constitution and statutory laws.
2. **NO.** The case is **not moot and academic** because it falls squarely under all four recognized exceptions to the mootness doctrine. (*Note: The mandamus aspect was rendered moot only because the GRP already complied by disclosing the physical copies of the draft*).

3. **YES.** The LGU petitioners possess **direct and substantial standing** because their land area and political boundaries were threatened with alteration. The standing of other petitioners is recognized under the liberalized doctrine of **transcendental importance**.
 4. **YES.** The GRP Peace Panel committed **grave abuse of discretion**. The furtive, secretive process by which the MOA-AD was designed violated the explicit mandates of E.O. No. 3, the Local Government Code, and the IPRA.
 5. **YES.** The "associative relationship" is **unconstitutional**. The Constitution recognizes only one sovereign State and does not permit the creation of an independent-leaning associated state within national territory.
 6. **YES.** The Executive branch **exceeded its authority** and committed grave abuse of discretion. Neither the GRP Panel nor the President has the power to guarantee to a third party that the Constitution will be amended to conform to their negotiations.
-

CONTROLLING REASONING

- **On Ripeness:** Ripeness is met when an act of a co-equal branch is seriously alleged to have infringed the Constitution. The drafting and initialing of a completed text, coupled with a scheduled signing, constitute a concrete, reviewable executive action.
 - **On Mootness Exceptions:** The Court will decide an otherwise moot case if it presents: **(a) a grave violation of the Constitution; (b) paramount public interest; (c) the need to formulate controlling principles; and (d) a situation capable of repetition yet evading review.** Because the 2001 Tripoli Agreement remains active, the government is still committed to negotiating ancestral domain with the MILF. Thus, a future panel could draft a similar unconstitutional agreement, making judicial guidelines essential.
 - **On the Failure of Consultation:**
 - **E.O. No. 3:** Mandates that the peace process must be "community-based" and requires "continuing consultations" at local levels.
 - **Local Government Code:** Section 27 requires prior consultation and approval of the sanggunian concerned before any national project that causes the eviction or displacement of inhabitants can be implemented. The BJE would drastically displace inhabitants and alter territories.
 - **IPRA:** Under Section 16, indigenous communities have the right to participate at all levels of decision-making. The GRP cannot bypass the statutory, detailed procedure for delineating ancestral domains by mere executive compromise.
 - **On the Associative Relationship:** Under international practice, an "associative" relationship exists between a sovereign state and an entity with state-like attributes that is transitioning to full independence. The 1987 Constitution recognizes only one sovereign State; it does not permit the creation of a semi-independent state within the Republic.
 - **On the Usurpation of Constituent Power:** The President's power is limited by the duty to ensure that the laws are faithfully executed. The power to propose constitutional amendments belongs exclusively to Congress, a Constitutional Convention, or the people via initiative. The Executive cannot preempt these processes or guarantee their outcomes; doing so is an unconstitutional usurpation of constituent power.
-

DOCTRINE, TESTS, AND LIMITS

- **The "Mootness Exception" Test:** Established that a court can take cognizance of a moot case if all four elements (grave constitutional violation, public interest, need for guiding principles, capable of repetition yet evading review) are met.
- **The Constituent Power Limit:** The Executive has the authority to negotiate peace. However, it has **no constituent power** to amend the Constitution, nor does it have the power to guarantee to any third party that constitutional changes will be successfully put in place.

- **Territorial Integrity Limit:** The President cannot unilaterally negotiate territorial concessions or structural governance shifts (like associative statehood) that violate the framework of political subdivisions explicitly listed under Article X of the Constitution.
-

DISPOSITION

 **WHEREFORE**, respondents' motion to dismiss is **DENIED**. The main and intervening petitions are **GIVEN DUE COURSE** and hereby **GRANTED**. The Memorandum of Agreement on the Ancestral Domain (MOA-AD) Aspect of the GRP-MILF Tripoli Agreement on Peace of 2001 is declared **CONTRARY TO LAW AND THE CONSTITUTION**.

SEPARATE OPINIONS & OBITER DICTA

- **Justice Carpio (Concurring):** Pointed out that the BJE's powers (such as its own civil service, financial institutions, and police force) effectively created a sovereign state, which cannot be done without amending the Constitution.
 - **Justice Tinga (Dissenting):** Maintained that the government's voluntary desistance and dissolution of the panel rendered the case completely moot, leaving no "flesh and blood" controversy for a writ of prohibition to act upon.
 - **Justice Velasco (Dissenting):** Argued that an unsigned, aborted draft is a legally non-existent document that cannot be declared unconstitutional. He cautioned that the Court should not interfere with the exclusive peace-making prerogatives of the Executive.
 - **Justice Nachura (Dissenting):** Argued that the case was not ripe at the outset because the draft was a mere proposal, and that any constitutional injuries were purely speculative.
-

RECITATION CAPSULE (60–90 Seconds)

"This case involves the constitutional boundaries of executive peace-negotiating power. In 2008, the GRP Peace Panel and the MILF drafted the MOA-AD to establish the Bangsamoro Juridical Entity (BJE) under an 'associative relationship' with the Central Government. The draft, which conceded territorial, resource, and governance powers akin to statehood, was negotiated in absolute secrecy. LGUs and indigenous groups filed petitions for prohibition and mandamus, and the Supreme Court issued a TRO on the eve of the signing in Malaysia. The Executive subsequently backed out of the signing, disbanded the panel, and claimed the case was moot.

The Supreme Court denied the motion to dismiss and declared the MOA-AD unconstitutional. First, under the exceptions to mootness, the Court ruled on the merits because the issue was of paramount public interest and capable of repetition. Second, the GRP Panel committed grave abuse of discretion by failing to conduct public consultations mandated by E.O. 3, the Local Government Code, and the IPRA. Lastly, the BJE's 'associative relationship' is alien to the Constitution, which recognizes only one sovereign State. The Executive branch exceeded its authority by guaranteeing to the MILF that the Constitution would be amended to conform to the agreement—a clear usurpation of the constituent power vested solely in Congress, a Constitutional Convention, or the sovereign people."

? LIKELY RECITATION FOLLOW-UPS & CONCISE ANSWERS

1. **Q: Why did the Court rule that the case was "capable of repetition yet evading review" if the panel had been dissolved and the President abandoned the MOA-AD?**
 - **A:** Because the 2001 Tripoli Agreement—which binds the GRP to discuss ancestral domain with the MILF—remained in force. Since the commitment to negotiate survived, future panels could easily draft a similar unconstitutional agreement, sign it in secret, and present it as a *fait accompli* before judicial review could intervene.
 2. **Q: Does this case mean the Executive is prohibited from exploring solutions that require constitutional amendments during peace talks?**
 - **A:** No. The Executive has the leeway to *explore* and *recommend* political reforms that may require constitutional changes. What the Executive **cannot** do is *guarantee* or *commit* to a third party that those amendments will actually be enacted, as the Executive does not possess constituent power.
 3. **Q: What is the statutory consultation standard that the Executive failed to meet?**
 - **A:** Under E.O. No. 3, consultations must be community-based and continuous. Under Section 27 of the LGC, prior consultation and the approval of the *sanggunian* concerned are mandatory before implementing any program that causes displacement. Under the IPRA, the free and prior informed consent of the affected ICCs/IPs must be secured. The GRP panel met none of these standards.
-

CHANGED-FACT HYPOTHETICAL APPLICATION

- **Scenario:** The GRP and a rebel group draft a new peace agreement proposing autonomous structural changes that require constitutional amendments. This time, the GRP Panel holds extensive public hearings and secures the written consent of all affected LGUs and indigenous tribes. Furthermore, the agreement explicitly states: "*The GRP Panel commits to submit these consensus points as mere recommendations to Congress or a Constitutional Convention, and their effectivity is strictly suspensive upon the actual ratification of the necessary constitutional amendments by the sovereign people in a plebiscite.*" Is this agreement constitutional?
 - **Answer: Yes.** Unlike the original MOA-AD, this hypothetical agreement is constitutional. First, the GRP complied with the statutory consultation mandates of E.O. No. 3, the LGC, and the IPRA. Second, by phrasing the clause as a *recommendation* and making it *suspensively conditional* on actual, democratic charter change, the Executive respects the separation of powers and avoids usurping the constituent power of Congress and the electorate.
-

ONE-SENTENCE DOCTRINE ANCHOR

"The President has the power to conduct peace negotiations but must do so within constitutional limits; she cannot bypass statutory requirements for public consultation, nor can she usurp constituent power by guaranteeing that the Constitution will be amended to satisfy a peace agreement."

IDENTITY AND SYLLABUS RELEVANCE

- **Case Name:** *Isagani Cruz and Cesar Europa v. Secretary of Environment and Natural Resources, Secretary of Budget and Management, and Chairman and Commissioners of the National Commission on Indigenous Peoples (NCIP)*, G.R. No. 135385, December 6, 2000.
- **Ruling Type:** En Banc *Per Curiam* Resolution (Equally divided 7–7 vote).
- **Syllabus Relevance:** Taught under **The National Patrimony**, the **Regalian Doctrine**, **Native Title**, and the **Scope of Judicial Review**. This case is the ultimate battleground between the state's claim of absolute ownership over all natural resources (Regalian Doctrine) and the ancestral, pre-conquest property rights of indigenous peoples (Native Title). It also illustrates the procedural operation of a tie vote in the Supreme Court En Banc.

CHRONological MATERIAL FACTS

- **October 29, 1997:** Congress enacts **Republic Act No. 8371**, otherwise known as the **Indigenous Peoples' Rights Act of 1997 (IPRA)**.
- **IPRA's Core Mandate:** The law seeks to recognize, protect, and promote the rights of Indigenous Cultural Communities/Indigenous Peoples (ICCs/IPs). It establishes the NCIP as the primary agency to implement these policies and delineates ancestral domains and ancestral lands.
- **The "Private but Community Property" Concept:** IPRA defines ancestral domains as including land, inland waters, coastal areas, and natural resources therein, declaring them to be the "private but community property" of indigenous peoples. It grants them priority rights in the harvesting, extraction, development, or exploration of minerals and other natural resources within these areas.
- **Customary Law Superiority:** The statute mandates that customary laws, traditions, and practices of IPs shall be applied first in resolving land and property disputes, and any doubt must be resolved in favor of the IPs.
- **Executive Structural Reorganization:** NCIP Administrative Order No. 1, series of 1998 (Implementing Rules) characterizes the NCIP's relationship with the Office of the President as "lateral but autonomous" for policy and program coordination.

PROCEDURAL HISTORY

- **1998:** Petitioners Isagani Cruz and Cesar Europa, suing as citizens and taxpayers, file a petition for prohibition and mandamus before the Supreme Court challenging the constitutionality of IPRA and its IRR.
- **Government's Internal Split:**
 - The **NCIP** defends the law's constitutionality.
 - The **DENR Secretary** and **DBM Secretary**, represented by the **Solicitor General**, file a consolidated comment arguing that IPRA is *partly unconstitutional* because it invalidly grants ownership over natural resources (which belong to the State under the Regalian Doctrine) to private indigenous groups.

- **Massive Intervention:** High-profile figures (Senator Juan Flavio, co-author of IPRA; Ponciano Benavente, framer of the 1986 Constitution) and 112 indigenous groups, along with the Commission on Human Rights (CHR) and Haribon Foundation, intervene to defend the law.
 - **April 13, 1999:** The Supreme Court hears extensive oral arguments.
 - **December 6, 2000 Resolution:** After intense deliberation and redeliberation, the En Banc remains **equally divided with a 7-to-7 vote**.
 - **Procedural Effect of the Tie:** Pursuant to **Rule 56, Section 7 of the Rules of Civil Procedure**, when the Court En Banc is equally divided and the necessary majority to declare a law unconstitutional is not obtained, **the petition is dismissed**. Consequently, IPRA remains fully constitutional, valid, and in force.
-

♥ PARTIES' MATERIAL ARGUMENTS

- **Petitioners (Cruz and Europa):**
 - **Violation of the Regalian Doctrine:** By declaring ancestral domains and the natural resources within them as "private but community property" of IPs, IPRA unlawfully deprives the State of its constitutional ownership over lands of the public domain, minerals, and other resources under Article XII, Section 2.
 - **Infringement of Private Rights:** The broad definitions of "ancestral domains" under Sections 3(a) and 3(b) could sweep in and violate the vested rights of existing private landowners within those areas.
 - **Due Process Violations:** Establishing NCIP's sole authority to delineate domains and making customary law the primary rule for dispute resolution deprives non-IPs of their constitutional rights to due process and equal protection.
 - **Usurpation of President's Control:** Characterizing the NCIP's relationship with the President as "lateral but autonomous" violates the President's power of control over all executive departments under Article VII, Section 17.
 - **Respondents (NCIP & Intervenors):**
 - **Ancestral Domains are Private, Not Public:** Ancestral domains do not belong to the public domain. Under the doctrine of Native Title, these lands have been held under a claim of private ownership since time immemorial and were never part of the public domain ceded by Spain.
 - **State Control Maintained:** IPRA does not alienate natural resources; the State retains macro-level supervision over their exploration and development, while giving priority rights to indigenous peoples to correct historical injustices.
 - **The Solicitor General (representing DENR and DBM):**
 - **Partial Unconstitutionality:** Agrees with petitioners that the provisions giving IPs ownership over natural resources within ancestral domains violate Article XII, Section 2 of the Constitution.
-

♥ ISSUES

1. **W/N** the provisions of IPRA (Sections 3, 5, 6, 7, 8, 57, and 58) granting indigenous peoples property rights and priority rights over ancestral domains and the natural resources therein violate the **Regalian Doctrine** (Article XII, Section 2).

2. **W/N** the provisions of IPRA (Sections 51-53, 52[i], 59, 63, 65, and 66) on the NCIP's jurisdiction and the application of customary law in dispute resolution violate the **Due Process Clause**.
 3. **W/N** Rule VII, Part II, Section 1 of the IPRA IRR characterizing the NCIP-Presidential relationship as "lateral but autonomous" violates the **President's Power of Control**.
-

HOLDINGS & THE RARE 7-7 SPLIT

1. **NO (Petition Dismissed)**. The challenged provisions of IPRA **do not violate the Regalian Doctrine**. Because of the 7-to-7 deadlock, the strong presumption of constitutionality of the statute prevails, and the petition is officially dismissed under Rule 56, Section 7 of the Rules of Civil Procedure.
2. **NO (Petition Dismissed)**. The provisions on NCIP's jurisdiction and the primary application of customary law are constitutional.
3. **NO (Petition Dismissed)**. The lateral and autonomous designation of the NCIP is upheld.

The Breakdown of the 7–7 Votes:

- **7 Justices to DISMISS (Upholding IPRA):**
 - **Justice Kapunan** (joined by CJ Davide, Bellosillo, Quisumbing, and Ynares-Santiago) — held that ancestral domains are private in character under Native Title and fall outside the Regalian Doctrine.
 - **Justice Puno** — held that Native Title is a pre-existing right that IPRA merely recognizes; however, Section 57 must be interpreted in conjunction with the State's macro-level control of large-scale natural resources under Article XII, Section 2.
 - **Justice Mendoza** — voted to dismiss solely on procedural grounds (lack of standing and absence of a justiciable controversy).
 - **7 Justices to GRANT (Declaring Portions Unconstitutional):**
 - **Justice Panganiban** (joined by Melo, Pardo, Buena, Gonzaga-Reyes, and De Leon, Jr.) — argued that granting ownership over natural resources to IPs violates the constitutional mandate that all natural resources belong to the State.
 - **Justice Vitug** (joined by the same group) — maintained that public lands and resources are inalienable and cannot be declared private property of communities.
-

CONTROLLING REASONING (SEPARATE OPINIONS)

- **Justice Kapunan (Supporting IPRA):**
 - **The Scope of the Regalian Doctrine:** The Regalian Doctrine applies strictly to "lands of the public domain". Ancestral domains, however, are private in character because they are held under **Native Title**—pre-conquest rights held since time immemorial independent of any Spanish grant.
 - **No Loss of Sovereignty:** Under the landmark US-Philippine case *Cariño v. Insular Government* (1909), such lands are presumed to have never been public lands. IPRA does not alienate public resources; it merely recognizes pre-existing private rights of ownership.
- **Justice Puno (Supporting IPRA):**

- **Decolonization and Customary Law:** The State has a constitutional duty to affirm the co-existence of indigenous customary laws with national land laws.
 - **Recognition vs. Creation:** Native Title is a pre-existing right. IPRA did not create these rights; it merely recognized them to secure the survival and cultural integrity of IPs.
 - **The Section 57 Safeguard:** The priority rights granted to IPs under Section 57 to develop resources are not absolute and must be read in harmony with Article XII, Section 2, which reserves full control and supervision of large-scale extraction to the State.
 - **Justice Panganiban (Opposing IPRA):**
 - **The Regalian Doctrine is Absolute:** Article XII, Section 2 mandates that all natural resources (minerals, waters, forests, etc.) are owned by the State, and only agricultural lands may be alienated. By declaring ancestral domains (including public forests, waters, and minerals found therein) as "private community property," IPRA directly violates this constitutional barrier.
-

DOCTRINE, TESTS, AND LIMITS

- **Native Title Exception:** Established as a concrete exception to the Regalian Doctrine. Lands occupied, possessed, and utilized by ICCs/IPs since time immemorial are presumed to have been private property before the Spanish conquest, legally exempt from the requirement of a formal State grant or an Alienable & Disposable (A&D) classification.
 - **Rule 56, Section 7 of the Rules of Civil Procedure:** In En Banc cases, if the Court is equally divided on the constitutionality of a law, and after redeliberation the tie is not broken, the constitutionality of the law is sustained, and the petition must be dismissed.
-

DISPOSITION

 **ACCORDINGLY**, as the votes were equally divided (7 to 7) and the necessary majority was not obtained to declare the law unconstitutional, the petition is **DISMISSED**.

RECITATION CAPSULE (60–90 Seconds)

"In *Cruz v. Secretary of Environment and Natural Resources*, the petitioners challenged the constitutionality of the Indigenous Peoples' Rights Act (IPRA), arguing that its recognition of ancestral domains as 'private but community property' of indigenous peoples violated the Regalian Doctrine, which preserves the State's ownership over all natural resources.

The Supreme Court En Banc split down the middle in a rare 7-to-7 vote. Because no majority was reached to declare the law unconstitutional, the petition was dismissed under Rule 56, Section 7 of the Rules of Civil Procedure, leaving IPRA constitutional and valid.

The defenders of the law, led by Justices Kapunan and Puno, emphasized the doctrine of Native Title from *Cariño v. Insular Government*. They reasoned that ancestral domains are not lands of the public domain; they were held under private ownership since time

immemorial, pre-dating the Spanish conquest, and thus fall completely outside the scope of the Regalian Doctrine. Conversely, the dissenting justices argued that the Constitution absolutely bars the private appropriation of inalienable natural resources like forests, minerals, and waters found within these domains."

? LIKELY RECITATION FOLLOW-UPS & CONCISE ANSWERS

1. **Q: How does a 7–7 split result in a law being declared constitutional? Does it create a binding majority precedent?**
 - **A:** Under Rule 56, Section 7 of the Rules of Civil Procedure, a tie vote results in the dismissal of the petition because the challenger failed to secure the majority vote required to overcome the strong presumption of a statute's constitutionality. While it leaves IPRA valid and in force, it does not establish a majority En Banc precedent, meaning the doctrinal debate remains open to future challenges.
 2. **Q: Does IPRA allow indigenous communities to unilaterally sell or transfer ancestral domain lands to private corporations?**
 - **A:** No. Under the IPRA, ancestral domains are "private but community property" belonging to the entire ICC/IP group. They are held in trust for present and future generations and are generally inalienable to non-members of the community, except under strict customary transfer rules.
 3. **Q: How did Justice Puno reconcile the priority rights under Section 57 with the State's "full control and supervision" of natural resources?**
 - **A:** Justice Puno interpreted Section 57's "priority rights" in the extraction of minerals and resources not as an absolute grant of ownership over the resources themselves, but as a preferential right to participate in their exploration and development, which must still be executed under the macro-level supervision, guidelines, and safety regulations of the State.
-

CHANGED-FACT HYPOTHETICAL APPLICATION

- **Scenario:** The legislature amends IPRA to state that: "*Indigenous communities are hereby granted absolute, unrestricted private individual ownership over all mineral lands, national parks, and timber forests located within their ancestral domains, including the right to sell, mortgage, and permanently alienate these natural resources to 100% foreign-owned mining corporations without State interference.*" Is this amendment constitutional?
 - **Answer: No.** This amendment is unconstitutional. While the original IPRA was upheld because ancestral lands are communal and the State retains macro-level supervision over natural resources, this amendment violates Article XII, Sections 2 and 3 of the Constitution. First, the Constitution explicitly mandates that only *agricultural lands* of the public domain may be alienated. Second, mineral lands and national parks are completely inalienable. Third, allowing foreign-owned corporations absolute ownership and extraction rights without State control directly violates the Regalian Doctrine and the 60% Filipino ownership threshold required for resource exploitation.
-

ONE-SENTENCE DOCTRINE ANCHOR

"Native Title is a pre-conquest, time-immemorial right of private ownership that constitutes a valid exception to the Regalian Doctrine, as ancestral domains are presumed to have never been public lands."

IDENTITY AND SYLLABUS RELEVANCE

- **Case Name:** *Arlene Llana Empaynado Chua v. Commission on Elections, Imelda E. Fragata, and Krystle Marie C. Bacani*, G.R. No. 216607, April 5, 2016.
 - **Ponente:** Justice Marvic M.V.F. Leonen (En Banc).
 - **Syllabus Relevance:** Taught under **Suffrage, Citizenship, and Qualifications for Local Elective Office**. This case delineates the strict dual citizenship disqualification under Section 40 of the Local Government Code (LGC) and the mandatory twin requirements of **reacquisition (Oath of Allegiance)** and **qualification (Sworn Renunciation)** under Republic Act No. 9225. It also reinforces the *Maquiling* doctrine on the invalidity of votes cast for ineligible candidates.
-

CHRONOLOGICAL MATERIAL FACTS

- **1967:** Petitioner Arlene Llana Empaynado Chua is born in Cabanatuan City, Nueva Ecija, to Filipino parents (making her a natural-born Filipino citizen).
 - **December 7, 1977:** Chua is naturalized as an American citizen, thereby losing her Philippine citizenship under Section 1 of Commonwealth Act No. 63.
 - **July 14, 2006:** Chua is issued an American passport.
 - **September 21, 2011:** Chua reacquires her Philippine citizenship by taking the Oath of Allegiance to the Republic of the Philippines pursuant to **R.A. No. 9225** (the Citizenship Retention and Re-acquisition Act of 2003).
 - **October 3, 2012:** Chua files her Certificate of Candidacy (COC) for Councilor for the Fourth District of Manila for the May 13, 2013 National and Local Elections.
 - **October 16, 2012 / December 11, 2012 / May 30, 2013:** Chua travels to and from the United States, continuously **utilizing her American passport**.
 - **The Key Omission:** At the time of filing her COC, Chua **fails to execute a personal and sworn renunciation** of her American citizenship.
 - **May 13, 2013:** Elections are held; Chua garners the sixth highest number of votes.
 - **May 15, 2013:** Chua is proclaimed as a winning Councilor.
-

PROCEDURAL HISTORY

- **May 15, 2013 (On Proclamation Day):** Imelda E. Fragata (a registered voter) files a Petition before the COMELEC to declare Chua a nuisance candidate and/or to cancel her COC. Fragata alleges Chua is not a Filipino citizen and is a permanent U.S. resident.
- **June 19, 2013:** Krystle Marie C. Bacani (the seventh-place candidate) files a **Motion to Intervene** with a Manifestation and Motion to Annul Proclamation. Bacani argues that because Chua is an unqualified dual citizen, Chua's votes are stray, and Bacani (as the next-highest eligible candidate) should be proclaimed.
- **October 17, 2013:** The COMELEC Second Division rules in favor of Fragata and Bacani, disqualifying Chua, annulling her proclamation, and declaring Bacani as the qualified candidate entitled to the councilor seat.
- **January 30, 2015:** The COMELEC En Banc denies Chua's Motion for Reconsideration.

- **2015:** Chua files a Petition for Certiorari and Prohibition (under Rule 64 in relation to Rule 65) before the Supreme Court, claiming the COMELEC committed grave abuse of discretion.
-

♥ PARTIES' MATERIAL ARGUMENTS

- **Petitioner Arlene Chua:**
 - **Belated Filing:** Fragata's petition was filed on May 15, 2013—beyond the 5-day or 25-day statutory deadlines under Section 78 of the Omnibus Election Code (OEC) to cancel or deny due course to a COC.
 - **Improper Remedy:** Since she was already proclaimed, the correct remedy was a petition for *quo warranto* under Section 253 of the OEC, not a summary COC cancellation.
 - **Succession Rules Apply:** Disqualification creates a "permanent vacancy" under Section 45 of the LGC, which must be filled by the statutory rule of succession, not by proclaiming the runner-up (Bacani) who was rejected by the electorate.
 - **Respondents (Fragata, Bacani, and COMELEC):**
 - **Timely Disqualification:** Fragata's petition was a petition for *disqualification* under Section 40 of the LGC (due to dual citizenship/foreign residency), not a petition to cancel a COC under Section 78. Disqualification petitions can be filed any day after the last day of COC filing until the date of proclamation. Thus, filing on proclamation day was timely.
 - **Violation of R.A. No. 9225:** Taking the Oath of Allegiance only reacquires citizenship; it does not satisfy the separate, mandatory requirement under Section 5(2) to make a personal and sworn renunciation of foreign citizenship when running for public office.
 - **Void ab Initio:** Because Chua was ineligible from the start, her COC was void *ab initio*. Votes cast for her are stray, meaning the next-highest eligible candidate (Bacani) is the rightful winner.
-

♥ ISSUES

1. **W/N** Fragata's petition before the COMELEC was a timely filed petition for disqualification rather than a petition to cancel a COC under Section 78 of the OEC.
 2. **W/N** Chua's failure to execute a personal and sworn renunciation of her foreign citizenship, despite taking her Oath of Allegiance, disqualified her under Section 40 of the LGC.
 3. **W/N** the subsequent vacancy should be filled via the rule on local government succession (Section 45 of the LGC) or by proclaiming the runner-up among the eligible candidates (Bacani).
-

♥ HOLDINGS

1. **YES.** The petition was a **timely petition for disqualification**. The grounds invoked (foreign residency and dual citizenship) are disqualifications under Section 40 of the LGC. Under COMELEC Rules of Procedure, disqualification petitions can be filed up to the date of proclamation. Since it was filed on May 15, 2013 (the date of proclamation), it was timely.
2. **YES.** Chua was **disqualified as a dual citizen** under Section 40(d) of the LGC. While she reacquired her Filipino citizenship in 2011 via an Oath of Allegiance, she failed to execute a personal and sworn

renunciation of her American citizenship upon filing her COC, which is a mandatory requirement for seeking elective office under Section 5(2) of R.A. No. 9225.

3. **NO (Succession does not apply; Bacani is entitled to the office).** Because Chua was ineligible at the time of filing, her COC was **void *ab initio***, and she was legally a non-candidate. Votes cast for her were stray and cannot be counted. Therefore, no "winner" was ever proclaimed to create a vacancy for local succession. The candidate with the next highest number of votes among the qualified candidates (Bacani) is the person legally entitled to the position.
-

CONTROLLING REASONING

- **Oath vs. Renunciation:** (citing *Jacot v. Dal*). The **Oath of Allegiance** is a general requirement to reacquire or retain citizenship under R.A. No. 9225. However, the **sworn and personal renunciation** of foreign citizenship is an *additional, restrictive requirement* specifically imposed upon dual citizens running for public office. It is designed to cure dual allegiance and ensure undivided loyalty to the Republic of the Philippines.
 - **Passive Use of Foreign Passports:** Chua's continued and active use of her American passport on multiple trips to the US after taking her Philippine Oath of Allegiance indicated she was still actively claiming foreign citizenship, further negating any implicit renunciation.
 - **The Void COC Principle (*Maquiling*):** When a candidate's COC is void *ab initio*, the candidate is treated as if they never participated in the race. The votes cast for them are dead votes. Consequently, the candidate who receives the highest number of votes among those *eligible* (Bacani) is the true winner of the election. The rule on succession under Section 45 of the LGC only applies when a *qualified* candidate is validly proclaimed, assumes office, and subsequently creates a permanent vacancy (e.g., through death, resignation, or removal).
-

DOCTRINE, TESTS, AND LIMITS

- **The Twin-Step Candidate Qualification Test:** Under R.A. No. 9225, a reacquiring dual citizen who runs for elective office must execute **two distinct, formal, and sequential acts**:
 1. Take the **Oath of Allegiance** to reacquire citizenship (under Section 3).
 2. Execute a **personal and sworn renunciation** of any and all foreign citizenship before an authorized public officer **at the time of the filing of the COC** (under Section 5).
 - **The "Voice of the People" Limit:** The will of the electorate as expressed through the ballot **cannot cure the vice of ineligibility**, especially if the voters mistakenly believed the candidate was qualified.
-

DISPOSITION

- The Petition for Certiorari and Prohibition was **DISMISSED**. The COMELEC Resolutions annulling Chua's proclamation and declaring Bacani as the duly elected Councilor were **AFFIRMED**.
-

♥ OBITER DICTA & NOTABLE PHRASES

- **On Ineligibility and Elections:**

"When there are participants who turn out to be ineligible, their victory is voided and the laurel is awarded to the next in rank who does not possess any of the disqualifications nor lacks any of the qualifications..."

- **On the Supremacy of Law over Voter Choice:**

"The ballot cannot override the constitutional and statutory requirements for qualifications and disqualifications of candidates."

♥ RECITATION CAPSULE (60–90 Seconds)

"This case involves Arlene Chua, a natural-born Filipina who became a naturalized U.S. citizen. In 2011, she reacquired her Philippine citizenship under R.A. No. 9225 by taking her Oath of Allegiance, and in 2012, she ran for Councilor in Manila. She won and was proclaimed. However, her proclamation was challenged because, while she took the Oath, she never executed a personal and sworn renunciation of her American citizenship—and she continued using her American passport.

The Supreme Court En Banc held that Chua was disqualified under Section 40 of the LGC. R.A. No. 9225 requires a twin-step process for candidates: first, the Oath of Allegiance to reacquire citizenship; and second, a separate, sworn, personal renunciation of foreign citizenship at the time of filing the COC to ensure undivided loyalty. Because she failed to renounce, her COC was void *ab initio*, making her a non-candidate. All votes cast for her were stray. Thus, the rule on local succession does not apply. Applying the *Maquiling* doctrine, the next-highest qualified candidate, Bacani, was declared the rightful winner of the seat because the will of the people cannot cure the vice of ineligibility."

? LIKELY RECITATION FOLLOW-UPS & CONCISE ANSWERS

1. **Q: Why was Fragata's petition considered timely when it was filed on the day of proclamation, which is way past the 25-day limit for Section 78 OEC petitions?**
 - **A:** Because the petition was treated as a petition for *disqualification* based on the grounds in Section 40 of the LGC, not a petition to *cancel* a COC under Section 78 of the OEC. Under COMELEC Rules, disqualification petitions can be filed any day after the last day of COC filing but not later than the date of proclamation.
2. **Q: Can a candidate's subsequent renunciation of foreign citizenship after winning the election cure their initial lack of qualification?**

- **A:** No. Under Section 5(2) of R.A. No. 9225, the personal and sworn renunciation must be made **at the time of the filing of the certificate of candidacy**. The candidate must possess all qualifications upon entering the electoral race; a post-election renunciation cannot retroactively cure a void *ab initio* COC.
 - 3. **Q: How does this case differ from *Mercado v. Manzano* regarding the method of renunciation?**
 - **A:** In *Manzano*, the candidate was a dual citizen *by birth* (born in the US to Filipino parents). The Supreme Court held that the renunciation requirement of R.A. No. 9225's Section 5(2) only applies to dual citizens *by naturalization* (those who lost and reacquired citizenship). Dual citizens by birth need only file a standard COC containing an oath of allegiance to effectively repudiate foreign citizenship for local elections.
-

CHANGED-FACT HYPOTHETICAL APPLICATION

- **Scenario:** Arlene Chua is born in the United States to parents who are both Filipino citizens, making her a dual citizen by birth under *jus soli* (US) and *jus sanguinis* (PH). She grows up in Manila, registers as a voter, and runs for Councilor without executing a separate sworn renunciation of her US citizenship under Section 5(2) of R.A. No. 9225. After she wins, the runner-up challenges her proclamation. Is she disqualified?
 - **Answer: No.** Chua would not be disqualified. According to the jurisprudence in *Gana-Carait v. COMELEC* and *Valles v. COMELEC*, the strict, personal, and sworn renunciation requirement under Section 5(2) of R.A. No. 9225 applies exclusively to those who **lost and reacquired** their Philippine citizenship through naturalization in a foreign country. Because Chua was a dual citizen *by birth* and never lost her Philippine citizenship, she is not covered by R.A. No. 9225's restrictive provisions, and her standard COC filing is legally sufficient.
-

ONE-SENTENCE DOCTRINE ANCHOR

"For dual citizens by naturalization seeking elective office, taking the Oath of Allegiance is not enough; they must make a separate, personal, and sworn renunciation of foreign citizenship at the time of filing their COC, otherwise their candidacy is void *ab initio* and the next-in-rank eligible candidate shall be proclaimed."

IDENTITY AND SYLLABUS RELEVANCE

- **Case Name:** *Maria Jeanette C. Tecson and Felix B. Desiderio, Jr. v. The Commission on Elections, Ronald Allan Kelly Poe (a.k.a. Fernando Poe, Jr.) and Victorino X. Fornier* (G.R. No. 161434); *Zoilo Antonio Velez v. Ronald Allan Kelley Poe* (G.R. No. 161634); and *Victorino X. Fornier v. Hon. Commission on Elections and Ronald Allan Kelley Poe* (G.R. No. 161824).
 - **Date of Promulgation:** March 3, 2004.
 - **Ponente:** Justice Jose C. Vitug (En Banc).
 - **Syllabus Relevance:** Taught under **Suffrage, Citizenship, Qualifications for the Presidency**, and the **Scope of Judicial Review / Jurisdiction of the Supreme Court**. It establishes:
 1. The Supreme Court's lack of pre-election jurisdiction as the Presidential Electoral Tribunal (PET).
 2. The application of *jus sanguinis* to illegitimate children under the 1935 Constitution.
 3. The use of legal presumptions (e.g., *en masse* Filipinization under the 1902 Philippine Bill) to trace citizenship lineage.
-

CHRONOLOGICAL MATERIAL FACTS

- **1870:** Lorenzo Pou (FPJ's paternal grandfather) is born under Spanish colonial rule. He resides in San Carlos, Pangasinan.
 - **April 11, 1899:** The Treaty of Paris becomes effective. Lorenzo Pou continues to reside in the Philippines, benefiting from the *en masse* Filipinization under Section 4 of the Philippine Bill of 1902. He does not make any declaration to preserve his allegiance to the Spanish Crown.
 - **May 17, 1915:** Allan F. Poe (FPJ's father) is born to Lorenzo Pou and Marta Reyes. Allan acquires his father's Philippine citizenship.
 - **August 20, 1939:** Ronald Allan Kelley Poe (FPJ) is born at St. Luke's Hospital in Manila to Allan F. Poe and Bessie Kelley (an American citizen). FPJ is born out of wedlock.
 - **September 16, 1940:** Allan F. Poe and Bessie Kelley are married.
 - **September 11, 1954:** Lorenzo Pou dies in San Carlos, Pangasinan, at age 84. His death certificate records his nationality as "Filipino".
 - **December 31, 2003:** FPJ files his Certificate of Candidacy (COC) for President for the May 10, 2004 elections, representing himself as a "natural-born Filipino citizen".
-

PROCEDURAL HISTORY

- **January 9, 2004:** Petitioner Victorino Fornier files a petition (SPA No. 04-003) before the COMELEC to disqualify FPJ and cancel his COC under Section 78 of the Omnibus Election Code, alleging material misrepresentation regarding his citizenship.
- **January 22 & 29, 2004:** Petitioners Tecson, Desiderio (G.R. No. 161434), and Velez (G.R. No. 161634) bypass the COMELEC and file direct petitions for certiorari/prohibition before the Supreme Court, arguing that under Article VII, Section 4, paragraph 7 of the 1987 Constitution, the SC En Banc has sole, exclusive, and original jurisdiction over all presidential qualification contests.

- **January 23, 2004:** The COMELEC First Division dismisses Fornier's petition for lack of merit, finding that Fornier failed to prove that FPJ's declaration of citizenship was a deliberate falsehood.
 - **February 6, 2004:** The COMELEC En Banc denies Fornier's Motion for Reconsideration.
 - **February 10, 2004:** Fornier files a Petition for Certiorari (G.R. No. 161824) with the Supreme Court under Rule 64 in relation to Rule 65. All three petitions are subsequently consolidated.
-

♥ PARTIES' MATERIAL ARGUMENTS

- **Petitioners (Fornier, Tecson, Desiderio, Velez):**
 - *Jurisdiction:* The Supreme Court has original and exclusive jurisdiction over FPJ's qualifications as a presidential candidate even before the elections, acting as the Presidential Electoral Tribunal (PET).
 - *Citizenship:* FPJ's grandfather, Lorenzo Pou, was a Spanish subject, and his father, Allan F. Poe, was a Spanish national.
 - *Illegitimacy Bar:* Even if Allan F. Poe were a Filipino, FPJ was born out of wedlock to an American mother. Under the 1935 Constitution, the principle of *jus sanguinis* applies only to *legitimate* children; an illegitimate child follows the citizenship of their mother. Thus, FPJ is an American citizen.
 - **Private Respondent (FPJ):**
 - *Jurisdiction:* Direct petitions to the Supreme Court are premature because the PET's jurisdiction is strictly post-election. The COMELEC has primary jurisdiction over pre-election COC challenges.
 - *Citizenship:* Lorenzo Pou was a Filipino citizen under the Treaty of Paris and the Philippine Bill of 1902. Allan F. Poe inherited this citizenship.
 - *Filiation:* Filiation—not legitimacy—is the sole requirement for *jus sanguinis*. Under Article IV of the 1935 Constitution, any child whose father is a Filipino is a Filipino citizen.
-

♥ ISSUES

1. **W/N** the Supreme Court has original and exclusive jurisdiction to determine the qualifications of a presidential candidate *before* the elections are held under Article VII, Section 4, paragraph 7 of the Constitution.
 2. **W/N** the COMELEC committed grave abuse of discretion in dismissing Fornier's petition and holding that FPJ did not commit a material misrepresentation in his COC.
 3. **W/N** Ronald Allan Kelley Poe (FPJ) is a natural-born citizen of the Philippines.
-

♥ HOLDINGS

1. **NO.** The Supreme Court's jurisdiction under Article VII, Section 4, paragraph 7 of the 1987 Constitution is **strictly post-election**. The word "contest" refers to disputes initiated *after* the election and proclamation of a winner. Direct petitions (G.R. Nos. 161434 & 161634) are dismissed for prematurity and lack of jurisdiction.

2. **NO.** The COMELEC did not commit grave abuse of discretion. The petitioner had the burden to prove that FPJ made a deliberate, willful falsehood regarding his citizenship, which Fornier failed to establish.
 3. **YES.** FPJ is a **natural-born Filipino citizen**. He was born a Filipino citizen under the 1935 Constitution and did not have to perform any act to acquire or perfect his citizenship.
-

CONTROLLING REASONING

- **On PET Jurisdiction:** The constitutional text defines the Court En Banc as the "sole judge of all *contests* relating to the election, returns, and qualifications". Legally, an election "contest" can only exist after a candidate has been proclaimed a winner. Pre-election challenges regarding candidate qualifications must be brought before the COMELEC under Section 78 of the Omnibus Election Code.
 - **On Tracing Lorenzo Pou's Citizenship (Presumptions):** Lorenzo Pou died in 1954 at the age of 84, placing his birth in 1870 under Spanish colonial rule. In the absence of evidence to the contrary, his residence in San Carlos, Pangasinan, at the time of his death is presumed to have been his residence on April 11, 1899. Thus, under the Philippine Bill of 1902, he was a Spanish subject who was an inhabitant of the islands, resulting in his *en masse* naturalization as a Filipino citizen. This citizenship was transmitted to his son, Allan F. Poe, under the *jus sanguinis* provisions of the 1935 Constitution.
 - **On Illegitimacy and Jus Sanguinis:**
 - The 1935 Constitution states: "The following are citizens of the Philippines... (3) Those whose fathers are citizens of the Philippines". The text **does not contain the qualifying word "legitimate"** before "fathers".
 - The Supreme Court rejected the *obiter dicta* from prior rulings (*Chiongbian v. De Leon*, *Serra v. Republic*, *Morano v. Vivo*, and *Paa v. Chan*) which had suggested that *jus sanguinis* only applies to legitimate children.
 - Under the Constitution, **filiation (blood relationship) is the sole requirement** for the transmission of citizenship. Because Allan F. Poe's paternity was conceded and established by the petitioner's own evidence (which targeted FPJ's "illegitimate" birth from Allan), FPJ followed the Filipino citizenship of his father. Since FPJ was a citizen at birth, he is a **natural-born citizen** under Section 2, Article IV of the Constitution.
-

DOCTRINE, TESTS, AND LIMITS

- **The Post-Proclamation "Contest" Rule:** The jurisdictional authority of the Supreme Court as the Presidential Electoral Tribunal cannot be invoked prior to the election and proclamation of the President or Vice-President.
 - **Filiation Standard for Jus Sanguinis:** The civil law status of legitimacy or illegitimacy does not determine citizenship. For *jus sanguinis* to operate, **the only proof required is filiation** to a parent who is a Filipino citizen.
 - **Lineage Presumption Rule:** If public/official records (such as death or marriage certificates) identifying an ancestor as a Filipino citizen are uncontroverted, and there is no evidence of an express declaration of foreign allegiance, the ancestor is presumed to have acquired Philippine citizenship under the early Organic Acts.
-

♥ DISPOSITION

 **WHEREFORE**, the petitions in G.R. Nos. 161434, 161634, and 161824 are **DISMISSED**.

♥ SEPARATE OPINIONS & OBITER DICTA

- **Justice Puno (Concurring):** Noted that the transmissive essence of citizenship lies strictly in the biological blood relationship (*jus sanguinis*), which runs across generations. Denying citizenship to an illegitimate child violates the equal protection clause.
 - **Justice Carpio (Dissenting):** Argued that FPJ was illegitimate and did not benefit from automatic transmission of citizenship at birth. To establish *jus sanguinis* from a Filipino father, an illegitimate child must prove that the father **acknowledged him at birth**. Since the subsequent marriage in 1940 was a later act that "perfected" his status, FPJ was not a citizen *from birth* and therefore was not "natural-born".
 - **Justice Tinga (Dissenting):** Argued that the case should be remanded to the COMELEC because it failed to properly act as a trier of facts and make a definitive finding of fact on the evidence.
-

♥ RECITATION CAPSULE (60–90 Seconds)

"In *Tecson v. COMELEC*, the presidential candidacy of FPJ was challenged on the ground that he was not a natural-born citizen. Because his mother was American and he was born out of wedlock before his parents married, the petitioners argued that as an illegitimate child, he followed his mother's American citizenship. Direct petitions were filed in the Supreme Court, while a certiorari petition challenged the COMELEC's dismissal of the case.

The Supreme Court dismissed the direct petitions, ruling that the Court's jurisdiction as the PET is strictly a post-election remedy that requires a proclaimed winner. On the merits of G.R. No. 161824, the Court held FPJ to be a natural-born citizen. First, his grandfather Lorenzo Pou was presumed a Filipino under the Philippine Bill of 1902 based on his local residence at death. Second, under the 1935 Constitution, *jus sanguinis* is based strictly on blood relationship, not legitimacy. The text does not qualify the word 'fathers' with 'legitimate'. Because Allan F. Poe was admitted to be FPJ's father, FPJ followed his father's Filipino citizenship. Having been a citizen from birth without needing to perform any act to perfect it, FPJ met the constitutional qualifications for the Presidency."

? LIKELY RECITATION FOLLOW-UPS & CONCISE ANSWERS

1. **Q: Why was the Supreme Court able to decide the merits of FPJ's citizenship in G.R. No. 161824 if it dismissed the other two petitions as premature?**
 - **A:** G.R. Nos. 161434 and 161634 were filed directly under the PET's jurisdiction, which is strictly a post-election remedy. Conversely, G.R. No. 161824 was a petition for certiorari under

Rule 64 in relation to Rule 65 to review a final resolution of the COMELEC, which had validly exercised its pre-election jurisdiction over COC cancellations under Section 78 of the OEC.

2. **Q: How did the Court handle the prior judicial statements claiming that *jus sanguinis* only applies to legitimate children?**
 - **A:** The Court dismissed those statements as *obiter dicta*. It ruled that those cases (*Chiongbian*, *Serra*, *Morano*, and *Paa*) did not directly involve the citizenship of an illegitimate child of a Filipino father in an election qualification contest, and therefore did not establish binding *stare decisis* on the issue.
3. **Q: What was Justice Carpio's main objection regarding FPJ's "natural-born" status?**
 - **A:** Justice Carpio argued that under the Spanish Civil Code, legitimation by subsequent marriage does not retroact to birth for political rights. Since FPJ required a subsequent act (his parents' marriage in 1940) to perfect his legal filiation to his father, he was not a Filipino *from birth* and thus failed the definition of a natural-born citizen.

CHANGED-FACT HYPOTHETICAL APPLICATION

- **Scenario:** FPJ is born out of wedlock to an American mother and a Filipino father under the 1935 Constitution. However, the father vehemently denies paternity throughout his life, and there are no public records, birth certificates, or judicial declarations establishing filiation. Years later, FPJ runs for President. Is he qualified as a natural-born citizen?
- **Answer: No.** Under the doctrine of *Tecson*, although legitimacy is irrelevant to *jus sanguinis*, **proof of filiation (blood relationship) is mandatory**. In the original case, filiation was conceded because the petitioner's arguments were anchored on FPJ's "illegitimate" birth from his father. Under this hypothetical, because paternity is actively disputed and completely unproven by any competent evidence, the child cannot inherit the father's citizenship and must follow the American citizenship of his mother.

ONE-SENTENCE DOCTRINE ANCHOR

"The principle of *jus sanguinis* under the Constitution is based strictly on blood relationship (filiation) and does not distinguish between legitimate and illegitimate children; hence, an illegitimate child whose father is a Filipino is a natural-born citizen."

IDENTITY AND SYLLABUS RELEVANCE

- **Case Name:** *Rizalito Y. David v. Senate Electoral Tribunal (SET) and Mary Grace Poe-Llamanzares*, G.R. No. 221538, September 20, 2016.
 - **Ponente:** Justice Marvic M.V.F. Leonen (En Banc).
 - **Syllabus Relevance:** Taught under **Territory, People, and Government** (Qualifications for Senators under Article VI, Section 3), **Citizenship** (natural-born status, foundlings, and the operation of R.A. No. 9225), and the **Scope of Judicial Review** (exclusivity of the Electoral Tribunals as the "sole judges" of legislative qualification contests).
-

CHRONOLOGICAL MATERIAL FACTS

- **September 3, 1968 (approx. 9:30 a.m.):** An infant girl is found abandoned outside the Parish Church of Jaro, Iloilo, by Edgardo Militar.
 - **September 6, 1968:** Emiliano Militar reports the finding to the Local Civil Registrar, and she is registered under the name Mary Grace Natividad Contreras Militar. Her foundling certificate records her physical features and the location where she was found.
 - **May 13, 1974:** The Municipal Court of San Juan, Rizal, grants the petition for her adoption filed by spouses Ronald Allan Poe (popularly known as Fernando Poe, Jr.) and Jesusa Sonora Poe (Susan Roces). Her name is changed to Mary Grace Natividad Sonora Poe.
 - **October 18, 2001:** Poe is naturalized as a citizen of the United States of America, thereby losing her Philippine citizenship under Commonwealth Act No. 63.
 - **July 7, 2006:** Poe takes her Oath of Allegiance to the Republic of the Philippines to reacquire her Philippine citizenship under **R.A. No. 9225**.
 - **July 10, 2006:** She files a Petition for Retention and/or Re-acquisition of Philippine Citizenship under R.A. No. 9225, which is officially granted on July 18, 2006.
 - **August 31, 2006:** She registers as a voter in Barangay Santa Lucia, San Juan City.
 - **October 6, 2010:** The President of the Philippines appoints her as Chairperson of the Movie and Television Review and Classification Board (MTRCB)—a position reserved exclusively for natural-born citizens.
 - **October 20, 2010:** Prior to filing her Certificate of Candidacy (COC), she executes an Affidavit of Renunciation of her U.S. citizenship. She subsequently renounces her U.S. nationality before a consular officer on July 12, 2011, and is issued a Certificate of Loss of Nationality.
 - **May 16, 2013:** Having run in the 2013 Senatorial Elections, she is proclaimed a winning Senator-elect of the Philippines.
-

PROCEDURAL HISTORY

- **August 6, 2015:** Rizalito Y. David, a losing senatorial candidate, files a Petition for *Quo Warranto* (SET Case No. 001-15) before the Senate Electoral Tribunal to unseat Poe, alleging she is not a natural-born citizen.
- **November 17, 2015:** The SET promulgates its Decision dismissing the *quo warranto* petition, holding that Poe is a natural-born citizen and qualified to sit as Senator.

- **December 3, 2015:** The SET denies David's Motion for Reconsideration.
 - **December 9, 2015:** David files a Petition for Certiorari (under Rule 65) before the Supreme Court, accusing the SET of committing grave abuse of discretion.
-

♥ PARTIES' MATERIAL ARGUMENTS

- **Petitioner Rizalito Y. David:**
 - **Violation of *Jus Sanguinis*:** Under Article IV, Section 1(2) of the 1987 Constitution, Philippine citizenship is based strictly on bloodline (*jus sanguinis*). As a foundling with unknown biological parents, Poe cannot trace her lineage to a Filipino parent and therefore cannot claim natural-born citizenship.
 - **Shifted Burden of Proof:** Since Poe admitted her status as a foundling, the burden of evidence shifted to her to conclusively prove her biological bloodline.
 - **Ineligibility under R.A. No. 9225:** Since she was never legally a natural-born citizen at birth, she could not "reacquire" that status under R.A. No. 9225.
 - **Private Respondent Senator Poe-Llamanzares:**
 - **Presumption of Citizenship:** Foundlings found in the Philippines are presumed to be born of Filipino parents under a holistic reading of the Constitution, domestic laws on adoption, and international conventions.
 - **Preponderance of Probability:** The physical, geographical, and statistical circumstances surrounding her abandonment in Iloilo create a near-certainty that her biological parents were Filipino citizens.
 - **Perfect Reacquisition:** Having been a natural-born citizen from birth, taking the Oath of Allegiance and executing the sworn renunciation restored her original status under R.A. No. 9225.
-

♥ ISSUES

1. **W/N** the Senate Electoral Tribunal committed grave abuse of discretion in ruling that Mary Grace Poe-Llamanzares is a natural-born citizen qualified to hold office as a Senator of the Republic.
 2. **W/N** foundlings discovered within Philippine territory are constitutionally presumed to be natural-born Filipino citizens.
 3. **W/N** Poe-Llamanzares successfully reacquired her natural-born citizenship status under R.A. No. 9225.
-

♥ HOLDINGS

1. **NO.** The SET did **not commit grave abuse of discretion**. Its decision is grounded on a faithful, comprehensive, and harmonious interpretation of the Constitution and domestic law.
2. **YES.** Foundlings are **constitutionally presumed to be natural-born Filipino citizens** unless there is substantial, direct proof showing that both of their biological parents are foreigners.

3. **YES.** Because she was legally a natural-born citizen at birth, she **fully reacquired and restored her status** as a natural-born citizen upon satisfying the twin requirements of R.A. No. 9225 (taking the Oath of Allegiance and executing a personal renunciation of foreign citizenship).
-

CONTROLLING REASONING

- **Harmonizing Article IV, Sections 1 and 2:** Section 2 of Article IV defines natural-born citizens as "those who are citizens of the Philippines from birth without having to perform any act to acquire or perfect their Philippine citizenship". While Section 1 lists parentage as a source of citizenship, Section 2 is the actual, controlling definition of "natural-born". Since Poe was never subjected to any naturalization process from her birth up to her adoption, she is legally a citizen from birth (and therefore natural-born).
 - **The Burden of Proof in Quo Warranto:** In a *quo warranto* proceeding, the petitioner (David) carries the burden of proving the candidate's ineligibility by substantial evidence. Poe's admitted status as a foundling does not establish a *prima facie* case of non-citizenship. The burden of evidence does not shift to Poe based on a mere taint of doubt.
 - **The Evidentiary Presumptions (The Tecson Precedent):** In *Tecson*, the Court established that citizenship may be determined on the basis of legal and historical presumptions. Here, the circumstances of Poe's finding are overwhelmingly indicative of Filipino parentage:
 1. She was found as a newborn infant in Jaro, Iloilo (which has a predominantly Filipino population and had no international airport in 1968).
 2. Her physical features are consistent with typical Filipinos.
 3. **The Statistical Probability:** Civil registration records from 1968 reveal that out of 900,165 births in the Philippines, only 1,595 (or 0.18%) were foreign. This translates to a **99.8% statistical probability** that her biological parents were Filipino.
 - **The Constitutional Absurdity of Statelessness:** Interpreting the Constitution to exclude foundlings from natural-born status would condemn them to a state of continuing destitution and potential statelessness through no fault of their own. *Dura lex sed lex* is not a heartless maxim to be deployed to strip abandoned children of their fundamental human rights, equal protection, and access to public service.
 - **Reacquisition under Bengson v. HRET:** Under settled jurisprudence, repatriation does not naturalize a citizen; rather, it allows a former citizen to recover their original nationality. Because Poe was a natural-born citizen at birth, her compliance with R.A. No. 9225 effectively restored her to her original status as a natural-born Filipino.
-

DOCTRINE, TESTS, AND LIMITS

- **The Whole-Constitution Reading Doctrine:** Constitutional provisions cannot be read in isolation. To effectuate its whole purpose, the definition of a natural-born citizen (Article IV, Section 2) must be harmonized with the State's express commitment to defend the well-being of children, advance human rights, and ensure equal protection under the law.
- **The Foundling Presumption Rule:** All foundlings discovered in the Philippines are legally presumed to be born to at least one Filipino parent. This presumption of natural-born citizenship stands unless the challenger presents substantial, concrete proof showing that both biological parents are foreigners.

- **The Repatriation Restoration Test:** Former natural-born citizens who lose their citizenship by naturalization in a foreign country recover their original status *ipso jure* upon repatriation under R.A. No. 9225.
-

♥ DISPOSITION

 **WHEREFORE**, the Petition for Certiorari is **DISMISSED**. Public respondent Senate Electoral Tribunal did not commit grave abuse of discretion. Private respondent Mary Grace Poe-Llamanzares is declared a natural-born Filipino citizen qualified to hold office as Senator of the Republic.

♥ SEPARATE & DISSENTING OPINIONS

- **Justice Perlas-Bernabe (Dissenting):**
 - **Strict Adherence to *Jus Sanguinis*:** The 1935 Constitution (applicable at Poe's birth) does not explicitly include foundlings in its enumeration of citizens. Under *jus sanguinis*, citizenship is strictly transmissible only by biological blood relationship to a Filipino parent.
 - **Shifted Burden:** Once Poe admitted she was a foundling with unknown parentage, the petitioner's burden was met. The burden of evidence shifted to Poe to present solid, non-speculative proof of her biological bloodline, which she failed to do.
 - **International Law Limit:** International treaties cannot override the explicit *jus sanguinis* mandate of the Philippine Constitution. If citizenship is conferred through international conventions, it requires legislative implementation, making it an acquired (naturalized) citizenship, not a natural-born one.
-

♥ RECITATION CAPSULE (60–90 Seconds)

"In *David v. SET*, the Supreme Court reviewed the citizenship of Senator Grace Poe, a foundling abandoned at a church in Iloilo in 1968, who was later adopted by FPJ and Susan Roces. After naturalizing in the U.S., she repatriated under R.A. No. 9225 and was elected Senator in 2013. A losing candidate challenged her eligibility, claiming that as a foundling with unknown biological parents, she cannot satisfy the *jus sanguinis* (bloodline) principle and is thus not a natural-born citizen.

The Supreme Court dismissed the petition and ruled that foundlings are presumed natural-born citizens. First, the Court held that Section 2 of Article IV defines a natural-born citizen as one who is a citizen from birth without having to perform any act to perfect it—which applies to foundlings who undergo no naturalization process. Second, the petitioner in a *quo warranto* case has the burden of proving ineligibility, and a candidate's foundling status alone does not create a *prima facie* case of non-citizenship. Third, geographical facts, physical features, and an overwhelming 99.8% statistical probability establish her Filipino parentage. Lastly, the Court emphasized that a myopic reading of the

Constitution that reduces abandoned children to stateless, second-class citizens violates the equal protection clause and the State's duty to protect children."

? LIKELY RECITATION FOLLOW-UPS & CONCISE ANSWERS

1. **Q: How did the Court reconcile the *jus sanguinis* (blood relationship) principle with the fact that Poe's biological parents are completely unknown?**
 - **A:** The Court did not abandon *jus sanguinis*. Instead, it held that proof of blood relationship does not require absolute, mathematically certain evidence of parentage. It can be established through a range of substantial, circumstantial, and statistical evidence—such as her physical features, her abandonment in a highly populated local municipality (Iloilo), and the 99.8% statistical probability that any child born locally in 1968 was born to Filipino parents.
2. **Q: Does this ruling mean that every foundling found in the Philippines is now permanently and conclusively declared a natural-born citizen?**
 - **A:** No. The Court explicitly clarified that this case does not decide the citizenship of every foundling with absolute finality. The presumption is disputable. If substantial, concrete proof is presented in a specific case showing that both parents of a foundling are foreigners, the presumption is destroyed.
3. **Q: Why was Poe's compliance with R.A. No. 9225 not considered an "act to acquire or perfect" her citizenship, which would otherwise disqualify her from being "natural-born"?**
 - **A:** (Citing *Bengson v. HRET*). The reacquisition process under R.A. No. 9225 is a curative mechanism that restores a person's original status. It is not a naturalization process. Since Poe was legally a natural-born citizen at birth, she simply recovered her original natural-born status upon repatriation; she did not acquire a new, "perfected" citizenship.

🔄 CHANGED-FACT HYPOTHETICAL APPLICATION

- **Scenario:** A newborn baby is found abandoned in 2026 outside the international passenger terminal of the Ninoy Aquino International Airport (NAIA) in Pasay City. A DNA test subsequently reveals a partial genetic match to a foreign tourist who had recently visited the country. The baby is adopted by Filipino parents. Years later, this child runs for the Senate. Is the child qualified as a natural-born citizen?
- **Answer: Yes, the child remains qualified.** Under the *David v. SET* doctrine, a foundling is presumed to be a natural-born Filipino citizen unless there is substantial, direct proof that **both** of the child's biological parents are foreigners. A partial genetic match to one foreign tourist does not conclusively prove that both biological parents are foreigners, nor does the airport location completely extinguish the disputable presumption. Thus, in the absence of solid, double-parentage foreign proof, the presumption of natural-born citizenship stands.

💙 ONE-SENTENCE DOCTRINE ANCHOR

"Foundlings found in the Philippines are presumed to be natural-born citizens from birth, and this disputable presumption can only be overcome by substantial proof that both of their biological parents are foreigners."

IDENTITY AND SYLLABUS RELEVANCE

- **Case Name:** *Antonio Y. Co v. Electoral Tribunal of the House of Representatives and Jose Ong, Jr.* (G.R. Nos. 92191-92); and *Sixto T. Balanquit, Jr. v. Electoral Tribunal of the House of Representatives and Jose Ong, Jr.* (G.R. Nos. 92202-03), July 30, 1991.
- **Ponente:** Justice Hugo Gutierrez, Jr. (En Banc).
- **Syllabus Relevance:** Taught under the **Legislative Department** (the independence and exclusive jurisdiction of the House of Representatives Electoral Tribunal (HRET) as the "sole judge" of congressional qualification contests under Article VI, Section 17), **Citizenship** (Article IV, Sections 1(3) and 2—specifically the curative and retroactive nature of the 1987 Constitution regarding children born of Filipino mothers who elect Philippine citizenship), and **Qualifications for the Legislature** (the residency requirement as synonymous with domicile).

CHRONOLOGICAL MATERIAL FACTS

- **1895:** Ong Te (the grandfather of private respondent Jose Ong, Jr.) arrives in the Philippines from China, establishes his residence in the seaside municipality of Laoang, Samar, and obtains a certificate of residence from the Spanish colonial administration.
- **1905:** Jose Ong Chuan (the father of Jose Ong, Jr.) is born in China.
- **1915:** Ong Te brings his minor son, Jose Ong Chuan, to Laoang, Samar, where he is fully assimilated into the community.
- **February 4, 1932:** Jose Ong Chuan marries Agrifina E. Lao, a natural-born Filipino citizen, in a Catholic wedding in Laoang.
- **June 19, 1948:** Jose Ong, Jr. is born in Laoang, Samar, to the spouses Jose Ong Chuan (then still a Chinese citizen) and Agrifina E. Lao.
- **February 15, 1954:** The father, Jose Ong Chuan, files a petition for naturalization under the Revised Naturalization Law (C.A. No. 473).
- **May 15, 1957:** The Court of First Instance (CFI) of Samar issues an order declaring the naturalization decision final and executory. Jose Ong Chuan takes his Oath of Allegiance. **Jose Ong, Jr. is then a minor of nine (9) years old.**
- **June 19, 1969:** Jose Ong, Jr. reaches the age of majority (21 years old). He **does not file a formal, written sworn statement electing Philippine citizenship** under Commonwealth Act No. 625 (C.A. No. 625).
- **The "Lifelong Filipino" Acts:** Throughout his life, Jose Ong, Jr. lives exclusively as a Filipino: he studies in the Philippines, graduates from college, passes the CPA Board Examinations (a profession restricted to citizens), works as an examiner for the Central Bank of the Philippines, and registers and votes in Laoang, Samar during the 1984 and 1986 elections.
- **1961 & 1975:** Fires destroy the family home in Laoang. The family rebuilds on the same site, constructing a 16-door apartment building in 1975, reserving two doors exclusively as their permanent family residence.
- **1971:** Emil L. Ong (Jose's elder brother) is elected as a delegate to the 1971 Constitutional Convention. His natural-born citizenship is challenged but solemnly upheld by the Convention.
- **May 11, 1987:** Jose Ong, Jr. runs for Representative of the Second Legislative District of Northern Samar and **wins by an overwhelming majority** (leading the combined votes of his opponents by over 7,000 votes). He is subsequently proclaimed.

PROCEDURAL HISTORY

- **May 1987:** Petitioners Antonio Co and Sixto Balanquit, Jr. (losing candidates) file separate election protests before the HRET (HRET Cases Nos. 13 and 15), asserting that Jose Ong, Jr. is ineligible because:
 1. He is not a natural-born Filipino citizen.

2. He fails the one-year residency requirement in the district.
 - **November 6, 1989:** The HRET renders a joint decision **dismissing the protests** and declaring Jose Ong, Jr. to be a qualified natural-born citizen and resident of Laoang.
 - **February 22, 1990:** The HRET denies petitioners' Motion for Reconsideration.
 - **1990:** Petitioners file consolidated Petitions for Certiorari (under Rule 65) before the Supreme Court, accusing the HRET of committing grave abuse of discretion.
-

♥ PARTIES' MATERIAL ARGUMENTS

- **Petitioners (Co and Balanquit):**
 - **Failure to Elect:** Under the 1935 Constitution (applicable at Jose's birth in 1948), a child born of a Filipino mother and an alien father is a Chinese citizen and must formally elect Philippine citizenship upon reaching the age of majority under C.A. No. 625. Jose's failure to file a formal sworn statement in 1969 means he never became a citizen.
 - **Collateral Attack on Father's Naturalization:** The father's 1957 naturalization was void *ab initio* because he prematurely took his oath on the same day the CFI issued the order, violating statutory waiting periods. Thus, Jose did not benefit from derivative citizenship during minority.
 - **Non-Residence:** Jose lived, worked, and established family businesses in Manila, owning no registered property in Northern Samar.
 - **Private Respondent (Jose Ong, Jr.):**
 - **Superfluity of Election:** He was already a Filipino citizen at age nine (9) under Section 15 of C.A. No. 473 when his father was naturalized. A citizen cannot "elect" citizenship; election is strictly an option for aliens.
 - **Informal/Positive Acts of Election:** Even if election was required, his lifelong positive acts—voting, practicing a restricted profession, and working for the Central Bank—constituted a valid "informal" election under *In re Florencio Mallare*.
 - **Curative Constitution:** Under Article IV, Section 1(3) in relation to Section 2 of the 1987 Constitution, children of Filipino mothers who elect citizenship (formally or informally) are deemed natural-born citizens.
 - **Immutability of Domicile:** His domicile of origin in Laoang, Samar was never abandoned, and the lack of property ownership is not a disqualification.
-

♥ ISSUES

1. **W/N** the Supreme Court has the jurisdiction to review and reverse the factual and legal determinations made by the HRET in legislative qualification contests.
 2. **W/N** Jose Ong, Jr. is a natural-born citizen of the Philippines under the 1987 Constitution.
 3. **W/N** Jose Ong, Jr. complied with the one-year residency requirement under Article VI, Section 6 of the Constitution.
-

♥ HOLDINGS

1. **YES, but highly restricted.** The Supreme Court has jurisdiction to review HRET decisions under its extraordinary certiorari power (Article VIII, Section 1), but **strictly limited to cases of manifest grave abuse of discretion**. In the absence of an arbitrary, whimsical, or due process-violating exercise of power, the HRET's judgments as the "**sole judge**" are beyond judicial interference.

2. **YES.** Jose Ong, Jr. is a **natural-born Filipino citizen**. He was already a Filipino citizen during his minority by virtue of his father's naturalization. Therefore, requiring him to formally elect citizenship under C.A. No. 625 upon reaching majority would have been an absurdity. Furthermore, his positive acts since childhood constitute a valid informal election under the *Mallare* doctrine, which is retroactively recognized by the curative provisions of the 1987 Constitution to confer natural-born status.
 3. **YES.** Jose Ong, Jr. satisfied the residency requirement. **"Residence" in election law is synonymous with "domicile"**. His domicile of origin in Laoang, Samar was never abandoned, and physical absence for studies or employment in Manila did not sever his *animus revertendi* (intent to return).
-

CONTROLLING REASONING

- **On the Complete and Unimpaired Power of the HRET:** The Constitution's use of the word **"sole"** in Article VI, Section 17 emphasizes the exclusive character of HRET's jurisdiction over congressional qualifications. The Court must respect the constitutional boundary and avoid converting a petition for certiorari into a routine appeal to correct perceived errors of judgment.
 - **On the Curative and Retroactive Nature of the 1987 Constitution:** Article IV, Section 1(3) in relation to Section 2 of the 1987 Constitution was explicitly designed as a **curative statute**. It corrected the inequitable 1935 rule where children of Filipino mothers were treated as aliens unless they elected citizenship. The 1987 Constitution retroactively accords **natural-born status** to those who elected Philippine citizenship under the old regime, whether that election was formal or informal.
 - **On the Superfluity of Election for Existing Citizens:** Under Section 15 of C.A. No. 473, the naturalization of Jose Ong Chuan in 1957 automatically extended citizenship to his minor child, Jose Ong, Jr., who was born in the Philippines. Upon turning 21 in 1969, Jose was already a full-fledged Filipino citizen. Since **the election of citizenship is a process designed strictly for aliens** to choose a nationality, it is legally impossible and absurd to require a person who is already a citizen to "elect" citizenship.
 - **On the In Re Mallare "Positive Acts" Rule:** Even if a formal election were deemed technically necessary, the Court applied the *Mallare* rule: **positive acts of citizenship**, such as exercising the right of suffrage, practicing a state-restricted profession (CPA), and working for a sensitive state agency (Central Bank), constitute a valid, informal election of citizenship.
 - **On the Ban on Collateral Attacks on Citizenship:** The petitioners' attempt to invalidate the naturalization of Jose's deceased father (alleging procedural infractions in his 1957 oath-taking) is an impermissible **collateral attack**. Under Philippine law, a grant of naturalization can only be assailed through a **direct denaturalization proceeding** initiated by the State through the Solicitor General.
 - **On Domicile and Property Ownership:** Domicile is characterized by *animus manendi* (intent to remain) and *animus revertendi* (intent to return). Domicile of origin is not lost by temporary physical absence for career or educational advancement. Furthermore, the Court reiterated that **the Constitution does not impose a property qualification**; owning a physical house or land in the district is not a prerequisite to establishing or maintaining a domicile.
-

DOCTRINE, TESTS, AND LIMITS

- **The "Informal Election" Doctrine (*Mallare* Rule):** The formal requirement of executing a sworn statement of election under C.A. No. 625 is dispensed with if the individual, born of a Filipino mother, has consistently performed positive, public acts of Philippine citizenship upon reaching the age of majority (such as voting, practicing a licensed profession, or holding public office).
- **The Curative Retroactivity Test:** Article IV, Section 2 of the 1987 Constitution applies retroactively to individuals born of Filipino mothers before January 17, 1973, who elected citizenship (formally or informally) under the 1935 Constitution, elevating their status to that of a **natural-born citizen**.

- **The Direct Attack Limit on Citizenship:** A citizen's naturalization or acquisition of citizenship cannot be collaterally attacked in an election contest or a private suit; it can only be challenged in a direct cancellation proceeding brought by the State.
-

DISPOSITION

 **WHEREFORE**, the petitions are hereby **DISMISSED**. The questioned decision of the House of Representatives Electoral Tribunal is **AFFIRMED**. Respondent Jose Ong, Jr. is declared a **natural-born citizen of the Philippines** and a **resident of Laoang, Northern Samar**.

OBITER DICTA & NOTABLE PHRASES

- **On the Absurdity of Forcing a Citizen to Elect Citizenship:**

"How can a Filipino citizen elect Philippine citizenship?"

- **On the Sovereignty of the Electorate:**

"The mass of voters of Northern Samar are fully aware of Mr. Ong's parentage. They should know him better than any member of this Court will ever know him... Because of his acts since childhood, they have considered him as a Filipino."

RECITATION CAPSULE (60–90 Seconds)

"In *Co v. HRET*, the petitioners challenged the congressional victory of Jose Ong, Jr. in Northern Samar, arguing that he was not a natural-born citizen and failed the residency requirement. Ong was born to a Chinese father and a natural-born Filipina mother in 1948 under the 1935 Constitution. When he was nine, his father became naturalized, automatically extending citizenship to him. However, upon turning 21, Ong did not file a formal sworn statement electing citizenship under C.A. No. 625. He lived his entire life as a Filipino, practicing as a CPA, working for the Central Bank, and voting locally. His family also maintained a rebuilt residence in Samar, though he worked in Manila.

The Supreme Court affirmed the HRET's dismissal of the protests. First, the Court held that the HRET is the 'sole judge' of legislative qualifications, and its findings cannot be disturbed absent grave abuse of discretion. Second, Jose Ong did not need to formally elect citizenship because he was already a citizen via his father's naturalization; forcing a citizen to elect citizenship is an absurdity. Third, his positive lifestyle acts constituted an 'informal election' under the *Mallare* rule, which is retroactively recognized by the curative provisions of the 1987 Constitution to make him a natural-born citizen. Finally, the Court held that 'residence' is synonymous with 'domicile,' which does not require property ownership and is not lost by temporary physical absence."

? LIKELY RECITATION FOLLOW-UPS & CONCISE ANSWERS

1. **Q: Why does the 1987 Constitution deem a person who elected citizenship under the 1935 Constitution to be "natural-born," when the definition of "natural-born" is being a citizen from birth without performing any act to perfect it?**
 - **A:** This is due to the curative, retroactive nature of Article IV, Section 2 of the 1987 Constitution. The framers recognized that the 1935 Constitution discriminated against women by requiring their children to perform an "act" (election), whereas children of Filipino fathers did not. The provision is a constitutional cure designed to put children of Filipino mothers on equal footing, erasing the distinction retroactively.
 2. **Q: Can the petitioners challenge Jose Ong, Jr.'s citizenship by proving that his father's naturalization was procedurally flawed and void?**
 - **A:** No. An attack on a person's citizenship (or his father's naturalization, from which his citizenship is derived) cannot be done collaterally in an election protest or a private suit. It can only be done through a direct action for denaturalization filed by the State.
 3. **Q: How can Jose Ong, Jr. claim to meet the one-year residency requirement in Northern Samar when he admitted to physically living and working in Manila for most of his adult life?**
 - **A:** Because in election law, "residence" is synonymous with "domicile". A person can only have one domicile at a time. Once a domicile of origin is established (Laoang, Samar), it is not lost by temporary physical absence for studies or work as long as there is *animus revertendi* (intent to return) and no *animus non revertendi* (intent to abandon). His family maintained a rebuilt dwelling in Laoang, proving his continuing physical and emotional connection.
-

CHANGED-FACT HYPOTHETICAL APPLICATION

- **Scenario:** Jose Ong, Jr. is born in 1948 to a Chinese father and a natural-born Filipina mother. His father never applies for naturalization during Jose's minority. Upon turning 21 in 1969, Jose does not file any formal election under C.A. No. 625. Instead, he immediately moves to China, registers as a Chinese citizen, and obtains a Chinese passport. In 1986, he returns to Samar, registers as a voter, and runs for Congress in 1987. Is he a natural-born citizen?
 - **Answer: No.** Under these changed facts, Jose is not a citizen and is disqualified. First, unlike the original case, he did not acquire derivative Filipino citizenship during his minority because his father never naturalized. Thus, he remained an alien. Second, upon reaching majority, he performed no "positive acts" of Philippine citizenship; instead, his positive acts (obtaining a Chinese passport and registering in China) demonstrated an election of Chinese nationality. Third, because he did not elect Philippine citizenship within a "reasonable time" of reaching majority, he cannot benefit from the curative provisions of the 1987 Constitution.
-

ONE-SENTENCE DOCTRINE ANCHOR

"A child of a natural-born Filipina mother who automatically became a citizen during minority via derivative naturalization is not required to formally elect citizenship, and his lifelong positive acts of citizenship are retroactively recognized by the curative 1987 Constitution to establish his natural-born status."

IDENTITY AND SYLLABUS RELEVANCE

- **Case Name:** *In re Petition for Habeas Corpus of Willie Yu / Willie Yu v. Miriam Defensor-Santiago, Bienvenido P. Alano, Jr., Major Pabalan, Deleo Hernandez, Bloddy Hernandez, Benny Reyes and Jun Espiritu Santo*, G.R. No. 83882, January 24, 1989.
- **Ponente:** Justice Sabino Padilla (En Banc).
- **Syllabus Relevance:** Taught under **Citizenship** and **Loss of Philippine Citizenship** (Article IV, Section 3 of the 1987 Constitution and Commonwealth Act No. 63). It is the landmark authority establishing that a naturalized citizen's post-naturalization act of applying for, obtaining, and using a foreign passport—alongside representing oneself as a foreign national in commercial documents—constitutes an **express renunciation** of Philippine citizenship. This case also defines the outer procedural limits of the **Due Process Clause** when the facts of a citizenship dispute are judicially admitted.

CHRONOLOGICAL MATERIAL FACTS

- **1971:** Willie Yu, originally a Portuguese national, is issued a Portuguese passport valid for five (5) years.
- **February 10, 1978:** Yu is naturalized as a citizen of the Philippines. Upon naturalization, he takes his Oath of Allegiance, swearing to "*renounce absolutely and forever all allegiance and fidelity to any foreign prince, potentate, state or sovereignty*" and to "*maintain true faith and allegiance to the Republic of the Philippines*".
- **April 1980:** Despite his naturalization, Yu declares his nationality as Portuguese in commercial documents he signs in Hong Kong, specifically the Companies registry of *Tai Shun Estate Ltd.*.
- **July 21, 1981:** Yu actively applies for and is issued Portuguese Passport No. 35/81 (serial N. 1517410) by the Consular Section of the Portuguese Embassy in Tokyo, which remains valid until July 20, 1986.
- **1988:** Yu is detained by the Commission on Immigration and Deportation (CID), headed by Commissioner Miriam Defensor-Santiago, as an undocumented/undesirable alien.

PROCEDURAL HISTORY

- **July 4, 1988:** Willie Yu files a Petition for *Habeas Corpus* (a judicial order demanding the State produce a detainee and justify their confinement) before the Supreme Court seeking his release from CID detention.
- **November 10, 1988:** The Supreme Court En Banc issues a resolution denying Yu's petition for *habeas corpus*, affirming the CID's jurisdiction over him and upholding the validity of his warrantless arrest.
- **November 24, 1988:** Yu files a Motion for Reconsideration with a prayer for a restraining order, which the Court denies with finality on November 29, 1988.
- **December 2, 1988:** The CID Board of Commissioners issues a summary judgment of deportation against Yu.
- **December 7, 1988:** Acting on Yu's subsequent motion, the Supreme Court issues a Temporary Restraining Order (TRO) enjoining the CID from immediately deporting him pending hearings before the Board of Special Inquiry (BSI).

- **December 13, 1988:** CID Commissioner Miriam Defensor-Santiago files a Motion to Lift the TRO, arguing that Yu's citizenship was already lost.
 - **December 15, 1988:** The Supreme Court gives Yu a non-extendible period of three (3) days to explain and prove why he should still be considered a citizen of the Philippines despite acquiring and using a Portuguese passport.
 - **December 20, 1988:** Yu files his compliance, admitting the acquisition and renewal of his Portuguese passport and his representations in the Hong Kong commercial documents.
-

♥ PARTIES' MATERIAL ARGUMENTS

- **Petitioner (Willie Yu):**
 - **Due Process Infringement:** Deprivation of citizenship ("*de-Filipinization*") is too severe and monumental to be decided through summary administrative proceedings. He is entitled to a full-blown judicial trial in an adversarial court of law.
 - **No Express Renunciation:** Under *Board of Immigration Commissioners v. Go Gallano*, an express renunciation must be made known distinctly and explicitly, not left to inference. The mere use of a foreign passport does not automatically prove an intention to renounce, as it could be done for travel convenience or employment.
 - **Respondents (CID Commissioner & Solicitor General):**
 - **Express Renunciation Established:** Actively applying for, renewing, and using a Portuguese passport post-naturalization, coupled with declaring Portuguese nationality in official foreign commercial documents, represents a deliberate resumption of his foreign status.
 - **Obviation of Full Trial:** Because Yu admitted to these material facts in his own pleadings and compliance before the Supreme Court, a full trial is unnecessary and superfluous.
-

♥ ISSUES

1. **W/N** naturalized citizen Willie Yu's active post-naturalization acts of obtaining and using a foreign passport, and representing himself as a foreign national in corporate registries, constitute an **express renunciation** of his Philippine citizenship under Commonwealth Act No. 63.
 2. **W/N** the administrative summary deportation of Yu by the CID without a prior, full-blown judicial trial in an ordinary court of law violates the **Due Process Clause**.
-

♥ HOLDINGS

1. **YES.** Yu's deliberate, positive acts, when considered together, constitute an **express renunciation** of his Philippine citizenship. Having reacquired his Portuguese status, his Philippine citizenship was lost.
2. **NO.** While citizenship disputes normally require a judicial trial, a trial is **unnecessary and superfluous** when the material facts are undisputed and explicitly admitted by the citizen in his own pleadings before the Supreme Court. Any potential denial of due process was fully cured when the Court gave him a direct opportunity to show proof of continued citizenship.

💖 CONTROLLING REASONING

- **On the Resumption of Portuguese Citizenship:** The Court held that Yu's positive post-naturalization actions went far beyond passive conduct. After solemnly swearing in 1978 to renounce all foreign allegiance, he traveled to Tokyo in 1981 to actively apply for and renew a Portuguese passport. He also signed commercial documents in Hong Kong declaring his nationality as Portuguese. These acts are grossly and fundamentally incompatible with his maintenance of Philippine citizenship.
- **On the Character of Citizenship:** The Court emphasized that citizenship is not a mere tool of convenience:

💚 *"Philippine citizenship, it must be stressed, is not a commodity or ware to be displayed when required and suppressed when convenient."*

- **On Bypassing a Full Judicial Trial:** Ordinarily, whether a person has renounced their citizenship must be litigated in a full judicial trial. However, because Yu's own compliance and pleadings before the Supreme Court explicitly admitted to the passport renewal and commercial declarations, there were no disputed facts left to resolve. A trial would be a useless formality ("*superfluous*"), and his due process rights were protected when the High Court gave him a direct venue to explain away these acts, which he failed to do.

💙 DOCTRINE, TESTS, AND LIMITS

- **The "Express Renunciation" Multi-Factor Test:** Reaffirming the *Go Gallano* standard, an express renunciation must be explicit and not left to mere inference. However, under *Yu*, an express renunciation is established when a naturalized citizen:
 1. **Actively applies for and obtains** a foreign passport post-naturalization.
 2. **Explicitly declares** foreign nationality in official or commercial documents.
- **The "Undisputed Admission" Exception to Trial:** A full-blown judicial trial to divest citizenship is dispensed with when the citizen officially admits the disqualifying, material facts in their own written submissions to the court.

💖 DISPOSITION

🏛️ **WHEREFORE**, petitioner's motion for release from detention is **DENIED**. Respondent's motion to lift the Temporary Restraining Order is **GRANTED**. This Decision is **immediately executory**.

💚 SEPARATE & DISSENTING OPINIONS

- **Justice Gutierrez, Jr. (Dissenting):**
 - **The Danger of Shortcuts:** Warned that allowing administrative agencies to strip citizenship through summary procedures sets a dangerous, non-adversarial precedent.
 - **Passport for Convenience:** Argued that the mere use of a foreign passport does not *ipso facto* (by the fact itself) constitute express renunciation. Many Filipinos obtain foreign passports for employment, safety, or to avoid discriminatory visa requirements while remaining "*at heart a Filipino*".
 - **Selective De-Filipinization:** Noted that if summary administrative declarations are allowed on informal evidence, it could be weaponized by the executive branch to target and deport political figures or voters' choices.
 - **Chief Justice Fernan (Dissenting):** Agreed that the summary review fell short of traditional due process. Summary high-court review cannot substitute for a full trial with rigid rules of evidence and cross-examination.
 - **Justice Cortes (Dissenting):** Observed that the evidence relied upon by the majority consisted of unauthenticated photocopies of the Portuguese passport and Hong Kong corporate documents, which lacked proper authentication by a Philippine Consul and were legally insufficient to strip citizenship.
-

♥ RECITATION CAPSULE (60–90 Seconds)

"In *In re Willie Yu*, a naturalized Filipino citizen challenged his administrative detention and summary deportation by the CID under Commissioner Miriam Defensor-Santiago. Yu, originally Portuguese, was naturalized in 1978. However, in 1980, he declared his nationality as Portuguese in Hong Kong corporate registries, and in 1981, he actively applied for and obtained a Portuguese passport from the Portuguese Embassy in Tokyo.

The Supreme Court En Banc denied his petition, holding that Yu's deliberate actions, taken together, constituted an 'express renunciation' of his Philippine citizenship under Commonwealth Act No. 63. The Court ruled that actively applying for a foreign passport and representing oneself as a foreign national in official business documents is grossly inconsistent with the oath of allegiance. It famously declared that 'Philippine citizenship is not a commodity... to be displayed when required and suppressed when convenient.' Additionally, the Court held that while citizenship disputes normally require a full judicial trial, a trial is superfluous here because Yu admitted to these material facts in his own pleadings before the Court. Chief Justice Fernan and Justices Gutierrez and Cortes dissented, warning that bypassing a full trial and relying on unauthenticated documents to summarily strip citizenship sets a dangerous precedent violating due process."

? LIKELY RECITATION FOLLOW-UPS & CONCISE ANSWERS

1. **Q: How does this ruling reconcile with the *Go Gallano* doctrine, which states that express renunciation cannot be left to implication or inference?**
 - **A:** The Court did not abandon *Go Gallano*. It held that Yu's post-naturalization acts were not passive or implicit. The positive, deliberate acts of going to a foreign embassy to actively apply

for and renew a foreign passport, combined with signing official corporate documents declaring foreign status, constitute an explicit and distinct resumption of foreign nationality that amounts to an express renunciation under the law.

2. **Q: Why was a full judicial trial bypassed in this case if the deprivation of citizenship is a monumental constitutional issue?**
 - **A:** Because of the doctrine of judicial admission. When a petitioner explicitly admits the material, disqualifying facts (renewing the passport and signing the foreign registries) in his own written compliance before the Supreme Court, there are no longer any genuine, disputed issues of fact. Conducting a trial under these circumstances would be a superfluous exercise.
3. **Q: Does the mere use of a foreign passport automatically result in the loss of citizenship for a natural-born Filipino?**
 - **A:** No. Under subsequent jurisprudence (such as *Valles v. COMELEC* and the dissent of Justice Brion in *Maquiling*), the mere use or possession of a foreign passport by a natural-born citizen is not a grounds for the automatic loss of citizenship under CA No. 63. Natural-born citizenship is highly protected, and loss of citizenship requires an express, unequivocal renunciation under a direct proceeding, which is evaluated with a higher threshold than that of a naturalized citizen.

CHANGED-FACT HYPOTHETICAL APPLICATION

- **Scenario:** Willie Yu is a naturalized Filipino citizen. While traveling in Europe, his Philippine passport is stolen. In panic, and needing to return immediately to Manila for a medical emergency, he presents his old, expired Portuguese birth records to the Portuguese Consulate in Madrid to obtain a temporary, single-use emergency travel document to secure transit. Upon his return, the CID attempts to deport him, citing *Yu v. Defensor-Santiago*. Is he divested of his citizenship?
- **Answer: No.** Under these changed facts, Yu would not lose his citizenship. Unlike the original case, Yu did not perform a series of deliberate, post-naturalization acts showing a permanent resumption of foreign allegiance (such as actively applying for a five-year foreign passport in Tokyo or registering himself as a foreign national in corporate documents). His temporary use of an emergency travel document was a passive act of necessity to return home, which does not satisfy the high threshold of a distinct, explicit, and "express renunciation" under CA No. 63 and *Go Gallano*.

ONE-SENTENCE DOCTRINE ANCHOR

"Philippine citizenship is not a commodity of convenience to be toggled at will; hence, a naturalized citizen who actively applies for and uses a foreign passport and represents himself as a foreign national in corporate documents commits an express renunciation of his citizenship."

IDENTITY AND SYLLABUS RELEVANCE

- **Case Name:** *Gerardo Angat v. Republic of the Philippines*, G.R. No. 132244, September 14, 1999.
 - **Ponente:** Justice Jose C. Vitug (En Banc).
 - **Syllabus Relevance:** Taught under **Citizenship**, specifically the **Modes of Reacquiring Philippine Citizenship** and the **Jurisdiction over Repatriation**. It draws a sharp line between administrative and judicial processes, establishing that courts (specifically Regional Trial Courts) completely lack jurisdiction to hear or grant petitions for repatriation under Republic Act No. 8171.
-

CHRONOLOGICAL MATERIAL FACTS

- **1954:** Petitioner Gerardo Angat is born in Tondo, Manila, as a natural-born citizen of the Philippines.
 - **Post-Birth:** Angat subsequently naturalizes as a citizen of the United States of America, thereby losing his Philippine citizenship.
 - **1991:** Angat returns to the Philippines.
 - **October 23, 1995: Republic Act No. 8171** lapses into law, providing for the repatriation of Filipino women who lost their citizenship by marriage to aliens and natural-born Filipinos who lost their citizenship on account of political or economic necessity. The law fails to explicitly name the specific implementing agency in its text.
 - **March 11, 1996:** Angat files a petition with the Regional Trial Court (RTC) of Marikina City (Branch 272) to regain his Philippine citizenship under Commonwealth Act No. 63, R.A. No. 965, and R.A. No. 2630.
 - **June 13, 1996:** Angat asks the RTC to allow him to take his Oath of Allegiance specifically under the newly lapsed R.A. No. 8171 .
 - **July 12, 1996:** The RTC denies Angat's motion .
 - **August 22, 1996:** President Fidel V. Ramos issues **Administrative Order No. 285 (AO 285)**, formally designating the **Special Committee on Naturalization** as the implementing agency to process applications under R.A. No. 8171.
 - **September 20, 1996:** Upon Angat's motion for reconsideration, the RTC reverses itself, sets aside the July 12 order, and permits Angat to take his oath under R.A. No. 8171.
 - **October 3, 1996:** Angat takes his Oath of Allegiance before the RTC Presiding Judge.
 - **October 4, 1996:** The RTC issues an order declaring Angat fully repatriated and ordering the Bureau of Immigration to cancel his Alien Certificate of Registration.
-

PROCEDURAL HISTORY

- **March 19, 1997:** The Office of the Solicitor General (OSG) files a Manifestation and Motion (acting as a motion for reconsideration) with the RTC, arguing that the court lacked jurisdiction over the case.
 - **September 22, 1997:** The RTC rules in favor of the OSG, setting aside its own prior orders of September 20, 1996, and October 4, 1996, and **dismissing the petition for lack of jurisdiction.**
 - **December 29, 1997:** The RTC denies Angat's motion for reconsideration.
 - **1998:** Angat appeals the dismissal directly to the Supreme Court via a Petition for Review on Certiorari under Rule 45.
-

♥ PARTIES' MATERIAL ARGUMENTS

- **Petitioner Gerardo Angat:**
 - **No Retroactive Application:** His petition was filed on March 11, 1996—months before the President issued AO 285 on August 22, 1996. Therefore, AO 285 cannot retroactively apply to strip the RTC of a jurisdiction it already possessed.
 - **Vested Right:** By taking the Oath of Allegiance on October 3, 1996, and being declared repatriated by the court, he had already acquired a vested right as a restored Filipino citizen which cannot be unilaterally undone.
 - **Respondent Republic (represented by the OSG):**
 - **Exclusive Administrative Jurisdiction:** R.A. No. 8171 is implemented administratively, not judicially. The proper forum to apply for repatriation is the Special Committee on Naturalization, not the RTC.
 - **Void Orders:** Since the RTC lacked subject-matter jurisdiction from the outset, all of its orders granting repatriation and administering the oath were null and void.
-

♥ ISSUES

1. **W/N** the Regional Trial Court has the jurisdiction to hear, process, and grant petitions for repatriation under R.A. No. 8171.
 2. **W/N** the application of AO No. 285 to Angat's petition constitutes an unconstitutional retroactive application of a regulation.
-

♥ HOLDINGS

1. **NO.** The RTC **lacks jurisdiction** over petitions for repatriation under R.A. No. 8171. The exclusive forum for such applications is the administrative Special Committee on Naturalization.

2. **NO.** AO No. 285 **did not operate retroactively** to divest the court of jurisdiction. The Special Committee on Naturalization was already active and operational under prior laws when Angat filed his petition; AO No. 285 was merely a confirmatory executive order.
-

CONTROLLING REASONING

- **The Origin of Repatriation Jurisdiction:** Under Section 1 of Presidential Decree (P.D.) No. 725, applications for repatriation are filed with the Special Committee on Naturalization (chaired by the Solicitor General, with the Undersecretary of Foreign Affairs and the Director-General of NICA as members).
 - **The Committee Was Active When the Case Was Filed:** Although the Committee was temporarily deactivated under President Corazon Aquino in 1987, it was never legally abolished, and it was formally **reactivated on June 8, 1995** (as held in *Frivaldo v. COMELEC*). Because the Committee was already in place on June 8, 1995, it was fully operational when Angat filed his petition on March 11, 1996.
 - **AO 285 was Merely Confirmatory:** R.A. No. 8171 did not explicitly designate its implementing agency. AO No. 285 was issued on August 22, 1996, simply to confirm and designate the pre-existing Special Committee on Naturalization as the processing body for R.A. No. 8171. It did not create a new jurisdiction or retroactively take it away from the courts.
 - **The Consequence of Lack of Jurisdiction:** Because the RTC had no jurisdiction over the subject matter, the trial court's order of October 4, 1996, declaring Angat repatriated was **null and void**. A void order never acquires finality and can never be a source of any legal right, including citizenship.
 - **Inapplicability of R.A. Nos. 965 and 2630:** R.A. No. 965 and R.A. No. 2630 only apply to Filipinos who lost citizenship by serving in the armed forces of the United States or an allied country—a factual circumstance Angat never alleged. Even under those military-service statutes, no court petition is required; the applicant merely takes an oath of allegiance and registers it with the local civil registry.
-

DOCTRINE, TESTS, AND LIMITS

- **The Jurisdiction Rule for Repatriation:** Under R.A. No. 8171, repatriation is strictly an **administrative process** handled by the Special Committee on Naturalization, not a judicial proceeding.
 - **The Void Judgment Doctrine:** A court order issued without subject-matter jurisdiction is void *ab initio*, can be collaterally or directly attacked at any time (such as through an OSG manifestation), and can never create vested rights.
-

DISPOSITION

 **WHEREFORE**, the petition for review is **DENIED**, and the Order, dated 22 September 199, issued by the court a quo, dismissing the petition of petitioner in Civil Case No. N-96-03-MK for want of jurisdiction, is **AFFIRMED**.

OBITER DICTA & NOTABLE PHRASES

- On the Nature of R.A. No. 2630 & 965:

 *"Parenthetically, under these statutes, the person desiring to re-acquire Philippine citizenship would not even be required to file a petition in court, and all that he had to do was to take an oath of allegiance... and to register that fact with the civil registry."*

RECITATION CAPSULE (60–90 Seconds)

"In *Angat v. Republic*, Gerardo Angat, a natural-born Filipino who became a naturalized U.S. citizen, sought to reacquire his citizenship. In March 1996, he filed a petition before the Marikina RTC. The RTC eventually granted his petition under R.A. No. 8171, administered his oath, and declared him repatriated. Later, the OSG moved to dismiss the case, arguing the RTC had no jurisdiction because repatriation under R.A. No. 8171 must be filed with the Special Committee on Naturalization, as designated by Administrative Order No. 285.

The Supreme Court affirmed the dismissal of the petition for lack of jurisdiction. The Court held that R.A. No. 8171 is an administrative process. Under P.D. 725, the Special Committee on Naturalization has exclusive jurisdiction over repatriation. Although the petitioner argued that AO 285 was issued after he filed his court case, the Court explained that the Committee had already been reactivated in June 1995. Thus, the Committee was fully operational when Angat filed his petition, and AO 285 was merely a confirmatory executive act. Because the RTC lacked subject-matter jurisdiction, its order declaring him a citizen was null and void and could not be a source of any vested rights."

LIKELY RECITATION FOLLOW-UPS & CONCISE ANSWERS

1. **Q: R.A. No. 8171 did not explicitly mention the Special Committee on Naturalization. Why was this the only proper forum?**

- **A:** Because under P.D. No. 725 (which amended Commonwealth Act No. 63), the legislature had already designated the Special Committee on Naturalization as the exclusive administrative body to process all applications for repatriation. R.A. No. 8171 merely expanded the classes of persons eligible for repatriation, but did not alter this pre-existing procedural framework.
 - 2. **Q: Does this ruling mean the RTC has no jurisdiction over any citizenship reacquisition cases?**
 - **A:** No. Under CA No. 63, a former Filipino may also reacquire citizenship through **judicial naturalization** under the Revised Naturalization Law (CA No. 473). The RTC has full jurisdiction over judicial naturalization proceedings, but it completely lacks jurisdiction over **repatriation** under R.A. No. 8171, which is purely administrative.
 - 3. **Q: If a person lost their citizenship by enlisting in the U.S. Armed Forces, do they have to go through the Special Committee on Naturalization to repatriate?**
 - **A:** No. Under R.A. No. 2630, a person who lost citizenship due to U.S. military service can reacquire it simply by taking an oath of allegiance and registering it directly with the Local Civil Registry where they reside, bypassing both the courts and the Special Committee.
-

CHANGED-FACT HYPOTHETICAL APPLICATION

- **Scenario:** Gerardo Angat lost his Philippine citizenship when he enlisted in the United States Marine Corps in 1990 and naturalized as an American citizen. He returns to Marikina in 1996 and files a petition with the RTC to be declared a citizen under R.A. No. 2630. The OSG moves to dismiss, citing *Angat v. Republic*, claiming only the Special Committee on Naturalization can process his reacquisition. Is the petition dismissible for lack of jurisdiction?
 - **Answer: No.** While the court petition itself is technically unnecessary, the case is not dismissed for lack of jurisdiction under the R.A. 8171 rule. Under R.A. No. 2630, those who lost citizenship through U.S. military service do not need to go through the Special Committee on Naturalization. Since his loss of citizenship was military-connected, his repatriation is completed *ipso jure* by simply taking the oath and registering it with the local civil registrar, without the need for any administrative committee approval.
-

ONE-SENTENCE DOCTRINE ANCHOR

"Repatriation under R.A. No. 8171 is an administrative process under the exclusive jurisdiction of the Special Committee on Naturalization, rendering any judicial order by an RTC attempting to grant repatriation null and void for want of subject-matter jurisdiction."

IDENTITY AND SYLLABUS RELEVANCE

- **Case Name:** *Antonio Bengson III v. House of Representatives Electoral Tribunal (HRET) and Teodoro C. Cruz*, G.R. No. 142840, May 7, 2001.
 - **Ponente:** Justice Bernardo P. Kapunan (En Banc).
 - **Syllabus Relevance:** Taught under the **Legislative Department** (Qualifications of Members of the House of Representatives under Article VI, Section 6), **Citizenship** (The Definition of Natural-born Citizens under Article IV, Section 2), **Loss and Reacquisition of Citizenship** (repatriation under Republic Act No. 2630 vs. naturalization), and the **Scope of Judicial Review** over Electoral Tribunals. It is the leading case holding that repatriation restores a citizen to their original citizenship status—meaning a former natural-born citizen returns to their natural-born status upon repatriation.
-

CHRONOLOGICAL MATERIAL FACTS

- **April 27, 1960:** Teodoro C. Cruz is born in San Clemente, Tarlac, to Filipino parents. Under the 1935 Constitution, he is a natural-born citizen of the Philippines.
 - **November 5, 1985:** Cruz enlists in the United States Marine Corps. Without the consent of the Republic of the Philippines, he takes an oath of allegiance to the United States.
 - **Under Commonwealth Act No. 63, Section 1(4),** Cruz loses his Philippine citizenship by rendering service to and accepting a commission in the armed forces of a foreign country.
 - **June 5, 1990:** Cruz is naturalized as a U.S. citizen in connection with his service in the U.S. Marine Corps.
 - **October 27, 1993:** Cruz is honorably discharged from the U.S. Marine Corps and returns to the Philippines.
 - **March 17, 1994:** Cruz reacquires his Philippine citizenship by **repatriation under Republic Act No. 2630**. He takes his Oath of Allegiance and registers the same with the Local Civil Registry of Mangatarem, Pangasinan. He also executes an Affidavit of Reacquisition.
 - **April 11, 1994:** The Bureau of Immigration cancels Cruz's Alien Certificate of Registration (ACR) and Immigration Certificate of Residence (ICR), issuing him a Filipino Identification Certificate.
 - **May 11, 1998:** Cruz runs for and is elected as the Representative of the Second District of Pangasinan, defeating the incumbent, Antonio Bengson III, by a margin of 26,671 votes.
-

PROCEDURAL HISTORY

- **Post-Election:** Petitioner Antonio Bengson III files a petition for *Quo Warranto Ad Cautelam* before the HRET, asserting that Cruz is ineligible to hold office because he is not a "natural-born" citizen of the Philippines as required by Article VI, Section 6 of the 1987 Constitution.

- **March 2, 2000:** The HRET renders a decision **dismissing the petition** and declaring Cruz the duly elected Representative, holding that repatriation restored his status as a natural-born citizen.
 - **April 27, 2000:** The HRET denies Bengson's Motion for Reconsideration.
 - **2000:** Bengson files a Petition for Certiorari (under Rule 65) before the Supreme Court, alleging that the HRET committed grave abuse of discretion.
-

♥ PARTIES' MATERIAL ARGUMENTS

- **Petitioner Antonio Bengson III:**
 - **Interrupted Citizenship:** To be "natural-born" under Section 2, Article IV of the Constitution, citizenship must be possessed "**from birth**" and must be continuous, constant, and uninterrupted.
 - **Performance of an Act:** Since Cruz had to perform positive acts—taking an Oath of Allegiance and registering it—to reacquire his citizenship, he failed the constitutional test of acquiring citizenship "without having to perform any act to acquire or perfect" it.
 - **Permanent Loss:** Once natural-born citizenship is lost and an individual becomes an alien, they can never regain "natural-born" status; they can only be reacquired as naturalized citizens.
 - **Private Respondent Teodoro C. Cruz & HRET:**
 - **Restoration of Original Status:** Repatriation is a recovery of original nationality. Since Cruz was natural-born prior to losing his citizenship, repatriation restored him to that exact same status.
 - **Only Two Classes of Citizens:** The 1987 Constitution recognizes only two classes of citizens: natural-born and naturalized. Since Cruz did not undergo naturalization proceedings to regain his citizenship, he is legally a natural-born citizen.
-

♥ ISSUE

- **W/N** a former natural-born Filipino citizen who lost his citizenship by enlisting in a foreign military can regain their **natural-born status** upon reacquiring Philippine citizenship through repatriation under Republic Act No. 2630.
-

♥ HOLDING

- **YES.** A former natural-born Filipino citizen who reacquires citizenship through repatriation under R.A. No. 2630 is **restored to his original status as a natural-born Filipino citizen.**
-

♥ CONTROLLING REASONING

- **Only Two Constitutional Classes of Citizens:** Under the 1987 Constitution, there are only two categories of citizens: **natural-born** and **naturalized**. There is no third "repatriated" category. A citizen who did not have to undergo the legal process of naturalization to obtain citizenship is necessarily a natural-born Filipino.
 - **The Definition of Repatriation vs. Naturalization:** Repatriation is the recovery or resumption of one's original nationality. Unlike naturalization (which is a tedious, highly screened process for aliens acquiring citizenship for the first time), repatriation simply requires taking an oath of allegiance and registering it.
 - **The "Act" in Reacquisition is Not "Perfecting" Citizenship:** The petitioner's argument that taking an oath is an "act to perfect citizenship" is incorrect. The constitutional phrase "without having to perform any act to acquire or perfect" refers to acts required of a *newborn child* to secure citizenship at birth (such as electing citizenship). It does not bar a former citizen from performing a formal, curative act to reclaim their pre-existing, native status.
 - **Grave Abuse of Discretion Limit:** The HRET is the "sole judge" of congressional qualification contests. Since the HRET's legal interpretation was fully grounded in constitutional principles and text, there was no capricious, whimsical, or arbitrary exercise of power to justify the Supreme Court overriding its decision.
-

♥ DOCTRINE, TESTS, AND LIMITS

- **The Repatriation Restoration Doctrine:** Repatriation results in the recovery of the original nationality. A naturalized citizen who lost their citizenship is restored as a naturalized citizen; a natural-born citizen who lost their citizenship is restored to their **former status as a natural-born Filipino**.
 - **The Binary Citizenship Rule:** There are only two legal classes of citizenship under the 1987 Charter—natural-born and naturalized. Anyone who reacquires citizenship without undergoing judicial or administrative naturalization is perforce natural-born.
-

♥ DISPOSITION

 **WHEREFORE**, the petition for certiorari is **DENIED**. The decision of public respondent House of Representatives Electoral Tribunal is **AFFIRMED**.

♥ SEPARATE & DISSENTING OPINIONS

- **Justice Sandoval-Gutierrez (Dissenting):**

- Argued that the phrase "**from birth**" in Article IV, Section 2 requires citizenship to start at birth and remain continuous and uninterrupted.
 - Because Cruz voluntarily naturalized as an American, he severed his relationship with the Republic. His reacquisition of citizenship in 1994 required multiple positive, legal acts (oath, registration, renunciation), which legally took him outside the strict definition of a natural-born citizen.
 -  *"The stringent requirement of the Constitution is so placed as to insure that only Filipino citizens with an absolute and permanent degree of allegiance and loyalty shall be eligible for membership in Congress..."*
 - **Justices Vitug & Melo (Dissenting):** Maintained that to be natural-born, one must not have to perform any process, judicial or administrative, to enable reacquisition. Repatriation requires a formal, positive act of rejecting the foreign state, meaning it cannot retroactively restore a "natural-born" status that was voluntarily cast away.
-

RECITATION CAPSULE (60–90 Seconds)

"In *Bengson v. HRET*, Teodoro Cruz, a natural-born Filipino, lost his citizenship in 1985 by enlisting in the U.S. Marine Corps and subsequently naturalizing as an American. In 1994, he repatriated under R.A. No. 2630 by taking an oath of allegiance and registering it. He ran for Congress in 1998 and won. His opponent, Antonio Bengson III, challenged his qualifications, claiming that because Cruz had to perform 'acts' to reacquire his citizenship, he was no longer 'natural-born.'

The Supreme Court En Banc dismissed the petition and upheld Cruz's eligibility. The Court ruled that repatriation is the recovery of one's original nationality. It does not create a new citizenship but restores the citizen's prior status. Therefore, if a person was natural-born before losing their citizenship, repatriation restores them to their original status as a natural-born citizen. Because there are only two classes of citizens under the Constitution—natural-born and naturalized—and since Cruz did not undergo naturalization to regain his citizenship, he remains a natural-born Filipino."

LIKELY RECITATION FOLLOW-UPS & CONCISE ANSWERS

1. **Q:** How does the Court reconcile the "without performing any act" requirement of Section 2, Article IV with the fact that a repatriated person must take an oath and register it?
 - **A:** The Court clarified that the "no act" requirement applies to the *acquisition* of citizenship at birth, meaning the child does not need to perform any legal process (like election) to perfect their status. It does not apply to curative reacquisition procedures (like repatriation) which merely recover a status already fully acquired at birth.

2. **Q: What is the practical difference between naturalization and repatriation as modes of acquiring citizenship?**
- **A:** Naturalization is a process where an alien acquires a new citizenship for the first time, requiring judicial or administrative screening of qualifications and character. Repatriation is a fast-tracked recovery of one's *original* citizenship, which is accomplished simply by taking an oath of allegiance and registering it with the local civil registry.
3. **Q: Does this ruling apply to a naturalized citizen who lost their citizenship and later repatriated?**
- **A:** Yes. Under the repatriation doctrine, the individual is restored to their *original* status. Thus, a former naturalized citizen who repatriates will be restored to their prior status as a naturalized Filipino, not a natural-born one.
-

CHANGED-FACT HYPOTHETICAL APPLICATION

- **Scenario:** Teodoro Cruz was born in Manila in 1960. His father was Chinese and his mother was a natural-born Filipina. Under the 1935 Constitution, he was born a Chinese citizen, but upon turning 21 in 1981, he successfully elected Philippine citizenship. In 1985, he enlisted in the U.S. Marines and lost his citizenship. In 1994, he repatriated under R.A. No. 2630. Can he run for Congress as a natural-born citizen?
 - **Answer: Yes.** Under the 1987 Constitution (Article IV, Section 2), individuals born of Filipino mothers before January 17, 1973, who elected Philippine citizenship upon reaching the age of majority are **explicitly deemed natural-born citizens**. Under the *Bengson* doctrine, repatriation restores a person to their original status. Since his election of citizenship made him legally natural-born prior to his enlistment, his subsequent repatriation in 1994 restored him to that same natural-born status, making him qualified to run for the House of Representatives.
-

ONE-SENTENCE DOCTRINE ANCHOR

"Repatriation is a recovery of one's original nationality that fully restores a former natural-born citizen to their status as a natural-born Filipino citizen without undergoing naturalization."

Identity and Syllabus Relevance

- **Case Name:** *Hubert Tan Co and Arlene Tan Co v. The Civil Register of Manila* (G.R. No. 138496, February 23, 2004; Penned by J. Callejo, Sr.).
 - **Syllabus Relevance:** This case clarifies the relationship between different naturalization laws (*pari materia* construction) and explains how derivative citizenship of minor children is established and recorded. Specifically, it determines whether minor children of a father naturalized under Letter of Instruction (LOI) No. 270 can claim derivative Philippine citizenship under Section 15 of Commonwealth Act (CA) No. 473, and confirms that **Rule 108** is the proper, adversarial procedural vehicle to record such substantial changes in status and nationality.
-

Chronological Material Facts

1. **March 23, 1974:** Petitioner Hubert Tan Co is born in the Philippines to Co Boon Peng and Lourdes Vihong K. Tan, who are both Chinese citizens. Consequently, Hubert's birth certificate records his father's citizenship as "Chinese".
 2. **May 19, 1975:** Petitioner Arlene Tan Co is born in the Philippines. Her birth certificate also records her father's citizenship as "Chinese".
 3. **February 15, 1977:** The petitioners' father, Co Boon Peng, is granted Philippine citizenship under Presidential Decree (P.D.) No. 1055, following an administrative naturalization application filed with the Special Committee on Naturalization under LOI No. 270. He takes his oath of allegiance on this date. At this time, Hubert (nearly 3 years old) and Arlene (nearly 2 years old) are minors.
 4. **Post-1977:** Hubert and Arlene grow up in the Philippines, finish college, and earn professional degrees in architecture and accountancy in Philippine schools.
-

Procedural History

- **Trial Court Filing (August 27, 1998):** Petitioners file a petition under Rule 108 of the Rules of Court in the Regional Trial Court (RTC) of Manila, Branch 26 (Sp. Proc. Case No. 98-90470). They pray for the correction of entries in their birth certificates, changing their father's recorded citizenship from "Chinese" to "Filipino".
- **Outright Dismissal (September 23, 1998):** The RTC (presided by Judge Guillermo L. Loja, Sr.) dismisses the petition outright, ruling it insufficient. The RTC reasons that LOI No. 270 and P.D. No. 1055, under which their father was naturalized, do not contain a provision granting derivative citizenship to minor children, unlike Section 15 of CA No. 473.
- **Motion for Reconsideration (April 27, 1999):** The RTC denies the petitioners' motion for reconsideration, stating that the *pari materia* rule does not apply because legislative grants must be strictly construed against the grantee.

- **Supreme Court Appeal:** Petitioners elevate the case directly to the Supreme Court via a Petition for Review on Certiorari under Rule 45.
-

Parties' Material Arguments

- **Petitioners' Arguments:**
 - **Pari Materia Integration:** LOI No. 270 and CA No. 473 govern the exact same subject matter—the naturalization of qualified aliens permanently residing in the Philippines. Thus, they must be construed together.
 - **Derivative Citizenship:** Because the laws are in *pari materia*, the beneficial provisions of Section 15 of CA No. 473 (which deems minor children born in the Philippines of naturalized citizens as Filipino citizens) are incorporated into LOI No. 270.
 - **Intent of the Drafter:** Paragraph 4-A of LOI No. 270 extends the option to adopt Filipino names to wives and minor children, proving that President Marcos did not intend to deprive minor children of the beneficial derivative citizenship effects of their father's naturalization.
 - **Respondent's (Solicitor General's) Arguments:**
 - **Separate and Distinct Laws:** CA No. 473 (judicial naturalization) and LOI No. 270 (presidential/administrative naturalization) are separate, distinct, and not in *pari materia*. LOI No. 270 does not automatically naturalize the children of a naturalized father.
 - **Improper Procedural Vehicle:** Rule 108 is only for correcting facts existing *at or before* the time of birth. Since the father's naturalization occurred in 1977 (years after petitioners' births), Rule 108 cannot be used.
-

Issues

1. **The Substantive Issue:** Whether CA No. 473 and LOI No. 270 are in *pari materia*, such that Section 15 of CA No. 473 applies to the minor children of aliens naturalized under LOI No. 270 / P.D. No. 1055, granting them derivative Philippine citizenship.
 2. **The Procedural Issue:** Whether a petition under Rule 108 of the Rules of Court is the appropriate procedural vehicle to record and annotate the change in the petitioners' citizenship status resulting from their father's post-birth naturalization.
-

Holdings

1. **YES.** CA No. 473 and LOI No. 270 are in *pari materia* and must be construed together. Consequently, the derivative citizenship benefits under Section 15 of CA No. 473 extend to the minor children of individuals naturalized under LOI No. 270 / P.D. No. 1055.

2. **YES.** A petition under Rule 108 of the Rules of Court is the proper procedural mechanism to record and annotate changes in civil status and citizenship, even if the underlying event occurred after the petitioners' births.
-

Controlling Reasoning

1. *Pari Materia* & Derivative Citizenship

- **The Rule of *Pari Materia*:** All statutes relating to the same subject matter or sharing the same general purpose should be read, harmonized, and construed together as one law.
- **Harmonizing CA 473 and LOI 270:** Both statutes govern the naturalization of qualified aliens residing in the Philippines to integrate them into the national fabric [58/14]. LOI No. 270 did not expressly repeal Section 15 of CA No. 473. Therefore, Section 15's derivative citizenship provision is deemed incorporated into LOI No. 270.
- **The Resulting Status:** Because the petitioners were born in the Philippines and were still minors (ages 2 and 3) when their father took his oath of allegiance on February 15, 1977, they became Filipino citizens through this derivative mode.
- **Evidentiary Requirements:** However, simple presentation of the father's naturalization certificate is insufficient. In the reinstated trial court proceedings, petitioners are mandated to prove: (a) their filiation as legitimate children of Co Boon Peng, (b) their birth in the Philippines, and (c) their minority at the time of their father's naturalization.

2. Scope of Rule 108

- **Annotation of Post-Birth Events:** Article 407 of the Civil Code mandates that acts, events, and judicial decrees concerning "naturalization" and "loss or recovery of citizenship" must be recorded in the Civil Register.
 - **Mechanism of Change:** The Solicitor General erred in claiming Rule 108 only applies to facts existing at birth. For events occurring *after* birth, the physical entries are not altered; instead, the judicial order is **annotated** on the birth certificates and forms part of the local civil register.
 - **Requirement of Adversarial Proceedings:** When a petitioner seeks to correct substantial entries—such as status, nationality, or parental citizenship—the proceeding under Rule 108 is **adversarial**, not summary. This requires impleading the local civil registrar and all parties with affected interests, as well as satisfying notice and publication requirements. The RTC's outright dismissal without conducting an adversarial trial was a patent procedural error.
-

Doctrine, Tests, Elements, Exceptions, and Limits

- **The *Pari Materia* Test:** Statutes are in *pari materia* if they relate to the same person, thing, or subject matter, or have the same purpose or objective. They must be interpreted together, assuming the legislature intended to create a consistent and uniform system of law.

- **The Three-Part Evidentiary Test for Derivative Citizenship via Minor Children (Section 15, CA 473):**
 - The child must have been born in the Philippines.
 - The child must be the legitimate offspring of the naturalized individual.
 - The child must be a minor at the time of the parent's naturalization.
 - **The Rule 108 Procedure Boundary:**
 - **Summary Proceedings:** Reserved for clerical, typographical, or innocuous errors.
 - **Adversarial Proceedings:** Mandatory for substantial changes affecting civil status, paternity, filiation, or nationality/citizenship.
-

Disposition

The Supreme Court **GRANTED** the petition. The Orders of the Regional Trial Court of Manila, Branch 26, were **SET ASIDE** and **REVERSED**. The trial court was **DIRECTED** to reinstate the petition in Special Proceedings No. 98-90470 and **ORDERED** to proceed with an adversarial trial under Rule 108.

Recitation Capsule

"May it please the Court, the case of *Co v. Civil Register of Manila* establishes that Commonwealth Act No. 473 and Letter of Instruction No. 270 are in *pari materia* because they share the identical purpose of naturalizing qualified aliens to integrate them into the nation.

Consequently, Section 15 of CA 473 is deemed incorporated into LOI 270, meaning that minor children born in the Philippines automatically acquire derivative Philippine citizenship upon the naturalization of their father under LOI 270. Procedurally, the Court ruled that substantial entries—such as status, parentage, and nationality—may be validly updated through a Rule 108 proceeding. Because these changes are substantial, they cannot be resolved summarily; the trial court must conduct a full adversarial proceeding, implead the proper parties, comply with notice and publication, and annotate the final judicial decree on the petitioners' birth certificates rather than physically erasing the original entry."

Likely Follow-Ups

1. **Q: Does the father's naturalization automatically confer citizenship on a minor child who was NOT born in the Philippines?**

- A: No. Under Section 15 of CA 473, different rules apply depending on the child's place of birth. The automatic acquisition of derivative citizenship under the specific clause invoked in Co strictly applies to minor children *born in the Philippines*. Minor children born outside the Philippines must meet other statutory requirements (such as residing in the Philippines at the time of naturalization or dwelling here subsequently).
 - 2. **Q: Can the Local Civil Registrar administratively change the father's citizenship in the children's birth certificates upon the presentation of the father's Certificate of Naturalization?**
 - A: No. Article 412 of the Civil Code explicitly bars any change or correction of an entry in the civil register without a judicial order. Because citizenship is a substantial entry, it requires a full, judicial adversarial proceeding under Rule 108, not a unilateral administrative adjustment.
 - 3. **Q: If the petitioners were already 22 years old when their father took his oath of allegiance, would they have acquired derivative citizenship?**
 - A: No. The benefit of Section 15 of CA 473 is strictly limited to **minor** children. If they were already of major age (21 years old or above under the old law, or 18 and above under current law) when the father's naturalization was perfected by his oath of allegiance, they could not claim derivative citizenship and would have to undergo their own independent naturalization process.
-

Changed-Fact Application

- **Hypothetical:** Suppose Hubert and Arlene were born in China and brought to the Philippines as infants. Their father is naturalized under LOI No. 270 in 1977 while they are still minors, and they continue to reside in the Philippines. Can they obtain an annotation of citizenship under Rule 108 using the exact same clause?
 - **Answer: No.** Under the express terms of Section 15 of CA 473, the automatic derivative citizenship clause is specifically for minor children "who have been born in the Philippines". If born abroad, they fall under a different clause of Section 15, which requires them to prove they were residing in the Philippines at the time of the father's naturalization or that they registered as residents. Thus, their petition would fail if they merely relied on the "born in the Philippines" clause, and they would have to satisfy and prove the distinct residency elements required for foreign-born minor children.
-

One-Sentence Doctrine Anchor

LOI No. 270 and CA No. 473 are in *pari materia*; thus, Section 15 of CA No. 473 is integrated into LOI No. 270, allowing minor children born in the Philippines to acquire derivative citizenship upon their father's naturalization, which must be judicially annotated through an adversarial Rule 108 proceeding.

Identity and Syllabus Relevance

- **Case Name:** *Republic of the Philippines v. Sagun* (G.R. No. 185572, February 7, 2012).
 - **Syllabus Relevance:** This case is a cornerstone authority under the topic of **Citizenship**, specifically the **Election of Philippine Citizenship** by children born of Filipino mothers and foreign fathers under the **1935 Constitution**. It strictly defines the mandatory statutory formalities under **Commonwealth Act (CA) No. 625** and reinforces the strict timeline ("reasonable time") within which a child must elect her citizenship upon reaching the age of majority.
-

Chronological Material Facts

1. **Parentage & Birth:** Respondent Sagun was born in the Philippines to a Chinese father and a Filipino mother. Her parents were legally married, making her a legitimate child. At the time of her birth, the 1935 Constitution was the governing fundamental law.
 2. **Constitutional Default:** Because she was a legitimate child, her citizenship automatically followed her father's (Chinese) under the prevailing laws, unless she elected Philippine citizenship upon reaching the age of majority under Article IV, Section 1(4) of the 1935 Constitution.
 3. **Attaining Majority & Omission:** Upon reaching the age of majority (21 years old under the old Civil Code), Sagun **did not elect Philippine citizenship**. She failed to execute the required statutory formalities under CA No. 625. Instead, she merely executed an unregistered Oath of Allegiance.
 4. **Informal Actions:** Throughout her life, Sagun resided continuously in the Philippines and performed positive acts indicating a choice of nationality, including exercising the right of suffrage (voting).
 5. **Passport Denial:** Years later—specifically **12 years after attaining her majority**—Sagun applied for a Philippine passport. Her application was denied by the government because she was still registered as a Chinese national and had never validly elected Philippine citizenship.
-

Procedural History

- **Trial Court Action:** Following the passport denial, Sagun filed a petition before the Regional Trial Court (RTC) seeking a judicial declaration of her election of Philippine citizenship. The RTC apparently ruled in her favor.
- **Supreme Court Appeal:** The Republic of the Philippines, represented by the Office of the Solicitor General (OSG), elevated the case directly to the Supreme Court via a Petition for Review on Certiorari under Rule 45. The OSG argued that the RTC erred because Sagun failed to comply with the mandatory provisions of CA No. 625.

Parties' Material Arguments

- **Petitioner's (Republic's) Arguments:**
 - **Strict Compliance with CA 625:** Naturalization and election laws are imbued with high public interest and must be rigidly enforced. Sagun failed to perform the three statutory formalities required by CA No. 625.
 - **No Election via Positive Acts:** Informal "positive acts" such as voting or continuous residence cannot substitute for the mandatory written, registered election.
 - **Out of Time:** The election was not made within a "reasonable time" (established by jurisprudence as 3 years from attaining the age of majority), having been attempted 12 years too late.
- **Respondent's (Sagun's) Arguments:**
 - **De Facto Citizenship:** She had lived as a Filipino her entire life, was born to a Filipino mother, and had consistently voted in local and national elections.
 - **Substantial Compliance:** Her execution of an Oath of Allegiance, although unregistered, constituted sufficient compliance to show her manifest choice of Philippine citizenship.

Issues

1. Whether Sagun validly elected Philippine citizenship under Article IV, Section 1(4) of the 1935 Constitution and Commonwealth Act No. 625.
2. Whether informal "positive acts," such as voting or registration as a voter, can serve as a valid substitute for the formal statutory requirements of election under CA No. 625.
3. Whether Sagun's attempt to elect citizenship was executed within a "reasonable time" after attaining the age of majority.

Holdings

1. **NO.** Sagun did not validly elect Philippine citizenship because she completely failed to satisfy the mandatory formalities of CA No. 625.
 2. **NO.** Election of Philippine citizenship cannot be done through "positive acts" or implied conduct; the statutory procedure is exclusive and mandatory.
 3. **NO.** The election was not made within a "reasonable time". A delay of 12 years after reaching the age of majority exceeds the jurisprudential limit of three (3) years.
-

♥ Controlling Reasoning

1. Mandatory Formalities under CA 625

- **Exclusivity of the Statute:** Under the 1935 Constitution, a child of a Filipino mother and an alien father does not automatically become a Filipino citizen at birth. The acquisition of citizenship is inchoate and must be perfected by a formal election.
- **The Three Formalities:** CA No. 625 explicitly outlines the exclusive procedure to perfect this election: (1) a statement of election under oath, (2) an Oath of Allegiance to the Constitution and Government, and (3) registration of both with the nearest civil registry. Sagun's execution of an unregistered Oath of Allegiance, without a statement of election and without registration, is a fatal statutory omission.

2. Rejection of the "Positive Acts" Theory

- **No Implied Election:** The Court clarified that the election of citizenship is an active, formal legal process, not an informal or de facto status.
- **The Voting Limit:** While the *Mallare* doctrine allows the exercise of suffrage to serve as a formal manifestation of choice, it does not erase the requirement to comply with the statutory steps under CA No. 625. The state cannot allow positive acts like voting to bypass the mandatory registration of citizenship, which is designed to notify the State and the public of an individual's political allegiance.

3. Defining "Reasonable Time"

- **The Jurisprudential Rule:** Neither the Constitution nor CA No. 625 sets an explicit deadline. However, long-standing Philippine jurisprudence (referencing the Civil Code and the landmark *Cueco* case) has firmly established that "reasonable time" means **within three (3) years** of attaining the age of majority.
- **No Indefinite Extensions:** While this 3-year rule is not completely inflexible, its extension cannot be indefinite. Sagun's attempt to secure a passport and assert her citizenship occurred **12 years after** reaching her majority. In the absence of exceptional, excusable circumstances, this massive delay is legally unreasonable and bars her from electing citizenship.

■ Doctrine, Tests, Elements, Exceptions, and Limits

- **The Three-Part CA 625 Formalities Test:** To validly elect Philippine citizenship, the applicant must strictly prove:
 1. A formal, written statement of election under oath.
 2. A formal Oath of Allegiance to the Constitution and Government of the Philippines.
 3. The **actual registration** of both the statement and the oath with the nearest local civil registry.

- **The Reasonable Time Limit:** The election must be perfected within **three (3) years** of reaching the age of majority.
 - **Exceptions to the 3-Year Limit:** Leniency is only allowed if the applicant has consistently lived as a Filipino, has at least **partially accomplished the formalities** on time (e.g., timely execution of the statement and oath, but delayed registration), and has committed continuous, positive acts manifesting Filipino choice. It is never granted when there has been a total omission of the statutory steps.
-

Disposition

The Supreme Court **GRANTED** the petition of the Republic of the Philippines. The lower court's decision was **REVERSED and SET ASIDE**, and the petition of respondent Sagun was **DISMISSED**. Sagun was declared to have failed to validly elect Philippine citizenship and remains an alien (Chinese national).

Recitation Capsule

"May it please the Court, the case of *Republic v. Sagun* reiterates that electing Philippine citizenship under the 1935 Constitution is a strict, formal statutory process that cannot be bypassed by informal conduct.

Under Commonwealth Act No. 625, an eligible individual must execute a statement of election under oath, take an Oath of Allegiance, and register both with the local civil registry. The Court held that informal positive acts—such as voting—cannot substitute for these mandatory requirements. Furthermore, the election must be executed within a 'reasonable time' after reaching majority, which jurisprudence sets as three (3) years. Because the respondent did not register her oath and only attempted to assert her citizenship twelve (12) years after reaching majority, she failed to comply with the law, and her inchoate right to elect citizenship was completely lost."

Likely Follow-Ups

1. **Q: Does a child born under the 1973 or 1987 Constitution need to elect Philippine citizenship if their mother is Filipino and their father is a foreigner?**
 - **A: No.** Under the 1973 Constitution (for those born on or after January 17, 1973) and the 1987 Constitution, a child born of a Filipino mother is automatically a natural-born

citizen from birth. The requirement of election strictly applies only to those born under the 1935 Constitution.

2. **Q: If an applicant timely executes her statement of election and Oath of Allegiance within the 3-year period, but the local civil registrar fails to register them due to administrative oversight, is the election void?**
 - **A: No.** Under the doctrine in *Cabiling v. Commissioner*, registration is not the act that confers citizenship, but rather the act that confirms its existence. If the substantive acts of election were timely executed and the applicant consistently lived as a Filipino, the late registration is an excusable formal deficiency that does not void the election.
 3. **Q: Can an individual who failed to timely elect citizenship under the 1935 Constitution still acquire Philippine citizenship today?**
 - **A: Yes, through Republic Act No. 9225.** As ruled in *Prescott v. Bureau of Immigration*, if the individual has always considered himself a Filipino, his subsequent execution of an Oath of Allegiance under RA 9225 (even if decades after reaching majority) can be considered substantial compliance with the requirements of CA 625.
-

Changed-Fact Application

- **Hypothetical:** Suppose Sagun executed her statement of election and Oath of Allegiance within two years of reaching majority and submitted them to the local civil registry. However, the civil registrar misplaced the documents and failed to record them, which Sagun only discovered 12 years later when applying for a passport. Is she disqualified?
 - **Answer: No.** Applying the exception in *Cabiling v. Commissioner*, Sagun would not be disqualified. Because she performed the substantive, positive acts of election on time and the failure to register was due to a clerical error of the State, the court will allow the late registration to retroactively confirm her citizenship. Her election remains valid because she did not sleep on her rights.
-

One-Sentence Doctrine Anchor

The election of Philippine citizenship under the 1935 Constitution requires strict adherence to the statutory formalities of CA No. 625—including statement, oath, and registration—and must be executed within three years of reaching majority; informal positive acts like voting cannot cure a failure to timely register a formal election.

Identity and Syllabus Relevance

- **Case Name:** *Dennis L. Go v. Republic of the Philippines*, G.R. No. 202809, July 2, 2014.
 - **Syllabus Relevance:** This case highlights the absolute strictness of judicial naturalization proceedings under Commonwealth Act (C.A.) No. 473 (The Revised Naturalization Law) [11, 14]. It establishes that naturalization is a mere privilege of grace, not a right [14]. Consequently, any statutory omission in the petition—specifically the **failure to state all former places of residence**—is a fatal, congenital jurisdictional defect [14]. Additionally, it sets a very high bar for the qualifications of the required **vouching character witnesses**, who must be proven to be "credible persons" (reputed, honest, and upright) and act as "insurers" of the applicant's character [14].
-

Chronological Material Facts

1. **May 7, 1982:** Petitioner Dennis L. Go is born in Manila to Felix and Emma Go, who are both Chinese nationals. Dennis is registered as a Chinese national.
 2. **Prior to declared Oroquieta address:** The Go family resides at Sto. Cristo Street, Manila, where they live as neighbors with Silvino J. Ong.
 3. **Subsequent Residence:** Dennis later moves with his family to No. 1308-1310 Oroquieta Street, Sta. Cruz, Manila, which he lists as his residence "since birth" in his naturalization petition.
 4. **Education:** Dennis spends his elementary, secondary, and tertiary education in Philippine schools, where subjects on Philippine history, government, and civics are taught.
 5. **Background Investigation Friction:** During the proceedings, the National Bureau of Investigation (NBI) and the Bureau of Immigration (BOI) attempt to conduct background checks. The investigations yield negative reports because members of Go's household arrogantly refuse to cooperate with background investigators, and Go himself refuses to be interviewed by BOI agents.
 6. **Witnesses Presented:** To support his petition, Go presents:
 - Two medical professionals: Dr. Joseph Anlacan (psychiatrist) and Dr. Edward C. Tordesillas (physician).
 - Three lay witnesses: Silvino J. Ong (friend/former neighbor from Sto. Cristo), Teresita M. Go (his aunt), and Juan C. Go (his uncle, who executed an Affidavit of Support).
-

Procedural History

- **RTC Filing (October 13, 2004):** Dennis Go files a petition for judicial naturalization under C.A. No. 473 before the Regional Trial Court of Manila, Branch 45 (Naturalization Case No. 03-107591). He claims exemption from filing a Declaration of Intention because he was born and educated in the Philippines.

- **Trial & Reopening:** The OSG initially does not object, but later receives an NBI background investigation report showing uncooperative household behavior and moves to reopen the trial. The RTC admits the evidence but denies the motion to reopen.
 - **RTC Judgment (November 18, 2008):** The RTC grants Go's petition, ruling that he possesses the required qualifications and none of the disqualifications.
 - **Appeal to CA:** The OSG appeals, arguing that Go failed to prove his witnesses were credible, and that his failure to state his former residence was fatal.
 - **CA Ruling (January 18, 2012):** The Court of Appeals reverses the RTC and dismisses the petition *without prejudice*, finding that Go failed to prove his character witnesses were "credible persons".
 - **SC Appeal:** Dennis Go files a Petition for Review on Certiorari under Rule 45 before the Supreme Court.
-

Parties' Material Arguments

- **Petitioner's (Dennis Go's) Arguments:**
 - **Factual Deference:** The trial court's assessment of the witnesses' credibility should be given supreme deference because the judge observed their demeanor firsthand.
 - **Substantial Integration:** He lived in the Philippines his entire life, studied in local schools, and integrated socially with Filipinos.
 - **Procedural Finality:** The OSG cannot repeatedly seek to reopen the trial with piecemeal background reports after failing to object during the initial presentation of evidence.
 - **Respondent's (OSG's/Republic's) Arguments:**
 - **Omission of Former Residence:** Go's failure to state his former residence in Sto. Cristo Street is a fatal jurisdictional defect under Section 7 of C.A. No. 473 [14].
 - **Failure of Character Witnesses:** Go's layout of witnesses did not comply with the law, as he failed to establish that they were "credible persons" (of good standing in the community, honest, and reliable) who could act as insurers of his moral character [14].
 - **Lack of Sincere Integration:** His family's uncooperative behavior during background checks and his own refusal to be interviewed by BOI agents negate any claim of a sincere desire to embrace Filipino customs and traditions.
-

Issues

1. Whether Dennis Go's failure to state his former residence in Sto. Cristo Street in his published petition is a fatal jurisdictional defect under C.A. No. 473 [14].
2. Whether the character witnesses presented by Go qualify as "**credible persons**" within the contemplation of Section 7 of C.A. No. 473 [14].
3. Whether Go's uncooperative behavior during background investigations defeats his qualification of social integration.

♥ Holdings

1. **YES.** Go's failure to disclose his former residence is a fatal jurisdictional defect that deprives the trial court of jurisdiction [14].
 2. **NO.** Go's character witnesses do not meet the "credible persons" standard, as Go failed to present evidence demonstrating their good standing, uprightness, and trustworthiness in the community [14].
 3. **YES.** Go's uncooperative attitude toward immigration authorities and his family's refusal to be interviewed demonstrate a lack of sincere intent to identify with the Filipino people.
-

♥ Controlling Reasoning

1. The Residence Disclosure Rule

- **Strict Statutory Mandate:** Section 7 of C.A. No. 473 requires the petition to set forth the applicant's present and former places of residence [14].
- **Notice to the Public & State:** This is not a trivial technicality. It is a jurisdictional requirement because it provides the public and government investigators with notice to check the applicant's background and conduct in every locality where he has resided [14]. Sto. Cristo was Go's former residence (as revealed by his own witness, Silvino Ong, who was his neighbor there), but it was excluded from his petition [11, 14]. This created a congenital defect that cannot be cured by subsequent evidence [14].

2. The Credible Witness Standard

- **Insurer of Character:** Vouching witnesses are "insurers" of the applicant's character [11, 14]. The court must rely on their testimonies to decide if the applicant is morally fit [11, 14].
- **Standing and Specificity:** Under the *Ong v. Republic* doctrine, "credible" refers to the person, not the declaration. The petitioner has the burden to show his witnesses have high standing, integrity, and reliability in the community [11, 14]. Go offered no evidence of his witnesses' standing. Furthermore, their testimonies consisted of vague generalizations rather than specific acts showing Go's worthiness.

3. Obstruction of Background Investigations

- **Privilege of Grace:** Naturalization is a privilege of grace extended by the State [14]. An applicant must cooperate fully. The uncooperative behavior of Go's household and Go's personal refusal to undergo a BOI interview show an insincerity to embrace Filipino customs and ideals.
-

Doctrine, Tests, Elements, Exceptions, and Limits

- **The Jurisdictional Residence Test:** Under Section 7 of C.A. No. 473, a naturalization petition is void *ab initio* if it fails to state even a single former place of residence, regardless of the duration of the applicant's stay there [14].
 - **The "Credible Person" Vouching Witness Test (*Ong v. Republic*):** To qualify as a valid character witness, the applicant must affirmatively establish:
 1. The witness is a Filipino citizen.
 2. The witness possesses high standing, honesty, and integrity in the community.
 3. The witness has known the applicant intimately for the required statutory period.
 4. The witness can competently act as an "insurer" of the applicant's moral fitness [11, 14].
-

Disposition

The Supreme Court **DENIED** the petition and **AFFIRMED** the Court of Appeals' Decision dismissing Dennis L. Go's petition for naturalization **without prejudice** [14].

Recitation Capsule

"May it please the Court, the case of *Dennis Go v. Republic* underscores that judicial naturalization is a privilege of grace, not a right, and requires strict, literal compliance with C.A. No. 473 [11, 14].

The Court ruled on two critical points. First, the requirement to state all former places of residence is strictly jurisdictional. Because Dennis Go omitted his former Sto. Cristo Street address in his petition, the public was deprived of notice, rendering the entire proceeding void [14]. Second, Go failed to prove that his character witnesses were 'credible persons' [14]. Under the *Ong* doctrine, the applicant must affirmatively prove that his vouching witnesses possess high standing, honesty, and integrity in the community so they can competently act as 'insurers' of his character. Since Go presented no such proof and his family obstructed the background check, his petition was void and properly dismissed without prejudice [14]."

Likely Follow-Ups

1. **Q: Can the petitioner cure the omission of a former residence during the trial by presenting barangay clearances from the omitted address?**

- A: **No.** The omission is a congenital jurisdictional defect [14]. Because it affects the notice required to be published to the public, it cannot be cured by introducing evidence during the trial [14]. The petition must be dismissed and refiled with the correct disclosures [14].
 - 2. Q: **Does the "credible person" standard require that the witnesses be prominent figures or public officials?**
 - A: **No.** While prominence helps, the standard is "good standing, honesty, uprightness, and trustworthiness" in the community. A regular citizen can qualify, but the petitioner must present affirmative evidence of their reputation and reliability so the court can comfortably rely on their "word on its face value".
 - 3. Q: **If Go's parents were naturalized while he was a minor, would he need to undergo this judicial naturalization process?**
 - A: **No.** Under the doctrine in *Co v. Civil Register of Manila*, if his father had been naturalized while Dennis was still a minor, Dennis would have automatically acquired derivative Philippine citizenship under Section 15 of C.A. No. 473, which he could have recorded via a Rule 108 proceeding [11, 11].
-

Changed-Fact Application

- **Hypothetical:** Suppose Dennis Go fully disclosed Sto. Cristo Street as a former address in his petition, and his character witnesses were proven to be highly respected, upright barangay officials who testified to specific instances of Go's community involvement. However, during the background check, Go's sibling arrogantly refused to cooperate with BOI investigators due to a private, unrelated dispute, though Dennis himself was completely cooperative and completed his interview. Will his naturalization be granted?
 - **Answer: Yes.** In the actual case, Dennis Go *himself* refused to be interviewed, and he failed to satisfy the jurisdictional residence disclosure and character witness requirements. In this hypothetical, Dennis has satisfied the jurisdictional and witness credibility standards. The uncooperative behavior of a sibling due to a private dispute cannot be attributed to Dennis to show his personal "insincerity" or lack of desire to integrate, provided he personally demonstrated good faith and full cooperation.
-

One-Sentence Doctrine Anchor

The failure to disclose a former place of residence in a naturalization petition is a fatal jurisdictional defect under Section 7 of C.A. No. 473, and the failure to prove that vouching witnesses are "credible persons" of high standing in the community is a fatal evidentiary defect that invalidates the petition [14].

Identity and Syllabus Relevance

- **Case Name:** *Republic of the Philippines v. Go Pei Hung*, G.R. No. 212785, April 4, 2018 (Del Castillo, J.).
 - **Syllabus Relevance:** This case clarifies a critical statutory boundary in judicial naturalization under Commonwealth Act (C.A.) No. 473 (The Revised Naturalization Law). It establishes that **the exemption from filing a Declaration of Intention does not excuse the applicant from the mandatory requirement of attaching a Certificate of Arrival** to the Petition for Naturalization itself. It highlights that the Certificate of Arrival is a distinct, non-exemptible jurisdictional requirement under Section 7 of the law.
-

Chronological Material Facts

1. **1961:** Go Pei Hung is born in Hong Kong as a British subject.
 2. **1973:** He arrives in the Philippines and commences his residence at No. 2277-B Luna Street, Pasay City.
 3. **1974–1976:** He enrolls at the Philippine Pasay Chinese School and graduates from Grade VI in 1976.
 4. **1989:** He is officially issued a Certificate of Permanent Residence by the Bureau of Immigration.
 5. **December 3, 2007:** Go Pei Hung files a Petition for Naturalization seeking Philippine citizenship, alleging thirty-four (34) years of continuous residence (from 1973 to 2007).
 6. **Omissions in the Petition:** Go Pei Hung **fails to attach both** a Declaration of Intention (claiming exemption due to more than 30 years of residency) and a Certificate of Arrival to his petition.
-

Procedural History

- **Regional Trial Court (July 21, 2010):** The Regional Trial Court of Manila, Branch 16 (Naturalization Case No. 07-118391) grants Go Pei Hung's petition for naturalization.
 - **Court of Appeals Appeal:** The Republic, through the Office of the Solicitor General (OSG), appeals the RTC decision.
 - **Court of Appeals Judgment (February 28, 2014):** The CA (CA-G.R. CV No. 97542) dismisses the Republic's appeal and affirms the RTC. The CA rules that because Go Pei Hung is exempt from filing a Declaration of Intention under Section 6 of C.A. No. 473, he is also logically exempt from filing a Certificate of Arrival, which the CA characterizes as a "mere component part" of the Declaration of Intention.
 - **Supreme Court Review:** The Republic, represented by the OSG, files a Petition for Review on Certiorari under Rule 45 before the Supreme Court.
-

■ Parties' Material Arguments

- **Petitioner's (Republic's/OSG's) Arguments:**
 - **Certificate of Arrival is Mandatory:** Section 7 of C.A. No. 473 explicitly mandates that the Certificate of Arrival must be made part of the petition. Its absence is a fatal, non-curable jurisdictional defect.
 - **No Logical Exemption:** The exemption from filing a Declaration of Intention under Section 6 does not carry with it an exemption from attaching the Certificate of Arrival under Section 7.
 - **Preventing Unlawful Entry:** The Certificate of Arrival is essential to prove that the alien's entry into the country was documented, lawful, and in good faith.
 - **Other Deficiencies:** The OSG additionally argues that Go Pei Hung's annual income of ₱165,000.00 is not "lucrative" to support his wife and three minor children, and his character witnesses are not "credible persons" under the law.
 - **Respondent's (Go Pei Hung's) Arguments:**
 - **Exemption Applicability:** Since he resided in the Philippines for 34 years, he is exempt from the Declaration of Intention.
 - **Component Part Theory:** Because the Certificate of Arrival is merely a component of the Declaration of Intention, an exemption from the latter necessarily dispenses with the need for the former.
-

■ Issues

1. Whether an applicant for judicial naturalization who is exempt from filing a Declaration of Intention under Section 6 is also exempt from the requirement of attaching a Certificate of Arrival under Section 7 of C.A. No. 473.
 2. Whether the failure to attach a Certificate of Arrival is a fatal jurisdictional defect that warrants the outright dismissal of the naturalization petition.
-

♥ Holdings

1. **NO.** An exemption from filing a Declaration of Intention does **not** exempt the applicant from attaching a Certificate of Arrival to the naturalization petition. They are separate, distinct statutory requirements.
 2. **YES.** The requirement to attach the Certificate of Arrival is mandatory and jurisdictional. The failure to attach it is a fatal omission that nullifies the petition.
-

♥ Controlling Reasoning

1. Distinct Statutory Requirements and the "Component Part" Fallacy

- **Statutory Independence:** The Declaration of Intention (governed by Section 5) and the Certificate of Arrival (governed by Section 7) serve entirely different purposes.
- **Independent Purpose of the Arrival Certificate:** While the Certificate of Arrival is used as a component of a Declaration of Intention, it has an **independent, primary function** in the petition itself under Section 7: **it serves as formal proof that the alien's entry into the country was lawful, documented, and in good faith.**
- **The "Spring and Source" Rule:** Dispensing with the Certificate of Arrival would allow undocumented or illegal entrants to secure citizenship simply by residing in the country for thirty years. The Court stresses that the state cannot reward surreptitious, illegal entry: "*The spring cannot rise higher than its source, so to speak.*".

2. Strict Construction and the Absolute Burden of Proof

- **Privilege, Not a Right:** The opportunity of an alien to become a citizen is a mere matter of grace, favor, or privilege extended by the State. The applicant does not possess any inherent or vested right to citizenship.
- **Absolute Compliance:** Consequently, naturalization laws must be rigidly enforced and strictly construed against the applicant. The absence of even a single statutory requirement is fatal to the petition. Because the Certificate of Arrival was missing, the petition was void *ab initio* and should have been dismissed outright.
- **Preclusion of Other Issues:** Because the missing certificate is a fatal jurisdictional defect, the Court holds that all other issues raised—such as Go Pei Hung's lucrative income and the credibility of his witnesses—need not be resolved.

Doctrine, Tests, Elements, Exceptions, and Limits

- **The Statutory Integration Rule:** Exemption from filing a Declaration of Intention under Section 6 of C.A. No. 473 **never** equates to an exemption from filing the Certificate of Arrival under Section 7.
- **The Jurisdictional Attachment Mandate:** Under Section 7 of C.A. No. 473, the physical attachment of the **Certificate of Arrival is an absolute, non-exemptible jurisdictional requirement.**
- **The Exception / Limit:** If the Bureau of Immigration has taken back the original certificate of arrival, the applicant is not excused; he must submit his immigrant's certificate of residence or a certified true copy thereof to establish the legality of his entry.

Disposition

The Supreme Court **GRANTED** the petition of the Republic of the Philippines. The CA's Decision and Resolution were **REVERSED** and **SET ASIDE**, and Go Pei Hung's Petition for Naturalization was **DISMISSED without prejudice** to his right to re-file.

Obiter / Source-Verified Quotable Line

"An illegal and surreptitious entry into the country by aliens whose undocumented arrival constitutes a threat to national security and the safety of its citizens may not be rewarded later on with citizenship by naturalization or otherwise; to repeat, a spring will not rise higher than its source."

Recitation Capsule

"May it please the Court, the case of *Republic v. Go Pei Hung* establishes that an exemption from filing a Declaration of Intention under C.A. No. 473 does NOT exempt an applicant from the mandatory requirement of attaching a Certificate of Arrival to his petition.

The Court ruled that the Declaration of Intention and the Certificate of Arrival are separate statutory requirements. The Certificate of Arrival serves an independent jurisdictional purpose: it physically proves that the alien's entry into the country was documented, lawful, and in good faith. To dispense with it would allow illegal or surreptitious entrants to reward their unlawful stay with citizenship after thirty years, violating the legal maxim that the spring cannot rise higher than its source. Because naturalization is a privilege of grace strictly construed against the applicant, the omission of this single jurisdictional document is fatal, rendering the petition void."

Likely Follow-Ups

1. **Q: Did the Supreme Court rule on whether Go Pei Hung's annual income of ₱165,000.00 was lucrative?**
 - A: **No.** The Supreme Court explicitly held that because the failure to attach the Certificate of Arrival was a fatal jurisdictional defect that required outright dismissal, it was unnecessary to discuss or resolve the other issues, including the lucrative income or witness credibility requirements.
2. **Q: If an applicant's original Certificate of Arrival is lost or destroyed in the files of the Bureau of Immigration, is the applicant excused from attaching it?**

- **A: No.** As cited in the case (referencing *Chiu Tek Ye v. Republic*), the failure is still fatal. If the certificate is unavailable, the applicant must submit a certified copy, an immigrant's certificate of residence, or reconstructed official documentation showing the legality of entry.
3. **Q: What does the dismissal being "without prejudice" mean for Go Pei Hung?**
- **A:** It means he is not permanently barred from Philippine citizenship. He has the right to file an entirely new application for naturalization, provided he secures and attaches the mandatory Certificate of Arrival and complies with all other statutory qualifications.
-

Changed-Fact Application

- **Hypothetical:** Suppose Go Pei Hung was born in the Philippines but his parents were British. Because he was born locally, he did not have a "Certificate of Arrival" from a foreign port. He files a naturalization petition under C.A. No. 473 and does not attach a Certificate of Arrival. Will his petition be dismissed?
 - **Answer: No.** Under C.A. No. 473, a Certificate of Arrival is required to prove the legality of an alien's entry into the country. If an alien was born in the Philippines, his lawful presence from birth is established by his local birth certificate, and he is exempt from proving "arrival" via a foreign vessel or port. He would instead attach his local birth certificate to satisfy the jurisdictional proof of the legality and origin of his presence, and the petition would not be dismissed on this ground.
-

One-Sentence Doctrine Anchor

The Certificate of Arrival is an independent, non-exemptible jurisdictional requirement under Section 7 of C.A. No. 473 that proves lawful entry, and its omission cannot be excused by an exemption from filing a Declaration of Intention.

Identity and Syllabus Relevance

- **Case Name:** *In the Matter of the Petition for Admission to Citizenship of Manish C. Mahtani, Manish C. Mahtani v. Republic of the Philippines*, G.R. No. 211118, March 21, 2018 (Tijam, J.; First Division).
 - **Syllabus Relevance:** This case centers on the **qualifications for judicial naturalization** under Section 2, Paragraph 4 of Commonwealth Act (C.A.) No. 473 (The Revised Naturalization Law). Specifically, it defines the rigorous legal standards of a **"known lucrative trade, profession, or lawful occupation,"** making it clear that a luxurious lifestyle is not equivalent to a lucrative income under the law.
-

Chronological Material Facts

1. **August 4, 1970:** Petitioner Manish C. Mahtani is born in Bombay, Republic of India.
 2. **May 21, 1971:** At nine (9) months old, Mahtani first arrives in the Philippines with his mother on a flight. He subsequently returns to India but continues to visit the Philippines.
 3. **August 21, 1992:** Mahtani commences his continuous residence in the Philippines.
 4. **Housing & Family:** Mahtani marries and has three children. His family resides in rental homes in various high-end locations in Metro Manila, including Cypress Street and Mabolo Street in Dasmariñas Village, Makati City; South Pacific Plaza Tower and Lawton Tower, Fort Bonifacio, Taguig City; and ultimately, **Ayala Alabang Village, Muntinlupa City** (starting November 2007). Two of his children study at **Paref Rosemont School** (a private school).
 5. **Employment & Status:** Mahtani is employed as the Vice President for Operations of **Sprint International, Inc.** (importer, manufacturer, and exclusive distributor of Speedo swimwear and athletic gear in the Philippines). He holds an Alien Employment Permit and a **Special Resident Retiree's Visa (SRRV) No. 887**, which required a deposit of at least US\$50,000 in an accredited bank.
 6. **Social Life:** He socializes with elite circles, playing squash weekly at exclusive clubs (Manila Polo Club, Rockwell Club, and Pacific Plaza) and joining the **Entrepreneurs Organization** (an international business network where members' businesses must have sales of at least US\$100 Million).
 7. **January 2, 2007:** Mahtani files a Declaration of Intention to become a Filipino citizen with the Office of the Solicitor General (OSG).
-

Procedural History

- **RTC Filing (April 18, 2008):** Mahtani files a Petition for Naturalization before the Regional Trial Court (RTC) of Pasig City, Branch 153 (Naturalization Case No. 847-TG).
- **RTC Decision (April 26, 2011):** The RTC grants the petition, finding that Mahtani has all qualifications and no disqualifications. It relies on Mahtani's testimony and those of his

character witnesses, Mr. Ernesto Lopez (of the Lopez clan) and family physician Dr. Melchor B. Tuquero.

- **Appeal by the Republic:** The OSG appeals, arguing that Mahtani failed to present documentary evidence of his actual income during the trial and that his character witnesses were insufficient because they only knew him during periodic visits.
 - **Court of Appeals Decision (August 1, 2013):** The CA (CA-G.R. CV No. 97125) reverses and sets aside the RTC, dismissing the naturalization case because Mahtani failed to prove he has a lucrative occupation and showed no proof of tax payments.
 - **Motion for Reconsideration in the CA:** Mahtani moves for reconsideration, arguing that "lucrative" only applies to "trade" and not to "occupation". To address the tax issue, he belatedly attaches his **Income Tax Returns (ITRs) for 2006 to 2013**, showing an annual income ranging from **₱620,000 to ₱715,000** (approx. ₱51,000 to ₱60,000 monthly). The CA denies the motion.
 - **Supreme Court Review:** Mahtani files a Petition for Certiorari under Rule 45 before the Supreme Court.
-

■ Parties' Material Arguments

- **Petitioner's (Mahtani's) Arguments:**
 - **Statutory Construction:** Under statutory interpretation rules, "lucrative" qualifies only "trade" and does not apply to "profession" or "lawful occupation".
 - **Proof of Comfort:** His lifestyle (residing in Ayala Alabang, sending children to Paret Rosemont, playing squash at the Manila Polo Club, holding an SRRV visa with a US\$50,000 deposit, and maintaining memberships in the Entrepreneurs Organization) is circumstantial proof that his occupation is highly lucrative under prevailing standards.
 - **Substantial Income:** His belatedly submitted ITRs show an annual income much higher than the average Philippine income during that period.
 - **Respondent's (Republic's/OSG's) Arguments:**
 - **Strict Proof Requirement:** Testimonies alone, without physical documentary evidence of income (such as ITRs or financial statements) presented *during trial*, are legally insufficient to establish the statutory qualification of lucrative trade.
 - **Lack of Lucrative Margin:** Even if his ₱51,000 to ₱60,000 monthly income is considered, it leaves no appreciable margin of savings over expenses given the high cost of the luxurious lifestyle he maintains.
 - **Deficient Witnesses:** Vouching witnesses must have intimate knowledge of his moral character; playing squash and periodic business meetings do not suffice.
-

■ Issues

1. Whether the statutory qualification of being "lucrative" under Section 2, Paragraph 4 of C.A. No. 473 applies only to "trade" or also extends to "profession" and "lawful occupation".
 2. Whether Mahtani sufficiently proved that he possesses a known lucrative trade, profession, or lawful occupation.
-

Holdings

1. **IT APPLIES TO ALL.** The requirement of being "lucrative" applies to all three categories: trade, profession, and lawful occupation.
 2. **NO.** Mahtani failed to prove that his occupation is lucrative. High living expenses and a comfortable lifestyle do not satisfy the evidentiary burden of proving a lucrative income.
-

Controlling Reasoning

1. Statutory Scope of "Lucrative"

- The Court rejects Mahtani's narrow reading of the statute. C.A. No. 473 strictly mandates that any applicant for naturalization must be economically self-sufficient and financially stable to ensure they do not become a public burden. Therefore, whether the applicant is engaged in a trade, a profession, or an occupation, it must be shown to be **lucrative**.

2. The Distinction Between "Expenses" and "Lucrative Income"

- **"Expenses" Are Not "Income":** The Supreme Court notes that the evidence Mahtani presented (Ayala Alabang residence, private schooling, exclusive club memberships) merely demonstrates **expenses** and a high cost of living. It does not prove his actual financial assets, savings, or net income.
 - **Failure to Prove an Appreciable Margin:** Lucrative trade means there must be an **appreciable margin of income over expenses**. This margin is necessary to provide support in the event of unemployment, sickness, or disability, preventing the applicant from becoming a public charge.
 - **ITR Analysis:** Even if the Court considers the belatedly submitted ITRs showing an annual income of ₱620,000 to ₱715,000 (roughly ₱51,000 to ₱60,000 a month), this amount is **grossly insufficient** to sustain an appreciable margin of savings when weighed against his extremely high living expenses (rent in Ayala Alabang, elite school tuition, and high-society club dues). Socializing with prominent figures like the Lopez clan does not satisfy the strict economic thresholds of naturalization law.
-

Doctrine, Tests, Elements, Exceptions, and Limits

- **The "Lucrative Trade" Test:** To satisfy Section 2, Paragraph 4 of C.A. No. 473, the applicant must prove:
 1. Engagement in a known, lawful calling (trade, profession, or occupation).
 2. The income earned is not only sufficient for ordinary basic necessities.
 3. **The Appreciable Margin Rule:** There must be an appreciable surplus of income over actual expenses to sustain the applicant and their family during unforeseen crises (sickness, unemployment, disability) and prevent them from becoming a "public charge".
 - **The Strict Construction Rule in Naturalization:** Naturalization is a high privilege, not a right. Laws are strictly construed in favor of the State and against the applicant. There are no presumptions in favor of the claimant, and the lack of opposition by the State does not excuse the courts from minutely scrutinizing the records.
-

Disposition

The Supreme Court **DENIED** the petition and **AFFIRMED** the Court of Appeals' Decision dismissing Manish C. Mahtani's Petition for Naturalization.

Source-Verified Quotable Line

"In simple terms, what Mahtani accomplished to demonstrate with the pieces of evidence that he presented are just 'expenses,' nothing more. ... There is simply no sufficient proof that it is enough to create an appreciable margin of income over expenses."

Recitation Capsule

"May it please the Court, the case of *In re Mahtani v. Republic* establishes that a comfortable or luxurious lifestyle does not satisfy the requirement of a 'lucrative trade, profession, or lawful occupation' under C.A. No. 473.

The Court held that 'lucrative' requires the applicant to prove an appreciable margin of income over actual expenses to ensure they will not become a public charge in the event of unemployment or disability. Mahtani presented evidence of high-end expenses—such as living in Ayala Alabang and playing squash at the Manila Polo Club—but failed to present timely documentary proof of his actual net income during the trial. Even his belatedly submitted ITRs showing ₱51,000 to ₱60,000 in monthly income left no appreciable margin when weighed against the high cost of

his family's elite lifestyle. Because naturalization is a privilege strictly construed against the alien, his petition was properly denied."

? Likely Follow-Ups

1. **Q: Why didn't the US\$50,000 deposit for his Special Resident Retiree's Visa (SRRV) count as proof of lucrative capacity?**
 - A: While the visa deposit shows he had capital to enter the country, it is a static asset. The "lucrative" requirement demands an active, ongoing, and sustainable source of income (adequacy and sustainability) rather than a one-time static deposit that could be depleted or withdrawn.
2. **Q: Can the court consider the income of the applicant's spouse to satisfy the lucrative trade requirement?**
 - A: **No.** Jurisprudence (such as *Swee Sang v. Republic*) dictates that the lucrative trade or profession must be personally possessed by the applicant. The independent income of the spouse or family members cannot be used to substitute for the applicant's own lack of a lucrative calling, as the political status being acquired is strictly personal.
3. **Q: Does this ruling imply that a wealthy alien who lives modestly has a better chance of naturalization than one who lives luxuriously?**
 - A: **Yes, mathematically.** If a wealthy alien lives modestly, their actual income will easily show a massive, appreciable margin of savings over their expenses. Mahtani's downfall was that his high-society lifestyle consumed his entire declared income, leaving no appreciable margin of safety under the "public charge" doctrine.

⚓ One-Sentence Doctrine Anchor

A lucrative trade under C.A. No. 473 requires affirmative proof of an appreciable margin of income over expenses to prevent the applicant from becoming a public charge; demonstrating elite lifestyle expenses is not a substitute for proving lucrative earnings.

Identity and Syllabus Relevance

- **Case Name:** *Casan Macode Maquiling v. Commission on Elections, Rommel Arnado y Cagoco, and Linog G. Balua*, G.R. No. 195649, April 16, 2013 (Sereno, C.J.; En Banc).
 - **Syllabus Relevance:** This is a landmark case in **Philippine Election and Citizenship Law**, specifically concerning the **disqualification of candidates with dual citizenship/allegiance** under **Section 40(d) of the Local Government Code (LGC)** and the operational mechanics of the **dual-citizen candidate rules** under **Republic Act No. 9225** (Citizenship Retention and Re-acquisition Act of 2003). It establishes that the **continued use of a foreign passport after executing an Oath of Renunciation is a positive act that negates the renunciation**, rendering the candidate's Certificate of Candidacy (CoC) void *ab initio*. This case also provides the definitive ruling on when a "second-placer" in an election can be validly proclaimed as the winner.
-

Chronological Material Facts

1. **Naturalization:** Rommel Arnado, a natural-born Filipino citizen, loses his Philippine citizenship when he becomes a naturalized citizen of the United States of America.
 2. **July 10, 2008:** Arnado applies for repatriation under R.A. No. 9225 and takes his first Oath of Allegiance to the Republic of the Philippines.
 3. **April 3, 2009:** He takes another Oath of Allegiance and executes an **Affidavit of Renunciation** of his US citizenship before a notary public.
 4. **April 14, 2009 to November 24, 2009:** Despite having renounced his US citizenship, Arnado **uses his US passport at least six times** to travel to and from the United States. His Philippine passport had been issued on June 18, 2009, but he claims he was not immediately notified of its availability.
 5. **November 30, 2009:** Arnado files his CoC for the position of Municipal Mayor of Kauswagan, Lanao del Norte for the May 10, 2010 local elections, declaring himself to be a qualified, sole Filipino citizen.
 6. **May 10, 2010:** Elections are held. Arnado garners the highest number of votes (first-place) and is proclaimed Mayor. Casan Macode Maquiling garners the second-highest number of votes.
-

Procedural History

- **Before the COMELEC (Pre-Election / Disqualification Petition):** Linog G. Balua, another mayoralty candidate, files a petition to disqualify Arnado and/or cancel his CoC, alleging that Arnado was a dual citizen due to his continuous use of an American passport.
- **COMELEC First Division (October 5, 2010):** The First Division **disqualifies Arnado** and annuls his proclamation, ruling that his continuous use of his US passport after his renunciation showed he had no genuine intent to renounce his foreign citizenship. It orders that the **order of succession** under Section 44 of the LGC be applied (letting the Vice-Mayor assume office).
- **Intervention:** While Arnado's Motion for Reconsideration is pending, second-placer Maquiling files a Motion for Intervention and a Motion for Reconsideration, arguing that since Arnado's CoC was void *ab initio*, Maquiling is the qualified candidate with the highest number of votes and should be proclaimed Mayor.
- **COMELEC En Banc (February 2, 2011):** The En Banc **reverses the First Division** and dismisses the disqualification petition, holding that Arnado was a "pure" Filipino. It reasons that taking the Oath of

Renunciation is the sole act required, and the subsequent use of a foreign passport does not "un-renounce" a validly executed renunciation.

- **Supreme Court Review:** Maquiling files a Petition for Certiorari under Rule 64, in conjunction with Rule 65, before the Supreme Court.
-

■ Parties' Material Arguments

- **Petitioner's (Maquiling's) Arguments:**
 - **Negation of Renunciation:** Arnado's repeated use of his US passport after his renunciation is an assertion of American citizenship, which effectively revoked his renunciation. He remained a dual citizen and was disqualified under Section 40(d) of the LGC.
 - **Void CoC means Second-Placer Wins:** Because Arnado was disqualified from the very beginning, his CoC was void *ab initio*. Consequently, the votes cast for him were stray. Maquiling is not a "second-placer" but the qualified candidate who garnered the highest number of valid votes. Thus, the rule on succession under Section 44 of the LGC does not apply.
 - **Private Respondent's (Arnado's) Arguments:**
 - **Status Already Restored:** Once the formal Affidavit of Renunciation was executed, his status as a "pure" Filipino was completed. The subsequent use of a US passport is an administrative infraction of foreign travel laws, but it does not carry the legal penalty of stripping him of his reacquired Philippine citizenship.
 - **The Democratic Will:** He won the election by an overwhelming majority. In case of doubt, the courts must respect the sovereign choice of the electorate.
 - **Improper Intervention:** Maquiling's intervention as a "second-placer" was filed out of time and is barred.
-

■ Issues

1. **Procedural:** Whether a rival candidate who garnered the second-highest number of votes (second-placer) has a legal right to intervene in a disqualification case pending before the COMELEC En Banc.
 2. **Substantive (Citizenship):** Whether the continued use of a foreign passport after the execution of an Oath of Renunciation under R.A. No. 9225 negates the renunciation, thereby disqualifying the candidate under Section 40(d) of the Local Government Code.
 3. **Remedy (Succession vs. Proclamation):** Whether the disqualification of a winning candidate warrants the proclamation of the runner-up (second-placer) or the implementation of the rule on local government succession under Section 44 of the LGC.
-

♥ Holdings

1. **YES.** A rival candidate has a personal and substantial interest to intervene in a disqualification case while the matter is still pending final resolution, as his rights would be directly affected by the outcome.
 2. **YES.** The continued use of a foreign passport after renouncing foreign citizenship is a positive, voluntary representation of foreign allegiance that **negates the prior renunciation**. The candidate reverts to dual-citizen status, which is a ground for disqualification under Section 40(d) of the LGC.
 3. **PROCLAMATION OF RUNNER-UP.** Because Arnado committed material misrepresentation in his CoC regarding his eligibility, his CoC was void *ab initio*. He was never a candidate in the eyes of the law, making the votes cast for him stray. Therefore, Maquiling is the qualified candidate who garnered the highest number of valid votes and must be proclaimed Mayor; Section 44 of the LGC on succession does not apply.
-

Controlling Reasoning

1. Propriety of Intervention

- The Court emphasizes that under Section 6 of R.A. No. 6646, the disqualification trial continues even after the election and proclamation of the winner. Since the original case was still pending before the COMELEC En Banc, Maquiling had a clear, direct, and justiciable interest as a candidate to intervene. The finality of the decision was suspended by his timely intervention.

2. Substantive Dual Allegiance and Passport Use

- **The Twin-Requirement of R.A. No. 9225:** To run for public office, a reacquiring natural-born citizen must satisfy the twin requirements of: (1) taking an Oath of Allegiance to the Philippines, and (2) executing a personal and **sworn renunciation of any and all foreign citizenship**.
- **Acts Inconsistent with Renunciation:** The execution of the Oath of Renunciation is not a mere pro-forma, empty paper ceremony. It must be accompanied by actual, continuous compliance.
- **The Passport as a Sovereign Representation:** A passport is a formal document issued by a sovereign state requesting another state to allow its citizen safe passage. By repeatedly using his American passport after his April 3, 2009 renunciation, Arnado **affirmatively represented himself to foreign and local authorities as an American citizen**, enjoying the protection and privileges thereof.
- This positive, voluntary act of claiming American nationality after a formal renunciation represents a **recantation of his oath of renunciation**, reverting him back to dual-allegiance/citizenship status. Section 40(d) of the LGC explicitly bars those with dual citizenship from holding any local elective office.

3. Void CoC and the "Second-Placer" Rule Exception

- **The General Rule:** Normally, when a winning candidate is disqualified *after* the elections, the runner-up cannot be proclaimed because "the second-placer is not the choice of the people."
- **The Void CoC Exception:** However, the Court distinguishes between **disqualification** based on post-election grounds and a **void CoC** based on ineligible status existing *at the time of filing*. Under the doctrines in *Aratea v. COMELEC* and *Jalosjos v. COMELEC*, a candidate who is ineligible at the start has a void CoC. A void CoC produces no legal effect.
- **Stray Votes:** Since Arnado was ineligible to run from the very beginning, his CoC was a nullity, and he was never legally a candidate. All votes cast for him were technically **stray, non-existent votes**. Thus,

Maquiling did not finish second; he was the **sole qualified candidate who received the highest number of valid votes** and must be proclaimed. Succession under Section 44 of the LGC is improper because it only applies when a *validly elected and proclaimed* officer subsequently vacates the post.

Doctrine, Tests, Elements, Exceptions, and Limits

- **The "Passport Representation" Rule:** The use of a foreign passport by a dual citizen *after* executing a sworn renunciation of foreign citizenship is a positive assertion of foreign nationality that **invalidates and negates the renunciation**.
 - **The Twin-Requirements for Dual Citizens to Run for Office (R.A. No. 9225):**
 - Take the Oath of Allegiance to the Republic of the Philippines under Section 3.
 - Make a personal, sworn renunciation of any and all foreign citizenship before any public officer authorized to administer an oath under Section 5(2).
 - **The Candidate Eligibility/Succession Test:**
 - If the winning candidate's CoC is **valid** but they are disqualified *subsequently* (e.g., due to a post-election conviction), the **rule of succession** (Vice-Mayor) applies because the votes cast for the winner were valid.
 - If the winning candidate's CoC is **void *ab initio*** (due to ineligibility like citizenship/residency at the time of filing), the **runner-up is proclaimed** because the winner was never a legal candidate and their votes were stray.
-

Disposition

The Supreme Court **GRANTED** Maquiling's Petition for Certiorari. The Resolution of the COMELEC En Banc was **REVERSED and SET ASIDE**, and the October 5, 2010 Resolution of the COMELEC First Division was **REINSTATED with MODIFICATION**. The Court **DIRECTED the COMELEC to proclaim Casan Macode Maquiling** as the duly elected Mayor of Kauswagan, Lanao del Norte.

Source-Verified Quotable Line / Obiter

"Election victory does not become a magic formula to bypass election eligibility requirements."

"The filing of a Certificate of Candidacy is a solemn representation... Arnado's continued use of his US passport was a strong indication that he had no real intention to renounce his US citizenship... One who truly divested himself of US citizenship would not continue to avail of privileges reserved solely for US nationals."

Closed-Book Retrieval Layer

1. 90-Second Recitation Answer

"May it please the Court, the case of *Maquiling v. COMELEC* establishes that candidates who reacquire Philippine citizenship under R.A. No. 9225 must maintain sole allegiance to the Philippines to be eligible for public office.

The Court ruled that the use of a foreign passport after executing a sworn Oath of Renunciation is a positive, voluntary act of representing oneself as a foreign national. This positive act negates and invalidates the previous renunciation, reverting the candidate's status to that of a dual citizen, which is an express disqualification under Section 40(d) of the Local Government Code.

Procedurally, the Court held that because the candidate's citizenship ineligibility existed at the time of the filing of his CoC, his certificate was void *ab initio*. It produced no legal effect, and all votes cast for him were stray. Consequently, the runner-up is not a 'second-placer' but the qualified candidate who garnered the highest number of valid votes, making him entitled to immediate proclamation. The rule of succession under Section 44 of the LGC does not apply because there was no validly elected officer to succeed."

2. Three Likely Follow-Up Questions

1. **Q: What if the candidate used their foreign passport after their renunciation but BEFORE filing their Certificate of Candidacy? Are they still disqualified?**
 - A: **Yes.** The disqualification is based on their dual-citizen status at the time of filing the CoC. If they used their foreign passport after the renunciation but before filing the CoC, they have negated their renunciation and remain a dual citizen, rendering their CoC void *ab initio*.
2. **Q: If a candidate is a dual citizen *by birth* (e.g., born in the US to Filipino parents), are they required to execute a sworn renunciation of foreign citizenship to run for public office?**
 - A: **No.** As clarified in *Cordora v. COMELEC* and reaffirmed in *Gana-Carait v. COMELEC*, the twin requirements of R.A. No. 9225 (allegiance and renunciation) apply strictly to dual citizens by **naturalization** (those who lost and reacquired citizenship). Dual citizens by birth are not covered by R.A. No. 9225 and do not need to execute a formal renunciation to run, provided they remain Filipino citizens.
3. **Q: Can a candidate who negated their renunciation by using a foreign passport cure their eligibility by executing a new Oath of Renunciation before election day?**
 - A: **No.** The eligibility of a candidate is reckoned at the time of the filing of the CoC. If they were disqualified at the time of filing due to a void renunciation, the CoC is void *ab initio*. A subsequent renunciation cannot retroactively validate a void CoC.

One-Sentence Doctrine Anchor

The continued use of a foreign passport after renouncing foreign citizenship under R.A. No. 9225 negates the renunciation, leaving the candidate with dual citizenship which voids their CoC *ab initio* and entitles the qualified runner-up to be proclaimed as the winner.

Identity and Syllabus Relevance

- **Case Name:** *Juan G. Frivaldo v. Commission on Elections, and Raul R. Lee*, G.R. No. 120295 consolidated with *Raul R. Lee v. Commission on Elections and Juan G. Frivaldo*, G.R. No. 123755, June 28, 1996 (Panganiban, J.; En Banc).
- **Syllabus Relevance:** This landmark case clarifies the operational timelines of candidate qualifications (specifically **citizenship**) under Section 39 of the **Local Government Code (LGC)**. It defines the legal nature of **repatriation** under Presidential Decree (P.D.) No. 725 as a **curative and retroactive remedy**, and reiterates the limits of the "second-placer" (*Labo*) doctrine in Philippine election law.

Chronological Material Facts

1. **Naturalization:** Juan G. Frivaldo, a natural-born Filipino citizen, is naturalized as a citizen of the United States of America on January 20, 1983. He claims this was a political necessity to escape the Marcos dictatorship.
2. **First Election and Ouster (1988):** Frivaldo returns to Sorsogon, runs for Governor in 1988, and wins by a margin of 27,000 votes. His opponent, Raul R. Lee, files a *quo warranto* petition challenging his citizenship. In *Frivaldo v. COMELEC* (G.R. No. 87193, 1989), the Supreme Court declares him a non-citizen and unseats him, holding that simply filing a Certificate of Candidacy (CoC) and taking an oath of office did not suffice to reacquire Philippine citizenship.
3. **Second Election and Ouster (1992):** Frivaldo runs again in 1992 and wins by 57,000 votes. However, his subsequent judicial naturalization bid is declared void due to procedural defects in *Republic v. De la Rosa* (G.R. No. 104654, 1994), and he is unseated for a second time.
4. **Repatriation Application:** On **August 17, 1994**, Frivaldo files an application for repatriation under P.D. No. 725 with the Special Committee on Naturalization.
5. **Third Candidacy (1995):** On **March 20, 1995**, Frivaldo files his CoC for Governor of Sorsogon.
6. **Disqualification Challenge:** On March 23, 1995, Raul Lee files a petition with the COMELEC to disqualify Frivaldo for lack of citizenship. On May 1, 1995, the COMELEC Second Division disqualifies Frivaldo. Frivaldo files a Motion for Reconsideration (MR), which remains unacted upon until after the elections, allowing him to remain on the ballot.
7. **The 1995 Election:** On May 8, 1995, elections are held. Frivaldo wins with **73,440 votes** (Lee gets 53,304 votes).
8. **The Repatriation Perfection:** On **June 30, 1995, at 2:00 PM**, Frivaldo's petition for repatriation is approved, and he takes his Oath of Allegiance.
9. **Lee's Proclamation:** On **June 30, 1995, at 8:30 PM**, following a COMELEC order treating Frivaldo's votes as "stray," the Provincial Board of Canvassers proclaims second-placer Raul Lee as Governor. Frivaldo files a petition (SPC No. 95-317) on July 6, 1995, to annul Lee's proclamation.

Procedural History

- **Before the COMELEC:** Frivaldo files a petition (SPC No. 95-317) to annul Lee's proclamation. On December 19, 1995, the COMELEC First Division rules in Frivaldo's favor, annulling Lee's proclamation and directing the Provincial Board of Canvassers to reconvene and proclaim Frivaldo. The COMELEC En Banc affirms this on February 23, 1996.

- **Supreme Court Consolidated Appeals:**

1. *Raul Lee* files G.R. No. 123755, assailing the COMELEC's decision to seat Frivaldo.
 2. *Juan Frivaldo* files G.R. No. 120295, challenging the COMELEC's initial pre-election disqualification orders on the ground that they were not rendered within the 15-day pre-election period under Section 78 of the Omnibus Election Code.
 3. The Supreme Court consolidates both petitions on March 12, 1996.
-

■ Parties' Material Arguments

- **Raul Lee's (Opponent's) Arguments:**

- **Invalid Law:** P.D. No. 725 was effectively suspended or repealed by President Corazon Aquino's March 27, 1987 "cease and desist" Memorandum to the Special Committee on Naturalization.
- **No Retroactive Cure:** Even if valid, repatriation only takes effect upon taking the oath (June 30, 1995, at 2:00 PM). Qualifications under Section 39 of the LGC must exist at the time of the election, or at the latest when the CoC is filed.
- **The Labo Doctrine:** Frivaldo was a disqualified alien on election day. Since the electorate was notoriously aware of his disqualification, the votes cast for him were stray, and the second-placer (Lee) must be declared the winner.

- **Juan Frivaldo's (Candidate's) Arguments:**

- **P.D. 725 is active:** President Aquino's 1987 Memorandum was an administrative policy guideline, not a legislative act capable of repealing P.D. No. 725 [3, 14].
 - **Statutory Timing:** Section 39 of the LGC refers to "elective officials," not "candidates". He was a repatriated Filipino citizen by 2:00 PM on June 30, 1995, before his term officially began (noon/afternoon of June 30) and prior to Lee's proclamation (8:30 PM).
 - **Curative Retroactivity:** His repatriation on June 30, 1995, retroacted to the date of his application (August 17, 1994), curing any citizenship defect during the filing of his CoC and validating his voter status.
 - **Statelessness in the Interim:** He was stateless, not a dual citizen, having abandoned his US citizenship prior to repatriation.
-

■ Issues

1. Whether P.D. No. 725 was repealed or suspended by President Aquino's March 27, 1987 Memorandum [3, 150, 158].
 2. At what point must the qualification of **citizenship** be possessed by a local elective official under Section 39 of the Local Government Code of 1991.
 3. Whether repatriation under P.D. No. 725 operates **retroactively** to the date of the filing of the application.
 4. Whether a second-placer candidate (Lee) may be proclaimed winner upon the disqualification of the first-placer under the *Labo* doctrine.
-

♥ Holdings

1. **NO.** President Aquino's 1987 Memorandum did not repeal or suspend P.D. No. 725, which remains in full force and effect [3, 158].
 2. **AT PROCLAMATION OR START OF TERM.** The citizenship qualification under Section 39(a) of the LGC must be possessed by an elective local official, at the latest, **as of the time he is proclaimed and at the start of his term of office.**
 3. **YES.** Repatriation under P.D. No. 725 is curative and remedial, and its effects **retroact to the date of the filing of the application** (August 17, 1994).
 4. **NO.** A second-placer is just a second-placer and cannot be proclaimed unless there is notorious proof that the electorate consciously voted for an ineligible candidate to throw away their votes.
-

♥ Controlling Reasoning

1. Executive Memo Cannot Repeal a Statute

- Presidential decrees (like P.D. No. 725) carry the force of law and can only be amended, suspended, or repealed by subsequent legislative enactments [3, 150]. President Aquino's March 27, 1987 Memorandum was not a statute but an executive directive to "cease and desist" from processing applications [3, 14]. It did not repeal P.D. No. 725, as implied repeals are heavily disfavored in statutory construction [3, 14].

2. Broad Construction of "Qualifications of Elective Officials"

- Section 39 of the LGC is titled "Qualifications" of "**Elective Local Officials,**" not "candidates". Unlike qualifications for age (which must be met "on election day") and residence (which requires a period "immediately preceding the day of the election"), **citizenship has no statutory reckoning point prior to assumption of office.**
- The purpose of the citizenship requirement is to prevent aliens from governing Filipinos. Since Frivaldo perfected his repatriation at 2:00 PM on June 30, 1995—the day his term of office commenced—the state's interest was fully secured. He was a Filipino citizen when he began to govern.

3. Curative and Remedial Laws Restrospectively Apply

- Under Article 7 of the Civil Code, laws are generally prospective. However, **curative and remedial statutes are established exceptions.** P.D. No. 725 was enacted to cure procedural defects in C.A. No. 63 (which made reacquisition of citizenship tedious).
- To prevent prejudice to applicants caused by administrative delays outside their control (such as the deactivation and late reactivation of the Special Committee on Naturalization), the repatriation must retroact to the date of the application (August 17, 1994). Because his repatriation retroacts to 1994, Frivaldo was a Filipino citizen when he filed his CoC and when he registered as a voter.

4. The Democratic Mandate and the Rejection of the Second-Placer

- The electorate of Sorsogon overwhelmingly voted for Frivaldo. To elevate a second-placer who lost by "chasmic margins" violates the principles of representative democracy.

- The *Labo* exception does not apply because there was no notorious, undisputed awareness of Frivaldo's ineligibility among the voters. On election day, Frivaldo's name was officially on the ballot by order of the COMELEC; thus, the voters did not intentionally "throw away" their ballots.
-

Doctrine, Tests, Elements, Exceptions, and Limits

- **The Curative Retroactivity Test:** A statute or administrative action is curative and retroactive if it:
 1. Undertakes to cure errors, irregularities, or statutory disabilities.
 2. Does not impair vested rights, contract obligations, or violate constitutional guarantees.
 - **The Timeliness of Local Citizenship Qualification Rule:** In the absence of specific statutory timelines, citizenship is a continuing requirement that must be present **at the start of the term and at proclamation**.
 - **The Notoriety Exception to the Second-Placer Rule:** A second-placer can only be proclaimed if the electorate is **notoriously aware** in fact and in law of the candidate's disqualification, showing a deliberate intent to waste their franchise.
-

Disposition

The Supreme Court **DISMISSED** Raul Lee's petition (G.R. No. 123755) and **AFFIRMED** the COMELEC Resolutions seating Juan G. Frivaldo as the duly elected Governor of Sorsogon [23]. Frivaldo's petition (G.R. No. 120295) was **DISMISSED** for being moot and academic [23].

Source-Verified Quotable Line

"Laws governing election contests must be liberally construed to the end that the will of the people in the choice of public officials may not be defeated by mere technical objections."

"The real essence of justice does not emanate from quibblings over patchwork legal technicality. It proceeds from the spirit's gut consciousness of the dynamic role of law as a brick in the ultimate development of the social edifice."

Recitation Capsule

"May it please the Court, the consolidated cases of *Frivaldo v. COMELEC* (1996) establish that the citizenship qualification for local elective officials under Section 39(a) of the Local Government Code is to be possessed, at the latest, at the time of proclamation and the commencement of the term of office.

The Court ruled that unlike age and residence, the law does not set a prior date for citizenship. The state's purpose is to prevent aliens from governing, which is fully satisfied if the candidate is a citizen when their term begins. Additionally, the Court held that repatriation under P.D. No. 725 is curative and remedial. Thus, Frivaldo's repatriation on June 30, 1995, retroacted to the date of his application on August 17, 1994, validating his voter status and his CoC from the start. Finally, the Court rejected second-placer Raul Lee's bid, reiterating that the ineligibility of a first-placer does not declare the runner-up elected, as the second-placer was not the choice of the sovereign will."

? Likely Follow-Ups

1. **Q: Does the retroactive effect of repatriation apply to other modes of citizenship reacquisition, such as administrative naturalization?**
 - A: **No.** The retroactive effect is specific to **repatriation** because it is a remedial process designed to restore a former natural-born Filipino's original status. First-time naturalization, where an alien seeks entry into Philippine political life, is strictly construed and does not retroact to the date of application.
 2. **Q: How does this ruling reconcile with *Maquiling v. COMELEC*, where the second-placer was allowed to be proclaimed?**
 - A: In *Maquiling*, the candidate's CoC was **void *ab initio*** because he was ineligible (due to dual citizenship) *at the time of filing* and did not cure his ineligibility. In *Frivaldo*, the candidate's repatriation **retroacted** to August 17, 1994 (prior to the filing of the CoC in March 1995); hence, Frivaldo's CoC was legally valid and never void *ab initio*.
 3. **Q: If Frivaldo did not apply for repatriation until after the May 8, 1995 elections, would his repatriation still cure his lack of citizenship?**
 - A: **No.** If he only applied *after* the elections, the retroactivity of his repatriation would only reach back to the post-election application date. He would have been an unqualified alien on election day and at the start of his term on June 30, 1995, making his CoC void *ab initio*.
-

⚓ One-Sentence Doctrine Anchor

Repatriation under P.D. No. 725 is a curative, retroactive remedy that retroacts to the date of the application, thereby satisfying the citizenship qualification of Section 39(a) of the LGC, which must be possessed at the latest upon proclamation and the start of the term of office.

Identity and Syllabus Relevance

- **Case Name:** *Teodora Sobejana-Condon v. Commission on Elections, Luis M. Bautista, Robelito V. Picar, and Wilma P. Pagaduan*, G.R. No. 198742, August 10, 2012 (Reyes, J.; En Banc).
 - **Syllabus Relevance:** This case is a premier authority on candidate eligibility under **Republic Act (R.A.) No. 9225** (Citizenship Retention and Re-Acquisition Act of 2003). It strictly defines the "**personal and sworn renunciation**" required by Section 5(2) for dual citizens seeking public office. It holds that the requirement of an oath is **mandatory and substantive**, not a mere *pro forma* technicality, and that it applies to **all those who have reacquired citizenship**, regardless of whether they have already ceased to hold foreign citizenship under foreign laws prior to filing their Certificate of Candidacy (CoC).
-

Chronological Material Facts

1. **August 8, 1944:** Teodora Sobejana-Condon is born in the Philippines to Filipino parents, making her a natural-born Filipino citizen.
 2. **December 13, 1984:** She becomes a naturalized Australian citizen following her marriage to Kevin Thomas Condon.
 3. **December 5, 2005:** She reacquires her Philippine citizenship under R.A. No. 9225 by taking the Oath of Allegiance before the Philippine Embassy in Canberra, Australia. At this point, she holds dual citizenship.
 4. **September 18, 2006:** Seeking to divest herself of Australian citizenship, she files a **Declaration of Renunciation of Australian Citizenship** with the Australian Department of Immigration and Indigenous Affairs in Canberra. Crucially, **this declaration is not under oath**.
 5. **September 27, 2006:** The Australian government issues an Order certifying that she has ceased to be an Australian citizen.
 6. **2007 Elections:** Sobejana-Condon runs for Mayor in her hometown of Caba, La Union, but loses.
 7. **May 10, 2010 Elections:** She runs for Vice-Mayor of Caba, La Union, garners the highest number of votes, is proclaimed winner, and takes her oath of office on May 13, 2010.
 8. **Post-Election:** Private respondents (registered voters of Caba) file petitions for disqualification and/or *quo warranto* in the Regional Trial Court (RTC), asserting she was ineligible because she failed to execute a sworn renunciation of foreign citizenship under Section 5(2) of R.A. No. 9225.
-

Procedural History

- **Regional Trial Court Filing:** Respondents file consolidated election cases in the RTC of Bauang, La Union, Branch 33. During trial, Sobejana-Condon admits her Australian renunciation was unsworn.
- **RTC Ruling (October 22, 2010):** The RTC declares her disqualified and ineligible, nullifies her proclamation, and declares the Vice-Mayor post vacant.
- **COMELEC Second Division Dismissal (November 30, 2010):** Sobejana-Condon appeals to the COMELEC, but the Second Division dismisses her appeal for failing to pay the requisite docket fees on time.

- **COMELEC En Banc Resolution (September 6, 2011):** On a motion for reconsideration, the En Banc **reinstates** her appeal but immediately **decides the substantive merits**, affirming the RTC's disqualification in its entirety.
 - **Supreme Court Review:** Petitioner files a Special Civil Action for Certiorari under Rule 64 of the Rules of Court.
-

Parties' Material Arguments

- **Petitioner's (Sobejana-Condon's) Arguments:**
 - **Non-Applicability of Section 5(2):** Because she ceased to be an Australian citizen on September 27, 2006 (years before filing her CoC in 2010), she was solely a Filipino citizen on election day. Thus, the Section 5(2) "sworn renunciation" rule for dual citizens did not apply to her.
 - **Pro Forma Technicality:** A sworn renunciation is a mere formal or *pro forma* requirement, not a mandatory condition.
 - **Estoppel:** Private respondents are estopped from challenging her eligibility in 2010 because they failed to do so when she ran for Mayor in 2007.
 - **Procedural Error:** The COMELEC En Banc committed grave abuse of discretion by resolving the merits of her appeal instead of remanding it to the Second Division after reinstatement.
 - **Respondents' Arguments:**
 - **Mandatory Character of Oath:** Section 5(2) of R.A. No. 9225 explicitly demands a "personal and sworn" renunciation before an authorized public officer. An unsworn declaration violates this express mandate.
 - **Estoppel Does Not Apply:** Eligibility is a matter of public interest; the state is not barred by laches or the omission of private parties in prior elections.
-

Issues

1. Whether the COMELEC En Banc can validly resolve the substantive merits of an election appeal simultaneously with ruling on its reinstatement in a resolution disposing of a motion for reconsideration.
 2. Whether private respondents are barred by estoppel or laches from challenging Sobejana-Condon's qualifications.
 3. Whether the "sworn renunciation of foreign citizenship" under Section 5(2) of R.A. No. 9225 is a mandatory requirement or a mere *pro forma* formality.
 4. Whether Section 5(2) applies to a person who has already divested herself of foreign citizenship under foreign law prior to filing her CoC.
-

Holdings

1. **YES.** The COMELEC En Banc has the constitutional and procedural power to reinstate and definitively resolve the merits of an appeal to prevent circuitous delays.

2. **NO.** Public office is a public trust, and estoppel does not operate against the State or the public interest to validate an ineligible candidate's election.
 3. **MANDATORY.** The requirement of a "sworn renunciation" under Section 5(2) of R.A. No. 9225 is an absolute, non-negotiable statutory qualification that must be strictly followed.
 4. **YES.** Section 5(2) applies to all natural-born Filipinos who reacquire citizenship under Section 3 and subsequently run for office, regardless of whether they are still considered dual citizens under foreign laws.
-

♥ Controlling Reasoning

1. COMELEC En Banc's Adjudicatory Powers

- Under Section 3, Article IX-C of the 1987 Constitution, the COMELEC En Banc is specifically tasked with deciding motions for reconsideration in election cases. Remanding the case back to the Second Division would be unnecessarily circuitous and directly repugnant to the rule of preferential and speedy disposition of *quo warranto* cases.

2. Eligibility, Quo Warranto, and Estoppel

- Challenges to eligibility are matters of high public concern and cannot be blocked by laches or estoppel. Under Section 253 of the Omnibus Election Code, any registered voter has the right to file a *quo warranto* petition within ten (10) days after the proclamation of the winning candidate, regardless of prior inaction.

3. Plain Meaning of "Sworn Renunciation"

- **Verba Legis:** The wording of Section 5(2) is plain, clear, and unambiguous. It categorically requires a "personal and sworn" renunciation before a public officer authorized to administer an oath.
- **The Legal Nature of an Oath:** An oath is not an empty gesture; it is a solemn declaration that invokes the punishment of God/the law and subjects the affiant to the penalties of **perjury** if the declaration is false. To permit an unsworn renunciation defeats the very mechanism designed to ensure sole allegiance.
- **The Legislative History Fallacy:** While Representative Javier used the phrase "*pro forma*" during house deliberations, he did so strictly in the context of the technical definition of "natural-born" citizens (as those who ordinarily do not need to perform any act to perfect their citizenship). It was never intended to allow candidates to escape the requirement of an oath.

4. Sovereign Autonomy and Foreign Law Proof

- **Foreign Law is a Question of Fact:** The petitioner argues that she had already ceased to be an Australian citizen under the *Australian Citizenship Act of 1948*. However, **Philippine courts do not take judicial notice of foreign laws**. Sobejana-Condon failed to properly allege, authenticate, and prove the Australian statute as a fact under Sections 24 and 25 of Rule 132.
- **Independence from Foreign Law:** More fundamentally, the Court ruled that R.A. No. 9225 does not concern itself with the actual status of the other citizenship under foreign rules. To allow foreign citizenship laws to dictate the application of Philippine candidate qualifications would be a **brazen**

encroachment upon Philippine sovereignty. The sworn renunciation is the **operative act** mandated by Philippine law to restore a repatriated citizen's political right to run for office.

Doctrine, Tests, Elements, and Limits

- **The Sovereign Proof of Foreign Law Rule:** Foreign judgments and statutes are questions of fact. To be admitted as evidence, they must be:
 1. Proven through official publication, or
 2. Proven through a copy attested by the legal custodian, accompanied by a certificate of authentication under the seal of a Philippine foreign service officer stationed in that country.
 - **The Two-Step Condition Precedent for Repatriated Candidates under R.A. 9225:**
 1. Take the Oath of Allegiance under Section 3.
 2. Execute a **personal and sworn renunciation** of any and all foreign citizenship before an authorized public officer prior to or simultaneous with the filing of the CoC. This is a continuing requirement and a condition precedent to candidate eligibility.
-

Disposition

The Supreme Court **DISMISSED** the petition. The Resolution of the COMELEC En Banc affirming the RTC's declaration of Sobejana-Condon's disqualification and ineligibility was **AFFIRMED in toto**.

Source-Verified Quotable Line

"To qualify as a candidate in Philippine elections, Filipinos must only have one citizenship, namely, Philippine citizenship."

"Garnering the most number of votes does not validate the election of a disqualified candidate because the application of the constitutional and statutory provisions on disqualification is not a matter of popularity."

Recitation Capsule

"May it please the Court, the case of *Sobejana-Condon v. COMELEC* establishes that the execution of a personal and sworn renunciation under Section 5(2) of R.A. No. 9225 is a mandatory, substantive requirement for repatriated Filipino citizens running for public office, which cannot be bypassed by an unsworn foreign declaration.

The petitioner, a repatriated Filipino, filed an unsworn renunciation of her Australian citizenship before the Australian government and subsequently won the Vice-Mayorality of

Caba, La Union. She argued that because Australia certified she had ceased to be its citizen, she was no longer a dual citizen and therefore exempt from Section 5(2).

The Court rejected this on two grounds. First, foreign laws are questions of fact; they are not judicially noticed and must be strictly proven under the Rules of Court, which petitioner failed to do. Second, and more fundamentally, R.A. No. 9225 is an exercise of our national sovereignty. It imposes a unilateral, mandatory requirement of a 'sworn' renunciation as a condition precedent to run for office. An unsworn declaration does not subject the declarant to perjury and is legally useless under Philippine law. Finally, the Court held that her victory could not cure her ineligibility, as election to public office is a matter of strict constitutional qualifications, not popularity."

? Likely Follow-Ups

1. **Q: Does the "sworn renunciation" requirement under R.A. No. 9225 apply to dual citizens by birth?**
 - A: **No.** As established in *Cordora v. COMELEC* and reiterated in *Gana-Carait v. COMELEC*, the twin requirements of R.A. No. 9225 (Oath of Allegiance and Sworn Renunciation) apply exclusively to natural-born Filipinos who lost their citizenship through naturalization in a foreign country and subsequently reacquired it. Dual citizens by birth are not covered by R.A. No. 9225 and need not execute a sworn renunciation to run for public office.
2. **Q: If a candidate has already renounced their foreign citizenship under foreign law, why does the Philippine State still require a "sworn renunciation" under Section 5(2)?**
 - A: Because the Philippine state acts independently of foreign laws. Under the principle of sovereign autonomy, the Philippines enforces its own candidate qualifications. The "sworn renunciation" is the precise, unilateral statutory act required by the Philippine government to ensure that the candidate's public allegiance is sole and undivided.
3. **Q: If a candidate executes a sworn renunciation but later uses their foreign passport, is *Sobejana-Condon* the controlling case for their disqualification?**
 - A: **No, that is *Maquiling v. COMELEC*.** In *Sobejana-Condon*, the candidate's renunciation was structurally void from the start because it was **unsworn**. In *Maquiling*, the candidate did execute a valid sworn renunciation, but subsequently **negated** it by actively representing himself as a foreign citizen through the continued use of a foreign passport.

One-Sentence Doctrine Anchor

The personal and sworn renunciation of foreign citizenship under Section 5(2) of R.A. No. 9225 is a mandatory condition precedent for elective office that applies to all repatriated citizens, and its omission cannot be cured by an unsworn declaration or a high number of electoral votes.

Calilung v. Datumanong | GR160869 (2007)

DOCTRINE: RA 9225 IS CONSTITUTIONAL BECAUSE DUAL CITIZENSHIP $\neq$ DUAL ALLEGIANCE; RA 9225 CONCERNS ONLY W KEEPING PH CITIZENSHIP, IMPLICITLY RENOUNCES FOREIGN CITIZENSHIP, & LEAVES STATUS OF FOREIGN CITIZENSHIP TO FOREIGN LAW

FACTS

- **2003 - RA 9225 (DUAL CITIZENSHIP ACT)**
 - Natural-born PH citizens who acquire foreign citizenship abroad retain/reacquire their PH citizenship upon taking the Oath of Allegiance
- **CALILUNG PETITION**
 - Writ of Prohibition to Secretary Datumanong (DOJ) to stop implementing RA 9225
 - Hector Calilung from Advocates and Adherents of Social Justice for School Teachers and Allied Workers (AASJS)

ARGUMENTS

- **PETITIONER CALILUNG ARGS**
 - **SECTION 2** - allows ph citizens to not lose their foreign citizenship →
 - **SECTION 3** - oath does not forfeit foreign allegiance
 - **Dual allegiance is inimical to the national interest (Sec 5 Art IV of Constitution)**
- **RESPONDENT OSG ARGS**
 - RA 9225 only concerns retention of PH citizenship, **says nothing about foreign status**
 - RA 9225 does not allow dual allegiance bcs **oath is already implicit renunciation** of foreign allegiance → **up to foreign law to respond to that reality**

ISSUES

- **RA 9225 UNCONSTITUTIONAL / VIOLATES SEC 5 ART IV? – NO**
 - W/N RA 9225 is unconstitutional for violation the constitution with regards to dual allegiance

RATIO

- **LEGISLATIVE INTENT OF RA 9225 CURATIVE**
 - Congress record shows law aims to make reacquisition of PH citz. speedy, recognize PH citizenship but **does nothing about foreign citizenship**
- **IMPLICIT RENUNCIATION**
 - Nonetheless, in the mind of the legislative framers oath is also an implicit renouncement of foreign citizenship = not our problem / leave it up to interpretation re: status to foreign law
- **NO JUDICIAL LEGISLATION ON DUAL ALLEGIANCE**
 - Art 5 is non self executing and requires enabling codes
 - “Dual allegiance shall be dealt with by law” – mandate for congress to define and regulate dual allegiance
 - Court cannot legislate on what constitutes dual allegiance / it is premature

DUAL CITIZENSHIP - arises from conflict of laws / concurrent application of laws

DUAL ALLEGIANCE - voluntary and active participation in foreign naturalization and the rights and obligations conferred therefrom

DISPOSITION: PETITION DISMISSED, RA 9225 HELD CONSTITUTIONAL

Identity and Syllabus Relevance

- **Case Name:** *AASJS (Advocates and Adherents of Social Justice for School Teachers and Allied Workers) Member - Hector Gumangan Calilung v. The Honorable Simeon Datumanong, in his official capacity as the Secretary of Justice*, G.R. No. 160869, May 11, 2007 (Quisumbing, J.).
 - **Syllabus Relevance:** This case addresses the **constitutionality of Republic Act No. 9225** (Citizenship Retention and Re-acquisition Act of 2003) vis-à-vis the constitutional prohibition on **dual allegiance** under Section 5, Article IV of the 1987 Constitution. It distinguishes between **dual citizenship** (which is involuntary and arises from conflicting municipal laws) and **dual allegiance** (which is voluntary and active), declaring Section 5, Article IV of the Constitution to be **non-self-executing**.
-

Chronological Material Facts

1. **August 29, 2003:** Republic Act No. 9225 is approved, declaring it the policy of the State that natural-born Filipino citizens who acquire foreign citizenship shall retain or reacquire their Philippine citizenship upon taking a prescribed Oath of Allegiance.
2. **Implementation:** Respondent Simeon Datumanong, as the Secretary of Justice, is tasked with the official implementation of laws governing citizenship, including RA 9225.
3. **Challenge:** Petitioner Hector Gumangan Calilung, suing as a member of AASJS, takes issue with the law, asserting that the mechanism of retention/reacquisition creates a situation where an individual simultaneously holds allegiance to both the Philippines and a foreign sovereign.

Procedural History

- **Supreme Court Filing:** Petitioner files an original action for **Prohibition under Rule 65** of the Rules of Court.
 - **Relief Prayed For:** A writ of prohibition to permanently enjoin and stop respondent Secretary of Justice from implementing R.A. No. 9225.
-

Parties' Material Arguments

- **Petitioner's Arguments:**
 - **Cheapening Citizenship:** R.A. No. 9225 "cheapens" Philippine citizenship by allowing dual allegiance.
 - **Dual Allegiance via Sections 2 and 3:** Under Section 2, Filipinos who become foreign citizens retain their Philippine citizenship without losing foreign citizenship. Section 3 permits dual allegiance because it allows natural-born citizens to regain their Philippine citizenship by merely taking an oath of allegiance *without forfeiting* their foreign allegiance.
 - **Constitutional Violation:** This structural consequence directly violates Section 5, Article IV of the 1987 Constitution, which declares dual allegiance to be "inimical to the national interest".
 - **Respondent's Arguments:**
 - **No Recognition of Dual Allegiance:** R.A. No. 9225 does not recognize or sanction dual allegiance. Swearing an oath of allegiance to the Republic of the Philippines implicitly renounces foreign allegiance.
 - **Non-Self-Executing Provision:** Section 5, Article IV is a non-self-executing policy statement that requires legislative definition and parameters.
-

Issue

- **Whether Republic Act No. 9225 is unconstitutional for violating Section 5, Article IV of the 1987 Constitution regarding dual allegiance.**
-

♥ Holding

- **NO.** Republic Act No. 9225 is constitutional. It does not recognize or facilitate dual allegiance.
-

♥ Controlling Reasoning

- **Legislative Intent to Overrule CA 63:** Legislative deliberations show that the clear intent of Congress was to do away with the harsh provisions of **Commonwealth Act No. 63**, which automatically stripped natural-born Filipinos of their citizenship if they naturalized in another country. R.A. 9225 simply permits **dual citizenship** for natural-born Filipinos, which is not constitutionally proscribed.
 - **Implicit Renunciation:** By swearing to the supreme authority of the Republic of the Philippines under Section 3 of R.A. 9225, the person **implicitly renounces** their foreign citizenship and allegiance. The law intentionally avoids dealing with the other citizenship, leaving the burden of resolving any conflict of allegiance to the concerned foreign country.
 - **Non-Self-Executing Nature of Article IV, Section 5:** Section 5, Article IV is a **policy declaration**, not a self-executing constitutional right. It explicitly directs that dual allegiance "shall be dealt with by law," giving a direct mandate to Congress to enact a statute defining the parameters and consequences of dual allegiance. Until Congress enacts a specific law setting those parameters, any judicial determination on what constitutes dual allegiance is **premature**.
-

■ Doctrine, Tests, Elements, Exceptions, and Limits

- **The Non-Self-Executing Constitutional Provisions Test:** A provision is non-self-executing when it lays down a general principle or policy rather than an immediately enforceable rule, and explicitly leaves the implementation, definition, or penalization to the legislature (indicated by phrases like "*shall be dealt with by law*").
- **Dual Citizenship vs. Dual Allegiance Distinction:**
 - **Dual Citizenship:** A status where a person is simultaneously considered a national of two states due to the concurrent application of their respective

municipal laws (e.g., *jus soli* and *jus sanguinis*), arising **involuntarily** by birth.

- **Dual Allegiance:** A status brought about by an individual's **voluntary, active participation** in the naturalization process of another country.
-

Disposition

The Supreme Court **DISMISSED** the petition for lack of merit, thereby upholding the constitutionality of Republic Act No. 9225.

Source-Verified Quotable Line

"Section 5, Article IV of the Constitution is a declaration of a policy and it is not a self-executing provision. The legislature still has to enact the law on dual allegiance."

Recitation Capsule

"May it please the Court, the case of *Calilung v. Datumanong* (2007) categorically affirms the constitutionality of Republic Act No. 9225, otherwise known as the Citizenship Retention and Re-acquisition Act of 2003.

The petitioner challenged the law, arguing it facilitates dual allegiance in violation of Section 5, Article IV of the 1987 Constitution. The Supreme Court rejected this contention and ruled on two vital grounds. First, Section 5, Article IV is a non-self-executing policy statement. The phrase 'shall be dealt with by law' is an explicit directive to Congress to define and penalize dual allegiance. Until Congress enacts such a specific law, it is premature for the courts to rule on what constitutes dual allegiance. Second, the Court clarified that R.A. 9225 merely allows the retention of dual citizenship. By taking the oath of allegiance to the Philippines, the citizen implicitly renounces any foreign allegiance,

leaving the status of their foreign citizenship to be dealt with solely by the laws of the foreign state."

? Likely Follow-Ups

1. **Q: If a repatriated dual citizen wants to run for public office, does the *Calilung* doctrine exempt them from renouncing their foreign citizenship?**
 - **A: No.** While *Calilung* allows the passive holding of dual citizenship, Section 5(2) of R.A. 9225 imposes an additional, mandatory condition for those seeking elective public office: they must execute a **personal and sworn renunciation** of any and all foreign citizenship before an authorized officer at the time of filing their CoC. This was strictly enforced in *Sobejana-Condon v. COMELEC* and *Maquiling v. COMELEC*.
 2. **Q: Does R.A. 9225 apply to naturalized Filipino citizens who subsequently acquire foreign citizenship?**
 - **A: No.** As held in *Calilung* and clarified in *Gana-Carait v. COMELEC*, R.A. 9225's scope is strictly limited to **natural-born citizens** of the Philippines who lost their citizenship through naturalization in a foreign country.
 3. **Q: Under *Calilung*, is "dual citizenship" a ground for disqualification from local elective office under Section 40(d) of the Local Government Code?**
 - **A: No.** As clarified in *Mercado v. Manzano* (and integrated into the dual-citizenship jurisprudence surrounding *Calilung*), the term "dual citizenship" in Section 40(d) must be understood as **dual allegiance**. Dual citizenship by birth is involuntary and does not disqualify a candidate. Only dual allegiance (voluntary acquisition of foreign citizenship without a subsequent valid renunciation) triggers the disqualification.
-

One-Sentence Doctrine Anchor

Section 5, Article IV of the Constitution is a non-self-executing policy declaration; hence, R.A. No. 9225 is constitutional because dual citizenship is not prohibited, and any challenge regarding dual

allegiance is premature until Congress enacts a specific law defining its parameters.

Gana-Carait v. COMELEC | GR 257453 (2022)**DOCTRINE: TWIN REQUIREMENT OF RA 9225 FOR PUBLIC OFFICE ONLY APPLIES TO DUAL CITIZENS BY NATURALIZATION****FACTS**

- **1991 GANA CARAIT BORN DUAL CITIZEN**

- PH Father + US Mother, born in Makati
- Both US and PH have jus sanguinis (citizenship by blood)
- Making Gana-Carait both American and Filipino

- **2004 CRBA APPLICATION**

- Parents applied Gana-Carait for Consular Report of Birth (CRBA) at the US Consular Services
- Certifies US Citizenship of Gana-Carait when she was 13YO

- **2013 SHE RUNS FOR BRGY KAGAWAD**

- **2016 SHE RUNS FOR SANGGUNIANG PANGLUNGSOD (COUNCILOR)**

- Both in Binan, Laguna

- **2018 SHE RUNS AGAIN FOR COUNCILOR**

- Declares she is a Filipino citizen
- No sworn renunciation of US Citizenship

- **ROMMEL LIM PETITIONS FOR DISQUALIFICATION**

- COMELEC 1st Division says she is covered by RA9225's twin requirements for public officials as a dual citizen by naturalization (bcs of her CRBA) and so she is disqualified.

ISSUES + HOLDING

- **(1) COMELEC EN BANC FINALITY? – NO**

- Executory but not final (30-days period for judicial review)

- **(2) US MOM/PH DAD DUAL CITIZEN BY BIRTH? – YES**

- Conflict of municipal laws (jus sanguinis)
- Even with CRBA – CRBA does not confer US Citizenship, she was already a US Citizenship it just certifies it
 - Comelec committed grave abuse of discretion in applying CRBA (no judicial notice for foreign laws)
- Inherent to her by birth requiring no positive act (such as naturalization)

- **(3) TWIN REQUIREMENTS UNDER RA9225 APPLY? – NO**

- Only applies to Dual Citizens by naturalization
- Sec 3 and 5(2) of RA 9225 requires it for Filipinos who 'lost citizenship' and reacquires it by naturalization; she never lost her citizenship and as such she does not require another oath
- For dual citizens, filing a COC to run is already an implicit renunciation

- **(4) FAILURE TO RENOUNCE COC = FALSE MATERIAL REPRESENTATION ? – NO**

- Not required to renounce her US citizenship, her COC already perfectly eligible
- Dual citizenship is a matter of disqualification not ineligibility/voidness from the start

DISPOSITION : PETITION GRANTED, COMELEC DECISION TO DISQUALIFY DENIED

GALLEGO v. VERRA | GR 48641 (1941) / AKR/LR

DOCTRINE: RESIDENCE = DOMICILE IN ELECTION LAW, DOMICILE NOT EASILY LOST BY PRIMA FACIE RESIDENCE IN ANOTHER PLACE; (CHANGE IN DOMICILE/RESIDENCE = MUST HAVE (1) PHYSICAL PRESENCE, (2) ANIMUS MANENDI, AND (3) ANIMUS NON REVERTENDI)

FACTS

- **ABUYOG** - Pedro Gallego is a resident of Abuyog, Leyte
- **KAATOAN, MALAYBALAY** - In 1938 he moved to Sitio Kaatoan, Malaybalay, Bukidnon as a result of unemployment (from leaving his job as a schoolteacher in Abuyog and losing the subsequent mayoral elections therein) and worked there as a nurseryman for the Bureau of Forestry's chinchona plantation.
 - He was offered housing by the government in the plantations he worked for, but he rejected it
 - He bought land in Abuyog while he was in Malaybalay
 - He frequently returns to visit family in Abuyog, and he never brought his family with him Abuyog
 - However, he did vote in Malaybay in 1938 and obtained a 'residence certificate' from their municipal treasurer
- **RUN FOR MAYOR QUESTIONED** - On December 10, 1940, he decide to run for mayor of Abuyog and wins against his opponent, Vicente Verra by over 800 votes
 - Loser Verra petitions to declare illegal and void his election as mayor on grounds that he did not have the residency qualificati/on to run for mayor. CA/CFI ruled in favor of Verra, and against Gallego, hence the **petition for certiorari**.

ISSUES**1. LOSS OF DOMICILE? – NO**

- a. **W/N** Gallego lost his domicile of origin in Abuyog, Leyte and acquired a new domicile of choice in Malaybalay, Bukidnon by working during, voting, and certifying, his residency there? – NO

2. RESIDENCY QUALIFICATIONS MET? – YES

- a. **W/N** Gallego met the residency qualifications to run for mayor in Abuyog Leyte - YES

RATIO**1. DOMICILE IS NOT EASILY LOST**

- a. **Residence is the same as domicile** in election law
 - i. Change in Domicile = Must have (1) physical presence + (2) intention to remain *animus manendi* + (3) intention to abandon the old domicile *animus non revertendi* (*Nuval v. Guray*)
 - ii. *Residence is lost upon change in domicile* (*Romualdez v. RTC*)
- b. **Abuyog was always Gallego's domicile**, as evidenced by his positive acts:
 - i. Always went back for family, his family remained there
 - ii. Bought land
 - iii. Only left due to financial drawback
- c. **If Abuyog was always Gallego's domicile, then it was always his residence too.**
- d. **Did he lose his residence/domicile by voting/working in Malaybalay?**
 - i. No, because these are just *prima facie evidence* of his residence; can be overcome with proven intent
 - ii. Analogous to *Larena v. Teves* = they do not lose actual residence

2. RESIDENCY QUALIFICATIONS MET

- a. **By logic** - Because he never lost his residence/domicile in Abuyog, he remained qualified for the position and satisfied the 1-year residence qualification
- b. **Even if** - he 'changed' residence, he avers that he filed his intent to run for office as early as May, 1939 and it has been more than a year since he went back to Abuyog thus satisfying/reacquiring his residency requirement
 - i. Court says this is immaterial as it has been held **he never lost it from the start**
- c. **In principle (obiter)** - the intent of the law in fixing a residency qualification is to exclude strangers or newcomers who do not know the real struggles of the community
 - i. Gallega is a native, and the people have voted for him so we cannot disregard the will of the people.

DISPOSITION: CA RULING IS REVERSED, ELECTION IS VALID AND LEGAL

Identity and Syllabus Relevance

- **Case Name:** *Pedro Gallego v. Vicente Verra*, G.R. No. 48641, November 24, 1941 (Ozaeta, J.).
- **Syllabus Relevance:** This is a foundational case on **residency qualifications for elective local offices**. It establishes that for election law purposes, "residence" is synonymous with "domicile". It lays down the strict tripartite test to prove a change in domicile and clarifies that administrative acts—such as **registering to vote, voting, and purchasing a residence certificate in another locality—constitute only *prima facie* evidence of residence**, which can be easily rebutted by physical and intentional acts showing a clear intent to return (*animus revertendi*) to one's domicile of origin.

Chronological Material Facts

1. **Origin:** Petitioner Pedro Gallego is a native of Abuyog, Leyte. He studied in Catarman, Samar, and later worked as a school teacher in various municipalities in Samar, Agusan, and Leyte.
2. **Defeat and Debt (1937):** In 1937, Gallego resigned as a school teacher and ran for municipal mayor of Abuyog, Leyte, but lost. Defeated, in debt, and unemployed, he left Abuyog to look for a job in Mindanao.
3. **Relocation to Bukidnon (June 20, 1938):** He arrived in Kaato-an, Malaybalay, Bukidnon, and immediately found work as a nurseryman in the chinchona plantation of the Bureau of Forestry.
4. **Temporary Return and Refusal of Sogod Job (July–August 1938):** He returned briefly to Abuyog on July 30, 1938, due to a teaching job offer in Sogod, Leyte. He ultimately declined the teaching offer and returned to Bukidnon on August 23, 1938, to resume his nurseryman job.
5. **Bukidnon Work and Omissions (1938–1940):** Gallego stayed in Bukidnon until his resignation in September 1940. Crucially, during his entire stay:
 - His **wife and children remained in Abuyog, Leyte**; he never brought them to Bukidnon.
 - He **refused the government's offer of a free house** on the plantation.
 - He **declined to claim a 10-hectare parcel of land** offered within the plantation reservation.
 - He visited his family in Abuyog every August in 1938, 1939, and 1940.

- He bought real property in Abuyog during his stay in Bukidnon.
 - 6. **Administrative Actions in Bukidnon:** While working in Bukidnon, Gallego registered as a voter, voted in the 1938 election for assemblymen, and secured his 1940 residence certificate in Malaybalay.
 - 7. **The 1940 Election:** In December 1940, Gallego ran for municipal mayor of Abuyog, Leyte. He won by an overwhelming majority of nearly 800 votes against the respondent, Vicente Verra.
-

Procedural History

- **Trial Court (CFI of Leyte):** Vicente Verra filed an election protest challenging Gallego's eligibility, arguing Gallego lacked the required one-year residence in Abuyog prior to the election. The CFI Leyte declared Gallego's election void and ordered him ousted.
 - **Court of Appeals:** The Court of Appeals affirmed the CFI, relying on *Tanseco v. Arteche* and *Nuval v. Guray*. The CA ruled that Gallego's voter registration, voting, and residence certificate in Bukidnon proved he had voluntarily acquired a domicile of choice in Malaybalay and lost his domicile of origin in Abuyog.
 - **Supreme Court Review:** Gallego elevated the case directly to the Supreme Court via a Petition for Certiorari under Rule 45.
-

Parties' Material Arguments

- **Petitioner's (Pedro Gallego's) Arguments:**
 - **No Abandonment of Domicile:** His departure from Abuyog was temporary and driven purely by economic necessity (unemployment and debt). He always maintained *animus revertendi* (intent to return) to Abuyog.
 - **Physical & Material Anchors:** He left his family in Abuyog, rejected free housing and land in Bukidnon, purchased real property in Abuyog, and visited his family annually.
 - **Respondent's (Vicente Verra's) Arguments:**
 - **Acquisition of Domicile of Choice:** By working as a government employee, registering to vote, casting a ballot in 1938, and buying his residence certificate in Bukidnon, Gallego performed decisive voluntary acts that established a new domicile of choice under the law.
 - **Statutory Deficit:** Gallego was physically absent from Abuyog for over two years; thus, he failed to satisfy the one-year physical residency qualification.
-

Issues

1. Whether Pedro Gallego lost his domicile of origin in Abuyog, Leyte, and acquired a domicile of choice in Malaybalay, Bukidnon, by registering as a voter, voting, and obtaining his residence certificate there.
2. Whether Gallego met the statutory requirement of being a resident of Abuyog, Leyte, for at least one year prior to the December 10, 1940, mayoral election.

♥ Holdings

1. **NO.** Gallego never lost his domicile of origin in Abuyog, Leyte. His registration, voting, and residence certificate in Bukidnon were merely *prima facie* acts that were successfully rebutted by the physical facts of his life showing a lack of intent to abandon Abuyog.
 2. **YES.** Because he never lost his domicile of origin, Abuyog remained his legal residence, satisfying the one-year residence qualification under the Election Law.
-

♥ Controlling Reasoning

1. Registration is Prima Facie, Not Conclusive

- **Interchangeability of Terms:** Domicile and residence are synonymous under Philippine election laws. Domicile of origin is never easily lost and persists until a new one is successfully acquired.
- **Rebutting the Paper Trail:** Although Gallego registered and voted in Bukidnon, these administrative acts are only *prima facie* evidence of residence. They are not conclusive and can be easily overcome by clear evidence of a contrary intent.
- **Lack of Animus Manendi and Animus Non Revertendi:** Gallego did not move to Bukidnon with the intention of remaining there indefinitely (*animus manendi*) or with the intention of abandoning Abuyog (*animus non revertendi*). He moved solely because of a temporary financial crisis. He left his family in Abuyog, refused permanent housing and land grants in Bukidnon, bought more land in Abuyog, and visited home every year. These physical anchors overwhelmingly confirm his *animus revertendi*.

2. The True Purpose of Residence Qualifications

- **Excluding Strangers, Not Locals:** The core legislative purpose of a residency requirement is to prevent a complete stranger or newcomer—unfamiliar with the conditions and needs of a community—from taking office.
 - Gallego was a native of Abuyog who had only been away for two years for work and maintained constant contact with his townspeople. Upholding his qualification does not thwart the purpose of the law; hence, the clear will of the electorate (who voted for him by a landslide of 800 votes) must be respected.
-

■ Doctrine, Tests, Elements, Exceptions, and Limits

- **The Domicile of Choice Tripartite Test:** To successfully establish a new domicile of choice and abandon a domicile of origin, three elements must concur:
 1. **Physical presence** or actual residence in the new locality.
 2. **Animus manendi:** A *bona fide* intention to remain there permanently or indefinitely.
 3. **Animus non revertendi:** A clear and deliberate intention to abandon the old domicile.

- **The Prima Facie Rule of Voter Registration:** The act of registering as a voter, voting, and buying a residence certificate in a locality is not conclusive proof of domicile. It is merely a *prima facie* presumption that is completely destroyed if the candidate's family, properties, and physical life demonstrate a persistent attachment to their domicile of origin.
-

Disposition

The Supreme Court **REVERSED** the judgment of the Court of Appeals. Pedro Gallego's election as municipal mayor of Abuyog, Leyte, was declared **VALID and LEGAL**, with costs against the respondent.

Source-Verified Quotable Line

"The manifest intent of the law in fixing a residence qualification is to exclude a stranger or newcomer, unacquainted with the conditions and needs of a community and not identified with the latter, from an elective office to serve that community; and when the evidence on the alleged lack of residence qualification is weak or inconclusive and it clearly appears, as in the instant case, that the purpose of the law would not be thwarted by upholding the right to the office, the will of the electorate should be respected."

Recitation Capsule

"May it please the Court, the landmark case of *Gallego v. Verra* establishes that voter registration, voting, and purchasing a residence certificate in another town are merely *prima facie* indicators of residence that do not conclusively prove a change in domicile.

The Court held that under election law, residence is synonymous with domicile, which is not easily lost. To prove a change from a domicile of origin to a domicile of choice, there must concur physical presence, the intent to stay permanently (*animus manendi*), and the intent to abandon the old home (*animus non revertendi*).

In this case, although Gallego worked and voted in Bukidnon for two years, his family remained in Abuyog, he refused permanent housing and land grants in Bukidnon, visited home regularly, and purchased property in Abuyog. These physical facts successfully rebutted any presumption of abandonment. Because the purpose of the residency law is to exclude absolute strangers and not a native son who temporarily worked elsewhere due to financial hardship, the Supreme Court reversed the Court of Appeals and respected the clear mandate of the electorate."

? Likely Follow-Ups

1. **Q: Does a wife automatically acquire her husband's domicile of origin upon marriage under this doctrine?**
 - **A: No.** As established in *Romualdez-Marcos v. COMELEC*, what a spouse gains upon marriage is physical residence, but she does not automatically lose her independent domicile of origin unless she voluntarily performs positive acts showing a clear intent to abandon it and adopt her husband's domicile.
2. **Q: How does this case differ from *Caasi v. Court of Appeals*, where a "green card" holder was disqualified?**
 - **A:** In *Caasi*, the candidate was a US green card holder. The Supreme Court held that applying for and maintaining a green card is a voluntary, explicit, and legally binding representation to a foreign government of one's intent to establish a permanent residence abroad, which constitutes a complete abandonment of Philippine domicile. In contrast, Gallego was a government employee working temporarily within the Philippines with no such permanent treaty representations.
3. **Q: What if Gallego had actually moved his family to Bukidnon and accepted the free government housing, but still bought property in Abuyog?**
 - **A:** He would likely be **disqualified**. Bringing his family to the new locality and establishing a household in government-provided quarters would satisfy the physical elements of establishing a new domicile, signaling an intent to abandon Abuyog. The mere purchase of property in his hometown would not be strong enough to overcome the physical reality of his family's relocation.

Changed-Fact Application

- **Hypothetical:** Suppose Gallego went to Bukidnon, accepted the 10-hectare land grant, built a permanent house on it, brought his wife and children to live there, and enrolled his children in the local Bukidnon school. However, when running for mayor of Abuyog in 1940, he presented a handwritten letter from 1939 stating: "I still love Abuyog and intend to run for mayor there next year." Is he qualified?
- **Answer: No.** Under these changed facts, the tripartite test for acquiring a domicile of choice (*residency, animus manendi, and animus non revertendi*) is fully satisfied. Enrolling his children, building a permanent home, and relocating his entire family are overt, physical acts of establishing a permanent domicile in Bukidnon. A self-serving, written statement of intent to return cannot overcome these concrete physical actions. His domicile of origin was lost, and he would be disqualified for lack of residency in Abuyog.

One-Sentence Doctrine Anchor

A change of domicile requires the concurrence of physical presence and a clear intent to abandon the old home (*animus non revertendi*); hence, administrative acts like registering

to vote or voting in a new locality are merely *prima facie* evidence that cannot defeat a native's domicile of origin if his family, property, and ties remain in his hometown.

ROMUALDEZ v. RTC | GR104960 (1993) - MADVC/JR**DOCTRINE: CHANGE IN DOMICILE MUST BE VOLUNTARY****SUBSTANTIVE FACTS**

- **MALBOG ROOTS** - Philip Romualdez, niece of Imelda Marcos, and part of the Romualdez dynasty of politicians lived in Brgy. Malbog, Tolosa Leyte until 1986.
 - He served as Brgy. Captain, had his house constructed there, and voted in elections there
- **ASYLUM IN US** - He and his family flee the Philippines after the onset of the 1986 People Power Revolution, seeking asylum in the United States which was later approved
- **DEPORTED-ISH** - In 1991, Romualdez received a letter from the US Immigration and Naturalization Service to voluntarily depart, at his own, expense, from the United States and go back to the Philippines, lest face deportation
 - He returns to the Philippines successfully and registers as a voter in 1992 in the same barangay, Malbog, in Tolosa, Leyte.
- **VOTING ELIGIB QUESTIONED** - In 1992, Respondent Donato Advincula filed a petition to exclude Romualdez from the list of voters in the barangay, arguing that he lost his residency requirement (1 year in the PH, 6 months in Malbog) to vote because he was a resident of Massachusetts and only recently came back.
- **CERTIORARI** - MTC ruled in favor of Romualdez, RTC ruled against him, hence this petition for certiorari.

ISSUES

- **MTC/RTC JURISDICTION? – YES**
 - **W/N** the lower courts acquired valid jurisdiction despite Advincula failing to allege that he was a voter of Tolosa, Leyte?
- **ROMUALDEZ STILL A RESIDENT OF MALBOG? – YES**
 - **W/N** Philip Romualdez voluntarily left the country and abandoned his legal residence and domicile in Malbog, Tolosa, Leyte.

RATIO

- **On MTC/RTC JURISDICTION**
 - **ESTOPPED** - Romualdez estopped himself from assailing the jurisdiction of the lower courts because he prayed to affirm the lower court (MTC) ruling in the appeal before RTC → he recognized it then, y not now?
 - **LOCUS STANDI ACTUALLY** - Court further says it is not an issue of jurisdiction but rather, on standing (locus standi) of Advincula
 - **2ND ISSUE PRIMORDIAL** - They did not rule further and said that the second issue was primordial
- **On ROMUALDEZ STILL A RESIDENT OF MALBOG**
 - **RESIDENCE = DOMICILE** in election law
 - Residence is lost upon a change of domicile
 - **THREE REQS FOR DOMICILE CHANGE**
 - Physical presence / residence must be actual
 - Animus manendi for an indefinite period of time
 - Animus non revertendi to old domicile
 - **ADDITIONAL acc to the court: MUST BE VOLUNTARY**

- For it to count as a genuine abandonment of residence / domicile by choice they must have actually made that choice duh
- **IN THIS CASE, CHANGE OF RESIDENCE WAS NOT VOLUNTARY**
 - **1986 PEOPLE POWER FORCED THEM OUT**
 - Romualdez and his family faced great apprehension and fled the country
 - No evidence to convince the court they actually intended or in fact abandoned his residence and established his domicile elsewhere.

DISPO: RTC OVERTURNED, ROMUALDEZ STILL A RESIDENT

Identity and Syllabus Relevance

- **Case Name:** *Philip G. Romualdez v. Regional Trial Court, Branch 7, Tacloban City, Donato Advincula, Board of Election Inspectors, Precinct No. 9, Malbog, Tolosa, Leyte, and the Municipal Registrar COMELEC, Tolosa, Leyte*, G.R. No. 104960, September 14, 1993 (Vitug, J.; En Banc).
- **Syllabus Relevance:** This is a key authority on the **Residency and Domiciliary qualifications of voters and political candidates**. It clarifies that "residence" is synonymous with "domicile" under election laws. Crucially, it establishes that **flight or self-exile due to sudden political upheaval (such as the 1986 EDSA Revolution) is involuntary** and does not constitute a voluntary abandonment of a domicile of origin.

Chronological Material Facts

1. **Early 1980:** Petitioner Philip Romualdez—a natural-born Filipino citizen, son of former Leyte Governor Benjamin "Kokoy" Romualdez, and nephew of Imelda Marcos—constructs his residential house in Barangay Malbog, Tolosa, Leyte, establishing his legal residence there.
2. **1982:** Romualdez is elected and serves as Barangay Captain of Barangay Malbog.
3. **1984 & 1986:** He acts as the Campaign Manager for the Kilusang Bagong Lipunan (KBL) in Leyte and votes in both the 1984 Batasan Election and the 1986 snap Presidential Election.
4. **February 1986:** Following the EDSA People's Power Revolution, fearing for their personal safety, Romualdez and his immediate family flee the country and seek political asylum in the United States, which is granted. While abroad, he pursues special studies on Leyte-Samar development and international business finance.
5. **Early 1987:** Romualdez attempts to return to the Philippines to run for a congressional seat. He books a return flight for March 23, 1987, but the flight is aborted because he is not welcome in the country at that time.
6. **September 25, 1991:** He receives a formal letter from the U.S. Immigration and Naturalization Service (INS) ordering him to depart from the U.S. on or before August 23, 1992.

7. **December 23, 1991:** Romualdez returns to the Philippines without a government travel document and immediately goes to his established residence in Barangay Malbog, Tolosa, Leyte.
 8. **February 1, 1992:** During the voter registration for the May 11, 1992 synchronized elections, Romualdez registers at Precinct No. 9 of Malbog. The Chairman of the Board of Election Inspectors, knowing Romualdez's history, allows him to register.
-

Procedural History

- **MTC Exclusion Proceeding (February 21, 1992):** Private respondent Donato Advincula files a petition with the Municipal Trial Court (MTC) of Tolosa, Leyte, seeking to exclude Romualdez from the list of voters under BP 881 and RA 7166.
 - **MTC Dismissal (February 28, 1992):** The MTC of Tolosa (presided by Judge Paulino Cabello) denies Advincula's petition, finding Romualdez to be a qualified resident.
 - **RTC Reversal (April 3, 1992):** On appeal, the Regional Trial Court (RTC) of Tacloban City, Branch 7 (presided by Judge Pedro Espina) reverses the MTC decision in toto and disqualifies Romualdez, ordering his name deleted from the voter list.
 - **Supreme Court Filing:** Romualdez files a Special Civil Action for Certiorari under Rule 65 with a prayer for a Temporary Restraining Order (TRO). The Supreme Court issues a TRO on May 7, 1992, enjoining the enforcement of the RTC decision.
-

Parties' Material Arguments

- **Private Respondent's (Advincula's) Arguments:**
 - **Substantive Non-Residency:** Romualdez was a resident of Massachusetts, USA, where he practiced his profession. Having just recently returned in December 1991, he lacked the mandatory 1-year residency in the Philippines and 6-month residency in Tolosa to qualify as a voter.
 - **Procedural Lack of Jurisdiction:** (Raised in response to Romualdez's jurisdictional challenge) The MTC and RTC had valid jurisdiction over the case despite Advincula's failure to explicitly allege in his initial petition that he was a registered voter of Tolosa.
 - **Petitioner's (Romualdez's) Arguments:**
 - **Involuntary Absence:** His physical absence from Leyte from 1986 to 1991 was involuntary due to sudden political exile. Therefore, it did not constitute an abandonment of his domicile. He constantly maintained *animus revertendi* (the intent to return).
 - **Procedural Defect:** The MTC and RTC lacked jurisdiction because Advincula failed to allege that he was a registered voter in the municipality of Tolosa, which is a requirement under Section 142 of the Omnibus Election Code.
-

Issues

1. Whether the MTC and RTC acquired valid jurisdiction over the voter exclusion petition despite private respondent Advincula's failure to explicitly allege that he was a registered voter of Tolosa, Leyte.
 2. Whether Philip Romualdez voluntarily left the country and abandoned his legal residence and domicile in Malbog, Tolosa, Leyte.
-

Holdings

1. **YES.** While Advincula's petition failed to explicitly allege his voter status, **Romualdez is estopped from assailing the jurisdiction of the courts** because he actively participated in the proceedings and sought affirmative relief thereat.
 2. **NO.** Romualdez's physical absence was involuntary and did not result in the abandonment of his domicile of origin. Thus, he met the residency qualifications to register as a voter.
-

Controlling Reasoning

1. Jurisdiction, Estoppel, and Locus Standi

- **The Rule of Estoppel:** Although lack of jurisdiction over the subject matter may generally be assailed at any stage of a case, a party is barred from doing so if they actively participated in the proceedings without raising any objection.
- Romualdez failed to raise the jurisdictional defect in his MTC Answer. When the case was appealed to the RTC, he explicitly prayed in his appeal-memorandum for the RTC to affirm the MTC's favorable decision, thereby invoking the court's jurisdiction to seek affirmative relief. Consequently, he is estopped from questioning the jurisdiction of the courts, and any challenge regarding Advincula's *locus standi* is deemed foreclosed.

2. Domicile vs. Physical Absence and the Involuntary Nature of Exile

- **Residencial Synonymy:** In Philippine election law, the terms "residence" and "domicile" are used interchangeably. To successfully acquire a new domicile of choice, there must concur: (1) actual physical presence in the new locality, (2) *animus manendi* (intent to remain indefinitely), and (3) *animus non revertendi* (intent to abandon the old domicile).
- **No Abandonment from Involuntary Departure:** The 1986 EDSA Revolution caused immense, well-founded apprehension for the personal safety and welfare of the Romualdez family. Their departure and subsequent self-exile in the United States were **involuntary** acts driven by extraordinary political force. An involuntary departure cannot be characterized as a voluntary abandonment of one's legal residence.

- **Clear Overt Acts of Animus Revertendi:** Romualdez demonstrated a persistent intent to return to Tolosa:
 - He built a permanent residence there in the early 1980s.
 - He attempted to return as early as 1987, but his flight was aborted.
 - Immediately upon arriving in the Philippines in December 1991, he went straight back to his home in Barangay Malbog without delay.
 - His physical absence did not sever his legal ties to his domicile of origin; thus, he remained a qualified resident-voter.
-

Doctrine, Tests, Elements, Exceptions, and Limits

- **The Tripartite Domicile of Choice Test:** To prove that an individual has abandoned their domicile of origin and established a new domicile of choice, three elements must concur:
 1. Actual physical presence or habitation in the new locality.
 2. *Animus manendi*: A clear intent to remain in the new place indefinitely.
 3. *Animus non revertendi*: A deliberate intent to completely abandon and not return to the previous domicile.
 - **The Involuntary Absence Exception:** A temporary physical departure from one's domicile due to political exile, flight from war, or threats to physical safety is legally **involuntary**. It does not constitute an abandonment of domicile, and the domicile of origin is legally presumed to continue.
-

Disposition

The Supreme Court **GRANTED** the petition. The Decision of the Regional Trial Court of Tacloban City, Branch 7, dated April 3, 1992, was **REVERSED and SET ASIDE**, and the Decision of the Municipal Trial Court of Tolosa, Leyte, dated February 28, 1992, was **REINSTATED**. The Temporary Restraining Order was made **PERMANENT**.

Source-Verified Quotable Line

"Their going into self-exile until conditions favorable to them would have somehow stabilized is understandable. Certainly, their sudden departure from the country cannot be described as 'voluntary', or as 'abandonment of residence'..."

Recitation Capsule

"May it please the Court, the case of *Romualdez v. RTC* establishes that forced flight or self-exile resulting from sudden political upheaval is involuntary and does not constitute a voluntary abandonment of one's domicile.

The petitioner, Philip Romualdez, fled the Philippines to the United States during the 1986 EDSA Revolution, returning in December 1991 to register as a voter in Tolosa, Leyte. His registration was challenged on the ground that he lacked the required physical residency. The Supreme Court ruled in his favor, reiterating that for election purposes, 'residence' is synonymous with 'domicile,' which is not easily lost.

To establish a new domicile of choice, there must concur physical presence, the intent to stay indefinitely, and the intent to abandon the old domicile (*animus non revertendi*). Because Romualdez fled out of fear for his safety, his departure was involuntary. He consistently manifested his intent to return by constructing a permanent home, serving as barangay captain, attempting to return in 1987, and going straight to Leyte upon his arrival in 1991. Thus, his domicile of origin in Tolosa remained intact, satisfying the residency requirements."

? Likely Follow-Ups

1. **Q: Does this ruling mean that any citizen who leaves the country for a long period can claim they never abandoned their domicile simply by stating they intended to return?**
 - A: **No.** The intent to return (*animus revertendi*) cannot be established by mere self-serving declarations. It must be supported by concrete physical and circumstantial facts. In this case, Romualdez had established real, physical anchors before leaving (owning a permanent house and serving as an elected official) and immediately returned to that specific home upon landing.
2. **Q: How does this case differ from *Caasi v. Court of Appeals*, where a "green card" holder was held to have abandoned his Philippine residence?**
 - A: As distinguished in *Macalintal v. COMELEC*, the petitioner in *Caasi* had voluntarily applied for and accepted "green card" immigrant status in the US, which under US law is a binding legal representation of an intent to reside permanently abroad. In contrast, Romualdez was a political refugee who sought temporary asylum due to an emergency, never voluntarily naturalized or committed to foreign permanent residency, and actively sought to return home.
3. **Q: What is the effect of Romualdez's return to the Philippines "without a government travel document"?**
 - A: The Supreme Court ruled that his lack of formal travel documents did not affect his citizenship or residency. His physical arrival and immediate return to his ancestral home in Tolosa were the physical facts (*factum*) that manifested his persistent *animus revertendi*.

Changed-Fact Application

- **Hypothetical:** Suppose that while in the United States, Philip Romualdez voluntarily applied for and was granted U.S. naturalization in 1989. When he returned to Leyte in December 1991, he registered to vote without undergoing any repatriation or naturalization proceedings under Philippine law. Is he a qualified voter?
- **Answer: No.** Under Section 1(1) of Commonwealth Act No. 63, a Filipino citizen automatically loses their citizenship upon naturalization in a foreign country. Even if his original departure in 1986 was involuntary, his subsequent voluntary act of naturalization in 1989 constitutes a legal forfeiture of his Philippine citizenship. Under Section 39(a) of the Local Government Code and Article V of the Constitution, citizenship is an absolute prerequisite for voting and holding public office. Lacking Philippine citizenship, he would be disqualified from registering as a voter, regardless of his domiciliary ties.

One-Sentence Doctrine Anchor

Because forced exile during a political revolution is legally involuntary, it does not constitute an abandonment of domicile, and the citizen's domicile of origin remains intact if supported by consistent overt acts of *animus revertendi*.

AKBAYAN v. COMELEC | GR 147066 (2001) RADA/DM

DOCTRINE: VOTER REGISTRATION IS A VALID CONSTITUTIONAL REGULATION ON THE EXERCISE OF SUFFRAGE AND DOES NOT IMPOSE SUBSTANTIVE REQUIREMENT TO VOTE. COMELEC HAS THE POWER/DISCRETION TO SET LIMITS ON VOTER REGISTRATION

FACTS

- **ASSAILED IS RA 8189 (VOTER'S REGISTRATION ACT OF 1996)** established a system of continuing registration for voters.
 - **Sec 8 RA 8189** provides that registration is conducted daily EXCEPT during the **prohibitive period starting 120 days** before a regular election.
 - AKBAYAN and other youth groups sought from COMELEC **2 special registration days** for the 4 million young new voters who failed to register before the December 27, 2000 deadline set by COMELEC.
- **SENATE HEARING APPROVED** - Sen. Raul Roco and civic groups held a public hearing on the matter where it was agreed with the COMELEC Commissioners that it is feasible to have a 2-day additional registration period for voters on February 17/18 2001, and that some measures will be put in place to safeguard against fraudulent applicants/flying voters.
- **COMELEC ENBANC DENIED PROPOSAL** - COMELEC releases **Reso No. 3584** denying the proposal for 2-day special registration on the grounds that:
 - (1) It is within the 120-day prohibitive period under Sec 8 RA8189
 - (2) It will not be able to accomplish the pre-election activities and requirements on time
- **AGGRIEVED** - Two petitions from (1) AKBAYAN-Youth and other youth groups for certioari and mandamus and (2) Michelle Betito a UP Student filed for mandamus to compel COMELEC to nullify the resolution, declare RA8189 unconstitutional, and conduct the 2-day special elections. Petitioners argue:
 - (1) **SEC8 RA 8189 disenfranchises** young voters who did not know the registration was over due to COMELEC's failure to campaign and spread awareness
 - (2) **COMELEC has residual/standby powers** to conduct pre-election activities (including registration) beyond the prohibitive period under **SEC 28 RA 8436** and **SEC 29 RA 6646** if the periods prescribed by law can no longer be reasonably observed.

ISSUES

- **RESO 3584 ABUSE OF DISCRETION? – NO**
 - **W/N** COMELEC committed grave abuse of discretion in issuing Reso No. 3584 denying the request for a two-day special registration?
- **MANDAMUS TO COMPEL COMELEC? – NO**
 - **W/N** Court can compel COMELEC via a writ of mandamus to conduct a special registration of new voters outside of the statutory/prohibitive period?

RATIO

- **ON RESO 3854**
 - **COMELEC acted in valid/strict implementation of SEC 8 RA 8189**
 - **(1) Suffrage is subject to procedural regulation**
 - Registration is an indispensable procedural requirement to determine who is qualified to vote.
 - **(2) Harmonization of Statutes**
 - With regards to **SEC 28 RA8436** as amended by **SEC 29 RA6646**
 - Standby powers must be read in harmony with other preceding laws
 - Meaning it can only apply and be used when it is reasonably and still realistically possible to be performed
 - **(3) nemo tenetur ad imposible (no one is bound to do the impossible)**
 - COMELEC argues it is now well beyond the period to add more registrants; it will delay their timeline and introduce logistical backlogs (in printing of forms, encoding, etc.) and will clutch their vital leeway of time before the elections
 - Disrupts exclusion proceedings, computerized voter lists, etc.

- **ON MANDAMUS**

- **COMELEC has broad discretion given to it by the Constitution (ART IX-C)**

- Mandamus cannot compel an act that is explicitly prohibited by law
 - Nor can it control the discretionary and administrative capabilities of a constitutional body

DISPOSITION: PETITIONS DENIED

DISSENT (PARDO)

- **PROHIBITIVE PERIOD IS DIRECTORY NOT MANDATORY**

- Standby power exists so COMELEC can protect the right to vote and ensure more enfranchisement for voters / remedy and so voters may not be deprived of the right of suffrage

- **PROHIBITIVE PERIOD STARTS JANUARY 14, 2001**

- COMELEC prematurely cut off the continuing registration period and disenfranchised millions of voters. Standby power should have been exercised.

Identity and Syllabus Relevance

- **Case Name:** *AKBAYAN-Youth, SCAP, UCSC, MASP, KOMPIL II-Youth, et al. v. Commission on Elections*, G.R. No. 147066 consolidated with *Michelle D. Betito v. Chairman Alfredo Benipayo, et al.*, G.R. No. 147179, March 26, 2001 (Buena, J.; En Banc).
- **Syllabus Relevance:** This case defines the legal nature of **voter registration** as a valid procedural regulation of the right of suffrage, rather than an additional substantive qualification. It highlights the constitutional limits of the Supreme Court's power of judicial review over the administrative discretion and operational determinations of the **Commission on Elections (COMELEC)** under the principle of separation of powers.

Chronological Material Facts

1. **June 11, 1996:** Congress enacts **Republic Act No. 8189** (The Voter's Registration Act of 1996), which establishes a system of continuing registration of voters. Under Section 8 of the Act, registration is conducted daily during regular office hours except during the period starting **120 days before a regular election**.
2. **September 28, 2000:** Pursuant to its constitutional powers, the COMELEC adopts a resolution prescribing the calendar of activities for the May 14, 2001 General Elections. This resolution sets **December 27, 2000** as the last day to file applications for registration.
3. **Post-December 27, 2000:** Approximately four million youth of voting age fail to register before the deadline. Activists, students, and civic leaders lobby for an extension.
4. **January 25, 2001:** Senator Raul Roco, Chairman of the Senate Committee on Electoral Reforms, Suffrage, and People's Participation, calls a public hearing to discuss a proposed two-day special registration.

5. **January 29, 2001:** COMELEC Commissioners Luzviminda G. Tancangco and Ralph C. Lantion attend the Senate hearing and subsequently submit Memorandum No. 2001-027, recommending a two-day nationwide special registration of new voters on February 17 and 18, 2001.
 6. **Consultation & Opposition:** Commissioner Resurreccion Borra calls a consultation meeting of senior staff and regional heads. The consensus group (with the exception of one director) strongly recommends disapproving the request. They argue that Section 8 of R.A. No. 8189 explicitly bars registration starting 120 days before an election (which began on January 14, 2001), and that a special registration is an "**operational impossibility**" given the remaining timelines for pre-election activities.
 7. **February 8, 2001:** The COMELEC issues **Resolution No. 3584**, voting 2-2 to deny the request to conduct the two-day special registration. Because of the tie/impasse, the commission deems the denial of the request to have taken effect.
 8. **March 19, 2001:** President Gloria Macapagal-Arroyo calls a special session of Congress to pass bills (House Bill No. 12930 and Senate Bill No. 2276) designed to amend R.A. No. 8189's 120-day prohibitive period to allow a special registration. Congress fails to pass the bills.
-

Procedural History

- **Supreme Court Original Action:** Aggrieved by COMELEC's denial, AKBAYAN-Youth and other student groups file a Petition for Certiorari and Mandamus (G.R. No. 147066). They seek to nullify COMELEC Resolution No. 3584, declare the 120-day prohibitive period in Section 8 of R.A. No. 8189 unconstitutional, and compel COMELEC to conduct a special registration.
 - **Consolidation:** Student Michelle Betito files a separate Petition for Mandamus (G.R. No. 147179) with similar prayers. On March 13, 2001, the Supreme Court consolidates both cases and schedules oral arguments.
 - **Solicitor General's Stance:** The Solicitor General files a Manifestation recommending that the Court allow a special registration in the interest of enfranchising the youth.
-

Parties' Material Arguments

- **Petitioners' (Youth Sector's) Arguments:**
 - **Disenfranchisement:** The 120-day prohibitive period under Section 8 of R.A. No. 8189 is an unconstitutional restriction that effectively disenfranchises four million young voters.
 - **Standby/Residual Powers:** Under Section 28 of R.A. No. 8436 (and Section 29 of R.A. No. 6646), the COMELEC has the "standby power" to fix and designate other dates for pre-election acts (such as registration) if the periods prescribed by law can no longer be observed.
 - **Failure of Publicity:** The COMELEC failed to conduct a widespread, nationwide information campaign to warn new voters of the December 27, 2000 deadline.
- **Respondent's (COMELEC's) Arguments:**
 - **Explicit Legal Bar:** Section 8 of R.A. No. 8189 explicitly prohibits any voter registration starting 120 days before a regular election. The 120-day prohibitive period began on January 14, 2001; thus, holding a registration in February is illegal.
 - **Operational Impossibility:** The 120-day window is administratively vital. Reopening registration would leave the COMELEC with no time to accomplish pre-election tasks:

completing project precincts, constituting the Board of Election Inspectors, verifying and sealing the Book of Voters, and printing/distributing ballots.

- **Compromising the Voters' List:** Holding a special registration would bypass the mandatory 100-day prohibitive period for filing petitions for the exclusion of unqualified voters (Section 35 of R.A. No. 8189). This would invite "flying" and "ghost" voters, destroying the integrity of the election.
-

Issues

1. Whether the COMELEC committed grave abuse of discretion in issuing Resolution No. 3584 denying the request for a two-day special registration.
 2. Whether the Supreme Court can compel the COMELEC via a writ of mandamus to conduct a special registration of new voters outside of the statutory timeline.
-

Holdings

1. **NO.** The COMELEC did not commit grave abuse of discretion. It acted in strict accordance with the explicit provisions of Section 8 of R.A. No. 8189.
 2. **NO.** Mandamus cannot lie to compel an act that is explicitly prohibited by law, nor can it control the discretionary and administrative capabilities of a constitutional body on matters of operational feasibility.
-

Controlling Reasoning

1. Registration is a Regulation, Not a Qualification

- **Valid Police Power Exercise:** The right of suffrage under Article V, Section 1 of the Constitution is not absolute. It is subject to procedural requirements. Registration is an indispensable precondition to voting, designed to insulate the electoral system from fraud.
- Under its police power, the State has the authority to regulate registration. Section 8 of R.A. No. 8189 is a valid legislative regulation, and the 120-day prohibitive period is clear and unequivocal.

2. Harmonization of Conflicting Statutes

- **The Standby Power is Conditional:** The Court applied the principle *interpretare et concordare legibus est optimus interpretandi* (to interpret and harmonize laws is the best method of interpretation).
- The "standby power" of the COMELEC under Section 28 of R.A. No. 8436 to adjust pre-election dates only applies if the pre-election activities can **still be reasonably and realistically performed** within the remaining period before election day.
- In this case, the COMELEC demonstrated that reopening registration would create administrative chaos, disrupt the generation of the Computerized Voters' List, and bypass the statutory safety nets of adversarial exclusion proceedings under Section 35 of R.A. No. 8189.

3. Nemo Tenetur ad Impossibile (No one is bound to do the impossible)

- **Respect for Administrative Expertise:** Courts must accord great weight to the operational and technical assessments of specialized administrative agencies. The COMELEC showed that it was an "operational impossibility" to conduct the registration.
- The law does not require the impossible (*nemo tenetur ad impossibile / impossibilium nulla obligatio est*). It is presumed that the legislature never intended an interpretation of the law that is completely removed from the realm of the possible.

4. The Clean Hands / Vigilance Principle

- **Sleeping on Rights:** R.A. No. 8189's continuing registration system had been in place for more than four years prior to the deadline. The petitioners admitted they failed to register within this generous window.
- The law aids the vigilant and not those who slumber on their rights (*vigilantis sed non dormientibus jura in re subveniunt*). Having slept on their rights, they cannot bypass the law by claiming disenfranchisement.

5. Legislative Overreach and Congressional Intent

- The calling of a special session by the President to amend R.A. No. 8189 is a tacit admission by the political branches that a legal obstacle existed which could **only be cured by a new law passed by Congress**, not by judicial fiat or administrative shortcut. Since Congress did not pass the bill, the Court has no power to usurp legislative authority to validate a prohibited registration.

Doctrine, Tests, Elements, Exceptions, and Limits

- **The Registration vs. Qualification Test:** A registration requirement is constitutional as long as it regulates the *exercise* of suffrage rather than imposing a literacy, property, or substantive socio-economic standard that restricts the *right* itself.
- **The Mandamus Limitation Rule:** Mandamus only lies to compel the performance of a ministerial duty, not a discretionary one. The determination of whether a special registration is operationally feasible within the remaining days of an election cycle is a discretionary, administrative assessment of the COMELEC and cannot be controlled by mandamus.

Disposition

The Supreme Court **DENIED** the consolidated petitions for Certiorari and Mandamus.

Source-Verified Quotable Line

"In a representative democracy such as ours, the right of suffrage, although accorded a prime niche in the hierarchy of rights embodied in the fundamental law, ought to be exercised within the proper bounds and framework of the Constitution and must properly yield to pertinent laws skillfully enacted by the Legislature..."

"The law aids the vigilant and not those who slumber on their rights. *Vigilantis sed non dormientibus jura in re subveniunt.*"

Separate Opinions (Material Dissent of J. Pardo)

- **Dissenting Opinion of J. Pardo:** Justice Pardo argued that the 120-day prohibitive period under Section 8 of R.A. No. 8189 is directory, not mandatory. He asserted that the COMELEC had miscalculated the deadline. Counting exactly 120 days backwards from May 14, 2001, the prohibitive period actually began on January 14, 2001.
 - By arbitrarily declaring the deadline to be December 27, 2000, the COMELEC prematurely cut off the continuing registration period by eleven working days, misleading the public and actively disenfranchising millions of qualified voters. He believed the "standby power" to fix new dates under R.A. No. 8436 should have been exercised to protect the citizens' primordial right to vote.
-

Recitation Capsule

"May it please the Court, the consolidated cases of *Akbayan v. COMELEC* (2001) establish that voter registration is a procedural regulation of the right of suffrage, not a substantive qualification, and is subject to the reasonable statutory limits enacted by Congress.

In this case, the petitioners sought to compel the COMELEC to conduct a special two-day registration of youth voters after the December 27, 2000 deadline. The Supreme Court held that the COMELEC did not commit grave abuse of discretion in denying the request. Under Section 8 of R.A. No. 8189, no voter registration may be conducted within 120 days prior to a regular election.

The Court ruled that the COMELEC's standby power to adjust pre-election dates under R.A. No. 8436 is conditional upon 'operational possibility.' Because the COMELEC demonstrated that a special registration would make it impossible to finalize the project of precincts and the Computerized Voters' List on time, and would bypass safety nets against electoral fraud, the law cannot oblige the performance of an administrative impossibility. Mandamus does not lie because registration timelines are discretionary, and the law protects the vigilant, not those who slumber on their rights."

Likely Follow-Ups

1. **Q: Does this case mean the COMELEC has absolute, unreviewable discretion to set registration deadlines?**
 - A: **No.** As established in the subsequent case of *Palatino v. COMELEC* (2009), the COMELEC's rule-making power must conform to the prevailing law. In *Palatino*, the Court struck down a COMELEC resolution that set the registration deadline to October 31, 2009 (which was prior to the 120-day prohibitive period) because the law explicitly mandates continuing registration up until the start of the 120-day prohibitive period.
2. **Q: What is the difference between *Akbayan* and *Palatino v. COMELEC*?**
 - A: In *Akbayan*, the petitioners filed their case and sought an extension **within the 120-day prohibitive period** (February 2001). Thus, the law itself (R.A. No. 8189) barred the registration. In *Palatino*, the petition was filed and the requested extension fell **outside and before the 120-day prohibitive period**. Therefore, there was no legal statutory impediment to granting the extension in *Palatino*.
3. **Q: Can the legislature add a property or educational qualification to the requirements for voter registration?**
 - A: **No.** Under Article V, Section 1 of the 1987 Constitution, no literacy, property, or other substantive requirement shall be imposed on the exercise of suffrage. If a registration regulation rises to the level of propagating a socio-economic or educational barrier, it ceases to be a mere procedural regulation and will be declared unconstitutional.

Voter registration is a valid procedural regulation of the right of suffrage, and the Supreme Court cannot compel the COMELEC to conduct a special registration within the statutory 120-day prohibitive period preceding an election, as the law does not oblige a constitutional body to perform an operational impossibility.

Kabataan Partylist v. COMELEC | GR 221318 (2015) | RLP/S-QS-DPT.

DOCTRINE: MANDATORY BIOMETRIC REGISTRATION IS A CONSTITUTIONALLY VALID PROCEDURAL REGULATION ON THE RIGHT TO VOTE AS IT PASSES STRICT SCRUTINY TEST

FACTS

1. 2013 - RA 10367 PASSED BY NOYNOY

- **Act Providing for Mandatory Biometrics Voters Registration**
 - i. Sec 3 → Requiring biometric validation for registered and new voters
 - ii. Sec 7 → Deactivation as a consequence if failed to do biometric validation
 - iii. However they may reapply for reactivation under **Sec 28 of RA 8189**

2. LEAD UP TO 2016 NATNL/LOCAL ELECTIONS

- **PUBLISHED RESOS** for implementing rules and regulations and deactivation process (Reso 9721, 9863, and 10013)
 - i. Posted list in bulletin board
 - ii. Individual notices
 - iii. Summary ERB proceedings
- **NO BIO NO BOTO CAMPAIGN** from May 2014 to last day of reg
 - i. Last day of voters reg set at **October 31, 2015**

3. PETITIONS FILED / TRO ISSUED

- **PETITIONERS:** Kabataan Partylist (Ridon) and other progressive groups
- **ARGUMENTS:**
 - i. **RA10367 & RESOS UNCONSTITUTIONAL**
 - 1. **Additional substantial qualification** with deactivation
 - 2. **Fails strict scrutiny test.**
 - 3. **No due process**
 - 4. **Poor experience** with other countries
 - 5. **Premature prohibitive period**

ISSUES - 5P4S

1. (P) **NO STANDING** → **NO**

- a. W/N the procedural objections such as for legal standing, failure of implead parties, and improper remedy, bar the SC from reviewing this case? **NO**
 - i. Transcendental Public Importance
 - ii. **Pabillo v. Comelec** (Elections are important cases, ok to set aside procedurals)
 - iii. 2nd issue is more important

2. (S) **QUALIFICATIONS?** → **NO**

- a. W/N mandatory biometric validation constitutes an unconstitutional safeguard.
 - i. Intent of framers, 1935/1971 consti
 - ii. Regulatory power of state valid
 - iii. **Anakbayan v. Comelec**

3. (S) **STRICT SCRUTINY** → **YES PASSED**

- a. W/N RA passes the two-step strict scrutiny test?
 - i. Since it regulates fundamental rights; must pass the strict scrutiny test
 - ii. Strict Scrutiny Test:
 - 1. Compelling state interest
 - 2. Least restrictive means

4. (S) **DUE PROCESS** → **YES OBSERVED**

- a. W/N the summary deactivation against those w/o satisfied due process? **YES**
 - i. Proper prior notice
 - ii. Promotional campaign (NoBioNoBoto)
5. (S) **POLICY** → **POLICY QUESTION**
 - a. Experience/wisdom of policy left to congress
6. (S) **TIMELINE 120 DAYS PROHIBITIVE** → **NOT FULLY**
 - a. 120 days discretionary as long as it doesn't go during the 120 day prohibitive period
 - b. Prohibitive period may be extended but not reduced, for purposes of setting up election

DISPOSITION: PETITION DENIED, TRO DISSOLVED

Identity and Syllabus Relevance

- **Case Name:** *Kabataan Party-List, represented by Rep. James Mark Terry L. Ridon and Marjohara S. Tucay, et al. v. Commission on Elections*, G.R. No. 221318, December 16, 2015 (Perlas-Bernabe, J.; En Banc).
- **Syllabus Relevance:** This case is the definitive authority on the constitutionality of **mandatory biometrics voter registration**. It clarifies the distinction between substantive "**qualifications**" to vote (which are constitutionally fixed) and "**procedural regulations**" of registration (which the State can reasonably regulate under police power). It also applies the **strict scrutiny test** to electoral regulations, demonstrating how administrative voter-registry maintenance satisfies the compelling state interest standard using the least restrictive means.

Chronological Material Facts

1. **February 15, 2013:** President Benigno S. Aquino III signs into law **Republic Act No. 10367** (An Act Providing for Mandatory Biometrics Voter Registration). The law seeks to establish a clean, complete, permanent, and updated list of voters by adopting biometric technology (fingerprints, photos, signatures, etc.).
2. **The Deactivation Penalty:** Under R.A. No. 10367, registered voters who fail to submit themselves for biometrics validation on or before the last day of registration for the May 2016 elections shall have their voter registration records (VRRs) **deactivated**. Deactivated voters cannot vote in the 2016 elections but may apply for reactivation *after* the elections under Section 28 of R.A. No. 8189.
3. **June 26, 2013:** COMELEC issues Resolution No. 9721 (the IRR of R.A. No. 10367). It notes that as of October 31, 2012, a staggering **9,018,256 registered voters lacked biometrics data**.
4. **July 1, 2013:** The biometrics validation process begins nationwide. To facilitate validation, COMELEC sets up satellite registration centers in barangays and shopping malls, including Sunday operations.
5. **April 1, 2014:** COMELEC issues Resolution No. 9863, directing the Election Registration Boards (ERBs) to deactivate the VRRs of those who fail to submit for validation on or before the deadline of **October 31, 2015**.
6. **May 2014:** COMELEC launches the "**NoBio-NoBoto**" public information campaign, running concurrently with the 18-month registration period to warn voters of deactivation.
7. **November 3, 2015:** Following the passage of the October 31, 2015 deadline, COMELEC issues Resolution No. 10013, setting the summary deactivation procedure (posting lists, sending individual notices, and holding ERB hearings on November 16, 2015).

Procedural History

- **Supreme Court Filing (November 25, 2015):** Petitioners (youth sectoral representative Kabataan Party-List and other student leaders) file a Petition for Certiorari and Prohibition with the Supreme Court, challenging R.A. No. 10367 and the related COMELEC resolutions.
 - **The Temporary Restraining Order (December 1, 2015):** The Supreme Court issues a TRO directing the COMELEC to desist from deactivating the records of voters who failed to validate.
 - **The COMELEC Urgent Appeal (December 7, 2015):** COMELEC Chairman Juan Andres D. Bautista appeals to the SC to lift the TRO, warning that it forces the reinstatement of **2.4 million deactivated records**, making it operationally impossible to finalize the Project of Precincts (POP) by the December 15, 2015 deadline and risking the failure of the entire 2016 automated elections.
 - **The OSG Comment (December 11, 2015):** The Office of the Solicitor General (OSG) submits its comment, defending the validity of the law and urging the dismissal of the petition.
-

Parties' Material Arguments

- **Petitioners' Arguments:**
 - **Unconstitutional Substanty:** Biometrics validation acts as a substantive qualification to vote (akin to a property or literacy qualification) because non-compliance strips a registered voter of their right to vote through deactivation.
 - **No Constitutional Basis:** Deactivation is not an explicitly authorized grounds for constitutional "disqualification by law" under Section 1, Article V of the Constitution.
 - **Failure under Strict Scrutiny:** There is no compelling state interest to enforce biometrics, and it represents an unreasonable, overbroad restriction of the right of suffrage.
 - **Due Process Violation:** The summary deactivation process under Resolution No. 10013 fails to provide voters with sufficient notice or a proper hearing before losing their active status.
 - **Premature Close of Registration:** Pegging the deadline on October 31, 2015 violates Section 8 of R.A. No. 8189, which guarantees continuing registration until 120 days prior to a regular election (which would be in January 2016).
 - **Respondent's (COMELEC / OSG) Arguments:**
 - **Procedural Failures:** Petitioners failed to implead Congress and the President, lack standing, and used the wrong remedies (Certiorari/Prohibition) to review legislative enactments.
 - **Compelling State Interest:** The law aims to solve the chronic problem of electoral fraud (flying voters, multiple registrants, and deceased voters), which is a compelling state interest.
 - **Least Restrictive Regulation:** It requires only a brief, one-time personal appearance to record biometrics, and deactivated voters can easily reactivate their records after the election.
 - **Voters Slept on Rights:** Continuing registration had been available for over 2.5 years, and the 18-month "NoBio-NoBoto" campaign provided massive notice. The law aids the vigilant, not those who slumber.
-

Issues

1. **Procedural:** Whether the procedural objections (legal standing, failure to implead indispensable parties, and improper remedy) bar the Supreme Court's review.
2. **Substantive 1 (Qualifications vs. Regulations):** Whether mandatory biometrics validation under R.A. No. 10367 constitutes an unconstitutional substantive qualification on the right of suffrage.
3. **Substantive 2 (Strict Scrutiny):** Whether the biometrics validation requirement passes the strict scrutiny test.
4. **Substantive 3 (Due Process):** Whether the summary deactivation of voters without biometrics violates procedural due process.
5. **Substantive 4 (Registration Timelines):** Whether setting the validation deadline on October 31, 2015 prematurely closed the continuing registration period under Section 8 of R.A. No. 8189.

♥ Holdings

1. **NO.** In view of the transcendental importance and compelling public significance of the right of suffrage and upcoming national elections, the Court **brushed aside procedural technicalities** to resolve the case on the merits.
 2. **NO.** Biometrics validation is **not a qualification** to vote, but a **valid procedural regulation** of the registration process.
 3. **YES.** R.A. No. 10367 passes the strict scrutiny test. The government has proved both a **compelling state interest** and that the regulation is the **least restrictive means** of achieving it.
 4. **NO.** Widespread publication, the 18-month "NoBio-NoBoto" campaign, posting of listings in barangays, sending individual notices, and the availability of summary hearings satisfy **procedural due process**.
 5. **NO.** Section 8 of R.A. No. 8189 merely establishes a **prohibitive ceiling** (no registration within 120 days of a regular election). It does not prevent COMELEC from setting an earlier administrative deadline to meet the operational exigencies of preparing an automated election.
-

♥ Controlling Reasoning

1. Registration is a Mere Regulation, Not a Qualification

- **The Framers' Intent:** Deliberations of the 1973/1987 Constitutional Commissions make it clear that voter registration is a procedural requirement, not a substantive qualification. It falls completely outside the constitutional prohibition against literacy, property, or other substantive voting requirements.
- **Regulatory Authority:** Under its inherent police power, the State has the authority to regulate registration to protect the integrity of the ballot. Biometrics validation is a modern update to this regulatory framework, neutrally applying to all voters to verify identity before they vote.

2. Passing the Strict Scrutiny Test

- **The Compelling State Interest:** The State has a vital, compelling interest to protect the sanctity of the electoral system. Cleansing the national voter registry to eliminate "flying voters," double registrants, and deceased voters directly preserves the true will of the people.
- **The Least Restrictive Means:** The process is minimally intrusive. It merely requires a registered voter to personally appear once, present ID, and have their biometrics captured. To minimize public inconvenience, COMELEC conducted off-site mall registrations and operated on Sundays. Furthermore, deactivation is **not a permanent loss of suffrage**; affected citizens can easily reactivate their records after the election.

3. Compliance with Procedural Due Process

- The public had ample notice. R.A. No. 10367 was published in 2013. COMELEC ran the "NoBio-NoBoto" campaign for 18 months, posted lists in barangay and municipal halls, and sent individual notices. The summary nature of the ERB deactivation hearings is justified by the extreme urgency of finalizing the voter lists on time for the May 2016 elections.

4. No Judicial Review of Legislative Wisdom

- Petitioners' warnings regarding the mechanical breakdowns and struggles of other emerging economies (e.g., Kenya, Uganda) in biometrics implementation are policy questions. Under the separation of powers, the

wisdom, practicality, or efficacy of a statute is a matter of legislative policy that is completely insulated from judicial review.

5. Section 8 of R.A. 8189 as a Prohibitive Ceiling

- The 120-day limit in R.A. No. 8189 is a prohibitive window during which registration is legally barred. It does not mandate that COMELEC keep registration open up to that exact day. As an independent constitutional body, COMELEC possesses the administrative discretion to close registration earlier to ensure its automated systems are fully prepared.
-

Doctrine, Tests, Elements, and Limits

- **The Substantive Qualification vs. Procedural Regulation Test:** A registration requirement is constitutional if it serves to identify the voter and prevent fraud (procedural). It becomes unconstitutional only if it propagates a socio-economic, educational, or literacy standard (substantive) that lacks a rational basis to a person's intelligence to vote.
 - **The Strict Scrutiny Test for Fundamental Rights:** To regulate a fundamental right like suffrage, the State must prove:
 1. **Compelling State Interest:** The law must advance an exceptionally vital public objective.
 2. **Least Restrictive Means:** The regulatory method must be narrowly tailored, causing the absolute minimum possible disruption to the fundamental right.
-

Disposition

The Supreme Court **DENIED** the petition for lack of merit and immediately **DISSOLVED** the Temporary Restraining Order issued on December 1, 2015.

Obiter / Source-Verified Quotable Line

"Rights beget responsibilities; progress begets change."

"Whether RA 10367 was wise or unwise... is essentially a policy question and, hence, beyond the pale of judicial scrutiny."

Separate Opinions (Concurrence of J. Leonen)

- **Concurring Opinion of J. Leonen:** Justice Leonen strongly supported the law, stating that biometrics registration actually **enhances the right of suffrage** by ensuring that a vote is cast only by a live, legitimate voter.
- **The "Ghost" Metaphor:** He noted that names are deactivated because they do not correspond to living, real persons. Thus, deactivation does not disenfranchise anyone: **"A ghost cannot be disqualified because it does not exist."** He admonished petitioners to present constitutional objections with more legal rigor than broad political advocacies.

Recitation Capsule

"May it please the Court, the landmark case of *Kabataan Party-List v. COMELEC* (2015) establishes that mandatory biometrics voter registration under R.A. No. 10367 is a constitutional procedural regulation of the right of suffrage, not an additional substantive qualification.

The Court ruled that the Constitution prohibits substantive qualifications (like literacy or property) that create irrational socio-economic barriers to voting, but permits procedural regulations under the State's police power to ensure clean and honest elections. Applying the strict scrutiny test, the Court found that the biometrics requirement advances a compelling state interest: cleansing the national voter registry to eliminate flying voters, double registrants, and deceased voters.

Furthermore, it represents the least restrictive means to achieve this goal, as it requires a brief, one-time personal appearance to record biometrics, and deactivated voters can easily reactivate their records after the election. Finally, the Court ruled that the 120-day continuing registration limit in R.A. No. 8189 is a prohibitive window, not a mandate to keep registration open until that day. Hence, COMELEC has the administrative authority to set earlier operational deadlines to prepare for automated elections."

Likely Follow-Ups

1. **Q: How does this case reconcile with *Akbayan v. COMELEC* (2001) and *Palatino v. COMELEC* (2009)?**
 - A: In *Akbayan*, petitioners sought to register **within** the statutory 120-day prohibitive period; hence, the law itself barred it. In *Palatino*, COMELEC attempted to close registration **way before** the 120-day prohibitive period without sufficient administrative justification, which the SC struck down. In *Kabataan*, the early deadline (October 31, 2015) was justified by the massive, complex technological task of implementing mandatory biometrics for automated elections.
2. **Q: Does deactivation permanently strip a citizen of their right to vote?**
 - A: **No.** Deactivation is merely the temporary removal of the voter's name from the precinct book of voters for a specific election. Under R.A. No. 10367, deactivated voters can have their records fully reactivated for subsequent elections by complying with the reactivation procedure under Section 28 of R.A. No. 8189.
3. **Q: If a voter has incomplete or corrupted biometrics data in the VRS through no fault of their own, are they deactivated?**
 - A: **No.** As explicitly provided under COMELEC Resolution No. 10013, registration records of voters with incomplete biometrics or corrupted data in the database **shall not be deactivated** and they shall be allowed to vote. Deactivation only applies to those who totally failed to submit for validation.

Changed-Fact Application

- **Hypothetical:** Suppose R.A. No. 10367 provided that any voter who fails to undergo biometrics validation must pay a ₱5,000 fine and is permanently barred from ever registering or voting in any future Philippine election. Would the law still be constitutional?
- **Answer: No.** Under the changed facts, the law would fail the **least restrictive means** prong of the strict scrutiny test. While cleansing the registry remains a compelling state interest, imposing a steep financial penalty and a permanent, lifetime ban on voting is grossly disproportionate and punitive. Because it permanently

disenfranchises the citizen without any avenue for cure (reactivation), the regulation would rise to the level of an unconstitutional, hostile restriction on the fundamental right of suffrage.

One-Sentence Doctrine Anchor

Mandatory biometrics voter registration under R.A. No. 10367 is a constitutional procedural regulation that passes the strict scrutiny test because it is the least restrictive means to achieve the compelling state interest of purging the voter list of fraudulent registrations.

PALATINO v. COMELEC | GR 189868 (2009) | ERP-RV

DOCTRINE: VOTERS REGISTRATION MAY BE EXTENDED AS LONG AS IT IS NOT WITHIN THE PROHIBITIVE PERIOD AS ESTABLISHED BY RA 8189

FACTS

- **2010 ELECTIONS**
 - **RESO 8514 - OG VOTERS REG DEADLINE DECEMBER 2009**
 - **RESO 8585 - NEW DEADLINE SHORTENED TO OCT 2009**
 - **PUBLIC CLAMOR VS. COMELEC - UNFAZED**
 - **PETITION BY REP PALATINO FROM KABATAAN PARTYLIST**
 - One day before the Oct 31 deadline, petition seeks to **declare RESO 8585 null and void** and extend voters registration on grounds of:

(PETITIONER ARGS)

- **ENFRANCHISEMENT OF YOUTH VOTERS**
 - Millions of young voters not yet registered
- **SEC 8 RA 8189 PROVISION**
 - Can be extended to Jan 9, 2009 except 120 days before election (prohibitive period)
 - Encroached upon legislative power of congress

(COMELEC ARGS)

- **MORE TIME**
 - COMELEC insists it needs more time to prepare for first nationwide automated elections of 2010
- **STANDBY POWER**
 - Cites SEC 28 RA8436 and SEC 29 RA 6646 authorize it to fix dates for pre-election acts
- **JURISPRUDENCE**
 - Cites **Akbayan v. Comelec** (comelec has authority to set timeline for pre-election acts)

ISSUES

- (1) **RESO 8585 SHORTENING VOTER REG VOID? – YES**
 - **SEC 8 RA8189 –** COMELEC is independent but must act within the law
 - SEC 8 RA 8189 very clear; congress set the prohibitive period and it is enough
 - **STANDBY POWER RAs –** only usable if proven that it is not reasonable to conduct preelection activities within the period provided by law
 - Court says comelec did not prove continuing voters reg cannot be reasonably held after october but before january

- COMELEC can shorten voters reg only if they have valid reason (Kabataan Partylist v. Comelec)

○ **TEMPORAL DISTINCTION** – from Akbayan v. COMELEC

- Akbayan v. Comelec petition to extend voters reg was void bcs it was within prohibitive period
- Palatino v. Comelec petition to extend voters reg is not void bcs its made before the prohibitive period

DISPOSITION: PETITION GRANTED, RESO 8585 VOID

■ Identity and Syllabus Relevance

- **Case Name:** *Raymond V. Palatino, et al. v. Commission on Elections*, G.R. No. 189868, December 15, 2009 (Carpio-Morales, J.; En Banc).
- **Syllabus Relevance:** This is a landmark decision under the topic of the **Right of Suffrage** and **Voter Registration**. It defines the precise boundaries of the Commission on Elections' (COMELEC) administrative rule-making power in relation to legislative mandates. Specifically, it resolves whether the COMELEC can set an administrative registration cutoff date that prematurely terminates the statutory system of **continuing voter registration** under Section 8 of Republic Act No. 8189 (The Voter's Registration Act of 1996). It provides the crucial **temporal distinction** that limits the application of the *Akbayan v. COMELEC* (2001) doctrine.

■ Chronological Material Facts

1. **November 12, 2008:** The COMELEC issues **Resolution No. 8514**, setting the period for continuing voter registration using the biometrics process in non-ARMM areas from December 2, 2008 to December 15, 2009.
2. **February 12, 2009:** The COMELEC issues **Resolution No. 8585**, adjusting the deadline of voter registration for the May 10, 2010 national and local elections to **October 31, 2009** (abbreviating the registration period by 1.5 months).
3. **The Clamor:** A widespread public clamor ensues, demanding an extension of the October 31, 2009 deadline to prevent the disenfranchisement of millions of eligible youth voters.
4. **The Refusal:** Despite the public outcry, the COMELEC refuses to extend the deadline, maintaining that it requires a massive "buffer period" to prepare for the transition to the **first-ever nationwide automated elections** on May 10, 2010.
5. **The Temporal Anchor:** Under Section 8 of R.A. No. 8189, registration is prohibited during the **120 days** preceding a regular election. For the May 10, 2010 elections, this mandatory prohibitive period is set to commence on **January 10, 2010**.
6. **October 30, 2009:** One day before the COMELEC's administrative deadline of October 31, 2009, Kabataan Party-list Representative Raymond V. Palatino and other student leaders file a petition with the Supreme Court. They seek an extension of registration until **January 9, 2010**—the day immediately preceding the 120-day prohibitive period.

Procedural History

- **Supreme Court Original Action:** Petitioners file a Petition for Certiorari and Mandamus under Rule 65 of the Rules of Court directly in the Supreme Court on October 30, 2009.
- **Interim Status:** The elections proceed to draw near while the petition is pending.
- **Supreme Court Adjudication:** On December 15, 2009, the Supreme Court En Banc grants the petition, rendering its decision immediately executory.

Parties' Material Arguments

- **Petitioners' Arguments:**
 - **Unconstitutional Encroachment on Legislative Power:** R.A. No. 8189 explicitly mandates continuing daily voter registration up until the start of the 120-day prohibitive period before a regular election. The COMELEC's Resolution No. 8585 encroached upon the legislative power of Congress by unilaterally shortening this statutory period by more than two months.
 - **Temporal Distinction from *Akbayan*:** Unlike the petitioners in *Akbayan*, who filed their petition *during* the 120-day prohibitive period, the petitioners here filed their case and sought an extension *before* the prohibitive period began.
- **Respondent's (COMELEC's) Arguments:**
 - **Constitutional and Statutory Discretion:** Under the Constitution and the Omnibus Election Code, the COMELEC has the broad power to enforce and administer all election laws and promulgate rules to ensure free, orderly, and honest elections.
 - **Emergency Power to Adjust Timelines:** Under Section 29 of R.A. No. 6646 and Section 28 of R.A. No. 8436, the COMELEC is authorized to adjust dates and periods of pre-election acts when it is no longer "reasonably possible" to observe the statutory timelines.
 - **Operational Impossibility:** Preparing for a newly automated election is an unprecedented logistical challenge that requires cutting off registration early to finalize database configurations and voter lists.
 - **Stare Decisis:** The case is governed by the precedent in *Akbayan-Youth v. COMELEC* (2001), which upheld the COMELEC's power to refuse a late registration extension.

Issues

1. Whether COMELEC Resolution No. 8585 is null and void for violating the system of continuing voter registration mandated under Section 8 of R.A. No. 8189.
2. Whether the Court's ruling in *Akbayan-Youth v. COMELEC* is the controlling precedent that bars the petitioners' prayer for a registration extension.

Holdings

1. **YES.** Resolution No. 8585 is **null and void** insofar as it cut off registration on October 31, 2009. The COMELEC's rule-making power must be exercised in accordance with and in subordination to the prevailing law.
 2. **NO.** *Akbayan* is **not controlling** because of a critical temporal and factual distinction: the petitioners in *Akbayan* sought registration *within* the 120-day prohibitive period, whereas the petitioners here filed their case and sought an extension *before* the prohibitive period commenced.
-

Controlling Reasoning

1. Legislative Supremacy Over Voter Registration Timelines

- **Congressional Determination of Administrative Timelines:** Under Section 8 of R.A. No. 8189, Congress established a mandate for continuing voter registration. By setting the prohibitive window at 120 days before a regular election, **Congress itself has determined that a 120-day period is sufficient time** for the COMELEC to complete all its administrative and automated election preparations (e.g., project of precincts, finalizing computerized lists, printing ballots).
- **Rule-Making Subordination:** The COMELEC's constitutional mandate to formulate rules to implement election laws cannot be used to override, amend, or abbreviate a clear statutory timeframe enacted by the legislature. The COMELEC must exercise its rule-making power in strict accordance with the prevailing law.

2. The True Doctrine of Akbayan-Youth and the Temporal Distinction

- **Temporal Boundaries of Right of Suffrage:** In *Akbayan*, the petition was filed *after* the 120-day prohibitive window had already commenced, and those petitioners sought a special registration on dates clearly within the prohibited zone.
- **The "Clear Import" Rule:** The Court in *Akbayan* noted that those petitioners were at fault because they did not register during the open statutory period before the 120-day cutoff. The clear import of the *Akbayan* ruling is that **had those petitioners filed their petition and sought an extension date prior to the 120-day prohibitive period, their prayer would have been granted.**
- In this case, because both the filing of the petition (October 30, 2009) and the extension sought (until January 9, 2010) are prior to the January 10, 2010 prohibitive period, there is no legal impediment to the extension.

3. Limits of the Date-Adjustment Power

- Under Section 29 of R.A. No. 6646 and Section 28 of R.A. No. 8436, the COMELEC is granted the emergency power to fix alternative dates for pre-election acts **only if those activities "cannot be reasonably held" within the period provided by law.**
 - Here, there was no showing that continuing voter registration could not be reasonably held up until January 9, 2010. The COMELEC cannot invoke its emergency powers to create an artificial administrative bottleneck and deny citizens their fundamental right to register.
-

Doctrine, Tests, Elements, and Limits

- **The Legislative Determination Supremacy Rule:** The legislature's statutory timeframe for voter registration is a policy choice that cannot be administratively shortened by the COMELEC under the guise of "operational adjustments" or preparation buffers.
 - **The Temporal Distinction Test for Registration Extensions:**
 - **Within Prohibitive Window:** If the registration extension or the petition is filed *within* the 120-day prohibitive period preceding a regular election, the extension is legally barred and cannot be compelled by mandamus (*Akbayan*).
 - **Before Prohibitive Window:** If the petition is filed and the extension is sought for a period *outside/before* the 120-day prohibitive period, it must be granted as a matter of statutory right (*Palatino*).
-

Disposition

The Supreme Court **GRANTED** the petition. COMELEC Resolution No. 8585 was declared **NULL and VOID** insofar as it set the deadline of voter registration on October 31, 2009. The COMELEC was **DIRECTED** to proceed with dispatch in reopening the registration of voters and holding the same until January 9, 2010. The Decision was declared **IMMEDIATELY EXECUTORY**.

Source-Verified Quotable Line

"The clear text of the law thus decrees that voters be allowed to register daily during regular office hours, except during the period starting 120 days before a regular election..."

"And the COMELEC's rule-making power should be exercised in accordance with the prevailing law."

Recitation Capsule

"May it please the Court, the case of *Palatino v. COMELEC* (2009) establishes that the COMELEC cannot set an administrative voter registration deadline that prematurely terminates the statutory continuing registration period guaranteed under Section 8 of R.A. No. 8189.

The Court ruled that Section 8 mandates continuing voter registration daily, except during the 120 days preceding a regular election. Congress, in its legislative wisdom, has determined that this 120-day window is sufficient for the COMELEC's election preparations, and the COMELEC's administrative rule-making power must be exercised in subordination to, and not in violation of, this prevailing statute.

Furthermore, the Court distinguished this case from *Akbayan v. COMELEC*. In *Akbayan*, the petitioners filed their case and sought registration dates *within* the 120-day prohibitive window, making the extension legally impossible. In *Palatino*, however, both the filing of the

petition and the requested extension date (until January 9, 2010) fell *before* the 120-day prohibitive period (which began on January 10, 2010). Thus, there was no legal impediment, and the Court ordered the COMELEC to immediately reopen registration."

? Likely Follow-Ups

1. **Q: How does the *Palatino* ruling reconcile with the subsequent case of *Kabataan Party-List v. COMELEC* (2015), which allowed the COMELEC to set an early deadline (October 31, 2015) for biometrics validation?**
 - A: In *Kabataan* (2015), the Court dealt with R.A. No. 10367 (Mandatory Biometrics Voter Registration), a newer law that introduced a specialized technological validation requirement to cleanse the voter registry. The Court held that setting the biometrics validation deadline to October 31, 2015 was valid because it was a necessary operational step to cleanse the database using biometrics, whereas *Palatino* was a simple, general continuing registration case under the plain, unmodified text of Section 8 of R.A. No. 8189.
 2. **Q: Can the President use his emergency powers to suspend the 120-day prohibitive period and allow a special registration closer to election day?**
 - A: **No.** As noted in *Akbayan* and reiterated in *Palatino*, the 120-day prohibitive period is a mandatory statute. Even when the President called a special session of Congress to pass a law allowing a special registration, Congress failed to pass it. Only a formal legislative amendment enacted by Congress can suspend or alter the 120-day prohibitive period.
 3. **Q: If a voter attempts to register exactly 121 days before a regular election, but the COMELEC office is closed due to a local holiday, can they register on the 120th day?**
 - A: **No.** The 120-day prohibitive period is a strict, mandatory ceiling. Once the 120th day before the election is reached, the COMELEC is legally barred by Section 8 of R.A. No. 8189 from conducting any voter registration, regardless of prior administrative closures or holidays. The voter's remedy would have been to register earlier under the continuing registration system.
-

Changed-Fact Application

- **Hypothetical:** Suppose the petitioners in *Palatino* filed their case on October 30, 2009, but instead of asking for an extension until January 9, 2010, they prayed that the registration remain open indefinitely, including up to the very morning of election day (May 10, 2010). Will the Court grant the petition?
 - **Answer: Only in part.** The Court would apply the *Palatino* doctrine to nullify the COMELEC's October 31, 2009 deadline and order the registration reopened, but **only up until January 9, 2010**. The Court would deny the prayer to keep registration open after January 9, 2010 because the 120-day prohibitive period starting on January 10, 2010 is a mandatory statutory restriction enacted by Congress under Section 8 of R.A. No. 8189. The Court cannot compel the COMELEC to perform an act that is explicitly prohibited by law.
-

One-Sentence Doctrine Anchor

The COMELEC cannot administratively cut off voter registration prior to the statutory 120-day prohibitive period preceding a regular election, as R.A. No. 8189 guarantees continuing registration up until that prohibitive window.

CENIZA v. COMELEC | GR L52304 (1980) - BE/CM-SRG

DOCTRINE: VOTERS MAY BE PROHIBITED FROM VOTING IF THERE IS NO JURISDICTION OVER THEM AS IN THE CASE OF HIGHLY URBANIZED CITIES; THIS IS NOT A VIOLATION OF THE EQUAL PROTECTION CLAUSE

FACTS

- **(1979) BP51 CLASSIFIES CITIES; PROHIBITS VOTERS**

- Batas Pambansa 51, particularly Section 3 classifies:
 - **Highly Urbanized Cities** – those making >PHP40M annual regular income
 - **Component Cities** - all other cities that do not fall to the categ. Above
- Furthermore it provides that
 - **Voters in HUCs** not entitled to vote for provincial officials (only city ones)
 - **Voters in Components** may vote only if their charter so provides

- **PETITIONERS SUE BP51 FOR VIOLATING EQUAL PROTECTION**

- Petitioners are free legal assistance lawyers/advocates from the group DOERS and are residents of:
 - **Cebu City** - a highly urbanized city making PHP50M+ a year
 - **Mandaue City** - a component city whose charter prevents their voters from voting provincially
 - **BOTH CITIES, VOTERS ARE BARRED FROM VOTING PROVINCIALY**
- They pray for a TRO for all provinces, and stop release of funds for local elections in provinces; and allow voters to vote

PETITIONER ARGS (DOERS):

- **VIOLATES EQUAL PROTECTION**

- betw (1) HUC v Component voters; and (2) Component voters vs other Component voters
- Not based on substantial distinctions

- **SUBSTANTIAL REQUIREMENT PROHIBITED**

- **MANDAUE CITY CHARTER NOT RATIFIED BY PLEBISCITE**

ISSUES:

(1) **CEBU CITY VIOLATION OF EPC (HUCS) – NO**

- (a)
- (b) Actly based on **substantial distinctions**:
 - (i) **Income** (substantially more in HUCs > Components)
 - (ii) **Autonomy** (for cities, as provided for in Art VI in constitution)
- (c) Supporting case: **Teves v. COMELEC**
 - (i) Similar case facing Dumaguete voters; court denied that petition
 - (ii) **No jurisdiction = no representation**

(2) **MANDAUE CITY VIOLATION OF EPC (COMPONENTS) – NO**

- (a) Within **legislative discretion** (charter is an RA 5519)
- (b) EPC contemplates **equal enjoyment of rights**
 - (i) Prohibition only unconstitutional if voters from the same city cannot vote

(3) **SUBSTANTIVE REQUIREMENT? – NO**

- (a) Substantive requirement prohibited under **ART V, SEC 1 of 1973 Constitution**
- (b) **Not a substantive requirement** – the substantive refers to financial/property/taxation requirements not necessarily geographical registration to vote (**Harper v. Virginia**)
- (c) Voters can **still vote if they change registration**; no rights impinged on

(4) **CHARTER DULY RATIFIED? – YES**

- (a) Yes, implemented **before 1973 consti.** it still applies now;
- (b) Law requiring plebiscite cannot be prospective

(5) **GERRYMANDERING? – NO**

- (a) **No sufficient proof** presented
- (b) Couldve gone for both political sides, its the same result **goes both ways**

DISPOSITION: PETITION IS DISMISSED

Identity and Syllabus Relevance

- **Case Name:** *Ramon B. Ceniza, Federico C. Cabilao, Jr., Nelson J. Rosal and Alejandro R. Alinsug v. Commission on Elections, Commission on Audit, and National Treasurer*, G.R. No. L-52304, January 28, 1980 (Concepcion, Jr., J.; En Banc).
- **Syllabus Relevance:** This is a foundational case on **Local Governments, Suffrage, and Equal Protection**. It clarifies the constitutionality of classifying cities into highly urbanized and component cities based on income. It establishes that highly urbanized cities, being completely independent of provincial supervision, have no constitutional right to participate in the election of provincial officials who do not govern them.

Chronological Material Facts

1. **June 21, 1969:** Mandaue City is created through Republic Act No. 5519 (its charter) without the conduct of a ratification plebiscite. Section 96 of the charter provides that Mandaue's registered voters cannot participate in the election of provincial officials of Cebu, except as candidates.
2. **December 22, 1979:** The Interim Batasang Pambansa enacts **Batas Pambansa Blg. 51** providing for the local elections on January 30, 1980.
3. **Income Classification Standard:** Section 3 of the statute mandates that until formal reclassification under the Local Government Code, any city with an annual regular regular income of **not less than ₱40 Million** is classified as a **highly urbanized city**. All other cities are deemed **component cities**.
4. **The Voting Restriction:** BP Blg. 51 dictates that voters in highly urbanized cities *shall not* vote in provincial elections. Voters in component cities are allowed to vote in provincial elections *only if their respective city charters so provide*.
5. **Cebu City's Classification:** Because Cebu City has an annual regular income of **₱51,603,147.64**, it is classified as a highly urbanized city. Consequently, its voters are barred from voting for Cebu provincial officials, despite the *Cebu City Charter* permitting such participation.
6. **Mandaue City's Classification:** Because Mandaue City's income is below ₱40 Million, it is classified as a component city. However, because its charter (RA 5519) expressly prohibits its registered voters from voting in Cebu provincial elections, Mandaue voters are also barred from voting.
7. **The Petitioners:** Ramón Ceniza, Federico Cabilao, Jr., Nelson Rosal, and Alejandro Alinsug (members of a civic group known as D-O-E-R-S) are registered voters and taxpayers in Cebu City and Mandaue City who are barred from provincial voting.

■ Procedural History

- **Original Action (January 1980):** Petitioners file an original petition for **Prohibition and Mandamus** with a prayer for a writ of preliminary injunction before the Supreme Court.
 - **Relief Prayed For:** They seek to enjoin the provincial elections in Cebu, or, in the alternative, to compel the COMELEC to allow the registered voters of Cebu City and Mandaue City to vote for Cebu's elective provincial officials.
-

■ Parties' Material Arguments

- **Petitioners' Arguments:**
 - **Unconstitutional Classification (Cebu City):** Denying highly urbanized city voters the right to vote in provincial elections solely based on the city's ₱40 Million income is arbitrary. It is not based on substantial distinctions germane to the purpose of regulating suffrage and violates the **Equal Protection Clause**.
 - **Inequality among Component Cities (Mandaue City):** Voters of other component cities are allowed to vote in provincial elections under their charters, while Mandaue's voters are barred. This represents hostile, unequal treatment.
 - **Property Qualification:** Classifying voting rights based on city revenues is an unconstitutional wealth/property qualification on suffrage.
 - **Subversion of Republicanism:** Barring city voters from participating in the affairs of the geographical province disenfranchises them and violates the republican principle.
 - **Lack of Ratification (Mandaue):** RA 5519 (Mandaue Charter) is unconstitutional because it was never ratified in a plebiscite by Mandaue's residents.
 - **Political Gerrymandering:** The ruling party passed BP 51 to disenfranchise close to one-third (1/3) of Cebu's opposition-leaning voters (the 278,940 electorate of Cebu City and Mandaue City combined) to gain an unfair advantage in provincial elections.
 - **Respondents' (COMELEC, COA, National Treasurer) Arguments:**
 - **Legitimate Local Autonomy:** Highly urbanized cities are completely independent of provincial supervision under the Constitution. Since provincial officials have no jurisdiction or authority over Cebu City, its voters have no right to vote for them.
 - **Income as a Valid Classification:** City revenue is a substantial distinction indicating economic and political self-reliance. Component cities with smaller incomes need continued provincial support, justifying their continued participation.
 - **Legislative Discretion:** Allowing or prohibiting voters of a component city from voting in provincial elections is a matter of legislative policy within each charter.
-

■ Issues

1. Whether Section 3 of Batas Pambansa Blg. 51 violates the **Equal Protection Clause** by classifying cities into highly urbanized and component cities based on income, and consequently barring highly urbanized city voters from participating in provincial elections.
2. Whether the voters of Mandaue City are denied equal protection because they are barred from voting by their charter, while voters of other component cities are permitted to vote.

3. Whether the prohibition against voting in provincial elections violates the **Republican principle** or constitutes an unconstitutional **property qualification** on suffrage.
 4. Whether the Charter of Mandaue City is unconstitutional for lack of a ratification plebiscite.
-

Holdings

1. **NO.** Section 3 of Batas Pambansa Blg. 51 is constitutional. The classification of highly urbanized cities is reasonable, rests on substantial distinctions, and does not violate equal protection.
 2. **NO.** The difference in voting privileges among component cities is a matter of legislative discretion within municipal charters and does not violate the equal protection clause.
 3. **NO.** There is no violation of republicanism or suffrage. Highly urbanized cities are completely independent of the province, and provincial officials do not govern them. It does not impose an unconstitutional property qualification.
 4. **NO.** The plebiscite requirement was introduced only in the 1973 Constitution and applies prospectively. It cannot nullify Mandaue City's Charter enacted in 1969 under the 1935 Constitution.
-

Controlling Reasoning

1. Valid Income Classification and Autonomy

- **Independence Means Loss of Provincial Franchise:** The 1973 Constitution mandates the promotion of local autonomy (Art. II, Sec. 10) and places highly urbanized cities outside the supervisory power of the province geographically located (Art. XI, Sec. 4(1)).
- **No Jurisdiction, No Vote:** Under the ruling in *Teves v. COMELEC*, a city is a separate political entity from the province. Because Cebu's provincial governor and provincial board have **no governmental jurisdiction, authority, or supervisory powers over Cebu City**, its voters have no right to choose provincial leaders.
- **Income as a Measure of Self-Reliance:** Classifying cities based on an annual regular income of ₱40 Million is a substantial, legitimate distinction. It determines whether a city is economically capable of standing alone. Cities with smaller incomes (component cities) require provincial support, which justifies their continued participation in provincial elections.

2. Scope of Equal Protection and Legislative Prerogative

- **Equality Within Classes:** The equal protection of the law merely requires that all persons under like circumstances and conditions be treated alike. It would only be discriminatory if some voters within Cebu City were allowed to vote while others were barred.
- **Charter Customization:** Congress has the power to draft different terms in different city charters. The omission of a provincial voting privilege in Mandaue's charter is a valid exercise of legislative policy.
- **No Property Qualification:** The constitutional ban on property qualifications refers to barriers (like poll taxes or wealth tests) that prevent a person from voting. It does not prevent the State from defining the geographical boundaries of a voting district or restricting votes to the governed population.

3. Prospective Nature of Constitutional Plebiscites

- The requirement under Article XI, Section 3 of the 1973 Constitution that the creation or alteration of a city is subject to a plebiscite is **prospective in character**. Since Mandaue City was legally created on June 21, 1969, under the 1935 Constitution (which had no such rule), its charter is completely valid without a plebiscite.

4. Speculative Gerrymandering

- There is no factual showing of an unfair political advantage for the administration. As noted by the Solicitor General, the city voters could easily have been administration supporters, meaning their exclusion would work to the administration's political disadvantage.

Doctrine, Tests, Elements, and Limits

- **The Jurisdictional Suffrage Rule:** The right of suffrage is geographically tied to the governing jurisdiction. Voters of a highly urbanized city have no constitutional right to vote for provincial officials who do not exercise any jurisdiction or authority over that city.
- **The Income-Based City Classification Test:** Classifying cities based on regular annual income (₱40 Million or more) is a valid, constitutional classification that is germane to determining municipal self-reliance and independence from provincial supervision.
- **Equal Protection "Class" Rule:** Equal protection does not demand absolute, nationwide uniformity; it merely requires that all individuals within the same defined class (e.g., within the same city) enjoy the same rights and are subject to the same liabilities.
- **Constitutional Plebiscite Limit:** A constitutional requirement for a local government plebiscite applies only to entities created *after* the adoption of that Constitution and does not retroactively invalidate older municipal charters.

Disposition

The Supreme Court **DISMISSED** the petition for prohibition and mandamus. Costs were taxed against the petitioners.

Obiter / Source-Verified Quotable Line

"The equal protection of the law contemplates equality in the enjoyment of similar rights and privileges granted by law. It would have been discriminatory and a denial of the equal protection of the law if the statute prohibited an individual or group of voters in the city from voting for provincial officials while granting it to another individual or group of voters in the same city."

Recitation Capsule

"May it please the Court, the landmark case of *Ceniza v. COMELEC* (1980) establishes that voters of an independent, highly urbanized city have no constitutional right to vote in provincial elections, as provincial officials do not exercise any jurisdiction or supervisory authority over them.

The petitioners challenged Batas Pambansa Blg. 51, which barred voters of highly urbanized cities (Cebu City) and certain component cities (Mandaue City) from voting for provincial officials, arguing it violated the Equal Protection Clause. The Supreme Court rejected this contention and ruled on three grounds.

First, the classification based on a ₱40 Million annual regular income is a substantial and valid distinction under the Constitution, as it determines whether a city is economically self-reliant enough to exist independently from the province.

Second, because highly urbanized cities are completely independent of provincial supervision, it is just and proper to limit the provincial franchise strictly to the voters of the province whose interests are governed by provincial officials.

Third, the different treatment of component cities under their respective charters does not violate equal protection. Equal protection merely demands that all voters within the same city are treated equally. Since all Cebu City voters were treated the same and all Mandaue City voters were treated the same, the law is valid, and the petition was properly dismissed."

? Likely Follow-Ups and One Changed-Fact Application

1. **Q: Does a highly urbanized city still remain geographically part of the province?**
 - A: Yes. A highly urbanized city remains geographically located within the territory of the province, but politically and administratively, it is a completely separate and independent corporate entity.
2. **Q: If a province has a highly urbanized city, can a resident of that highly urbanized city run for the office of Provincial Governor?**
 - A: **No.** As established in *Teves* and affirmed in *Ceniza*, since the resident of a highly urbanized city is not a qualified voter of the province, they do not possess the required voter registration qualification under Section 39(a) of the Local Government Code to run for provincial office.
3. **Q: Can the legislature administratively reclassify a component city into a highly urbanized city even if it does not meet the income requirement?**
 - A: **No.** Reclassification must conform to the objective statutory standards established by law. Arbitrary reclassification without satisfying the statutory population or income thresholds would violate the Equal Protection Clause and the Local Government Code.

Changed-Fact Application

- **Hypothetical:** Suppose Batas Pambansa Blg. 51 provided that only voters of Cebu City who did not pay real property taxes were barred from voting in Cebu's provincial elections, while Cebu City property owners were permitted to vote. A non-property owner challenges the law. Will the challenge succeed?

- **Answer: Yes.** Under these changed facts, the law would be declared unconstitutional. This would represent an invidious, direct property and wealth qualification on the right of suffrage, which is explicitly prohibited under Article V, Section 1 of the Constitution and violates the *Maquera v. Borja* doctrine. It discriminates between citizens in the same city based on wealth, directly violating the Equal Protection Clause.

One-Sentence Doctrine Anchor

Because provincial officials have no jurisdiction over highly urbanized cities, depriving highly urbanized city voters of the provincial franchise under Batas Pambansa Blg. 51 is a valid classification based on substantial distinctions that does not violate the Equal Protection Clause.

Macalintal v. COMELEC | GR 157013 (2003) | RPC-S/S5/S18.5/S17.1-19-25

DOCTRINE: OVERSEES ABSENTEE VOTING IS CONSTITUTIONAL, RESIDENCE IS NOT LOST PROVIDED THEY HAVE SWORN AFFIDAVIT; ONLY CONGRESS CAN PROCLAIM PRES/VP; JCOCs OVERSEEING COMELEC NOT ALLOWED TOO

FACTS

- **RA 9189 - OVERSEES ABSENTEE VOTING ACT**

- **SEC 5(d)** - disqualifies immigrants or foreign residents unless they sign sworn affidavit + renounce any intention to apply for citizenship
 - Provides that failure to return after (3) years upon registration will disqualify them permanently from voting in absentia and remove them from voters' roll
- **SEC 18.5** - allows comelec to canvass votes and proclaim pres and vp in the event that elections abroad are delayed (in relation to Sec 4, which provides for the right to vote for national officials)
- **SEC 17.1/19/25** - puts comelec under JCOC oversight to review/revise/amend/approve implementing rules and regulations (such as mail in ballots) for RA 9189

- **PETITIONER MACALINTAL ARGUMENTS**

- Prohibition and Certiorari to declare RA 9189 unconstitutional on the grounds of:
 - **RESIDENCY REQUIREMENTS:** unconstitutionally allows filipinos abroad to bypass the residency requirements under Art. V, Sec 1 of the constitution invoking Caasi v. CA (green card holders are no longer residents of PH)
 - **SAME, CONDITIONAL RESIDENCY:** self serving affidavit; constitution doesn't allow the concept of conditional residency
 - **USURPATION OF PROCLAMATION POWER:** only congress can proclaim president/vice president not comelec
 - **COMELEC INDEPENDENCE:** Art IX-A Sec (1) provides for independence of constitutional commissions; Art IX-C Sec (3) states that comelec has sole prerogative to implement rules over elections; JCOC violates this

- **COMELEC/OSG ARGUMENTS:**

- **COMELEC NO COMMENT ON RESIDENCY/USURPATION; AGREES WITH #3**
- **OSG SAYS SEC 5(d) VALID CONSTITUTIONAL MANDATE; AGREES WITH #2 / #3**

ISSUES

- (1) **STANDING? – YES**

- **Tanada v. Angara** - transcendental importance, no need for citizen/taxpayer standing

- (2) **OVERSEES VOTING (SEC 5D) CONSTITUTIONAL? – YES**

- **HARMONIZATION**

- **Presumption of Constitutionality**
 - **Peralta v. Comelec** (presumption must be overcome convincingly)
 - **Chiongbian** (must be read as a whole)
- **Intent of Framers**
 - Enfranchise OFWs excluded by '35 and '73
 - Extends this right even to children of overseas workers and those on temporary stays
- **Residence = Domicile; Domicile cannot be easily lost**
 - **Romualdez-Marcos**
 - 3 Requirements for Domicile: factum, animus manendi, animus revertendi
 - Residents abroad only there temporarily
- **CONDITIONAL RESIDENCY**
 - Not unconstitutional; gives right to choose/declare intent to voters than assuming it
 - Safeguards in place (disqualification, removal from voters list) if not returned by 3 years upon registration

- (3) **SEC 18.5 PROCLAMATION CONSTITUTIONAL? – NO**

- **ART VII SEC 4 EXCLUSIVE POWER OF CONGRESS TO CANVASS AND PROCLAIM FOR PRES/VP**

- (4) SEC 17.1/19/25 JCOC CONSTITUTIONAL? – NO
 - INDEPENDENCE OF CONSTI COMMISSIONS (ART IX-A, SEC 1)
 - COMELEC SOLE PREROG TO IMPLEMENT RULES (ART IX-C, SEC 2(1))
 - EXPRESSIO UNIUS EST EXCLUSIO ALTERIUS

DISPOSITION: PARTIALLY GRANTED, ONLY SEC 5(D) CONSTITUTIONAL, SEC 18.5 PARTLY UNCONSTITUTIONAL, AND SEC 17/19/25 UNCONSTITUTIONAL

PUNO DISSENT:

- **AGREES WITH ALL OTHER ISSUES (EVEN HIS OPINION IS ADDED AS PONENCIA) BUT**
- Justice Puno **dissented from the majority's ruling on Section 5(d)**. He argued that an immigrant has already voluntarily made an arduous choice to establish a permanent home abroad, thereby abandoning their Philippine domicile.
- A self-serving, unfulfilled **"promise" to return within three years does not satisfy the constitutional residency requirement**. Allowing non-domiciliaries to vote dilutes the valid votes of resident electors, violating the sacrosanct "one person, one vote" principle.

Identity and Syllabus Relevance

- **Case Name:** *Atty. Romulo B. Macalintal v. Commission on Elections, Hon. Alberto Romulo (Executive Secretary), and Hon. Emilia T. Boncodin (Secretary of the Department of Budget and Management)*, G.R. No. 157013, July 10, 2003 (**Austria-Martinez, J.**; En Banc).
- **Syllabus Relevance:** This is a landmark decision on **The Right of Suffrage** and **Absentee Voting** under Article V, Sections 1 and 2 of the 1987 Constitution. It resolves the tension between the physical residency requirements of Article V, Section 1 and the mandate of Article V, Section 2 for Congress to provide a system of absentee voting for qualified Filipinos abroad. It also serves as a premier authority on **Administrative Independence and Separation of Powers**, specifically the unconstitutionality of a **"legislative veto"** or congressional oversight committee controlling the rule-making powers of an independent constitutional commission.

Chronological Material Facts

1. **February 13, 2003:** President Gloria Macapagal-Arroyo signs into law **Republic Act No. 9189**, otherwise known as **"The Overseas Absentee Voting Act of 2003"**. The law aims to enfranchise millions of qualified Filipino citizens residing or working abroad.
2. **The Disqualification Exception:** Section 5(d) of the Act disqualifies foreign immigrants and permanent residents from voting abroad. However, it carves out an exception: they may register and vote if they execute a sworn affidavit declaring that they will resume actual physical permanent residence in the Philippines not later than three (3) years from the approval of their registration, and that they have not applied for citizenship in another country.
3. **The Proclamation Clause:** Section 18.5 of the Act authorizes the Commission on Elections (COMELEC) to "order the proclamation of winning candidates" despite delayed or missing overseas votes, in terms so sweeping that it physically encompasses the national offices of **President and Vice-President**.
4. **The Legislative Oversight Clause:** Sections 17.1, 19, and 25 of the Act establish a **Joint Congressional Oversight Committee (JCOC)**. These provisions mandate that the COMELEC must submit its Implementing Rules and Regulations (IRR) to the JCOC for **prior review, revision, amendment, and approval**.
5. **The Taxpayer Action:** Romulo B. Macalintal, a member of the Philippine Bar, takes issue with these provisions and files a petition directly with the Supreme Court, asserting that public funds are being unlawfully appropriated and wasted to execute an unconstitutional statute.

Procedural History

- **Supreme Court Original Action:** Petitioner files a Petition for Certiorari and Prohibition under Rule 65 of the Rules of Court.
 - **Locus Standi Ruling:** The Supreme Court **upholds the standing of the petitioner** as a taxpayer and a lawyer, noting that taxpayers have a right to restrain officials from wasting public funds through the enforcement of an unconstitutional statute.
 - **State and COMELEC Positions:** The Office of the Solicitor General (OSG) defends the constitutionality of the voter residency rules. However, **both the COMELEC and the OSG join the petitioner** in arguing that the JCOC's supervisory/veto powers over the IRR are unconstitutional.
-

Parties' Material Arguments

- **Petitioner's (Macalintal's) Arguments:**
 - **Violation of Residency Requirements:** Under Article V, Section 1, a voter must reside in the Philippines for at least one year and in the place where they propose to vote for at least six months immediately preceding an election. Under the doctrine in *Caasi v. Court of Appeals*, an immigrant or "green card" holder is deemed to have abandoned their Philippine domicile. Section 5(d) violates the Constitution by granting "conditional" residency through a mere self-serving affidavit.
 - **Usurpation of Proclamation Power:** Under Section 4, Article VII of the Constitution, the exclusive power to canvass certificates of canvass and proclaim the winning President and Vice-President belongs to Congress, not the COMELEC.
 - **Infringement on Commission Independence:** Sections 17.1, 19, and 25 subject the COMELEC's rules to JCOC approval, which flagrantly violates the constitutional independence of the Commission under Section 1, Article IX-A.
 - **Respondent's (OSG / Public Respondents') Arguments:**
 - **The Overseas Franchise Exception:** The constitutionality of Section 5(d) must be upheld because the Constitution itself, under Article V, Section 2, directs Congress to provide a system for absentee voting by qualified Filipinos abroad. This mandate operates as an **explicit exception** to the physical residency requirement of Section 1.
 - **Evidentiary Value of the Affidavit:** The execution of the affidavit is a valid mechanism that proves the applicant maintains *animus revertendi* (intent to return), thereby retaining their Philippine domicile of origin.
-

Issues

1. Whether Section 5(d) of R.A. No. 9189, which permits immigrants and permanent residents to vote abroad upon executing a sworn affidavit of intent to return, violates the residency qualifications prescribed under Section 1, Article V of the Constitution.
 2. Whether Section 18.5 of R.A. No. 9189 unconstitutionally empowers the COMELEC to canvass and proclaim the winning candidates for **President and Vice-President**.
 3. Whether Sections 17.1, 19, and 25 of R.A. No. 9189 violate the constitutional independence of the COMELEC by subjecting its Implementing Rules and Regulations (IRR) to the review, revision, amendment, and approval of the Joint Congressional Oversight Committee (JCOC).
-

Holdings

1. **NO.** Section 5(d) of R.A. No. 9189 is **CONSTITUTIONAL**.
 2. **YES, IN PART.** Section 18.5 is **UNCONSTITUTIONAL** insofar as it empowers the COMELEC to canvass the votes and proclaim the winning candidates for **President and Vice-President**. It is **CONSTITUTIONAL** only with respect to the proclamation of Senators and party-list representatives.
 3. **YES.** The JCOC approval and veto clauses in Sections 17.1, 19, and 25 are **UNCONSTITUTIONAL and VOID** for violating the constitutional independence of the COMELEC.
-

Controlling Reasoning

1. Reconciling Residency and Absentee Voting

- **Harmonizing Constitutional Mandates:** Under the doctrine of necessary implication, the Constitution must be construed as a whole. Article V, Section 2 directs Congress to provide a system for absentee voting. This mandate **necessarily presupposes** that the qualified voter is physically absent from the Philippines. If actual physical residency under Section 1 were strictly required of overseas voters, the constitutional mandate to establish an absentee voting system would be rendered completely absurd and useless.
- **Domicile of Origin vs. Domicile of Choice:** Domicile of origin is acquired at birth and is never lost until a new domicile of choice is completely perfected by the concurrence of actual presence (*factum*), *animus manendi* (intent to remain), and *animus non revertendi* (intent to abandon the old domicile).
- **Rebutting the Abandonment Presumption:** While a foreign "green card" or immigrant status implies a prima facie abandonment of Philippine domicile, **the required affidavit of intent to return serves as an indubitable, sworn expression that the voter has not abandoned their Philippine domicile of origin.** To prevent abuse, the law imposes strict safeguards: failure to return within three years results in the permanent removal of the voter's name from the registry.

2. The Exclusive Power of Congress to Proclaim President and Vice-President

- **Non-Delegation of Canvassing Duty:** Under Section 4, Article VII of the Constitution, the returns of every election for President and Vice-President must be transmitted directly to Congress, which has the **sole and exclusive constitutional authority** to canvass the votes and proclaim the winning candidates. The legislature cannot constitutionally delegate this core power to the COMELEC. Section 18.5 must be read as limited to legislative and party-list positions.

3. Striking Down the "Legislative Veto" over COMELEC Rules

- **Independence of Constitutional Commissions:** The COMELEC is an independent constitutional commission that does not owe its existence to the legislature. Its authority to enforce election laws and promulgate implementing rules flows directly from the Constitution under Section 2(1), Article IX-C.
 - **Expiration of the Legislative Role:** Once a bill is enacted into law, **the legislative function is completed.** While Congress can monitor and evaluate execution "in aid of legislation," it **cannot constitutionally arrogate unto itself a legislative veto** to review, revise, or approve the IRR of an independent commission. Doing so brazenly encroaches upon the administrative independence of the COMELEC.
-

Doctrine, Tests, Elements, and Limits

- **The Legislative Veto Prohibition Test:** Once a law has been enacted, Congress cannot reserve for itself the power of post-enactment control (such as prior approval, revision, or amendment of administrative regulations)

over an independent constitutional commission, as this violates the separation of powers and the constitutional guarantee of agency independence.

- **The "Animus Revertendi" Domicile Rule:** A citizen's physical absence abroad does not result in the loss of their domicile of origin unless there is a clear concurrence of *factum* and the *animus non revertendi*. For immigrants, this intent is legally preserved and validated through the sworn affidavit mechanism under Section 5(d) of R.A. No. 9189.
 - **The Proclamation Boundary Rule:** Congress cannot delegate to the COMELEC the power to canvass or proclaim the President and Vice-President, as this authority is textually committed exclusively to Congress under Article VII, Section 4.
-

Disposition

The Supreme Court **PARTLY GRANTED** the petition. The constitutionality of Section 5(d) was **UPHELD**. The constitutionality of Section 18.5 was **UPHELD ONLY** as to Senators and party-list representatives. The JCOC approval/veto clauses in Section 17.1, Section 19, and Section 25 were declared **UNCONSTITUTIONAL and VOID**.

Source-Verified Quotable Line / Obiter

"Once a law is enacted and approved, the legislative function is deemed accomplished and complete. The legislative function may spring back to Congress relative to the same law only if that body deems it proper to review, amend and revise the law, but certainly not to approve, review, revise and amend the IRR of the COMELEC."

Separate Opinions

Concurring Opinion of Justice Azcuna (The Reversion Doctrine)

- **Revival of Domicile:** While establishing permanent residence abroad replaces the domicile of origin with a domicile of choice, **the execution of the Section 5(d) affidavit operates as an express abandonment of that foreign domicile of choice.**
- Under conflict of laws, the abandonment of a domicile of choice **instantly revives the domicile of origin**. Unlike a domicile of choice, which requires physical presence to be established, the domicile of origin can be revived by a properly expressed intention under oath.

Concurring and Dissenting Opinion of Justice Puno

- **The Dilution of Suffrage:** Justice Puno dissented from the majority's ruling on Section 5(d). He argued that an immigrant has already voluntarily made an arduous choice to establish a permanent home abroad, thereby abandoning their Philippine domicile.
 - A self-serving, unfulfilled "promise" to return within three years does not satisfy the constitutional residency requirement. Allowing non-domiciliaries to vote **dilutes the valid votes of resident electors**, violating the sacrosanct "one person, one vote" principle.
-

Recitation Capsule

"May it please the Court, the landmark case of *Macalintal v. COMELEC* (2003) establishes that the system of overseas absentee voting under R.A. No. 9189 is constitutional, but Congress cannot use post-enactment oversight to control an independent commission.

The Court ruled on three key points. First, Section 5(d) of the Act is constitutional. Although Article V, Section 1 imposes residency requirements, Article V, Section 2 directs Congress to provide an absentee voting system, which necessarily presupposes the physical absence of voters. To harmonize these provisions, the Court held that the execution of a sworn affidavit of intent to return by an immigrant is a valid evidentiary tool that proves they have not abandoned their Philippine domicile of origin.

Second, Section 18.5 is unconstitutional insofar as it allows the COMELEC to proclaim the winning President and Vice-President. Under Article VII, Section 4, the exclusive power to canvass and proclaim the President and Vice-President is textually committed solely to Congress.

Third, Sections 17.1, 19, and 25, which subject the COMELEC's implementing rules to the prior approval, review, and amendment of a Joint Congressional Oversight Committee, are unconstitutional. Once a bill becomes law, the legislative function is complete. Congress cannot arrogate a 'legislative veto' over administrative rules, as this directly violates the constitutional independence of the COMELEC."

? Likely Follow-Ups

1. **Q: How does the *Macalintal* ruling on domicile reconcile with the ruling in *Caasi v. Court of Appeals*?**
 - A: In *Caasi*, the Court held that a green card holder immigrant is deemed to have abandoned his Philippine domicile. In *Macalintal*, the Court affirmed *Caasi* but distinguished it by pointing out that Section 5(d) provides the immigrant with a **statutory mechanism (the sworn affidavit) to successfully rebut that presumption of abandonment** and formally declare their *animus revertendi* to keep their domicile of origin intact.
2. **Q: If an immigrant voter registers, executes the affidavit, votes in 2004, but fails to physically return to the Philippines within the 3-year period (by 2007), is their 2004 vote retroactively voided?**
 - A: **No.** The law provides that the only consequence for failing to return as promised is the **removal of the voter's name from the National Registry of Absentee Voters** and their permanent disqualification from voting *in absentia* in future elections. Their previously cast vote remains valid and counted.
3. **Q: Why is the JCOC allowed to "monitor and evaluate" the implementation of the law if it cannot "approve or amend" the IRR?**
 - A: The power of congressional oversight is a valid exercise of legislative inquiry. Congress can monitor the execution of a law to gather information, evaluate its efficacy, and determine if new legislation or amendments are needed. However, this oversight must be limited to monitoring; it cannot cross the line into administrative co-management, such as vetoing or rewriting the agency's implementing rules.

Changed-Fact Application

- **Hypothetical:** Suppose the legislature amends R.A. No. 9189 to state that the JCOC is composed not of legislators, but of three retired Supreme Court Justices who are given the power to veto and amend the COMELEC's IRR. A civic group challenges this under *Macalintal*. Will the challenge succeed?

- **Answer: Yes.** Although the veto power is no longer exercised directly by active legislators, the constitutional infirmity remains. Under Section 1, Article IX-A, the COMELEC is a constitutionally created, independent body. Its rule-making authority flows directly from the Constitution and cannot be subjected to the veto, prior approval, or control of *any* external administrative or judicial committee. The amendment would still be struck down for violating the administrative independence of the COMELEC.

One-Sentence Doctrine Anchor

R.A. No. 9189 is constitutional as to Section 5(d) because the absentee voting mandate of Article V, Section 2 is an exception to physical residency, but its provisions on congressional veto over the COMELEC's rules and the COMELEC's power to proclaim the President and Vice-President are unconstitutional for violating commission independence and the exclusive powers of Congress.

US v. DORR | GR1051 (1903) | EG-SL/GA

DOCTRINE: GOVERNMENT $\neq$ ADMINISTRATION; GOVT IS THE ABSTRACTION/FORM OF THE SYSTEM, WHILE ADMINISTRATION REFERS TO THE PEOPLE; CRITICISM AGAINST ADMIN/INDIVIDUALS IS NOT SEDITION AGAINST GOVT

FACTS

- **EDITORIAL PUBLISHED**

- By Fred Dorr and Edward O'Brien in the Manila Freedom
- Criticizing the decision/policy of the Civil Commission to appoint natives to the Commission, especially ex-insurgent filipinos
- Attacking individuals such as Trinidad Pardo De Tavera for being 'rascals' or attacking their integrity/capacity
- Further attacks the judiciary for allegedly not convicting insurgements

- **GUILTY OF SCURILLOUS LIBEL, SEC 8 ART 292**

- Court of First Instance of Manila charges defendants w violation of Art 292, and convicts them of scurrilous libel
 - Art 292 also provides for other offenses:
 - Seditious words or speeches
 - Obstructing offices of their duty
 - Inciting/instigating
- Hence, the instant petition for review/appeal

ISSUES

- **(1) SCURILLOUS LIBEL? – NO**

- To be punishable:
 - Must be scurrilous in nature
 - Seditious tendencies (obstructing/instigating)
 - **Directed against the government (second issue)**
- **NO SEDITIONARY TENDENCY** (JUST CRITICISM, NO VIOLENCE/CALL TO DISLOYALTY ARM)

- **(2) DIRECTED AT GOVERNMENT OR ADMIN INDIVIDUALS? – NO, INDIVIDUALS**

- Prerequisites to be punishable is it has to be directed to government
- Not much precedent so it's important to make distinction
 - Is government the abstract sense of laws/institutions
 - Or is government the aggregate of individuals running the place?
- **COURT HOLDS GOVERNMENT $\neq$ ADMINISTRATION**
 - Government = permanent, polity, form/system
 - Administration = individuals, transient, occupying positions of power temporarily
 - Different types of libel
 - Seditious if against form of government (**Respublica v. Dennie**)

- General libel if against individuals (**Administration**)
- **Court holds that the editorial was only critical of the personal integrity and character of individuals, not the form of government = ACQUITTED**

DISPOSITION: ACQUITTED

Identity and Syllabus Relevance

- **Case Name:** *The United States v. Fred L. Dorr and Edward F. O'Brien*, G.R. No. 1051, May 19, 1903.
- **Syllabus Relevance:** This is a foundational, early American-era case in Philippine Constitutional Law dealing with **Sovereignty, the State, and the legal distinction between the "Government" and the "Administration."** It establishes that under our republican and constitutional system, the "Government" is an abstract, permanent political institution, while the "Administration" consists of the temporary personnel who run it. Consequently, severe or virulent criticism of public officers or administrative policies does not constitute sedition or "scurrilous libel against the Government" under sedition laws unless it directly attacks the established form of government itself or has a clear tendency to incite rebellion or disloyalty.

Chronological Material Facts

1. **April 6, 1902:** Fred L. Dorr (proprietor) and Edward F. O'Brien (editor) publish an editorial in their newspaper, the "*Manila Freedom*," under the headline "*A few hard facts.*"
2. **Content of the Article:** The editorial is a virulent attack on the policy of the United States Civil Commission (the Insular Government) regarding the appointment of native Filipinos to high public offices.
3. **Specific Allegations:**
 - It quotes a writer claiming that the Civil Commission, by appointing "ex-insurgent office holders" and ignoring their criminal records, had "constituted a protectorate over a set of men who should be in jail or deported."
 - It asserts that "Filipino office holders... are in a good many instances rascals."
 - It accuses native Commissioners (specifically naming Trinidad H. Pardo de Tavera) of being cowards and rascals.
 - It declares that "many branches of the Government organized by the Civil Commission are rotten and corrupt," that the "Philippine judiciary is far from being what it should," and that "neither fiscals nor judges can be persuaded to convict insurgents."
 - It notes that "evidences of carpet bagging and rumors of graft are too thick to be pleasant."

4. **The Prosecution:** The defendants are prosecuted under Section 8 of Act No. 292 (The Sedition Act of the Philippine Commission), which penalizes the writing, publishing, or circulating of "scurrilous libels against the Government of the United States or the Insular Government of the Philippine Islands."
-

Procedural History

- **Trial Court (CFI of Manila):** The defendants are charged with violating Section 8 of Act No. 292. The trial court convicts them of writing, publishing, and circulating a scurrilous libel against the Government.
 - **Supreme Court Review:** The defendants appeal their conviction directly to the Supreme Court of the Philippine Islands.
-

Parties' Material Arguments

- **Appellants' (Dorr and O'Brien) Arguments:**
 - **No Seditious Intent:** The publication does not fall under Section 8 of Act No. 292 because it lacks any seditious tendency. It did not incite riot, rebellion, or conspiracies against the state.
 - **Targeting of Individuals, Not the State:** The editorial was a critique of the personal character, competency, and administrative choices of the individual members of the Civil Commission. It did not attack the system of government itself.
 - **Appellee's (The United States/Attorney-General) Arguments:**
 - **Defamation of the Government:** The editorial was a scurrilous and malicious attack that brought the Insular Government into disrepute, obstructing public officers and stirring up public dissatisfaction.
 - **Seditious Tendency:** By claiming that the judiciary and the fiscals were corrupt and would not prosecute outlaws or insurgents, the article directly undermined the authority and safety of the government.
-

Issues

1. Whether the defendants' publication of a virulent editorial criticizing the appointment of native officials constitutes the crime of "scurrilous libel against the Government" under Section 8 of Act No. 292.
2. What is the legal definition and scope of the term "Government" as used in Section 8 of Act No. 292—does it mean the abstract political system/institutions, or does it mean the aggregate of individuals currently administering those institutions?

♥ Holdings

1. **NO.** The publication does not constitute an offense under Section 8 of Act No. 292. The article contains no seditious tendency and does not attack the established political system.
 2. **THE ABSTRACT SYSTEM.** The term "Government" refers to the abstract political system, the form of government, or the established political institutions of the country, as distinguished from the "administration" or the individual public officers who temporarily run it.
-

♥ Controlling Reasoning

1. Seditious Character of the Law

- **Context of Act No. 292:** Section 8 is a sedition statute, as evidenced by its title, "seditious utterances, whether written or spoken." Its sole purpose is to punish incitement to acts of disloyalty or disobedience to the sovereign power.
- **Lack of Seditious Tendency:** While the editorial is grossly abusive and may excite dissatisfaction with the measures of the Commission, the Court finds nothing in it that has a tendency to produce "disaffection" or a state of feeling incompatible with loyalty to the Government and obedience to the laws.

2. The Distinction Between "Government" and "Administration"

- **"Government" is an Abstraction:** In political science, "Government" is the aggregate of institutions by which an independent society makes and carries out rules of action necessary to enable men to live in a social state.
 - **"Administration" is the Personnel:** The "administration" refers to the aggregate of individuals who currently hold the reins of government.
 - **Sedition Act Analogy:** In the U.S. Sedition Act of 1798, Congress explicitly separated the "Government" from its concrete organs (the houses of Congress and the President). Similarly, Section 8 of Act No. 292 protects the established *system of polity* (the form of government), not the individual characters of the administrators.
 - **Defamation of Individuals is a Private Libel:** Grossly abusive attacks on individual officers (such as Trinidad H. Pardo de Tavera or the Civil Commission as an aggregate of individuals) may be adequately punished under the general libel law (Act No. 277). They cannot be elevated to the level of sedition under Act No. 292 simply because the targets are public officials.
-

■ Doctrine, Tests, Elements, Exceptions, and Limits

- **The Government vs. Administration Test:**
 - **Government:** The permanent, abstract, constitutional, and legal system of political institutions of the State.
 - **Administration:** The transient group of public officers in whose hands the reins of government are temporarily placed.
 - **The Rule:** Under the constitution, the "Government" cannot be libeled by a critique of the "administration." Sedition charges cannot be used to shield the administration or individual public officers from public criticism, no matter how virulent, provided the criticism does not attack the form of government itself or tend to incite rebellion.
 - **The Seditious Libel Limit:** A writing is not a seditious libel unless it directly tends to foment riot, rebellion, or otherwise to disturb the peace, tranquillity, and safety of the state.
-

Disposition

The judgment of conviction of the lower court is **REVERSED**, and the defendants Fred L. Dorr and Edward F. O'Brien are **ACQUITTED** with costs *de officio*.

Obiter / Source-Verified Quotable Line

"The form of government by a Civil Commission and a Civil Governor is not assailed. It is the character of the men who are intrusted with the administration of the government that the writer is seeking to bring into disrepute by impugning the purity of their motives, their public integrity, and their private morals, and the wisdom of their policy."

Recitation Capsule

"May it please the Court, the landmark case of *U.S. v. Dorr* (1903) establishes the vital constitutional distinction between the 'Government' and the 'Administration' in the context of freedom of the press and sedition laws.

The defendants published a highly critical editorial in the 'Manila Freedom' accusing the Civil Commission of appointing corrupt and rascally native officials. They were convicted of 'scurrilous libel against the Government' under Section 8 of Act No. 292.

The Supreme Court reversed the conviction and acquitted the defendants, ruling on two crucial grounds. First, Section 8 is a sedition law; it only punishes utterances that have a clear, seditious tendency to incite disloyalty, disobedience, or rebellion

against the state, which the article lacked. Second, the Court defined 'Government' as the abstract political system or established institutions of the state, as distinguished from the 'administration,' which represents the transient individuals currently running it. Since the editorial merely attacked the integrity, morals, and policy of the individual administrators without assailing the system of government itself, it was not seditious. Grossly abusive attacks on public officials are private libels punishable under the general libel law, but they can never be prosecuted as sedition."

? Likely Follow-Ups

1. **Q: Does this mean public officials are completely helpless against defamatory newspaper articles under the *Dorr* doctrine?**
 - A: **No.** The Court explicitly clarified that public officials, whether individually or as a small collegiate body (like the Civil Commission), can seek redress under the **general libel law** (Act No. 277) for personal defamation. The state, however, cannot use **sedition or national security laws** to criminally prosecute journalists for criticizing those administrators.
 2. **Q: How does this case relate to the fundamental principle of sovereignty in Article II, Section 1 of the 1987 Constitution?**
 - A: Under Article II, Section 1, sovereignty resides in the people, and all government authority emanates from them. Since the government belongs to the sovereign people, they have an absolute right to criticize the "administration" (their temporary agents) to hold them accountable. *U.S. v. Dorr* protects this democratic right by ensuring that criticism of the administration is not equated with an attack on the sovereign state itself.
 3. **Q: Can an article be considered "scurrilous libel" if it advocates for a peaceful, constitutional change of government?**
 - A: **No.** Scurrilous libel under sedition laws requires an intent to unlawfully subvert, overthrow, or destroy the established form of government. Advocating for a change in administration or constitutional amendments through peaceful, lawful, and electoral means is a protected exercise of free speech and does not carry a seditious tendency.
-

One-Sentence Doctrine Anchor

The "Government" refers to the abstract political system of the State, while the "Administration" refers to the temporary public officers who run it; hence, criticism of the latter—no matter how severe—cannot be prosecuted as sedition or "scurrilous libel against the Government" unless it directly assails the political system itself or incites rebellion.

LAUREL v. DESIERTO | GR 145368 (2002) | CFAR-J/PO/C

DOCTRINE: OMBUDSMAN HAS JURISDICTION OVER ALL PUBLIC OFFICES INCLUDING AD HOC/HONORARY ONES SUCH AS THE NATIONAL CENTENNIAL COMMISSION; MECHEM TEST OF PUBLIC OFFICE (1) CREATED BY LAW, (2) DELEGATED SOVEREIGN POWER, (3) HAS CONTINUANCE EVEN IF TEMPORARY, (4) SCOPE DEFINED BY LAW, (5) ALL FOR PUBLIC BENEFIT

FACTS

- PETITIONER ASSAILS JURISD. OF OMB, CONTEXT:**

- **CORAZON AQUINO AO 223** - 1991 Committee For 1991 National Centennial Celebration
- **EVR EO 128** - Renamed To **National Centennial Commission**, Appoints Laurel
 - **Philippine Centennial International Expo (Expocorp)** In Clark, Also Headed By Laurel As Ceo
- **SENATOR ANA COSETENG** PRIVILEGE SPEECH ON EXPO ANOMALIES
 - **Blue Ribbon Committee Report**, Erap Saguisag Recommend To Ombudsman
 - Fact Finding -> Evaluation And Prelim Investigation Bureau Of **Ombudsman Ultimately Finds Probable Cause + File Charges**
- **RA 3019 VIOLATION OF ANTI GRAFT AND CORRUPT PRACTICES**
 - Bidding Controversy; Favor For Asia Construction & Development Corp In Construction Of Freedom Ring
- **SC ISSUES TRO BEFORE FILING W SANDIGANBAYAN WHILE IT RESOLVES CASE**

PETITIONER ARGS (4):

- **(1) SANDIGANBAYAN JURISDICTION** - citing **Uy v. Sandiganbayan** (Omb = Sandiganbayan jurisdiction over officers receiving SG 27 and above only)
- **(2) NOT A PUBLIC OFFICE** - adhoc/honorary only, not under public officers under omb
- **(3) DOES NOT RECEIVE COMPENSATION** - under Sec 3(b) RA 3019 limitations
- **(4) EXPOCORP IS PRIVATE** - not GOCC

ISSUES

- **(1) SANDIGANBAYAN JURISDICTION = OMBUDSMAN (SG27)? - NO**
 - **Uy v. Sandiganbayan** clarified in the following resolution from the same court/case
 - **Ombudsman has plenary** and unqualified - covers all public offices
 - **Broad ombudsman power** in RA 6770 (Ombudsman Act) - any public officer or employee (for malfeasance, misfeasance, and non-feasance of public office)
- **(2) NCC A PUBLIC OFFICE? - YES**
 - **Mechem Test (5)**
 - (1) Created by law
 - (2) Delegation of sovereign functions
 - (3) Continuance, whether temporary or not
 - (4) Scope defined by law
 - (5) For public benefit
 - **Delegation of sovereign functions**
 - Executive, for three reasons:
 - (1) created by **executive order**
 - (2) For tourism/**heritage**/cultural celebration
 - Petitioner cites **Torio v. Fontanilla** saying NCC analogous to town fiesta, which is private or propriety in character

- Court counters, citing **Pope v. City of New Haven** (4th of July fireworks killing observer; government can be interpreted to have liability; it is within state interest to hold these events)
 - (3) For **industry/economic** development (bragged about this too)
 - **Continuance** - can be temporary/doesnt matter if ad hoc or honorary, since public office always changes hands
 - **For public benefit** – cites **In re Corliss** (equivalent US Centennial Commission is considered a public trust, funded by, and important to the state interest)
 - **Even if private EXPOCORP, still exercised it in his capacity as NCC chair**
- (3) **LACK OF COMPENSATION MEANS NOT PUBLIC OFFICE? - NO**
 - Under RA 3019 – says public officers are compensated
 - **Compensation can take different forms** - bonuses/gifts/per diems
 - **Up to the trial court to hear evidence on this** no prejudice to ombudsman

DISPOSITION: PETITION DISMISSED, TRO LIFTED

Identity and Syllabus Relevance

- **Case Name:** *Salvador H. Laurel v. Hon. Aniano A. Desierto, in his capacity as Ombudsman*, G.R. No. 145368, April 12, 2002.
- **Syllabus Relevance:** This case is a premier authority on the **definition and elements of a public office and public officer** in Philippine Constitutional and Administrative Law. It clarifies that **the National Centennial Commission (NCC) was a public office** performing sovereign executive functions. It establishes that **the absence of compensation does not strip a position of its public character** (characterizing it instead as an "honorary office"). It also delineates the broad investigatory jurisdiction of the Ombudsman over all government officers, regardless of salary grade or Sandiganbayan jurisdiction.

Chronological Material Facts

1. **June 13, 1991:** President Corazon C. Aquino issues Administrative Order No. 223, constituting a Committee for the preparation of the National Centennial Celebration in 1998.
2. **Reconstitution of the Committee:** President Fidel V. Ramos subsequently issues Executive Order No. 128, which reconstitutes the committee into the **National Centennial Commission (NCC)** [255, 22]. He appoints Vice-President Salvador H. Laurel as Chairman of the NCC [22]. Former Presidents Diosdado Macapagal and Corazon Aquino are named honorary chairpersons [22].
3. **Ad-Hoc Mandate:** Under E.O. No. 128, the NCC is characterized as an "ad-hoc body," whose existence is scheduled to terminate upon completion of all centennial celebration activities [22]. It is initially funded by the Department of Tourism and the President's Contingent Fund, with succeeding appropriations incorporated into the budget of the Office of the President.
4. **Creation of Expocorp:** To set up and establish the Philippine Centennial International Exposition 1998 (EXPO '98) in the Clark Special Economic Zone, a corporation named **Philippine Centennial Expo '98 Corporation (Expocorp)** is created. Laurel is elected as Expocorp's Chief Executive Officer (CEO) and serves on its board [251, 23].
5. **Congressional Scrutiny:** On August 5, 1998, Senator Ana Dominique Coseteng delivers a privilege speech denouncing severe anomalies in the construction and operation of the Centennial Exposition Project (particularly the Freedom Ring Project) at Clark. The speech is referred to the Senate Blue Ribbon Committee for investigation.

6. **Executive Inquiry:** On February 24, 1999, President Joseph Estrada issues Administrative Order No. 35, creating an ad hoc and independent citizens' committee (the Saguisag Committee) to investigate all facts surrounding the centennial projects.
 7. **Blue Ribbon Finding:** On March 23, 1999, the Senate Blue Ribbon Committee files Committee Final Report No. 30, recommending the prosecution of Salvador Laurel (as chair of NCC and Expocorp) for violating rules on public bidding relative to the award of contracts to Asia Construction & Development Corp. (AK).
-

Procedural History

- **Ombudsman Initial Action:** Based on the Senate and Saguisag Committee findings, the Evaluation and Preliminary Investigation Bureau (EPIB) of the Office of the Ombudsman recommends filing a formal complaint and conducting a preliminary investigation against Laurel for violating Section 3(e) and (g) of Republic Act No. 3019 (The Anti-Graft and Corrupt Practices Act) [253, 23].
 - **Motion to Dismiss:** On April 24, 2000, Laurel files a Motion to Dismiss, arguing that the Ombudsman has no jurisdiction because he is not a "public officer".
 - **Ombudsman Denials:** The Ombudsman denies Laurel's Motion to Dismiss on June 13, 2000, and denies his Motion for Reconsideration on October 5, 2000.
 - **Supreme Court Original Action:** On October 25, 2000, Laurel files a Petition for Certiorari under Rule 65 with the Supreme Court.
 - **TRO Issuance:** While the petition is pending, the EPIB finds probable cause to indict Laurel. On September 24, 2001, the Supreme Court issues a Temporary Restraining Order (TRO) enjoining the filing of any criminal information against Laurel in the Sandiganbayan.
-

Parties' Material Arguments

- **Petitioner's (Salvador Laurel's) Arguments:**
 - **Private Character of Expocorp:** Expocorp was a private corporation, not a government-owned or controlled corporation (GOCC); hence, its CEO was not a public officer.
 - **Non-Public Character of NCC:** The NCC was merely an advisory, temporary, and ad-hoc body, which does not constitute a public office.
 - **Lack of Compensation:** To be a "public officer" under Section 2(b) of R.A. No. 3019, one must receive compensation from the government. Because he served as NCC Chair and Expocorp CEO without receiving any salary, he is legally exempt from the statute.
 - **Salary Grade Limit (*Uy v. Sandiganbayan*):** The jurisdiction of the Ombudsman is co-extensive with the Sandiganbayan (limited to Salary Grade 27 and higher). Since his honorary position had no salary grade classification, the Ombudsman has no jurisdiction.
 - **Respondent's (Ombudsman's) Arguments:**
 - **Broad Constitutional Mandate:** The Constitution and the Ombudsman Act of 1989 (R.A. No. 6770) grant the Ombudsman comprehensive authority to investigate *any* public official, office, or agency on complaints regarding illegal, improper, or inefficient acts, completely independent of the Sandiganbayan's jurisdictional limits.
 - **Sovereign Executive Function:** The NCC is a public office because it was created by the President to administer and execute national state policies on cultural heritage, tourism, and post-disaster economic development in Central Luzon.
 - **Naked or Honorary Office:** The absence of a salary does not strip an office of its public character. The office of NCC Chair is a valid public office of an honorary nature.
-

Issue or Issues

1. Whether the National Centennial Commission (NCC) is a public office, making its Chairman (Laurel) a public officer subject to the investigatory jurisdiction of the Ombudsman.
 2. Whether the lack of salary or compensation of the NCC Chairman excludes him from the definition of a "public officer" under Section 2(b) of R.A. No. 3019.
 3. Whether the jurisdiction of the Ombudsman is limited strictly to public officers occupying positions with Salary Grade 27 and above.
-

Holding per Issue

1. **YES.** The NCC is a public office because it was created by law (executive orders) to perform sovereign executive and administrative functions of the State. Its Chairman is a public officer subject to the jurisdiction of the Ombudsman.
 2. **NO.** The lack of salary is not a conclusive test. The office of NCC Chair is a valid **honorary office**. Furthermore, the definition of a public officer under Section 2(b) of R.A. No. 3019 does not restrict the constitutional investigatory powers of the Ombudsman.
 3. **NO.** The Ombudsman possesses broad constitutional authority to investigate *any* public official or employee, regardless of salary grade or whether the Sandiganbayan has ultimate jurisdiction over the offense.
-

Controlling Reasoning

1. The NCC as a Public Office Performing Sovereign Functions

- **Mechem Elements Satisfied:** Under Mechem's test, a public office requires the delegation of sovereign functions, creation by law, continuance (even if temporary), and a scope of duties defined by rules.
- **Executive and National Policy:** The executive power is the power to enforce and administer the laws. The President created the NCC to carry into practical operation the state policies on arts, culture, national pride (Article XIV), and industrialization/employment in Central Luzon (Article XII). These are clearly sovereign executive functions, not merely proprietary town fiestas as argued by the petitioner.
- **The Marshall Rule on Continuance:** The temporary nature of an ad-hoc body does not destroy its public office character. Citing Chief Justice Marshall, if a duty is continuing, defined by rules prescribed by government (not contract), and its tasks continue even if the person occupying the post changes, it is a public office.
- **Expocorp CEO is Bound by NCC Duty:** Even if Expocorp is a private corporation, Laurel's role as CEO arose directly from his chairmanship of the NCC. His acts as CEO of Expocorp are viewed in the light of his powers and duties as NCC Chair.

2. The Nature of an Honorary Office and R.A. No. 3019 Definition

- **Naked or Honorary Office:** A salary is a usual but not a necessary criterion for a public office. Where a salary is annexed, the office is lucrative; where no salary is annexed, it is a **naked or honorary office** accepted purely for the public good. It remains a public office.
- **Non-Restrictive Definition under R.A. No. 3019:** The definition of "public officer" under Section 2(b) of R.A. No. 3019 uses the word "includes," which indicates it is non-restrictive. Other statutes, like Article 203 of the Revised Penal Code and Section 3(b) of R.A. No. 6713, define public officers to include those who do not receive compensation.

- **Fact-Finding at Trial:** Compensation has many meanings, including allowances, per diems, and honoraria. Since Expocorp's by-laws authorized per diems, whether Laurel actually received some form of compensation is an evidentiary issue that must be threshed out in a trial court, not on certiorari.

3. Scope of Ombudsman's Investigatory Jurisdiction

- **Broad Constitutional Jurisdiction:** The Court clarified *Uy v. Sandiganbayan*. While the Sandiganbayan's jurisdiction to try cases is limited to Grade 27 and above, the **Ombudsman's power to investigate is broad and unconstrained**. Under Article XI of the Constitution and the Ombudsman Act of 1989, the Ombudsman can investigate *any* public official or employee for any act or omission that appears to be illegal, unjust, improper, or inefficient.
-

Doctrine, Test, Elements, Exceptions, and Limits

- **Mechem's Public Office Test:** A position is a public office when there is a concurrence of:
 1. Creation by law/executive decree (not by contract).
 2. Delegation of some portion of the sovereign functions of the government.
 3. Scope of duties prescribed by government rules.
 4. Continuance of the duties, regardless of changes in personnel.
 - **The Honorary Office Rule:** An office accepted purely for the public good without salary is an honorary office. The lack of compensation is of no consequence in determining the public nature of the position.
 - **Ombudsman Investigatory Rule:** The investigatory power of the Ombudsman under the Constitution is not limited to public officers within the jurisdiction of the Sandiganbayan, nor is it constrained by the salary grade classifications of the Civil Service Commission.
-

Disposition

The Supreme Court **DISMISSED** the petition for certiorari and **LIFTED the preliminary injunction** (TRO) issued on September 24, 2001, allowing the Ombudsman to proceed with the filing of the criminal information.

Obiter/Source-Verified Quotable Line

"That petitioner allegedly did not receive any compensation during his tenure is of little consequence. A salary is a usual but not a necessary criterion for determining the nature of the position. The salary is a mere incident and forms no part of the office. Where a salary or fees is annexed, the office is provided for it is a naked or honorary office, and is supposed to be accepted merely for the public good."

Recitation Capsule

"May it please the Court, the landmark case of *Laurel v. Desierto* (2002) establishes that an ad-hoc, temporary body created by executive decree to execute national state policies is a public office, and its lack of salary does not strip the office of its public character.

The petitioner, Salvador Laurel, challenged the jurisdiction of the Ombudsman to prosecute him for graft, arguing that as unpaid Chairman of the National Centennial Commission (NCC)—a temporary, ad-hoc body—and CEO of Expocorp, he was not a public officer.

The Supreme Court rejected his arguments and ruled on three vital points. First, the NCC is a public office because it was created by executive orders to perform sovereign executive functions, specifically carrying into practical operation state policies on national heritage, tourism, and regional development. Second, an office without pay is legally categorized as an honorary office. A salary is merely incidental and not a necessary element of a public office. Third, the definition of a public officer under R.A. No. 3019 is non-restrictive and does not limit the Ombudsman's broad constitutional and statutory mandate to investigate any public official or employee for any improper, unjust, or illegal acts. Therefore, the petition was dismissed."

? Likely Follow-Ups and One Changed-Fact Application

1. **Q: How does the *Laurel* case distinguish *Uy v. Sandiganbayan* regarding the Ombudsman's jurisdiction over Salary Grade 27?**
 - A: The Court clarified that the Sandiganbayan's jurisdiction to *try* criminal cases is indeed limited to Grade 27 and above. However, the Ombudsman's constitutional power to *investigate* is much broader. The Ombudsman can investigate *any* public official or employee regardless of their salary grade or whether they fall under the Sandiganbayan's jurisdiction.
2. **Q: What if the public office was created by a private, commercial contract rather than a law or executive order? Does it still qualify as a public office?**
 - A: **No.** Under Mechem's elements, a public office must be created by law or sovereign executive decree. A position created purely by private contract is an employment relationship, not a public office.
3. **Q: Does the dissolution of the ad-hoc body (NCC) prior to the filing of the complaint divest the Ombudsman of its jurisdiction to investigate Laurel?**
 - A: **No.** The Ombudsman retains jurisdiction to investigate and prosecute public officials for offenses committed *during* their tenure, even if the office has been abolished or they have resigned, as the liability is personal and attaches to the official acts performed during their incumbency.

Changed-Fact Application

- **Hypothetical:** Suppose the National Centennial Commission was not created by the President through an executive order, but was instead set up as a completely private foundation registered with the SEC by a group of private civic leaders to organize a private centennial parade. The President merely agreed to attend the parade as a guest of honor and donated ₱100,000.00 from his personal funds to the foundation. If Laurel is appointed Chairman of this private foundation and is accused of misappropriating the foundation's funds, does the Ombudsman have jurisdiction?
- **Answer: No.** Under the changed facts, the foundation fails Mechem's test for a public office. It was created by private contract (incorporation papers) rather than by law or executive order. It does not perform sovereign executive functions of the state, but merely conducts private civic activities. Therefore, Laurel is not a public officer, and the Ombudsman has no jurisdiction over him. Any prosecution for misappropriation of funds would fall under ordinary criminal proceedings in the regular courts, not the Ombudsman.

One-Sentence Doctrine Anchor

The National Centennial Commission is a public office because it executes sovereign state policies, and its Chairman is a public officer subject to the Ombudsman's broad investigatory jurisdiction regardless of the temporary nature of the ad-hoc body or the absence of a salary.

CO-CHAM v. VALDEZ | GR L-5 (1945) | JDC-DF/P/E

DOCTRINE: UNDER THE PRINCIPLE OF POST-LIMINY, NON-POLITICAL JUDICIAL ACTS OF A DE FACTO GOVERNMENT OF PARAMOUNT FORCE REMAINS VALID UPON THE RESTORATION OF THE DE JURE SOVEREIGN, AND THE RE-ESTABLISHED COURTS HAVE INHERENT JURISDICTION TO CONTINUE PENDING CIVIL CASES WITHOUT NEED OF A LEGISLATIVE ENABLING ACT.

FACTS

- **1942 JAPAN OCCUPIES PHILIPPINES**
 - Order No. 1 by Japanese Commander in Chief Established **PEC (Philippine Executive Commission)** led by Filos under Jorge Vargas
 - 1943 inaugurated “**Republic of the Philippines**” a puppet government under Jose P. Laurel
- **1945 PH LIBERATED BY DOUGLAS MACARTHUR**
 - Issued October 23 Proclamation stating all laws, regulations, processes of any other government than the commonwealth are null and void
- **CO CHAM FILED A CIVIL COMPLAINT DURING JAPANESE ERA, WANTS TO CONTINUE IT POST-LIBERATION**
 - Against Eusebio Valdez, Civil Case No. 3012
 - Petition for mandamus praying that the respondent judge of the lower court continue the proceedings

RES ARGS (JUDGE VALDEZ)

- **Refused to continue the proceedings on the grounds of:**
 - **(1) OCTOBER 23 PROCLAMATION**
 - **(2) ABSENCE OF AN ENABLING LAW**
 - **(3) PEC/RP WERE NOT DE FACTO GOVERNMENTS**

ISSUES

(1) (PAST) W/N PEC/RP WERE A DE FACTO GOVT AND THUS VALID? – YES

- (a) **DEFACTO = VALID** All judicial acts/proceedings of de facto governments that are **NOT OF POLITICAL COMPLEXION** are valid **under the principle of postliminium** and international law
 - (i) **Hague Conventions** of 1907 says belligerent occupant is burdened to maintain social order
 - (ii) **Halleck (International law)** says government by belligerent is an incident of war governed by the rules of war
 - (iii) Same was done by **President McKinley** when US occupied PH (+all laws esp criminal/civil continuing in force if they dont conflict)
- (b) **TYPES OF DE FACTO** Is Japanese occupation/PEC/RP de facto govts?
 - (i) **3 types of de facto govts**
 - 1) **Usurping** (like england under the commonwealth of cromwell)
 - 2) **By Paramount Force** (military, like occupied places)
 - 3) **By Independent Government/Secession** (like the southern confederacy)
 - (ii) **We fall under #2:** civil government established by military forces; doesnt matter if it was run by filipinos, it was installed by japan who was belligerent and its authority emanated from Japanese military
 - (iii) **Even if it was #3** it would still be de facto (analogous to confederate states whose acts were recognized as valid)

(c) POSTLIMINY ALLOWS FOR SOCIAL ORDER/NO CHAOS

(2) (PRESENT) MACARTHUR PROCLAMATION COVERING JUDICIAL 'PROCESSES' – NO

- (a) **FLEXIBLE INTERPRETATION** - when possible to construe so that it doesn't conflict with international law or the constitution of the US, it must be interpreted that way
- (b) **ABSURDITY** - Surely, Douglas won't be stupid enough to make all judicial processes void (e.g. will release all the criminals, break down society)
- (3) **(FUTURE) ABSENCE OF ENABLING LAW MEANS CAN'T CONTINUE? - NO**
 - (a) **Enabling law not necessary** to continue judicial processes; laws continue to exist even if there are changes in sovereignty
 - (b) **Confirmed by EO 37** which already presumed the continued existence of the Court of Appeals and pending cases.

DISPOSITION: GRANTED, COURTS MAY CONTINUE

DISSENT (PERFECTO): Plain meaning of all = means all; court cannot carve out exceptions

DISSENT (HILADO): PEC/RP illegal, not de facto since they have no good faith; insults heroes if we validate their acts

Identity and Syllabus Relevance

- **Case Name:** *Co Cham (alias Co Cham) v. Eusebio Valdez Tan Keh and Arsenio P. Dizon, Judge of First Instance of Manila*, G.R. No. L-5, September 17, 1945 (Feria, J.).
- **Syllabus Relevance:** This is a foundational landmark case in Philippine Constitutional Law on the topics of **Sovereignty, the State, Belligerent Occupation, and the legal status of de facto governments**. It defines the different types of *de facto* governments, establishes the **Principle of Postliminy (Postliminium)** regarding judicial acts of non-political complexion, and clarifies the legal effect of General Douglas MacArthur's 1944 Liberative Proclamation on municipal judicial proceedings.

Chronological Material Facts

1. **January 2, 1942:** Japanese forces occupy Manila.
2. **January 3, 1942:** The Japanese Commander-in-Chief proclaims the establishment of a military administration, ordering that all municipal laws of the Commonwealth, as well as executive and judicial institutions, continue to be effective.
3. **January 23, 1942:** The **Philippine Executive Commission (PEC)** is organized under Jorge Vargas as a civil administration under the supreme authority of the Japanese Military.
4. **October 14, 1943:** The Japanese-sponsored "**Republic of the Philippines**" is inaugurated under Jose P. Laurel. The Commonwealth courts are continued with no substantial change in their organization, jurisdiction, or municipal laws.
5. **November 18, 1944:** Petitioner Co Cham files a civil complaint (Civil Case No. 3012) against Eusebio Valdez Tan Keh in the Court of First Instance (CFI) of Manila, which is then operating under the Japanese-sponsored "Republic of the Philippines".
6. **Destruction of Records:** Before the case is heard on the merits, the records are burned and destroyed during the Battle for the Liberation of Manila.
7. **February 27, 1945:** General Douglas MacArthur, on behalf of the United States Government, solemnly declares the full powers and responsibilities under the Constitution restored to the Commonwealth of the Philippines.
8. **Post-Liberation Action:** Co Cham petitions the re-established CFI of Manila to reconstruct the records and continue the proceedings in Civil Case No. 3012.

Procedural History

- **Before the Court of First Instance of Manila:** Respondent Judge Arsenio P. Dizon issues an order on June 6, 1945, refusing to take cognizance of or continue the civil case. He suspends the proceedings on the grounds that:
 1. General MacArthur's October 23, 1944 Proclamation nullified all judicial proceedings of courts established during the Japanese occupation.
 2. Commonwealth courts have no jurisdiction to continue pending cases of the defunct "Republic" in the absence of an enabling law from Congress.
 3. The Japanese-sponsored governments were not *de facto* governments.
 - **Supreme Court Original Action:** Co Cham files a Petition for **Mandamus** under Rule 65 directly with the Supreme Court, praying that the respondent judge be ordered to continue the proceedings in Civil Case No. 3012.
-

Parties' Material Arguments

- **Petitioner's (Co Cham's) Arguments:**
 - **Validity of Municipal Acts:** The Japanese-sponsored court was a valid *de facto* court administering ordinary, non-political municipal civil laws.
 - **Postliminy Applies:** Upon liberation, the restored sovereign is bound to recognize the validity of non-political judicial acts under the principle of postliminy.
 - **MacArthur's Proclamation Scope:** MacArthur's proclamation only nullified political, administrative, and legislative processes, not ordinary municipal court cases solving private property disputes.
 - **Mandamus is Proper:** Mandamus is the proper and speedy remedy to compel the judge to perform his ministerial duty to hear and decide cases.
 - **Respondents' (Valdez Tan Keh & Judge Dizon) Arguments:**
 - **Literal "Processes" Nullification:** The October 23, 1944 Proclamation explicitly declared "*all laws, regulations and processes of any other government*" to be null and void. "Processes" literally includes all judicial processes and court proceedings.
 - **Alien Court Status:** The puppet courts were institutions of an alien enemy invader. Thus, their cases are completely void and cannot be inherited or continued by the legitimate Commonwealth courts.
 - **Absence of Enabling Act:** Without a validating act or enabling law passed by the restored Commonwealth Congress, the courts cannot exercise jurisdiction over cases left pending in the puppet courts.
-

Issues

1. Whether the judicial acts and proceedings of the courts established in the Philippines during the Japanese military occupation were valid and survived the restoration of the Commonwealth.
 2. Whether General Douglas MacArthur's Proclamation of October 23, 1944, invalidated non-political judicial acts and proceedings.
 3. Whether the restored Commonwealth courts have jurisdiction to take cognizance of and continue those pending non-political proceedings in the absence of an enabling act of Congress.
-

Holdings

1. **YES.** Under the rules of international law, the judicial acts and proceedings of *de facto* courts, when not of a political complexion, are valid and survive the restoration of the legitimate sovereign.

2. **NO.** General MacArthur's proclamation did not invalidate non-political judicial acts. The term "processes" must be construed to exclude ordinary municipal court proceedings to conform with international law.
 3. **YES.** The re-established Commonwealth courts have inherent jurisdiction under the principle of postliminy to continue pending non-political cases; no legislative enabling act is required.
-

Controlling Reasoning

1. The Japanese-Sponsored Government was a Valid *De Facto* Government

- **Governments of Paramount Force:** The Court defines three types of *de facto* governments. The administrations established during the Japanese occupation—the PEC and the "Republic of the Philippines"—fall under the **second class: a *de facto* government of paramount force**.
- **Characteristics Met:** Its distinguishing features are: (1) its existence is maintained by active military power against the rightful authority, and (2) it must necessarily be obeyed in civil matters by private citizens who do not become wrongdoers by rendering such obedience.
- **The Principle of Postliminy (*Postliminium*):** Under international law, when an occupied territory is recovered by its legitimate sovereign, the recovery does not wipe out the effects of non-political acts done by the occupant. Because municipal civil laws (such as the Civil Code) were continued to maintain public order, the judicial acts enforcing these laws remain good and valid.

2. Restrictive Interpretation of "Processes" in MacArthur's Proclamation

- **Statutory Construction to Conform with Law of Nations:** A basic rule of construction dictates that **a statute must never be construed to violate the law of nations if any other possible construction remains**.
- **The Absurdity of Wholesale Nullification:** If "processes" were construed to include ordinary judicial civil proceedings, it would cause absolute judicial chaos, nullifying civil contracts, marriages, estates, and criminal convictions of ordinary lawbreakers. This would paralyze the social life of the community, directly violating the Hague Regulations of 1907 (which mandate the preservation of public order and municipal law during occupation).
- **The Tri-Administrative Match:** Therefore, the phrase "processes" must be understood as referring to **executive, legislative, and political/constitutional processes** of the puppet government, leaving municipal civil judicial proceedings untouched.

3. No Enabling Act is Required for Continued Courts

- **Institutional Continuity:** The municipal courts of the Commonwealth were not destroyed; they were merely continued under a *de facto* occupant. They are the same courts created by the same pre-existing laws.
 - **The "Elastic Body" Analogy:** Under postliminy, a state resumes its original legal and constitutional shape once the external compressing force (the enemy) is removed. Because the legal system instantly snaps back, the re-established courts automatically regain the jurisdiction to resolve pending civil cases, making an enabling act of Congress completely unnecessary.
-

Doctrine, Test, Elements, Exceptions, and Limits

- **The Tripartite Classification of *De Facto* Governments:**

1. **Usurping Government (*de facto* in a proper legal sense):** A government that completely expels and takes possession of the rightful sovereign, maintaining itself by force or popular voice (e.g., England under Cromwell).
 2. **Government of Paramount Force:** Established and maintained by invading military forces in the course of war (e.g., Castine in Maine, Tampico in Mexico, and **the Japanese-sponsored regimes in the Philippines**).
 3. **Rebellious Independent Government:** Established by citizens in insurrection against the parent state (e.g., the Southern Confederacy).
 - **The Postliminy Test for Valid Occupation Acts:** For an act of a *de facto* occupying government to remain valid upon restoration of the *de jure* sovereign, it must:
 1. Be a legislative, executive, or judicial act governed by municipal law.
 2. **Not be of a political complexion** (i.e., it must not favor the military interests of the invader or actively undermine the sovereignty of the *de jure* government).
 3. Not violate constitutional and human rights.
-

Disposition

The Supreme Court **GRANTED** the petition for mandamus. It ordered a writ of mandamus to issue, directing the respondent judge of the CFI of Manila to take cognizance of and **continue to final judgment** the proceedings in Civil Case No. 3012.

Obiter / Source-Verified Quotable Line

"Were it otherwise, the whole social life of a community would be paralyzed by an invasion..."

"A law that enjoins a person to do something will not at the same time empower another to undo the same."

Separate Opinions (Material Dissents)

1. Dissent of Justice Perfecto

- **The "Plain Meaning" Rule:** General MacArthur's proclamation used the absolute adjective "**ALL**" ("all processes"). In political and legal definition, "processes" is synonymous with judicial proceedings.
- **No Judicial Usurpation of Policy:** The Court has no business trying to carve out exceptions based on speculative "judicial chaos." If the proclamation declared them null and void, they are void. The remedy belongs solely to the legislature through a validating/enabling act, not to the courts.

2. Dissent of Justice Hilado

- **Puppet Status is Void *Ab Initio*:** The PEC and the "Republic" were illegal regimes under constant duress. Their judges were appointed by an enemy and could not be considered *de facto* judges because good faith was totally absent.

- **National Dignity:** Validating these proceedings legalizes the Japanese invasion and insults the heroic sacrifices of the Philippine resistance movement. The restored Commonwealth cannot be bound by the judicial acts of a hostile puppet regime.
-

Recitation Capsule

"May it please the Court, the case of *Co Cham v. Valdez* (1945) establishes that non-political judicial acts and proceedings of courts operating during a belligerent occupation remain valid and must be continued by restored *de jure* courts under the Principle of Postliminy.

The Court held that the Japanese-sponsored administrations (the PEC and the Laurel Republic) were *de facto* governments of paramount force. Under international law, particularly the Hague Regulations of 1907, the municipal civil laws of an occupied territory continue in force to maintain public order. Consequently, ordinary, non-political judicial acts—such as the resolution of private property disputes—remain good and valid despite the restoration of the legitimate sovereign.

The Court also ruled that General MacArthur's 1944 Proclamation, which nullified 'all processes' of other governments, must be interpreted to exclude municipal judicial processes. Doing otherwise would violate the law of nations, cause judicial chaos, and paralyze the social life of the nation. Lastly, because the restored courts are the same institutions snapped back into their original shape, they have inherent jurisdiction to continue pending civil cases; thus, no legislative enabling act is required."

? Likely Follow-Ups

1. **Q: Does this case mean that treason trials conducted by the Japanese-sponsored courts were also valid and binding after liberation?**
 - A: **No.** Treason cases are highly political in complexion. Under the postliminy test, judicial acts of a **political complexion** (those affecting the military or political interests of the occupying power or penalizing loyalty to the *de jure* sovereign) are **automatically invalidated** upon the restoration of the legitimate government.
 2. **Q: How does this case reconcile with *Laurel v. Misa* (1947), which held that allegiance is not suspended during occupation?**
 - A: In *Laurel v. Misa*, the Court held that while the *exercise* of sovereignty by the *de jure* government is suspended during a belligerent occupation, sovereignty itself remains with the people. *Co Cham* is consistent with this: the municipal laws remain the laws of the land, and the *de facto* courts merely administered those pre-existing laws on behalf of the occupant to maintain public order.
 3. **Q: Why did Judge Dizon believe an "enabling act" was required?**
 - A: Judge Dizon relied on historical precedents from the Spanish-American War, where the US Congress passed enabling acts to transfer cases from Spanish courts (like the *Audiencia*) to the newly created American-Philippine courts. The Supreme Court distinguished this, stating that those Spanish courts were abolished and replaced by a new sovereign system, whereas in *Co Cham*, the Commonwealth judicial system was simply being restored, not replaced.
-

Changed-Fact Application

- **Hypothetical:** Suppose Co Cham filed his civil complaint in a specialized "Japanese Military Tribunal" created by the Japanese army to try cases under Japanese Imperial Military Laws, rather than in the ordinary Court of First Instance of Manila administering the Philippine Civil Code. After liberation, he petitions the re-established CFI to continue the case. Will his petition be granted?
- **Answer: No.** Under the *Co Cham* doctrine, postliminy only preserves judicial acts that are **not of a political or military complexion** and are administered under the **territorial municipal law** of the occupied state. A specialized military tribunal applying foreign imperial military laws is a purely political and military instrument of the invader. Its processes would be declared null and void *ab initio* under Section 3 of General MacArthur's Proclamation, and the Commonwealth courts would have no jurisdiction to continue them.

One-Sentence Doctrine Anchor

Under the Principle of Postliminy, non-political judicial acts of a *de facto* government of paramount force remain valid upon the restoration of the *de jure* sovereign, and the re-established municipal courts have inherent jurisdiction to continue pending civil cases without need of a legislative enabling act.

REPUBLIC v. SANDIGANBAYAN | GR 104768 (2003) | ERDD-J/D/S

DOCTRINE: EVEN DURING A REVOLUTIONARY GOV'T/INTERREGNUM, THE STATE IS BOUND BY INTERNATIONAL COVENANTS TO RESPECT HUMAN RIGHTS; PCGG JURISDICTION LIMITED TO MARCOS AND ASSOCIATES

FACTS

- **EDSA INTERREGNUM / REVOLUTIONARY GOV'T FEB 25-MARCH 24, 1986**

- Following upheaval from EDSA People Power Revolution, Corazon Aquino declares a revolutionary government rejecting the 1973 Constitution while waiting for the 1987 Constitution

- **RAMAS AND DIMAANO PCGG CASE**

- **RAMAS** During this period, the PCGG filed charges against General Josephus Ramas (then commander of the AFP) for violation of Anti-Graft and Corruption, and Forfeiture Laws (unexplained wealth)
- **DIMAANO** PCGG also filed charges with Elizabeth Dimaano, mistress of Ramas and close confidante who acquired wealth allegedly and properties. A seizure raid was conducted at her house where police seized communication devices, money, and jewelry, and land titles.

- **DELAYS AT SANDIGANBAYAN**

- Following multiple failures to present evidence, PCGG continues to keep asking for extension/postponement of trial
- Ultimately, they demanded to revert to the preliminary stage by changing the case to fit their current evidence via an Amended Petition
- **SANDIGANBAYAN DISMISSAL** on the grounds of:
 - **No jurisdiction** (Cruz Jr. vs Sandiganbayan, and Republic v. Migrino)
 - **Illegal search and seizure** of the items involved, among others

- **PCGG FILES PETITION FOR CERTIORARI**

ISSUES:

(1) **PCGG JURISDICTION – NO**

(a) **PRIMA FACIE SHOWING OF CLOSE ASSOCIATION FAILED TO PROVE**

- (i) EO 1 delimits PCGG jurisdiction to Marcos, Family, Associates, Subordinates

(b) **MIGRINO v. REPUBLIC**

- (i) *Jusdem Generis* - Enumerated definitions should be read as the same kind or class (i.e. subordinates here do not mean underlings per se but subordinates like family, associates, relatives)
- (ii) Ramas as a military general position not sufficient enough to prove “Subordination”

(c) **CRUZ JR. v. SANDIGANBAYAN**

- (i) EO 1 Delimits PCGG jurisdiction to
- 1) **Marcos, family, associates, subordinates**
 - 2) **As assigned by the President**
- (ii) PCGG cannot claim it was assigned by prez
- (iii) PCGG also admitted it is suing for graft
- 1) But they did not prove it was graft by associates

(d) **OMBUDSMAN HAS BETTER JURISDICTION RA 6770 (as stated in Migrino as well)**

(2) **SANDIGANBAYAN DISMISSAL OK? – YES**

- (a) **SUFFICIENT TIME** No one to blame for delays than PCGG themselves; sufficient time has been given

(3) **SEIZURE ILLEGAL? – YES**

(a) **BILL OF RIGHTS UNDER 1973 CONSTI – NO EFFECT BUT**

- (i) **Presumed no effect** as EDSA was repudiation / defiance of ‘73 Consti

- (ii) **Intent of the framers** – included exceptions to PCGG sequestration under Article 18 (26) of 1987 Consti presupposes they know it was a violation of bill of rights but there was none at the time

(b) INTERNATIONAL COVENANT AND UNIVERSAL DECLARATION STILL APPLIES

- (i) Article 17(1) of covenant ensures exclusionary right – no government arbitrary or unlawful interference with privacy, family, home etc.

(c) COURT ORDERS RETURN OF ILLEGALLY SEIZED ITEMS FROM DIMAANO

- (i) Communication equipment, money, jewelry, not originally part of warrant

DISPOSITION: PETITION BY PCGG DISMISSED, REMANDED TO OMBUDSMAN

DISSENT (PUNO): Bill of rights inherent, written consti only guarantees; Natural law and social contract prevail

Identity and Syllabus Relevance

- **Case Name:** *Republic of the Philippines v. Sandiganbayan, Major General Josephus Q. Ramas, and Elizabeth Dimaano*, G.R. No. 104768, July 21, 2003 (Carpio, J.; En Banc).
- **Syllabus Relevance:** This landmark case is critical for three core Constitutional Law issues:
 1. **PCGG's Jurisdictional Scope:** It defines the limits of the Presidential Commission on Good Government's (PCGG) investigatory and prosecutorial powers, clarifying that it has no jurisdiction over ordinary unexplained wealth of military officers absent a *prima facie* showing that they are "subordinates" or close associates of former President Ferdinand Marcos.
 2. **Interregnum Applicability of the Bill of Rights:** It addresses the legal status of fundamental rights during the revolutionary "interregnum" (February 25, 1986, to March 24, 1986). It rules on whether individuals can invoke protection against unreasonable searches and seizures during a constitutional vacuum.
 3. **International Law and Human Rights:** It underscores the binding nature of international covenants (such as the Universal Declaration of Human Rights and the International Covenant on Civil and Political Rights) to protect human rights when domestic constitutional restraints are temporarily suspended [11].

Chronological Material Facts

1. **February 25, 1986:** The EDSA People Power Revolution succeeds. The revolutionary government under President Corazon C. Aquino takes power, creating a temporary constitutional interregnum.
2. **March 3, 1986:** A Constabulary raiding team serves a search warrant at the residence of Elizabeth Dimaano in Batangas. Dimaano is a clerk-typist and confidential agent of Major General Josephus Q. Ramas (then-Commanding General of the Philippine Army) [52].
3. **The Search and Seizure:** The search warrant is captioned strictly for "*Illegal Possession of Firearms and Ammunition.*" While the raiding team finds weapons (including a baby armalite and a caliber .45 pistol), they also confiscate non-contraband private property not listed in the warrant: **communications equipment, ₱2,870,000.00 in cash, US\$50,000.00, jewelry, and land titles.**
4. **March 25, 1986:** President Aquino promulgates Proclamation No. 3 (the "Provisional" or "Freedom Constitution"), officially ending the interregnum [219, 58].
5. **The PCGG Inquiry:** The PCGG creates the AFP Anti-Graft Board to investigate the unexplained wealth of military personnel. The Board finds a *prima facie* case of unexplained wealth against Ramas in the amount of ₱104,134.60 [51].
6. **August 1, 1987:** The PCGG files a petition for forfeiture under R.A. No. 1379 ("The Act for the Forfeiture of Unlawfully Acquired Property") against Ramas.

7. **The Amended Complaint:** The Solicitor General files an Amended Complaint to implead Elizabeth Dimaano, alleging she was a co-conspirator/dummy of Ramas [52].
 8. **The Delays:** Trial commences. Over nearly four years, the Republic repeatedly postpones hearings, fails to produce key documents or witnesses, and attempts to amend its complaint multiple times to charge Dimaano alone with the properties (effectively trying to revert the case to the preliminary stage).
 9. **The Motion to Dismiss:** Ramas and Dimaano file motions to dismiss based on the newly promulgated Supreme Court decisions in *Cruz, Jr. v. Sandiganbayan* and *Republic v. Migrino*.
-

Procedural History

- **Before the Sandiganbayan (Civil Case No. 0037):**
 - On November 18, 1991, the Sandiganbayan (First Division) **dismisses the Amended Complaint**, orders the confiscated money, equipment, jewelry, and land titles returned to Elizabeth Dimaano, and remands the records to the Ombudsman (who has primary jurisdiction over ordinary R.A. 1379 cases).
 - On March 25, 1992, the Sandiganbayan denies the Republic's Motion for Reconsideration.
 - **Before the Supreme Court:** The Republic files a Petition for Review on Certiorari under Rule 45 to set aside the Sandiganbayan's resolutions.
-

Parties' Material Arguments

- **Petitioner's (The Republic's) Arguments:**
 - **Waiver of Defects:** Even if there were procedural defects in the PCGG's initial filing, Ramas and Dimaano waived these objections by filing their respective Answers with counterclaims.
 - **Inapplicability of Precedents:** The restrictive rulings in *Cruz, Jr.* and *Migrino* are not applicable to the present case.
 - **Immunity of Revolutionary Search:** The search and seizure occurred during the revolutionary interregnum (March 3, 1986). Since the 1973 Constitution was defunct and the Freedom Constitution had not yet been adopted, no Bill of Rights existed to restrict state action [219, 58]. Therefore, the confiscated items are fully admissible.
 - **Respondents' (Ramas' and Dimaano's) Arguments:**
 - **Lack of Jurisdiction:** PCGG has no jurisdiction over Ramas and Dimaano under Executive Order No. 1 because Ramas was not shown to be a "subordinate" or close associate of Ferdinand Marcos.
 - **Due Process and Illegality:** The seizure of cash, jewelry, and land titles was a clear violation of due process because those items were completely outside the scope of the search warrant.
 - **Unreasonable Search:** The state is always bound to respect human rights, and the revolutionary government cannot bypass fundamental protections against arbitrary theft/seizure under the guise of an "interregnum" [219, 58].
-

Issues

1. Whether the PCGG has the jurisdiction to investigate and file a forfeiture petition under R.A. No. 1379 against military officers Ramas and Dimaano.
2. Whether the Sandiganbayan committed grave abuse of discretion in dismissing the case before the Republic could complete the presentation of its evidence.
3. Whether the search and seizure conducted on March 3, 1986, was legal, and whether the seized items are admissible in evidence.

♥ Holdings

1. **NO.** PCGG has no jurisdiction. Jurisdiction over ordinary unexplained wealth of military personnel is vested in the Ombudsman, not the PCGG.
 2. **NO.** The Sandiganbayan did not err. The Republic had only itself to blame for its systemic and inexcusable delays.
 3. **NO.** The search and seizure was **illegal and void**, making the non-contraband items (money, jewelry, land titles) **inadmissible** under the exclusionary rule.
-

♥ Controlling Reasoning

1. Strict Statutory Limitation of the PCGG's Mandate

- Under Executive Order No. 1, the PCGG was created for a **highly specific and limited purpose**: to recover the ill-gotten wealth amassed by former President Ferdinand Marcos, his immediate family, relatives, subordinates, and close associates [205, 54].
- A military officer cannot be prosecuted by the PCGG under R.A. No. 1379 based on mere position held. There must be a *prima facie* showing of a close personal, familial, or business connection to the Marcoses.
- Because Ramas was never shown to be a "subordinate" or close associate under E.O. 1, the PCGG acted *ultra vires*. The case belongs to the Ombudsman, and the right to raise this lack of jurisdiction cannot be waived or barred by estoppel.

2. The Republic's Responsibility for Self-Inflicted Delay

- The record shows that the case was pending for four years. The Sandiganbayan accommodated the Republic's constant requests for postponements, even granting a 4-month deferment for a preliminary investigation. The Republic's attempt to file a Re-Amended Complaint at the last minute would have reset the entire trial. The court is not bound to tolerate endless state procrastination.

3. Human Rights During the Interregnum (The Binding Power of International Law)

- **The Domestic Vacuum:** The Court notes that during the interregnum between February 25, 1986, and March 24, 1986, the revolutionary government operated under a legal vacuum where the 1973 Constitution's Bill of Rights was not in force [219, 58].
 - **The International Shield:** However, the Court rules that **the revolutionary government was not completely unrestrained**. The State remained bound by its international commitments, specifically the **Universal Declaration of Human Rights (UDHR)** and the **International Covenant on Civil and Political Rights (ICCPR)** [11, 222].
 - Both covenants strictly protect individuals from arbitrary deprivation of property and unreasonable searches and seizures [11, 222]. Since the warrant was strictly for firearms and ammunitions, the seizure of cash, jewelry, and land titles was arbitrary, unauthorized, and a violation of international law. Thus, the exclusionary rule applies, rendering these items inadmissible in any subsequent prosecution.
-

■ Doctrine, Tests, Elements, Exceptions, and Limits

- **The Subordinate Jurisdiction Test (PCGG):** For the PCGG to validly acquire jurisdiction to investigate and prosecute a public or military officer under E.O. 1, there must concur:
 - The officer accumulated ill-gotten wealth [54].
 - The wealth was accumulated *by virtue of* a close relationship, association, or subordination to former President Ferdinand Marcos or his wife [206, 54].
 - **The "Interregnum" Human Rights Rule:** During a domestic constitutional interregnum where a revolutionary government is in power:
 - **Limit:** The domestic constitution and its Bill of Rights are technically inoperative [219, 58].
 - **Exception (Human Rights Minimum):** The State remains bound under the **doctrine of incorporation** (Section 2, Article II) to international treaties and covenants (UDHR, ICCPR) protecting fundamental human rights against arbitrary state intrusion [11, 16, 222].
 - **The Plain-View/Scope of Warrant Limit:** Officers executing a search warrant cannot seize items not described in the warrant unless those items are *contraband per se* (e.g., illegal drugs or loose firearms). Private properties like legal currency, jewelry, and land titles are not *contraband per se* and must be immediately returned if seized outside the scope of the warrant.
-

Disposition

The Supreme Court **DISMISSED** the petition. The Resolutions of the Sandiganbayan dismissing the complaint, ordering the return of the confiscated properties to Elizabeth Dimaano, and remanding the case to the Ombudsman and the BIR were **AFFIRMED**.

Separate Opinions (Material Dissent of J. Puno)

- **Concurring and Dissenting Opinion of J. Puno (The Natural Law Critique):**
 - Justice Puno strongly disagreed with the majority's view that the Bill of Rights was not operative during the interregnum [58].
 - He argued that **the Bill of Rights is not a mere grant of the state** or a creation of a written constitution. It merely *guarantees and preserves* pre-existing **natural rights** (life, liberty, and security) which are inherent to human dignity.
 - Under natural law and the "social contract" theory, a successful revolution is fought precisely to restore and protect these natural rights from tyranny, not to destroy them. Therefore, even during the interregnum, the State was constitutionally bound to respect Dimaano's fundamental right against unreasonable searches and seizures under domestic law, independent of any international treaty.
-

Source-Verified Quotable Line

"The rule of law mandates that an agency of government be allowed to exercise only the powers granted to it."

"We do not declare that such person is the lawful owner of these items, merely that the search and seizure warrant could not be used as basis to seize and withhold these items from the possessor."

♥ Recitation Capsule

"May it please the Court, the case of *Republic v. Sandiganbayan* (2003) establishes that the PCGG has no jurisdiction over ordinary unexplained wealth cases of military officers unless they are proven to be 'subordinates' or close associates of former President Marcos.

The PCGG sought the forfeiture of cash, jewelry, and land titles seized from the home of Elizabeth Dimaano (clerk to Gen. Ramas) during a raid on March 3, 1986. The Court held that since Ramas was not shown to be a Marcos associate, the case fell under the jurisdiction of the Ombudsman, not the PCGG.

Substantively, the Court ruled that the search and seizure of the cash, jewelry, and land titles was void because they were not described in the search warrant (which was only for firearms and ammunition). Crucially, even though the raid occurred during the revolutionary 'interregnum' when the domestic Bill of Rights was suspended, the State remained bound by its international treaty obligations under the UDHR and ICCPR. These international covenants strictly prohibit arbitrary deprivation of property and unreasonable searches. Therefore, the exclusionary rule applies, and the illegally seized items are inadmissible in evidence."

■ Likely Follow-Ups

1. **Q: If the Ombudsman conducts a new preliminary investigation under R.A. No. 1379, can the State re-seize the returned properties?**
 - A: **No, not automatically.** The properties must be returned to Dimaano because their initial seizure under the March 3, 1986 warrant was declared void. To seize them again, the Ombudsman or the proper prosecutorial agency must apply for a new, valid search warrant or obtain a proper writ of preliminary attachment from the Sandiganbayan showing a lawful and independent basis.
 2. **Q: Does the dismissal of this PCGG petition mean that Gen. Ramas is permanently cleared of unexplained wealth charges?**
 - A: **No.** The dismissal was based on the PCGG's lack of jurisdiction and the inadmissibility of the illegally seized evidence. The Court explicitly affirmed the Sandiganbayan's referral of the case to the **Ombudsman** for appropriate action. Under R.A. No. 1379, the State's right to forfeit unlawfully acquired property does **not prescribe**, so the Ombudsman can still file a new forfeiture petition.
 3. **Q: How does this case apply the "Doctrine of Incorporation" under the Constitution?**
 - A: This case is a classic application of **Section 2, Article II of the Constitution**, which adopts the generally accepted principles of international law as part of the law of the land. By holding that the revolutionary government was bound by the UDHR and the ICCPR during the interregnum, the Court reinforced the doctrine that international human rights norms are automatically incorporated into our legal system and must be respected even in the absence of an active domestic constitution [11, 222].
-

■ Changed-Fact Application

- **Hypothetical:** Suppose the Constabulary raiding team on March 3, 1986, served a search warrant strictly for "Illegal Possession of Firearms." While searching the premises, they found a metal safe. Upon opening it, they found 10 kilograms of high-grade heroin alongside Dimaano's jewelry and titles. Can the heroin be excluded from evidence under this case's doctrine?
- **Answer: No.** Under the *contraband per se* exception recognized in *Republic v. Sandiganbayan*, items that are illegal to possess by their very nature (such as illegal drugs or unlicensed military-grade weapons) are **not**

subject to the exclusionary rule. While the jewelry and land titles must still be returned because they are lawful private properties seized outside the warrant, the heroin is a contraband *per se*. The state has a right and duty to confiscate it, and it remains fully admissible in a subsequent criminal prosecution for drug trafficking.

One-Sentence Doctrine Anchor

The PCGG has no jurisdiction over ordinary unexplained wealth cases of military officers without proof of a close subordinate relationship to former President Marcos, and even during a revolutionary interregnum, the State is bound by international covenants to respect human rights, rendering items seized outside the scope of a search warrant inadmissible in evidence.

SPARK v. QUEZON CITY | GR 225442 (2017) | DCS-S/VV/NP/RT/R

DOCTRINE: STATE'S ROLE AS PARENS PATRIAE IS NOT EXCLUSIONARY BUT COMPLEMENTARY TO PARENTS' NATURAL AND PRIMARY RIGHT AND DUTY TO REAR THE YOUTH; LOCAL CURFEW ORDINANCES MUST PASS THE STRICT SCRUTINY TEST

FACTS

- **DUTERTE VICTORY -> NATIONWIDE CURFEWS**

- LGUs around metro manila implemented their own curfew policies under Oplan Rody
 - Navotas Curfew - below 18, 10-4AM
 - Manila Curfew - below 18, 10-4AM
 - QC Curfew - below 18, 10-5AM
- With varying penalties/exemptions

- **SPARK PETITION (ARGS)**

- Assails constitutionality of the Curfew Ordinances on the grounds of:
 - (1) **unbridled discretion** / arbitrary enforcement (void for vagueness)
 - (2) **overbreadth** (does not exempt enough)
 - (2) deprive **right to travel** (fundamental, strict scrutiny test)
 - (3) deprive **parents natural and primary right** to rear the youth
 - (4) contravenes **no penalty for minors policy** of RA 9344

ISSUES

- (1) **STANDING?** – **YES** (case, standing, hierarchy, etc relaxed for transcendental importance)
- (2) **VOID FOR VAGUENESS?** – **NO**
 - **Bykofsky v. Borough of Middletown** – vague if delegates basic policy to police/judges on adhoc and subjective basis resulting in arbitrary/erratic application of law
 - **No basis – RA 9344** determines what a child is
- (3) **VIOLATES NATURAL AND PRIMARY RIGHT OF PARENTS?** – **NO**
 - **Bellotti v. Baird** - important to the state to impose some legal restrictions on minors especially those supportive or in aid of parents' roles
 - **As parens patriae** state has the inherent right to aid parents in the moral development of children
 - **Curfew ordinances apply only if** **theres no consent** of parents/permission (constructive interpretation of the ordinance)
- (4) **VIOLATES THE RIGHT TO TRAVEL?** – **PARTLY**
 - **Overbreadth Test** – does not apply, only for Freedom of Speech facial challenges due to chilling effect (**Imbong v. Ochoa, Southern Hemisphere**); nonetheless, applied:
 - **Strict Scrutiny Test**
 - **Compelling state interest**
 - All curfew ordinances pass this prong
 - **Least restrictive means**
 - Only QC's curfew ordinance pass this prong
 - Manila and Navotas unconstitutional for having too broad/not enough narrow exceptions (such as for religious, extra curriculars which QC has)
- (5) **VIOLATES NO PENALTY FOR MINORS UNDER RA 9344?** – **PARTLY**

- **RA 9344 clear that it does not allow penalties to be imposed on minors**
 - QC has no penalties for minors
 - Manila/Navotas impose penalties such as reprimanding, prison time, fines - unconstitutional

DISPOSITION: PETITION PARTLY GRANTED; ONLY QC IS CONSTITUTIONAL, NAVOTAS, MANILA CURFEWS ARE UNCONSTITUTIONAL

Dissenting (Leonen): State's Parens Patriae only applies if there is an absence of parental authority; + Total Unconstitutionality; No Factual Basis; Anti-Poor; Alternatives available

Identity and Syllabus Relevance

- **Case Name:** *Samahan ng mga Progresibong Kabataan (SPARK), Joanne Rose Sace Lim, John Arvin Navarro Buenaagua, Ronel Baccutan, Mark Leo Delos Reyes, and Clarissa Joyce Villegas (minor, represented by her father, Julian Villegas, Jr.) v. Quezon City, City of Manila, and Navotas City*, G.R. No. 225442, August 8, 2017 (Perlas-Bernabe, J.; En Banc).
- **Syllabus Relevance:** This is a foundational case in **Philippine Constitutional Law** concerning **Police Power, fundamental rights, and the standard of judicial review**. It establishes that **the right to travel is a fundamental right of both minors and adults**, meaning any restriction thereof must satisfy the **strict scrutiny test**. It also clarifies the constitutional balance between the State's role as *parens patriae* (father of the country/guardian of the nation) and the **"natural and primary" right and duty of parents to rear their children** under Article II, Section 12. Additionally, it delineates the statutory limits of municipal ordinances in imposing penalties on minors for **status offenses** under Republic Act No. 9344 (Juvenile Justice and Welfare Act of 2006).

Chronological Material Facts

1. **The Campaign:** Following a national executive campaign to implement a nationwide curfew for minors, various local government units (LGUs) in Metro Manila strictly enforce their respective curfew ordinances under police operations publicly designated as part of **"Oplan Rody"**.
2. **The Enacted Ordinances:**
 - **Navotas City** enforces *Pambayang Ordinansa Blg. 99-02*, as amended by *Blg. 2002-13*, setting a curfew for minors (under 18) from 10:00 PM to 4:00 AM. It penalizes minors and their parents with community service or fines.
 - **The City of Manila** enforces *Ordinance No. 8046*, setting "Barangay Curfew Hours" for minors under 18 from 10:00 PM to 4:00 AM. It penalizes minors with reprimand (15 and below). For those aged 15 to 18, repeat violations trigger reprimand, admonition, and eventually **imprisonment** (1 to 10 days) or a fine of ₱2,000, or both, for the third and subsequent offenses.
 - **Quezon City** enforces *Ordinance No. SP-2301, Series of 2014*, establishing "Disciplinary Hours" from 10:00 PM to 5:00 AM. It penalizes the *parents/guardians* with fines or community service but **imposes no penalty on the minors**.
3. **The Petitioners:** The *Samahan ng mga Progresibong Kabataan (SPARK)*—an unincorporated association of youth and minors—along with individual student-petitioners, challenge the curfews. Only petitioner Clarissa Joyce Villegas was a minor (17 years old) at the time of filing. She regularly travels late at night from her school in Manila to her home in Quezon City, facing an imminent threat of apprehension under the ordinances.

Procedural History

- **Supreme Court Original Action:** Petitioners file a Petition for Certiorari and Prohibition under Rule 65 of the Rules of Court, alleging the ordinances violate the Constitution and R.A. No. 9344.
 - **The Temporary Restraining Order (TRO):** The Supreme Court issues a TRO enjoining the LGUs from enforcing the curfew ordinances pending the resolution of the case.
 - **Procedural Objections:** Respondents demand the dismissal of the petition, arguing that: (a) Rule 65 is improper since the LGUs did not exercise judicial or quasi-judicial functions; (b) the petition violates the hierarchy of courts; and (c) SPARK lacks legal personality to sue, while the individual adult-petitioners lack standing.
-

Parties' Material Arguments

- **Petitioners' (SPARK and Student Sector's) Arguments:**
 - **Void for Vagueness:** The ordinances lack enforcement parameters or standards to guide law enforcers in determining a suspect's age, granting them unbridled discretion to arrest based on arbitrary visual assessments.
 - **Overbreadth:** The ordinances suffer from overbreadth because their narrow lists of exemptions fail to protect a minor's legitimate, non-delinquent nocturnal activities.
 - **Substantive Due Process & Right to Travel:** The curfews violate the minors' fundamental right to liberty and travel without substantive due process.
 - **Parental Prerogative:** The curfews unconstitutionally intrude into the parents' natural and primary right to rear their children.
 - **Conflict with R.A. No. 9344 (Manila):** The Manila Ordinance imposes penalties of imprisonment, fine, and reprimand on minors. This directly violates Section 57-A of R.A. No. 9344, which explicitly commands that **no penalty shall be imposed on minors for curfew/status offenses**.
 - **Respondents' (The LGUs') Arguments:**
 - **Procedural Defect:** Certiorari and prohibition are improper because the enactments were legislative, not judicial, acts.
 - **Police Power & General Welfare:** The ordinances are a valid exercise of police power under the general welfare clause and Article 139 of P.D. No. 603, designed to protect minors from nocturnal crimes and reduce juvenile delinquency.
 - **Compelling Interest:** The cities present alarming statistical data of crimes involving "Children in Conflict with the Law" (CICL) to justify the curfews as a compelling State interest.
-

Issues

1. **Procedural:** Whether the petitioners have legal standing and whether a Petition for Certiorari and Prohibition under Rule 65 is the proper remedy to challenge the curfew ordinances.
2. **Vagueness:** Whether the Curfew Ordinances are void for vagueness due to their lack of explicit age-determination guidelines.
3. **Parental Rights:** Whether the ordinances unconstitutionally infringe upon the "natural and primary" right and duty of parents to rear their children.
4. **Right to Travel:** Whether the ordinances violate the minors' fundamental right to travel under the Strict Scrutiny Test.
5. **R.A. No. 9344 Conflict:** Whether the penal provisions of the Manila and Navotas Ordinances violate R.A. No. 9344 by imposing community service, admonition, reprimand, fines, or imprisonment on minors for status offenses.

♥ Holdings

1. **YES.** Under the **expanded concept of judicial power** (Section 1, Article VIII), Rule 65 is the correct medium to challenge LGU legislative actions that allegedly violate the Constitution. While SPARK has no legal personality (being unincorporated) and the adult-petitioners lack direct injury, **the Court relaxed the rules on standing and hierarchy of courts** due to the transcendental importance of this case of first impression. Clarissa Joyce Villegas possesses direct standing.
2. **NO.** The "void for vagueness" doctrine is rooted in due process and requires that a penal law fail to provide fair notice of what conduct is prohibited. Petitioners do not claim confusion over what is prohibited; they only complain about a lack of administrative enforcement parameters. Statutory law (Section 7 of R.A. No. 9344) already provides the guidelines for age determination, which must be read in conjunction with the ordinances.
3. **NO.** The ordinances only minimally and reasonably infringe on parental prerogatives. They defer to parental authority by applying *only* when the minor is unsupervised. The State's role as *parens patriae* is complementary, not exclusive, and supports parents in discharging their protective duties.
4. **YES AND NO:**
 - **Quezon City Ordinance is CONSTITUTIONAL.** It satisfies the strict scrutiny test. It advances a compelling State interest and employs the **least restrictive means** because it contains a wide, carefully drafted list of exceptions (e.g., educational, religious, social, civic, or recreational activities sponsored by recognized groups). Furthermore, parental permission is constructively interpreted as "constructive accompaniment" under Section 4(a).
 - **Manila and Navotas Ordinances are UNCONSTITUTIONAL.** Although they serve a compelling State interest, they fail the second prong of the strict scrutiny test because they are **not narrowly tailored**. Their sparse exemptions unnecessarily burden and restrict minors' fundamental rights to travel, associate, peaceably assemble, and freely exercise religion (e.g., prohibiting unsupervised attendance at traditional midnight masses like *Simbang Gabi*).
5. **YES.**
 - **Admonition and Community Service are VALID.** Admonition (a gentle, authoritative warning) and community service are rehabilitative intervention programs, **not penalties**, and thus do not violate R.A. No. 9344.
 - **Reprimand, Fines, and Imprisonment are INVALID.** Reprimand is legally classified as an administrative penalty (a public and formal censure that carries social stigma). Fines and imprisonment are undeniably punitive penalties. Their imposition on minors for status offenses is **void and invalid** for directly violating Section 57-A of R.A. No. 9344.

♥ Controlling Reasoning

I. The Scope of Expanded Certiorari and Standing

- The 1987 Constitution's expanded definition of judicial power allows courts to correct grave abuse of discretion by any government branch or LGU, even if the challenged act is not judicial or quasi-judicial. Because curfews directly restrict fundamental liberties, the Court bypassed procedural rules of standing and hierarchy of courts to settle this critical public issue.

II. Reconciling Parens Patriae and Parental Primacy

- Under Section 12, Article II, parental rights in child-rearing are "natural" and "**primary**". The term "primary" connotes the **parents' superior right over the State** in the upbringing of their children.

- The State's authority as *parens patriae* is **complementary and supportive**, not supreme. The QC Ordinance respects this constitutional hierarchy by exempting minors who have parental consent (under the doctrine of constructive accompaniment).

III. Applying the Strict Scrutiny Test to Minors

- Although the State has broader regulatory authority over minors, **fundamental rights are no less fundamental for minors than for adults**. Thus, restrictions on a minor's fundamental right to travel cannot be subjected to a lower level of scrutiny.
- **The Twin-Prong Strict Scrutiny Test:**
 1. **Compelling State Interest:** Cleansing streets of unsupervised minors at night to protect them from crime and gang exploitation is a compelling State interest.
 2. **Least Restrictive Means (Narrow Tailoring):** The State must prove that its chosen regulation is the least restrictive mechanism available to achieve its compelling interest. QC satisfied this via its multi-faceted exemptions. Manila and Navotas failed because they sweepingly prohibited legitimate, protected activities (such as political assembly or religious worship) during curfew hours.

IV. The Absolute Prohibition on Penalties for Status Offenses

- A "status offense" is conduct that is penalized only because of the offender's age (e.g., curfew violations, which are perfectly legal for adults). R.A. No. 9344, Section 57-A, is absolute and unambiguous: **no penalty shall be imposed on children for status offenses**.
- Administrative and civil service jurisprudence classifies a **reprimand** as a penalty, as it is a formal, public censure. Imprisonment and fines are classic punitive penalties. Therefore, the Manila Ordinance directly contravened national statutory law and is void.

Doctrine, Tests, and Elements

- **The Substantive Local Ordinance Validity Test:** To be valid, an LGU ordinance must: (1) not contravene the Constitution or any statute; (2) not be unfair or oppressive; (3) not be partial or discriminatory; (4) not prohibit but may regulate trade; (5) be general and consistent with public policy; and (6) not be unreasonable.
- **The Fundamental Right Scrutiny Standard:**
 - **Strict Scrutiny:** Applies when a classification interferes with fundamental rights (such as the right to travel). Requires a **compelling State interest** and that the means be **narrowly tailored/least restrictive**.
 - **Intermediate Scrutiny:** Applies to classifications based on gender and legitimacy.
 - **Rational Basis:** Applies to all other general regulatory classifications.
- **The Constructive Accompaniment Rule:** The curfew exemption for minors "accompanied by their parents" includes **constructive accompaniment**, meaning the minor has obtained explicit parental consent to perform a specific nocturnal errand or activity.
- **Status Offense Non-Penalization Rule:** LGUs are prohibited from imposing fines, jail time, or formal reprimands on minors for status offenses. They may only issue non-punitive admonitions or require community-based intervention programs, such as community service.

Disposition

The Petition is **PARTLY GRANTED**.

- **City of Manila Ordinance No. 8046** and **Navotas Pambayang Ordinansa Blg. 99-02 (as amended)** are declared **UNCONSTITUTIONAL** and **VOID**.
- **Quezon City Ordinance No. SP-2301, Series of 2014**, is declared **CONSTITUTIONAL** and **VALID**.

Separate Opinions / Obiter if Material

I. Material Dissent of Justice Leonen

- **Total Unconstitutionality:** Justice Leonen voted to strike down **all three ordinances**, including the Quezon City Ordinance.
- **Tenuous Factual Basis:** He argued that the LGUs failed to present a rigorous, scientifically processed correlation proving that nocturnal curfews directly reduce juvenile crime.
- **Oppression of the Poor:** Curfews disproportionately burden and criminalize **minors living in poverty**. Street children, indigent working students, and children forced to scavenge at night for survival have no "homes" to return to, nor do they have parents or guardians readily available to fetch them from barangay halls.
- **Effective Police Work vs. Sweeping bans:** Public safety is better achieved by effective police work (installing CCTVs, street lighting, and active patrols) than by sweepingly clearing the streets of children *en masse*.

Closed-Book Retrieval Layer

1. 90-Second Recitation Answer

"May it please the Court, the landmark case of *SPARK v. Quezon City* (2017) clarifies the standard of judicial review for ordinances restricting a minor's fundamental rights and establishes the constitutional boundaries of parental authority.

The Court ruled that the right to travel is a fundamental right of both minors and adults; hence, local curfew ordinances must pass the strict scrutiny test. This requires a compelling State interest and the employment of the least restrictive means.

While all three challenged ordinances (Manila, Navotas, and Quezon City) advanced the compelling State interest of protecting minors and preventing juvenile crime, only the Quezon City Ordinance passed the least restrictive means prong. The Quezon City Ordinance was narrowly tailored because it provided broad, well-defined exemptions safeguarding minors' fundamental rights to education, employment, association, and freedom of religion. It also respected parental primacy under Article II, Section 12 by constructively treating parental consent as 'constructive accompaniment' under the law.

Conversely, the Manila and Navotas ordinances were declared unconstitutional for being overbroad and failing to provide sufficient exceptions. Furthermore, the Court struck down the penal provisions of the Manila Ordinance—imposing reprimands, fines, and imprisonment on minors—for directly violating Section 57-A of R.A. No. 9344, which categorically prohibits the LGU from imposing punitive penalties on children for status offenses."

2. Three Likely Follow-Up Questions

1. **Q: Why was "community service" in the Navotas Ordinance allowed, while "reprimand" in the Manila Ordinance was struck down under R.A. No. 9344?**
 - A: Under Section 57-A of R.A. No. 9344, the State prohibits "penalties" but mandates "intervention programs" for children at risk. Administrative and civil service jurisprudence explicitly classifies a **reprimand as a penalty** because it is a formal, public censure that carries social stigma. In contrast, **community service** is not punitive, but is classified as a valid, non-stigmatizing, community-based **intervention and rehabilitation program** designed to build accountability.
2. **Q: How does this case clarify the term "primary" in Article II, Section 12 of the Constitution?**

- A: The qualifier "primary" means that **the parent's right to rear their child is superior to that of the State**. The State's role under *parens patriae* is strictly **supportive and complementary**, not exclusive. The State may only intervene and override parental control if the parents have failed or are incapable of performing their duties.

One-Sentence Doctrine Anchor

Because the right to travel is a fundamental right, LGU curfew ordinances must pass the strict scrutiny test; thus, only ordinances with broad exemptions that protect minors' rights and respect primary parental authority are constitutional, while any LGU provision imposing fines, reprimands, or jail time on minors for status offenses violates R.A. No. 9344.

PHILIPPINE AGILA SATELLITES INC. v. TRINIDAD-LICHAUCO | GR142362 (2006)

DOCTRINE: STATE IMMUNITY FROM SUIT DOES NOT SHIELD PUBLIC OFFICIALS FROM CIVIL SUITS SEEKING TO NULLIFY ULTRA VIRES ACTIONS OR HOLDING THEM PERSONALLY LIABLE FOR TORTIOUS CONDUCT

MPL-T/T/R**FACTS**

- **MOU BETW. DOTC AND PASI**

- Pasi agrees to grant the government access to transponders
- DOTC to grant/secure orbital slots and frequency assignments via International Telecom Union (ITU) – **161E and 153E**

- **PASI PROCEEDED TO PREPARATIONS**

- Secured loans, increased capital, entered into negotiations,
- Paid 3.5M USD to French satellite manufacturer

- **LICHAUCO MALIGNS PASI**

- Lichauco, undersecretary of the DOTC
- Offered up the 153E orbital slot for bidding and awarded it to another unknown entity
- Lichauco also made defamatory remarks vs. PASI CEO Michael De Guzman in meetings

ISSUE

- **FIRST TWO CAUSE OF ACTION SUING THE STATE? (THUS IMMUNE) – NO**

- First = injunction, enjoin from selling 153E; Second = nullity of the award)
- Does not seek to impose financial liability on the State, but merely seeks the nullification of an act unauthorized or ultra vires (in this case bidding 153E to another bidder)
- Suit is against the state if it changes the treasury (money involved)

- **(THIRD) DAMAGES SUIT VS. LICHAUCO OK – YES**

- Public officials not shielded by the state or state immunity from personal liability
 - State does not authorize illegality
 - Presumptions are disputable
 - Hypothetical admission
- Arising from torts committed in excess of their object

- **DISMISSED FOR FAILURE TO EXHAUST REMEDIES? – NO**

- PASI faced immediate harm (cuz they needed to prepare agad) and so they needed urgent relief

DISPOSITION: GRANTED, CA SET ASIDE

Identity and Syllabus Relevance

- **Case Name:** *Philippine Agila Satellite Inc. and Michael C.U. De Guzman v. Josefina Trinidad-Lichauco*, G.R. No. 142362, May 3, 2006 (Tinga, J.; Third Division).
 - **Syllabus Relevance:** This is a classic authority in Constitutional Law on the **Doctrine of State Immunity (Non-Suability of the State)** and its exceptions. It clarifies the distinction between a suit against the State and a suit against a public officer in their personal capacity for **ultra vires (beyond authority) or tortious (wrongful) acts**. It also illustrates the exceptions to the procedural rule on **exhaustion of administrative remedies**.
-

Chronological Material Facts

1. **1994:** A consortium of private telecommunications carriers enters into a Memorandum of Understanding (MOU) with the Department of Transportation and Communications (DOTC), through then-Secretary Jesus Garcia. The MOU outlines the planned launch of a Philippine-owned satellite into outer space.
 2. **The MOU Terms:** Under the MOU, the launch and satellite are a private sector endeavor owned by the consortium, which is subsequently incorporated as the **Philippine Agila Satellite Inc. (PASI)**. In exchange, PASI agrees to grant the Philippine government one free transponder (a wireless communication device on the satellite) for non-commercial use, and the right of first refusal to another. The DOTC is tasked with securing the required orbital slots and frequency assignments from the International Telecommunication Union (ITU).
 3. **1996:** PASI is officially organized. The government and PASI coordinate through the ITU for two orbital slots: **161° East Longitude** and **153° East Longitude**.
 4. **July 3, 1996:** Following PASI's written request, DOTC Secretary Amado S. Lagdameo, Jr. issues a letter formally confirming the assignment of both orbital slots (161° E and 153° E) to PASI for its "Agila" satellites. Relying on this, PASI proceeds with preparations, including securing loans, increasing capital, and contracting with Aerospatiale, a French satellite manufacturer.
 5. **Dec 5, 1996:** Respondent Josefina Trinidad-Lichauco, then-DOTC Undersecretary for Communications, writes to Land Bank President Jesli Lapuz falsely denying that the DOTC had assigned slot 153° E to PASI, claiming only 161° E was assigned, and branding PASI's name claim as "false".
 6. **October 1997:** Lichauco reportedly makes further disparaging and defamatory remarks about De Guzman and PASI at a telecommunications forum, claiming that PASI will never pay its contractors.
 7. **December 1997:** Without prior notice to PASI, Lichauco unilaterally offers orbital slot 153° E for public bidding and subsequently awards it to an **"Unknown Awardee"**.
-

■ Procedural History

- **Trial Court Filing (January 23, 1998):** Aggrieved, PASI and De Guzman file a civil complaint for injunction, declaration of nullity of the award, and damages against Lichauco (now acting DOTC Secretary) and the "Unknown Awardee" in the Regional Trial Court (RTC) of Mandaluyong City, Branch 214.
 - **Motion to Dismiss:** Lichauco fails to file an answer on time but files a Motion to Dismiss, arguing:
 1. The complaint is an unauthorized suit against the State;
 2. The complaint fails to state a cause of action; and
 3. Petitioners failed to exhaust administrative remedies by not appealing to the Office of the President.
 - **RTC Ruling (August 14, 1998):** The RTC denies the motion to dismiss. It holds that state immunity is a contentious issue requiring a full trial, the complaint sufficiently alleges an *ultra vires* act by Lichauco in her personal capacity, and administrative exhaustion can be bypassed since it would not offer a plain, speedy, or adequate remedy.
 - **Court of Appeals Reversal (February 21, 2000):** On a Rule 65 petition by Lichauco, the Court of Appeals (CA) nullifies the RTC order and dismisses the complaint. The CA rules that the suit is against the State because Lichauco's actions fell within her official duties, enjoying the disputable presumptions of regularity and good faith.
 - **Supreme Court Review:** Petitioners elevate the case to the Supreme Court via a Petition for Review on Certiorari under Rule 45.
-

■ Parties' Material Arguments

- **Petitioners' (PASI's) Arguments:**
 - **Ultra Vires and Tortious Character:** Lichauco is being sued in her personal capacity for acts committed in excess of her authority (*ultra vires*) and tortious in character (maligning De Guzman, interfering with PASI's contracts, and unlawfully bidding out an assigned slot).
 - **Not a Suit Against the State:** The first two causes of action (injunction and nullity of the award) do not impose a financial charge or liability on the treasury of the State.
 - **Exempt from Exhaustion:** Resorting to the Office of the President is an inadequate and slow remedy because the bidding and award of the slot threatened immediate, irreparable harm to PASI's international contracts.
 - **Respondent's (Lichauco's) Arguments:**
 - **Official Capacity and State Immunity:** As DOTC Undersecretary, she has the authority to assist the DOTC Secretary in policy implementation. The bidding of slots was authorized by DOTC Department Circular No. 97-01. Thus, any suit arising from these acts is a suit against the State, which has not consented to be sued.
 - **Presumption of Regularity:** Her official acts enjoy the legal presumption of good faith and regular performance.
 - **Failure to Exhaust Remedies:** Petitioners bypassed the administrative chain of command by failing to seek relief from the President.
-

■ Issues

1. Whether the first two causes of action (injunction and declaration of nullity of the award) constitute a suit against the State, thereby invoking the defense of State Immunity.
2. Whether the third cause of action (damages) is barred by the doctrine of State Immunity.
3. Whether the complaint should be dismissed for failure to exhaust administrative remedies.

♥ Holdings

1. **NO.** The first two causes of action do not seek to impose financial liability on the State, but merely seek the nullification of an allegedly unauthorized and *ultra vires* act by a public official. Therefore, they are not suits against the State.
2. **NO.** Public officials are not shielded by State immunity for personal liability arising from torts or acts committed in excess of their official authority. Whether her actions were tortious requires a full-blown trial.
3. **NO.** The rule on exhaustion of administrative remedies is flexible and was properly bypassed because applying it would have caused irreparable injury to PASI, and administrative appeal did not offer a plain, speedy, or adequate remedy.

♥ Controlling Reasoning

1. The Financial Liability and Nullification Test

- **The Treasury Rule:** Under constitutional contemplation, a suit is against the State if it results in a charge or financial liability against the government.
- Here, the first two causes of action do not seek damages or financial output from the government treasury; they merely ask to enjoin the bidding and nullify the award of slot 153° E. Because they seek only the nullification of an unauthorized action and do not implead the DOTC itself as an unincorporated agency, State immunity does not apply.

2. Public Officers Cannot Hide Behind State Immunity for Personal Torts

- **State Does Not Authorize Illegalities:** If a public officer commits a tortious or *ultra vires* act, the State has no interest to protect. The shield of immunity only covers acts executed within the lawful scope of official duties.
- **Presumptions are Disputable:** The CA erred in dismissing the case on the ground that Lichauco's acts are presumed to be in good faith. Legal presumptions are disputable under the Rules of Court, and the very purpose of a trial is to allow the plaintiff the opportunity to present evidence to overcome those presumptions. Dismissing the case at the pleading stage based on a presumption is "pure sophistry" and denies due process.
- **Hypothetical Admission:** In filing a motion to dismiss based on state immunity, Lichauco hypothetically admits the truth of the complaint's allegations. This includes the allegations that she maliciously maligned petitioners and interfered with their contracts. If true, she is personally liable, and this liability is not shielded by state immunity.

3. Eradicating the Rigid Application of Exhaustion of Administrative Remedies

- When the orbital slot was bidden out, PASI faced immediate and irreparable harm to its business with French manufacturer Aerospatiale and other creditors. Forcing petitioners to appeal to the Office of the President would have delayed urgent relief, making the administrative remedy completely impractical and inadequate.

■ Doctrine, Test, Elements, Exceptions, and Limits

- **The "Suit Against the State" Scope Test:** A suit is considered to be against the State when:

1. The State is formally impleaded as a defendant, or the suit targets an unincorporated government agency.
 2. The judgment would require the State to perform an affirmative act (such as allocating funds or paying damages from the treasury).
- **The Ultra Vires / Personal Liability Exception:** A public officer is **personally liable** and cannot invoke State immunity if:
 1. They acted beyond the scope of their designated authority (*ultra vires*); or
 2. They committed a tortious, defamatory, or malicious act, even if under the color of performing their official duties.
 - **Disputable Presumptions vs. Outright Dismissal:** The presumptions of "good faith" and "regular performance of duty" are disputable and cannot be used to secure the outright dismissal of a tort complaint prior to a full-blown trial on the merits.
-

Disposition

The Supreme Court **GRANTED** the petition. The Decision of the Court of Appeals was **SET ASIDE**, and the Order of the Regional Trial Court of Mandaluyong City, Branch 214, dated August 14, 1998, was **REINSTATED**. The RTC was ordered to try and decide the case on the merits with deliberate dispatch.

Source-Verified Quotable Line

"Many civil actions are oriented towards overcoming any number of these presumptions, and a cause of action can certainly be geared towards such effect. The very purpose of trial is to allow a party to present evidence to overcome the disputable presumptions involved."

"Government immunity from suit will not shield the public official being sued if the government no longer has an interest to protect in the outcome of a suit; or if the liability of the officer is personal because it arises from a tortious act in the performance of his/her duties."

Recitation Capsule

"May it please the Court, the landmark case of *Philippine Agila Satellite Inc. v. Trinidad-Lichauco* (2006) establishes that the doctrine of State immunity does not shield public officials from civil suits seeking to nullify their *ultra vires* actions or holding them personally liable for tortious conduct.

The DOTC Undersecretary Josefina Trinidad-Lichauco unilaterally bidded out orbital slot 153° E, which had been previously assigned to PASI. She also allegedly ran a campaign to defame PASI's President, Michael De Guzman. PASI sued her for injunction, nullity of the award, and damages. Lichauco moved to dismiss, claiming the suit was against the State without its consent.

The Supreme Court rejected her defense and ruled on three grounds. First, the causes of action for injunction and nullity are not suits against the State because they do not seek to extract damages from the government treasury; they merely seek the nullification of an unauthorized act. Second, State immunity never shields a public officer from personal liability arising from *ultra vires* or tortious acts. Third, whether her actions were official and executed in good faith cannot be summarily

decided on a motion to dismiss. Presumptions of good faith and regular performance of duty are disputable, and a party has a right to a full-blown trial to present evidence to overcome them."

? Likely Follow-Ups and One Changed-Fact Application

1. **Q: How does this case reconcile with *Vigilar v. Aquino*, where a contractor sued the DPWH for payment on a completed road project?**
 - A: In *Vigilar v. Aquino*, the suit sought to extract payment from the State for a completed project. Although it nominally targeted the treasury, the Court held that state immunity yields to justice and equity. The State cannot use its immunity to avoid paying for benefits it already received, as that would sanction the "Royal Prerogative of Dishonesty." In *PASI*, the first two actions did not seek any money from the State, and the third action sought damages from Lichauco *personally*, not from the State treasury.
2. **Q: What is the significance of impleading the public officer instead of the government agency itself?**
 - A: Impleading the agency itself (e.g., suing the "DOTC") makes the suit a direct action against an unincorporated government entity, which requires the State's consent to be sued. Impleading the individual officer (e.g., "Josefina Trinidad-Lichauco") for acting beyond her authority ensures that the suit is directed at the officer's personal accountability, bypassing the state's immunity shield.
3. **Q: Can the State choose to voluntarily indemnify Lichauco if she is found liable for damages at trial?**
 - A: **No.** If the trial court finds that Lichauco acted in bad faith and committed personal torts, her liability is purely personal. Under administrative law, public funds can only be spent for public purposes. The State cannot spend public funds to pay for the personal liabilities of an official who acted with malice or *ultra vires*.

Changed-Fact Hypothetical

- **Hypothetical:** Suppose that instead of suing Lichauco personally for damages, PASI sued the **DOTC as a department** and prayed that **the DOTC be ordered to pay ₱10 Million** from its departmental budget as actual damages for the cancellation of the orbital slot. Will the suit prosper?
- **Answer: No.** Under these changed facts, the suit would be dismissed. Impleading the DOTC (an unincorporated government agency without a separate juridical personality) and praying for a money judgment to be satisfied out of department funds directly targets the treasury of the State. This makes it a classic "suit against the State" without its consent, which is barred by Article XVI, Section 3 of the Constitution. PASI's only remedy for monetary compensation would have been to file a claim before the Commission on Audit (COA), or to sue Lichauco in her personal capacity for tort.

One-Sentence Doctrine Anchor

State immunity does not apply to suits seeking to enjoin or nullify a public officer's unauthorized acts without imposing financial liability on the treasury, nor does it shield public officers from personal liability for torts or *ultra vires* acts, which are factual issues that must be resolved in a full trial on the merits.

Identity and Syllabus Relevance

- **Case Name:** *Khosrow Minucher v. Honorable Court of Appeals and Arthur Scalzo*, G.R. No. 142396, February 11, 2003 (Vitug, J.; En Banc).
- **Syllabus Relevance:** This is a premier En Banc decision on **State Immunity and Diplomatic Immunity**. It clarifies that **blanket diplomatic immunity under the Vienna Convention on Diplomatic Relations is restrictively applied** and does not automatically cover "attaches" or "assistant attaches" who do not perform political representative functions of a diplomatic nature. However, it establishes that **a foreign state agent (such as a US DEA agent) performing official, non-commercial functions with the consent/imprimatur of the Philippine government is shielded by State Immunity from suit** under the custom of sovereign equality (*par in parem, non habet imperium*).

Chronological Material Facts

1. **1974–1976:** Petitioner Khosrow Minucher, an Iranian national, comes to the Philippines to study. In 1976, he is appointed Labor Attaché for the Iranian Embassies in Tokyo and Manila.
2. **Khomeini Regime & UN Refugee Status:** When the Shah of Iran is deposed by Ayatollah Khomeini, Minucher's pension is cut. He becomes a United Nations refugee in the Philippines and heads the anti-Khomeini Iranian National Resistance Movement. To earn a living, he sells Persian carpets, pistachio nuts, and caviar.
3. **May 13, 1986 (Introduction):** Minucher meets respondent Arthur Scalzo, who is introduced to him by a military intelligence informer, Jose Iñigo. Scalzo gives Minucher a calling card showing he is a **Special Agent of the United States Drug Enforcement Administration (DEA)**, Department of Justice, working at the US Embassy.
4. **The Buy-Bust Operation:** Scalzo participates in a joint buy-bust operation with Philippine police narcotics agents at Minucher's residence. Minucher is arrested for alleged trafficking of heroin under Section 4 of R.A. No. 6425 (The Dangerous Drugs Act of 1972).
5. **International Publicity & Detention:** Minucher's arrest as an "international drug trafficker" is widely publicized on television and newspapers globally. Minucher and his co-accused are detained for three days at Camp Crame handcuffed together, allegedly without food or water.
6. **January 8, 1988 (Acquittal):** After a full trial, the RTC of Pasig (penned by Judge Eutropio Migrino) acquits Minucher and his co-accused Abbas Torabian.
7. **August 3, 1988 (Civil Suit):** Minucher files Civil Case No. 88-45691 for damages in the RTC of Manila, claiming Scalzo manufactured trumped-up drug charges against him.

Procedural History

- **First Phase (Summons and Default):** Scalzo files special appearances to quash summons, which the RTC and Court of Appeals deny. He is declared in default but subsequently gets the default order lifted and files an Answer.
- **Second Phase (Diplomatic Note & First SC Review):** Scalzo files a Motion to Dismiss on June 14, 1990, claiming diplomatic immunity and attaching **Diplomatic Note No. 414** from the US Embassy.
 - The CA orders the case dismissed, but the Supreme Court (in *Minucher v. Court of Appeals*, G.R. No. 97765, penned by J. Davide) **reverses the CA and remands the case** to the RTC, holding that Scalzo's diplomatic immunity could not be taken up without proving the authenticity of the Diplomatic Note and resolving whether he acted in his personal capacity.
- **Third Phase (RTC Trial and CA Appeal):** Upon remand, the RTC Manila continues hearings.
 - On November 17, 1995, the RTC rules that while Scalzo was a diplomatic agent, **he should be held personally liable for damages (totaling over ₱10.8 Million) because his tortious acts were committed outside his official duties.**

- The Court of Appeals reverses the RTC, ruling that Scalzo is fully immune. Minucher files the present Petition for Review on Certiorari in the Supreme Court.
-

Parties' Material Arguments

- **Petitioner's (Minucher's) Arguments:**
 - **Conclusiveness of Judgment:** The SC's 1992 remand decision (*stare decisis/res judicata*) precluded the CA from sweepingly dismissing the case on diplomatic immunity again.
 - **Personal Liability for Torts:** Scalzo acted in his personal capacity and maliciously framed Minucher, which is an *ultra vires* act not covered by State or diplomatic immunity.
 - **Attaches Lack Diplomatic Rank:** Scalzo was listed merely as an "Assistant Attaché". Under the Vienna Convention and US State Department rules, attaches do not automatically possess diplomatic rank or enjoy blanket diplomatic immunity.
 - **Respondent's (Scalzo's / US Government's) Arguments:**
 - **Absolute Diplomatic Immunity:** As accredited "Assistant Attaché" of the US Mission, the Philippine Department of Foreign Affairs (DFA) formally recognized his diplomatic status, which is a political question binding on the courts.
 - **State Immunity Cloak:** Even if diplomatic immunity is contentious, Scalzo is a US government agent performing official narcotics control duties. Suing him is a suit against the US government, which has not consented to be sued.
-

Issues

1. Whether the doctrine of conclusiveness of judgment precluded the Court of Appeals from re-evaluating and sustaining Scalzo's immunity.
 2. Whether Arthur Scalzo is entitled to **Diplomatic Immunity** under the Vienna Convention on Diplomatic Relations.
 3. Whether Scalzo is entitled to **State Immunity from Suit** as an agent of the United States DEA.
-

Holdings

1. **NO.** The 1992 SC ruling in G.R. No. 97765 was not a final judgment on the merits regarding Scalzo's immunity; it merely remanded the case because the records were insufficient to resolve the issue at that early stage.
 2. **CONTENTIOUS / NO.** Scalzo does not possess the status of a "diplomatic agent" entitled to blanket civil and criminal immunity under the Vienna Convention, as an "Assistant Attaché" is an administrative/technical post that does not perform political representative functions.
 3. **YES.** Scalzo is fully protected by **State Immunity from Suit** because he acted within the scope of his official duties as a foreign state agent operating with the implicit consent (*imprimatur*) of the Philippine government.
-

Controlling Reasoning

1. Narrow Scope of Diplomatic Immunity under the Vienna Convention

- **The Representational Test:** Under the Vienna Convention on Diplomatic Relations, only "diplomatic agents" (heads of missions and diplomatic staff performing political representative duties) are vested with blanket civil and criminal immunity. Consuls and attaches do not ordinarily enjoy this status.
- **The Attaché Class:** An attaché belongs to a category of officers detailed by other government departments (such as the US Department of Justice) who assist the chief of mission. Their main function is to analyze trends, not represent the state in sovereign political matters. Thus, the DFA's certificate labeling Scalzo an "Assistant Attaché" is insufficient to grant him blanket diplomatic immunity.

2. The Application of State Immunity to Foreign Agents

- **Suing the Agent is Suing the Principal:** If the acts giving rise to a suit are those of a foreign government done by its agent acting in his official capacity, the suit is regarded as being against the foreign state itself. Under the sovereign equality of states (*par in parem, non habet imperium*), a foreign state cannot be sued in local courts without its consent.
- **The Sovereign Nature of DEA Operations:** Scalzo's job description as a DEA agent was to conduct surveillance on international drug conspiracies. It is clear that he was not conducting a private commercial business (*jure gestionis*), but was discharging official, sovereign, non-commercial public functions (*jure imperii*) on behalf of the US government.

3. Establishing the Host State's "Imprimatur" (Consent)

- **The Consent Requirement:** A foreign agent operating within a host territory can only be cloaked with state immunity if the host state has consented to his operations.
- **The Paper and Action Trail:** Although there was no formal military treaty (unlike *Guinto* or *Sanders* under the Military Bases Agreement), the **consent and imprimatur of the Philippine government to the US DEA's activities are overwhelmingly proven by:**
 1. Official exchanges of communication between the two governments.
 2. Certifications from the Philippine DFA and the US Embassy.
 3. The active, joint participation of the **Philippine Narcotics Command (NARCOM)** in the buy-bust operation at Minucher's house.
- In conducting the surveillance, acting as poseur-buyer, and testifying in court, Scalzo acted well within his authorized official duties. Consequently, he cannot be held personally liable for acts imputable to his principal, the United States of America, which has not consented to the suit.

Doctrine, Tests, Elements, Exceptions, and Limits

- **The Foreign Agent State Immunity Rule:** A foreign state official or agent is immune from civil liability in local courts if:
 1. They acted on behalf of a foreign government.
 2. They acted within the scope of their assigned official, non-commercial functions (*jure imperii*).
 3. The host state gave its express or implied consent (*imprimatur*) to the foreign agency's operations in its territory.
- **The Diplomatic Immunity Representative Test:** Diplomatic immunity is restrictively applied. The core yardstick is whether the individual is accredited and actually performs **duties of a political/diplomatic nature** (representing the sending state). Administrative, technical, or specialized departmental attaches do not automatically enjoy blanket diplomatic immunity.

Disposition

The Supreme Court **DENIED** the petition. The Decision of the Court of Appeals dismissing the civil complaint against respondent Arthur Scalzo was **AFFIRMED**.

Source-Verified Quotable Line

"Suing a representative of a state is believed to be, in effect, suing the state itself. The proscription is not accorded for the benefit of an individual but for the State, in whose service he is, under the maxim — *par in parem, non habet imperium* — that all states are sovereign equals..."

"...the participation of members of the Philippine Narcotics Command in the 'buy-bust operation' ... give[s] enough indication that the Philippine government has given its imprimatur, if not consent, to the activities within Philippine territory of agent Scalzo..."

Recitation Capsule

"May it please the Court, the landmark case of *Minucher v. Court of Appeals* (2003) establishes that a foreign state agent who is authorized to conduct official, non-commercial operations in the country is protected by the doctrine of State Immunity from suit.

The petitioner, Khosrow Minucher, sued US DEA Special Agent Arthur Scalzo for damages, alleging that Scalzo fabricated drug charges against him during a joint buy-bust operation that eventually led to Minucher's acquittal. Scalzo asserted both diplomatic and state immunity.

The Supreme Court ruled on two fundamental issues. First, Scalzo was not entitled to blanket diplomatic immunity under the Vienna Convention. Despite being listed as an 'Assistant Attaché,' attaches belong to specialized government departments and do not perform political representative duties of a diplomatic nature.

Second, Scalzo was fully shielded by State Immunity. As a DEA agent, Scalzo was performing official, non-commercial duties (*jure imperii*) on behalf of the US government. Crucially, the Court held that while there was no formal bases treaty, the Philippine government's consent or 'imprimatur' to the DEA's drug-enforcement operations was clear from the DFA certifications and the active participation of the Philippine Narcotics Command in the joint operation. Because Scalzo acted within his official duties, the suit is actually against the United States itself, which has not consented to be sued. Thus, the dismissal of the complaint was valid."

Likely Follow-Ups

1. **Q: If Scalzo had gone to Minucher's house alone and beaten him up during the surveillance, would he still be protected by State Immunity?**
 - **A: No.** As established in *Shauf v. Court of Appeals* and reiterated in *Minucher*, public officials can be held personally accountable if they commit *ultra vires* torts, criminal acts, or act with malice and bad faith. Physically assaulting a suspect is outside the scope of a DEA agent's official surveillance and arresting duties; hence, the state's immunity shield would be stripped, and Scalzo would be tried in his personal capacity.

2. **Q: Why does the Court require the host state's "consent or imprimatur" before cloaking a foreign agent with immunity?**
 - A: Without the consent of the host state, a foreign agent operating on domestic soil is committing a direct violation of territorial sovereignty. A sovereign state cannot recognize the "official capacity" of an agent whose very presence and unilateral operations within its borders constitute an illegal intrusion under international law.
 3. **Q: How does this case affect the principle that the executive branch's determination of diplomatic immunity is a political question binding on courts?**
 - A: The Court acknowledged the executive's prerogative in *WHO v. Aquino*. However, it warned that the DFA must be highly circumspect in issuing retroactive certificates of diplomatic status *post litem motam* (after a lawsuit is filed) to prevent the "indiscriminate and incautious grant of immunity" as a shield to escape local judicial processes.
-

Changed-Fact Application

- **Hypothetical:** Suppose Arthur Scalzo, while working as a DEA agent, entered into a written contract with Minucher to lease Minucher's warehouse to store seized carpets and caviar for a commercial export business Scalzo ran on the side. Scalzo defaulted on the rent, and Minucher sued him for breach of contract and damages. Scalzo raises the defense of State Immunity, presenting a letter from the US Department of Justice stating that his commercial sideline was authorized to augment his salary. Will the court dismiss the suit?
 - **Answer: No.** Under these changed facts, the transaction is **purely commercial and proprietary in nature (*jure gestionis*)** rather than governmental (*jure imperii*). Under the **restrictive theory of State Immunity** (adopted in *Indonesia v. Vinzon* and *Deutsche Gesellschaft (GTZ) v. CA*), when a foreign state or its agent enters into a private, business contract, it descends to the level of an ordinary citizen and is deemed to have tacitly waived its immunity from local civil jurisdiction. The US DOJ's authorization does not transmute a private retail business into a sovereign executive function. Scalzo would be held civilly liable in Philippine courts.
-

One-Sentence Doctrine Anchor

A foreign state agent performing official, non-commercial narcotics-control functions with the implicit consent or *imprimatur* of the Philippine government is shielded by State Immunity from suit, as any judgment against him would ultimately impose a liability on the non-consenting foreign sovereign.

Identity and Syllabus Relevance

- **Case Name:** *Deutsche Gesellschaft für Technische Zusammenarbeit, also known as German Agency for Technical Cooperation (GTZ), Hans Peter Paulenz, and Anne Nicolay v. Honorable Court of Appeals, Honorable Ariel Cadiente Santos, Labor Arbiter of the Arbitration Branch, NLRC, Bernadette Carmela Magtaas, Carolina Dionco, Christopher Ramos, Melvin Dela Paz, Randy Tamayo, and Edgardo Ramilo*, G.R. No. 152318, April 16, 2009 (Tinga, J.; Second Division).
 - **Syllabus Relevance:** This is a vital decision on **State Immunity and foreign government-owned corporations**. It establishes the core distinction between **incorporated and unincorporated government agencies** for suability purposes. It rules that **incorporation under private law constitutes an express legislative waiver of state immunity ("to sue and be sued")**, and applies the **doctrine of processual presumption** to assume that foreign corporate entities possess the same suable character as domestic corporations. It also clarifies that **an endorsement from the Office of the Solicitor General (OSG) cannot substitute for a formal certification from the Department of Foreign Affairs (DFA)**.
-

Chronological Material Facts

1. **September 7, 1971:** The governments of the Federal Republic of Germany and the Republic of the Philippines ratify an Agreement concerning Technical Co-operation to promote technical and economic development.
 2. **The Project:** Under a subsequent bilateral agreement, the two governments establish the "**Social Health Insurance—Networking and Empowerment (SHINE)**" project. The German government designates **Deutsche Gesellschaft für Technische Zusammenarbeit (GTZ)** as its implementing agency.
 3. **The Hirings (1998–1999):** On various dates, GTZ hires private respondents (Bernadette Carmela Magtaas as Information Systems Manager; Carolina Dionco and Christopher Ramos as Project Assistants; Melvin Dela Paz and Randy Tamayo as Programmers; and Edgardo Ramilo as Driver/Messenger).
 4. **The Contracts:** The employment contracts identify Dr. Rainer Tollkötter (a GTZ expert adviser) as the employer, acting on behalf of GTZ for the SHINE project.
 5. **The Dispute (2000):** Tensions arise regarding employment status and grievances. GTZ subsequently terminates private respondents, claiming they had resigned or were dismissed for gross insubordination and loss of trust.
-

Procedural History

- **Before the Labor Arbiter:**
 - **August 21, 2000:** Private respondents file a complaint for illegal dismissal against GTZ and its officers (Paulenz, Jahn, and Nicolay).
 - **October 25, 2000:** GTZ files a Motion to Dismiss, claiming it is immune from suit because its acts in implementing the SHINE project were governmental sovereign acts (*jure imperii*) of the German government.

- **November 27, 2000:** Labor Arbiter Ariel Cadiante Santos denies the motion, finding GTZ is a private corporation and had failed to secure an immunity certification from the DFA.
 - **October 15, 2001:** The Labor Arbiter decides on the merits, ruling that respondents were illegally dismissed without substantive and procedural due process, and holds GTZ liable.
 - **Before the Court of Appeals:** GTZ bypasses an appeal to the NLRC and files a Rule 65 Petition for Certiorari directly with the Court of Appeals. The CA dismisses the petition for failure to exhaust administrative remedies.
 - **Before the Supreme Court:** GTZ files a Petition for Review on Certiorari under Rule 45.
-

Parties' Material Arguments

- **Petitioners' (GTZ and Officers') Arguments:**
 - **Sovereign Mandate (*Jure Imperii*):** GTZ was tasked by a bilateral treaty to implement the SHINE project, which is non-profit, governmental (health insurance promotion), and purely sovereign in nature.
 - **Waiver of NLRC Appeal:** Bypassing the NLRC is justified because the Labor Arbiter's decision was a patent nullity for lack of jurisdiction on account of sovereign immunity.
 - **Private Respondents' Arguments:**
 - **Private Corporate Character:** GTZ is a private corporation under private law and is not the German State.
 - **Lack of DFA Certification:** GTZ failed to present any certification from the Philippine DFA attesting to its diplomatic status or entitlement to immunity.
 - **The OSG's Position (Amicus / Comment):** The OSG filed a comment supporting GTZ, arguing that GTZ's SHINE activities are governmental and thus cloaked with state immunity.
-

Issues

1. **Procedural:** Whether the Court of Appeals erred in dismissing the petition on the ground that GTZ bypassed the mandatory administrative appeal to the NLRC.
 2. **Substantive (Suability):** Whether GTZ, as the designated implementing agency of the German government, is entitled to invoke State Immunity from suit.
-

Holdings

1. **NO.** Bypassing the NLRC is only permitted if the Labor Arbiter's decision is a patent nullity. Since GTZ does not enjoy immunity, the Labor Arbiter had valid jurisdiction; hence, the decision was not a patent nullity and GTZ's failure to appeal is a fatal procedural lapse.
 2. **NO.** GTZ is **not entitled to State Immunity**. Although its activities are sovereign in nature (*jure imperii*), GTZ is a corporatized federal enterprise organized under German private law, which has an independent juridical personality and has legally consented to be sued.
-

♥ Controlling Reasoning

1. Incorporated vs. Unincorporated State Agencies

- The Court applies the foundational suability test from *Metran v. Paredes* and *Cruz v. DENR*:
 - **Unincorporated:** Suable only if the State consents, which depends on whether the agency performs sovereign (*jure imperii*) or proprietary (*jure gestionis*) functions.
 - **Incorporated:** **The test of its suability is found in its charter. If the charter or general law of its creation vests it with the power and capacity to "sue and be sued," it is suable regardless of the governmental functions it is performing.** Examples include the NIA, the Central Bank, and the NPC.

2. GTZ is a Company under Private Law (Processual Presumption)

- **The German Legal Setup:** According to GTZ's official corporate profile, it is a federally owned "enterprise" founded in 1975 **"as a company under private law"**.
- **The Philippine Equivalency:** Under Philippine law, a company organized under private law is akin to a government-owned and controlled corporation (GOCC) without an original charter (organized under the Corporation Code). Section 36 of the Corporation Code expressly states that every corporation has the power **"to sue and be sued in its corporate name"**.
- **Processual Presumption:** Because neither GTZ nor the OSG introduced evidence of German law showing that federally owned private law companies are exempt from suit, Philippine courts must presume that German law is the same as Philippine law. Thus, by organizing GTZ as a company under private law, the Federal Republic of Germany gave its **express consent for GTZ to be sued** in its corporate name.

3. DFA Certification vs. OSG Comment

- **Prerogative of the Foreign Office:** Under international law (*Holy See v. Rosario*), the proper mechanism to assert diplomatic or state immunity is to secure a **formal certification or endorsement from the Department of Foreign Affairs (DFA)**.
- **OSG Cannot Bind Foreign Relations:** The OSG's comment supporting GTZ is not a substitute for a DFA certification. The OSG did not consult the DFA, nor does the OSG have the political authority to make sovereign determinations regarding diplomatic relations. Without a DFA certification, there is no factual basis or legal presumption of immunity.

■ Doctrine, Tests, Elements, Exceptions, and Limits

- **The Incorporated Agency Suability Test:**
 - **Step 1:** Determine if the entity invoking state immunity is unincorporated or incorporated.
 - **Step 2:** If unincorporated, examine the nature of its acts (*jure imperii* vs. *jure gestionis*).
 - **Step 3:** If incorporated, **disregard the nature of its functions**. Check its charter or the general law under which it was organized. If it contains a "sue and be sued" clause, **consent is deemed expressly given**, and it cannot invoke immunity.

- **The Processual Presumption Rule in Immunity Claims:** In the absence of proof of foreign law regarding the suability of a foreign state enterprise, it is presumed to be identical to Philippine corporate law, which subjects all private-law corporations to suit.
-

Disposition

The Supreme Court **DENIED** the petition. The dismissal of the complaint by the Labor Arbiter and the Court of Appeals was **AFFIRMED**.

Source-Verified Quotable Line

"If the agency is incorporated, the test of its suability is found in its charter. The simple rule is that it is suable if its charter says so, and this is true regardless of the functions it is performing."

Recitation Capsule

"May it please the Court, the landmark case of *GTZ v. Court of Appeals* (2009) establishes that a foreign state's implementing agency that is incorporated under private law has an independent legal personality and cannot invoke State Immunity from suit, regardless of the governmental nature of its activities.

GTZ, a federally owned German enterprise, was sued for illegal dismissal by Filipino contract employees working for the SHINE health insurance project. GTZ claimed immunity, arguing that the SHINE project was a sovereign, bilateral project (*jure imperii*) between Germany and the Philippines.

The Supreme Court rejected GTZ's claim on two main grounds. First, the Court held that the suability of an incorporated agency is determined strictly by its charter. If its charter or general law allows it to 'sue and be sued,' it is suable regardless of its functions. Second, because GTZ was organized under German 'private law' as a company, it is akin to a Philippine GOCC without an original charter. Applying the doctrine of processual presumption, German law is presumed to be the same as Philippine law; thus, GTZ is deemed to have the capacity to 'sue and be sued,' representing an express waiver of immunity by the German government. Finally, the Court ruled that the OSG's endorsement cannot substitute for a formal certification of immunity from the DFA, which is the only office authorized to convey diplomatic determinations to the courts."

Likely Follow-Ups

1. **Q: How does this case affect the general rule that the "nature of the act" (*jure imperii* vs. *jure gestionis*) is the primary test for state immunity?**
 - A: The Court explicitly stated that while the "nature of the act" remains the most important barometer for testing the immunity of the **State itself and its unincorporated agencies**, it is **completely secondary to the threshold question of legal personality**. If the entity is incorporated under private law, its consent to be sued is pre-determined by its corporate status, making an inquiry into the sovereign nature of its acts unnecessary.
 2. **Q: If Germany had designated its Department of Health (an unincorporated department) instead of GTZ to implement the SHINE project, would the result change?**
 - A: **Yes**. If an unincorporated government department had hired the employees, the suit would be directly against the Federal Republic of Germany itself. The Court would then apply the "nature of the act" test, and because health insurance promotion is a sovereign public welfare activity (*jure imperii*), the department would have been declared immune from suit.
 3. **Q: Why is a DFA certification highly respected by courts, while an OSG comment is not?**
 - A: Under the separation of powers, the Executive branch—specifically the **Department of Foreign Affairs (DFA)**—has exclusive constitutional competence to conduct foreign relations. The courts defer to the DFA's diplomatic assessments as "political questions." The OSG, while representing the government in litigation, has no foreign policy-making mandate and cannot bind the State in diplomatic matters.
-

Changed-Fact Application

- **Hypothetical:** Suppose GTZ was not incorporated under German private law, but was instead created through a special legislative charter passed by the German Parliament. This charter explicitly stated: "*The German Agency for Technical Cooperation is a public state organ and shall be absolutely immune from the jurisdiction of all foreign courts.*" If Filipino employees sue GTZ for illegal dismissal, can GTZ claim immunity?
 - **Answer: Yes.** Under these changed facts, GTZ would be an incorporated agency with a **special legislative public charter that explicitly bars suit**. Under the suability test, the charter of an incorporated agency controls its capacity to be sued. Since the charter actively denies consent to be sued, and its activities under the SHINE project are sovereign and non-profit in nature (*jure imperii*), the local courts would have to respect the foreign legislative mandate and dismiss the suit based on sovereign immunity.
-

One-Sentence Doctrine Anchor

Because the suability of an incorporated government agency is determined solely by its charter, a federally owned foreign enterprise organized under private law is akin to a GOCC without a charter and is deemed to have consented to be sued, precluding any claim of sovereign immunity regardless of the governmental nature of its activities.

● IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Gregorio R. Vigilar, Secretary of the Department of Public Works and Highways (DPWH), et al. v. Arnulfo D. Aquino*
 - **Citation:** G.R. No. 180388, January 18, 2011 (En Banc)
 - **Ponente:** Sereno, J.
 - **Bench Composition:** Corona, C.J., Carpio, Carpio Morales, Velasco, Jr., Nachura, Leonardo-de Castro, Brion, Peralta, Bersamin, Del Castillo, Abad, Villarama, Jr., Perez, and Mendoza, JJ. (Unanimous En Banc)
 - **Syllabus Relevance & Topic:**
 1. **State Immunity from Suit (Non-Suability of the State):** Exceptions to immunity; prohibition against using State immunity to perpetrate an injustice; non-applicability of the "*Royal Prerogative of Dishonesty*".
 2. **Money Claims Against the Government & Equity:** Award of compensation on the basis of *quantum meruit* for completed public works under a void government contract [365, 370–372].
 3. **Exhaustion of Administrative Remedies:** Recognized exceptions to non-exhaustion, specifically unreasonable delay causing prejudice and pure questions of law.
-

● CHRONOLOGICAL MATERIAL FACTS

1. **Invitation to Bid (June 19, 1992):** Petitioner Angelito M. Twaño, Officer-in-Charge (OIC)-District Engineer of the DPWH 2nd Engineering District of Pampanga, extended an Invitation to Bid to respondent Arnulfo D. Aquino, owner of A.D. Aquino Construction and Supplies. The project involved constructing a dike by bulldozing a portion of the Porac River at Barangay Ascomo-Pulungmasle, Guagua, Pampanga.
 2. **Award and Execution of Contract (July 7, 1992):** The project was awarded to respondent Aquino, and a "*Contract of Agreement*" was executed between him and DPWH officials covering the project cost of **PhP 1,873,790.69**.
 3. **Project Completion (July 9, 1992):** Respondent Aquino fully completed the construction of the dike.
 4. **Issuance of Completion Certificate (July 16, 1992):** A Certificate of Project Completion was issued to respondent, signed by Project Engineer Romeo M. Yumul, Construction Section Chief Romeo N. Supan, and OIC-District Engineer Twaño.
 5. **Demand and Refusal to Pay:** Respondent claimed that an unpaid balance of **PhP 1,262,696.20** remained due to him. DPWH petitioners refused to release the amount, prompting Aquino to litigate.
-

● PROCEDURAL HISTORY

1. **Trial Court Action (RTC Guagua, Pampanga, Civil Case No. G-3137):** Respondent Aquino filed a Complaint for Collection of Sum of Money with Damages against DPWH officials.
 - **DPWH Defense:** The DPWH officials contended that: (a) the suit was an unauthorized action against the State; (b) respondent failed to exhaust administrative remedies by not filing a claim first with the Commission on Audit (COA); and (c) the Contract of Agreement was *null and void*

ab initio under Presidential Decree (P.D.) No. 1445 for lacking proper appropriation and a Certificate of Availability of Funds (CAF).

- **RTC Ruling (November 28, 2003):** The RTC ruled in favor of Aquino, ordering DPWH to pay him the full contract price of **PhP 1,873,790.69**, PhP 50,000.00 attorney's fees, and costs of suit.
 - 2. **Court of Appeals Action (CA-G.R. CV No. 82268):**
 - **CA Ruling (September 25, 2006):** The CA reversed the RTC's monetary award under the contract, declaring the "*Contract of Agreement*" **null and void ab initio** for failing to comply with P.D. No. 1445.
 - **Equitable Relief:** Citing *DOH v. C.V. Canchela & Associates*, the CA ordered COA to ascertain with dispatch, on a ***quantum meruit*** basis, the total obligation due to Aquino and allow payment subject to COA rules and regulations.
 - 3. **Supreme Court Petition:** DPWH Secretary Vigilar and other DPWH officials filed a Petition for Review on Certiorari under Rule 45 seeking complete dismissal of Aquino's complaint.
-

● PARTIES' MATERIAL ARGUMENTS

- **Petitioners (DPWH Officials):**
 1. The complaint should be dismissed because respondent failed to exhaust administrative remedies by not filing his money claim directly before COA first.
 2. The action is barred by the doctrine of non-suability of the State.
 3. COA cannot be ordered to pay on a *quantum meruit* basis where the underlying contract violated mandatory statutory conditions under P.D. No. 1445.
 - **Respondent (Arnulfo D. Aquino):**
 1. He is entitled to be compensated for completed public works that directly benefited the government and the public for almost two decades.
 2. Denying payment allows the government to unjustly enrich itself at his expense.
-

● ISSUES

1. **Whether the Court of Appeals erred in not dismissing the complaint for failure of respondent to exhaust administrative remedies before the Commission on Audit.**
 2. **Whether the Court of Appeals erred in holding that the doctrine of non-suability of the State does not apply to bar respondent's complaint.**
 3. **Whether the Court of Appeals erred in directing payment on a *quantum meruit* basis despite the nullity of the contract under P.D. No. 1445.**
-

🌸 HOLDINGS AND CONTROLLING REASONING

1. **On Exhaustion of Administrative Remedies: NO, the CA did not err. The action falls under recognized exceptions.**

- **Rule & Exceptions:** The doctrine of exhaustion of administrative remedies and primary jurisdiction are not ironclad rules. In *Republic v. Lacap*, twelve (12) exceptions were established.
- **Application of Exceptions:** Two specific exceptions apply to this case:
 - **Exception (c) — Unreasonable delay or official inaction that will irretrievably prejudice the complainant:** The dike project was completed in July 1992 (almost two decades prior to the ruling). Remanding the case to administrative channels after such prolonged delay would severely prejudice the contractor.
 - **Exception (e) — Purely legal questions:** The core issue involves the validity and enforceability of the contract under P.D. No. 1445 based on undisputed facts. Questions of law are beyond the technical expertise of COA or DPWH and can only be tentatively resolved by administrative agencies; final determination belongs strictly to the courts.

2. On *Quantum Meruit* Recovery for Void Government Contracts: NO, the CA correctly ordered payment on a *quantum meruit* basis [370–372].

- **Statutory Non-Compliance vs. Intrinsic Illegality:** Contracts executed in violation of public bidding, budget appropriation, and fund availability requirements under P.D. No. 1445 and the Revised Administrative Code of 1987 are void. However, as settled in *DOH v. C.V. Canchela & Associates*, the illegality of such contracts arises from express statutory prohibition, not from intrinsic immorality (*not illegal per se*). Therefore, the contractor is entitled to recover what was delivered or performed.
- **Prevention of Unjust Enrichment:** Under established precedents (*Royal Trust Corp. v. COA*, *Eslao v. COA*, *Melchor v. COA*, *EPG Construction Co. v. Vigilar*), equity and public interest require compensation for services rendered that benefited the general public. To deny payment for a completed dike that protected the public for nearly two decades would permit the government to unjustly enrich itself at the expense of another (*neminis cum injuria alterius detrimento debet locupletari*).

3. On State Immunity from Suit: NO, State immunity cannot be invoked to perpetrate an injustice [373–375].

- **Immunity Yields to Injustice:** Citing *Ministerio v. CFI of Cebu*, *Heirs of Pidacan v. ATO*, and *EPG Construction Co. v. Vigilar*, the Supreme Court reaffirmed that **the doctrine of governmental immunity from suit cannot serve as an instrument for perpetrating an injustice to a citizen.**
- **Rejection of the "Royal Prerogative of Dishonesty":** The State cannot accept, occupy, and enjoy the benefits of a contractor's honest labor and then conveniently hide behind the State's cloak of invincibility under the "Royal Prerogative of Dishonesty". Justice and equity demand that the State's cloak of invincibility be shredded in this instance, allowing recovery on a *quantum meruit* basis.

DOCTRINE, TESTS, AND LEGAL STANDARDS

1. **Non-Suability Exception (Avoidance of Injustice):** State immunity from suit is not absolute. Where the government and the public have reaped the benefits of a contractor's labor on a public works project, invoking immunity to deny payment constitutes the apex of injustice.
2. ***Quantum Meruit* Standard in Public Works:** Recovery on a *quantum meruit* basis (as much as the contractor deserves) is allowed where:

- The contract is void due to formal/statutory non-compliance (e.g., P.D. 1445) rather than intrinsic illegality;
- The project was fully or substantially completed; and
- The public and government actually received and enjoyed the benefits of the work.

♥ DISPOSITION

- **Ruling:** The Petition for Review on Certiorari is **DENIED** for lack of merit. The Decision of the Court of Appeals declaring the contract void *ab initio* but ordering COA to determine and allow payment on a **quantum meruit** basis is **AFFIRMED**.

● OBITER AND SOURCE-VERIFIED QUOTABLE LINES

-  **On State Immunity as an Instrument of Injustice:**

"Neither can petitioners escape the obligation to compensate respondent for services rendered and work done by invoking the state's immunity from suit... the doctrine of governmental immunity from suit cannot serve as an instrument for perpetrating an injustice to a citizen."

-  **On the "Royal Prerogative of Dishonesty":**

"Under these circumstances, respondent may not validly invoke the Royal Prerogative of Dishonesty and conveniently hide under the State's cloak of invincibility against suit, considering that this principle yields to certain settled exceptions."

-  **On Shredding the Cloak of Invincibility:**

"Justice and equity sternly demand that the State's cloak of invincibility against suit be shred in this particular instance, and that petitioners-contractors be duly compensated — on the basis of quantum meruit — for construction done on the public works housing project."

● RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

"In Vigilar v. Aquino, DPWH awarded a dike construction project in Pampanga to contractor Aquino. Aquino completed the project in July 1992 and received a Certificate of Completion, but DPWH refused to pay the remaining balance. When Aquino sued for collection, DPWH raised state immunity, non-exhaustion of administrative remedies (failing to go to COA first), and the nullity of the contract under P.D. No. 1445 for lack of proper appropriation."

The Supreme Court ruled En Banc, through Justice Sereno, that non-exhaustion does not apply because the issue involves pure legal questions and unreasonable delay. On the merits, while the contract is void ab initio for violating P.D. No. 1445, recovery is allowed on a quantum meruit basis because the contract is not intrinsically illegal, and the public benefited from the dike for nearly two decades. Most importantly, the Court held that State immunity cannot be used as an instrument to perpetrate an injustice or to exercise the 'Royal Prerogative of Dishonesty.' Justice and equity demand that the State's cloak of invincibility be shredded to prevent unjust enrichment." [360, 361, 367, 368, 371–375]

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: Why was COA directed to determine the amount due if the contract was declared null and void *ab initio*?**
 - **A:** Because the contract was not intrinsically illegal (*malum in se*), but merely void due to statutory non-compliance under P.D. No. 1445. To deny payment after the public reaped benefits from the completed dike for two decades would result in unjust enrichment. COA calculates the actual value of work done under *quantum meruit*.
2. **Q: How did the Supreme Court bypass the rule that money claims against the government must first be submitted to COA?**
 - **A:** By applying two established exceptions to non-exhaustion: (1) unreasonable delay or official inaction that irretrievably prejudices the complainant (20 years had passed); and (2) the case presents purely legal questions regarding contract validity beyond COA's specialized expertise.
3. **Q: What is the "Royal Prerogative of Dishonesty" mentioned in the case?**
 - **A:** It refers to the improper invocation of State immunity by government agencies to shirk just financial obligations for completed work. The Court explicitly rejected it, holding that State immunity yields when used to perpetrate an injustice against a citizen.

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose Aquino constructed a private commercial building for a government official's personal business using DPWH funds under a completely fake and simulated government contract. Can Aquino recover under *quantum meruit* against the government?
- **Answer: No.** Recovery on *quantum meruit* requires that the contract's defect be merely statutory/formal and that the *public or government actually derived benefit* from the work [370–372]. A simulated contract for a purely private purpose is intrinsically illegal (*malum in se*) and involves no public benefit. Equity will not assist a party in recovering under an intrinsically illegal or fraudulent scheme.

One-Sentence Doctrine Anchor

State immunity and administrative non-exhaustion cannot be invoked to shield the government from paying a contractor on a *quantum meruit* basis for completed public works that directly benefited the public.

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Most Rev. Pedro D. Arigo, Vicar Apostolic of Puerto Princesa, et al. v. Scott H. Swift, in his capacity as Commander of the U.S. 7th Fleet, Mark A. Rice, in his capacity as Commanding Officer of the USS Guardian, President Benigno S. Aquino III, et al.*
- **Citation:** G.R. No. 206510, September 16, 2014 (En Banc)
- **Ponente:** Villarama, Jr., J.
- **Bench Composition:** Carpio, Velasco, Jr., Leonardo-de Castro, Brion, Peralta, Bersamin, Del Castillo, Perez, Reyes, and Perlas-Bernabe, JJ., concurring; Sereno, C.J., concurring opinion; Leonen, J., separate concurring opinion; Mendoza, J., on official leave; Jardeleza, J., took no part.
- **Syllabus Relevance & Topic:**
 1. **Territory and Maritime Regimes (UNCLOS III):** Sovereign rights over internal waters and territorial sea vs. warship immunity; flag State responsibility under UNCLOS Article 31 [139, 176, 283–291].
 2. **Foreign Sovereign Immunity (*Par in Parem Non Habet Imperium*):** Non-suability of foreign States and their military officers performing *acta jure imperii* [139, 155, 277–282].
 3. **Executive Prerogative in Foreign Relations:** Judicial deference to the Executive branch on diplomatic claims, compensation, and international treaty enforcement under the Visiting Forces Agreement (VFA).
 4. **Writ of Kalikasan & Remedial Limits:** Limits of environmental extraordinary writs; inability to award damages or collaterally attack treaties [293–295, 299].

CHRONOLOGICAL MATERIAL FACTS

1. **Diplomatic Clearance (December 2012):** The US Embassy in the Philippines requested diplomatic clearance for the *USS Guardian* (an Avenger-class mine countermeasures ship of the US Navy) to enter and exit Philippine territorial waters and dock at Subic Bay for routine replenishment, maintenance, and crew liberty.
2. **Arrival and Departure (January 2013):** The *USS Guardian* arrived in Subic Bay on January 13, 2013. On January 15, 2013, it departed Subic Bay bound for its next port of call in Makassar, Indonesia.
3. **The Grounding Incident (January 17, 2013, 2:20 AM):** While transiting the Sulu Sea, the *USS Guardian* ran aground on the northwest side of South Shoal of the **Tubbataha Reefs Natural Park (TRNP)**—about 80 miles east-southeast of Palawan. TRNP is a UNESCO World Heritage Site protected under Republic Act No. 10067 (TRNP Act of 2009), which enforces a strict "no-take" policy and regulates entry.
4. **Diplomatic Regrets & Compensation Commitments:** On January 20, 2013, US 7th Fleet Commander Vice Admiral Scott Swift expressed regret. On February 4, 2013, US Ambassador Harry K. Thomas, Jr. reaffirmed regrets to DFA Secretary Albert Del Rosario and assured that the United States would provide appropriate compensation for reef damage.
5. **Completion of Salvage Operations (March 30, 2013):** A US Navy-led salvage team completed the removal of the last dismantled piece of the grounded warship from the coral reef.
6. **Filing of Petition (April 17, 2013):** Petitioners—comprising church leaders (Bishop Arigo, Bishop-Emeritus Iniguez), environmental organizations (Kalikasan-PNE), party-list lawmakers (Neri Colmenares, Raymond Palatino), academics, and public interest advocates—filed a petition for the issuance of a Writ of Kalikasan with a Temporary Environmental Protection Order (TEPO) before the Supreme Court.

PROCEDURAL HISTORY

1. **Direct Petition before the Supreme Court:** Petitioners filed an original action for a Writ of Kalikasan and TEPO under Rule 7 of A.M. No. 09-6-8-SC (Rules of Procedure for Environmental Cases) against both US military

officers (Swift, Rice, Robling) and Philippine government officials (Pres. Aquino, Executive Sec. Ochoa, DFA Sec. Del Rosario, DND Sec. Gazmin, DENR Sec. Paje, and military/coast guard commanders).

2. **Supreme Court Action (May 8, 2013):** The Supreme Court ordered Philippine respondents to comment but held the issuance of a TEPO in abeyance.
 3. **Refusal of Service by US Embassy (May 27, 2013):** The DFA Office of Legal Affairs attempted to transmit the Court's notice to the US Embassy; however, the US Embassy returned the documents, asserting that it was not an agent for service of process upon individual officers and that notice must proceed exclusively through diplomatic channels.
 4. **Philippine Respondents' Consolidated Comment:** The Office of the Solicitor General (OSG) filed a comment arguing that: (a) salvage operations were completed, rendering the injunction *fait accompli*; (b) the petition improperly assailed the VFA; (c) determination of US liability belongs to the Executive branch; and (d) US respondents are protected by foreign sovereign immunity.
-

13. PARTIES' MATERIAL ARGUMENTS

- **Petitioners:**
 1. The grounding and salvage operations caused severe environmental destruction across multiple provinces, violating the constitutional right to a balanced and healthful ecology.
 2. US respondents committed statutory violations under R.A. No. 10067 (unauthorized entry, reef damage, non-payment of conservation fees, obstruction).
 3. Sovereign immunity was waived under Article V of the VFA (Criminal Jurisdiction), as well as under US domestic statutes like the Federal Tort Claims Act (FTCA) and Resource Conservation and Recovery Act (RCRA).
 4. Reliefs prayed for included: halting Balikatan war games, compelling DFA to negotiate an environmental agreement under VFA, declaring primary Philippine criminal jurisdiction, directing US officers to deposit funds into the TRNP Trust Fund, and declaring VFA immunity provisions unconstitutional [269–274].
 - **Philippine Respondents (OSG):**
 1. The petition is moot because salvage operations were already completed (*fait accompli*).
 2. A Writ of Kalikasan cannot be utilized as a vehicle to collaterally attack the constitutionality of the VFA.
 3. Matters of international compensation and state responsibility fall exclusively within the President's foreign relations powers.
 4. US military officers are immune from suit under the customary international law doctrine of foreign sovereign immunity (*par in parem non habet imperium*).
-

ISSUES

1. **Whether petitioners have legal standing (*locus standi*) to file the petition for a Writ of Kalikasan.**
 2. **Whether the Supreme Court has jurisdiction over US military officers, or whether the suit is barred by foreign sovereign immunity.**
 3. **Whether the United States is internationally liable under UNCLOS III for damage caused by its warship in Philippine internal waters.**
 4. **Whether the Court can grant a TEPO/Writ of Kalikasan, award damages, or order a review and partial nullification of the Visiting Forces Agreement (VFA).**
-

HOLDINGS AND CONTROLLING REASONING

1. On Legal Standing (*Locus Standi*): YES. Petitioners have standing under relaxed environmental standing rules.

- **Liberalized Environmental Standing:** Standing rules are relaxed for non-traditional plaintiffs in environmental cases involving transcendental importance and paramount public interest. Under the Rules of Procedure for Environmental Cases, ordinary citizens and public interest groups may file suit on behalf of the constitutional right to a balanced and healthful ecology. (Note: See *Leonen, J. concurrence for critique on representative class suits* [336–341]).

2. On Foreign Sovereign Immunity: NO. Philippine courts CANNOT exercise jurisdiction over US Navy officers; the suit is barred as a suit against the US Government.

- **Principle of Sovereign Equality (*Par in Parem Non Habet Imperium*):** Under Article XVI, Section 3 and Article II, Section 2 of the 1987 Constitution, foreign States are immune from local jurisdiction based on the customary international law principle that all States are sovereign equals.
- **Suing Officials as Suing the State:** Suing a representative or officer of a foreign State for acts done in their official capacity is a suit against the State itself if satisfying a judgment would require affirmative action or appropriation of funds by the foreign government.
- **Application of the Restrictive Theory of Sovereign Immunity:** Philippine jurisprudence follows the *restrictive theory*, which distinguishes public/governmental acts (*acta jure imperii*) from commercial/private acts (*acta jure gestionis*). Commanding a warship transiting under diplomatic clearance is an *acta jure imperii* (military/governmental function).
- **Non-Applicability of VFA Waiver and US Local Statutes:**
 - The waiver of immunity under the VFA pertains **strictly to criminal jurisdiction** and does not extend to special civil actions like the Writ of Kalikasan or civil actions for damages.
 - US domestic tort statutes (FTCA, RCRA) cannot be invoked in Philippine courts to establish a waiver of sovereign immunity; the governing legal framework between the two States remains the VFA.

3. On UNCLOS III and Flag State Responsibility: YES. UNCLOS III applies as customary international law, making the US internationally responsible under Article 31, but through state-to-state diplomatic channels.

- **Customary Status of UNCLOS Rules on Navigation:** Although the US has not formally ratified UNCLOS III, it explicitly recognizes and adheres to UNCLOS provisions regarding traditional ocean uses and navigation as binding customary international law [284, 288–290].
- **Interplay of Warship Immunity and Coastal State Rights (Articles 30, 31, 32, & 197):**
 - Under **Article 32**, warships enjoy sovereign immunity in territorial/internal waters.
 - Under **Article 30**, if a warship fails to comply with coastal state laws, the coastal state may require it to leave immediately.
 - Under **Article 31**, the **flag State bears international responsibility** for any loss or damage caused to the coastal State by the warship's non-compliance.
 - Under **Article 197**, States are required to cooperate globally and regionally to protect the marine environment.
- **Recourse via Diplomatic Channels:** Article 31 requires the foreign State to pay compensation, but this international responsibility must be pursued through diplomatic channels and state-to-state negotiations, not by impleading warship commanders in domestic courts.

4. On Propriety of Reliefs, Damages, and VFA Nullification: NO. The Court cannot grant damages, restrain completed salvage operations, or review the VFA in a Writ of Kalikasan proceeding.

- **Mootness of Injunction (*Fait Accompli*):** The prayer to cease and desist salvage operations is moot because the *USS Guardian* was completely removed from the reef prior to resolution.
 - **Prohibition on Awarding Damages in Writ of Kalikasan:** Under the Rules of Procedure for Environmental Cases, monetary damages (including TRNP administrative fines) **cannot be awarded** in a Writ of Kalikasan petition; such claims must be filed separately or deemed instituted with a criminal action.
 - **Deference to Political Branches on Foreign Relations:** Compensation and reef restoration measures are actively being handled by the Executive branch through diplomatic channels. Courts defer to the political branches in foreign affairs.
 - **No Collateral Attack on Treaties:** The VFA was declared constitutional in *Bayan v. Zamora* and *Nicolas v. Romulo*. A petition for a Writ of Kalikasan is not the proper procedural remedy to assail or narrowly tailor the provisions of a treaty.
-

● DOCTRINE, TESTS, AND LEGAL STANDARDS

1. ***Par in Parem Non Habet Imperium* (Sovereign Equality):** An equal has no authority over an equal. Foreign States and their officials performing governmental/military functions (*acta jure imperii*) are immune from the jurisdiction of local courts.
 2. **Warship Liability under UNCLOS III (Article 31):** Warships retain immunity from local court processes under Article 32. However, when a foreign warship damages a coastal State's marine environment in violation of local laws, the **flag State bears international responsibility** to compensate the coastal State through diplomatic negotiation.
 3. **Remedial Boundaries of Writ of Kalikasan:** The Writ of Kalikasan provides equitable environmental protection but **cannot** be used to recover civil damages, enforce administrative fines, or collaterally declare treaty provisions unconstitutional.
-

♥ DISPOSITION

- **Ruling:** The petition for the issuance of the privilege of the Writ of Kalikasan is **DENIED**.
-

● SEPARATE OPINIONS & OBITER

1. Concurring Opinion of Chief Justice Maria Lourdes P. A. Sereno

- **Sovereign Immunity Bar:** Affirms that sovereign immunity bars local trial processes for *jure imperii* acts, which includes warship navigation under a treaty regime like the VFA.
- **The Tort Exception & Foreign Relations:** Notes that while US domestic law (FSIA) recognizes a "tort exception" to state immunity, the determination of whether foreign sovereign immunity should be recognized or waived in domestic courts is fundamentally a **political question** committed to the Executive branch in conducting foreign relations [311–317].

2. Separate Concurring Opinion of Justice Marvic M. V. F. Leonen

- **Procedural Deficiencies & Mootness:** Votes to dismiss primarily due to procedural defects—salvage was completed (*fait accompli*) and PCG Notice to Mariners had already restricted the damaged area.

- **Critique of Environmental Class Suits & Standing:** Strongly criticizes the practice of pseudo-class suits claiming to represent "generations yet unborn" (*Oposa v. Factoran* doctrine) [326, 336–341]. Argues that petitioners lacked direct, actual, and specific interests, especially when seeking sweeping political reliefs like halting Balikatan exercises or reviewing treaties [338–341].
- **Evolution of Sovereign Immunity (Ultra Vires / Tort Limits):** Proposes refining relative sovereign immunity: foreign State agents who commit ultra vires or culpable acts resulting from gross negligence that violate domestic environmental laws implementing binding international obligations should **not** automatically hide behind sovereign immunity.

● RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

"In Arigo v. Swift, the US warship USS Guardian ran aground on the protected Tubbataha Reefs in the Sulu Sea in January 2013, causing extensive marine damage. Environmentalists and lawmakers filed a petition for a Writ of Kalikasan with TEPO before the Supreme Court against US Navy commanders and Philippine officials, seeking to enjoin operations, halt Balikatan war games, declare US waiver of immunity, and recover damages.

The Supreme Court En Banc, through Justice Villarama, DENIED the petition. The Court held that while petitioners have environmental standing, Philippine courts lack jurisdiction over US military officers because navigating a warship is an actum jure imperii, rendering the suit one against the United States, which is barred by foreign sovereign immunity under the doctrine of par in parem non habet imperium. The VFA waiver applies strictly to criminal jurisdiction, not civil or Kalikasan suits.

However, under UNCLOS III (which reflects customary international law), the US as the flag State bears international responsibility for damages under Article 31. This responsibility must be pursued via state-to-state diplomatic negotiations by the Executive branch, not through domestic judicial orders. Finally, the Court ruled that damages cannot be awarded in a Writ of Kalikasan, and treaties cannot be collaterally attacked in environmental proceedings." [267, 276, 278, 282, 291–299]

One-Sentence Doctrine Anchor

Foreign warships and their officers performing military transit (*acta jure imperii*) are immune from domestic court jurisdiction under *par in parem non habet imperium*, leaving marine environmental damage claims to be resolved exclusively through flag State international responsibility and Executive diplomatic negotiations under UNCLOS III.

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Republic of the Philippines, represented by the Regional Executive Director, Region X, Department of Public Works and Highways v. Benjohn Fetalvero*
- **Citation:** G.R. No. 198008, February 4, 2019 (Third Division)
- **Ponente:** Leonen, J.
- **Bench Composition:** Peralta, A.B. Reyes, Jr., Hernando, and Carandang, JJ. (Unanimous Third Division)
- **Syllabus Relevance & Topic:**
 1. **Money Claims Against the Government & Non-Executability of Public Funds:** Public funds cannot be seized through writs of execution or garnishment, even where an appropriation exists and the State's liability is settled [375, 404–406].
 2. **Primary Jurisdiction of the Commission on Audit (COA):** Enforcement of a final money judgment against the State must proceed exclusively before the COA under C.A. No. 327, P.D. No. 1445, SC Administrative Circular No. 10-2000, and COA Circular No. 2001-002 [375, 408–411].
 3. **Deputation of Counsel by the OSG & Binding Effect of Compromise Agreements:** The Solicitor General retains primary control over deputized lawyers; however, failure of the OSG to timely appeal an order approving an unauthorized compromise agreement binds the State under laches and the doctrine of immutability of judgments [398–404].

CHRONOLOGICAL MATERIAL FACTS

1. **Property Ownership & Government Taking (1999):** Respondent Benjohn Fetalvero owned a 2,787-square-meter parcel of land in Iligan City, Lanao del Norte (TCT No. T-25,233). In 1999, the Department of Public Works and Highways (DPWH) Region X took 569 square meters of Fetalvero's land for a flood control project.
2. **Dispute over Just Compensation:** Fetalvero claimed that the project rendered the remaining property useless and demanded payment for the entire lot at PhP 15,000.00/sq.m.. DPWH countered that under Presidential Administrative Order No. 50 (s. 1999), based on BIR zonal valuation, just compensation was only PhP 2,500.00/sq.m. (totaling PhP 1,422,500.00 plus 10%). Negotiations broke down.
3. **Expropriation Complaint & OSG Deputation (February–April 2008):**
 - On February 13, 2008, the Republic (via OSG) filed an expropriation complaint (Civil Case No. 7118, RTC Branch 3, Iligan City, Judge Albert B. Abragan).
 - On April 10, 2008, the OSG deputized Atty. Earnest Anthony L. Lorea (Legal Staff Chief of DPWH Region X) to assist in the case.
 - On April 16, 2008, the OSG filed a formal **Notice of Appearance** before the RTC, explicitly stipulating that the OSG retained supervision and control, that any withdrawal, non-appeal, or compromise required OSG approval, and that **only notices served on the OSG would bind the Republic**.
4. **Court-Annexed Mediation & Compromise Agreement (September 1, 2008):** The RTC referred the case to mediation. On September 1, 2008, Atty. Lorea and Fetalvero executed a Compromise Agreement stipulating: (a) area involved expanded to 1,428 sq.m.; (b) price fixed at **PhP 9,500.00/sq.m.** (totaling **PhP 13,566,000.00** payable in full by September 2009); and (c) 12% interest per annum after September 2009. Atty. Lorea signed the agreement **without submitting it to the OSG for review or approval**.
5. **Judicial Approval of Compromise (October 17, 2008):** The RTC issued an Order approving the Compromise Agreement. The OSG received a formal copy of this Judicial Order on **November 6, 2008**. The OSG took no action—it filed no Motion for Reconsideration, Appeal, Petition for Relief, or Annulment of Judgment.
6. **Attempted Execution & OSG Disavowal (May–June 2009):** In May 2009, DPWH Central Office inquired with the OSG regarding the agreement's validity. On June 4, 2009, the OSG issued an opinion stating the Republic was not bound because the compromise bypassed OSG review and failed to justify the valuation. In the meantime, the RTC Sheriff served Writs of Execution on DPWH on June 2 and June 24, 2009, which DPWH ignored.

7. **Motion for Writ of Garnishment (July 20, 2009):** Fetalvero filed a Motion for Writ of Garnishment against DPWH funds. The Republic opposed, arguing that public funds cannot be garnished and that the underlying compromise was void.
-

● PROCEDURAL HISTORY

1. **Trial Court Orders (RTC Iligan City, Branch 3):**
 - **Order dated September 22, 2009:** The RTC granted the Writ of Garnishment against DPWH funds under SAA-SR 2009-05-001538 (allocated for road right-of-way). The RTC ruled that the OSG was served with the approval order on November 6, 2008, slept on its rights for almost a year, and was barred by the **doctrine of immutability of judgment**. Moreover, it found the funds were already specifically appropriated by law.
 - **Order dated April 23, 2010:** The RTC denied the Republic's Motion for Reconsideration.
 2. **Court of Appeals Action (CA-G.R. SP No. 03710-MIN):**
 - **CA Decision (July 29, 2011):** The Republic filed a Rule 65 Petition for Certiorari. The CA denied the petition and affirmed the RTC in toto. The CA held that service on the OSG bound the Republic, rendering the compromise judgment final and executory. It added that public funds may be garnished if specifically allocated by law for the satisfaction of a money judgment.
 3. **Supreme Court Appeal:** The Republic filed a Petition for Review on Certiorari under Rule 45 before the Supreme Court.
-

● PARTIES' MATERIAL ARGUMENTS

- **Petitioner (Republic of the Philippines / DPWH):**
 1. The Compromise Agreement is void *ab initio* because Atty. Lorea exceeded his deputized authority by failing to submit the agreement to the OSG for prior review and approval, violating the explicit reservation in the OSG Notice of Appearance.
 2. The valuation of PhP 9,500.00/sq.m. is grossly disadvantageous to the government, as actual market values in the area were only PhP 500–1,000/sq.m. in 2003.
 3. Even if Fetalvero holds a valid judgment claim, **government funds cannot be seized under writs of execution or garnishment**. His sole legal remedy is to file his money claim before the **Commission on Audit (COA)** pursuant to C.A. No. 327 and P.D. No. 1445.
 - **Respondent (Benjohn Fetalvero):**
 1. The judgment approving the Compromise Agreement became final and executory on November 6, 2008, when the OSG received the order and failed to file an appeal or petition for relief. Certiorari cannot be used to indirectly annul a final judgment.
 2. Public funds may be garnished when there is a specific legislative appropriation (SAA-SR 2009-05-001538) intended for road right-of-way payments.
 3. The State has used his property for two decades without paying full just compensation, violating Article III, Section 9 of the Constitution.
-

● ISSUES

1. **Whether the Compromise Agreement is void and non-binding on the Republic due to lack of prior OSG approval and alleged gross disadvantage.**
 2. **Whether government funds in an official depository may be seized via a writ of execution or writ of garnishment to satisfy a final judgment on just compensation.**
 3. **What is the proper legal procedure for enforcing an established money claim against the State, and whether legal interest is attachable to the remaining just compensation.** [406–414]
-

HOLDINGS AND CONTROLLING REASONING

1. On the Validity of the Compromise Agreement: The Republic IS BOUND by the Compromise Agreement under the doctrine of Laches and Immutability of Judgments [397–404].

- **OSG Control vs. Deputized Counsel:** Under E.O. No. 292 and settled jurisprudence (*Republic v. Viaje*), the OSG remains principal counsel with direct supervision over deputized lawyers. Atty. Lorea lacked authority to bind the State to a compromise without the Solicitor General's review.
- **Estoppel by Laches against OSG Inaction:** *However*, the OSG received the RTC's Judicial Order approving the Compromise Agreement on **November 6, 2008**. The OSG failed to file an appeal, motion for new trial, or petition for relief. Certiorari under Rule 65 cannot be utilized as a substitute for a lost appeal (*Nippon Paint v. Olalia*). By the time the OSG filed its Rule 65 petition in June 2009, estoppel by laches had set in.
- **Immutability of Judgments:** A judicial judgment on a compromise agreement is a judgment on the merits with the effect of *res judicata*, immediately becoming final and executory. Under the doctrine of immutability of judgments, courts cannot modify final decisions even to correct perceived errors of fact or law (*Gadrinab v. Salamanca*).

2. On Non-Garnishment of Public Funds: NO. Government funds CANNOT be seized by virtue of writs of execution or garnishment [404–406].

- **Universal Rule on Public Policy:** Citing *Commissioner of Public Highways v. San Diego*, the Court reaffirmed that State consent to be sued ends at the stage of anterior proceedings prior to execution. Government funds cannot be seized under writs of execution or garnishment because all disbursements must be covered by a legislative appropriation, and public services must not be paralyzed by diverting funds from their specific statutory objects.
- **Entitlement vs. Execution:** The existence of a specific appropriation (SAA-SR 2009-05-001538) confirms that Fetalvero is *legally entitled* to payment under the binding compromise; **however, establishing State liability does not translate to enforcement by judicial execution or garnishment**. The trial court and CA erred in granting the garnishment.

3. On Primary Jurisdiction of COA & Award of Legal Interest: Money claims MUST be filed with the COA; legal interest is imposed to achieve substantial justice [407–415].

- **Mandatory Administrative Primary Jurisdiction:** Under C.A. No. 327 (as amended by P.D. No. 1445), E.O. No. 292, SC Administrative Circular No. 10-2000, and COA Circular No. 2001-002, **all money claims against the government must first be filed with the Commission on Audit (COA)**, which has 60 days to act [375, 408–411].
- **Prohibition of Judicial Shortcuts:** A judicial writ of execution or garnishment against public funds is an illegal "procedural shortcut" (*Atty. Roxas v. Republic Real Estate Corp.*; *Star Special Watchman v. Puerto Princesa City*). Only if COA rejects or disallows the claim may the claimant elevate the matter to the Supreme Court via Rule 65 certiorari.

- **Eminent Domain & Imposition of Legal Interest:** Under Article III, Section 9, private property shall not be taken without just compensation. Because the Republic enjoyed Fetalvero's land for two decades without paying full just compensation, substantial justice demands the imposition of legal interest (*Nacar v. Gallery Frames*):
 - **12% per annum** from the time of taking (1999) until **June 30, 2013**.
 - **6% per annum** from **July 1, 2013** until the allowance of the money claim by COA.
-

● DOCTRINE, TESTS, AND LEGAL STANDARDS

1. **Immutability of Compromise Judgments against the OSG:** While deputized counsel cannot bind the State to a compromise without OSG approval, service of the court's judgment on the OSG triggers the reglementary period. Failure of the OSG to appeal renders the compromise judgment final, immutable, and binding on the Republic under laches.
 2. **Absolute Immunity of Public Funds from Garnishment:** Court jurisdiction in suits against the State ends upon the determination of liability. Judicial writs of execution or garnishment issued against government funds in official depositories are void *ab initio*, even if an appropriation for the claim exists.
 3. **COA Primary Jurisdiction over Money Claims:** The Commission on Audit possesses primary jurisdiction to examine, audit, and settle all debts and claims against the government. Judicial enforcement without prior submission to COA is a void procedural shortcut.
-

♥ DISPOSITION

- **Ruling:** Petition for Review on Certiorari is **PARTLY GRANTED**.
 - **Executive Order:** The CA Decision affirming the RTC Orders granting the Writ of Garnishment is **REVERSED and SET ASIDE, without prejudice** to Fetalvero filing his adjusted money claim before the Commission on Audit (COA).
 - **Interest Award:** The remaining just compensation due to Fetalvero under the Compromise Agreement is subjected to legal interest at **12% per annum** from the time of taking (1999) until June 30, 2013, and **6% per annum** from July 1, 2013 until the allowance of the money claim by the COA.
-

● RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

"In Republic v. Fetalvero (2019), DPWH took Fetalvero's land in 1999 for a flood control project. During expropriation proceedings, the deputized DPWH counsel entered into a Compromise Agreement for PhP 13.56 Million without submitting it to principal counsel OSG for prior review. The RTC approved the compromise in October 2008, and the OSG received the order in November 2008 but failed to appeal. When DPWH failed to pay, the RTC granted Fetalvero's motion for a Writ of Garnishment against DPWH right-of-way funds, which the CA affirmed.

The Supreme Court, through Justice Leonen, partly granted the Republic's petition. First, the Court held that while deputized counsel needs OSG approval, the Republic became bound by the compromise because the OSG slept on its rights for almost a year, allowing the judgment to become final and immutable. Second, the Court held that government funds CANNOT be seized through writs of execution or garnishment, as judicial jurisdiction ends upon determining State liability.

Third, the Court ruled that Fetalvero's sole legal remedy is to file his money claim before the Commission on Audit (COA), which has primary jurisdiction under C.A. No. 327 and P.D. No. 1445. Finally, to achieve substantial justice for a two-decade taking, the Court awarded legal interest (12% until June 30, 2013, and 6% thereafter) on the claim to be submitted to COA." [375, 377, 380, 386, 400, 404–415]

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: If the OSG explicitly reserved the right to review all compromises, why was the Republic still bound by an unauthorized compromise signed by deputized counsel?**
 - **A:** Under the doctrine of laches and immutability of judgments. Although deputized counsel exceeded his authority, the OSG was formally served with the judicial order approving the compromise on November 6, 2008. Because the OSG failed to file an appeal or petition for relief, the judgment became final and immutable, and certiorari under Rule 65 cannot substitute for a lost appeal.
2. **Q: Why couldn't Fetalvero garnish the DPWH funds when the trial court found an existing legislative appropriation (SAA-SR 2009-05-001538) specifically for right-of-way payments?**
 - **A:** Because judicial enforcement by execution or garnishment against public funds is strictly prohibited on public policy grounds to prevent the disruption of public services (*Commissioner of Public Highways v. San Diego*). The existence of an appropriation proves legal entitlement to payment, but enforcement must still proceed exclusively through administrative audit before the COA.
3. **Q: What happens if the Commission on Audit (COA) denies or disallows a claimant's money claim that is based on a final judicial judgment?**
 - **A:** Under C.A. No. 327 and P.D. No. 1445, if the COA rejects or disallows the money claim, the claimant's sole legal remedy is to elevate the COA's disallowance directly to the Supreme Court on a Petition for Certiorari under Rule 64/65.

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose Fetalvero filed his money claim before the COA immediately after the RTC compromise judgment became final, but COA refused to act on it for over 180 days. Can Fetalvero ask the RTC to issue a writ of garnishment against DPWH bank accounts to enforce the judgment?
- **Answer: No.** Judicial garnishment of public funds remains impermissible under all circumstances. If COA fails or refuses to act on a money claim within the statutory 60-day period under P.D. No. 1445, the claimant's remedy is to file a Petition for Mandamus before the Supreme Court to compel COA to render a decision, or elevate the constructive denial via Rule 65 certiorari—not to seek an illegal writ of garnishment from a trial court.

One-Sentence Doctrine Anchor

Public funds are strictly immune from judicial execution and garnishment, and even a final court judgment establishing State liability must be submitted to the Commission on Audit (COA) for administrative processing and allowance. [375, 405, 408–411]

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Rubi, et al. (Manguianes) v. The Provincial Board of Mindoro*
- **Citation:** 39 Phil. 660, G.R. No. 14078, March 7, 1919 (En Banc)
- **Ponente:** Malcolm, J.
- **Bench Composition:** Arellano, C.J., Torres, Avanceña, and Carson, JJ., concurring; Johnson, J., dissenting; Moir, Araullo, and Street, JJ., dissenting.
- **Syllabus Relevance & Topic:**
 1. **Police Power of the State:** Scope and reach of police power as the "*law of overruling necessity*"; lawful restraint of personal civil liberty for public welfare, safety, and self-preservation [14, 354–356].
 2. **Non-Delegation of Legislative Power:** Distinction between the delegation of power to make law and the delegation of authority/discretion as to its execution [16, 345–349].
 3. **Due Process & Equal Protection Clauses:** Validity of statutory classifications based on "degree of civilization" rather than religion or race [16, 349–353].
 4. **Involuntary Servitude (13th Amendment / Bill of Rights):** Confinement on public land reservations for state tutelage/advancement does not constitute slavery or involuntary servitude.

CHRONOLOGICAL MATERIAL FACTS

1. **Provincial Board Resolution No. 25 (February 1, 1917):** Provincial Governor Juan Morente, Jr. presented Resolution No. 25 to the Provincial Board of Mindoro, stating that prior schemes for the advancement of the Manguianes had failed, and that educating them required obliging them to live in a permanent settlement. Under Section 2077 of the Administrative Code of 1916 (later Section 2145 of the Revised Administrative Code of 1917), the Board selected 800 hectares of unoccupied public land at the *sitio* of Tigbao on Lake Naujan as a permanent reservation for the Mangyans [311–312].
2. **Approval by the Department Head (February 21, 1917):** The Secretary of the Interior approved Resolution No. 25 pursuant to the statutory requirement of prior departmental authorization.
3. **Executive Order No. 2 (December 4, 1917):** Governor Morente issued Executive Order No. 2, directing all Mangyans in specified vicinities (townships of Naujan and Pola, east of Baco River, Dulangan, and Rubi's place in Calapan) to relocate their habitation to the Tigbao reservation no later than December 31, 1917. The order warned that any Mangyan refusing to comply would, upon conviction, be imprisoned for up to 60 days under Section 2759 of the Revised Administrative Code.
4. **Relocation & Detention:** Rubi and other Mangyans belonging to his *rancheria* refused to fix their dwellings within the Tigbao reservation. Meanwhile, one Dabalos was arrested and held in the custody of the provincial sheriff in the prison at Calapan for running away from the Tigbao reservation.

PROCEDURAL HISTORY

1. **Original Action in the Supreme Court:** Counsel *de officio* (D.R. Williams and Filemon Sotto) filed an original application for a writ of *habeas corpus* before the Supreme Court of the Philippine Islands on behalf of Rubi and other Manguianes [308–309, 349].
2. **Grounds for Habeas Corpus:** Petitioners alleged that they were being illegally deprived of their personal liberty and unlawfully imprisoned on the Tigbao reservation against their will by provincial officials.
3. **Return of the Solicitor-General:** Solicitor-General Paredes filed a return on behalf of the Provincial Board of Mindoro, justifying the actions under Sections 2145 and 2759 of the Revised Administrative Code of 1917 as valid, necessary police measures for the protection of the Mangyans, the preservation of public forests, and the introduction of civilized customs.

● PARTIES' MATERIAL ARGUMENTS

- **Petitioners (Rubi et al. / Counsel de officio):**
 1. **Undue Delegation of Legislative Power:** Section 2145 of the Administrative Code unconstitutionally abdicates legislative authority by delegating absolute discretion to provincial governors and boards to isolate citizens.
 2. **Religious Discrimination:** The statute expressly targets "*non-Christian inhabitants*", violating the constitutional guaranty of religious freedom and equality.
 3. **Violation of Due Process and Liberty:** Forcible confinement on a reservation deprives Mangyans of their fundamental civil liberty (right of locomotion, choice of residence) without due process of law.
 4. **Involuntary Servitude:** Compulsory detention on a reservation, enforced by criminal imprisonment under Section 2759, constitutes illegal slavery or involuntary servitude.
- **Respondent (Provincial Board of Mindoro / Solicitor-General):**
 1. **Valid Delegation:** Section 2145 merely confers administrative discretion as to the execution of a legislative policy to local officers best suited to evaluate local conditions [346–348].
 2. **Non-Religious Meaning of "Non-Christian":** The term "*non-Christian*" is a long-standing statutory phrase denoting a backward degree of civilization and uncivilized mode of life, not religious belief [326–336].
 3. **Valid Exercise of Police Power:** The measure is necessary under the state's police power ("*law of overruling necessity*") to protect public forests from *cañgin* destruction, protect civilized settlers from depredations, and promote the education, health, and moral advancement of backward tribes [354–368].
 4. **No Involuntary Servitude:** Mangyans are placed on public lands to work for themselves, not to perform forced labor for others.

● ISSUES

1. **Whether Section 2145 of the Revised Administrative Code of 1917 constitutes an unconstitutional delegation of legislative power to provincial officials.**
2. **Whether the statutory term "*non-Christian inhabitants*" creates an unconstitutional discrimination based on religious belief.**
3. **Whether Section 2145 deprives the Mangyans of liberty without due process of law or denies them the equal protection of the laws.**
4. **Whether confinement on a reservation under Section 2145 constitutes slavery or involuntary servitude.**

🌸 HOLDINGS AND CONTROLLING REASONING

1. **On Delegation of Legislative Power: NO.** Section 2145 is a valid delegation of administrative execution, not legislative power [345–349].
 - **Discretion as to Execution:** The true distinction is between the delegation of power to make the law (which involves discretion as to what it shall be) and conferring authority or discretion as to its execution, to be exercised under and in pursuance of the law. Section 2145 does not authorize provincial officials to make law; Congress defined the policy and merely committed the execution and selection of sites to local officials.

- **Local Authority Exception:** Sanctioned by immemorial practice, the central legislature may delegate local administrative authority to local bodies (provincial governors and boards) who are best equipped to determine when public order and welfare require site selection.

2. On Religious Discrimination: NO. The term "non-Christian" refers to a degree of civilization, not religious belief [16, 326–336, 351].

- **Statutory Construction & Executive Usage:** Legislative history, judicial precedents (*U.S. v. Tubban*), and uniform executive interpretation (including rulings by the Secretary of the Interior and Collectors of Internal Revenue) establish that "non-Christian" is a descriptive term for natives of a low grade of civilization living in tribal relationships apart from civilized communities [327–336].
- **Avoidance of Unconstitutionality:** A baptismal ceremony does not automatically alter a person's degree of civilization. Interpreting the term literally as a religious test would invalidate the law; courts must adopt the construction that harmonizes the statute with constitutional guarantees [334–335, 350].

3. On Liberty, Due Process, and Equal Protection: NO. Restraint under Section 2145 is a legitimate exercise of Police Power [16, 351–373].

- **Nature of Liberty:** Liberty is not unbridled license; it is "*liberty regulated by law*" for the common good and public order. Individual natural rights must yield to reasonable regulation under the police power—the inherent power of the State coextensive with self-protection and known as the "*law of overruling necessity*".
- **Due Process Satisfied:** Due process is not rigid; it varies with the subject matter and necessities of the situation. Section 2145 is a valid law, reasonable in its operation to meet a socio-civilizational problem, enforced by regular procedures, and applicable equally to all members of a defined class.
- **Equal Protection Satisfied:** Equal protection permits classification if based on reasonable grounds. The backward degree of civilization, nomadic habits, and destructive practices (*caiñgin*) of the Mangyans provide a germane, non-arbitrary basis for separate treatment and protective tutelage.
- **Analogy with American Indian Policy:** The US Supreme Court (e.g., *Worcester v. Georgia*, *U.S. v. Kagama*, *U.S. v. Sandoval*) consistently recognized the guardianship power of the government over Indian tribes as wards of the nation, treating such policy as a political decision beyond judicial interference [337–340, 344, 373].

4. On Slavery and Involuntary Servitude: NO. Confinement on public reservations does not constitute compulsory service to another.

- **Absence of Service:** Involuntary servitude denotes compulsory, enforced service of one person to another. Mangyans placed in Tigbao work for their own benefit, cultivate crops for themselves, and are educated in special schools; they are not compelled to perform labor or service for any master or official.

DOCTRINE, TESTS, AND LEGAL STANDARDS

1. **Police Power Standard ("Law of Overruling Necessity"):** The inherent and plenary authority of the State to enact laws that restrain personal liberty or property rights in order to promote public health, safety, morals, education, and general welfare [14, 354–355].
2. **Rule on Delegation of Power (Ranney Rule):**
 - *Invalid:* Delegating the power to make the law (discretion as to what the law shall be).
 - *Valid:* Conferring authority or discretion as to its execution, to be exercised under and in pursuance of the law.
3. **Equal Protection Test for Statutory Classifications:** Classification is valid if:
 - It rests on substantial distinctions (e.g., degree of civilization and social development);

- It is germane to the purpose of the law (advancement, protection, and forest preservation);
 - It applies equally to all members of the same class.
-

DISPOSITION

- **Ruling:** The application for a writ of *habeas corpus* is **DENIED**. Section 2145 of the Revised Administrative Code of 1917 is declared **CONSTITUTIONAL**. Costs taxed against petitioners [15, 373–374].
-

SEPARATE OPINIONS & OBITER

1. Concurring Opinion of Justice Carson

- **Paternal Tutelage & Necessity:** Emphasizes that the standard for being classified as "non-Christian" is a mode of life that makes it impractical to extend general laws. Confinement is based on necessity—analogue to the restraint placed upon children or persons of unsound mind for their own protection and the public good.

2. Dissenting Opinion of Justice Johnson

- **Deprivation Without Hearing:** Dissents on the ground that petitioners were deprived of their liberty without any prior hearing or opportunity to be heard.

3. Dissenting Opinion of Justice Moir (joined by Araullo and Street, JJ.)

- **Violation of Due Process & Open-Air Jail:** Argues that Mangyans are citizens and legally Filipinos entitled to equal protection. Confinement on an 800-hectare reservation under threat of jail for escaping transforms the reservation into an "open-air jail", violating due process and creating arbitrary executive power.
 - **Distinction from US Indian Tribes:** Notes that American Indian reservations were created by state-to-state treaties with semi-independent nations, whereas Mangyans are ordinary citizens subjected to arbitrary executive discretion [388–389].
-

RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

"In Rubi v. Provincial Board of Mindoro (1919), the Provincial Board of Mindoro, pursuant to Section 2145 of the Revised Administrative Code, established an 800-hectare reservation in Tigbao for the Manguianes and ordered them to reside there under pain of imprisonment. Rubi and other Mangyans petitioned for habeas corpus, arguing that Section 2145 constituted an undue delegation of legislative power, discriminated against 'non-Christians', and violated due process, equal protection, and the prohibition against involuntary servitude.

The Supreme Court En Banc, through Justice Malcolm, denied the writ and upheld the law. The Court held: (1) Section 2145 is a valid delegation of administrative discretion regarding execution, not lawmaking; (2) 'non-Christian' refers to a low degree of civilization, not religious belief; (3) restraint on liberty is a valid

exercise of police power—the 'law of overruling necessity'—to advance backward citizens, protect public forests, and maintain public order; and (4) confinement on a reservation does not constitute involuntary servitude because the inhabitants work for themselves, not for others." [15–16, 347, 351, 355, 367, 373]

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: How did the Court reconcile the statutory term "non-Christian" with the constitutional prohibition against religious discrimination?**
 - **A:** The Court adopted an executive and legislative construction holding that "*non-Christian*" does not refer to religious belief, but to a low degree of civilization and an uncivilized mode of life [334–336]. Baptism does not automatically change a person's civilizational status; thus, the classification is social/civilizational rather than religious.
2. **Q: What test did Justice Malcolm apply to distinguish valid delegation of authority from invalid delegation of legislative power?**
 - **A:** The Court applied the *Ranney Rule*: delegating the power to make the law is unconstitutional, but delegating authority or discretion as to its execution—to be exercised under and in pursuance of the law—is valid. Section 2145 merely delegated executive implementation to local officials.
3. **Q: How does the majority opinion view the relationship between individual civil liberty and the State's police power?**
 - **A:** Liberty is not absolute license, but "*liberty regulated by law*". Individual rights must yield to the police power—termed the "*law of overruling necessity*"—when the State acts to protect public health, safety, morals, and the general welfare.

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose a newly enacted statute authorizes provincial governors to forcibly relocate and confine all members of a specific, fully civilized religious minority group to a designated reservation to perform unpaid agricultural labor on government-owned farms. Is this valid under *Rubi v. Provincial Board*?
- **Answer: No.** First, unlike *Rubi*, targeting a group based on actual religious belief directly violates the Equal Protection and Religious Clauses [349–351]. Second, coercing individuals to perform unpaid labor for the State constitutes involuntary servitude under the 13th Amendment. Third, police power cannot justify arbitrary confinement of civilized citizens without due process [352–353].

One-Sentence Doctrine Anchor

The State may, in the valid exercise of its police power ("the law of overruling necessity"), enact reasonable measures restricting the locomotion of backward groups on public reservations for their protection and advancement without violating due process, equal protection, or non-delegation rules.

Rubi v. Provincial Board (1919)

Topic Subtopic	Government - Inherent Powers of State	GR No. & Ponente	[G.R. No. 14078. March 7, 1919.] EN BANC MALCOLM
Plaintiffs	RUBI, ET. AL. (manguianes)	Defendant	THE PROVINCIAL BOARD OF MINDORO
Doctrine	The State can exercise its police power if it deems that the development of the uncivilized people is necessary.		

FACTS

- Feb. 1, 1917: Provincial board of Mindoro adopted Resolution No. 25 (pursuant to Section 2145 of the Revised Administrative Code), which directs inhabitants (non-Christians/Mangyans) to take up their habitation or set up homesteads on unoccupied public lands (Tigbao on Naujan Lake) selected by the provincial governor and approved by the board.
 - This was adopted to protect the Mangyans and the public forests they roam, and to introduce civilized customs to them.
- Dec. 4, 1917: Issued EO 2, providing that all Mangyans in Mindoro, are to take up their habitation on Tigbao, by Dec. 31, 1917. Those who refuse to comply shall be imprisoned for 60 days, in accordance with Sec. 2759 of RAC.
- Rubi and various other Manguianes in the Province of Mindoro were ordered by the provincial governor of Mindoro to remove their residence from their native habitat and to establish themselves on a reservation at Tigbao in the Province of Mindoro and to remain there, or be punished by imprisonment if they escaped.
 - Rubi and his Manguianes companions are said to be held against their will on the reservation at Tigbao
 - Dabalos is said to be held under the custody of the sheriff in the prison for running away
- Petitioners filed an application for habeas corpus alleging illegal deprivation of liberty by provincial officials of Mindoro

Context on how they justified it

- The Spanish government, during their colonization, also did something similar - in its efforts to improve the condition of the less advanced inhabitants of the Islands by concentrating them in "reducciones"
 - Decree stated - "it is the duty to conscience and to humanity for all governments to civilize those backward races that might exist in the nation, and which, living in the obscurity of ignorance, lack all the notions which enable them to grasp the moral and material advantages that may be acquired in those towns under the protection and vigilance afforded them by the same laws."
 - Offering "benefits" and "advantages" in submitting to the Spanish rule and becoming "civilized"
 - "Bringing under the bells" - method used during the Spanish times, where they bring "uncivilized groups" and make a town surrounding the Church. Through this, the Church will basically be inculcated to them and a means to civilize them and their children.
 - "Non-Christian" was first used during the Spanish era.
- PH treatment of the Non-Christian people are similar to the US treatment of Indian tribes (guardian and ward, where the former wants to civilize the latter)
 - Indians have been taken from different parts of the country and placed on the reservations, without consultation. This policy is for the legislative and executive branches of the US and the courts should not interfere as to upset this system.
- After acquisition by the US, one of the first instructions was to adopt the course imposed on North American Indians regarding the "uncivilized" tribes of the Islands → let them maintain their tribal organization but they should be subject to firm regulation to prevent barbarous practices and introduce civilized costumes
 - PH organic law and statute laws impose the need for supervision and control for the advancement of the local inhabitants.
 - "Non-Christian" refers, not to religious belief, but, in a way, to geographical area, and, more directly, to natives of the Philippine Islands of a low grade of civilization, usually living in tribal relationship apart from settled communities.
- United States vs. Crook - Pleading for writ of habeas corpus for Standing Bear and other Indians → They were arrested because of their connection to a previous tribe, who they are no longer a member of. They have

been living as white people, and fled the Ponca reservation. They were arrested because they were not in the reserve → case decided that Indians, as “persons”, can sue out a writ of habeas corpus; the Indians must be discharged from custody as they possess the right of expatriation, life, liberty, property

- Mangyanes/Manguianes - peaceful, timid, primitive, semi-nomadic people with considerable Negrito blood, numbering approximately 15,000, who had not progressed sufficiently in civilization to be brought under municipal government

RELEVANT PROVISIONS

- RAC of 1917
 - SEC. 2145. Establishment of non-Christians upon sites selected by provincial governor. — With the prior approval of the Department Head, the provincial governor of any province in which non-Christian inhabitants are found is authorized, when such a course is deemed necessary in the interest of law and order, to direct such inhabitants to take up their habitation on sites on unoccupied public lands to be selected by him and approved by the provincial board.
 - SEC. 2759. Refusal of a non-Christian to take up appointed habitation.— Any non-Christian who shall refuse to comply with the directions lawfully given by a provincial governor, pursuant to section two thousand one hundred and forty-five of this Code, to take up habitation upon a site designated by said governor shall upon conviction be imprisoned for a period not exceeding sixty days.

ISSUE 1: Whether or Not Sec. 2145 of the Administrative Code of 1917 is an unlawful delegation of legislative power to provincial officials? NO

RULING and RATIO DECIDENDI for ISSUE 1:

NO. It was merely granting the provincial board discretionary authority for the execution of the law, as necessary. Their decisions are still for approval of the board and the Department head. The latter is better suited to determine the appropriate sites that would be most favorable to the Mangyans.

ISSUE 2: Whether or Not the term “Non-Christian” denotes religious discrimination, thus rendering it unconstitutional? NO

RULING and RATIO DECIDENDI for ISSUE 2:

No. The Court holds that the term "non-Christian" refers to natives of the Philippine Islands of a low grade of civilization, and that Section 2145 of the Administrative Code of 1917, does not discriminate between individuals on account of religious differences.

ISSUE 3: Whether or Not the forced segregation violates the constitutional guarantee of liberty without due process of law? NO

RULING and RATIO DECIDENDI for ISSUE 3:

- The Government of the Philippine Islands has, both on reason and authority, the right to exercise the sovereign **police power** in the promotion of the general welfare and the public interest.
- The legislative intent of the resolution assigning Mangyans to Tigbao:
 - (1) The failure of former attempts for the advancement of the non-Christian people of the province;
 - (2) the only successful method for educating the Manguianes was to oblige them to live in a permanent settlement.
 - (3) The protection of the Manguianes;
 - (4) the protection of the public forests in which they roam;
 - (5) the necessity of introducing civilized customs among the Manguianes

- The Manguianes, for instance, are not free, as civilized men are free, and they are not the equals of their more fortunate brothers. While they are Filipino citizens, the Manguianes are citizens of a low degree of intelligence, and Filipinos who are a drag upon the progress of the State
- The court says that if we are to develop the resources on the PH, the Manguianes must be confined for a time, for their own good and the good of the country. Segregation really constitutes protection for the Mangyans, as letting them alone in the path of destruction will not do. The main goal is to make them useful citizens and lead them to the path of civilization.
- Nor can one say that due process of law has not been followed.
- Due process does not require a prior hearing where administrative discretion is exercised and notice is impracticable for nomadic peoples.
- Secretary of Interior: However, "due process of law" should not be applied to a class of persons who do not have a correct idea of what liberty is and do not practice liberty in a rightful way." If we were to apply it, it would mean that the Government cannot adopt any measures looking to the welfare and advancement of the class of persons in question, and let the people be in permanent state of savagery without even the remotest hope of coming to understand liberty in its true and noble sense. In dealing with the backward population, like the Manguianes, the Government has been placed in the alternative of either letting them alone or guiding them in the path of civilization. The latter measure was adopted as the one more in accord with humanity and with national conscience.
- To go back to our definition of due process of law and equal protection of the laws: there exists a law; the law seems to be reasonable; it is enforced according to the regular methods of procedure prescribed; and it applies alike to all of a class.

FINAL DECISION

We are of the opinion that action pursuant to Section 2145 of the Administrative Code does not deprive a person of his liberty without due process of law and does not deny to him the equal protection of the laws. and that confinement in reservations in accordance with said section does not constitute slavery and involuntary servitude. We are further of the opinion that Section 2145 of the Administrative Code is a legitimate exertion of the police power, somewhat analogous to the Indian policy of the United States. Section 2145 of the Administrative Code of 1917 is constitutional.

Petitioners are not unlawfully imprisoned or restrained of their liberty. Habeas corpus can, therefore, not issue. This is the ruling of the court. Costs shall be taxed against petitioners. So ordered.

SEPARATE OPINION/S

- Justice Johnson's Dissent
 - He argued that the petitioners were indisputably deprived of their physical liberty without a hearing.
 - He maintained that all persons, whether Christian or non-Christian, are fundamentally entitled to a hearing before the state can take away their freedom.
- Justice Moir's Dissent Joined by Justices Araullo and Street
 - The Manguianes are not foreign elements or treaty-bound tribes; they are legal Filipino citizens entitled to the exact same constitutional protections as any other citizen. → not like the Indians na separate nations because of the separate treaties made by the US Govt with the Indian nations → reservations were protections from the intrusion and molestation by white men
 - These are peaceful, timid people who have committed no crimes. The state's paternalistic fears that they might commit future crimes or that they clear forests via caiñgins cannot justify physical incarceration on a small 2,000-acre tract.
 - Forcibly confining semi-nomadic people to a restricted space will not civilize them; instead, it will decimate them with disease and coerce them into debt-peonage and involuntary servitude to wealthier coastal settlers just to obtain food.
 - The law hands arbitrary, unchecked power to provincial governors to herd up to a million "non-Christian" citizens (including advanced groups like Moros, Igorots, or Ifugaos) onto reservations at their sole,

unregulated discretion, leaving them without judicial recourse

Agustin v. Edu

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Leovillo C. Agustin v. Hon. Romeo F. Edu, in his capacity as Land Transportation Commissioner; Hon. Juan Ponce Enrile, in his capacity as Minister of National Defense; Hon. Alfredo L. Juinio, in his capacity as Minister of Public Works, Transportation and Communications; and Hon. Baltazar Aquino, in his capacity as Minister of Public Highways*
- **Citation:** G.R. No. L-49112, February 2, 1979 (En Banc)
- **Ponente:** Fernando, J.
- **Bench Composition:** Castro, C.J., Barredo, Antonio, Santos, Fernandez, Guerrero, Abad Santos, De Castro, and Melencio-Herrera, JJ., concurring; Aquino, J., took no part; Concepcion, J., on leave (concurred per certification of CJ Castro); Makasiar, J., reserved the right to file a separate opinion; Teehankee, J., dissenting.
- **Syllabus Relevance & Topic:**
 1. **Police Power of the State:** Scope, dynamism, and illimitable nature of police power as the authority to prescribe regulations promoting public health, safety, and general welfare; heavy presumption of constitutionality of public safety measures.
 2. **Non-Delegation of Legislative Power & Subordinate Legislation:** Validity of administrative rules (LTC AO No. 1 and MC No. 32) under the **Sufficient Standard Test** ("public safety" and "safe transit upon roads").
 3. **Incorporation Clause & International Law (*Pacta Sunt Servanda*):** Enforcement of municipal regulations enacted pursuant to ratified international treaties (1968 Vienna Convention on Road Signs and Signals ratified under P.D. No. 207).

CHRONOLOGICAL MATERIAL FACTS

1. **Promulgation of LOI No. 229 (December 2, 1974):** President Ferdinand E. Marcos issued Letter of Instruction (LOI) No. 229 requiring all owners, users, or drivers of motor vehicles (except motorcycles and trailers) to have at all times in their vehicles at least one (1) pair of Early Warning Devices (EWDs) consisting of triangular, collapsible reflectorized plates in red and yellow colors (at least 15 cm at the base and 40 cm at the sides). Whenever a vehicle is stalled, disabled, or parked for 30 minutes or more on any street or highway, the driver must install the EWD at least 4 meters away to the front and rear.
2. **Promulgation of LOI No. 479 (November 15, 1976):** President Marcos amended Paragraph 3 of LOI No. 229 via LOI No. 479, clarifying that vehicle owners could **procure EWDs from any source and present at registration one pair of reflectorized triangular EWDs of any brand or make chosen by the owner.**
3. **Issuance of LTC Administrative Order No. 1 (December 10, 1976):** Land Transportation Commissioner Romeo F. Edu issued Administrative Order No. 1 setting technical specifications for EWDs pursuant to LOI No. 229/479.
4. **Six-Month Suspension (January 25, 1977):** President Marcos suspended the EWD requirement as a pre-registration requirement for six months.
5. **Lifting of Suspension via LOI No. 716 (June 30, 1978):** President Marcos issued LOI No. 716 lifting the suspension and directing the immediate implementation of LOI No. 229 as amended.
6. **Issuance of LTC Memorandum Circular No. 32 (August 29, 1978):** Commissioner Edu issued LTC MC No. 32 implementing LTC AO No. 1 and LOI No. 716, providing that EWDs may come from whatever source as long as they substantially comply with specifications, and directing the issuance of serially numbered stickers free of charge to be attached to compliant EWDs.

7. **Petitioner's Situation:** Petitioner Leovillo C. Agustin, owner of a Volkswagen Beetle (Model 13035) equipped from the factory with fore and aft blinking lights, filed a prohibition petition challenging LOI No. 229 (as amended) and LTC MC No. 32.
-

PROCEDURAL HISTORY

1. **Original Petition for Prohibition in the Supreme Court:** Petitioner filed an original petition for prohibition with a prayer for a temporary restraining order (TRO) directly before the Supreme Court.
 2. **Issuance of TRO (October 19, 1978):** The Supreme Court issued a TRO enjoining respondents from implementing the assailed LOIs and LTC Memorandum Circular No. 32 and required respondents to answer.
 3. **Respondents' Answer (November 15, 1978):** The Office of the Solicitor General (led by Sol. Gen. Estelito P. Mendoza, Asst. Sol. Gen. Ruben E. Agpalo, and Sol. Amado D. Aquino) submitted an Answer refuting petitioner's claims, demonstrating that the EWD requirement was a valid police power measure grounded on empirical safety studies and international treaty obligations under the 1968 Vienna Convention.
-

PARTIES' MATERIAL ARGUMENTS

- **Petitioner (Leovillo C. Agustin):**
 1. **Violation of Substantive Due Process:** LOI No. 229 as amended and LTC MC No. 32 are oppressive, harsh, arbitrary, unconscionable, confiscatory, and "contrary to the precepts of a compassionate New Society."
 2. **Economic Exploitation:** The requirement forces car owners to buy EWD sets at P56.00 to P72.00 per set, making manufacturers and dealers "instant millionaires" at the expense of motorists.
 3. **Existence of Practical Alternatives:** Motorists already possess effective, built-in safety alternatives (factory fore and aft blinking lights, battery-powered interior lights, reflectorized bumper tapes, or petroleum lamps/*kinke*).
 4. **Lack of Public Necessity:** EWDs are not vital to preventing nighttime accidents; 1976 statistics showed that out of 26,000 vehicular accidents, only 390 (or 1.5%) involved rear-end collisions.
 5. **Undue Delegation of Legislative Power:** The delegation of authority to the Land Transportation Commissioner to issue AO No. 1 and MC No. 32 constitutes an unlawful abdication of legislative power.
- **Respondents (LTC Commissioner Edu, Minister Enrile, Minister Juinio, Minister Aquino via OSG):**
 1. **Valid Police Power Measure:** LOI No. 229 was enacted under the State's inherent police power to protect public safety and prevent fatal road collisions caused by stalled or parked vehicles.
 2. **Presumption of Validity Unrebutted:** Petitioner failed to present a factual foundation of record to overturn the strong presumption of constitutionality (*Ermita-Malate* standard). Even accepting petitioner's statistic of 390 rear-end collisions, saving 390 or more human lives fully justifies the measure.
 3. **Universal Standard vs. Confusion:** Triangular reflectorized EWDs are visible at 400 meters under adverse conditions without relying on battery power. Built-in blinking lights or petroleum lamps cause driver confusion (e.g., mistaking a stalled car for an ambulance, police vehicle, or emergency unit).
 4. **No Monopoly or Compulsory Vendor:** Under LOI No. 479, vehicle owners are free to buy EWDs from any source or manufacturer, or even fabricate them personally using practical ingenuity, provided they meet technical specifications.
 5. **Valid Subordinate Legislation:** The delegation to LTC satisfies the Sufficient Standard Test, guided by the explicit policy of "public safety" and "safe transit upon roads."
 6. **Treaty Obligation (*Pacta Sunt Servanda*):** The EWD requirement fulfills the Philippines' international commitment under the **1968 Vienna Convention on Road Signs and Signals**, ratified under P.D. No. 207.

● ISSUES

1. **Whether LOI No. 229, as amended by LOI Nos. 479 and 716, violates the Due Process and Equal Protection Clauses of the Constitution as an arbitrary and oppressive exercise of Police Power.**
 2. **Whether LTC Administrative Order No. 1 and Memorandum Circular No. 32 constitute an unconstitutional delegation of legislative power.**
 3. **Whether the EWD requirement is anchored on valid international law principles under the Incorporation Clause and the rule of *Pacta Sunt Servanda*.**
-

🌸 HOLDINGS AND CONTROLLING REASONING

1. On Police Power and Substantive Due Process: NO, LOI No. 229 (as amended) is CONSTITUTIONAL. It is a valid exercise of Police Power to promote public safety.

- **Scope and Dynamism of Police Power:** Citing *Taney, C.J. (License Cases)*, *Laurel, J. (Calalang v. Williams)*, *Malcolm, J. (Rubi v. Provincial Board)*, *Primicias v. Fugoso*, *Morfe v. Mutuc*, and *Edu v. Ericta*, the Court emphasized that police power is the most essential, insistent, and least illimitable attribute of government. It is coextensive with self-protection and public necessity. As *Cardozo, J.* noted, what is critical or urgent changes with the time; police power is a dynamic agency that expands to meet changing conditions and ensure communal peace, safety, and welfare.
- **Heavy Burden on Challenger in Public Safety Measures:** A police power measure specifically designed to protect public safety carries an exceptionally strong presumption of validity (*Edu v. Ericta* on the Reflector Law; *Calalang v. Williams* on traffic regulation; *People v. Lagman* on national defense; *US v. Pompeya* on patrol duty). Courts rarely invalidate acts promoting public safety.
- **Failure to Rebut Presumption of Validity (Ermita-Malate Standard):** Quoting Justice Brandeis in *O'Gorman & Young v. Hartford Fire Insurance Co.* (cited in *Ermita-Malate Hotel Association v. City Mayor of Manila*), the Court held that where underlying questions of fact condition constitutionality, the **presumption of constitutionality must prevail in the absence of a factual foundation of record overthrown by evidence**. Petitioner relied merely on naked assertions and "wild, fantastic" rhetoric.
- **Refutation of Petitioner's Specific Objections:**
 - *Statistical Argument:* Even assuming petitioner's unverified figure that only 1.5% (390 accidents) were rear-end collisions, preventing 390 collisions that could cause the deaths of 390 or more citizens is more than sufficient justification for the regulation.
 - *Blinking Lights & Petroleum Lamps vs. Standard EWD:* Factory blinking lights, battery-operated lights, or petroleum lamps (*kinke*) do not provide clear advance warning. They cause driver uncertainty and confusion (e.g., mistaking the stalled vehicle for an ambulance or law enforcement vehicle). In contrast, a triangular reflectorized EWD is visible at 400 meters under adverse conditions, operates passively without electric power, and communicates a universal, unambiguous signal to any domestic or foreign motorist.
 - *Monopoly & Oppression Claims:* LOI No. 479 eliminated any central supply mechanism. Motorists are free to procure EWDs from any source, brand, or vendor, or even personally construct them using practical ingenuity, provided they conform to basic technical specifications.
 - *Wisdom vs. Legality:* Courts do not pass upon the wisdom, justice, or expediency of legislation (*Gonzales v. COMELEC*). Subject to constitutional boundaries, policy choices belong exclusively to the political branches.

2. On Delegation of Legislative Power: NO, there is NO unconstitutional delegation of legislative power.

- **Sufficient Standard Test:** To prevent unlawful delegation, the legislature must determine matters of principle and lay down a standard that defines policy, marks limits, maps boundaries, and specifies the applying agency (*Edu v. Ericta*).
- **Express or Implied Standard:** The standard does not need to be spelled out explicitly in technical detail; it can be implied from the policy and purpose of the act as a whole.
- **Public Safety as the Standard:** Here, the declared legislative policy is **public safety** and "**safe transit upon the roads**" (as upheld in *Calalang v. Williams*).
- **Subordinate Legislation:** Given the growing complexity of modern government, administrative agencies may be validly granted the authority to issue supplemental rules and regulations ("subordinate legislation") to carry out non-legislative implementation details.

3. On International Law Obligations: YES, the regulation is reinforced by the Incorporation Clause and *Pacta Sunt Servanda*.

- **Incorporation Clause (Art. II, Sec. 3, 1973 Consti / Art. II, Sec. 2, 1987 Consti):** The Philippines adopts the generally accepted principles of international law as part of the law of the land.
- **Ratification of the 1968 Vienna Convention:** The recitals of LOI No. 229 explicitly cite the 1968 Vienna Convention on Road Signs and Signals, which was ratified by the Philippine Government under P.D. No. 207.
- ***Pacta Sunt Servanda*:** International commitments must be kept in good faith (*pacta sunt servanda*). Repudiating a pledged international treaty commitment is contrary to international morality.

DOCTRINE, TESTS, AND LEGAL STANDARDS

1. **Standard of Police Power for Public Safety:** Police power is plenary and coextensive with state survival and self-protection. Laws enacted to protect public safety enjoy a formidable presumption of constitutionality that can only be overthrown by a clear factual foundation established of record (*Ermita-Malate Test*).
2. **Sufficient Standard Test for Administrative Delegation:** Delegated rulemaking is valid if guided by an express or implied statutory standard ("public safety" / "safe transit upon roads") that defines policy limits and bounds administrative discretion.
3. ***Pacta Sunt Servanda* & Incorporation Clause:** Under Article II of the Constitution, ratified treaties (such as the 1968 Vienna Convention on Road Signs and Signals) become part of the law of the land, and the State is bound under *pacta sunt servanda* to implement their safety standards through domestic regulations.

DISPOSITION

- **Ruling:** Petition for prohibition is **DISMISSED**.
- **Directives:** The Temporary Restraining Order issued on October 19, 1978 is **LIFTED**. The decision is declared **immediately executory**. No costs.

SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLES

Dissenting Opinion of Justice Teehankee

Justice Teehankee dissented from the summary dismissal, arguing that the petition raised grave and serious constitutional questions that warranted oral argument and full trial court evidence:

1. *Built-in EWD Redundancy*: Oppressive to compel motorists with effective built-in factory warning devices (blinking lights, battery lights, reflectorized bumper tape) to purchase an additional specified device of unproven utility.
 2. *Unproven Public Necessity*: Statistics showed rear-end collisions comprised only 1.5% (390 out of 26,000 accidents) in 1976, failing to justify a blanket requirement for nearly 900,000 vehicles.
 3. *Staggering Financial Outlay*: Imposed a total consumer outlay of almost **P50 Million** (865,037 vehicles at P56–P72 per set) on motorists.
 4. *Practical Alternatives*: Ignored cheaper alternatives like common petroleum lamps (*kinke*).
 5. *Lax Enforcement of Basic Road Laws*: Government should first eliminate dilapidated trucks and enforce driver licensing before imposing a P50 Million burden.
 6. *Judicial Receptivity*: Civic-minded citizens challenging "all-pervading police power" deserve judicial sympathy rather than summary dismissal.
-

RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

"In Agustin v. Edu (1979), President Marcos issued LOI No. 229 (as amended by LOI Nos. 479 and 716) requiring all motor vehicle owners to equip their vehicles with triangular reflectorized Early Warning Devices (EWDs) to be displayed when stalled on highways. LTC Commissioner Edu issued AO No. 1 and MC No. 32 to implement the requirement. Petitioner Agustin, owner of a Volkswagen Beetle with factory blinking lights, challenged the LOIs and rules as oppressive, confiscatory, an invalid exercise of police power, an undue delegation of legislative power, and an unneeded P50 Million burden on motorists.

The Supreme Court En Banc, through Justice Fernando, dismissed the petition and upheld the law. The Court held: (1) LOI 229 is a valid police power measure promoting public safety, and petitioner failed to present a factual foundation of record to overturn the strong presumption of constitutionality under the Ermita-Malate standard; factory blinking lights cause driver confusion, whereas triangular EWDs provide a universal 400-meter warning signal; (2) LOI 479 allows procurement from any source, eliminating monopoly; (3) the delegation to LTC is valid under the Sufficient Standard Test of 'public safety'; and (4) the EWD requirement fulfills the Philippines' international treaty commitment under the 1968 Vienna Convention on Road Signs and Signals, which binds the nation under the Incorporation Clause and pacta sunt servanda."

One-Sentence Doctrine Anchor

A public safety regulation requiring reflectorized Early Warning Devices (EWDs) is a valid exercise of police power and subordinate legislation that fulfills international treaty commitments under *pacta sunt servanda* and cannot be invalidated without a clear factual foundation of record.

Agustin v. Edu (1979)

Topic Subtopic	Government - Inherent Powers of State	GR No. & Ponente	[G.R. No. L-49112. February 2, 1979.] EN BANC FERNANDO
Petitioner/s	LEOVILLO C. AGUSTIN	Respondent/s	HON. ROMEO F. EDU, in his capacity as Land Transportation Commissioner et al
Doctrine	Police Power is a dynamic and expansive power of the State which enables it to enact legislation that would limit personal liberty or property, in pursuit of the general welfare of the people		

FACTS

- Due to several major accidents caused by disabled, stalled or parked motor vehicles on major roads, President Marcos issued Letter of Instruction No. 229 (LOI 229) on December 2, 1974 which requires the following:
 - All owners or drivers of motorized vehicles to have a triangular, collapsible reflectorized plates in red or yellow to serve as an Early Warning Device (EWD)
 - If a vehicle is stalled or parked for ≤ 30 minutes on a major road, the driver must use the EWD and place them at the front and back of the vehicle to serve as a warning for oncoming drivers
 - LTC shall cause Reflectorized EWDs to be prepared and issued to registered owners, charging for each piece not more than 15% of the acquisition cost
- Later on LOI 479 amended the last point to allow drivers of motor vehicles to purchase or source the EWD from any brand of their choosing
- LTC Admin Order No. 1 then reaffirmed that the EWDs may come from any source of the motor vehicle owner/driver's choosing, as long as it complies with the specifications and the serial number sticker provided by the LTC is attached
- Agustin prayed that the LOIs and Memorandum Circular be declared void and unconstitutional

ISSUE 1: Whether or Not LOI 229 is unconstitutional for being an oppressive, harsh, and unreasonable exercise of police power? NO

RULING and RATIO DECIDENDI for ISSUE 1:

- The State is exercising its police power to ensure public safety. Marcos provided the statistics necessitating the EWDs to prevent more accidents. He also cited 1968 Vienna Convention, of which the PH is a signatory of. The Convention recommended the enactment of local legislation for the installation of road safety signs and devices for traffic safety.
- Further, Petitioner failed to present evidence that rebuts the presumption of validity. Presumption of constitutionality must prevail in the absence of some factual foundation of record in overthrowing the statute.
- EWDs are also not an expensive redundancy nor oppressive. EWD is a universal signal that somewhere along the road, a vehicle is stationary, stalled or disabled, and could obstruct or endanger oncoming traffic, unlike just blinking lights or lamps. Further, motorists have the freedom to purchase any kind of EWDs as long as it follows the specification required.
- Petitioner's view is on the wisdom of the LOI, and not really on its constitutionality. Out of the Court's jurisdiction

ISSUE 2: Whether or Not LOI 229 IRR violates the non-delegation of legislative power? NO

RULING and RATIO DECIDENDI for ISSUE 2:

- To avoid unlawful delegation, there must be a standard provided by the legislature that determines a statute's principles and lays down its fundamental policy, clearly defining its limits and boundaries, and assigning the

public agency to apply/enforce it.

- In this case, the fundamental policy of LOI 229 was to ensure public safety by eliminating road obstructions on main roads. LTC was operating within its authority to promulgate administrative rules to properly carry out the standard set by LOI 229

FINAL DECISION

WHEREFORE, this petition is dismissed. The restraining order is lifted. This decision is immediately executory. No costs

SEPARATE OPINION/S

Teehankee, J,
dissenting

- EWD is oppressive, arbitrary, and discriminatory to require owners of motor vehicles with built-in and more effective EWDs to purchase those specified by the LOI, whose effectivity have yet to be demonstrated
- There is no proof that the EWDs are a public necessity or that they are vital to prevent nighttime vehicular accidents. Only 390 rear-end collisions does not seem justified to require almost 900,000 vehicles throughout the country to have EWDs
- Financial burden on motorists is staggering, considering that there is a consumer outlay of almost P50 million that would come from EWDs
- LTC has not shown that other practical and less burdensome alternative road safety devices for stalled vehicles than the prescribed E.W.D.
- LTC has not shown they availed of the powers and prerogatives of its offices such as
 - Ridding the country of dilapidated trucks which are the main causes of highway accidents due to stalled vehicles
 - Establishing an examination and licensing system that would ban reckless and irresponsible driving → could be carried out for less than P50 million

Zabal v. Duterte

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Mark Anthony V. Zabal, Thiting Estoso Jacosalem, and Odon S. Bandiola v. Rodrigo R. Duterte, President of the Republic of the Philippines; Salvador C. Medialdea, Executive Secretary; and Eduardo M. Año, Secretary of the Department of the Interior and Local Government*
- **Citation:** G.R. No. 238467, February 12, 2019 (En Banc)
- **Ponente:** Del Castillo, J.
- **Bench Composition:** Bersamin, C.J., Peralta, A.B. Reyes, Jr., Gesmundo, J.C. Reyes, Jr., Hernando, and Carandang, JJ., concurring; Carpio and Perlas-Bernabe, JJ., concurring in separate opinions; Leonen and Caguioa, JJ., dissenting in separate opinions; Jardeleza, J., concurring and dissenting in a separate opinion.
- **Syllabus Relevance & Topic:**
 1. **Police Power of the State:** Scope and reach of police power as an inherent attribute of statehood (*salus populi est suprema lex*); application of the two-pronged means-purpose test (*lawful subject* and *lawful means*); primacy of public welfare over private business/property expectancies [224–225, 229].
 2. **Right to Travel (Art. III, Sec. 6):** Direct vs. incidental/consequential restrictions on locomotion; place-based regulations vs. personal travel prohibitions [219–222, 303, 309].
 3. **Substantive Due Process & Right to Livelihood:** Absence of vested rights in unaccrued/contingent future income; subordination of commercial/informal trade to environmental protection [229–231].
 4. **Subordinate Legislation & Emergency/Calamity Powers:** Executive implementation under R.A. No. 10121 (Philippine Disaster Risk Reduction and Management Act of 2010) and R.A. No. 9275 (Philippine Clean Water Act of 2004) [215, 225, 305–308].
 5. **Constitutional Litigation & Procedural Thresholds:** Presidential immunity from suit; exceptions to mootness (*capable of repetition yet evading review*); relaxation of *locus standi* via the **transcendental importance doctrine**; defense of SLAPP in constitutional actions.

CHRONOLOGICAL MATERIAL FACTS

1. **Environmental Degradation of Boracay:** Investigations by an Inter-Agency Task Force (DENR, DILG, DOT) revealed extreme environmental degradation in Boracay Island: high fecal coliform levels in beach waters (averaging up to 18,000 MPN/100ml, vastly exceeding the safe 400 MPN/100ml standard); 937 illegal structures built on forestlands and wetlands; 102 illegal structures on shore easements; daily solid waste generation of 90–115 tons exceeding the local hauling capacity of 30 tons; severe beach erosion; and untreated wastewater directly discharged near shores.
2. **Presidential Announcement (February–April 2018):** President Duterte publicly described Boracay as a "cesspool" and announced plans to place the island under a state of calamity and shut it down to allow environmental rehabilitation.
3. **Cabinet Approval & DILG Guidelines (April 4–17, 2018):** On April 4, 2018, President Duterte approved the total closure of Boracay for a maximum of six months starting April 26, 2018. DILG released guidelines enforcing a "No ID, No Entry" policy, restricting swimming to designated areas, and banning tourists.
4. **Filing of Original Petition (April 25, 2018):** Petitioners Mark Anthony Zabal (a Boracay sandcastle builder), Thiting Estoso Jacosalem (a Boracay tricycle driver), and Odon Bandiola (a non-resident regular visitor) filed a Petition for Prohibition and Mandamus with prayer for TRO/Injunction before the Supreme Court, assailing the planned closure [185–188].
5. **Issuance of Proclamation No. 475 (April 26, 2018):** President Duterte formally issued **Proclamation No. 475**, declaring a State of Calamity in Barangays Balabag, Manoc-Manoc, and Yapak in Boracay and ordering the temporary closure of the island as a tourist destination for six months (April 26, 2018 to October 25, 2018) [191, 214–216].
6. **Supplemental Petition (May 18, 2018):** Petitioners filed a Supplemental Petition directly challenging the constitutionality of Proclamation No. 475.
7. **Reopening of Boracay (October 26, 2018):** Following six months of rehabilitation, Boracay was reopened to tourism.

PROCEDURAL HISTORY

1. **Direct Special Civil Action in the Supreme Court:** Petitioners filed an original action for Prohibition and Mandamus (Rule 65) before the Supreme Court.
 2. **Respondents' Defenses (OSG):** The OSG argued that: (a) President Duterte must be dropped as respondent due to presidential immunity; (b) Prohibition does not lie against a *fait accompli* (closure/rehabilitation already ongoing/completed); (c) Mandamus is improper as there was no neglect of duty; (d) the petition is a SLAPP suit; (e) petitioners lack *locus standi*; and (f) Proclamation No. 475 is a valid exercise of police power and subordinate legislation under R.A. No. 10121 and R.A. No. 9275 [197–203].
-

PARTIES' MATERIAL ARGUMENTS

- **Petitioners (Zabal, Jacosalem, Bandiola):**
 1. **Invalid Exercise of Legislative Power:** Proclamation No. 475 is an unconstitutional executive usurpation of legislative power because restricting travel and closing an island partakes of lawmaking.
 2. **Violation of Right to Travel (Art. III, Sec. 6):** Impairment of travel can only be effected by an explicit statutory law based on national security, public safety, or public health—conditions not met by a mere presidential proclamation.
 3. **Violation of Due Process & Livelihood:** Deprives informal workers and local businesses of their property right to work and earn a living without due process, penalizing innocent citizens for the environmental violations of others.
 4. **Violation of Local Autonomy:** Encroaches upon the constitutional autonomy of affected LGUs by ordering them to execute a presidential closure directive.
 - **Respondents (Executive Officials via OSG):**
 1. **Presidential Immunity:** President Duterte cannot be impleaded during his incumbency.
 2. **Procedural Inpropriety & SLAPP:** Prohibition cannot undo a *fait accompli*; Mandamus cannot lie where officials conscientiously performed environmental duties; the suit is a SLAPP meant to derail environmental enforcement [197–198, 214].
 3. **No Direct Travel Restriction:** Proclamation No. 475 is a place-based rehabilitation directive; any effect on travel is purely incidental.
 4. **Valid Police Power & Subordinate Legislation:** Rooted in R.A. No. 10121 (PDRRM Act) and R.A. No. 9275 (Clean Water Act), enacted to protect public health and the environment; private expectancies must yield to general welfare (*Ermita-Malate* standard).
 5. **No Encroachment on Local Autonomy:** R.A. 10121 mandates joint national-local disaster response; environmental destruction of a prime national tourist destination is a national concern.
-

ISSUES

1. **Procedural Issues:**
 - a. Whether President Duterte should be dropped as a party-respondent.
 - b. Whether Prohibition and Mandamus are proper procedural remedies despite arguments of *fait accompli* and non-neglect of duty [205–206].
 - c. Whether the reopening of Boracay rendered the petition moot and academic.
 - d. Whether petitioners possess legal standing (*locus standi*) [209–212].
 - e. Whether the petition should be dismissed as a Strategic Lawsuit Against Public Participation (SLAPP).
2. **Substantive Issues:**
 - a. Whether Proclamation No. 475 unconstitutionally impairs the right to travel under Article III, Section 6 [219–223].
 - b. Whether Proclamation No. 475 is a valid exercise of Police Power and delegated legislative authority / subordinate legislation [224–228].
 - c. Whether Proclamation No. 475 violates substantive due process by depriving petitioners of their right to work and earn a living [229–232].
 - d. Whether Proclamation No. 475 unconstitutionally intrudes upon the local autonomy of affected LGUs.

HOLDINGS AND CONTROLLING REASONING

1. On Procedural Thresholds:

- **a. Presidential Immunity: YES, President Duterte must be dropped as respondent.** Settled jurisprudence (*David v. Macapagal-Arroyo*) dictates that an incumbent President is immune from suit during actual tenure to ensure freedom from harassment and distraction in performing official duties.
- **b. Propriety of Prohibition and Mandamus: YES, Prohibition and Mandamus are proper remedies.** They are appropriate procedural vehicles to test the constitutionality of executive and legislative acts when constitutional violations are alleged, notwithstanding Rule 65 technicalities (*Tañada v. Angara*, *Spouses Imbong v. Ochoa*).
- **c. Mootness Exception: NO, the case is NOT dismissed for mootness.** Although the six-month closure expired and Boracay reopened, judicial review is imperative under recognized exceptions: (1) presence of possible constitutional violations; (2) exceptional character of the situation; (3) paramount public interest; and (4) the issue is **capable of repetition yet evading review**.
- **d. Locus Standi & Transcendental Importance: Petitioners LACK direct locus standi, BUT standing is relaxed due to Transcendental Importance.** Zabal and Jacosalem are informal sector workers whose projected earnings are non-guaranteed, contingent expectancies (*Galicto v. Aquino III*); Bandiola showed no direct personal injury [210–211]. However, procedural technicalities are set aside because the case involves fundamental constitutional rights, national environmental rehabilitation, and issues of **transcendental importance**.
- **e. Defense of SLAPP: NO, the SLAPP defense does not apply.** SLAPP rules under the Environmental Rules apply to harassment suits; here, the core issue is a direct constitutional challenge to an executive issuance.

2. On the Right to Travel (Art. III, Sec. 6): NO, Proclamation No. 475 DOES NOT impair the right to travel.

- **Consequential vs. Direct Restriction:** Proclamation No. 475 **does not pose an actual or direct impairment on the right to travel.** The proclamation was designed exclusively to rehabilitate Boracay; any impact on travel was merely **corollary, incidental, and temporary** (limited to six months) [221–222].
- **Distinction from Statutory Travel Bans:** Unlike laws specifically targeted at restricting individual movement (e.g., Human Security Act, Anti-Child Abuse Laws, PASEI deployment bans), Proclamation No. 475 contains no direct prohibition on human locomotion [221–222].
- **No Usurpation of Legislative Power:** Because the proclamation does not directly restrict travel, it did not alter the fundamental legal relationship between the State and its citizens; hence, the President did not enact a law or usurp legislative authority.

3. On Police Power & Subordinate Legislation: YES, Proclamation No. 475 is a VALID exercise of Police Power and Subordinate Legislation.

- **Nature of Police Power:** Police power is the most pervasive and comprehensive state authority to interfere with personal liberty or property to promote the general welfare. It is inborn in statehood (*salus populi est suprema lex*) and serves as an **implied limitation on the Bill of Rights**.
- **Application of the Two-Pronged Test (Means-Purpose Test):**
 1. **Lawful Subject (Public Interest):** The measure addressed severe environmental degradation, public health hazards (fecal coliform contamination), and ecological destruction. Citing *Oposa v. Factoran*, the Court reiterated the solemn state obligation to protect the right to a balanced and healthful ecology for present and future generations.
 2. **Lawful Means (Reasonable Necessity & Not Unduly Oppressive):** A temporary six-month total closure was the most practical, efficacious, and realistic means to execute complex inspection, demolition, pipe-laying, and construction without tourist disruption.
- **Statutory Basis for Subordinate Legislation:** The proclamation is validly anchored on **R.A. No. 10121** (PDRRM Act of 2010), authorizing the President to declare a state of calamity upon NDRRMC recommendation (Sec. 16), and **R.A. No. 9275** (Clean Water Act of 2004), empowering the executive to address non-attainment water pollution areas.

4. On Substantive Due Process & Right to Work/Livelihood: NO, petitioners' due process rights were NOT violated.

- **Property Rights Yield to Police Power:** While an occupation or trade is a property right, **property rights must bow to the primacy of police power when public welfare demands it** (*Southern Luzon Drug Corp., Carlos Superdrug*).
- **No Vested Rights in Contingent Earnings:** Vested rights must be fixed, accrued, and irrevocable. Informal workers (sandcastle builders, tricycle drivers) whose earnings depend on unpredictable tourist choices hold mere **inchoate, contingent expectancies**, not vested property rights protected by due process.
- **No Total Prohibition on Labor:** Proclamation No. 475 did not prohibit petitioners from practicing their trade elsewhere; temporary inconvenience in Boracay is an incidental burden borne for the common good.

5. On Local Autonomy: NO, there is NO unconstitutional intrusion into LGU autonomy.

- **R.A. 10121 Framework:** The statute explicitly mandates multi-agency and multi-level coordination during calamitous situations.
- **National vs. Local Concern:** The environmental rehabilitation of Boracay—a world-renowned prime tourist destination—is a **matter of national interest**, not a purely localized problem. National intervention was imperative after local officials failed for years to effectively address the island's environmental decay.

DOCTRINE, TESTS, AND LEGAL STANDARDS

1. **Place-Based Regulation vs. Right to Travel:** A temporary government order closing a specific geographically degraded area for environmental rehabilitation is a place-based regulation; its impact on locomotion is merely incidental and consequential, not a direct impairment of the constitutional right to travel [221–222, 303, 309].
2. **Police Power Supremacy over Contingent Property Expectancies:** Police power is an implied limitation on the Bill of Rights. Property rights and expected future earnings from the informal economy are contingent, inchoate expectancies that must yield to the State's exercise of police power to protect public health and ecology [224, 229–231].
3. **Subordinate Legislation in Disaster/Calamity Management:** The President may issue executive proclamations declaring a state of calamity and ordering temporary closure of an affected area as a valid exercise of subordinate legislation rooted in statutory frameworks like R.A. No. 10121 and R.A. No. 9275 [215, 225, 305–308].

DISPOSITION

- **Ruling:** The Petition for Prohibition and Mandamus is **DISMISSED**. Proclamation No. 475 is declared **CONSTITUTIONAL AND VALID**.

SEPARATE OPINIONS

3. Concurring and Dissenting Opinion of Justice Jardeleza

- **Hierarchy of Courts & Factual Questions:** Agrees that Proclamation No. 475 is valid subordinate legislation under R.A. 10121. *Dissents* on evaluating the reasonableness of the closure and local autonomy, maintaining these involve underlying factual questions that violate the hierarchy of courts and should have been tried in lower courts.

4. Dissenting Opinion of Justice Leonen

- **Violation of Due Process & Local Autonomy:** Argues that the complete shutdown totalized the deprivation of informal workers' livelihood without due process or compensation [322, 325–326]. Human labor enjoys higher constitutional protection than business profits. Proclamation No. 475 is unconstitutionally broad, vague, and usurps legislative authority, while violating local autonomy under R.A. 10121 (which tasks local councils to lead disaster response) [255, 319, 350–351].

- ☹️ Quote: "Authoritarian solutions based on fear are ironically weak... Ours is not, and should never be, a legal order ruled by diktat."

5. Dissenting Opinion of Justice Caguioa

- **Unconstitutional Shortcut:** Asserts that under Art. III, Sec. 6, any restriction on the right to travel—direct or indirect—must be explicitly provided **by law** (*Genuino v. De Lima*) [244–245, 249]. A presidential proclamation is a mere administrative issuance, not a law [263–264]. R.A. 10121 nowhere grants the President power to close an entire island.
- ☹️ Quote: "In a democratic state governed by the rule of law, fundamental rights cannot be traded in exchange for the promise of paradise. Without question, under the rule of law, the end does not, and can never ever, justify the means."

● RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

"In Zabala v. Duterte (2019), President Duterte issued Proclamation No. 475 declaring a state of calamity in Boracay and ordering its temporary closure as a tourist destination for six months to undergo environmental rehabilitation. Petitioners—a sandcastle builder, a tricycle driver, and a regular visitor—filed a special civil action for prohibition and mandamus, claiming the proclamation was an unconstitutional executive usurpation of legislative power that violated their constitutional rights to travel, due process, livelihood, and local autonomy.

The Supreme Court En Banc, through Justice Del Castillo, dismissed the petition and upheld Proclamation No. 475. The Court held: (1) The right to travel was not directly impaired; the closure was a place-based regulation aimed at environmental rehabilitation, and any effect on locomotion was merely incidental and temporary; (2) Proclamation No. 475 is a valid exercise of Police Power (satisfying the lawful subject and lawful means tests under the Oposa doctrine) and subordinate legislation anchored on R.A. No. 10121 (PDRRM Act) and R.A. No. 9275 (Clean Water Act); (3) Informal workers hold no vested rights in contingent future tourist earnings, and property expectancies must yield to police power; and (4) The environmental recovery of a prime national tourist destination is a matter of national concern, justifying coordinated national executive action without violating local autonomy." [215, 219, 221, 224–233]

One-Sentence Doctrine Anchor

A temporary executive closure of a degraded tourist destination for environmental rehabilitation is a valid exercise of police power and subordinate legislation under disaster management laws that does not directly impair the right to travel or violate due process.

Zabal v. Duterte (2019)

Topic Subtopic	Territory, People, and Government Government - Inherent Powers of the State	GR No. & Ponente	G.R. No. 238467
Petitioner/s	Mark Anthony V. Zabal, Thiting Estoso Jacosalem, Odon S. Bandiola	Respondent/s	President Rodrigo R. Duterte, Executive Secretary Salvador C. Medialdea, DILG Secretary Eduardo Año
Doctrine	Police power, the most pervasive and comprehensive among the inherent powers of the State, consists of an imposition or restraint upon liberty or property in order to foster the common good.		

FACTS

- Pres. Rodrigo Duterte, through Proclamation No. 475, ordered the temporary 6-month closure of Boracay Island starting on April 26, 2018 for rehabilitation, claiming that the tourist spot has become a 'cesspool'.
- Petitioners Mark Anthony V. Zabal (builds sandcastles), Thiting Estoso Jacosalem (driver), and Odon S. Bandiola (tourist) filed a Petition for Prohibition and Mandamus with Application for a Temporary Restraining Order.
 - Zabal and Jacosalem claimed that their earnings will be severely affected if the closure pushes through.
 - Bandiola claimed that he occasionally visits Boracay for business and pleasure.
- Petitioners implored the Court to declare Proclamation No. 475 as unconstitutional as it impedes several Constitutional rights:
 - Grave abuse of powers** – Pres. Duterte exercised a power that is legislative in nature; he impeded the local autonomy of LGUs to implement necessary closures within their jurisdiction
 - Right to travel** – Proclamation No. 475 does not refer to any specific law restricting the right to travel
 - Right to work** – petitioners were deprived of the source of their livelihood as a result of the closure
 - Police power** – this must be exercised by legislative bodies through the enactment of statutes and ordinances, not through proclamations by the Executive branch; the measure is unreasonably unnecessary and unduly oppressive

ISSUE 1

30011		
Side – Procedural	W/N Pres. Rodrigo Duterte must be dropped as a respondent in the case	YES
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:	
Pres. Duterte exercised a power that is legislative in nature.	The President is immune from suit. Therefore, he must be dropped as a respondent.	
RULING and RATIO DECIDENDI:		
YES, Pres. Duterte must be dropped as a respondent. As an incumbent President, he may not be sued in any civil or criminal case. (Professor David v. Pres. Macapagal-Arroyo)		

ISSUE 2

Side – Procedural	W/N mandamus and prohibition are the appropriate remedies?	YES
RESPONDENT/S ARGUMENTS:		
Respondents maintain that prohibition is not proper in this case because the closure of Boracay is already a fait accompli. Neither is mandamus appropriate since there is no neglect of duty on their part as they were precisely performing their duty to protect the environment when the closure was ordered.		
RULING and RATIO DECIDENDI:		
The use of prohibition and mandamus may be invoked when constitutional violations or issues are raised. It must prove that it meets the judicial review requisites first.		

ISSUE 3

Main – Procedural	W/N the case accomplishes the requisites to warrant a judicial review	YES (transcendental importance)
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
Petitioners asserted that they have legal standing since they were directly injured due to their right to travel and work being affected by the closure. They also contend that the case is of transcendental importance as it has far-reaching effects due to the breaching of constitutional rights, and they are mainly contending the constitutionality of the proclamation.		Respondents contend that there is no actual case or controversy, since Proclamation No. 475 does not prohibit anyone from being employed. There is no clash between the right of the State to preserve and protect its natural resources and the right of petitioners to earn a living.
RULING and RATIO DECIDENDI:		
YES, there is an actual case or controversy. - The same day Pres. Duterte signed Proclamation No. 475, Boracay was temporarily closed shortly after (April 26, 2018). Thus, the Petitioners' concern over their constitutional rights were legitimate - The case is of paramount public interest and is capable of repetition. NO, petitioners do not have legal standing. - Zabal and Jacosalem's sources of income are not guaranteed, whether or not the island will be closed or not. - Their earnings as sandcastle maker and driver, respectively, are not fixed and may vary depending on business climate - They are contesting mere projected earnings, which are in no way guaranteed. Concomitantly, an assertion of direct injury on the basis of loss of income does not clothe Zabal and Jacosalem with legal standing. - Bandiola, meanwhile, failed to show he will be directly affected by the closure. - He only stated that his right to travel was affected, but did not show specifics as to how HOWEVER, the Court relaxed the requirement on legal standing and allowed the petition to proceed due to its transcendental importance. The case involved possible violations of the Constitution and is capable of repetition since other tourist spots are also suffering from similar environmental degradation. Other requirements (raised at the earliest opportunity, constitutionality as the <i>lis mota</i>) were also satisfied.		

ISSUE 4

Main – Substantive	W/N Proclamation No. 475 poses an actual impairment on the right to travel	NO
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
Proclamation No. 475 impairs the right to travel freely, which subsequently affects their respective livelihoods.		The right to travel is not an absolute right. It may be impaired or restricted in the interest of national security, public safety, or public health.
RULING and RATIO DECIDENDI:		
NO, Proclamation No. 475 does not pose an actual impairment on the right to travel. - The rehabilitation needed would not be implemented smoothly and freely if tourists would be coming in and out of Boracay. - Their safety and convenience might be compromised - The water pollutants were all over the beach, which will pose danger to anyone who would swim in it; hence, piecemeal closures would not suffice. The hotels, inns and accommodations may also not be available since it		

will be inspected to determine its compliance with environmental laws

- In fine, this case does not actually involve the right to travel in its essential sense contrary to what petitioners want to portray. Any bearing that Proclamation No. 475 will have on the right to travel is merely corollary to the closure of Boracay and the ban of tourists and non-residents therefrom which were necessary incidents of the island's rehabilitation.
 - There is no concrete showing that the Proclamation deliberately meant to impair the right to travel
- Closure of Boracay is only temporary (definite period of 6 months)
- Since Proclamation No. 475 does not actually impose a restriction on the right to travel, its issuance did not result to any substantial alteration of the relationship between the State and the people. The proclamation is therefore not a law and conversely, the President did not usurp the law-making power of the legislature.

ISSUE 5

Main Substantive	– W/N Proclamation No. 475 was a valid exercise of police power as an inherent power of the State	YES
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
Police power cannot be exercised by the Executive, but rather by legislative bodies through the creation of statutes and ordinances.		The President is granted power of control or the authority to direct the performance of a duty, restrain the commission of acts, review, approve, reverse, or modify acts and decisions of subordinate units, and prescribe standards, guidelines, plans, and programs. Thus, the issuance of Proclamation No. 475 is within his ambit of powers. RA No. 10121, or the Philippine Disaster Risk Reduction and Management Act of 2010 - NDRRMC recommended to the President to declare a State of Calamity in Boracay.
RULING and RATIO DECIDENDI:		
YES, Boracay closure is a valid exercise of police power. • Proclamation No. 475 draws its framework from the Constitutional provisions concerned with the environment, health and safety, and well-being of the general public • Police power constitutes an implied limitation on the Bill of Rights, but is for the greater good and must be exercised through lawful means • Compelling State Interest - Rights to a balanced and healthful ecology and to health. Primarily for environment and health and safety • On being reasonably necessary to be closed for 6 months - The temporary closure of Boracay was necessary for its rehabilitation – Tourist influx was one of the main problems of Boracay, and the closure gave the island a much-needed breather. ◦ The bulk of the rehabilitation activities involved inspection, testing, demolition, relocation, and construction. These works could not have easily been done with tourists present. ◦ The establishments needed to be closed since majority of them need to comply w/ environmental laws ◦ Beach waters are not safe to swim in ◦ It is only for 6 months. The Court finds this to be a reasonable time frame. It was the most practical and realistic means of ensuring that rehabilitation works in the island are started and carried out in the most efficacious and expeditious way. • Absent a clear showing of grave abuse of discretion, unreasonableness, arbitrariness, or oppressiveness, the Court will not disturb the executive determination that the closure of Boracay was necessitated by the foregoing circumstances.		

ISSUE 6

Main – Substantive	W/N petitioners were deprived of their right to work and due process	NO
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
• Proclamation No. 475 impinges on their		Zabal and Jacosalem's sources of income belong in the

constitutional right to due process since they were deprived of the corollary right to work and earn a living by reason of the issuance thereof. • Their right to work and earn a living was curtailed by the proclamation, even though they were not one of the violators. They contend that environmental laws provide for specific penalties intended for violators. • Such consequences which blanket even upon non-violators is tantamount to violating their right to due process.	informal economy sector, which means that their income is never guaranteed. The mere fact that some individuals in the community may be deprived of their present business or of a particular mode of living cannot prevent the exercise of the police power of the State. Private interests must also yield to the State's exercise of police power for the public good and welfare.
--	---

RULING and RATIO DECIDENDI:

NO, petitioners cannot be said to have acquired vested rights to their sources of income.

- The Court stressed that "when the conditions so demand as determined by the legislature, property rights must bow to the primacy of police power because property rights, though sheltered by due process, must yield to general welfare."
- They are part of the informal sector wherein income is not guaranteed anyway
- Vested rights are 'fixed, unalterable, or irrevocable.' They are asserting an inchoate right – a mere expectation or projection which may or may not come into fruition, thus they cannot claim such right
 - Even if the island will not be closed off, it is still possible that they will not earn anything if no one avails of their services (*Personal note: Hence, their income is **not** directly dependent on whether Boracay will be closed or not*)
- Since they do not possess any vested right on their source of income, their claim of lack of due process collapses. → Only rights which have completely and definitely accrued and settled are entitled protection under the due process clause
- Besides, Proclamation No. 475 does not strip Zabal and Jacosalem of their right to work and earn a living. They are free to work and practice their trade elsewhere.

ISSUE 7

Side-Subst antive	W/N Pres. Duterte committed grave abuse of power and impinged the authority of LGUs in ordering the temporary closure of Boracay through Proclamation No. 475	NO
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
Petitioners claim that Proclamation No. 475 unduly impinges on the local autonomy of LGUs, since the President does not wield the power of control over them. At most, he can only call their attention to rules being violated.		Proclamation No. 475 is pursuant to the President's executive power under Section 1, Article VII of the Constitution, which defines it as the implementation of laws and enforcing their due observance. The devolution of powers upon LGUs does not mean that the State can no longer interfere in their affairs. Further, the gravity of the problem requires the intervention of national government agencies.
RULING and RATIO DECIDENDI:		
NO, Pres. Duterte did not commit grave abuse of power and did not impinge LGU authority • RA 10121 (Disaster Risk Management) recognizes and even puts a premium on the role of the LGUs in disaster risk reduction and management as shown by the fact that a number of the legislative policies set out in the subject statute recognize and aim to strengthen the powers decentralized to LGUs. → Proclamation made reference to it • Other government agencies were also involved in the rehabilitation works, which shows that the Executive branch is not exercising total control and is not encroaching upon LGU powers.		

- The situation in Boracay is not a mere local issue – it warrants a national-level intervention.
- Even if LGUs were already seeing the gravity of the problem long before, they failed to respond to it. Yet, the Proclamation still involved the affected LGUs to take part in the rehabilitation of Boracay

FINAL DECISION

All told, the Court sustains the constitutionality and validity of Proclamation No. 475. WHEREFORE, the Petition for Prohibition and Mandamus is DISMISSED. SO ORDERED.

SEPARATE OPINION/S

CAGUIOA, J,
dissenting

Proclamation No. 475 is unconstitutional.

On the right to travel

- The liberty of abode and of changing the same shall not be impaired EXCEPT upon **lawful order of the court**
- Any restriction imposed upon such right in the absence of a law enacted through the legislative process is **null and void**
- The Constitution does not distinguish between measures that directly restrict the right to travel vs. those that do so indirectly → if it impedes the right to travel, it is unconstitutional
- It cannot be justified that the restriction on the right to travel is a necessary incident of the Executive's duty to execute laws
 - Residual powers can only be justified when there is **imminent threat** to the general welfare of the people which requires immediate government response

On police power

- The validity of Proclamation No. 475 is based on RA 10121 (Philippine Disaster Risk Reduction and Management Act of 2010)
- There is **nothing** in RA 10121 which empowers the NDRRMC or the President to close an entire island even in a calamitous situation
- The President should only exercise **supervision** and not control over LGUs
- RA 10121 mandates the NDRRMC to intervene only if 2 or more regions are affected. Thus, Proclamation No. 475 cannot be inferred to have been based on this statute.
- Police power is primarily lodged by the Constitution in the **Legislature**. Thus, it cannot be exercised by any group or body not possessing legislative power.
- There are Constitutionally permissible measures to address the problem. An enabling law must have been enacted first → if URGENT, President can certify as urgent to meet immediate enactment for the public emergency

On the right to work

- Section 1, Article III Bill of Rights – No person shall be deprived of life, liberty, or property without the due process of law
 - This includes the right to work and right to make a living
 - If there is a need for the State to exercise a valid police power, such deprivation must be done with due process
 - It is incumbent upon **Congress** to respond to the need by explicitly authorizing such limitations through a law
- The petitioners are not contending their future income; it is their existing and present right to work that is at stake
 - Despite petitioners' income being variable, they are still protected by the Constitution
 - They would sustain direct injury as a result of the closure, and their interests are not speculative

On abuse of powers

- Grants the President the power to encroach upon fundamental rights under the guise of "necessity"

	The inviolability of constitutionally protected rights has been forgotten, and such is a tyrannical move from the President
LEONEN, J, dissenting	Proclamation No. 475 is unconstitutional. Defects - Open-ended and unqualified — Power of President to lift state of calamity is not qualified nor has a standard. No mention of authority that can lift, no standard for 6mnth closure - Excludes local sanggunian from role that the statue expressly reverse to it. Impermissible exercise of police power - The authority to enact legislation that interferes with personal liberty or property to protect general welfare belongs primarily to the Congress or the Legislature and not the Executive. - Inherent power of the State does NOT exempt itself from constitutional and statutory limits and must respect separation of powers. - President's exercise of this requires strict conformity with valid statutory delegation from Congress that satisfies the "completeness" and "sufficient standard" test. There is an absence of an enabling statutory authority: He argues that the Proclamation exceeded what RA 10121 authorized. - Neither RA 10121 (DRRM Act) or RA 9275 (Clean Water Act) delegates police power to the President to order the total and indefinite island-wide closure nor suspend constitutional rights (e.g. right of property: livelihood). On the right to work - Informal workers' livelihood is not a mere contingent or inchoate property right. He reclassifies it to fall within the inviolable right to life and liberty under Section 1, Article III. - Right to life includes one's choice of occupation. It is an essential component of human dignity and social justice. - They don't have the same mobility (to relocate and do their trade elsewhere) as they lack financial capital that other businesses or corporations have. - Carries the doctrine from <i>Ermita-Malate Hotel</i> for vulnerable informal workers re: heightened judicial scrutiny: "if the liberty involved were 'freedom of the mind or the person, the standard for the validity of governmental acts is much more rigorous and exacting, but where the liberty curtailed affects at the most rights of property, the permissible scope of regulatory measures is wider." - Reinforces this with textual asymmetry in Article II, Section 11 and Article XII, Section 6, of the 1987 Constitution. The Constitution establishes hierarchy between human rights and property rights - Life and liberty > property Article II, Section 11: "<i>The State values the dignity of every human person and guarantees full respect for human rights</i>" - Life and liberty are delicate and vulnerable. State regulating it should employ least restrictive means - Absolute, primary. Article XII, Section 6: The use of property bears a social function... subject to the duty of the State to promote distributive justice and to intervene when the common good so demands." - Property is incorporeal and commercial - Qualified, socialized, should yield to regulations. On RA 10121 (DRRM) - Not every human-induced environmental problem is considered a calamity envisioned under the Act. It should be (a) of such gravity, (b) cause so known that (c) response required under law is necessary. - Fecal coliform contamination may be also because of other factors that should be

	addressed through enforcement of sanitation, building, and anti-corruption laws to weed out the source of the disaster. (**classified as water pollution as public nuisance under Art. 694 and 695, CC) ■ Regulatory enforcement failures of these laws, not a sudden or externally-caused catastrophe that the calamity framework of the Act exists to address (i.e. tsunamis). ● Nothing in the Act that empowers NDRRMC or the President to close an entire island. Under Sec. 17 of the Act, a pres. declaration of state of calamity only grants remedial measures ■ Price ceiling on basic necessities ■ Monitoring of overpricing and hoarding ■ Reprogramming public infrastructure funds ■ No-interest loans expressio unius est exclusio alterius — expression of one thing is exclusion of other ○ RA 10121 is the legislation that limits the expansion of executive powers during these emergencies via 2 structural safeguards built in the statute: 1) Recommendation (Sec. 16) — Pres. cannot declare or lift state of calamity on unilateral say-so, must have prior recommendation from NDRRMC or (at local level, local DRRMC to sanggunian) 2) Active legislative checks (Secs. 26 & 27) — 12-member Joint Congressional Oversight Committee to monitor law implementation and a 5-year sunset review. On Violations of RA 9275 (Clean Water Act) and Civil Code ● Congress also did not grant Pres. or DENR Sec. the unilateral authority to close down business operations or areas due to water pollution. ● Rule III, Section 1(B)(2) of PAB Resolution No. 001-10 ■ Pollution Adjudication Board (PAB) — exclusive and original jurisdiction over adjudication of pollution cases from violations under Sec. 27, RA 9275 ○ Proc. No. 475 bypassed RA 9275's statutory framework with the Executive issuing a blanket shutdown, instead of directing PAB to issue CDOs against non-compliant commercial establishments. This denies affected parties to administrative due process and PAB's exclusive jurisdiction. ○ Water pollution, specifically the high fecal coliform levels in Boracay, constitutes as a public nuisance under Articles 649 and 695, CC. ■ The Proclamation bypasses Civil Code's statutory abatement procedures that designate specific local officers to execute remedies for this (Articles 699, 700, 701, 702, 704). The Chief Executive usurped the District Health Officer and Municipal Mayor of Malay, Aklan in the required administrative processes On Due Process and Local Autonomy ● Failed to give proper notice regarding concrete operation plans, no administrative mechanism for affected workers to seek financial or legal redress. ● Punished even those who were abiding with RA 9275. ● Article X, Section 4 of the Consti, President's power over LGUs is limited to general supervision, excluding control ● Ordering LGUs to execute island closure and tourist ban under threat of executive sanction — unconstitutional exercise of executive control.
JARDELEZA J, concurring & dissenting	● The petitioners' raising of four issues, only one (W/N Pres. usurped legislative power) genuinely presents question of law resolvable without a trial-type factual inquiry. The three others (infringement on right to travel, deprivation of due process & livelihood, violation of local autonomy) are improperly brought directly to SC ● All three petitioners had legal standing. CONCURS: To DISMISS the petition on pure questions of law ● On RA 10121 as enabling statutory authority

	○ Its definitions of disaster management is broad enough to encompass forced or preemptive evacuations and prohibitions against settlement or entry in high-risk zones, meaning it involves temporary restrictions on movement to ensure public safety. ● On Proclamation No. 475 as valid subordinate legislation ○ Congress's practical impossibility to legislate every operational detail, created NDRRMC and LDRRMCs and vested them (and through them, the Pres.) with quasi-legislative power to fill in the statute's details. ■ 2 tests for valid delegation (completeness and sufficient standard test) is satisfied: Sec. 16 empowers Pres to declare and lift state of calamity, and the statute's standards (public safety and recommendation) are the standards the Proclamation invokes. ○ The Proclamation is framed as an administrative tool to implement policies of RA 10121 and RA 9275. It does not create new law but enforces existing ecological mandates. ● Practice of disaster response agencies has long construed statutory power to evacuate incl. power to restrict entry into an area. (i.e. PHILVOLCS volcanic alert levels, PAGASA storm-signal advisories) DISSENTS: On approach and reasoning of the majority ● Court exceeded its proper function. Jardelena refuses to rule on these constitutional issues because they depend on factual proof of reasonableness ● Proc. 475 carries the presumption of constitutionality. Overcoming this, the burden falls on the assailing party to present evidence to establish its unreasonableness. ● On violation of hierarchy of courts ○ Reasonableness is a question of fact. ○ Supreme Court is not a trier of facts. Its original jurisdiction over prohibition and mandamus cannot be invoked to resolve controversies linked to underlying questions of fact. ● On right to travel and due process ○ Both rights are fundamental but not absolute. Sec. 3, Article III permits impairment of right to travel in the interest of national security, public safety or health, provided restriction is reasonable and not overly broad. ○ Real dispute is not W/N the proclamation restricts these rights but whether that restriction is reasonable based on factual evidence ■ Reasonableness is not subject to exact definition but rests upon human judgment as applied to facts and circumstances of each case. Requires evaluating factual evidence. ■ Examples: ● Fecal coliform levels: could be lowered in less than 6 months or w/o total tourist ban to normalize ● Sewer connections: one-barangay-at-a-time ● On local autonomy ○ Despite recognizing that RA 10121 empowers LGUs in DRRM rather than displacing them. He refuses to rule on the constitutionality of it as there is a lack of factual evidence: unclear if proclamation interfered w LGU's authority.
--	--

Iloilo I Electric Cooperative, Inc. v. Bersamin

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Iloilo I Electric Cooperative, Inc. (ILECO I), Iloilo II Electric Cooperative, Inc. (ILECO II), and Iloilo III Electric Cooperative, Inc. (ILECO III) v. Executive Secretary Lucas P. Bersamin, Energy Regulatory Commission Chairperson Hon. Monalisa C. Dimalanta, The House of Representatives and Senate of the Republic of the Philippines as Component Houses of the Congress of the Philippines, and The MORE Electric and Power Corporation (MORE)*
- **Citation:** G.R. No. 264260, July 30, 2024 (En Banc)
- **Ponente:** Zalameda, J.
- **Bench Composition:** Gesmundo, C.J., Caguioa, Hernando, Lazaro-Javier, Inting, M.V. Lopez, Gaerlan, Rosario, J.Y. Lopez, Dimaampao, Marquez, Kho, Jr., and Singh, JJ., concurring; Leonen, J., dissenting.
- **Syllabus Relevance & Topic:**
 1. **Non-Exclusivity of Public Utility Franchises (Art. XII, Sec. 11):** Constitutional prohibition against exclusive franchises; plenary power of Congress to alter, amend, or repeal public utility franchises when the "common good" so requires; introduction of competition in electricity distribution [214–220, 228].
 2. **Substantive Due Process (Art. III, Sec. 1):** Absence of a vested property right in an exclusive consumer market or in being shielded from legislative competition; definition of "common good" as a legislative prerogative.
 3. **Police Power vs. Non-Impairment of Contracts (Art. III, Sec. 10):** Superiority of State police power over private contracts (Power Supply Agreements with "take-or-pay" off-take provisions); regulatory role of the Energy Regulatory Commission (ERC) under EPIRA [207–208, 229, 233–236].
 4. **Equal Protection Clause (Art. III, Sec. 1):** Validity of granting statutory expropriation powers over existing distribution assets to a new franchise entrant expanding into contiguous areas.

CHRONOLOGICAL MATERIAL FACTS

1. **Grants of Franchise to Petitioners:** Petitioners ILECO I, ILECO II, and ILECO III are electric cooperatives granted separate certificates of franchise under Presidential Decree No. 269 (NEA Decree) to operate electric light and power services in Passi City and various municipalities in Iloilo Province. Their franchises expire on August 22, 2053 (ILECO I), December 12, 2029 (ILECO II), and August 10, 2039 (ILECO III).
2. **Enactment of R.A. No. 11212 (March 9, 2019):** Republic Act No. 11212 took effect, granting MORE Electric and Power Corporation (MORE) a legislative franchise to establish, operate, and maintain an electric power distribution system in Iloilo City.
3. **Enactment of R.A. No. 11918 (August 30, 2022):** Congress enacted R.A. No. 11918, amending Section 1 of R.A. No. 11212 by expanding MORE's franchise area to include 15 municipalities and Passi City in Iloilo Province—areas directly overlapping with the subsisting franchise coverage of petitioners:
 - *ILECO I Overlapping Areas:* Municipalities of Alimodian, Leganes, Leon, Pavia, San Miguel, and Santa Barbara.
 - *ILECO II Overlapping Areas:* City of Passi and Municipalities of Barotac Nuevo, Dingle, Dueñas, Dumangas, New Lucena, San Enrique, and Zarraga.
 - *ILECO III Overlapping Areas:* Municipalities of Anilao and Banate.
4. **Filing of Petition & Motion to Intervene:** Petitioners filed a Petition for Certiorari and Prohibition (Rule 65) before the Supreme Court challenging Section 1 of R.A. No. 11918. Subsequently, the Philippine Rural Electric Cooperatives Association (PHILRECA), representing 121 electric cooperatives nationwide, moved to intervene.

PROCEDURAL HISTORY

1. **Direct Special Civil Action in the Supreme Court:** Petitioners directly invoked the Supreme Court's original jurisdiction under Rule 65 for Certiorari and Prohibition with a prayer for a TRO and Writ of Preliminary Injunction.
 2. **Intervention:** PHILRECA filed an Urgent Motion for Leave to Intervene and a Petition-in-Intervention seeking the nullification of R.A. No. 11918 [211–212].
-

PARTIES' MATERIAL ARGUMENTS

- **Petitioners (ILECO I, II, III) & Intervenor (PHILRECA):**
 1. **Violation of Art. XII, Sec. 11 (Lack of Common Good):** Expanding MORE's franchise creates wasteful competition in electricity distribution—a natural monopoly characterized by high fixed capital costs and economies of scale. Direct competition leads to costly facility duplication and rate spikes for "leftover" captive consumers (up to 83% increase per ERC simulations) [205–206].
 2. **Violation of Substantive Due Process:** R.A. No. 11918 lacks a legitimate government purpose because petitioners are already rendering adequate, impeccable service.
 3. **Violation of Non-Impairment Clause (Art. III, Sec. 10):** Petitioners entered into long-term power supply contracts with generation companies containing mandatory "take-or-pay" provisions. Market fragmentation reduces petitioners' consumer base while forcing remaining captive customers to shoulder fixed minimum contracted capacities, causing stranded contract costs and default risks [207–208, 241].
 4. **Violation of Equal Protection Clause:** R.A. No. 11212/11918 grants MORE extraordinary expropriation powers to seize existing distribution poles, wires, cables, and transformers owned by incumbent utilities, conferring an unfair advantage over petitioners who face stricter NEA performance and procurement rules.
 5. **Violation of Statutory Franchise Protection:** R.A. No. 11918 violates Section 41(c) of the NEA Act (P.D. 269) and EPIRA (R.A. 9136), which recognize assigned exclusive franchise coverage areas for distribution utilities.
 - **Respondents (Executive Secretary Bersamin, ERC Chair Dimalanta, Congress, MORE via OSG):**
 1. **Plenary Power over Franchises:** Under Art. XII, Sec. 11, no franchise is exclusive, and Congress possesses plenary constitutional authority to alter, amend, or repeal franchises when required by the common good.
 2. **Promotion of Consumer Welfare via Competition:** Congressional deliberations proved that introducing competition breaks monopolies, provides consumer choice, and lowers retail electricity rates (MORE charged P1.76/kWh compared to ILECOs' P1.89–P1.97/kWh) [223–227, 257].
 3. **Police Power Prevaileth:** Private power supply contracts containing "take-or-pay" provisions cannot override the State's police power to regulate public utilities [233–235]. EPIRA empowers the ERC to monitor and redress any market power abuse or stranded contract costs [230–232].
-

ISSUES

1. **Procedural Issue:** Whether the Supreme Court may entertain direct recourse under Rule 65 as an exception to the doctrine of hierarchy of courts.
 2. **Substantive Issue 1 (Non-Exclusivity & Common Good):** Whether Section 1 of R.A. No. 11918 violates Article XII, Section 11 of the Constitution by expanding MORE's franchise into areas covered by petitioners' subsisting franchises.
 3. **Substantive Issue 2 (Substantive Due Process):** Whether Section 1 of R.A. No. 11918 violates petitioners' right to substantive due process.
 4. **Substantive Issue 3 (Non-Impairment of Contracts vs. Police Power):** Whether Section 1 of R.A. No. 11918 unconstitutionally impairs petitioners' power supply contracts containing "take-or-pay" provisions.
 5. **Substantive Issue 4 (Equal Protection Clause):** Whether Section 1 of R.A. No. 11918 violates the Equal Protection Clause by granting MORE specific expropriation powers over existing distribution infrastructure.
 6. **Procedural Issue (Intervention):** Whether PHILRECA's Motion for Leave to Intervene should be granted.
-

HOLDINGS AND CONTROLLING REASONING

1. On Hierarchy of Courts: YES. Direct recourse is allowed [213–214].

- **Ratio:** The Supreme Court entertained direct recourse because the petition raised pure constitutional questions of paramount public importance regarding energy regulation, statutory franchise overlaps, public welfare, advancement of public policy, and the broader interest of justice [213–214].

2. On Non-Exclusivity of Franchises & Common Good (Art. XII, Sec. 11): NO. R.A. No. 11918 is CONSTITUTIONAL [214, 236–237].

- **Absolute Prohibition on Exclusive Franchises:** Article XII, Section 11 explicitly commands that "*no franchise, certificate, or any other form of authorization for the operation of a public utility shall be... exclusive in character*". A franchise is a mere privilege granted by the State, not exclusive private property.
- **Monopoly vs. Constitutional Design:** While distribution utilities may operate as actual monopolies in designated areas (*Alyansa Para sa Bagong Pilipinas v. ERC*), monopoly status is not an unalterable constitutional right. Quoting the 1986 Constitutional Commission deliberations (*Davide-Suarez-Monsod* exchange), the framers deliberately omitted exclusivity to empower Congress to introduce keen competition whenever it serves the public interest [218–220].
- **Legislative Prerogative over "Common Good":** Determining what constitutes the "common good" lies strictly with the Legislature as the people's elected representatives. Senate and House deliberations showed that Congress exhaustively weighed rate impacts, consumer choices, and operating efficiencies, concluding that allowing MORE to enter would break price lock-ins and lower electricity rates by roughly P3.50/kWh for switching consumers [223–228].
- **Supremacy of the Constitution over Statutes:** Statutory prohibitions against overlapping franchises under Section 41(c) of the NEA Act or EPIRA cannot limit or override the constitutional mandate that all public utility franchises are subject to legislative amendment, alteration, or repeal (*Tawang Multi-Purpose Coop v. La Trinidad Water District*) [221–222].

3. On Substantive Due Process: NO. Petitioners' due process rights were NOT violated.

- **Ratio:** Substantive due process requires a legitimate government purpose. Congress enacted R.A. No. 11918 to promote a healthy, competitive power market in Iloilo. Incumbent electric cooperatives have no vested property right in an exclusive captive market or in shielding themselves from legislative competition.

4. On Non-Impairment of Contracts vs. Police Power (Art. III, Sec. 10): NO. Power supply contracts are NOT unconstitutionally impaired [229, 233–236].

- **No Alteration of Contractual Terms:** Impairment occurs when a law changes contractual terms, imposes new conditions, dispenses with agreed terms, or withdraws enforcement remedies. R.A. No. 11918 did not modify, rescind, or cancel the terms of petitioners' supply contracts with generation companies. The "take-or-pay" provisions remain valid and legally binding between the contracting parties [229–230].
- **Subordination to Police Power:** Property and contractual rights protected by the Non-Impairment Clause must yield to the State's police power to regulate public utilities for the general welfare (*Carlos Superdrug Corp v. DSWD*) [233–235]. Every contract contains an implied reservation that it is subject to police power, especially in public utility grants [233–235].
- **Administrative Remedy before the ERC:** Under EPIRA (Sec. 23) and the ERC IRR (Rule 11, Sec. 7(d)), if market changes create onerous stranded contract costs or anti-competitive behavior, the ERC is statutory empowered to monitor, stop, and redress unfair trade practices and adjust power supply arrangements [230–232, 236].

5. On Equal Protection Clause: NO. There is NO violation of equal protection.

- **Ratio:** MORE is not similarly situated to incumbent utilities; as a new entrant expanding into contiguous coverage areas, granting it specific expropriation powers over existing distribution assets (previously sustained in *MORE v. PECO*) ensures rapid facility deployment and uninterrupted power supply to end-users.

6. On PHILRECA's Intervention: DENIED.

- **Ratio:** PHILRECA's legal interest is merely indirect and contingent, relying on the rights of its member cooperatives who are already active petitioners. Allowing intervention would cause unnecessary procedural delay.

● DOCTRINE, TESTS, AND LEGAL STANDARDS

1. **Absolute Non-Exclusivity of Public Utility Franchises (Art. XII, Sec. 11):** No franchise for the operation of a public utility can ever be exclusive. Congress possesses unbridled constitutional authority to grant concurrent franchises over the same geographic area whenever it determines that competition serves the "common good" [215–219, 228].
2. **Subordination of Contracts to Police Power:** The Non-Impairment Clause does not bar Congress from enacting public utility laws that alter market dynamics. Long-term "take-or-pay" off-take agreements must yield to the primary exercise of police power in regulating energy distribution [229, 233–235].
3. **Primary Jurisdiction of the ERC over Stranded Contract Costs:** In a restructured energy sector under EPIRA, remedies for stranded contract costs or market disruptions caused by legislative competition belong to the regulatory jurisdiction of the ERC, not to judicial invalidation of franchises [230–232, 236].

♥ DISPOSITION

- **Ruling:** The Petition for Certiorari and Prohibition is **DISMISSED**. PHILRECA's Motion for Leave to Intervene and Petition-in-Intervention are **DENIED**.

● SEPARATE OPINIONS & DISSENT

Dissenting Opinion of Senior Associate Justice Marvic M.V.F. Leonen

Justice Leonen **DISSENTED**, voting to declare Section 1 of R.A. No. 11918 **UNCONSTITUTIONAL**:

1. **Failure of the "Common Good" Standard (Art. XII, Sec. 11):** Electricity distribution is a **natural monopoly** characterized by massive fixed capital investments and economies of scale [240, 252–256]. Introducing direct competition in a natural monopoly results in wasteful infrastructure duplication and drives up long-term capital costs. The minuscule price difference (P0.13 to P0.21/kWh, yielding only P26–P42/month savings per household) benefits only MORE (a for-profit corporation), while leaving remaining captive consumers to absorb spiked distribution and stranded contract costs [257–259].
2. **Violation of Procedural Due Process:** Incumbent electric cooperatives were denied an opportunity to be heard before Congress prior to the encroachment and effective amendment of their subsisting franchises [240, 270–271].
3. **Severe Impairment of Contracts:** Market fragmentation directly impairs petitioners' long-term off-take agreements ("take-or-pay") entered into under EPIRA, forcing cooperatives into financial default [241, 272–275].
4. **Equal Protection & Class Legislation:** R.A. No. 11918 confers extraordinary expropriation powers allowing MORE to seize existing, working distribution assets of incumbent cooperatives for private profit—which does not constitute a valid "public use" under Article III, Section 9 [242, 276–285].
5. **Grant of Intervention:** PHILRECA should have been allowed to intervene to protect the vital interests of rural electric cooperatives [286–288].

● RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

"In Iloilo I Electric Cooperative v. Bersamin (2024), Congress enacted R.A. No. 11918 expanding the electricity distribution franchise of MORE Electric into 15 municipalities and Passi City in Iloilo—areas already covered by the subsisting franchises of electric cooperatives ILECO I, II, and III. The ILECOs petitioned the Supreme Court under Rule

65, arguing that R.A. 11918 violated Art. XII, Sec. 11 (lack of common good), due process, equal protection, and the Non-Impairment Clause due to their long-term 'take-or-pay' power supply contracts.

The Supreme Court En Banc, through Justice Zalameda, DISMISSED the petition. The Court held that under Art. XII, Sec. 11, no public utility franchise can ever be exclusive, and Congress holds plenary power to amend or allow competing franchises for the common good. Congressional deliberations showed that competition would provide consumer choice and lower electricity rates. Furthermore, the Non-Impairment Clause yields to State police power; R.A. 11918 did not alter the terms of the ILECOs' power supply contracts, and any stranded contract costs must be addressed before the ERC under EPIRA." [214, 216, 223–229, 233–236]

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: Can an electric cooperative claim a vested right to an exclusive franchise area under EPIRA or the NEA Act?**
 - **A: No.** Under Article XII, Section 11 of the Constitution, no franchise can be exclusive in character. Statutory provisions in EPIRA or the NEA Act attempting to grant exclusivity yield to the supreme constitutional command empowering Congress to amend or grant competing franchises (*Tawang*) [221–222].
2. **Q: How did the Court resolve the conflict between MORE's entry and the ILECOs' "take-or-pay" power supply contracts?**
 - **A:** The Court held that R.A. No. 11918 did not alter or invalidate the terms of the power supply contracts [229–230]. Moreover, private contracts must yield to State police power [233–235]. If market shifts cause stranded contract costs, EPIRA (Sec. 23) vests the Energy Regulatory Commission (ERC) with primary regulatory jurisdiction to redress unfair trade practices and adjust supply contracts [230–232, 236].
3. **Q: What was Justice Leonen's core economic and constitutional objection in his dissent?**
 - **A:** Justice Leonen argued that electricity distribution is a **natural monopoly** where direct competition causes wasteful infrastructure duplication and higher long-term consumer rates [240, 252–256, 275]. Thus, introducing competition failed the "common good" standard of Art. XII, Sec. 11 and unconstitutionally impaired the ILECOs' off-take contracts [240, 260, 272–275].

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose Congress enacts a statute revoking ILECO I's franchise mid-term, seizing all its physical power lines without just compensation, and transferring them directly to a private corporation owned by a sitting Senator. Is this valid under *ILECO v. Bersamin*?
- **Answer: No.** While Congress may amend or repeal franchises for the common good under Art. XII, Sec. 11, it cannot confiscate private distribution assets without satisfying Due Process and paying Just Compensation under Eminent Domain (Art. III, Sec. 9). In *ILECO*, R.A. 11918 merely permitted competitive entry; it did not arbitrarily confiscate property without compensation.

One-Sentence Doctrine Anchor

No public utility franchise is exclusive under Article XII, Section 11 of the Constitution, and Congress may grant overlapping franchises to promote market competition, to which private supply contracts must yield under the State's police power. [216, 228, 233–235]

Iloilo I Electric Cooperative, Inc. v. Executive Secretary (2024)

Topic Subtopic	Government - Inherent Powers of the State	GR No. & Ponente	G.R. No. 264260 J. Zalameda
Petitioner/s	Iloilo I Electric Cooperative Inc (ILECO I), ILECO II, ILECO III	Respondent/s	Executive Secretary Lucas P. Bersamin, et al.
Doctrine	A franchise to operate a public utility is a privilege granted by the State, not an exclusive right. Under Article XII, Section 11 of the 1987 Constitution, public utility franchises cannot be exclusive and are subject to amendment, alteration, or repeal by Congress when the common good so requires.		

FACTS

- Petitioners, who are grantees of certificates of franchise to operate electric light & power services in Iloilo Province and Passi City, filed a petition for certiorari & prohibition w/ prayer for the issuance of TRO & Writ of Preliminary Injunction to assail constitutionality of Sec. 1 of R.A. 11918 for violation of **exclusive franchises, non impairment of contracts, due process, and equal protection**.
 - "Sec. 1. **Nature and Scope of Franchise** – Subject to the provisions of the Constitution and applicable laws, rules and regulations, there is hereby granted to MORE Electric and Power Corporation, hereunder referred to as the Grantee, its successors or assignees, a franchise to establish, operate, and maintain, for commercial purposes and in the public interest, a distribution system for the conveyance of electric power to end users in [certain cities and municipalities]. As used in this Act, distribution system refers to the system of wires and associated facilities including subtransmission lines belonging to or used by a franchised distribution utility extending between the delivery point on the national transmission system or generating facility and the metering point or facility of the end-user."
- Mar. 2019 → R.A. 11212 granted MORE Electric and Power Corporation (MORE) a franchise to establish and operate an electric power distribution system in Iloilo City.
 - Aug. 2022 → R.A. 11918 expanded MORE's franchise area to include 15 municipalities and one city that were previously within the exclusive franchise area of the petitioners.
- The Solicitor-General argued that the petition should be dismissed for raising a political question and violating the hierarchy of courts + no violation of impairment of contract and equal protection of laws
 - Congress has power to issue franchises under Sec. 11, Art. XII of the Constitution
 - Legislative franchise for operation of a public utility is not exclusive in character
- During pendency of the case, the Philippine Rural Electric Cooperatives Association (PHILRECA), the association composed of 121 electric cooperatives, moved to intervene.
 - Argued that it has direct interest in the outcome of the case, given that the continued effectivity of R.A. 11918 will encroach upon the existing franchise of a rural electric cooperative.

Arguments of the Petitioners

- MORE's expanded areas overlapped with their franchise areas. Specifically, for ILECO I, the overlapping areas are the municipalities of Alimodian, Leganes, Leon, Pavia, San Miguel, and Santa Barbara; for ILECO II, these are the city of Passi and municipalities of Barotac Nuevo, Dingle, Duenas, Dumangas, New Lucena, San Enrique, and Zarraga; and for ILECO III, these are the municipalities of Anilao and Banate.
- There is no common good that justifies the effective alteration of petitioners' respective franchises
- The expansion of MORE's franchise grants certain powers and benefits not normally found in other legislative franchises, violating the petitioners' right to equal protection of the laws.
 - MORE was given unfair advantage of expropriation and equipment not available to petitioners / affecting petitioners.
 - Petitioners are subject to higher requirements of the National Electrification Association (NEA).

Exception to hierarchy of Courts - the presence of genuine issues of constitutionality and involvement of questions on public welfare, advancement of public policy, and broader interest of justice.

ISSUE 1

Main – Substantive	W/N petitioners have exclusive franchise over its coverage areas	NO
PETITIONER's ARGUMENT: The expansion of MORE's franchise area will amend the petitioners' respective franchises, resulting in		

wasteful competition and an increase in electricity prices to the damage & prejudice of consumers.

RULING and RATIO DECIDENDI:

- Exclusive franchises are not sanctioned by the Constitution, as stated by Sec. 11, Art. XII. Moreover, franchises are subject to amendment, alteration, or repeal by the Congress when the common good so requires.
 - 1935, 1973, and 1987 Constitutions all expressly prohibit exclusivity of franchise.
 - When the law is clear, there is nothing for the courts to do but to apply it.
 - franchises for the operation of a public utility cannot be exclusive in character.
- In the case of MERALCO in *Alyansa Para sa Bagong Pilipinas v. Energy Regulatory* → In some situations, non-exclusivity may be a good right for the public — while exclusivity would be right for other situations.
 - In the case of power generation, this may be a natural activity that can only be generated by one company, in which case, prohibiting exclusive franchise may not be in the public interest.
 - However, MERALCO's status as a monopoly does not preclude Congress from awarding other franchises to accommodate future competition that may lead to better public service and public good.
- Sec. 41 of the NEA generally prohibits the grant of franchise to any other person within any area/portion for which a cooperative holds a franchise (with exceptions) BUT the Constitution must always prevail.
 - In case of any conflict between the Constitution and a statute, the latter yields to the former.

LEGAL BASES

Sec. 11, Art. XII of the 1987 Constitution - *No franchise, certificate, or any other form of authorization for the operation of a public utility shall be granted except to citizens of the Philippines or to corporations or associations organized under the laws of the Philippines at least sixty per centum of whose capital is owned by such citizens, nor shall such franchise, certificate, or authorization be exclusive in character or for a longer period than fifty years. Neither shall any such franchise or right be granted except under the condition that it shall be subject to amendment, alteration, or repeal by the Congress when the common good so requires.*

Sec. 41(c) of the R.A. 6038 or the National Electrification Administration Act or NEA (overridden by the Constitution in this case)

No franchise for service shall be granted to any other person within any area or portion for which a cooperative holds a franchise unless and except to the extent that (1) the cooperative's board consents thereto by resolution duly adopted or (2) the Public Service Commission determines that the cooperative is unable within a reasonable time, or is unwilling, to supply service therein in accordance with the provisions of section 37.

ISSUE 2

Main – Substantive	W/N there was a violation of petitioners' right to due process	NO
Petitioner - Substantive due process of legitimate government purpose / compelling government purpose was not met since there is no common good served by R.A. 11918. ○ No need for the franchise expansion since the petitioners are already providing impeccable service.		
RULING and RATIO DECIDENDI:		
• Congress exhaustively discussed the issues relevant to their determination of common good during the deliberations for R.A. 11918. ○ In the final analysis, however, MORE was awarded a franchise in the areas that overlap with the coverage of petitioners' to promote a healthy competitive environment in the Province of Iloilo, especially considering the former's capability of offering lower rates than petitioners ○ Despite the possible rate increase for ILECO, there are ways for them to minimize their costs to minimize generation rates to their remaining customers. ■ They can sell/lease their distribution assets and the expansion area to MORE. ■ They can enter into a joint venture or technical service agreement and let MORE help them reduce		

their operating costs.

- Petitioners' franchise will expire in a few decades – until then, without competition, they can easily dictate the price of electricity on a take-it-or-leave-it basis and consumers have no other choice.
- Ultimately, a franchise is a privilege granted by the State. It is not an exclusive private property of the franchisee and must yield to serve the common good, as may be determined by Congress as the people's elected representatives. In the first place, the very essence of a franchise is to serve public welfare. Here, Congress decided that a healthy competition will improve public Welfare in the Province of Iloilo

ISSUE 3

Main – Substantive	W/N there was an infringement of non-impairment of contracts	NO
--------------------	--	----

Petitioner - Impairment of contracts → petitioners have supply contracts with generation companies where they are obliged to pay regardless of whether these capacities are used.

- Reduction in the petitioners' consumers will result in less energy sales, leading to decreased revenues; nonetheless, the petitioners will be obliged to pay their minimum contracted capacities.
- This will lead to stranded contract costs. Thus, petitioners are at an imminent risk of defaulting on their contracts.

RULING and RATIO DECIDENDI:

- The principle of non-impairment of contracts cannot prevail over the exercise of police power
- There is an impairment if a subsequent law changes the terms between the parties, imposes new conditions, dispenses with those agreed upon, or withdraws remedies for the enforcement of the rights of the parties (*interpretation of impairment of contracts under Sec. 10, Art. III of the 1987 Constitution*).
- Petitioners failed to prove how the enactment of R.A. 11918 changed the terms of their contracts with their respective suppliers.
- Petitioners still being bound by their alleged take-or-pay provisions shows that their power supply contracts & electric service agreements have not been impaired and that they remain as valid.
- The provision of Sec. 23 of R.A. 9136 or the EPIRA now begs the question as to why petitioners, in contracting their power requirements, entered into take-or-pay provisions, which are onerous to the interests of their consumers; since the Petitioners must distribute at the least cost manner..
 - EPIRA empowers the Energy Regulatory Commission, after due hearing, to stop and redress any unfair trade practice that harms the interests of the consumers.
- Assuming that the assailed act did change the terms of their respective contracts, the State may validly limit the non-impairment clause in exercise of its police power.
 - Police power is superior to property rights, including non-impairment of contracts.
 - *Carlos Superdrug Corp v. Department of Social Welfare and Development* - we declared that when the conditions so demand, as determined by legislature, property rights must bow to the primacy of police power because property rights must yield to general welfare.
 - This is especially true in cases of a franchise, which partakes of the nature of a grant, which, in turn, is beyond the purview of the non impairment clause of the Constitution.

In other words, petitioner cannot validly prevent Congress from amending its franchise on account of its existing contracts

LEGAL BASES

Sec. 10, Art. III of the 1987 Constitution - No law impairing the obligation of contracts shall be passed.

Sec. 23 of R.A. 9136 or the Electric Power Industry Reform Act of 2001 (EPIRA)

(3) *A distribution utility shall have the obligation to supply electricity in the least cost manner to its captive market, subject to the collection of retail rate duly approved by the ERC.*

(4) *To achieve economies of scale in utility operations, distribution utilities may, after due notice and public hearing, pursue structural and operational reforms such as but not limited to, joint actions between or among the distribution utilities, subject to the guidelines issued by the ERC. Such joint actions shall result in improved efficiencies, reliability of service, reduction of costs and compliance to the performance standards prescribed in the IRR of this Act.*

ISSUE 4

Side – Procedural	W/N PHILRECA's motion to intervene may be approved	NO
RULING and RATIO DECIDENDI:		
- Intervention may be permitted by the court if they possess legal interest in the matter of litigation or in the success of either of the parties, or an interest against both; or when he is so situated as to be adversely affected by a distribution or other disposition of property. - Permission to intervene is subject to the sound discretion of the court, considering whether the intervention will unduly delay/prejudice the adjudication of the rights of the original parties or whether the intervenor's rights may be fully protected in a separate proceeding. - PHILRECA's interest is not of a direct and immediate character because it is merely hinged on the rights of its members who are already petitioners in this case. - PHILRECA merely reiterated the arguments raised by petitioners, so their intervention will serve no other purpose but delay the resolution of the case.		
FINAL DECISION	ACCORDINGLY, in view of the foregoing, the instant Petition is hereby DISMISSED.	

SEPARATE OPINION

LEONEN, J, dissenting	1: Violates Article XII, Section 11 of the Consti → expansion of More Electric's franchise area to include those already under the petitioners' is <u>not for the common good</u>. "Common good" - benefits <i>all</i> members of a given community - Petitioners' franchise areas no longer exclusive = franchises were amended. To be amended, "common good" standard should apply—it was not met - Importance of exclusive franchise areas and why it leads to the common good - Electricity distribution is more economically efficient if one firm provides the service to the entire market (economies of scale). This forms natural monopolies (aka regulated monopolies protected by the Consti) - Acknowledged by RA 9136, RA 11659, <i>Milwaukee Industries Corporation v. Pampanga III Electric Cooperative, Inc.</i> - Protects consumer from exorbitant or unconscionable charges (<i>Alyansa Para Sa Bagong Pilipinas, et al. v. Energy Regulatory Commission</i>) - Economically infeasible to introduce competition in some industries (analogy: tollway operator constructs expressway, rival tollway operator can't just construct expressway in same area) (<i>New Vision Satellite Network, Inc. v. The Provincial Government of Cagayan</i>) - Ponencia says "More Electric charges lower electricity prices than petitioners." - Response: The savings of those who transfer to More Electric is just 26-42 pesos per month. These are miniscule considering that ME didn't create a distribution system in Iloilo and thus should have much lower costs to pass onto consumers. ME is piggyback-riding on the existing infrastructure of petitioners. Thus, reduced prices are short-term, electricity prices will likely rise once ME finishes duplicating distribution infra. 2: Constitution allows for the grant of an exclusive franchise in the case of natural monopolies - Exception exists but is found in another provision of the Consti. If Article XII, Section 11 of the Constitution is read in conjunction with Article XII, Section 19, an allowance for the grant of exclusive franchises may be made without offending the plain words used in the former - Article XII, Section 19 provides: SECTION 19. The State shall <u>regulate</u> or prohibit monopolies when the public interest so requires. No combinations in restraint of trade or unfair competition shall be allowed - Regulate = instances where Consti allows for monopoly - If the grant of exclusive franchises was absolutely prohibited by Consti, Congress wouldn't have
--------------------------	---

enacted multiple laws (PD 269, RA 9136, RA 11659) that allowed for exclusive franchises. Congress is presumed to enact laws that are in accord with the Constitution.

3: Impedes the equity participation in public utilities by the general public

- Consti bases
 - Article XII, Section 1 - "Goals of national economy are more equitable distribution of opportunities, income, and wealth"
 - Article XII, Section 6 - "use of property bears a social function," right of corps to own, establish, and operate is "subject to the duty of the State to promote distributive justice and to intervene when the common good so requires."
- Here, the State gives opportunities to the already powerful, forcing other businesses out → ME is controlled by same person controlling a water utility, among others

4: Petitioners' right to procedural due process was also violated

- Petitioners were not given the opportunity to be heard by Congress before it granted an expanded franchise to More Electric, especially since it greatly affects their franchise terms, market share, and business viability.

5: Impaired petitioners' obligations under their respective contracts with power generation firms

- Article III, Section 10 of the Constitution provides that "[n]o law impairing the obligation of contracts shall be passed."
- Doesn't need to be literal change or new conditions → contract diminished in some way, the non-impairment clause is considered violated
- Allowing ME to operate, dividing market, and lowering demand for petitioners' electricity → impaired petitioners' contracts with generation companies (fixed offtake price but less customers to shoulder the cost)

6: Section 1 of Republic Act No. 11918 also violates the equal protection clause because it grants More Electric benefits that aren't granted to others

- More Electric is given extraordinary eminent domain powers → allowed to conduct its operations at the expense of those who actually had the distribution system put up in Iloilo
- Expropriating properties that are already devoted to electricity distribution is not the "public use" required for the valid exercise of the power of expropriation

7: The Philippine Rural Electric Cooperatives Association should have been allowed to intervene

- Enactment of Republic Act No. 11918 negatively affected the welfare and interests of petitioners, which are members of the Philippine Rural Electric Cooperatives Association → the latter should be allowed to intervene on behalf of petitioners.

V. The Branches of Government: A. Congress

1. Composition, Qualification and Term (House of Representatives)	15 of 15 digested
2. Election (Special Election)	2 of 2 digested
3. Organization and Sessions	15 of 15 digested
4. Salaries, Privileges and Disqualifications	10 of 10 digested
5. Electoral Tribunals	8 of 8 digested
6. Commission on Appointments	4 of 4 digested
7. Powers of Congress	3 of 3 digested
8. Legislative Process: Titles of Bills	3 of 3 digested
8. Legislative Process: Appropriation Laws	11 of 11 digested
8. Legislative Process: Tax Laws	4 of 4 digested

Atong Paglaum, Inc. v. Commission on Elections

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Atong Paglaum, Inc., represented by its President, Mr. Alan Igot v. Commission on Elections* (consolidated with 53 other petitions)
- **Citation:** G.R. No. 203766 (and G.R. Nos. 203818-19, 203922, 203936, 203958, 203960, 203976, 203981, 204002, 204094, 204100, et al.), April 2, 2013 (En Banc)
- **Ponente:** Carpio, J.

CHRONOLOGICAL MATERIAL FACTS

1. **Enactment of R.A. No. 7941 (March 3, 1995):** Congress enacted Republic Act No. 7941 (The Party-List System Act) to implement Article VI, Section 5 of the 1987 Constitution, providing for the registration of national, regional, and sectoral parties and the allocation of party-list seats in the House of Representatives.
2. **Prior Judicial Doctrines (*Ang Bagong Bayani* & *BANAT*):**
 - In *Ang Bagong Bayani-OFW Labor Party v. COMELEC* (2001), the Supreme Court ruled that the party-list system was created exclusively for the "marginalized and underrepresented," holding that even political parties must represent marginalized and underrepresented sectors and that nominees must physically belong to those sectors.
 - In *BANAT v. COMELEC* (2009), the Supreme Court extended this doctrine by officially excluding major political parties from participating in party-list elections, even through their sectoral wings.
3. **Registration and Manifestations for the May 13, 2013 Elections:** Pursuant to R.A. No. 7941 and COMELEC Resolution Nos. 9366 and 9531, approximately 280 groups and organizations registered or manifested their intent to participate in the May 13, 2013 party-list elections [32, 119–120].
4. **Issuance of COMELEC Resolution No. 9513 (August 2, 2012):** To purge non-compliant groups, the COMELEC En Banc promulgated Resolution No. 9513, establishing two procedural mechanisms:
 - *Automatic Review:* Direct COMELEC En Banc review of Division resolutions granting new petitions for registration, suspending Rule 19 of the COMELEC Rules of Procedure requiring motions for reconsideration.
 - *Summary Evidentiary Hearings:* Direct COMELEC En Banc summary hearings to determine whether existing, registered party-list groups continually complied with R.A. No. 7941 and the *Ang Bagong Bayani* guidelines.
5. **Disqualification of 52 Party-List Groups:** Following automatic reviews and summary hearings, the COMELEC issued various resolutions disqualifying 52 party-list groups and organizations. COMELEC cancelled existing registrations or denied new applications on the grounds that:
 - They did not represent "marginalized and underrepresented" sectors (e.g., AKB representing Bicolanos; 1-CARE representing rural energy consumers; APEC representing the electric power industry; Manila Teachers as a savings and loan association; ASIN representing artists) [32–34, 124–129, 143–144].
 - Their nominees were not "marginalized" or did not physically belong to the sector (e.g., nominees who were lawyers, doctors, businessmen, or former government officials) [32–34, 124–129].
 - They represented sectors with conflicting interests (e.g., drivers and operators combined under 1-UTAK and Pasang Masda).
 - They failed to establish an adequate track record or constituency [32–34, 148, 150].
6. **Consolidation of Petitions:** 52 disqualified party-list groups filed 54 consolidated petitions for certiorari and prohibition before the Supreme Court challenging the COMELEC resolutions. The Supreme Court issued Status Quo Ante Orders (SQAOs) and mandatory injunctions directing COMELEC to include 41 of the petitioners on the official ballot pending resolution.

● PROCEDURAL HISTORY

1. **Summary Evidentiary Proceedings before COMELEC En Banc:** COMELEC issued resolutions cancelling or denying the accreditation of 52 party-list groups without prior division-level hearing or motion for reconsideration, relying on Resolution No. 9513 [32, 36, 113, 123–124].
 2. **Consolidated Special Civil Actions in the Supreme Court:** Petitioners filed original actions for Certiorari and Prohibition under Rule 64, in relation to Rule 65, before the Supreme Court.
 3. **Office of the Solicitor General (OSG) Comment:** The OSG defended COMELEC, arguing that: (a) COMELEC possesses constitutional administrative power to enforce election laws; (b) summary hearings complied with due process; and (c) COMELEC faithfully applied statutory grounds and the 8-point guidelines of *Ang Bagong Bayani* [153–154].
-

● PARTIES' MATERIAL ARGUMENTS

- **Petitioners (Atong Paglaum, AKB, 1-CARE, APEC, ANAD, Senior Citizens, et al.):**
 1. **Procedural Violation:** COMELEC En Banc violated Article IX-C, Section 3 of the Constitution by deciding registration and cancellation cases in the first instance without a division ruling and without requiring a Motion for Reconsideration, invalidly suspending its own procedural rules.
 2. **Violation of Due Process and Res Judicata:** Summary hearings denied petitioners a full opportunity to present evidence, and cancelling previously accredited groups violated *res judicata*.
 3. **Grave Abuse of Discretion on Substantive Grounds:** COMELEC misapplied *Ang Bagong Bayani* by imposing an impossible standard—requiring all regional and cause-oriented groups to represent economically destitute sectors, disqualifying advocate nominees who were not personally destitute, and penalizing an entire party-list group for the disqualification of a single nominee.
 - **Respondent (COMELEC via the OSG):**
 1. **Valid Exercise of Administrative Power:** COMELEC's authority to verify qualifications is a pure administrative function under Article IX-C, Section 2(1) & (5) of the Constitution [153–154].
 2. **Rule Suspension Allowed:** Section 4, Rule 1 of the COMELEC Rules authorizes the suspension of procedural rules in the interest of justice and for the speedy disposition of pre-election cases.
 3. **Faithful Execution of Binding Precedent:** COMELEC merely applied the binding parameters mandated by the Supreme Court in *Ang Bagong Bayani* and *BANAT*, which restricted the party-list system exclusively to marginalized and underrepresented sectors [42, 61–63, 154].
-

● ISSUES

1. **Procedural Issue:** Whether the COMELEC En Banc committed grave abuse of discretion in promulgating Resolution No. 9513 and conducting automatic reviews and summary evidentiary hearings without requiring a prior Division ruling and Motion for Reconsideration.
 2. **Substantive Issue 1:** Whether the COMELEC committed grave abuse of discretion in disqualifying petitioners under the criteria laid down in *Ang Bagong Bayani* and *BANAT*.
 3. **Substantive Issue 2:** Whether the criteria for participating in the party-list system established in *Ang Bagong Bayani* and *BANAT* conform to the 1987 Constitution and R.A. No. 7941, or whether new parameters must be promulgated.
-

🌸 HOLDINGS AND CONTROLLING REASONING

1. **On the Procedural Issue: NO.** COMELEC did NOT commit grave abuse of discretion in issuing Resolution No. 9513.

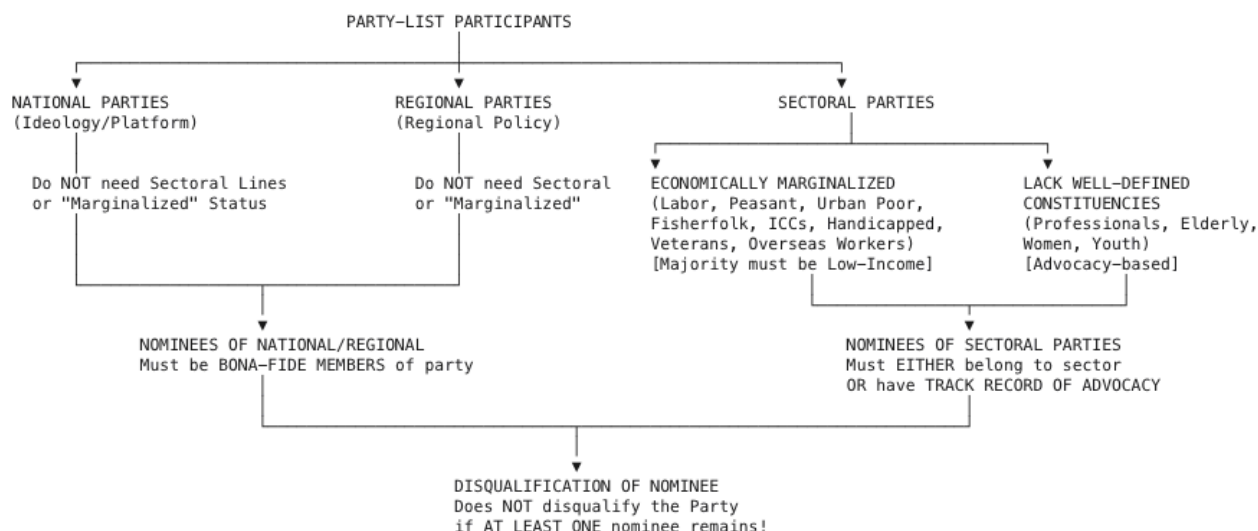
- **Administrative Enforcement Authority:** Under Article IX-C, Section 2(1) and (5) of the Constitution, COMELEC possesses broad administrative authority to enforce election laws and register political parties. Assessing whether registered groups continually satisfy statutory requirements is an administrative function, not a purely judicial election contest.
- **Validity of Rule Suspension:** Under Section 4, Rule 1 of the COMELEC Rules of Procedure, COMELEC may validly suspend its internal rules (including Rule 19 on Motions for Reconsideration) to obtain a speedy disposition of pre-election matters before the printing of ballots.
- **Due Process Satisfied:** Petitioners were given notice and summary evidentiary hearings where they presented witnesses and documentary proof; thus, procedural due process was observed.

2. On the Substantive Issue & Overturning of *Ang Bagong Bayani* / *BANAT*: COMELEC did NOT commit grave abuse of discretion under prevailing rules, BUT *Ang Bagong Bayani* and *BANAT* are DECLARED CONTRARY to the Constitution and R.A. No. 7941 and are OVERTURNED [1, 10, 43, 49, 59, 62–63].

- **No Grave Abuse by COMELEC:** COMELEC cannot be faulted or held guilty of grave abuse of discretion for faithfully following existing Supreme Court doctrines (*Ang Bagong Bayani* and *BANAT*) at the time it issued the disqualification orders.
- **Textual and Structural Errors of *Ang Bagong Bayani* and *BANAT*:** The Supreme Court En Banc held that *Ang Bagong Bayani* and *BANAT* engaged in improper "socio-political engineering" and judicial legislation that violated the express text and intent of the Constitution and R.A. No. 7941:
 - **a. Textual Command of Article VI, Section 5(1):** The Constitution explicitly ordains a House composed of district representatives and those elected through "a party-list system of registered national, regional, and sectoral parties or organizations." The commas separating "national," "regional," and "sectoral" prove that national and regional parties are **separate and distinct** from sectoral parties. Had the framers intended all groups to be sectoral, they would have written "national and regional sectoral parties".
 - **b. Rejection of Exclusive Sectoral Representation:** The Constitutional Commission explicitly voted down (19-22) a proposal to reserve permanent seats exclusively for sectoral parties or to make the party-list system exclusively sectoral. Reserved sectoral seats were mandated **only for the first three consecutive terms** after ratification under Section 5(2) [47–48].
 - **c. "Marginalized and Underrepresented" applies ONLY to specific economic sectors, NOT to national/regional or cause-oriented parties:**
 - **National and Regional Parties:** Ideology-based and cause-oriented political parties do **not** need to represent "marginalized and underrepresented" sectors [1, 51–52, 64]. To require all political parties to be marginalized deprives ideology-based parties (who cannot win district races) of parliamentary participation, leaving armed struggle as their only option.
 - **Statutory Sectoral Classification:** Section 5 of R.A. No. 7941 lists two categories of sectors: (1) those that are inherently economically marginalized (labor, peasant, fisherfolk, urban poor, ICCs, handicapped, veterans, overseas workers); and (2) those that **lack well-defined political constituencies** (professionals, elderly, women, youth). Professionals, elderly, women, and youth are **not** by definition economically marginalized, but they lack well-defined political constituencies.
 - **NSCB Low-Income Standard:** For economically marginalized sectors, "marginalized and underrepresented" refers to those falling in the low-income group as classified by the National Statistical Coordination Board (NSCB). Belonging to the sector does not mean one must "wallow in poverty, destitution, or infirmity" — falling below the middle class is sufficient.
 - **Single Mention in Statute:** The phrase "marginalized and underrepresented" appears only **once** in R.A. No. 7941 (Section 2, Declaration of Policy). None of the 8 statutory grounds for refusal/cancellation in Section 6 mentions non-representation of the marginalized [54–55].
 - **d. Participation of Political Parties & Major Parties:**
 - Political parties (national or regional) can participate directly in the party-list system provided they register under the system and do **not** field candidates in legislative district elections.
 - Major political parties that field candidates in district elections **can still participate** in party-list elections, **but ONLY through their sectoral wings** that separately register as independent sectoral parties linked via coalition.
 - **e. Qualification of Nominees:**
 - Nominees of **national and regional parties** must be *bona-fide members* of such parties.
 - Nominees of **sectoral parties** (whether marginalized or lacking political constituencies) either must: (1) belong to their respective sector; **OR** (2) have a **track record of advocacy** for the sector represented.

- Disqualification of an individual nominee does **not** automatically disqualify the party-list group, provided the party has at least **one remaining qualified nominee**.

● THE 6 NEW PARAMETERS OF THE PARTY-LIST SYSTEM



1. **Three distinct groups may participate:** (1) national parties or organizations, (2) regional parties or organizations, and (3) sectoral parties or organizations.
2. **National and regional parties/organizations** do **not** need to organize along sectoral lines and do **not** need to represent any "marginalized and underrepresented" sector.
3. **Political parties** may participate provided they register under the party-list system and do **not** field candidates in legislative district elections. Major political parties fielding district candidates can participate **only through their sectoral wings** that separately register under the party-list system as independent sectoral parties linked via coalition.
4. **Sectoral parties/organizations** may either be "**marginalized and underrepresented**" (labor, peasant, fisherfolk, urban poor, indigenous cultural communities, handicapped, veterans, overseas workers) **OR** lacking in "**well-defined political constituencies**" (professionals, elderly, women, youth). It is enough that their principal advocacy pertains to the special interest and concerns of their sector.
5. **Majority membership and nominee qualifications:** A majority of the members of a sectoral party must belong to the sector. Nominees of sectoral parties must **either belong to their respective sectors OR must have a track record of advocacy** for their sector. Nominees of national and regional parties must be **bona-fide members** of such parties.
6. **Disqualification of nominees:** National, regional, and sectoral parties shall **not be disqualified if some of their nominees are disqualified, provided that they have at least one nominee who remains qualified**.

♥ DISPOSITION

- **Ruling:** All 54 petitions are **GRANTED**.
- **Remand Directive:** The 13 petitions granted SQAOs without mandatory injunctions are **REMANDED** to COMELEC solely to determine whether they qualify to register under the new parameters (without participating in the May 13, 2013 elections). The 41 petitions granted mandatory ballot inclusion are **REMANDED** to COMELEC to determine whether they qualify to register and participate in the May 13, 2013 elections under the new parameters. COMELEC may conduct summary evidentiary hearings for this purpose.
- **Execution:** Decision declared **immediately executory**.

SEPARATE OPINIONS

1. Dissenting Opinion of Chief Justice Maria Lourdes P. A. Sereno

- **Social Justice Core:** The party-list system is primarily a tool for social justice designed to empower the poor and disadvantaged.
- **Universal Application of "Marginalized":** "Marginalized and underrepresented" in Section 2 of R.A. No. 7941 qualifies national, regional, AND sectoral parties alike [89–91].
- **Danger of Oligarchy:** Allowing well-entrenched, wealthy political parties and non-marginalized organizations to enter the party-list system permits the powerful to invade protected space and drown out the weak, destroying plurality with a heart.

3. Concurring and Dissenting Opinion of Justice Marvic M. V. F. Leonen

- **Concurrence on Advocates:** Agrees that nominees do not need to be destitute and may qualify based on a track record of advocacy. Agrees that nominee disqualification should not automatically destroy the party.
- **Dissent on Opening to Non-Marginalized National Parties:** Dissents from opening national/regional parties to groups that do not represent marginalized sectors, warning that removing the "marginalized" filter allows traditional elites to hijack the party-list system [155, 186–188].

4. Concurring and Dissenting Opinion of Justice Bienvenido L. Reyes

- **Limited Remand:** Maintained that party-list remains a social justice vehicle. Argued that a blanket remand of all 54 petitions was unnecessary; only 10 petitions (where disqualification was based solely on nominee grounds) or 21 petitions should be remanded [109, 111–112, 208–210].

RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Atong Paglaum v. COMELEC* (2013), the COMELEC disqualified 52 party-list groups for the May 2013 elections under summary hearings and automatic reviews pursuant to Resolution No. 9513, applying the *Ang Bagong Bayani* and *BANAT* doctrines that restricted party-list participation exclusively to economically marginalized sectors. 52 groups filed 54 consolidated petitions before the Supreme Court.

The Supreme Court En Banc, through Justice Carpio, GRANTED the petitions and OVERTURNED *Ang Bagong Bayani* and *BANAT*. The Court held: (1) COMELEC did not commit grave abuse of discretion in issuing Resolution No. 9513 or applying existing precedents; (2) However, *Ang Bagong Bayani* and *BANAT* violated Art. VI, Sec. 5 by misinterpreting the party-list system as exclusively sectoral and marginalized; (3) Under the 6 NEW PARAMETERS: (a) National, regional, and sectoral parties may participate; (b) National and regional parties do NOT need to represent marginalized sectors or organize along sectoral lines; (c) Political parties may participate if they field no district candidates, while major parties can participate through separately registered sectoral wings; (d) Sectoral parties can either be economically marginalized OR lacking well-defined political constituencies (like professionals, women, youth); (e) Sectoral nominees must belong to the sector OR have a track record of advocacy, while national party nominees must be bona-fide members; and (f) A party is not disqualified if at least one nominee remains qualified."* [1, 10, 48, 51, 63–66, 68]

One-Sentence Doctrine Anchor

The party-list system is open to national, regional, and sectoral parties, wherein national and regional parties need not be organized along sectoral lines or represent marginalized sectors, and sectoral nominees may qualify based on a track record of advocacy. [1, 2, 5, 64–66]

Atong Paglaum v. COMELEC (2013)

Topic Subtopic	Branches of the Government - Congress Power, Composition, Qualification and Term of Office Main Opinion	GR No. & Ponente	203766 & J. Carpio
Petitioner/s	54 petitioners	Respondent/s	Commission on Elections
Doctrine	The party-list system is intended to democratize political power by giving political parties that cannot win in legislative district elections a chance to win seats in the House of Representatives. The framers of the 1987 Constitution intended the party-list system to include not only sectoral parties but also non-sectoral parties.		

FACTS

- RA 7941 (Party-List System Act) implemented the constitutional party-list system.
 - COMELEC issued Resolutions Nos. 9366 and 9531 for the 2013 elections, wherein around 280 groups/organizations manifested their intent to participate.
- COMELEC denied registration/participation to 13 petitioners, mainly for failure to represent a marginalized/underrepresented sector; failure to establish track record; failure to comply with RA 7941 and *Ang Bagong Bayani* criteria..
 - 13 petitioners were unable to obtain mandatory injunctions → excluded from the ballot printing.
- COMELEC also conducted summary evidentiary hearings under Resolution No. 9513 to determine compliance with RA 7941 and *Ang Bagong Bayani*.
 - Numerous petitioners were similarly disqualified for similar grounds, but the 39 petitioners obtained mandatory injunctions → allowed to participate/included in the ballot.
- This Court decision governs only the 54 consolidated petitions that were granted Status Quo Ante Orders by the Supreme Court.

ISSUE 1

Main – Substantive	W/N COMELEC committed grave abuse of discretion in disqualifying petitioners	NO
--------------------	--	----

RULING and RATIO DECIDENDI:

- COMELEC followed the then-prevailing jurisprudence in determining qualification.
 - *Ang Bagong Bayani v. COMELEC* → prescribed criteria for qualifying as party-list
 - #1 → political party must represent the marginalized & underrepresented groups identified in Sec. 5 of RA 7941
 - #7 → not only the candidate party or organization must represent the marginalized & underrepresented groups; so also must its nominees
 - *BANAT v. COMELEC* → excluded major political parties from participating in party-list elections, abandoning even *Ang Bagong Bayani's* approval of political parties' participation
- Court nonetheless found that the criteria used were inconsistent with the Constitution and RA 7941, so the petitions were still granted and cases were remanded to COMELEC under the new parameters.

Why the Ang Bagong Bayani Criteria Were Wrong

- The Constitutional Framers considered reserving party-list seats permanently for certain sectors, but this proposal was outvoted.
 - Instead, they allowed reservation for sectoral representatives only during the first 3 consecutive terms after the ratification of the Constitution.
 - Framers expressly rejected making the party-list system exclusively sectoral → intended to allow both sectoral and non-sectoral parties
- Sec. 5(1), Art. VI of the 1987 Constitution
 - "... a party-list system of registered national, regional, and sectoral parties or organizations." with commas separating national + regional from sectoral

- If national/regional parties were required to be sectoral, the Constitution would have said "national and regional sectoral parties."
 - Thus, there are 3 separate groups: national, regional, sectoral
- Sec 5(2), Art. VI of the 1987 Constitution
 - For the first 3 consecutive terms after the ratification, one-half of party-list seats were reserved for representatives from sectors such as the following:
 - Labor, peasant, urban poor, indigenous cultural communities, women, youth, and such other sectors as may be provided by law, except the religious sector.
 - Other half naturally available to non-sectoral party-list representatives.
 - After the first 3 terms → party-list system fully open to national, regional and sectoral parties
- RA 7941 - the law that implements the party-list system as prescribed in the Constitution
 - Defines a "party" as either a "political party or a sectoral party" → clearly a political party is different from a sectoral party
 - Sec 3(c) → a political party "refers to an organized group of citizens advocating an ideology or platform, principles and policies for the general conduct of government"
 - Sec 3(d) → a "sectoral party refers to an organized group of citizens belonging to any of the sectors enumerated in Section 5 hereof whose principal advocacy pertains to the special interest and concerns of their sector"
 - To require national and regional parties to represent the "marginalized and underrepresented" sectors would exclude ideology-based and cause-oriented parties
 - Would leave them only with the option of armed struggle
 - Sec 5 → sectors including "labor, peasant, fisherfolk, urban poor, indigenous cultural communities, elderly, handicapped, women, youth, veterans, overseas workers, and professionals"
 - Not all are necessarily "marginalized and underrepresented" (i.e. professionals) → inclusion is not based on economic status
 - Sec. 6 → grounds for COMELEC to refuse or cancel the registration after due notice and hearing
 - Does not include the lack of marginalized and underrepresented sectors → no grounds to refuse or cancel registration on this basis
 - Sec 2 → mentions marginalized and underrepresented sectors, but it does not require that all parties must be marginalized and underrepresented.

LEGAL BASES

Section 5, Article VI, 1987 Constitution

(1) The House of Representatives shall be composed of not more than two hundred and fifty members, unless otherwise fixed by law, who shall be elected from legislative districts apportioned among the provinces, cities, and the Metropolitan Manila area in accordance with the number of their respective inhabitants, and on the basis of a uniform and progressive ratio, and those who, as provided by law, shall be elected through a party-list system of registered national, regional, and sectoral parties or organizations.

(2) The party-list representatives shall constitute twenty per centum of the total number of representatives including those under the party list. For three consecutive terms after the ratification of this Constitution, one-half of the seats allocated to party-list representatives shall be filled, as provided by law, by selection or election from the labor, peasant, urban poor, indigenous cultural communities, women, youth, and such other sectors as may be provided by law, except the religious sector.

Sections 7 and 8, Article IX-C, 1987 Constitution

Sec. 7. No votes cast in favor of a political party, organization, or coalition shall be valid, except for those registered under the party-list system as provided in this Constitution.

Sec. 8. Political parties, or organizations or coalitions registered under the party-list system, shall not be represented in the voters' registration boards, boards of election inspectors, boards of canvassers, or other similar bodies. However, they shall be entitled to appoint poll watchers in accordance with law.

ISSUE 2

Main Substantive	– W/N the criteria for participating in the party-list system laid down in <i>Ang Bagong Bayani</i> and <i>BANAT</i> should be applied by the COMELEC in the coming 13 May 2013 party-list elections	NO
------------------	--	----

RULING and RATIO DECIDENDI:

The Court remanded all present petitions to the COMELEC, with them now adhering to their newly established parameters for qualification.

1. Three different groups may participate in the party-list system → (1) national parties or organizations, (2) regional parties or organizations, and (3) sectoral parties or organizations.
2. National parties or organizations and regional parties or organizations do not need to organize along sectoral lines and do not need to represent any "marginalized & underrepresented" sector.
3. Political parties can participate in party-list elections provided they register under the party-list system and do not field candidates in legislative district elections.
 - a. A political party's sectoral wing is by itself an independent sectoral party, and is linked to a political party through a coalition.
4. Sectoral parties or organizations may either be "marginalized and underrepresented" or lacking in "well-defined political constituencies." It is enough that their principal advocacy pertains to the special interest and concerns of their sector.
5. A majority of the members of sectoral parties or organizations that represent the "marginalized & underrepresented" must belong to the "marginalized & underrepresented" sector they represent. Similarly, a majority of the members of sectoral parties or organizations that lack "well-defined political constituencies" must belong to the sector they represent.
 - a. The nominees of sectoral parties or organizations that represent the "marginalized and underrepresented," or that represent those who lack "well-defined political constituencies," either must belong to their respective sectors, or must have a track record of advocacy for their respective sectors.
 - b. The nominees of national and regional parties or organizations must be bona-fide members of such parties or organizations.
6. National, regional, and sectoral parties or organizations shall not be disqualified if some of their nominees are disqualified, provided that they have at least one nominee who remains qualified.

FINAL DECISION	WHEREFORE, all the present 54 petitions are GRANTED. The 13 petitions, which have been granted Status Quo Ante Orders but without mandatory injunction to include the names of petitioners in the printing of ballots, are remanded to the Commission on Elections only for determination whether petitioners are qualified to register under the party-list system under the parameters prescribed in this Decision but they shall not participate in the 13 May 2013 party-list elections. The 41 petitions, which have been granted mandatory injunctions to include the names of petitioners in the printing of ballots, are remanded to the Commission on Elections for determination whether petitioners are qualified to register under the party-list system and to participate in the 13 May 2013 party-list elections under the parameters prescribed in this Decision. The Commission on Elections may conduct summary evidentiary hearings for this purpose. This Decision is immediately executory.
----------------	--

SEPARATE OPINION/S

SERENO, CJ, Concurring and Dissenting	Dissents with the ponencia's stand on the issue • The party-list system is primarily a tool for social justice. ◦ The <i>ponencia</i> may have further marginalized those already marginalized and underrepresented. ◦ In the guise of political plurality, it allows national and regional parties/organizations to invade what should be a constitutionally and statutorily protected space. • The party-list system is not about mere political plurality, but "plurality with a heart for
---	--

the poor and disadvantaged.”

- RA 7941 and the 1987 Constitution must be read within the historical context of social injustice suffered by Filipinos, particularly the injustices that, together with the blood spilled during Martial Law, ripened into the 1986 Revolution.
- The 1987 Constitution was born from this context and should therefore be interpreted with sensitivity to it.
- The Social Justice Article is the “heart” of the Constitution, reflecting its goal of reducing social, economic, and political inequalities.
 - The party-list provisions were intended to realize social justice in the political arena, particularly by giving weaker segments of society a means to overcome the advantages of more entrenched political parties.

Dissents with the second parameter’s application to national and regional parties or organizations

- All parties and organizations (whether national, regional, or sectoral) must be qualified as representing the “marginalized and underrepresented.”
 - Sec.2 of RA 7941 states that the party-list system seeks to enable Filipino citizens belonging to the marginalized and underrepresented sectors, organizations and parties to become members of the House.
 - Requiring national and regional parties/organizations to satisfy this standard does not make them sectoral parties → parties may be treated similarly without becoming identical.
- The party-list system was intended as a countervailing means for weaker segments of society to overcome the advantages of more entrenched & well-established political parties.
 - Under the ponencia’s second parameter, more entrenched parties and organizations could compete with weaker segments of society → “the very evil sought to be guarded against.”
- Dissent on the ponencia’s reasons for excluding the marginalized-and-underrepresented requirement from national & regional parties:
 - The fact that only 50% of the party-list seats were initially allocated to specified sectors does not necessarily mean the remaining 50% must be for non-marginalized sectors.
 - They could include other sectors, as well as national or regional parties/organizations, that are themselves marginalized and underrepresented.
 - Ideology-based or cause-oriented parties are not necessarily non-marginalized or underrepresented.
- The Court need not define “marginalized and underrepresented.”
 - It already constitutes a sufficient legislative standard to guide COMELEC.
 - COMELEC may determine its application through rules and regulations, subject to the limitation that it must not gravely abuse its discretion.
 - The concept is ever-evolving, because groups that are marginalized and underrepresented today may no longer be so later.
- The fact that “marginalized and underrepresented” appears only once in RA 7941 does not diminish its legal significance.
 - A legislative standard does not have to be expressly spelled out and may be implied from the policy and purpose of the law.
- Failure of national & regional parties to represent the marginalized & underrepresented can constitute a violation of the law under Sec. 6(5), RA 7941, which allows cancellation/refusal of registration when a party violates or fails to comply w/ laws.

Dissents with the fourth parameter’s distinction between “marginalized and underrepresented” and “lack well-defined political constituencies”.

- The ponencia’s 4th parameter treats the two as alternative:
 - Sectors may either be “marginalized and underrepresented” or lack

“well-defined political constituencies.”

- Sec. 2 of RA 7941 makes them cumulative requirements, not alternatives.
 - Sectoral parties/organizations must therefore both:
 - represent the marginalized and underrepresented
 - lack well-defined political constituencies
- The exact content of these concepts should be left to COMELEC, because they are ever-evolving legislative standards created to address social disparities and give effect to the Constitution’s social-justice policy.

Offers a qualified concurrence with the ponencia that an advocate may qualify as a nominee

- Sereno concurs that an advocate may qualify as a nominee, even if the nominee does not personally belong to the sector, provided that the advocate genuinely represents and has a track record of advancing the sector’s interests.
- However, regarding the ponencia’s 6th parameter:
 - Disqualification of a nominee should not automatically disqualify the party-list group, provided that:
 - it meets Guidelines Nos. 1-5 of *Ang Bagong Bayani*, or validly qualifies as a national, regional, or sectoral party under the ponencia’s new parameters;
 - at least one of its top three nominees remains qualified.
 - Disqualification of the party-list group based on the disqualification of a nominee is justified when the disqualification is based on material misrepresentation regarding the nominee’s qualifications.
 - Substitution is not allowed for a disqualified nominee;
 - Under Section 8, RA 7941, substitution is allowed only in cases of death, withdrawal, or incapacity.
- The top-three requirement is important because if all three are disqualified, the party could win a seat but have no qualified nominee to represent it, since disqualified nominees cannot simply be replaced through substitution.

Argues that only 9 of the 54 petitions should be remanded to COMELEC

- Remand should only cover party-list groups whose remaining ground for denial/cancellation involves the new parameters, particularly:
 - application of the “marginalized and underrepresented” standard; and/or
 - qualification of nominees, where the new parameters alter the applicable doctrine
- If the denial/cancellation rests on other grounds whose doctrine remains unchanged, remand is unnecessary.

Argues that the issuance of Resolution 9513 by COMELEC did not violate Section 3, Article IX-C of the Constitution

- Sec. 3, Article IX-C requires a prior motion for reconsideration before COMELEC En Banc may decide election cases.
 - COMELEC’s determination of whether a party is entitled to registration is an exercise of its administrative power of administering election laws.
 - Matters within COMELEC’s administrative jurisdiction may be acted upon directly by the COMELEC En Banc.
 - Quasi-judicial power involves the adjudication of rights with finality.
- Automatic review of COMELEC Division and summary evidentiary hearings were exercises of COMELEC’s administrative powers, not quasi-judicial powers.
- These proceedings were not “election cases” within Sec. 3 because the May 13, 2013 elections had not yet occurred.
 - *Panlilio v. COMELEC* → an election case concerns the ascertainment of the real candidate elected by the electorate; therefore, there must first be an election before there can be an election case.
 - No prior motion for reconsideration was required before COMELEC En Banc acted under Resolution No. 9513.

REYES, J,
*Concurring and
Dissenting*

Concurs with the procedural issue

- Registration is administrative, not quasi-judicial.
 - Sec. 3, Article IX-C's requirement of a motion for reconsideration applies to quasi-judicial proceedings/election cases, not administrative matters.
- For new registrations, COMELEC may suspend the motion-for-reconsideration requirement.
 - Sec 4, Rule 1 of the COMELEC Rules of Procedure allows suspension "in the interest of justice & in order to obtain speedy disposition of matters."
 - The same reasoning applies to previously registered/accredited parties:
 - Previous registration does not mean that a party remains qualified indefinitely.
 - Like a candidate who has run before, a previously registered party must still satisfy the requirements for the current election.
- Res judicata applies to judicial or quasi-judicial proceedings, not administrative proceedings. Party-list registration is administrative.
 - Quasi-judicial proceedings involve adjudication, such as COMELEC proceedings resolving electoral protests involving opposing parties.
- Resolution No. 9513 did not involve an "election case" requiring prior MR.

Dissents with the substantive issue

- The party-list system is a social justice tool, so to view it as a mechanism for electoral reform is to read RA 7941 and the Constitution superficially. The represented sector must be marginalized and underrepresented.
 - Not enough to make a mere claim of representing the sector → there must be evidence that the party is effectively representing it.
 - The majority of the party's members must also belong to the marginalized and underrepresented sector.
 - A mere association of individuals espousing shared "beliefs" and "advocacies" cannot qualify as a marginalized sector.
- Warning against opening the party-list system as a "free-for-all."
 - This could allow organizations to skirt the law by simply organizing themselves as political parties and taking advantage of a more lenient entry requirement.
- Political parties that seek to participate in the party-list system should be organized along sectoral lines, and not field candidates for legislative district elections.
- Relies on the Constitutional Commission deliberations concerning the danger that major political parties could dominate the party-list system & overwhelm sectoral groups.

On nominees and the treatment of the party-list group as distinct from its nominees

- A party-list group should be treated as separate and distinct from its nominees.
- Disqualification of a nominee should not automatically result in disqualification of the party-list group.
 - The group may still be able to fill its representation with qualified nominees.
 - If the party-list group itself is disqualified, the qualification of its nominees cannot save it.
- Support of remand where the only remaining issue concerns nominee qualifications, so COMELEC can reconsider the nominees under the clarification that an advocate may qualify → no need to remand all petitions
 - Reyes votes to remand only 9 petitions:
 - The remaining petitions should be dismissed because the other grounds relied upon by COMELEC were not changed by the ponencia.

	• The Court's review on certiorari remains limited to grave abuse of discretion, and COMELEC factual findings supported by substantial evidence are generally final and non-reviewable. ◦ None of the 52 petitioners is a major political party, so the ponencia's modification concerning the qualifications of major political parties does not justify remand on that ground.
--	---

Abang Lingkod Partylist v COMELEC (2013)

Topic Subtopic	Power, Composition, Qualification and Term of Office	GR No. & Ponente	206952, Reyes
Petitioner/s	Abang Lingkod Partylist	Respondent/s	COMELEC
Doctrine	Proof of track record is not a requirement for partylist registration		

FACTS

- ABANG LINGKOD → sectoral organization representing peasant farmers and fisherfolks
 - Registered under party-list system in 2009 & participated in May 2010 elections, but failed to obtain enough votes for a House seat
 - May 2012 → manifested intent to participate in the May 2013 elections
- COMELEC issued Resolution No. 9513, requiring previously registered party-list groups to undergo review of their continuing compliance with R.A. 7941 and *Ang Bagong Bayani*.
 - ABANG LINGKOD submitted documents to show continuing compliance.
- COMELEC En Banc cancelled their registration, on the grounds that it failed to establish track record in uplifting the marginalized/underrepresented + submitted edited photographs of activities + failed to show that nominees were marginalized/underrepresented or had activities aimed at improving their sector
 - ABANG LINGKOD sought a petition for certiorari.
 - This case was among the consolidated party-list cases resolved in *Atong Paglaum v. COMELEC*.
- May 10, 2013 → after their case was remanded to COMELEC for determination,, COMELEC again affirmed their cancellation of the party-list's registration.
 - No new summary evidentiary hearing → COMELEC cited the proximity of the May 13 elections
 - Maintained that ABANG LINGKOD failed to establish the aforementioned and that its programs were merely seasonal/sporadic.
 - COMELEC found that ABANG LINGKOD's name/logo had been superimposed on banners to make it appear that it participated in the activities → untruthful statements under Sec. 6 of RA 7941
- ABANG LINGKOD filed a motion for reconsideration but withdrew it because election results were already being canvassed, so they filed the present certiorari petition with the Supreme Court.

ISSUE 1

Main – Procedural	W/N Abang Lingkod was denied due process when the COMELEC affirmed its cancellation without summary evidentiary hearing	NO
--------------------------	--	-----------

RULING and RATIO DECIDENDI:

- Due process = opportunity to be heard / opportunity to explain one's side.
 - Formal hearing is not always essential.
 - What is prohibited = absolute lack of notice or hearing
- ABANG LINGKOD received notice of the review, filed its Manifestation of Intent, submitted pertinent documents, had hearings scheduled → sufficient opportunities to establish its qualifications
- Atong Paglaum said COMELEC “may” conduct summary evidentiary hearings, not “shall.”
 - No requirement for a hearing de novo → COMELEC could reassess the group's qualifications using the evidence already submitted. Additional hearing would have been “a superfluity.”

- ABANG LINGKOD also had the opportunity to seek reconsideration.
- Deprivation of due process can't be invoked where a party was given a chance to be heard.

LEGAL BASES

Ruling in Atong Paglaum:

WHEREFORE, all the present 54 petitions are GRANTED... The Commission on Elections **may** conduct summary evidentiary hearings for this purpose. This Decision is immediately executory.

ISSUE 2

Main – Substantive	W/N the COMELEC committed grave abuse of discretion in cancelling Abang Lingkod's registration.	YES
---------------------------	--	------------

RULING and RATIO DECIDENDI:

- COMELEC's cancellation was essentially based on ABANG LINGKOD's failure to prove a track record, but R.A. 7941 does not require proof of track record for registration.
 - *Ang Bagong Bayani* required groups to show by-laws, history, platform and track record, but *Atong Paglaum* already modified this framework.
- Sectoral parties/organizations are no longer required to adduce evidence of their track record. The following are already sufficient:
 - Principal advocacy pertains to the special interests/concerns of the sector
 - Ideals represented are geared toward the cause of the sector
- Track record remains relevant for a sectoral nominee who does not actually belong to the sector.
 - A nominee who actually belongs to the sector does not need a track record of advocacy.
- Court did not condone ABANG LINGKOD's conduct on the edited photos.
 - COMELEC's factual finding that the photographs were digitally altered was supported by substantial evidence and was not disturbed.
 - Since track record (in this case, the edited photographs) is no longer a qualification, the misrepresentation did not affect ABANG LINGKOD's qualification.
 - Could not serve as a ground for cancellation under Sec. 6(6) of R.A. 7941
- ABANG LINGKOD had 5 nominees: 3 farmers, 1 NGO worker, 1 employee
 - Three farmers actually belonged to the sector → not required to show a track record of advocacy.
- The fact that two nominees did not belong to the sector did not cancel the party-list group's registration.
 - Under *Atong Paglaum*, disqualification of some nominees ≠ automatic disqualification of party-list group → party-list group and nominees are separate and distinct

LEGAL BASES

RA 7941 (No requirement for Track Record)

Section 5. Registration. Any organized group of persons may register as a party, organization or coalition for purposes of the party-list system by filing with the COMELEC not later than ninety (90) days before the election a petition verified by its president or secretary stating its desire to participate in the party-list system as a national, regional or sectoral party or organization or a coalition of such parties or organizations, attaching thereto its constitution, by-laws, platform or program of government, list of officers, coalition agreement and other relevant information as the COMELEC may require: Provided, That the sectors shall include labor, peasant, fisherfolk, urban poor, indigenous cultural communities, elderly, handicapped, women, youth, veterans, overseas workers, and professionals.

Velasco v COMELEC

To disqualify a candidate due to material representation: first, there must be a deliberate attempt to mislead, misinform, or hide a fact that would render the candidate his/her disqualification.

Example: The age requirement for a senator is 35 years old. A, who is 34 years old, deliberately misled by putting he is 35 years old; thus, this is grounds for disqualification since if A did not misrepresented his age, he will be disqualified to run as senator.

In this case, Abang Lingkod partylist submitted edited photos to show their track record. However, track record is not a requirement; thus, the edited photos cannot be used as grounds to disqualify Abang Lingkod since it is not a requirement in the first place.

**FINAL
DECISION**

Wherefore, the petition is granted. Abang Linkod who garnered 260,000+ votes and is entitled to a seat in the House of Representative be declared as one of the winning partylist.

SEPARATE OPINION/S

**LEONEN,
dissenting**

- *Atong Paglaum* did not eliminate the requirement of genuineness & bona fide existence
 - Did not remove the legal requirement that party-list groups show their existence and genuineness.
 - All national, regional, and sectoral parties/organizations must show bona fide existence + sectoral organizations must additionally prove links w/ the sector they represent
- Track record / record of genuineness applies to the party, not merely nominees
 - The parties/organizations themselves, not only nominees, must have a concrete and verifiable record of political participation
 - This record helps establish that the party is genuine and not an “expediently created formation.”
- ABANG LINGKOD failed even under *Atong Paglaum*
 - ABANG LINGKOD claimed to represent peasant farmers, but it failed to show that its principal advocacy actually pertained to its special interests & concerns.
- Edited photographs were material + constituted falsification of documents
 - Photos were submitted to prove ABANG LINGKOD's continuing qualification, intended to make it appear that ABANG LINGKOD participated in the activities.
 - The falsified documents were not merely about an irrelevant track record → about genuineness and existence of the party-list group & its representation of the sector.
 - Submission of falsified documents = declaration of untruthful statements.
 - Sec. 6, R.A. 7941 expressly provides this as a ground for cancellation.
- *Certiorari* requires grave abuse of discretion, not merely an alleged error in judgment
 - COMELEC's findings were supported by substantial evidence → no grave abuse of discretion

Ang Ladlad LGBT Party v. Commission on Elections

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Ang Ladlad LGBT Party, represented herein by its Chair, Danton Remoto v. Commission on Elections*
- **Citation:** G.R. No. 190582, April 8, 2010 (En Banc)
- **Ponente:** Del Castillo, J.
- **Bench Composition:** Puno, C.J., Carpio, Velasco, Jr., Leonardo-de Castro, Bersamin, Villarama, Jr., Perez, and Mendoza, JJ., concurring; Abad, J., separate concurring opinion (joined by Carpio Morales, Nachura, and Peralta, JJ.); Corona, J., dissenting opinion (joined by Brion, J.).
- **Syllabus Relevance & Topic:**
 1. **Non-Establishment Clause (Art. III, Sec. 5):** Prohibition against using religious dogma, sacred texts (Bible, Koran), or religious morality to justify state action or exclude citizens from political participation; mandate of "benevolent neutrality" and secular justification [88–89].
 2. **Equal Protection Clause (Art. III, Sec. 1) & Rational Basis Review:** Moral disapproval of an unpopular minority is not a legitimate state interest; distinction between thought/orientation and overt illegal acts [92–94].
 3. **Freedom of Expression and Association (Art. III, Sec. 4 & 8):** Protection of controversial or disfavored viewpoints; right of marginalized groups to organize and advocate political platforms through the electoral process.
 4. **Party-List System (R.A. No. 7941):** Non-exclusivity of the statutory enumeration of marginalized sectors under Section 5.
 5. **International Law & "Soft Law":** Non-binding nature of Declarations/Principles like the Yogyakarta Principles versus binding treaties like UDHR and ICCPR.

CHRONOLOGICAL MATERIAL FACTS

1. **Organization and Initial Application (2006):** Ang Ladlad is an organization composed of men and women who identify as lesbians, gays, bisexuals, or transgendered individuals (LGBTs). In 2006, it first applied for registration under the party-list system, but COMELEC dismissed its application on the ground of lack of a substantial membership base.
2. **Re-Application for Party-List Accreditation (August 17, 2009):** Ang Ladlad filed a new petition for accreditation as a sectoral party under Republic Act No. 7941 for the May 2010 elections. It argued that the LGBT community is a marginalized and underrepresented sector victimized by societal discrimination, exclusion, and violence. It presented a nationwide membership base (16,100 individual members and 4,044 e-group members) and a platform advocating an anti-discrimination bill, micro-finance projects, care centers for elderly/abandoned LGBTs, and repeal of laws used for extortion/harassment [71, 86, 102–103].
3. **COMELEC Second Division Dismissal on Moral Grounds (November 11, 2009):** The COMELEC Second Division dismissed the petition on moral grounds. Citing the Bible (Genesis 19, Sodom and Gomorrah), the Koran, Civil Code Article 695 (nuisance defying morality), Civil Code Articles 1306/1409 (void contracts contrary to morals), and Revised Penal Code (RPC) Article 201 (immoral doctrines and indecent shows), COMELEC ruled that Ang Ladlad advocated immoral doctrines and exposed the youth to moral degradation [72–73].
4. **COMELEC En Banc Affirmance (December 16, 2009):** On Motion for Reconsideration, the COMELEC En Banc tied 3-3. COMELEC Chairman Melo broke the tie by voting to deny accreditation. The Majority Opinion asserted that: (a) LGBT sexual orientation *per se* does not benefit the nation; (b) US jurisprudence does not recognize LGBTs as a suspect class or homosexuality as a fundamental right; (c) public morals are grounded on 500 years of Christian and Muslim upbringing in the Philippines; and (d) consensual gay/lesbian relationships collide with RPC Article 201 and Civil Code Article 694 [75–79].
5. **Office of the Solicitor General (OSG) & CHR Positions:** Surprisingly, the OSG filed a Comment in the Supreme Court supporting Ang Ladlad's petition, stating there was no legal basis for COMELEC's moral condemnation and that sexual attraction does not equal an immoral act. The Commission on Human Rights (CHR) intervened in support of Ang Ladlad.

6. **COMELEC's Belated Defenses in SC Comment:** Before the Supreme Court, COMELEC raised two new defenses: (1) LGBTs are not among the sectors enumerated in R.A. No. 7941; and (2) Ang Ladlad committed misrepresentation regarding its nationwide existence based on field verification reports.
-

PROCEDURAL HISTORY

1. **Administrative Proceedings (COMELEC):**
 - **November 11, 2009 Resolution (Second Division):** Dismissed Ang Ladlad's petition for accreditation.
 - **December 16, 2009 Resolution (En Banc):** Denied Motion for Reconsideration via Chairman's tie-breaking vote.
 2. **Supreme Court Action:** Ang Ladlad filed a Petition for Certiorari under Rule 65 with a prayer for a Writ of Preliminary Mandatory Injunction. The Supreme Court issued a Temporary Restraining Order (TRO) on January 12, 2010, enjoining COMELEC from enforcing its resolutions and ordering Ang Ladlad's inclusion on the ballot.
-

PARTIES' MATERIAL ARGUMENTS

- **Petitioner (Ang Ladlad LGBT Party):**
 1. **Violation of Non-Establishment Clause:** COMELEC invalidly relied on religious scriptures (Bible and Koran) and religious dogmas to disqualify a political party.
 2. **Violation of Equal Protection:** Denying registration based on sexual orientation creates an impermissible classification lacking rational basis, targeting homosexuals as a disfavored class.
 3. **Violation of Freedom of Speech and Association:** Disqualifying Ang Ladlad suppresses its right to express political views and advocate legislative reforms.
 4. **Compliance with R.A. No. 7941:** Ang Ladlad satisfied all statutory requirements and the *Ang Bagong Bayani* guidelines; the statutory enumeration of sectors under R.A. 7941 is non-exclusive.
 - **Respondent (COMELEC):**
 1. **Public Morals & Harm to Youth:** Granting accreditation poses a threat to public morals and spiritual well-being of youth under Article II, Section 13 of the Constitution.
 2. **No Benefit to the Nation:** Ang Ladlad failed to prove that having mixed sexual orientations benefits the nation as a whole under Section 2 of R.A. 7941 [75–76].
 3. **Exclusive Statutory Enumeration:** The LGBT sector is not enumerated in Section 5 of R.A. No. 7941 or related to the listed sectors [83–84].
 4. **Misrepresentation:** Field reports claimed Ang Ladlad had no physical offices or presence in almost all provinces.
-

ISSUES

1. **Whether Ang Ladlad complied with the requirements of the Constitution and R.A. No. 7941, and whether the statutory enumeration of sectors under Section 5 of R.A. No. 7941 is exclusive.**
 2. **Whether COMELEC violated the Non-Establishment Clause (Art. III, Sec. 5) by relying on religious dogmas and scriptures to deny party-list registration.**
 3. **Whether COMELEC violated the Equal Protection Clause (Art. III, Sec. 1) by using moral disapproval to disqualify Ang Ladlad.**
 4. **Whether COMELEC violated Ang Ladlad's constitutional rights to Freedom of Expression and Freedom of Association (Art. III, Sec. 4 & 8).**
 5. **Whether international human rights standards (Yogyakarta Principles) create binding legal obligations on the Philippines regarding LGBT rights.**
-

HOLDINGS AND CONTROLLING REASONING

1. On Compliance with R.A. No. 7941 & Non-Exclusivity of Sectors: YES. Ang Ladlad complied; the enumeration of sectors is NOT exclusive [84–87].

- **Non-Exclusivity of Enumeration:** Citing *Ang Bagong Bayani*, the Court held that Section 5 of R.A. No. 7941 does not contain an exhaustive list of marginalized sectors. The crucial test is whether a sector is marginalized and underrepresented, not whether it is explicitly named in the text.
- **No Material Misrepresentation:** COMELEC's late claim of non-existence was a procedural violation of due process. Substantively, Ang Ladlad never claimed to exist in every single province, but established a national network of 16,100 members and regional umbrella organizations. COMELEC's field search failed because it searched strictly for "ANG LADLAD LGBT" rather than its named affiliate networks.

2. On the Non-Establishment Clause: YES. COMELEC committed a grave violation of Article III, Section 5 [88–89].

- **Government Neutrality in Religious Matters:** The Constitution mandates absolute state neutrality regarding religion (*Estrada v. Escritor*) [88–89]. Utilizing the Bible (Genesis) and Koran to justify excluding a political party is a clear violation of the Non-Establishment Clause.
- **Mandate of Secular Purpose & Justification:** Government action must serve a secular purpose and be justified on purely secular grounds [88–89]. Morality contemplated by Philippine law is **public and secular**, not religious [88–89]. Official policy cannot enforce conformity to religious dogmas.

3. On Equal Protection Clause & Public Morals: YES. COMELEC violated Article III, Section 1 by targeting homosexuals without rational basis [89, 92–96].

- **No Overt Illegal Act:** COMELEC failed to cite any overt criminal or immoral act committed by Ang Ladlad or its members. Homosexual orientation or attraction is not an illegal act ("there is a great divide between thought and action"). Homosexual conduct is not criminalized under Philippine penal law.
- **Moral Disapproval is NOT a Legitimate State Interest:** Applying the **Rational Basis Test**, the Court held that the bare invocation of public morals or societal disapproval of an unpopular minority is **not a legitimate state interest** sufficient to satisfy equal protection [92–94].
- **Selective Targeting:** Selective targeting of homosexuals as a class amounts to a statement of dislike that implicates equal protection. LGBTs have the same political interest in participating in the party-list system on the same basis as other citizens. (*Note: The Court explicitly clarified it was not declaring homosexuals a suspect class or creating special marriage rights, but applying standard equal protection to electoral access [95–96].*)

4. On Freedom of Expression and Association: YES. COMELEC infringed Ang Ladlad's fundamental rights.

- **Protection of Unpopular Viewpoints:** Quoting Justice Jackson in *Barnette*, the test of freedom is the right to differ on things that touch the heart of the existing order.
- **Political Expression via Ballot:** Precluding an otherwise qualified group from participating in elections and expressing its platform on an equal basis transgresses freedom of speech, expression, and association. Democracy precludes using the moral views of one segment of society to exclude others from political participation.

5. On International Law & The Yogyakarta Principles: Yogyakarta Principles are "Soft Law" and NOT binding obligations.

- **Soft Law Status:** The Yogyakarta Principles are declarations formulated by international experts (*de lege ferenda*) and do not constitute binding international treaty law or customary international law under ICJ Statute Article 38.
- **Binding Treaties Apply:** However, binding covenants ratified by the Philippines (UDHR, ICCPR) enforce general non-discrimination and political participation rights.

● DOCTRINE, TESTS, AND LEGAL STANDARDS

1. **Non-Establishment Clause Standard (*Secular Morality Test*):** State action must have a primary secular purpose and secular justification. Government officials cannot use religious scriptures (Bible, Koran) or religious dogmas to restrict civil or political rights [88–89].
 2. **Equal Protection / Rational Basis Review on Moral Disapproval:**
 - *Rule:* Moral disapproval, societal dislike, or public prejudice against an unpopular minority group does **not** constitute a legitimate state interest under the Rational Basis Test.
 - *Distinction:* State regulation requires proof of overt acts detrimental to public safety/welfare, not mere sexual orientation or attraction.
 3. **Non-Exclusivity of Party-List Sectors:** The statutory list of sectors in Section 5 of R.A. No. 7941 is non-exhaustive; any marginalized and underrepresented sector complying with statutory requirements may register.
 4. **Soft Law vs. Binding Covenants:** Expert declarations (e.g., Yogyakarta Principles) are non-binding "soft law," whereas ratified treaties (ICCPR, UDHR) create binding domestic obligations under the Incorporation Clause.
-

♥ DISPOSITION

- **Ruling:** Petition for Certiorari is **GRANTED**.
 - **Executive Order:** COMELEC Resolutions dated November 11, 2009 and December 16, 2009 are **SET ASIDE**.
 - **Mandamus Directive:** COMELEC is **DIRECTED TO GRANT** Ang Ladlad LGBT Party's application for party-list accreditation.
-

● SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLE LINES

Concurring Opinion of Justice Roberto A. Abad (joined by Carpio Morales, Nachura, and Peralta, JJ.)

- **Absence of Overt Harm:** Emphasized that Ang Ladlad sought to enter the political arena to advocate laws against discrimination, which is a legitimate political goal. Disqualification based on speculative moral harm without proof of illegal acts violates due process and equal protection.

Dissenting Opinion of Justice Renato C. Corona (joined by Brion, J.) [108–129]

- **Strict Statutory Enumeration & Eiusdem Generis:** Argued that R.A. No. 7941 reserves the party-list system exclusively for sectors enumerated in Section 5 or those closely related under *eiusdem generis* (economically disadvantaged/underprivileged) [111–113, 119–121]. LGBTs do not share a "family resemblance" with labor, peasants, or fisherfolk [121–123].
 - **Judicial Restraint:** Maintained that expanding the party-list system to LGBTs is a policy decision belonging exclusively to Congress, not the courts [126–129].
-

● RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Ang Ladlad LGBT Party v. COMELEC* (2010), COMELEC denied party-list accreditation to Ang Ladlad (an LGBT organization), citing the Bible, Koran, Civil Code, and Revised Penal Code, ruling that the group advocated immoral doctrines and posed a threat to youth morals. Ang Ladlad petitioned the Supreme Court under Rule 65.

The Supreme Court En Banc, through Justice Del Castillo, GRANTED the petition and ordered COMELEC to accredit Ang Ladlad. The Court held: (1) The statutory enumeration of sectors under R.A. 7941 is non-exclusive; (2) COMELEC violated the Non-Establishment Clause by using religious scriptures to justify state action, as laws must have a primary secular purpose; (3) COMELEC violated Equal Protection because under rational basis review, mere moral disapproval of an unpopular minority is NOT a legitimate state interest, and there was no proof of overt illegal acts; (4) Denying electoral access based on disfavored viewpoints infringes Freedom of Expression and Association; and (5) While the Yogyakarta Principles are non-binding soft law, international treaties like the ICCPR mandate equal political participation."

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: Did the Supreme Court declare LGBTs as a "suspect class" entitled to Strict Scrutiny in *Ang Ladlad*?**
 - **A: No.** The Court explicitly declined to declare LGBTs a suspect class or apply strict scrutiny. Instead, the Court applied the **Rational Basis Test** and held that COMELEC failed even this deferential standard because moral disapproval is not a legitimate state interest [93–94].
2. **Q: What is the required standard for government morality under the Non-Establishment Clause?**
 - **A:** Morality in law must be **public and secular**, not religious (*Estrada v. Escritor*) [88–89]. The government must demonstrate a secular purpose and articulate secular justifications (such as preventing concrete societal harm) rather than enforcing religious dogmas [88–89].
3. **Q: How did the Court distinguish between sexual orientation/thought and overt acts in its equal protection analysis?**
 - **A:** The Court highlighted the "great divide between thought and action." Mere sexual orientation or attraction is not an overt immoral act. Since Philippine law does not criminalize homosexual conduct, penalizing an organization for its members' inherent orientation without proof of overt illegal acts constitutes arbitrary discrimination.

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose an applicant party-list group called "Sodomy Advocates" explicitly states in its petition and platform that its primary objective is to organize public events where members engage in public, explicit sexual acts in city plazas in violation of RPC Article 201. COMELEC denies accreditation. Is COMELEC's denial valid under *Ang Ladlad*?
- **Answer: Yes, COMELEC's denial would be VALID.** In *Ang Ladlad*, the Court stressed that the State retains authority to regulate overt acts that are illegal or detrimental to public order under valid penal laws. In *Ang Ladlad*, the group performed no overt illegal acts and its platform was purely legislative (anti-discrimination, micro-finance). A group actively advocating and committing overt criminal acts (violating RPC Art. 201) can be validly disqualified under Section 6 of R.A. No. 7941 for advocating unlawful means or violating penal laws [90–92].

One-Sentence Doctrine Anchor

Government reliance on religious texts violates the Non-Establishment Clause, and moral disapproval of an unpopular minority is not a legitimate state interest under the Equal Protection Clause to deny political participation.

ANG LADLAD LGBT PARTY v. COMELEC (2010)

Topic Subtopic	Branches of the Government Congress	GR No. & Ponente	190582, Del Castillo, J.
Petitioner/s	Ang Ladlad LGBT Party	Respondent/s	COMELEC
Doctrine	"The crucial element is not whether a sector is specifically enumerated [under RA 7941], but whether a particular organization complies with the requirements of the Constitution and RA 7941."		

FACTS

- Ang Ladlad LGBT Party → organization composed of men and women identifying as lesbian, gay, bisexual, or transgender (LGBTs) incorporated to 2003
 - First applied for registration in 2006 → denied for a lack of substantial membership base
 - Aug. 2009 → filed another petition for registration
- Ang Ladlad claimed that the LGBT community is a marginalized & underrepresented sector, who are particularly disadvantaged because of sexual orientation & gender identity
 - Victims of exclusion, determination, and violence
 - Complied with 8-point guidelines in *Ang Bagong Bayani*
 - Presented national membership base & organizational supporters
- COMELEC issued resolution, dismissing Ang Ladlad's position on "moral grounds"
 - Argued that the petitioner tolerated "immorality," relying on the Bible + Koran + Civil Code provisions on nuisance, morality and decency + RPC provisions on "immoral doctrines"
 - Alleged that Ang Ladlad made untruthful statements regarding compliance w/ election laws
- Ang Ladlad filed a motion for reconsideration → 3-3 tie between the COMELEC Commissioners, so Chairman broke the tie & upheld denial
 - Questioned whether Ang Ladlad's expressed sexual orientations could benefit the nation, which was the intention of the party-list system
 - Relied on U.S. jurisprudence allegedly not recognizing LGBT persons as a "special class"
 - Alleged that PH society was shaped by centuries of Christian & Muslim influence + homosexual conduct is not part of its publicly accepted moral norms
 - Invoked laws reflecting public morality, including RPC
- Ang Ladlad filed petition for certiorari + sought preliminary mandatory injunction because COMELEC was preparing the final ballots for the May 2010 elections
 - COMELEC additionally argued before the SC that the LGBT sector was not among the sectors enumerated in the Constitution/RA 7941 + Ang Ladlad falsely claimed nationwide existence

ISSUE 1

Main - Substantive	W/N Ang Ladlad complied with the requirements of the Constitution and R.A. 7941 despite the LGBT sector not being specifically enumerated	YES
--------------------	---	-----

RULING and RATIO DECIDENDI:

- Enumeration is NOT exclusive → as stated in *Ang Bagong Bayani*
 - LGBT Sector need not appear verbatim in the statutory enumeration to qualify
- No misrepresentation by Ang Ladlad as claimed by COMELEC (alleged untruthful statements regarding nationwide existence)
 - This allegation was a new ground → not mentioned in the assailed resolutions
 - Ang Ladlad alleged approximately 670,000 Filipino MSMs & identified an LGBT network consisting of individual members & affiliated organizations
 - Not equivalent to falsely claiming that Ang Ladlad itself had members in every province

ISSUE 2

Main – Substantive	W/N religion and public morals may be used as bases for denying Ang Ladlad's party-list registration	NO
RULING and RATIO DECIDENDI: • COMELEC's reliance on religious beliefs was inconsistent w/ the constitutional requirement of governmental neutrality (non-establishment clause of the Constitution) ◦ Sec. 5, Art. III → <i>"No law shall be made respecting an establishment of religion, or prohibiting the free exercise thereof..."</i> ◦ <i>Estrada v. Escritor</i> → morality contemplated by law must be public and secular ◦ Religious teachings cannot be transformed into governmental standards binding the population • Moral disapproval is insufficient because homosexual conduct is not illegal in the Philippines ◦ COMELEC's blanket invocation of public morals failed to establish sufficient gov't interest ◦ Alleged violation of Art. 201 of RPC cannot simply be presumed ◦ COMELEC's reasoning targeted homosexuals as a class, rather than a specific unlawful act		

Main – Substantive	W/N the COMELEC Resolutions violated Ang Ladlad's constitutional rights to equal protection, freedom of expression and association, and non-discrimination under international law	YES
RULING and RATIO DECIDENDI: <i>On equal protection</i> • Classification must bear a rational relationship to a legitimate governmental end → moral disapproval of an unpopular minority is not a legitimate interest ◦ LGBT persons have the same interest in participating in the party-list system as other similarly situated political groups ◦ COMELEC's differentiation is unwarranted and not justified by the circumstances of the case • Denial effectively targeted homosexuals themselves, rather than any particular unlawful conduct <i>On freedom of expression and association</i> • Without a legitimate governmental interest, COMELEC cannot suppress expression simply because it disapproves of the message. ◦ By denying registration to Ang Ladlad despite qualifications, COMELEC prevented it from publicly expressing its political views as a party & participating on an equal basis in the political process. <i>On non-discrimination and international law</i> • Art. 26 of the ICCPR ◦ Laws of general application concerning elections must be applied equally + discrimination based on sexual orientation is impermissible • HOWEVER, Court is not prepared to declare the Yogyakarta Principles binding on the Philippines ◦ Some declarations did not necessarily reflect the current state of international law. ◦ International human-rights norms remain relevant in understanding the principle of non-discrimination		

FINAL DECISION	WHEREFORE, the Petition is hereby GRANTED. The Resolutions of the Commission on Elections dated November 11, 2009 and December 16, 2009 in SPP No. 09-228 (PL) are hereby SET ASIDE. The Commission on Elections is directed to GRANT petitioner's application for party-list accreditation.
-----------------------	--

SEPARATE OPINION/S

Corona, J,
dissenting

- Party-list system was intended for specific marginalized and underrepresented sectors → tool for advancement of social justice
 - Determining which sectors are marginalized for purposes of the party-list system is a matter for Congress
 - Party-list system's marginalized sectors refined through constitutional provisions + sectors recognized as significant to the national interest
- Even assuming LGBT community is underrepresented it is not among sectors identified in Constitution/R.A. 7941 + no sufficiently close connection to an enumerated sector + no constitutional provision recognizing LGBT sector as significant to national interest
 - Court must exercise judicial prudence and construe the Constitution according to its text by not ignoring the enumeration
 - Judicial recognition of LGBT as an additional partylist sector would effectively involve judicial legislation
- Nonetheless acknowledged that bigotry and discrimination have no place in a just & democratic society BUT, the question before the Court was the legal scope of the party-list system
 - Therefore, the petition should be denied

Lokin, Jr. v. Commission on Elections

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Luis K. Lokin, Jr. and Teresita F. Planas v. Commission on Elections (COMELEC), Citizens' Battle Against Corruption (CIBAC) Party List represented by Virginia S. Jose, Sherwin N. Tugna, and Cinchona Cruz-Gonzales*
- **Citation:** G.R. No. 193808, June 26, 2012 (En Banc)
- **Ponente:** Sereno, J.
- **Bench Composition:** Carpio, Leonardo-de Castro, Brion, Peralta, Bersamin, Del Castillo, Abad, Villarama, Jr., Perez, Reyes, and Perlas-Bernabe, JJ., concurring; Velasco, Jr., J., took no part due to relationship to a party; Mendoza, J., on leave.
- **Syllabus Relevance & Topic:**
 1. **Rule 64 vs. Rule 65 Certiorari & Timeliness:** Procedural distinction between Rule 64 (review of COMELEC/COA judgments within 30 days minus elapsed period) and Rule 65 (general 60-day period); non-applicability of the *Neypes* "fresh-period rule" to Rule 64 petitions [244–245].
 2. **COMELEC Jurisdiction over Intra-Party Leadership and Nominee Selection:** Jurisdiction of the COMELEC under Article IX-C, Section 2 to resolve intra-party leadership disputes and verify the authenticity and authority of party-list certificates of nomination as an incident to its power to enforce election laws and register political parties [245, 249–253].
 3. **Party Identity and Electorate Protection:** Authority of the COMELEC to protect political parties and the voting public from unauthorized factional filings, bogus certificates of nomination, and misrepresentation under Republic Act No. 7941 (The Party-List System Act).

CHRONOLOGICAL MATERIAL FACTS

1. **Background of CIBAC:** Citizens' Battle Against Corruption (CIBAC) is a multi-sectoral party registered under R.A. No. 7941 whose platform is to fight graft and corruption and promote ethical public service. Under its Constitution and By-Laws, its highest policy-making and governing body is the **National Council**.
2. **Submission of Competing Manifestations (November 20, 2009):** Two separate entities submitted a "Manifestation of Intent to Participate in the Party-List System of Representation in the May 10, 2010 Elections" to the COMELEC:
 - *Derla Manifestation:* Signed by Pia B. Derla, claiming to be CIBAC's "acting secretary-general".
 - *Cruz-Gonzales/Jose Manifestation:* Signed at 1:30 p.m. on the same day by Cinchona Cruz-Gonzales (Vice-President) and Virginia S. Jose (Secretary-General) [239–240].
3. **COMELEC Resolution No. 8744 (January 15, 2010):** COMELEC gave due course to CIBAC's manifestation "without prejudice to the determination which of the two factions... is the official representative".
4. **Submission of Competing Certificates of Nomination:**
 - *Villanueva Certificate (January 19, 2010):* Emmanuel Joel J. Villanueva (Party President and Chairman) and Virginia S. Jose (Secretary-General) submitted CIBAC's Certificate of Nomination to the COMELEC Law Department.
 - *Derla Certificate (March 26, 2010):* Pia B. Derla filed a second Certificate of Nomination, signing as "acting secretary-general," which nominated petitioners Luis K. Lokin, Jr. and Teresita F. Planas as CIBAC representatives.
5. **Petition to Expunge and Disqualify (March 31, 2010):** Respondents (CIBAC represented by Jose, Tugna, and Cruz-Gonzales) filed a "Petition to Expunge from the Records and/or for Disqualification" before the COMELEC

against Derla's certificate. Respondents asserted that Derla was a complete stranger to CIBAC, held no authority from the National Council, and misrepresented herself, whereas Chairman Villanueva was authorized by CIBAC's National Council during its November 12, 2009 meeting to select party nominees.

● PROCEDURAL HISTORY

1. Administrative Action before COMELEC:

- **COMELEC First Division Resolution (July 5, 2010):** Granted respondents' petition, ordered Derla's Certificate of Nomination expunged from the records, and declared respondents' faction as the legitimate nominees of CIBAC.
- **COMELEC En Banc Per Curiam Resolution (August 31, 2010):** Affirmed the First Division. COMELEC ruled that Derla presented zero evidence of membership or authority, whereas Villanueva presented overwhelming proof (Minutes of National Council meeting, Certificate of Deputization, party constitution) [257–260].

2. Supreme Court Appeal Timelines:

- Petitioners received the COMELEC First Division Resolution on July 12, 2010 and filed a Motion for Reconsideration 3 days later, on July 15, 2010.
 - Petitioners received the COMELEC En Banc denial on **September 1, 2010**.
 - Under Rule 64, Section 3, deducting the 3 elapsed days, petitioners had **27 remaining days** (until September 28, 2010) to file certiorari with the Supreme Court.
 - Petitioners filed their Rule 64/65 Petition for Certiorari before the Supreme Court on **October 1, 2010**—3 days past the deadline.
-

● PARTIES' MATERIAL ARGUMENTS

● Petitioners (Luis K. Lokin, Jr. & Teresita F. Planas):

1. **Lack of COMELEC Jurisdiction (Intra-Corporate Dispute):** The dispute between Derla/CIBAC Foundation, Inc. and the National Council is a purely intra-corporate dispute exclusively cognizable by Regional Trial Courts (Special Commercial Courts) under the Interim Rules on Intra-Corporate Controversies. Derla acted under the authority of the Board of Trustees of "CIBAC Foundation, Inc." (an SEC-registered non-stock entity), which allegedly replaced the National Council in 2003 [246–247].
2. **Grave Abuse of Discretion:** COMELEC gravely abused its discretion in expunging Derla's Certificate of Nomination and failing to recognize Lokin, Jr. and Planas as CIBAC's rightful nominees.

● Respondents (CIBAC represented by Jose, Tugna, Cruz-Gonzales):

1. **Procedural Dismissal for Late Filing:** The petition was filed outside the mandatory 30-day reglementary period under Rule 64, Section 3 and must be dismissed outright [244–245].
 2. **Proper Jurisdiction:** COMELEC possesses broad constitutional and statutory authority under Article IX-C, Section 2 and R.A. No. 7941 to verify the credentials of nominees and resolve intra-party leadership contests [248–250].
 3. **Auxiliary Status of Foundation:** CIBAC Foundation, Inc. was established solely as an auxiliary legal/financial arm and never replaced the National Council as the governing body of the CIBAC sectoral party. Derla was a complete stranger to the party [257–258].
-

● ISSUES

1. **Procedural Issue:** Whether the Petition for Certiorari should be dismissed for being filed beyond the reglementary period under Rule 64 of the Rules of Court [243–245].
 2. **Substantive Issue 1 (Jurisdiction):** Whether the dispute over the authority to file CIBAC's Certificate of Nomination is a purely intra-corporate matter cognizable exclusively by Special Commercial Courts, or an intra-party leadership dispute within the jurisdiction of the COMELEC [243, 246–250].
 3. **Substantive Issue 2 (Grave Abuse of Discretion):** Whether the COMELEC committed grave abuse of discretion in expunging Pia Derla's Certificate of Nomination and recognizing Joel Villanueva's faction as CIBAC's legitimate nominees [243, 256–260].
-

HOLDINGS AND CONTROLLING REASONING

1. On the Procedural Issue: YES. The petition MUST BE DISMISSED for late filing under Rule 64 [237, 244–245].

- **Rule 64 Controls over Rule 65:** The mode of review for COMELEC judgments is governed specifically by **Rule 64**, not the general 60-day period under Rule 65.
- **Computation under Rule 64, Section 3:** Under Rule 64, Section 3, an aggrieved party has 30 days from notice of judgment to file certiorari. The filing of an MR tolls the period; upon receipt of the MR denial, the petitioner gets only the **remaining balance** of the 30-day period (which shall not be less than 5 days).
- **Non-Applicability of "Fresh-Period Rule":** The *Neypes* "fresh-period rule" does **not** apply to Rule 64 petitions (*Pates v. COMELEC*; *Domingo v. COMELEC*).
- **Mathematical Bar:** Petitioners consumed 3 days before filing their MR. Upon receiving the En Banc denial on September 1, 2010, they had 27 days left, expiring on September 28, 2010. Filing on October 1, 2010 was 3 days late without any explanation or justification. Prompt determination of election results is a constitutional mandate under Article IX-C, Section 3.

2. On Substantive Issue 1 (Jurisdiction): NO. It is NOT an intra-corporate dispute. COMELEC HAS EXCLUSIVE JURISDICTION over intra-party leadership and nominee disputes [245, 248–255].

- **Constitutional Grant (Art. IX-C, Sec. 2):** COMELEC is tasked to enforce and administer all election laws and register political parties and sectoral organizations.
- **Incidental Enforcement Power (*Laban ng Demokratikong Pilipino v. COMELEC*; *Atienza v. COMELEC*; *Kalaw v. COMELEC*):** The power to register political parties necessarily includes the authority to ascertain party identity, resolve intra-party leadership disputes, and identify legitimate officers authorized to act for the party [249–251].
- **Protection of the Electorate:** A candidate or nominee misrepresenting themselves as a party's representative foists a deception upon the electorate. COMELEC has a constitutional duty to step in and enforce election laws to protect both party prestige and the voting public.
- **Rejection of Intra-Corporate Theory:** CIBAC is a registered sectoral party under R.A. No. 7941, not a commercial corporation. The SEC-registered "CIBAC Foundation, Inc." was merely an auxiliary financial arm and could not supplant or oust the National Council created under CIBAC's Constitution and By-Laws.

3. On Substantive Issue 2 (Grave Abuse of Discretion): NO. COMELEC committed NO grave abuse of discretion; its ruling was supported by substantial evidence [256–261].

- **Self-Serving Claims:** Derla failed to present a single piece of documentary evidence proving she was a member, officer, or authorized representative of CIBAC.

- **Overwhelming Proof for Villanueva Faction:** Respondents presented the official Minutes of the National Council meeting on November 12, 2009 (showing a quorum electing Villanueva as President/Chairman and delegating nominee selection to him), a Certificate of Deputization for Sec-Gen Jose, and the official party Constitution and By-Laws.
 - **Finality of Administrative Findings:** Under Rule 64, Section 5, COMELEC's findings of fact supported by substantial evidence are final and non-reviewable by the Supreme Court.
-

● DOCTRINE, TESTS, AND LEGAL STANDARDS

1. **Rule 64 Timeliness & Non-Applicability of Neypes:** Review of COMELEC resolutions under Rule 64 must be filed within 30 days from notice. An MR merely interrupts the period; upon denial, the petitioner receives only the remaining days of the original 30-day period. The 60-day "fresh-period rule" does not apply to Rule 64 petitions [244–245].
 2. **COMELEC Jurisdiction over Intra-Party Leadership Disputes:** The power to resolve intra-party leadership disputes, determine party identity, and verify authorized signatories on certificates of nomination is an inherent incident of COMELEC's constitutional mandate to register political parties and enforce election laws under Article IX-C, Section 2 [248–251].
 3. **Primacy of Party Constitution over Auxiliary SEC Foundations:** A sectoral party's governing body established under its Constitution and By-Laws (the National Council) holds sole authority over party nominations; an auxiliary SEC-registered foundation cannot supplant or usurp the party's political governance.
-

♥ DISPOSITION

- **Ruling:** Petition for Certiorari is **DISMISSED**.
 - **Affirmance:** The judgment of the COMELEC expunging from its records the Certificate of Nomination filed on March 26, 2010 by Pia B. Derla is **AFFIRMED**. The nominees listed in the Certificate of Nomination filed on January 19, 2010 by Emmanuel Joel J. Villanueva are recognized as the legitimate nominees of CIBAC Party-List.
-

● RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Lokin, Jr. v. COMELEC* (2012), two competing factions submitted Manifestations and Certificates of Nomination for CIBAC Party-List in the 2010 elections: the Villanueva faction (authorized by CIBAC's National Council) and the Derla faction (purportedly authorized by an SEC-registered 'CIBAC Foundation, Inc.'). Derla nominated petitioners Lokin, Jr. and Planas. COMELEC expunged Derla's certificate, ruling she was an unauthorized stranger and recognizing Villanueva's nominees. Lokin filed a certiorari petition before the Supreme Court 3 days past Rule 64's 30-day window.

The Supreme Court En Banc, through Justice Sereno, **DISMISSED** the petition. The Court held: (1) The petition is barred for late filing under Rule 64, Section 3, as the Neypes fresh-period rule does not apply to Rule 64 COMELEC reviews; (2) COMELEC has exclusive jurisdiction over intra-party leadership and nominee disputes as an incident to its constitutional power to register parties and enforce election laws under Art. IX-C, Sec. 2; CIBAC Foundation was a mere auxiliary arm and could not usurp the National

Council's authority; and (3) COMELEC committed no grave abuse of discretion in expunging Derla's certificate based on substantial evidence."* [238, 244–245, 248–251, 258–261]

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: Does the *Neypes* "fresh-period rule" apply when appealing a final COMELEC En Banc resolution to the Supreme Court?**
 - **A: No.** Under Rule 64, Section 3, an aggrieved party does not get a fresh 30-day period upon denial of an MR. The party gets only the remaining balance of the original 30-day period (deducting the days elapsed before filing the MR), subject to a 5-day minimum floor.
2. **Q: Can an SEC-registered non-stock foundation affiliated with a party-list group overrule the party's National Council in selecting House nominees?**
 - **A: No.** Party-list governance and nomination authority are governed by the party's official Constitution and By-Laws filed with COMELEC under R.A. No. 7941. An auxiliary SEC-registered foundation cannot supplant or oust the party's governing National Council.
3. **Q: Why is an intra-party leadership dispute involving party-list nominees not considered an intra-corporate controversy for Special Commercial Courts?**
 - **A:** Because a party-list organization is a political entity registered under R.A. No. 7941 to seek parliamentary representation, not a commercial corporation. Determining who represents a political party on the ballot directly impacts the electorate, bringing it squarely under COMELEC's constitutional mandate to enforce election laws under Article IX-C, Section 2 [248–250].

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose CIBAC's National Council formally amends its Constitution to transfer sole nomination authority to the Board of Trustees of CIBAC Foundation, Inc., and files this amendment with COMELEC. Thereafter, the Board of Trustees submits a Certificate of Nomination signed by Derla. Is Derla's certificate valid under *Lokin, Jr. v. COMELEC*?
- **Answer: Yes.** In *Lokin, Jr.*, the Court rejected Derla's certificate because CIBAC's existing Constitution vested exclusive policy and nomination power in its National Council [258–259]. If the party validly amends its Constitution and By-Laws in accordance with internal rules and files the update with COMELEC, the authority exercised pursuant to that amended constitution would be legally binding on the party [258–260].

One-Sentence Doctrine Anchor

Rule 64 certiorari against COMELEC resolutions strictly requires filing within the remaining balance of the 30-day period without a fresh-period rule, and COMELEC possesses exclusive jurisdiction over intra-party leadership and nominee selection disputes to protect the electorate from unauthorized nominations. [244–245, 248–250]

LOKIN, JR. v. COMELEC (2012)

Topic Subtopic	Power, Composition, Qualification and Term of Office	GR No. & Ponente	GR No. 193808 Sereno, J.
Petitioner/s	Luis K. Lokin and Teresita F. Planas	Respondent/s	COMMISSION ON ELECTIONS (COMELEC), CITIZENS' BATTLE AGAINST CORRUPTION PARTY LIST represented by VIRGINIA S. JOSE SHERWIN N. TUGNA, and CINCHONA CRUZ-GONZALES
Doctrine	<i>The COMELEC has jurisdiction over cases pertaining to party leadership and the nomination of party-list representatives.</i>		

FACTS

- CIBAC (Citizens' Battle Against Corruption) is a multi-sectoral party-list group registered under R.A. No. 7941, w/ the National Council as its highest policymaking and governing body.
- Nov. 20, 2009 → 2 different entities, both claiming to represent CIBAC, submitted Manifestations of Intent to participate in the May 2010 elections
 - Pia B. Derla submitted the first Manifestation, claiming to be CIBAC's acting secretary-general.
 - Later that day, Cinchona Cruz-Gonzales & Virginia Jose, claiming to be CIBAC's vice-president and secretary-general, respectively, submitted another Manifestation.
- Jan. 15, 2010 → COMELEC issued a resolution giving due course to CIBAC's Manifestation, without prejudice to determining which of the two factions was the official representative.
 - 19 January 2010: Respondents, led by Emmanuel Joel J. Villanueva, President and Chairperson of CIBAC, submitted CIBAC's Certificate of Nomination, certified by Villanueva and Virginia Jose.
 - 26 March 2010: Pia Derla (who signed as acting secretary-general) submitted another Certificate of Nomination, this time naming Lokin and Planas as CIBAC nominees.
- Respondents filed a Petition to Expunge from the Records and/or for Disqualification, arguing that:
 - Derla had misrepresented herself as acting secretary-general + not even a CIBAC member
 - The Certificate of Nomination and other documents Derla submitted were unauthorized & invalid
 - Villanueva was the duly authorized person to file CIBAC's Certificate of Nomination
- Jul. 5, 2010 → COMELEC First Division granted the respondents' Petition, ordered Derla's Certificate of Nomination expunged, and declared respondents' faction the true nominees of CIBAC.
 - Petitioners moved for reconsideration, but COMELEC en banc affirmed the First Division.
 - Derla failed to prove her authority, while respondents presented evidence that Villanueva deputized Secretary-General Virginia Jose to submit the Certificate of Nomination.
- Petitioners then filed a Petition for Certiorari under Rules 64 and 65 with the Supreme Court
 - Alleged grave abuse of discretion and sought recognition as CIBAC's legitimate nominees, with Lokin to be proclaimed as CIBAC's party-list representative.

ISSUE 1

Main – Substantive	Whether or not the petition for <i>certiorari</i> was filed within the mandatory reglementary period under Rule 64 of the Rules of Court?	NO
--------------------	---	----

RULING and RATIO DECIDENDI:

- The Petition was filed out of time (3 days late) and was therefore dismissed on this ground alone.
 - Rule 64 specifically governs review of COMELEC judgments and provides a 30-day period for filing a petition for certiorari, while Rule 65 generally provides a 60-day period.
 - Although Rule 64 adopts the remedy of certiorari under Rule 65, the two cannot be equated because they have different reglementary periods.
- The shortened period under Rule 64 is constitutionally grounded.
 - Article IX-C, Section 3 requires COMELEC rules of procedure to expedite the disposition of

election cases to reflect the importance of the prompt determination of election results. Petitioners did not even attempt to explain their failure to comply with the deadline → no sufficient reason to relax the rule
LEGAL BASES
Rule 64 of the Rules of Court, which states: SEC. 3. Time to file petition.—The petition shall be filed within thirty (30) days from notice of the judgment or final order or resolution sought to be reviewed. The filing of a motion for new trial or reconsideration of said judgment or final order or resolution, if allowed under the procedural rules of the Commission concerned, shall interrupt the period herein fixed. If the motion is denied, the aggrieved party may file the petition within the remaining period, but which shall not be less than five (5) days in any event, reckoned from notice of denial.

ISSUE 2

Main – Substantive	Whether the authority of Secretary General Virginia Jose to file the party's Certificate of Nomination is an intra-corporate matter, exclusively cognizable by special commercial courts, and over which the COMELEC has no jurisdiction?	NO
RULING and RATIO DECIDENDI:		
- Even assuming the Court were to take cognizance, the COMELEC had jurisdiction over the issue. - Petitioners characterized the dispute as an intra-corporate controversy BUT they submitted their Manifestation of Intent and Certificate of Nomination to COMELEC. - Seeking COMELEC's approval to participate in the party-list elections invoked COMELEC's authority and recognized its constitutional power. - The COMELEC must be able to determine which persons legitimately represent a political party, particularly where the dispute concerns who is authorized to submit the party's Certificate of Nomination.		
LEGAL BASES		
Laban ng Demokratikong Pilipino vs. Commission on Elections - held that a party has the right to identify and exclude members and select its standard bearer, and COMELEC may determine the authorized signatory to prevent misrepresentation Atienza vs. Commission on Elections, Kalaw vs. Commission on Elections, & Palmares vs. Commission on Elections - uniformly upheld COMELEC jurisdiction over intra-party disputes		

ISSUE 2

Main – Substantive	Whether the COMELEC erred in granting the Petition for Disqualification and recognizing respondents as the properly authorized nominees of CIBAC party-list?	NO
RULING and RATIO DECIDENDI:		
- Derla's alleged authority as "acting secretary-general" was unsubstantiated: - Petitioners presented no documentary evidence that Derla was a CIBAC member nor an officer authorized to submit CIBAC's Certificate of Nomination - Derla's own claims and writings/certifications were self-serving declarations and could not establish her authority. - Meanwhile, the records showed that Villanueva, as Party President and Chairman, had been given authority to submit the list of nominees. - Petitioners also failed to establish that the Board of Trustees of the SEC-registered CIBAC Foundation		

was affiliated with the CIBAC Sectoral Party registered with COMELEC.

- CIBAC's Constitution expressly vested the National Council, not the Foundation's Board of Trustees, with authority to formulate the party's policies and issue decisions and resolutions binding on party members and officers.
- Respondents presented evidence, such as:
 - The 12 November 2009 National Council meeting with quorum elected Villanueva as President/Chairman and Jose as Secretary General;
 - National Electoral Congress delegated to the President the task of choosing nominees;
 - Joint Affidavit of Resolutions;
 - Certificate of Deputization and Delegation of Authority to Jose;
 - CIBAC's Constitution and By-Laws
 - Manifestation of official officers
- Derla's certificate was expunged and Villanueva's nominees were recognized.

FINAL DECISION

WHEREFORE , finding no grave abuse of discretion on the part of the COMELEC in issuing the assailed Resolutions, the instant Petition is DISMISSED. This Court AFFIRMS the judgment of the COMELEC expunging from its records the Certificate of Nomination filed on 26 March 2010 by Pia B. Derla. The nominees, as listed in the Certificate of Nomination filed on 19 January 2010 by Emmanuel Joel J. Villanueva, President and Chairman of Citizens' Battle Against Corruption (CIBAC) Party List, are recognized as the legitimate nominees of the said party. SO ORDERED.

Lico v. Commission on Elections

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Atty. Isidro Q. Lico, Rafael A. Puentespina, Proculo T. Sarmen, Amelito L. Revuelta, William C. Ybañez, Silverio J. Sanchez, Gloria G. Futralan, Hilario De Guzman, Eugene M. Pabualan, Rodolfo E. Perez, Hipolito R. Quillan, Mario Arenas, Tirso C. Buenaventura, Lydia B. Tubella, Reynaldo C. Golo & Jonathan Dequina in their individual capacities, and as legitimate members and officers of Adhikaing Tinataguyod ng Kooperatiba (ATING KOOP PARTY LIST) v. The Commission on Elections En Banc and the Self-Styled Sham Ating Koop Party List represented by Amparo T. Rimas*
 - **Citation:** G.R. No. 205505, September 29, 2015 (En Banc)
 - **Ponente:** Sereno, C.J.
-

CHRONOLOGICAL MATERIAL FACTS

1. **Party Registration & 2010 Election Participation:** Adhikaing Tinataguyod ng Kooperatiba (Ating Koop) is a multi-sectoral party-list organization registered on November 16, 2009 under Republic Act No. 7941. On November 30, 2009, it filed its Manifestation of Intent to Participate in the May 10, 2010 elections. On March 6, 2010, it submitted its list of nominees, naming petitioner Atty. Isidro Q. Lico as first nominee and Roberto C. Mascariña as second nominee.
 2. **Execution of Term-Sharing Agreement (June 9, 2010):** Prior to proclamation, Ating Koop issued Central Committee Resolution No. 2010-01, incorporating a **term-sharing agreement** signed by its nominees, under which Lico agreed to serve as Representative for only the first year of the three-year term, after which Mascariña would succeed him.
 3. **Proclamation, Oath, and Assumption of Office (December 2010):** Ating Koop earned one seat in the House of Representatives under the *BANAT* formula. On December 8, 2010, COMELEC proclaimed Ating Koop. On December 9, 2010, Congressman Lico took his oath of office before the Secretary-General of the House of Representatives and assumed office as a Member of Congress.
 4. **Constitutional Amendments at the Second National Convention (May 14, 2011):** Ating Koop amended its Constitution and By-Laws to establish a 15-member Central Committee with equal regional representation (5 members each from Luzon, Visayas, and Mindanao) and mandated elections within six months, effectively cutting short the tenure of the "Interim Central Committee" dominated by the Rimas Group.
 5. **Expulsion of Lico by the Interim Central Committee (December 5, 2011):** Almost a year after Lico assumed office, the Interim Central Committee expelled him from Ating Koop for "disloyalty," citing allegations of graft and malversation, as well as his **refusal to honor the term-sharing agreement**. Lico filed a Motion for Reconsideration with the Interim Central Committee on December 8, 2011, which was denied on December 29, 2011.
 6. **Parallel Faction Meetings:**
 - *Cebu Special Meeting (December 19, 2011):* While Lico's MR was pending, the Lico Group held a meeting in Cebu City electing a new Central Committee and officers under the 5-5-5 equal representation rule.
 - *Parañaque Special National Convention (January 21, 2012):* The Rimas Group held a convention in Parañaque City electing its own Central Committee and set of officers.
-

● PROCEDURAL HISTORY

1. **Petition before the COMELEC (E.M. No. 12-039):**
 - On March 16, 2012, the Rimas Group filed a Petition before the COMELEC praying that Lico be ordered to vacate Ating Koop's House seat and that second nominee Mascariña succeed him.
 - On May 14, 2012, the Rimas Group amended its petition to implead the entire Lico Group, praying for the nullification of the Cebu meeting and recognition of the Parañaque convention.
 2. **COMELEC Second Division Resolution (July 18, 2012):** Upheld Lico's expulsion from Ating Koop and declared Mascariña as the qualified nominee, characterizing the expulsion as an intra-party leadership dispute within COMELEC's jurisdiction.
 3. **COMELEC En Banc Resolution (January 31, 2013):**
 - **a. DISMISSED** the petition to unseat Congressman Lico from the House of Representatives for **lack of jurisdiction**, acknowledging that unseating a sitting representative belongs to the HRET;
 - **b. UPHELD** the validity of Lico's expulsion from Ating Koop; and
 - **c. UPHELD** the Rimas Group as the legitimate accredited leadership of Ating Koop.
 4. **Supreme Court Petition:** The Lico Group filed a Petition for Certiorari under Rule 64 in relation to Rule 65 before the Supreme Court seeking to annul the COMELEC resolutions.
-

● PARTIES' MATERIAL ARGUMENTS

- **Petitioners (Lico Group / Atty. Isidro Q. Lico):**
 1. COMELEC lacks jurisdiction to validate Lico's expulsion from Ating Koop because he is a sitting Member of Congress; any challenge touching upon his continuing qualifications falls under the sole jurisdiction of the HRET [137, 258, 260–261].
 2. COMELEC has no jurisdiction to resolve corporate governance disputes, which belong to the Regional Trial Courts (Special Commercial Courts).
 3. The Rimas Group failed to present substantial evidence showing that its Parañaque convention complied with notice and quorum requirements [267–268].
 - **Private Respondents (Rimas Group):**
 1. COMELEC has inherent jurisdiction to resolve intra-party leadership disputes as an incident to its power to register political parties under *Lokin v. COMELEC*.
 2. Lico was validly expelled for disloyalty, corrupt practices, and violating party discipline by breaching the term-sharing agreement.
 3. The Parañaque convention fully conformed to Ating Koop's Amended Constitution and By-Laws.
-

● ISSUES

1. **Whether COMELEC has jurisdiction to pass upon the expulsion of an incumbent/sitting Member of the House of Representatives from his party-list organization, or whether such jurisdiction belongs exclusively to the House of Representatives Electoral Tribunal (HRET).**
 2. **Whether COMELEC committed grave abuse of discretion in declaring the Rimas Group as the legitimate leadership of Ating Koop.**
-

HOLDINGS AND CONTROLLING REASONING

1. On Jurisdiction over the Expulsion of a Sitting Representative: COMELEC COMMITTED GRAVE ABUSE OF DISCRETION; it LACKS jurisdiction over the expulsion of a sitting Representative from his party-list group.

- **Concurrence of Requisites for HRET Jurisdiction:** Under Article VI, Section 17 of the 1987 Constitution, the HRET is the **sole judge** of all contests relating to the election, returns, and qualifications of Members of the House of Representatives. HRET jurisdiction attaches upon the concurrence of three requisites:
 - A valid proclamation;
 - A proper oath of office; and
 - Assumption of office.
- **Application:** Ating Koop was proclaimed, Congressman Lico took his oath on December 9, 2010, and he assumed office in Congress. Thus, HRET jurisdiction had fully attached, ousting COMELEC of authority.
- **Distinguishing *Lokin v. COMELEC*:** COMELEC relied on *Lokin v. COMELEC*, which held that resolving intra-party controversies is an incident of COMELEC's constitutional power to register political parties. However, the Court stressed that **Lokin involved nominees who had not yet assumed office, NOT incumbent Members of Congress.**
- **Interference with Continuing Qualifications:** Bona fide membership in the party-list group represented is a **continuing qualification** for holding office as a party-list representative (R.A. No. 7941 requires at least 90 days prior membership, and qualifications must persist throughout tenure).
- **Integrity of Qualifications:** Because Lico's expulsion from Ating Koop directly touched upon his continuing qualification as a sitting Representative, the validity of his party expulsion was **integral to his qualification to remain in Congress**. By ruling on his party expulsion, COMELEC impermissibly encroached upon HRET's exclusive jurisdiction under Article VI, Section 17 (*Abayon v. HRET*).
- **Distinguishing *Reyes v. COMELEC*:** In *Reyes v. COMELEC*, the Court upheld COMELEC's jurisdiction over Regina Reyes despite proclamation because she had **not yet assumed office** on June 30, and COMELEC's cancellation order had already become final and executory before she elevated it [263–264]. In contrast, Lico had fully assumed office, and the challenge to his qualifications remained a live, subsisting controversy [264–265].

2. On Party Leadership and the Hold-Over Principle: COMELEC COMMITTED GRAVE ABUSE OF DISCRETION in recognizing the Rimas Group; neither faction proved legitimacy, so the Interim Central Committee HOLDS OVER [3, 267–270].

- **Rejection of RTC Corporate Jurisdiction:** COMELEC possesses inherent administrative authority to settle leadership disputes within political parties as an incident of its enforcement powers; such disputes are not intra-corporate controversies for trial courts.
- **Gross Unreasonableness in Evaluating Evidence:**
 - The *Lico Group's Cebu meeting* was invalid due to deficient notices and lack of proof of a quorum.
 - However, the *Rimas Group's Parañaque convention* suffered from the **exact same infirmity**—its Minutes failed to establish due notice and a 100-member quorum required by the party Constitution.
 - As petitioner before COMELEC, the Rimas Group carried the burden of proof. Because the evidence was in equipoise, COMELEC committed gross unreasonableness amounting to jurisdictional error when it arbitrarily declared that the Parañaque convention "appeared to be in conformity" without factual substantiation.
- **Application of the Hold-Over Principle:** By analogy to corporate law (*Señeres v. COMELEC*), when an election of new officers is invalid or fails, the existing officers/directors **hold over** in their positions until their successors are validly elected and qualified.
- **Ruling on Leadership:** The legitimate Central Committee and set of officers representing Ating Koop are the **Interim Central Committee and officers prior to the split**, serving in a hold-over capacity.

● DOCTRINE, TESTS, AND LEGAL STANDARDS

1. **HRET Exclusive Jurisdiction Rule (Art. VI, Sec. 17):** Once a winning party-list nominee has been proclaimed, taken the oath, and assumed office, the HRET acquires sole and exclusive jurisdiction over all contests touching upon his or her qualifications.
 2. **Continuing Qualification Doctrine:** Qualifications for public office, including bona fide membership in the represented party-list organization, are continuing requirements that must be possessed throughout the entire term of office.
 3. **Limitation on COMELEC's Intra-Party Power (Lokin Limitation):** COMELEC's power to resolve intra-party leadership disputes does not extend to validating the expulsion of an incumbent Member of Congress from his party, as such expulsion directly implicates his continuing qualification to hold legislative office [2, 139, 140, 260–261].
 4. **Hold-Over Rule in Party-List Organizations:** When competing factional elections fail due to procedural defects, the pre-existing officers hold over in a status quo capacity until valid elections are conducted (*Señeres v. COMELEC*).
-

♥ DISPOSITION

- **Ruling:** The Petition for Certiorari is **GRANTED**.
 - **Annulment:** The COMELEC En Banc Resolution dated January 31, 2013 and Second Division Resolution dated July 18, 2012 in E.M. No. 12-039 are **ANNULLED AND SET ASIDE** insofar as they declared valid the expulsion of Congressman Lico from Ating Koop and recognized the Rimas Group as the legitimate leadership.
 - **New Judgment:** A new judgment is entered **DECLARING** that the legitimate Central Committee and set of officers representing Ating Koop are the **Interim Central Committee and set of officers prior to the split of Ating Koop**, serving in a hold-over capacity.
-

● SEPARATE OPINIONS & OBITER

- *(Note: Justices Velasco, Jr., Bersamin, Mendoza, and Perlas-Bernabe were on official leave; Justices Brion and Reyes were on leave; Justice Jardeleza took no part).*
 - **Subsequent Development in Jurisprudence (*An Waray v. COMELEC*, 2023):** The Supreme Court Majority in *An Waray v. COMELEC* clarified *Lico*, reiterating that while HRET has exclusive jurisdiction over individual qualifications of sitting nominees, COMELEC retains jurisdiction over petitions to cancel a party-list group's registration as a corporate entity.
-

● RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Lico v. COMELEC* (2015), Ating Koop won a House seat in the 2010 elections, and its first nominee, Atty. Isidro Lico, took his oath and assumed office in December 2010. Almost a year later, Ating Koop's Interim Central Committee (Rimas Group) expelled Lico from the party for alleged graft and for breaching a pre-election term-sharing agreement. The Rimas Group petitioned COMELEC to unseat Lico and recognize its faction. COMELEC En Banc dismissed the petition to unseat Lico from Congress for lack of jurisdiction, but UPHELD Lico's expulsion from Ating Koop and recognized the Rimas Group.

The Supreme Court En Banc, through Chief Justice Sereno, GRANTED Lico's certiorari petition. The Court held: (1) Once a party-list nominee is proclaimed, takes the oath, and assumes office, the HRET acquires sole and exclusive jurisdiction over his qualifications under Art. VI, Sec. 17; (2) While *Lokin* allows COMELEC to settle intra-party disputes for nominees, COMELEC CANNOT rule on the party expulsion of a sitting Representative, because bona fide party membership is a continuing qualification, making his expulsion integral to his qualification to remain in Congress; (3) Term-sharing agreements cannot shorten a constitutional term or justify unseating a sitting Representative; and (4) Because neither faction proved a quorum for its new elections, the officers prior to the split remain in office under the hold-over principle."* [2, 3, 138, 139, 140, 250, 251, 255, 259–261, 267–270]

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: Why couldn't COMELEC apply the *Lokin v. COMELEC* doctrine to settle Lico's expulsion from Ateng Koop?**
 - **A:** *Lokin v. COMELEC* applied to **unproclaimed nominees** prior to assumption of office. In *Lico*, Lico was an **incumbent, sitting Member of Congress** who had satisfied all three requisites (proclamation, oath, assumption). Because bona fide party membership is a continuing qualification, his expulsion directly touched upon his qualification to hold a House seat, placing the issue under the exclusive jurisdiction of the HRET.
2. **Q: Is a term-sharing agreement executed by party-list nominees prior to an election legally enforceable to unseat a sitting Member of Congress?**
 - **A: No.** Pre-election term-sharing agreements executed by party-list nominees are contrary to public policy and election laws. Refusal to honor an invalid term-sharing covenant cannot serve as a valid legal ground to expel a sitting Representative or unseat him from Congress.
3. **Q: How did the Supreme Court resolve the leadership deadlock between the Lico Group and the Rimas Group?**
 - **A:** Because both factions failed to present substantial evidence showing that their respective meetings (Cebu and Parañaque) complied with constitutional notice and quorum requirements, the Court applied the **hold-over principle** by analogy to corporate law (*Señeres v. COMELEC*) [3, 267–270]. The officers and Interim Central Committee existing prior to the split continue to hold office until valid elections are held.

One-Sentence Doctrine Anchor

Once a party-list nominee assumes office as a Member of Congress, the HRET possesses exclusive jurisdiction over any party expulsion that touches upon his continuing qualifications, ousting the COMELEC of jurisdiction.

LICO v COMELEC (2015)

Topic Subtopic	Branches of Government Congress Power, Composition, Qualification and Term of Office	GR No. & Ponente	G.R. No. 205505 C.J. Sereno
Petitioner/s	ATTY. ISIDRO Q. LICO, Et al;	Respondent/s	COMELEC
Doctrine	COMELEC has jurisdiction over disputes involving the internal leadership of a party-list organization, but once a party-list nominee has assumed office as a Member of the House of Representatives, questions concerning his qualifications as a Member fall within the exclusive jurisdiction of the HRET.		

FACTS

- Ating Koop (AK) is a registered party-list organization.
 - The National Council is the highest policymaking body, but its Central Committee (CC) exercises authority when the National Council is not in session.
- 2010 elections: Isidro Lico was the first nominee of Ating Koop and was subsequently proclaimed as its party-list representative.
 - Nominees entered into a term-sharing agreement → Lico would serve the first year of the three-year term, followed by the succeeding nominees.
- May 14, 2014 → Ating Koop held its Second National Convention, during which amendments to its Constitution and By-Laws were introduced.
 - Changed the composition of the Central Committee, which would consist of 15 representatives → 5 each from Luzon, Visayas, and Mindanao.
 - Elections for the new CC were to be held w/in 6 months from the Second National Convention.
 - In the meantime, the Interim Central Committee continued to function, led by Rimas.
- Dec. 5, 2011 → Rimas-led Central Committee expelled Lico from Ating Koop, citing allegations of graft and corruption and his failure to honor the term-sharing agreement.
 - Dec. 11 → Lico faction held a Special National Convention in Cebu and elected its own set of Central Committee members.
 - Jan. 21 2012 → Rimas faction held another Special National Convention in Parañaque and likewise elected a new set of Central Committee members.
- Rimas faction went to COMELEC, seeking recognition of its faction and challenging Lico's continued status as Ating Koop's party-list representative.
 - COMELEC Second Division upheld Lico's expulsion from Ating Koop + declared Jonathan D. Mascana as the duly qualified nominee of the partylist group
- Lico group filed a Motion for Reconsideration from the Second Division's Resolution, which the COMELEC en banc denied, arriving at a resolution.
 - COMELEC held that it had no jurisdiction to expel Congressman Lico from the House of Representatives and it was HRET that had jurisdiction over the petition.
 - COMELEC also recognized the Rimas group as the legitimate representative of the partylist.
- Lico elevated the case to the Supreme Court arguing that COMELEC had no jurisdiction to determine the validity of his expulsion from Ating Koop and that the Rimas faction had no authority to represent the party-list organization.

I

SSUE 1

Main – Procedural	W/N COMELEC had jurisdiction to expel Lico from House	NO
--------------------------	--	-----------

RULING and RATIO DECIDENDI:

- COMELEC correctly recognized that it had no jurisdiction to unseat Lico from the House.
 - Under Sec. 17, Art. VI of the Constitution, the HRET is the sole judge of all contests relating to the election, returns, and qualifications of Members of the House of Representatives.
 - HRET jurisdiction once the candidate has been proclaimed + taken his oath + assumed office.
 - Lico had already satisfied all three requirements, thus his continuing qualification to remain a

Member of the House was already within the exclusive jurisdiction of the HRET. • Bona fide membership in the party-list organization is a continuing qualification of a party-list representative → Lico's alleged expulsion from Ating Koop is a matter for the HRET, not COMELEC. ◦ COMELEC could not effectively determine that Lico had lost his qualification as a Member of the House by virtue of his expulsion from Ating Koop. • <i>Lokin v. COMELEC</i> does not authorize COMELEC to resolve the present controversy insofar as it concerns Lico's status as an incumbent Member of the House. ◦ In <i>Lokin</i>, the dispute concerned party-list nominees before they became Members of Congress. ◦ Here, Lico had already been proclaimed, sworn in, and had assumed office.
LEGAL BASES
<i>Sec. 17, Art. VI of the 1987 Constitution</i> → HRET shall be the sole judge of all contests relating to the election, returns & qualifications of the Members of the House of Representatives <i>Abayon v. HRET</i> → petitioners did not belong to the marginalized and under-represented sectors that they should represent; as such, they could not be properly considered bona fide members of their respective party-list organizations. Court said it is up for the HRET to determine the qualifications of its members.

ISSUE 2

Main – Substantive	W/N Reyes v. COMELEC applies to this case	NO
RULING and RATIO DECIDENDI:		
• Reyes v. COMELEC is distinguishable because the factual and jurisdictional circumstances were different. ◦ In Reyes, the petitioner had been proclaimed + taken her oath BUT had not yet assumed office ◦ Here, Lico had already been proclaimed + taken his oath + assumed office → the HRET had already acquired jurisdiction over Lico's qualifications • In Reyes, the COMELEC resolution had already become final and executory & the controversy involved preventing COMELEC from implementing that final judgment. ◦ In the present case, Lico's expulsion from Ating Koop itself affected his continuing qualification as a party-list representative, making the matter one for HRET.		

ISSUE 3

Main – Substantive	W/N Rimas group legitimately represent AK	NO
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
The dispute was an intra-corporate controversy beyond COMELEC's jurisdiction. The validity of the competing CC should therefore not have been determined by COMELEC.		The Cebu Convention was invalid because there was no sufficient showing that the required attendance/quorum was reached. The Parañaque Convention was valid because it was conducted pursuant to Ating Koop's Constitution and By-Laws.
RULING and RATIO DECIDENDI:		
• The Court did not recognize the Rimas faction as the legitimate group representing Ating Koop. ◦ The amendments to Ating Koop's Constitution and By-Laws on which the competing elections were based had not been registered with COMELEC. ◦ Amendments affecting its organizational structure must be recognized/approved through the proper COMELEC process before they can produce the claimed legal effects. • Even assuming the amendments were effective, neither conventions were sufficiently shown to be valid. ◦ Cebu convention → insufficient evidence establishing that the required members were present = necessary quorum was not established ◦ Paranaque convention → minutes failed to establish proper notice and quorum = invalid CC • Since neither faction established the validity of its claimed election → Interim CC and officers existing		

before the split as the legitimate leadership of Ating Koop.

LEGAL BASES

Dayao v COMELEC: We declared that it is the State, acting through the COMELEC, that breathes life to a party-list organization. The implication, therefore, is that the State, through the COMELEC, is a party to the principal contracts entered into by the party-list organization and its members as such it requires the consent of all the parties involved.

Equipose doctrine: when both parties' evidence are balanced, the party with the burden of proof fails.

FINAL DECISION

WHEREFORE, premises considered, the Petition is GRANTED. The COMELEC En Banc Resolution dated 31 January 2013 and the COMELEC Second Division Resolution dated 18 July 2012 in E.M. No. 12-039 are hereby ANNULLED and SET ASIDE insofar as it declares valid the expulsion of Congressman Lico from Ating Koop and it upholds the ATING KOOP Party-list Group represented by its President, Amparo T. Rimas, as the legitimate Party-list Group. A new one is entered DECLARING that the legitimate Central Committee and set of officers legitimately representing Ating Koop are the Interim Central Committee and set of officers prior to the split of Ating Koop.

An Waray Party-List v. Commission on Elections

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *An Waray Party-List, represented by Florencio Gabriel "Bem" Noel, and Victoria Isabel Noel, in her own personal capacity v. Commission on Elections, Danilo T. Pornias, Jr., and Jude A. Acidre*
- **Citation:** G.R. No. 268546, August 6, 2024 (En Banc)
- **Ponente:** Caguioa, J.

CHRONOLOGICAL MATERIAL FACTS

1. **2013 Party-List Elections & Initial Seat Allocation:** An Waray participated in the May 13, 2013 National and Local Elections (NLE) [49–50]. Its submitted list of nominees was: (1) Neil Benedict A. Montejo, (2) Jude A. Acidre, and (3) Victoria Isabel Noel. An Waray garnered 541,205 votes (1.96%).
2. **Promulgation of NBOC Resolutions (May 2013):**
 - *NBOC Resolution No. 0006-13 (May 24, 2013):* COMELEC sitting as National Board of Canvassers (NBOC) proclaimed An Waray as an initial winner guaranteed with **one seat**.
 - *NBOC Resolution No. 0008-13 (May 28, 2013):* Following the cancellation of other party-list groups, NBOC adjusted seat allocations and temporarily increased An Waray's allocation to **two seats**, explicitly stipulating that the adjustment was "*without prejudice to the proclamation of other parties, organizations or coalitions which may later on be established to be entitled to one guaranteed seat and/or additional seat*".
3. **Nominee Resignation & Assumption of First Seat:**
 - On May 29, 2013, second nominee Acidre resigned due to personal reasons, making Victoria Noel the new second nominee.
 - On June 5, 2013, the NBOC issued a **Certificate of Proclamation (CoP)** to An Waray entitling its first nominee, Montejo, to sit in the House. Montejo took his oath before Speaker Belmonte on June 26, 2013.
4. **Assumption of Second Seat Without Certificate of Proclamation:**
 - On July 13, 2013, Victoria Noel took an oath of office as a Member of the 16th Congress before Senator Escudero, relying solely on NBOC Resolution No. 0008-13.
 - An Waray's counsel sent a letter to NBOC requesting a CoP in favor of Victoria Noel [53, 100–101]. On July 17, 2013, via NBOC Resolution No. 0018-13, the NBOC **merely noted** the letter-request without issuing any CoP.
5. **Supervening Re-Allocation & Defiance (August 2014):**
 - On October 22, 2013, the Supreme Court decided *Abang Lingkod Party-List v. COMELEC*, ordering the reinstatement and proclamation of Abang Lingkod.
 - On August 20, 2014, COMELEC issued **NBOC Resolution No. 13-030 (PL)/0004-14**, recomputing seat allocations under the *BANAT* formula. In this final official tally, **An Waray was unequivocally allocated only ONE SEAT** [54, 97–98].
 - Despite official notice of this resolution and the complete absence of a CoP for Victoria Noel, An Waray permitted Victoria Noel to continue occupying the second seat and serve out the entire remainder of her term in the 16th Congress until 2016.

6. **Subsequent Elections & Cancellation Complaint (May 2019):** An Waray continued to participate in subsequent elections, winning one seat each in 2016, 2019, and 2022. On May 10, 2019, registered voter Danilo T. Pornias, Jr. and Jude A. Acidre (then second nominee of Tingog Sinirangan) filed a petition before COMELEC under Section 6(5) of R.A. No. 7941 to cancel An Waray's party-list registration.
 7. **Assailed COMELEC Resolutions:**
 - *COMELEC Second Division Resolution (June 2, 2023):* Granted the petition and cancelled An Waray's registration.
 - *COMELEC En Banc Resolution (August 14, 2023):* Denied An Waray's Motion for Reconsideration and affirmed the cancellation.
-

● PROCEDURAL HISTORY

1. **Administrative Action before COMELEC (SPP No. 19-008):** Pornias and Acidre filed a Petition for Cancellation of Registration under Section 6(5) of R.A. No. 7941. COMELEC Second Division cancelled the registration on June 2, 2023, and COMELEC En Banc affirmed on August 14, 2023 [49, 57–59].
 2. **Supreme Court Action:** Petitioners An Waray and Victoria Noel filed a Petition for Certiorari under Rule 64 in relation to Rule 65 before the Supreme Court with an urgent prayer for injunctive relief [48, 60–61].
-

● PARTIES' MATERIAL ARGUMENTS

- **Petitioners (An Waray Party-List & Victoria Isabel Noel):**
 1. **Lack of COMELEC Jurisdiction:** The case falls under the exclusive jurisdiction of the HRET under Article VI, Section 17 because its resolution depends on the validity of Victoria Noel's past membership and directly results in unseating Florencio "Bem" Noel, an incumbent sitting Member of the 19th Congress.
 2. **Excessive Penalty:** Cancellation of registration is too harsh a penalty for an alleged administrative defect committed over 10 years ago in 2013.
 3. **Violation of Right to Speedy Disposition of Cases & Equal Protection:** COMELEC's 4-year delay (2019 to 2023) in resolving the cancellation petition violated Article III, Section 16 of the Constitution.
 4. **Prescription:** The action to cancel registration prescribed under the 5-year bar in Section 267 of the Omnibus Election Code.
 - **Respondents (COMELEC via OSG & Private Respondents Pornias/Acidre):**
 1. **Exclusive COMELEC Jurisdiction:** The subject matter is a petition for cancellation of a party-list entity's registration under Section 6 of R.A. No. 7941, which falls exclusively under COMELEC's statutory authority [62, 64, 70–72]. HRET jurisdiction applies only to individual candidate contests [80–82].
 2. **Willful Violation of Election Laws:** An Waray arrogated unto itself the power to seat a second representative without a CoP and in direct defiance of NBOC Resolution No. 13-030 (PL)/0004-14 [58–59, 62, 95, 98].
 3. **No Violation of Speedy Disposition:** Petitioners failed to seasonably assert their right before COMELEC and suffered no actual prejudice, as they continued to run and win seats during the pendency.
 4. **Non-Prescription:** Party-list registration is a mere state concession that never gains finality or indefeasibility against revocation.
-

● ISSUES

1. **Whether the House of Representatives Electoral Tribunal (HRET), rather than COMELEC, has exclusive jurisdiction over the petition to cancel An Waray's party-list registration.** [66–67]
2. **Whether COMELEC committed grave abuse of discretion in cancelling An Waray's registration under Section 6(5) of R.A. No. 7941.** [66, 94–95]
3. **Whether An Waray's constitutional right to the speedy disposition of cases was violated by COMELEC's 4-year delay.**
4. **Whether the petition to cancel An Waray's party-list registration had already prescribed under Section 267 of the Omnibus Election Code.**

HOLDINGS AND CONTROLLING REASONING

1. On Jurisdiction: COMELEC HAS EXCLUSIVE JURISDICTION over party-list registration cancellation; HRET jurisdiction does NOT apply [70, 73, 80–82, 88].

- **Jurisdiction is Conferred by Law Based on Subject Matter:** Jurisdiction is a matter of substantive law determined by the nature or subject matter of the action filed, not by its collateral effects (*to see the effects of cancellation as determinative is to make the tail wag the dog*).
- **Statutory Command (R.A. No. 7941, Sec. 6 & Art. IX-C, Sec. 2(5)):** Both the Constitution and R.A. No. 7941 categorically vest in COMELEC the exclusive power to register political parties and cancel previously granted registrations [71–72, 81].
- **HRET Jurisdiction is Limited to Individual Sitting Members (Art. VI, Sec. 17):**
 - HRET jurisdiction attaches ONLY to contests relating to the election, returns, and qualifications of *individual sitting Members of the House* who meet the 3 requisites: (1) valid proclamation; (2) valid oath; and (3) assumption of office [75, 80, 85–86].
 - As settled in *ABC Party List v. COMELEC* and *Abayon v. HRET*, **it is the party-list nominee who becomes a Member of the House, NOT the party-list organization itself.** An Waray is a juridical entity incapable of taking an oath or assuming office.
- **Inapplicability to Victoria Noel and Bem Noel:**
 - *Victoria Noel:* She was not the respondent in the cancellation petition, and she was no longer a sitting Representative when the petition was adjudicated.
 - *Bem Noel:* Although cancelling An Waray's registration incidentally causes its sitting representative (Bem Noel) to lose his seat for the 2022–2025 term, **the nature of the suit remains a deregistration proceeding against the party-list entity**, which belongs exclusively to COMELEC [84, 87–88].
- **Distinguishing *Lico v. COMELEC*:** In *Lico*, the Court held that COMELEC could not validate the intra-party expulsion of an *incumbent sitting Member of Congress* because bona fide party membership was a continuing qualification of that individual legislator. Here, the action is NOT an intra-party expulsion of an individual representative, but a direct cancellation of the party-list entity's registration under Section 6 of R.A. No. 7941.

2. On Substantive Validity of Cancellation: COMELEC did NOT commit grave abuse of discretion; cancellation was VALID under R.A. No. 7941, Sec. 6(5) [94–95, 103].

- **Correction of Legal Error in COMELEC's Citation:** COMELEC erred in basing its ruling on Section 13 of R.A. No. 7941 (which imposes a duty on COMELEC to proclaim winners, not on the party) [95–96].
- **Willful Defiance of NBOC Seat Allocation:** Nevertheless, An Waray committed a flagrant violation of election laws under Section 6(5) by deliberately defying **NBOC Resolution No. 13-030 (PL)/0004-14** [95, 97–98].
- **Proof of Bad Faith and Absence of Certificate of Proclamation:**
 - An Waray knew that a Certificate of Proclamation (CoP) in favor of Victoria Noel was mandatory for her to assume office, as proven by its own letter-request to NBOC [100–102].
 - NBOC never issued a CoP to Victoria Noel.
 - When NBOC Resolution No. 13-030 (PL)/0004-14 officially recomputed the tally under *BANAT* and allocated **only ONE seat** to An Waray, An Waray consciously allowed Victoria Noel to continue

occupying a second seat until the end of her term in 2016. This arrogant usurpation of a legislative seat justified registration cancellation [102–103].

3. On Right to Speedy Disposition of Cases: NO VIOLATION of Article III, Section 16 [89–90, 92].

- **Differential Standard (Administrative vs. Criminal):** The strict parameters governing the right to a speedy trial in criminal cases (*Cagang v. Sandiganbayan*) do not automatically apply to purely administrative proceedings (*Abella v. COA*) [90–91, 104].
- **Failure to Prove Prejudice:** In administrative cases, the party invoking the right must prove actual, specific, and real injury [92–93]. An Waray suffered no prejudice from the 4-year administrative delay (2019 to 2023); in fact, it participated in and won seats in both the 2019 and 2022 elections during the pendency.
- **Waiver:** Failing to seasonably raise the inordinate delay before COMELEC while actively participating in the proceedings constitutes waiver/acquiescence [92–93].

4. On Prescription: NO PRESCRIPTION under Section 267 of the Omnibus Election Code [93–95].

- **Exclusivity to Criminal Election Offenses:** Section 267 of the OEC applies exclusively to criminal *election offenses* enumerated under Sections 261 and 262 [93–94]. A petition to cancel party-list registration is an administrative proceeding, not a criminal prosecution [93–94].
- **Nature of Party-List Registration as a Legislative Franchise (*Dayao v. COMELEC*):** A party-list registration is a mere privilege/concession granted by the State, akin to a legislative franchise. It never gains finality or irrefutable conclusiveness against the granting authority; hence, COMELEC's statutory power to revoke a registration under R.A. No. 7941 **does not prescribe** [94–95].

DOCTRINE, TESTS, AND LEGAL STANDARDS

1. **Test of Jurisdiction over Party-List Entities vs. Nominees (*ABC Party List Rule*):** Jurisdiction is determined by the subject matter of the action. COMELEC possesses exclusive jurisdiction over petitions to cancel the registration of party-list organizations under R.A. No. 7941 [70–72, 80–81]. HRET jurisdiction attaches **ONLY** to contests touching upon the election, returns, and qualifications of individual nominees who have become Members of the House.
2. **Requisites for HRET Jurisdiction:** HRET jurisdiction attaches upon the concurrence of three requisites in the person of the candidate/nominee: (1) a valid proclamation (evidenced by a Certificate of Proclamation issued to the nominee); (2) a valid oath of office; and (3) assumption of office.
3. **Franchise Doctrine of Party-List Registration (*Dayao Rule*):** Registration as a party-list group is a mere statutory concession/privilege akin to a legislative franchise granted by Congress through COMELEC. It never attains perpetual or irrefutable conclusiveness, and the authority to revoke registration under Section 6 of R.A. No. 7941 does not prescribe [94–95].
4. **Prejudice Test for Administrative Delay (*Abella Standard*):** Unlike criminal prosecutions, establishing a violation of the right to speedy disposition in purely administrative proceedings requires the claimant to demonstrate actual, specific, and real prejudice caused by the delay [92–93].

DISPOSITION

- **Ruling:** The Petition for Certiorari is **DISMISSED**. All provisional injunctive remedies are **DENIED**.
- **Affirmance:** The COMELEC Second Division Resolution dated June 2, 2023 and COMELEC En Banc Resolution dated August 14, 2023 in SPP No. 19-008 cancelling An Waray's party-list registration are **AFFIRMED**.

● SEPARATE OPINIONS & OBITER

2. Dissenting Opinion of Justice Amy C. Lazaro-Javier [113–151]

- **Lack of COMELEC Jurisdiction:** Maintained that because the cancellation of An Waray's registration directly resulted in stripping incumbent Representative Bem Noel of his House seat, the action touched upon the qualifications of a sitting Member of Congress, falling under the exclusive jurisdiction of the HRET (*Lico v. COMELEC*) [114–115, 120, 122–125].
- **Equitable Estoppel against Government:** Argued that COMELEC was estopped after failing to act for six years (2013 to 2019) while explicitly recognizing Victoria Noel's assumption in pleadings filed in other cases (*Aangat Tayo*) [131, 133–138].
- **Violation of Speedy Disposition & Operative Fact:** Contended that COMELEC's unexplained 4-year delay violated speedy disposition [139–140], and that the votes cast by the electorate in 2013, 2016, and 2022 should be respected under the **operative fact doctrine** [147–148]. Voted to refer the case to the HRET [150–151].

● RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *An Waray Party-List v. COMELEC* (2024), An Waray's second nominee, Victoria Noel, took an oath and served a full term in the 16th Congress (2013–2016) without a Certificate of Proclamation (CoP) and in defiance of NBOC Resolution No. 13-030 (PL)/0004-14, which officially allocated only ONE seat to An Waray under BANAT. In 2019, a petition was filed under Section 6(5) of R.A. 7941 to cancel An Waray's registration. COMELEC cancelled the registration in 2023. An Waray petitioned the Supreme Court under Rule 64/65, claiming HRET had exclusive jurisdiction, its right to speedy disposition was violated, and the action had prescribed.

The Supreme Court En Banc, through Justice Caguioa, DISMISSED the petition and AFFIRMED the cancellation. The Court held: (1) COMELEC has exclusive jurisdiction under Section 6 of R.A. 7941 to cancel party-list registrations. HRET jurisdiction under Art. VI, Sec. 17 applies ONLY to individual sitting nominees. Although cancellation incidentally unseats sitting representative Bem Noel, the nature of the action—not its collateral effect—determines jurisdiction; (2) An Waray committed a serious violation of election laws by seating an unproclaimed nominee in defiance of official seat allocations; (3) Right to speedy disposition was not violated because in administrative cases, the claimant must prove actual prejudice, and An Waray suffered none while winning seats in 2019 and 2022; and (4) Registration is a revocable state concession akin to a franchise, and actions for cancellation do NOT prescribe."* [48, 54–55, 58–59, 70–73, 80, 82, 88, 92, 95, 98, 102–105]

One-Sentence Doctrine Anchor

COMELEC possesses exclusive jurisdiction to cancel the registration of a party-list organization for defying election laws, and such administrative deregistration action does not prescribe nor fall under HRET jurisdiction merely because it collaterally affects a sitting

An Waray Party-List v. Commission on Elections (2024)

Topic Subtopic	Branches of the Gov - Congress Power, Composition, Qualification, Term of Office	GR No. & Ponente	GR No. 268546 Caguioa J
Petitioner/s	AN WARAY PARTY-LIST, REPRESENTED BY FLORENCIO GABRIEL "BEM" NOEL, AND VICTORIA ISABEL NOEL, IN HER OWN PERSONAL CAPACITY	Respondent/s	COMMISSION ON ELECTIONS, DANILO T. PORNIAS, JR.,• AND JUDE A. ACIDRE
Doctrine	HRET jurisdiction attaches ONLY to contests touching upon the election, returns, and qualifications of individual nominees who have become Members of the House. HRET jurisdiction attaches upon the concurrence of three requisites in the person of the candidate/nominee: (1) a valid proclamation (evidenced by a Certificate of Proclamation issued to the nominee); (2) a valid oath of office; and (3) assumption of office.		

FACTS
CONTEXT: AN WARAY participated in the May 13, 2013 National and Local Elections (NLE). Its submitted list of nominees was: (1) Neil Benedict A. Montejo, (2) Jude A. Acidre, and (3) Victoria Isabel Noel. An Waray garnered 541,205 votes (1.96%) NBOC RESOLUTIONS - NBOC Resolution No. 0006-13 (May 24, 2013): COMELEC sitting as National Board of Canvassers (NBOC) proclaimed An Waray as an initial winner guaranteed with one seat. - Following the cancellation of other party-list groups, NBOC adjusted seat allocations and temporarily increased An Waray's allocation to two seats, explicitly stipulating that the adjustment was <i>"without prejudice to the proclamation of other parties, organizations or coalitions which may later on be established to be entitled to one guaranteed seat and/or additional seat"</i>. 2ND NOMINEE ACIDRE RESIGNS - On May 29, 2013, second nominee Acidre resigned due to pressing personal reasons, making Victoria Noel the new second nominee. - On June 5, 2013, the NBOC issued a Certificate of Proclamation (CoP) to An Waray for ONE seat, entitling its first nominee, Montejo, to sit in the House. VICTORIA TAKES OATH SEPARATELY - On July 13, 2013, Victoria Noel took an oath of office as a Member of the 16th Congress before Senator Escudero, relying solely on NBOC Resolution No. 0008-13. - An Waray's counsel sent a letter to NBOC requesting a CoP in favor of Victoria Noel, the NBOC merely noted the letter-request without issuing any CoP. ABANG-LINKOD v. COMELEC DECIDED -> AN WARAY ONLY ONE SEAT FINAL - The Supreme Court decided Abang Lingkod Party-List v. COMELEC, ordering the reinstatement and proclamation of Abang Lingkod. - COMELEC issued another NBOC Resolution recomputing seat allocations under the BANAT formula. In this final official tally, An Waray was unequivocally allocated only ONE SEAT - Despite official notice of this resolution and the complete absence of a CoP for Victoria Noel, An Waray permitted Victoria Noel to continue occupying the second seat and serve out the entire remainder of her term in the 16th Congress until 2016. CURRENT PETITION: FOLLOWING ELECTIONS + DANILO PORNIAS PETITION - An Waray continued to participate in subsequent elections, winning one seat each in 2016, 2019, and 2022.

- **Danilo Pornias** (as a registered voter and taxpayer) + **Acidre** (now the 2nd nominee of Tingog Silangan PL) filed a **petition for cancellation of An Waray's registration** based on Section 6(5) of Republic Act No. 794120 or the "Party-List System Act"
- With An Waray's knowledge and consent, **Victoria deliberately took her oath without valid NBOC proclamation** + being given one seat only. **They claim this is a violation of election laws = CANCELLATION OF REGISTRATION**

PETITION FOR CERTIORARI FILED BY AN WARAY

- COMELEC 2nd Division granted petition (cancelled An Waray's registration)
- COMELEC en banc affirmed 2nd division's decision
- An Waray and Victoria went to SC; filed this instant **Petition for Certiorari with Urgent Prayer for Preliminary Injunction, TRO, Status Quo Ante Order** (WRI/TRO/SQAO)

SUMMARY OF PET (AN WARAY) ARGUMENTS:

- Lack of COMELEC Jurisdiction → HRET dapat
- COMELEC is imposing an excessive Penalty / too harsh
- COMELEC is violating Right to Speedy Disposition of Cases & Equal Protection (Consti Article III, Section 1637)
- Alleged law violation already prescribed
- Petitioners later received official communication that they're dropped from HoR membership, this case is urgent (irreparable damage to first nominee and electorate he represents)

SUMMARY OF RES (COMELEC + ACIDRE) ARGUMENTS:

- Exclusive COMELEC Jurisdiction
- An Waray committed Willful Violation of Election Laws
- No Violation of Speedy Disposition - failure to raise violation on right to speedy disposition effectively waives such right
- Complaint about unconstitutional acts = no prescription, prescription claim untenable as this isn't an election offense
- COMELEC also opposed WRI/TRO/SQAO bec right to participate in the election are reserved for those compliance with RA 7941 + no urgency needed next partylist election is still in 2025

ISSUE 1: Whether the House of Representatives Electoral Tribunal (HRET), rather than COMELEC, has exclusive jurisdiction over the petition to cancel An Waray's party-list registration if its nominees became members of HOR

PETITIONER/S AN WARAY's ARGUMENTS:

Lack of COMELEC Jurisdiction: The case falls under the exclusive jurisdiction of the **HRET** (contesting elox, returns, qualifications) under **Article VI, Section 17** because its resolution **depends on the validity of Victoria Noel's past membership in the HOR** and directly results in unseating Florencio "Bem" Noel, an incumbent sitting Member of the 19th Congress.

Even if COMELEC has jurisdiction + theres a violation: cancellation of An Waray's registration is too hard given theres not even an evidence that An Waray played a part.

RESPONDENT/S ARGUMENTS:

Exclusive COMELEC Jurisdiction: The subject matter is a petition for cancellation of a party-list entity's registration under **Section 6 of R.A. No. 7941**, which falls exclusively under COMELEC's statutory authority. **HRET jurisdiction applies only to individual candidate contests.**

RULING and RATIO DECIDENDI for ISSUE 1:

On Jurisdiction: COMELEC HAS EXCLUSIVE JURISDICTION over party-list registration cancellation; HRET jurisdiction does NOT apply

- **RA 7941:** COMELEC is categorically provided such power to cancel party-list registrations under the law.

- Jurisdiction over cancellation of party-list registrations is categorically conferred by **Section 6 of Republic Act No. 7941** on COMELEC, thus:
 - **SEC. 6. Refusal and/or Cancellation of Registration.** – *The COMELEC may, motu proprio or upon verified complaint of any interested party, refuse or cancel, after due notice and hearing, the registration of any national, regional or sectoral party, organization or coalition on any of the following grounds:*
- **CONSTITUTION:** Constitution likewise support this COMELEC power (Article IX-C, Section 2).
 - Both the Constitution and R.A. No. 7941 categorically vest in COMELEC the exclusive power to register political parties and cancel previously granted registrations:
 - **SECTION 2.** The Commission on Elections shall exercise the following powers and functions: **(5) Register, after sufficient publication, political parties,** organizations, or coalitions which, in addition to other requirements, must present their platform or program of government
- **NO HRET JURISDICTION:**
 - HRET jurisdiction attaches **ONLY to contests relating to the election**, returns, and qualifications of individual sitting Members of the House. (according to Article VI, Section 17)
 - **Members of the House who meet the 3 requisites:**
 - (1) valid proclamation;
 - (2) valid oath; and
 - (3) assumption of office
 - The HRET does **NOT have jurisdiction over petitions to cancel the registration of party-lists**, including those whose nominees are HoR members.
 - **NOT ALL CASES ARE COGNIZABLE BY COMELEC THOUGH: Court says that if it is under HRET, then Court cant take cognizance as well until HRET decided and matter is brought to SC for review**
 - usually a court that started the case retains jurisdiction until final judgment
 - in election cases, even if COMELEC started the case (qualifications + eligibilities for HoR reps) once the candidates win and assume office, HRET takes jurisdiction (NOT all cases cognizable by COMELEC)
 - **Vinzons-Chato v COMELEC** - when HRET jurisdiction starts  (only cases related to elox, returns, qualifications of such member — other remains under COMELEC)
- **ANYWAY, THIS DOES NOT APPLY TO PETITION FOR CANCELLING REGISTRATION:**
 - The **HRET does not have jurisdiction over petitions to cancel the registration of party-lists**, including those whose nominees are HoR members.
 - Petition is **anchored on Victoria's proclamation** (that HoR mem = HRET jurisdiction, according to ART VI of Consti)
 - As settled in **ABC Party List v. COMELEC**, **COCOFED v. COMELEC** and **Abayon v. HRET**, it is the **party-list nominee who becomes a Member of the House, NOT the party-list organization itself**. An Waray is a juridical entity incapable of taking an oath or assuming office.
 - Nominees are the HoR members so it's only their elox, returns, qualifications thats under HRET, not partylist's. **(registration cancellation is under COMELEC)**
 - **An Waray not HoR member (its nominee is) = COMELEC jurisdiction, not HRET**
 - nominee's possible HoR removal after partylist cancellation does not mean its now under HRET
 - HRET jurisdiction should be determined by the nature of the case, not by possible effects, otherwise even criminal cases like rape or libel would have to be dismissed by regular courts and improperly referred to HRET.
 - **Jalosjos v COMELEC - COMELEC** has the positive duty to cancel a CoC when a candidate is legally disqualified (convicted of rape) even without a petition
- **VS. LICO v. COMELEC:**
 - In **Lico v. COMELEC**, the Court held that COMELEC could not validate the intra-party expulsion of an incumbent sitting Member of Congress because bona fide party membership was a continuing

qualification of that individual legislator. Here, **the action is NOT an intra-party expulsion of an individual representative, but a direct cancellation of the party-list entity's registration** under Section 6 of R.A. No. 7941 which is under COMELEC.

ISSUE 2: Whether An Waray's constitutional right to the speedy disposition of cases was violated by COMELEC's 4-year delay.

PETITIONER/S ARGUMENTS:

COMELEC should have dismissed the petition for cancellation of Certificate of Candidacy (CoC) **after Constitutionally mandated 60 day period** (Consti Article IX-A, Section 736) to decide the case lapsed + **it was also a violation of petitioner's right to speedy disposition of cases** (Consti Article III, Section 1637)

RULING and RATIO DECIDENDI for ISSUE 2:

On Right to Speedy Disposition of Cases: NO VIOLATION of Article III, Section 16 [89–90, 92].

- **THERES DELAY BUT AN WARAY FAILED TO RAISE IT (accrdg to Justice Gaerlan)**
 - An Waray had waived its right - failed to raise it in the four years it was pending
 - delay had no actual prejudice to petitioners, An Waray was still able to participate, even win seats in HoR
- **AN WARAY IS NOT A CRIMINAL CASE = BURDEN OF PROOF ON THEM**
 - **An Waray (administrative case)**
 - **Cagang v Sandiganbayan (criminal case) -**
 - [T]he right to speedy disposition of cases is different from the right to speedy trial. While the rationale for both rights is the same, the right to speedy trial may only be invoked in criminal prosecutions against courts of law. T
 - While the right to speedy trial is invoked against courts of law, the right to speedy disposition of cases may be invoked before quasi-judicial or administrative tribunals in proceedings that are adversarial and may result in possible criminal liability.
 - **HOWEVER, The strict parameters governing the right to a speedy trial in criminal cases (Cagang v. Sandiganbayan) do not automatically apply to purely administrative proceedings (Abella v. COA).**
 - **Abella v COA Proper** - stricter requirement of actual, specific, real injury in contrast to Cagang
 - An Waray had the burden to prove that its right was violated
 - Reasonable that the Constitution more vigorously guards the people against the State's delay in criminal proceedings as compared to other types of cases (An Waray not a criminal case)
- **FAILED TO PROVE PREJUDICE:**
 - In administrative cases, the party invoking the right must prove actual, specific, and real injury. An Waray suffered no prejudice from the 4-year administrative delay (2019 to 2023); in fact, it participated in and won seats in both the 2019 and 2022 elections during the pendency.
 - **Waiver:** Failing to seasonably raise the inordinate delay before COMELEC while actively participating in the proceedings constitutes waiver/acquiescence.

ISSUE 3: Whether the petition to cancel An Waray's party-list registration had already prescribed under Section 267 of the Omnibus Election Code.

PETITIONER/S ARGUMENTS:

Alleged law violation already prescribed (Sec 267 Omnibus Election Code - election offenses shall prescribe after 5 years reckoned from the date of commission) – An Waray is being stripped of

RESPONDENT/S ARGUMENTS:

Complaint about unconstitutional acts = no prescription, prescription claim untenable as this isnt an election offense

membership over an alleged offense 10 years ago (2013)

RULING and RATIO DECIDENDI for ISSUE 2:

On Prescription: NO PRESCRIPTION under Section 267 of the Omnibus Election Code [93–95].

- **EXCLUSIVITY TO CRIMINAL ELECTION OFFENSES:** Section 267 of the OEC applies exclusively to criminal election offenses enumerated under Sections 261 and 262. A petition to cancel party-list registration is an administrative proceeding, not a criminal prosecution
 - **SECTION 267. Prescription.** — Election offenses shall prescribe after five years from the date of their commission. If the discovery of the offense be made in an election contest proceedings, the period of prescription shall commence on the date on which the judgment in such proceedings becomes final and executory. (Sec. 185, Id.) Sec 261 & 262 of OEC also listed election offenses, **petition to cancel a partylist reg is NOT PART OF IT**
- **NATURE OF PARTY-LIST REGISTRATION AS A LEGISLATIVE FRANCHISE (DAYAO V. COMELEC):** A party-list registration is a mere privilege/concession granted by the State, akin to a legislative franchise. It never gains finality or irrefutable conclusiveness against the granting authority; hence, COMELEC's statutory power to revoke a registration under R.A. No. 7941 does not prescribe
 - RA 7941 and COMELEC Rules silent on period of filing petition to cancel registration of partylist. Consti Art 1149 cannot apply as this case is not an ordinary suit
 - Dayao v COMELEC - party-list accreditation is a privilege, not a vested right, similar to a franchise granted by Congress. COMELEC can register and cancel + accreditation or factual findings supporting it cant be permanently final or irrevocable

LEGAL BASES

ART. 1149. All other actions whose periods are not fixed in this Code or in other laws must be brought within five years from the time the right of action accrues. (n) NOT APPLICABLE

Spouses Edralin v. Philippine Veterans Bank - Art 1149 for actions (ordinary suit ordinary suit in a court of justice, by which one party prosecutes another for the enforcement or protection of a right, or the prevention or redress of a wrong)

ISSUE 4: Whether COMELEC committed grave abuse of discretion in cancelling An Waray's registration under Section 6(5) of R.A. No. 7941

RULING and RATIO DECIDENDI for ISSUE 2:

On Substantive Validity of Cancellation: COMELEC did NOT commit grave abuse of discretion; cancellation was VALID under R.A. No. 7941, Sec. 6(5)

CORRECTION OF LEGAL ERROR IN COMELEC'S CITATION:

- COMELEC did not commit grave abuse of discretion in exercising jurisdiction, BUT erred in cancelling An Waray's registration based on Section 13 of R.A. No. 7941 (which imposes a duty on COMELEC to proclaim winners, not on the party)

WILLFUL DEFIANCE OF NBOC SEAT ALLOCATION:

- Nevertheless, An Waray committed a flagrant violation of election laws under Section 6(5) by deliberately defying NBOC Resolution No. 13-030..
- Proof of Bad Faith and Absence of Certificate of Proclamation:
 - An Waray knew that a Certificate of Proclamation (CoP) in favor of Victoria Noel was mandatory for her to assume office, as proven by its own letter-request to NBOC.
 - NBOC never issued a CoP to Victoria Noel.
 - Even after getting a notice about this, they still occupied TWO seats

- When NBOC officially recomputed the tally under BANAT and allocated only ONE seat to An Waray, An Waray consciously allowed Victoria Noel to continue occupying a second seat until the end of her term in 2016. This arrogant usurpation of a legislative seat justified registration cancellation.

Applying the *Banat* formula using Party-List Canvass Report No. 11, after deducting the votes for the disqualified party-list groups, but maintaining the votes for SENIOR CITIZENS in view of the pendency of its case before the Supreme Court, and the votes for ABANG LINGKOD considering the reversal of the cancellation of its registration by the Supreme Court, the computation shows that PBA is not entitled to a party-list seat. To illustrate:

Rank	Party-List	Votes Garnered as of 28 May 2013	% of Votes Garnered (A)	Guaranteed Seats (1st Round) (B)	Additional Seat (2nd Round) = (58-14) (A)	Total Seats
xxx xxx xxx						
15	AN WARAY	541,205	1.96	N.A.	0.86	1 102

LEGAL BASES

SEC. 13. How Party-List Representatives are Chosen.

Party-list representatives shall be proclaimed by the COMELEC based on the list of names submitted by the respective parties, organizations, or coalitions to the COMELEC according to their ranking in said list.

FINAL DECISION

ACCORDINGLY, the Petition for Certiorari is DISMISSED. The Urgent Prayer for Preliminary Injunction, Temporary Restraining Order and/or Status Quo Ante Order with Motion for Conduct of Special Raffle under Rule 64, in relation to Rule 65 of the Rules of Court is likewise DENIED. The assailed Resolution dated June 2, 2023 of the Commission on Elections Second Division and Resolution dated August 14, 2023 of the Commission on Elections En Banc in SPP No. 19-008 are hereby AFFIRMED.

SO ORDERED.

SEPARATE OPINION/S

Lazaro-Javier J,
dissenting

NO JURISDICTION - "The COMELEC did not have jurisdiction over the petition for cancellation of AN WARAY's party-list registration which directly affects its membership in the Larger House"

a. COMELEC's constitutional and statutory authority

COMELEC did not have jurisdiction because it questioned the qualifications of an incumbent party-list representative(altho being labeled a cancellation of party-list registration) thus it's under HRET

b. HRET Constitutional Jurisdiction

HRET has exclusive and complete jurisdiction over all contests involving the election, returns, and qualifications of HoR members, including party-list nominees who become representatives (also cited Abayon v HRET)

c. HRET Jurisdiction over the Qualifications of an Incumbent Party-List Member of the House of Representatives

"Court must harmonize and limit COMELEC's statutory power with the jurisdiction of HRET because the latter has roots in the Constitution."

Lico v COMELEC - COMELEC's authority over intra-party matters ends when controversy affects an incumbent House member's qualifications or title

- Since cancelling An Waray's registration directly affected the title and qualifications of the incumbent partylist and its nominee, it should be

exclusively under HRET

- The member of HoR is the partylist, the nominees are just agents
- Allowing COMELEC to cancel an incumbent party-list's registration could circumvent HRET jurisdiction, can remove a member even after the period has expired for contesting -> COMELEC should defer to the HRET when partylist is already an incumbent HoR member

COMELEC RECOGNIZED AN WARAY REGARDLESS / ESTOPPED ITSELF "The COMELEC has explicitly recognized An WARAY's assumption into office and its membership in the House of Representatives following the 2013 NLE"

- COMELEC never revoked the second seat, no explanation for not issuing CoP for Victoria
- An Waray assumed two seats for 3 years without contest, even won after but still no objection so COMELEC must be estopped from assailing validity of 2nd seat now
- COMELEC itself recognized An Waray's entitlement to a second seat through Victoria in Aangat Tayo Party-list v. COMELEC

Pursuant to NBOC Resolution No. 0008-13, the respective representatives of private respondents took their oaths and began to discharge their duties as members of the 16th Congress. They are:

POLITICAL PARTY/COALITION/SECTORAL ORGANIZATIONS	REPRESENTATIVES
xxx xxx xxx	
AN WARAY	
	MONTEJO, NEIL BENEDICT A.
	NOEL, VICTORIA G.

- tldr Waray and Victoria etc had no reason to believe they were violating something

INORDINATE DELAY "The inordinate delay of COMELEC in resolving the case against AN WARAY warranted its dismissal"

- cited same cases as the majority (but different view: An Waray is HoR member)
- **Rosario v. Commission on Audit** - four factors to determine if there is delay (the length of delay, the reason for the delay, assertion of right, and prejudice to petitioner)
- **Limkaichong v. COMELEC** - "any allegations as to the invalidity of the proclamation will not prevent the HRET from assuming jurisdiction over all matters essential to a member's qualification to sit in the HoR."
- COMELEC's resolution was executory but not final as An Waray timely filed a Rule 64 petition + decision issued without jurisdiction or with grave abuse of discretion is void and cannot attain finality

NO RETROACTIVE EFFECT "The cancellation of An Waray's party-list registration may not retroactively take effect"

- COMELEC acted without jurisdiction
- people's vote and An Waray's existing membership must be respected
- operative fact doctrine (past effects of law remain valid after such law became unconstitutional) *"Indeed, the doctrine of operative fact is an exception to the general rule that the nullification of an unconstitutional law or act carries with it the illegality of its effects. In cases, however, where nullification of the effects will result in inequity and injustice, as here, the operative fact doctrine may apply."*
- COMELEC's resolutions void, refer cancellation case to the HRET for appropriate disposition

Coalition of Associations of Senior Citizens in the Philippines, Inc. v. Commission on Elections

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Coalition of Associations of Senior Citizens in the Philippines, Inc. (SENIOR CITIZENS Party-List), represented herein by its Chairperson and First Nominee, Francisco G. Datol, Jr. v. Commission on Elections* (G.R. Nos. 206844-45); consolidated with *Coalition of Associations of Senior Citizens in the Philippines, Inc. (SENIOR CITIZENS), represented by its President and Incumbent Representative in the House of Representatives, Atty. Godofredo V. Arquiza v. Commission on Elections* (G.R. No. 206982).
- **Citation:** G.R. Nos. 206844-45 & G.R. No. 206982, July 23, 2013 (En Banc).
- **Ponente:** Leonardo-de Castro, J..
- **Bench Composition:** Sereno, C.J., Carpio, Brion, Peralta, Bersamin, Del Castillo, Abad, Villarama, Jr., Perez, Mendoza, Reyes, Perlas-Bernabe, and Leonen, JJ., concurring; Velasco, Jr., J., took no part due to the party-list affiliation of his wife.
- **Syllabus Relevance & Topic:**
 1. **Administrative Due Process in Election Cases (*Ang Tibay* Standards):** Mandate that COMELEC provide fair warning, adequate notice, and a meaningful opportunity to be heard before cancelling a party-list group's registration under Section 6 of R.A. No. 7941.
 2. **Prohibition Against Term-Sharing Agreements:** Unenforceability and nullity of term-sharing covenants among party-list nominees for being contrary to public policy and Article VI, Section 7 of the 1987 Constitution.
 3. **Non-Implementation of Void Covenants as Defense:** Non-applicability of cancellation sanctions under Section 6(5) of R.A. No. 7941 when a prohibited term-sharing agreement was desisted from, abandoned, and never actually implemented.
 4. **Prospectivity of Election Administrative Rules (Art. 4, Civil Code):** Non-retroactive application of administrative rules (Section 7, Rule 4 of COMELEC Resolution No. 9366) to acts completed prior to their promulgation, absent express retroactive statutory intent [147–148, 190–191].

CHRONOLOGICAL MATERIAL FACTS

1. **Accreditation and 2007 Elections:** On March 16, 2007, COMELEC accredited the Coalition of Associations of Senior Citizens in the Philippines, Inc. (SENIOR CITIZENS) as a party-list organization. It ran in the 2007 elections, failed to reach the 2% threshold, but was awarded one seat under the *BANAT* formula, occupied by Rep. Godofredo V. Arquiza.
2. **Execution of the "Irrevocable Covenant" / Term-Sharing Agreement (2010):** Prior to the May 10, 2010 elections, the nominees of SENIOR CITIZENS executed an "Irrevocable Covenant" agreeing to share terms:
 - If 1 seat won: Nominee 1 (Arquiza) serves 2 years; Nominee 2 (David L. Kho) serves 1 year.
 - If 2 seats won: Nominee 1 (Arquiza) serves 3 years; Nominee 2 (Kho) serves 1.5 years; Nominee 3 (Francisco G. Datol, Jr.) serves 1.5 years.
3. **2010 Elections and Resignation Tender:** SENIOR CITIZENS won two seats in the 2010 elections, occupied by Rep. Arquiza and Rep. Kho. Pursuant to the agreement, Rep. Kho tendered his written resignation effective December 31, 2011 to allow 3rd nominee Datol to assume the seat.

4. **Recall of Resignation and Board Reconsideration (March 12, 2012):** Before the resignation took effect, Rep. Kho reconsidered his decision and requested to complete his full 3-year term. On March 12, 2012, the Board of Trustees (Arquiza Group) issued Board Resolution No. 003-2012, recalling its acceptance of Kho's resignation and allowing Kho to serve out his entire term until June 30, 2013.
 5. **Promulgation of COMELEC Resolution No. 9366 (February 21, 2012):** COMELEC promulgated Resolution No. 9366, Section 7, Rule 4 of which formally prohibited term-sharing: "*Filling of vacancy as a result of term sharing agreement among nominees of winning party-list groups/organizations shall not be allowed*".
 6. **Dismissal of E.M. No. 12-040 (June 27, 2012):** Arquiza filed a petition in E.M. No. 12-040 seeking confirmation of Kho's replacement, but later moved to withdraw it after Kho decided to stay. On June 27, 2012, COMELEC En Banc dismissed E.M. No. 12-040, declaring the term-sharing agreement null and void, refusing to recognize Kho's resignation, and ruling that **no vacancy was created** [124–125, 167–168]. Consequently, Rep. Kho continued to hold his seat and served his full 3-year term until June 30, 2013.
 7. **Review Under Resolution No. 9513 & First Cancellation (December 4, 2012):** Rival factions (Arquiza Group and Datol Group) filed separate Manifestations of Intent to Participate in the May 13, 2013 elections. On August 24, 2012, COMELEC held a summary hearing under Resolution No. 9513 focused on continuing compliance. On December 4, 2012, COMELEC En Banc (4-3 vote) cancelled SENIOR CITIZENS' registration for executing a term-sharing agreement in violation of Art. VI, Sec. 7 of the Constitution and Sec. 7, Rule 4 of Res. No. 9366 [126–128, 169–171].
 8. **Remand in *Atong Paglaum* and Post-Remand Cancellation (May 10, 2013):** Both factions challenged the December 4, 2012 cancellation before the Supreme Court, securing Status Quo Ante Orders for ballot inclusion. On April 2, 2013, the Supreme Court promulgated *Atong Paglaum, Inc. v. COMELEC*, remanding the cases. On May 10, 2013—three days before the elections—COMELEC En Banc issued the assailed Omnibus Resolution affirming the cancellation of SENIOR CITIZENS' registration **without conducting any further hearings or giving notice that term-sharing remained the ground for cancellation** [130–132, 144, 173–175, 187].
 9. **May 13, 2013 Elections:** Despite the cancellation resolution, SENIOR CITIZENS remained on the ballot and garnered **677,642 votes**, entitling it to seats in the 16th Congress. Both factions filed separate petitions for certiorari before the Supreme Court.
-

PROCEDURAL HISTORY

1. **Administrative Action before COMELEC:**
 - **Resolution in E.M. No. 12-040 (June 27, 2012):** COMELEC En Banc declared the 2010 term-sharing agreement void and ruled that no vacancy existed [124–125, 167–168].
 - **Resolution in SPP Nos. 12-157 & 12-191 (December 4, 2012):** COMELEC En Banc cancelled SENIOR CITIZENS' registration [126–128, 169–171].
 - **Omnibus Resolution in SPP Nos. 12-157 & 12-191 (May 10, 2013):** COMELEC En Banc affirmed the cancellation post-*Atong Paglaum* [130–132, 173–175].
 2. **Supreme Court Action:** Both the Datol Group (G.R. Nos. 206844-45) and the Arquiza Group (G.R. No. 206982) filed Petitions for Certiorari under Rule 64 in relation to Rule 65. On June 5, 2013, the Supreme Court issued a status quo ante order directing COMELEC to reserve the seat(s) earned by SENIOR CITIZENS pending final judgment.
-

PARTIES' MATERIAL ARGUMENTS

- **Petitioners (Datol Group and Arquiza Group - filing separately for the same relief):**
 1. **Violation of Procedural Due Process:** COMELEC cancelled SENIOR CITIZENS' registration without giving fair notice or a hearing on the term-sharing agreement as a ground for disqualification during the August 24, 2012 registration review or post-*Atong Paglaum* [139–140, 182–183].

2. **Non-Implementation of Agreement:** The 2010 term-sharing agreement was **never actually implemented**. Rep. Kho recalled his resignation, served his entire 3-year term, and COMELEC itself previously declared in E.M. No. 12-040 that no vacancy was created [149–150, 192–193].
 3. **Non-Retroactivity of Res. No. 9366:** COMELEC Resolution No. 9366 was promulgated on February 21, 2012 and cannot be applied retroactively to penalize an agreement executed in 2010.
- **Respondent (COMELEC via OSG):**
 1. **Due Process Satisfied:** Petitioners were heard on the term-sharing agreement during the April 18, 2012 hearing in E.M. No. 12-040 and the August 24, 2012 summary hearing.
 2. **Violation of Election Laws:** Entering into a term-sharing agreement violates Article VI, Section 7 of the Constitution and Section 7, Rule 4 of Resolution No. 9366, constituting a statutory ground for cancellation under Section 6(5) of R.A. No. 7941 [128, 130–131, 171, 173–174].
 3. **Inapplicability of Non-Retroactivity:** Term-sharing was always contrary to public policy; administrative rules enforcing constitutional term limits apply immediately without violating non-retroactivity rules.
-

● ISSUES

1. **Whether COMELEC En Banc violated SENIOR CITIZENS' right to procedural due process when it cancelled its registration without giving fair warning, notice, or an opportunity to be heard regarding the term-sharing agreement as a ground for disqualification.**
 2. **Whether COMELEC En Banc committed grave abuse of discretion in cancelling SENIOR CITIZENS' registration and accreditation under Section 6(5) of R.A. No. 7941 solely on account of an unimplemented term-sharing agreement.**
-

🌸 HOLDINGS AND CONTROLLING REASONING

1. On Procedural Due Process: **YES. COMELEC En Banc COMMITTED GRAVE ABUSE OF DISCRETION;** it violated SENIOR CITIZENS' right to procedural due process.

- **Failure of Fair Warning during Registration Review:** While a summary hearing was held on August 24, 2012 under Resolution No. 9513, SENIOR CITIZENS was summoned merely to discuss continuing compliance regarding its programs and accomplishments. COMELEC **never apprised or warned SENIOR CITIZENS that the 2010 term-sharing agreement would be considered a material ground for cancelling its registration for the 2013 elections.**
- **Inadequacy of E.M. No. 12-040 Hearing:** The April 18, 2012 hearing in E.M. No. 12-040 involved a separate petition regarding Rep. Kho's replacement [142–143, 185–186]. Chairman Brillantes' informal admonitions during that hearing did **not** constitute formal notice or fair warning that term-sharing would be used to cancel the party's registration in a separate proceeding.
- **Post-Atong Paglaum Omission:** Following the Supreme Court's remand in *Atong Paglaum*, COMELEC was required under *Ang Tibay* principles to afford SENIOR CITIZENS an opportunity to be heard or submit written memoranda before making a final determination. COMELEC summarily issued the May 10, 2013 Omnibus Resolution without conducting any further proceedings.

2. On the Substantive Ground (Term-Sharing Agreement): **YES. COMELEC En Banc COMMITTED GRAVE ABUSE OF DISCRETION;** an UNIMPLEMENTED term-sharing agreement **DOES NOT** constitute a legal ground to cancel party-list registration [2, 10, 13, 150–151, 193–194].

- **Nullity of Term-Sharing Covenants:** The Court affirmed that term-sharing agreements among party-list nominees are **null and void *ab initio*** for being contrary to public policy and Article VI, Section 7 of the Constitution. Public office is a public trust, not a commodity subject to private contractual bargaining.
 - **The Decisive Fact of NON-IMPLEMENTATION:**
 - The ground relied upon by COMELEC—the 2010 term-sharing agreement—**was never actually implemented by the nominees** [2, 10, 13, 149–150, 192–193].
 - When Rep. Kho tendered his resignation, the Board of Trustees recalled its acceptance (Board Res. No. 003-2012). Rep. Kho reconsidered, desisted from resigning, and **served his full 3-year term in Congress from June 30, 2010 to June 30, 2013** [149–150, 192–193].
 - Crucially, COMELEC itself in its June 27, 2012 Resolution in E.M. No. 12-040 **refused to recognize the resignation and declared that NO VACANCY was created** [124–125, 149, 167–168, 192].
 - **No Violation of Election Laws under Section 6(5), R.A. No. 7941:**
 - How can a party-list group be penalized for "disobedience" or violating election laws when its nominees **desisted from carrying out the void agreement**?
 - Because the agreement was abandoned and never implemented, no violation of any election law, rule, or regulation occurred under Section 6(5) of R.A. No. 7941.
 - **Unfair and Arbitrary Penalty:** Penalizing SENIOR CITIZENS with deregistration for a desisted, non-implemented agreement was arbitrary, capricious, and lacked any legal leg to stand on. SENIOR CITIZENS, having garnered 677,642 votes, was entitled to be proclaimed [133, 152–153, 176, 195–196].
-

DOCTRINE, TESTS, AND LEGAL STANDARDS

1. **Due Process Standard for Party-List Deregistration (*Ang Tibay* / Fair Warning Test):** Under Section 6 of R.A. No. 7941 and *Ang Tibay*, COMELEC cannot cancel the registration or accreditation of a party-list organization without providing explicit notice of the specific grounds for cancellation, fair warning, and a meaningful opportunity to present evidence or written arguments.
 2. **Rule on Term-Sharing Covenants:** Term-sharing agreements among party-list nominees are void *ab initio* for violating Article VI, Section 7 of the Constitution and public policy. However, the mere execution of a void term-sharing agreement **does not justify deregistration under Section 6(5) of R.A. No. 7941 if the agreement was desisted from, abandoned, and never actually implemented.**
 3. **Prospectivity of Administrative Disqualification Rules (Art. 4, Civil Code):** Administrative rules creating new grounds for disqualification (such as Section 7, Rule 4 of COMELEC Resolution No. 9366) operate prospectively and cannot penalize past acts unless express statutory authority provides for retroactivity [147–148, 190–191].
-

DISPOSITION

- **Ruling:** The Petitions for Certiorari in G.R. Nos. 206844-45 and G.R. No. 206982 are **GRANTED**.
 - **Annulment:** The Omnibus Resolution dated May 10, 2013 of the COMELEC En Banc in SPP No. 12-157 (PLM) and SPP No. 12-191 (PLM) is **REVERSED and SET ASIDE** insofar as SENIOR CITIZENS is concerned.
 - **Mandamus Directive:** The COMELEC En Banc is **ORDERED TO PROCLAIM** the Coalition of Associations of Senior Citizens in the Philippines, Inc. (SENIOR CITIZENS) as one of the winning party-list organizations in the May 13, 2013 elections with the number of seats it is entitled to based on the total votes garnered. No costs.
-

SEPARATE OPINIONS & OBITER

- All participating Justices (Sereno, C.J., Carpio, Brion, Peralta, Bersamin, Del Castillo, Abad, Villarama, Jr., Perez, Mendoza, Reyes, Perlas-Bernabe, and Leonen, JJ.) **UNANIMOUSLY CONCURRED** in the Decision penned by Justice Leonardo-de Castro. (*Justice Velasco, Jr. took no part due to his wife's party-list affiliation*).
- **Note on Intra-Factional Leadership Dispute:** The Court explicitly noted that the internal leadership dispute between the Arquiza Group and the Datol Group was not before it and must be threshed out in separate proceedings before the proper tribunal having jurisdiction.

● RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Coalition of Associations of Senior Citizens v. COMELEC* (2013), SENIOR CITIZENS' nominees executed a term-sharing agreement prior to the 2010 elections. After winning two seats, 2nd nominee Rep. David Kho tendered his resignation in 2011 per agreement, but later recalled it. The Board of Trustees allowed Kho to complete his full 3-year term, and COMELEC itself ruled in E.M. No. 12-040 that no vacancy was created. Kho served his full term until June 30, 2013. However, on May 10, 2013—three days before the 2013 elections—COMELEC En Banc cancelled SENIOR CITIZENS' registration under Sec. 6(5) of R.A. 7941 for executing a void term-sharing agreement. Despite this, SENIOR CITIZENS obtained 677,642 votes. Both rival factions petitioned the Supreme Court.

The Supreme Court En Banc unanimously, through Justice Leonardo-de Castro, GRANTED the petitions and ORDERED COMELEC to proclaim SENIOR CITIZENS. The Court held: (1) COMELEC violated procedural due process by failing to give fair notice or a hearing that the 2010 term-sharing agreement would be used to cancel registration; and (2) COMELEC committed grave abuse of discretion because while term-sharing is void, the agreement was NEVER ACTUALLY IMPLEMENTED; Rep. Kho served his full 3-year term. A party cannot be penalized for disobedience when its nominees desisted from the illegal act."* [2, 10, 13, 133, 141, 143, 149–150, 153, 176, 184, 186, 192–193, 196]

One-Sentence Doctrine Anchor

A party-list registration cannot be cancelled under Section 6(5) of R.A. No. 7941 for an illegal term-sharing agreement that was desisted from, abandoned, and never actually implemented.

Coalition of Associations of Senior Citizens v. Commission on Elections (2013)

Topic Subtopic	Branches of the Government (Congress) Power, Composition, Qualification and Term of Office	GR No. & Ponente	G.R. Nos. 206844-45, G.R. No. 206982 LEONARDO-DE CASTRO, J
Petitioner/s	[SENIOR CITIZENS PARTY-LIST], represented herein by its Chairperson and First Nominee, FRANCISCO G. DATOL (SENIOR CITIZENS), represented by its President and Incumbent Representative in the House of Representatives, ATTY. GODOFREDO V. ARQUIZA,	Respondent/s	COMELEC
Doctrine	A party-list registration cannot be cancelled under Section 6(5) of R.A. No. 7941 for an illegal term-sharing agreement that was desisted from, abandoned, and never actually implemented.		

FACTS

- The petitions in G.R. Nos. 206844-45 and G.R. No. 206982 were filed by two rival factions within the same party-list organization, the Coalition of Associations of Senior Citizens in the Philippines, Inc. (SENIOR CITIZENS).
 - Arquiza Group** - headed by incumbent House Representative Godofredo V. Arquiza
 - Datol Group** - led by former third nominee Francisco G. Datol, Jr.
- Both factions **assailed the Omnibus Resolution dated May 10, 2013** of the COMELEC *En Banc* in SPP No. 12-157 (PLM) and SPP No. 12-191 (PLM), which **cancelled SENIOR CITIZENS' registration and accreditation and disqualified it** from participating in the May 13, 2013 elections.

SENIORS CITIZENS was accredited by COMELEC

- On March 16, 2007, COMELEC *En Banc* accredited SENIOR CITIZENS as a party-list organization under Resolution No. SPP No. 06-026 (PL). SENIOR CITIZENS was subsequently allowed to participate in the May 10, 2010 elections.

TERM-SHARING AGREEMENT

- Prior to the May 10, 2010 elections, the nominees of SENIOR CITIZENS executed an "Irrevocable Covenant" agreeing to share terms:
- Article III listed the official candidates in order: **(1) Atty. Godofredo V. Arquiza, (2) Atty. David L. Kho, (3) Francisco G. Datol, Jr., (4) Remedios D. Arquiza, and (5) Linda Gaddi David.**
- Article IV ("Sharing of Power") provided specific term-sharing terms among nominees depending on election results:
 - If 1 seat was won: Nominee No. 1 would serve from July 1, 2010 to June 30, 2012, then relinquish the seat to Nominee No. 2 to serve from July 1, 2012 to June 30, 2013.
 - If 2 seats were won: Nominee No. 1 would serve for 3 years, while Nominee No. 2 and Nominee No. 3 would each serve for 1.5 years.
 - If 3 seats were won: Nominee No. 1 would serve 3 years; Nominee No. 2 would serve 2 years before relinquishing the seat to Nominee No. 4 for 1 year; Nominee No. 3 would serve 2 years before relinquishing the seat to Nominee No. 5 for 1 year.
 - Basically:**
 - If 1 seat won, Nominee 1 (Arquiza) -> 2 years, Nominee 2 (Kho) -> 1 year**
 - If 2 seats won, Nominee 1 (Arquiza) -> 3 years, Nominee 2 (Kho) -> 1.5 years, Nominee 3 (Datol) -> 1.5 years.**

2010 -> WON TWO SEATS

- In the May 10, 2010 elections, SENIOR CITIZENS ranked second among party-list candidates and won two seats in the House of Representatives, occupied by first nominee Rep. Arquiza and second nominee David L. Kho (Rep. Kho).

FACTIONS

- On November 27, 2010, members of SENIOR CITIZENS held a national convention to address Rep. Arquiza's alleged unfulfilled commitments, electing a new Board of Trustees and choosing Francisco G. Datol, Jr. as Chairman. On November 30, 2010, the Board of Trustees that were allied with Rep. Arquiza expelled Datol from the organization.

- Thereafter, the two factions engaged in a bitter rivalry as both claimed leadership of SENIOR CITIZENS.

RESIGNATION OF REP. KHO (2ND NOMINEE)

- On December 14, 2011, Rep. Arquiza submitted a letter and a petition (docketed as E.M. No. 12-040) to COMELEC Chairman Sixto S. Brillantes, Jr., stating that **Rep. Kho had tendered his irrevocable resignation effective December 31, 2011.**
- The petition prayed for COMELEC's immediate confirmation and approval of fourth nominee Remedios D. Arquiza as Rep. Kho's replacement, citing Datol's prior expulsion.
- On February 21, 2012, COMELEC promulgated Resolution No. 9366, Section 7, Rule 4 of which explicitly prohibited filling vacancies resulting from term-sharing agreements.

BACKOUT FROM RESIGNATION

- On March 12, 2012, the Arquiza-aligned Board of Trustees passed Board Resolution No. 003-2012, **recalling its acceptance of Rep. Kho's resignation and allowing him to continue his term.**
 - During an April 18, 2012 hearing in E.M. No. 12-040, counsel for the Arquiza Group admitted that Rep. Kho's resignation was tendered pursuant to the term-sharing covenant, but noted that the Board had reconsidered and allowed him to complete his term.
- On June 27, 2012, COMELEC En Banc dismissed Arquiza's original petition in E.M. No. 12-040, ruling that term-sharing agreements among party-list nominees are **null and void for being contrary to public policy.**
- COMELEC further ruled that Datol's expulsion had no legal effect on changing the order of nominees, **meaning no vacancy was created and Rep. Kho remained in office.**

CANCELLATION OF REGISTRATION

- Both the Datol Group and the Arquiza Group filed separate Manifestations of Intent to Participate in the May 13, 2013 Elections.
- On **December 4, 2012, COMELEC En Banc (4-3 vote) cancelled SENIOR CITIZENS' registration for executing a term-sharing agreement in violation of Art. VI, Sec. 7 of the Constitution and Sec. 7, Rule 4 of Res. No. 9366.**
- **Both factions filed petitions before the Supreme Court (G.R. Nos. 204421 & 204425), obtained status quo ante orders to be included in the ballot, and were consolidated with Atong Paglaum, Inc. v. COMELEC (G.R. No. 203766).**
- On April 2, 2013, the Supreme Court promulgated Atong Paglaum, Inc. v. COMELEC, remanding the cases.
- On May 10, 2013, three days before the elections and without conducting further hearings or taking evidence on term-sharing after the Atong Paglaum remand, COMELEC En Banc issued the assailed Omnibus Resolution denying the Manifestations of Intent to Participate and **cancelling SENIOR CITIZENS' registration and accreditation solely because of the term-sharing agreement.**

Both factions petitioned the Supreme Court, which issued a Status Quo Ante Order directing COMELEC to reserve the seat(s) corresponding to the votes garnered by SENIOR CITIZENS pending final decision.

ISSUE 1: Whether COMELEC En Banc violated SENIOR CITIZENS' right to procedural due process when it cancelled its registration without giving fair warning, notice, or an opportunity to be heard regarding the term-sharing agreement as a ground for disqualification.

PETITIONER/S ARGUMENTS:

The Arquiza Group argues that:

- **No notice and hearing were given to SENIOR CITIZENS for the cancellation of its registration on account of the term-sharing agreement of its nominees.**
- SENIOR CITIZENS was not advised, before or during the hearing, that the issue of the term-sharing agreement would constitute a basis for the review of its registration and accreditation.

The Datol Group faults the COMELEC for cancelling the registration and accreditation of SENIOR CITIZENS without giving the latter the opportunity to show that it complied with the parameters laid down in Atong Paglaum. The Arquiza Group confirms that after the promulgation of Atong Paglaum, the COMELEC

RESPONDENT/S ARGUMENTS:

COMELEC countered that petitioners were actually given the opportunity to present their side on the issue of the term-sharing agreement during the hearing on April 18, 2012. Said hearing was allegedly conducted to determine petitioners' continuing compliance for accreditation as a party-list organization.

conducted summary hearings in executive sessions, without informing SENIOR CITIZENS.

RULING and RATIO DECIDENDI for ISSUE 1:

On Procedural Due Process: YES. COMELEC En Banc COMMITTED GRAVE ABUSE OF DISCRETION; it violated SENIOR CITIZENS' right to procedural due process.

- **TWIN REQUIREMENTS:** The twin requirements of due notice and hearing are indispensable before the COMELEC may properly order the cancellation of the registration and accreditation of a party-list organization.

Section 6 of Republic Act No. 7941 46

The COMELEC may ... refuse or cancel, **after due notice and hearing**, the registration of any national, regional or sectoral party, organization or coalition.

Mendoza v. COMELEC and *Ang Tibay v. Court of Industrial Relations*, the Court emphasized the cardinal primary rights in administrative proceedings, which require:

1. The right to a hearing to present one's case and evidence.
2. The opportunity to know the various issues involved and the reasons for the tribunal's decision

- **SUMMARY HEARING CONDUCTED BUT;** A summary evidentiary hearing carried out on August 24, 2012, and this hearing, both the Arquiza Group and the Datol Group **were indeed given the opportunity** to adduce evidence as to their continuing compliance with the requirements for party-list accreditation.
- **THEY WERE NOT APPRISED OF THE REASON;** Nevertheless, the due process violation was committed when they **were not apprised of the fact that the term-sharing agreement entered into by the nominees of SENIOR CITIZENS in 2010 would be a material consideration** in the evaluation of the organization's qualifications as a party-list group for the May 13, 2013 elections. As it were, both factions of SENIOR CITIZENS were not able to answer this issue squarely.
 - *In other words, they were deprived of the opportunity to adequately explain their side regarding the term-sharing agreement and/or to adduce evidence, accordingly, in support of their position.*
- **APRIL 18 HEARING DOESNT COUNT:** The Court rejected COMELEC's defense, pointing out that the April 18, 2012 hearing pertained to a petition regarding a separate issue on the replacement of a resigned nominee, and not a proceeding on the party's qualifications or registration. Additionally, COMELEC Chairman Brillantes's informal admonition during that hearing did not constitute a fair legal warning that term-sharing would be used to cancel the party's registration and accreditation.
- **NO OPPORTUNITY TO EXPLAIN GIVEN AFTER ATONG PAGLAUM REMAND;** Following the Supreme Court's remand in *Atong Paglaum*, COMELEC was required to **afford the party an opportunity to be heard on the term-sharing agreement**, either through a hearing or written memoranda, before making a final determination. Instead, COMELEC issued its May 10, 2013 Omnibus Resolution cancelling the party's registration **without conducting any further proceedings**

ISSUE 2: Whether COMELEC En Banc committed grave abuse of discretion in cancelling SENIOR CITIZENS' registration and accreditation under Section 6(5) of R.A. No. 7941 solely on account of an unimplemented term-sharing agreement.

PETITIONER/S ARGUMENTS:

The Datol Group argues:

- That the public policy prohibiting term-sharing was promulgated only on February 21, 2012. Hence, the resolution should not be made to apply retroactively to the case of SENIOR CITIZENS as nothing therein provides for its retroactive effect.
- The mere execution of the Irrevocable Covenant between the nominees of SENIOR CITIZENS for the 2010 elections should not have been a ground for the cancellation of the organization's registration and accreditation because the nominees never actually implemented the agreement.

The Arquiza Group stresses:

- that no term-sharing actually transpired between the nominees of SENIOR CITIZENS.
- Whatever prior arrangements were made by the nominees on the term-sharing agreement, the same did not materialize
- Still, granting for the sake of argument that the term-sharing agreement was actually implemented, it was entered into in 2010 or two years prior to the promulgation of said resolution on February 21, 2012.
- Likewise, assuming that the resolution can be applied retroactively, the same cannot affect SENIOR CITIZENS as it already **earned a vested right in 2010 as a party-list organization.**

RULING and RATIO DECIDENDI for ISSUE 2:

On the Substantive Ground (Term-Sharing Agreement): YES. COMELEC En Banc COMMITTED GRAVE ABUSE OF DISCRETION; an UNIMPLEMENTED term-sharing agreement DOES NOT constitute a legal ground to cancel party-list registration

- **WHILE THERE ARE NO VESTED RIGHTS AND THE LAW MUST APPLY...**
 - The Court affirmed that term-sharing agreements among party-list nominees are null and void ab initio for being contrary to public policy and Article VI, Section 7 of the Constitution. **Public office is a public trust, not a commodity subject to private contractual bargaining.**

Montesclaros v. Commission on Elections

"a public office is not a property right. As the Constitution expressly states, a '[P]ublic office is a public trust.' No one has a vested right to any public office, much less a vested right to an expectancy of holding a public office."

- Further, the COMELEC is duty-bound to review the grant of registration to parties, organizations, or coalitions already registered in order to ensure the latter's continuous adherence to the requirements prescribed by law. Therefore, **Arquiza Group cannot object to the retroactive application of COMELEC Resolution No. 9366 on the ground of the impairment of SENIOR CITIZENS' vested right.**

Under Section 2 (5), Article IX-C of the Constitution,

The COMELEC is entrusted with the function to **"register, after sufficient publication, political parties, organizations, or coalitions which, in addition to other requirements, must present their platform or program of government.**

- **NEVERTHELESS, COMELEC STILL COMMITTED GRAVE ABUSE OF DISCRETION**
 - The Court held that even if COMELEC Resolution No. 9366 expressly applied retroactively, **COMELEC still committed grave abuse of discretion** in cancelling SENIOR CITIZENS' registration.
- **TERM SHARING AGREEMENT WAS NOT ACTUALLY IMPLEMENTED = COMELEC HAD NO BASIS**
 - Rep. Kho's tender of resignation was recalled, COMELEC itself declared in E.M. No. 12-040 that no vacancy was created, and Rep. Kho completed his entire three-year term in Congress.

- There was also **no indication that the nominees of SENIOR CITIZENS still tried to implement, much less succeeded in implementing, the term-sharing agreement.**
- **Because the agreement was abandoned and never implemented, no violation of any election law, rule, or regulation occurred under Section 6(5) of R.A. No. 7941.**
- Penalizing SENIOR CITIZENS with deregistration for a desisted, non-implemented agreement was arbitrary, capricious, and lacked any legal leg to stand on. **SENIOR CITIZENS, having garnered 677,642 votes, was entitled to be proclaimed**

**FINAL
DECISION**

WHEREFORE, the Court hereby rules that:

(1) **Datol Group's Petition** in G.R. Nos. 206844-45 and **Arquiza Group's Petition** in G.R. No. 206982 are **GRANTED**;

(2) **The Omnibus Resolution** dated May 10, 2013 of the Commission on Elections En Banc in SPP No. 12-157 (PLM) and SPP No. 12-191 (PLM) is **REVERSED and SET ASIDE** insofar as Coalition of Associations of Senior Citizens in the Philippines, Inc. is concerned;

(3) The **COMELEC En Banc** is **ORDERED to PROCLAIM the Coalition of Associations of Senior Citizens in the Philippines, Inc. as one of the winning party-list organizations** during the May 13, 2013 elections with the number of seats it may be entitled to based on the total number of votes it garnered during the said elections.

No costs.

SO ORDERED.

COCOFED v. Commission on Elections

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *COCOFED-Philippine Coconut Producers Federation, Inc. v. Commission on Elections*
- **Citation:** G.R. No. 207026, August 6, 2013 (En Banc)
- **Ponente:** Brion, J.
- **Bench Composition:** Sereno, C.J., Carpio, Leonardo-de Castro, Peralta, Bersamin, Del Castillo, Abad, Villarama, Jr., Perez, Mendoza, Reyes, Perlas-Bernabe, and Leonen, JJ., concurring; Velasco, Jr., J., took no part because a relative was a nominee of a party-list organization.
- **Syllabus Relevance & Topic:**
 1. **Mandatory Requirement of Five Nominees (R.A. No. 7941, Sec. 8 in rel. to Sec. 6(5)):** Mandatory character of submitting a list of not less than five (5) qualified nominees at least 45 days prior to elections; failure to submit a complete list of 5 nominees constitutes a direct statutory violation imputable to the party entity justifying cancellation of registration [153, 156–157, 160].
 2. **Constitutional Right to Information & Voter Transparency:** Publication and submission of the complete list of 5 nominees as a constitutional imperative to inform the electorate of the real individuals behind the party-list entity [154, 160, 201–202, 206].
 3. **Nature of Party-List Registration & Administrative Review:** Party-list registration is a statutory privilege (not a vested right) requiring continuing compliance; registration review is an administrative function where formal judicial hearing standards are relaxed.
 4. **Distinction from Parameter 6 of Atong Paglaum:** Parameter 6 (*nominee disqualification does not disqualify the party if 1 nominee remains qualified*) applies strictly to individual nominee qualification defects, NOT to a party's total failure or refusal to submit 5 nominees [147, 161–162].
 5. **Mootness in Registration Cancellation Cases:** Non-mootness of a registration cancellation petition despite the conclusion of elections and a low vote tally, as cancellation determines eligibility for subsequent elections [154–155].

CHRONOLOGICAL MATERIAL FACTS

1. **Manifestation of Intent and Submission of 2 Nominees (May 29, 2012):** COCOFED-Philippine Coconut Producers Federation, Inc. (COCOFED) manifested its intent before the COMELEC to participate in the May 13, 2013 party-list elections as a sectoral party representing coconut farmers and producers. However, COCOFED submitted the names of **only two (2) nominees:** Atty. Emerito S. Calderon (first nominee) and Atty. Domingo P. Espina (second nominee).
2. **Promulgation of COMELEC Rules on Nominees (February 2012):** Prior to COCOFED's filing, COMELEC promulgated Resolution No. 9359 (Feb. 8, 2012) and Resolution No. 9366 (Feb. 21, 2012), explicitly notifying all existing and applying party-list groups that their Manifestation of Intent must be accompanied by a list of **at least five (5) nominees**.
3. **Summary Evidentiary Hearing (August 23, 2012):** Pursuant to COMELEC Resolution No. 9513, COMELEC conducted a summary hearing to review COCOFED's continuing compliance. During the hearing, COMELEC specifically pointed out to COCOFED that it had submitted only two nominees.
4. **Initial Registration Cancellation (November 7, 2012):** COMELEC En Banc cancelled COCOFED's registration on several substantive grounds (e.g., affiliation with private/government coconut agencies, government assistance, non-marginalized nominees). In a Concurring Opinion, Commissioner Christian Lim cited an additional ground: COCOFED failed to submit a list of at least 5 nominees under Section 8 of R.A. No. 7941.

5. **Partial Submission of Substitutes (December 4, 2012):** COCOFED submitted Charles R. Avila (substituting Espina as 2nd nominee) and Efren V. Villaseñor (as 3rd nominee)—**still bringing its total to only three (3) nominees.**
 6. **First SC Petition and *Atong Paglaum* Decision:** COCOFED challenged its cancellation before the Supreme Court (consolidated under *Atong Paglaum, Inc. v. COMELEC*) and obtained a Status Quo Ante Order (SQAQO) with a mandatory injunction, causing its name to be printed on the official May 13, 2013 ballot. On April 2, 2013, the SC promulgated *Atong Paglaum*, establishing 6 new parameters and remanding the cases to COMELEC [146–147].
 7. **Post-Remand Omnibus Resolution (May 10, 2013):** Three days before the elections, COMELEC En Banc issued an Omnibus Resolution affirming the cancellation of COCOFED's registration **solely for its failure to comply with Section 8 of R.A. No. 7941 (failure to submit at least 5 nominees).**
 8. **Elections and Post-Election Belated Compliance (May 13–20, 2013):** COCOFED remained on the ballot and garnered **80,397 votes (0.36%)**. On May 20, 2013 (seven days after the election), COCOFED filed a "Manifestation with Urgent Request to Admit Additional Nominees" submitting 4th and 5th nominees (Felino M. Gutierrez and Rodolfo T. de Asis).
 9. **Finality Order and SC Petition:** On May 24, 2013, COMELEC declared the cancellation final. COCOFED filed this Rule 64/65 certiorari petition before the Supreme Court.
-

● PROCEDURAL HISTORY

1. **Administrative Action before COMELEC (SPP No. 12-202 [PLM]):**
 - **November 7, 2012 Resolution:** Cancelled COCOFED's registration on substantive grounds and failure to submit 5 nominees.
 - **May 10, 2013 Omnibus Resolution:** Affirmed cancellation post-*Atong Paglaum* specifically for failing to submit 5 nominees under Section 8 of R.A. No. 7941.
 - **May 24, 2013 Resolution:** Declared the cancellation final and executory.
 2. **Supreme Court Action:** COCOFED filed a Petition for Certiorari under Rule 64 in relation to Rule 65 with a prayer for TRO/Injunction. The Supreme Court dismissed the petition.
-

● PARTIES' MATERIAL ARGUMENTS

- **Petitioner (COCOFED):**
 1. **Violation of Due Process:** COMELEC cancelled its registration post-*Atong Paglaum* without conducting a new summary hearing to allow COCOFED to explain or submit additional nominees.
 2. **Good Faith & Curable Defect:** COCOFED acted in good faith believing 2-3 nominees were sufficient for the 2013 elections, as the number of nominees becomes relevant only when a party wins seats. The defect was cured when it submitted 4th and 5th nominees on May 20, 2013.
 3. **Protection under Parameter 6 of *Atong Paglaum*:** Parameter 6 states that disqualification of nominees shall not result in disqualification of the party provided at least one nominee remains qualified.
 4. **Violation of Equal Protection Clause:** COMELEC engaged in selective prosecution because other groups (e.g., ACT-CIS and MTM Phils.) allegedly failed to submit 5 nominees yet were permitted to run.
- **Respondent (COMELEC via OSG):**
 1. **Mootness:** COCOFED received only 80,397 votes (0.36%), failing to win a seat; thus, the petition is moot [152–153].
 2. **Mandatory Statutory Requirement:** Section 8 of R.A. No. 7941 explicitly commands the submission of "not less than five" nominees 45 days before elections. This is a mandatory condition precedent for registration and continuing compliance [153, 156–157].

3. **Voter Transparency:** Submitting 5 nominees satisfies the public's constitutional right to information so voters can make an informed choice on election day.
 4. **Inapplicability of Atong Paglaum Parameter 6:** Parameter 6 addresses individual nominee disqualifications, not a party's refusal/failure to submit a complete list of 5 nominees [154, 161–162].
-

ISSUES

1. **Procedural Issue:** Whether the petition became moot and academic due to COCOFED's failure to obtain sufficient votes to win a House seat in the May 13, 2013 elections.
 2. **Substantive Issue 1 (Section 8 Mandatory Compliance & Due Process):** Whether COMELEC committed grave abuse of discretion in cancelling COCOFED's registration under Section 6(5) in relation to Section 8 of R.A. No. 7941 for failing to submit a list of at least five (5) nominees prior to the election.
 3. **Substantive Issue 2 (Scope of Parameter 6 of Atong Paglaum):** Whether Parameter 6 of *Atong Paglaum* excuses a party-list group from submitting the mandatory list of five nominees [147, 151, 161–162].
 4. **Substantive Issue 3 (Equal Protection Clause):** Whether COMELEC violated COCOFED's right to equal protection of the laws.
-

HOLDINGS AND CONTROLLING REASONING

1. On Mootness: **NO. The petition is NOT MOOT AND ACADEMIC [154–155].**

- **Ratio:** A case becomes moot only when it ceases to present a justiciable controversy. While participation in the May 2013 elections was performed, participation was only one of the reliefs prayed for. The validity of COMELEC's cancellation of COCOFED's registration remains a live controversy. If COMELEC's cancellation is annulled, COCOFED remains a valid registered party-list entity entitled to participate in subsequent elections without undergoing new registration proceedings [154–155].

2. On Cancellation for Failure to Submit 5 Nominees: **NO. COMELEC did NOT commit grave abuse of discretion; cancellation was VALID under Section 6(5) in rel. to Section 8 of R.A. No. 7941 [154, 156, 161–162].**

- **Mandatory Textual Construction of Section 8:**
 - Section 8 of R.A. No. 7941 provides that each party "*shall submit to the COMELEC not later than forty-five (45) days before the election a list of names, not less than five (5)*".
 - The statutory term "shall" combined with the negative command "not less than five" demonstrates explicit legislative intent to make submitting 5 nominees **mandatory and a condition precedent**. The Court cannot leave compliance to a party's discretion.
- **Violation Imputable to the Party Entity under Section 6(5):**
 - While Section 6(5) (violation of election laws) requires a violation primary to the party itself (not just an individual nominee defect), **failing to submit a complete list of 5 nominees is a direct, primary failure of the party organization**.
- **Constitutional Right to Information & Voter Transparency:**
 - The party-list system operates on the assumption that a party represents national sectoral causes.

- Citing *Lokin, Jr. v. COMELEC*, the Court held that publishing and submitting 5 nominees satisfies the electorate's **constitutional right to information on matters of public concern** [154, 160, 201–202, 206].
- Voters have a right to know the real individuals behind the party-list entity before casting their ballots [154, 160, 201–202, 206]. Allowing post-election submissions (such as COCOFED's May 20, 2013 filing) subverts transparency and allows parties to do indirectly what they cannot do directly.
- **Registration as a Revocable Privilege & Relaxed Due Process:**
 - Party-list registration is a mere statutory privilege, not a vested right. Maintaining registered status requires continuing compliance with statutory mandates.
 - Registration review is an administrative/compliance proceeding (not a strict judicial trial) where formal hearing standards are relaxed. COCOFED had ample notice via Resolution Nos. 9359 and 9366 in February 2012, as well as oral admonition at the August 23, 2012 hearing. COCOFED simply chose to ignore the law.

3. On Parameter 6 of *Atong Paglaum*: Parameter 6 DOES NOT EXCUSE failure to submit 5 nominees [161–162].

- **Ratio:** Parameter 6 (*nominee disqualification does not disqualify the party if 1 nominee remains qualified*) applies when submitted nominees fail to meet individual qualifications (e.g., sector membership or advocacy track record). It was designed to prevent a party from dying due to an agent's defect. It was **never intended to authorize a party's outright refusal or inexcusable failure to submit the mandatory list of 5 nominees** [161–162].

4. On Equal Protection Clause: NO VIOLATION of Equal Protection.

- **Ratio:** COCOFED failed to present evidence showing that other party-list groups were identically situated or that COMELEC engaged in intentional, purposeful discrimination against COCOFED.

● DOCTRINE, TESTS, AND LEGAL STANDARDS

1. **Mandatory Five-Nominee Rule (R.A. No. 7941, Sec. 8):** The requirement that a party-list group submit a list of "not less than five (5)" qualified nominees at least 45 days before the election is mandatory. Failure or refusal to submit 5 nominees is a ground for cancellation of registration under Section 6(5) of R.A. No. 7941 [153, 156–157, 160].
 2. **Transparency and Right to Information Test (*Lokin / COCOFED Standard*):** The submission and publication of a complete list of 5 nominees before election day is a constitutional requirement under the Right to Information (Art. III, Sec. 7) to ensure voters make an intelligent choice regarding the individuals who will occupy House seats [154, 160, 201–202, 206]. Post-election nominee submissions are void *ab initio*.
 3. **Continuing Compliance Doctrine:** Previous registration confers no vested right. A party-list group must continuously maintain statutory qualifications and strictly comply with administrative regulations to preserve its registered status.
 4. **Limitation on Parameter 6 of *Atong Paglaum*:** Parameter 6 saves a party only when submitted nominees are individually disqualified; it does not excuse a party's failure to submit the minimum 5 nominees required by law [161–162].
-

♥ DISPOSITION

- **Ruling:** Petition for Certiorari is **DISMISSED** for lack of merit.
 - **Affirmance:** The May 10, 2013 Omnibus Resolution of the COMELEC En Banc cancelling COCOFED's registration and accreditation is **AFFIRMED**.
-

● SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLE LINES

- (Note: Justice Velasco, Jr. took no part because a relative was a nominee of a party-list organization).

Source-Verified Quotable Lines

-  **On the Mandatory Nature of Section 8 (Brion, J.):**

"The language of Section 8 of RA No. 7941 does not only use the word 'shall' in connection with the requirement of submitting a list of nominees; it uses this mandatory term in conjunction with the number of names to be submitted that is couched negatively, i.e., 'not less than five.' The use of these terms together is a plain indication of legislative intent to make the statutory requirement mandatory..."

-  **On Voter Right to Information and Nominee Identity (Brion, J.):**

"The publication of the list of nominees does not only serve as the reckoning period of certain remedies... Most importantly, the required publication satisfies the people's constitutional right to information on matters of public concern. The need for submission of the complete list required by law becomes all the more important in a party-list election to apprise the electorate of the individuals behind the party they are voting for." [201–202, 206]

-  **On COCOFED Forsaking Its Sector (quoting COMELEC En Banc approved by Brion, J.):**

"If the party cannot even come up with a complete list of five names out of a purported more than one million members, then it is highly doubtful that COCOFED will meet this expectation... it has already forsaken what it seeks to represent."

● RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In COCOFED v. COMELEC (2013), COCOFED filed its Manifestation of Intent for the May 2013 elections but submitted only two nominees (later adding a 3rd substitute in December 2012), despite COMELEC Resolution No. 9366 requiring at least 5 nominees. COMELEC cancelled COCOFED's registration. COCOFED obtained an SQAQ from the Supreme Court in Atong Paglaum, remaining on the ballot and receiving 80,397 votes (0.36%). Post-remand, COMELEC En Banc issued an Omnibus Resolution on May 10, 2013 affirming cancellation for failure to submit 5 nominees under Sec. 8 of R.A. 7941. COCOFED submitted 4th and 5th nominees on May 20, 2013 (7 days after the election) and filed a Rule 64/65 petition claiming due process violations, good faith, and protection under Atong Paglaum Parameter 6.

The Supreme Court En Banc, through Justice Brion, DISMISSED the petition and AFFIRMED the cancellation. The Court held: (1) The case is not moot because registration cancellation affects eligibility in future elections; (2) Section 8's command 'shall submit... not less than five' is mandatory, and failure to comply is an omission imputable to the party entity justifying cancellation under Sec. 6(5); (3) Submitting 5 nominees satisfies the electorate's constitutional Right to Information so voters know who stands behind the party on election day; (4) Post-election nominee submissions cannot cure pre-election non-compliance; and (5) Atong Paglaum Parameter 6 applies to individual nominee disqualifications, NOT to a party's refusal or failure to submit 5 nominees."* [144, 145, 147, 149, 154, 156–158, 160–162]

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: How did the Supreme Court distinguish *Atong Paglaum* Parameter 6 from COCOFED's failure to submit 5 nominees?**
 - **A:** Parameter 6 (*nominee disqualification does not disqualify the party if 1 nominee remains qualified*) applies when submitted nominees fail individual qualification tests (e.g., sector membership or advocacy). It prevents a party from suffering for an agent's personal disqualification [161–162]. It does **not** excuse a party organization's total failure or refusal to submit the mandatory list of 5 nominees required by Section 8 [161–162].
2. **Q: Why is submitting a list of 5 nominees prior to the election considered a constitutional imperative rather than a mere procedural formality?**
 - **A:** Because under Article III, Section 7 of the Constitution (Right to Information), the voting public has a fundamental right to know the exact identities of the individuals who will sit in Congress if the party wins [154, 160, 201–202, 206]. Allowing a party to add or substitute nominees post-election misleads the electorate and deprives voters of making an informed choice on election day [160, 162, 206–207].
3. **Q: Why wasn't the petition dismissed for mootness after COCOFED garnered only 0.36% of the votes and failed to win a seat?**
 - **A:** Because a finding of grave abuse of discretion and annulment of the cancellation would restore COCOFED to the registry of valid party-list organizations, enabling it to participate in subsequent elections without undergoing new registration proceedings [154–155]. Thus, the validity of registration cancellation remains a live justiciable controversy [154–155].

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose a newly formed party-list group submits a list of 5 nominees 45 days before the election. However, before election day, 3 of its nominees die in a tragic accident, leaving only 2 surviving nominees on its list. COMELEC cancels the group's registration on election day under *COCOFED v. COMELEC* for having fewer than 5 nominees. Is COMELEC's cancellation valid?
- **Answer: No, COMELEC's cancellation is INVALID.** In *COCOFED*, the party-list group willfully failed/refused to submit 5 nominees. In this hypothetical, the group complied with Section 8 by initially submitting 5 nominees, and the subsequent reduction was due to death (force majeure). Under Section 8 of R.A. No. 7941, in cases of death, the party is permitted to substitute nominees. Furthermore, under Parameter 6 of *Atong Paglaum*, as long as at least one qualified nominee remains, the party-list group itself is not disqualified [147, 156–157, 161].

One-Sentence Doctrine Anchor

Submitting a list of at least five qualified nominees before the election is a mandatory statutory requirement and a constitutional imperative for voter transparency, failure of which warrants the cancellation of a party-list group's registration under Section 6(5) of R.A. No. 7941. [154, 156–157, 160]

COCOFED-Philippine Coconut Producers Federation, Inc. v. COMELEC (2013)

Topic Subtopic	Congress - Power, Composition, Qualification and Term of Office	GR No. & Ponente	[GR No. 207026]
Petitioner/s	COCOFED - Philippine Coconut Producers Federation, INC	Respondent/s	Commission on Elections
Doctrine	Party-list groups must comply with the basic requirements and qualifications mandated by law in order to maintain their registration.		

FACTS

2 NOMINEES

- COCOFED is an organisation and sectoral party whose membership comes from the peasant sector.
- On May 29, 2012, COCOFED-Philippine Coconut Producers Federation, Inc. (COCOFED) manifested its intent before the COMELEC to participate in the May 13, 2013 party-list elections as a sectoral party representing coconut farmers and producers. However, **COCOFED submitted the names of only two (2) nominees: Atty. Emerito S. Calderon (first nominee) and Atty. Domingo P. Espina (second nominee).**

MUST HAVE 5

- Prior to COCOFED's filing, COMELEC promulgated Resolution No. 9359 (Feb. 8, 2012) and Resolution No. 9366 (Feb. 21, 2012), explicitly notifying all existing and applying party-list groups **that their Manifestation of Intent must be accompanied by a list of at least five (5) nominees under Sec 8, RA7941**

SUMMARY HEARINGS

- August 23, 2012: Comelec conducted a summary hearing pursuant to Comelec Res. No. 9513 to determine if party-list groups that filed manifestations to participate in the May 13, 2013 party list elections **had complied with legal requirements**
- **During the hearing, COMELEC specifically pointed out to COCOFED that it had submitted only two nominees.**

CANCELLATION OF REGISTRATION

- COMELEC En Banc cancelled COCOFED's registration on several substantive grounds (e.g., affiliation with private/government coconut agencies, government assistance, non-marginalized nominees). In a Concurring Opinion, Commissioner Christian Lim cited an additional ground: **COCOFED failed to submit a list of at least 5 nominees under Section 8 of R.A. No. 7941**
- By December 4, 2012. COCOFED submitted Charles R. Avila (substituting Espina as 2nd nominee) and Efren V. Villaseñor (as 3rd nominee)—**still bringing its total to only three (3) nominees.**

SC PETITION AND ATONG PAGLAUM

- COCOFED among several others challenged its cancellation before the Supreme Court (consolidated under Atong Paglaum, Inc. v. COMELEC) and obtained a Status Quo Ante Order (SQAQO) with a mandatory injunction, causing its name to be printed on the official May 13, 2013 ballot.
- *On April 2, 2013, the SC promulgated Atong Paglaum, establishing 6 new parameters and remanding the cases to COMELEC.*
 - *One parameter was that national, regional, and sectoral parties/orgs shall not be disqualified provided that they have at least 1 qualified nominee*

OMNIBUS RESOLUTION

- May 10, 2013: Three days before the elections, COMELEC En Banc issued an Omnibus Resolution **affirming the cancellation of COCOFED's registration solely for its failure to comply with Section 8 of R.A. No. 7941 (failure to submit at least 5 nominees).**
 - Argued that they were all on notice as early as Feb 8, 2012 and that on the Aug 23 hearing they

told COCOFED that they only had 2 nominees.

- **COCOFED received only 80,397 votes (0.36%), failing to win a seat.** On May 20, 2013 (seven days after the election), COCOFED filed a "Manifestation with Urgent Request to Admit Additional Nominees" submitting 4th and 5th nominees (Felino M. Gutierrez and Rodolfo T. de Asis).
- COCOFED moved for reconsideration but withdrew, instead filing a manifestation with urgent request to admit additional nominees on May 20, 2013, On May 24, Comelec issued a resolution declaring its cancellation FINAL AND EXECUTORY, hence this present petition.

COCOFED moved for reconsideration but withdrew, instead filing a manifestation with urgent request to admit additional nominees on May 20, 2013. **On May 24, 2013, COMELEC declared the cancellation final. COCOFED filed this Rule 64/65 certiorari petition with prayer for TRO/Injunction before the Supreme Court.**

ISSUE 1: Whether the petition became moot and academic due to COCOFED's failure to obtain sufficient votes to win a House seat in the May 13, 2013 elections.

RESPONDENT/S ARGUMENTS:

Petition is Moot and Academic since COCOFED still remained in the ballots despite the issuance on May 10. As of May 29, COCOFED only received 0.36% of the total no. of votes. With the reliefs prayed for already performed, there is nothing for COCOFED to ask

RULING and RATIO DECIDENDI for ISSUE 1:

On Mootness: NO. The petition is NOT MOOT AND ACADEMIC

- A case becomes moot only when it ceases to present a justiciable controversy. While participation in the May 2013 elections was performed, participation was only one of the reliefs prayed for.
- The validity of COMELEC's cancellation of COCOFED's registration remains a live controversy.
- If COMELEC's cancellation is annulled, COCOFED remains a valid registered party-list entity entitled to participate in subsequent elections without undergoing new registration proceedings
- The fact that COCOFED did not obtain a sufficient no. of votes has no bearing on the validity of their registration, There is still the matter to determine if COMELEC gravely abused its discretion.

ISSUE 2: Whether COMELEC committed grave abuse of discretion in cancelling COCOFED's registration under Section 6(5) in relation to Section 8 of R.A. No. 7941 for failing to submit a list of at least five (5) nominees prior to the election.

PETITIONER/S ARGUMENTS:

- The failure to submit the required number of nominees was based on the good faith belief that the 2-3 they submitted were sufficient. They would simply remedy the missing 2 when they qualify for a seat since that is when it would become significant
- COMELEC's issuance of the assailed resolution violated their right to due process.
- Comelec did not conduct a summary hearing mandated by the court in Atong Paglaum.
- The requirement to submit at least 5 nominees should not be strictly applied since party-list representation looks more at the party instead of the nominees

RESPONDENT/S ARGUMENTS:

- COMELEC did not abuse its discretion as it only applied a clear requirement of Sec 8 in relation to Sec 6 of RA 7941.
- The list of 5 nominees is important because it also serves as a check of a party's compliance with other legal requirements as well as being intertwined with the voter's right to make an informed and intelligent choice
- Comelec is NOT mandated to conduct the summary hearings

On Cancellation for Failure to Submit 5 Nominees: NO. COMELEC did NOT commit grave abuse of discretion; cancellation was VALID under Section 6(5) in rel. to Section 8 of R.A. No. 7941.

- **LAW IS EXPLICIT IN THE 5 NOMINEE REQUIREMENT** - The Law in RA 7941 expressly requires at least 5 qualified nominees; paired with Comelec resolution 9359 which informed registered parties of this exact requirement.
 - **The language of Sec 8 RA 7941 used the word SHALL** = clear legislative intent to make a statutory requirement mandatory and thus prevents COCOFED from claiming good faith; a party's registration must be maintained by compliance with requisite qualifications and compliance with the law
 - **Section 8. Nomination of Party-List Representatives.** — *Each registered party, organization or coalition shall submit to the COMELEC not later than forty-five (45) days before the election a list of names, not less than five (5), from which party-list representatives shall be chosen in case it obtains the required number of votes.*
 - **COCOFED ignored the law = clear disregard for requirements that warrant cancellation of its registration.**
 - *COCOFED's belated submission of a complete list of nominees after the elections betrays COCOFED's plea for prior notice*
 - *The court cannot compel COMELEC unless it is of a judicial or quasi-judicial proceeding, registration of party-list groups is NOT part of that and is a part of Comelec's powers*
 - **COCOFED had ample notice via Resolution Nos. 9359 and 9366 in February 2012, as well as oral admonition at the August 23, 2012 hearing. COCOFED simply chose to ignore the law.**
 - **Even if parties can only have at most 3 seats in congress, it does not render the 5 nominees minimum requirement permissive;** Submission of a complete list is both required by law and serves the people's constitutional right to information on matters of public concern
 - The extra 2 nominees are a part of the contingencies of Sec 16, RA 7941
- **NOT EXCUSED BY ATONG PAGLAUM:** The disqualification parameters outlined in Atong Paglaum is premised on AT LEAST 1 QUALIFIED NOMINEE. **This does not excuse an entire party-list groups' inexcusable failure to comply with the law to provide at least 5 nominees.**
 - While Section 6(5) (violation of election laws) requires a violation primary to the party itself (not just an individual nominee defect), **failing to submit a complete list of 5 nominees is a direct, primary failure of the entire party organization.**
- **TRANSPARENCY FOR VOTERS** - The party-list system operates on the assumption that a party represents national sectoral causes.
 - Citing **Lokin, Jr. v. COMELEC**, the Court held that publishing and submitting 5 nominees satisfies the electorate's constitutional right to information on matters of public concern.
 - Voters have a right to know the real individuals behind the party-list entity before casting their ballots. Allowing post-election submissions (such as COCOFED's May 20, 2013 filing) subverts transparency and allows parties to do indirectly what they cannot do directly.
- **FRANCHISE, NOT A RIGHT**
 - **Party-list registration is a mere statutory privilege, not a vested right. Maintaining registered status requires continuing compliance with statutory mandates.**
 - **NO valid reason why a party-list group cannot comply with the statutory requirement;** all the more so when you consider these party-list groups seek positions in legislature and participate in matters concerning the nation.
 - Registration review is an administrative/compliance proceeding (not a strict judicial trial) where

formal hearing standards are relaxed.

FINAL DECISION

WHEREFORE, the petition is DISMISSED for lack of merit.

Duty to Energize the Republic Through the Enlightenment of the Youth [Duterte Youth] Party-List v. Commission on Elections

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Duty to Energize the Republic Through the Enlightenment of the Youth [Duterte Youth] Party-List, represented by [Chairperson] Ronald Gian Carlo L. Cardema and Representative Ducielle Marie S. Cardema v. Commission on Elections, House of Representatives, Komunidad ng Pamilya, Pasyente at Persons with Disabilities [P3PWD] Party-List and its nominees led by Ma. Rowena Amelia V. Guanzon* (G.R. No. 261123); consolidated with *Duty to Energize the Republic Through the Enlightenment of the Youth [Duterte Youth] Party-List, represented by [Chairperson] Ronald Gian Carlo L. Cardema and Representative Ducielle Marie S. Cardema v. Ma. Rowena Amelia V. Guanzon* (G.R. No. 261876).
- **Citation:** G.R. Nos. 261123 & 261876, August 20, 2024 (En Banc).
- **Ponente:** Rosario, J.

CHRONOLOGICAL MATERIAL FACTS

WITHDRAWAL/SUBSTITUTION SYSTEM OG RESO - 2012 - COMELEC issued Resolution No. 9366 which laid down the rules on withdrawal and substitution of party-list nominees, among others.

NEW RESO ON SUBSTITUTION: On January 27, 2021 - COMELEC promulgated Resolution No. 10690, which amended Resolution No. 9366, by setting new deadlines for the withdrawal and substitution of nominations, and requiring party-list groups, organizations, and coalitions to publish, at their own expense, their new list of substitute nominees, within five days from the submission of said list for purposes of the 2022 National and Local Elections (NLE)

DUTERTE YOUTH AND P3PWD ENTERS THE SCENE - On March 23, 2021, P3PWD filed its Petition for Registration and Accreditation as a regional sectoral organization under the party-list system. By the last day set by COMELEC under its Resolution No. 10695, 270 party-list groups — including Duterte Youth and P3PWD — had expressed their intent to participate in the 2022 NLE

P3PWD - SUBMISSION OF ORIGINAL LIST OF NOMINEES (October 6, 2021): Respondent Komunidad ng Pamilya, Pasyente at Persons with Disabilities (P3PWD) Party-List filed its original list of five nominees for the May 9, 2022 National and Local Elections (NLE): (1) Grace S. Yeneza, (2) Joel R. Lopez, (3) Allen Jose R. Serna, (4) Michelle R. Ofalla, and (5) Guillermo R. Eugenio.

P3PWD - PRE-ELECTION SUBSTITUTION (November 2021): On November 5, 2021, P3PWD filed a withdrawal with substitution for its 2nd to 5th nominees, which COMELEC approved on November 24, 2021. The second list of nominees became: (1) Grace S. Yeneza, (2) Ira Paulo A. Pozon, (3) Marianne Heidi C. Fullon, (4) Peter Jonas R. David, and (5) Lily Grace A. Tiangco.

CONDUCT OF ELECTIONS AND SEAT PROCLAMATION (May 2022): The May 9, 2022 elections were held. Sitting as the National Board of Canvassers, COMELEC promulgated NBOC Resolution No. 005-22 on May 26, 2022, proclaiming P3PWD as entitled to one House seat. On May 30, 2022, 1st nominee Grace S. Yeneza took her oath of office before a Regional Trial Court judge.

POST-ELECTION EN MASSE RESIGNATIONS OF ALL NOMINEES (June 7–10, 2022): Within a four-day span following seat allocation:

- June 7, 2022: 2nd nominee Pozon resigned.
- June 9, 2022: 3rd nominee Fullon, 4th nominee David, and 5th nominee Tiangco resigned.
- June 10, 2022: 1st nominee Yeneza resigned, citing her daughter's medical condition.

P3PWD - POST-ELECTION SUBSTITUTION (June 14, 2022): Guanzon retired from her COMELEC post on Feb 2, 2022. Yeneze also having resigned despite taking the oath, on June 14, 2022, P3PWD submitted to the COMELEC, among other things, the Certificate of Nomination (CON) and Certificates of Acceptance of Nomination (CAN), listing Guanzon as the 1st nominee. COMELEC approved and will give due course to the nominees, pending the publication. – P3PWD submitted proof of publication of its New List of Nominees (June 17, 2022).

COMELEC APPROVES - Promulgation of Assailed **Minute Resolution No. 22-0774 (June 15, 2022):** COMELEC En Banc issued Minute Resolution No. 22-0774, approving the post-election withdrawal of all five nominees and giving due course to P3PWD's new list of substitute nominees headed by Guanzon, subject to publication.

June 22, 2022 - COMELEC En Banc promulgated (1) **Minute Resolution No. 22-0798** which noted P3PWD's Manifestation regarding the publication requirement and considered the same as **satisfactory compliance** with Minute Resolution No. 22-0774, and (2) Minute Resolution No. 22 0810 which denied the Opposition for lack of merit. **3 Commissioners approved.**

COMELEC declared P3PWD as entitled to 1 seat in the HOR, and Guanzon as the qualified nominee. On June 27, 2022 - Guanzon appeared before the HOR and submitted her Oath of Office

DUTERTE YOUTH OPPOSES - **Filing of Verified Opposition and SC Certiorari Petition (June 17–21, 2022):** On June 17, 2022, petitioner Duterte Youth Party-List (represented by Ronald Gian Carlo Cardema and Representative Ducielle Marie Cardema) filed a Verified Opposition before COMELEC, asserting that:

- (1) under COMELEC Resolution No. 10690, the deadline for nominee substitution due to withdrawal was November 15, 2021
- (2) and that giving due course thereto would violate Republic Act Nos. 3019 and 6713 because Guanzon was just recently a Member of the COMELEC, which approved the party-lists joining the 2022 NLE, including P3PWD.

DUTERTE YOUTH FILES SC CASE - On June 21, 2022, without awaiting COMELEC's ruling on its Opposition, Duterte Youth filed a Rule 64/65 Certiorari Petition before the Supreme Court (G.R. No. 261123) seeking the annulment of Minute Resolution No. 22-0774 and prayers for a TRO.

COMELEC SIDES W GUANZON - **Denial of Opposition (June 22, 2022):** June 22, 2022 - COMELEC En Banc promulgated (1) Minute Resolution No. 22-0798 which noted P3PWD's Manifestation regarding the publication requirement and considered the same as satisfactory compliance with Minute Resolution No. 22-0774, and (2) Minute Resolution No. 22 0810 which denied the Opposition for lack of merit. 3 Commissioners approved. COMELEC declared P3PWD as entitled to 1 seat in the HOR, and Guanzon as the qualified nominee. On June 27, 2022 - Guanzon appeared before the HOR and submitted her Oath of Office

SC ISSUES TRO - **June 29, 2022 - SC issued a TRO to prevent the implementation of its Resolutions, and asked for Comments.** Despite the TRO, Guanzon filed 3 House Bills. HOR, through the OSG, said it will comply with the TRO, and returned the draft measures that Guanzon had filed.

MORE DUTERTE YOUTH PETITIONS:

- **July 1, 2022** - Cardema filed a PT before the COMELEC to deny due course or cancel cert of nomination against Guanzon, in his capacity as taxpayer and registered voter, alleging that P3PWD and Guanzon committed material misrepresentations in her CON and CAN.
- **August 1, 2022** - Filing of Indirect Contempt Petition. Duterte Youth filed a Petition for Indirect Contempt (G.R. No. 261876) against Guanzon, alleging that her social media posts, media interviews, and introduction of legislation violated the Court's TRO.

PROCEDURAL HISTORY

1. **Administrative Action before COMELEC:**
 - **Minute Resolution No. 22-0774 (June 15, 2022):** Approved the withdrawal and substitution of P3PWD's nominees.
 - **Minute Resolution No. 22-0798 (June 22, 2022):** Noted P3PWD's publication of its substitute list as satisfactory compliance.
 - **Minute Resolution No. 22-0810 (June 22, 2022):** Denied Duterte Youth's Verified Opposition for lack of merit.
2. **Supreme Court Action:**

- **G.R. No. 261123:** Petition for Certiorari under Rule 64 in relation to Rule 65. The Court issued a TRO on June 29, 2022.
- **G.R. No. 261876:** Petition for Indirect Contempt filed by Duterte Youth against Guanzon.
- **August 20, 2024 Decision:** Consolidated ruling granting G.R. No. 261123 (annulling substitution) and dismissing G.R. No. 261876 (contempt).

● PARTIES' MATERIAL ARGUMENTS

- **Petitioners (Duterte Youth Party-List / The Cardemas):**
 1. **Violation of Mandatory Substitution Deadlines:** COMELEC Resolution No. 10690 set November 15, 2021 as the absolute deadline for nominee substitution by reason of withdrawal [185–186, 214]. **Post-election substitution is void.**
 2. **Violation of Voter Right to Information:** Allowing an **en masse post-election substitution of all five nominees blindsides the electorate** who voted for the party based on the published names of its original nominees.
 3. **Lack of Valid Constitutional Vote:** Minute Resolution No. 22-0774 was **approved by only three Commissioners, failing to meet the minimum four-vote** requirement under Article IX-A, Section 7 of the Constitution.
- **Respondents (P3PWD Party-List & Ma. Rowena Amelia V. Guanzon):**
 1. **Lack of Legal Standing:** Duterte Youth suffered no direct injury because invalidating P3PWD's substitution would not grant P3PWD's House seat to Duterte Youth [187–188].
 2. **Prematurity:** The petition was filed before COMELEC formally resolved Duterte Youth's Verified Opposition.
 3. **Exclusive HRET Jurisdiction:** P3PWD was proclaimed and 1st nominee Yeneza took her oath; thus, jurisdiction over nominee qualifications shifted exclusively to the HRET [184, 211–212].
 4. **Directory Nature of Substitution Deadlines:** R.A. No. 7941 does not prohibit nominee withdrawals at any time, and COMELEC possesses broad administrative discretion to adjust electoral deadlines [191–192, 220–221].
- **Respondent (COMELEC via OSG):**
 1. **Administrative Function:** Approving nominee withdrawals and substitutions is a purely administrative function where a majority vote of Commissioners present with a quorum is sufficient [184, 229–230].
 2. **HRET Non-Attachment:** HRET jurisdiction did not attach because Guanzon never assumed office as a Member of Congress.

● ISSUES

A. Procedural Issues

1. Whether petitioner Duterte Youth / the Cardemas have legal standing to challenge COMELEC Minute Resolution Nos. 22-0774, 22-0798, and 22-0810.
2. Whether the petition was prematurely filed prior to COMELEC's formal resolution of petitioners' Verified Opposition.
3. Whether jurisdiction over the controversy remained with COMELEC or shifted to the House of Representatives Electoral Tribunal (HRET).
4. Whether the assailed Minute Resolutions were issued in the exercise of COMELEC's administrative or quasi-judicial functions, and whether they required a 4-vote majority under Article IX-A, Section 7 [184, 186, 229–230].

B. Substantive Issues

1. Whether R.A. No. 7941 prohibits the withdrawal of party-list nominees per se.
2. Whether COMELEC committed grave abuse of discretion amounting to lack or excess of jurisdiction in approving the post-election substitution of P3PWD's nominees beyond the deadline set in COMELEC Resolution No. 10690.
3. Whether P3PWD may be enjoined from renominating the same set of substitute nominees for the duration of the 19th Congress.
4. Whether Ma. Rowena Amelia V. Guanzon is guilty of indirect contempt.

HOLDINGS AND CONTROLLING REASONING

1. On Legal Standing (Locus Standi): Standing is **GRANTED** under the Transcendental Importance Exception.

- **No Direct Injury as a Competitor:** Duterte Youth failed to demonstrate direct injury as a competing party-list because invalidating P3PWD's substitution would not reallocate P3PWD's earned House seat to Duterte Youth [188–189].
- **Standing as Concerned Citizens / Taxpayers / Legislators:** However, locus standi is a procedural rule that the Court may relax in matters of **transcendental importance** and paramount public interest. The petition presents an overarching question regarding the integrity of the party-list system, the enforcement of mandatory electoral deadlines, the prevention of post-election voter deception, and the lawful expenditure of public funds for legislative salaries.

2. On Prematurity: The Petition was **NOT** fatally premature.

- While Duterte Youth filed its certiorari petition on June 21, 2022 before COMELEC formally acted on its Verified Opposition, COMELEC issued Minute Resolution No. 22-0810 denying the Opposition the very next day (June 22, 2022) [182–183]. Requiring re-filing under these circumstances would exalt form over substance.

3. On Jurisdiction (COMELEC vs. HRET): Jurisdiction **REMAINED WITH COMELEC**.

- **Requisites for HRET Jurisdiction (Art. VI, Sec. 17):** HRET exclusive jurisdiction attaches **ONLY** upon the concurrence of three requisites in the person of the candidate/nominee: (1) a valid proclamation; (2) a valid oath of office; and (3) **assumption of office**.
- **Non-Assumption of Office:** While P3PWD was proclaimed and 1st nominee Yeneza took an oath, substitute nominee Guanzon **never assumed office as a Representative in the House of Representatives** due to the Supreme Court's TRO issued on June 29, 2022. Because Guanzon never assumed office, HRET jurisdiction never attached, and COMELEC retained full jurisdiction to adjudicate the validity of her substitution.

4. On Nature of COMELEC Function & Voting Requirement: The act was **ADMINISTRATIVE**; a 3-vote majority present with a quorum was **VALID** [184, 229–230].

- **Administrative Enforcement Power (Art. IX-C, Sec. 2(1)):** Approving the withdrawal and substitution of party-list nominees is an administrative function involving the enforcement and administration of election laws [184, 229–230].
- **Voting Standard:** Unlike quasi-judicial adjudications (which require four concurring votes of the En Banc under Art. IX-A, Sec. 7 and *Sevilla v. COMELEC*), administrative resolutions sitting En Banc require only a **majority vote of the members present at a meeting where there is a quorum** [195, 230–231].

5. On Nominee Withdrawal Per Se: R.A. No. 7941 **DOES NOT** prohibit withdrawal.

- Nomination to a public office cannot be compelled. A party-list nominee possesses the inherent legal prerogative to withdraw his or her acceptance of nomination in writing at any time.

6. On Post-Election Substitution & Grave Abuse of Discretion: COMELEC **COMMITTED GRAVE ABUSE OF DISCRETION**; post-election substitution beyond deadlines is **NULL AND VOID** [180, 185, 192–193].

- **Mandatory Character of Electoral Deadlines:** Under COMELEC Resolution No. 10690, the deadline for withdrawal and substitution of party-list nominees by reason of withdrawal was **November 15, 2021** (and up to mid-day of Election Day **ONLY** in cases of death or incapacity) [185–186, 214]. Rules limiting nominee substitution **do not lose their mandatory character even after elections**.
- **Constitutional Right to Information & Voter Deception (Art. III, Sec. 7):**
 - In a party-list system, voters cast their ballots based on the published list of nominees submitted prior to election day (*Lokin, COCOFED*).

- Allowing an en masse post-election withdrawal of all five original nominees and replacing them with a completely new set of substitute nominees (including a former COMELEC Commissioner) **blindsides the electorate**.
- It deprives voters of critical information needed to make an intelligent choice on election day, reducing the electoral process to a fraudulent shell game where voters elect one set of nominees only to have a completely different set assume power.
- **Arbitrary Caprice by COMELEC:** COMELEC cannot arbitrarily disregard its own mandatory deadlines established in Resolution No. 10690. Ministerially approving post-election substitutions after the close of polls constitutes grave abuse of discretion correctible by certiorari.
- **Distinguishing *Angcos v. Duterte Youth* (2020):** Respondents' reliance on *Angcos* (where Duterte Youth's post-election substitution was upheld in 2019) is misplaced. *Angcos* was an **unsigned minute resolution** rendered under different administrative guidelines (Resolution No. 9366) and does not constitute a binding precedent (*stare decisis*) capable of overriding explicit constitutional mandates and statutory deadlines.

7. On Disallowance of Renomination: P3PWD is STRICTLY ENJOINED from renominating the same five substitute nominees.

- P3PWD is directed to submit additional nominees pursuant to Section 16 of R.A. No. 7941 upon exhaustion of its list. However, applying the principle that **what cannot be legally done directly cannot be done indirectly**, P3PWD is **strictly enjoined from renominating for the 19th Congress the five substitute nominees whose substitutions were declared void (including Guanzon)**.

8. On Indirect Contempt (G.R. No. 261876): DISMISSED for lack of merit.

- Guanzon's social media posts and media interviews did not constitute willful or malicious defiance of the TRO because the TRO was explicitly addressed to COMELEC and the House of Representatives, not directly to Guanzon personally. (*However, the Court admonished Guanzon under CPRA rules against disseminating unverified legal claims on social media*).

DOCTRINE, TESTS, AND LEGAL STANDARDS

1. **Mandatory Post-Election Substitution Rule:** Rules and regulations establishing deadlines for the withdrawal and substitution of party-list nominees maintain their mandatory character post-election. Post-election nominee substitutions by reason of withdrawal filed beyond regulatory deadlines (e.g., November 15, 2021 under Res. No. 10690) are void *ab initio* [180, 185–186, 192].
2. **Voter Information & Transparency Standard (Art. III, Sec. 7 / *Lokin* / *COCOFED* / *Duterte Youth*):** The electorate's constitutional right to information requires that the identity of party-list nominees be fully disclosed and settled prior to election day. En masse post-election substitution of nominees subverts the sovereign will of the voters.
3. **Requisites for HRET Jurisdiction (Art. VI, Sec. 17):** HRET jurisdiction attaches ONLY upon the concurrence of: (1) valid proclamation; (2) valid oath; and (3) **actual assumption of office**. If a candidate/nominee is enjoined from assuming office, COMELEC retains jurisdiction over pre-assumption qualification and substitution disputes.
4. **Administrative Voting Standard in COMELEC En Banc:** Administrative matters before COMELEC En Banc require only a majority vote of Commissioners present at a meeting where a quorum exists, unlike quasi-judicial matters which mandate a 4-vote majority under Article IX-A, Section 7 [195, 230–231].

DISPOSITION

- **G.R. No. 261123 (Substitution Petition):**
 - Petition is **GRANTED**.
 - COMELEC Minute Resolution No. 22-0774 dated June 15, 2022 is declared **NULL AND VOID**.
 - The Court's Temporary Restraining Order dated June 29, 2022 is made **PERMANENT**.
 - P3PWD Party-List is **DIRECTED** to submit additional nominees pursuant to Section 16 of R.A. No. 7941, but is **STRICTLY ENJOINED** from renominating for the 19th Congress the five substitute nominees whose substitutions were declared null and void (including Ma. Rowena Amelia V. Guanzon).
- **G.R. No. 261876 (Indirect Contempt Petition):**
 - Petition is **DISMISSED** for lack of merit.
- **Execution:** Decision declared **immediately executory**.

● SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLES

1. Dissenting Opinion of Justice Alfredo Benjamin S. Caguioa [207–223]

- **Quasi-Judicial Nature:** Asserted that resolving Duterte Youth's Verified Opposition involved quasi-judicial power requiring a 4-vote majority under Art. IX-A, Sec. 7 and prior hearing before a COMELEC Division under Art. IX-C, Sec. 3.
- **Ultra Vires Deadlines:** Argued that setting substitution deadlines beyond R.A. No. 7941 was *ultra vires* for COMELEC.
- **Improper Disqualification of Nominees:** Maintained that even if substitution was late, it merely invalidated the timing, not the personal qualifications of the individual nominees; thus, enjoining Guanzon's renomination lacked legal basis.

2. Dissenting Opinion of Justice Jhosep Y. Lopez [224–232]

- Maintained that the administrative Minute Resolutions were validly issued and that COMELEC acted within its administrative discretion to ensure representation for P3PWD [229–232].

● RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In Duterte Youth Party-List v. COMELEC (2024), P3PWD Party-List won one House seat in the May 2022 elections. Between June 7 and June 10, 2022 (post-election!), ALL FIVE of P3PWD's original nominees resigned en masse. On June 14, 2022, P3PWD submitted a brand-new list of substitute nominees led by retired COMELEC Commissioner Rowena Guanzon as 1st substitute nominee. COMELEC En Banc issued Minute Res. No. 22-0774 approving the post-election substitution. Duterte Youth opposed the substitution, citing COMELEC Res. No. 10690, which set November 15, 2021 as the mandatory deadline for substitution by reason of withdrawal. When COMELEC denied its opposition, Duterte Youth filed a Rule 64/65 certiorari petition before the Supreme Court, which issued a TRO.

The Supreme Court En Banc, through Justice Rosario, GRANTED the petition and declared the substitution NULL AND VOID. The Court held: (1) The Cardemas have standing under the transcendental importance exception; (2) Jurisdiction remained with COMELEC because Guanzon never assumed office in Congress, preventing HRET jurisdiction from attaching; (3) Approving nominee substitutions is an administrative function requiring only a majority vote of Commissioners present with a quorum; (4) COMELEC committed grave abuse of discretion because rules limiting nominee substitution remain MANDATORY post-election; allowing en masse post-election substitution blindsides the electorate and violates the voters' constitutional Right to Information (Art. III, Sec. 7); and (5) P3PWD may submit additional nominees under Sec. 16 of R.A. 7941, but is STRICTLY ENJOINED from renominating Guanzon and the four other substitute nominees for the 19th Congress."* [180, 181, 184, 187, 189, 191–193, 196, 198, 224]

Deadlines limiting the withdrawal and substitution of party-list nominees maintain their mandatory character post-election, and COMELEC commits grave abuse of discretion in approving en masse post-election nominee substitutions that blindside the electorate and violate the voters' constitutional right to information.

DUTERTE YOUTH v. Commission on Elections (2024)

Topic Subtopic	The Branches of the Government - Congress - Power, Composition, Qualification and Term of Office	GR No. & Ponente	[G.R. No. 261123. 261876, August 20, 2024.] EN BANC - ROSARIO
Petitioner/s	DUTY TO ENERGIZE THE REPUBLIC THROUGH THE ENLIGHTENMENT OF THE YOUTH [DUTERTE YOUTH] PARTY-LIST, represented by [CHAIRPERSON] RONALD GIAN CARLO L. CARDEMA and REPRESENTATIVE DUCIELLE MARIE S. CARDEMA	Respondent/s	261123 - COMMISSION ON ELECTIONS, HOUSE OF REPRESENTATIVES, KOMUNIDAD NG PAMILYA, PASYENTE AT PERSONS WITH DISABILITIES [P3PWD] PARTY-LIST AND ITS NOMINEES led by ROWENA AMELIA V. GUANZON 261876 - MA. ROWENA AMELIA V. GUANZON
Doctrine	Nominee substitution being a matter of substance, rules and regulations governing the same do not lose their mandatory character even after the elections. A contrary rule would lead to the absurd result where a party need only wait for the elections to end before filing for substitution of nominees so that the COMELEC's deadline would not apply to it.		

FACTS

- 2012 - COMELEC issued Resolution No. 9366 which laid down the rules on withdrawal and substitution of party-list nominees, among others.
- 2015 - Guanzon was appointed as Commissioner of the COMELEC to serve a term of seven years, or until February 2, 2022.
- On January 27, 2021 - COMELEC promulgated Resolution No. 10690, which amended Resolution No. 9366, by setting new deadlines for the withdrawal and substitution of nominations, and requiring party-list groups, organizations, and coalitions to publish, *at their own expense*, their new list of substitute nominees, within five days from the submission of said list for purposes of the 2022 National and Local Elections (NLE)
- On March 23, 2021, P3PWD filed its Petition for Registration and Accreditation as a regional sectoral organization under the party-list system.
- By the last day set by COMELEC under its Resolution No. 10695, 270 party-list groups — including Duterte Youth and P3PWD — had expressed their intent to participate in the 2022 NLE
- P3PWD published its list of nominees, and then the withdrawal and substitution of 2nd-5th nominees. COMELEC approved it and published the Final List online. Guanzon retired from her COMELEC post on Feb 2, 2022. P3PWD was entitled to 1 seat at HOR with Rep. Yeneza taking oath. Other nominees resigned, and Yeneze also later resigned despite taking the oath. On June 14, 2022, P3PWD submitted to the COMELEC, among other things, the Certificate of Nomination (CON) and Certificates of Acceptance of Nomination (CAN), listing Guanzon as the 1st nominee. COMELEC approved and will give due course to the nominees, pending the publication. – P3PWD submitted proof of publication of its New List of Nominees (June 17, 2022).

Suits

- June 17, 2022 - DUTERTE Youth filed a Verified Opposition before the COMELEC, praying for the denial of the substitution of P3PWD's nominees arguing that the substitutions were filed beyond the deadlines set by Resolution No. 9366, as amended, and that giving due course thereto would violate Republic Act Nos. 3019 and 6713 because Guanzon was just recently a Member of the COMELEC, which approved the party-lists joining the 2022 NLE, including P3PWD.
- June 17, 2022 - DUTERTE Youth also filed a case before the SC, without awaiting the resolution of the Opposition, praying for the annulment of the approval of the substitution of all nominees of P3PWD, and for the issuance of a TRO and/or writ of preliminary injunction enjoining the COMELEC from proclaiming Guanzon, and the HOR from allowing her and/or the substitute nominees to assume office during the pendency of the Petition.
- June 22, 2022 - COMELEC En Banc promulgated (1) Minute Resolution No. 22-0798 which noted P3PWD's Manifestation regarding the publication requirement and considered the same as **satisfactory** compliance with

Minute Resolution No. 22-0774, and (2) Minute Resolution No. 22 0810 which denied the Opposition for lack of merit. 3 Commissioners approved.

- COMELEC declared P3PWD as entitled to 1 seat in the HOR, and Guanzon as the qualified nominee. On June 27, 2022 - Guanzon appeared before the HOR and submitted her Oath of Office
- June 29, 2022 - SC issued a TRO to prevent the implementation of its Resolutions, and asked for Comments.
 - Despite the TRO, Guanzon filed 3 House Bills. HOR, through the OSG, said it will comply with the TRO, and returned the draft measures that Guanzon had filed.
- July 1, 2022 - Cardema filed a PT before the COMELEC to deny due course or cancel cert of nomination against Guanzon, in his capacity as taxpayer and registered voter, alleging that P3PWD and Guanzon committed material misrepresentations in her CON and CAN.

ISSUE 1

Side – Procedural	W/N Duterte Youth Party-List has legal standing to question COMELEC's Minute Resolution Nos. 22-0774, 22-0798, and 22-0810?	YES
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
Duterte Youth averred that it sustained injury in the sense that the playing field among party-list organizations was no longer equal when the COMELEC granted the withdrawal and substitution of P3PWD's nominees beyond its deadline which all other party-lists regarded as definite. Invoked standing as concerned citizens, taxpayers, and registered voters, and Ducielle Cardema as legislator ● As citizens, they are concerned with the possibility that the same scheme may happen in subsequent party-list elections where party-list nominees may altogether be substituted after securing a seat in the HOR. ● As taxpayers, they are against the possibility of illegal disbursement of public funds in the form of a salary should Guanzon be allowed to sit as the first nominee of P3PWD. ● As voters, they are inclined to confirm the validity of the COMELEC issuances on the rules for substitution of party-list nominees. ● Additionally, as legislator, Ducielle Cardema avers that it is in her interest to see to it that only those who are fit and qualified to sit in the HOR since a member of Congress not only discharges public functions but receives salaries and emoluments which are paid out of the public treasury.		● The COMELEC contends that the Cardemas failed to demonstrate a "present substantial interest" in the instant case as citizens, taxpayers, and registered voters. The Cardemas' standing to sue as concerned citizens "may not be predicated upon an interest . . . , which is held in common by all members of the public because of the necessarily abstract nature of the injury supposedly shared by all citizens." ● Their invocation of their capacity as registered voters likewise fails since the assailed Minute Resolutions do not concern their right of suffrage so as to afford them a personal stake in the outcome of the case. ● They also failed to justify their standing as taxpayers since the act complained of does not deal with illegal expenditure or misapplication of public funds. ● Additionally, P3PWD argues that the alleged harassment of the Cardemas by Guanzon in various media does not amount to actual or threatened injury. Thus, it appears that they filed the Petition merely as a personal vendetta against her
RULING and RATIO DECIDENDI:		
Usually it will be NO to legal standing, but since this case is of transcendental importance, the Court relaxes the standing requirements and DY will have standing as concerned citizens. <i>To Expound:</i> ● Fails to see how DY will be injured with the grant of withdrawal and substitution of P3PWD's nominees. Allegation of uneven playing field is too abstract and not the direct injury contemplated for standing ● DY will not be deprived of a seat if P3PWD's nominee were allowed to sit ● Not on taxpayer - no disbursement of salaries or emoluments to the substitute nominees to begin with, petitioner cannot claim injury-in-fact on the basis of illegal disbursement of public funds		

- As for Ducielle Cardema's claim of standing as a legislator, her alleged interest in ensuring that only those who are qualified are able to sit in the HOR has nothing to do with her prerogatives as a legislator.
- On voter standing - DY did not even present that it voted for P3PWD, thus, it could have not been personally deceived by the post-election substitution of its nominees
- Nonetheless, given the transcendental importance of the constitutional questions raised in this case, involving as it does the right of the people to information in matters of public concern, particularly in the election of party-list organizations, petitioner may invoke standing as concerned citizens.

ISSUE 2

Side – Procedural	W/N a petition for certiorari under Rule 64 in relation to Rule 65 is the proper remedy from the assailed Minute Resolutions of the COMELEC?	NO
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
Petitioner argues that a writ of certiorari lies because it is directed against the COMELEC in the exercise of its quasi-judicial functions, the COMELEC committed grave abuse of discretion in neglecting to properly exercise its quasi-judicial functions over petitioner's opposition against the substitution of P3PWD's nominees, and the COMELEC has approved said substitution, thus, leaving no appeal nor any plain, speedy and adequate remedy in the ordinary course of law to question the same. While they admit that the matter of substitution initially fell under the administrative functions of the COMELEC, the same may later on fall under its quasi-judicial functions as when a legal controversy comes to fore such as the filing of an opposition, pursuant to <i>Aggabao v. COMELEC</i>		The COMELEC posits that the assailed Resolutions were issued in the exercise of administrative functions, thus, beyond the ambit of Rule 65. COMELEC exercises its administrative powers when it receives COC, and CONA (Nomination and Acceptance).
RULING and RATIO DECIDENDI:		
<i>The proper remedy is a petition for certiorari under Rule 65 of the Rules of Court.</i> • COMELEC's administrative function refers to the enforcement and administration of election laws. Whereas, its quasi-judicial or administrative adjudicatory power involves the resolution of controversies arising from the enforcement of elections laws, and to be the sole judge of all pre-proclamation controversies and of all contests relating to the elections, returns, and qualifications. • As applied, when the COMELEC En Banc acted on the substitution of P3PWD's nominees, it was clearly performing an administrative function because it merely called for the enforcement of election laws and rules (i.e., similar to receiving COCs and CONAs). It involved no exercise of discretionary authority, let alone of its adjudicatory or quasi-judicial power to hear and resolve controversies defining the rights and duties of parties litigants, relative to the conduct of elections of public officers and the enforcement of election laws • COMELEC's action on the Opposition is also not an exercise of quasi-judicial powers. The Opposition in this case did not result in a legal controversy or conflict of rights that would require real adjudication or the use of judgment/discretion. • In view of the above, <i>Rule 64 was not the correct way of assailing the Resolutions/Opposition decision. Either way, the court will treat it as a petition filed under Rule 65.</i> • It is settled that the Court's certiorari powers should be exercised only upon compliance with the stringent requirements of Rule 65, particularly that there be no plain, speedy and adequate remedy in the ordinary course of law. – the case meets it in view of the starting term of office of the HOR members, and since COMELEC does not have a procedure in opposing the substitution of nominees. There is no other plain, speedy and adequate remedy in the ordinary course of law except via a petition for certiorari before this Court. Ec		

ISSUE 3

Side – Procedural	W/N the COMELEC still has the jurisdiction over the case instead of the HRET?	YES
-------------------	---	-----

PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
Petitioner argues that jurisdiction remained with the COMELEC and was not acquired by the HRET as Guanzon had not yet assumed office as representative of P3PWD, there being a TRO enjoining the HOR from allowing her and other substitute nominees to assume office	COMELEC agrees with the Petitioner. P3PWD argues that the TRO only restrained COMELEC and no one else. Thus, nothing prevented HOR from recognizing Guanzon as a rep. Therefore, Guanzon duly assumed office as its representative on the afternoon of June 30, 2022. Thus, for all legal intents and purposes, she is an incumbent member of the HOR whose title and right to hold office is assailable only before the HRET.
RULING and RATIO DECIDENDI:	
While Guanzon was already proclaimed and took her oath, the legal effects of said acts were stayed by the TRO whose office is to preserve the status quo, i.e., the last actual peaceable uncontested status that preceded the controversy. Since the TRO preserves the pre substitution state of affairs, it is unnecessary to delve into issues on post-substitution acts such as Guanzon's proclamation and oath. At any rate, the HOR, through the OSG, already manifested that it would comply with the terms of the TRO during the pendency of this case, out of courtesy to a co-equal branch of government. It later manifested that Guanzon had not yet assumed office as representative of P3PWD. Thus, <i>We agree with petitioner and the COMELEC that jurisdiction remained with the latter and was not acquired by the HRET</i>	

Substantive Issues (G.R. No. 261123)
ISSUE 4

Main – Procedural Main – Substantive Side – Procedural Side – Substantive	W/N the Party-List System Act allows the withdrawal of nominees regardless of the reason? 4.1. What is the Applicable Party List System Act Provision in this case?	YES Sec 8
PETITIONER/S ARGUMENTS:		
Petitioner argues that none of the reasons proffered by the withdrawing nominees are valid causes for withdrawal under COMELEC Resolution No. 10690. More importantly, allowing all five nominees to simultaneously withdraw after the elections and putting in their stead five new nominees will defeat the constitutional right of the people to information on matters of public concern and will be tantamount to fraud and imposition upon the electorate		
RULING and RATIO DECIDENDI:		
The Party-List System Act does not prohibit the withdrawal per se of a nominee. What it prohibits is the change of name or alteration of order of nominees after submission of the list to the COMELEC, subject to certain exceptions (e.g., when the nominee (a) dies; (b) withdraws in writing their nomination; or (c) becomes incapacitated). There being no prohibition on the withdrawal of nominees whether before, during or after elections, the COMELEC technically may neither deny nor grant a withdrawal but merely note the same. On the Applicable Law for This Case Section 8. Nomination of Party-List Representatives. — . . . A person may be nominated in one (1) list only. Only persons who have given their consent in writing may be named in the list . . . <i>No change of names or alteration of the order of nominees shall be allowed after the same shall have been submitted to the COMELEC except in cases where the nominee dies, or withdraws in writing his nomination, becomes incapacitated in which case the name of the substitute nominee shall be placed last in the list . . .</i> Section 16. Vacancy. — In case of vacancy in the seats reserved for party-list representatives, the vacancy shall be automatically filled by the next representative from the list of nominees in the order submitted to the COMELEC by the same party, organization, or coalition, who shall serve for the unexpired term. <i>If the list is exhausted, the party, organization, or coalition concerned shall submit additional nominees.</i>		

- Sec 16 is not applicable for this case, since it applies to the vacancy in a party-list seat, not in the list of nominees. P3PWD's en masse resignation of its nominees could not have caused any vacancy, since their seat did not legally exist until the 19th Congress commenced. Sec 16 was to ensure that there is contingency for a future unexpected vacancy of party-list seat. It was never intended to give party-list groups carte blanche to overhaul the list of nominees, but only to serve as a buffer to guarantee that the seat is never left vacant.
- Sec 8 is applicable here, since the substitution occurred prior to June 30, 2022 (assumption of office).

ISSUE 5:

Main – Substantive	W/N the rules and regulations on substitution of party-list nominees are mandatory even AFTER elections?	YES
--------------------	--	-----

RESPONDENT/S ARGUMENTS:

P3PWD and Guanzon posit that the deadlines stated in the aforementioned Resolutions no longer apply after the elections.

COMELEC relied on *Engle v COMELEC* for saying that the deadline on substitution of nominees is applicable only prior to the elections.

RULING and RATIO DECIDENDI:

YES. Rules and regulations on substitution of party-list nominees are mandatory even after elections.

Deadline was set in Sections 4 and 5, Rule 4 of COMELEC Resolution No. 9366, as amended by Resolution No. 10690 –

Sec. 4. Withdrawal of nominations and substitution of nominees due to the withdrawal of the acceptance to the nomination shall be in writing and under oath, and filed with the Law Department **not later than NOVEMBER 15, 2021**

Sec. 5 - The party, within ten (10) days from the exhaustion of the original list, shall file with the Law Department a list of its substitute nominees, . . . Provided that substitutions due to the death and/or incapacity of the nominees under this paragraph **shall be allowed only up to mid-day of election day**

– Guanzon even approved it when she was in the COMELEC.

- The timing of the substitution of nominees is not merely a matter of form but of substance. It affects the very right of the electorate to know the identities of the nominees of a party-list organization in order to make an intelligent and informed choice come election day
- Lokin - allowing the party-list organization to change its nominees through withdrawal of their nominations, or to alter the order of the nominations after the submission of the list of nominees circumvents the voters' demand for transparency
- Nominee substitution being a matter of substance, rules and regulations governing the same do **not** lose their mandatory character **even after** the elections. A contrary rule would lead to the absurd result where a party need only wait for the elections to end before filing for substitution of nominees so that the COMELEC's deadline would not apply to it.

On Setting Deadlines

- Yes, COMELEC may impose a deadline for substitution of nominees to carry out the purposes of the law. While the Party List System Act did not impose a deadline for this, it vests in the COMELEC the duty to promulgate the necessary rules and regulations to carry out the law. It is empowered to provide details to implement the statute for as long as it does not supplant the express provisions of the law. (Note: COMELEC was the one who added the Nov 15, 2021 and mid-day of election day deadlines, it was not provided in the law itself)

ISSUE 6

Side – Substantive	W/N the Assailed Resolutions require that it be approved by at least 4 members of the COMELEC?	NO
RULING and RATIO DECIDENDI:		
Section 7, Article IX-A of the Constitution requiring at least 4 members to approve a Resolution is for adjudicatory or quasi-judicial powers. Since it was already established that these Resolutions were administrative in nature, it does not need 4 votes. It only needs approval by a majority of all members. The approval of the substitution of nominees and the subsequent denial of the Opposition thereto having been done in the exercise of the COMELEC's administrative functions, the affirmative vote of three out of the four Commissioners constituted a majority and was, thus, valid.		

ISSUE 7: MAJOR ISSUE!!! FINALLY!!

Main – Substantive	W/N COMELEC committed grave abuse of discretion in approving the post-election substitution of nominees?	YES
RULING and RATIO DECIDENDI:		
As established, the rules and regulations relating to the substitution of nominees remain mandatory even after elections. - In this case, aside from the COMELEC's clear disregard of its own deadline based on what appears to be blind adherence to the recommendation of its Law Department, this Court notes the sheer speed at which it approved the substitution of P3PWD's nominees — one day from P3PWD's physical filing. It showed an undue haste in rendering a decision, when considered along with other circumstances, may be a manifestation of arbitrariness indicative of grave abuse of discretion. - Commissioner Ferolino in dissenting the COMELEC Memo said the following: "It is my staunch position that publication is necessary before the new nomination can be considered as valid. ... - We cannot simply brush aside our Rules simply because the first nominee here is a former Commissioner. Making our Rules inapplicable to particular individuals or groups would suggest a double standard bordering on a lack of sense of fairness and justice. ... - Our Resolutions on the matter expressly provide that withdrawal with substitution was allowed only until 15 November 2021 and publication of the new and complete list of nominees is required. We cannot pre-approve the New List of Nominees pending compliance with the requirement [publication]" - We cannot pre-approve the New List of Nominees pending compliance with the requirement and then RECALL it as Commissioner Bulay suggested in case of non-compliance. What We do here is an aberrant procedure." COMELEC En Banc acted with grave abuse of discretion - in the way the approving commissioners acted upon the substitution of P3PWD's nominees, from giving short shrift to the publication requirement, to the brushing aside of the COMELEC's Rules in a matter involving a former commissioner whereas the same was not done in another instance, to the pre-approval of the new list of nominees pending compliance with the publication requirement, to the view of one commissioner that the COMELEC may simply recall the approval in case of noncompliance. - A ruling tainted with grave abuse of discretion is void and cannot be the source of any right or obligation. - Ergo, Minute Resolution No. 22-074 is void insofar as it approved the substitution of nominees of P3PWD. Insofar as it granted the withdrawal of prior nominees, said resolution remains valid albeit unnecessary considering that as earlier discussed, the COMELEC may neither grant nor deny a withdrawal but merely note the same. - P3PWD can still submit additional nominees, but P3PWD cannot renominate Guanzon, Garcia, Belmonte-Lim, Tenorio, and Villar, Jr. for the duration of the 19th Congress. - Any further gaps on the party-list system must be amended by the Congress.		

Side – Substantive	W/N Guanzon must be held in contempt for violating the sub judice rule following reports that she publicly discussed the Court's TRO? 8.2. W/N Guanzon's countercharge for indirect contempt against the Cardemas should prosper?	NO
-----------------------	--	----

RULING and RATIO DECIDENDI:**G.R. No. 261123**

The sub judice rule (matters under judicial consideration) restricts public comments, media coverage, and outside discussions about an active court case in order to avoid prejudging the issue, influencing the court, or obstructing the administration of justice.

- We find Guanzon's comments to be borderline contumacious, since she also alluded to her being a lawyer and UP Law former professor to lend credence to her position (e.g., questions on jurisdiction - indicating that the HRET should take the jurisdiction instead, questioning SC on what is there to restrain when she already took the oath).
- However, the Court took note that when the interviews were conducted, Guanzon had not yet received a copy of the Petition. She had no knowledge of its contents, let alone the arguments of the petitioner, and merely relied on media reports. Second, her use of the phrase "without meaning to jump the gun on the Supreme Court" shows ostensible deference to the authority of the Court. Thus, We discern no clear and present danger in her public utterances. While less than salutary, her comments do not pose any serious and immediate threat to the independence of the Court
- **Countercharge for Indirect Contempt against Cardemas** - Guanzon committed a procedural faux pas in charging the petitioner with indirect contempt of court in her Compliance instead of filing a separate petition. Consequently, her countercharge must be dismissed.

Contempt Charge in G.R. No. 261876 filed by Duterte Youth for violating the TRO

- Petition dismissed. A party cannot be held in contempt for disobeying a court order which is not addressed to them. As earlier discussed, the TRO dated June 29, 2022 was directed only at the COMELEC and the HOR. Moreover, We note Guanzon's explanation that she received a copy of the TRO as well as the petition in G.R. No. 261123 only on July 4, 2022, and she was unaware of any hindrance to her filing of a bill on June 30, 2022.
- Guanzon's usage of "Cong" or "Congresswoman" on her social media, public appearances, etc. do not constitute defiance of the TRO since it was not addressed to her. However, she was reminded of responsible use of social media, as a lawyer, since she was already aware of the TRO at the time of these actions.

FINAL DECISION	ACCORDINGLY, the Petition in G.R. No. 261123 is GRANTED. COMELEC Minute Resolution No. 22-0774, dated June 15, 2022 is declared NULL and VOID for having been issued with grave abuse of discretion insofar as it approved the substitution of the nominees of respondent P3PWD Party-List. The Court's Temporary Restraining Order dated June 29, 2022 is made PERMANENT. Respondent P3PWD Party-List is DIRECTED to submit additional nominees pursuant to Section 16 of Republic Act No. 7941 but is STRICTLY ENJOINED from renominating for the duration of the Nineteenth Congress the nominees whose substitutions were declared null and void by this Decision, namely Ma. Rowena Amelia V. Guanzon, Rosalie J. Garcia, Cherrie B. Belmonte Lim, Donnabel C. Tenorio, and Rodolfo B. Villar, Jr. The Petition in G.R. No. 261876 is DISMISSED for lack of merit. Respondent Ma. Rowena Amelia V. Guanzon's countercharge for indirect contempt is likewise DISMISSED for being procedurally defective. This Decision is immediately executory. SO ORDERED
-----------------------	---

SEPARATE OPINION/S

LEONEN, J.,
dissenting &
concurring

TLDR:

- Leonen **concurs** with the *ponencia* insofar as it **grants the Petition for Certiorari** (G.R. No. 261123) and declares **null and void COMELEC Minute Resolution No. 22-0774** for being issued with grave abuse of discretion in approving the post-election substitution of nominees of respondent P3PWD Party-List.
- He **dissents** from the majority's directive ordering P3PWD to submit a *new/additional* list of nominees under Section 16 of Republic Act No. 7941. Instead, he votes that P3PWD must be directed to **select its party-list representative from its valid Second List of Nominees** previously submitted to the COMELEC.

Concurrence with the Majority

1. Party-List System's Purpose

- The party-list system was created as a constitutional innovation to ensure broader participation in policymaking for marginalized and underrepresented sectors that cannot otherwise win in ordinary elections.
- While voters vote for the party-list organization and its platform rather than individual candidates, the electorate has a **fundamental right to know the individuals behind the party-list** before casting their ballots.
- Under established jurisprudence (*Lokin Jr. v. COMELEC* and *COCOFED v. COMELEC*), the publication of nominees' names enables voters to make an intelligent, informed choice. Allowing a winning party-list to execute an *en masse*, post-election substitution blindsides and misleads the sovereign electorate, **violating their constitutional right to information**.
- "There can be no true democracy if the electorate is misled into believing that they are voting for a certain representative, only to be substituted once the seat is secured."

2. Chronology & Abusive Timeline of P3PWD's Substitutions

- P3PWD's timeline of the withdrawal and substitution of its nominees shows a calculated, deliberate attempt to exploit and abuse the party-list system after securing a congressional seat.
 - **October 6, 2021:** P3PWD filed its **First** List of nominees (Grace S. Yeneza, Joel R. Lopez, Allen Jose R. Serna, Michelle R. Ofalla, Guillermo R. Eugenio).
 - **November 5, 2021:** Before the substitution deadline, P3PWD submitted a **Second** List replacing the 2nd to 5th nominees (Grace S. Yeneza, Ira Paulo A. Pozon, Marianne Heidi C. Fullon, Peter Jonas R. David, Lily Grace A. Tiangco).
 - **May 9, 2022: Elections** took place, and P3PWD secured **one seat** in the House of Representatives.
 - **May 30, 2022:** First nominee Yeneza took her **oath of office**.
 - **June 7–10, 2022:** All **five** nominees from the Second List filed **en masse resignations/withdrawals** citing personal (or no) reasons.
 - Yeneza: she needed to take care of her daughter who was stricken with cancer
 - **June 14, 2022:** P3PWD submitted a **Third** List headed by former COMELEC Commissioner (and respondent) Ma. Rowena Amelia V. Guanzon.
 - **June 15, 2022:** COMELEC issued **Minute Resolution No. 22-0774** approving the withdrawals and the Third List.

3. Former Commissioner Guanzon (Conflict of Interest)

- Was a sitting COMELEC Commissioner when P3PWD filed its Petition for Registration and when COMELEC issued resolutions regarding the 2022 party-list raffle.
- After retiring on February 2, 2022, Guanzon campaigned for P3PWD and admitted in public broadcasts (May 14; prior to the formal withdrawals of the original nominees) that Yeneza would resign and she would assume the seat as substitute nominee.
 - became a member of respondent P3PWD two days after retiring, on Feb. 4, 2022

	• This sequence creates a palpable conflict of interest under Section 7 of R.A. No. 6713 (Code of Conduct and Ethical Standards for Public Officials), as a former commissioner directly benefited from transactions approved during or near her incumbency. 4. Angcos v. Duterte Youth: Not a Binding Precedent • No Stare Decisis - Unsigned minute resolutions (such as <i>Angcos v. Duterte Youth</i>, which dismissed a challenge to post-election substitutions) do not constitute binding precedent under <i>stare decisis</i> except between the exact same parties & subject matter. • Justice Leonen notes that COMELEC's past practice of allowing post-election wholesale substitutions for other groups (e.g., <i>Duterte Youth</i> in 2019 and <i>Magkakasama sa Sakahan</i> in 2022) merely demonstrated COMELEC's "lackadaisical" attitude toward enforcing its own mandatory deadlines. 5. Jurisdiction Belongs to COMELEC, Not HRET • Jurisdiction over the controversy remained with COMELEC because Guanzon never validly assumed office as a Member of the House of Rep. due to the SC's TRO. • Javier v. COMELEC - the HRET exercises jurisdiction as sole judge of contests relating to the "election, returns, and qualifications" of proclaimed members who have assumed office. The issue here concerns the constitutional and statutory validity of a post-election nominee substitution, which falls exclusively under COMELEC's purview. <u>Dissent from the Majority (does not agree on remedy)</u> 1. Inapplicability of Section 16 (Vacancy/Exhaustion Rule) • Sec. 16 of R.A. No. 7941 allows a party-list to submit additional nominees only when a seat becomes vacant during the term and the original list is exhausted due to death or incapacity (not applicable in this case; no real vacancy). ◦ The withdrawal/resignation of nominees for personal reasons after winning an election does not constitute legitimate exhaustion or vacancy under Section 16. • Ordering P3PWD to submit a <i>new</i> list under Section 16 indirectly validates the improper post-election scheme by allowing the party-list to introduce completely new names that were never presented to the electorate. 2. Use of the Second List of Nominees • Because COMELEC committed grave abuse of discretion in approving the post-election withdrawals and substitution, those withdrawals should never have been granted or recognized in the first place. • Since the post-election withdrawals and the 3rd List are null, the 2nd List of Nominees (Yeneza, Pozon, Fullon, David, & Tiangco) remains valid, effective, and standing. • P3PWD must be ordered to select its representative from among the nominees in its Second List, respecting the list submitted to COMELEC prior to the elections.
CAGUIOA, J., <i>dissenting</i>	1. COMELEC, and NOT the HRET, has the Exclusive Jurisdiction to Rule on the Withdrawal and Substitution of Party-List Nominees a. Tier One in deciding whether HRET has jurisdiction: HoR MEMBERSHIP - P3PWD's assertion that Guanzon was a member of the HoR is WRONG. There are three requisites to it, and she failed the third. - ONE, Valid Proclamation: she was validly proclaimed by COMELEC sitting as the National Board of Canvassers - TWO, Proper Oath of Office: she took the Oath before CA Justice Sorongon on June 23, 2022; the Oath administered by the House Speaker is merely ceremonial - THREE, Assumption of Office: she could NOT meet this requisite because of the June 29, 2022 TRO which was one day prior to the June 30, 2022 beginning of term, and the intent of the SC in issuing the TRO was to prevent her assumption b. Tier Two: Nature of Action is regarding Election, Returns, and Qualifications

- D.Y.'s action was regarding the WITHDRAWAL of P3PWD's nominations
 - Also, contests involving election, returns, and qualifications can't apply to Party-Lists since they only attach to persons
2. The Issue involves a Quasi-Judicial Matter that should have been tried and heard first before a COMELEC Division
 - a. Caguioa disagrees that all three COMELEC Resolutions were just "administrative" concerns
 - While the first two were (permitting P3PWD's withdrawal of nominees, and publication of substitute nominees), the third one wasn't (denying D.Y.'s Opposition praying for the denial of P3PWD's substitute nominees)
 - COMELEC set a NOV. 15, 2021 deadline for withdrawal and substitution of nominees, and D.Y. filed their Opposition to deny P3PWD's act of nominating Guanzon in Feb. 2022, which was against that deadline
 - b. But, he understands that the matter was of transcendental importance and concerned pure questions of law, so remand to a COMELEC Div. isn't needed
 3. The Voting Requisite for COMELEC Quasi-Judicial Matters requires a Majority Vote of Incumbent Members
 - a. As mentioned in (2), Caguioa perceives the issue to be a quasi-judicial matter, so the Consti. Art. IX-A Sec. 7 mandate for a majority vote of all COMELEC members should be observed
 - b. However, since COMELEC only had four sitting members at the time that the Third Resolution was issued, it met the requisite
 4. COMELEC was ULTRA VIRES for setting deadlines for party-list nominee substitutions
 - a. VERBA LEGIS: RA 7941 Sec. 8 only provides a submission deadline for party-list nominees, but NOT for the allowed change of names in the submitted list of nominees
 - Regardless, COMELEC Reso. 10690 imposes deadlines for (i) withdrawal in writing, NOV. 15 2021; and (ii) withdrawal by death or incapacity, MID-ELECTION DAY – effectively OVERRIDING substantive law
 - b. The ruling in *Frederico* and RA 9369 Sec. 13 aren't applicable because they only apply to INDIVIDUAL candidates who file CoC's, and not PARTY-LIST nominees who file CoNA's; *Frederico* and RA 9369 Sec. 13 concern ballots with the individual candidates' names on them, hence a justified deadline, while party-listings on ballots don't need their nominees' names on them
 - c. RATIO LEGIS: the intent of the legislature is for a party-list to always have a "perfect right to change the name of the nominee" who may represent it, and this intent is defeated if the party-list is barred from doing so via a deadline
 5. Submission of Additional Party-List Nominees does NOT impair the Electorate's Right to Information on Matters of Public Concern
 - a. The justification in COMELEC giving a deadline for substitutions is CONTRADICTED by RA 7941 Sec. 16, which allows for substitution of additional nominees to serve unexpired terms in case of vacancies, EVEN IF the people would not have known about the new nominees in the list
 - b. Further, the people vote for PARTY-LISTS, for the causes of their advocacies, and NOT individuals; the right to an informed choice pertains to individuals
 - c. However, he nevertheless says COMELEC's issuances requiring the publication of the names of party-list nominees are valid, as it upholds the people's right to make an informed choice about a candidate's eligibility and fitness for office
 6. As the Deadline for Substitution is VOID, there is NO legal basis to find that COMELEC committed Grave Abuse of Discretion in approving the Substitution of P3PWD's Nominees
 - a. NO evidence on record that Guanzon's involvement affected how COMELEC resolved the Substitution of P3PWD's Nominees and D.Y.'s Opposition
 - b. Any perceived leniency that COMELEC afforded P3PWD was NOT proven to have been withheld from any other party-list (in fact, leniency was even afforded to D.Y.'s nominee substitutions)

- c. COMELEC and P3PWD can't be faulted for the sudden consecutive nominee withdrawals since it's not prohibited by RA 7941
- d. The "speed" at which COMELEC granted the P3PWD Substitution and D.Y.'s Opposition is no problem as long as they did so within the sanctioned period
- 7. NO Legal Basis for the SC to Prohibit the Renomination of the P3PWD Nominees
 - a. The Majority relies on the doctrine that "what cannot be legally done directly cannot be done indirectly" in enjoining the P3PWD nominees' renominations
 - b. However, the COMELEC resolutions – assuming they're even valid – only impose deadlines on nominee withdrawals and substitutions, do NOT provide for nominee limitations of a noncompliant party-list
 - c. The SC can't disallow substitution of party-list nominees on the basis of what it perceives to be abuses, if such perception has NO LEGAL BASIS!

TL;DR: COMELEC deadlines bad. P3PWD nominees should be allowed to be renominated.

Alliance for Rural and Agrarian Reconstruction, Inc. v. Commission on Elections

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Alliance for Rural and Agrarian Reconstruction, Inc., also known as ARARO Party-List v. Commission on Elections*
- **Citation:** G.R. No. 192803, December 10, 2013 (En Banc)
- **Ponente:** Leonen, J.
- **Bench Composition:** Sereno, C.J., Carpio, Leonardo-de Castro, Brion, Peralta, Bersamin, Del Castillo, Abad, Villarama, Jr., Perez, Mendoza, Reyes, and Perlas-Bernabe, JJ., concurring; Velasco, Jr., J., concurring and dissenting.
- **Syllabus Relevance & Topic:**
 1. **Legislative Department — Party-List System Seat Allocation (BANAT Formula Divisor Refinement):** Definition and scope of the denominator ("total votes cast for the party-list system") under Section 11(b) of Republic Act No. 7941.
 2. **Non-Disenfranchisement of Voters & Right of Suffrage:** Inclusion in the divisor of votes validly cast for party-list groups listed on the official ballot that are subsequently disqualified after the election.
 3. **Exclusion of Invalid/Spoiled Votes:** Distinction between valid votes cast for subsequently disqualified groups and invalid/spoiled votes attributable to voter error [338–339, 345].
 4. **Stray Votes Doctrine (Cayat Rule in Party-List Elections):** Exclusion from the divisor of votes cast for party-list groups whose disqualification attained finality prior to election day and was reasonably made known by COMELEC to the electorate.
 5. **Mootness & Real Party in Interest (Locus Standi in Electoral Computation):** Adjudication of academic questions for public guidance; requirement of direct, substantial, and material injury to challenge an electoral formula [112, 332–333].

CHRONOLOGICAL MATERIAL FACTS

1. **Participation in the 2010 Automated Elections:** Petitioner Alliance for Rural and Agrarian Reconstruction, Inc. (ARARO) was a duly accredited party-list organization under R.A. No. 7941 that participated in the May 10, 2010 national and local elections. It garnered a total of 147,204 votes and ranked 50th among participating party-list groups.
2. **Initial Proclamation by NBOC:** Sitting as the National Board of Canvassers (NBOC), the COMELEC En Banc initially proclaimed 28 winning party-list organizations corresponding to 35 guaranteed and additional seats. This initial tally was derived from 121 Certificates of Canvass (COCs) representing 29,750,041 votes cast for the party-list system.
3. **Determination of Total Available Seats:** Based on 229 legislative district seats, the total number of party-list seats available for the May 10, 2010 elections was 57 (computed under the formula: $\lfloor (229 / 0.80) \times 0.20 \rfloor = 57$)).
4. **COMELEC's Seat Allocation Formula:** COMELEC applied the formula laid down in *BANAT v. COMELEC* to rank participating groups and allocate guaranteed and additional seats [318, 326–328]. In computing the percentage of votes garnered by each party-list group (the proportion used to determine seat entitlement), COMELEC defined the divisor ("total votes cast for the party-list system") as the **total number of valid votes cast for party-list candidates minus the votes cast for party-list groups disqualified prior to or during canvassing**.

5. **ARARO's Challenge to the Divisor:** ARARO asserted that COMELEC's divisor was mathematically and legally flawed because COMELEC excluded spoiled votes, invalid votes, and uncast party-list votes. ARARO argued that "votes cast for the party-list system" encompasses all registered voters who actually voted in the election, regardless of whether their individual party-list vote was counted, valid, spoiled, or left blank.
 6. **ARARO's Mathematical Disregard Allegation:** ARARO presented calculations asserting that COMELEC's divisor formula improperly disregarded 7,112,792 votes:
 - *Total voters who actually voted:* 37,685,706.
 - *Less votes for disqualified party-lists (308,335):* 37,377,371.
 - *Less votes for party-list candidates (30,264,579):* 7,112,792 "disregarded" votes.
 7. **Filing of Petition:** On July 26, 2010, ARARO filed a Petition for Review on Certiorari under Rule 65 before the Supreme Court praying to modify COMELEC's interpretation of the *BANAT* formula divisor and enjoin further seat proclamations until the formula was adjusted.
-

PROCEDURAL HISTORY

1. **Administrative Action before COMELEC (NBOC Resolution No. 10-009):** COMELEC sitting as NBOC applied the *BANAT* formula divisor to allocate the 57 available party-list seats.
 2. **Supreme Court Special Civil Action:** ARARO filed a Rule 65 petition on July 26, 2010.
 3. **Denial of TRO (January 8, 2013):** The Supreme Court denied ARARO's prayer for a Temporary Restraining Order.
 4. **Supervening Events:** During the pendency of the petition: (a) COMELEC proclaimed all winning party-list groups; (b) the 2010–2013 congressional term expired on June 30, 2013; and (c) the May 13, 2013 elections were conducted, resulting in a new set of party-list representatives.
-

PARTIES' MATERIAL ARGUMENTS

- **Petitioner (ARARO Party-List):**
 1. **Disenfranchisement via Divisor Reduction:** COMELEC's divisor excludes spoiled ballots, invalid votes, and blank party-list votes, thereby misinterpreting "total votes cast for the party-list system" under Section 11(b) of R.A. No. 7941.
 2. **System vs. Candidate Distinction:** A vote for the "party-list system" includes every voter who participated in the election mechanism, whether their vote was counted or spoiled. Therefore, the divisor should be the total number of voters who actually voted (37,685,706 or 37,377,371) [323–324, 334, 337].
 - **Respondent (COMELEC via OSG):**
 1. **Mootness:** Supervening events (completion of proclamations and term expiration) rendered the petition moot.
 2. **Exclusion of Invalid/Stray Votes:** Under *CIBAC v. COMELEC* and *BANAT v. COMELEC*, invalid votes, spoiled ballots, or uncast party-list slots cannot be treated as votes cast "for the party-list system".
 3. **No Injury to Petitioner:** Even under ARARO's proposed divisor, ARARO garnered an insufficient percentage of votes to qualify for a single House seat [112–113, 333–334].
-

ISSUES

1. **Whether the petition was rendered moot and academic by supervening election events.**

2. **Whether petitioner ARARO is a real party in interest possessing legal standing to challenge COMELEC's divisor formula.**
 3. **Whether COMELEC committed grave abuse of discretion in its computation of the divisor ("total votes cast for the party-list system") in the *BANAT* seat allocation formula, and what constitutes the correct divisor under Section 11(b) of R.A. No. 7941.**
-

HOLDINGS AND CONTROLLING REASONING

1. On Mootness: YES, the petition is MOOT AND ACADEMIC, BUT the Court decided the substantive issue to provide controlling guidance.

- **Ratio:** A case becomes moot when supervening events extinguish the justiciable controversy. Here, COMELEC proclaimed all winning party-list groups, the 2010–2013 congressional term ended on June 30, 2013, and the May 2013 elections produced a new set of legislators.
- **Exception for Public Guidance:** The Court nevertheless retained jurisdiction under settled exceptions (*Mendoza v. Villas*, *David v. Macapagal-Arroyo*) because refining the electoral seat allocation formula involves paramount public interest, is capable of repetition yet evading review, and requires controlling principles for the guidance of the bench, bar, and public [332–333].

2. On Real Party in Interest / Standing: NO. ARARO is NOT a real party in interest [112, 333–334].

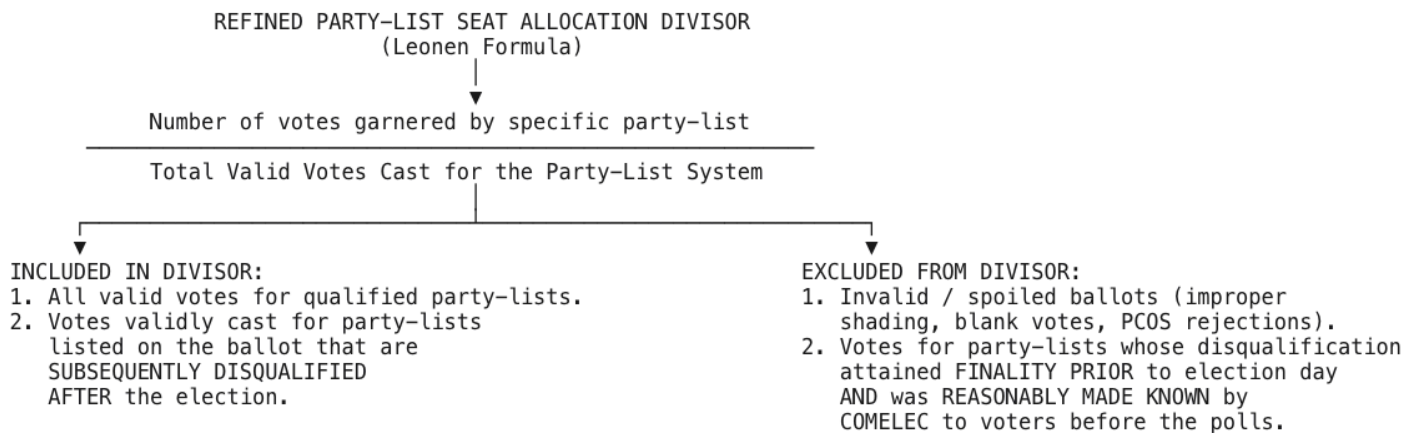
- **Ratio:** A real party in interest is one who stands to be benefited or injured by the judgment. ARARO's interest must be direct, substantial, and material.
- **Mathematical Inevitability:**
 - Under COMELEC's *BANAT Divisor* ($\backslash(30,264,579\backslash)$), ARARO's 147,204 votes yielded **0.4864%**, entitling it to **0 seats**.
 - Under ARARO's *Proposed Divisor* ($\backslash(37,377,371\backslash)$), ARARO's 147,204 votes yielded **0.3939%**, also entitling it to **0 seats**.
- **Conclusion:** Because ARARO fails to secure a seat under *either* formula, it suffered no direct, substantial, or material injury from COMELEC's allocation.

3. On the Refined Divisor Formula: COMELEC's formula is MODIFIED; the divisor equals TOTAL VALID VOTES CAST FOR ALL PARTY-LIST GROUPS LISTED ON THE BALLOT.

- **A. Rejection of ARARO's "All Voters" Divisor:**
 - Section 11(b) of R.A. No. 7941 explicitly commands that percentages be computed based on the "*total votes cast for the party-list system*".
 - "Total votes cast" does **not** include invalid or spoiled votes (e.g., improper shading, blank party-list choices, stray marks, torn ballots, or machine-rejected ballots). Invalidity arising from these defects is directly attributable to the voter's own failure or action, and such uncast/spoiled ballots cannot be deemed votes cast "for the party-list system".
- **B. Inclusion of Votes Cast for Subsequently Disqualified Groups (Protection Against Disenfranchisement):**
 - The Court held that "total valid votes cast for the party-list system" **MUST INCLUDE all votes validly cast for party-list groups listed on the official ballot, even if those groups are subsequently disqualified after the election** (or if their disqualification was pending on appeal during the election) [1, 338, 340, 344–345].
 - *Rationale:* Voters rely in good faith on the official ballot choices presented to them on election day. It is beyond human expectations to charge voters with knowledge of pending disqualification cases.

- Disregarding votes cast for groups disqualified *after* the election would penalize innocent voters, nullify their franchise, and cause massive voter disenfranchisement in violation of representative democracy and the constitutional right of suffrage.
- **C. Exception: Exclusion of Groups Disqualified with Finality Prior to Election Day (Cayat Rule):**
 - Applying *Cayat v. COMELEC*, if a party-list group's disqualification attained **finality prior to election day**, AND COMELEC **reasonably made known such final disqualification to the electorate prior to the election**, votes cast for that group are considered "stray votes" [338, 343, 344–345].
 - *Rationale*: When voters are fully notified in law and fact of a candidate's final pre-election disqualification, casting votes for that group constitutes a notorious misapplication of franchise; thus, those stray votes are **excluded from the divisor** [343, 344–345].
- **D. Prospective Application:**
 - To preserve stability and administrative finality, the refined divisor formula applies **prospectively** to succeeding party-list elections from the date of finality of the decision.

● DOCTRINE, TESTS, AND LEGAL STANDARDS



1. Refined Party-List Divisor Formula (*ARARO v. COMELEC*):

$$\text{Proportion / Percentage of Votes} = \frac{\text{Votes garnered by party-list}}{\text{Total valid votes cast for party-list candidates}}$$

1. **Voter Good Faith & Non-Disenfranchisement Rule:** Votes validly cast for a party-list group included on the official ballot whose disqualification was not final or was declared after election day **must be included in the divisor** to prevent disenfranchising voters who acted in good faith.
2. **Pre-Election Final Disqualification Exception (Cayat Rule):** Votes cast for a party-list group whose disqualification became final *before* election day AND was reasonably published/notified by COMELEC to the voters prior to the election are stray votes and **must be excluded from the divisor**.
3. **Prospective Application of Electoral Formula Refinements:** Judicial modifications to seat allocation formulas operate prospectively to protect completed electoral outcomes and vested legislative terms.

♥ DISPOSITION

- **Ruling:**

1. The prayer to enjoin COMELEC from proclaiming qualified party-list groups is **DENIED** for being moot and academic.
2. The formula in determining winning party-list groups, as used and interpreted in *BANAT v. COMELEC*, is **MODIFIED** as laid down in the Decision (refining the divisor to include valid votes for subsequently disqualified party-lists while excluding invalid votes and pre-election finally disqualified party-lists).
3. The refined formula shall apply **prospectively** to succeeding party-list elections from the date of finality of the decision.

● SEPARATE OPINIONS & OBITER

Concurring and Dissenting Opinion of Justice Presbitero J. Velasco, Jr. [116, 350–356]

- **Concurrence:** Agreed that the divisor representing total votes cast for the party-list system must include valid votes cast for party-list organizations disqualified with finality *after* election day.
- **Dissent on COMELEC Notice Proviso:** Dissented from the majority's proviso requiring proof that COMELEC "reasonably made known" the disqualification to voters prior to the election. Justice Velasco argued that **final disqualification prior to election day per se** is sufficient to render votes stray and exclude them from the divisor. Adding a subjective requirement of proving whether COMELEC "reasonably" informed voters creates evidentiary ambiguity and invites circumvention.

● RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *ARARO v. COMELEC* (2013), ARARO Party-List (which ranked 50th with 147,204 votes in the May 2010 elections) challenged COMELEC's seat allocation divisor under the BANAT formula. ARARO argued that the divisor ('total votes cast for the party-list system') should equal the total number of actual voters (37.6M), including spoiled and uncast votes, claiming COMELEC improperly disregarded 7.1M votes by deducting invalid and disqualified votes.

The Supreme Court En Banc, through Justice Leonen, DISMISSED the petition as moot and held that ARARO was not a real party in interest because under either formula, ARARO obtained 0 seats. However, for public guidance, the Court REFINED the BANAT divisor: (1) Spoiled/invalid votes attributable to voter error (improper shading, PCOS rejections) are EXCLUDED from the divisor; (2) Valid votes cast for party-list groups listed on the ballot that are SUBSEQUENTLY DISQUALIFIED AFTER the election MUST BE INCLUDED in the divisor to prevent voter disenfranchisement; and (3) Votes cast for groups disqualified with FINALITY PRIOR to election day AND whose final disqualification was reasonably made known by COMELEC to voters are EXCLUDED as stray votes. The refined formula applies prospectively."* [109, 110, 112–114, 314, 332–334, 338–340, 344–346]

One-Sentence Doctrine Anchor

The divisor for allocating party-list seats equals the total valid votes cast for all groups listed on the ballot—including those subsequently disqualified after the election—while excluding invalid ballots and votes for groups disqualified with finality prior to election day with due public notice. [338, 340, 344–345]

Araro v. Commission on Elections (2013)

Topic Subtopic	Congress HoR – Power, Composition, Qualification and Term of Office	GR No. & Ponente	G.R. 192803 LEONEN, J.
Petitioner/s	Alliance for Rural and Agrarian Reconstruction, Inc. Araro Party-List	Respondent/s	Commission on Elections
Doctrine	The divisor for determining a party-list group's percentage is the total number of valid votes cast for party-list candidates , including valid votes for groups subsequently disqualified, but excluding invalid or spoiled votes; a subsequent disqualification cannot retroactively invalidate votes cast by voters who relied on the official ballot.		

FACTS

ARARO PARTYLIST - participated in the May 10, 2010 elections. It **garnered 147,204 votes, ranking 50th**. COMELEC, as the National Board of Canvassers, proclaimed 28 party-list groups as winners, receiving a total of 35 seats.

COMPUTATION OF SEATS FOR THE 2010 PARTYLIST ELECTIONS:

- **TOTAL:** Based on 229 legislative district seats, the total number of party-list seats available for the May 10, 2010 elections was **57** under the formula $229/0.80 * 0.20 = 57$
- In allocating the party-list seats, COMELEC applied the formula in **BANAT v. COMELEC**. It computed a party-list's percentage by dividing its votes by the total votes cast for the party-list system.
 - In **BANAT v. COMELEC** they defined the divisor ("total votes cast for the party-list system") as the total number of valid votes cast for party-list candidates minus the votes cast for party-list groups disqualified prior to or during canvassing.
- Thus, COMELEC excluded FROM THE DIVISOR the 308,335 votes cast for 8 party-list groups that were disqualified. In its final computation, COMELEC used 30,264,579 as the divisor after accounting for the projected total party-list votes.

ARARO PROTEST (WANTS TO INCLUDE DISQUALIFIED VOTES)

- ARARO asserted that COMELEC's divisor was mathematically and legally flawed because COMELEC excluded spoiled votes, invalid votes, and uncast party-list votes.
- ARARO argued that "votes cast for the party-list system" encompasses all registered voters who actually voted in the election, regardless of whether their individual party-list vote was counted, valid, spoiled, or left blank.
 - ARARO presented calculations asserting that COMELEC's divisor formula improperly

disregarded 7,112,792 votes:

- Total voters who actually voted: 37,685,706.
- Less votes for disqualified party-lists (308,335): 37,377,371.
- Less votes for party-list candidates (30,264,579): 7,112,792 "disregarded" vote
- Despite ARARO's proposed computation, **ARARO would still not have obtained a seat**. Its 147,204 votes represented only 0.3939% using ARARO's divisor, compared with 0.4864% using COMELEC's divisor
- On July 26, 2010, ARARO filed a Petition for Review on Certiorari under Rule 65 before the Supreme Court **praying to modify COMELEC's interpretation of the BANAT formula** divisor and enjoin further seat proclamations until the formula was adjusted

NEW ELECTION ALREADY

- By the time the Supreme Court resolved the petition, the terms of the party-list representatives elected in 2010 had expired on June 30, 2013, and the 2013 elections had already produced a new set of party-list representatives.

SUMMARY OF PETITION (ARARO)'s ARGS:

- Disenfranchisement via divisor reduction, misinterprets votes cast for party-list system under Section 11(b) of RA 7941
- A vote for the party-list system includes every voter who participated in the election mechanism, whether their vote was counted or spoiled. Therefore, the divisor should be the total number of voters who actually voted (37,685,706 or 37,377,371)

SUMMARY OF RESP. (COMELEC/OSG) ARGS:

- Supervening events such as the completion of proclamations and term expiration has rendered the petition moot
- Under CIBAC v. COMELEC, and BANAT v. COMELEC, invalid votes, spoiled ballots, or uncast party-list slots cannot be treated as votes cast for the party-list system.

ISSUE 1: Whether the petition was rendered moot and academic by supervening election events.

RULING and RATIO DECIDENDI for ISSUE 1:

On Mootness: YES, the petition is MOOT AND ACADEMIC, BUT the Court decided the substantive issue anyway

- The Court held that the case had ceased to be a justiciable controversy because of **supervening events**. COMELEC had already proclaimed the winning party-list groups, the terms of the representatives elected in the **2010 elections expired on June 30, 2013**, and the **2013 elections had already produced a new set of party-list representatives**. Therefore, a ruling could no longer provide practical relief to ARARO.
- The Court nevertheless **retained jurisdiction** under settled exceptions (**Mendoza v. Villas, David v. Macapagal-Arroyo**) because refining the electoral seat allocation formula involves paramount public interest, is **capable of repetition yet evading review, and requires controlling principles for the guidance of the bench, bar, and public**

ISSUE 2: Whether petitioner ARARO is a real party in interest possessing legal standing to challenge COMELEC's divisor formula.

RULING and RATIO DECIDENDI for ISSUE 2:

On Real Party in Interest / Standing: NO. ARARO is NOT a real party in interest

- A real party in interest must have a **direct, substantial, and material interest in the judgment**. ARARO challenged COMELEC's formula and proposed using an even larger divisor based on the total votes cast.

However, even if **ARARO's proposed formula were adopted, ARARO would still win no seat.**

- Under **COMELEC's BANAT Divisor** ((30,264,579), ARARO's 147,204 votes yielded 0.4864%, entitling it to 0 seats.
- Under **ARARO's Proposed Divisor** (37,377,371), ARARO's 147,204 votes yielded 0.3939%, also entitling it to 0 seats.
- **NOTE: No need to win 2% to get a seat under BANAT, but still ARARO's numbers are far off the likelihood to get a seat.**
- Because ARARO fails to secure a seat under either formula, it suffered no **direct, substantial, or material injury from COMELEC's allocation.**

ISSUE 3: Whether COMELEC committed grave abuse of discretion in its computation of the divisor ("total votes cast for the party-list system") in the BANAT seat allocation formula, and what constitutes the correct divisor under Section 11(b) of R.A. No. 7941.

RULING and RATIO DECIDENDI for ISSUE 2:

On the Refined Divisor Formula: COMELEC's formula is MODIFIED; the divisor equals TOTAL VALID VOTES CAST FOR ALL PARTY-LIST GROUPS LISTED ON THE BALLOT.

- **INCLUDE THE DISQUALIFIED PARTYLISTS' VOTE:** ARARO argued that the divisor should include votes cast for party-list groups **regardless of their subsequent disqualification**. The Court agreed with this insofar as **valid votes cast for groups that appeared on the official ballot but were subsequently disqualified should remain included**. However, the Court rejected the inclusion of **spoiled or otherwise invalid votes**.
- **WHY NOT SPOILED/INVALID VOTES INCLUDED:**
 - Section 11(b) of R.A. No. 7941 explicitly commands that percentages be computed based on the *"total votes cast for the party-list system"*.
 - "Total votes cast" does **not** include invalid or spoiled votes (e.g., improper shading, blank party-list choices, stray marks, torn ballots, or machine-rejected ballots). Invalidity arising from these defects is directly attributable to the voter's own failure or action, and such uncast/spoiled ballots cannot be deemed votes cast "for the party-list system".
- **INCLUSION OF VOTES CAST FOR SUBSEQUENTLY DISQUALIFIED GROUPS (PROTECTION AGAINST DISENFRANCHISEMENT)**
 - The Court held that "total valid votes cast for the party-list system" **MUST INCLUDE all votes validly cast for party-list groups listed on the official ballot, even if those groups are subsequently disqualified after the election** (or if their disqualification was pending on appeal during the election)
 - Voters rely in good faith on the official ballot choices presented to them on election day. It is beyond human expectations to charge voters with knowledge of pending disqualification cases.
 - **Disregarding votes cast for groups disqualified after the election would penalize innocent voters, nullify their franchise, and cause massive voter disenfranchisement** in violation of representative democracy and the constitutional right of suffrage.
- **EXCEPTION: Exclusion of Groups Disqualified with Finality Prior to Election Day (Cayat Rule):**
 - Applying **Cayat v. COMELEC**, if a party-list group's disqualification attained **finality prior to election day, AND COMELEC reasonably made known such final disqualification to the electorate prior to the election**, votes cast for that group are considered "stray votes"
 - When voters are fully notified in law and fact of a candidate's final pre-election disqualification, casting votes for that group constitutes a notorious misapplication of

franchise; thus, those stray votes are **excluded from the divisor**

- **PROSPECTIVE APPLICATION**

- To preserve stability and administrative finality, the refined divisor formula applies **prospectively** to succeeding party-list elections from the date of finality of the decision.

**FINAL
DECISION**

WHEREFORE from the above discussion:

1. The prayer to enjoin the Commission on Elections from proclaiming the qualified party-list groups is **denied for being moot and academic**;
2. The formula in determining the winning party-list groups, as used and interpreted in the case of *BANAT v. COMELEC*, is **MODIFIED** as follows:

Number of votes of party-list / Total number of valid votes for party-list candidates = Proportion or Percentage of votes garnered by party-list.

The divisor shall be the total number of valid votes cast for the party-list system, including votes cast for party-list groups whose names are in the ballot but are subsequently disqualified. Party-list groups listed in the ballot but whose disqualification attained finality prior to the elections and whose disqualification was reasonably made known by the Commission on Elections to the voters prior to such elections should not be included in the divisor. The divisor shall also not include votes that are declared spoiled or invalid.

The refined formula shall apply **prospectively to succeeding party-list elections from the date of finality of this case.**

SO ORDERED.

VELASCO, JR., J,
dissenting/concurring

Dissented from the majority's proviso requiring proof that COMELEC "reasonably made known" the disqualification to voters prior to the election. Justice Velasco argued that final disqualification prior to election day per se is sufficient to render votes stray and exclude them from the divisor. Adding a subjective requirement of proving whether COMELEC "reasonably" informed voters creates evidentiary ambiguity and invites circumvention.

TLDR: votes for PLOs disqualified before the election day shall not be counted in the tally of "total votes cast for the party-list system."

Main Idea: the **divisor** in the formula for determining the swimming PLOs shall only include **votes cast for PLOs whose names are in the ballot but are disqualified after the elections.** Spoiled, invalid and stray votes, and votes for PLOs disqualified with finality before the elections, shall be excluded from the tally of total votes cast for the party-list system.

- 1) A vote shall only count if it is for a PLO that is **validly registered with the COMELEC** on election day.
- 2) If the PLO is **disqualified with finality before** the elections, then votes in favor of it are considered **stray** and thus **invalid**.
- 3) As held in **Section 72 of the Omnibus Election Code**, as amended by **Section 6 of RA 6646**, a candidate disqualified by final judgment before election day shall not be voted for; votes cast for him shall not be counted.
 - a) As held also in **Section 6 of the Electoral Reforms Law**.

- 4) **Ang Bagong Bayani OFW Labor Party v. COMELEC**: only votes cast for PLOs qualified to be voted for on election day shall be counted.
- 5) **Cayat v. COMELEC**: votes are “stray” when it is in favor of a candidate who was disqualified with finality before the elections, even if name remained on the ballot.

Labo doctrine (that votes cast for an ineligible candidate cannot be considered “stray”) **cannot** be applied in this case for two reasons.

- 1) Labo (and as applied in **Grego**) is for elections in local offices, whereas this case is for party-list elections.
- 2) Labo and Grego are for **single elective posts**. This case is for the acquisition of a number of congressional seats depending on the total election results.

Also, disregarding the votes of disqualified party-list participants will **increase and broaden the number of representatives from marginalized and under-represented groups**. This will better align the results to **Section 2 of RA 7941** which promotes **proportional representation** to ensure that all sectors can contribute to the enactment of appropriate legislation in the House of Representatives.

Aksyon Magsasaka-Partido Tinig ng Masa v. Commission on Elections

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Aksyon Magsasaka-Partido Tinig ng Masa (AKMA-PTM) v. Commission on Elections (COMELEC), with Abante Katutubo (ABANTE KA), Froilan M. Bacungan, and Hermenegildo Dumlao as petitioners-in-intervention.*
- **Citation:** G.R. No. 207134, June 16, 2015 (En Banc).
- **Ponente:** Villarama, Jr., J..
- **Bench Composition:** Sereno, C.J., Carpio, Velasco, Jr., Leonardo-de Castro, Brion, Bersamin, Del Castillo, Perez, Mendoza, Reyes, and Perlas-Bernabe, JJ., concurring.
- **Syllabus Relevance & Topic:**
 1. **Proclamation Based on Incomplete Canvass (Section 233, Omnibus Election Code):** Exception to the general rule that an incomplete canvass is illegal; legality of proclaiming winning candidates when missing or uncanvassed election returns will not materially affect the election results.
 2. **Application of the BANAT Formula & Seat Allocation:** Implementation of the two-round party-list seat distribution and the validity of reserving "buffer seats" by the National Board of Canvassers (NBOC) to account for uncanvassed returns and pending judicial proceedings.
 3. **Constitutional Powers of COMELEC (Art. IX-C, Sec. 2(1)):** Broad administrative latitude granted to COMELEC as the National Board of Canvassers in determining when election results are mathematically definitive for partial proclamation.

CHRONOLOGICAL MATERIAL FACTS

1. **Participation in 2013 Elections:** Petitioner Aksyon Magsasaka-Partido Tinig ng Masa (AKMA-PTM) and petitioner-in-intervention Abante Katutubo (ABANTE KA) were accredited sectoral party-list organizations that participated in the May 13, 2013 National and Local Elections (NLE) [30–31].
2. **First Round Proclamation under NBOC Res. No. 0006-13 (May 24, 2013):** The COMELEC En Banc, sitting as the National Board of Canvassers (NBOC), promulgated NBOC Resolution No. 0006-13, proclaiming fourteen (14) party-list groups that obtained at least 2% of the total votes cast for the party-list system, awarding them one (1) guaranteed seat each pursuant to Section 11 of Republic Act No. 7941.
3. **Second Round Proclamation under NBOC Res. No. 0008-13 (May 28, 2013):** NBOC promulgated Resolution No. 0008-13, allocating 44 additional seats to the 2-percenters and 38 other non-2% party-list groups under the second round of the *BANAT* formula, distributing a total of 53 guaranteed and additional seats.
4. **Status of Canvassing at Proclamation:** At the time NBOC issued Resolution No. 0008-13, canvassing was still ongoing, as only 110 out of 301 Certificates of Canvass (COCs) had been officially processed.
5. **Reservation of "Buffer Seats":** To prevent prejudice from missing returns and pending litigation, COMELEC reserved five (5) "buffer seats":
 - Three (3) buffer seats were reserved for potential shifts in ranking (later awarded to ANAC-IP, AGBIAGI, and APPEND); and
 - Two (2) buffer seats were reserved pursuant to the Supreme Court's directive in *Senior Citizens Party-List v. COMELEC*.
6. **Final Canvass Report No. 11 (July 18, 2013):** Upon completion of canvassing, COMELEC Party-List Canvass Report No. 11 reflected that AKMA-PTM obtained 165,784 votes (0.58%) and ABANTE KA obtained 111,625

votes (0.39%) [33–34]. Both fell significantly short of the percentage required to be awarded an additional seat in the second round of allocation.

PROCEDURAL HISTORY

1. **Administrative Action before NBOC:** COMELEC En Banc sitting as NBOC issued Resolution Nos. 0006-13 (May 24, 2013) and 0008-13 (May 28, 2013) proclaiming winning party-list candidates and reserving 5 buffer seats.
 2. **Supreme Court Action:** AKMA-PTM filed a Petition for Certiorari and Mandamus under Rule 65 in relation to Rule 64 assailing COMELEC's proclamations. ABANTE KA, Froilan M. Bacungan, and Hermenegildo Dumlaog filed a Petition-in-Intervention. The Supreme Court dismissed both petitions for lack of merit.
-

PARTIES' MATERIAL ARGUMENTS

- **Petitioner (AKMA-PTM) & Petitioners-in-Intervention (ABANTE KA, et al.):**
 1. **Illegal Incomplete Canvass:** An incomplete canvass is illegal and cannot form the basis of a proclamation (*Utto v. COMELEC*). Proclaiming winners when only 110 out of 301 COCs were canvassed violated Section 231 of the Omnibus Election Code, Section 21 of R.A. No. 8436 (requiring a completed canvass as a condition *sine qua non*), and Section 28 of COMELEC Res. No. 9648.
 2. **Premature Allocation of Additional Seats:** COMELEC's premature distribution of additional seats to 2-percenters and 38 other groups prejudiced AKMA-PTM (165,784 votes) and ABANTE KA (111,625 votes), which could have gained seats had all returns been fully consolidated before allocation [32–33].
 3. **Lack of Transparency & Machine Malfunctions:** COMELEC failed to provide a transparent factual basis for party-list results amidst concerns over PCOS machine reading accuracy.
 - **Respondent (COMELEC via OSG):**
 1. **Statutory Authorization for Partial Proclamation:** Section 233 of the Omnibus Election Code expressly authorizes the board of canvassers to proclaim winning candidates if the delayed or uncanvassed election returns will not affect the election results.
 2. **No Material Affection of Results:** The uncanvassed votes did not materially affect the final outcome. Under Party-List Canvass Report No. 11, AKMA-PTM (0.58%) and ABANTE KA (0.39%) garnered insufficient votes to earn a seat under the *BANAT* formula [33–34].
 3. **Prudent Reservation of Buffer Seats:** COMELEC exercised sound administrative judgment by reserving 5 buffer seats to absorb any mathematical shifts from remaining returns and judicial orders.
-

ISSUES

1. **Whether the COMELEC En Banc, sitting as the National Board of Canvassers, committed grave abuse of discretion amounting to lack or excess of jurisdiction in allocating additional party-list seats and proclaiming initial winners while the canvass of election returns was still incomplete.**
-

HOLDINGS AND CONTROLLING REASONING

1. On Proclamation Based on an Incomplete Canvass: NO. COMELEC did NOT commit grave abuse of discretion; the proclamation was VALID under Section 233 of the Omnibus Election Code.

- **General Rule vs. Statutory Exception:**

- *General Rule:* An incomplete canvass of votes is illegal and cannot serve as the basis for a proclamation because a board of canvassers must consider all returns to reflect the true vote of the electorate (*Utto v. COMELEC*).
- *Statutory Exception (Section 233, OEC):* An incomplete canvass invalidates a proclamation **ONLY where the missing or uncanvassed election returns will affect the results of the election**. Section 233 of the Omnibus Election Code explicitly authorizes the board of canvassers to proclaim winning candidates if the missing returns will not affect the election results.

- **Mathematical Impossibility of Affecting the Outcome:**

- Based on COMELEC's official Party-List Canvass Report No. 11 (as of July 18, 2013), AKMA-PTM garnered a total of 165,784 votes (0.58%), while ABANTE KA garnered 111,625 votes (0.39%) [33–34].
- Comparing the initial canvass (May 28, 2013) with the final canvass report, there was **no significant change in the ranking or percentage shares** of the party-list groups.
- Even if all remaining uncanvassed votes were tallied, the vote totals of AKMA-PTM and ABANTE KA were mathematically insufficient to propel either group into the seat allocation threshold under the second round of the *BANAT* formula [33–34].

- **Validity of Reserving Buffer Seats:**

- COMELEC's administrative foresight in reserving five (5) buffer seats provided a sufficient margin of safety to absorb any unexpected fluctuations in vote tallies or results of pending litigation (*Senior Citizens*) without disturbing the proclaimed seats.
- Therefore, COMELEC possessed full legal authority and sufficient factual basis to proclaim the initial winners under NBOC Resolution Nos. 0006-13 and 0008-13 [31, 33–34].

● DOCTRINE, TESTS, AND LEGAL STANDARDS

1. **Incomplete Canvass Proclamation Rule (Sec. 233, OEC / *Aksyon Magsasaka Standard*):** An incomplete canvass of election returns does not invalidate the proclamation of winning candidates provided that the missing or uncanvassed returns **will not materially affect the results of the election**.
2. **Buffer Seat Allocation Protocol:** The National Board of Canvassers may validly withhold a limited number of "buffer seats" during partial proclamations under the *BANAT* formula to accommodate uncanvassed returns or supervening judicial orders without rendering the proclamation premature or illegal.

♥ DISPOSITION

- **Ruling:** The Petition for Certiorari and Mandamus and the Petition-in-Intervention are **DISMISSED** for lack of merit.
- **Costs:** No pronouncement as to costs.

● SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLE LINES

- (Note: All participating Justices—Sereno, C.J., Carpio, Velasco, Jr., Leonardo-de Castro, Brion, Bersamin, Del Castillo, Perez, Mendoza, Reyes, and Perlas-Bernabe, JJ.—UNANIMOUSLY CONCURRED in the Decision penned by Justice Villarama, Jr.).

Source-Verified Quotable Lines

-  **On Proclamation During Incomplete Canvass (Villarama, Jr., J.):**

"An incomplete canvass of votes is illegal and cannot be the basis of a subsequent proclamation... However, this is true only where the election returns missing or not counted will affect the results of the election."

-  **On Section 233 of the Omnibus Election Code (Villarama, Jr., J.):**

"Sec. 233 of the Omnibus Election Code authorizes the board of canvassers to proclaim winning candidates in cases of delayed or lost election returns if the missing returns will not affect the results of the election."

RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Aksyon Magsasaka-Partido Tinig ng Masa (AKMA-PTM) v. COMELEC* (2015), the COMELEC En Banc, sitting as the National Board of Canvassers (NBOC), issued Resolution Nos. 0006-13 and 0008-13 proclaiming winning party-list groups in the May 2013 NLE and allocating 53 guaranteed and additional seats under the BANAT formula, while reserving 5 'buffer seats.' At the time of proclamation, canvassing was incomplete (only 110 out of 301 COCs were canvassed). Petitioner AKMA-PTM (0.58% of votes) and intervenor ABANTE KA (0.39% of votes) filed a Rule 64/65 petition alleging that the premature proclamation on an incomplete canvass was illegal and prejudiced their chances of winning a seat.

The Supreme Court En Banc unanimously, through Justice Villarama, Jr., DISMISSED the petitions. The Court held that under Section 233 of the Omnibus Election Code, an incomplete canvass invalidates a proclamation ONLY if the missing returns will materially affect the election results. Because final canvass tallies showed that AKMA-PTM and ABANTE KA received mathematically insufficient votes to gain a seat under the BANAT formula even after full consolidation, the missing returns did not affect the outcome. Thus, COMELEC acted within its statutory authority in making partial proclamations and reserving buffer seats."* [1, 30–35]

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: Is a proclamation of winning candidates based on an incomplete canvass of election returns always illegal?**
 - **A: No.** While an incomplete canvass is generally illegal (*Utto v. COMELEC*), Section 233 of the Omnibus Election Code establishes a clear exception: the board of canvassers is authorized to proclaim winning candidates if the missing or delayed election returns **will not affect the results of the election**.
2. **Q: How did COMELEC protect the integrity of the party-list seat distribution while proclaiming winners before canvassing was fully completed?**

- **A:** COMELEC reserved **five (5) buffer seats**: three seats to absorb any mathematical ranking shifts from remaining uncanvassed returns (later awarded to ANAC-IP, AGBIAG!, and APPEND), and two seats reserved pursuant to the Supreme Court's order in *Senior Citizens Party-List v. COMELEC*.
3. **Q: Why were AKMA-PTM and ABANTE KA unable to prove grave abuse of discretion on the part of COMELEC?**
- **A:** Because Party-List Canvass Report No. 11 established that AKMA-PTM obtained only 165,784 votes (0.58%) and ABANTE KA obtained 111,625 votes (0.39%) [33–34]. Mathematically, even if all uncanvassed votes were tallied in their favor, neither group could reach the vote threshold required to earn a seat in the second round of seat allocation under *BANAT* [33–34].

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose that at the time COMELEC proclaims initial party-list winners with 100 COCs uncanvassed, Party-List "X" trails the last winning party-list group by only 2,000 votes, and the 100 uncanvassed COCs represent over 500,000 uncounted votes. COMELEC allocates all remaining seats without reserving buffer seats for Party-List "X". Is COMELEC's proclamation valid under *AKMA-PTM v. COMELEC*?
- **Answer: No, COMELEC's proclamation is INVALID.** Under Section 233 of the Omnibus Election Code and *AKMA-PTM v. COMELEC*, partial proclamation during an incomplete canvass is valid **only if the missing returns will NOT affect the election results**. Where the trailing margin (2,000 votes) is far smaller than the uncanvassed vote volume (500,000 votes), the missing returns could materially alter the seat distribution, making a proclamation before full canvassing or reserving sufficient buffer seats an illegal incomplete canvass.

One-Sentence Doctrine Anchor

Under Section 233 of the Omnibus Election Code, COMELEC sitting as National Board of Canvassers may validly proclaim winning candidates based on an incomplete canvass if the uncanvassed election returns will not materially affect the election results.

Aksyon Magsasaka-Partido Tinig ng Masa v. Commission on Elections (2015)

Topic Subtopic	Congress Power, Composition, Qualification and Term of Office	GR No. & Ponente	G.R. 207134 VILLARAMA, JR. J.
Petitioner/s	AKSYON MAGSASAKA-PARTIDO TINIG NG MASA (AKMA-PTM)	Respondent/s	Commission on Elections
Petitioners-in-intervention	ABANTE KATUTUBO (ABANTE KA), FROILAN M. BACUNGAN AND HERMENEGILDO DUMLAO		
Doctrine			

FACTS
- Petitioner for certiorari and mandamus under Rule 65 in relation to Rule 64 of 1997 Civ. procedure + prayer for injunctive reliefs - Assailing COMELEC for alleged grave abuse of discretion in prematurely and erroneously allocating additional seats to certain party-list groups proclaimed as initial winners in the 2013 automated elections ANTECEDENT FACTS: 2 COMELEC resolutions - NBOC Resolution NO. 0006-13 - proclaimed 14 partly-list groups, which obtained at least 2% of the total votes cast for the party list system and were thus entitled to 1 guaranteed seat each, pursuant to Sec. 11 of RA 7941 NBOC Resolution No. 0008-13 (which is being assailed) - considered the cancellation of registration of the following party-list groups as final and executory - Senior Citizens, ANAD, Abang Lingkod, Binhi, COCOFED, Atong Paglaum, KAP, A-IPRA, Ang Galing Pinoy, Bantay, and SMART: - The total votes case for the abovementioned party-list are considered “stray” and as such will not be included in the total votes cast for party-list - There are 58 available seats for party-list, and in view of the remaining uncanvassed results and special elections in some areas, not all of the 58 available party-list can be allocated in order not to prejudice the proclamation of other parties, organizations, or coalitions, wc may later on be established to be entitled to a seat or additional seats. - By virtue of powers vested in it under the Constitution, Omnibus Election Code, RA 9369, 8436, 7941, 7166, 6646, the COMELEC sitting en back, as the National Board of Canvassers for Party-list, PROCLAIM

the ff party-list groups as initial winners in the party list elections of May 13, 2013, involving a total of **53** guaranteed and/or additional seats, without prejudice to the proclamation of other parties, orgs or collations which may later on be established to be entitled to one guaranteed seat and /or additional seat.

- i. AKMA-PTM (Petitioner) and ABANTE KA (Petitioner-in-intervention) were **not** included in this list
- ii. 14 PLs garnered more than 2% of the votes (these had 1 guaranteed seat each, with additional in the 2nd round), 20 PL had around 1%, and 4 PLs had around 0.9% but were given seats during the 2nd round
- iii. Look at Banat v COMELEC below for the rules in party-list seat allocation

May 30, 2013: Petition was filed with this Court. The court did not issue a TRO.

- Court also admitted the petition-in-intervention filed by: Abante Katutubo (ABANTE KA), Froilan M. Bacungan, and Hermenegukdi Dumalo – claiming to have “demonstrable, legal, moral and compelling interest in the outcome of the case and the controversy”

ISSUE 1

Main Substantive	– W/N the COMELEC committed grave abuse of discretion in allocating the <i>additional</i> seats for the 38 party-list candidates proclaimed as winners in the May 13, 2013 elections?	NO
---------------------	---	----

PETITIONER/S ARGUMENTS:

1. Premature and hasty proclamation: proclamation of initial winners with additional seats in the second round was premature because canvassing was still ongoing with uncanvassed/untransmitted results from Mindanao, absentee voting, and special elections. As of May 23, 2013, AKMA-PTM had garnered 155,131 votes under Canvass Report No. 8. (Note: the last PL who got a seat was ANG NARS: 242,835)
2. PCOS machine glitches & incomplete canvass: Projections of maximum votes cast were unreliable due to widespread breakdown, malfunctioning, and glitches of Precinct Count Optical Scan (PCOS) machines. The proclamation was invalid as it rested on an incomplete consolidation of only 110 Certificates of Canvass (COCs), violating Section 27 of R.A. No. 8436 (as amended by R.A. No. 9369).
3. Allocation of additional seats **violated Section 11 of R.A. No. 7941** and **BANAT v. COMELEC**. The product of multiplying a party's vote percentage by available additional seats yielded decimal fractions (e.g., 0.961, 0.932, 0.89) rather than whole **integers**. Petitioner argued that parties with products less than one were not entitled to seats. COMELEC seriously erred in computing the values and interpreting the results in the second round leading to the invalid and unjust allocation of additional seats to the two-percenters to the prejudice of other party-list groups such as petitioner.

PETITIONER-IN-INTERVENTION'S ARGUMENTS:

1. *Cited Utto v. COMELEC*: an incomplete canvass cannot serve as a valid basis for proclamation. Only 110 out of 301 COCs had been canvassed when COMELEC made the proclamation.
2. The proclamation violated Section 231 of the Omnibus Election Code, Section 21 of R.A. No. 8436 (requiring complete canvass before printing COCs and proclaiming elected officials), and Section 28 of COMELEC Resolution No. 9648. – needs “all expected” results from the precincts, municipalities, cities or provinces to generate and print COCs
3. There is still no acceptable guarantee that the scanners or PCOS machines read the votes in the ballots fed to them and that these were counted properly. Smartmatic, Inc. removed essential security features of PCOS machines under R.A. No. 9369. Furthermore, issues regarding disqualified party-list groups, like *Atong Paglaum*, remained pending.
4. Per National Canvass Report, AKMA-PTM had 155,090 votes and ABANTE KA had 110,690 votes, and petitioners wanted to know what happened to their votes, and the Court should compel COMELEC to answer this question

SOLICITOR GENERAL'S COMMENT

1. Said that COMELEC strictly adhered to the two-round seat allocation procedure in *BANAT v. COMELEC* by allocating 14 guaranteed seats first to those who obtained 2% of the total votes, and distributing the remaining 44 additional seats. It was explained that party list groups with products of less than one were still allocated seats depending on their rank and availability of seats
2. As to the uncanvassed votes at the time, COMELEC reserved 5 buffer seats to accommodate potential ranking changes (3 seats were eventually allocated to ANAC-IP, AGBIAGI, and APPEND, while 2 seats were reserved, pursuant to *Senior Citizens Party-List v. COMELEC*).
3. **Proclamation was valid** because **remaining uncanvassed votes could not materially alter the election outcome**. Per National Canvass Report No. 11 (July 18, 2013), AKMA-PTM garnered 165,784 votes (0.58%) and ABANTE KA got 111,625 votes (0.39%), both remaining well short of the threshold needed for a seat.

RULING and RATIO DECIDENDI:

Court DISMISSED the petition and petition-in-intervention

1. **COMELEC is authorized by law to proclaim winning candidates if the remaining uncanvassed election returns will not affect the result of the elections**
 - a. Statutory exception: While an incomplete canvass is generally illegal, **Section 233 of the Omnibus Election Code** explicitly authorizes the Board of Canvassers to terminate canvassing and proclaim winning candidates on the basis of available returns **if the missing election returns will not affect the results of the election**.
 - b. In *Barbers v COMELEC*, the Court affirmed a proclamation and ruled that COMELEC did not commit grave abuse of discretion since the uncanvassed returns and the results of the special elections to be held would not materially affect the results of the elections.
 - c. In this case, per National Canvass Report No. 11 (as of July 18, 2013), AKMA-PTM's votes increased slightly to 165,784 (0.58%) and ABANTE KA's to 111,625 (0.39%). These figures produced no significant ranking changes, proving that COMELEC had sufficient basis to proclaim the initial winners on May 28, 2013 and retain 5 buffer seats.
 - d. Petitioners offered no competent evidence to substantiate allegations of PCOS machine glitches or irregularities (**mere allegation is not evidence**). Moreover, the factual determination of uncanvassed vote totals should be raised to COMELEC, as the Court is not a trier of facts.
 - e. On the basis of its official records, COMELEC had made a determination that the remaining uncanvassed votes **will no longer materially affect the result** of the party-list elections and that the five buffer seats were sufficient to accommodate additional winners. The COMELEC enjoys the presumption of good faith and regularity in the performance of official duty.
2. **COMELEC's allocation of additional seats for party-list in accordance with ruling in BANAT and RA 7941**
 - a. Section 12 of R.A. No. 7941 provides for the procedure in allocating seats for the party list system (rank accdg to numbers, then allocate seats proportionately)
 - b. In *Banat v. COMELEC*, the Court laid down the ff procedure in determining the allocation of seats for party list reps:
 - i. The parties, organizations, and coalitions shall be ranked from the highest to the lowest based on the number of votes they garnered during the elections.
 - ii. The parties, organizations, and coalitions receiving *at least 2%* of the total votes cast for the party-list system shall be entitled to *1 guaranteed seat each*.
 - iii. Those garnering sufficient number of votes, according to the ranking in paragraph 1, **shall be entitled to additional seats in proportion to their total number of votes until all the additional seats are allocated**.
 - iv. Each party, organization, or coalition shall be entitled to **not more than 3 seats**.

- c. The Court declared in BANAT that the continued operation of the two-percent threshold is **unconstitutional** for "an unwarranted obstacle to the full implementation of Section 5 (2), Article VI of the Constitution. They made the 2 steps for 2nd round of seat allocation:
- i. The percentage is multiplied by the remaining available seats, 38, which is the difference between the 55 maximum seats reserved under the Party-List System and the 17 guaranteed seats of the two-percenters. The whole integer of the product of the percentage and of the remaining available seats corresponds to a party's share in the remaining available seats.
 - ii. We assign one party-list seat to each of the parties next in rank until all available seats are completely distributed. We distributed all of the remaining 38 seats in the second round of seat allocation.
 - iii. Finally, we apply the three-seat cap to determine the number of seats each qualified party-list candidate is entitled.
- d. Just as the 20% share in representation may never be filled up if the 2% threshold is maintained, maximum representation will likewise not be achieved if party-list groups obtaining *less than one percentage* are disqualified from receiving even one additional seat in the second round

THUS, court held that COMELEC did not commit grave abuse of discretion in allocating the party-list seats in the 2013 elections and proclaiming the winners after distributing the guaranteed and additional seats in accordance with their ruling in BANAT.

LEGAL BASES

Sec. 5(2) Article VI of the Constitution: The party-list representatives shall constitute twenty per centum of the total number of representatives including those under the party list. For three consecutive terms after the ratification of this Constitution, one-half of the seats allocated to party-list representatives shall be filled, as provided by law, by selection or election from the labor, peasant, urban poor, indigenous cultural communities, women, youth, and such other sectors as may be provided by law, except the religious sector.

FINAL DECISION

WHEREFORE, the petition and petition-in-intervention are both **DISMISSED** for lack of merit. No pronouncement as to costs. SO ORDERED.

Albano v. Commission on Elections

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Glen Quintos Albano v. Commission on Elections* (G.R. No. 257610) consolidated with *Catalina G. Leonen-Pizarro v. Commission on Elections* (UDK No. 17230)
- **Citation:** G.R. No. 257610 & UDK No. 17230, January 24, 2023 (En Banc)
- **Ponente:** J.Y. Lopez, J.

CHRONOLOGICAL MATERIAL FACTS

1. **Glenn Quintos Albano's Background & Nomination:** Petitioner Glenn Quintos Albano ran for city councilor of Taguig City during the May 13, 2019 National and Local Elections (NLE) and lost. Following his defeat, he served as Chief Political Affairs Officer and Chief of Staff of the sectoral party *Talino at Galing ng Pinoy Party-List* (TGP). For the May 9, 2022 elections, TGP selected Albano as its second nominee.
2. **Catalina G. Leonen-Pizarro's Background & Nomination:** Petitioner Catalina G. Leonen-Pizarro was the founder, president, and three-term House Representative (2007–2016) of *Arts Business and Science Professionals* (ABS) Party-List. After completing her third term in Congress, she ran for mayor of Sudipen, La Union in the 2016 and 2019 elections, losing both bids. For the May 9, 2022 elections, ABS selected Pizarro as its first nominee.
3. **Statutory and Administrative Disqualification Prohibitions:**
 - **Section 8 of Republic Act No. 7941 (The Party-List System Act):** Expressly mandated that the list of party-list nominees submitted to COMELEC "*shall not include... a person who has lost his bid for elective office in the immediately preceding election.*"
 - **Sections 5(d) and 10 of COMELEC Resolution No. 10717:** Promulgated by COMELEC for the May 9, 2022 NLE, these rules enforced Section 8 of R.A. No. 7941 by declaring that party-list nominee lists shall not include persons who lost their bids for elective office in the May 13, 2019 NLE [67–68, 73, 80].
4. **Filing of Consolidated Petitions:** Because Albano and Pizarro lost their respective bids in the 2019 elections, Section 8 of R.A. No. 7941 and COMELEC Resolution No. 10717 rendered them ineligible to be party-list nominees for the 2022 elections [67–68]. Albano and Pizarro separately filed Petitions for Certiorari and Prohibition before the Supreme Court under Rule 65, seeking to declare the "losing candidate in the immediately preceding election" proviso unconstitutional for violating the Equal Protection Clause and Substantive Due Process [67–68].

PROCEDURAL HISTORY

1. **Special Civil Actions in the Supreme Court:**
 - Albano filed a Petition for Certiorari and Prohibition (G.R. No. 257610).
 - Pizarro filed a Petition for Certiorari and Prohibition (UDK No. 17230).
2. **Consolidation and Supervening 2022 Elections:** The Supreme Court consolidated both petitions [67–68]. During the pendency of the actions, the May 9, 2022 elections were conducted, and the winning party-list organizations and their nominees were proclaimed.

● PARTIES' MATERIAL ARGUMENTS

- **Petitioners (Glen Quintos Albano & Catalina G. Leonen-Pizarro):**
 1. **Violation of Equal Protection:** The prohibition against nominees who lost in the immediately preceding election creates an arbitrary classification lacking rational basis. It impermissibly discriminates between defeated district/regular candidates (who can freely run again for elective office) and party-list nominees.
 2. **Violation of Substantive Due Process:** The restriction arbitrarily deprives party-list organizations of their right to select qualified nominees and deprives nominees of their privilege to seek office without furthering any legitimate state objective.
 3. **Unwarranted Addition to Constitutional Qualifications:** Congress and COMELEC exceeded their authority by imposing restrictive eligibility requirements beyond the basic qualifications set forth in the Constitution.
- **Respondent (Commission on Elections via OSG):**
 1. **Mootness:** The completion of the May 9, 2022 elections and the proclamation of winners rendered the petitions moot and academic.
 2. **Broad Legislative Authority:** Article VI, Section 5(2) explicitly grants Congress the power to craft legislation providing for the mechanics and nominee qualifications of the party-list system "as provided by law."
 3. **Legitimate Government Interest & Reasonable Classification:** The State has a compelling/legitimate interest to protect the integrity of the party-list system and prevent traditional politicians or "recycled" defeated district candidates from crowding out genuine sectoral representatives.

● ISSUES

1. **Procedural Issue:** Whether the conclusion of the May 9, 2022 National and Local Elections rendered the consolidated petitions moot and academic [74–75].
2. **Substantive Issue 1 (Congressional Power):** Whether Congress possesses the constitutional authority under Article VI, Section 5(2) to prescribe qualifications for party-list nominees beyond those explicitly listed in the Constitution.
3. **Substantive Issue 2 (Equal Protection & Due Process):** Whether the phrase "*a person who has lost his bid for elective office in the immediately preceding election*" in Section 8 of R.A. No. 7941, and its implementing rules in Sections 5(d) and 10 of COMELEC Resolution No. 10717, violate the Equal Protection Clause and Substantive Due Process under the Rational Basis Test [16, 18–19, 70–72].

🌸 HOLDINGS AND CONTROLLING REASONING

1. On Mootness: YES, the petitions became moot, BUT the Supreme Court DECIDED the constitutional issues on the merits under recognized exceptions [74–75].

- **Ratio:** An actual controversy ceases to exist when supervening events render judicial relief unavailing. The May 9, 2022 elections were completed, and party-list winners were proclaimed.
- **Exceptions Applied:** The Court retained jurisdiction and resolved the case because: (a) petitioners alleged a grave violation of the Constitution; (b) the controversy involves paramount public interest regarding electoral

access; (c) the issue requires the formulation of controlling principles to guide the Bench, Bar, and public; and (d) the issue is **capable of repetition yet evading review** in future election cycles.

2. On Congressional Authority over Nominee Qualifications: **YES. Congress CAN legislate additional qualifications for party-list nominees.**

- **Textual Command of Article VI, Section 5(2):** Article VI, Section 5(2) of the 1987 Constitution provides that party-list representatives shall be elected "*as provided by law.*"
- **Distinction from District Representatives:** Unlike legislative district representatives whose qualifications are fixed by Article VI, Section 6 of the Constitution, the Constitution explicitly delegates to Congress the power to fashion the mechanics and eligibility standards for party-list representatives. However, this legislative authority is not absolute—it remains subject to substantive constitutional limitations, specifically the Equal Protection Clause and Due Process.

3. On Equal Protection and Substantive Due Process: **YES. The prohibition against "losing candidates in the immediately preceding election" is UNCONSTITUTIONAL [16, 18–19, 71–72].**

- **A. Applicable Standard of Judicial Review — Rational Basis Test:**
 - Citing *Quinto v. COMELEC*, *Marquez v. COMELEC*, and *Pamatong v. COMELEC*, the Court reaffirmed that **there is no fundamental constitutional right to run for public office**; seeking elective office is a mere statutory privilege subject to reasonable law.
 - Because the classification does not burden a fundamental right or target a "suspect class" (such as gender or legitimacy), the **Rational Basis Test** applies [69–71, 76].
 - Under the Rational Basis Test, a statutory classification will be sustained only if there is a **legitimate government interest** and a **reasonable, rational connection** between that interest and the statutory classification used to achieve it.
- **B. Absence of Rational Connection to Government Interest:**
 - *Legitimate State Interest:* Protecting the integrity of the party-list system and preventing its abuse by traditional politicians is undeniably a legitimate government interest.
 - *Failure of Rational Connection:* However, excluding persons who lost in the immediately preceding election bears **no rational connection** to protecting the party-list system [18–19, 71–72].
- **C. Twofold Arbitrary Classification:**
 - **Arbitrary Distinction Between District Candidates and Party-List Nominees:** A candidate who ran for mayor, governor, or district congressman in 2019 and lost is fully eligible to run again for any district or local elective post in 2022. Yet, the assailed law arbitrarily barred that same individual from being a party-list nominee in 2022. There is no substantial distinction justifying why a recent electoral loss disqualifies a person from party-list nomination but permits them to seek district office.
 - **Arbitrary Distinction Within the Class of Defeated Candidates:** An individual who lost an election two or three cycles ago (e.g., in 2016 or 2013) is eligible to be a party-list nominee in 2022, but one who lost in the immediately preceding election (2019) is barred. A loss in an immediately preceding election is not an indicator of bad faith, lack of advocacy, or unfit character. Excluding recent losers while permitting older losers is an arbitrary temporal restriction that fails rational basis scrutiny [18–19, 72].
- **D. Preservation of the Simultaneous Candidacy Prohibition:**
 - The Court explicitly clarified that striking down the "losing candidate in the immediately preceding election" clause **does NOT invalidate the separate statutory prohibition against a person being a party-list nominee while simultaneously running as a candidate for another elective office in the same current election.** That prohibition remains valid and fully effective.

● DOCTRINE, TESTS, AND LEGAL STANDARDS

1. **Party-List Nominee Qualification Principle:** Under Article VI, Section 5(2), Congress possesses legislative authority to prescribe qualifications and mechanics for party-list representatives "as provided by law," provided such statutory requirements comply with the Equal Protection and Due Process clauses.
 2. **Rational Basis Test in Electoral Regulations:** Because running for public office is a statutory privilege rather than a fundamental right, statutory eligibility restrictions are evaluated under the Rational Basis Test [69–71, 76]. The classification must serve a legitimate state interest and employ classification methods rationally connected to achieving that interest.
 3. **Equal Protection Test for Electoral Exclusions:** A statutory restriction that bars a specific sub-class of citizens (e.g., candidates who lost in the immediately preceding election) from being party-list nominees violates the Equal Protection Clause when no substantial distinction exists between them and other candidates who are permitted to seek public office [18–19, 72, 82].
-

♥ DISPOSITION

- **Ruling:** The consolidated Petitions for Certiorari and Prohibition are **GRANTED**.
 - **Declaration of Unconstitutionality:**
 - The phrase "*a person who has lost his bid for elective office in the immediately preceding election*" in **Section 8 of Republic Act No. 7941** is declared **UNCONSTITUTIONAL** for violating the Equal Protection Clause [18–19].
 - **Sections 5(d) and 10 of COMELEC Resolution No. 10717** are likewise declared **UNCONSTITUTIONAL** insofar as they enforce the same prohibition for the May 9, 2022 elections [18–19].
 - **Severability:** All other provisions of Section 8 of R.A. No. 7941 and COMELEC Resolution No. 10717—including the prohibition against simultaneous candidacies—remain valid and operational.
-

● SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLE LINES

1. Separate Concurring Opinion of Senior Associate Justice Marvic M.V.F. Leonen

- **Procedural Standing Objections:** Expressed reservations regarding petitioners' locus standi, noting that the right to nominate belongs to the party-list organization, not the individual nominee.
- **Applicability of Strict Scrutiny:** Argued that because the party-list system involves fundamental principles of democratic participation and political expression, restrictions touching upon electoral access warrant Heightened/Strict Scrutiny. Nevertheless, concurred that the prohibition fails constitutional muster under equal protection.

2. Separate Concurring Opinion of Associate Justice Amy C. Lazaro-Javier

- **Suitability of Rational Basis Test:** Emphasized that the Rational Basis Test is the apt framework because invalidating arbitrary classifications that breach the Constitution enforces the fundamental legal doctrine that the Constitution is the supreme law [70–71].

● RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Albano v. COMELEC* (2023), petitioners Albano (TGP Party-List) and Pizarro (ABS Party-List) were nominated by their respective party-lists for the May 2022 elections. However, both had run for local elective posts in the May 2019 elections and lost. COMELEC disqualified them pursuant to Section 8 of R.A. 7941 and COMELEC Resolution No. 10717, which barred any 'person who has lost his bid for elective office in the immediately preceding election' from being a party-list nominee. Petitioners filed certiorari actions before the Supreme Court.

The Supreme Court En Banc, through Justice J.Y. Lopez, GRANTED the petitions and declared the assailed proviso UNCONSTITUTIONAL. The Court held: (1) Although the 2022 elections had passed, the case was decided under the 'capable of repetition yet evading review' exception; (2) Under Art. VI, Sec. 5(2), Congress may legislate nominee qualifications 'as provided by law,' but such laws must respect equal protection and due process; (3) Candidacy is a statutory privilege evaluated under the Rational Basis Test; and (4) The losing candidate ban fails the Rational Basis Test because there is no rational connection between excluding recent election losers and protecting the party-list system. The law arbitrarily allowed 2019 losers to run for district seats in 2022 or older losers (2016) to be party-list nominees in 2022, while barring 2019 losers from party-list nominations."* [16, 18–19, 66–72, 74–76, 82]

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: Does Congress have the power to add qualifications for party-list nominees beyond those listed in the 1987 Constitution?**
 - **A: Yes.** Unlike legislative district representatives whose qualifications are fixed by Article VI, Section 6 of the Constitution, Article VI, Section 5(2) explicitly provides that party-list representatives shall be elected "*as provided by law.*" This grants Congress legislative discretion to prescribe nominee qualifications, provided they do not violate equal protection or due process.
2. **Q: What judicial review test was applied in *Albano v. COMELEC*, and why was the "losing candidate" prohibition struck down under that test?**
 - **A: The Rational Basis Test** was applied because seeking public office is a statutory privilege, not a fundamental constitutional right [69–71, 76]. The prohibition was struck down because it lacked a rational connection to protecting the party-list system, creating arbitrary distinctions between district candidates and party-list nominees, as well as between recent election losers and older election losers [18–19, 71–72].
3. **Q: Does the decision in *Albano v. COMELEC* allow a candidate to run for Mayor while simultaneously being named a party-list nominee in the same election?**
 - **A: No.** The Supreme Court explicitly severed and preserved the statutory prohibition against **simultaneous candidacies**. A person is still legally barred from being a party-list nominee if he or she is concurrently running for another elective office in the exact same election.

One-Sentence Doctrine Anchor

Congress may prescribe party-list nominee qualifications by law, but barring candidates who lost in the immediately preceding election violates the Equal Protection Clause because it lacks a rational basis. [16, 18–19, 66]

ALBANO v. COMELEC (2023)

Topic Subtopic	Power, Composition, Qualification and Term of Office Senate and HOR	GR No. & Ponente	[G.R. No. 257610. January 24, 2023.] [UDK No. 17230. January 24, 2023.] J.Y. LOPEZ, J.
Petitioner/s	257610 - GLEN QUINTOS ALBANO 17230 - CATALINO G. LEONEN-PIZARRO	Respondent/s	COMELEC
Doctrine	Provision preventing a candidate who has lost in the immediately preceding elections from being included in the list of nominees for party-list representatives is unconstitutional on the ground of equal protection clause		

FACTS

Laws in Contention

- Sec 8 of RA 7941: Prevents a candidate for any elective office or a person who has lost in the immediately preceding elections from being included in the list of nominees for party-list representatives
- Secs 5(d) and 10 of COMELEC Reso 10717: Preventing defeated candidates in the 2019 elections from being included in the list of nominees for party-list representations

Suits

- G.R. No. 257610 - Glenn Quintos Albano - second nominee of the sectoral party Talino at Galing ng Pinoy Party-List (TGP) for 2022 national elections
 - Albano ran for city councilor for Taguig City during the 2019 Elections and lost. He continued to serve TGP as the Chief Political Affairs Officer and its Chief of Staff
 - Albano's loss in the previous 2019 elections rendered him ineligible to participate as the second nominee of TGP, pursuant to the **restrictions imposed by Sec. 8 of RA 7941 and Secs. 5(d) & 10 of COMELEC Reso 10717**
- UDK No. 17230 - Catalina G. Leonen-Pizarro - president/first nominee of the Arts Business and Science Professionals (ABS) for 2022 national elections
 - She lost in her mayoral bid in the 2016 and 2019 elections
 - Despite her selection as first nominee for the 2022 elections, Pizarro's bid was also hampered by the promulgation of COMELEC Resolution No. 10717 and the media pronouncement of the COMELEC, *preventing defeated candidates in the 2019 elections from eyeing a political comeback through the party-list system in the HOR.*
- Petitioners separately filed Petitions for Certiorari and Prohibition to declare Sec. 8 of RA 7941 and Sec. 5(d) and 10 of COMELEC Resolutions 10717 unconstitutional.

ISSUE 1

Main – Substantive	W/N Congress may prescribe additional qualifications other than what is provided in Sec. 6, Art. VI of the 1987 Constitution	YES (PARTLY)
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
- Assailed provisions illegally imposes an addtl qualification on party-list aspirants - Candidates need only to meet the qualifications set forth in Sec. 6, Art. VI of the 1987 Constitution - Beyond such qualifications, candidates need not possess any other qualification to be voted upon and elected. - Act of Congress in adding another req. effectively amends the Consti, which the Congress has no power to do so		- OSG asserts that Congress merely acted in compliance with and by authority of the express wording of Sec. 5 (1) of the Consti in imposing such addtl qualifications under RA 7941 - COMELEC Reso acted upon a valid statutory provision, pursuant to its constitutional mandate to enforce and administer all laws and regulations relative to the conduct of an election. - The OSG adds in its Comment in UDK No. 17230 that the inclusion of additional requirements for party-list representatives was a valid exercise of the plenary power of Congress, which includes the

	authority to prescribe qualifications for public office.
RULING and RATIO DECIDENDI:	
<i>Congress is empowered to determine, by law, who shall be elected through the party-list system and, therefore, determine the qualifications of the party-list representatives elected under this system.</i> - Sec 5 (1), Art VI was given credence by the Court [with emphasis below] - SECTION 5. (1) The House of Representatives shall be composed of not more than two hundred and fifty members, unless otherwise fixed by law, who shall be elected from legislative districts apportioned among the provinces, cities, and the Metropolitan Manila area in accordance with the number of their respective inhabitants, and on the basis of a uniform and progressive ratio, and those who, as provided by law, shall be elected through a party-list system of registered national, regional, and sectoral parties or organizations. - <i>Banat v. COMELEC:</i> Sec. 5(1) stating that the party-list representatives shall be “those who, <u>as provided by law</u>, shall be elected through a party-list system,” gives the Legislature wide discretion in formulating the allocation of party-list seats. - In terms of “who” in the above, the Court said that it is the party list reps who would occupy the house, acting on behalf of their orgs - Constitutional Framers also stated that when they indicated, “as provided by law”, it could mean an Ordinance, EO or by law provided by the Congress. Due to time constraints, they chose to leave the matter of formulating rules for the party-list system to the Legislature. → Under the foregoing provision, Congress is given the plenary power to legislate on who shall be qualified to be elected under the party-list system and which national, regional, and sectoral parties or organizations are eligible for registration - RA 7941 is the “controlling law” formulated by the Congress in accordance with Consti. → Court finds nothing wrong with RA7941 as Congress acted within its mandate. This case was distinguished from the Social Justice Society v. Dangerous Drugs Board: where the court ruled that the provision in the Comprehensive Dangerous Drugs Act of 2002 and COMELEC Res No. 6846 was unconstitutional, for requiring all candidates for public office to undergo a mandatory drug test. It violated the Constitution by adding a condition <i>sine qua non</i> to the already exclusive reqs. enumerated in Art. IV - Senators and Senatorial Candidates shall mandatorily comply with the qualifications laid down in Sec. 3, Art. VI of the 1987 Constitution and it is silent with regards to any classification in the Senate - ALL members of the Senate and candidates must meet ALL the qualifications set by the Consti - These qualifications are exclusive, and neither Congress nor the COMELEC may add to and supplant what the 1987 Consti had already prescribed, as there is no additional, “as provided by law.” - House is classified into two kinds of members: (1) district representatives - elected based on district boundaries (2) party-list representatives - elected on a nationwide basis - Much room is accorded to Congress in determining who shall be elected as party-list reps. - Sec. 5(1) only refers to party-list reps. and absent with regard to district representatives, thus Congress does not have the constitutional consent to add to the qualifications of the district reps. SECTION 6. Art VI of the 1987 Constitution - No person shall be a Member of the House of Representatives unless he is a natural-born citizen of the Philippines and, on the day of the election, is at least twenty-five years of age, able to read and write, and, except the party-list representatives, a registered voter in the district in which he shall be elected, and a resident thereof for a period of not less than one year immediately preceding the day of the election. Section 3, Article VI of the 1987 Constitution - No person shall be a Senator unless he is a natural born citizen of the Philippines, and, on the day of the election, is at least thirty five years of age, able to read and write, a registered voter, and a resident of the Philippines for not less than two years immediately preceding the day of the election.	

ISSUE 2

Main Substantive	- W/N Sec. 8 of RA 7941 and Secs. 5(d) and 10 of COMELEC Reso 10717 are unconstitutional for violating the equal protection clause of the 1987 Constitution	YES
------------------	---	-----

PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
- Violative of the equal protection clause, no substantial distinctions between candidates who (1) have not participated (2) have won and (3) have lost - Arbitrary prohibitions do not appear to be germane to the purpose of the law in promoting proportional representation	- Distinction between district and party-list representatives constitutes a valid classification that doesn't infringe on the equal protection - Assailed provisions serve a legitimate purpose, preventing persons from merely using the party-list system as a mechanism to secure public office after having lost
RULING and RATIO DECIDENDI:	
<i>Assailed provisions insofar as it bars losing candidates in the immediately preceding elections must be struck down as UNCONSTITUTIONAL for being violative of the equal protection clause.</i> - Equal protection clause is not an absolute prohibition on any sort of classification, provided it be reasonable, must (1) rest on substantial distinctions; (2) be germane to the purposes of the law; (3) must not be limited to existing conditions only; and (4) apply equally to all members of the same class 3 DIFFERENT TESTS (3 levels of test to determine the propriety of the classification: (1) strict scrutiny test applies when a classification either interferes with the exercise of fundamental rights or burdens suspect classes (2) intermediate scrutiny test applies when a classification does not involve suspect classes or fundamental rights but requires heightened scrutiny (3) rational basis test applies to all other subjects not covered by the first two sets) RATIONAL BASIS TEST APPLIES FOR THIS Definitions: - Court used rational basis test because Citing Quinto v. COMELEC, Marquez v. COMELEC, and Pamatong v. COMELEC, the Court reaffirmed that there is no fundamental constitutional right to run for public office; seeking elective office is a mere statutory privilege subject to limitations by reasonable law. - Because the classification does not burden a fundamental right or target a "suspect class" (such as gender or legitimacy), the Rational Basis Test applies - Under the Rational Basis Test, a statutory classification will be sustained only if there is a (1) legitimate government interest and (2) a reasonable, rational connection between that interest and the statutory classification used to achieve it. Application: - (1) LEGITIMATE INTEREST – Assailed provisions serve a legitimate government interest to protect the integrity of the party-list system HOWEVER the law discriminates, it haphazardly deprives losing candidates who have a genuine stake in a party-list and its causes; party-lists are also limited in its choices of nominees - (2) REASONABLE CONNECTION - No clear connection appears to exist between the weakness of the candidate in the previous elections and the probability that their participation would perpetuate the abuse of the party-list system ARBITRARY DISTINCTIONS • Between District Candidates and Party-list Nominees - A candidate who ran for mayor, governor, or district congressman in 2019 and lost is fully eligible to run again for any district or local elective post in 2022. Yet, the assailed law arbitrarily barred that same individual from being a party-list nominee in 2022. There is no substantial distinction justifying why a recent electoral loss disqualifies a person from party-list nomination but permits them to seek district office. • Between Defeated Candidates - An individual who lost an election two or three cycles ago (e.g., in 2016 or 2013) is eligible to be a party-list nominee in 2022, but one who lost in the immediately preceding election (2019) is barred. A loss in an immediately preceding election is not an indicator of bad faith, lack	

of advocacy, or unfit character. Excluding recent losers while permitting older losers is an arbitrary temporal restriction that fails rational basis scrutiny

The Court finds that the more consistent and sensible prohibition would be to disqualify candidates for an elective position to serve as a party-list representative in the same elections

- The Court explicitly clarified that **striking down the "losing candidate in the immediately preceding election" clause does NOT invalidate the separate statutory prohibition** against a person **being a party-list nominee while simultaneously running as a candidate for another elective office** in the same current election. That prohibition remains valid and fully effective.

FINAL DECISION

WHEREFORE, the Petitions for Certiorari and Prohibition are **GRANTED**. The following are hereby declared **INVALID and UNCONSTITUTIONAL**:

1. The phrase **"a person who has lost his bid for elective office in the immediately preceding election"** under Section 8 of Republic Act No. 7941;
2. The phrase **"have lost in their bid for an elective office in the May 13, 2019 National and Local Elections"** under Section 5 (d) of COMELEC Resolution No. 10717; and
3. The phrase **"or a person who has lost his bid for an elective office in the May 13, 2019 National and Local Elections"** under Section 10 of COMELEC Resolution No. 10717.

The provision under the third sentence, second paragraph of Section 8, Republic Act No. 7941 that is **NOT REPUGNANT** to the Constitution reads: **"The list shall not include any candidate for any elective office."**

SEPARATE OPINION/S

LEONEN, J. *dissenting*

Sec. 8 of RA 7941 is CONSTITUTIONAL

("a person who has lost his bid for elective office in the immediately preceding election")

- No grave abuse of discretion from COMELEC in issuing Resol 10717
 - Sec. 5: "...and that they are not candidates for any elective office or have lost in their bid for an elective office in the May 13, 2019 National and Local Elections"
 - Sec. 10: "The list shall not include any candidate for any elective office or a person who has lost his bid for an elective office in the May 13, 2019 National and Local Elections."
- CASE SHOULDVE BEEN DISMISSED OUTRIGHT (doesn't meet requirements of judicial review)
 - MOOT / ACADEMIC (no actual controversy)
 - May 9, 2022 elections already concluded
 - Mere invocation of transcendental importance shouldn't warrant review. SC is the one that decides on that
 - Petitioners can't claim to be affected as partylist nominees
 - No legal standing
 - Being a nominee doesn't mean that the party will actually win
- EQUAL PROTECTION DOESNT PROHIBIT LEGAL CLASSIFICATION (as long as it is reasonable)
 - Equality of operation of statutes ≠ indiscriminate operation
 - *Dumlao v COMELEC*: There was no violation of equal protection from a law disqualifying a retired 65 year old elective local official from running for the same office. He had already declared himself retired, and need for "new blood" is relevant. **Legal classification cannot be held invalid even if objected to because of "theoretical inconsistencies"**.

- *Fariñas v. Exec. Sec*: No violation of a law that distinguishes between *elective* and *appointive* officials. The distinction is deemed a **substantial classification**.

Tests of Judicial Scrutiny

1. Strict scrutiny test

- a. Applies when a classification either
 - i. (A) interferes with constitutionally guaranteed liberties or
 - ii. (B) burdens "suspect classes" (protected classes with certain disabilities, political powerlessness, or history of unequal treatment)
- b. Requires compelling state interest
- c. Needs to make sure that the chosen method in a law is the least restrictive means of achieving said interest
- d. Must have demonstrated active effort in finding all other options, and that this was the only effective one (needs sound data)

2. Intermediate scrutiny test

- a. When classification doesn't involve the A or B mentioned, BUT requires increased scrutiny on certain classifications based on gender / legitimacy

3. Rational basis test

- a. Applies to all other subjects not covered

Using strict scrutiny, **Sec. 8 of the Party-List System Act does NOT violate the equal protection clause**

- District reps
 - Elected from legislative districts
 - The representative is directly accountable to their electorate. THEY get reelected, not the partylist
- Partylist reps
 - Elected through partylist
 - Partylist count as a **suspect class**, as their advocacies may not always be the main focus of district reps. Most elections are won by individuals based on popularity and personality, so partylists are often rendered powerless by a **history of favoring pedigreed individuals**
- **There is a reasonable classification for those who lost in the immediately preceding election**
 - There are compelling state interests in having rational and credible elections, such as exclusion of *nuisance candidates*
- **It uses the least restrictive means**
 - Only those who lost in the IMMEDIATELY preceding elections are singled out
 - Prevents using partylists as a fallback
- **No sufficient proof that its unconstitutional**
 - Laws are assumed to be constitutional and reasonable, so the burden of proof lies on the one assailing it

LAZARO-J
AVIER, J.
dissenting

- **Votes to deny the petitions and sustain the constitutionality** of this portion of Sec 8 of RA 7941 as it has the hallmarks of a reasonable classification: ***The list shall not include any***

candidate for any elective office or a person who has lost his bid for an elective office in the immediately preceding election.

- Controversies involving the right to equal protection center on 1) *how far, or in relation to what rights, does the command of equality intend to apply* and 2) *what does it mean to treat persons equally?*
- Through a rational basis test, it should also be proved that it:
 - Rests on substantial distinctions
 - Germane to the purpose of the law
 - Not limited to existing conditions only
 - Applies equally to all members of the same class
- The starting point is that **the law that imposes the classification is presumptively constitutional**. The burden is on the complaining party to show that the only purpose of the legislation was entirely arbitrary, irrational, or invidiously discriminatory.
 - In this case, the underlying classification in the assailed portion of Section 8 RA 7941 has nothing to do with discriminatory or suspect classifications.
 - It does not distinguish between normal and historically/socially disadvantaged individuals or groups
- **Threshold test** - used to determine that one group is unequally treated as against another
 - Comparator groups:
 - Candidates of any elective office VS nominees of party-list organizations
 - Political parties of candidates and candidates themselves of any elective office VS registered party-list organization or coalition
 - Winning candidates of any elective post in the immediately preceding elections VS losing candidates of any elective post in the immediately preceding elections
 - On its face, the challenged provision creates a distinction, which imposes burden upon **nominees of party-list organizations and registered party-list organizations or coalitions** running in the current elections, and **losing candidates of any elective post** in the immediately preceding elections
- **Rational basis test** - sole main test for deciding equal protection challenges
 - ***Is there a legitimate government interest behind the classification?***
 - YES. It aims to protect the integrity of the party-list system of electing representatives by disallowing or discouraging the traditional elective officials from crowding, monopolizing or abusing the party-list system of representation to perpetuate themselves in power.
 - ***Is the classification rationally related to this legitimate government interest?***
 - YES. It is able to limit, discourage or disallow the abuse of the party-list system as a backdoor for traditional politicians.
 - It also helps to promote and strengthen the capacities of organizations who have no machinery to match those candidates in other elective posts
 - The classifications are germane to the purpose of the assailed portion of Section 8. They are reasonably tailored to achieve the legitimate government interest mentioned above. The classifications too are not limited to existing conditions. They are perpetually imposed so long as Section 8 is in effect. They also apply equally to all members of the same class.
- Nominees of party-list organizations running in the current elections and losing candidates for any elective post in the immediately preceding elections have no social or historical

disadvantage. By imposing an added burden of additional qualifications or grounds of disqualification upon them, the assailed portion of Section 8 does not aggravate or perpetuate any social or historical disadvantage, prejudice, or stereotypes. On the contrary, its purpose corresponds to the needs of the claimant groups when considered in the context of the whole scheme.

- The claimant groups in the assailed portion of Section 8 are not accorded protection by the Constitution.
- Petitioners have no standing because they have not been injured by the assailed provision
 - The equal protection challenge to this provision properly belongs to registered party-list organizations or coalitions, since it is their right to nominate that is alleged to have been infringed
- The Court cannot supervise the Congress when it comes to what are reasonable classifications
 - Close judicial review of all classifications to ensure equal protection of the laws is a practical impossibility

Aquino v. Commission on Elections

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Agapito A. Aquino v. Commission on Elections, Move Makati, Mateo Bedon, and Juanito Icaro*
- **Citation:** G.R. No. 120265, September 18, 1995 (En Banc)
- **Ponente:** Kapunan, J.
- **Bench Composition:** Regalado, Melo, Puno, and Hermosisima, Jr., JJ., concurring; Francisco, J., concurring and dissenting; Davide, Jr., J., dissenting (joined by Romero and Bellosillo, JJ.); Feliciano, J., on official leave.
- **Syllabus Relevance & Topic:**
 1. **Qualifications of Members of the House of Representatives — Residency Requirement (Art. VI, Sec. 6):** Mandatory one-year residence in the legislative district immediately preceding the day of the election.
 2. **Jurisdiction of the House of Representatives Electoral Tribunal (HRET) vs. COMELEC (Art. VI, Sec. 17):** Requisites for HRET jurisdiction to attach; unproclaimed winning candidates remain subject to COMELEC jurisdiction under Section 6 of R.A. No. 6646 [150–152].
 3. **Residency vs. Domicile in Election Law:** Residence for qualification purposes is synonymous with *domicile* (domicile of origin vs. domicile of choice); elements required to prove abandonment of domicile of origin [152–153, 160].
 4. **Newly Created Legislative Districts ("Carpetbagger" Prohibition):** Creation of a new congressional district carved out of an existing municipality does not extinguish or lower the one-year constitutional residency requirement.
 5. **Second Placer / Disqualified Candidate Rule (Labo Doctrine):** Disqualification of the winning candidate does not entitle the runner-up/second placer to be proclaimed winner [162–163].

CHRONOLOGICAL MATERIAL FACTS

1. **Filing of Original Certificate of Candidacy (March 20, 1995):** Petitioner Agapito A. "Butz" Aquino filed his Certificate of Candidacy (CoC) for Representative of the newly created Second Legislative District of Makati City (established under R.A. No. 7854 converting Makati into a city). In Item 8 of his CoC, Aquino stated under oath that his residence in the constituency where he sought to be elected immediately preceding the election was: " Years and 10 Months".
2. **Filing of Disqualification Petition (April 24, 1995):** Private respondents Move Makati (a registered political party) and Mateo Bedon filed a petition before COMELEC (SPA No. 95-113) seeking to disqualify Aquino on the ground that he lacked the one-year residence qualification mandated by Article VI, Section 6 of the 1987 Constitution.
3. **Filing of Amended CoC (April 25, 1995):** The day after the disqualification petition was filed, Aquino filed an amended CoC altering Item 8 to state that he had resided in the constituency for "**1 year and 13 days**".
4. **Domicile of Origin vs. Claimed Domicile of Choice:**
 - Aquino's domicile of origin of record was San Jose, Concepcion, Tarlac, where he was born, resided for 52 years, was a registered voter, and previously ran for public office.
 - Having served two terms as Senator, Aquino was barred by the two-term constitutional limit from running for re-election in the Senate.
 - To establish a presence in Makati's Second District, Aquino executed a lease agreement over a 3rd-floor condominium unit at 284 Amapola cor. Adalla Sts., Palm Village, Makati. The lease was for two years,

but Aquino testified before COMELEC that his intention was really to stay for **only one year** because he maintained other residences in Manila and Quezon City.

5. **Conduct of Elections and Voting Outcome (May 8, 1995):** Elections were held while the disqualification petition remained pending. Aquino obtained the highest number of votes (**38,547 votes**), while candidate Augusto Syjuco ranked second (**35,910 votes**).
-

● PROCEDURAL HISTORY

1. **COMELEC Second Division Ruling (May 6, 1995):** Dismissed the disqualification petition against Aquino and declared him eligible.
 2. **Reconsideration and Suspension of Proclamation (May 7–15, 1995):** Move Makati filed a Motion for Reconsideration before the COMELEC En Banc. On May 15, 1995, COMELEC En Banc issued an Order directing the Board of Canvassers of Makati City to complete the canvass but **suspend the proclamation of Aquino** pursuant to Section 6 of R.A. No. 6646.
 3. **COMELEC En Banc Disqualification Resolution (June 2, 1995):** Reversed the Second Division, declaring Aquino **INELIGIBLE and DISQUALIFIED** for lack of the constitutional qualification of residence. COMELEC En Banc made the suspension of his proclamation permanent and directed the Board of Canvassers to reconvene and "*determine the winner out of the remaining qualified candidates*" (ordering the proclamation of the second placer, Syjuco).
 4. **Supreme Court Certiorari Petition:** Aquino filed a Rule 65 Petition for Certiorari before the Supreme Court assailing the COMELEC En Banc orders and resolution. The Supreme Court issued a Temporary Restraining Order enjoining COMELEC from proclaiming the second placer.
-

● PARTIES' MATERIAL ARGUMENTS

- **Petitioner (Agapito A. "Butz" Aquino):**
 1. **Lack of COMELEC Jurisdiction (HRET Jurisdiction):** Once elections are held and a candidate receives the highest number of votes, COMELEC loses jurisdiction; exclusive jurisdiction over congressional disqualifications transfers to the House of Representatives Electoral Tribunal (HRET) under Article VI, Section 17.
 2. **Compliance with Residency Requirement:** He satisfied the one-year residency requirement by leasing a condominium unit in Palm Village, Makati.
 3. **Theory of "Legal Impossibility":** It is legally impossible to enforce a one-year residency requirement in a newly created legislative district (Makati Second District) that was enacted into law barely four months before the election under R.A. No. 7854 [148, 161, 170–171].
 4. **Violation of Second Placer Rule:** COMELEC committed grave abuse of discretion in ordering the proclamation of the runner-up because a repudiated second-place candidate is a loser and cannot be declared winner.
- **Respondents (Move Makati, Mateo Bedon, and COMELEC):**
 1. **COMELEC Jurisdiction Preserved:** HRET jurisdiction attaches *only* when a candidate becomes a "Member" of the House (requiring proclamation, oath, and assumption of office) [150–151, 167]. As an unproclaimed candidate, COMELEC retains jurisdiction under Section 6 of R.A. No. 6646 to determine eligibility [151–152].
 2. **Non-Compliance with Domicile Standard:** Residence under election law means *domicile* [152–153]. Leasing a condo unit for a short duration while maintaining domicile in Tarlac and residences elsewhere does not prove abandonment of origin [158–160].

3. **Rejection of Legal Impossibility:** Newly created districts encompass existing geographical territory where citizens have long resided; allowing un-domiciled politicians to run invites "carpetbagging".
-

ISSUES

1. **Whether COMELEC lost jurisdiction over the disqualification petition after the election, and whether exclusive jurisdiction was vested in the House of Representatives Electoral Tribunal (HRET).**
 2. **Whether petitioner Aquino satisfied the one-year residency requirement under Article VI, Section 6 of the 1987 Constitution.**
 3. **Whether it is legally impossible to enforce the one-year residency requirement in a newly created legislative district that existed for less than a year prior to the election.**
 4. **Whether COMELEC erred in ordering the Board of Canvassers to determine and proclaim the winner from the remaining qualified candidates (second placer) after disqualifying the highest vote-getter.**
-

HOLDINGS AND CONTROLLING REASONING

1. On Jurisdiction (COMELEC vs. HRET): NO. COMELEC did NOT lose jurisdiction; HRET jurisdiction had NOT attached [149–151].

- **Distinction Between Candidate and Member:** Obtaining the highest number of votes does not automatically vest congressional office. Under Article VI, Section 17, HRET assumes exclusive jurisdiction *only* when a candidate becomes a **Member** of the House of Representatives [150–151].
- **Requisites for HRET Jurisdiction:** A candidate becomes a Member of Congress only upon the concurrence of: (1) a valid proclamation; (2) a valid oath of office; and (3) assumption of office.
- **Authority to Suspend Proclamation:** Because Aquino was never proclaimed, he never became a Member of the House. Under Section 6 (in relation to Section 7) of R.A. No. 6646, COMELEC is expressly empowered to continue hearing disqualification/ineligibility cases after the election and suspend the proclamation of a winning candidate when evidence of ineligibility is strong [145, 151–152].

2. On Residency Qualification: NO. Aquino FAILED to comply with the 1-year residency requirement.

- **Residence Synonymous with Domicile:** For election law purposes, "residence" is synonymous with "domicile" — the place where a party actually or constructively has his permanent home and to which, whenever absent, he intends to return (*Co v. HRET*; *Gallego v. Verra*).
- **Purpose of the Requirement:** The constitutional mandate excludes "strangers or newcomers unfamiliar with the conditions and needs of the community" from taking advantage of favorable local conditions for electoral gain (*carpetbagger prohibition*).
- **Failure to Prove Change of Domicile:** Domicile of origin (Concepcion, Tarlac) is not easily lost. To effect a change to a domicile of choice, a candidate must prove: (1) actual physical removal; (2) *animus manendi* (bona fide intent to remain permanently/indefinitely); and (3) *animus non revertendi* (intent to abandon the old domicile).
- **Inadequacy of Lease Contract:** Aquino's 2-year lease of a Makati condominium unit (which he testified was intended for only 1 year because he owned other residences) did not establish permanent physical presence or abandonment of Tarlac. His original CoC entry ("10 months") and sudden lease executed solely to meet the election deadline confirmed that his presence was a temporary expedient to run for office after being barred from the Senate [142, 159–161].

3. On "Legal Impossibility" in Newly Created Districts: SPECIOUS AND WITHOUT MERIT.

- **Geographical Continuity:** A newly created legislative district is not carved out of thin air; it is carved out of an existing geographical territory (the old Municipality of Makati) where residents have lived and established domiciles for generations.
- **Prevention of Carpetbagging:** Accepting Aquino's theory would allow "modern-day carpetbaggers" who were never domiciled in the area to transplant themselves into newly created districts, prejudicing genuine local residents.

4. On Proclaiming the Second Placer: COMELEC ERRED; the second placer CANNOT be proclaimed winner [149, 162–163].

- **Reaffirmation of *Labo* and *Abella* Doctrines:** Under no circumstances can a minority or defeated candidate be deemed elected [162–163].
- **Rejection by the Electorate:** The electorate voted for Aquino (38,547 votes) and repudiated Syjuco (35,910 votes) [144, 162–163]. A candidate rejected by the voters cannot be forced upon the constituency as their representative merely because the winner was disqualified.
- **Illegality of COMELEC Order:** COMELEC En Banc committed grave abuse of discretion in directing the Board of Canvassers to proclaim the winner from the remaining qualified candidates [146, 149, 164–165].

DOCTRINE, TESTS, AND LEGAL STANDARDS

1. **Requisites for HRET Jurisdiction (Art. VI, Sec. 17):** HRET exclusive jurisdiction attaches ONLY when a candidate becomes a Member of the House through the concurrence of: (1) valid proclamation; (2) valid oath; and (3) assumption of office. Unproclaimed candidates remain subject to COMELEC jurisdiction under Section 6 of R.A. No. 6646 [150–152].
2. **Election Residence / Domicile Test:** Residence in election law equals *domicile*. Establishing a new domicile of choice requires clear and positive proof of:
 - Actual bodily presence in the new locality;
 - *Animus manendi* (intent to remain permanently/indefinitely); and
 - *Animus non revertendi* (intent to abandon the domicile of origin) [152–153, 160].
3. **Carpetbagger Rule for Newly Created Districts:** The creation of a new legislative district does not waive or shorten the 1-year constitutional residency requirement under Article VI, Section 6.
4. **Second Placer Disqualification Rule (*Labo* / *Abella* Standard):** Disqualification of the winning candidate does not entitle the runner-up/second placer to be proclaimed winner, as a repudiated candidate cannot represent the electorate [162–163].

DISPOSITION

- **Ruling:** Petition for Certiorari is **DISMISSED**.
- **Affirmance:** The COMELEC En Banc Resolution declaring Agapito A. Aquino **INELIGIBLE and DISQUALIFIED** for Representative of the Second District of Makati City for lack of the 1-year residence requirement is **AFFIRMED**.
- **Permanent Injunction:** The Supreme Court's Restraining Order enjoining COMELEC from proclaiming the candidate garnering the next highest number of votes (second placer) is made **PERMANENT**.

SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLES

Concurring and Dissenting Opinion of Justice Ricardo J. Francisco [167–173]

- **Concurrence:** Fully agreed with the ponencia on COMELEC jurisdiction, lack of domicile in Makati, and rejection of the legal impossibility theory.
- **Dissent on Second Placer Rule:** Argued that the *Labo* doctrine should be abandoned. A disqualified candidate is a non-candidate, and votes cast for a disqualified person are stray/zero votes. Thus, the qualified candidate receiving the highest number of valid votes should be proclaimed winner.

Dissenting Opinion of Justice Hilario G. Davide, Jr. (joined by Romero and Bellosillo, JJ.) [174–184]

- **Dissent on Jurisdiction:** Maintained that Move Makati's petition was a Section 78 ineligibility petition [174–175]. Under Section 6 of R.A. No. 6646, suspension of proclamation is warranted *only* when evidence of ineligibility is strong at the time of suspension [176–177]. Since the Second Division initially cleared Aquino, there was no strong evidence of ineligibility on May 15, 1995; thus, suspending his proclamation was null and void. Aquino should have been proclaimed, shifting jurisdiction exclusively to the HRET via a *quo warranto* proceeding.

Source-Verified Quotable Lines

-  **On Residence as Domicile (Kapunan, J.):**

"The place 'where a party actually or constructively has his permanent home,'... is that to which the Constitution refers when it speaks of residence for the purposes of election law. The manifest purpose... is 'to exclude strangers or newcomers unfamiliar with the conditions and needs of the community' from taking advantage of favorable circumstances existing in that community for electoral gain."

-  **On Newly Created Districts and Carpetbaggers (Kapunan, J.):**

"A new political district is not created out of thin air. It is carved out from part of a real and existing geographic area... Modern-day carpetbaggers cannot be allowed take advantage of the creation of new political districts by suddenly transplanting themselves in such new districts..."

-  **On Rejection of the Second Placer (Kapunan, J.):**

"Whether or not the candidate whom the majority voted for can or cannot be installed, under no circumstances can a minority or defeated candidate be deemed elected to the office... It is absurd to proclaim the totally repudiated candidate as the voters' 'choice.'"

RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Aquino v. COMELEC* (1995), former Senator Butz Aquino ran for Representative of the newly created Second District of Makati in May 1995. In his original CoC, he stated he resided in the district for '10 months,' but amended it to '1 year and 13 days' after a disqualification petition was filed. Aquino's domicile of origin was Tarlac (where he lived 52 years); to run in Makati, he leased a condo for 2 years (testifying he

intended to stay for 1 year). Aquino won with 38,547 votes against Syjuco's 35,910 votes. COMELEC En Banc suspended his proclamation, declared him disqualified for lacking the 1-year residency requirement, and ordered the proclamation of the runner-up. Aquino petitioned the Supreme Court under Rule 65.

The Supreme Court En Banc, through Justice Kapunan, DISMISSED the petition. The Court held: (1) COMELEC retained jurisdiction because HRET jurisdiction attaches ONLY when a candidate becomes a 'Member' of the House (requiring proclamation, oath, and assumption of office); (2) Residence under election law means 'domicile,' and leasing a condo without intent to remain permanently fails to prove abandonment of his Tarlac domicile of origin; (3) The 1-year residency requirement applies fully to newly created districts to prevent 'carpetbagging'; and (4) Reaffirming the Labo doctrine, the second placer CANNOT be proclaimed winner because a repudiated candidate is a loser."* [142–146, 150–153, 157–158, 160–163, 165]

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: Why didn't jurisdiction over Aquino's disqualification transfer to the HRET after he won the election with the highest number of votes?**
 - **A:** Under Article VI, Section 17 of the Constitution, HRET acquires exclusive jurisdiction *only* when a candidate becomes a **Member** of the House of Representatives [150–151]. Becoming a Member requires the concurrence of three requisites: (1) valid proclamation; (2) valid oath; and (3) assumption of office. Because COMELEC validly suspended Aquino's proclamation under Section 6 of R.A. No. 6646, he was never proclaimed, never became a Member, and COMELEC retained jurisdiction [145, 150–152].
2. **Q: How did the Supreme Court dispose of Aquino's argument that it was "legally impossible" to comply with a 1-year residency requirement in a district created 4 months prior to the election?**
 - **A:** The Court held that a newly created district is carved out of an existing geographical territory where citizens have long resided. The 1-year residency requirement prevents "carpetbaggers"—politicians who shop around for vacant legislative seats—from transplanting themselves into newly created districts to defeat local representation.
3. **Q: Why was candidate Syjuco (the second placer who obtained 35,910 votes) denied the congressional seat after Aquino was disqualified?**
 - **A:** Under the *Labo / Abella* doctrine, a minority or defeated candidate can under no circumstances be deemed elected [162–163]. The electorate explicitly voted for Aquino and repudiated Syjuco; forcing a repudiated loser upon the voters violates the fundamental principle of representative democracy.

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose Butz Aquino purchased a house in Makati 2 years prior to the election, transferred his voter registration to Makati 18 months before the election, enrolled his children in Makati schools, and moved his primary business headquarters to Makati, while selling his family properties in Tarlac. However, COMELEC cancels his CoC because the Second District of Makati was enacted into law only 4 months prior to the election. Is COMELEC's cancellation valid?
- **Answer: No, COMELEC's cancellation would be INVALID.** Under *Aquino v. COMELEC*, residence for election law purposes is synonymous with *domicile* [152–153]. If Aquino established actual physical presence, *animus manendi* (intent to remain), and *animus non revertendi* (intent to abandon Tarlac) in the geographical territory encompassing Makati 18 months prior to the election, he satisfied the 1-year constitutional requirement. The recent formal enactment of the district charter (4 months prior) does not erase his prior actual domicile within that existing geographical territory.

One-Sentence Doctrine Anchor

Residence for congressional qualification means domicile, which is not acquired by a temporary lease without intent to abandon one's domicile of origin, and an unproclaimed winning candidate remains under COMELEC jurisdiction, whose disqualification cannot elevate the repudiated second placer to office. [150–153, 160, 163]

Aquino v. COMELEC (1995)

Topic Subtopic	Branches of the Government - Congress Power, Composition, Qualification and Term of Office	GR No. & Ponente	G.R. No. 120265 & J. KAPUNAN
Petitioner/s	AGAPITO A. AQUINO	Respondent/s	COMMISSION ON ELECTIONS, MOVE MAKATI, MATEO BEDON, and JUANITO ICARO
Doctrine	A candidate that does not fulfill the residency requirement to run for Congress as mandated by the Constitution, will be disqualified. However, the ineligibility of a candidate receiving the majority votes does not entitle the eligible candidate receiving the next higher number of votes to be declared elected, and that a minority or defeated candidate cannot be declared elected to the office		

FACTS

- March 20, 1995 - Agapito Aquino filed his COC for the position of Representative for the new Second Legislative District of Makati City. He indicated that he had been **residing in the area for 10 months**.
- April 24, 1995 - Move Makati, a duly registered political party, and Mateo Bedon, Chairman of LAKAS-NUCD-UMDP of Brgy. Cembo, Makati City, filed a petition to disqualify Aquino on the ground that the latter lacked the residence qualification as a candidate for Congressman under Sec. 6, Art. 6 of the 1987 Constitution (i.e. not less than 1 year residency)
- April 25, 1995 - he filed another CoC indicating that he had **resided in the 2nd district for 1 year and 13 days**.
- May 2, 1995, the petitioner prayed for the dismissal, testified, and presented evidence which is a lease contract that indicates his residence.
 - After hearing, the Second Division, dismissed the petition for disqualification.
- May 7, 1995, Bedon and Move Makati filed for a Motion for reconsideration with the COMELEC en banc and the May 8, 1995 elections were held with Aquino garnering the highest amount of votes
- May 10, 1995 - The private respondents filed an Urgent Motion Ad Cautelum to suspend the proclamation of petitioner along with an Omnibus Motion for Reconsideration. COMELEC en banc issued a suspension for his proclamation
- June 2, 1995 - COMELEC en banc issued a resolution reversing the resolution of the Second Division, and declared the **petitioner ineligible and thus disqualified, for lack of the constitutional qualification of residence**.
- Aquino filed a petition of Instant Petition for Certiorari assailing the Resolution of the COMELEC disqualifying him.

ISSUE 1

Main – Procedural	W/N COMELEC has lost its jurisdiction in questioning the petitioner's qualifications to run for member of the HoR and it should be the jurisdiction of the HRET?	NO
PETITIONER/S ARGUMENTS:		
- Since the elections have already passed and he is the one who garnered the highest votes, the HRET should have jurisdiction on the matter of his qualifications rather than the COMELEC - COMELEC committed serious error and grave abuse of discretion in suspending his proclamation.		
RULING and RATIO DECIDENDI:		
ANSWER - NO. The COMELEC still retains its jurisdiction over the question of the petitioner's qualifications. - Obtaining the highest number of votes in an election does not automatically vest the position in the winning candidate Section 17 of Article VI of the 1987 Constitution - The Senate and the House of Representatives shall have		

an Electoral Tribunal which shall be the sole judge of all contests relating to the election, returns and qualifications of their respective **Members**.

- the ET assumes jurisdiction over all contests relative to the election, returns and qualifications of candidates of either the Senate of HoR **when the latter becomes members of the Senate or HoR**
- A candidate who has not been proclaimed and who has not taken his oath of office cannot be said to be a member of the HOR subject to the ET.
- **SECTION 6 of RA 6646** - Effect of Disqualification Case. — Any candidate who has been declared by final judgment to be disqualified shall not be voted for, and the votes cast for him shall not be counted. If for any reason a candidate is not declared by final judgment before an election to be disqualified and he is voted for and receives the winning number of votes in such election, the Court or Commission shall continue with the trial and hearing of the action, inquiry or protest and, upon motion of the complainant or any intervenor, may during the pendency thereof order the suspension of the proclamation of such candidate whenever the evidence of guilt is strong.
- **SECTION 7 of RA 6646** - Petition to Deny Due Course or to Cancel a Certificate of Candidacy. — The procedure hereinabove provided shall apply to petition to deny due course to or cancel a certificate of candidacy based on Sec. 78 of Batas Pambansa 881.
 - Even **after** the elections the COMELEC is empowered by Section 6 (in relation to Section 7) of R.A. 6646 to continue to hear and decide questions relating to qualifications of candidates
 - Under the above-quoted provision, not only is a disqualification case against a candidate allowed to continue after the election (and does not oust the COMELEC of its jurisdiction), but his obtaining the highest number of votes will not result in the suspension or termination of the proceedings against him when the evidence of guilt is strong.
 - While the phrase "when the evidence of guilt is strong" seems to suggest that the provisions of Section 6 ought to be applicable only to disqualification cases under Section 68 of the Omnibus Election Code, Section 7 of R.A. 6646 allows the application of the provisions of Section 6 to cases involving disqualification based on ineligibility under Section 78 of B.P. 881.
 - Although "evidence of guilt is strong" suggests that Sec. 6 ought to be applicable only to disqualification cases under Sec 68 of the Omnibus Code, Sec. 7 allows the application of Sec. 6 to disqualification cases based on ineligibility under Sec. 78 of B.P. 881.

ISSUE 2

Main Substantive	– W/N the petitioner was actually a resident for a period of one year in the 2nd legislative district of Makati at the time of election?	NO
PETITIONER/S ARGUMENTS:		
● His lease, along with the testimonies, support his claim of residency in Makati ● it would be legally impossible to impose the one year residency requirement in a newly created political district		
RULING and RATIO DECIDENDI:		
ANSWER ● The Constitution requires that a person seeking election to the HOR should be a resident of the district in which he seeks election for a period of not less than 1 year prior to the elections. ○ Co vs. Electoral Tribunal of the House of Representatives - "residence" has always been understood as synonymous with "domicile" not only under the previous Constitutions but also under the 1987 Consti. ○ Purpose: Gallego vs. Vera - to exclude strangers or newcomers unfamiliar with the conditions and needs of the community from taking advantage of favorable circumstances existing in that community for electoral gain. ● As found by the COMELEC en banc: ○ The petitioner filed his COC in the May 11, 1992 elections, w/c indicated that he was not only a resident of San Jose, Concepcion, Tarlac in 1992, but he was a resident of the same for 52 years immediately preceding that election.		

- His certificate indicates that he was a registered voter of the same district and his birthplace was Concepcion, Tarlac.
- Therefore what stands clear and unassailable is that his domicile of origin up to the filing of his CoC for the 1995 elections was Concepcion, Tarlac.
- Furthermore, his lease agreement of a condominium in the area did not prove the permanency required to prove abandonment to one's original domicile, considering the terms were for only 2 years and not to mention that Aquino himself admitted that his intention was only for 1 year since he has other residences in Manila or Quezon City.
- While property ownership is not and should never be an indicia of the right to vote or to be voted upon, the fact that petitioner himself claims that he has other residences in Metro Manila coupled with the short length of time he claims to be a resident of the condominium unit in Makati (and the fact of his stated domicile in Tarlac) **"indicate that the sole purpose of (petitioner) in transferring his physical residence" is not to acquire a new residence or domicile "but only to qualify as a candidate for Representative of the Second District of Makati City."**
- Domicile of origin is not easily lost. To successfully effect a change of domicile, petitioner must prove an actual removal or an actual change of domicile, a bona fide intention of abandoning the former place of residence and establishing a new one and definite acts which correspond with the purpose → Petitioner failed → In the absence of clear and positive proof, the domicile of origin should be deemed to continue
- As for the Petitioner's argument that meeting the residence requirement is impossible because the 2nd district was newly created – Court said it lacks basis in logic, because the district was not created out of thin air. It was made from a real and existing geographic area (Municipality of Makati), where people actually lived or were domiciled.
- It is also noteworthy that the petitioner was disqualified from running in the Senate because of the constitutional two-term limit, and had to shop around for a place where he could run for public office. Nothing wrong with that, but he must first prove with reasonable certainty that he has effected a change of residence for election law purposes for the period required by law. This he has not effectively done

ISSUE 3

Main Substantive	– W/N the COMELEC erred in issuing its Order instructing the Board of Canvassers of Makati City to proclaim as winner the candidate receiving the next higher number of votes.	YES
------------------	--	-----

RULING and RATIO DECIDENDI:

ANSWER

- YES. The next candidate receiving the next highest number of votes should not be proclaimed as the winner.
- The Court cannot subscribe to the contention that the runner-up should be proclaimed as the winner when it is shown that the former did not garner the plurality of votes or was the choice of the electorate.
- There have been many rulings that have different views on the matter but based on precedence, the fact remains that the second place was not the sovereign choice of the people. Even the second placer can acquire just one vote and it would be absurd to proclaim him as the winner. **"The second placer is just that, a second placer."**

Flip Flopping Precedence

- **Labo v. Comelec** - While Ortega may have garnered the second highest number of votes for the office of city mayor, the fact remains that he was not the choice of the sovereign will. Petitioner Labo was overwhelmingly voted by the electorate for the office of mayor in the belief that he was then qualified to serve the people of Baguio City and his subsequent disqualification does not make respondent Ortega the mayor-elect.
- **Topacio V Paredes** - consequently, the candidate who obtained the next higher number of votes cannot be proclaimed as winner. "there is not, strictly speaking, a contest, that the wreath of victory cannot be transferred from an ineligible candidate to any other candidate when the sole question is the eligibility of the one receiving the plurality of the legally cast ballots."
- **Ticzon v. Comelec** - a disqualified candidate is no candidate at all and is not a candidate in the eyes of the law.

As a result, this Court upheld the proclamation of the only candidate left in the disputed position

- **Geronimo v. Ramos** [reiterating *Topacio v. Paredes*] - “[I]t would be extremely repugnant to the basic concept of the constitutionally guaranteed right to suffrage if a candidate who has not acquired the majority or plurality of votes is proclaimed a winner and imposed as the representative of a constituency, the majority of which have positively declared through their ballots that they do not choose him.”
- **Santos v. Comelec** - “The rule, therefore, is: the ineligibility of a candidate receiving majority votes does not entitle the eligible candidate receiving the next highest number of votes to be declared elected. A minority or defeated candidate cannot be deemed elected to the office” – reverting to *Ticzon v. COMELEC*

In the more recent cases of *Labo, Jr. v. Comelec*; *Abella v. Comelec*; and *Benito v. Comelec*, this Court reiterated and upheld the ruling in *Topacio v. Paredes* and *Geronimo v. Ramos* to the effect that ***the ineligibility of a candidate receiving the majority votes does not entitle the eligible candidate receiving the next higher number of votes to be declared elected, and that a minority or defeated candidate cannot be declared elected to the office***

- By any mathematical formulation, the runner-up in an election cannot be construed to have obtained a majority or plurality of votes cast where an "ineligible" candidate has garnered either a majority or plurality of the votes
- Through their representatives, the people dictate the qualifications necessary for service in government positions. And as petitioner clearly lacks one of the essential qualifications for running for membership in the HOR, not even the will of a majority or plurality of the voters of the Second District of Makati City would substitute for a requirement mandated by the fundamental law itself

FINAL DECISION

WHEREFORE, premises considered, the instant petition is hereby DISMISSED.
Our Order restraining respondent COMELEC from proclaiming the candidate garnering the next highest number of votes in the congressional elections for the Second District of Makati City is made PERMANENT.

SEPARATE OPINION/S

FRANCISCO, J,
*concurring &
dissenting*

Concurs with most but wants to express my views on some issues raised by the petitioner:

1. ***Jurisdiction on qualification of pursuit***

- Petitioner maintains that *only HoR* can declare disqualification of Aquino – yet the constitution is clear that HoR only has jurisdiction when they become members, not before – he is yet to be proclaimed, or even taken oath of office.
- Question on COMELEC’s decision is **now barred by estoppel** – he never assailed their lack of jurisdiction in his initial answer/memorandum in May 2, 1995.
 - If anything, he was trying to prove to COMELEC that he was qualified, invoking rules re: one year residence requirement, or certificate of candidacy only had a *simple inadvertence*, or that the proper procedure was *quo warranto*.
 - He did the same in the following memorandum on May 19, 1995.
 - Very similar to *Fetalvero*: it is not right for a party who has *affirmed* and *invoked* jurisdiction of court to secure affirmative relief **only to afterwards deny that same jurisdiction to escape their decision**.

2. ***Domicile***

- Petitioner insists: **personal intention**; if he agrees to transfer his legal residence to qualify for public office, he should be able to do so. Francisco believes that he failed to prove that he had, indeed, abandoned his old domicile. If anything, he didn’t even newly establish it in Makati
 - Co v. HRET* – domicile once established is considered to continue and *will not be deemed lost* until a new one is established.
 - He moved to Palm Village, Makati – but it was only for a lease contract of two years

	in a condominium unit – does not show intent to abandon domicile of origin. iii. It should have shown that he would remain indefinitely or permanently in the new place. iv. Aquino even said that he would <i>only live for one year in Makati as he had “other residences” in Manila or Quezon City.</i> 3. Theory of Legal Impossibility a. Legal Impossibility – requirement of 1 year residence when at the time of the elections, the political district only existed for 4 months. i. RA 7854 (Jan. 2, 1995) – converted Makati into a highly urbanized city. ii. His own records go against this theory – saying in his own CoC that he resided for 10 months in Makati. He later amended it to 1 year and 13 days – claims this was an inadvertent mistake. 1. He was already qualified to run with the 10-month residency, yet changing it to 1 year & 13 days to be safe from the constitution AND THEN claim legal impossibility. iii. Trying to brush aside constitutional qualification due to RA No. 7854 goes against procedure for amendment or revision – A law cannot negate the constitution. 1. If legal impossibility was adhered to, then it would allow anyone not qualified under the constitution to be qualified to vote (doesn't fall under 6-month residence rule). 4. Second Placer Rule a. Contended: second place candidate cannot be proclaimed a winner. Judge Francisco disagrees. i. A disqualified candidate is not a candidate, with votes cast to him <i>nothing but stray votes or no legal consequence.</i> ii. RA 6646 Sec. 6 – votes cast for a disqualified candidate <i>shall not be counted</i> as they are considered stray: you must only consider from ranks of <i>qualified candidates</i> and not those without. iii. The <i>Labo</i> doctrine should be abandoned. VOTES TO: Deny petition and lift TRO issued by the Court dated June 6, 1995.
DAVIDE, JR., J, <i>dissenting</i>	REVIEW: This was the outcome that followed on the grounds that: 1. Sec 6. RA 6646 – votes cast for a disqualified candidate <i>shall not</i> be counted as they are considered stray. 2. Sec. 7 – deny due course or cancel a certificate of candidacy (as according to Sec. 78 of the Omnibus Election Code) Disagree in sustaining COMELEC's acts of suspending proclamation of Agapito A. Aquino & proceeding to hear disqualification case. 1. It was a petition to disqualify – did not fall under Sec. 7 of RA 6646 (re: petition seeking to deny due course/cancel certificate of candidacy). - It was on the grounds <i>not because certificate was false</i>, but because he lacked one-year residence qualification, which is required by the Constitution, in the Second Legislative District of Makati City. 2. Even if we assume that petition falls under Section 78 of the Omnibus Election Code, RA 6646 Sec. 6 cannot be applied by virtue of Section 7. - Sec. 6 refers to the effects of disqualification cases, not for the procedure of how to handle a petition to deny due course or cancel a certificate of candidacy. - If anything, they should apply it to Sec. 5 – procedure in cases of Nuisance Candidates. 3. Sec. 6 <i>merely supplements</i> Sec. 72 of the Omnibus Election Code re: effects of disqualification cases and priority.

- Grants COMELEC or the Court authority to continue hearing the case & suspend proclamation if *evidence of guilty is strong*
4. Amended Rule 25 of COMELEC Rules of Procedure, re: governing petitions filed before election or proclamation for disqualification *on the ground that he lacks qualifications provided by the constitution or by law*, **does not authorize COMELEC to continue hearing the case after the election.**
 5. Assuming Sec. 6 of RA 6646 applies to disqualification cases: cannot be applied to cases which *do not involve* regional, provincial, and city officials, or where suspension is *not warranted* due to lack of strong evidence of guilt or ineligibility.
 - The candidate sought to be disqualified but who obtains the highest number of votes **has to be proclaimed.**
 - Upon proclamation, **COMELEC cannot continue with the case.**
 - Only remedy: contest winning candidate's eligibility within *10 days* from proclamation in quo warranto proceeding.
 - i. Only ones who have jurisdiction – **MTC** for barangay officials, **RTC** for municipal officials, **HRET** for Congressmen, **SET** for Senators, and **Supreme Court** for President/Vice-President.
 - ii. WHAT FALLS UNDER COMELEC: regional, provincial, or city official, and case cannot be decided before election, then they can proceed *even after* proclamation of candidate.

Even then – **order of suspension is null and void, issued with grave abuse of discretion.** COMELEC *en banc* should have never issued a suspension; the petition was only for dismissing the petition to disqualify and declaring him qualified. No hearing had yet occurred: thus, TRO should have been *void from the beginning*.

They only found out about ineligibility later, when the hearing actually commenced – thus they should have **never suspended the proclamation of the petitioner.** He should've been proclaimed after completion of canvas.

Different from *Imelda Romualdez-Marcos v. COMELEC*, where COMELEC *en banc* affirmed **before** the elections, the resolution which disqualified Mrs. Marcos.

VOTE: GRANT the instant petition, annul and set aside the challenged order and resolution of the COMELEC *en banc*, and **DIRECT Board of Canvassers of Makati City** to reconvene and proclaim the petitioner as the winning candidate *without* prejudice on the part of any aggrieved party to file appropriate action to HRET.

TLDR: Petition should've been granted because COMELEC should have never suspended the proclamation of Aquino with no clear evidence that he was ineligible. They only found it after conducting the hearing. The proper remedy would have been to proclaim him, then properly bring it up to the HRET.

Romualdez-Marcos v. Commission on Elections

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Imelda Romualdez-Marcos v. Commission on Elections and Cirilo Roy Montejo*
- **Citation:** G.R. No. 119976, September 18, 1995 (En Banc)
- **Ponente:** Kapunan, J.
- **Bench Composition:** Narvasa, C.J. (joined J. Mendoza in separate opinion); Padilla, Regalado, and Davide, Jr., JJ. (dissenting); Romero, Vitug, and Mendoza, JJ. (separate opinion); Bellosillo and Melo, JJ. (joined separate opinion of J. Puno); Puno and Francisco, JJ. (separate concurring opinion); Hermosissima, Jr., J. (joined dissenting opinion of J. Padilla); Feliciano, J. (on official leave) [198–199].
- **Syllabus Relevance & Topic:**
 1. **Legislative Department — Qualifications of Members of the House of Representatives / Residency Requirement (Art. VI, Sec. 6):** Mandate that a candidate for the House of Representatives be a resident of the district in which he/she seeks election for a period of not less than one year immediately preceding the day of the election.
 2. **Residency vs. Domicile in Election Law:** Settled rule that "residence" for election qualification purposes is synonymous with *domicile* (domicile of origin vs. domicile of choice vs. domicile by operation of law/matrimonial domicile) [1, 8, 168, 176–180].
 3. **Elements to Prove Change/Abandonment of Domicile:** Requirements of (a) actual physical removal/presence in a new locality, (b) *animus manendi* (intent to remain indefinitely), and (c) *animus non revertendi* (bona fide intent to abandon the old domicile) [1, 170–171, 192–193].
 4. **Effect of Errors in Certificate of Candidacy (CoC):** The principle that the **fact of residence**, rather than an erroneous or honest mistaken statement in a Certificate of Candidacy, is controlling in determining constitutional eligibility [11, 181–183].
 5. **Jurisdiction of HRET vs. COMELEC (Art. VI, Sec. 17):** Requisites for HRET jurisdiction to attach; unproclaimed candidates remain subject to COMELEC/Supreme Court jurisdiction because HRET jurisdiction begins only after a candidate becomes a full-fledged "Member" of the House of Representatives [1, 137–139, 175, 197–198].

CHRONOLOGICAL MATERIAL FACTS

1. **Domicile of Origin in Tacloban, Leyte:** Born in Manila, petitioner Imelda Romualdez-Marcos was brought by her father, Vicente Orestes Romualdez, to his hometown of Tacloban, Leyte (First Legislative District of Leyte) in 1938 when she was 8 years old [1, 189–192, 201]. She grew up, studied (Holy Infant Academy and St. Paul's College/Divine Word University), and worked as a teacher in Tacloban City.
2. **Move to Manila and Subsequent Marriage (1952–1954):** In 1952, she moved to Manila to work with her cousin, Speaker Daniel Z. Romualdez, in the House of Representatives. In 1954, she married then-Congressman Ferdinand E. Marcos of Batac, Ilocos Norte.
3. **Subsequent Actual Residences & Official Roles:** During her marriage, she maintained various actual residences depending on her husband's public office—in Batac (Ilocos Norte), San Juan (Rizal/Metro Manila), and Malacañang Palace (San Miguel, Manila). She served as a member of the Batasang Pambansa representing Manila, Minister of Human Settlements, and Governor of Metro Manila.
4. **Exile and Return to the Philippines (1986–1991):** Following the February 1986 events, she and her family lived in Honolulu, Hawaii. She returned to Manila in November 1991. In 1992, she ran for President of the Philippines, listing her residence and voter registration in San Juan, Metro Manila.

5. **Re-Establishment of Presence in Leyte (1992–1995):** Following the 1992 elections, she sought PCGG permission to rehabilitate her family's ancestral home in Tacloban and farm in Olot, Tolosa, Leyte. She obtained a residence certificate in Tacloban City in 1992 while staying at her brother's house [195, 201–203]. On August 24, 1994, she formally requested the cancellation of her voter registration in San Juan, Metro Manila, to transfer her registration to Brgy. Olot, Tolosa, Leyte. On January 28, 1995, she registered as a voter in Precinct 18-A, Olot, Tolosa, Leyte, indicating "6 months" residence in Tolosa.
 6. **Filing of Original Certificate of Candidacy (March 8, 1995):** Petitioner filed her Certificate of Candidacy (CoC) for Representative of the First District of Leyte. In Item No. 8 ("*Residence in the constituency where I seek to be elected immediately preceding the election*"), she entered: " **Years and Seven Months**".
 7. **Disqualification Petition Filed by Montejo (March 23, 1995):** Private respondent Cirilo Roy Montejo (incumbent Representative of the First District of Leyte and competing candidate) filed a "Petition for Cancellation and Disqualification" (SPA 95-009) before COMELEC, asserting that petitioner failed the 1-year constitutional residency requirement under Article VI, Section 6 based on her CoC entry ("7 months") and voter registration record.
 8. **Attempted Amendment of CoC (March 29, 1995):** Petitioner filed an Amended/Corrected CoC changing Item No. 8 from "seven months" to "**since childhood**", executing an affidavit explaining that she made an honest mistake by writing down her actual physical stay in Tolosa (7 months) instead of her domicile of origin in the First District of Leyte ("since childhood"). The Provincial Election Supervisor of Leyte refused to accept the amendment, stating the deadline for filing CoCs (March 20, 1995) had passed.
-

● PROCEDURAL HISTORY

1. **COMELEC Second Division Resolution (April 24, 1995):** By a 2-1 vote (Gorospe and Flores, *JJ.*, in the majority; Salazar-Fernando, *J.*, dissenting), the Second Division granted Montejo's petition, struck down her Amended CoC, cancelled her original CoC, and declared her disqualified for failing to satisfy the 1-year residency requirement. It ruled that: (a) amending the CoC post-deadline was an impermissible substantial change; (b) "residence" equals "domicile"; and (c) petitioner abandoned Tacloban City when she married and resided in Manila/San Juan/Ilocos, gaining a new domicile elsewhere [165–171].
 2. **COMELEC En Banc Resolution (May 7, 1995):** In a terse resolution rendered a day before the election, the COMELEC En Banc denied petitioner's Motion for Reconsideration.
 3. **COMELEC Proclamation Resolutions (May 11, 1995):** COMELEC En Banc initially issued a resolution allowing petitioner's proclamation if she won, but on the exact same day issued a second resolution reversing itself and ordering the **suspension of her proclamation**.
 4. **May 8, 1995 Elections and Voting Outcome:** The elections proceeded with petitioner on the ballot. Petitioner won an **overwhelming victory**, garnering **70,471 votes** against respondent Montejo's **36,833 votes** (a margin of nearly 2 to 1).
 5. **Supreme Court Special Civil Action:** Petitioner filed a Petition for Certiorari and Supplemental Petition under Rule 65 assailing the COMELEC resolutions [173–174]. The Supreme Court En Banc set aside the COMELEC resolutions and ordered her proclamation.
-

● PARTIES' MATERIAL ARGUMENTS

● Petitioner (Imelda Romualdez-Marcos):

1. **Fact of Domicile vs. CoC Entry:** Her domicile of origin is Tacloban City (located within the First Legislative District of Leyte), which she acquired as a minor and never abandoned [8, 165, 189–192, 201]. The entry "7 months" in Item 8 of her CoC was an honest mistake representing her actual physical stay in Tolosa, Leyte, rather than her legal residence/domicile in the district ("since childhood") [165, 182–183, 200].

2. **No Loss of Domicile of Origin:** Under settled election law, maintaining actual residences in Manila, San Juan, or Malacañang for study, work, marriage, or public office does not constitute an abandonment of domicile of origin absent *animus non revertendi* [1, 177, 185–187, 190–193].
 3. **Lack of COMELEC Jurisdiction:** COMELEC lost jurisdiction because it failed to decide the case within the timeframe under Section 78 of the OEC. Furthermore, post-election jurisdiction belongs exclusively to the House of Representatives Electoral Tribunal (HRET) under Article VI, Section 17.
- **Private Respondent (Cirilo Roy Montejo) & COMELEC:**
 1. **Disqualification based on CoC Admission:** Petitioner solemnly declared under oath in her original CoC and voter registration record that she resided in the constituency for only 7 months immediately preceding the election. Post-deadline amendments cannot be used to cure substantial disqualifications.
 2. **Abandonment of Domicile:** By living in Manila, marrying Ferdinand Marcos, registering to vote in Batac, San Juan, and San Miguel, and running for President in 1992 as a resident of San Juan, petitioner abandoned Tacloban and acquired a new domicile of choice/law elsewhere [168–171].
 3. **Matrimonial Domicile:** Under Article 110 of the Civil Code, a wife is bound to follow her husband's residence, thereby losing her former domicile of origin upon marriage.
-

● ISSUES

1. **Substantive Issue:** Whether petitioner Imelda Romualdez-Marcos satisfied the constitutional qualification under Article VI, Section 6 of the 1987 Constitution requiring a candidate for the House of Representatives to be a resident of the legislative district in which she seeks election for a period of not less than one year immediately preceding the election.
 2. **Procedural/Jurisdictional Issue 1:** Whether COMELEC lost jurisdiction to disqualify petitioner by failing to render a decision within the period prescribed under Section 78 of the Omnibus Election Code.
 3. **Procedural/Jurisdictional Issue 2:** Whether the House of Representatives Electoral Tribunal (HRET) assumed exclusive jurisdiction over petitioner's qualifications following the May 8, 1995 elections pursuant to Article VI, Section 17 of the Constitution.
-

🌸 HOLDINGS AND CONTROLLING REASONING

1. On the Substantive Issue (Residency Qualification): YES. Petitioner satisfied the 1-year constitutional residency requirement; COMELEC committed grave abuse of discretion.

- **A. Residence is Synonymous with Domicile in Election Law:**
 - The Court reiterated that for political and election law purposes, "residence" is synonymous with **domicile**—the place where a person actually or constructively has his/her permanent home, to which, whenever absent, he/she intends to return (*animus revertendi*) (*Nuval v. Guray*; *Co v. HRET*) [1, 8, 176–180].
 - The constitutional rationale of Article VI, Section 6 is to prevent "strangers or newcomers unfamiliar with the conditions and needs of a community" from taking advantage of local conditions for electoral gain (*carpetbagger rule*).
- **B. Domicile of Origin in Tacloban City Was Retained:**
 - *Tacloban City as Domicile of Origin:* By operation of law, a minor follows the domicile of her parents. Tacloban City (a component of the First District of Leyte) became petitioner's domicile of origin in 1938 when her father brought the family to live there permanently [1, 189–192, 201].

- *High Standard to Prove Abandonment*: Domicile of origin is not easily lost. To establish a new *domicile of choice*, there must concur: (1) actual physical removal; (2) bona fide intention to abandon the former domicile (*animus non revertendi*); and (3) acts corresponding with the purpose [1, 170–171, 192–193]. In the absence of clear and positive proof, the domicile of origin is presumed to continue.
- *Absence for Work, Study, or Public Service*: Maintaining actual residences in Manila, San Juan, or Malacañang for study, work, or holding national public office (Batasang Pambansa member, Minister, Governor) does **not** result in the loss or abandonment of domicile of origin [1, 177, 185–188].
- **C. Impact of Marriage under Civil Law vs. Political Law:**
 - While Article 110 of the Civil Code obliges a wife to follow her husband's residence, what a wife gains upon marriage is **actual residence**, NOT the loss of her **domicile of origin** for political law purposes [1, 194–195]. Political law and civil law operate on distinct concepts of residence.
 - Even assuming *arguendo* that her domicile shifted during marriage, upon her husband's death her legal power to choose her domicile was fully revived. Her subsequent actions—writing to PCGG to rehabilitate her family's ancestral home in Tacloban, acquiring residence certificates in Tacloban, and maintaining close, well-publicized sentimental and political ties with Leyte—proved an explicit choice of her domicile of origin in the First District of Leyte [190–191, 195].
- **D. Controlling Nature of "Fact of Residence" over CoC Statements:**
 - The Court held: **"It is the fact of residence, not a statement in a certificate of candidacy which ought to be decisive in determining whether or not an individual has satisfied the constitution's residency qualification requirement."**
 - The entry "7 months" in Item 8 of her original CoC was an **honest mistake** stemming from confusion between her actual physical stay in Tolosa (7 months) and her legal residence/domicile in the First Legislative District ("since childhood") [8, 165, 182–183]. Because Tacloban City and Tolosa are both located within the First District of Leyte, her domicile in Tacloban satisfied the constitutional 1-year requirement for the entire district.

2. On Procedural Issue 1 (COMELEC Statutory Period): NO. COMELEC did NOT lose jurisdiction [196–197].

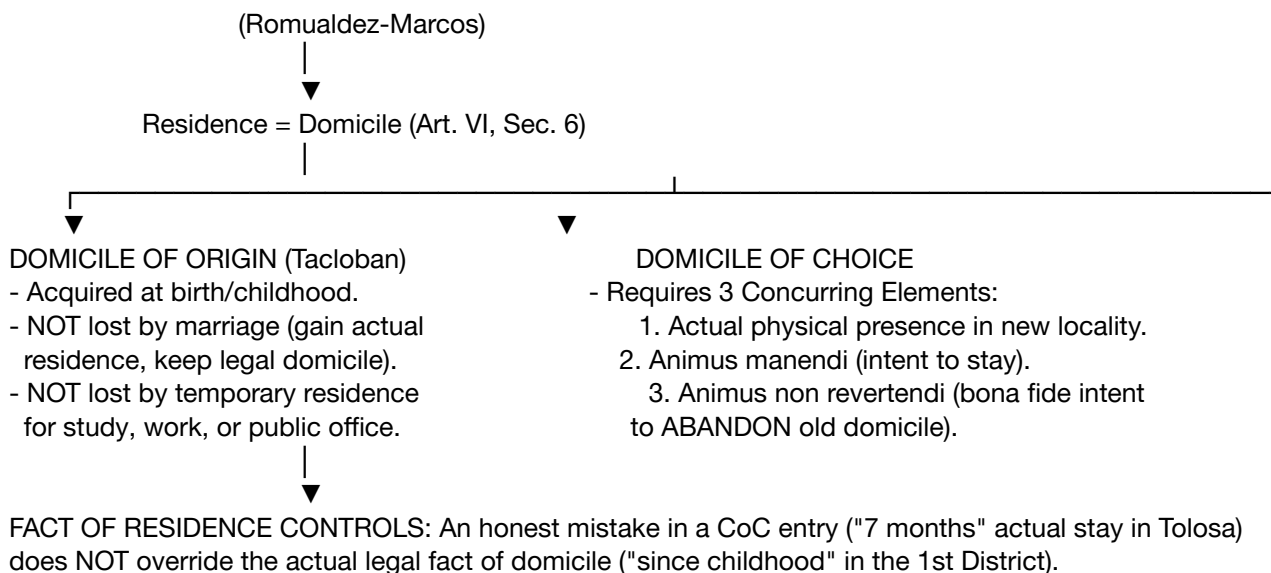
- Quasi-judicial bodies do not lose jurisdiction merely because they fail to render a decision within a target statutory period. Under Sections 6 and 7 of R.A. No. 6646 in relation to Section 78 of B.P. 881, COMELEC retains jurisdiction to hear and decide pending CoC cancellation and disqualification cases even after the elections.

3. On Procedural Issue 2 (HRET vs. COMELEC Jurisdiction): NO. HRET jurisdiction had NOT attached [1, 137–139, 175, 197–198].

- Reaffirming *Aquino v. COMELEC*, the Court held that HRET's exclusive jurisdiction under Article VI, Section 17 as sole judge of all contests relating to the election, returns, and qualifications of Members of Congress begins **ONLY AFTER a candidate has become a "Member" of the House of Representatives** [1, 137–139, 197–198].
- To become a "Member" of the House, three requisites must concur: (1) a valid proclamation; (2) a valid oath of office; and (3) assumption of office.
- Because COMELEC suspended petitioner's proclamation, she was never proclaimed and never became a Member of the House; thus, HRET jurisdiction had not attached, and COMELEC/Supreme Court retained jurisdiction [139, 197–198].

DOCTRINE, TESTS, AND LEGAL STANDARDS

ELECTION LAW RESIDENCY / DOMICILE TEST



1. **Rule on Election Residence / Domicile (Romualdez-Marcos / Co Rule):** Residence for congressional eligibility under Article VI, Section 6 is synonymous with *domicile*. A person retains her domicile of origin until clear and positive proof establishes complete abandonment in favor of a new domicile of choice [1, 8, 168, 176–180, 192–193].
2. **Fact of Residence vs. CoC Statement Principle:** The actual **fact of residence/domicile** controls over technical entries or honest mistakes written on a Certificate of Candidacy form [11, 181–183].
3. **Requisites to Establish a New Domicile of Choice:**
 - o Actual physical presence in the new locality;
 - o *Animus manendi* (intent to remain indefinitely); and
 - o *Animus non revertendi* (bona fide intent to abandon the former domicile) [1, 170–171, 192–193].
4. **Requisites for HRET Exclusive Jurisdiction (Art. VI, Sec. 17):** HRET jurisdiction attaches ONLY upon the concurrence of three requisites: (1) valid proclamation; (2) valid oath of office; and (3) actual assumption of office [139, 148, 197–198].

♥ DISPOSITION

- **Ruling:** Petition for Certiorari is **GRANTED**.
- **Annulment:** COMELEC Resolutions dated April 24, 1995, May 7, 1995, May 11, 1995, and May 25, 1995 are **SET ASIDE**.
- **Mandamus Directive:** Respondent COMELEC is **DIRECTED TO ORDER** the Provincial Board of Canvassers of Leyte to **PROCLAIM** petitioner Imelda Romualdez-Marcos as the duly elected Representative of the First Legislative District of Leyte.

● SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLE LINES

1. Dissenting Opinion of Justice Hugo E. Gutierrez, Jr. / Justice Teodoro R. Padilla [205–212]

- **Strict 1-Year Temporal Mandate:** Maintained that regardless of whether residence equals domicile, Article VI, Section 6 requires 1 year of actual presence/residence in the district immediately preceding the election. Petitioner solemnly declared 7 months residence in her original CoC and voter affidavit, which bound her.

2. Dissenting Opinion of Justice Florenz D. Regalado [213–225]

- **Matrimonial Domicile:** Argued that upon marriage to Ferdinand Marcos in 1954, petitioner acquired a *domicilium necessarium* in Batac, Ilocos Norte by operation of law under Civil Code Article 110, losing her domicile of origin in Tacloban. Abandoning Batac required affirmative acts establishing a new domicile of choice, which her 7-month stay in Tolosa failed to achieve [219–224].

3. Dissenting Opinion of Justice Hilario G. Davide, Jr. [226–232]

- **Deference to COMELEC Findings of Fact:** Argued that COMELEC Second Division and En Banc committed no grave abuse of discretion in finding as a fact that petitioner lacked 1 year residence [225–226]. Her sworn statements listing San Juan as residence in 1992 and Tolosa for 6–7 months in 1995 constituted substantial evidence supporting disqualification [228–230].

Source-Verified Quotable Lines

-  **On Fact of Residence vs. CoC Statements (Kapunan, J.):**

"It is the fact of residence, not a statement in a certificate of candidacy which ought to be decisive in determining whether or not an individual has satisfied the constitution's residency qualification requirement. The said statement becomes material only when there is or appears to be a deliberate attempt to mislead, misinform, or hide a fact which would otherwise render a candidate ineligible."

-  **On Preserving Domicile of Origin (Kapunan, J.):**

"An individual does not lose his domicile even if he has lived and maintained residences in different places... The strong feeling of attachment to the place of one's birth must be overcome by positive proof of abandonment for another."

RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Romualdez-Marcos v. COMELEC* (1995), Imelda Romualdez-Marcos ran for Representative of the First District of Leyte in May 1995. In Item 8 of her original CoC, she wrote '7 months' residence in the constituency, but later filed an amended CoC changing it to 'since childhood' after opponent Cirilo Montejo petitioned to disqualify her. COMELEC Second Division and En Banc disqualified her, ruling that 'residence' means 'domicile' and that she abandoned Tacloban when she married Ferdinand Marcos and resided in Manila, San Juan, and Batac. On election day, Imelda won overwhelmingly (70,471 votes vs. Montejo's 36,833 votes), but COMELEC suspended her proclamation. She filed a Rule 65 petition before the Supreme Court.

The Supreme Court En Banc, through Justice Kapunan, GRANTED the petition and ORDERED her proclamation. The Court held: (1) Residence under Art. VI, Sec. 6 equals domicile; (2) Imelda's domicile of origin was Tacloban City (1st District of Leyte), acquired as a minor in 1938 and never abandoned; (3) Marriage under Civil Code Art. 110 confers actual residence, NOT loss of political domicile of origin, absent positive proof of *animus non revertendi*; (4) The fact of residence controls over honest mistakes in a CoC entry ('7 months' actual stay in Tolosa vs. domicile 'since childhood' in the 1st District); and (5) COMELEC retained jurisdiction because HRET jurisdiction attaches ONLY after a candidate is proclaimed, takes the oath, and assumes office as a Member of Congress."* [1, 8, 11, 139, 161, 165, 173, 176–183, 189–198]

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: Did Imelda Marcos lose her domicile of origin in Tacloban, Leyte when she married Ferdinand Marcos in 1954 and lived in Batac, Ilocos Norte and San Juan?**
 - **A: No.** While Article 110 of the Civil Code obliged a wife to follow her husband's residence, what she gained upon marriage was **actual residence**, not the loss of her **domicile of origin** for election law purposes [1, 194–195]. To lose a domicile of origin, there must be clear and positive proof of *animus non revertendi* (intent to abandon the origin permanently), which was absent here [1, 170–171, 192–193].
2. **Q: Why didn't Imelda's statement of "7 months" residence in her original Certificate of Candidacy conclusively disqualify her?**
 - **A:** The Supreme Court held that **the actual fact of residence/domicile controls over a statement in a Certificate of Candidacy** [11, 181–183]. Her entry of "7 months" was an honest mistake representing her actual physical stay in the municipality of Tolosa, rather than her legal domicile in the First Legislative District ("since childhood," via Tacloban City) [8, 165, 182–183].
3. **Q: Why didn't jurisdiction over Imelda's qualifications shift to the HRET after she won the election by 70,471 votes?**
 - **A:** Under Article VI, Section 17, HRET acquires exclusive jurisdiction *only* when a candidate becomes a **Member** of the House of Representatives [1, 137–139, 197–198]. Becoming a Member requires the concurrence of three requisites: (1) valid proclamation; (2) valid oath; and (3) assumption of office. Because COMELEC suspended her proclamation, she was never proclaimed and never became a Member, leaving jurisdiction with COMELEC and the Supreme Court [139, 197–198].

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose Imelda Marcos executed a formal public deed in 1992 explicitly renouncing her Tacloban citizenship and domicile, sold all her Leyte properties, purchased a permanent family estate in San Juan with a declared intent never to return to Leyte, and registered as a voter in San Juan. In 1995, 7 months before the election, she decides to move back to Leyte to run for Congress. Is she qualified?
- **Answer: No, she is DISQUALIFIED.** Under *Romualdez-Marcos v. COMELEC*, establishing a new domicile of choice (San Juan) with explicit *animus non revertendi* successfully extinguishes the domicile of origin [1, 170–171, 192–193]. If her domicile of origin was abandoned, moving back to Leyte 7 months before the election constitutes acquiring a *new* domicile of choice, which requires a minimum of 1 year actual residence in the district prior to election day under Article VI, Section 6. Having resided there for only 7 months, she fails the 1-year constitutional requirement.

One-Sentence Doctrine Anchor

Residence for congressional qualification means domicile, which is retained despite actual residence elsewhere for marriage or public service, and the actual fact of domicile in the

district controls over an honest mistake in a Certificate of Candidacy. [1, 8, 11, 176–183, 192–195]

Marcos v. COMELEC (1995)

Topic Subtopic	Branches of the Gov't Congress	GR No. & Ponente	GR No. 119976 Kapunan, J.
Petitioner/s	IMELDA ROMUALDEZ-MARCOS	Respondent/s	COMMISSION ON ELECTIONS and CIRILO ROY MONTEJO
Doctrine	Main: HRET only gains jurisdiction after a candidate has become a member of the HOR. Others: (1) Minor follows the domicile of parents. (2) Domicile is not easily lost. There are requisites in electing a new one. (3) A wife has not lost her domicile of origin by operation of law through marriage.		

FACTS

- Mar 8, 1995 - Imelda Marcos filed her COC for the position of **Representative of the First District of Leyte**. Residence in where she sought to be elected: 7 months
- Mar 23, 1995 - Montejo (incumbent rep and candidate for the same position) filed a Petition for Cancellation and Disqualification with the Comelec alleging that petitioner did not meet the 1-year residency requirement as stated in the Consti.
- Mar 29, 1995 - Marcos filed an Amended COC, changing residency from seven months to since childhood, stating that it was an honest misrepresentation and that she has always maintained Tacloban City as her domicile – not accepted in Leyte since it was filed out of time, due was 3/20/1995 – filed in COMELEC Head Office on 3/31
- Resolution of Comelec's 2nd Division (May not be relevant pero included in case Sir asks)
 - **Granted petition for disqualification, struck off the amended COC, cancelled original COC**
 - Honest Mistake: Marcos says that she thought the residency pertained to her actual physical presence in Tolosa, but there was nothing in the question that insinuates this → devoid of merit
 - She asserts that she has always been a resident of Tacloban City, a component of the First District, before coming to the Municipality of Tolosa – but the respondent also wrote the EO of Tacloban not to allow her to run since she is a resident of Tolosa and not Tacloban → Marcos never disputed this claim and instead implicitly acceded to it by registering in Tolosa
 - Alialy v. Comelec on the filing the amendment after deadline: Cannot be used since this pertains to inconsequential deviations that will not affect the election, as opposed to the residency requirement which determines her qualification to run in the first place
 - Since childhood: Her Voter's Registration Record, letter of transfer from Metro Manila to Leyte → proof that she has only resided in Tolosa for 7 months
 - Residence is considered synonymous with domicile, which is where one intends to return to. Petitioner's conduct in residing, registering as voter, running for public positions in Metro Manila is contrary to her claims of maintaining Tolosa, Leyte as her residence "since childhood".
 - clear that respondent has not complied with the one year residency requirement of the Constitution.
- Petitioner filed Motion for Reconsideration with Comelec → Denied → Comelec issued Resolution allowing petitioner's proclamation should she obtain highest votes → Comelec reversed this resolution on the same day directing that the proclamation of petitioner be suspended in the event that she obtains the highest number of votes → Petitioner said she got the highest votes → Petitioner went to SC for relief

ISSUES

ISSUE 1: Whether or not petitioner was a resident, for election purposes, of the First District of Leyte for a period of one year at the time of the May 8, 1995 elections? YES

ANSWER

- An individual does not lose his domicile even if he has lived and maintained residences in different places.
- COMELEC confused "domicile" and "residence"

Article 50 of the Civil Code decrees that "[f]or the exercise of civil rights and the fulfillment of civil obligations, the domicile of natural persons is their place of habitual residence." In Ong vs. Republic - this court took the concept of domicile to mean an individual's "permanent home", "a place to which, whenever absent for business or for

pleasure, one intends to return, and depends on facts and circumstances in the sense that they disclose intent."

- Court ruled that the **petitioner merely committed an honest mistake** in jotting down the word "seven" in the space provided for the residency qualification requirement.
 - For instance, when herein petitioner announced that she would be registering in Tacloban City to make her eligible to run in the First District, private respondent Montejó opposed the same, claiming that petitioner was a resident of Tolosa, not Tacloban City. Petitioner then registered in her place of **actual** residence in the First District, which was Tolosa, Leyte, a fact which she subsequently noted down in her COC
 - Having been forced by private respondent to register in her place of actual residence in Leyte instead of petitioner's claimed domicile, it appears that petitioner had jotted down her period of stay in her actual residence in a space which required her period of stay in her legal residence or domicile.
 - The juxtaposition of entries in Item 7 and Item 8 — the first requiring actual residence and the second requiring domicile — coupled with the circumstances surrounding petitioner's registration as a voter in Tolosa obviously led to her writing down an unintended entry for which she could be disqualified. This honest mistake should not, however, be allowed to negate the fact of residence in the First District if such fact were established by means more convincing than a mere entry on a piece of paper.

On Petitioner's Domicile

- Court ruled that the absence from legal residence or domicile to pursue a profession, to study or to do other things of a temporary or semi-permanent nature does not constitute loss of residence.
- *Larena v Teves* - [T]his court is of the opinion and so holds that a person who has his own house wherein he lives with his family in a municipality without having ever had the intention of abandoning it, and without having lived either alone or with his family in another municipality, has his residence in the former municipality, *notwithstanding his having registered as an elector in the other municipality in question and having been a candidate for various insular and provincial positions, stating every time that he is a resident of the latter municipality*
- *Faypon v Quirino* - A citizen may leave the place of his birth to look for "greener pastures," as the saying goes, to improve his lot, and that, of course includes study in other places, practice of his avocation, or engaging in business. When an election is to be held, the citizen who left his birthplace to improve his lot may desire to return to his native town to cast his ballot but for professional or business reasons, or for any other reason, he may not absent himself from his professional or business activities; **so there he registers himself as voter as he has the qualifications to be one and is not willing to give up or lose the opportunity to choose the officials who are to run the government especially in national elections. Despite such registration, the animus revertendi to his home, to his domicile or residence of origin has not forsaken him. This may be the explanation why the registration of a voter in a place other than his residence of origin has not been deemed sufficient to constitute abandonment or loss of such residence.** It finds justification in the natural desire and longing of every person to return to his place of birth. This strong feeling of attachment to the place of one's birth must be overcome by positive proof of abandonment for another.
- Petitioner's domicile is in Tacloban, Leyte. Comelec erred in considering the petitioner's various places of actual residence and not her domicile. In the petitioner's narration, the Court finds that the petitioner held various residences for different purposes. There was no unequivocal intention of abandoning her domicile of origin in Tacloban, Leyte. She also kept close ties in Tacloban through establishing residences and a political power base there, as well as celebrating life events. **Thus, the fact is that the petitioner's domicile is in Tacloban, Leyte.**
- Respondent has failed to present persuasive evidence to prove that petitioner abandoned her domicile of origin. Despite being born in Manila, her domicile of origin by operation of law was Tacloban when her father brought his family back to Leyte.
- Domicile of origin is not easily lost. To change, one must demonstrate:
 - An actual removal or an actual change of domicile;
 - A bona fide intention of abandoning the former place of residence and establishing a new one; and
 - Acts which correspond with the purpose.
- In the absence of clear and positive proof based on these criteria, the residence of origin should be deemed to continue.

- Petitioner did not lose her domicile of origin through marriage as the Civil Code refers to residence as actual presence and not domicile.
 - A survey of jurisprudence relating to Article 110 or to the concepts of domicile or residence as they affect the female spouse upon marriage yields nothing which would suggest that the female spouse automatically loses her domicile of origin in favor of the husband's choice of residence upon marriage
 - Tolentino - Residence in the civil law is a material fact, referring to the physical presence of a person in a place. A person can have two or more residences, such as a country residence and a city residence. Residence is acquired by living in a place; on the other hand, domicile can exist without actually living in the place. The important thing for domicile is that, once residence has been established in one place, there be an intention to stay there permanently, even if residence is also established in some other place
 - when petitioner married the former President in 1954, she kept her domicile of origin and merely gained a new home, not a domicilium necessarium.
- When Petitioner went back to the country, she expressly chose her domicile or origin as her domicile by asking PCGG's permission to rehabilitate their ancestral house in Tacloban, obtaining her residence cert.
 - She could not have gone straight to her home in San Juan, as it was in a state of disrepair, having been previously looted by vandals. Her "homes" and "residences" following her arrival in various parts of Metro Manila merely qualified as temporary or "actual residences," not domicile.
 - She can also regain her original domicile upon the death of her husband absent a positive act of selecting a new one
- **Court rules that the petitioner's legal residence or domicile is in the First District of Leyte.**

ISSUE 2: Whether or not the COMELEC still has the jurisdiction over the case over HRET? YES

ANSWER

- With the enactment of Sections 6 and 7 of R.A. 6646 in relation to Section 78 of B.P. 881, it is evident that the respondent Commission does not lose jurisdiction to hear and decide a pending disqualification case under Section 78 of B.P. 881 even after the elections.
- Petitioner not being a member of the House of Representatives, it is obvious that the HRET at this point has no jurisdiction over the question.

LEGAL BASIS

- Rendition of judgment within a specified time is generally construed to be merely directory.
- Republic Act 6646
 - SEC. 6. Effect of Disqualification Case. —Any candidate who has been declared by final judgment to be disqualified shall not be voted for, and the votes cast for him shall not be counted. If for any reason a candidate is not declared by final judgment before an election to be disqualified and he is voted for and receives the winning number of votes in such election, the Court or Commission shall continue with the trial and hearing of the action, inquiry, or protest and, upon motion of the complainant or any intervenor, may during the pendency thereof order the suspension of the proclamation of such candidate whenever the evidence of his guilt is strong.
 - SEC. 7. Petition to Deny Due Course To or Cancel a Certificate of Candidacy. —The procedure hereinabove provided shall apply to petitions to deny due course to or cancel a certificate of candidacy as provided in Section 78 of Batas Pambansa Blg. 881.
 - BP 881, SECTION 78. Petition to deny due course to or cancel a certificate of candidacy. – A verified petition seeking to deny due course or to cancel a certificate of candidacy may be filed by the person exclusively on the ground that any material representation contained therein as required under Section 74 hereof is false. The petition may be filed at any time not later than twenty-five days from the time of the filing of the certificate of candidacy and shall be decided, after due notice and hearing, not later than fifteen days before the election.

DISPOSITION

WHEREFORE, having determined that petitioner possesses the necessary residence qualifications to run for a seat in the House of Representatives in the First District of Leyte, the COMELEC's questioned Resolutions dated April 24, May 7, May 11, and May 25, 1995 are hereby SET ASIDE. Respondent COMELEC is hereby directed to order the Provincial Board of Canvassers to proclaim petitioner as the duly elected Representative of the First District of Leyte.

DISSENT

Padilla, J.

- Regardless of domicile or residence, there is an unambiguous limitation that for a period of not less than one year immediately preceding the day of election, the candidate must be a resident in the district where they desire to be elected
 - This is because the candidate must be familiar with the environment and problems of the district he wishes to represent → one year residence is the minimum requirement to achieve this familiarity
 - Marcos clearly and under oath, answered “seven months” to the question of “residence in the constituency wherein I seek to be elected immediately preceding the election”
- Re: W/N COMELEC can order the Board of Canvassers to determine and proclaim the winner out of the remaining qualified candidates for representative
 - Labo v. COMELEC states that the disqualification of the candidate with the highest number of votes does not entitle the second-placer to be declared the winner of the elective office
 - **Padilla disagrees** and claims that **RA 6646** does not make the second-placer the winner because the winning candidate is disqualified.
 - The second-placer is the winner because he now has the highest number of votes, considering that the votes cast for the disqualified candidate are no longer being counted
 - Court should reconsider and abandon the Labo v. COMELEC doctrine.

Regalado, J.

- W/N Marcos complied with the one year residency requirement in the Constitution
- There are three kinds of domicile:
 - **Domicile by birth**: infant follows the domicile of the parents at the time of birth
 - **Domicile by choice**: voluntarily acquired by the party
 - **Domicile by operation of law**: consequential, like that of a wife arising from marriage
 - When Imelda married Marcos Sr., by operation of law, she acquired the domicile of her husband in Batac, Ilocos Norte, and lost her domicile of origin in Tacloban
 - After she returned to the PH, there was no evidence that showed she attempted to acquire any other domicile of choice → she never abandoned the domicile she acquired from her husband
 - Argument of the majority that Imelda did not intend to abandon her domicile of origin suggests that she retained Tacloban City as a reserved domicile, a term that does not exist
 - Argument that the termination of her marriage terminates the domicile she acquired by operation of law does not make sense.
 - There is no legal authority that supports this
 - Cannot conclude that abandoning the domicile of choice automatically restores domicile of origin because she could have obtained another domicile either by choice or by operation of law
 - Without any evidence of the contrary, the Court must conclude that a wife's domicile or legal residence follows that of her husband and continues after his death
 - On Art. 68 and 69 of the Family Code giving spouses the shared power to fix the family domicile - Exercise of the joint power is no longer called for considering that her children have already gotten married and established their own domiciles

Davide, J.

- W/N COMELEC acted with grave abuse of discretion in disqualifying petitioner
- There was a total absence of abuse of discretion
 - Petitioner provided COMELEC with proof that she had abandoned her domicile of origin, Tacloban City
 - Even if she did decide to live in her domicile of origin again, her stay was only for 7 months

	before the day of the election, thus leading to her disqualification • Petitioner lost her domicile of origin by operation of law once she married Ferdinand Marcos ◦ Art. 110 of the Civil Code supports the fact that her new domicile was that of her husband since the provision states the husband shall fix the residence of the family • Theory that a woman's domicile of origin is restored upon the death of her husband is unsupported by law and jurisprudence ◦ The settled doctrine is that after the husband's death, the wife has the power to elect her own domicile, but retains the last domicile of her husband until she makes an actual change ◦ Imelda's domicile was still her husband's. It was only until August 24, 1994 that she exercised her right as a widow to acquire her own domicile in Tolosa → as seen by her requesting the cancellation of her registration in San Juan so that she can be re-registered in Tolosa • Petitioner was shown to be uncertain of her own domicile of origin ◦ She declared that her domicile or residence is Tacloban City, yet she asked to be re-registered and indicated in her CoC that her residence is Tolosa • Majority's reliance on <i>Faypon v. Quirino</i> and Section 117 of the Omnibus Election Code is misplaced ◦ Although absence from original residence or domicile of origin does not constitute a loss of domicile, Art. 110 of the Civil Code implies that these do not include the marriage of a woman ◦ If the intention of the legislature was to include the marriage of a woman as a circumstance that does not lead to the abandonment of domicile, then it should have been expressly provided. • Court should not accept the claim of Imelda that she never intended to abandon her domicile of origin since Art. 110 of the Civil Code and her actions after her marriage was terminated says otherwise • Court should not accept Imelda's claim that she merely made a mistake in writing down "seven months" because the claim is self-serving. ◦ Davide argues that what she wrote down was the truth • Imelda has the burden of proving that she exercised her right to acquire her own domicile after her husband passed away, which she failed to do.
Vitug, J.	• Issue is basically a question of fact or inextricably linked to such determination ◦ Therefore, the findings and judgement of COMELEC are not reviewable by the Court, unless there is a grave abuse of discretion ◦ COMELEC has not committed grave abuse of discretion considering that it is tasked with the full responsibility of ascertaining all the facts and conditions required by law before a proclamation is done. ◦ Court should refrain from any undue encroachment on the exercise of authority of the Electoral Tribunals that are within their exclusive domain • Vitug reaffirms that just because the candidate with the highest number of votes is later disqualified, does not entitle the candidate with the second highest number of votes to be declared the winner ◦ In the absence of a statute that asserts the contrary, if the votes were cast in the sincere belief that the first place candidate was qualified, they should not be treated as void or meaningless

Datu Pax Ali S. Mangudadatu v. Commission on Elections

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Datu Pax Ali S. Mangudadatu v. The Commission on Elections, Sharifa Akeel Mangudadatu, Azel V. Mangudadatu, and Bai Ali A. Untong*
- **Citation:** G.R. Nos. 260219 & 260231, April 22, 2025 (En Banc)
- **Ponente:** Gaerlan, J.
- **Bench Composition:** Gesmundo, C.J., Caguioa, Lazaro-Javier, Zalameda, M.V. Lopez, Rosario, J.Y. Lopez, Marquez, and Singh, JJ., concurring; Leonen, J., concurring and dissenting; Hernando, J., dissenting; Kho, Jr., J., concurring and dissenting; Inting and Dimaampao, JJ., took no part.
- **Syllabus Relevance & Topic:**
 1. **Qualifications of Local Elective Officials — Residency Requirement (Section 39, Local Government Code):** Mandate that a candidate for an elective local position must be a resident in the locality where he/she intends to run for at least one (1) year immediately preceding the day of the election.
 2. **Continuing Residency Mandate for Incumbent Local Officials (Local Government Code):** The legal rule that an incumbent elected local official is required by law to remain a resident of the municipality where he/she was elected throughout his/her entire tenure.
 3. **Incumbency as a Legal Bar to Acquiring a Domicile of Choice in an Unrelated Locality:** An incumbent public official who continuously exercises the official functions of his/her office in one political subdivision cannot legally claim *animus non revertendi* (intent not to return) regarding that locality and *animus manendi* (intent to remain) in a geographically separate, non-component province.
 4. **False Material Representation in Certificate of Candidacy (Section 78, Omnibus Election Code):** Cancellation of a Certificate of Candidacy (CoC) for deliberately asserting under oath compliance with the 1-year residency requirement despite knowing that incumbent tenure in a different province legally precludes such residency.
 5. **Ineffectiveness of Belated Resignation to Cure CoC Misrepresentation:** Resigning from an incumbent office *after* filing a CoC and after cancellation petitions have been instituted cannot retroactively cure a false material representation existing at the moment of filing.
 6. **Local Executive Succession upon CoC Cancellation (Section 44, Local Government Code):** Application of the statutory rules on local executive succession (elevation of the Vice-Governor) when a proclaimed winning candidate's CoC is cancelled due to Section 78 false material representation.

CHRONOLOGICAL MATERIAL FACTS

1. **Incumbent Mayoralty Status:** In 2018, petitioner Datu Pax Ali S. Mangudadatu (Pax Ali) ran and was elected as Municipal Mayor of the Municipality of Datu Abdullah Sangki (DAS), Province of Maguindanao. He took his oath, assumed office, and continuously served as Mayor of DAS, Maguindanao.
2. **Filing of CoC for Governor of Another Province (October 7, 2021):** While actively serving as incumbent Mayor of DAS, Maguindanao, Pax Ali filed his CoC for Provincial Governor of **Sultan Kudarat** for the May 9, 2022 elections. In Item 5 of his CoC, he declared his residence as Purok Garden, Tamnag, Lutayan, Sultan Kudarat. In Item 7, he declared under oath that his period of residence in the Province of Sultan Kudarat up to the day before May 9, 2022 was "**1 year and 8 months**".

3. **Continuous Performance of Mayoralty Duties in Maguindanao:** Official records and social media postings established that Pax Ali continuously performed his duties as Mayor of DAS, Maguindanao well after filing his CoC for Governor of Sultan Kudarat, including:
 - Attending the Municipal Peace and Order Council Meeting in DAS on July 12, 2021;
 - Attending a ceremonial loan signing on behalf of DAS with Landbank on August 24, 2021; and
 - Delivering speeches in official functions in Barangay Talisawa, DAS, Maguindanao.
 4. **Filing of Cancellation Petitions before COMELEC (October 13 & 27, 2021):**
 - On October 13, 2021, competing gubernatorial candidate Sharifa Akeel Mangudadatu (Sharifa) filed a Petition to Deny Due Course or Cancel Pax Ali's CoC (SPA No. 21-078 (DC)).
 - On October 27, 2021, Azel Mangudadatu and Bai Ali A. Untong filed a separate Petition to Cancel Pax Ali's CoC (SPA No. 21-114 (DC)).
 - *Ground:* False material representation under Section 78 of the Omnibus Election Code. Private respondents asserted that Pax Ali could not legally reside in Sultan Kudarat for 1 year and 8 months because he was legally required to reside in DAS, Maguindanao as its sitting Mayor, and his active discharge of mayoralty functions in Maguindanao negated any bona fide intent to abandon his Maguindanao domicile.
 5. **Pax Ali's Answer & Belated Resignation (November 15, 2021):** Pax Ali argued that his domicile of origin was Lutayan, Sultan Kudarat. He claimed that he began moving back to Lutayan in July 2020, transferred his belongings by September 2020, slept in Lutayan daily, and merely commuted to DAS, Maguindanao to work as Mayor. He presented a voter registration transfer to Lutayan, Sultan Kudarat dated May 17, 2021. To demonstrate "total abandonment," Pax Ali **resigned as Mayor of DAS, Maguindanao on November 15, 2021**—more than a month after filing his CoC and after the cancellation petitions were already pending.
-

PROCEDURAL HISTORY

1. **COMELEC First Division Resolution (January 18, 2022):** Granted the consolidated petitions and cancelled Pax Ali's CoC for Provincial Governor of Sultan Kudarat due to false material representation under Section 78 of the OEC.
 2. **COMELEC En Banc Resolution (May 2, 2022):** Denied Pax Ali's Motion for Reconsideration and affirmed the First Division Resolution.
 3. **May 9, 2022 Elections & Subsequent Supreme Court Action:** The elections proceeded, and Pax Ali obtained the highest number of votes for Governor of Sultan Kudarat. Pax Ali filed a Petition for Certiorari and Prohibition under Rule 64 in relation to Rule 65 before the Supreme Court assailing the COMELEC resolutions.
-

PARTIES' MATERIAL ARGUMENTS

- **Petitioner (Datu Pax Ali S. Mangudadatu):**
 1. **Retention of Domicile of Origin:** His domicile of origin was Lutayan, Sultan Kudarat, where his family ancestral home is located. His residence in Maguindanao was merely temporary to serve as Mayor.
 2. **Actual Physical Presence:** He re-established physical presence in Lutayan, Sultan Kudarat in October 2020, commuting daily to Maguindanao solely for work.
 3. **Voter Registration & Resignation:** He transferred his voter registration to Lutayan on May 17, 2021, and formally resigned as Mayor of DAS on November 15, 2021 to prove complete abandonment of Maguindanao.
 4. **Applicability of *Torayno* and *Mitra*:** Public officials are not legally barred from changing domicile during their term of office (*Torayno v. COMELEC*; *Mitra v. COMELEC*).
- **Private Respondents (Sharifa Akeel Mangudadatu, Azel Mangudadatu, & Bai Ali A. Untong) & COMELEC:**

1. **Continuing Residence Requirement of the LGC:** Under the Local Government Code, an incumbent Mayor is legally mandated to remain a resident of his municipality during his entire tenure.
 2. **Incompatibility of Incumbency with Transfer of Domicile:** Continuously exercising the functions, rights, and duties of Mayor in Maguindanao legally negates *animus non revertendi* regarding Maguindanao and *animus manendi* regarding Sultan Kudarat.
 3. **Distinction from Torayno and Mitra:** In *Torayno* and *Mitra*, the new locality formed part of or was a component unit of the province/district represented. DAS, Maguindanao and Sultan Kudarat are completely separate, non-overlapping provinces.
 4. **Deliberate False Material Representation:** Pax Ali falsely declared 1 year and 8 months residence in Sultan Kudarat despite knowing he was the sitting Mayor of DAS, Maguindanao. His post-filing resignation on November 15, 2021 could not retroactively cure the misrepresentation.
-

ISSUES

1. **Substantive Issue 1 (Residency & Incumbency):** Whether an elected public official's incumbency and continuous discharge of official duties in a municipality of one province (DAS, Maguindanao) legally precludes him from validly acquiring a new domicile of choice in another province (Sultan Kudarat) for purposes of satisfying the 1-year residency requirement under the Local Government Code.
 2. **Substantive Issue 2 (False Material Representation):** Whether Pax Ali committed a false material representation under Section 78 of the Omnibus Election Code when he declared in his CoC that he had been a resident of Sultan Kudarat for 1 year and 8 months.
 3. **Relief Issue (Executive Succession):** Upon the cancellation of Pax Ali's CoC, who is legally entitled to occupy the Office of the Governor of Sultan Kudarat—the Vice-Governor under the rules on local succession, or the second placer?
-

HOLDINGS AND CONTROLLING REASONING

1. On Residency and Incumbency: YES. Continuous discharge of mayoralty duties in Maguindanao LEGALLY NEGATED any valid acquisition of a new domicile in Sultan Kudarat.

- **A. The LGC Continuing Residency Mandate:**
 - Section 39 of the Local Government Code requires a local elective candidate to be a resident of the locality for at least 1 year immediately preceding the election.
 - Crucially, residency is a **continuing qualification** that an elected official must possess not only at the time of election or assumption, but **during his or her entire tenure in office**.
 - An incumbent Mayor of DAS, Maguindanao is legally obligated to maintain his residence in DAS throughout his term.
- **B. Incompatibility of Mayoralty Duties with Transfer of Domicile:**
 - Establishing a new *domicile of choice* requires three concurring elements: (1) actual physical presence in the new locality; (2) *animus manendi* (intent to remain indefinitely); and (3) *animus non revertendi* (bona fide intent to abandon the old domicile).
 - Pax Ali's continuous discharge of the official duties, rights, and responsibilities as Mayor of DAS, Maguindanao (attending peace and order councils, executing loan agreements, delivering official speeches in DAS in July–August 2021) directly contradicted any claim of *animus non revertendi* as to Maguindanao.

- The Court held: "**An incumbent public official who continuously exercises the rights and duties of his or her office in the locality where he or she is elected cannot claim *animus non revertendi* relative to such place and *animus manendi* in a different locality without making a mockery of the electorate who voted for him or her and deceiving the electorate of the new locality where he or she seeks a new election.**"
- **C. Distinguishing *Torayno v. COMELEC* and *Mitra v. COMELEC*:**
 - In *Torayno* (Governor of Misamis Oriental running for Mayor of Cagayan de Oro) and *Mitra* (Representative of 2nd District of Palawan running for Governor of Palawan in Aborlan), the new locality formed part of or was a component unit of the province/district the official was currently representing.
 - In stark contrast, **DAS, Maguindanao does NOT form part of, nor is it geographically located within, the Province of Sultan Kudarat.** Maguindanao and Sultan Kudarat are two distinct, independent provinces. Thus, Pax Ali could not legally comply with the residency requirement in Sultan Kudarat while discharging his duties as Mayor of DAS, Maguindanao.
- **D. Inadequacy of Voter Registration Transfer:**
 - Counting from May 17, 2021 (the date Pax Ali transferred his voter registration to Lutayan, Sultan Kudarat), he was a registered voter in Sultan Kudarat for only **11 months and 21 days** prior to election day—short of the 1-year statutory requirement.
 - Citing *Pundaodaya v. COMELEC*, the Court reaffirmed that voter registration transfer alone does not prove transfer of legal domicile.

2. On False Material Representation: YES. Pax Ali committed a deliberate false material representation under Section 78 of the OEC.

- **Materiality and Intent to Deceive:**
 - A material representation under Section 78 pertains to a candidate's qualification for office. Misrepresenting residency misleads the electorate regarding eligibility.
 - Pax Ali knew when he filed his CoC on October 7, 2021 that he was the incumbent Mayor of DAS, Maguindanao and could not legally reside in Sultan Kudarat. Belonging to a prominent political family, he was fully aware of LGC residency rules.
 - Asserting under oath that he resided in Sultan Kudarat for 1 year and 8 months constituted a deliberate false material representation.
- **Belated Resignation Cannot Cure Void CoC:**
 - Pax Ali's resignation as Mayor of DAS on November 15, 2021 (after the CoC filing and after cancellation petitions were instituted) was a belated posturing that **could not retroactively cure the false material representation** existing at the time the CoC was executed and filed.

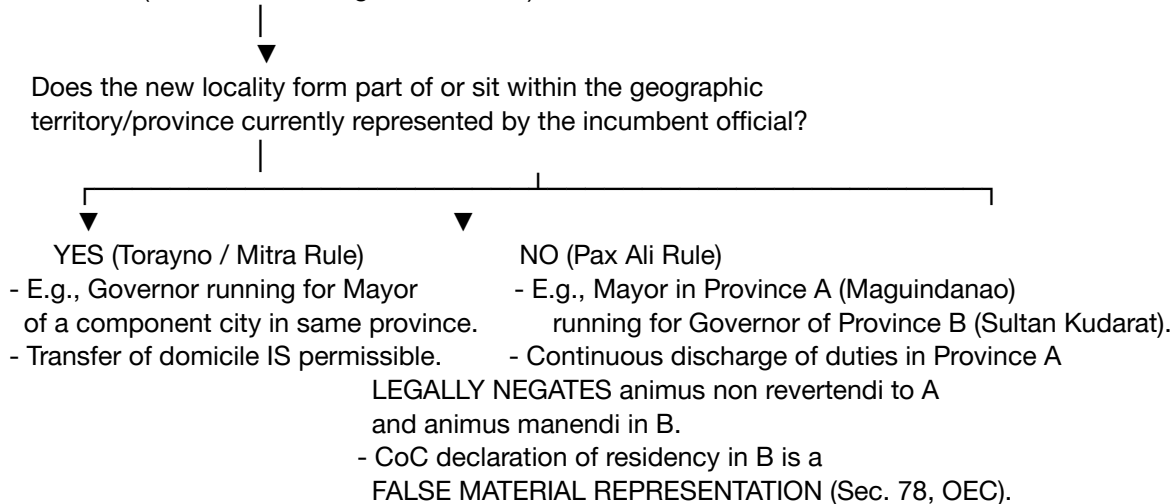
3. On Executive Succession: The Vice-Governor assumes the Office of the Governor.

- Reaffirming Section 44 of the Local Government Code on local executive succession, when a permanent vacancy occurs in the Office of the Governor due to the disqualification/cancellation of the winning candidate's CoC, the **duly elected Vice-Governor** assumes the governorship for the unexpired term.
- Pax Ali was explicitly ordered to **cease and desist** from discharging the functions of Governor of Sultan Kudarat and surrender the office to the duly elected Vice-Governor.

DOCTRINE, TESTS, AND LEGAL STANDARDS

INCUMBENCY vs. DOMICILE TRANSFER TEST

(Datu Pax Ali Mangudadatu Rule)



1. **Incumbent Local Official Residency Rule (Datu Pax Ali Mangudadatu Doctrine):** An incumbent local elective official who continuously discharges the functions of his/her office in one political subdivision cannot legally claim *animus non revertendi* regarding that locality and *animus manendi* in an entirely separate, non-component province.
2. **Distinction from Component Locality Transfers (Torayno/Mitra Exception):** An incumbent official may transfer domicile during his/her tenure *only* if the new locality forms part of or is geographically located within the political territory/district he/she currently represents.
3. **Ineffectiveness of Post-Filing Resignation:** Resigning from an incumbent public office after filing a CoC does not retroactively validate a false statement of residency made under oath at the time of filing.

♥ DISPOSITION

- **Ruling:** The Petition for Certiorari is **DISMISSED**.
- **Affirmance:** The Resolution dated January 18, 2022 of the COMELEC First Division and Resolution dated May 2, 2022 of the COMELEC En Banc cancelling Datu Pax Ali S. Mangudadatu's CoC are **AFFIRMED**.
- **Ouster Directive:** Petitioner Datu Pax Ali S. Mangudadatu is **ORDERED to CEASE and DESIST** from discharging the functions of the Office of the Governor of Sultan Kudarat and to surrender the same to the **duly elected Vice-Governor of Sultan Kudarat** for the remaining duration of the 2022–2025 term.

● SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLE LINES

1. Concurring and Dissenting Opinion of Senior Associate Justice Marvic M.V.F. Leonen [172–174]

- **Concurrence:** Fully concurred that Pax Ali committed false material representation under Section 78 and failed the residency requirement.
- **Dissent on Succession:** Dissented on applying LGC Section 44 succession to the Vice-Governor. Maintained that because Pax Ali's CoC was void *ab initio*, he was never a candidate from the beginning (*Jalosjos, Aratea, Maquiling*). The votes cast for him were stray votes, and the position should be awarded to the **"first qualified placer" (the runner-up/second placer)** as the true choice of the electorate among eligible candidates.

2. Dissenting Opinion of Justice Ramon Paul Hernando [175–184]

- **Liberty of Abode:** Argued that forcing an official to maintain residence in DAS, Maguindanao impermissibly impairs his constitutional right to liberty of abode (Art. III, Sec. 6).
- **Separation of Eligibility Issues:** Asserted that transferring domicile to Sultan Kudarat merely exposed Pax Ali to the risk of being unseated as Mayor of DAS, Maguindanao, but did not invalidate his actual physical acts establishing a new domicile in Sultan Kudarat. Maintained that under *Mitra*, his physical presence in Lutayan since 2020 satisfied the residency requirement.

3. Concurring and Dissenting Opinion of Justice Antonio T. Kho, Jr. [189–191]

- **Ipso Facto Resignation Rule:** Submitted that an incumbent local official who files an application to transfer voter registration to another non-component locality should be deemed *ipso facto* resigned from his current office from the moment of filing the transfer application. Concurred with the ponencia's application of LGC Section 44 succession to the Vice-Governor.

Source-Verified Quotable Lines

-  **On Incumbency and Transfer of Domicile (Gaerlan, J.):**

"An incumbent public official who continuously exercises the rights and duties of his or her office in the locality where he or she is elected cannot claim animus non revertendi relative to such place and animus manendi in a different locality without making a mockery of the electorate who voted for him or her and deceiving the electorate of the new locality where he or she seeks a new election."

-  **On Distinguishing Torayno and Mitra (Gaerlan, J.):**

"DAS does not form part of or is not geographically located in the province of Sultan Kudarat. Pax Ali cannot comply with the residency requirement in Sultan Kudarat while discharging his duties as Mayor of DAS, Maguindanao."

-  **On Belated Resignation (Gaerlan, J.):**

"To rectify the situation, he resigned as Mayor. However, this belated posturing could no longer cure his material misrepresentation."

RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Datu Pax Ali S. Mangudadatu v. COMELEC* (2025), Pax Ali was the incumbent Mayor of Datu Abdullah Sangki (DAS), Maguindanao. On October 7, 2021, while actively serving as Mayor of DAS, he filed his CoC for Governor of Sultan Kudarat, declaring under oath that he resided in Sultan Kudarat for 1 year and 8 months. Opponents petitioned to cancel his CoC under Section 78 OEC, showing he continuously performed mayoralty duties in Maguindanao (attending meetings, loan signings) throughout 2021. Pax Ali claimed he slept in Sultan Kudarat daily, transferred voter registration in May 2021, and resigned as Mayor

on November 15, 2021. COMELEC En Banc cancelled his CoC. Pax Ali won the election and petitioned the Supreme Court under Rule 64/65.

The Supreme Court En Banc, through Justice Gaerlan, DISMISSED the petition. The Court held: (1) Under the LGC, local residency is a continuing requirement throughout an official's tenure; (2) Continuously discharging mayoralty duties in Maguindanao legally negated animus non revertendi to Maguindanao and animus manendi to Sultan Kudarat; (3) Torayno and Mitra do NOT apply because DAS, Maguindanao is NOT a component unit of Sultan Kudarat; (4) Asserting 1 year and 8 months residence was a deliberate false material representation under Sec. 78 OEC, which his post-filing resignation on Nov. 15, 2021 could not cure; and (5) Under LGC Sec. 44 succession, Pax Ali must cease and desist, and the Vice-Governor assumes the governorship."* [159–167, 169, 185]

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: Why couldn't Pax Ali rely on *Torayno v. COMELEC* and *Mitra v. COMELEC* to justify transferring his domicile while serving as Mayor?**
 - **A:** In *Torayno* and *Mitra*, the new locality formed part of or was a component unit of the territory represented (Cagayan de Oro within Misamis Oriental; Aborlan within the 2nd District of Palawan). In *Pax Ali*, DAS, Maguindanao and Sultan Kudarat are two completely separate, non-overlapping provinces. An official cannot fulfill the LGC mandate of continuing residence in Maguindanao while acquiring a new domicile in Sultan Kudarat.
2. **Q: Did Pax Ali's resignation as Mayor of DAS, Maguindanao on November 15, 2021 cure his CoC representation?**
 - **A: No.** Material misrepresentation under Section 78 of the OEC is determined at the exact moment the CoC is executed and filed (October 7, 2021). On that date, he was the incumbent Mayor of DAS legally bound to reside in Maguindanao. His resignation more than a month later was a belated posturing that could not retroactively validate a false statement made under oath.
3. **Q: What was Senior Associate Justice Leonen's dissent regarding the disposition of the gubernatorial seat?**
 - **A:** Justice Leonen dissented on applying LGC Section 44 succession to the Vice-Governor. He argued that because Pax Ali's CoC was void *ab initio*, he was never a candidate, his votes were stray, and the gubernatorial seat should go to the "**first qualified placer**" (**the runner-up/second placer**) under *Maquiling v. COMELEC*.

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose Pax Ali was the incumbent Mayor of Tacurong City, which is a component city located inside the Province of Sultan Kudarat. While serving as Mayor of Tacurong City, he files a CoC for Governor of Sultan Kudarat, listing his residence in Lutayan, Sultan Kudarat. Opponents petition to cancel his CoC under *Pax Ali v. COMELEC*. Is his CoC void?
- **Answer: No, his CoC is VALID.** Under the *Torayno / Mitra* rule reaffirmed in *Pax Ali v. COMELEC*, an incumbent official may validly transfer domicile during his tenure **if the new locality forms part of or is a component unit of the political subdivision he currently represents**. Because Tacurong City is a component municipality inside Sultan Kudarat, residing in Tacurong satisfies both his mayoralty residency in Tacurong and his gubernatorial residency in Sultan Kudarat.

One-Sentence Doctrine Anchor

An incumbent local official discharging duties in one province cannot legally acquire a domicile of choice in an unrelated, non-component province, and declaring compliance with residency in the latter constitutes a false material representation under Section 78 of the OEC that cannot be cured by a post-filing resignation.

Mangudadatu v. COMELEC (2025)

Topic Subtopic	Congress Power, Composition, Qualification, and Term of Office	GR No. & Ponente	G.R. Nos. 260219 & 260231 Gaerlan, J.
Petitioner/s	Datu Pax Ali S. Mangudadatu	Respondent/s	COMELEC, Sharifa Akeel Mangudadatu, Azel V. Mangudadatu, Bai Ali A. Untong
Doctrine	An elected public official's incumbency and continuous discharge of duties in his locality preclude him from validly acquiring a new domicile of choice in a different locality for the sole purpose of satisfying the residency requirement. The Court hereby abandons the second placer rule and declares that the rules on succession 147 under the LGC shall apply in all cases where a permanent vacancy results from a local elective official's disqualification from office regardless of the proceedings involved		

FACTS

- Pax Ali is the incumbent Mayor of the municipality of Datu Abdullah Sangki (DAS), Maguindanao
- Oct. 7, 2021: Pax Ali filed his COC for Provincial Governor of Sultan Kudarat (SK) and declared that he has been residing in Purok Garden, Tamnag, Lutayan, SK for 1 year and 8 months
- Oct. 13, 2021: Sharifa Akeel Mangudadatu (gubernatorial candidate alongside Pax Ali) filed before the COMELEC a Petition to Deny Due Course or Cancel the COC of Pax Ali due to false material representation
 - Sharifa asserts that Pax Ali had to purposely lie, state, and affirm under oath that he is a resident of SK, but never left his Mayoral position in DAS, Maguindanao
 - His continuance of Mayoral duties contradicts his declaration of residency in SK
 - This misrepresentation misleads the electorate of Sultan Kudarat and the COMELEC
- Oct. 27, 2021: Azel Mangudadatu and Bai Ali A. Untong filed a similar petition against Pax Ali, also claiming misrepresentation
 - They claim that Pax Ali is still a resident of DAS
 - His non-resignation as DAS Mayor indicates that he has no intention to abandon his residence in DAS
- Pax Ali countered with the ff:
 - His domicile of origin is Purok Garden, Tamnag, Lutayan, Sultan Kudarat where he grew up in the family's ancestral home together with family
 - He had deep community ties in SK
 - He temporarily transferred his residence to DAS to have the residency req for Mayor, but he always had the inherent intention to return to his roots in Sultan Kudarat
 - Starting around July 2020, he began relocating to SK, but only goes back to DAS for work
 - He resigned as Mayor of DAS on November 15, 2012 as yet another evidence "ultimately showing his total abandonment of his house and occupation in Maguindanao."
- COMELEC First Division **granted the consolidated petitions and cancelled Pax Ali's COC**
 - Held that Pax Ali failed to comply with the requisites for a valid transfer of residence back to his domicile of origin in Purok Garden, SK (as provided in Sec. 74, Omnibus Election Code)
 - Pax Ali filed his COC for Prov. Gov. of SK **while he is still the Mayor of DAS** → therefore, as a continuing requirement, he must remain as a resident there **for the rest of his term**
 - This all happened during the COVID-19 pandemic → (1) if Pax Ali indeed resides in SK and then reports for work in Maguindanao, he would be subject to travel protocols; (2) there was no record of his inter-regional travel
 - *DISSENT (Comm. Casquejo): Pax Ali did not lose his domicile of origin (SK) when he served as DAS Mayor, and that he provided sufficient evidence of his intention to remain in SK*
- COMELEC En Banc affirmed the First Division's ruling that Pax Ali committed false material representation
 - *DISSENT (Comm. Casquejo & Comm. Torre Franca-Neri): Pax Ali is not precluded from electing a different domicile after the election as long as he demonstrates his intention to reside in a fixed place by his personal presence in the place*
- May 6, 2022: SC issued TRO enjoining COMELEC from cancelling Pax Ali's COC
- May 16, 2022: Pax Ali was proclaimed as the duly elected Governor of SK

- Pax Ali invoked the ruling in *Frivaldo v. COMELEC* = voters' choice despite disqualification being raised prior to the elections
- May 18, 2022: Respondents filed a Motion for Reconsideration and Lifting of TRO

ISSUE 1

Main Substantive	– W/N the COMELEC committed grave abuse of discretion in cancelling Pax Ali's COC due to material misrepresentation in his residency qualification	NO
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
Acc. to Pax Ali, COMELEC disregarded the ff: ● Pieces of evidence proving his SK residency ● Prevailing jurisprudence on residency for election purposes (<i>Torayno Sr. v. COMELEC</i>, <i>Sabili v. COMELEC</i>, <i>Mitra v. COMELEC</i>) ● His deep immersion in SK communities ● Respondents' failure to establish his deliberate intent to mislead the electorate which is the most important element of Section 78 of the OEC ● Pax Ali's motion for reconsideration on the ground that it was a mere rehash of his arguments before the COMELEC First Division		COMELEC maintained that Pax Ali: ● Changed residence when he ran for Mayor in DAS → intention is to abandon his SK domicile of origin ● Failed to reacquire his SK domicile at the time of his COC filing, therefore failing to prove his intention to remain in SK and abandon DAS, Maguindanao ● Deliberately misrepresented the duration of his SK residence to mislead the SK electorate → offends standards of decency and honesty expected of officials as per Sec. 39 of the Local Government Code
RULING and RATIO DECIDENDI:		
NO, the COMELEC did not commit grave abuse of discretion. Sec. 78 of the Omnibus Election Code (OEC) grants COMELEC the power to deny due course or cancel a COC on the exclusive ground of false material misrepresentation. False representation must consist of a "deliberate attempt to mislead, misinform, or hide a fact which would otherwise render a candidate ineligible." For a petition under Section 78 of the OEC to prosper, the following requisites must concur: ● A candidate made a material representation in his or her COC, that is, a representation relating to his or her qualification for the position he or she is vying for ● Such representation is false ● He or she made the representation with the intent to deceive the electorate that he or she is eligible to run and be voted for. If Pax Ali's representation of being an SK resident is proven false, it falls within the ambit of Sec. 78 of the OEC.		
LEGAL BASES		
Sec. 78, Omnibus Election Code: <i>"Petition to deny due course to or cancel a certificate of candidacy. — A verified petition seeking to deny due course or to cancel a certificate of candidacy may be filed by the person exclusively on the ground that any material representation contained therein as required under Section 74 hereof is false. The petition may be filed at any time not later than twenty-five days from the time of the filing of the certificate of candidacy and shall be decided, after due notice and hearing, not later than fifteen days before the election."</i> Atty. Francisco v. COMELEC, et al.: <i>"The material misrepresentation contemplated under Section 78 of the OEC involves a candidate's eligibility or qualification for the office to which he or she seeks election, such as the requisite residency, age, citizenship, or any other legal qualification necessary to run for elective office enumerated under Section 74 of the OEC."</i> ● The consequences imposed on a candidate found guilty of misrepresentation are prohibition from running (or from serving, if elected), or prosecution for violation of election laws.		

ISSUE 2

Side – Substantive	W/N Pax Ali's declaration of residence in Lutayan, SK for at least one year before the elections is false	YES
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:	
Pax Ali claims he resided in Lutayan, SK for 1 year and 8 months before the elections	- Azel and Bai Ali stated that Pax Ali was registered as voter of Lutayan, Sultan Kudarat, only on May 17, 2021, which means that Pax Ali lacks the one-year residency period to be qualified as Governor of Sultan Kudarat (8 days late) - Sharifa claimed that Pax Ali is a domiciliary of DAS, Maguindanao, for he was very vocal in his resolve not to abandon his constituents in DAS as he publicly stated in his interview on October 1, 2021: "<i>hindi ko iniwan ang Datu Abdullah Sangki.</i>"	
RULING and RATIO DECIDENDI:		
YES, Pax Ali failed to effect a change of domicile from DAS, Maguindanao to Lutayan, Sultan Kudarat, one year immediately preceding the May 9, 2022 elections. - It is undisputed that Pax Ali's domicile of origin is at Purok Garden, Tamnag, Lutayan, Sultan Kudarat where he was raised in his family's ancestral home. It is also uncontroverted that Pax Ali effected a change of domicile when he ran as Municipal Mayor of DAS, Maguindanao, in 2018. Admits that he needed to “re-establish” his residence in SK, since DAS, Maguindanao became his domicile by choice. Limbona v. COMELEC et al.: “In order to acquire a domicile by choice, there must concur: (1) residence or bodily presence in the new locality, (2) an intention to remain there, and (3) an intention to abandon the old domicile. A person's "domicile" once established is considered to continue and will not be deemed lost until a new one is established.” - If one wishes to successfully effect a change of domicile, he or she must demonstrate an actual removal or an actual change of domicile, a bona fide intention of abandoning the former place of residence and establishing a new one, and definite acts which correspond with the purpose. - Simply put, there must be animus manendi coupled with animus non revertendi. The purpose to remain in or at the domicile of choice must be for an indefinite period of time; the change of residence must be voluntary; and the residence at the place chosen for the new domicile must be actual. - Tested through the abovementioned parameters, the Court rules that Pax Ali failed to effect a change of domicile from DAS, Maguindanao to Lutayan, Sultan Kudarat, one year immediately preceding the May 9, 2022 elections. <i>While there is substantial evidence that Pax Ali had bodily or physical presence in Lutayan, Sultan Kudarat, his intent to remain there for an indefinite period, and to abandon DAS, Maguindanao are missing</i> - Pax Ali's resolve to maintain residence in Lutayan, Sultan Kudarat, and to abandon DAS, Maguindanao became manifest only when he resigned as Mayor of DAS on November 15, 2021 (less than 1 year before the elections = not allowed) - Pax Ali was the incumbent Mayor of DAS, Maguindanao when he filed his COC on October 7, 2021. As such, he is deemed to be the representative of the locality and the people therein. Staying as Mayor of DAS is a positive and voluntary act reflecting Pax Ali's choice of residence. Remaining as the local chief executive of DAS is antithetical to a claim of animus non-revertendi. Likewise, clinging to his position as Mayor meant that Pax Ali must comply with the continuing requirement of remaining a resident of DAS during his entire tenure. - Since Pax Ali failed to show that he had established a new domicile at the time of the filing of his COC, his residency in DAS continues → he is a resident of DAS, Maguindanao until October 7, 2021 - The concurrence of the three requisites for the acquisition of a new domicile of choice may be reckoned only from the time that Pax Ali resigned as Mayor of DAS which is on November 15, 2021 (only 5 months 22 days left before elections) - Necessarily, his declaration under oath in his COC that he is eligible for the position of Governor is FALSE		

LEGAL BASES

Atty. Lico, et al. v. COMELEC: *“Qualifications for public office, whether elective or not, are continuing requirements. These qualifications must be possessed not only at the time of appointment or election, or of assumption of office, but during the officer's entire tenure.”*

ISSUE 3

Side – Substantive	W/N Pax Ali deliberately made a material misrepresentation on his COC to feign eligibility and mislead the electorate of SK	YES
--------------------	---	-----

RESPONDENT/S ARGUMENTS:

- Pax Ali could not be unaware that his incumbency as Mayor of DAS was an obstacle to his residency requirement for SK Governor
- Pax Ali twice mentioned that he will not leave DAS, which clearly reflects his state of mind when he filed his COC

RULING and RATIO DECIDENDI:

YES, Pax Ali deliberately made a material misrepresentation in the filing of his COC.

- Pax Ali knew at the time of the filing of his COC that he could not be a resident of Sultan Kudarat as he was the incumbent Mayor of DAS, Maguindanao. As Pax Ali stated in his Verified Answer before the COMELEC, he belongs to a long line of public servants. It is impossible for him not to know the requirements under the LGC as regards residency. To rectify the situation, he resigned as Mayor. However, this belated posturing could no longer cure his material misrepresentation.
- In declaring in his COC that he is a resident of Lutayan, Sultan Kudarat, despite being the incumbent Mayor of DAS, Maguindanao, Pax Ali misled the electorate of Sultan Kudarat into thinking that he is eligible for the position of Governor.
- It is the height of absurdity to continue representing a locality/place as its local chief executive and at the same time declare under oath that you are a resident of another province, that is, that you are no longer a resident of the place where you are currently at the helm of the seat of power. A person cannot have two domiciles at the same time.
- Section 74 of the OEC requires a candidate to state under oath in his or her COC that he or she is eligible for the office he or she seeks election. If the candidate declares that he or she is eligible to run for public office when in truth he or she is not, such misrepresentation is a ground for a Section 78 petition.
- In this case, Pax Ali made a false material representation in his COC when he declared that he would be a resident of Lutayan, Sultan Kudarat for one year and eight months immediately before the day of the elections. He deliberately misrepresented that he was eligible for Governor of Sultan Kudarat when in fact he was not.
- Thus, the COMELEC did not commit grave abuse of discretion in denying due course to or canceling Pax Ali's COC

REVISITING THE SECOND PLACER RULE

- Jurisprudence is settled regarding the effects of cancellation of, or denial of due course to, a person's COC. A cancelled COC does not give rise to a valid candidacy. It is as if the person has not filed any COC. A person whose COC is cancelled or denied due course is no candidate at all.

Two situations:

1. a candidate disqualified by final judgment **before** an election cannot be voted for, and the votes cast for him shall not be counted and shall be considered as stray.
2. since the disqualification or COC cancellation/denial case is not resolved before election day, the proceedings shall continue **even after the election** and the proclamation of the winner. In the interim, the candidate may

be voted for and be proclaimed if he or she wins, but the COMELEC's jurisdiction to deny due course and cancel his or her COC continues. [Except Senators and Congressman who already took their Oath of Office - their ETs will gain jurisdiction.]

Thus, when a candidate's COC is cancelled after they have already won and assumed office, a question arises on how to fill the vacancy caused by their removal from office. **2 possible answers:**

- a. application of the rule on succession under Section 44 of the LGC with respect to vacancies in the Offices of the Governor, Vice-Governor, Mayor, and Vice-Mayor
 - i. This is on the premise that the second placer (or the candidate who obtained the second highest number of votes) may not be proclaimed winner in case the candidate who receives the majority votes is disqualified ("rejection of the second placer"). The law only authorizes a declaration of election in favor of the person who obtained a plurality of votes.
- b. proclamation of the second placer as a result of the cancellation of the winning candidate's COC. The second placer is considered as the qualified candidate who gathered the highest number of votes ("the second placer rule").
 - i. The rationale, as stated in the leading case of *Jalosjos, Jr. v. COMELEC* is: "[i]f the certificate of candidacy is void ab initio [due to the cancellation of the COC], then legally the person who filed such void certificate of candidacy was never a candidate in the elections at any time. All votes for such non-candidate are stray votes and should not be counted. Thus, such non-candidate can never be a first-placer in the elections."

The doctrine of rejection of the second placer is supported by law and public policy. With the following precedents:

- **Nuval v Guray (1929)** - "when the person elected is ineligible, the court cannot declare that the candidate occupying the second place has been elected, even if he were eligible, since the law only authorizes a declaration of election in favor of the person who has obtained a plurality of votes, and has presented his certificate of candidacy."
- **Llamoso v. Ferrer** - only the candidate who received the majority or plurality of votes shall be declared elected, and the ineligibility of the winning candidate results in a vacancy in the office.
- **Vilar v. Paraiso** [reiterated Nuval and Llamoso] - the Court stated the second placer in the elections cannot be declared the winner in the absence of an express provision authorizing such declaration. "Our law not only does not contain any such provision but apparently seems to prohibit it."
- **In re Geronimo v. Ramos** - the Court ruled that when the winning candidate is not qualified and cannot qualify for the office to which he was elected, a permanent vacancy is created, which calls for application of the rule on succession under then Section 48 of Local Government Code or then Batas Pambansa Blg. 337
- After the enactment of the OEC, the Court continued to reject the second placer rule in **Frivaldo v. Commission on Elections and Labo, Jr. v. Commission on Elections (Labo 1989)**.
 - Frivaldo involved a petition for annulment of Frivaldo's election and proclamation on the ground that he was not a Filipino citizen. Though the Court did not discuss the second placer rule, it ordered Frivaldo to surrender the gubernatorial position to the duly elected Vice-Governor of Sorsogon.
 - The Court confronted the issue of whether Lardizabal can replace Labo, Jr. as mayor. It ruled in the negative since Lardizabal only obtained the second highest number of votes. He was obviously not the choice of the people of Baguio.
- **Abella v. COMELEC** - despite the ineligibility of the winning candidate, the candidate who obtains the second highest number of votes for the same position cannot assume the vacated position. This is because the latter lost in the elections and was, therefore, repudiated by the electorate.
- **Labo, Jr. v. COMELEC (Labo 1992)** - The Court ruled that a minority or defeated candidate cannot be deemed elected, notwithstanding the ineligibility of the candidate. It stated that similar to Abella, Ortega lost the election. He was repudiated by the electorate. He was obviously not the choice of the people of Baguio City.
 - The Court further declared in Labo 1992 that it is incorrect to argue that since a candidate has been disqualified, the votes intended for him or her should, in effect, be considered null and void as this would amount to disenfranchising the electorate in whom sovereignty resides.
 - Labo 1992 furthermore laid down the exception to the doctrine of the rejection of the second placer. The exception provides that the eligible candidate obtaining the next higher of votes may be deemed elected

only "if the electorate fully aware in fact and in law of a candidate's disqualification so as to bring such awareness within the realm of notoriety, would nonetheless cast their votes in favor of the ineligible candidate." In this scenario, the electorate is considered to have waived the validity of their votes or thrown away their votes."

- At this juncture, it is worth mentioning that the Court applied the doctrine of rejection of the second placer not only in quo warranto and cancellation of COC proceedings but also in disqualification cases under Sections 12 and 68 of the OEC and Section 40 of the LGC.
- However, the Court started to turn around with Jalosjos, Jr. and **used the second placer rule**. The Court did not provide any legal basis for declaring the second placer the winner upon the disqualification/ineligibility of the candidate receiving the majority votes. → basically for COCs that were void ab initio, they deemed that the 2nd placer should win [Aratea v COMELEC] [Maquiling v COMELEC]

DECISION

- **The second placer rule is hereby abandoned. The second placer rule laid down in Jalosjos, Jr. has no legal basis. No law authorizes the proclamation of the second placer in the elections in case the candidate who received the most votes is disqualified or turned out to be ineligible. The second placer rule undermines the people's choice in every election and is repugnant to the people's constitutional right to suffrage. The Court cannot impose upon the electorate to accept as their representative, the candidate whom they did not choose in the elections.**
- Accordingly, regardless of the nature of the proceedings, whether disqualification (under Sections 12 and 68 of the OEC and Section 40 of the LGC), denial/cancellation of COC (under Section 78 of the OEC), or quo warranto (under Section 253 of the OEC), the second placer cannot be proclaimed as winner in lieu of the disqualified first placer.
- Verily, in Geronimo, the Court ruled that a permanent vacancy is created when the winning candidate is not qualified and cannot qualify for the office to which he or she was elected → Rule of Succession in LGC
- **In fine, the Court hereby abandons the second placer rule and declares that the rules on succession under the LGC shall apply in all cases where a permanent vacancy results from a local elective official's disqualification from office regardless of the proceedings involved**

In This Case

- As a consequence of the cancellation of Pax Ali's COC, he cannot be considered a candidate in the May 9, 2022 elections. Not being a candidate, the votes cast for him should not be counted and must be considered stray votes. No amount of votes should entitle him to the elective office aspired for.
- Due to Pax Ali's failure to qualify for the position of Governor, LGC Succession Rule will apply and the duly elected Vice-Governor of Sultan Kudarat in the May 9, 2022 elections is hereby declared the Governor thereof.

FINAL DECISION	7 agreed that Pax Ali's COC should be cancelled - 6 disagreed 8 agreed that LGC Rules on Succession be adopted and abandon the second placer rule - 5 voted to the contrary ACCORDINGLY, the Petition is DISMISSED. Petitioner Datu Pax Ali S. Mangudadatu is ORDERED to cease and desist from discharging the functions of the Office of the Governor of Sultan Kudarat and to surrender the same to the duly elected Vice-Governor of the province in the May 9, 2022 elections. The Vice-Governor shall serve the remaining duration of the term July 1, 2022 to June 30, 2025. SO ORDERED.
---------------------------	--

SEPARATE OPINION/S

LEONEN, J, concurring &	CONCURS: cancellation of Pax Ali's COC for failing to comply with residency req. and misrepresentation
-----------------------------------	---

<i>dissenting</i>	On Residency and Material Misrepresentation - Without independent elaboration, Pax Ali's incumbency as DAS mayor negated his claimed intent to abandon domicile until resignation. He is short of the 1 year required Sultan Kudarat residency (only 5 months 22 days before election day) DISSENTS: I maintain that the second placer rule should still apply. On Void ab initio COC and Rules of Succession - Pax Ali's residence in Datu Abdullah Sangki, Maguindanao caused him to never initially qualify for the position. Thus, this is not a case where he was initially qualified, but later, after he filed his COC, he failed to qualify for the position. From the very beginning, his COC was void ab initio because he already possessed a disqualifying circumstance prior to its filing. Necessarily, Section 44 is not the appropriate provision to determine who will take Pax Ali's place. - The rule on succession should not apply. I disagree that Pax Ali should be replaced by the elected vice governor. - I maintain that the position should go to the duly elected candidate who: (i) is eligible for the position; and (ii) obtained the highest number of votes. Where the candidate with the most votes was ineligible from the beginning, only the qualified candidates are considered for the position. The qualified eligible candidate who obtained the highest number of votes is the true winner. This is why the position must necessarily go to the "second placer." Though they obtained the second highest number of votes in relation to the unqualified or disqualified candidate, the second placer is more accurately described as the first placer among the qualified candidates. - I agree with Associate Justice Jhosep Y. Lopez's position that applying the law of succession results in disregarding or setting aside the votes for the specific electoral position of governor in Sultan Kudarat. The Court must be mindful that the person who ran and won for vice governor was elected as vice governor, not governor. Thus, to keep the intent of the electorate, the legitimacy of the other votes cast in the election of governor should still be upheld.
HERNANDO, J, <i>dissenting</i>	Votes to GRANT Pax Ali's petition for certiorari and reverse COMELEC Reso cancelling his COC I respectfully register my dissent to the pronouncement of the Majority that Pax Ali failed to meet the animus non-revertendi requirement on the ground that he remained as Mayor of DAS, Maguindanao until November 15, 2021. On Residency and Material Misrepresentation - Physical presence since August 2020, daily post-office-hours return trips, transfer of voter's registration, and resignation from mayoralty — establish animus manendi and animus non revertendi well within 1 year period prior to election. - Domicile of origin is easily regained when done with positive acts of return. - Same factual milieu with Mitra v. COMELEC (barangay cert, affidavits from neighbors, photos of community involvement, etc) — Incumbent public officials can transfer domicile through a series of progressive acts. Torayno v. COMELEC — Court's focus must be W/N candidate meets residency requirements for new position, not if their transfer of domicile DQs them from current position as mayor of DAS— a separate legal issue. - Holding continued incumbency as an automatic bar from establishing a new domicile would restrain constitutional freedom to choose and change residence (right to liberty of abode). - Pax Ali acted in good faith in his positive acts showing re-establish residence. He has deep pre-existing ties to Sultan Kudarat (being raised there, belonging to family of local politicians)
KHO Jr., J, <i>concurring &</i>	CONCURS: to abandon second placer rule and apply rules on succession under Sec. 44, LGC Second placer rule lacks statutory foundation and undermines republican principles.

dissenting	DISSENTS: on residency DQ and material representation. Votes to GRANT petition ● On Residency and Material Misrepresentation ○ Election cases only require substantial evidence (lowest standard in hierarchy of evidence) ○ His previously mentioned positive and overt acts establish his intent to reacquire his domicile of origin and abandon DAS ● Proposed doctrinal framework of ipso facto resignation rule ○ Rejects the notion that incumbency legally prevents officials from acquiring new domicile elsewhere ○ Legal rule for incumbent officials who change residency 1) Incumbent elected official who transfers voter's registration to another locality is deemed <i>ipso facto</i> resigned from that position as of date of filing the transfer application. He may face criminal, civil, or administrative liability for continuing to serve thereafter. 2) Incumbent elected official who files COC in another locality without transferring voter regis. is considered <i>ipso facto</i> resigned upon filing of COC, with same potential liabilities ○ Mangudadatu should be deemed ipso facto resigned as mayor of DAS from the moment he filed his voter regis. transfer application. This eliminates conflict between his incumbency and new residence
LOPEZ, J., dissenting	Domicile of Origin Is Easily Regained ● Mangudadatu's domicile of origin was Purok Garden, Sultan Kudarat, where he grew up in his family's ancestral home. Although he transferred to DAS in 2018, he began returning to Purok Garden in 2020. ○ Physical presence confirmed since Aug. 2020; belongings returned by Sept. 2020; returned daily since Oct. 2020 except for work & official duties ● Under <i>Romualdez-Marcos</i>, domicile of origin is "not easily lost" but may be easily regained through positive acts showing intent to return. Mangudadatu Satisfied the Residency Requirement ● Residency is determined by the fact of residence, and compliance with the one-year requirement is a question of fact. ● Evidence established his physical presence in Purok Garden ○ Punong Barangay's affidavit, Certificate of Residency, sworn statements of neighbors ● The purpose of the residency requirement is to prevent a stranger/newcomer from governing the locality. ○ This danger was absent because he was "of that locality" and merely regained his domicile of origin. His Mayoral Duties Did Not Negate His Return ● Continuing as Mayor of DAS should not hinder the determination that Mangudadatu intended to regain his domicile of origin. ○ Abandoning his office could have criminal & administrative consequences ● His incumbency was merely a "continuing status quo" while his return to Purok Garden was a "conscious and deliberate positive act." ○ His continued discharge as mayor cannot negate his <i>animus non-revertendi</i> in DAS. On The First Qualified Placer Rule ● The rule should be retained because it is more consistent with democratic principles and the need to preserve voter choice. ○ Election law must balance voter choice with ensuring that only qualified and eligible candidates participate. ● Void Ab Initio COC = Never a Candidate

	○ Sec. 40 of the Local Government Code and Sec. 12 of the Omnibus Election Code establish pre-electoral disqualifications → persons covered were never supposed to be candidates ○ A COC based on an existing ground of ineligibility produces no legal effect, so the votes for the ineligible candidate are stray votes. ● First Qualified Placer best reflects the intent of the voters. ○ When the first placer's COC is void ab initio, he was never a candidate and his votes are stray → candidate with highest number of valid votes among qualified candidates is therefore the First Qualified Placer and should be declared winner ○ This rule is the "closest approximation to the will of the electorate" because it gives effect to the valid votes actually cast. ○ Applying succession would elevate someone who was never a direct choice for that specific office, thereby overriding voter intent.
LAZARO-JA VIER, J., <i>dissenting</i>	Mangdadam Changed His Domicile Back to Sultan Kudarat ● Although he transferred to DAS in 2018 to become mayor, he always intended to return to his domicile of origin in Purok Garden, Lutayan, Sultan Kudarat. ● By Sept. 2020, his belongings were back in Lutayan; Since Oct. 2020, he went home there daily after office hours. Mangdadam Satisfied the Requirements for Change of Domicile ● Change of domicile requires bodily presence + intention to remain + intention to abandon the old domicile. ○ Mangdadam established all three through a clear series of consistent acts showing his bona fide intention and physical presence in Lutayan. ○ Evidence included government IDs, barangay certifications, voter-registration transfer, resignation papers, and affidavits from family, barangay officials, neighbors, and colleagues. Mitra v. COMELEC Supports Mangdadam's Position ● In <i>Mitra</i>, the Court did not treat the candidate's continued incumbency as preventing a valid transfer of domicile. ○ What matters is compliance with requirements for transfer within the period required by law. ● Like <i>Mitra</i>, Mangdadam physically moved his belongings and regularly returned to his new residence. Mangdadam Was Not a Stranger or Newcomer ● Residency prevents persons "wholly unacquainted with the conditions and needs of a community" from seeking office. ○ Mangdadam grew up in Sultan Kudarat and regularly returned there. ● Punong Barangay even attested that he discussed residents' issues and how he could help them. The Second Placer Rule Should Not Be Abandoned ● If COC is denied due course or cancelled, the person was never a candidate in the first place (void ab initio), and all votes for that person are stray votes. ○ Second placer is therefore the qualified candidate who garnered the highest number of votes. Abandonment of Doctrine Must be Prospective ● Judicial decisions form part of the legal system, so people's reliance on a doctrine that was good law prior to its abandonment should be respected. ● <i>People v. Jabinal</i> → when a doctrine is overruled, the new doctrine should generally apply prospectively and not to parties who relied on the old doctrine.

Bañas-Nogales v. Commission on Elections

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Vice Mayor Shirlyn L. Bañas-Nogales, et al. v. Commission on Elections*
- **Citation:** G.R. No. 246328, September 10, 2019 (En Banc Resolution)
- **Ponente:** Carandang, J.
- **Bench Composition:** Bersamin, C.J., Carpio, Peralta, Perlas-Bernabe, Leonen, Jardeleza, Caguioa, A.B. Reyes, Jr., Gesmundo, J.C. Reyes, Jr., Lazaro-Javier, Inting, and Zalameda, JJ., concurring; Hernando, J., on official business.
- **Syllabus Relevance & Topic:**
 1. **Legislative Department — Date of Congressional Elections (Art. VI, Sec. 8 in rel. to Art. VI, Sec. 7):** Constitutional rule that elections for Members of Congress shall be held on the second Monday of May "unless otherwise provided by law".
 2. **Scope of Statutory Exceptions ("Unless Otherwise Provided by Law"):** The two exclusive scenarios contemplated by Article VI, Section 8: (a) when a law specifically fixes a date other than the second Monday of May; or (b) when a law explicitly delegates the setting of the election date to the COMELEC.
 3. **Interpretation of "Next Elections" in Legislative Reapportionment:** When Congress passes a reapportionment statute after the election period for an upcoming election has already commenced, the "next national and local elections" mentioned in the law refers to the **next regular election cycle** (e.g., May 2022, not May 2019) to prevent precipitous and logistically impossible administrative actions.
 4. **Prohibition Against Shortening Constitutional Legislative Terms:** Unconstitutionality of administrative directives that result in a Representative serving a term shorter than the three-year term mandated by Article VI, Section 7 without statutory authorization.
 5. **Limits of COMELEC Administrative Discretion:** COMELEC's broad power to administer elections cannot override statutory election dates or rewrite legislative intent.

CHRONOLOGICAL MATERIAL FACTS

1. **Enactment of R.A. No. 11243 (March 11, 2019):** Congress enacted Republic Act No. 11243, titled "*An Act Reapportioning the First Legislative District of the Province of South Cotabato Thereby Creating the Lone Legislative District of General Santos City*", which was approved on March 11, 2019.
2. **Statutory Reapportionment Mandate:** Section 1 of R.A. No. 11243 provided that the reapportionment of the First District "*shall commence in the next national and local elections after the effectivity of this Act.*"
3. **Status of 2019 Mid-Term Elections:** When R.A. No. 11243 was approved in March 2019, the election period for the May 13, 2019 National and Local Elections (which began in January 2019) was already underway. Candidates had already filed their Certificates of Candidacy (CoCs) for the existing 1st District of South Cotabato (which then included General Santos City).
4. **Promulgation of COMELEC Resolution No. 10524 (April 11, 2019):** One month prior to the May 13, 2019 elections, COMELEC issued Resolution No. 10524 (IRR of R.A. No. 11243), wherein COMELEC:
 - **Suspended** the May 13, 2019 election for Representative of the First Legislative District of South Cotabato (including General Santos City) and declared that all votes cast for said position on May 13, 2019 would be considered **stray**; and
 - **Scheduled** the first regular election for the newly created 1st and 3rd Legislative Districts of South Cotabato to be held **within six (6) months from May 13, 2019** (a separate special election).

5. **Conduct of the May 13, 2019 Elections:** Despite COMELEC Resolution No. 10524, the official ballots contained the position for 1st District Representative, and voters cast their votes on May 13, 2019.
 6. **Electoral Outcome:** Petitioner Vice Mayor Shirlyn L. Bañas-Nogales garnered **194,929 votes (68.55%)** out of 284,351 total votes cast for the position. However, enforcing Resolution No. 10524, COMELEC treated all 284,351 votes as stray and refused to proclaim Bañas-Nogales as Representative-elect.
 7. **Differentiation with Other Reapportionment Laws:** Petitioners brought to the Supreme Court's attention that under R.A. No. 11257 (Mandaue City) and R.A. No. 11198 (Southern Leyte)—which were likewise enacted during the 2019 election period—COMELEC permitted the May 13, 2019 elections to proceed and proclaimed the winning candidates, revealing arbitrary discrimination against South Cotabato.
-

● PROCEDURAL HISTORY

1. **Administrative Action by COMELEC:** Promulgated Resolution No. 10524 on April 11, 2019 suspending the May 13, 2019 election and ordering a special election within 6 months.
 2. **Supreme Court Certiorari Petition:** Petitioners filed a Petition for Review under Rule 64 in relation to Rule 65 assailing Resolution No. 10524 for violating R.A. No. 7166 and R.A. No. 11243, praying for a Status Quo Ante Order and the proclamation of Bañas-Nogales.
 3. **Supreme Court Decision (September 10, 2019):** The Supreme Court En Banc unanimously granted the petition, declared Resolution No. 10524 null and void, and ordered COMELEC to proclaim Bañas-Nogales.
-

● PARTIES' MATERIAL ARGUMENTS

- **Petitioners (Vice Mayor Shirlyn L. Bañas-Nogales, et al.):**
 1. **Violation of Statutory Election Dates (R.A. No. 7166):** Under R.A. No. 7166, congressional elections are fixed on the second Monday of May every three years. COMELEC lacked statutory authority to suspend a regular national election absent recognized *force majeure* grounds under Section 5 of the Omnibus Election Code.
 2. **Misinterpretation of Legislative Intent in R.A. No. 11243:** Congress enacted R.A. No. 11243 expecting the reapportionment to take effect during the **next regular election cycle in May 2022**, knowing that the 2019 election period was already underway.
 3. **Disenfranchisement & Holdover Objections:** Treating 284,351 votes as stray disenfranchised the entire district. Allowing the incumbent representative to hold over extended an un-elected term, whereas conducting a late special election shortened the term of the newly elected representative.
 - **Respondent (Commission on Elections via OSG):**
 1. **"Next Elections" Clause:** R.A. No. 11243 specified that reapportionment commence in the "next" elections, which COMELEC interpreted as the May 13, 2019 mid-term elections.
 2. **Administrative Necessity & Force Majeure Analogy:** Because R.A. No. 11243 was passed after ballot faces and candidate lists were finalized, proceeding on May 13, 2019 was logistically and financially impossible, justifying an adjustment to a date "within 6 months" under COMELEC's broad administrative powers.
-

● ISSUES

1. Whether COMELEC committed grave abuse of discretion amounting to lack or excess of jurisdiction in issuing Resolution No. 10524, which suspended the May 13, 2019 election for Representative of the First District of South Cotabato and scheduled a special election within six months therefrom.
 2. What is the correct interpretation of the phrase "*commence in the next national and local elections*" under Section 1 of R.A. No. 11243.
 3. Whether petitioner Shirlyn L. Bañas-Nogales is entitled to be proclaimed as the winning Representative of the First Legislative District of South Cotabato, including General Santos City.
-

HOLDINGS AND CONTROLLING REASONING

1. On COMELEC's Lack of Power to Alter Election Dates: YES. COMELEC En Banc COMMITTED GRAVE ABUSE OF DISCRETION; Resolution No. 10524 is NULL AND VOID.

- **A. Textual Command of Article VI, Section 8 of the Constitution:**

- Article VI, Section 8 mandates that elections for Members of Congress shall be held on the second Monday of May "*unless otherwise provided by law.*"
- The constitutional phrase "*unless otherwise provided by law*" contemplates only **two specific situations**:
 1. When a statute specifically states that elections shall be held on a date other than the second Monday of May; or
 2. When a statute expressly delegates the setting of the election date to COMELEC.
- Neither exception exists under R.A. No. 11243. The statute did not specify a date other than the second Monday of May, nor did it delegate the fixing of election dates to COMELEC.

- **B. Legislative Intent of R.A. No. 11243 ("Next Elections" Means May 2022):**

- Section 1 of R.A. No. 11243 provided that reapportionment commence in the "*next national and local elections after the effectivity of this Act.*"
- Ascertaining legislative intent requires recognizing that when R.A. No. 11243 was approved on March 11, 2019, the election period for the May 13, 2019 elections was already ongoing.
- Congress passed R.A. No. 11243 with the view of implementing the reapportionment at the **most feasible and practicable time**, which is the **next regular elections on the second Monday of May 2022**. Congress could not have intended to force an immediate 2019 implementation that would compel COMELEC to act precipitously.

- **C. Incongruity in Constitutional Term of Office (Art. VI, Sec. 7):**

- Following COMELEC's interpretation, a representative elected in a special election held months after May 13, 2019 would serve a term **less than three years**.
- Under Article VI, Section 7 of the 1987 Constitution, Members of the House serve a fixed term of three years. Similar to Section 8, the only exception is when a shorter term is "*otherwise provided by law.*" R.A. No. 11243 contained no provision shortening the three-year legislative term.

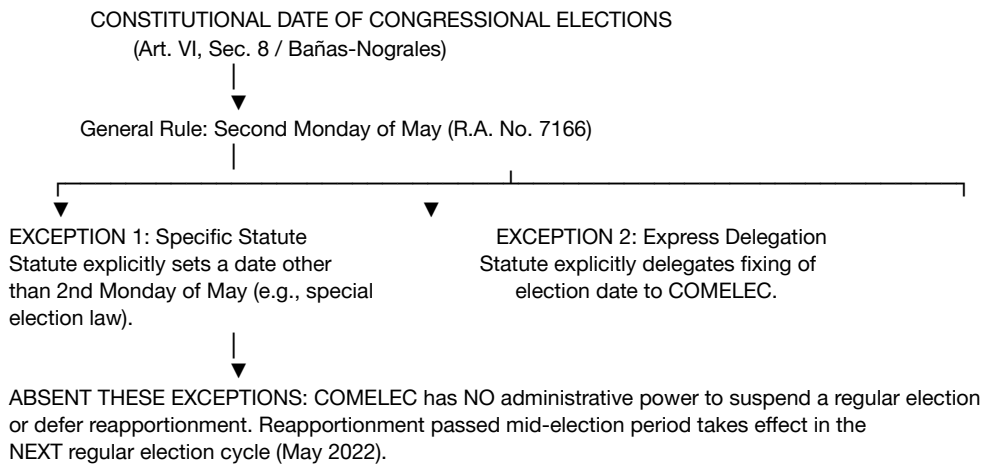
2. On the Validity of the May 13, 2019 Voting and Proclamation: YES. The May 13, 2019 election is UPHELD, and Bañas-Nogales MUST BE PROCLAIMED.

- **A. Votes Cast Were NOT Stray:**

- Because COMELEC Resolution No. 10524 was void *ab initio*, its directive treating votes for the 1st District representative as stray was legally ineffective.

- The election held on May 13, 2019 for Representative of the First District of South Cotabato (including General Santos City) was valid and lawful.
- **B. Mandatory Proclamation Directive:**
 - Petitioner Shirlyn L. Bañas-Nogales garnered an overwhelming majority of **194,929 votes (68.55%)**.
 - COMELEC was directed to immediately convene a Special Provincial Board of Canvassers and **proclaim Bañas-Nogales as the winning Representative**.
 - Consequently, the holdover provision under Section 2 of R.A. No. 11243 became completely inapplicable because a newly elected and qualified Representative was chosen by the people.

DOCTRINE, TESTS, AND LEGAL STANDARDS



1. **Constitutional Fixed Election Date Mandate (Art. VI, Sec. 8):** Elections for Congress must occur on the second Monday of May. COMELEC cannot alter this date unless a statute explicitly fixes a different date or expressly delegates that power to COMELEC.
2. **Reapportionment Implementation Rule (*Bañas-Nogales Standard*):** A legislative reapportionment statute enacted after the commencement of an ongoing election period takes effect in the **next regular election cycle** (e.g., May 2022), not the ongoing one, to avoid administrative chaos and term-length incongruities.
3. **Protection of Constitutional Term Length (Art. VI, Sec. 7):** Administrative adjustments that reduce a House Representative's term to less than three years are unconstitutional unless expressly authorized by statute.

DISPOSITION

- **Ruling:** The Petition for Review is **GRANTED**.
- **Annulment:** COMELEC Resolution No. 10524 is declared **NULL and VOID**.
- **Validity Upheld:** The elections for Representative of the First Legislative District of South Cotabato, including General Santos City, held on May 13, 2019, is **UPHELD**.
- **Mandamus Directive:** COMELEC is **DIRECTED TO CONVENE** a Special Provincial Board of Canvassers to **PROCLAIM** petitioner Shirlyn L. Bañas-Nogales as the winning Representative.

SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLE LINES

- (Note: All participating Justices—Bersamin, C.J., Carpio, Peralta, Perlas-Bernabe, Leonen, Jardeleza, Caguioa, A.B. Reyes, Jr., Gesmundo, J.C. Reyes, Jr., Lazaro-Javier, Inting, and Zalameda, JJ.—UNANIMOUSLY CONCURRED in the En Banc Resolution penned by Justice Carandang. Justice Hernando was on official business).

Source-Verified Quotable Lines

-  **On the Constitutional Exceptions for Changing Election Dates (Carandang, J.):**

"The 1987 Constitution is clear: Elections for Congress should be held on the 2nd Monday of May unless otherwise provided by law. The term 'unless otherwise provided by law' contemplates two situations (1) when the law specifically states when the elections should be held on a date other than the second Monday of May; and (2) when the law delegates the setting of the date of the elections to COMELEC."

-  **On Legislative Intent for Reapportionment (Carandang, J.):**

"Congress could not have intended to enforce R.A. 11243 during the 2019 general elections as the election period had already begun when R.A. 11243 was enacted. To require implementation last May 13, 2019 would lead COMELEC to act precipitously."

-  **On Incongruity in Legislative Term Length (Carandang, J.):**

"Also, if we were to follow COMELEC's interpretation, an incongruity would result as the winning candidate in COMELEC's special elections would serve a term less than that provided for in Section 7, Article VI of the 1987 Constitution."

RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Bañas-Nogales v. COMELEC* (2019), Congress passed R.A. 11243 on March 11, 2019, reapportioning the 1st District of South Cotabato and creating the Lone District of General Santos City, stating it would 'commence in the next national and local elections.' Because the 2019 election period was already underway, COMELEC issued Res. No. 10524 on April 11, 2019, suspending the May 13, 2019 election for the 1st District, declaring all votes cast stray, and setting a special election within 6 months. On May 13, 2019, voters still cast ballots, and Vice Mayor Bañas-Nogales won with 194,929 votes (68.55%). Enforcing Res. 10524, COMELEC refused to proclaim her. She petitioned the Supreme Court under Rule 64/65.

The Supreme Court En Banc unanimously, through Justice Carandang, GRANTED the petition and declared Res. No. 10524 NULL AND VOID. The Court held: (1) Under Art. VI, Sec. 8, congressional elections are fixed on the 2nd Monday of May 'unless otherwise provided by law,' which applies ONLY if a statute sets a different date or explicitly delegates date-setting to COMELEC; (2) R.A. 11243 did neither, and 'next elections' meant the May 2022 regular elections because the 2019 election period had already begun; (3) Holding a late special election would illegally shorten the representative's term to less than 3 years in violation of Art. VI, Sec. 7; and (4) The May 13, 2019 election was valid, votes were not stray, and COMELEC must proclaim Bañas-Nogales immediately."*

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: What are the two exclusive scenarios where the date of congressional elections can be held on a day other than the second Monday of May under Article VI, Section 8?**
 - **A:** (1) When a legislative enactment explicitly specifies a different election date; OR (2) when a legislative enactment explicitly delegates the authority to set the election date to COMELEC.
2. **Q: How did the Supreme Court interpret the phrase "*commence in the next national and local elections*" in R.A. No. 11243?**
 - **A:** The Court interpreted it to mean the **May 2022 regular elections**. Because R.A. No. 11243 was enacted in March 2019 after the 2019 election period had already begun, Congress could not have intended an immediate, precipitous 2019 implementation that would disrupt ongoing election preparations.
3. **Q: How would COMELEC's 6-month special election have violated Article VI, Section 7 of the Constitution?**
 - **A:** Article VI, Section 7 fixes the term of Representatives at three years. A representative elected in a special election held months after May 2019 would serve a shortened term of less than three years (e.g., 2.5 years), which is unconstitutional absent an express statutory exception.

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose Congress passes a law in January 2025 reapportioning a legislative district, and Section 3 of the law explicitly states: "*Due to logistical necessity, the first election for the newly created district shall be held on the first Monday of September 2025, and COMELEC is hereby authorized to fix all administrative deadlines therefor.*" COMELEC suspends the May 2025 election for that district and sets it for September 2025. Is COMELEC's action valid under *Bañas-Nogales v. COMELEC*?
- **Answer: Yes, COMELEC's action is VALID.** Under *Bañas-Nogales v. COMELEC*, Article VI, Section 8 permits holding congressional elections on a date other than the second Monday of May if the statute itself explicitly provides a different election date or expressly delegates date-setting authority to COMELEC. Because the hypothetical law satisfied both exceptions, the September 2025 election is constitutionally permissible.

One-Sentence Doctrine Anchor

Under Article VI, Section 8 of the Constitution, COMELEC cannot suspend a regular congressional election or defer legislative reapportionment unless a statute explicitly fixes a different election date or expressly delegates that power to COMELEC.

BAÑAS-NOGRALES V COMELEC (2019)

Topic Subtopic	Election - Special Election	GR No. & Ponente	GR 246328, Carandang, J.
Petitioner/s	Shirlyn L Banas-Nogales	Respondent/s	COMELEC
Doctrine	“ unless otherwise provided by law ” in Sec 8 Art VI means (i) when the law specifically states the other date, or (ii) when the law delegates to COMELEC the setting of the date.		

FACTS

- March 11, 2019 - Duterte signed RA 11243 creating the lone district of General Santos (which is currently within the 1st District of South Cotabato), and took effect on April 4, 2019 or just a month before the 2019 general elections.
 - Under Section 1 of the said law, the creation of the lone legislative district of General Santos City was "to commence in the next national and local elections after the effectivity of this Act."
 - The same law directed the incumbent Representatives of First and Second Legislative Districts of South Cotabato to continue representing their respective districts "until new representatives shall have been elected and qualified." Thereafter, COMELEC was mandated to issue the necessary rules and regulations to implement R.A. 11243.
- In response, COMELEC issued a resolution for the suspension of the election for 1st District Representative of South Cotabato (including General Santos City) citing that the ballot can no longer be revised or modified in time for the May 2019 general elections and the votes will be considered as stray; and sets the 1st regular election for the new reps of the 1st and 3rd districts of the province of South Cotabato to be w/in 6 months from the May 13, 2019 elections
- Hence, Nogales (petitioner) assailed the validity of the resolution.
- Note:** Shirlyn won the election for the 1st District Rep, with 194,929 votes, but she was not proclaimed by the COMELEC since the election was suspended. All votes were considered stray votes (no effect).

ISSUE 1

Main – Substantive	W/N the COMELEC resolution which suspended the election is valid. (For the 1st District of South Cotabato)	NO
--------------------	--	----

RULING and RATIO DECIDENDI:

- Sec. 8 Article VI of the 1987 Constitution.** Unless otherwise provided by law, the regular election of the Senators and the Members of the House of Representatives shall be held on the second Monday of May.
- The 1987 Constitution is clear: Elections for Congress should be held on the 2nd Monday of May unless otherwise provided by law. The term "unless otherwise provided by law" contemplates two situations (1) when the law specifically states when the elections should be held on a date other than the second Monday of May; and (2) when the law delegates the setting of the date of the elections to COMELEC.
- Section 1 of R.A. 11243 categorically states that the reapportionment of the 1st District shall "commence in the next national and local elections after the effectivity of this Act." R.A. 11243 did not specifically provide for a different date. Neither did it delegate unto COMELEC the setting of a different date.
- The issue lies in ascertaining when Congress intended R.A. No. 11243 to be implemented. The law was passed with the view of implementing the reapportionment of the First Legislative District of the Province of South Cotabato at the most feasible and practicable time, i.e., **during the next elections on the second Monday of May 2022**. Congress could not have intended to enforce R.A. 11243 during the 2019 general elections as the election period had already begun when R.A. 11243 was enacted. To require implementation last May 13, 2019 would lead COMELEC to act precipitously.
- Also, if We were to follow COMELEC's interpretation, an incongruity would result as the winning candidate in COMELEC's special elections would serve a term less than that provided for in Section 7, Article VI of the 1987 Constitution (i.e., 3 years).
- Similar to Section 8, the only exception is when another term is "otherwise provided by law." Again, R.A.

11243 did not provide for a term less than three years, as provided in the 1987 Constitution.

- The elections for the First Legislative District of the Province of South Cotabato scheduled on May 13, 2019 should not have been suspended, and the candidate obtaining the most number of votes for the said position must be proclaimed. Consequently, the holdover provision under Section 2 of R.A. 11243 would be inapplicable since there would already be a newly elected and qualified Representative

FINAL
DECISION

WHEREFORE, the instant petition is hereby GRANTED. COMELEC Resolution No. 10524 is hereby declared NULL and VOID.

The elections for the representative of the First Legislative District of South Cotabato, including General Santos City is UPHeld. COMELEC is hereby DIRECTED to CONVENE a Special Provincial Board of Canvassers to PROCLAIM petitioner Shirlyn L. Bañas-Nogales, the winning candidate, as Representative of the First Legislative District of South Cotabato, including General Santos City.

Hagedorn v. House of Representatives

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Elroy John M. Hagedorn v. House of Representatives of the Philippines, Hon. Ferdinand Martin G. Romualdez, in his capacity as Speaker of the House of Representatives, Hon. Reginald S. Velasco, in his capacity as Secretary General of the House of Representatives, and Hon. Maximo Y. Dalog, Jr., in his capacity as Chairperson of the Committee on Suffrage and Electoral Reforms of the House of Representatives*
- **Citation:** G.R. No. 275800, April 22, 2025 (En Banc)
- **Ponente:** Hernando, J.
- **Bench Composition:** Gesmundo, C.J., Leonen, Lazaro-Javier, Inting, Zalameda, M.V. Lopez, Gaerlan, Rosario, J.Y. Lopez, Dimaampao, Marquez, and Kho, Jr., JJ., concurring; Caguioa, J., concurring and dissenting.
- **Syllabus Relevance & Topic:**
 1. **Legislative Department — Special Elections for Congressional Vacancies (Art. VI, Sec. 9 in rel. to R.A. No. 6645 & R.A. No. 7166):** Re-examination of the legal procedure and prerequisites for filling vacancies in the House of Representatives occurring at least one year before term expiration.
 2. **Mandatory and Ministerial Duty of COMELEC:** Re-interpretation that under R.A. No. 6645 as amended by R.A. No. 7166, the duty to call and hold a special election within 60 to 90 days from the occurrence of a vacancy belongs exclusively, mandatorily, and ministerially to COMELEC, without needing any prior resolution or certification from the House of Representatives.
 3. **Inapplicability of Mandamus Against the House of Representatives:** Separation of powers bars courts from issuing a writ of mandamus to compel Congress to pass internal resolutions or certifications, as no statutory or constitutional duty commands Congress to issue a vacancy resolution.
 4. **Locus Standi in District-Level Congressional Vacancies:** Distinction between national election grievances (*Lozada / Tolentino*) and district-specific voter grievances; a registered voter and resident of an unrepresented legislative district possesses a concrete, unique personal stake to demand representation.
 5. **Mootness Exception ("Formulation of Controlling Principles"):** Adjudication of a moot election controversy of first impression to clarify procedures for constitutional rights protection and governance [220–222].

CHRONOLOGICAL MATERIAL FACTS

1. **Election and Death of Rep. Edward S. Hagedorn:** In the May 2022 National and Local Elections (NLE), Edward S. Hagedorn was elected Representative of the Third Legislative District of the Province of Palawan. He served in the 19th Congress until his death on October 3, 2023—leaving a vacancy in the House of Representatives with more than one year remaining in his term (ending June 30, 2025).
2. **Local Government Requests for Special Election:**
 - On October 4, 2023, the *Sangguniang Panlungsod* of Puerto Princesa City passed a resolution requesting Speaker Ferdinand Martin G. Romualdez to request COMELEC to call a special election and to serve as temporary caretaker.
 - The Municipality of Aborlan, Palawan passed Resolution No. 295 calling on the House of Representatives (HOR) to pass a resolution certifying the vacancy and for COMELEC to hold a special election, alongside Resolution No. 297 requesting Speaker Romualdez to appoint Rep. Jose Chavez (2nd District) as caretaker.

3. **Designation of Legislative Caretaker (November 8, 2023):** The House of Representatives designated Speaker Romualdez as legislative caretaker of Palawan's Third District, establishing a District Caretaker Office headed by his Chief of Staff.
 4. **Filing of House Resolution No. 1661 (March 20, 2024):** Following constituent open letters and a request from petitioner Elroy John M. Hagedorn, Representative Eduardo "Bro. Eddie" C. Villanueva filed House Resolution No. 1661 titled "*A Resolution Certifying to the Existence of a Vacancy in the House of Representatives, Particularly the Representative for the Third (3rd) Legislative District of the Province of Palawan and Calling on the Commission on Elections (COMELEC) to Fill the Vacancy through a Special Elections*".
 5. **Inaction by the House Leadership:** On June 10, 2024, Secretary General Reginald S. Velasco informed Rep. Villanueva that under HOR Rules, HR 1661 was pending before the Committee on Suffrage and Electoral Reforms, and that the Speaker could not expedite adoption without collective committee/plenary action.
 6. **COMELEC's Refusal to Hold Special Election (April–July 2024):** Petitioner Elroy John Hagedorn submitted collected voter signatures to COMELEC Chairperson George Erwin M. Garcia requesting a special election. In letters dated April 22, May 6, and July 4, 2024, COMELEC invoked Section 1 of Republic Act No. 6645, taking the position that **it could NOT conduct a special election on its own without first receiving a formal resolution from the House of Representatives certifying the vacancy and calling for a special election** [215–217].
 7. **Filing of Mandamus Petition in the Supreme Court:** Because HR 1661 remained stuck in committee and COMELEC refused to act without a House resolution, petitioner Elroy John M. Hagedorn filed this Petition for Mandamus directly before the Supreme Court seeking to compel the House of Representatives to pass and issue a resolution certifying the vacancy and calling for a special election.
-

● PROCEDURAL HISTORY

1. **Original Special Civil Action:** Petitioner filed a Petition for Mandamus under Rule 65 against the House of Representatives, Speaker Romualdez, Secretary General Velasco, and Committee Chairperson Rep. Maximo Y. Dalog, Jr..
 2. **Comment by Respondents:** The Office of the Solicitor General (OSG) filed its Comment on November 7, 2024, praying for dismissal.
 3. **Supreme Court Decision (April 22, 2025):** The Supreme Court En Banc dismissed the petition.
-

● PARTIES' MATERIAL ARGUMENTS

- **Petitioner (Elroy John M. Hagedorn):**
 1. **Clear Legal Right & Standing:** As a registered voter, taxpayer, and resident of Palawan's Third District, he possesses a direct personal stake because his district is completely unrepresented by a duly elected legislator, infringing his constitutional right of suffrage and proportional representation.
 2. **Mandatory Ministerial Duty of Congress:** Under Article VI, Section 9 of the Constitution and R.A. No. 6645, the House has a mandatory ministerial duty to certify vacancies occurring at least one year before term expiration so COMELEC can conduct special elections.
 3. **Illegality of Caretaker System as Substitute:** Appointing a caretaker does not cure the constitutional violation because caretakers are non-elected administrators who cannot substitute for a voted representative.
- **Respondents (House of Representatives, Speaker Romualdez, et al., via OSG):**
 1. **Mootness & Lack of Direct Recourse:** The impending May 2025 elections render special elections physically impossible; direct recourse violates hierarchy of courts.

2. **Non-Imperative & Discretionary Nature:** Neither the Constitution nor statutes impose a ministerial duty on the House to issue a vacancy resolution; internal legislative proceedings are discretionary and protected by separation of powers.
 3. **Prerogative of Caretaker Appointment:** The Speaker validly exercises administrative authority to designate a legislative caretaker to maintain continuity of district services.
-

ISSUES

1. **Procedural Issue 1 (Mootness):** Whether the petition for mandamus is moot and academic, and whether the Supreme Court may decide the case under recognized exceptions.
 2. **Procedural Issue 2 (Locus Standi):** Whether a voter and resident of a specific legislative district has standing to compel the holding of a special election to fill a congressional vacancy.
 3. **Procedural Issue 3 (Hierarchy of Courts):** Whether direct recourse to the Supreme Court via a Rule 65 petition for mandamus is proper.
 4. **Substantive Issue 1 (Mandamus Against Congress):** Whether the House of Representatives may be compelled through a writ of mandamus to issue a resolution certifying a vacancy and calling for a special election.
 5. **Substantive Issue 2 (Requirement of House Resolution under R.A. 7166):** Whether, under R.A. No. 6645 as amended by R.A. No. 7166, a resolution from the House of Representatives is legally required before COMELEC can call and hold a special election to fill a congressional vacancy.
-

HOLDINGS AND CONTROLLING REASONING

1. On Mootness: The petition is **MOOT AND ACADEMIC**, BUT the Court decided the merits under the "Formulation of Controlling Principles" exception [220–222].

- **Ratio:** The case became moot because with the May 15, 2025 general elections less than three weeks away and only two months remaining in late Rep. Hagedorn's term, holding a special election became impossible.
- **Exception Applied:** The Court retained jurisdiction under the third exception in *Kilusang Mayo Uno v. Aquino III*—the need to formulate controlling principles and clarify constitutional/statutory processes for the protection of suffrage and representation in legislative vacancies. This case of first impression allowed the Court to settle conflicting interpretations of R.A. No. 6645 and R.A. No. 7166.

2. On Legal Standing (Locus Standi): Petitioner **HAS STANDING**.

- **Distinguishing *Lozada* and *Tolentino*:** In *Lozada v. COMELEC* and *Tolentino v. COMELEC*, voters challenged national elections, presenting abstract, generalized grievances shared equally by all citizens nationwide.
- **District-Specific Concrete Injury:** In contrast, a voter and resident of a single legislative district suffers a **concrete, unique, and personal injury** when his/her specific district is left without a duly elected representative in Congress due to a vacancy and the non-holding of a special election (*Robes v. COMELEC* standard).

3. On Direct Recourse: Direct resort to the Supreme Court is **PROPER**.

- Under *Gios-Samar, Inc. v. DOTr*, direct recourse is allowed when the primary questions raised are **purely legal**, involving statutory and constitutional interpretation without disputed material facts.

4. On Mandamus Against the House of Representatives: NO. Mandamus CANNOT issue against the House of Representatives.

- **Requisites of Mandamus:** Mandamus lies only to compel the performance of a **purely ministerial act** explicitly commanded by law where the petitioner has a clear legal right and the respondent has an imperative legal duty.
- **Separation of Powers:** Neither Article VI, Section 9 of the Constitution nor implementing statutes command the House to pass a resolution certifying a vacancy. Forcing the House to act on pending committee resolutions (such as HR 1661) violates the principle of separation of powers and impermissibly intrudes into internal legislative procedures (*Calleja v. Executive Secretary*; *Abines v. Duque III*).

5. On the Statutory Mechanism (R.A. No. 6645 vs. R.A. No. 7166): A House Resolution is NO LONGER REQUIRED; COMELEC possesses the EXCLUSIVE MANDATORY AND MINISTERIAL DUTY to call special elections.

- **A. The Shift from R.A. No. 6645 to R.A. No. 7166:**
 - Under Section 1 of **Republic Act No. 6645 (1988)**, COMELEC was instructed to hold a special election "upon receipt of a resolution of the Senate or the House of Representatives... certifying to the existence of such vacancy and calling for a special election".
 - However, **Republic Act No. 7166 (1991)** amended R.A. No. 6645.
 - Section 4 of R.A. No. 7166 explicitly eliminated the requirement of a prior congressional resolution for vacancies occurring at least one year before term expiration.
- **B. Mandatory and Ministerial Duty Exclusively in COMELEC:**
 - When a vacancy occurs in the House of Representatives **at least one year before the expiration of the term**, the power and duty to call and hold a special election **resides mandatorily and ministerially in COMELEC**.
 - COMELEC must call and hold the special election **not earlier than 60 days nor longer than 90 days after the occurrence of the vacancy**.
 - **COMELEC is not beholden to, nor must it await, any resolution, certification, call, or positive act from the House of Representatives or the Speaker.**
 - COMELEC gravely erred in invoking old R.A. No. 6645 to justify its inaction. Had petitioner impleaded COMELEC, mandamus would have issued against COMELEC—not the House.

DOCTRINE, TESTS, AND LEGAL STANDARDS

1. **Mandatory Ministerial Special Election Rule (*Hagedorn Rule*):** Under R.A. No. 6645 as amended by R.A. No. 7166, when a vacancy occurs in the House of Representatives at least one year prior to term expiration, COMELEC has an independent, mandatory, and ministerial duty to call and hold a special election within 60 to 90 days from the vacancy's occurrence.
 2. **Elimination of Congressional Certification Prerequisite:** A resolution or certification from the House of Representatives is **not** a condition precedent for COMELEC to exercise its statutory mandate to conduct special congressional elections.
 3. **Standing of District Voters for Legislative Representation:** A registered voter and resident of a specific legislative district has *locus standi* to demand the conduct of a special election because the lack of an elected representative inflicts a concrete, non-generalized injury on the district's constituents.
-

♥ DISPOSITION

- **Ruling:** The Petition for Mandamus is **DISMISSED**.
-

● SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLE LINES

Concurring and Dissenting Opinion of Associate Justice Alfredo Benjamin S. Caguioa [240–243]

- **Concurrence:** Fully agreed with dismissing the petition solely on the ground of **mootness**.
- **Dissent on Statutory Construction:** Strongly dissented from the majority's holding that R.A. No. 7166 repealed or eliminated the requirement under R.A. No. 6645 for a House resolution. Maintained that R.A. No. 7166 did not impliedly repeal Section 1 of R.A. No. 6645 regarding House vacancies, and that a formal resolution from the relevant legislative chamber remains a necessary statutory prerequisite before COMELEC can act.

Source-Verified Quotable Lines

- 💬 **On COMELEC's Independent Mandatory Duty (Hernando, J.):**

"Pursuant to Republic Act No. 7166, a resolution from the House of Representatives is no longer required for the COMELEC's conduct of special elections to fill such vacancy... This duty of the COMELEC to call and hold a special election is mandatory and ministerial. In the exercise of this duty, the COMELEC is not beholden to any certification, call, or any positive act from the House of Representatives."

- 💬 **On District Voter Standing (Hernando, J.):**

"Petitioner's interest is concrete and unique to the residents and constituents of the Third District of Palawan, whose district has no duly elected representative in Congress."

- 💬 **On Separation of Powers and Mandamus against Congress (Hernando, J.):**

"Absent a clear ministerial duty on the part of the House of Representatives to issue the resolution sought by petitioner, the Court has no authority to compel the House of Representatives to do so. By virtue of the principle of separation of powers, the courts cannot interfere with legislative discretion..."

● RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Hagedorn v. House of Representatives* (2025), Rep. Edward Hagedorn of Palawan's 3rd District died on Oct 3, 2023, leaving a vacancy with over 1.5 years remaining in his term. Local LGUs requested special elections, and Rep. Villanueva filed HR 1661 certifying the vacancy, but the House leadership left HR 1661 pending in committee and designated Speaker Romualdez as caretaker. Petitioner Elroy Hagedorn petitioned COMELEC, but COMELEC refused to hold special elections, claiming that under R.A. 6645, it

could not act without a formal House Resolution. Elroy filed a Rule 65 petition for mandamus against the House of Representatives to compel it to pass a vacancy resolution.

The Supreme Court En Banc, through Justice Hernando, DISMISSED the petition. The Court held: (1) The case is moot due to the May 2025 elections, but reviewable under the exception to formulate controlling principles; (2) Petitioner has standing because unrepresented district voters suffer concrete, unique injuries distinct from national generalized grievances (distinguishing *Lozada/Tolentino*); (3) Mandamus CANNOT issue against the House of Representatives because passing a resolution is a discretionary internal legislative act protected by separation of powers; and (4) Crucially, under R.A. 6645 as amended by R.A. 7166, a House Resolution is NO LONGER REQUIRED! COMELEC has an independent, mandatory, and ministerial duty to call and hold special elections within 60 to 90 days from the vacancy's occurrence without awaiting any act from Congress. COMELEC (not the House) was the proper subject of mandamus."* [209, 210, 215, 221, 222, 224, 227, 230, 234–236, 238]

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: Why did the Supreme Court distinguish *Hagedorn v. House of Representatives* from *Lozada v. COMELEC* and *Tolentino v. COMELEC* regarding legal standing?**
 - **A:** *Lozada* and *Tolentino* involved national elections where petitioners asserted generalized grievances shared equally by all citizens nationwide. In *Hagedorn*, the grievance was specific to the 3rd District of Palawan; as a voter and resident of that unrepresented district, petitioner suffered a concrete, unique injury caused by the absence of an elected district representative in Congress.
2. **Q: Why did COMELEC err when it refused to conduct a special election without a resolution from the House of Representatives?**
 - **A:** COMELEC erroneously relied on the unamended text of Section 1 of R.A. No. 6645 (1988). Under R.A. No. 7166 (1991), the requirement of a prior congressional resolution was eliminated for vacancies occurring at least one year before term expiration. The power and duty to call and hold special elections within 60 to 90 days resides mandatorily and ministerially in COMELEC alone.
3. **Q: Can a voter obtain a writ of mandamus against the House of Representatives to force it to pass a resolution certifying a congressional vacancy?**
 - **A: No.** Mandamus requires a clear legal right and an imperative ministerial duty enjoined by law. Neither the Constitution nor statutes impose a duty on the House to pass a vacancy resolution, and court interference in internal House committee/resolution procedures violates the principle of separation of powers.

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose a Representative dies 18 months before term expiration. COMELEC refuses to hold a special election, stating it is waiting for the House Speaker to issue a letter of certification. The district's voters file a petition for mandamus directly against COMELEC to compel the holding of a special election. Will mandamus lie against COMELEC?
- **Answer: Yes, Mandamus WILL LIE against COMELEC.** Under *Hagedorn v. House of Representatives*, R.A. No. 7166 places the exclusive, mandatory, and ministerial duty on COMELEC to call and hold a special election within 60 to 90 days from the vacancy's occurrence. Because COMELEC has no legal discretion to await a House resolution or Speaker's letter, COMELEC unlawfully neglects a ministerial duty, making it the proper respondent in a mandamus petition.

One-Sentence Doctrine Anchor

Under R.A. No. 7166, COMELEC has an independent, mandatory, and ministerial duty to call and hold special congressional elections for vacancies occurring at least one year before term expiration, without needing any certification or resolution from the House of Representatives.

HAGEDORN v HOUSE OF REPRESENTATIVES (2025)

Topic Subtopic	Election - Special Election	GR No. & Ponente	GR 275800, Hernando, J.
Petitioner/s	Elroy John M. Hagedorn	Respondent/s	House of Representatives (Hon. Ferdinand Martin Romualdez, in his capacity as the Speaker of the House)
Doctrine	RA 7166, which amended RA 6645, now allows COLEMEC to conduct a special election due to the existence of permanent vacancy even without a resolution certifying the existence of vacancy from the House of Representatives or Senate. The power and duty to call and hold such elections is now within the mandate of COMELEC.		

FACTS

- Rep. Edward S. Hagedorn of the 3rd District of Palawan died on Oct. 3, 2023. The Sangguniang Panlungsod of Puerto Princesa City and Municipality of Aborian, Palawan asked the HOR to request the COMELEC to hold a special election to fill up the said vacancy.
- However, no special election was called to replace Rep. Hagedorn.
- On November 8, 2023, the House of Representatives designated Speaker Romualdez as the legislative caretaker of the Third District of Palawan. To ensure continuous delivery of service to the constituents of the Third District, Speaker Romualdez established a District Caretaker Office headed by his Chief of Staff, Karl Legazpi
- Numerous requests went unheard. Although Rep. Eduardo Villanueva filed House Resolution 1661 calling for a special election (upon the request of the late Hagedorn's wife), the resolution remained pending in the House of Representative.
- People's letters were also forwarded to COMELEC requesting for a special election. However, COMELEC invoked Republic Act No. 6645 to state that before it can conduct a special election, the House of Representatives must first issue a resolution certifying the existence of the vacancy and calling for a special election
- Further attempts and follow ups also happened, but the HOR and the COMELEC did not take any action.
- Hence, the petitioner filed a petition for mandamus to compel the House of Representative to issue a resolution calling for a special election, which raise the following issue/s:

1) SECTION 1 RA 6645. In case a vacancy arises in the Senate at least eighteen (18) months or in the House of Representatives at least one (1) year before the next regular election for Members of Congress, the Commission on Elections, **upon receipt of a resolution** of the Senate or the House of Representatives, as the case may be, certifying to the existence of such vacancy and calling for a special election, shall hold a special election to fill such vacancy. If Congress is in recess, an official communication on the existence of the vacancy and call for a special election by the President of the Senate or by the Speaker of the House of Representatives, as the case may be, shall be sufficient for such purpose. The Senator or Member of the House of Representatives thus elected shall serve only for the unexpired term.

ISSUE 1

Main – Procedural	W/N the Court's exercise of judicial review is warranted in this case.	YES
-------------------	--	-----

RULING and RATIO DECIDENDI:

- YES.** The court ruled on these three main procedural issues: 1) Mootness, 2) Legal Standing, and 3) Hierarchy of Courts.

MOOTNESS. Yes, but there are exceptions

- Although the case is already moot (April 22, 2025) because of the incoming 2025 general election, the Court may decide the case to formulate controlling principles and conditions for the conduct of special election, and the case is capable of repetition evading review.
- This case is one of first impression and provides an opportune occasion for the Court to shed light on the controlling procedure for the conduct of special elections to fill Congressional vacancies. Verily, a definitive ruling from this Court is imperative to clarify the parameters for the conduct of special elections for vacant Congressional seats, to guide the Legislature, the COMELEC, and the public in the event of a repetition of the

factual precedents that gave rise to this Petition.

Legal Standing. Yes

- The petitioner is clothed with legal standing to file this Petition for Mandamus for the conduct of a special election. Petitioner, in invoking his right to suffrage and his related right to vote for a duly elected representative of the Third District of Palawan in Congress, possesses the said personal stake in this case. As a voter and resident of the Third Legislative District of Palawan, he is directly affected by the fact that his interests as a voter and resident of the Third District is unrepresented by a duly elected representative in the House of Representatives because of Rep. Hagedorn's passing.
- He also stands to be directly affected by the non-holding of a special election for Rep. Hagedorn's replacement, which he traces to the House of Representatives' purported inaction to certify the vacancy and call for the election.
- In this case, he is directly affected by the fact that as a voter and resident, his district remained unrepresented in the House of Representatives. Argumentatively, even though he is not directly affected, he has standing as a concerned citizen as the issue is of transcendental importance. – Not a mere generalized grievance
- Transcendental importance

Direct Recourse to Supreme Court (Hierarchy of Court): Allowed

- Direct recourse to the Supreme Court is allowed if it is a question of law (*Gios-Samar Inc v DOTC*). In this case, the issue is purely legal which asks whether Congress may be compelled to issue a resolution calling for a special election.

LEGAL BASES

Robes v COMELEC - the Court held that petitioner therein, who filed the suit as a resident, taxpayer, registered voter, and the incumbent representative of the lone legislative district of San Jose del Monte, had shown a clear legal right to demand the election of two members who will represent the lone legislative district of San Jose del Monte to the Sangguniang Panlalawigan.

ISSUE 2

Main – Substantive	W/N the HOR may be compelled through <i>mandamus</i> to issue a resolution certifying to the existence of a vacancy in the House of Representatives.	NO
	W/N the COMELEC may be compelled through <i>mandamus</i> to issue a resolution calling for a special election due to vacancy	YES

RULING and RATIO DECIDENDI:

Controlling Laws

- **SECTION 9 Art VI (1987).** In case of vacancy in the Senate or in the House of Representatives, **a special election may be called to fill such vacancy in the manner prescribed by law**, but the Senator or Member of the House of Representatives thus elected shall serve only for the unexpired term
- **RA6645** - An Act Prescribing the Manner of Filling A Vacancy in the Congress of the Philippines - the COMELEC shall not hold a special election to fill the vacancy in the HOR absent the issuance of the required resolution.
 - Legislative intent also showed that it was deliberately phrased to clothe the respective Houses in Congress with the exclusive prerogative to decide whether to issue a resolution certifying a vacancy and calling for special elections
- **RA7166** (amending RA6645) made the ff changes:
 1. The requirement for a certification from the HOR certifying to the vacancy and calling for a special election has been removed, by virtue of the deletion of the phrase "upon receipt of a resolution of the Senate or the House of Representatives, as the case may be" or any words of similar import; and
 2. The contemplated vacancy must now occur at least one year before the expiration of the term, in contrast to the old provision wherein the vacancy shall occur at least one year before the next regular election for

members of Congress.

For Congress

- **SECTION 9 Art VI (1987)** - It used the word “may” and not “shall” which means that the HOR has the discretion over the matter, as opposed to a mandatory effect. In the absence of constitutional or legal mandate, the Court may not compel the House of Representatives to issue a resolution which clearly falls within their discretion, as provided by their internal rules.
- Nowhere in the language of Republic Act No. 6645 and Republic Act No. 7166 does it expressly or even impliedly provide that Congress may be compelled to issue a resolution to certify a vacancy and call for special election. Legislative intent gave it exclusive prerogative and discretion
- The Court will also not intervene in the internal affairs and procedures of a co-equal branch of govt
- Absent a clear ministerial duty on the part of the HOR to issue the resolution sought by petitioner, the Court has no authority to compel the HOR to do so. By virtue of the principle of separation of powers, the courts cannot interfere with legislative discretion exercised within constitutional limits

For COMELEC

- Consistent with the foregoing amendments, RA7166 provides that the period for the COMELEC to call for and conduct a special election begins from the occurrence of the vacancy, in contrast to Section 2 of the old law where the period for the COMELEC to conduct a special election begins from the date of the resolution or communication from Congress.
- In addition, while as worded, it is the HOR who will "call" for the election based on the earlier law, **the later law now expressly reposes the role of calling for a special election with the COMELEC.**
- The Court holds to not retain the certification requirement from the Congress as it would interfere with the COMELEC's duty to call and hold the elections not earlier than 60 days but not later than 90 days from the occurrence of the vacancy, which is mandatory.
- The COMELEC should be given a wide latitude of discretion to determine the existence of the vacancy and accordingly, the reasonable means to ascertain whether a vacancy exists—whether it be on the basis of official press releases or announcements from Congress, or a certification from the Speaker of the HOR or the Secretary-General even when Congress is in session, without need of compelling Congress to go through the process of issuing a resolution.
- In the unlikely event that no press release or official announcement or certification is issued by Congress, and absent grave abuse of discretion, the COMELEC should not be prematurely prevented from determining an existing vacancy by duly investigating and verifying reliable news reports or communications, as the death, resignation, dismissal, or quo warrant of a member of Congress would more likely be widely publicized as matters of national interest.
- Withal, the power and duty to call for and hold a special election in case of a vacancy in the House of Representatives now resides with the COMELEC, who must now call and hold the special election no later than 90 days from the occurrence of the vacancy, and without need of any positive act from Congress.

In This Case

- As the petitioner's ultimate objective is the conduct of a special election to fill the vacancy for the Representative of the Third District of Palawan, and considering the said vacancy occurred more than a year before the expiration of Rep. Hagedorn's term, petitioner should have also **impleaded** the COMELEC as a respondent to this Petition, or filed the Petition for Mandamus with the COMELEC as the sole respondent, to compel the COMELEC to hold the special election in the manner prescribed under RA6645, as amended by RA7166.
- On this score, the COMELEC's duty to call and hold the special election within the prescribed period under RA6645, as amended by RA7166, upon occurrence of a vacancy at least one year before the expiration of the term of such seat, is a ministerial duty that may be the subject of a petition for mandamus.

As a collateral matter to his argument that the House of Representatives' non-issuance of the demanded resolution violated his right to suffrage and proportional representation, petitioner also asserts that this alleged violation is not cured by the appointment of a temporary caretaker to act as the representative of the Third District

of Palawan, since such practice is unconstitutional and bereft of legal basis. However, having already resolved the controversy between the parties without tackling this constitutional question, the Court deems it prudent to exercise judicial restraint.

**FINAL
DECISION**

ACCORDINGLY, the Petition for Mandamus is DISMISSED. SO ORDERED.

SEPARATE OPINION/S

CAGUIOA, J,
*dissenting &
concurring*

Concurred that the petition must be dismissed, but based on mootness considering that a special election for the said vacancy could no longer be held at this time.

Dissented on how the *ponencia* did not answer the question: How the COMELEC would have official knowledge of the existence of permanent vacancy without the resolution from either house of Congress. Is it through the heirs, any constituents, news reports, etc?

Therefore, resolution is still required in accordance with Sec 1 RA6645 since RA 7166 did not mention any repealing clause; thus, the two statutes may be construed together wherein the House of Representatives still needs to issue a resolution before a special election may be conducted by COMELEC.

Defensor-Santiago v. Guingona, Jr.

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Sen. Miriam Defensor-Santiago and Sen. Francisco S. Tatad v. Sen. Teofisto T. Guingona, Jr. and Sen. Marcelo B. Fernan*
- **Citation:** G.R. No. 134577, November 18, 1998 (En Banc)
- **Ponente:** Panganiban, *J.*
- **Bench Composition:** Narvasa, *C.J.*, Davide, *Jr.*, Bellosillo, Melo, Puno, Kapunan, Martinez, Quisumbing, Purisima, and Pardo, *JJ.*, concurring; Mendoza, *J.*, concurring in the result and dissenting in part; Vitug, *J.*, concurring in the result; Feliciano, *J.*, on official leave.
- **Syllabus Relevance & Topic:**
 1. **Legislative Department — Selection of Legislative Officers (Art. VI, Sec. 16(1)):** Mandate that the Senate shall elect its President and the House of Representatives its Speaker by a majority vote of all its respective Members, and that each House shall choose "such other officers as it may deem necessary."
 2. **Scope of Judicial Review over Internal Legislative Proceedings (Art. VIII, Sec. 1 & Art. VI, Sec. 16(3)):** Judicial power to determine whether grave abuse of discretion or constitutional/statutory violations attended internal legislative actions, balanced against the doctrine of separation of powers and judicial self-restraint in parliamentary procedure [1, 28, 158–159, 165].
 3. **Definition of "Majority" and "Minority" in Legislative Chambers:** Absence of a constitutional or statutory definition of "majority" and "minority" for selecting internal legislative officers (such as the Minority Leader); the method of selecting secondary officers is a derivative prerogative of the legislative chamber itself [1, 28, 160–165].
 4. **Nature of Quo Warranto (Rule 66) vs. Certiorari (Rule 65):** Requirement that a private petitioner in *quo warranto* must demonstrate a clear legal title to the contested office; treating an improperly denominated petition as a joint *certiorari* and *quo warranto* action to address allegations of grave abuse of discretion [149, 166–167, 175–176].

CHRONOLOGICAL MATERIAL FACTS

1. **Opening of the 11th Congress (July 27, 1998):** The Senate of the Philippines convened for the First Regular Session of the 11th Congress. At the time, the Senate consisted of 23 sitting members (with one seat vacant due to Senator Gloria Macapagal-Arroyo's election as Vice President). The party affiliations were:
 - 10 members — Laban ng Masang Pilipino (LAMP)
 - 7 members — Lakas-National Union of Christian Democrats-United Muslim Democrats of the Philippines (Lakas-NUCD-UMDP)
 - 1 member — Liberal Party (LP)
 - 1 member — Aksyon Demokratiko
 - 1 member — People's Reform Party (PRP)
 - 1 member — Gabay Bayan
 - 2 members — Independent
2. **Election of Senate President:** On the agenda was the election of officers. Senator Blas F. Ople nominated Senator Marcelo B. Fernan (LAMP) for Senate President. Senator Miriam Defensor-Santiago nominated Senator Francisco S. Tatad (PRP) for the same post. By a vote of 20 to 2 (with Senator Fernan abstaining), Senator Fernan was declared the duly elected President of the Senate.

3. **Tatad's Claim to Minority Leadership:** Following the election of Fernan, Senator Tatad manifested that, with the agreement of Senator Santiago (allegedly the only other member of the minority), he was assuming the position of Senate Minority Leader. Tatad posited that those who voted for Fernan comprised the "majority," whereas only those two who voted for him (the losing nominee) constituted the "minority."
 4. **Lakas Party Counter-Manifestation:** Senator Juan M. Flavio manifested that the 7 senators belonging to the Lakas-NUCD-UMDP Party—likewise a minority group—had chosen Senator Teofisto T. Guingona, Jr. as their Minority Leader.
 5. **Senate Debates and Caucus (July 28–29, 1998):** The body engaged in extensive floor debates over two session days, during which Senators Santiago and Tatad delivered privilege speeches. On the third session day, the Senate met in caucus but failed to reach a consensus.
 6. **Formal Recognition of Guingona (July 30, 1998):** Majority Leader Franklin M. Drilon informed the Senate that he received a letter signed by all 7 Lakas-NUCD-UMDP senators stating that they had elected Senator Guingona as Minority Leader. By virtue of this unanimous endorsement by the 7-member bloc, Senate President Fernan formally recognized Senator Guingona as the Minority Leader of the Senate.
 7. **Filing of Petition before Supreme Court (July 31, 1998):** Senators Santiago and Tatad filed an original Petition for *Quo Warranto* before the Supreme Court seeking the ouster of Senator Guingona as Minority Leader and the declaration of Senator Tatad as the rightful holder of the position.
-

● PROCEDURAL HISTORY

1. **Original Action in Supreme Court (July 31, 1998):** Petitioners filed a Petition for *Quo Warranto* under Rule 66, Section 5 of the Rules of Court.
 2. **Court Order for Comment (August 4, 1998):** The Supreme Court required respondents (Guingona and Fernan) and the Solicitor General to file Comments.
 3. **Re-characterization of Action:** Although styled as a *quo warranto* petition, the Court treated the pleading as a joint *certiorari* (Rule 65) and *quo warranto* (Rule 66) action to address the allegation that Senate President Fernan committed grave abuse of discretion.
 4. **En Banc Decision (November 18, 1998):** The Supreme Court En Banc dismissed the petition.
-

● PARTIES' MATERIAL ARGUMENTS

- **Petitioners (Sen. Miriam Defensor-Santiago & Sen. Francisco S. Tatad):**
 1. **Constitutional Basis of "Majority" and "Minority":** The constitutional command in Article VI, Section 16(1) requiring the election of the Senate President by "a majority vote of all its respective Members" carries a judicial duty to define the terms "majority" and "minority."
 2. **Definitional Formula:** "Majority" refers to those senators who (a) voted for the winning Senate President and (b) accepted committee chairmanships. Conversely, the "minority" consists strictly of those who voted against the winning Senate President and accepted no committee chairmanships.
 3. **Illegal Assumption by Guingona:** Senator Guingona voted for Fernan as Senate President and accepted a committee chairmanship; hence, he belonged to the majority and could not be elected Minority Leader. Senator Tatad, as the losing nominee for Senate President supported by Senator Santiago, was the sole legitimate claimant.
 4. **Grave Abuse of Discretion:** Senate President Fernan committed grave abuse of discretion in recognizing Guingona despite clear parliamentary logic.
- **Respondents (Sen. Teofisto T. Guingona, Jr. & Sen. Marcelo B. Fernan) & Solicitor General:**

1. **Political Question & Separation of Powers:** The choice of a Minority Leader is an internal legislative matter falling exclusively within the domain of the Senate, over which courts cannot exercise jurisdiction without violating the separation of powers.
 2. **No Constitutional or Statutory Rule Violated:** The Constitution creates only the positions of Senate President and House Speaker. It does not create or define the office of Minority Leader, nor does it prescribe selection rules. The selection method is left entirely to Senate internal prerogative.
 3. **Lack of Standing for Santiago:** Senator Santiago does not claim title to the office of Minority Leader; thus, under Rule 66, she has no standing to maintain a *quo warranto* petition.
 4. **Consistency with Senate Practice:** No law or parliamentary practice dictates that voting for the winning Senate President disqualifies a senator from joining the minority or serving as Minority Leader.
-

● ISSUES

1. **Procedural Issue 1 (Jurisdiction):** Whether the Supreme Court has jurisdiction over the petition to determine the lawful Senate Minority Leader [154–155].
 2. **Procedural Issue 2 (Locus Standi):** Whether petitioners Santiago and Tatad have legal standing to institute the action [175–176].
 3. **Substantive Issue 1 (Constitutional Definition):** Whether Article VI, Section 16(1) of the 1987 Constitution defines "majority" and "minority" or mandates that members who vote against the winning Senate President *ipso facto* constitute the minority entitled to elect the Minority Leader [154, 160–162].
 4. **Substantive Issue 2 (Usurpation & Grave Abuse of Discretion):** Whether Respondent Guingona usurped the position of Minority Leader, and whether Respondent Fernan acted with grave abuse of discretion in recognizing Guingona [154, 166–168].
-

🌸 HOLDINGS AND CONTROLLING REASONING

1. On Jurisdiction: YES. The Supreme Court HAS JURISDICTION over the petition [154–159].

- **Expanded Judicial Power (Art. VIII, Sec. 1):** Citing *Avelino v. Cuenco*, *Daza v. Singson*, *Coseteng v. Mitra*, and *Guingona v. Gonzales*, the Court reaffirmed that Article VIII, Section 1 of the 1987 Constitution explicitly imposes upon the judiciary the duty to determine whether there has been a grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the Government [155, 158–159].
- **Legality vs. Wisdom:** Where a petition alleges that an act of a legislative officer violated the Constitution, a statute, or even the chamber's own rules, the issue is **justiciable** because it touches upon the *legality*, not the *wisdom*, of the contested act [158–159, 166]. Therefore, the Court has jurisdiction to inquire whether constitutional or legal boundaries were transgressed.

2. On Locus Standi: Senator Santiago LACKS standing for *quo warranto*, BUT the defect is CURED by Tatad's inclusion and the *certiorari* framing [175–176].

- **Rule 66 Requirement:** In a *quo warranto* proceeding brought by a private individual to recover a public office, the petitioner must prove a **clear legal title** to the contested office. Because Senator Santiago made no claim that she was entitled to be Minority Leader, she lacked standing.
- **Dual Nature of Petition:** However, because Senator Tatad explicitly claimed title to the office, and the petition also alleged grave abuse of discretion against Senate President Fernan, the Court treated the case as a joint *certiorari* (Rule 65) and *quo warranto* (Rule 66) action, thereby overcoming procedural standing hurdles [175–176].

3. On Constitutional Meaning of "Majority" and "Minority": NO. Article VI, Section 16(1) DOES NOT define "majority" or "minority," nor does it dictate who may elect the Minority Leader [1, 28, 160–165].

- **A. Plain Meaning of Article VI, Section 16(1):**

- Section 16(1) states: *"The Senate shall elect its President and the House of Representatives its Speaker, by a majority vote of all its respective Members."*
- The word "majority" simply means *"the number greater than half or more than half of any total"* (i.e., more than 12 out of 23 senators).
- The constitutional clause merely sets the **vote threshold** required to elect a Senate President; it does *not* delineate who comprises the "majority" or "minority" blocs within the chamber [1, 28, 161–162].

- **B. Derivative Legislative Prerogative over Other Officers (Art. VI, Sec. 16(3)):**

- The Constitution is dead silent regarding the position, definition, or selection of a Minority Leader.
- Section 16(1), second sentence, provides that *"Each House shall choose such other officers as it may deem necessary."*
- The method of choosing secondary officers is **merely a derivative of the legislative power** conferred by the Constitution. Under Article VI, Section 16(3), each House determines the rules of its proceedings [164–165].

- **C. Absence of Specific Senate Rules and Rejection of Petitioners' Formula:**

- Senate Rules I and II provide for the election of the Senate President, President Pro Tempore, Secretary, and Sergeant-at-Arms, but are **completely silent** regarding the Minority Leader [164–165].
- History and Senate practice refute petitioners' rigid formula:
 - In the 8th Congress, minority Senator Joseph Estrada seconded the nomination of winning Senate President Jovito Salonga.
 - In the 9th and 10th Congresses, committee chairmanships were distributed to all senators, including minority members and the Minority Leader himself [162–163, 173].
- In a multi-party system with several minority groups and independents, the Court has no legal basis to force a specific formula onto the Senate. Where no operable legal norms exist, the legislature must be given full freedom to fashion and implement its own internal standards.

4. On Usurpation and Grave Abuse of Discretion: NO Usurpation by Guingona, and NO Grave Abuse of Discretion by Fernan [166–168].

- **No Usurpation:** Usurpation requires an arbitrary assumption of office without color of title. Senator Guingona was chosen by a unanimous resolution of the 7 senators of Lakas-NUCD-UMDP (the largest minority party in the Senate). Tainted by no illegality, his assumption of office was valid [167–168].
- **No Grave Abuse of Discretion:** Senate President Fernan recognized Guingona only after conducting two full sessions of debate and a Senate caucus. Because Fernan violated no constitutional provision, statute, or Senate rule, no grave abuse of discretion could be imputed to him.

● DOCTRINE, TESTS, AND LEGAL STANDARDS

SELECTION OF SECONDARY LEGISLATIVE OFFICERS

(Santiago v. Guingona Doctrine)



CONSTITUTIONAL MANDATE (Art. VI, Sec. 16(1) & (3))

- Senate President & Speaker elected by majority vote (>1/2).
- "Each House shall choose such other officers as it may deem necessary."

- Method of selection is a DERIVATIVE PREROGATIVE of each House.

EXPRESS CONSTITUTIONAL SILENCE

- Constitution does NOT define "majority" or "minority" blocs.
- Defeated candidate for Senate President does NOT ipso facto become Minority Leader.

JUDICIAL SELF-RESTRAINT

- Courts will NOT dictate internal parliamentary mechanics absent violation of specific constitutional, statutory, or internal rules.

1. **Derivative Prerogative Doctrine for Legislative Officers (*Santiago v. Guingona Standard*):** The method of choosing legislative officers other than the Senate President and House Speaker is a derivative prerogative of the exercise of power conferred by Article VI, Section 16(1) and (3). In the absence of constitutional or statutory constraints, each House possesses full discretion to establish its own rules and consensus for selecting officers.
2. **Non-Automatic Minority Leadership Rule:** The member who votes against the winning Senate President or loses the Senate presidency election does **not ipso facto** become the Minority Leader, nor does voting for the winning Senate President disqualify a legislator from belonging to the minority bloc.
3. **Judicial Review of Parliamentary Acts:** While the Supreme Court has jurisdiction under Article VIII, Section 1 to review allegations of grave abuse of discretion in Congress, it will exercise judicial self-restraint and decline to intervene in internal legislative affairs where no specific, operable constitutional or statutory norms have been violated [148, 158–159, 165].

♥ DISPOSITION

- **Ruling:** The Petition for *Quo Warranto* and *Certiorari* is **DISMISSED**.

● SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLE LINES

1. Concurring Opinion of Associate Justice Vicente V. Mendoza [177–181]

- **Jurisdictional Dissent:** Dissented from the majority's holding that the Court had jurisdiction over the petition.
- **Purely Political Question:** Maintained that the choice of a Minority Leader is a purely political question touching upon the internal organization of a co-equal branch. The Senate President and Minority Leader are merely legislative officers, not state officers. Courts have no power to inquire into internal parliamentary organization unless the rights of third parties or explicit constitutional limitations are infringed.

2. Concurring Opinion of Associate Justice Jose C. Vitug [182–183]

- **Scope of Article VI, Section 16(1):** Stressed that the majority vote requirement in Section 16(1) speaks only of the quantity of votes needed to elect a Senate President; it does not divide the Senate into permanent "majority" and "minority" camps.

Source-Verified Quotable Lines

-  **On Judicial Self-Restraint and Separation of Powers (Panganiban, J.):**

"Constitutional respect and a becoming regard for the sovereign acts of a coequal branch prevents this Court from prying into the internal workings of the Senate. Where no provision of the Constitution or the laws of even the Rules of the Senate is clearly shown to have been violated, disregarded or overlooked, grave abuse of discretion cannot be imputed to Senate officials for acts done within their competence and authority. This Court will be neither a tyrant nor a wimp; rather, it will remain steadfast and judicious in upholding the rule and majesty of the law."

- **On the Prerogative to Choose Secondary Legislative Officers (Panganiban, J.):**

"The method of choosing who will be such other officers is merely a derivative of the exercise of the prerogative conferred by the [Constitution]. Therefore, such method must be prescribed by the Senate itself, not by this Court."

- **On Non-Automatic Minority Leadership (Panganiban, J.):**

"In effect, while the Constitution mandates that the President of the Senate must be elected by a number constituting more than one half of all the members thereof, it does not provide that the members who will not vote for him shall ipso facto constitute the 'minority', who could thereby elect the minority leader. Verily, no law or regulation states that the defeated candidate shall automatically become the minority leader."

RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Defensor-Santiago v. Guingona, Jr.* (1998), the 11th Congress opened with 23 senators. Marcelo Fernan (LAMP) was elected Senate President over Francisco Tatad (PRP) by a 20-2 vote. Tatad, supported by Miriam Defensor-Santiago, claimed he was automatically the Minority Leader as the losing nominee. However, the 7 Lakas-NUCD-UMDP senators (a minority party bloc) elected Teofisto Guingona, Jr. as their Minority Leader. After two days of floor debate and a caucus, Senate President Fernan formally recognized Guingona. Santiago and Tatad filed a Rule 66 quo warranto petition in the Supreme Court to oust Guingona and declare Tatad Minority Leader, arguing that under Art. VI, Sec. 16(1), 'majority' means those who voted for the winning Senate President, and 'minority' means those who voted against him.

The Supreme Court En Banc, through Justice Panganiban, DISMISSED the petition. The Court held: (1) SC has expanded jurisdiction under Art. VIII, Sec. 1 to determine if internal legislative acts involved grave abuse of discretion; (2) Santiago lacked standing under Rule 66 because she did not claim title to office, but Tatad's claim and the Rule 65 certiorari framing cured the defect; (3) Art. VI, Sec. 16(1) merely sets the vote threshold (>1/2) to elect the Senate President—it does NOT define 'majority' or 'minority' blocs, nor does the defeated candidate automatically become Minority Leader; (4) Under Art. VI, Sec. 16(3), choosing secondary officers is a derivative internal prerogative of the Senate; and (5) Guingona was validly chosen by 7 Lakas senators, and Fernan committed no grave abuse of discretion in recognizing him."* [1, 28, 148–155, 160–168, 175–176]

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: Does the Supreme Court have jurisdiction to review how the Senate selects its Minority Leader, or is it a non-justiciable political question?**
 - **A:** Under the expanded definition of judicial power in Article VIII, Section 1, the Supreme Court **has jurisdiction** to inquire whether internal legislative acts violated the Constitution, statutes, or internal rules, or were attended by grave abuse of discretion [155, 158–159]. However, if no specific constitutional, statutory, or internal rule was violated, the Court will exercise judicial self-restraint and uphold the chamber's internal prerogative.
2. **Q: Does a senator who votes for the winning Senate President automatically belong to the majority bloc and get disqualified from being chosen as Minority Leader?**
 - **A: No.** Article VI, Section 16(1) merely dictates the number of votes required to elect the Senate President (>1/2) [1, 28, 161–162]. It does not define majority/minority membership or mandate that voting for the Senate President precludes a legislator from joining the minority bloc. Senate history shows minority members frequently second nominations for Senate President and accept committee chairmanships [162–163].
3. **Q: Why did Senator Santiago lack standing to file a *quo warranto* petition, and how was the petition saved from dismissal on that procedural ground?**
 - **A:** Under Rule 66, a private individual filing a *quo warranto* petition must prove a **clear legal title** to the contested public office. Because Santiago did not claim title to the position of Minority Leader, she lacked standing. However, the petition was saved because co-petitioner Tatad explicitly claimed title, and the petition also alleged grave abuse of discretion against Senate President Fernan, allowing the Court to treat it as a joint *certiorari* (Rule 65) and *quo warranto* (Rule 66) action [175–176].

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose the Senate adopts an explicit internal Rule of Procedure providing: "*The candidate for Senate President who receives the second highest number of votes shall automatically be proclaimed the Senate Minority Leader.*" In the next election, Senator A gets 18 votes, Senator B gets 4 votes, and Senator C gets 2 votes. Senator A is proclaimed Senate President. However, the Senate President recognizes Senator C as Minority Leader. Senator B files a petition for *certiorari* and *quo warranto* before the Supreme Court. Will the Court grant the petition?
- **Answer: Yes, the Supreme Court WILL GRANT the petition.** Under *Defensor-Santiago v. Guingona, Jr.*, while the Constitution does not define the Minority Leader, each House has the derivative prerogative under Article VI, Section 16(3) to promulgate rules governing its proceedings [1, 28, 164–165]. Once the Senate formally enacts an explicit internal rule establishing an operable standard for selecting its Minority Leader, failure by the Senate President to abide by that rule constitutes **grave abuse of discretion** and a violation of due process, rendering the act justiciable and subject to correction by *certiorari* [158–159, 165, 176].

One-Sentence Doctrine Anchor

Article VI, Section 16(1) of the Constitution merely fixes the vote threshold to elect the Senate President and does not define majority or minority blocs, leaving the method of selecting the Minority Leader to the derivative internal prerogative of the Senate. [1, 28, 160–165]

SANTIAGO v. GUINGONA (1998)

Topic Subtopic	Branches of Government Organization and Sessions- Election of Officers	GR No. & Ponente	134577, Panganiban
Petitioner/s	Sen. Miriam Defensor Santiago and Sen. Francisco Tatad	Respondent/s	Sen. Teofisto Guingona, Jr. and Sen. Marcelo Fernan
Doctrine	While the Constitution mandates that the President of the Senate must be elected by a number constituting more than one half of all the members thereof, it does not provide that the members who will not vote for him shall ipso facto constitute the "minority", who could thereby elect the minority leader. Verily, no law or regulation states that the defeated candidate shall automatically become the minority leader.		

FACTS

- July 27, 1998 - Senate convened at the beginning of the 11th Congress for the election of officers. Sen. Fernan was elected Senate President (SP) by a vote of 20-2. Sen. Ople as president pro tempore and Sen. Drilon as majority leader.
- Sen. Tatad, w/ agreement of Santiago, manifested that he would assume the role of the minority leader, with the "minority" consisting of him and those who voted for him. The rest of the senators who voted for Sen. Fernan would then constitute the "majority".
- This was debated by the Senators, with Sen. Flavio manifesting that the senators belonging to Lakas-NUCD-UMDP Party (all 7 of them, also constituting a minority), chose Sen. Guingona as the minority leader.
- July 30, 1998 - the majority leader informed the body that he was in receipt of a letter signed by the 7 Lakas-NUCD-UMDP senators, stating that they had elected Senator Guingona as the minority leader. By virtue thereof, the Senate President formally recognized Senator Guingona as the minority leader of the Senate.
- July 31, 1998 - Senators Miriam Defensor Santiago and Francisco S. Tatad instituted an original petition for quo warranto under Rule 66, Section 5, Rules of Court, seeking the ouster of Senator Teofisto T. Guingona Jr. as minority leader of the Senate and the declaration of Senator Tatad as the rightful minority leader

ISSUE 1

Side – Procedural	W/N the Court has jurisdiction over the petition?	YES
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:	
Invoke <i>Avelino v. Cuenco</i> , saying the Court has jurisdiction because the definitions of “majority” and “minority” involve interpretation of Sec 16 (1), Article VI of the Constitution.	Issue of the lawful Senate minority leader is an internal matter entirely within the domain of the legislature (separation of powers) No constitutional issue involved bc the law does not provide for the office of a minority leader in the Senate.	
RULING and RATIO DECIDENDI:		
Landmark rulings discussed: • <i>Avelino v. Cuenco, Tañada v. Cuenco, Lansang v. Garcia</i> – discuss the authority of the Court to interpret Constitutional provisions and determine factual, constitutional bases for acts of government • 1987 Consti is explicit in defining the scope of judicial power. • <i>Tañada v. Angara</i>, actions of political departments can be struck down on (1) unconstitutionality or illegality, or (2) where there is excess of jurisdiction, or grave abuse of discretion. • It is well within the power and jurisdiction of the Court to inquire whether indeed the Senate or its officials committed a violation of the Constitution or gravely abuse their discretion in exercise of their functions and prerogatives		
LEGAL BASES		

Section 16, Art VI - The Senate shall elect its President and the House of Representatives, its Speaker, **by a majority vote** of all its respective Members. Each House shall choose such other officers as it may deem necessary.

ISSUE 2

Main Substantive	–	W/N the Senate and its officials violated the Constitution or the laws in recognizing Sen. Guingona as the minority leader?	NO
PETITIONER/S ARGUMENTS:			
• Since the Constitution requires election of SP by “majority vote of all its members”, there is a judicial duty to determine the concepts of “majority” and “minority” • They argue that "majority" in the aforequoted constitutional provision refers to that group of senators who (1) voted for the winning Senate President and (2) accepted committee chairmanships. • Accordingly, those who voted for the losing nominee and accepted no such chairmanships comprise the minority, to whom the right to determine the minority leader belongs. • As a result, petitioners assert, Respondent Guingona cannot be the legitimate minority leader, since he voted for Respondent Fernan as Senate President. • Furthermore, the members of the Lakas-NUCD-UMDP cannot choose the minority leader, because they did not belong to the minority, having voted for Fernan and accepted committee chairmanships			
RULING and RATIO DECIDENDI:			
• There is no legal basis for the Petitioner’s interpretation in the Constitution, the laws, the Rules of the Senate, or even from practices of the Upper House. • The plain, unambiguous reading of the words just means that the SP has to receive the votes of more than one half of all the senators. It does not define who comprises the “majority” or the “minority”. • In effect, while the Constitution mandates that the President of the Senate must be elected by a number constituting more than one half of all the members thereof, it does not provide that the members who will not vote for him shall ipso facto constitute the "minority", who could thereby elect the minority leader. Verily, no law or regulation states that the defeated candidate shall automatically become the minority leader. • In previous sessions of Congress, members of the minority have been granted committee chairmanships. “Minority” could also mean any party that has fewer members than the majority (there could be multiple minority parties). • While the Consti is explicit on the manner of electing a Senate President and House Speaker, it is silent on the manner of selecting other officers in both chambers of Congress. The method must be prescribed by the Senate itself, not by the Court. In this regard, the Constitution vests in each house of Congress the power "to determine the rules of its proceedings." • The Senate Rules likewise do not provide for the positions of minority and majority leaders. In the absence of any constitutional or statutory guidelines or specific rules, the Court is devoid of any basis upon which to determine the legality of the acts of the Senate relative thereto. • The Court has no authority to intrude into the realm of Congress to provide its own rules for its officers. To agree with the interpretation of the petitioners would practically amount to judicial legislation - a clear breach of separation of powers. • However, the Court can still check if there was a grave abuse of discretion.			
LEGAL BASES			
Rule II, Sec. 2– Rules of the Senate - "The officers of the Senate shall be elected by the majority vote of all its Members. Should there be more than one candidate for the same office, a nominal vote shall be taken; otherwise, the elections shall be by viva voce or by resolution."			

ISSUE 3

Side	–	W/N Respondent Guingona was usurping, unlawfully, holding, and exercising the	NO
------	---	---	----

Substantive	position of Senate minority leader?	
RULING and RATIO DECIDENDI:		
Usurpation – unauthorized assumption and exercise of power by one without color or title or who is not entitled by law thereto. As discussed earlier, the specific norms or standards that may be used in determining who may lawfully occupy the disputed position has not been laid down by the Constitution, the statutes, or the Senate itself in which the power has been vested. Absent any clear-cut guideline, in no way can it be said that an illegality or irregularity tainted Respondent Guingona's assumption and exercise of the powers of the office of Senate minority leader. Furthermore, no grave abuse of discretion has been shown to characterize any of his specific acts as minority leader.		

ISSUE 4

Side – Substantive	W/N Sen. Fernan acted with grave abuse of discretion in recognizing Sen. Guingona as the minority leader?	NO
RULING and RATIO DECIDENDI:		
- By the above standard, we hold that Respondent Fernan did not gravely abuse his discretion as Senate President in recognizing Respondent Guingona as the minority leader. Let us recall that the latter belongs to one of the minority parties in the Senate, the Lakas-NUCD-UMDP. By unanimous resolution of the members of this party that he be the minority leader, he was recognized as such by the Senate President. Such formal recognition by Respondent Fernan came only after at least two Senate sessions and a caucus, wherein both sides were liberally allowed to articulate their standpoints. - Under these circumstances, we believe that the Senate President cannot be accused of "capricious or whimsical exercise of judgment" or of "an arbitrary and despotic manner by reason of passion or hostility." Where no provision of the Constitution, the laws or even the rules of the Senate has been clearly shown to have been violated, disregarded or overlooked, grave abuse of discretion cannot be imputed to Senate officials for acts done within their competence and authority		

FINAL DECISION	WHEREFORE, for the above reasons, the petition is hereby DISMISSED.
-----------------------	---

SEPARATE OPINION/S

MENDOZA, J. <i>dissenting/concurring</i>	Agrees with the judgment of the court but I disagree that "[it] has jurisdiction over the petition [in this case] to determine whether the Senate or its officials committed a violation of the Constitution or gravely abused their discretion in the exercise of their functions and prerogatives." The Court has no jurisdiction over this case. The question of who constitutes the minority in the Senate entitled to elect the minority leader of that chamber is political. It respects the internal affairs of a coequal department of the government and is thus addressed solely to that august body. I vote to dismiss the petition in this case for lack of jurisdiction
VITUG, J. <i>dissenting</i>	The Supreme Court should not be thought of as having been tasked with the awesome responsibility of overseeing the entire bureaucracy [referring to judicial review]. Judicial power should still succumb to the paramount doctrine of separation of powers.

ROMERO, J,
dissenting/concurring

Judicial review is only permissible to uphold the Constitution. However, legislative rules allegedly violated here are purely internal to the Senate. Whatever differences the parties may have against each other should be settled on their own turf.

Baguilat, Jr. v. Alvarez

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Representative Teddy Brawner Baguilat, Jr., Representative Edcel C. Lagman, Representative Raul A. Daza, Representative Edgar R. Erice, Representative Emmanuel A. Billones, Representative Tomasito S. Villarin, and Representative Gary C. Alejano v. Speaker Pantaleon D. Alvarez, Majority Leader Rodolfo C. Fariñas, and Representative Danilo E. Suarez*
- **Citation:** G.R. No. 227757, July 25, 2017 (En Banc)
- **Ponente:** Perlas-Bernabe, J.
- **Bench Composition:** Sereno, C.J., Carpio, Velasco, Jr., Leonardo-de Castro, Peralta, Bersamin, Del Castillo, Jardeleza, Caguioa, Tijam, and Reyes, JJ., concurring; Leonen, J., concurring in the result.
- **Syllabus Relevance & Topic:**
 1. **Legislative Department — Selection of House Officers (Art. VI, Sec. 16(1) & (3)):** Authority of the House of Representatives to elect its Speaker, choose "such other officers as it may deem necessary," and determine the rules of its proceedings.
 2. **Justiciability & Judicial Self-Restraint over Internal Parliamentary Practices:** Extent of judicial review over internal leadership choices and parliamentary rules; non-interference in internal rules absent a clear showing of a constitutional violation or grave abuse of discretion.
 3. **Selection of Minority Leader & Legal Status of Parliamentary Traditions:** Whether the runner-up/second placer in a Speakership election automatically becomes the Minority Leader by "long-standing tradition", or whether the House may deviate from tradition and adopt rules allowing Minority members (including abstentionists) to elect their Minority Leader.
 4. **Nature of Mandamus (Rule 65):** Mandamus lies exclusively to enforce a clear, well-defined legal right, not a mere custom, tradition, or internal parliamentary practice.

CHRONOLOGICAL MATERIAL FACTS

1. **Pre-Opening Political Maneuvers (May–July 2016):** Following the May 2016 elections, news reports surfaced that Representative Danilo E. Suarez sought adoption or anointment by President Rodrigo Duterte's administration as Minority Leader to lead a "cooperative minority" in the House of Representatives.
2. **Opening Session of the 17th Congress & Parliamentary Inquiry (July 25, 2016):** Prior to the election of the Speaker, then-Acting Floor Leader Representative Rodolfo C. Fariñas, responding to a parliamentary inquiry from Representative Jose Atienza regarding who would elect the Minority Leader, articulated his interpretation of Section 8 of the House Rules:
 - (a) Members voting for the winning Speaker belong to the Majority;
 - (b) Members voting for other candidates or abstaining belong to the Minority; and
 - (c) The Minority Leader shall be elected by the members of the Minority.
 - The House proceeded to the Speakership election without any objection from any member, as recorded in House Journal No. 1 dated July 25, 2016.
3. **Speakership Election & Voting Outcome (July 25, 2016):** Three candidates were nominated for Speaker: Representative Pantaleon D. Alvarez, Representative Teddy Brawner Baguilat, Jr., and Representative Danilo E. Suarez. The voting yielded:
 - **Rep. Alvarez:** 252 votes (declared duly elected Speaker of the House);
 - **Rep. Baguilat:** 8 votes (second placer);
 - **Rep. Suarez:** 7 votes (third placer);

- **Abstentions:** 21 votes;
 - **No Vote:** 1 vote.
 - *Note:* Rep. Suarez, despite being a candidate for Speaker, voted for Rep. Alvarez.
 - 4. **Suarez's Transfer and Election as Minority Leader (July 26–27, 2016):**
 - On July 26, 2016, Rep. Suarez wrote Speaker Alvarez and Majority Leader Fariñas requesting to transfer to the Minority, which Majority Leader Fariñas granted.
 - On July 27, 2016, those who did not vote for Speaker Alvarez (including 20 "abstentionists") convened and elected Rep. Suarez as Minority Leader.
 - 5. **Plenary Opposition & Official Recognition (August 1–15, 2016):**
 - On August 1, 2016, Rep. Harlin Neil Abayon III manifested before the plenary that Rep. Suarez was elected Minority Leader. Rep. Edcel C. Lagman and others objected, arguing that: (a) Rep. Baguilat was the *ipso facto* Minority Leader by tradition as second placer; (b) Rep. Suarez belonged to the Majority by voting for Speaker Alvarez; and (c) the abstentionists were independent members under Section 8, Rule II, and thus disqualified from electing a Minority Leader [108, 148–152].
 - On August 15, 2016, Majority Leader Fariñas moved for the official recognition of Rep. Suarez as Minority Leader. Rep. Lagman's opposition was overruled by the Chair, and Rep. Suarez was officially recognized as the House Minority Leader [108, 154–157].
 - 6. **Filing of Petition for Mandamus:** Petitioners Rep. Baguilat, Rep. Lagman, Rep. Daza, Rep. Erice, Rep. Billones, Rep. Villarin, and Rep. Alejano filed a Petition for Mandamus before the Supreme Court seeking to compel respondents to recognize Rep. Baguilat as Minority Leader and petitioners as the legitimate members of the Minority.
-

● PROCEDURAL HISTORY

1. **Original Action in the Supreme Court:** Petitioners filed an original Petition for Mandamus under Rule 65 against Speaker Alvarez, Majority Leader Fariñas, and Rep. Suarez.
 2. **Supreme Court En Banc Disposition (July 25, 2017):** The Supreme Court En Banc dismissed the petition for lack of merit.
-

● PARTIES' MATERIAL ARGUMENTS

- **Petitioners (Rep. Teddy Brawner Baguilat, Jr., et al.):**
 1. **Enforceable Parliamentary Tradition:** By "long-standing tradition" observed from the 8th to 16th Congresses, the candidate garnering the second-highest number of votes for Speaker automatically becomes the Minority Leader (*ipso facto*) [108, 109, 114, 126–132].
 2. **Irregularities in Suarez's Election:** Rep. Suarez voted for winning Speaker Alvarez, placing him in the Majority under Rule II, Section 8. His transfer to the Minority, approved by Majority Leader Fariñas rather than the Minority Leader, was void.
 3. **Disqualification of Abstentionists:** Under the last paragraph of Section 8, Rule II, members who abstain are considered independent members and cannot participate in electing a Minority Leader [108, 142, 148–151].
- **Respondents (Speaker Alvarez, Majority Leader Fariñas, & Rep. Suarez via OSG):**
 1. **Exclusive House Realm & Separation of Powers:** Election of the Minority Leader is an internal legislative matter under Article VI, Section 16(1) and (3). Courts cannot intervene absent a constitutional violation or grave abuse of discretion.

2. **Conclusiveness of Journal No. 1:** Acting Floor Leader Fariñas' articulated interpretation was accepted by the House without objection prior to voting and recorded in Journal No. 1, which is conclusive as to what transpired in Congress.
 3. **Absence of Clear Legal Right for Mandamus:** Mandamus requires a clear legal right under law, not a mere custom, tradition, or internal practice.
-

ISSUES

1. **Whether respondents may be compelled via a writ of mandamus to recognize Representative Teddy Brawner Baguilat, Jr. as the Minority Leader of the House of Representatives of the 17th Congress.**
 2. **Whether respondents may be compelled via a writ of mandamus to recognize petitioners as the only legitimate members of the House Minority.**
-

HOLDINGS AND CONTROLLING REASONING

1. On the Writ of Mandamus: NO. Mandamus CANNOT LIE because petitioners possess NO clear legal right enforced by law.

- **A. Requirement of a Clear Legal Right:**
 - Mandamus is an extraordinary remedy issued only in extreme necessity where a petitioner possesses a **clear legal right** to the performance of an act commanded by law.
 - Rep. Baguilat's claim to the minority leadership rests entirely on "long-standing tradition" and custom, not on an explicit constitutional command, statute, or written House Rule.
 - A mere parliamentary tradition or custom does **not** create an actual, enforceable legal right that can be compelled by a writ of mandamus.
- **B. Conclusiveness of House Journal No. 1 & Deviation from Tradition:**
 - Prior to the Speakership election, Acting Floor Leader Fariñas articulated the rule that those who voted against the winning Speaker or abstained belong to the Minority and would elect their Minority Leader.
 - The House proceeded to the election without any objection from any member, as reflected in **House Journal No. 1 dated July 25, 2016**.
 - Under *Arroyo v. De Venecia*, the legislative Journal is **conclusive** as to what transpired in Congress. By proceeding under Fariñas' articulated framework without objection, the House effectively adopted new operational rules for that session and **validly deviated from its past tradition**.

2. On Judicial Self-Restraint and Internal House Autonomy: NO. The Court WILL NOT INTERFERE in internal House leadership choices.

- **A. Textual Command of Article VI, Section 16(1) & (3):**
 - Article VI, Section 16(1) provides that the House shall elect its Speaker, and "*Each House shall choose such other officers as it may deem necessary*".
 - Article VI, Section 16(3) provides that "*Each House may determine the rules of its proceedings*".
- **B. Application of the *Santiago v. Guingona* Doctrine:**
 - Reaffirming *Defensor-Santiago v. Guingona*, the method of choosing secondary legislative officers (such as the Minority Leader) is a **derivative internal prerogative** of the legislative chamber.

- The Supreme Court will not interfere with the internal rules, proceedings, or leadership choices of the House of Representatives absent a clear showing of a constitutional violation or grave abuse of discretion.
- Because the House acted within its constitutional authority in determining its Minority Leader, and no constitutional or statutory provision was breached, the recognition of Rep. Suarez as Minority Leader was valid and beyond judicial interference.

● DOCTRINE, TESTS, AND LEGAL STANDARDS

SELECTION OF HOUSE MINORITY LEADER & MANDAMUS

(Baguilat, Jr. v. Alvarez)



CONSTITUTIONAL MANDATE (Art. VI, Sec. 16(1) & (3))

- House chooses its Speaker & other officers as it deems necessary.
- House possesses sole authority to determine rules of proceedings.
- Selection of Minority Leader is a DERIVATIVE INTERNAL PREROGATIVE.



NO MANDAMUS FOR PARLIAMENTARY TRADITION

- Mandamus requires a CLEAR LEGAL RIGHT enforced by law or statute.
- "Long-standing tradition" (2nd placer = Minority Leader) is NOT an enforceable legal right.

JUDICIAL SELF-RESTRAINT

- Courts will NOT interfere in House leadership choices absent a clear showing of a constitutional violation or grave abuse of discretion.
- House may validly deviate from custom.

1. **Mandamus for Parliamentary Traditions Principle (*Baguilat Standard*):** A writ of mandamus requires a clear, well-defined legal right enforceable under law. A claim to a legislative leadership position based merely on "long-standing parliamentary tradition" or custom, rather than an explicit constitutional or statutory mandate, does not confer an enforceable legal right and cannot be compelled by mandamus.
2. **Derivative Prerogative over Secondary House Officers:** Under Article VI, Section 16(1) and (3) of the Constitution, the selection of secondary legislative officers (including the Minority Leader) is an internal derivative prerogative of the House. The House may establish, modify, or deviate from its internal practices and selection mechanisms at its discretion, provided no constitutional provision is violated.
3. **Conclusiveness of the Legislative Journal:** House Journals are conclusive as to the proceedings of Congress. Unobjected parliamentary proceedings recorded in the official Journal demonstrate the chamber's collective adoption of operational rules for that session.

♥ DISPOSITION

- **Ruling:** The Petition for Mandamus is **DISMISSED** for lack of merit.

● SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLE LINES

Concurring in the Result Opinion of Associate Justice Marvic M.V.F. Leonen [118–184]

- **Grave Abuse of Discretion Present:** Maintained that the House leadership committed grave abuse of discretion by disregarding its own written rules (Rule II, Section 8) regarding independent members and transfer procedures [118, 119, 159, 161, 169–175].
- **Mandamus Was the Wrong Remedy:** Agreed with dismissal solely because **mandamus was the improper remedy** [118, 182–184]. Mandamus requires a present, clear, and unmistakable legal right. Because political alliances in Congress fluctuate over time, Baguilat did not possess an unyielding present right to be installed as Minority Leader at the time of judgment; the proper remedy should have been *certiorari* or *prohibition* to annul Suarez's installation and order a new election among the genuine Minority [182–184].

Source-Verified Quotable Lines

-  **On Mandamus and Parliamentary Tradition (Perlas-Bernabe, J.):**

"A petition for Mandamus requires a clear legal right to the performance of the act to be compelled; and Rep. Baguilat's claim to the minority leadership is merely by tradition and practice, not an actual enforceable legal right. The House may deviate from its previous tradition, and such deviation is not contrary to the Constitution."

-  **On Internal House Prerogative (Perlas-Bernabe, J.):**

"Section 16(3) Article VI of the Constitution vests in the House of Representatives the sole authority to determine the rules of its proceedings... The method of choosing who will be such other officers is merely a derivative of the exercise of the prerogative conferred by the Constitution."

RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Baguilat, Jr. v. Alvarez* (2017), the 17th Congress opened with 3 candidates for Speaker: Pantaleon Alvarez, Teddy Baguilat, Jr., and Danilo Suarez. Before voting, Acting Floor Leader Fariñas stated that those who vote for the winning Speaker belong to the Majority, while those who vote against or abstain belong to the Minority and elect their Minority Leader. No one objected, as recorded in Journal No. 1. Alvarez won with 252 votes, Baguilat placed second with 8 votes, Suarez got 7 votes, and 21 abstained. Despite voting for Alvarez (Majority), Suarez was allowed by Fariñas to transfer to the Minority, and the 20 abstentionists voted with Suarez to elect him Minority Leader. The House officially recognized Suarez. Baguilat and 6 other representatives filed a Rule 65 petition for mandamus to compel the House leadership to recognize Baguilat as Minority Leader, relying on the 'long-standing tradition' that the second placer automatically becomes Minority Leader.

The Supreme Court En Banc, through Justice Perlas-Bernabe, DISMISSED the petition. The Court held: (1) Mandamus requires a clear legal right enforced by law; Baguilat's claim based merely on 'long-standing parliamentary tradition' is not an enforceable legal right; (2) Under Art. VI, Sec. 16(1) & (3), selecting secondary officers is an internal derivative prerogative of the House, which may modify or deviate from past customs; (3) Journal No. 1 is conclusive that the House adopted Fariñas' framework without objection; and (4) Courts will not interfere in internal legislative choices absent a constitutional breach."* [21, 23, 24, 105, 107–112, 114, 117]

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: Can a member of Congress file a petition for mandamus to enforce a long-standing parliamentary custom or tradition against the House leadership?**
 - **A: No.** Mandamus requires a clear, well-defined legal right enforceable under the Constitution, a statute, or an explicit written rule. A mere parliamentary tradition or custom does not confer an enforceable legal right that can be compelled by mandamus.
2. **Q: How did the Supreme Court apply *Defensor-Santiago v. Guingona* to the House of Representatives in *Baguilat, Jr. v. Alvarez*?**
 - **A:** The Court reaffirmed that under Article VI, Section 16(1) and (3), choosing secondary legislative officers (like the Minority Leader) is a **derivative internal prerogative** of the chamber. The Constitution does not define how the Minority Leader is chosen, giving each House full autonomy to establish or alter its rules, which courts will not review absent a constitutional violation.
3. **Q: Why did Justice Leonen concur in the dismissal of the petition despite believing that the House leadership committed grave abuse of discretion?**
 - **A:** Justice Leonen concurred in the dismissal solely because **mandamus was the wrong remedy**. Mandamus requires an absolute, unyielding present legal right. Because political alliances in Congress shift over time, Baguilat lacked a clear present right to be installed as Minority Leader at the time of judgment; the proper remedy was *certiorari* or *prohibition* to set aside Suarez's recognition and order a new election among the genuine Minority [182–184].

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose the House of Representatives explicitly incorporates into its formally adopted Rules of Procedure for the 18th Congress a specific rule stating: "*The candidate for Speaker who garners the second-highest number of votes shall automatically be proclaimed the Minority Leader.*" During the 18th Congress, Candidate A wins Speaker, Candidate B places second, and Candidate C places third. The Speaker instead recognizes Candidate C as Minority Leader. Candidate B files a petition for *certiorari* and *prohibition* before the Supreme Court. Will the Court take jurisdiction and grant relief?
- **Answer: Yes, the Supreme Court WILL GRANT relief under *certiorari/prohibition*.** Under *Baguilat, Jr. v. Alvarez* and *Defensor-Santiago v. Guingona*, while courts will not enforce unwritten traditions, a clear and patent violation of the House's own **expressly promulgated written rules** constitutes **grave abuse of discretion** amounting to lack or excess of jurisdiction under Article VIII, Section 1. By filing *certiorari* or *prohibition* (the correct remedy), Candidate B can successfully annul the Speaker's action for violating the House's mandatory written rules.

One-Sentence Doctrine Anchor

A long-standing parliamentary tradition does not create an enforceable legal right compelable by mandamus, and the selection of the Minority Leader remains an internal derivative prerogative of the House under Article VI, Section 16 of the Constitution.

Baguilat v. Alvarez (2017)

Topic Subtopic	Branches of the Government - Congress	GR No. & Ponente	227757 Perlas-Bernabe, J.
Petitioner/s	Rep. Teddu Brawner Baguilat, Jr., Rep. Edcel C. Lagman, Rep. Raul A. Daza, Rep. Edgar R. Erice, Rep. Emmanuel A. Billones, Rep. Tomasito S. Villarin , and Rep. Gary C. Alejano	Respondent/s	Speaker Pantaleon D. Alvarez, Majority Leader Rodolfo C. Fariñas, and Rep. Danilo Suarez
Doctrine	The election and recognition of the House Minority Leader is an internal legislative affair, to which the HOR has the sole control over. The Court cannot intrude on such manner, unless there is a clear showing of grave abuse of discretion. Otherwise, the Court will be violating the separation of powers.		

FACTS

- Before the opening of the 17th Congress on July 25, 2016, news articles reported that Rep. **Suarez** announced that he sought the anointment as the Minority Leader in the HOR, and that he encamped himself in Davao to get Pres. Duterte's endorsement. Petition claims that the supermajority coalition allegedly "lent" Suarez some members to feign membership in the Minority to be able to vote for him as the Min. Leader
 - July 25, 2016 (prior to the election of the Speaker of the HOR), then-Acting Floor Leader Rep. Fariñas and Rep. Jose Atienza (Rep. Atienza) had an interchange before the Plenary, wherein the latter elicited the following from the former:
 - (a) all those who vote for the winning Speaker shall belong to the Majority and those who vote for the other candidates shall belong to the Minority;
 - (b) those who abstain from voting shall likewise be considered part of the Minority
 - (c) the Minority Leader shall be elected by the members of the Minority
 - Election of Speakership: Rep. Alvarez - 252 votes, Rep. Baguilat - 8 votes, Rep. **Suarez** - 7 votes, Abstain - 21. No vote - 1 → Alvarez became Speaker of the House
 - Petitioners hoped that the "long-standing tradition" of the house - where the candidate who garnered the 2nd highest number of votes for Speakership automatically becomes the Minority Leader - would allow Rep. **Baguilat** to be declared as Minority Leader. Despite numerous follow-ups, Baguilat was not recognized as such
 - Aug 1, 2016 - Rep. Abayon (who abstained) manifested before the plenary that those who didn't vote for Alvarez convened and elected **Suarez** as Minority Leader. Aug 15, 2016, Majority Leader Rep. Fariñas moved for the recognition of Suarez as Min. Leader
 - Rep. Lagman opposed because various "irregularities" surrounded Suarez's election for the ff reasons:
 - Suarez was a member of the Majority (voted for Alvarez). His "transfer" to the minority was irregular
 - Abstentionists who made up a bulk of the votes for Suarez were supposed to be independent members — irregularly deemed as part of the minority
- Lagman's opposition was overruled— **Suarez was officially recognized as minority leader**

Petitioners filed the instant petition for mandamus, insisting that **Baguilat** should be recognized as the Minority Leader because of:

- The long-standing tradition in the House where candidate who garners the 2nd highest votes for speaker should be minority leader
- The irregularities surrounding Suarez's Min. Leader election
- Rep. Suarez maintains that the election of Minority Leader is an internal matter to the HOR. Thus, absent any finding of violation of the Constitution or grave abuse of discretion, the Court cannot interfere with such internal matters of a coequal branch of the government

ISSUE 1

Main Substantive –	W/N the respondents may be compelled via a writ of mandamus to recognize: (a) Rep. Baguilat as the Minority Leader of the HoR; and (b) petitioners as the only legitimate members of the House minority	NO
--------------------	---	----

RULING and RATIO DECIDENDI:

Mandamus is a writ commanding a tribunal, corporation, board, or person to do an act required to be done when he unlawfully neglects the performance of it, which the law specifically requires him to do OR when he unlawfully excludes another from the use and enjoyment of a right or office (there being no other plain, speedy, and adequate remedy

Mandamus is an extraordinary remedy, issued only in extreme necessity, where the ordinary course of procedure is powerless to afford adequate and speedy relief **to one who has a clear legal right to the act to be compelled** → In this case, the petitioners have **no** clear legal right to the reliefs sought

- Before the Speakership Election: Then-Acting Floor Leader Fariñas articulated that those who vote for the winning speaker shall belong to the Majority and those who did not vote for the winner shall belong to the Minority (including those who abstained). He also said that the Minority Leader shall be elected by Minority members
- Thereafter, the election of the Speaker of the House proceeded without any objection from any member of Congress, including herein petitioners. → The unobjected procession of the House at this juncture is reflected in its Journal No. 1 dated July 25, 2016, which, based on case law, is conclusive as to what transpired in Congress
- Speaker Alvares delivered his privilege speech a day after the proceedings where Fariñas articulated the Rules. During the speech, Lagman questioned Fariñas interpretation of the rules. Aside from the belated timing of Rep. Lagman's query, Rep. Suarez aptly points out that the Journal for that session does not indicate any motion made, seconded and carried to correct the entry in the Journal of the previous session (July 25, 2016) pertinent to any recording error that may have been made, as to indicate that in fact, a protest or objection was raised. → **This shows that the HoR effectively adopted Rep. Fariñas' proposal regarding the membership of the minority, and the process of determining the Minority leadership**
- More significantly, this demonstrates the House's **deviation** from the "legal bases" of petitioners' claim for entitlement to the reliefs sought before this Court, namely: (a) the "long-standing tradition" of automatically awarding the Minority Leadership to the second placer in the Speakership Elections, i.e., Rep. Baguilat; and (b) the rule that those who abstained in the Speakership Elections should be deemed as independent Members of the HOR, and thus, they could not have voted for a Minority Leader in the person of Rep. Suarez.
- The deviation of the House from the "long-standing tradition" that the petitioners cited is **not against the Constitution**.
- **Sec 16 (1), Art. 6 of the 1987 Consti** - The Senate shall elect its President and the House of Representatives its Speaker, by a majority vote of all its respective Members. Each House shall choose such other officers as it may deem necessary
 - The provision states that the HoR may decide to have officers other than the speaker, and that the method and manner with which these officers are chosen is **within its sole control**
- **Defensor-Santiago v Guingona** - [w]hile the Constitution is explicit on the manner of electing [a Speaker of the House of Representatives,] it is, however, dead silent on the manner of selecting the other officers [of the Lower House]. All that the Charter says is that '[e]ach House shall choose such other officers as it may deem necessary.' [As such], the method of choosing who will be such other officers is merely a derivative of the exercise of the prerogative conferred by the aforequoted constitutional provision. Therefore, such method must be prescribed by the [House of Representatives] itself, not by [the] Court.
- **Section 16 (3), Art 6 of the Consti** vests in the HoR the sole authority to determine the rules of its proceedings. → The court has no authority to interfere and unilaterally intrude into the exclusive jurisdiction of the HoR
- Exception: if there is a grave abuse of discretion. However, in this case, there is no grave abuse of discretion - It is an internal matter of a coequal political branch of government thus cannot be judicially interfered with

FINAL DECISION	WHEREFORE, the petition is DISMISSED. SO ORDERED.
---------------------------	--

SEPARATE OPINION/S

LEONEN, J, <i>dissenting+ concurring</i>	concurred in the result—agreeing that the petition for <i>mandamus</i> to compel the House leadership to recognize Representative Teddy Baguilat, Jr. as Minority Leader must be dismissed. dissented strongly from the majority’s reasoning, arguing that the HOR committed grave abuse of discretion by violating its own written rules and established parliamentary practice during the election of the Minority Leader. • Argues that internal congressional proceedings are not exempt from judicial review when explicit procedural rules are breached (i.e., grave abuse of discretion) • Cannot apply <i>Defensor-Santiago v Guingona</i> because the Senate had no explicit rules governing the election of Minority Leader, whereas HOR has Rule II, Section 8 of the House Rules which indicate the following: ◦ Members who vote for the winning candidate for Speaker shall constitute the Majority in the House and they shall elect from among themselves the Majority Leader . . . ◦ The Minority Leader shall be elected by the Members of the Minority and can be changed, at any time, by a majority vote of all the Minority Members. ◦ Members who choose not to align themselves with the Majority or the Minority shall be considered as independent Members of the House. • Farina’s interpretation of the above is different from what the Rule plainly stated. If the HOR were to follow the above, the 20 abstaining representatives were legally independent and had no right to vote for the Minority Leader. • Suarez is also not part of the Minority, as he voted for Alvarez - which makes him part of the Majority. His subsequent "transfer" to the Minority without proper minority consent violated established procedures. • Leonen criticized the majority for allowing supermajority-aligned members to engineer the election of a "cooperative" Minority Leader, subverting the constitutional purpose of having an authentic parliamentary opposition • Leonen highlighted that for nearly 3 decades, the House had consistently recognized the Speakership runner-up as the Minority Leader. Under Rule XXV, Section 161, parliamentary practices serve as supplementary rules that bind the body in resolving procedural ambiguities. • Despite finding that the House committed grave abuse of discretion, Leonen ultimately voted to dismiss the petition. • A writ of mandamus lies exclusively to enforce a clear, non-discretionary, ministerial duty. Selecting legislative officers remains an inherently political and discretionary power granted to Congress under Article VI, Section 16(1). The Judiciary cannot dictate through mandamus who the House must recognize as its Minority Leader, as doing so would usurp a legislative function. The proper remedy for procedural violations must be sought within the legislative forum itself.
--	--

Avelino v. Cuenco

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Jose Avelino v. Mariano J. Cuenco*
- **Citation:** G.R. No. L-2821, March 4, 1949 (Initial Resolution) & March 14, 1949 (Resolution on Motion for Reconsideration)
- **Ponente:** Per Curiam (March 4 & March 14, 1949 Resolutions)
- **Bench Composition:** Moran, C.J.; Ozaeta, Paras, Feria, Perfecto, Bengzon, Briones, Tuason, Montemayor, and Reyes, JJ.
- **Syllabus Relevance & Topic:**
 1. **Legislative Department — Quorum Requirement (Art. VI, Sec. 16(2) [formerly Art. VI, Sec. 10(2), 1935 Constitution]):** "A majority of each House shall constitute a quorum to do business..."
Computation of a quorum when a member is absent from the country or beyond the coercive jurisdiction of the Senate.
 2. **Reorganization & Election of Legislative Officers (Art. VI, Sec. 16(1)):** Power of the Senate to choose its presiding officer and declare the position of Senate President vacant.
 3. **Justiciability vs. Political Question Doctrine & Judicial Supremacy:** Authority of the Supreme Court to intervene in internal legislative organization and quorum controversies when an ongoing deadlock threatens constitutional governance [1, 134, 139, 154–155].

CHRONOLOGICAL MATERIAL FACTS

1. **Privilege Speech Reservation (February 18, 1949):** During the Senate session, Senator Lorenzo M. Tañada reserved his right to speak on the floor for the next session day (February 21, 1949) to formulate serious charges against then-Senate President Jose Avelino.
2. **Filing of Charges & Resolution No. 68 (February 21, 1949, Morning):** Prior to the opening of the session, Senators Tañada and Prospero Sanidad filed Resolution No. 68 with the Secretary of the Senate, preferring grave charges of graft, corruption, tax evasion, and public statements tolerating electoral fraud against Senate President Avelino, and requesting a 3-member committee investigation [82, 92, 105–113].
3. **Delay and Dilatory Tactics:**
 - Although 22 senators (a physical quorum out of the 24 total members) were present in the Senate hall at 10:00 AM, Avelino delayed appearing on the rostrum until 11:35 AM.
 - Upon taking the rostrum, Avelino did not immediately open the session; instead, he slowly read the Tañada-Sanidad resolution and conferred with his allies, Senators Francisco and Tirona.
 - Shortly before 12:00 noon, under insistent demands from Sanidad and Cuenco, Avelino called the session to order.
 - Sanidad moved to dispense with the roll call and the reading of the minutes, but Avelino's supporters (Tirona and Angeles David) opposed the motions as part of a dilatory strategy to prevent Tañada from speaking [83, 94–95, 121]. The roll call confirmed the presence of 22 senators.
4. **Gallery Commotion and Abrupt Walkout:**
 - Tañada repeatedly demanded recognition to deliver his privilege speech, but Avelino continuously ignored him and threatened to order the arrest of any senator who spoke without prior recognition.
 - Disorder broke out in the gallery. Senator Pablo Angeles David (Avelino's ally) moved to adjourn the session until February 24. Senator Sanidad and Respondent Mariano J. Cuenco objected and demanded a vote on the motion to adjourn.

- Avelino refused to submit the motion to adjourn to a vote, banged the gavel, declared the session adjourned, and abruptly abandoned the rostrum and walked out of the hall, followed by 9 allied senators.
 - 5. **Continuation under Senate President Pro-Tempore Arranz:**
 - Twelve (12) senators remained in the hall. Senate President Pro-Tempore Melecio Arranz took the rostrum and resumed the session.
 - Senator Cabili made it of record that Avelino's deliberate abandonment of the Chair made it incumbent upon the remaining members to continue the session to prevent paralyzing the Senate.
 - The remaining 12 senators unanimously designated Respondent Mariano J. Cuenco to preside temporarily, appointed an Acting Secretary, heard Tañada's 2-hour privilege speech, and unanimously approved Resolution No. 68 (ordering the investigation) [84, 96–97, 118].
 - Senate President Pro-Tempore Arranz resumed the Chair, and Sanidad introduced Resolution No. 67, declaring vacant the position of Senate President and designating Mariano J. Cuenco as Acting Senate President. The resolution was unanimously approved by the 12 senators (Cuenco abstaining).
 - 6. **Executive Recognition:** Cuenco took his oath of office in open session. The following day (February 22, 1949), President of the Philippines Elpidio Quirino officially recognized Cuenco as Acting President of the Philippine Senate.
-

● PROCEDURAL HISTORY

1. **Original Action in the Supreme Court:** Jose Avelino filed a Petition for *Quo Warranto* (G.R. No. L-2821) against Mariano J. Cuenco, asserting that Cuenco was usurping the office of Senate President.
 2. **Initial Resolution (March 4, 1949):** By a 6-4 vote, the Supreme Court **DENIED** the petition on the ground of **LACK OF JURISDICTION**, holding that the selection of the Senate's presiding officer was a non-justiciable political question.
 3. **Motion for Reconsideration:** Avelino filed a Motion for Reconsideration insisting that the Court assume jurisdiction to settle the Senate crisis.
 4. **Resolution on Motion for Reconsideration (March 14, 1949):** The Supreme Court voted 7-4 to **ASSUME JURISDICTION**, declared that a valid **QUORUM WAS PRESENT** during the session electing Cuenco, and **DISMISSED** Avelino's petition on the merits [1, 134–135].
-

● PARTIES' MATERIAL ARGUMENTS

- **Petitioner (Jose Avelino):**
 1. **Valid Adjournment:** The session of February 21, 1949 was legally adjourned pursuant to Senator David's motion, or under Avelino's inherent authority as Senate President to maintain order.
 2. **Lack of Quorum in Rump Session:** The 12 senators who remained in the hall lacked a constitutional quorum to transact business under Article VI, Section 10(2) of the 1935 Constitution. Because the Senate consisted of 24 members, a majority required at least **13 members**.
 3. **Illegality of Ouster:** Senate President Pro-Tempore Arranz had no authority to reconvene a session that had been officially adjourned.
- **Respondent (Mariano J. Cuenco):**
 1. **Non-Justiciable Political Question:** The selection and ouster of internal legislative officers are political questions strictly within the exclusive domain of the Senate, and executive recognition by the President is binding on the courts.
 2. **Arbitrary Walkout & Illegal Adjournment:** Avelino's declaration of adjournment was arbitrary and void because it was objected to and never voted upon. His walkout constituted an abandonment of the Chair.
 3. **Existence of Quorum:** A valid quorum existed because:

- The afternoon session was a direct continuation of the morning session where 22 senators answered the roll call [85–86, 95];
- Senator Tomas Confesor was absent in the United States (outside the jurisdiction/coercive reach of the Senate), leaving 23 effective members, where **12 constituted an absolute majority**; and
- Under the amended constitutional phrase "*majority of each House*" (replacing "*majority of all the members*"), quorum is based on actual, capable members.

● ISSUES

1. **Procedural Issue:** Whether the Supreme Court has jurisdiction to take cognizance of a *quo warranto* petition contesting the presidency and reorganization of the Senate (Political Question vs. Judicial Supremacy).
 2. **Substantive Issue 1:** Whether Senate President Avelino's unilateral declaration of adjournment was valid.
 3. **Substantive Issue 2:** Whether the 12 senators who remained in the session hall constituted a valid **constitutional quorum** to transact business and elect Respondent Cuenco as Acting Senate President [1, 85–87, 91, 122, 125, 134, 140].
-

🌸 HOLDINGS AND CONTROLLING REASONING

1. On Jurisdiction: YES. The Supreme Court HAS JURISDICTION over the controversy.

- **Shift from March 4 to March 14 Resolution:** In its March 4 Resolution, the Court initially declined jurisdiction based on separation of powers and the political question doctrine (*Alejandrino v. Quezon*; *Vera v. Avelino*). However, in its March 14 Resolution, a 7-Justice majority voted to assume jurisdiction.
- **Judicial Supremacy in Constitutional Crises:** Supervening events—including a completely paralyzed Senate, unexecuted warrants of arrest, a national governance deadlock, and threat to presidential succession—imperatively called for judicial intervention [134, 142, 153–155].
- **Purely Legal Question:** Determining whether a legislative session was held with a constitutional quorum is not a matter of legislative discretion; it calls for the interpretation and enforcement of an explicit constitutional command (Art. VI, Sec. 10(2), 1935 Constitution). The Supreme Court is the final arbiter to ensure no branch transcends the Constitution.

2. On the Validity of Adjournment: NO. Avelino's adjournment was ARBITRARY, ILLEGAL, AND NULL.

- **No Unilateral Power to Adjourn:** A motion to adjourn is subject to the vote of the assembly when objected to. Senators Sanidad and Cuenco explicitly objected and demanded a vote.
- Avelino had no power, under the Senate Rules or inherent authority, to unilaterally decree an adjournment against the objection of the floor to suppress speech, block an investigation, or avoid an impending ouster. His walkout constituted an **abandonment of the Chair**, allowing Senate President Pro-Tempore Arranz to take the rostrum.

3. On the Quorum and Election of Cuenco: YES. There WAS a valid constitutional quorum, and Cuenco was LEGALLY ELECTED.

The Court sustained the quorum and validity of Cuenco's election under three distinct, complementary rationales:

- **A. Continuation Rationale:**

- The session under Senate President Pro-Tempore Arranz was a direct continuation of the morning session validly assembled with 22 senators [85–86, 95].
 - A minority of 10 walking-out senators cannot, by deserting the hall, deprive the remaining 12 senators of their power to pass resolutions unanimously supported by them.
 - **B. Effective Membership / Absence Rationale (Feria, J. & Majority):**
 - The 1935 Constitution originally required a "*majority of all the members of the National Assembly*" for a quorum. The 1940 Constitutional Amendment deliberately changed the phrase to "**a majority of each House**" [86–87, 140].
 - This textual change establishes that quorum is computed based on **actual/incumbent members who are capable of discharging their duties and within the coercive jurisdiction of the House**.
 - Because Senator Tomas Confesor was in the United States and beyond the reach of Senate compulsory process, the active membership was **23 senators**.
 - **Mathematical Formula:** An absolute majority of 23 members is **12 members** ($\lfloor 23 \div 2 = 11.5 \rightarrow 12 \rfloor$). Thus, 12 senators constituted a valid constitutional majority for a quorum.
 - **C. Substantial Justice and Formalism Rationale (Moran, C.J.):**
 - Under the peculiar crisis conditions, requiring 13 senators became a mere formalism.
 - Because the 12-member Cuenco group formed a solid, unyielding majority against Avelino's 11 supporters, declaring Avelino the rightful Senate President would be futile—the 12 senators could immediately issue compulsory process, achieve 13 present, and ratify Cuenco's election.
-

● DOCTRINE, TESTS, AND LEGAL STANDARDS

1. **Quorum Computation Test for Legislative Chambers (Art. VI, Sec. 16(2)):** "A majority of each House shall constitute a quorum to do business...". In computing a constitutional quorum:
 - Members who are physically outside the country or otherwise beyond the coercive jurisdiction/process of the legislative body (e.g., Sen. Confesor in the US) may be excluded from the base total of effective membership.
 - An absolute majority (12) of all active members less one absent abroad (23) constitutes a constitutional majority for a quorum.
 2. **Abandonment of the Legislative Chair:** A presiding officer who arbitrarily declares an unapproved adjournment and walks out of the session hall abdicates his presiding authority, entitling the President Pro-Tempore and remaining members to continue the session.
 3. **Judicial Supremacy in Legislative Quorum Controversies:** The Supreme Court has jurisdiction to determine whether a legislative session was held with a constitutional quorum, as the enforcement of explicit constitutional mandates is a justiciable legal question.
-

♥ DISPOSITION

- **March 4, 1949 Resolution:** Petition for *Quo Warranto* **DENIED** for lack of jurisdiction (6-4).
 - **March 14, 1949 Resolution (Motion for Reconsideration):** Motion for Reconsideration **GRANTED**. The Court assumed jurisdiction (7-4), DECLARED that a valid quorum was present, HELD that Mariano J. Cuenco was legally elected Acting Senate President, and **DISMISSED** the petition on the merits [1, 134–135].
-

● SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLE LINES

1. Concurring Opinion of Associate Justice Felicisimo R. Feria [136–141]

- **Judicial Supremacy:** Reversed his March 4 vote to establish judicial supremacy, ensuring the Supreme Court acts as final arbiter whenever any branch transcends the Constitution [138–139].
- **Textual Amendment:** Emphasized that changing "majority of all the members" to "majority of each House" in the 1940 amendments proved the framers' intent to base quorum on active, available members.

2. Concurring Opinion of Chief Justice Manuel V. Moran [154–161]

- **Judicial Statesmanship:** Declared that the Court had no alternative but to meet the challenge of a national crisis.
- **Substantial Justice:** Maintained that 12 senators constituted a solid majority in Manila, and invalidating their action over a technical quorum threshold would prolong an untenable paralysis.

3. Dissenting Opinion of Associate Justice Gregorio Perfecto [89–131, 142–153]

- **Dissent on Quorum:** Maintained that "majority" is a precise mathematical term meaning more than half. Out of 24 total members, a majority cannot be less than 13 ($(24 \div 2 = 12)$; 12 is half, not a majority). Absenteeism abroad cannot reduce the constitutional base.
- **Concurrence on Emergency:** Admitted that for the sole emergency purpose of electing an Acting President to fill the vacuum created by Avelino's walkout, 12 was sufficient [145–146].

4. Dissenting Opinion of Associate Justice Pedro Tuason (joined by Briones, J.) [132–134]

- **Fixed Base Total:** Argued that the quorum base must remain the 24 elected and qualified senators. Excluding absentees abroad sets a dangerous precedent allowing small numbers of legislators to transact business.

Source-Verified Quotable Lines

-  **On Quorum Base and "The House" (Per Curiam / Feria, J.):**

"When the 1935 Constitution declared that a majority of 'each House' shall constitute a quorum, it does not mean 'all' the members. Even a majority of all the members present constitute 'the House'... Therefore an absolute majority (12) of all senators less one (23) constitutes constitutional majority of the Senate for purposes of a quorum."

-  **On Judicial Supremacy (Feria, J.):**

"I gladly change my vote and concur with the majority... so as to establish in this country the judicial supremacy, with the Supreme Court as the final arbiter, to see that no one branch or agency of the government transcends the Constitution..."

RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Avelino v. Cuenco* (1949), Senate President Jose Avelino faced grave charges of graft and electoral fraud filed by Senators Tañada and Sanidad under Resolution No. 68. During the Feb 21, 1949 session (where 22 of 24 senators were physically present), Avelino engaged in dilatory tactics to prevent Tañada from speaking. When a motion to adjourn was objected to, Avelino arbitrarily banged his gavel, declared the session adjourned, and walked out with 9 supporters. Twelve (12) senators remained, resumed session under Senate President Pro-Tempore Arranz, heard Tañada's speech, passed Resolution No. 68, declared the Senate Presidency vacant, and elected Mariano J. Cuenco as Acting Senate President. Avelino filed a Rule 66 quo warranto petition in the Supreme Court, claiming the rump session lacked a constitutional quorum (12 out of 24 members).

The Supreme Court, in its March 14, 1949 Resolution on Motion for Reconsideration, voted 7-4 to ASSUME JURISDICTION and DISMISSED the petition on the merits. The Court held: (1) SC has jurisdiction under Judicial Supremacy to resolve constitutional crises and enforce quorum rules; (2) Avelino's unilateral adjournment was arbitrary and void, and his walkout constituted an abandonment of the Chair; and (3) A valid QUORUM WAS PRESENT because: (a) the session was a direct continuation of the morning session where 22 were present; (b) Senator Tomas Confesor was in the US beyond coercive process, reducing effective membership to 23, where 12 constitutes an absolute majority; and (c) under the 1940 amendment ('majority of each House' instead of 'majority of all the members'), quorum is based on actual, capable members."* [1, 81–87, 119–125, 134, 139–140]

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: How did the Supreme Court compute a constitutional quorum of 12 out of 24 senators in *Avelino v. Cuenco*?**
 - **A:** The Court held that under Article VI, Section 10(2) of the 1935 Constitution (which changed "majority of all the members" to "majority of each House"), quorum is computed based on **actual, effective membership within the coercive jurisdiction of the Senate**. Because Senator Tomas Confesor was in the United States and beyond Senate process, the active base was 23 senators, of which 12 constituted an absolute majority ($(23 \div 2 = 11.5 \rightarrow 12)$).
2. **Q: Why did the Supreme Court initially dismiss the petition on March 4, 1949, and what made it change its mind on March 14, 1949?**
 - **A:** On March 4, the Court dismissed the petition under the political question doctrine and separation of powers. On March 14, the Court assumed jurisdiction because the resulting Senate impasse paralyzed legislation, unexecuted arrest warrants created chaos, and judicial intervention was imperatively required under **Judicial Supremacy** to interpret the constitutional quorum mandate [134, 139, 154–155].
3. **Q: Can a Senate President unilaterally declare a session adjourned to prevent a vote on charges filed against him?**
 - **A: No.** A motion to adjourn is a collective parliamentary decision that must be submitted to a vote if objected to. A presiding officer who unilaterally declares an unapproved adjournment and walks out acts arbitrarily and abdicates his authority, allowing the Senate President Pro-Tempore and remaining members to resume the session.

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose the Senate consists of 24 members. Twelve (12) senators are present in the hall, 10 senators walk out during a heated debate, 1 senator is hospitalized in Manila, and 1 senator is attending an official mission in Japan. The 12 remaining senators attempt to pass a legislative bill. The 10 walkout senators file a petition in the Supreme Court alleging lack of quorum. Is the session valid under *Avelino v. Cuenco*?
- **Answer: No, the session is INVALID for lack of quorum.** Under *Avelino v. Cuenco*, members excluded from the quorum base are those **physically outside the country or beyond coercive process**. The 10 walkout

senators and the 1 hospitalized senator in Manila are within Philippine territory and subject to the Senate's compulsory arrest processes to enforce attendance. Excluding only the 1 senator in Japan leaves an effective base of 23 members in the Philippines, requiring 12 members for a quorum. However, if the 10 walkout senators walked out *during* an active session where a 22-member quorum was already established by roll call, the remaining 12 can validly continue the session under the *Continuation Rationale* of *Avelino v. Cuenco* [85–86, 95].

One-Sentence Doctrine Anchor

Under Article VI, Section 16(2) of the Constitution, a quorum is based on the effective membership of capable senators within the jurisdiction of the Senate, and a presiding officer's arbitrary walkout cannot deprive the remaining majority of their power to continue the session. [1, 86–87, 117, 140]

AVELINO v. CUENCO (1949)

Topic Subtopic	Congress - Organizations and Sessions - Quorum	GR No. & Ponente	G.R. No. L-2821 March 4, 1949
Petitioner/s	Jose Avelino	Respondent/s	Mariano J. Cuenco
Doctrine	When the Constitution declares that a majority of "each House" shall constitute a quorum, "the House" does not mean "all" the members. Even a majority of all the members constitute "the House". There is a difference between a majority of "all the members of the House" and a majority of "the House", the latter requiring less number than the first. Therefore an absolute majority (12) of all the members of the Senate less one (23), constitutes a constitutional majority of the Senate for the purpose of a quorum.		

FACTS

- Feb 18, 1949 - Senate Session, Senator Lorenzo Tanada reserved his right to speak on the floor of the Senate Session the next day to formulate charges against the then Senate President Jose Avelino. His request was approved.
- Feb 21, 1949 - Hours before the session opening, Sen. Tanada and Sen. Prospero Sanidad filed a resolution with the Secretary of the Senate enumerating charges against Sen. Avelino and ordering an investigation.
- Although a sufficient number of senators to constitute a quorum were at the Senate session hall at the appointed time (10:00A.M.), and the petitioner was already in his office, said petitioner **delayed** his appearance at the session hall until about 11:35A.M.
- When he finally ascended the rostrum, he did not immediately open the session, but instead requested from the Secretary a copy of the resolution submitted by Senators Tañada and Sanidad and in the presence of the public he read slowly and carefully said resolution, after which he called and conferred with his colleagues Senators Francisco and Tirona.
- Shortly before 12:00 noon, due to the insistent requests of Senators Sanidad and Cuenco that the session be opened, the petitioner finally called the meeting to order. Except Senator Sotto who was confined in a hospital and Senator Confesor who is in the United States, all the Senators were present
- During the session, Sen. Avelino's partisans made use of dilatory tactics to prevent Sen. Tanada from delivering his speech. Sen. Avelino, who was presiding, continuously ignored Sen. Tanada, despite his repeated efforts to claim his right to deliver his privilege speech, threatened to order the arrest of any senator speaking without prior recognition. On the other hand, Sen. Avelino kept tolerating his follower, Sen. Tirona, who was continuously shouting at Senator Sanidad "Out of order!" every time the latter would ask for recognition of Senator Tañada.
- At this juncture, some disorderly conduct broke out in the Senate gallery, as if by pre-arrangement. At about this same time Senator Pablo Angeles David, one of the petitioner's followers, was recognized by petitioner, and he moved for adjournment of session, evidently, again, in pursuance of the above-mentioned conspiracy to muzzle Senator Tañada.
- Senator Sanidad registered his opposition to the adjournment of the session and this opposition was seconded by herein respondent who moved that the motion of adjournment be submitted to a vote. Another commotion ensued. Senator David reiterated his motion for adjournment and herein respondent also reiterated his opposition to the adjournment and again moved that the motion of Senator David be submitted to a vote.
- Suddenly, the petitioner banged the gavel and abandoning the Chair hurriedly walked out of the session hall followed by Senators David, Tirona, Francisco, Torres, Magalona and Clarin, while the rest of the senators remained. Whereupon Senator Melecio Arranz, Senate President Pro-tempore, urged by those senators present took the Chair and proceeded with the session
- Senator Cabili stood up, and asked that it be made of record — it was so made — that the deliberate abandonment of the Chair by the petitioner, made it incumbent upon Senate President Pro-tempore Arranz and the remaining 12 members of the Senate to continue the session in order not to paralyze the functions of the Senate.
- Senate President Pro-tempore Arranz then suggested that Cuenco be designated to preside over the session, which suggestion was carried unanimously. Cuenco thereupon took the Chair.
- Senator Tañada, after being recognized by the Chair, was then finally able to deliver his privilege speech.

Thereafter Senator Sanidad read aloud the complete text of said Resolution (**No. 68**), and submitted his motion for approval thereof and the same was unanimously approved.

- With Senate President Pro-Tempore Arranz again occupying the Chair, after the respondent had yielded it to him, Senator Sanidad introduced Resolution **No. 67**, entitled "Resolution declaring vacant the position of the President of the Senate and designating the **Honorable Mariano Jesus Cuenco Acting President of the Senate**." Put to a vote, the said resolution was unanimously approved → Sen. Cuenco took the oath → President of the PH recognized him as the acting president of the PH Senate.
- Sen. Avelino filed a petition for quo warranto with the SC, seeking to have him declared as the rightful president of the Senate and oust Sen. Cuenco.

ISSUE 1

Main – Substantive	W/N the Court has jurisdiction over the subject matter?	YES
RULING and RATIO DECIDENDI:		
6-4 Justices voted to dismiss the petition - The Court initially ruled that it has no jurisdiction, citing the principle of separation of powers, the political nature of the controversy, and the constitutional grant to the Senate of the power to elect its own president. The selection of the presiding officer affects only the senators themselves, who are at liberty at any time to choose, change, or reinstate their officers in the Senate Session Hall. Moreover, the recognition accorded by the Chief Executive to respondent Cuenco makes it advisable for the Court to adopt a hands-off policy. *HOWEVER, on motion for reconsideration and the March 14, 1949 Resolution, the Court reversed its stance by a vote of 7 to 4 and assumed jurisdiction, (1) "in the light of subsequent events which justify its intervention;" and (2) because the resolution of the issue hinged on the interpretation of the constitutional provision on the presence of a quorum to hold a session and therein elect a Senate President. (March 14, 1949 Resolution)		

ISSUE 2

Main – Substantive	W/N Resolution Nos. 67 and 68 were validly approved?	YES
RULING and RATIO DECIDENDI:		
Justices Montemayor and Reyes initially deemed it useless to decide on this, as the Court has no jurisdiction. The following are the opinions of the 4 justices on this question, assuming that the Court has jurisdiction. This was later on adopted by the majority in the Resolution for Motion on Reconsideration. To determine whether these resolutions were validly approved, the Court evaluated two sub-questions: 1. Was the session of the so-called rump Senate a continuation of the session validly assembled with twenty two Senators in the morning of February 21, 1949? - Yes. The morning session was validly assembled with 22 senators. When the 10 senators later left, the remaining 12 senators continued the session under Senator Arranz. The Court held that the walkout of the 10 senators did not prevent the remaining 12 from continuing the session and passing the resolution unanimously. The answer might be different had the resolution been approved only by ten or less 2. Was there a <i>quorum</i> in that session? - Yes. Even assuming that the rump session was a new session rather than a continuation, the Court held that there was still a quorum. Senator Tomas Confesor was absent from the country, leaving 23 senators who could participate. Since a majority of 23 is 12, the 12 senators present constituted a quorum. - When the Constitution declares that a majority of "each House" shall constitute a quorum, "the House" does not mean "all" the members. Even a majority of all the members constitute "the House". - There is a difference between a majority of "all the members of the House" and a majority of "the House", the latter requiring less number than the first. Therefore an absolute majority (12) of all the members of		

the Senate less one (23), constitutes a constitutional majority of the Senate for the purpose of a quorum.

The judgment of the Court is, therefore, that respondent Mariano J. Cuenco has been legally elected as SP.

FINAL DECISION	March 4, 1949 Resolution As already stated, the six justices hereinabove mentioned voted to dismiss the petition. Without costs. March 14, 1949 Resolution The judgment of the Court is, therefore, that respondent Mariano J. Cuenco has been legally elected as Senate President and the petition is dismissed, with costs against petitioner. 4-4 vote on w/n there was quorum Mr. Justice Paras concurs in the result. Mr. Justice Bengzon dissents on the question of jurisdiction but concurs on the question of quorum. Mr. Justice Tuason concurs on the question of jurisdiction but dissents on that of quorum. Mr. Justice Montemayor dissents on the question of jurisdiction and reserves his vote on the question of quorum. Mr. Justice Reyes reserves the right to express the reasons for his vote
---------------------------	---

SEPARATE OPINION/S

PERFECTO, J, dissenting	On Jurisdiction • The questions raised in the petition, although political in nature, are justiciable because they involve the enforcement of legal precepts, such as the provisions of the Constitution and of the rules of the Senate. ◦ Whether there was a quorum or not in the meeting of twelve Senators . . . is question that calls for the interpretation, application and enforcement of an express and specific provision of the Constitution ◦ The power and authority to decide such questions of law form part of the jurisdiction and cannot be divested. • Cuenca's contention that he has been recognized by the President of the Philippines as acting President of the Senate and that executive recognition is binding and conclusive on the court is erroneous. ◦ The actions of the President of the Philippines cannot deprive the Supreme Court of the jurisdiction vested in it by the Constitution ◦ Congress cannot deprive SC of jurisdiction to decide questions of law; much less can the president do so (as Executive power is of subordinate category to that of the Legislative power). • The Senate is the only body that can determine from time who is and shall be its President, but when the legal questions are raised in a litigation, the proper court has the function, the province and the responsibility to decide them. • The Court does not encroach upon the powers of the Legislative Department by entertaining the petition. The issues raised are all legal questions upon which courts of justice have jurisdiction and the Supreme Court is the final arbiter. On Illegal Adjournment • Motion to adjourn has the highest precedence and is generally not debatable. • Power to adjourn belongs to the Senate as a body, and cannot be exercised by a single individual. ◦ The presiding officer has no authority to adjourn motu proprio • No objection to a properly made motion may constitute implied consent to adjournment. ◦ Here, the evidence showed that the motion to adjourn was actually objected to - Sen. Tanada was clearly bent on delivering the speech.
------------------------------------	---

	• The Court found that the adjournment was used to delay/prevent the investigation and possible ouster of the Senate President. • <u>The adjournment decreed by petitioner was arbitrary and illegal.</u> On Quorum • Quorum = majority of the entire Senate membership • Senate had 24 Senators; thus, quorum requires 13. • A smaller number may adjourn, but cannot transact official Senate business. • The 12 Senators who remained could not validly elect Cuenco as Acting Senate President because they lacked quorum; thus, the resolution declaring the Senate Presidency vacant was invalid. • The existence of a <i>quorum</i> in a collective body is an indispensable condition for effective collective action. • Cuenco shall give up the Senate Presidency to Avelino, and Avelino is prohibited from illegally obstructing or adjourning Senate sessions so the Senate could freely conduct its business according to the will of the majority.
TUASON, J, <i>dissenting</i>	• 12 Senators did not constitute a quorum, so Cuenco's election as Acting Senate President was illegal. • Quorum should be based on the total number of elected and qualified Senators, including those who were absent or abroad. • Absence from the country does not remove a Senator from the quorum count because they do not lose their office simply by being abroad. Otherwise, a small number of Senators could transact business as long as they were a majority of those physically present in the Philippines.
MORAN, <i>dissenting+ concurring</i>	I believe that this Court has jurisdiction over the case. The present crisis in the Senate is one that imperatively calls for the intervention of this Court. Respondent Cuenco cannot invoke the doctrine of noninterference by the courts with the Senate because the legal capacity of his group of twelve senators to act as a senate is being challenged by petitioner on the ground of lack of quorum. → not a political question but a constitutional question that is cognizable by the Court (since both factions in the Senate will not be able to decide on it) As to the legality of respondent's election as acting President of the Senate, 2 I firmly believe that although petitioner's adjournment of the session of February 21, 1949, was illegal, such illegality cannot be countered with another illegality. The session wherein respondent was elected as acting President of the Senate was illegal because when Senator Mabanag raised the question of a quorum and the roll was called, only twelve senators were present. In the Philippines there are 24 senators, and therefore, the quorum must be 13. → I believe that respondent Mariano J. Cuenco has not been legally elected as acting President of the Senate.
BRIONES, J, <i>dissenting</i>	(IN SPANISH) • The Supreme Court has jurisdiction because the quorum issue is a justiciable question. • Avelino's adjournment was illegal because he should have put the motion to a vote after it was objected to. • However, Avelino's illegality did not justify Cuenco's election. 13 were needed for quorum. • Cuenco could have compelled absent Senators to attend or waited until there was a quorum

Tinio v. Duterte

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Act Teachers Rep. Antonio Tinio, et al. v. President Rodrigo Roa Duterte, et al.* (G.R. No. 236118) consolidated with *Laban Konsyumer, Inc., et al. v. Executive Secretary Salvador C. Medialdea, et al.* (G.R. No. 236295)
- **Citation:** G.R. Nos. 236118 & 236295, January 24, 2023 (En Banc)
- **Ponente:** Dimaampao, J.
- **Bench Composition:** Hernando, Lazaro-Javier, Inting, Zalameda, M.V. Lopez, Gaerlan, J.Y. Lopez, Marquez, Kho, Jr., and Singh, JJ., concurring; Gesmundo, C.J., see separate concurring opinion; Leonen, J., see separate opinion; Caguioa, J., see dissent; Rosario, J., on official leave.
- **Syllabus Relevance & Topic:**
 1. **Legislative Department — Quorum Requirement & Internal Parliamentary Rules (Art. VI, Sec. 16(2) & (3)):** Presumption of a continuing quorum once established at the start of a session; non-justiciability of internal parliamentary procedural rules under judicial review; conclusiveness of Congressional Journals (Art. VI, Sec. 16(4)) and the Enrolled Bill Doctrine [23, 37, 64, 218, 225, 227, 230–231].
 2. **Legislative Department — Origin of Revenue Bills & Prohibition Against Riders (Art. VI, Sec. 24 & Sec. 26(1)):** Senate's power to propose amendments or substitute bills to revenue measures originating from the House; test for germaneness under the "one subject, one title" rule [18, 20, 22, 244–245].
 3. **Constitutional System of Taxation (Art. VI, Sec. 28(1) & Art. III, Sec. 1):** Regressive taxation (indirect excise taxes on fuel, coal, LPG) as a non-judicially enforceable standard; discretion of Congress to formulate tax policy; equal protection and substantive due process in tax measures [9, 11, 248, 254–255, 258–260].
 4. **Procedural Requirements for Judicial Review:** Expanded certiorari jurisdiction (Art. VIII, Sec. 1); hierarchy of courts exceptions; impleading Congress as an indispensable party; Presidential immunity from suit.

CHRONOLOGICAL MATERIAL FACTS

1. **Initiation of Tax Reform:** President Rodrigo Roa Duterte certified as urgent House Bill (HB) No. 5636 and Senate Bill (SB) No. 1592, the precursor tax reform bills to fund the Duterte administration's "Build, Build, Build" infrastructure program under the Comprehensive Tax Reform Program (CTRP Package 1).
2. **Bicameral Conference Committee (BCC) & Floor Ratification (December 13, 2017):**
 - On December 13, 2017, the House of Representatives convened its session with **232 members responding to the initial roll call**, establishing a valid constitutional quorum.
 - The session was suspended at 7:44 p.m. and resumed at 10:02 p.m..
 - Upon resumption at 10:02 p.m., Deputy Speaker Raneo Abu presided. On motion of Deputy Majority Leader Rep. Arthur Defensor, Jr., the House considered authority for committee meetings during recess and then moved to ratify the Bicameral Conference Committee (BCC) Report reconciling HB No. 5636 and SB No. 1592 [231–232].
 - Rep. Defensor moved for the ratification of the TRAIN BCC Report, and the Chair declared the report ratified without objection at 10:05 p.m. [232–233].
3. **Petitioners' Allegation of "No Quorum":** Petitioners Rep. Antonio Tinio, Rep. Carlos Isagani Zarate, and Rep. Ariel Casilao claimed that when the BCC Report was moved for ratification, there were only around 10 to 13 legislators physically present in the near-empty session hall. Rep. Tinio snapped a photograph showing empty

seats and pointed to the YouTube livestream video recording of the House floor proceedings. They alleged their objections and calls for a quorum check were ignored and railroaded by the House leadership.

4. **Approval of Journal No. 48 (January 15, 2018):**
 - On January 15, 2018, during the next session, Rep. Juan Pablo Bondoc moved for the approval of Journal No. 48 (which recorded the December 13, 2017 session) [238–239].
 - Rep. Tinio objected, arguing that Journal No. 48 should be amended to reflect the lack of quorum and his objections during the ratification.
 - Rep. Bondoc reiterated that 232 members responded to the roll call on December 13, 2017. The Chair called for a **division of the House**. By a majority vote of the House members, **Journal No. 48 was officially approved and adopted** without the requested corrections.
5. **Signing of R.A. No. 10963:** Both the Speaker of the House and Senate President authenticated the enrolled bill, and President Duterte signed Republic Act No. 10963 (TRAIN Act) into law on December 19, 2017, taking effect on January 1, 2018.
6. **Filing of Petitions:**
 - **G.R. No. 236118:** Filed under Rule 65 by Act Teachers Rep. Antonio Tinio, Bayan Muna Rep. Carlos Isagani Zarate, and Anakpawis Rep. Ariel "Ka Ayik" Casilao against President Duterte, Speaker Alvarez, Deputy Speaker Abu, Majority Leader Fariñas, and Deputy Majority Leader Defensor.
 - **G.R. No. 236295:** Filed under Rule 65 by Laban Konsyumer, Inc. and Atty. Victorio Mario A. Dimagiba against Executive Secretary Medialdea, Finance Secretary Dominguez, BIR Commissioner Dulay, Speaker Alvarez, and Senate President Pimentel.

PROCEDURAL HISTORY

1. **Consolidated Petitions:** Consolidated Petitions for Certiorari and Prohibition under Rule 65 assailing R.A. No. 10963 (TRAIN Act) [10, 194–196].
2. **OSG Consolidated Comment:** Respondents (via the OSG) filed a Consolidated Comment raising procedural defenses (lack of actual case, hierarchy of courts, non-impleading of Congress, presidential immunity) and defending the substantive and procedural constitutionality of the TRAIN Act [196–198].
3. **Supreme Court Disposition (January 24, 2023):** The Supreme Court En Banc upheld the constitutionality of the TRAIN Act and dismissed the petitions [11, 263–264].

PARTIES' MATERIAL ARGUMENTS

- **Petitioners (Tinio, et al. & Laban Konsyumer / Dimagiba):**
 1. **Procedural Invalidity (Lack of Quorum):** The ratification of the TRAIN BCC Report on December 13, 2017 violated Art. VI, Sec. 16(2) because there was an utter lack of quorum (only 10–13 members present in the hall, as shown by video and photo evidence).
 2. **Unconstitutional Rider:** Section 48 of the TRAIN Act (amending Section 151 of the NIRC to increase coal excise tax) is an unconstitutional rider that did not originate in the House, violating Art. VI, Sec. 24 and Sec. 26(1).
 3. **Violation of Substantive Due Process:** The imposition of heavy pass-on excise taxes on essential commodities (diesel, coal, LPG, kerosene) causes rampant inflation, amounting to an arbitrary, confiscatory deprivation of property without due process under Art. III, Sec. 1.
 4. **Violation of Equal Protection & Progressive Taxation:** The indirect excise taxes are regressive by nature, hitting low-income families hardest and violating the Equal Protection Clause and the constitutional mandate to "evolve a progressive system of taxation" under Art. VI, Sec. 28(1) [10–11, 195, 201, 203, 255].

- **Respondents (Executive & Legislative Officials via OSG):**

1. **Procedural Objections:** Misjoinder of President Duterte (presidential immunity); failure to implead Congress as an indispensable party; violation of hierarchy of courts.
2. **Enrolled Bill & Journal Conclusiveness:** The Court cannot look beyond the Enrolled Bill and Congressional Journal No. 48. Under the enrolled bill doctrine and Art. VI, Sec. 16(4), Journal No. 48 is conclusive evidence that a quorum was present and that the BCC Report was validly ratified.
3. **Quorum Presumption & Internal Rules:** Quorum established at the start of session (232 members) is presumed to continue unless formally challenged via a point of order and roll call under House Internal Rules (Sec. 74 & 75) [223, 225–226, 230, 233].
4. **Germaneness of Coal Excise Tax:** Senate amendments to revenue bills are explicitly allowed under Art. VI, Sec. 24. Coal excise tax is germane to the broad title and revenue-raising purpose of the TRAIN Act.
5. **Tax Policy & Regressivity:** Taxation is a legislative power. Indirect excise taxes, while regressive, do not violate Art. VI, Sec. 28(1) because the progressive taxation clause is a moral incentive, not a judicially enforceable negative standard [9, 258–260]. Mitigating measures (unconditional cash transfers, infrastructure spending) cushion the impact on poor households [11, 247, 249–251].

● ISSUES

1. **Procedural Issues:**
 - Whether the Court may take cognizance of the petitions under its expanded judicial review power (Art. VIII, Sec. 1).
 - Whether direct resort to the Supreme Court violates the hierarchy of courts.
 - Whether Congress as an institution is an indispensable party [205, 214–215].
 - Whether impleading President Duterte violates presidential immunity from suit [205, 215–216].
2. **Substantive Issue 1 (Quorum & Due Enactment):** Whether the TRAIN Act was validly enacted into law under Art. VI, Sec. 16(2) despite the alleged absence of a physical quorum during the House ratification of the BCC Report.
3. **Substantive Issue 2 (Rider):** Whether Section 48 of the TRAIN Act (increasing coal excise tax) constitutes an unconstitutional rider under Art. VI, Sec. 24 and Sec. 26(1).
4. **Substantive Issue 3 (Due Process):** Whether the excise taxes on fuel, coal, LPG, and kerosene violate the Substantive Due Process Clause (Art. III, Sec. 1).
5. **Substantive Issue 4 (Equal Protection & Progressive Taxation):** Whether the TRAIN Act violates the Equal Protection Clause and the mandate to evolve a progressive system of taxation under Art. VI, Sec. 28(1) [9, 205, 254–255, 258–260].

🌸 HOLDINGS AND CONTROLLING REASONING

1. On Procedural Threshold Issues:

- **Expanded Judicial Review (Art. VIII, Sec. 1):** The Court took cognizance of the petitions. Requisites for judicial review were met: (a) actual case exists due to ongoing economic impact of tax enforcement; (b) legislators (Tinio, et al.) have standing to protect legislative prerogatives, and consumer-citizens have standing given the transcendental importance of tax measures; (c) earliest opportunity; and (d) constitutionality is the *lis mota* [207, 209–212].
- **Hierarchy of Courts:** Direct resort was excused due to genuine constitutional issues of transcendental importance requiring prompt resolution.

- **Indispensable Party:** Substantially complied with because Speaker Alvarez and Senate President Pimentel were implicated in representation of their respective Houses [214–215].
- **Presidential Immunity:** Sitting President Duterte should be dropped as respondent under the settled doctrine of presidential immunity from suit during incumbency.

2. On Procedural Validity of Enactment (Quorum, Enrolled Bill, & Journal Conclusiveness): YES. The TRAIN Act was VALIDLY ENACTED into law.

- **A. Method of Determining Quorum is an Internal House Prerogative (Art. VI, Sec. 16(3)):**
 - Section 16(3), Art. VI authorizes each House to determine the rules of its proceedings. While Sec. 16(2) requires a majority of each House for a quorum, **the Constitution does NOT mandate the specific method by which a quorum is counted or sustained once established.**
 - The House possesses full competency to adopt a system where a quorum established at the initial roll call (232 members present) is **presumed to persist continuously** throughout the session unless a formal point of order is raised and a new roll call is conducted under Sections 74 and 75 of the House Internal Rules [223, 225–226, 230, 233].
- **B. Non-Justiciability of Internal Parliamentary Rules (Arroyo v. De Venecia Standard):**
 - Courts will not inquire into allegations that Congress failed to follow its own internal procedural rules [23, 37, 64, 229–230]. The enforcement of internal parliamentary rules is an internal matter under the exclusive control of Congress.
 - Allegations that Rep. Tinio's objection was ignored or unheeded amount to a grievance regarding internal House rules, not an unconstitutional act [226, 229–230].
- **C. Enrolled Bill Doctrine and Conclusiveness of Congressional Journals (Art. VI, Sec. 16(4)):**
 - Under the **Enrolled Bill Doctrine**, the signing of the bill by the Speaker and Senate President and its certification by the Secretaries of both Houses is conclusive evidence of its due enactment.
 - Under Art. VI, Sec. 16(4), **Congressional Journals are unimpeachable and conclusive evidence** of the proceedings recorded therein (*United States v. Pons*).
 - Journal No. 48 recorded that 232 members were present at the start of the session, and that the BCC Report was ratified without objection [223, 231–233]. Furthermore, during the subsequent session on January 15, 2018, **a majority of the House explicitly voted to approve Journal No. 48** (Journal No. 49), rejecting Rep. Tinio's proposed corrections.
- **D. Inadequacy of Extraneous Evidence (YouTube Videos & Photos):**
 - YouTube livestream videos and photos cannot override the conclusive entries of the official Congressional Journal and Enrolled Bill [23, 231, 234–236].
 - Secondary media recordings are published for public information, whereas the Journal is a constitutionally mandated record. A camera frame showing a section of the session hall does not conclusively prove the total number of members present in the entire building/hall.
 - Unlike *Avelino v. Cuenco* (where 12 out of 24 senators was an established fact) or *Zamora v. Caballero* (6 out of 14 members established), petitioners offered only vague estimates ("10 to 13 members"), failing to meet the **clear and convincing evidence** threshold required to overturn official acts of a co-equal branch.

3. On Section 48 (Coal Excise Tax) as an Alleged Rider: NO. Section 48 is NOT a rider.

- **Senate's Power to Amend Revenue Bills (Art. VI, Sec. 24):** While tax measures must originate exclusively in the House, Article VI, Section 24 explicitly provides that "*the Senate may propose or concur with amendments.*" As established in *Tolentino v. Secretary of Finance*, the Senate has plenary power to propose substitute bills or insert entire new tax provisions.
- **Germaneness under "One Subject, One Title" Rule (Art. VI, Sec. 26(1)):** Section 48 (amending Sec. 151 NIRC to increase coal excise tax) is germane to the broad title and purpose of HB 5636 and the TRAIN Act—which is to rationalize internal revenue taxes and generate revenues for state infrastructure and social programs.

4. On Substantive Due Process: NO. The TRAIN Act does NOT violate Due Process.

- Taxation is an inherent legislative power. The wisdom, rate, and coverage of tax measures belong to Congress (*Chamber of Real Estate and Builders' Assn. v. Romulo*) [11–13, 248, 253].
- The excise tax provisions on fuel, coal, LPG, and kerosene cannot be viewed in isolation; they must be read alongside Section 82 (amending Sec. 288 NIRC), which automatically earmarks 70% of incremental revenues for infrastructure ("Build, Build, Build") and 30% for social mitigating measures (unconditional cash transfers, fuel subsidies) [10, 193, 247, 249–251].
- Petitioners failed to present clear factual evidence proving that the overall net impact of the TRAIN Act is confiscatory or oppressive. Evaluating the general economic impact of a law goes into its **wisdom**, which is outside the scope of judicial review.

5. On Equal Protection & Regressive Taxation: NO. The TRAIN Act does NOT violate Equal Protection nor Section 28(1), Article VI.

- **Equal Protection:** The law contains no express classification discriminating against low-income households. All taxpayers buying fuel or coal pay the same indirect tax rate regardless of income.
- **Progressive System of Taxation Mandate (Art. VI, Sec. 28(1)):**
 - Reaffirming *Tolentino v. Secretary of Finance*, *Abakada Guro Party List v. Ermita*, and *British American Tobacco v. Camacho*, all indirect taxes (VAT, excise taxes) are inherently regressive because the tax rate does not vary based on individual income [5, 11–12, 258–260].
 - However, Section 28(1), Art. VI command to "evolve a progressive system of taxation" is a **moral incentive to legislation**, NOT a judicially enforceable negative standard that invalidates regressive indirect taxes [9, 259–260].
 - Congress retains full legislative discretion to balance direct progressive taxes with indirect regressive taxes to meet state revenue needs [12, 259–260].

DOCTRINE, TESTS, AND LEGAL STANDARDS

1. **Quorum Presumption & Internal Rules Doctrine (*Tinio v. Duterte / Arroyo v. De Venecia Rule*):** The Constitution leaves the method of counting and sustaining a quorum to the internal rules and discretion of each House under Art. VI, Sec. 16(3). Once a quorum is established at the start of a session, it is presumed to persist until formally challenged via a point of order and roll call under House Internal Rules [223, 225–226, 230, 233].
2. **Journal Conclusiveness and Enrolled Bill Rule in Quorum Challenges:** The Congressional Journal (Art. VI, Sec. 16(4)) and the Enrolled Bill are conclusive evidence of the proceedings of Congress. Video recordings, photographs, or informal estimates cannot override entries in the official Journal, especially when the Journal itself was formally approved by a majority vote of the House membership [37, 231, 234–238, 241].
3. **Regressive Taxation Standard (Art. VI, Sec. 28(1)):** Indirect taxes (excise taxes, VAT) are inherently regressive, but regressivity is NOT a negative standard for courts to enforce to declare a tax law unconstitutional [9, 258–260]. The mandate to evolve a progressive system of taxation is a moral incentive to Congress, not a judicially enforceable right (*Tolentino / Abakada Standard*) [9, 259–260].
4. **Senate Amendment Power over Revenue Bills (Art. VI, Sec. 24):** The Senate may introduce completely new tax provisions or increase tax rates (such as coal excise taxes) in a House-originated revenue bill, provided the amendment is germane to the general subject of the measure [5, 20, 244–245].

DISPOSITION

- **Ruling:** Republic Act No. 10963 (TRAIN Act) is declared **CONSTITUTIONAL**.
- **Directives:**
 1. The consolidated Petitions for Certiorari and Prohibition are **DISMISSED**.

2. The prayers for Temporary Restraining Order, Status Quo Ante Order, and Writ of Preliminary Injunction are **DENIED**.
 3. Former President Rodrigo Roa Duterte is **DROPPED** as a respondent in G.R. No. 236118.
-

SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLE LINES

1. Separate Concurring Opinion of Chief Justice Alexander G. Gesmundo

- **Conclusiveness of Journal:** Emphasized that the Congressional Journal is a constitutionally mandated record. Under *U.S. v. Pons*, allowing external parol/video evidence to impeach the Journal invades legislative independence and destroys legal certainty.

2. Separate Opinion of Senior Associate Justice Marvic M.V.F. Leonen

- **Procedural Locus Standi:** Stressed that non-legislator petitioners lacked traditional standing, but agreed that the grave constitutional questions warranted review.
- **Separation of Powers & Tax Discretion:** Concurred that judicial review does not extend to evaluating the economic wisdom or distributional fairness of tax policies crafted by the political branches.

3. Dissenting Opinion of Associate Justice Alfredo Benjamin S. Caguioa

- **Dissent on Quorum:** Argued that Art. VI, Sec. 16(2) imposes a mandatory constitutional requirement of a quorum to do business. When video evidence clearly reveals that only a handful of legislators were present when a major tax bill was declared "ratified," relying on formalistic journal entries validates a blatant constitutional violation and disenfranchises the public.

Source-Verified Quotable Lines

-  **On Judicial Non-Interference in Parliamentary Quorum Procedures (Dimaampao, J.):**

"Whichever method the House employs to count the majority of its members for purposes of determining the existence of a quorum is within its powers to constitute... once a quorum was established at the beginning of a House session, assailing the same is an internal matter best left to the judgment of the congressional body."

-  **On Journal Conclusiveness vs. Extraneous Video Evidence (Dimaampao, J.):**

"Unlike the Journal, which the Constitution makes imperative to be kept by Congress... the broadcasting of such proceedings appears to be for the primary purpose of information dissemination... YouTube video recordings or photographs cannot overcome the presumed validity of the acts of the House recorded in the official Journal."

-  **On Regressive Taxation and Moral Incentives (Dimaampao, J.):**

"Regressivity is not a negative standard for courts to enforce. What Congress is required by the Constitution to do is to 'evolve a progressive system of taxation'... These provisions are put in the Constitution as moral incentives to legislation, not as judicially enforceable rights."

● RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Tinio v. Duterte* (2023), legislators (Rep. Tinio, et al.) and consumer groups (Laban Konsumer) filed Rule 65 certiorari petitions challenging the constitutionality of R.A. 10963 (the TRAIN Act). They argued that: (1) The TRAIN BCC Report was unconstitutionally railroaded without a quorum on Dec 13, 2017, presenting YouTube livestream videos and photos showing only 10-13 members in the session hall; (2) Sec. 48 increasing coal excise tax was an unconstitutional rider that did not originate in the House; and (3) The pass-on excise taxes on fuel, LPG, and coal cause severe inflation, violating due process, equal protection, and the mandate to evolve a progressive system of taxation under Art. VI, Sec. 28(1).

The Supreme Court En Banc, through Justice Dimaampao, DISMISSED the petitions and declared the TRAIN Act CONSTITUTIONAL. The Court held: (1) Under Art. VI, Sec. 16(3), the method of counting and sustaining a quorum is an internal House prerogative; once established at roll call (232 members present), quorum is legally presumed to continue unless formally challenged via roll call under House Rules; (2) Under the Enrolled Bill Doctrine and Art. VI, Sec. 16(4), Journal No. 48 is unimpeachable conclusive evidence of due enactment, which cannot be overcome by YouTube videos or photos, especially since the House membership subsequently voted to approve Journal No. 48; (3) Sec. 48 is not a rider because Art. VI, Sec. 24 allows the Senate to propose amendments to revenue bills, and coal tax is germane to tax reform; and (4) Regressivity of indirect taxes does NOT violate Art. VI, Sec. 28(1), as the progressive taxation clause is a moral incentive to Congress, not a judicially enforceable negative standard."* [9–11, 18, 20, 23, 37, 191, 194–195, 203, 218, 221, 223, 225, 227, 230–231, 235–236, 238, 241, 244–246, 255, 258–260, 263]

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: Can a petitioner introduce YouTube livestream video recordings of House sessions to prove to the Supreme Court that there was no quorum during the passage of a bill?**
 - **A: No.** Under *Tinio v. Duterte*, YouTube video recordings and photographs are insufficient to overcome the constitutional presumption of validity accorded to the Enrolled Bill and the official Congressional Journal (Art. VI, Sec. 16(4)) [23, 231, 234–236]. The Journal is a constitutionally mandated unimpeachable record, whereas livestream broadcasts are merely for public information and show only limited camera angles of the session hall [236–237].
2. **Q: How does the Supreme Court treat the constitutional mandate under Article VI, Section 28(1) to "evolve a progressive system of taxation" when indirect regressive taxes are challenged?**
 - **A:** Under *Tinio v. Duterte* (reaffirming *Tolentino v. Secretary of Finance* and *Abakada Guro*), indirect taxes (like VAT and excise taxes) are inherently regressive, but regressivity is **not a negative standard for courts to enforce** [5, 9, 11–12, 258–260]. The constitutional directive to evolve a progressive system of taxation is a **moral incentive to legislation**, not a judicially enforceable right that invalidates regressive indirect tax statutes [9, 259–260].
3. **Q: Did the inclusion of an increased excise tax on coal (Section 48) by the Senate violate Article VI, Section 24, which states that all revenue bills must originate exclusively in the House of Representatives?**
 - **A: No.** Article VI, Section 24 explicitly states that "*the Senate may propose or concur with amendments.*" [244–245] Under the *Tolentino v. Secretary of Finance* doctrine, the Senate has plenary power to propose substitute measures or insert new tax provisions into a House-originated revenue bill, provided the amendment is germane to the general subject of tax reform.

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose during a House session, the initial roll call shows only 100 members present (out of 300 total members), and the Speaker explicitly records in the official Congressional Journal that "no quorum was established, but the House shall proceed to vote on the Tax Bill anyway." The Tax Bill passes and is enrolled. A group of citizens challenges the law under *Tinio v. Duterte*. Is the law valid?
- **Answer: No, the law is UNCONSTITUTIONAL AND VOID.** In *Tinio v. Duterte*, the session initially established a valid constitutional quorum on the record (232 members present) and the official Journal certified that the bill was validly ratified [223, 231–233]. However, in this hypothetical, the official Congressional Journal itself affirmatively discloses on its face that **no constitutional quorum was ever established** under Article VI, Section 16(2). Because the Journal entry itself proves an unconstitutional act without requiring external evidence, the Enrolled Bill doctrine does not apply (*Astorga v. Villegas* exception), and the law must be struck down for failing the mandatory constitutional quorum threshold.

One-Sentence Doctrine Anchor

The method of sustaining a quorum is an internal legislative prerogative, and official entries in the Congressional Journal and Enrolled Bill cannot be impeached by external video recordings, nor can indirect regressive taxes be invalidated under Article VI, Section 28(1) because progressive taxation is a moral incentive rather than a judicially enforceable right. [9, 23, 37, 225, 227, 231, 234, 236, 259–260]

Tinio v Duterte (2023)

Topic Subtopic	Congress - Organizations and Sessions - Quorum	GR No. & Ponente	G.R. Nos. 236118 & 236295, January 24, 2023 EN BANC DIMAAMPAO
Petitioner/s	236118 - ACT TEACHERS REP. ANTONIO TINIO, BAYAN MUNA REP. PARTY-LIST REP. CARLOS ISAGANI ZARATE, AND ANAKPAWIS REP. PARTY-LIST ARIEL "KA AYIK" CASILAO, PETITIONERS 236295 - LABAN KONSUYMER, INC. AND ATTY. VICTORIO MARIO A. DIMAGIBA	Respondent/s	236118 - HOUSE OF REPRESENTATIVES SPEAKER PANTALEON ALVAREZ et al 236295 - EXECUTIVE SECRETARY SALVADOR C. MEDIALDEA et al
Doctrine	Once a quorum is validly established and declared at the beginning of a legislative session (as recorded in the official journal), it is legally presumed to persist throughout the proceedings unless formally questioned through a point of order and verified via a roll call according to internal house rules		

FACTS

- The consolidated cases assail the constitutionality of RA10963 - "Tax Reform for Acceleration and Inclusion" (TRAIN) Act
- Petitioners in G.R. No. **236118**, hereafter referred to as "**Tinio**, et al.," lodged the instant Petition for Certiorari and Prohibition under Rule 65 of the Rules of Court to strike down the TRAIN Act for having been passed by Congress and signed by President Duterte ***in violation of the 1987 Constitution and the Internal Rules of the House of Representatives (House)***. Filed as citizens and taxpayers, and as reps of the public in general
 - In the main, they proffer that the passage of the law was unconstitutionally railroaded when the TRAIN Bicameral Conference Committee (BCC) Report was ratified ***despite the supposed glaring lack of quorum*** in the House on the night of 13 December 2017. Concomitantly, considering that the bill was never properly passed by the Congress, President Duterte's act of signing the same into law was likewise tainted with grave abuse of discretion
- Petitioners in G.R. No. **236295** ("Laban Konsyumer and Dimagiba") filed a separate Petition for Certiorari as consumers and in representation of other consumers who claim to be adversely affected by the pass-on excise taxes on diesel, coal, liquefied petroleum gas (LPG), and kerosene imposed by the TRAIN Act. Asks the Court to determine whether or not the act of the Legislature, i.e., supposedly passing the challenged law without the required quorum and votes, was tainted with grave abuse of discretion amounting to lack or excess of jurisdiction.
 - Moreover, some provisions in the Act, such as the excise tax on coal, avowedly did not originate from the House, in violation of Section 24, Article VI of the 1987 Constitution.

ISSUE 1

Main – Procedural	W/N the Court may take cognizance of the consolidated Petitions?	YES
RESPONDENT/S ARGUMENTS:		
OSG contends that the Petitions raise political questions which are not justiciable given that they involve the wisdom, justice, and expediency of the challenged legislation – matters which are wholly within the realm of the Congress' discretion.		
RULING and RATIO DECIDENDI:		
The Court may take cognizance of this case under its expanded power of judicial review. It can review if there is any grave abuse of discretion committed, especially if such acts purportedly violate the Constitution and the fundamental rights guaranteed therein.		
Actual Case or Controversy and Ripeness		
Tinio et al showed their direct injury as legislators and representatives, when the House railroaded their rights to pass the Train BCC Report. Additionally, they aver that the imposition of regressive taxes has led to		

inflation on the prices of basic commodities and services, which is felt most pronouncedly by the marginalized sectors

- Laban Konsyumer and Dimagiba avouch that the additional impositions on coal, diesel, kerosene, and LPG under the TRAIN Act have already injured them, as well as the whole nation.
- TRAIN has been in effect during the last 4 years. Its impositions, assuming that the same are indeed unconstitutional, have already impacted everyone, including petitioners and the stakeholders they reportedly represent.

Legal Standing

- Tinio, et al. have the requisite traditional standing as legislators considering that the purported invalidity in the passage of the law by a handful of Members of the House violated their prerogatives as legislators and contravened the Constitution itself. Undoubtedly, legislators have a legal standing to ensure that the prerogatives, powers, privileges, and the duties vested by the Constitution in the Legislature, as an institution, remain inviolate.
- Moreover, both petitioners contend that they, and the people they represent, i.e., their respective representations and the consumer-public as a whole, have already been injured by the TRAIN Act. These personal and substantial interests in the subject matter, whether in the traditional or the non traditional sense, indubitably give them legal standing to question the law
- Public importance - needs to relax legal standing requirement

Earliest Opportunity - both Petitions assail the constitutionality of the TRAIN Act at the first instance. Hence, the requisite of "earliest opportunity" is complied with.

Lis Mota - The instant consolidated Petitions allege constitutional violations in both the enactment process of the law and in the actual provisions thereof. Forsooth, the issue of constitutionality of the TRAIN Act is the very lis mota of the cases.

ISSUE 2

Side – Procedural	W/N the petitioners violate the principle of hierarchy of courts?	NO
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
Petitioners do not deny non-compliance with the doctrine of hierarchy of courts but assert that compelling exceptions are extant, justifying a direct resort to this Court. Since the violation was committed by the Congress and the President, Supreme Court must decide the case		The OSG postulates that the consolidated Petitions should be immediately dismissed for violating the doctrine of hierarchy of courts without any justification for such deviation.
RULING and RATIO DECIDENDI:		
Exception to the doctrine of hierarchy of courts apply to this case, specifically: 1. there are genuine issues of constitutionality that must be addressed at the most immediate time; 2. the issues involved are of transcendental importance, such that the imminence and clarity of the threat to fundamental constitutional rights outweigh the necessity for prudence; Along this grain, both petitioners have consistently recounted that the enactment of the TRAIN Act was riddled with abnormalities which have transgressed the boundaries set by our fundamental law. Even more pressing are the inveighed effects of the law, which allegedly operate to tax the poor out of existence. The gravity of these claims are matters that require the swift action of the highest court in the land. Perforce, direct resort may be excused in this instance.		

ISSUE 3

Side – Procedural	W/N the Congress, as an institution, an indispensable party which should have been impleaded in the Petitions?	YES
-------------------	--	-----

PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
• Tinio, et al. assert that the entirety of Congress is not an indispensable party herein. This is consistent with their theory that the passage of the TRAIN Act was not a valid plenary act of the Legislative owing to the lack of quorum and the lack of the required votes. Thus, they are adamant that respondent House leaders, as those responsible for the invalid ratification of the BCC Report, are the real indispensable parties • Laban Konsyumer and Dimagiba proffer that they clearly impleaded both Houses of Congress through their respective heads, then Speaker Pantaleon D. Alvarez (Speaker Alvarez) and Senate President Aquilino Pimentel III (SP Pimentel), as representatives of the entire membership of both Houses, and not in their personal capacities.	The OSG also seeks the dismissal of the cases on the ground that petitioners failed to implead Congress as an indispensable party.
RULING and RATIO DECIDENDI:	
<i>The essential and jurisdictional requirement of impleading Congress as an indispensable party has been substantially complied with.</i> • On Tinio et al - the entirety of Congress has material interest in the challenge to the constitutionality of the TRAIN Act. While the purported violations were seemingly done by only a handful of legislators, the reliefs sought by petitioners would nonetheless result in the overturning of an otherwise presumably valid statute. • The Petition filed by Laban Konsyumer and Dimagiba impleads Speaker Alvarez and SP Pimentel in their official capacities "in representation" of the House and the Senate, respectively. To the Court's mind, this more than adequately satisfies the procedural requirement of impleading Congress to afford it due process in defending the validity of the TRAIN Act.	

ISSUE 4

Side – Procedural	W/N Tinio, et al. violate the doctrine of presidential immunity from suit in their PT?	YES
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
Tinio, et al. maintain that President Duterte should not be dropped as a respondent as the doctrine of presidential immunity from suit finds no basis in the 1987 Constitution. In any event, even assuming that such doctrine was adopted in the present Constitution, it cannot be used to prevent the courts from examining the legality of presidential acts, leaving persons injured without any recourse. They underscore that this is especially true for purported violations of Section 27 (1), Article VI of the Constitution since the President is the "last guard of the gate" before a law is passed. Avowedly, a contrary ruling would weaken the Court's power of judicial review.		OSG submits that the Petition docketed as G.R. No. 236118 should be dismissed for violating the doctrine of presidential immunity as then President Duterte was impleaded therein.
RULING and RATIO DECIDENDI:		
<i>The inclusion of former President Duterte as a party respondent in G.R. No. 236118 contravenes the doctrine of presidential immunity from suit.</i> • The presidential immunity from suit is an elementary doctrine — "The President may not be sued during his tenure or actual incumbency, and there is no need to expressly grant such privilege in the Constitution or law. This privilege stems from the recognition of the President's vast and significant functions which can be disrupted by court litigations." • De Lima v President Duterte - the concept of presidential immunity under our governmental and constitutional system does not distinguish whether or not the suit pertains to an official act of the President. Neither does immunity hinge on the nature of the suit. The lack of distinctions prevents us from making any distinctions. We		

should still be guided by our precedents.

- Thus, Tinio, et al. erred in impleading President Duterte during his tenure. All the same, this procedural faux pas would not operate to cause the immediate dismissal of the Petitions. Rather, the President should simply be dropped as a party respondent.

ISSUE 5

Main – Substantive	W/N the TRAIN Act validly enacted into law? (i.e., W/N the House “lose” its quorum on 13 December 2017?)	YES NO
--------------------	---	-----------

PETITIONER/S ARGUMENTS:

- The TRAIN Act breached Section 16(2), Article VI, insisting that there was an "utter lack of quorum" when the House ratified the TRAIN BCC Report on the night of 13 December 2017, thereby making the TRAIN Act null and void.
- Tinio, et al. adduce before this Court a video recording of the 13 December 2017 session, which was later on uploaded to the YouTube channel of the House. The lack of quorum during the ratification of the TRAIN BCC Report was seemingly self-evident in the said recording. The video was bolstered by a photograph of the session hall taken by Representative Tinio, showing that it was near-empty.

RULING and RATIO DECIDENDI:

- It is uncontroverted that the 13 December 2017 session of the House commenced with the declaration of a quorum, consistent with Sections 72 and 74 of its Internal Rules of Procedure. When the roll was called at 4:00 p.m., **232 out of the 295 members responded**. Plain as day, no question was raised in this regard. Journal No. 48 released by the House Journal Service (Plenary Affairs Bureau) on that day provides a clear and explicit account of the presence of quorum during such session

Instead of the first question, the consolidated Petitions beg the pivotal question — ***Did or did not the House "lose" its quorum during the 13 December 2017?***

- The Court acknowledges the power of the House to establish the manner by which quorum is determined and the majority is counted.
- By virtue of such authority, it may implement a system whereby once a quorum had been established at the beginning of the session, certain procedural barriers must be overcome before any declaration that the same had been "lost" during the proceedings may be made. Such state of quorum thenceforth persists **unless properly challenged**, and quorum is recounted via a roll call.
- Any question relating to quorum, which was raised in the middle of a valid and regular session, therefore, should be properly characterized as an **internal issue that must be addressed exclusively by the House**.
- **Section 76 of the Internal Rules** provides for the available remedy in instances where there is no quorum after the roll call
 - The Members present may compel the attendance of absent Members. The absent Members, by order of a majority of those present, shall be sent for and arrested wherever they may be found and conducted to the session hall in custody in order to secure their attendance at the session.
- **Section 71 of the same Rules**, in turn, indicates that in exceptional cases, absent Members of the House are still deemed present and counted towards quorum when they are attending committee hearings, upon notification to the Secretary General, or are on official missions, as approved by the Speaker
- **Clearly, the physical absences of these Members do not automatically translate to the fact of quorum being "lost," especially so when they have had their presence recorded during the initial roll call.**
- Therefore, the instant cases, at their core, simply involve a quorum objection of a member who was not recognized. **Since the conduct of the objection proceedings anchored on the absence of a quorum is a purely internal matter, it is not subject to review by this Court but rather under the exclusive control of the House.**
- **Arroyo v De Venecia** - courts cannot declare an act of the legislature void on account merely of non-compliance with rules of procedure which itself made.

On Evidence

- The Court is restricted to what is available for it to assess, i.e., **the enrolled bill and the Journals**.
- The enrolled bill doctrine and the conclusiveness of the contents of Congressional Journals apply in this case. Therewithal, petitioners failed to adduce clear and convincing evidence to overturn the presumption of validity accorded to an enacted law, which is an official act of a co-equal branch of the government.
- **Enrolled Bill Doctrine** - the signing of a bill by the Speaker of the House and the Senate President and the certification of the Secretaries of both Houses of Congress that it was passed is conclusive not only as to its provisions but also as to its due enactment.
- **Congressional Journals** have a binding effect upon the Court. Section 16 (4) and Section 26 (2), Article VI of the Constitution expressly require that Congress maintain such document – “Upon the last reading of a bill, no amendment thereto shall be allowed, and the vote thereon shall be taken immediately thereafter, and the yeas and nays entered in the Journal.”
 - Addressing the argument that the Journal in the said case failed to reflect the exact time that the assailed law was approved, the Court had to stress that **the rule giving verity and unimpeachability to legislative records is grounded on public policy**
 - the Court decreed that an inquiry into the veracity of the journals of the Philippine Legislature, when they are clear and explicit, "would be to violate both the letter and the spirit of the organic laws by which the Philippine Government was brought into existence, to invade a coordinate and independent department of the Government, and to interfere with the legitimate powers and functions of the Legislature."
- In the present cases, both the enrolled bill and Journal No. 48 do not mention any infirmity in the passage of the law. As earlier noted, Journal No. 48 is clear and explicit in showing that there was a quorum during the 13 December 2017 session.
- Journal No. 48 proved that there was a quorum of the House when the session began, and neither Tinio, et al. nor anyone else among the Members raised the point of no quorum up to the time the BCC Report was moved to be considered. In the absence of strong proof to the contrary, the quorum established at the beginning of the session, as it so appears in the relevant Journal, is presumed to subsist. Thus, formally, the presence of a quorum had not been disproven; the presumption that it existed remains

On Petitioners using the livestream video uploaded on the YouTube channel of the House, asserting that no more than ten Members were present when the BCC Report was ratified (thus no quorum) and a photograph of one of petitioners in-frame, showing a "near-empty session hall"

- To the Court's mind, such pieces of evidence, for a multitude of reasons, are insufficient to overcome the presumed validity of the acts of the House in passing the TRAIN Act.
- At the outset, the Court perceives that, unlike the Journal, which the Constitution makes imperative to be kept by Congress and which is required to record specific matters taken up during the proceedings, the broadcasting of such proceedings appears to be for the primary purpose of information dissemination to the public

On the Video

- The video recording described therein neither serves the same purpose as the Congressional Journals nor does it have a binding effect upon this Court
- The video recording merely shows a specific area of the session hall during the 13 December 2017 proceedings. Ostensibly absent from the frame captured by the video is the rest of the hall, and the activities being conducted therein. Under the Rules on Electronic Evidence, the Court may consider any factor which affects the accuracy or integrity of the electronic data message in determining its evidentiary weight
- the video recording brings to light the undeniable truth that there was no significant difference as to the number of participants as shown during the start of the proceedings, when the quorum was unquestioned, on one hand, and the portion of the proceedings where the quorum was supposedly lost, upon the other.
- The video reveals a substantial number of unoccupied and empty seats in the session hall not only at the end of the video, but also during the beginning of the proceedings.
- In actual fact, one of the speakers at the start of the session is none other than petitioner Antonio Tinio himself. It therefore defies logic that petitioner Tinio seemed to recognize the House's quorum to tackle his business but reject the same with regard to the ratification of the TRAIN BCC Report.

On the Photograph

- Petitioners took a photo of themselves and they were free to use whichever angle they may find supportive of their contention
- No timestamp as to when it was taken → claim that it was taken right after session was adjourned had no leg to stand on
- Petitioners were content in providing the Court with a mere estimate of the number of legislators claimed to be present during the ratification of the TRAIN BCC Report; when they should be providing clear and convincing evidence with accuracy.
- As a final inflection on this matter, the subsequent approval of Journal No. 48, which provides an account of the proceedings that transpired during the 13 December 2017 Session, during the subsequent 15 January 2018 session **removes any doubt as to the validity of the ratification of the TRAIN BCC Report.**
- While an objection was raised during the following session of the House with respect to such lack of quorum, it remains an undisputed fact that majority of the Members approved Journal No. 48, as demonstrated by the contents of Journal No. 49 dated 15 January 2018
- The Court notes that out of the total 295 Members and the 232 who were present during the 13 December 2017 session, only 3 legislators, i.e., Tinio, et al., are assailing the passage of the TRAIN Law

LEGAL BASES

Section 16(2), Article VI requires the presence of a quorum before either of the Houses can transact its business – SEC. 16. . . . (2) A majority of each House shall constitute a quorum to do business, but a smaller number may adjourn from day to day and may compel the attendance of absent Members in such manner and under such penalties, as such House may provide.

Section 75. Quorum. — A majority of all the Members of the House shall constitute a quorum. The House shall not transact business without a quorum. A Member who questions the existence of a quorum shall not leave the session hall until the question is resolved or acted upon, otherwise, the question shall be deemed abandoned.

ISSUE 6

Side – Substantive	W/N Section 48 of the TRAIN Act, which amends Section 151 of the Tax Code, unconstitutional for being a prohibited rider to the TRAIN Act?	NO
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
Laban Konsyumer and Dimagiba intransigently asseverate that Section 48 did not originate from the House as required under Section 24, Article VI of the 1987 Constitution. Moreover, it was never intended by the House to form part of the amendments to the Tax Code based on the clear title of HB No. 5636.		the OSG posits that prevailing jurisprudence ordains that the Constitution only requires that the revenue bill must originate exclusively from the House of Representatives but does not limit the extent of amendments that may be introduced by the Senate
RULING and RATIO DECIDENDI:		
• Section 24, Article VI provides that "[a]ll appropriation, revenue or tariff bills, bills authorizing increase of the public debt, bills of local application, and private bills shall originate exclusively in the House of Representatives, but the Senate may propose or concur with amendments." • Concededly, the amendment introduced to Section 151 of the Tax Code, which increases the excise tax rates for domestic and imported coal and coke, inter alia, is only present in SB No. 1592. – But this fact alone does not constitute a violation of Section 24, Article VI of the 1987 Constitution. • Tolentino v Secretary of Finance - the provision only requires that the initiative of filing of revenue bills must come from the Lower House • Abakada Guro Party List v. Hon. Exec. Sec. Ermita - the Court upheld the Senate's introduction of several amendments to the Tax Code which were absent from the version of the House. The Court therein ratiocinated		

that "Article VI, Section 24 of the Constitution does not contain any prohibition or limitation on the extent of the amendments that may be introduced by the Senate to the House revenue bill."

- As applied in these consolidated Petitions, there is undoubtedly no constitutional prohibition for the Senate to introduce new provisions not originally found in the House version of the eventual TRAIN Act.
- Either way, both the House and Senate Bills had the same objective for amending the Tax Code (better infrastructure and social welfare programs). Thus, is it not a prohibited rider.

ISSUE 7

Side – Substantive	W/N the TRAIN Act violative of the due process clause	NO
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
Laban Konsyumer and Dimagiba argues that the imposition and/or increase in excise taxes on diesel, coal, LPG, and kerosene is arbitrary, unreasonable, and unfair, and its direct and indirect effects amount to confiscation of property without due process of the law. Not only are diesel, coal, LPG, and kerosene directly used by consumers, but these are also key components for other basic commodities and services such as food, electricity, and transportation. This overall increase in prices is felt most acutely by low-income and poor families, especially those in the rural areas. Underprivileged families' overall purchasing power remained the same, but the prices for their basic needs continue to rise. Similarly, the unconditional cash transfer intended to cushion the effects of the TRAIN Act is not enough to offset the added burden to these marginalized families		These policy considerations were anchored on the general welfare of the people. For households in the first to seventh income deciles, they will receive the unconditional cash transfers from the increments in the government's revenues generated by the TRAIN Act for the first five years of its implementation. They would also benefit from the social welfare and benefits programs that will be funded by the law. Based on the impact analysis conducted by the DOF on the TRAIN Act, the poorest five deciles would even see positive increases in their income as a result of these counter-measures. On the other hand, for wage earners who comprise 83% of taxpayers, the increase in their take-home pay from the re-adjustment for the income tax exemption threshold will more than compensate for the price increase in commodities.

RULING and RATIO DECIDENDI:

- This Court recognized that the Legislature's plenary power to tax, includes the discretion to determine "the nature (kind), object (purpose), extent (rate), coverage (subjects) and situs (place) of taxation."
- While generally unlimited in its range, the power to tax is still circumscribed by constitutional limitations, such as the due process clause under Article III, Section 1 of the Constitution
- For a tax legislation to violate the due process clause - **the measure must amount to a confiscation of a property.**
- While petitioners presented statistics and surveys to advance their cause, none are truly determinative of the cumulative effects of the TRAIN Act on low-income households. The Court echoes its earlier stance that the burden of proof rested with petitioners to lay down persuasive factual foundations for the challenged law's unconstitutionality. This, they failed to do.
- Under the TRAIN Act, there are numerous monetary and social welfare measures specifically designed to assist households in the marginalized sector in coping with the effects of the TRAIN Act. Inevitably, the direct and indirect benefits must also be considered against the increase in the price of commodities in order to determine whether or not the overall impact of the law is truly oppressive and confiscatory as to amount to a violation of the due process clause.
- The Petitioners did not even consider the impact of the social welfare programs. They only stated that the unconditional cash transfer was inadequate, with no concrete evidence.
- Contrary to petitioners' advanced position, it is not incumbent on respondents to prove that the law's effects are constitutional as all statutes carry the presumption of constitutionality. → OSG even said that the impact of the law was thoroughly studied
- The impact of the challenged provisions of the TRAIN Act, the law's overall effects, and whether or not it is

ultimately beneficial for the Filipino people ultimately go into the wisdom of the law, which is beyond the Court's power to inquire into

- Certainly, without persuasive proof, the Court is unable to pierce past the presumption of constitutionality afforded to the TRAIN Act on supposed due process violations.

ISSUE 8

Side – Substantive	W/N the TRAIN Act violative of the equal protection clause and Section 28 (1), Article VI of the Constitution?	NO
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
• petitioners both avouch that the TRAIN Act violates the equal protection clause. • Tinio, et al. argue that inflation and prices have been continuously rising ever since the law was passed and this deleterious economic burden is felt pronouncedly by the most vulnerable sectors. • Laban Konsyumer and Dimagiba claim that the excise taxes on diesel, coal, LPG, and kerosene expressly discriminate against the poor while having no impact on the rich. • They likewise assert that the foregoing excise taxes directly violate Section 28 (1), Article VI of the Constitution Act for being "regressive."		• There are no provisions in the TRAIN Act specifically and expressly discriminating against the poor while unduly favoring the rich. Besides, the rule on uniformity of taxation does not call for perfect uniformity or equality because this is hardly attainable. • As to the alleged violation of Section 28 (1), Article VI of the Constitution, the OSG posits that the foregoing provision is not a negative standard or judicially enforceable right which constitutes a basis to declare a legislation unconstitutional. • The provisions of the TRAIN Act were intended by Congress to be progressive, and in actual fact, the data prepared by the DOF demonstrate that the TRAIN Act was designed so as to not trigger extreme price shocks especially in terms of prime commodities
RULING and RATIO DECIDENDI:		
SECTION 28. (1) The rule of taxation shall be uniform and equitable. The Congress shall evolve a progressive system of taxation. The Court rules and so holds that petitioners have failed to adduce proof of a clear and unequivocal breach of the equal protection clause. • Abakada Guro Party List - it has long been established that the State may make reasonable and natural classifications in exercising its power of taxation; such exercise enjoys the presumption of validity – Generally, the Court will not interfere with such power "absent a clear showing of unreasonableness, discrimination, or arbitrariness." • It cannot be stressed enough that the provisions in the TRAIN Act, which allegedly drive up prices to the detriment of the marginalized and the poor, were not intended to discriminate against them in particular. Indeed, there are no classifications found therein. There are no specific or express provisions which disfavor against the low-income households • Petitioners failed to show compelling proof that the TRAIN Act had targeted discrimination. • Congress already recognized the possible effects of the Act, that's why they included safeguards to cushion its effects. This shows reasonableness and soundness in the Congress when it enacted the TRAIN Act • Ergo, in the absence of a clear showing that a tax violates the equal protection clause, the Court, in obeisance to the doctrine of separation of powers, must defer to the discretion and judgment of Congress on this point Next, the excise tax provisions of the TRAIN Act may not be struck down for being regressive. • A tax is progressive when the rates go up depending on the resources of the person affected. Conversely, a tax is considered regressive when it does not consider the taxpayer's ability to pay. All indirect taxes, such as excise tax and VAT, are undoubtedly regressive by their very nature. Such taxes eat away at the same portion of income, whether big or small.		

- In both *Abakada Guro Party List* and *British American Tobacco v. Camacho*, the Court recognized that these kinds of taxes do hit the lower income groups the hardest. However, this is not a reason to declare such a law unconstitutional.
- Section 28 (1), Article VI of the Constitution in *Tolentino v. Secretary of Finance* - the Constitutional provision does not prohibit the imposition of regressive taxes but merely directs Congress to evolve a progressive system of taxation — direct taxes are to be preferred and as much as possible, indirect taxes (like this) should be minimized.

FINAL DECISION

THE FOREGOING DISQUISITIONS CONSIDERED, the Court hereby declares as CONSTITUTIONAL Republic Act No. 10963, otherwise known as the Tax Reform for Acceleration and Inclusion (TRAIN) Act. Accordingly, the Court resolves to:

- (1) DISMISS the consolidated Petitions in G.R. Nos. 236118 and G.R. No. 236295;
- (2) DENY petitioners' prayer for the issuance of a temporary restraining order and/or writ of preliminary injunction contained in both Petitions; and
- (3) DENY the Urgent Motion for the Issuance of a Temporary Restraining Order, Status Quo Ante Order and/or Writ of Preliminary Injunction dated 3 December 2018 filed by petitioners in G.R. No. 236295.

The Court also resolves to DROP former President Rodrigo Roa Duterte as a party respondent in G.R. No. 236118.
SO ORDERED.

SEPARATE OPINION/S

Gesmundo, CJ,
concurring

- **Core Stance:** Concurs with the main opinion (*ponencia*) written by Justice Dimaampao.
- **Specific Focus:** Writes specifically to address the position raised during Court deliberations regarding the **evidentiary classification of the House's livestream video recording** under Section 19, Rule 132 of the 2019 Revised Rules on Evidence.
- **Inappropriateness of the Forum/Issue:** Observes that the consolidated petitions are not the proper vehicle for establishing the evidentiary classification of government livestream recordings, suggesting that at best the matter should be referred to the appropriate committee on rules for review and recommendation.
- **Applicability of Special Rules vs. General Rules:** Rejects the view that the video recording should be evaluated as a "public document" under the general Rules on Evidence. He asserts that resort to general evidence rules is improper because the **Rules on Electronic Evidence (A.M. No. 01-7-01-SC)** specifically governs.
- **Classification as an Electronic Document:** Explains that under Rule 2, Section 1(g) and (h) of the Rules on Electronic Evidence, a livestream video recording—whether generated by a private individual or the government—falls squarely under the definition of an **"electronic document"** or "electronic data message" as an electronically recorded or stored representation of information by which a fact may be proved.
- **Canon of Statutory Construction:** Cites the canon *generalia specialibus non derogant* (special rules prevail over general rules), maintaining that because the Rules on Electronic Evidence specifically covers electronic messages and video data, its provisions control over general Rules of Court provisions.

In the instant case, the livestream video recording presented by petitioners has not been identified, explained, or authenticated by the person who made the recording or by any other person competent to testify on its accuracy. Thus, it is not admissible into evidence.

WHEREFORE, I vote to DENY the petitions.

LEONEN, SAJ <i>Separate opinion</i>	Concurs in the result, voting that both consolidated petitions must be dismissed outright for lack of an actual justiciable controversy and for violating the doctrine of hierarchy of courts • Tinio et al failed to establish a prima facie case of grave abuse because House Journal No. 48 explicitly recorded a valid quorum at the start of the session, no objection was raised prior to ratification, and quorum determination involves internal House rules beyond judicial review • Furthermore, petitioner's allegations that the irregular passage of the law in Congress taints the President's approval with grave abuse of discretion is a legal conclusion that utterly fails to meet an actual case. • Laban Konsumer failed to present actual facts, and merely presented generalizations on the supposed effect of the imposition of excise taxes. They were unable to demonstrate concretely how the challenged provisions adversely affected them as to warrant a judicial review. Mere allegations of injury or economic hardship without factual foundation will not suffice. • "Transcendental importance" of the constitutional issue raised, by itself, does not justify direct resort to this Court. The doctrine of respect for hierarchy of courts is not a matter of mere policy but a constitutional imperative given the structure of our judicial system and the requirements of due process. Since the Court generally does not receive evidence and resolve factual questions at the first instance, parties who directly file their petitions before it risk having their cases resolved on disputed or incomplete facts. As such, they are deprived the opportunity to have a complete, final and definitive resolution of their controversy. • Thus, more than the "special and important reasons" invoked to justify direct resort to the Court, the questions raised by the parties must be purely legal in nature before the Court may exercise judicial review. • Considering the factual questions involved in this case, we should stay our hand in strict adherence to the doctrine of respect for hierarchy of courts. • ACCORDINGLY, I vote to DISMISS the Petitions.
CAGUIOA, J, <i>dissenting</i>	• Dissents from the majority ruling. Votes to refer the consolidated petitions to the Court of Appeals or trial court for reception of evidence to resolve the factual dispute over quorum • Quorum is not merely an internal rule, but a constitutional mandate. While the Congress has the discretion over the method of counting a majority, it cannot use its rules to ignore constitutional restraints. Consequently, losing a quorum in the middle of a session means the constitutional quorum requirement is not met • Journal No. 48 further showed that Tinio objected to the quorum multiple times, which Deputy Speaker Abu ignored without conducting a roll call. Thus, the ponencia's reliance on the presumption of continuing quorum is nonsensical • It would be a dangerous precedent for the Court to say that once a quorum has been established at the beginning of a session, any question as to its continued existence is purely an internal matter outside the Court's jurisdiction. To stress, while the procedures on how a quorum is determined is left at the sound discretion of the chamber concerned, the Constitution requires that the quorum should be a majority and such majority should continually exist throughout the proceedings for the chamber to do business. • Agrees that determining whether the House lost its quorum presents a question of fact involving conflicting evidence (video recordings, photographs, and Journal No. 48) – thus, it must be remanded to the proper trial court or the CA to receive evidence and determine the factual question of quorum

Pacete v. Secretary of the Commission on Appointments

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Felizardo S. Pacete v. The Secretary of the Commission on Appointments, Congress of the Philippines, The Secretary of Justice, and The Disbursing Officer of the Department of Justice*
- **Citation:** G.R. No. L-25895 (also cited as G.R. No. L-25805; 148-B Phil. 55), July 23, 1971 (En Banc)
- **Ponente:** Fernando, J.
- **Bench Composition:** Concepcion, C.J., Reyes, J.B.L., Makalintal, Zaldivar, Villamor, and Makasiar, JJ., concurring; Teehankee and Barredo, JJ., did not take part; Dizon and Castro, JJ., on official leave.
- **Syllabus Relevance & Topic:**
 1. **Executive & Legislative Departments — Ad Interim vs. Regular Appointments (Art. VII, Sec. 16):** Constitutional distinction between regular appointments requiring prior Commission on Appointments (CA) confirmation before assumption of office and *ad interim* appointments taking effect immediately upon acceptance during congressional recess [221, 274–275].
 2. **Commission on Appointments — Effect of Motion for Reconsideration on Confirmation (Rule 21, CA Rules):** The legal rule that the mere filing of an unacted-upon motion for reconsideration by an individual member does NOT recall, vacate, or set aside a confirmation duly voted by the Commission on Appointments [265, 270, 272–273].
 3. **Effect of Adjournment *Sine Die* on Pending Motions for Reconsideration:** Rule that upon adjournment *sine die* of Congress, any unacted-upon motion for reconsideration of a confirmed appointment is deemed not approved and has no legal force or effect whatsoever, leaving the confirmation standing [267, 272–273].
 4. **Judicial Review of Legislative/Commission Rules vs. Political Question Doctrine:** Authority of the judiciary to review and interpret the internal procedural rules of the Commission on Appointments when an administrative construction threatens private rights or defeats an individual's constitutional title to public office [268, 277–278].

CHRONOLOGICAL MATERIAL FACTS

1. **Ad Interim Appointment and Assumption (August 31 & September 11, 1964):** Petitioner Felizardo S. Pacete was extended an *ad interim* appointment by the President of the Philippines as Municipal Judge of Pigcawayan, Cotabato during the recess of Congress. Pacete qualified, took his oath, assumed office on September 11, 1964, and discharged his judicial functions.
2. **Submission to the Commission on Appointments (1965):** Being an *ad interim* appointment, Pacete's appointment was submitted to the Commission on Appointments during the next regular session of Congress in 1965.
3. **Unanimous Confirmation (May 20, 1965):** On May 20, 1965, the Commission on Appointments unanimously confirmed Pacete's appointment as Municipal Judge. Two days later, Senate President Ferdinand E. Marcos (who was also ex-officio Chairman of the CA) sent Pacete a congratulatory telegram.
4. **Filing of Unacted-Upon Letter/Motion for Reconsideration (May 21, 1965):** On May 21, 1965—one day after the confirmation and prior to the *sine die* adjournment of the Fourth Regular Session of the Fifth Congress at midnight—Senator Rodolfo Ganzon wrote a letter to the CA Chairman stating that he was filing a motion for reconsideration of Pacete's confirmation due to alleged derogatory information.

5. **Adjournment *Sine Die* Without Action (Midnight, May 21, 1965):** The Fifth Congress adjourned its regular session *sine die* at midnight on May 21, 1965 without the Commission on Appointments ever considering, voting upon, or approving Senator Ganzon's letter/motion for reconsideration.
 6. **Administrative Directive to Vacate (February 7, 1966):** More than nine months later, on February 7, 1966, the Secretary of Justice (through the Judicial Superintendent) advised Pacete to vacate his judicial post on the ground that his appointment had been "by-passed".
 7. **Invocation of CA "Internal Practice":** Upon seeking clarification, Pacete was informed by the Secretary of the CA that under the alleged "prevailing practice" of the CA, the mere filing/presentation of a letter or motion for reconsideration by a single member "automatically vacated" the confirmation. Consequently, the Disbursing Officer of the Department of Justice withheld Pacete's judicial salary [266–267].
-

● PROCEDURAL HISTORY

1. **Original Action in the Supreme Court (April 4, 1966):** Pacete filed an original Petition for Mandamus and Prohibition before the Supreme Court against the Secretary of the CA, the Secretary of Justice, and the Disbursing Officer of the Department of Justice.
 2. **Respondents' Answers (May 1966):** The Secretary of the CA filed an Answer asserting that Ganzon's motion worked an automatic recall of the confirmation and that CA internal rules are non-justiciable political questions. The Solicitor General (Antonio P. Barredo), representing the Secretary of Justice, filed an Answer arguing that the DOJ was bound by the CA Secretary's official notification.
 3. **Supreme Court Decision (July 23, 1971):** The Supreme Court En Banc unanimously granted the petition.
-

● PARTIES' MATERIAL ARGUMENTS

- **Petitioner (Felizardo S. Pacete):**
 1. **Requirement of Majority Approval for Reconsideration:** Under Rule 21 of the Revised Rules of the CA, a motion for reconsideration has no force or effect unless approved by a majority vote of the members present at a quorum.
 2. **Rejection of "One-Man Rule":** The power to approve or disapprove appointments is granted to the CA as a collective body, not to individual members. Treating a single member's unvoted motion as an automatic revocation substitutes a one-man rule for the majority will.
 3. **Finality upon Adjournment:** Upon *sine die* adjournment of Congress, unacted-upon motions for reconsideration expire, and the unanimous confirmation becomes final and irrevocable [267, 272–273].
 - **Respondents (Secretary of the CA, Secretary of Justice, et al.):**
 1. **Automatic Recall via Internal Practice:** Under the custom and practice of the CA, the mere filing of a motion for reconsideration by any member automatically recalls or vacates a prior confirmation.
 2. **Political Question & Judicial Self-Restraint:** The interpretation and application of CA internal rules concern internal legislative business and constitute a non-justiciable political question exempt from judicial interference.
 3. **No Confirmation in Constitutional Sense:** An appointment cannot be deemed confirmed in the constitutional sense while a motion for reconsideration remains pending.
-

● ISSUES

1. **Substantive Issue 1:** Whether the mere filing of a motion for reconsideration by an individual member of the Commission on Appointments, without its being voted upon or approved by the body, suffices to recall or set at naught a confirmation duly voted upon an *ad interim* appointment.
 2. **Substantive Issue 2:** What is the legal effect of an adjournment *sine die* of Congress on an unacted-upon motion for reconsideration of a confirmed appointment [267, 272–273]?
 3. **Jurisdictional Issue:** Whether the Supreme Court has jurisdiction to interpret the procedural rules of the Commission on Appointments, or whether such interpretation is a non-justiciable political question [268, 277–278].
-

HOLDINGS AND CONTROLLING REASONING

1. On the Effect of an Unacted-Upon Motion for Reconsideration: **NO. A mere motion for reconsideration DOES NOT recall or set aside a confirmation duly made.**

- **A. Reaffirmation of *Altarejos v. Molo*:** The Court held that the exact legal question was already settled in *Altarejos v. Molo* (G.R. No. L-25726, October 21, 1968, penned by Chief Justice Concepcion) [265, 270–273].
- **B. Textual Analysis of Rule 21 of the CA Rules:**
 - Rule 21 of the Revised Rules of the CA provides: "*Resolution of the Commission on any appointment may be reconsidered on motion by a member presented not more than one (1) day after their approval. If a majority of the members present concur to grant a reconsideration, the appointment shall be reopened and submitted anew to the Commission...*".
 - The Court emphasized that pursuant to Rule 21, **the concurrence of a majority of the members present is indispensable to grant a reconsideration and reopen the appointment.**
 - Giving the mere filing of a motion the legal effect of an approved motion dispenses with the mandatory majority vote requirement and violates the clear text of Rule 21.
- **C. Rejection of "One-Man Rule":**
 - Approving or disapproving appointments is a constitutional power vested in the Commission on Appointments as a **collective body**.
 - Imparting decisive, destructive weight to a move by a single member without the concurrence of the body creates an indefensible "one-man rule" that makes one member more powerful than the Commission itself. Such an administrative practice is pernicious, indefensible in principle, and mocks the Constitution.

2. On the Effect of Adjournment *Sine Die*: Unacted-upon motions for reconsideration **EXPIRE** and are deemed **NOT APPROVED**; the confirmation **STANDS** [267, 272–273].

- **A. Chairman's Official Ruling:** Citing the authoritative ruling of the Chairman of the CA (as recorded in the CA proceedings and affirmed in *Altarejos*): "*In case of an adjournment sine die, the motions for reconsideration are considered as not approved and therefore the motion for reconsideration are not valid for of any effect whatsoever. The confirmation, therefore, will stand*" [272–273].
- **B. Protection of *Ad Interim* Appointees:**
 - Under Article VII, Section 16, an *ad interim* appointment takes effect immediately upon acceptance. Title to the office is complete, and the appointee serves until **express disapproval** by the CA or **adjournment without action** (by-passing) [221, 274–275].
 - Here, Pacete had a unanimous vote of confirmation in his favor. Because Congress adjourned *sine die* without approving Senator Ganson's motion, the confirmation became final, and Pacete could not be considered by-passed or unconfirmed.

3. On Jurisdiction and the Political Question Defense: The Supreme Court HAS JURISDICTION to review CA rules when private/constitutional rights are invaded [268, 277–278].

- **A. Limits of the Political Question Doctrine:**

- The Court rejected the CA Secretary's contention that construction of CA rules is beyond judicial review.
- Courts are duty-bound to ensure that private rights are not invaded. There is nothing sacrosanct about a rule of the CA when its administrative construction defeats an individual's lawful right to public office.

- **B. Adoption of Justice Brandeis' Rule (*United States v. Smith*):**

- Citing Justice Brandeis in *United States v. Smith*: "**As the construction to be given to the rule affects persons other than members of the Senate, the question presented is of necessity a judicial one**".
- When claims arising from the explicit text of the Constitution and statutory rights are pressed upon the judiciary, the task of judicial review is unavoidable, and the primacy of the fundamental law must prevail.

● DOCTRINE, TESTS, AND LEGAL STANDARDS

COMMISSION ON APPOINTMENTS CONFIRMATION & RECONSIDERATION

(Pacete v. Sec. of CA)

|



AD INTERIM APPOINTMENT (Art. VII, Sec. 16)

- Takes effect immediately upon acceptance.
- Title is complete; appointee assumes office.

|



VOTE OF CONFIRMATION BY CA (Rule 21, CA Rules)

- Unanimous/Majority vote approves confirmation.

|

|



MERE FILING OF MOTION FOR RECONSIDERATION

EFFECT OF ADJOURNMENT SINE DIE

- Filed by a single member within 1 day.

- Unacted-upon motion is deemed NOT APPROVED.

- DOES NOT automatically recall or vacate confirmation.
- Confirmation becomes FINAL & EXECUTORY.
- Requires MAJORITY VOTE of members present to grant reconsideration & reopen appointment.
- Appointee CANNOT be declared "by-passed."

1. **Rule on Motions for Reconsideration in the Commission on Appointments (*Pacete / Altarejos Rule*):** Under Rule 21 of the CA Rules, the mere filing or presentation of a motion for reconsideration by an individual member does NOT set aside, recall, or vacate a confirmation duly voted by the body. Reopening an appointment requires the affirmative concurrence of a majority of the members present at a quorum [265, 270, 272–273].
2. **Sine Die Adjournment Expiration Rule:** Upon the adjournment *sine die* of Congress, any pending, unacted-upon motion for reconsideration of a confirmed appointment is deemed not approved and becomes of no force or effect, leaving the confirmation standing and final [267, 272–273].
3. **Judicial Review of Legislative/Commission Rules (*Brandeis / Smith Standard*):** The political question doctrine does not bar judicial review of the internal rules of the Commission on Appointments when the administrative construction or application of those rules directly affects non-members or defeats a person's constitutional/legal title to public office [277–278].
4. **Regular vs. Ad Interim Appointment Distinction:**
 - o **Regular Appointment:** Made while Congress is in session; nomination precedes CA consent; appointee CANNOT qualify or assume office until confirmed.
 - o **Ad Interim Appointment:** Made during congressional recess; takes effect immediately upon acceptance; appointee qualifies and assumes office at once; title is complete; effective until express CA disapproval or next adjournment.

DISPOSITION

- **Ruling:** Petition for Mandamus and Prohibition is **GRANTED**.
- **Writs Issued:**
 1. Respondent Secretary of the Commission on Appointments is **COMMANDED** to issue the certificate of confirmation to petitioner Felizardo S. Pacete.
 2. Respondent Secretary of Justice is **PROHIBITED** from giving any further force and effect to the directive advising Pacete to vacate his position as Municipal Judge of Pigcawayan, Cotabato.
- **Declaration:** Petitioner's right to perform his functions as Municipal Judge is declared in accordance with law, his confirmation having been duly made and completed.

SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLE LINES

- (Note: Concepcion, C.J., Reyes, J.B.L., Makalintal, Zaldivar, Villamor, and Makasiar, JJ., UNANIMOUSLY CONCURRED in the opinion penned by Justice Fernando. Teehankee and Barredo, JJ., took no part; Dizon and Castro, JJ., were on official leave).

Source-Verified Quotable Lines

-  On the Rejection of "One-Man Rule" in Confirmations (Fernando, J.):

"For respondents to argue that the mere filing of a motion for reconsideration did suffice to set it aside, even in the absence of any further action, is... to lose sight of what is provided in the Constitution. That would be moreover tantamount to imparting to a move of a single member of a collective body a decisive weight. It is bad enough if the minority were to prevail. A one-man rule... is infinitely worse. It is indefensible in principle and pernicious in operation."

- **On Judicial Review of Legislative Rules Affecting Rights (Fernando, J., quoting Brandeis, J.):**

"Certainly, there is nothing sacrosanct about a rule of the Commission on Appointments, especially so, when as in this case, a construction sought to be fastened on it would defeat the right of an individual to a public office... 'As the construction to be given to the rule affects persons other than members of the Senate, the question presented is of necessity a judicial one.'"

- **On the Distinction Between Regular and Ad Interim Appointments (Fernando, J.):**

"In the former the President nominates, and only upon the consent of the Commission on Appointments may the person thus named assume office. It is not so with reference to ad interim appointments. It takes effect at once. The individual chosen may thus qualify and perform his function without loss of time. His title to such office is complete."

RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Pacete v. Secretary of the Commission on Appointments* (1971), Felizardo Pacete was extended an ad interim appointment as Municipal Judge of Pigcawayan, Cotabato in August 1964. He took his oath and assumed office. In May 1965, the Commission on Appointments (CA) unanimously confirmed his appointment. One day later, Senator Ganzon wrote a letter to the CA Chairman stating he was filing a motion for reconsideration. Congress adjourned its session sine die at midnight that same day without the CA ever acting on Ganzon's motion. Nine months later, the Secretary of Justice advised Pacete to vacate his office, claiming that under CA 'internal practice,' Ganzon's motion automatically recalled the confirmation, leaving him 'by-passed.' Pacete filed a Rule 65 petition for mandamus and prohibition.

The Supreme Court En Banc, through Justice Fernando, GRANTED the petition. Reaffirming *Altarejos v. Molo*, the Court held: (1) Under Rule 21 of the CA Rules, a motion for reconsideration requires a majority vote of members present to reopen an appointment; mere filing by an individual member does NOT vacate a confirmation; (2) Allowing an unvoted motion to undo a confirmation creates an unconstitutional 'one-man rule'; (3) Upon adjournment sine die, unacted-upon motions for reconsideration expire and are deemed not approved, leaving the confirmation final; and (4) Rejection of the political question defense: courts have jurisdiction to review CA rules when administrative misconstruction defeats an individual's legal title to public office."* [265, 266, 267, 270, 272–273, 276, 277, 279]

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: Does the mere filing of a motion for reconsideration by a member of the Commission on Appointments automatically recall or suspend a vote of confirmation?**
 - **A: No.** Under Rule 21 of the CA Rules as interpreted in *Pacete* and *Altarejos v. Molo*, a motion for reconsideration reopens an appointment **only if a majority of the members present concur to grant it**. The mere filing of a motion without majority approval has no legal effect and cannot set aside a confirmation.
2. **Q: What happens to a motion for reconsideration filed against a CA confirmation if Congress adjourns *sine die* without the CA acting on it?**
 - **A:** Upon adjournment *sine die*, the unacted-upon motion for reconsideration is considered **not approved** and becomes of no force or effect whatsoever [267, 272–273]. Consequently, the confirmation stands as final, valid, and complete.
3. **Q: How does the Supreme Court answer the defense that the Commission on Appointments' interpretation of its own rules is a non-justiciable political question?**
 - **A:** The Court rejects the political question defense. Adopting Justice Brandeis' standard in *United States v. Smith*, the Court holds that when the construction or application of a legislative/commission rule affects persons other than members of the body and defeats an individual's constitutional or legal title to public office, **the question is of necessity a judicial one** subject to review.

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose an *ad interim* judge's appointment is confirmed by the CA on May 20. On May 21, Senator X files a motion for reconsideration. Later that afternoon, while the CA is still in session, the CA convenes, votes on Senator X's motion, and a majority of the members present vote to GRANT the motion for reconsideration. However, before the CA can hold a second vote on whether to re-confirm or reject the judge, Congress adjourns *sine die* at midnight. Is the judge confirmed?
- **Answer: No, the judge is NOT confirmed (he is BY-PASSED).** Under *Pacete* and Rule 21 of the CA Rules, when a majority of the members present vote to grant a motion for reconsideration, the prior confirmation is legally **reopened and recalled**. Because the confirmation was successfully reopened, the appointment returned to an unconfirmed state. When Congress subsequently adjourned *sine die* without taking a new vote of confirmation, the *ad interim* appointment expired by operation of law (by-passed) under Article VII, Section 16.

One-Sentence Doctrine Anchor

Under Rule 21 of the CA Rules, a confirmation duly voted upon an *ad interim* appointment cannot be recalled by the mere filing of an unacted-upon motion for reconsideration, which expires upon adjournment *sine die*, leaving the confirmation final and enforceable. [265, 270, 272–273]

Pacete v. Secretary of the Commission on Appointments (1971)

Topic Subtopic	Government Branches of the Government - Congress Organizations and Sessions - Rules of Proceedings	GR No. & Ponente	G.R. No. L-25895, <i>Fernando J.</i>
Petitioner/s	Felizardo S. Pacete	Respondent/s	The Secretary of the Commission on Appointments, Congress of the Philippines, The Secretary of Justice, and The Disbursing Officer of the Department of Justice
Doctrine	Mere filing or presentation of a motion for reconsideration by an individual member does NOT set aside , recall, or vacate a confirmation duly voted on by the Commission on Appointments; Upon the adjournment sine die of Congress, any pending, unacted-upon motion for reconsideration of a confirmed appointment is deemed not approved and has no force or effect .		

FACTS

Petition by **Felizardo S. Pacete** is for **Prohibition** against the enforcement of a directive from the Secretary of Justice to vacate his position as Municipal Judge of Pigcawayan, and **Mandamus** to compel Secretary of the Commission on Appointments to issue him a certificate of confirmation and that it be deemed final and executory.

PACETE AD-INTERIM APPOINTMENT

- Aug 31, 1964 - Petitioner **Felizardo S. Pacete** **was extended an appointment** by the President of the Philippines as **Municipal Judge of Pigcawayan, Cotabato during the recess of Congress**.
 - Pacete qualified and took his oath, assuming office on September 11, 1964
- Being an ad interim appointment, **Pacete's appointment was submitted to the Commission on Appointments during the next regular session** of Congress in 1965
 - On May 20, 1965, the Commission on Appointments **unanimously confirmed Pacete's appointment** as Municipal Judge. Two days later, Senate President Ferdinand E. Marcos (who was also Chairman of the CA) sent Pacete a congratulatory telegram.

GANZON MOTION FOR RECONSIDERATION

- On May 21, 1995, one day after the confirmation and before the sine die adjournment of the Fourth Regular Session of the Fifth Congress, **Senator Rodolfo Ganzon wrote a letter to the CA, stating that he was filing a motion of reconsideration of Pacete's confirmation** in view of 'derogatory information' that he received.
 - Respondent Secretary of the CA then informed the Secretary of Justice, following what he considered to be **"the prevailing practice" of the CA** that the **mere presentation of a motion of reconsideration "automatically vacated" the confirmation** of the appointment in question.

VACATED FROM HIS POSITION

- Nine months after his initial confirmation, on February 7, 1966, the Secretary of Justice advised the petitioner to **vacate his position as municipal-judge** on the grounds that his appointment had been bypassed.
 - Consequently, his salary was also withheld by the Disbursing Officer.
- Aggrieved, **Pacete filed this instant, original Petition for Mandamus and Prohibition before the Supreme Court** against the Secretary of the CA, the Secretary of Justice, and the Disbursing Officer of the Department of Justice claiming that his confirmation has already become final and executory upon the adjournment of the fourth regular session.

ISSUE 1

Main Substantive	– W/N the mere filing of a motion for reconsideration by an individual member of the Commission on Appointments, without its being voted upon or approved by the body, suffices to recall or set at naught a confirmation duly voted upon an ad interim appointment.	NO
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:

Petitioner submits that the motion to reconsider his confirmation was without legal effect as it was not approved by the body as a whole. He further submits that the power to approve or disapprove appointments is vested by the Constitution on the CA as a body and not on the members individually.	Under the 'prevailing practice of the CA' there was a recall of the confirmation of petitioner's appointment upon the filing of the motion for reconsideration by Senator Ganzon.
RULING and RATIO DECIDENDI: <u>Mere motion for reconsideration to a confirmation duly made which is not approved by the majority cannot have the effect of setting aside such confirmation.</u>	
Reasoning: (1) The court reaffirmed this citing Altarejos v. Molo (1968) Altarejos v. Molo - similar case of a Provincial Assessor duly appointed and confirmed ad-interim but faced a motion for reconsideration on the same day they were confirmed. The Court in Altarejos rejected the argument that the motion for reconsideration had the effect of recalling their confirmation of appointment and rendering it non-existent. - Ponente in Altarejos says "respondent's theory would give to the mere filing of a motion for reconsideration the effect which it would have if the motion were approved, and hence would dispense with the necessity of such approval for which concurrence of a majority is necessary" TL;dr: mere filing != approval acc to Altarejos (2) The Court emphasized that pursuant to Rule 21, the concurrence of a majority of the members present is indispensable to grant a reconsideration and reopen the appointment. Rule 21 of the Revised Rules of the CA - "<i>Resolution of the Commission on any appointment may be reconsidered on motion by a member presented not more than one (1) day after their approval. If a majority of the members present concur to grant a reconsideration, the appointment shall be reopened and submitted anew to the Commission...</i>". (3) Moreover, approving or disapproving appointments is a constitutional power vested in the Commission on Appointments as a collective body. Approving the motion based only on the filing or move of a single member is the effect and is indefensible in principle.	

ISSUE 2

Side – Substantive	W/N the adjournment <i>sine die</i> of Congress has legal effect on an unacted-upon motion for reconsideration of a confirmed <i>ad-interim</i> appointment?	YES
PETITIONER/S ARGUMENTS: Petitioner contends that his confirmation is final and irrevocable upon adjournment of the fourth regular session of the Fifth Congress on May 21, 1965 No motion of reconsideration could defeat the constitutional provision that "an ad-interim appointment is effective until disapproved by the CA or until the adjournment of the next session of COngress.		RESPONDENT/S ARGUMENTS: There could be no confirmation in the constitutional sense until a motion for reconsideration had been turned down.
RULING and RATIO DECIDENDI: <u>Unacted-upon motions for reconsideration expire and are deemed not approved upon adjournment sine die of congress.</u>		
(1) Citing the ruling of the Chairman of the CA "in case of an adjournment sine die, the period for filing		

the motion for reconsideration having expired, under Sec. 22, then the motion for reconsideration not having been acted upon is not approved and therefore, has no effect whatsoever. The confirmation therefore will stand.”

- (2) Under Article VII, Section 16 of the Constitution:
 - The President shall have the power to make appointments during the recess of the Congress, whether voluntary or involuntary, but such appointments shall be effective only until after disapproval by the Commission on Appointments or until the next adjournment of the Congress.
 - Because Congress adjourned sine die without approving Senator Ganzon's motion, the confirmation became final, the title is complete, and Pacete could not be considered by-passed or unconfirmed.

ISSUE 3

Side – Procedural	W/N the Supreme Court has jurisdiction to interpret the rules of the Commission on Appointments and it is not a non-justiciable political question?	YES
----------------------	---	-----

RESPONDENT/S ARGUMENTS:

Contents that the question involved being merely one of **interpretation or construction of the rules of the Commission** involving its internal business **cannot be made a subject of judicial inquiry**. CA has the full faith and credence to tell the DOJ what to do as they are entrusted by the Constitution with the power to confirm.

RULING and RATIO DECIDENDI: SC has jurisdiction over CA when private/constitutional rights are invaded.

- (1) The Court rejected the CA Secretary's contention that construction of CA rules is beyond judicial review. **Courts are duty-bound to ensure that private rights are not invaded**. There is nothing sacrosanct about a rule of the CA when its administrative construction defeats an individual's lawful right to public office.
- (2) Citing Justice Brandeis in **United States v. Smith**: *"As the construction to be given to the rule affects persons other than members of the Senate, the question presented is of necessity a judicial one"*
 - When claims arising from the explicit text of the Constitution and statutory rights are pressed upon the judiciary, the task of judicial review is unavoidable, and the primacy of the fundamental law must prevail.

FINAL DECISION	(PETITION GRANTED) WHEREFORE, petitioner is entitled to the writ of mandamus and the Secretary of the Commission on Appointments is commanded to issue the certificate of confirmation prayed for by petitioner. The incumbent Secretary of Justice is prohibited from giving any further force and effect to the Department of Justice directive of February 7, 1966 advising petitioner to vacate his position as municipal judge in view of the communication received from then Secretary of the Commission on Appointments, inasmuch as the right of petitioner to perform his functions as municipal judge of Pigcawayan, Cotabato is in accordance with law, his confirmation having been duly confirmed. No pronouncement as to costs.
----------------	--

Arroyo v. De Venecia

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Joker P. Arroyo, Edcel C. Lagman, John Henry R. Osmeña, Wigberto E. Tañada, and Ronaldo B. Zamora v. Jose De Venecia, Raul Daza, Rodolfo Albano, The Executive Secretary, The Secretary of Finance, and The Commissioner of Internal Revenue*
- **Citation:** G.R. No. 127255, August 14, 1997 (En Banc)
- **Ponente:** Mendoza, J.
- **Bench Composition:** Narvasa, C.J., Padilla, Melo, Kapunan, Francisco, and Hermosisima, Jr., JJ., concurring; Regalado, J., concurring in the result; Romero, J., concurring opinion [120–123]; Puno, J. (joined by Davide, Jr., J.), concurring in the result with separate opinion [127–154]; Bellosillo, Panganiban, and Torres, Jr., JJ., took no part or were on official leave.
- **Syllabus Relevance & Topic:**
 1. **Legislative Department — Rules of Proceedings & Internal Parliamentary Procedures (Art. VI, Sec. 16(3)):** Authority of each House to determine the rules of its proceedings; non-enforceability of purely internal parliamentary rules by the courts unless explicit constitutional commands or private individual rights are infringed [2, 97–104].
 2. **Enrolled Bill Doctrine & Conclusiveness of Legislative Authentication:** Principle that an enrolled bill certified by the presiding officers of Congress imports absolute verity and conclusive evidence of due enactment, which courts will not look behind absent withdrawal or disclaimer of authentication by the presiding officers [3, 99–101, 110–113, 125, 147–148].
 3. **Probative Value of Congressional Journals (Art. VI, Sec. 16(4)):** Congressional Journals as unimpeachable public memorials and conclusive evidence of legislative acts recorded therein [101, 114–115].
 4. **Scope of Expanded Judicial Review & Judicial Self-Restraint (Art. VIII, Sec. 1):** Limits of expanded judicial review over internal legislative maneuvering; courts will not inquire into claims of parliamentary "railroading" when mandatory constitutional prerequisites (quorum, three readings, yeas and nays) were satisfied [99–102, 108, 116].

CHRONOLOGICAL MATERIAL FACTS

1. **Origins of House Bill No. 7198:** House Bill No. 7198, titled an Act amending certain provisions of the National Internal Revenue Code (NIRC) by imposing specific "sin taxes" on beer and cigarettes, originated in the House of Representatives [93–94]. It passed third reading in the House on September 12, 1996, and was transmitted to the Senate, which approved it with amendments on November 17, 1996. A Bicameral Conference Committee was formed to reconcile the conflicting provisions.
2. **Submission of Conference Committee Report (November 21, 1996, 8:00 AM):** The Bicameral Conference Committee submitted its reconciled report to the House at 8:00 a.m. on November 21, 1996.
3. **Opening of Interpellation & Defeated Quorum Challenge:** At 11:48 a.m., after a recess, Rep. Exequiel Javier (Chairman of the Committee on Ways and Means) delivered his sponsorship speech. During interpellation by Rep. Rogelio Sarmiento, Rep. Joker P. Arroyo moved to adjourn for lack of quorum. Rep. Antonio Cuenco objected and requested a head count. A roll call was conducted, confirming the presence of **111 members (a valid constitutional quorum)** [94, 108–109]. Rep. Arroyo appealed the Chair's (Deputy Speaker Raul Daza) ruling declaring a quorum, but Arroyo's appeal was defeated when put to a House vote. Interpellations proceeded with Rep. Arroyo registered fourth in line [94–95].

4. **The Disputed Ratification Sequence (November 21, 1996, 3:00 PM):** During Rep. Arroyo's interpellation, he announced that he intended to raise a question of quorum. Shortly thereafter, the following exchange occurred on the floor:
 - *Majority Leader Rodolfo Albano:* "Mr. Speaker, I move that we now approve and ratify the conference committee report."
 - *Deputy Speaker Daza:* "Any objection to the motion?"
 - *Rep. Arroyo:* "What is that, Mr. Speaker?"
 - *Deputy Speaker Daza:* "There being none, approved." (*Bangs gavel*)
 - *Rep. Arroyo:* "No, no, no, wait a minute, Mr. Speaker, I stood up. I want to know what is the question that the Chair asked the distinguished sponsor."
 - *Deputy Speaker Daza:* "There was a motion by the Majority Leader for approval of the report, and the Chair called for the motion."
 - *Rep. Arroyo:* "Objection, I stood up, so I wanted to object."
 - *Deputy Speaker Daza:* "The session is suspended for one minute." (3:01 p.m.)
 5. **Resumption and Adjournment Without Objection (3:40 PM):** The session resumed at 3:40 p.m. with Deputy Speaker Daza presiding. Majority Leader Albano moved to adjourn the session until 4:00 p.m. of Wednesday of the following week. Hearing no objection, the Chair declared the session adjourned [97, 106–107]. Rep. Arroyo was physically present upon resumption but made no further statement, objection, point of order, or motion [97, 106–107].
 6. **Enrolment and Presidential Approval (November 21–22, 1996):** On the same day (November 21, 1996), the bill was signed by Speaker Jose De Venecia and Senate President Neptali A. Gonzales, and certified by the Secretaries of both Houses as having been duly passed. President Fidel V. Ramos signed the enrolled bill into law on November 22, 1996 as **Republic Act No. 8240**.
 7. **Approval of House Journal No. 39 (December 2, 1996):** House Journal No. 39 (covering the November 20 and 21, 1996 sessions) officially recorded that "*On Motion of Mr. Albano, there being no objection, the Body approved the Conference Committee Report on House Bill No. 7198.*" On December 2, 1996, Journal No. 39 was formally approved and adopted by the House over the lone objection of petitioner Rep. Edcel C. Lagman.
-

PROCEDURAL HISTORY

1. **Original Special Civil Action in the Supreme Court:** Petitioners Rep. Joker P. Arroyo, Rep. Edcel C. Lagman, Rep. John Henry R. Osmeña, Rep. Wigberto E. Tañada, and Rep. Ronaldo B. Zamora filed a Petition for *Certiorari* and *Prohibition* under Rule 65 against Speaker Jose De Venecia, Deputy Speaker Raul Daza, Majority Leader Rodolfo Albano, the Executive Secretary, the Secretary of Finance, and the Commissioner of Internal Revenue.
 2. **Relief Sought:** Petitioners prayed for the nullification of Republic Act No. 8240 for allegedly being enacted in violation of the internal rules of the House of Representatives, and urged the Supreme Court to reexamine and abandon the Enrolled Bill Doctrine established in *Tolentino v. Secretary of Finance*.
 3. **Supreme Court Disposition (August 14, 1997):** The Supreme Court En Banc dismissed the petition for lack of merit.
-

PARTIES' MATERIAL ARGUMENTS

- **Petitioners (Rep. Joker P. Arroyo, et al.):**
 1. **Violation of House Rules Equals Violation of Constitution:** House rules are adopted pursuant to Article VI, Section 16(3) of the Constitution ("*Each House may determine the rules of its proceedings*"); thus, a violation of internal House rules constitutes a direct violation of the Constitution itself [97–98, 102].

2. **Specific Procedural Violations Charged:**

- Violations of Rule VIII §35 and Rule XVII §103: The Chair did not call for yeas or nays, but simply asked for approval by motion to prevent Rep. Arroyo from challenging the presence of a quorum.
- Violation of Rule XIX §112: The Chair deliberately ignored Rep. Arroyo's query ("*What is that... Mr. Speaker?*") and failed to repeat Majority Leader Albano's motion.
- Violation of Rule XVI §97: The Chair refused to recognize Rep. Arroyo and railroaded the approval.
- Violations of Rules XX §§121–122, XXI §123, and XVIII §109: The Chair suspended the session without ruling on Rep. Arroyo's query, which constituted a pending point of order or privileged motion that should have been resolved before adjournment.

3. **Abandonment of Enrolled Bill Doctrine:** The Speaker's certification was false and spurious. Under expanded judicial review (Art. VIII, Sec. 1), the Court must look behind the enrolled bill to check legislative "railroading".

● **Respondents (Speaker De Venecia, Executive Officials, et al., via OSG):**

1. **Separation of Powers & Non-Justiciability:** The Court is not the proper forum to enforce internal parliamentary rules of the House. Enforcement of House rules cannot be sought in court except insofar as they directly implement explicit constitutional requirements (such as three readings on separate days or yeas and nays on third reading).
2. **Conclusiveness of the Enrolled Bill:** R.A. No. 8240 is an authenticated enrolled bill signed by the presiding officers of both Houses and the President, importing absolute verity under *Tolentino v. Secretary of Finance* [100, 110–111].
3. **Conclusiveness of the House Journal:** Journal No. 39 explicitly records that the conference committee report was approved without objection on motion of Majority Leader Albano, and the Journal was formally approved by the House on December 2, 1996 [101, 114–115].
4. **Compliance with Legislative Practice:** Approving conference committee reports by voice/motion without a roll call is a standard, long-standing legislative practice (e.g., Local Government Code of 1991, Tariff and Customs Code).

● ISSUES

1. **Primary Issue (Justiciability of Internal House Rules):** Whether the Supreme Court, in the exercise of its judicial power under Article VIII, Section 1, may declare an Act of Congress void on the ground that the House of Representatives violated its own internal rules of procedure in passing the bill [97–98, 100, 102–104].
2. **Secondary Issue (Enrolled Bill Doctrine vs. Journal Entry Rule):** Whether the Supreme Court should abandon or modify the Enrolled Bill Doctrine and inquire into alleged parliamentary maneuvering behind the authenticated certification of the Speaker of the House and President of the Senate [99–101, 110–115].

🌸 HOLDINGS AND CONTROLLING REASONING

1. **On the Non-Justiciability of Internal House Rules: NO. Courts CANNOT declare a statute void merely for non-compliance with internal legislative rules of procedure [102–104, 108, 116].**

● **A. Purpose of Article VI, Section 16(3) as a Shield, Not a Sword:**

- Article VI, Section 16(3) provides that "*Each House may determine the rules of its proceedings.*"
- The Court pointed out that petitioners stood the principle on its head: in established jurisprudence (*U.S. v. Ballin*; *Osmeña v. Pendatun*), this constitutional provision is invoked by Congress to protect its

autonomy from judicial interference, whereas petitioners sought to use it to invite judicial policing of internal House proceedings [102, 128–129, 210].

- Internal parliamentary rules are procedural matters made by the House for its own governance. They are malleable, subject to waiver, modification, or suspension by the House at its pleasure [103–104, 154].
- **B. Boundaries of Expanded Judicial Review (Art. VIII, Sec. 1):**
 - Citing *Schweizer v. Territory*, the Court held that a failure to comply with internal procedural rules created by the legislature itself does **not** present a situation where a co-equal branch has exceeded its constitutional jurisdiction so as to warrant judicial intervention under Article VIII, Section 1 [103–104].
 - Judicial review over legislative enactment processes is confined strictly to enforcing **explicit constitutional requirements**—such as the three-reading rule on separate days (Art. VI, Sec. 26(2)), the distribution of printed copies three days prior to passage, entering the yeas and nays in the Journal upon third reading or upon request of 1/5 of members present (Art. VI, Sec. 16(4)), and the presence of a constitutional quorum (Art. VI, Sec. 16(2)).
- **C. Absence of Constitutional Violation & Waiver of Quorum Challenge:**
 - **No Quorum Defect:** Petitioners did **not** claim that a quorum was absent during the 3:00 p.m. voting; they merely claimed that Rep. Arroyo was prevented from questioning the quorum.
 - Earlier that same day, a roll call had established a valid constitutional quorum of 111 members, defeating Rep. Arroyo's previous motion to adjourn [94, 108–109]. Under established parliamentary practice, a quorum once established is presumed to continue [108, 235–236].
 - Rep. Arroyo **waived** his quorum objection by continuing his interpellation of the sponsor.
 - Rep. Arroyo's query ("*What is that... Mr. Speaker?*") was neither in form nor substance a point of order or a question of privilege.
 - When the session resumed at 3:40 p.m., Rep. Arroyo was present but remained silent and raised no objection, point of order, or motion to reconsider when Majority Leader Albano moved for adjournment [97, 106–107]. Thus, petitioners' predicament was largely of their own making.
 - Approving conference reports by motion without nominal voting is a recognized legislative practice previously used for the Local Government Code of 1991 and Tariff and Customs Code amendments.

2. On the Enrolled Bill Doctrine and Journal Conclusiveness: The Enrolled Bill Doctrine and Journal Entry Rule ARE REAFFIRMED; R.A. No. 8240 is CONCLUSIVELY VALID [101, 110–115].

- **A. Reaffirmation of the Enrolled Bill Doctrine:**
 - The Court reaffirmed its firm adherence to the **Enrolled Bill Doctrine** (*Tolentino v. Secretary of Finance; Marshall Field & Co. v. Clark; Mabanag v. Lopez Vito; Morales v. Subido*) [110–113, 120, 124, 144–146].
 - An enrolled copy of a bill authenticated by the signatures of the Speaker of the House and the Senate President, and certified by the Secretaries of both Houses, imports absolute verity and carries a solemn assurance from coordinate branches that it was duly passed.
 - Courts will not look behind an enrolled bill to investigate allegations of "surreptitious insertions" by conference committees or violations of procedural rules on final reading [111–112, 125, 152].
- **B. Distinguishing *Astorga v. Villegas*:**
 - In *Astorga v. Villegas*, the Senate President explicitly **withdrew his signature** from the enrolled bill upon discovering that substantial amendments were omitted, meaning there was no longer an enrolled bill in existence, forcing the Court to consult the Journal [110, 125, 147–148, 242].
 - In *Arroyo*, Speaker De Venecia never withdrew his signature or certification; thus, the enrolled bill stands fully authenticated and unimpeachable.
- **C. Probative Value of House Journal No. 39 (Art. VI, Sec. 16(4)):**
 - Under Article VI, Section 16(4) of the Constitution and *United States v. Pons*, legislative Journals are public memorials of the most permanent character and are conclusive evidence of the proceedings recorded therein [101, 114–115, 244].

- House Journal No. 39 explicitly recorded that the Conference Committee Report on H. No. 7198 was approved without objection on motion of Rep. Albano on November 21, 1996. The Journal itself was officially approved by the House membership on December 2, 1996. Thus, the due enactment of R.A. No. 8240 is conclusively proven by both the Enrolled Bill and the Congressional Journal [114–115].

● DOCTRINE, TESTS, AND LEGAL STANDARDS

JUDICIAL REVIEW OF LEGISLATIVE ENACTMENTS

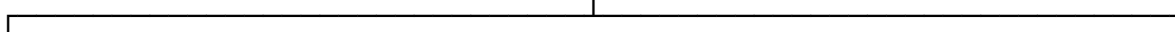
(Arroyo v. De Venecia Framework)

|



ALLEGED PROCEDURAL DEFECT IN PASSAGE OF A BILL

|



INTERNAL HOUSE RULES OF PROCEDURE

- Rules on interpellations, recognition, motions, and voice voting.
- MALLEABLE & NON-JUSTICIABLE.
- COURTS WILL NOT INTERVENE absent violation of explicit constitutional rules.

EXPLICIT CONSTITUTIONAL COMMANDS

- Three readings on separate days (Sec. 26(2)).
- Printed copies 3 days before passage.
- Yeas/nays on 3rd reading entered in Journal.
- Presence of constitutional quorum (Sec. 16(2)).
- JUSTICIABLE & JUDICIALLY ENFORCEABLE.

|



ENROLLED BILL & JOURNAL RULE

- Authenticated signatures of Speaker & Senate President import ABSOLUTE VERITY.
- Official Congressional Journal is CONCLUSIVE EVIDENCE of proceedings recorded therein.
- Courts will NOT look behind an enrolled bill unless the presiding officers withdraw their signatures (Astorga exception).

1. **Non-Justiciability of Internal Parliamentary Rules (*Arroyo v. De Venecia* Rule):** Courts cannot declare an Act of Congress void on account merely of non-compliance with internal rules of procedure established by the House for its own governance under Article VI, Section 16(3). Judicial review over lawmaking procedures is restricted to enforcing explicit, mandatory constitutional proscriptions [2, 100, 103–104, 108, 123].
 2. **Enrolled Bill Doctrine (*Tolentino* / *Marshall Field Standard*):** The signing of a bill by the Speaker of the House and President of the Senate and its certification by the Secretaries of both Houses constitute conclusive evidence of its due enactment. Courts will not go behind an authenticated enrolled bill to inquire into internal parliamentary maneuvering or alleged procedural lapses [110–113, 135, 145].
 3. **The *Astorga* Exception to the Enrolled Bill Rule:** Judicial inquiry into legislative journals or extrinsic evidence to check an enrolled bill is permissible ONLY when the presiding officers of Congress formally withdraw or disclaim their signatures, thereby invalidating the enrolled bill's authentication [110, 125, 147–148, 242].
 4. **Conclusiveness of Congressional Journals (Art. VI, Sec. 16(4)):** Congressional Journals maintained pursuant to Article VI, Section 16(4) are unimpeachable public records that provide conclusive proof of the legislative proceedings recorded therein (*U.S. v. Pons*) [101, 114–115, 244].
-

DISPOSITION

- **Ruling:** The Petition for *Certiorari* and *Prohibition* is **DISMISSED**.
-

SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLE LINES

Separate Opinions in *Arroyo v. De Venecia*

(G.R. No. 127255, August 14, 1997)

1. CONCURRING OPINION OF ASSOCIATE JUSTICE FLERIDA RUTH P. ROMERO

- **Core Motivation & Position:** Justice Romero filed a separate opinion specifically to clarify that her vote to dismiss the petition did **not** constitute an abandonment or "backtracking" from her firm dissenting opinion in *Tolentino v. Secretary of Finance* (the Expanded Value-Added Tax / EVAT case) [82–84, 168–169].
- **Distinction Between *Tolentino* and *Arroyo*:**
 - **In *Tolentino v. Secretary of Finance*:** She dissented against the unqualified application of the Enrolled Bill Doctrine because *Tolentino* involved a **substantial, substantive breach of constitutional mandates** during the passage of the law [84, 168–169]. Specifically, the Bicameral Conference Committee introduced major new provisions that violated the constitutional proscription against amending a bill upon last reading [84, 168–169]. She maintained that the Enrolled Bill Theory should only cover minor, formal, or clerical procedural issues, not substantive constitutional violations [85, 168–169].
 - **In *Arroyo v. De Venecia*:** She emphasized that the House rules allegedly violated by the leadership (e.g., failing to call for yeas and nays, ignoring Rep. Joker Arroyo's query regarding a quorum, refusing to recognize interpellators, and hastily adjourning) were **purely internal rules of procedure** designed for the orderly conduct of legislative business.

- **Lack of Constitutional Nexus:**
 - Internal House rules do not have a direct or reasonable nexus to the mandatory constitutional requirements prescribed for the passage of a bill (such as the three-reading rule on separate days under Art. VI, Sec. 26(2)).
 - Petitioners in *Arroyo* did not claim that the substance of the Sin Tax Law (R.A. No. 8240) was altered or that it violated any constitutional standard—they merely complained that Rep. Arroyo was effectively prevented from formally challenging the presence of a quorum.
- **Doctrinal Conclusion:** Because the grievance involved purely internal rules without a direct constitutional breach, the Enrolled Bill Theory and the doctrine of judicial non-interference properly applied to bar judicial review.

● 2. CONCURRING AND DISSENTING OPINION OF ASSOCIATE JUSTICE REYNATO S. PUNO

(Joined by Associate Justice Hilario G. Davide, Jr.)

- **Nature of Vote: Concurs in the result** (agreeing to dismiss the petition), BUT **dissents from the majority's rationale** regarding justiciability, the scope of judicial review, and the Enrolled Bill Doctrine [87–88, 308–310].

A. On Justiciability and Expanded Judicial Review (The Dissenting Aspect)

- **Rejection of Non-Justiciability:** Justice Puno strongly rejected the majority's premise that internal legislative procedures are non-justiciable political questions beyond judicial review [87–88].
- **Expanded Judicial Power (Art. VIII, Sec. 1):** Under the 1987 Constitution, judicial power explicitly includes the solemn duty to determine whether there has been grave abuse of discretion amounting to lack or excess of jurisdiction on the part of *any* branch or instrumentality of government. The Court cannot hide behind the political question doctrine when grave abuse of discretion is alleged, even if it touches upon Congress's internal operations.

B. On the Enrolled Bill Doctrine (Call for Abandonment)

- **Archaic Legal Fiction:** Justice Puno advocated for the **complete abandonment ("burial") of the Enrolled Bill Doctrine**, calling it an outdated rule of evidence whose fiction of conclusiveness shuts off the truth [87–88].
 - The doctrine originated in England, where Parliament is supreme and there is no written constitution.
 - Modern courts in the United States have broken away from its rigidity in light of contemporary lawmaking realities.
 - In the Philippines, the statutory basis for the rule (*Mabanag v. Lopez Vito* relying on Sec. 313 of the Old Code of Civil Procedure) was long ago repealed by the Rules of Court.
- **Incompatibility with the 1987 Constitution:** Giving an enrolled bill an irrebuttable/conclusive presumption violates the Preamble of the 1987 Constitution (which mandates a "regime of truth") and the state policy requiring full public disclosure and transparency in state transactions (Art. II, Sec. 28).
- **Proposed Standard — Prima Facie Presumption:** An enrolled bill should be accorded merely a **prima facie presumption of correctness**, enabling courts to pry open legislative proceedings and strike down acts tainted by grave abuse of discretion.

C. On Why the Petition Must Still Be Dismissed (The Concurring Aspect)

- **Absence of Grave Abuse of Discretion:** Although the Court has jurisdiction and the issue is justiciable, respondents did **not** commit grave abuse of discretion.

- **Rules as Servants of the House:** Internal rules on how to question a quorum are purely procedural and malleable—they are "*servants, not masters, of the House*" created to assist lawmakers in enacting legislation.
- **No Constitutional Violation or Third-Party Injury:** The dispute did not involve a violation of any constitutionally mandated procedure, nor did it infringe upon the constitutional rights of private third-party non-members. It was a purely internal parliamentary dispute between members of the House, which remains a judgment call for the legislature untainted by grave abuse of discretion.

3. CONCURRING OPINION OF ASSOCIATE JUSTICE JOSE C. VITUG

- **Core Position:** Concurred in the dismissal of the petition under the principle of separation of powers [311–312].
- **Limits of Expanded Judicial Power:** Acknowledged the expanded scope of judicial power under Article VIII, Section 1 of the 1987 Constitution, but emphasized that the Court was **not tasked with overseeing the entire bureaucracy** or micro-managing coordinate branches of government.
- **Strict Construction of Grave Abuse of Discretion:** "Grave abuse of discretion" must remain strictly confined to a capricious, whimsical, or despotic exercise of judgment equivalent to lack or excess of jurisdiction.
- **Judicial Deference:** Non-compliance with purely internal, procedural rules of the House during session—unaccompanied by a breach of an express constitutional command—does not constitute grave abuse of discretion and does not justify judicial interference.

Recitation & Review Synthesis:

- **Justice Romero:** Dismissal is right because *Arroyo* involved purely internal House rules (no constitutional nexus), whereas her *Tolentino* dissent involved a direct constitutional violation (Bicam report changes on 3rd reading) [84, 86, 168–169].
- **Justice Puno:** Dismissal is right, but the reasoning is wrong. The Court HAS jurisdiction under Art. VIII, Sec. 1, and the Enrolled Bill Doctrine should be buried (given only *prima facie* weight) [87–88]. However, there was no grave abuse of discretion because House quorum rules are procedural "servants of the House" and no constitutional provision was breached.
- **Justice Vitug:** Judicial review for grave abuse of discretion does not turn the SC into a supervisor of legislative internal procedure.

Source-Verified Quotable Lines

-  **On Judicial Non-Interference in Internal Legislative Rules (Mendoza, J.):**

"If, then, the established rule is that courts cannot declare an act of the legislature void on account merely of noncompliance with rules of procedure made by itself, it follows that such a case does not present a situation in which a branch of the government has 'gone beyond the constitutional limits of its jurisdiction' so as to call for the exercise of our Art. VIII, §1 power."

-  **On the Purpose of Article VI, Section 16(3) (Mendoza, J.):**

"In the decided cases, the constitutional provision that 'each House may determine the rules of its proceedings' was invoked by parties, although not successfully, precisely to support claims of autonomy of the legislative branch to conduct its business free from interference by courts. Here petitioners cite the provision for the opposite purpose of invoking judicial review."

-  **On the Limits of Judicial Power over Legislative Rumpus (Mendoza, J.):**

"The Court has not been invested with a roving commission to inquire into complaints, real or imagined, of legislative skullduggery. It would be acting in excess of its power and would itself be guilty of grave abuse of its discretion were it to do so... deference rather than disrespect is due the judgment of that body."

RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Arroyo v. De Venecia* (1997), Rep. Joker Arroyo and 4 other congressmen challenged R.A. No. 8240 (the 'sin tax' law) via Rule 65. During floor deliberations on the Bicameral Conference Report on Nov 21, 1996, Rep. Arroyo moved to adjourn for lack of quorum, but a roll call established a 111-member quorum, defeating his motion. Later, during Arroyo's interpellation, Majority Leader Albano moved to approve the report. Deputy Speaker Daza asked 'Any objection?', Arroyo asked 'What is that, Mr. Speaker?', and Daza immediately declared 'There being none, approved' and banged the gavel. Arroyo protested, asking to object. Session was suspended, and upon resumption at 3:40 p.m., the House adjourned to next week without Arroyo raising any further objection. The bill was authenticated by Speaker De Venecia and Senate President Gonzales and signed by President Ramos. Petitioners sued, claiming the Chair violated House rules by ignoring Arroyo's query, failing to take yeas and nays, and hastily adjourning, arguing that a violation of House rules (enacted under Art. VI, Sec. 16(3)) equals a violation of the Constitution.

The Supreme Court En Banc, through Justice Mendoza, DISMISSED the petition. The Court held: (1) Art. VI, Sec. 16(3) is a grant of autonomy to Congress, not a source of judicial power; courts will NOT void a statute for non-compliance with internal parliamentary rules unless explicit constitutional requirements (3 readings, printed copies, yeas/nays on 3rd reading) are breached; (2) Quorum was established earlier (111 present), no claim was made that quorum was actually lacking, and Arroyo waived his objection by continuing interpellation and remaining silent upon resumption at 3:40 p.m.; and (3) Under the Enrolled Bill Doctrine and Journal Entry Rule (Art. VI, Sec. 16(4)), the authenticated enrolled bill and Journal No. 39 (showing report approved without objection) are conclusive evidence of due enactment, distinguishing *Astorga* where the Senate President withdrew his signature."* [93–101, 103–104, 107–108, 110–115, 125, 242]

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: Does a violation of the internal Rules of Procedure of the House of Representatives constitute a violation of the Constitution that the Supreme Court can review under Article VIII, Section 1?**
 - **A: No.** Article VI, Section 16(3) ("*Each House may determine the rules of its proceedings*") confers internal autonomy on Congress. Internal parliamentary rules are procedural and malleable by the House itself [103–104, 154]. Non-compliance with internal rules does **not** constitute an excess of constitutional jurisdiction under Article VIII, Section 1 unless an **explicit constitutional proscription** (e.g., three-reading rule, printed copies, yeas and nays on third reading, or lack of quorum) is violated.
2. **Q: How did the Supreme Court distinguish *Arroyo v. De Venecia* from *Astorga v. Villegas* regarding the Enrolled Bill Doctrine?**

- **A:** In *Astorga v. Villegas*, the Senate President **withdrew his signature** from the enrolled bill upon learning that substantial amendments were omitted, resulting in the complete absence of an authenticated enrolled bill and compelling the Court to consult the Journal [110, 125, 147–148, 242]. In *Arroyo*, Speaker De Venecia and Senate President Gonzales never disclaimed or withdrew their signatures, leaving the enrolled bill intact, authenticated, and conclusively binding on the judiciary.
- 3. **Q: Did Rep. Joker Arroyo successfully establish a violation of the constitutional quorum requirement in *Arroyo v. De Venecia*?**
 - **A: No.** Petitioners did not claim that a quorum was absent during the 3:00 p.m. voting; they merely claimed Arroyo was prevented from questioning the quorum. A roll call earlier that day confirmed a 111-member quorum [94, 108–109]. Furthermore, Arroyo waived his quorum challenge by continuing his interpellation and failing to raise any point of order or objection when session resumed at 3:40 p.m. before adjournment [97, 106–108].

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose during the passage of a tax bill, the House Speaker omits the mandatory third reading of the bill, fails to distribute printed copies 3 days prior, and refuses to enter the yeas and nays in the Congressional Journal as required by Article VI, Section 26(2). However, the Speaker and Senate President sign the enrolled bill and transmit it to the President, who signs it into law. A congressman challenges the law under *Arroyo v. De Venecia*. Will the Supreme Court review and nullify the law?
- **Answer: Yes, the Supreme Court WILL NULLIFY the law.** Under *Arroyo v. De Venecia*, while courts will not enforce purely internal procedural rules of the House, judicial review under Article VIII, Section 1 **does apply to enforce mandatory procedural rules explicitly commanded by the Constitution**. Because the three-reading rule, distribution of printed copies, and recording of yeas and nays on third reading are **explicit constitutional imperatives** under Article VI, Section 26(2) and Section 16(4), failure to comply with them violates the Constitution itself, overriding the enrolled bill presumption.

One-Sentence Doctrine Anchor

Courts will not declare an Act of Congress void for non-compliance with purely internal parliamentary rules, and an authenticated enrolled bill supported by the official Congressional Journal is conclusive evidence of due enactment. [100, 103–104, 110, 114–115]

Arroyo v De Venecia (1997)

Topic Subtopic	Organizations and Sessions - Rules of Proceedings	GR No. & Ponente	GR 127255 Mendoza J
Petitioner/s	JOKER P. ARROYO, EDCCEL C. LAGMAN, JOHN HENRY R. OSMEÑA, WIGBERTO E. TAÑADA, AND RONALDO B. ZAMORA	Respondent/s	JOSE DE VENECIA, RAUL DAZA, RODOLFO ALBANO, THE EXECUTIVE SECRETARY, THE SECRETARY OF FINANCE, AND THE COMMISSIONER OF INTERNAL REVENUE
Doctrine	An act of the Congress cannot be nullified merely by the violation of its own set procedural rules		

FACTS

- Petition for certiorari and prohibition challenging the validity of RA 8240, which amended the National Internal Revenue Code by imposing “sin taxes” (specific taxes) on the manufacture and sale of beer and cigarettes
- Petitioners (HOR members) claim that the respondents (heads of the House, Exec. Sec., Sec of Finance, Commissioner of Internal Revenue) violated the rules of the House which petitioners claim are "constitutionally mandated" so that their violation is tantamount to a violation of the Constitution.
- HB 7198 was approved on 3rd reading, transmitted to Senate (w/c also approved it but with amendments) -> bicameral committee to reconcile disagreeing provisions
- During the BCC, Rep. Arroyo moved for the adjournment for lack of quorum. After a roll call, the presence of a quorum was declared.
- Petitioner Rep. Joker Arroyo registered to interpellate. He was fourth in the order, following Rep. Rogelio Sarmiento, Rep. Edcel C. Lagman and Rep. Enrique Garcia. In the course of his interpellation, Rep. Arroyo announced that he was going to raise a question on the quorum, although until the end of his interpellation he never did.

“MR. ALBANO. Mr. Speaker, I move that we now approve and ratify the conference committee report.

THE DEPUTY SPEAKER (Mr. Daza). Any objection to the motion?

MR. ARROYO. What is that, Mr. Speaker?

THE DEPUTY SPEAKER (Mr. Daza). There being none, approved.(Gavel)

MR. ARROYO. No, no, no, wait a minute, Mr. Speaker, I stood up. I want to know what is the question that the Chair asked the distinguished sponsor.

THE DEPUTY SPEAKER (Mr. Daza). There was a motion by the Majority Leader for approval of the report, and the Chair called for the motion.

MR. ARROYO. Objection, I stood up, so I wanted to object.

THE DEPUTY SPEAKER (Mr. Daza). The session is suspended for one minute. (It was 3:01 p.m.) (3:40 p.m., the session was resumed)

THE DEPUTY SPEAKER (Mr. Daza). The session is resumed.

MR. ALBANO. Mr. Speaker, I move to adjourn until four o'clock, Wednesday, next week.

THE DEPUTY SPEAKER (Mr. Daza). The session is adjourned until four o'clock, Wednesday, next week. (It was 3:40 p.m.)”

Same day: bill was signed by Speaker of the HoR + Senate Pres and certified by the respective secretaries of both Houses as having been finally passed by the HOR and by the Senate on November 21, 1996. The enrolled bill was signed into law by President Fidel V. Ramos on November 22, 1996

Petitioners claim there were 4 versions of transcript of Arroyo's interpellation (1st 3 obtained by Rep. Lagman)

- audio-sound record of proceedings in session hall after session adjourned (3:40 pm Nov 21)
- Transcript proceedings from 3 to 3:40 pm Nov 21 as certified by Chief of Transcription Division on Nov 21
- Transcript proceedings from 3 to 3:40 pm Nov 21 as certified by Chief of Transcription Division on Nov 28
- published version (see above convo)

Differences:

- “approved” can’t be heard in audio sound rec (appears on line 13 in other versions)
- in transcript certified Nov 21, “no” on line 17 only appears once but 3 times in others
- only published ver did not have “you better prepare for a quorum bec i will raise the question of the quorum”

Respondents deny but no need to discuss as petitioners announced that to expedite resolution to their petition, they admit correctness of transcript used by respondents (“approved” appears on transcripts)

What's in question: HoR proceedings on the conference committee report on HB 7198

Petitioners claim that RA 8240 should be null and void as it was passed in violation of HoR of their own rules (violation of House rules = violation of Constitution)

- Rules 8 and 17: Chair did not call for a yeas or nays to vote, just asked for motion to approve (to prevent Arroyo from questioning quorum)
- Rule 19: Chair ignored Arroyo's question "what is that, Chair" and did not repeat Albano's motion
- Rule 16: Chair refused to recognize Arroyo, just proceeded to act on Albano's motion (then declared report approval)
- Rules 20, 21 and 18: Chair suspended the session without ruling on Arroyo's question (should have been resolved upon resumption of session in Nov 28)
- Petitioners argue that the 3:40 pm end was done in haste (prevented Arroyo from challenging quorum + reconsideration)
- Petitioners claim grave abuse of discretion (Consti Art 8 Sec 1) so the Court shouldn't be bound by the certification of that the new law was passed + want to revisit *Tolentino v Secretary of Finance* (w/c affirmed the conclusiveness of an enrolled bill) due to changed Court membership
- Respondents: separation of powers and enrolled bill doctrine, Court is not the proper forum to enforce the House rules + that there is no justification for reconsidering the enrolled bill doctrine + rules were observed in passing RA 8240
- De Venecia denies that his HB 7189 certification was false and spurious
- Court ruled that no grave abuse of discretion by Congress in enacting RA 8240

ISSUE 1

Main – Substantive	W/N RA 8240 is null and void due to House rules violation	NO
RULING and RATIO DECIDENDI:		
Court ruled in favor of respondents. • It is clear from the foregoing facts that what is alleged to have been violated in the enactment of R.A. No. 8240 are merely internal rules of procedure of the House rather than constitutional requirements for the enactment of a law, i.e., Art. VI, §§26-27. • Petitioners do not claim that there was no quorum but only that, by some maneuver allegedly in violation of the rules of the House, Rep. Arroyo was effectively prevented from questioning the presence of a quorum. • If there's no violation of the constitution or rights of private individuals, the Court cannot review the Congress process. • <i>Osmeña v Pendatun</i> - 'Parliamentary rules are merely procedural, and with their observance, the courts have no concern. They may be waived or disregarded by the legislative body.' Consequently, 'mere failure to conform to parliamentary usage will not invalidate the action (taken by a deliberative body) when the requisite number of members have agreed to a particular measure.' • <i>United States v. Ballin, Joseph & Co</i> - House can set rules of proceedings bound by constitution and fundamental rights, if it is within the limits, other body/tribunal cannot challenge it • <i>Crawford v. Gilchrist</i> - House's power is not restricted to mere setting of rules or about proceedings, when constitution allows + exercised by majority of quorum, they can also decide how to conduct business + determine the validity or effect of its actions • <i>State ex rel. City Loan & Savings Co. v. Moore</i> - failure to follow rules set is not a matter for judicial inquiry and a legislative act will not be declared invalid for noncompliance with rules. • <i>State v. Savings Bank</i> - when the House has acted in a matter clearly within its power, it would be an unwarranted invasion of the independence of the legislative department for the court to set aside such action as void because it may think that the House has misconstrued or departed from its own rules of procedure. • <i>McDonald v. State</i> - no inquiry into strict compliance with rules (presume that the rules were followed) + no court has declared legislative act void for noncompliance of rules set by the Legislature themselves • <i>Schweizer v. Territory</i> - The courts cannot declare an act of the legislature void on account of noncompliance with rules of procedure made by itself to govern its deliberations.		

- Justice Fernando - Rules are hardly permanent in character. The prevailing view is that they are subject to revocation, modification or waiver at the pleasure of the body adopting them as they are primarily procedural. Courts ordinarily have no concern with their observance. They may be waived or disregarded by the legislative body. Consequently, mere failure to conform to them does not have the effect of nullifying the act taken if the requisite number of members have agreed to a particular measure. The above principle is subject, however, to this qualification. Where the construction to be given to a rule affects persons other than members of the legislative body the question presented is necessarily judicial in character. Even its validity is open to question in a case where private rights are involved.
- In this case, **no rights of private individuals are involved** but only those of a member who, instead of seeking redress in the House, chose to transfer the dispute to this Court. **We have no more power to look into the internal proceedings of a House** than members of that House have to look over our shoulders, as long as no violation of constitutional provisions is shown
- Separation of powers must be respected. SC declines the invitation to exercise our power.

ISSUE 2

Main – Substantive	W/N the Congress committed grave abuse of discretion subjecting their act to judicial review	NO
PETITIONER/S ARGUMENTS:		
Quoted Chief Justice Roberto Concepcion's sponsorship in the Constitutional Commission, contend that under Art. VIII, Sec 1 "nothing involving abuse of discretion [by the other branches of the government] amounting to lack or excess of jurisdiction is beyond judicial review."		
RULING and RATIO DECIDENDI:		
If, then, the established rule is that courts cannot declare an act of the legislature void on account merely of noncompliance with rules of procedure made by itself, it follows that such a case does not present a situation in which a branch of the government has "gone beyond the constitutional limits of its jurisdiction" so as to call for the exercise of our Art. VIII, §1 power.		

Issue 3

Main – Substantive	W/N the passage of the law in the House was "railroaded"	NO
PETITIONER/S ARGUMENTS:		
Petitioners claim that the passage of the law in the House was "railroaded." They claim that Rep. Arroyo was still making a query to the Chair when the latter declared Rep. Albano's motion approved. Petitioners argue that, in accordance with the rules of the House, Rep. Albano's motion for the approval of the conference committee report should have been stated by the Chair and later the individual votes of the Members should have been taken. They say that the method used in this case is a legislator's nightmare because it suggests unanimity when the fact was that one or some legislators opposed the report.		
RULING and RATIO DECIDENDI:		
1) No specific House rule was cited requiring the Chair to restate the motion or conduct viva voce/nominal voting for conference committee reports 2) The procedure used to approve the report had basis in legislative practice (called for objection -> motion approved + banging of the gavel) a) The same method had previously been used to approve conference committee reports which became the Local Government Code of 1991 + amendments to the Tariff and Customs Code.		

- 1957: Tolentino (when practice was questioned being contrary to House rules) - the fact that nobody objects means unanimous approval, if someone objects -> debate -> vote
- Court cannot give opinion on which procedure is better, it shall be up to the HOR who has the discretion to set its own rules
- The Constitution does not require that the yeas and the nays of the Members be taken every time a House has to vote, except only in the following instances: upon the last and third readings of a bill, at the request of one-fifth of the Members present, and in repassing a bill over the veto of the President. → considering the fact that in the approval of the original bill the votes of the Members by yeas and nays had already been taken, it would have been sheer tedium to repeat the process.
- On petitioners claiming that they were prevented from seeking reconsideration, Arroyo did not say anything after return of session at 3:40 pm. The Journal that recorded the proceeding was approved Dec 2, 1996 but only Rep. Lagman objected to the Journal's approval
- Petitioners themselves failed to use the proper procedures to have Rep. Arroyo's question resolved
- The question was not a proper point of order or question of privilege that could prevent the passage of the bill, and even if it were, the motion to adjourn would have taken precedence
- Therefore, the **House Speaker's signing of the bill was not a grave abuse of discretion**. Grave abuse requires a capricious and whimsical exercise of judgment so extreme that it amounts to acting without or beyond jurisdiction.
- The matter complained of concerns a matter of internal procedure of the House with which the Court should not be concerned. **To repeat, the claim is not that there was no quorum but only that Rep. Arroyo was effectively prevented from questioning the presence of a quorum.** Rep. Arroyo's earlier motion to adjourn for lack of quorum had already been defeated, as the roll call established the existence of a quorum. The question of quorum cannot be raised repeatedly — especially when the quorum is obviously present — for the purpose of delaying the business of the House. Rep. Arroyo waived his objection by his continued interpellation of the sponsor for in so doing he in effect acknowledged the presence of a quorum.
- Out of 111 members, only 5 (i.e. the petitioners) questioned the manner by w/c the report was approved. Osmeña did not participate in bicameral proceedings. Lagman and Zamora objected to the report but not about the manner it was approved. If voting had been conducted, Tañada would approve report

Issue 4

Main – Substantive	W/N the enrolled bill doctrine should be overruled	NO
RULING and RATIO DECIDENDI:		
• Under the enrolled bill doctrine, the signing of H. No. 7198 by the Speaker of the House and the President of the Senate and the certification by the secretaries of both Houses of Congress that it was passed on November 21, 1996 are conclusive of its due enactment. • Absent evidence to the contrary, this Court will respect the certification of the presiding officers of both Houses that a bill has been duly passed. It imports absolute verity and is binding on the Courts. • The enrolled bill doctrine, as a rule of evidence, is well established. "To overrule it now is to repudiate the massive teaching of our cases and overthrow an established rule of evidence" • Petitioners did not have any argument to warrant depart from rule except change of membership of the Court (that 3 new mems may have open mind on the question of enrolled bill doctrine) (Court said actually there are 4 new mems and petitioners are just banking on it) • Moreover, as already noted, the due enactment of the law in question is confirmed by the Journal of the House of November 21, 1996 which shows that the conference committee report on HB. No. 7198, which became R.A. No. 8240, was approved on that day – its due enactment has been duly proven. • The keeping of the Journal is required by the Constitution. Art. VI, §16(4) w/c provides that: Each House shall keep a Journal of its proceedings, and from time to time publish the same, excepting such parts as may, in its judgment, affect national security; and the yeas and nays on any question shall, at the request of one-fifth of the Members present, be entered in the Journal. Each House shall also keep a Record of its proceedings • The Journal is regarded as conclusive with respect to matters that are required by the Constitution to be recorded therein. With respect to other matters, in the absence of evidence to the contrary, the Journals have also been accorded conclusive effect.		

FINAL DECISION	WHEREFORE, the petition for certiorari and prohibition is DISMISSED. SO ORDERED.
---------------------------	---

SEPARATE OPINION/S

PUNO, J. <i>concurring and dissenting</i>	Concurred in the result (agreeing to dismiss the petition) BUT dissented from the majority regarding justiciability, the scope of judicial review, and the Enrolled Bill Doctrine. I. Strongly rejected the majority's premise that internal legislative procedures are non-justiciable political questions beyond judicial review - Under the '87 Constitution, judicial power explicitly includes the solemn duty to determine whether there has been grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of government. The Court cannot hide behind the political question doctrine when grave abuse of discretion is alleged, even if it touches upon Congress' internal operations. II. Advocated for the complete abandonment/burial of the Enrolled Bill Doctrine, calling it an outdated rule of evidence whose fiction of conclusiveness shuts off the truth. - The doctrine originated in England where the Parliament is supreme and there is no written constitution. - Modern courts in the US have broken away from its rigidity in light of contemporary lawmaking realities - In the PH, the statutory basis for the rule (Mabanag v. Lopez Vito relying on Sec. 313 of the Old Code of Civil Procedure) was long ago repealed by the Rules of Court - Giving an enrolled bill and irrebuttable/conclusive presumption violates the preamble of the 1987 consti which mandates a regime of truth and the state policy requiring full disclosure and transparency in state transactions (Art. II, Sec 28) II. Although the court has jurisdiction, and the issue is justiciable, respondents did not commit grave abuse of discretion. - Internal rules on how to question a quorum are purely procedural and malleable, 'servants not masters of the house' created to assist lawmakers in enacting legislation - The dispute did not involve a violation of any constitutionally mandated procedures, nor did it infringe upon the constitutional rights of private third-parties or non-members. It was a purely internal parliamentary dispute between members of the house, which remains a judgment call for the legislature untainted by grave abuse of discretion.
---	---

Alejandrino v. Quezon

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Jose Alejandrino v. Manuel L. Quezon, et al.*
 - **Citation:** G.R. No. 22041, September 11, 1924 (46 Phil. 83)
 - **Ponente:** Malcolm, J.
 - **Bench Composition:** Street, Villamor, and Romualdez, JJ., concurring; Avanceña, J., concurring in the result; Johnson, J., dissenting; Ostrand, J., dissenting.
 - **Syllabus Relevance & Topic:**
 1. **Legislative Department — Discipline of Members (Jones Law, Sec. 18):** Authority of each House of the Legislature to punish its members for disorderly behavior, contrasted with the power of expulsion or removal.
 2. **Appointive vs. Elective Legislators:** Distinction between elective legislators (who may be expelled by a 2/3 vote of their respective chamber) and appointive legislators under the Jones Law (whose appointment and removal belonged exclusively to the Governor-General under Sec. 17).
 3. **Judicial Non-Interference in Legislative Proceedings & Political Question Doctrine:** Inability of the Judiciary to issue writs of mandamus or injunction directly controlling or coercing a coordinate, co-equal legislative branch or its subordinate officers/agents acting under its direction.
 4. **Limits of Mandamus against Subordinate Legislative Employees:** Principle that judicial process cannot compel legislative employees (Secretary, Sergeant-at-Arms, Paymaster) to disobey the orders of the legislative chamber they serve.
-

CHRONOLOGICAL MATERIAL FACTS

1. **Appointment of Senator Alejandrino:** Petitioner Jose Alejandrino was an appointive Senator designated by the Governor-General of the Philippine Islands pursuant to Section 17 of the Jones Law (Act of Congress of August 29, 1916) to represent the Twelfth Senatorial District (composed of the non-Christian provinces).
 2. **Floor Altercation and Assault:** During a Senate debate regarding the credentials of Senator Alejandrino, Senator Vicente de Vera (representing the Sixth District) uttered certain phrases on the floor. Alejandrino physically and treacherously assaulted Senator de Vera outside or near the debate setting.
 3. **Senate Resolution of Discipline (February 5, 1924):** The Philippine Senate adopted a resolution declaring Senator Alejandrino guilty of disorderly conduct and flagrant violation of Senate privileges.
 4. **Terms of the Penalty:** The Senate resolution provided:
 - (a) Declared Alejandrino guilty of disorderly conduct and flagrant violation of Senate privileges for the treacherous assault on Senator de Vera;
 - (b) **Deprived Alejandrino of all his prerogatives, privileges, and emoluments as Senator for the period of one year** starting January 1, 1924; and
 - (c) Ordered that a copy of the resolution be furnished to the Governor-General for his information.
 5. **Enforcement of Suspension:** Pursuant to the resolution, Senate officers (Secretary Faustino Aguilar, Sergeant-at-Arms Bernabe Bustamante, and Paymaster Francisco Dayaw) excluded Alejandrino from the Senate session hall and withheld his senatorial emoluments and salary.
-

PROCEDURAL HISTORY

1. **Original Petition in the Supreme Court:** Senator Alejandrino filed an original proceeding for **Mandamus and Injunction** in the Supreme Court of the Philippine Islands against Senate President Manuel L. Quezon, 23 Senators, the Senate Secretary, the Sergeant-at-Arms, and the Paymaster.
 2. **Reliefs Prayed For:**
 - (a) A preliminary injunction enjoining respondents from executing the resolution;
 - (b) A declaration that the Senate resolution is unconstitutional, illegal, and null and void; and
 - (c) A writ of mandamus ordering respondents to recognize Alejandrino's rights as Senator, restore his prerogatives, privileges, and emoluments, and prohibit them from preventing him from exercising his office.
 3. **Respondents' Demurrer:** The Attorney-General, appearing specially for respondents, filed a demurrer objecting to the jurisdiction of the Supreme Court to entertain the petition against the Philippine Senate and its officers.
 4. **Supreme Court Decision (September 11, 1924):** The Supreme Court sustained the demurrer and **dismissed** the petition for lack of jurisdiction.
-

● PARTIES' MATERIAL ARGUMENTS

- **Petitioner (Jose Alejandrino):**
 1. **Ultra Vires & Illegal Removal:** The Senate resolution suspending him for one year and stripping all prerogatives, privileges, and emoluments is equivalent to a complete removal/expulsion from office. Under Section 17 of the Jones Law, the power to remove an *appointive* senator resides exclusively in the Governor-General, not the Senate.
 2. **Violation of Jones Law Sec. 18:** Section 18 of the Jones Law allows the Senate to punish members for disorderly behavior and expel *elective* members by a two-thirds vote, but gives no authority to remove or suspend an *appointive* member.
 3. **Deprivation of District Representation:** Suspending an appointive senator for one year silences the occupant without creating a legal vacancy that the Governor-General can fill, thereby unconstitutionally depriving the Twelfth Senatorial District of legislative representation.
 4. **Ex Post Facto & Due Process Violation:** The punishment imposed was quasi-criminal and created *ex post facto* after the alleged disorderly conduct occurred, depriving him of property (emoluments) and personal rights without due process of law.
 - **Respondents (Senate President Quezon, Senators, & Officers via Attorney-General):**
 1. **Lack of Judicial Jurisdiction over Legislative Branch:** The Judiciary has no jurisdiction or coercive power to issue writs of mandamus or injunction against a coordinate, co-equal branch of government or its members in the exercise of their internal legislative functions.
 2. **Internal Parliamentary Discipline:** The power to discipline members for disorderly conduct is an exclusive, inherent legislative function under Section 18 of the Jones Law. The choice and severity of the penalty is a discretionary political question beyond judicial review.
 3. **Inapplicability of Mandamus to Subordinate Employees:** Mandamus cannot run against Senate subordinate officers (Secretary, Sergeant-at-Arms, Paymaster) because they act purely as agents under the direction of the Senate body and possess no independent authority to disobey Senate orders.
-

● ISSUES

1. **Procedural / Jurisdictional Issue:** Whether the Supreme Court has jurisdiction to issue a writ of mandamus or injunction against the Philippine Senate, its President, its members, or its subordinate officers to annul a disciplinary suspension and compel the reinstatement of a Senator.

2. **Substantive / Obiter Issue:** Whether the Philippine Senate possessed the legal authority under Sections 17 and 18 of the Jones Law to suspend an appointive Senator for one year and deprive him of his prerogatives, privileges, and emoluments.
-

HOLDINGS AND CONTROLLING REASONING

1. On Jurisdiction (Mandamus & Injunction against the Legislature): NO. The Supreme Court LACKS JURISDICTION to issue mandamus or injunction directly controlling the Legislature or its subordinate officers.

- **A. Separation of Powers & Coordinate Independence:**
 - Under the tripartite system of government established by the Organic Act (Jones Law), the Executive, Legislative, and Judicial departments are coordinate and co-equal.
 - The general rule of mandamus is that **the writ will not lie from one branch of government to a coordinate branch**, for the obvious reason that neither department is subordinate or inferior to the other.
 - Mandamus will not lie against a legislative body, its members, or its officers to compel the performance of duties purely legislative in character or over which the legislature has exclusive internal control.
- **B. Absence of Judicial Coercive Power and Risk of Institutional Collision:**
 - Citing *Mississippi v. Johnson* and *French v. Senate of California*, the Court emphasized that if a court were to issue an injunction or mandamus against the Senate and the Senate refused to obey, the Judiciary possesses no constitutional machinery or coercive power to enforce its process against the Legislature.
 - Pronouncing judgments that can be disregarded with impunity lowers the dignity of the Court and threatens popular democratic government.
- **C. Subordinate Legislative Employees Cannot Be Controlled Separately:**
 - The Court explicitly rejected the argument that writs could run against the Senate Secretary, Sergeant-at-Arms, and Paymaster even if not against the Senators themselves.
 - Subordinate employees are **mere agents of the Senate** acting under its direction. They possess no absolute, independent statutory power to execute the writ contrary to the Senate's command.
 - Issuing a mandate to subordinate agents would create an intolerable spectacle where the Court orders an agent to do one thing while his legislative master orders him to do the opposite. Mandamus requires that the respondent have the absolute legal power to execute the command.

2. On the Substantive Legality of Suspending an Appointive Senator (Obiter Dictum / Court's Expression of Guidance): The Senate's 1-year suspension of an appointive senator WAS ULTRA VIRES AND ILLEGAL, though judicially unenforceable.

- **A. Textual Limitations of Section 17 & 18 of the Jones Law:**
 - Section 17 of the Jones Law vests the power to appoint and remove appointive senators exclusively in the **Governor-General**.
 - Section 18 of the Jones Law empowers each House to "*punish its members for disorderly behavior, and, with the concurrence of two-thirds, expel an elective member*".
 - The Jones Law deliberately omitted giving the Senate power to expel or remove an *appointive* member.
- **B. Suspension for One Year Equals Expulsion:**

- Stripping an appointive senator of all prerogatives, privileges, and emoluments for an entire year is not a mere temporary disciplinary measure; it is a **complete temporary removal/expulsion from office**.
- By suspending Alejandrino for a year, the Senate achieved the practical effect of expulsion without creating a legal vacancy that the Governor-General could fill, thereby unlawfully depriving the constituents of the Twelfth Senatorial District of representation.
- **Court's Conclusion on the Substantive Law:** The Senate exceeded its constitutional authority under the Organic Law. However, because the Supreme Court lacks coercive jurisdiction over the Senate, the Court had to sustain the demurrer and dismiss the petition, leaving the correction of the illegal act to the Legislature's own respect for the Constitution or executive action.

● DOCTRINE, TESTS, AND LEGAL STANDARDS

MANDAMUS AGAINST THE LEGISLATURE RULE

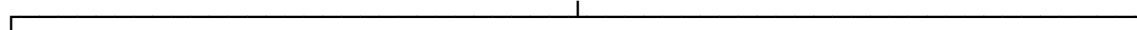
(Alejandrino v. Quezon Standard)

|



SUIT DIRECTED AGAINST CONGRESS / SENATE OR ITS OFFICERS

|



INTERNAL LEGISLATIVE / DISCIPLINARY ACTS

SUBORDINATE LEGISLATIVE EMPLOYEES

- Mandamus / Injunction WILL NOT LIE from

- Secretary, Sergeant-at-Arms, Paymaster

Judiciary to a coordinate branch.

are mere AGENTS of the chamber.

- Neither department is inferior to the other.

- Mandamus CANNOT run against agents to

- Courts lack coercive power to enforce

compel disobedience to their legislative

writs against the Legislature.

principal.

|



DOCTRINE: The Judiciary cannot directly control the Legislature or its branches

in the exercise of their legislative or internal powers by any judicial process.

1. **Non-Jurisdiction over Coordinate Branches (*Aleandrino Rule*):** Judicial process (mandamus or injunction) will not issue to directly control, coerce, or restrain the Legislature, a house thereof, or its members in the performance of their internal, legislative, or disciplinary functions.
 2. **Subordinate Agent Immunity from Independent Mandamus:** Mandamus will not lie against administrative employees of a legislative body (such as the Secretary or Sergeant-at-Arms) to compel them to act contrary to the directives of the legislative assembly, as they lack independent power to execute the writ.
 3. **Appointive Legislator Discipline Limit (Jones Law Rule):** Where the organic law vests the power of removal of an appointive legislator exclusively in the Executive (Governor-General), a legislative body cannot, under the guise of "punishing for disorderly behavior," impose a long-term suspension that deprives the officer of all emoluments and prerogatives, as such penalty is equivalent to illegal removal.
-

♥ DISPOSITION

- **Ruling:** The demurrer filed by respondents is **SUSTAINED**.
 - **Order:** The petition for mandamus and injunction is **DISMISSED** for lack of jurisdiction, without costs.
-

● SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLE LINES

1. Concurring Opinion of Justice Ramon Avanceña

- **Agreed with Disposition:** Concurred fully that the Supreme Court lacked jurisdiction over the Senate.
- **Objection to Dicta:** Expressed that because the Court lacked jurisdiction, the majority's comments insinuating that the Senate's suspension resolution was illegal were unnecessary and improper.

2. Dissenting Opinion of Justice Elias Finley Johnson

- **Jurisdiction Exists to Protect Rights:** Argued that whenever a citizen alleges an illegal deprivation of constitutional rights or property (emoluments) by an unconstitutional legislative resolution, the Judiciary is authorized and compelled under its oath to take jurisdiction.
- **Illegal Removal:** Asserted that the 1-year suspension was a patent removal/expulsion of an appointive senator, violating Section 17 of the Jones Law. The Court should have issued an injunction restraining the enforcement of the void resolution.

3. Dissenting Opinion of Justice James A. Ostrand

- **Distinguished Suits Against Agents:** Contended that while courts cannot control discretionary legislative acts, an action against Senate subordinate employees (Secretary, Sergeant-at-Arms) to restrain the execution of an unconstitutional, *ultra vires* act is justiciable and does not constitute a suit against the Senate itself.

Source-Verified Quotable Lines

- 💬 **On Mandamus Between Coordinate Branches (Malcolm, J.):**

"The general rule of mandamus to be, that the writ will not lie from one branch of the government to a coordinate branch, for the very obvious reason that neither is inferior to the other. Mandamus will not lie against the

legislative body, its members, or its officers, to compel the performance of duties purely legislative in their character which therefore pertain to their legislative functions and over which they have exclusive control."

- **On Controlling Subordinate Legislative Employees (Malcolm, J.):**

"If we have no authority to control the Philippine Senate, we have no authority to control the actions of subordinate employees acting under the direction of the Senate. The secretary, sergeant-at-arms, and disbursing officer of the Senate are mere agents of the Senate who cannot act independently of the will of that body."

- **On Suspension vs. Expulsion of Appointive Members (Malcolm, J. / Johnson, J.):**

"By suspension, the seat remains filled but the occupant is silenced. Suspension for one year is equivalent to qualified expulsion or removal... The Organic Law (Jones Law) prohibits the removal of an appointive senator by the Legislature."

开启 RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Alejandrino v. Quezon* (1924), Jose Alejandrino was an appointive Senator designated by the Governor-General under Section 17 of the Jones Law for the 12th District. After Alejandrino physically assaulted Senator Vicente de Vera during a debate on his credentials, the Senate passed a resolution on Feb 5, 1924 declaring him guilty of disorderly conduct and **DEPRIVING** him of all prerogatives, privileges, and emoluments as Senator for **ONE YEAR**. Senate officers excluded him from the hall and withheld his salary. Alejandrino filed an original petition for mandamus and injunction in the Supreme Court against Senate President Quezon, 23 Senators, and Senate employees (Secretary, Sergeant-at-Arms, Paymaster) to annul the suspension and compel his reinstatement.

The Supreme Court, through Justice Malcolm, **SUSTAINED** the respondents' demurrer and **DISMISSED** the petition for **LACK OF JURISDICTION**. The Court held: (1) Under the separation of powers, mandamus will not lie from the Judiciary to a coordinate, co-equal legislative branch; (2) Courts lack coercive power to enforce writs against the Legislature; (3) Mandamus cannot run against subordinate Senate employees because they are mere agents acting under Senate orders without independent authority; and (4) *Obiter*: While the Senate's 1-year suspension of an appointive senator was *ultra vires* and illegal under the Jones Law (since removal belonged solely to the Governor-General), the Judiciary lacks jurisdiction to enforce its correction via mandamus."*

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: Why couldn't the Supreme Court issue a writ of mandamus against the Senate Secretary or Sergeant-at-Arms to reinstate Senator Alejandrino, even if it couldn't issue one against the Senate President?**
 - **A:** Subordinate legislative employees are mere **agents of the Senate** acting under its direct orders. They possess no independent statutory authority to disobey the Senate chamber. Issuing mandamus against subordinate agents would create an impermissible conflict where the Court commands the agent to do

one thing while his legislative principal commands him to do the opposite. Mandamus requires that the respondent have absolute legal power to execute the writ.

2. **Q: Why was the Senate's 1-year suspension of Senator Alejandrino considered *ultra vires* under the Jones Law?**
 - **A:** Under Section 17 of the Jones Law, the power to appoint and remove an *appointive* senator belonged exclusively to the **Governor-General**. Section 18 allowed the Senate to expel only *elective* members. Depriving an appointive senator of all prerogatives, privileges, and emoluments for a full year was equivalent to a temporary removal/expulsion, which the Senate had no statutory power to inflict.
3. **Q: How has the 1987 Constitution modified or affected the strict non-intervention ruling of *Alejandrino v. Quezon*?**
 - **A:** Under Article VIII, Section 1 of the 1987 Constitution, judicial power was expanded to include determining whether there has been a **grave abuse of discretion amounting to lack or excess of jurisdiction** on the part of any branch of government. Furthermore, in *Osmeña v. Pendatun* and *Santiago v. Guingona*, the Court clarified that while internal legislative discipline remains an inherent congressional power, courts may intervene under expanded certiorari if there is a clear showing of grave abuse of discretion or a violation of specific constitutional mandates.

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose under the present 1987 Constitution, the Senate votes by a simple majority vote (13 out of 24 senators) to **expel** an elected Senator for "disorderly behavior". The expelled Senator files a petition for *certiorari* under Rule 65 before the Supreme Court, alleging that Article VI, Section 16(3) explicitly requires a **two-thirds (2/3) vote of all its Members** to expel a member. The Senate leadership moves to dismiss, citing *Alejandrino v. Quezon* and claiming complete judicial non-interference in internal discipline. How should the Supreme Court rule?
- **Answer: The Supreme Court MUST GRANT the petition for certiorari and NULLIFY the expulsion.** Unlike *Alejandrino*, which involved an unwritten/plenary internal rule where no judicial process could run, this hypothetical involves a direct violation of an **explicit, mandatory constitutional requirement** (the 2/3 vote requirement in Art. VI, Sec. 16(3)). Under expanded judicial review (Art. VIII, Sec. 1) and settled post-1987 jurisprudence (*Santiago v. Guingona*, *Hagedorn v. House*), the Court has the duty to strike down legislative actions that violate explicit constitutional thresholds, as such violation constitutes grave abuse of discretion amounting to lack of jurisdiction.

One-Sentence Doctrine Anchor

The Judiciary lacks jurisdiction to issue mandamus or injunction directly controlling a coordinate legislative branch or its subordinate agents, even when the Legislature exceeds its disciplinary powers.

ALEJANDRINO v. QUEZON (1924)

Topic Subtopic	Congress - Discipline of Members	GR No. & Ponente	G.R. No. 22041 Malcolm
Petitioner/s	JOSE ALEJANDRINO	Respondent/s	MANUEL L. QUEZON, ET AL.,
Doctrine	Under our system of government, each of the three departments is distinct and not directly subject to the control of another department. The power to control is the power to abrogate and the power to abrogate is the power to usurp. Each department may, nevertheless, indirectly restrain the others.		

FACTS

Jose Alejandrino is a Senator **appointed** by the Governor-General to represent the Twelfth Senatorial District. The respondents are members of the PH Senate.

February 5, 1924: The PH senate adopted a resolution, the **casus belli**, depriving Senator Alejandrino of all the prerogatives, privileges, and emoluments of his office for the period of **one year** from the first of January, 1924.

- "...declared **guilty of disorderly conduct and flagrant violation of the privileges of the Senate** for having treacherously assaulted Senator Vicente de Vera, on the occasion of certain, phrases being uttered by the latter in the course of the debate regarding the credentials of said Mr. Alejandrino."

Alejandrino instituted an original action in the Supreme Court praying for a preliminary injunction to halt the suspension and a writ of mandamus to compel the Senate to reinstate him, since the aforesaid resolution of the Senate was null and void.

The Attorney-General, appearing specially for the respondents, filed a demurrer objecting to the jurisdiction of the Supreme Court over the Legislature.

ISSUE 1

Main – Procedural	W/N the Supreme Court by mandamus and injunction annul the suspension of Senator Alejandrino and compel the Philippine Senate to reinstate him in his official position?	NO
-------------------	--	----

RULING and RATIO DECIDENDI:**Precedents:**

Severino vs. Governor-General and Provincial Board of Occidental Negros: "we have no jurisdiction to interfere with the Governor-General of these Islands, as the head of the executive department, in the performance of any of his official acts."

Mississippi vs. Johnson: "The Congress is the Legislative Department of the Government; the President is the Executive Department. Neither can be restrained in its action by the Judicial Department; though the acts of both, when performed, are, in proper cases, subject to its cognizance."

"We are fully satisfied that this court has no jurisdiction of a bill to enjoin the President in the performance of his official duties; and that no such bill ought to be received by us."

Sutherland vs. Governor of Michigan (29 Mich., 320): "it would be readily conceded that no court can compel the Legislature to make or to refrain from making laws, or to meet or adjourn at its command, or to take any action whatsoever, though the duty to take it be made ever so clear by the constitution or the laws. In these cases the exemption of the one department from the control of the other is not only implied in the framework of government, but is indispensably necessary if any useful apportionment of power is to exist."

On the right of the judiciary to control by mandamus the action of the legislature:

French vs. Senate of the State of California (146 Cal., 604): "Under our form of government the judicial department has no power to revise even the most arbitrary and unfair action of the legislative department, or of either house thereof, taken in pursuance of the power committed exclusively to that department by the constitution. . . ."

Application:

- This is a suit instituted by one member of the Philippine Senate against the Philippine Senate and certain of its official employees.
- Mandamus does not lie from one branch of government to a coordinate branch because neither branch is inferior to the other → co-equal branches, SOP
- Mandamus will not lie against the legislative body, its members, or its officers, to compel the performance of duties purely legislative in their character which therefore pertain to their legislative functions and over which they have exclusive control.
- The courts cannot dictate action in this respect without a gross usurpation of power. So it has been held that where a member has been expelled by the legislative body, the courts have no power, irrespective of whether the expulsion was right or wrong, to issue a mandate to compel his reinstatement.
- No court has ever held and we apprehend no court will ever hold that it possesses the power to direct the Chief Executive or the Legislature or a branch thereof to take any particular action. → will be violation of separation of powers
- If we have no authority to control the Philippine Senate, we have no authority to control the actions of subordinate employees acting under the direction of the Senate. → will result a spectacle where the court ordering the secretary, the sergeant-at-arms, and the disbursing officer of the Philippine Senate to do one thing, and the Philippine Senate ordering them to do another thing → mandamus cannot be issued unless it is directed who has the absolute power to execute it.
- Mandamus should not be awarded when it will cause discord and confusion.
- This Court should not make a decision that will cause a collision between the SC and the PH Senate as a branch of a coordinate department.

Unnecessary for a correct decision, but it is inserted so that the vital question argued with so much ability may not pass entirely unnoticed.

Side Substantive	– W/N the Philippine Senate has the constitutional authority under the Organic Act to suspend an appointive senator for one year?	NO
-------------------------	--	-----------

RULING and RATIO DECIDENDI:

Under Sections 16 and 17 of the Organic Act - the Governor-General appoints 2 senators, and will hold office until removed by the Governor-General. They may not be removed by the PH Legislature.

Section 18 of the Organic Act grants each House the power to punish its members for disorderly behavior and to expel **elective** members by a two-thirds vote.

- *Either House may thus punish an appointive member for disorderly behavior.* However, the law does NOT give both Houses the power to expel an **appointive** member for any reason.

Is the power to 'suspend' then included in the legislature's power to 'punish'?

- The constitutional power to "punish" for disorderly behavior does not include the power to "suspend". The Constitution has purposely withheld from the two Houses of the Legislature and the Governor-General alike the power to suspend an appointive member of the Legislature.
- Standard disciplinary measures like reprimands or fines vindicate the dignity of the body without stripping the district of representation. In contrast, suspension leaves the seat occupied while silencing the senator, leaving the district without a voice and with no legal mechanism to fill the vacancy. Consequently, a one-year suspension is equivalent to a qualified expulsion or removal.

Conceding therefore that the power of the Senate to punish its members for disorderly behavior does not authorize it to suspend an appointive member from the exercise of his office for one year, yet the writ prayed for cannot issue, for the all-conclusive reason that the Supreme Court does not possess the power of coercion to make the Philippine Senate take any particular action.

FINAL	We rule that neither the Philippine Legislature nor a branch thereof can be directly controlled
--------------	--

DECISION	in the exercise of their legislative powers by any judicial process. The court accordingly lacks jurisdiction to consider the petition and the demurrer must be sustained. As it is unlikely that the petition could be amended to state a cause of action, it must be dismissed without costs. Such is the judgment of the court. So ordered.
-----------------	--

SEPARATE OPINION/S

Johnson: Dissenting	TLDR: On the Legality of the resolution, he believes that the legislature exceeded their authority in effectively expelling (albeit temporarily but sabi daw it doesn't make a difference) a member. Such suspension removes petitioner from participation in the affairs of government and deprives him of his rights. On the matter of Jurisdiction of the court, the existence of the separation of powers is there, but the court may intervene and rule on the legality of POSITIVE ACTIONS made by the other branches, all the more so if they concern the rights of citizens. Petitioner was deprived of rights due to the actions of the legislature and as such the court should have taken jurisdiction. On the matter of remedies, the court cannot act as a representative of another department, and a declaration that the resolution is ultra vires would suffice. But for the majority to say that no remedy is in order, he disagrees, instead the remedy should be granted but modified. The petition and demurrer presented 3 important questions - Is the Resolution Legal or Illegal? - Does the Supreme Court have the jurisdiction to even consider its legality? - Can the Supreme Court grant the remedy prayed for? Legality of the Resolution - Organic Act (Jones Law) provides that: - Sec 17: "Senators and representatives appointed by the Governor-General shall hold office until removed by the Governor-General." - Sec 18: "each house may determine the rules of its proceedings, punish its members for disorderly behavior, and, with the concurrence of two-thirds, expel an elective member." - Under the foregoing, the legislature does not have the authority to expel members, the Governor-General does. Under sec 18, while there is no definition of punishment, isn't a punishment amounting to an expulsion exceeding their authority? - The respondents argue that this is a mere "suspension", but the resolution uses the term "deprive". - To deprive the petitioner of all his prerogatives, privileges, and emoluments is to deprive him of his right to be a member of the senate, his right to represent the district, his right to exercise his duties, and his right to receive his salary and benefits pertaining to his office. - If a value can be placed on his prerogatives, privileges, and emoluments and he was deprived of them, it follows that they have been REMOVED from him. Petitioner was REMOVED FROM PARTICIPATION IN THE LEGISLATIVE AFFAIRS OF THE GOVERNMENT - State v. Chamber of Commerce: Suspension of a member was a qualified expulsion for it disenfranchised the person suspended - Metsker v. Nelly: Suspension or deprivation for a definite or indefinite period is in effect a removal - Gregory v. New York: the power to remove or punish an officer does not include the power to suspend him temporarily - Commonwealth v. Barry: To punish an officer for "disorderly behaviour", such behaviour must be effects of his official duties, not behaviour which are effects of his character as a private individual. - Behaviour of petitioner was committed outside of the Senate chamber and did not interfere with the proceedings of the Senate. Petitioner did not know that at the
--------------------------------	---

	time of the alleged misbehaviour that he had been admitted as a member of the Senate. Jurisdiction to consider question - While the court recognises that the executive, legislative, and judicial departments are distinct and independent, that the court cannot enforce, order, coerce, or enjoin any acts of the other branches performed pursuant to law, the courts have jurisdiction to examine acts “actually” taken by the executive or legislative departments when such acts affect the rights, privileges, property, or lives of individuals. - The court has the grave responsibility and solemn duty to declare whether enactments of the legislature exceed constitutional limitations and are invalid. - While assuming jurisdiction to control the exercise of purely political rights would invade the domain of other departments, political rights are STILL A MATTER of judicial solicitude where through an appropriate judicial tribunal can give prompt and efficient protection to citizens - Burnham v. Morrissey: The HoR is not the final judge of its own powers and privileges in cases in which the rights and liberties of a subject are concerned; the legality of its action may be examined and determined by this court especially in determining if such proceedings are in conformity with the constitution and its laws. Checks and Balances - The three departments were created for the purposes of checks and balances, under the Organic Law of the Philippine islands, Executive power is conferred upon the Governor-General, Legislative power is vested in the Senate and the HoR, and Judicial power is vested in the courts. - The Judicial department is authorised to determine the validity of the acts of legislature under the constitution. (Emphasis on if they make a POSITIVE ACTION) - Petitioner has claimed and alleged that due to the acts of the Legislature, he has been deprived of rights granted to him. - The Organic Act provides that no law shall be enacted which deprives any person of life, liberty, or property without due process of law, or deny to any person therein the equal protection of the laws. - Where the acts of the executive or legislative departments violate the will of the people (the Organic Law), it is the sworn duty of the judiciary to interpret and to declare that the will of the people and the right of a citizen has been violated and transgressed - The Senate or the HoR is NOT the final judge of its own powers and privileges, especially in cases involving actions affecting the rights, privileges, emoluments, property, and liberties of a citizen. Such actions can have their legality examined in accordance with the constitution and laws - The court is JUSTIFIED, AUTHORISED, and UNDER OATH OF OFFICE, compelled to take jurisdiction of the petition to determine whether or not the petitioner has been illegally deprived of rights guaranteed to him. May the Supreme Court grant the remedy prayed for? - No, while the court can exercise its duty to proclaim statutes or resolutions illegal, it cannot act as a representative of a different department of the government. - He believes that a declaration that the resolution is ultra vires, illegal, and void would be sufficient to cause a revocation of such. - It was mistaken in the majority opinion to decide that they are without remedy, instead the remedy prayed for should be granted in modified form.
Ostrand:	TLDR: The court erred in thinking they have no jurisdiction when in fact they do. This is a matter of

Dissenting	the legislative performing an act outside of their jurisdiction. Such an act is NOT up to their discretion. Agrees with most except for the notion that just because the respondents are members of another department, the court has no power to restrain or prohibit them from carrying into effect an unconstitutional and void act of that department, committing an act entirely out of their department and in the process depriving a citizen of rights and privileges. The court's fundamental error was not distinguishing between acts within the province of a department and acts outside thereof; between the absence of power with the alleged improper exercise of legitimate powers. - Doctrine of non interference does not apply when a department goes beyond its legitimate sphere. - Courts should not be confused with dicta that, if taken alone and without reference, may imply that separation is so complete the judiciary cannot review any act of other branches. - None of the cases cited have any direct bearing on the present case as all of them concern legislature acting in their own domain. - In two of them, the question was an alleged abuse of constitutional powers resting IN the legislature - In the other three, they were actions to compel the performance of duties of the legislature and its officers that were not ministerial. On the matter of Governor v. Sutherland, Ostrand fails to see how it is determinative in the present case. - While the executive and legislative are entitled to a degree of discretion in carrying out their duties, it does not mean the court may not restrain the legislature from carrying into effect an unconstitutional resolution that transcends their limits. On the matter of Severino v. Governor General - The portion relied upon by the main opinion is just dicta, dicta that has to be understood that the entire case was talking about actions within the limits of his jurisdiction and not a hardline rule that the courts have no jurisdiction to interfere with the governor-general's official acts. The present case is not a political or nonjusticiable question, but rather to prevent the encroachment upon the domain of another department and a penalty that facilitates such violation. On the matter of relief - In the past, the courts have used writs of mandamus to compel performance of similar duties by officers of the legislature - Majority erroneously concluded that this action is a suit against the Senate, this would be true if the act complained was an act that was within the senate to begin with - This is not a case of unwarranted assertion of departmental superiority, but rather the maintaining of the superiority of the law to which all must yield to - Ostrand seems to believe that the writ prayed for can be granted because there has been no trouble in other jurisdictions where such writs have been issued. Rather it is the fault of the court in failing to instill a sense of trust to carry out orders without trouble.
------------	--

Osmeña, Jr. v. Pendatun

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Sergio Osmeña, Jr. v. Salipada K. Pendatun, Leon Z. Guinto, Jr., Vicente L. Peralta, Faustino Tobia, Lorenzo G. Teves, Jose J. Roy, Fausto Dugeno, Antonio Y. De Pio, Benjamin T. Ligot, Pedro G. Trono, Felipe Abrigo, Felipe S. Abeleda, Tecla San Andres Ziga, Angel B. Fernandez, and Eugenio S. Baltao, in their capacity as members of the Special Committee created by House Resolution No. 59*
- **Citation:** G.R. No. L-17144, October 28, 1960 (En Banc)
- **Ponente:** Bengzon, J.
- **Bench Composition:** Bengzon, J. (ponente); Paras, C.J., Padilla, Bautista Angelo, Gutierrez David, and Paredes, JJ., concurring; Reyes, J.B.L., J., dissenting (joined by Labrador, J.); Barrera, J., dissenting.
- **Syllabus Relevance & Topic:**
 1. **Legislative Department — Speech and Debate Clause / Parliamentary Immunity (Art. VI, Sec. 11 [formerly Art. VI, Sec. 15, 1935 Constitution]):** Scope and boundaries of parliamentary immunity; the constitutional phrase "*shall not be questioned in any other place*" guarantees protection against external suits/prosecutions, but does **not** exempt a legislator from internal disciplinary action by the House itself [2, 35, 227–228].
 2. **Legislative Department — Discipline of Members & Suspension Power (Art. VI, Sec. 16(3)):** Exclusive authority of each House to punish its members for disorderly behavior, including the penalty of suspension; the House as the sole judge of what constitutes "disorderly behavior" [1, 35, 228, 230–232].
 3. **Nature of Internal Parliamentary Rules (House Rule XVII, Sec. 7):** Malleable and procedural character of internal rules; the inherent power of a deliberative body to waive, modify, or suspend its own rules of procedure at pleasure [126, 229–230].
 4. **Judicial Self-Restraint & Political Question Doctrine:** Inability of the Supreme Court to exercise appellate jurisdiction or review internal disciplinary judgments of Congress [77, 230, 232–233].

CHRONOLOGICAL MATERIAL FACTS

1. **The Privilege Speech ("A Message to Garcia"):** On June 23, 1960, Congressman Sergio Osmeña, Jr. (representative for Cebu) delivered a privilege speech on the floor of the House of Representatives titled "A Message to Garcia".
2. **Bribery Imputations Against the President:** In his speech, Congressman Osmeña made grave allegations of corruption against President Carlos P. Garcia, specifically accusing the President of bribing or attempting to bribe Members of Congress with ₱5,000,000 to secure the passage/veto of certain legislation.
3. **Creation of the Special Investigating Committee (House Resolution No. 59):** On July 8, 1960, after intervening business had been taken up by the House, the House of Representatives adopted House Resolution No. 59 creating a 15-member Special Committee (headed by Representative Salipada K. Pendatun) to investigate the truth of Osmeña's charges [221–223]. HR No. 59 required Osmeña to substantiate his bribery charges with evidence and provided that if he failed to do so, he must show cause why the House should not punish him for serious disorderly behavior.
4. **Filing of Petition in the Supreme Court (July 14, 1960):** Congressman Osmeña filed an original petition for "*declaratory relief, certiorari, and prohibition with preliminary injunction*" before the Supreme Court against the 15 members of the Special Committee, seeking to annul HR No. 59 and enjoin the committee from proceeding against him [221–222].
5. **Refusal of Injunction & Committee Proceedings:** The Supreme Court required respondents to answer but **did not issue a preliminary injunction**. The Special Committee proceeded with its investigation, gave Osmeña

an opportunity to defend himself and present evidence (which he refused to do, invoking parliamentary immunity), and submitted its report to the House on July 18, 1960.

6.  **House Resolution No. 175 & 15-Month Suspension (July 18, 1960):** On July 18, 1960, prior to adjourning its session, the House approved House Resolution No. 175, adopting the committee's findings, declaring Congressman Osmeña guilty of **serious disorderly behavior**, and **suspending him from office as a Member of the House for fifteen (15) months**.

PROCEDURAL HISTORY

1.  **Original Action in the Supreme Court:** Filed as a petition for Declaratory Relief, *Certiorari*, and Prohibition under Rule 65/67.
2.  **Supreme Court Disposition (October 28, 1960):** The Supreme Court En Banc **dismissed** the petition.

PARTIES' MATERIAL ARGUMENTS

-  **Petitioner (Sergio Osmeña, Jr.):**
 1. **Absolute Parliamentary Immunity (Speech & Debate Clause):** Article VI, Section 15 of the 1935 Constitution ("*shall not be questioned in any other place*") grants complete, unassailable immunity for speeches delivered on the floor of Congress; he cannot be questioned or disciplined for words spoken in debate.
 2. **Speech Does Not Constitute Actionable Disorderly Behavior:** Exposing presidential corruption in a legislative privilege speech is a constitutional duty, not disorderly behavior.
 3. **Waiver Under Intervening Business Rule (Rule XVII, Sec. 7):** Under Rule XVII, Section 7 of the House Rules, if other business intervenes after objectionable words are spoken, the speaker shall not be held to answer nor be subject to censure. Because the House took up other business before adopting HR No. 59, it lost its right to punish him [223, 226, 229, 235–236].
 4. **Lack of Constitutional Power to Suspend:** Under *Alejandrino v. Quezon*, the Constitution permits expulsion (by a 2/3 vote) but does not authorize the House to suspend an elected member, as suspension deprives the district of representation [226, 231–232].
-  **Respondents (Rep. Salipada K. Pendatun, et al. / Special Committee):**
 1. **Scope of Parliamentary Privilege:** Parliamentary immunity protects legislators from civil or criminal actions before *external* courts/forums, but does not shield them from disciplinary action by the House itself for unparliamentary conduct [227–228].
 2. **House as Sole Judge of Disorderly Conduct:** The House possesses exclusive jurisdiction to determine what constitutes "disorderly behavior," which is an unreviewable political question.
 3. **Malleability of House Rules:** Parliamentary rules are purely procedural and may be modified, waived, or suspended by the House at any time. Adopting HR No. 59 operated as an implicit suspension or waiver of Rule XVII, Section 7 [229–230].
 4. **Plenary Power to Suspend:** The power to punish for disorderly behavior includes the lesser power of suspension, supported by U.S. congressional precedents. *Alejandrino* applied strictly to *appointive* legislators under the Jones Law [228, 231–232].

ISSUES

1.  **Issue 1 (Parliamentary Immunity):** Whether the constitutional Speech and Debate Clause ("shall not be questioned in any other place") exempts a Member of Congress from disciplinary action by the House itself for speeches delivered on the floor [223, 226–227].
 2.  **Issue 2 (Justiciability of Disorderly Behavior):** Whether the Supreme Court has jurisdiction to review or set aside the House's determination that petitioner's speech constituted "serious disorderly behavior".
 3.  **Issue 3 (Intervening Business & House Rules):** Whether the House lost its power to discipline petitioner because other business intervened before the adoption of House Resolution No. 59, in alleged violation of Rule XVII, Section 7 of the House Rules [223, 226, 229–230].
 4.  **Issue 4 (Power of Suspension):** Whether the House of Representatives has the constitutional power to suspend an elective member from office as a disciplinary penalty for disorderly behavior [226, 231–232].
-

HOLDINGS AND CONTROLLING REASONING

1. On Parliamentary Immunity: **NO. The Speech and Debate Clause DOES NOT protect a legislator from discipline by his own House [35, 227–228].**

-  **Ratio:** Article VI, Section 15 of the 1935 Constitution provides that for any speech or debate in Congress, members "*shall not be questioned in any other place.*"
-  **Textual & Historical Construction:** The phrase "*any other place*" means forums **outside** the Congressional Hall (such as courts, executive prosecutors, or administrative agencies). It guarantees complete freedom of speech against civil or criminal liability outside Congress.
-  **Internal House Discipline Preserved:** The privilege does **not** protect a member from responsibility before the legislative body itself whenever his words or conduct are considered disorderly or unbecoming by his colleagues [227–228]. U.S. Congressional precedents (e.g., censure of Congressman Fernando Wood) uniformly confirm that legislative bodies retain inherent power to discipline their members for unparliamentary language used in debate.

2. On Justiciability of "Disorderly Behavior": **NO. The House is the SOLE JUDGE of what constitutes disorderly behavior; Courts CANNOT interfere.**

-  **Ratio:** The Constitution explicitly commits the power to punish members for disorderly behavior to each House of Congress (Art. VI, Sec. 16(3)).
-  **Political Question & Separation of Powers:** The House is the exclusive judge of what constitutes disorderly behavior because the determination depends on factual circumstances of which the House knows best.
-  **No Appellate Jurisdiction:** If the Supreme Court were to determine whether Osmeña's accusations of presidential bribery constituted "disorderly behavior," the Court would be assuming an appellate jurisdiction over Congress that the Constitution never conferred. The separation of powers demands a prudent judicial refusal to interfere (*Angara v. Electoral Commission*).

3. On Intervening Business & House Rules: **NO. The House DID NOT lose its power; internal rules are MALLEABLE and subject to WAIVER [126, 229–230].**

-  **Ratio:** Internal parliamentary rules are merely procedural devices adopted for the orderly conduct of business [229–230].
-  **Power to Waive Rules:** It is a settled rule of parliamentary law that "*the rules adopted by deliberative bodies are subject to revocation, modification or waiver at the pleasure of the body adopting them.*"
-  **Non-Justiciability of Parliamentary Usage:** Courts have no concern with the observance or non-observance of purely procedural parliamentary rules. The adoption of House Resolution No. 59 by a vote of the House operated as a valid suspension or waiver of Rule XVII, Section 7 [229–230].

4. On the Constitutional Power to Suspend: YES. The House POSSESSES the power to suspend an elective member [35, 231–232].

-  **Distinguishing *Alejandrino v. Quezon*:**
 - In *Alejandrino v. Quezon* (1924), the Court stated that the Senate could not suspend an *appointive* senator under the Jones Law because suspension for 12 months was equivalent to removal, and removal belonged exclusively to the Governor-General [231–232].
 - The remark in *Alejandrino* regarding district representation was *obiter dictum* specific to appointive members under the restricted powers of the Jones Law.
 -  **Plenary Disciplinary Power under the Constitution:**
 - Unlike under the Jones Law, the legislative power of the Philippine Congress under the Constitution is **plenary**. Any power deemed legislative by tradition—including suspension, fine, imprisonment, or censure—is inherently possessed by Congress unless explicitly restricted by the Constitution.
 - In 1949, the Philippine Senate suspended a senator for one year (*Avelino* precedent). The power to punish for disorderly behavior encompasses the power to suspend an elective member [231–232].
-

DOCTRINE, TESTS, AND LEGAL STANDARDS

1.  **Dual Aspect of Parliamentary Immunity (*Osmeña Rule*):**
 - **External Protection:** Protects legislators from being questioned, sued, or prosecuted in courts or administrative forums outside Congress for speeches delivered in line of duty.
 - **Internal Subjection:** Does **not** protect a legislator from internal disciplinary proceedings by his own House for unparliamentary, offensive, or disorderly speech [227–228].
 2.  **Sole Judge of Disorderly Behavior:** The determination of what acts or words constitute "disorderly behavior" under Article VI, Section 16(3) is an unreviewable political question committed exclusively to the discretion and judgment of each House.
 3.  **Malleability of Parliamentary Rules:** Rules of procedure adopted by Congress are procedural servants, not substantive restrictions. Congress may modify, disregard, or waive its own internal rules at pleasure, and courts will not inquire into alleged non-compliance with parliamentary usage.
 4.  **Plenary Power of Suspension:** Under its plenary legislative authority to punish members for disorderly behavior, Congress possesses the inherent power to suspend an elective member [231–232].
-

DISPOSITION

-  **Ruling:** The petition for declaratory relief, *certiorari*, and prohibition is **DISMISSED**.
-

SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLE LINES

1. Dissenting Opinion of Associate Justice J.B.L. Reyes (joined by Labrador, J.) [234–238]

-  **Vested Substantive Immunity:** Argued that under Rule XVII, Section 7, Congressman Osmeña acquired a **vested substantive right of immunity from censure** the moment the House took up intervening business after his speech [235–237].
-  **Ex Post Facto Violation:** The House cannot retroactively amend or waive its rules to divest a member of an immunity already acquired. Retroactively subjecting a member to suspension after his liability was extinguished under existing rules violates due process and the spirit of the *ex post facto* clause [237–238].

2. Dissenting Opinion of Associate Justice Anselmo Labrador [239–242]

- **Government of Laws in Congress:** Maintained that even Congress must abide by its own promulgated rules while they remain in force [239–241]. Allowing the House to ignore its own time-limit rule on discipline sets a dangerous precedent of arbitrary power [240–241].

Source-Verified Quotable Lines

-  **On the True Scope of Parliamentary Privilege (Bengzon, J.):**

"It guarantees the legislator complete freedom of expression without fear of being made responsible in criminal or civil actions before the courts or any other forum outside of the Congressional Hall. But it does not protect him from responsibility before the legislative body itself whenever his words and conduct are considered by the latter disorderly or unbecoming a member thereof."

-  **On the House as Sole Judge of Disorderly Behavior (Bengzon, J.):**

"We believe, however, that the House is the judge of what constitutes disorderly behaviour, not only because the Constitution has conferred jurisdiction upon it, but also because the matter depends mainly on factual circumstances of which the House knows best... The theory of separation of powers fastidiously observed by this Court, demands in such situation a prudent refusal to interfere."

-  **On the Malleability of Internal Parliamentary Rules (Bengzon, J.):**

"Parliamentary rules are merely procedural, and with their observance, the courts have no concern. They may be waived or disregarded by the legislative body.' Consequently, 'mere failure to conform to parliamentary usage will not invalidate the action (taken by a deliberative body) when the requisite number of members have agreed to a particular measure.'"

● RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Osmeña, Jr. v. Pendatun* (1960), Congressman Sergio Osmeña, Jr. delivered a privilege speech titled 'A Message to Garcia' accusing President Carlos P. Garcia of bribery. The House passed House Resolution No. 59 creating a Special Committee (headed by Rep. Pendatun) to investigate the charges and requiring Osmeña to produce evidence or show cause why he should not be punished. Osmeña filed a petition in the Supreme Court for certiorari and prohibition to annul HR No. 59, arguing that: (1) he had absolute parliamentary immunity under the Speech and Debate Clause; (2) the House lost jurisdiction under House Rule XVII, Sec. 7 because other business intervened before HR No. 59 was passed; and (3) the House has no power to suspend an elected member. Pending the petition, the House approved HR No. 175, suspending Osmeña for 15 months for serious disorderly behavior.

The Supreme Court En Banc, through Justice Bengzon, DISMISSED the petition. The Court held: (1) The Speech and Debate Clause ('shall not be questioned in any other place') protects legislators from external suits, but NOT from internal discipline by the House itself; (2) The House is the sole judge of what constitutes 'disorderly behavior,' which is an unreviewable political question; (3) Internal parliamentary rules

are procedural and malleable, meaning the House can waive or suspend its own rules at pleasure; and (4) The House possesses plenary constitutional power to suspend an elective member for disorderly conduct, distinguishing *Alejandrino* which involved an appointive senator under the Jones Law."* [35, 77, 79, 126, 221, 225–232]

3 Likely Professor Follow-Up Questions & Concise Answers

1.  **Q: Does the Speech and Debate Clause ("shall not be questioned in any other place") prevent Congress from suspending a Senator or Congressman for a speech made on the floor?**
 -  **A: No.** Under *Osmeña, Jr. v. Pendatun*, the phrase "any other place" refers strictly to forums **outside** Congress (e.g., courts or executive agencies). While it grants absolute immunity from external civil or criminal prosecution, it does **not** protect a legislator from internal disciplinary action by his own House under Article VI, Section 16(3) for unparliamentary or disorderly conduct [227–228].
2.  **Q: How did the Supreme Court resolve the argument that the House violated its own Rule XVII, Section 7 by disciplining Osmeña after intervening business had taken place?**
 -  **A:** The Court held that internal parliamentary rules are purely procedural and subject to revocation, modification, or waiver at the pleasure of the legislative body. Courts have no concern with compliance with internal parliamentary usage. The passage of House Resolution No. 59 by the House operated as an effective waiver or suspension of Rule XVII, Section 7 [229–230].
3.  **Q: How did the Court reconcile the 15-month suspension of Congressman Osmeña with the earlier case of *Alejandrino v. Quezon*, which stated that Congress cannot suspend a member?**
 -  **A:** The Court distinguished *Alejandrino* as an *obiter dictum* applicable strictly to *appointive* legislators under the restricted powers of the Jones Law, where removal authority belonged solely to the Governor-General [231–232]. Under the 1935 Constitution, Congress possesses plenary legislative power, including the inherent power to punish elective members through suspension. (Note: Under Art. VI, Sec. 16(3) of the present 1987 Constitution, a penalty of suspension is expressly authorized but capped at a maximum of 60 days).

Changed-Material-Fact Hypothetical

-  **Scenario:** Suppose under the 1987 Constitution, a Congressman delivers a privilege speech accusing the President of treason. Three weeks later, the House passes a resolution suspending the Congressman for **six (6) months**. The Congressman files a petition for *certiorari* in the Supreme Court under *Osmeña, Jr. v. Pendatun*, arguing that the suspension exceeds the constitutional limit. Will the Supreme Court grant relief?
-  **Answer: Yes, the Supreme Court WILL GRANT relief and reduce/nullify the suspension.** While *Osmeña* affirmed the inherent power of Congress to suspend a member and held that internal rules are non-justiciable [229–232], the **1987 Constitution explicitly amended** Article VI, Section 16(3) by adding a specific, mandatory constitutional ceiling: "A penalty of suspension, when imposed, shall not exceed sixty days." Because a 6-month suspension directly breaches an **explicit constitutional limitation** (unlike a mere internal House rule), the Court under expanded judicial review (Art. VIII, Sec. 1) can strike down the excess suspension as a grave abuse of discretion amounting to lack or excess of jurisdiction.

One-Sentence Doctrine Anchor

◆ The Speech and Debate Clause protects legislators from external prosecution but not from internal House discipline, and the House is the sole judge of disorderly behavior with full power to waive its procedural rules and suspend erring members. [126, 227–230, 232]

Osmeña v. Pendatun (1960)

Topic Subtopic	Congress - Election - Discipline of Members	GR No. & Ponente	[G.R. No. L-17144. October 28, 1960.] First Division BENGZON
Petitioner/s	SERGIO OSMEÑA, JR.	Respondent/s	SALIPADA K. PENDATUN et al
Doctrine	The Court held that the Congress has the exclusive power to determine what constitutes disorderly behavior and the disciplinary measures to be taken up against its members; The courts have no jurisdiction to interfere in this regard due to separation of powers.		

FACTS

- June 23, 1960 - Sergio Osmeña, Jr. made a speech in the HOR Chamber directed to President Carlos P. Garcia, stating that he had been hearing ugly reports that free things that were offered by the government before are now for sale at premium prices; even pardons are for sale, and that regardless of the gravity or seriousness of a criminal case, the culprit can always be bailed out forever from jail as long as he can come across with a handsome dole. [basically that the President entertains bribery]
- July 8, 1960 - Respondents created **House Resolution No. 59**, which indicated the following:
 - “the charges of the gentleman from the Second District of Cebu, if made maliciously or recklessly and without basis in truth and in fact, would constitute a serious assault upon the dignity and prestige of the Office of the President”
 - Create a special committee to investigate Osmena’s claims; and summon Osmena to appear before said Committee
 - Authorize the Committee to issue subpoena and/or subpoena duces tecum to require the attendance of witnesses and/or the production of pertinent papers before it
 - If Osmeña fails to substantiate his charges against the President, he must be required to show cause why he should not be punished by the House.
- July 14, 1960 - Congressman Sergio Osmeña, Jr., submitted to this Court a verified petition for "declaratory relief, certiorari and prohibition with preliminary injunction" against Congressman Salipada K. Pendatun and 14 other congressmen in their capacity as members of the Special Committee created by House Resolution No. 59, on the grounds of parliamentary immunity.
- The Court decided to hear the case, and required the respondents to answer, w/o issuing any preliminary injunction.
- Due to the imminent adjournment of the legislative session, the Special Committee continued with its task, and gave Osmena a chance to defend himself. On July 18, 1960, the Committee submitted its report finding Osmena guilty of serious disorderly behavior. It issued **House Resolution No. 175 - declaring him guilty as recommended, and suspending him from office for 15 months.**
- July 19, 1960 - Respondents filed their answer, challenged the jurisdiction of this Court to entertain the petition, defended the power of Congress to discipline its members with suspension, upheld House Resolution No. 175 and then invited attention to the fact that Congress having ended its session on July 18, 1960, the Committee — whose members are the sole respondents — had thereby ceased to exist.

ISSUE 1

Main – Substantive	W/N Osmena’s speech is protected by parliamentary immunity, thus not punishable by the HOR?	NO
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
(1) the Constitution gave him complete parliamentary immunity, and so, for words spoken in the House, he ought not to be questioned; (2) that his speech constituted no disorderly behaviour for which he could be punished; and		Defended the power of the Congress to discipline its members with suspension.

RULING and RATIO DECIDENDI:

Section 15, Article VI of our Constitution provides that "for any speech or debate" in Congress, the Senators or Members of the House of Representatives "shall not be questioned **in any other place.**"

- The above provision was taken from the US Constitution. In the US, the provision has always been understood to mean that although exempt from prosecution or civil actions for their words uttered in Congress, the members of Congress may, nevertheless, be questioned in Congress itself. Observe that "they shall not be questioned in any other place" than Congress.
- Furthermore, the Rules of the House which petitioner himself has invoked (Rule XVII, sec. 7), recognize the House's power to hold a member responsible "for words spoken in debate."
- **Parliamentary Immunity** purpose - "is to enable and encourage a representative of the public to discharge his public trust with firmness and success" for "it is indispensably necessary that he should enjoy the fullest liberty of speech, and that he should be protected from the resentment of every one, however powerful, to whom the exercise of that liberty may occasion offense."
- The Court said that such immunity guarantees the legislator complete freedom of expression without fear of being made responsible in criminal or civil actions before the courts or any other forum outside of the Congressional Hall. But it does **not** protect him from responsibility before the legislative body itself whenever his words and conduct are considered by the latter disorderly or unbecoming a member thereof.

ISSUE 2

Side – Substantive	W/N the Congress can discipline its members?	YES
RULING and RATIO DECIDENDI:		
- For unparliamentary conduct, members of Parliament or of Congress have been or could be censured, committed to prison, suspended, even expelled by the votes of their colleagues. Checking other countries' precedents attests the practice and the traditional power of legislative assemblies to take disciplinary action against its members, including imprisonment, suspension or expulsion. - An Example: the Philippine Senate, in April 1949, suspended a senator for one year. - US Examples: Congressman Fernando Wood (NY) was censured for his language on the House floor; 2 congressmen were censured for using insulting words during debate. A Congress member was summoned to testify on a statement made by him in debate, but invoked his parliamentary privilege, but the Committee rejected his plea. - <i>The Rules of Philippine House of Representatives provide that the parliamentary practices of the Congress of the United States shall apply in a supplementary manner to its proceedings</i>		

ISSUE 3

Side – Substantive	W/N HOR can still pursue its proceedings against Osmena since it had taken up other businesses before approving House Res. No 59?	YES
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
• Supposing he could be questioned and disciplined therefor, the House had lost the power to do so because it had taken up other business before approving House Resolution No. 59. • Rule XVII, sec. 7 of the Rules of the House provides that if other business has intervened after the Member had uttered obnoxious words in debate, he shall not be held to answer therefor nor be subject to censure by the House		Resolution No. 59 was unanimously approved by the House, that such approval amounted to a suspension of the House Rules, which according to standard parliamentary practice may be done by unanimous consent.
RULING and RATIO DECIDENDI:		
• While the House may suspend the operation of its Rules, it may not, however, affect past acts or renew its		

right to take action which had already lapsed.

- The situation might thus be compared to laws extending the period of limitation of actions and making them applicable to actions that had lapsed.
- At any rate, courts have declared that "the rules adopted by deliberative bodies are subject to revocation modification or waiver at the pleasure of the body adopting them." And it has been said that "Parliamentary rules are *merely procedural*, and with their observance, the courts have no concern. **They may be waived or disregarded by the legislative body.**" Consequently, "mere failure to conform to parliamentary usage will not invalidate the action (taken by a deliberative body) when the requisite number of members have agreed to a particular measure."
- US Example: Congressman Stanbery (Ohio) was censured and the House approved the resolution, despite the argument that other business had intervened after the objectionable remarks.

ISSUE 4

Main Substantive –	W/N Osmena's speech attacking the President constitutes disorderly conduct, which subjects him to be disciplined?	UP TO HOR
--------------------	---	-----------

RULING and RATIO DECIDENDI:

- The Court believes that **the House is the judge of what constitutes disorderly behaviour**, not only because the Constitution has conferred jurisdiction upon it, but also because the matter depends mainly on factual circumstances of which the House knows best but which can not be depicted in black and white for presentation to, and adjudication by the Courts.
- For one thing, if this Court assumed the power to determine whether Osmeña's conduct constituted disorderly behaviour, it would thereby have assumed appellate jurisdiction, which the Constitution never intended to confer upon a coordinate branch of the Government.
- The theory of **separation of powers** fastidiously observed by this Court, demands in such a situation a prudent refusal to interfere. Each department, it has been said, has exclusive cognizance of matters within its jurisdiction and is supreme within its own sphere.

US Precedent in *Clifford v French*

- "SEC. 200. Judicial Interference with Legislature. — The principle is well established that the courts will not assume a jurisdiction in any case which will amount to an interference by the judicial department with the legislature since each department is equally independent within the powers conferred upon it by the Constitution. . . ."
- "The general rule has been applied in other cases to cause the courts to refuse to intervene in what are exclusively legislative functions. Thus, where the state Senate is given the power to expel a member, **the courts will not review its action or revise even a most arbitrary or unfair decision.**" (11 Am. Jur., Const. Law, sec. 200, p. 902.)
- There is no provision authorizing courts to control, direct, supervise, or forbid the exercise by either house of the power to expel a member. These powers are functions of the legislative department and therefore, in the exercise of the power thus committed to it, the senate is supreme. An attempt by this court to direct or control the legislature, or either house thereof, in the exercise of the power, would be an attempt to exercise legislative functions, which it is expressly forbidden to do.
- **In view of the above and in matters regarding disciplinary action (including expulsion) the Court held that the House has exclusive power; the courts have no jurisdiction to interfere**

Why this Case is Different from *Alejandrino's case*

- Alejandrino was suspended from office for 12 months because he had assaulted another member of that Body for certain phrases the latter had uttered in the course of a debate. The Senator applied to this Court for reinstatement, challenging the validity of the resolution. Although this Court held that in view of the separation of powers, it had no jurisdiction to compel the Senate to reinstate petitioner, it nevertheless went on to say the Senate had no power to adopt the resolution because suspension for 12 months amounted to

removal

- Jones Law provided that "each house may punish its members for disorderly behaviour, and, with the concurrence of two-thirds votes, expel an **elective** member (sec. 18)." → Alejandrino is an **appointive** member, and the Jones Law gave the Senate no power to remove an appointive member
- In Alejandrino case - **obiter dictum** - "suspension deprives the electoral district of representation without that district being afforded any means by which to fill that vacancy." – **but** this is only for appointive senator
- It must be observed, however, that at that time the Legislature had only those powers which were granted to it by the Jones Law; whereas **now** the *Congress has the full legislative powers and prerogatives* of a sovereign nation, except as restricted by the Constitution.
- In other words, in the Alejandrino case, the Court reached the conclusion that the Jones Law did not give the Senate the power it then exercised — the power of suspension for one year. Whereas now, as we find, ***the Congress has the inherent legislative prerogative of suspension which the Constitution did not impair***

ISSUE 5

Side – Procedural	W/N the case has been rendered moot since the Special Committee has ceased to exist?	YES, but Court wants to decide
-------------------	--	--------------------------------

RULING and RATIO DECIDENDI:

- The petition intended to prevent the Special Committee from acting in pursuance of House Resolution No. 59. Because no preliminary injunction had been issued, the Committee performed its task, reported to the House, and the latter approved the suspension order. The House has closed its session, and the Committee has ceased to exist as such.
- It would seem, therefore, the case should be dismissed for having become moot or academic. Of course, there is nothing to prevent petitioner from filing new pleadings to include all members of the House as respondents, ask for reinstatement and thereby to present a justiciable cause. The most probable outcome of such a reformed suit, however, will be a pronouncement of lack of jurisdiction.
- ***At any rate, having perceived suitable solutions to the important questions of political law, the Court thought it proper to express at this time its conclusions on such issues as were deemed relevant and decisive.***

FINAL DECISION	Accordingly, the petition has to be, and is hereby dismissed. So ordered.
----------------	---

SEPARATE OPINION/S

Guiding Provision for Dissent: "...but the Member who uttered them shall not be held to answer, nor be subject to the censure of the House therefor, if further debate or other business has intervened." (Rule XVII, Sec. 7, Rules, House of Representatives.)

REYES, J.B.L, J, <i>dissenting</i>	- Concur that the petition should not be for declaratory judgment or certiorari since this Court has no original jurisdiction over declaratory judgment proceedings, and certiorari is available only against bodies exercising judicial or quasi-judicial powers. - However, Congressman Osmeña was entitled to invoke the Court's jurisdiction on his petition for a writ of prohibition against the committee, in so far as House Resolution No. 59 (and its sequel, Resolution No. 175) constituted an unlawful attempt to divest him of an immunity from censure or punishment, an immunity vested under the very Rules of the House of Representatives. Rule XVII, sec. 7 of the Rules of the House (intervening business - Issue 3) MAIN POINT OF DISSENT - Osmena had ceased to be answerable to the words uttered by him in his privilege speech because House Resolution No. 59 was passed 15 days after. Thus, he was no longer subject to censure or disciplinary action by the House. → violation the constitutional inhibition against ex post facto legislation, and Resolutions Nos. 59 and 175 are legally obnoxious and invalid on that score - The right of the House to amend its Rules does not carry with it the right to retroactively divest the petitioner of an immunity he had already acquired. The Bill of Rights is against it. - Whatever liability Congressman Sergio Osmeña, Jr. then incurred was extinguished when the House thereafter considered other business; and this extinction is a substantive right that can not be subsequently torn away to his disadvantage. - In so far as the position of petitioner Osmeña is concerned, the essential point is that he is being subjected to a punishment to which he was formerly not amenable. And while he was only meted out a suspension of privileges, that suspension is as much a penalty as imprisonment or a fine, which the House could have inflicted upon him had it been so minded. Such punitive action is violative of the spirit, if not of the letter, of the constitutional provision against ex post facto legislation. - The various US precedents cited by the Court are not truly applicable in this case. - While it is clear that the parliamentary immunity established in Article VI, section 15 of our Constitution does not bar the members being questioned and disciplined by Congress itself for remarks made on the floor, that disciplinary power does not, as I have noted, include the right to retroactively amend the rules so as to divest a member of an immunity already gained. - Finally, that this Court possesses no power to direct or compel the Legislature to act in any specified manner, should not deter it from recognizing and declaring the unconstitutionality and nullity of the questioned resolutions and of all action that has been taken up in pursuance thereof. Although the respondent committee has been disbanded after the case was filed, the basic issues remain so important as to require adjudication by this Court
LABRADOR, J, <i>dissenting</i>	I fully concur in the above dissent of Mr. Justice J. B. L. Reyes, and I venture to add: - Even the Congress in the exercise of the power conferred upon it to discipline its members, must follow the rules and regulations that it had itself promulgated for its guidance and for that of its members. Thus, HOR should have followed Rule XVII, Sec. 7, Rules, House of Representatives. I hold that pursuant to its own Rules the House may no longer punish Congressman Osmeña for the speech delivered fifteen days before. - The fact that no action was promptly taken to punish Congressman Osmeña immediately after its delivery, except to have some parts of the speech deleted, shows that the members of the House did not then consider Osmeña's speech a disorderly conduct. → the time to make Osmena answerable had already lapsed

- The majority opinion holds that the House can amend its rules any time. BUT it cannot do so to the extent of punishing an offense after the time to punish had elapsed. We do not think that it is merely a rule of procedure; we believe it actually is a limitation of the time in which the House may take punitive action against an offending member; it is a limitation (in reference to time) on the liability to punishment.
- It is true that our Government is based on the principle of separation of powers between the three branches thereof. I also agree to the corollary proposition that this Court should not interfere with the legislature in the manner it performs its functions; but I also hold that the Court cannot abandon its duty to pronounce what the law is when any of its (the House) members, or any humble citizen, invokes the law.
- I believe it is our bounden duty to state what the rule being invoked by him is, to point out the fact that the rule is being violated in meting out punishment for his speech; we should not shirk our responsibility to declare his rights under the rule simply on the broad excuse of separation of powers
- Let it be clearly understood that the writer of this dissent personally believes that vituperous attacks against the Chief Executive, or any official or citizen for that matter, should be condemned. But where the Rules, promulgated by the House itself, fix the period during which punishment may be meted out, said Rules should be enforced regardless of who may be prejudiced thereby. Only in that way may the supremacy of the law be maintained.

DE VENECIA V. SANDIGANBAYAN (2002)

Topic Subtopic	Congress - Organizations and Sessions - Discipline of Members	GR No. & Ponente	G.R. No. 130240
Petitioner/s	Jose De Venecia Jr., et al.	Respondent/s	Sandiganbayan (1st Div)
Doctrine	The suspension provided for in the Anti-Graft law is mandatory and is of different nature and purpose. It is imposed by the court, not as a penalty, but as a precautionary measure resorted to upon the filing of a valid Information		

FACTS

Antecedent Facts:

- 12 March 1993: An Information was raised to Sandiganbayan against then Cong. Ceferino S. Paredes, Jr. for violating **Sec. 3 (e) of RA 3019 (The Anti-Graft and Corrupt Practices Act, as amended)**
- Prosecution filed a "Motion to Suspend the Accused *Pendente Lite*" after the accused pleaded not guilty
- In its Resolution dated June 6, 1997, the Sandiganbayan granted the motion and ordered the Speaker of the House (Jose De Venecia) to suspend the accused but the speaker did not comply
- Sandiganbayan ordered the petitioner to appear before them to show why he should not be held in contempt
- Petitioner filed for a Motion for Reconsideration invoking principle of separation of powers, claiming that he can only act as dictated by the House as a body
- Sandiganbayan issued a Resolution declaring de Venecia in contempt of court.

The Speaker petitioned the SC to annul the orders of the Sandiganbayan.

ISSUE 1

Main – Substantive	W/N the Sandiganbayan may cite in contempt the Speaker of the House for not following the suspension order the former issued against a member of the House?	YES
--------------------	---	-----

PETITIONER/S ARGUMENTS:

Based on the principle of separation of powers, he should only have to follow what is dictated by the House.

RULING and RATIO DECIDENDI:

- The issue was previously settled in ***Paredes Jr. v. Sandiganbayan*** - We ruled that the suspension provided for in the Anti-Graft law is **mandatory** and is of different nature and purpose. It is imposed by the court, not as a penalty, but as a **precautionary measure** resorted to upon the filing of a valid Information. Its purpose is to prevent the accused public officer from frustrating his prosecution by influencing witnesses or tampering with documentary evidence and from committing further acts of malfeasance while in office. It is thus an incident to the criminal proceedings before the court.
 - On the other hand, the suspension or expulsion contemplated in the Constitution is a House-imposed sanction against its members. It is, therefore, a penalty for disorderly behavior to enforce discipline, maintain order in its proceedings, or vindicate its honor and integrity.
- In ***Defensor Santiago v. Sandiganbayan*** - separation of powers does not exclude Congress members from following the mandate of RA 3019. – The order of suspension prescribed by RA3019 is distinct from the power of Congress to discipline its own ranks under the Constitution.
 - The doctrine of separation of powers by itself may not be deemed to have effectively excluded members of Congress from RA3019 nor from its sanctions.

FINAL DECISION	We note that the term of then Congressman Ceferino Paredes, Jr. expired on June 30, 1988. This rendered moot and academic the instant case.
----------------	---

	WHEREFORE, for being moot, this case is deemed CLOSED and TERMINATED.
--	---

Pobre v. Defensor-Santiago

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Antero J. Pobre v. Sen. Miriam Defensor-Santiago*
 - **Citation:** A.C. No. 6398, July 8, 2009 (En Banc)
 - **Ponente:** Per Curiam
 - **Bench Composition:** Corona, Carpio, Chico-Nazario, Velasco, Jr., Nachura, Peralta, and Leonardo-de Castro, JJ., concurring; Carpio-Morales, J., on official leave.
 - **Syllabus Relevance & Topic:**
 1. **Legislative Department — Speech and Debate Clause / Parliamentary Immunity (Art. VI, Sec. 11):** Absolute privilege protecting Members of Congress from criminal, civil, or administrative/disciplinary liability in any forum outside Congress for speeches or debates delivered on the floor or in committee.
 2. **Dual Aspect of Parliamentary Immunity (*Osmeña, Jr. v. Pendatun Doctrine*):** Non-accountability before external forums (such as courts or the Supreme Court in disbarment proceedings) versus exclusive disciplinary authority vested in the legislative assembly itself under Article VI, Section 16(3).
 3. **Ethics and Professional Responsibility of Lawyer-Legislators:** Interplay between a lawyer's duty of respect to the courts under the Code of Professional Responsibility (CPR) and the constitutional privilege of parliamentary immunity.
-

CHRONOLOGICAL MATERIAL FACTS

1. **JBC Announcement and Senator Santiago's Reaction:** The Judicial and Bar Council (JBC) issued public invitations for nominations to the soon-to-be vacated position of Chief Justice of the Philippines. Senator/Atty. Miriam Defensor-Santiago expressed interest in applying, but the JBC subsequently informed applicants that only sitting Associate Justices of the Supreme Court would be considered for nomination.
 2. **Delivery of the Privilege Speech:** Feeling aggrieved and believing the JBC acted arbitrarily without prior advisory, Senator Santiago delivered a privilege speech on the floor of the Senate.
 3. **The Offensive Statements:** In the course of her floor speech, Senator Santiago made sharp, derogatory remarks directed at the Supreme Court and then-Chief Justice Artemio V. Panganiban, including:
 - Expressing that she wanted "*to spit on the face of Chief Justice Artemio Panganiban and his cohorts in the Supreme Court*"; and
 - Characterizing the highest tribunal as a "*Supreme Court of idiots*".
 4. **Filing of Disbarment Complaint:** Complainant Antero J. Pobre filed a letter-complaint before the Supreme Court seeking disbarment or disciplinary sanctions against Senator/Atty. Santiago. Pobre asserted that her statements reflected utter disrespect toward Chief Justice Panganiban and the Court, constituted direct contempt, and violated a lawyer's fundamental ethical duty to maintain respect for courts and judicial officers.
 5. **Respondent's Comment and Invocation of Privilege:** In her Comment dated April 25, 2007, Senator Santiago acknowledged delivering the speech. She explained that her remarks were uttered in the discharge of her legislative duties to expose anomalies in governance with a view to remedial legislation regarding the JBC's nomination procedures. She principally contended that her speech was covered by absolute parliamentary immunity under Article VI, Section 11 of the 1987 Constitution, rendering her immune from disciplinary proceedings.
-

● PROCEDURAL HISTORY

1. **Original Administrative Proceeding:** Complainant Antero J. Pobre filed a letter-complaint for disbarment/disciplinary action directly before the Supreme Court (docketed as A.C. No. 6398).
 2. **Comment Filed:** Senator Santiago filed her Comment invoking constitutional parliamentary immunity.
 3. **Supreme Court En Banc Decision (July 8, 2009):** The Supreme Court En Banc **DISMISSED** the disbarment complaint pursuant to Article VI, Section 11 of the Constitution.
-

● PARTIES' MATERIAL ARGUMENTS

- **Complainant (Antero J. Pobre):**
 1. **Violation of CPR & Duty of Respect:** A lawyer is bound under the Code of Professional Responsibility to observe and maintain the respect due to courts of justice and judicial officers.
 2. **Gross Misconduct:** Demeaning the Supreme Court as a "Supreme Court of idiots" and threatening physical insult against the Chief Justice constitutes gross misconduct and direct contempt that warrants disbarment or suspension from the practice of law.
 - **Respondent (Sen./Atty. Miriam Defensor-Santiago):**
 1. **Absolute Constitutional Immunity:** Under Article VI, Section 11 of the Constitution, no Member of Congress shall be questioned nor held liable in any other place for any speech or debate in Congress or any committee thereof.
 2. **Legislative Purpose:** The privilege speech was delivered on the Senate floor to expose irregularities in the JBC nomination process in aid of future remedial legislation.
 3. **Non-Accountability Outside Congress:** The Supreme Court lacks jurisdiction to impose disciplinary sanctions for utterances made on the Senate floor, as disciplinary power over floor speeches belongs exclusively to the Senate itself.
-

● ISSUES

1. **Substantive Issue:** Whether Senator/Atty. Miriam Defensor-Santiago can be subjected to disbarment or disciplinary action by the Supreme Court for offensive, disrespectful, and intemperate statements uttered during a privilege speech delivered on the floor of the Senate.
-

🌸 HOLDINGS AND CONTROLLING REASONING

1. On Disciplinary Action for Senate Floor Speeches: NO. Senator Santiago CANNOT be subjected to disbarment or disciplinary action by the Court; the complaint MUST BE DISMISSED under Article VI, Section 11.

- **A. Textual Command of Article VI, Section 11:**
 - Article VI, Section 11 of the 1987 Constitution explicitly commands: "*No member shall be questioned nor be held liable in any other place for any speech or debate in the Congress or in any committee thereof*".

- The phrase "*any other place*" encompasses all forums outside the legislative halls—including criminal courts, civil actions, administrative agencies, and disbarment proceedings before the Supreme Court.
- **B. Reaffirmation of *Osmeña, Jr. v. Pendatun*:**
 - Citing *Osmeña, Jr. v. Pendatun* (109 Phil. 863), the Court reiterated that the Speech and Debate Clause protects legislators from being made responsible in criminal, civil, or administrative actions before courts or outside forums.
 - The clause guarantees parliamentary non-accountability not for the personal benefit of individual legislators, but to enable the people's representatives to perform their public trust firmness and freedom, unawed by fear of executive or judicial prosecution.
 - Claims of unworthy purpose, falsity, or malice do not destroy the constitutional privilege (*Tenney v. Brandhove*).
- **C. Exclusive Forum for Discipline:**
 - The power to punish or correct abuses committed under the guise of parliamentary immunity belongs exclusively to the **legislative body itself** (the Senate, through its Ethics Committee under Art. VI, Sec. 16(3)) and to the **voters**—NOT to the judiciary.
 - The Court cannot exercise its administrative power over lawyers under Article VIII, Section 5(5) when doing so directly collides with the explicit constitutional immunity granted to legislators under Article VI, Section 11.

2. On the Court's Rebuking of the Respondent's Conduct: Senator Santiago's language was **INTEMPERATE, IMPROPER, AND OUTSIDE DECENT PROFESSIONAL CONDUCT.**

- **A. Crossing the Limits of Decency:**
 - While constitutionally constrained from imposing legal sanctions, the Supreme Court severely admonished Senator Santiago for her intemperate language, holding that she "*undoubtedly crossed the limits of decency and good professional conduct*".
 - Calling the highest court of the land a "Supreme Court of idiots" and threatening to spit on the Chief Justice were expressions of personal anger and frustration over not being considered for Chief Justice, falling outside the pale of genuine legislative functions.
- **B. Misuse of Immunity:**
 - Parliamentary immunity was never intended as an armor for personal wrath or a vehicle to ridicule, demean, and destroy the reputation of the Judiciary.
 - The Court expressed regret that the Senate leadership failed to enforce its own internal rules on *Unparliamentary Acts and Language* to call her to order or refer her to the Senate Ethics Committee.

● DOCTRINE, TESTS, AND LEGAL STANDARDS

- **Absolute Parliamentary Immunity over Floor Speeches (*Pobre Standard*):** Under Article VI, Section 11 of the 1987 Constitution, a lawyer-legislator cannot be subjected to disbarment, suspension, or administrative disciplinary proceedings before the Supreme Court for statements made in a speech or debate delivered on the floor of Congress or in its committees.
- 1. **Primacy of Constitutional Immunity over Lawyer Ethics Rules:** The Supreme Court's constitutional authority to discipline lawyers (Art. VIII, Sec. 5(5)) yields to the specific, explicit constitutional protection of parliamentary immunity (Art. VI, Sec. 11) when the lawyer's speech was made in the performance of legislative duties on the floor of Congress.

2. **Exclusive Assembly Jurisdiction (*Osmeña / Pobre Rule*):** The correction or punishment of abusive or unparliamentary speech uttered by a Member of Congress during legislative proceedings is committed solely to the legislative assembly itself under Article VI, Section 16(3) or to the electorate at the polls.
-

DISPOSITION

- **Ruling:** The letter-complaint of Antero J. Pobre against Senator/Atty. Miriam Defensor-Santiago is **DISMISSED** conformably with Article VI, Section 11 of the Constitution.
-

SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLE LINES

- (*Note: Chico-Nazario, Nachura, Peralta, and Velasco, Jr., JJ., concurred; Carpio-Morales, J., was on official leave. The ruling was issued Per Curiam.*)

Source-Verified Quotable Lines

-  **On the Constitutional Bar Against External Liability (Per Curiam):**

"No member shall be questioned nor be held liable in any other place for any speech or debate in the Congress or in any committee thereof... The disciplinary authority of the assembly and the voters, not the courts, can properly discourage or correct such abuses committed in the name of parliamentary immunity."

-  **On the True Purpose of Parliamentary Privilege (Per Curiam):**

"Parliamentary non-accountability thus granted to members of Congress is not to protect them against prosecutions for their own benefit, but to enable them, as the people's representatives, to perform the functions of their office without fear of being made responsible before the courts or other forums outside the congressional hall."

-  **On the Limits of Professional Decency (Per Curiam):**

"To the Court, the lady senator has undoubtedly crossed the limits of decency and good professional conduct... Even parliamentary immunity must not be allowed to be used as a vehicle to ridicule, demean, and destroy the reputation of the Court and its magistrates, nor as armor for personal wrath and disgust."

RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Pobre v. Defensor-Santiago* (2009), Senator/Atty. Miriam Defensor-Santiago delivered a privilege speech on the Senate floor expressing anger over the Judicial and Bar Council's decision to limit

nominations for Chief Justice to sitting Supreme Court Justices. In her speech, she stated she wanted 'to spit on the face of Chief Justice Artemio Panganiban' and called the Court a 'Supreme Court of idiots.' Complainant Antero Pobre filed a disbarment complaint before the Supreme Court, alleging gross misconduct, direct contempt, and violation of a lawyer's duty under the Code of Professional Responsibility to maintain respect for courts. Senator Santiago filed a Comment invoking absolute parliamentary immunity under Article VI, Section 11 of the Constitution.

The Supreme Court En Banc DISMISSED the disbarment complaint. Reaffirming *Osmeña, Jr. v. Pendatun*, the Court held that under Article VI, Section 11, no Member of Congress can be held liable 'in any other place'—including disbarment proceedings before the Supreme Court—for speeches delivered on the Senate floor. Although the Court severely admonished Senator Santiago for crossing the limits of professional decency and using intemperate language, basic constitutional considerations dictate that disciplinary power over floor speeches belongs exclusively to the Senate itself (under Art. VI, Sec. 16(3)) and the voters, not the courts."^{*}

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: Can the Supreme Court disbar a lawyer-legislator for uttering disrespectful and contumacious remarks against the Justices during a privilege speech on the floor of Congress?**
 - **A: No.** Under *Pobre v. Defensor-Santiago*, Article VI, Section 11 explicitly bars holding a Member of Congress liable in "any other place" for speeches delivered on the floor. The Supreme Court's administrative authority over lawyers yields to the specific constitutional mandate of parliamentary immunity.
2. **Q: What is the proper remedy or forum to punish a Member of Congress who abuses parliamentary immunity by uttering offensive or unparliamentary language on the floor?**
 - **A:** The proper remedy lies exclusively with the **legislative assembly itself** (the Senate or House of Representatives) through its internal disciplinary power under Article VI, Section 16(3) (via its Ethics Committee), or with the **electorate** at the polls.
3. **Q: Did the Supreme Court hold that Senator Santiago's statements complied with the Code of Professional Responsibility?**
 - **A: No.** The Court explicitly held that her statements were intemperate, highly improper, crossed the limits of professional decency, and violated a lawyer's ethical duty of respect owed to the courts. However, despite her violation of ethical standards, the Court was constitutionally constrained from imposing disciplinary sanctions due to Article VI, Section 11.

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose Senator X delivers a press conference inside a hotel media room outside Congress, wherein he calls the Supreme Court a "syndicate of corrupt judges" and threatens to spit on the Justices. A disbarment complaint is filed against Senator X. Senator X moves to dismiss, citing *Pobre v. Defensor-Santiago* and claiming parliamentary immunity because the press conference discussed pending legislation. How should the Supreme Court rule?
- **Answer: The Supreme Court MUST DENY Senator X's motion to dismiss and PROCEED with the disbarment case.** Under *Trillanes IV v. Castillo-Marigomen* (2018) and *Pobre v. Defensor-Santiago*, parliamentary immunity covers ONLY speeches or debates made **within Congress or its committees in the performance of official legislative functions**. Media interviews and press conferences held outside the legislative halls/proceedings are not protected "speech or debate" under Article VI, Section 11, making the lawyer-legislator fully subject to the Supreme Court's disciplinary jurisdiction.

One-Sentence Doctrine Anchor

A disbarment complaint against a lawyer-legislator for offensive statements uttered during a privilege speech on the floor of Congress must be dismissed, as Article VI, Section 11 grants absolute immunity from liability in any forum outside Congress, leaving disciplinary authority exclusively to the legislative chamber itself.

Pobre v. Defensor-Santiago, August 25, 2009

Topic Subtopic	Branches of the Government - Congress Organizations and Sessions - Discipline of Members	GR No. & Ponente	A.C. 7399; VELASCO, JR., J
Complainant	ANTERO J. POBRE (concerned citizen)	Respondent	SEN./ATTY. MIRIAM DEFENSOR SANTIAGO
Doctrine	Under Sec 11, Art VI of the Constitution, a member of Congress shall not be questioned nor held liable in any other place for any speech/debate delivered in Congress or in any committee thereof. The courts do not interfere w/ the legislature or its members regarding how they perform their functions on the legislative floor.		

FACTS

- On December 22, 2006, Antero J. Pobre filed a **sworn letter-complaint** with the SC against Senator Defensor-Santiago. Pobre called the Court's attention to **excerpts of a privilege speech** delivered by Senator Santiago on the **Senate floor**, wherein she uttered the following statements:
"I am not angry. I am irate. I am foaming in the mouth. I am homicidal. I am suicidal. I am humiliated, debased, degraded. And I am not only that, I feel like throwing up to be living my middle years in a country of this nature. I am nauseated. I spit on the face of Chief Justice Artemio Panganiban and his cohorts in the Supreme Court, I am no longer interested in the position [of Chief Justice] if I was to be surrounded by idiots. I would rather be in another environment but not in the Supreme Court of idiots . . ."
- Pobre: contended that these statements reflected total disrespect toward then CJ Artemio Panganiban and the members of the SC, constituting **direct contempt** and **gross misconduct** as a member of the Legal Bar. He prayed that **disbarment** proceedings or other **disciplinary actions** be instituted against the lady senator.
- Senator Santiago (in her Comment dated April 25, 2007, through counsel): **did not deny** making the statements, but explained that those statements were covered by the constitutional provision on **parliamentary immunity**, being part of a speech she delivered in the discharge of her duty as member of Congress or its committee.
- She explained that it was to bring to light **controversial anomalies in governance** with a view to **future remedial legislation**. Specifically, she intended to expose what she believed was an **"unjust act"** of the Judicial and Bar Council (JBC) which had issued public invitations for nominations to the Chief Justice post, only to later announce (without advanced advisory) that **only sitting SC Justices would be considered**. She felt that the JBC should have at least given an advanced advisory that non-sitting members of the Court, like her, would not be considered for the position of Chief Justice.

ISSUE 1

Main – Substantive	W/N Senator Defensor-Santiago can be subjected to disbarment or disciplinary proceedings by the SC for offensive statements made during a privilege speech delivered on the Senate floor.	NO
-----------------------	---	----

RULING and RATIO DECIDENDI:

- The immunity Senator Santiago claims is rooted primarily on the provision of **Article VI, Section 11 of the Constitution**, which provides: **"No member shall be questioned nor be held liable in any other place for any speech or debate in the Congress or in any committee thereof"**
- Osmena v Pendatun** - Our Constitution enshrines parliamentary immunity which is a fundamental privilege cherished in every legislative assembly of the democratic world. As old as the English Parliament, its purpose "is to enable and encourage a representative of the public to discharge his public trust with firmness and success" for "it is indispensably necessary that he should enjoy the fullest liberty of speech and that he should be protected from resentment of every one, however, powerful, to whom the exercise of that liberty may occasion offense".
- Without parliamentary immunity, parliament, or its equivalent, would degenerate into a polite and ineffective debating forum. → speech privilege would be of little value if the legislators will be subjected to trials
- Courts do not interfere with the legislature or its members in the manner they perform their functions in the legislative floor or in committee rooms.
- Thus, the plea of Senator Santiago for the dismissal of the complaint for disbarment or disciplinary action**

is well taken. Indeed, her privilege speech is not actionable criminally or in a disciplinary proceeding under the Rules of Court.

However, the Court still had to say some words..

- Court reprimanded Defensor, as member of the Bar, about the language used in her speech and its effect on the administration of justice – she crossed the limits of decency and good professional conduct and clearly violated Canon 8, Rule 8.01 and Canon 11 of the Code of Professional Responsibility. No lawyer who has taken an oath to maintain the respect due to the courts should be allowed to erode the people's faith in the judiciary.
- Her statements were expressions of personal anger and frustration at not being considered for the post of Chief Justice. In a sense, therefore, her remarks were outside the pale of her official parliamentary functions. **Even parliamentary immunity must not be allowed to be used as a vehicle to ridicule, demean, and destroy the reputation of the Court and its magistrates, nor as armor for personal wrath and disgust.**
- Authorities are agreed that parliamentary immunity is not an individual privilege accorded the individual members of the Parliament or Congress for their personal benefit, but rather a privilege for the benefit of the people and the institution that represents them.
- Generally speaking, a lawyer holding a government office may not be disciplined as a member of the Bar for misconduct committed while in the discharge of official duties, unless said misconduct also constitutes a violation of his/her oath as a lawyer.
- While the Court is not hesitant to impose some form of disciplinary sanction on Defensor, the factual and legal circumstances of this case deter the Court from doing so. – Basic constitutional consideration dictates this kind of disposition

Senate

- The Rules of the Senate itself contains a provision on **Unparliamentary Acts and Language** that enjoins a Senator from using, under any circumstance, "offensive or improper language against another Senator or **against any public institution**". But as to Senator Santiago's unparliamentary remarks, the Senate President had not apparently called her to order, let alone referred the matter to the Senate Ethics Committee for appropriate disciplinary action, as the Rules dictates under such circumstance.
- The lady senator clearly violated the rules of her own chamber. It is unfortunate that her peers bent backwards and avoided imposing their own rules on her.

FINAL DECISION

The letter-complaint of Antero J. Pobre against Senator/Atty. Miriam Defensor-Santiago is, conformably to **Art. VI, Sec. 11** of the Constitution, **DISMISSED**.

*Chico-Nazario, Carpio-Morales, * Nachura and Peralta, JJ., concur. (unanimous)*

Pimentel, Jr. v. Senate Committee on the Whole

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Aquilino Q. Pimentel, Jr., Manuel B. Villar, Joker P. Arroyo, Francis N. Pangilinan, Pia S. Cayetano, and Alan Peter S. Cayetano v. Senate Committee of the Whole represented by Senate President Juan Ponce Enrile*
 - **Citation:** G.R. No. 187714, March 8, 2011 (En Banc)
 - **Ponente:** Carpio, J.
 - **Bench Composition:** Corona, C.J., Carpio Morales, Velasco, Jr., Leonardo-de Castro, Peralta, Bersamin, Del Castillo, Abad, Villarama, Jr., Perez, Mendoza, and Sereno, JJ., concurring; Nachura and Brion, JJ., on official leave.
 - **Syllabus Relevance & Topic:**
 1. **Legislative Department — Rules of Proceedings & Publication Requirement (Art. VI, Sec. 16(3) & Sec. 21):** Distinguishes between internal rules of Congress (which generally do not require publication unless the rules themselves explicitly condition effectivity upon publication) and rules governing legislative inquiries in aid of legislation under Section 21 (where publication is a constitutional imperative) [2, 18, 217–220].
 2. **Legislative Department — Quorum Requirement for Committee of the Whole (Art. VI, Sec. 16(2)):** Mandate that when the Senate sits as a Committee of the Whole (comprising its entire membership), a majority of the Senate is required to constitute a quorum to do business, overriding committee-level 2-member quorum rules.
 3. **Discipline of Members & Equal Protection Clause:** Authority of the Senate to adopt extraordinary procedural remedies—such as transferring an ethics investigation from a standing committee to the Senate Committee of the Whole—when minority non-participation stalls internal disciplinary processes.
 4. **Judicial Review vs. Primary Jurisdiction / Separation of Powers:** Authority of the Supreme Court to resolve purely legal questions regarding congressional procedural rules when constitutional due process standards or explicit rule mandates are implicated.
-

CHRONOLOGICAL MATERIAL FACTS

1. **Privilege Speech on C-5 Road Double Insertion (September 15, 2008):** Senator Panfilo Lacson delivered a privilege speech titled "*Kaban ng Bayan, Bantayan!*" exposing a double insertion in the 2008 General Appropriations Act (GAA). Specifically, P200 million was appropriated for the C-5 Road Extension (President Carlos P. Garcia Avenue Extension from Sucat SLEX to Sucat Road) and another identical P200 million was appropriated for C-5 Extension covering the exact same stretch. Senator Lacson stated that DBM Secretary Rolando Andaya, Jr. confirmed it was a congressional insertion, and Lacson traced the insertion directly to then-Senate President Manuel B. Villar.
2. **Introduction of P.S. Resolution No. 706 (October 8, 2008):** Senator Maria Ana Consuelo "Jamby" Madrigal introduced P.S. Resolution No. 706 directing the Committee on Ethics and Privileges to investigate Senator Villar for conflict of interest, using his position to realign the C-5 Road Extension through his corporations' properties, and negotiating overpriced right-of-way purchases to his personal financial benefit.
3. **Senate Reorganization & Minority Boycott (November 2008 – January 2009):** On November 17, 2008, Senator Juan Ponce Enrile was elected Senate President, and the Ethics Committee was reorganized with Senator Lacson as Chairperson. Senator Lacson repeatedly requested Minority Leader Aquilino Pimentel, Jr. to nominate minority representatives to the Ethics Committee. On December 16, 2008 and January 26, 2009,

Senator Pimentel formally stated that the Minority decided **not to nominate any members** to the Ethics Committee.

4. **Publication of Ethics Committee Rules (March 23, 2009):** The Senate adopted the *Rules of the Senate Committee on Ethics and Privileges* (Committee Rules), which were published in the Official Gazette on March 23, 2009.
 5. **Privilege Speeches & Transfer to Committee of the Whole (April 2009):**
 - On April 20, 2009, Senator Villar delivered a privilege speech declaring he would answer accusations on the Senate floor, not before the Ethics Committee.
 - On April 27, 2009, Senator Lacson delivered a speech defending the Ethics Committee but moved that the investigation be undertaken by the Senate acting as a **Committee of the Whole**. The motion was approved by the Senate by a vote of 10 in favor, 0 against, and 5 abstentions.
 6. **Hearings, Proposed Amendments, and Publication Challenge (May 2009):**
 - On May 4 and 7, 2009, the Senate Committee of the Whole conducted hearings. Petitioners (Senators Pimentel, Villar, Arroyo, Pangilinan, Pia Cayetano, and Alan Peter Cayetano) objected to applying the Ethics Committee Rules to the Committee of the Whole, specifically questioning quorum determination.
 - On May 11, 2009, petitioners proposed 11 amendments to adapt the Ethics Rules into the Rules of the Senate Committee of the Whole, 3 of which were adopted.
 - On May 14, 2009, Senator Pimentel raised a formal objection that the proposed amended *Rules of the Senate Committee of the Whole* had **never been published**.
 7. **Proceeding to Preliminary Inquiry:** Ignoring the publication objection, the respondent Committee proceeded with the Preliminary Inquiry on May 14, 2009, found substantial evidence on May 21, 2009, and scheduled adjudicatory hearings.
 8. **Filing of Prohibition Petition:** Petitioners filed a Petition for Prohibition under Rule 65 before the Supreme Court seeking to enjoin the Senate Committee of the Whole from further investigating Senator Villar.
-

PROCEDURAL HISTORY

1. **Original Special Civil Action in Supreme Court:** Petitioners filed a Petition for Prohibition (Rule 65) with a prayer for a Writ of Preliminary Injunction and/or Temporary Restraining Order against the Senate Committee of the Whole.
 2. **Supreme Court Disposition (March 8, 2011):** The Supreme Court En Banc **GRANTED THE PETITION IN PART**.
-

PARTIES' MATERIAL ARGUMENTS

- **Petitioners (Sen. Aquilino Q. Pimentel, Jr., Sen. Manuel B. Villar, et al.):**
 1. **Violation of Equal Protection:** Transferring the complaint from the Ethics Committee to the Senate Committee of the Whole targeted Senator Villar uniquely, depriving him of recourse or appeal to the Senate as a whole body against an adverse committee report.
 2. **Violation of Due Process (Quorum Defect):** Adopting Ethics Committee rules (where 2 members constitute a quorum) for a Committee of the Whole violates Article VI, Section 16(2) of the Constitution, which requires a majority of all Senate members to constitute a quorum.
 3. **Violation of Due Process (Non-Publication):** Section 81, Rule 15 of the *Rules of the Senate Committee of the Whole* explicitly states that the rules take effect only upon publication. Conducting proceedings without prior publication violates due process and the Senate's own express rule.
- **Respondents (Senate Committee of the Whole rep. by Senate President Enrile):**

1. **Prematurity & Primary Jurisdiction:** The petition is premature because petitioners failed to exhaust internal administrative/legislative remedies within the Senate.
 2. **Separation of Powers & Political Question:** Internal congressional discipline and procedural rules are political questions committed exclusively to Congress under Article VI, Section 16(3), exempting them from judicial review.
 3. **No Need for Publication:** Publication was unnecessary because the Senate Committee of the Whole merely adopted the *Rules of the Ethics Committee*, which had already been published in the Official Gazette on March 23, 2009.
-

ISSUES

1. **Procedural Issue 1:** Whether the petition is premature for failure to observe the doctrine of primary jurisdiction or prior resort.
 2. **Procedural Issue 2:** Whether the separation of powers doctrine bars judicial review over the internal procedural rules of the Senate Committee of the Whole.
 3. **Substantive Issue 1 (Equal Protection):** Whether transferring the investigation from the Ethics Committee to the Senate Committee of the Whole violated Senator Villar's constitutional right to equal protection.
 4. **Substantive Issue 2 (Quorum Requirement):** Whether a 2-member quorum rule can apply to the Senate Committee of the Whole under Article VI, Section 16(2) of the Constitution.
 5. **Substantive Issue 3 (Publication Requirement):** Whether the non-publication of the *Rules of the Senate Committee of the Whole* violates due process and invalidates the proceedings.
-

HOLDINGS AND CONTROLLING REASONING

1. On Prematurity & Jurisdiction: **NO, the petition is NOT premature, and the Court HAS JURISDICTION.**

- **Ratio:** The doctrine of primary jurisdiction applies when specialized administrative agencies possess technical expertise over factual issues. Here, the petition raises **purely legal questions** regarding constitutional due process, equal protection, and quorum mandates, which fall within the exclusive jurisdiction of the judiciary.
- **Separation of Powers Limits:** The separation of powers does not grant absolute autonomy to Congress. When an act of a coordinate branch is challenged for grave abuse of discretion or non-compliance with constitutional/legal mandates, the Supreme Court is duty-bound under Article VIII, Section 1 to exercise judicial review.

2. On Equal Protection & Transfer of Complaint: **NO. The transfer to the Committee of the Whole did NOT violate equal protection [212–214].**

- **Ratio:** The Minority's persistent refusal to nominate members to the Ethics Committee created an impasse that paralyzed the committee's operations. Furthermore, Senator Villar publicly declared he would not answer to the Ethics Committee.
- **Extraordinary Remedy:** Referring the matter to the Senate Committee of the Whole was an extraordinary remedy approved by a majority vote of the Senate (10-0-5) to prevent paralysis. Because the Committee of the Whole includes *all* members of the Senate (Majority and Minority alike), Senator Villar was actually afforded broader representation, removing any claim of discriminatory treatment.

3. On Quorum Requirement for Committee of the Whole: **A MAJORITY OF THE ENTIRE SENATE is required for a quorum.**

- **Ratio:** A rule providing that 2 members constitute a quorum applies legitimately to a 7-member standing committee (like the Ethics Committee).
- **Constitutional Command (Art. VI, Sec. 16(2)):** However, when the Senate constitutes itself as a **Committee of the Whole**, it consists of all 24 members of the Senate. Under Article VI, Section 16(2) of the Constitution, "a majority of each House shall constitute a quorum to do business."
- Applying a 2-member quorum to the Committee of the Whole circumvents the Constitution. In any conflict between internal Senate rules and Article VI, Section 16(2), the Constitution prevails.

4. On Publication of Rules: YES. Non-publication VIOLATES DUE PROCESS because the Committee's own rules explicitly required publication.

- **A. Distinguishing Section 21 Inquiries from Internal Disciplinary Rules:**
 - Under Article VI, Section 21 (*inquiries in aid of legislation*), publication of rules of procedure is a **categorical constitutional requirement** (*Neri v. Senate; Garcillano v. House*) because such inquiries involve third-party witnesses and the public.
 - Conversely, internal rules of the House or Senate affecting *only their own members* generally **do not require publication under the Constitution**.
- **B. Self-Imposed Publication Requirement (Section 81, Rule 15):**
 - Section 81, Rule 15 of the *Rules of the Senate Committee of the Whole* explicitly provided: "Sec. 81. EFFECTIVITY. — These Rules shall be effective after publication in the Official Gazette or in a newspaper of general circulation."
 - Although the Constitution did not force the Senate to publish internal disciplinary rules, **the Senate chose to bind itself** by enacting Section 81.
 - Having mandated publication as a condition precedent for effectivity, the Senate cannot dispense with its own rule.
 - Adopting previously published Ethics Committee rules is insufficient because the Committee of the Whole is a distinct body with different membership and quorum dynamics. To satisfy due process, the Senate must obey its own promulgated rules when the rights of its members are affected.

DOCTRINE, TESTS, AND LEGAL STANDARDS

1. **Dual Rule on Publication of Congressional Rules (*Pimentel Standard*):**
 - **Inquiries in Aid of Legislation (Art. VI, Sec. 21):** Publication of rules is a mandatory constitutional requirement for effectivity.
 - **Internal Disciplinary Rules (Art. VI, Sec. 16(3)):** Publication is generally not required by the Constitution, **UNLESS** the rules themselves expressly mandate publication before taking effect.
2. **Self-Imposed Due Process Rule:** When a legislative body adopts an internal rule conditioning the effectivity of its procedural rules upon publication, compliance with that self-imposed requirement becomes an essential element of **procedural due process**.
3. **Quorum Mandate for Committee of the Whole (Art. VI, Sec. 16(2)):** When a legislative chamber sits as a Committee of the Whole, a constitutional quorum under Article VI, Section 16(2) requires the presence of a majority of all members of the chamber.

DISPOSITION

- **Ruling:** The petition is **GRANTED IN PART**.

- **Order:** The referral of the complaint against Senator Manuel B. Villar to the Senate Committee of the Whole shall take effect **ONLY UPON PUBLICATION** of the *Rules of the Senate Committee of the Whole*.

● SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLE LINES

- (Note: Corona, C.J., Carpio Morales, Velasco, Jr., Leonardo-de Castro, Peralta, Bersamin, Del Castillo, Abad, Villarama, Jr., Perez, Mendoza, and Sereno, JJ., UNANIMOUSLY CONCURRED in the decision penned by Justice Carpio. Nachura and Brion, JJ., were on official leave).

Source-Verified Quotable Lines

-  **On the Self-Imposed Publication Requirement (Carpio, J.):**

"To comply with due process requirements, the Senate must follow its own internal rules if the rights of its own members are affected... To reiterate, the Rules of the Senate Committee of the Whole expressly require publication before the Rules can take effect. The majority of the members of the Senate approved the Rules... and the publication requirement which they adopted should be considered as the will of the majority."

-  **On Constitutional Quorum for Committee of the Whole (Carpio, J.):**

"However, if the Senate is constituted as a Committee of the Whole, a majority of the Senate is required to constitute a quorum to do business pursuant to Section 16 (2), Article VI of the Constitution. Otherwise, there will be a circumvention of this express provision of the Constitution on quorum requirement."

● RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Pimentel, Jr. v. Senate Committee of the Whole* (2011), Sen. Madrigal filed P.S. Resolution 706 seeking an Ethics investigation against Sen. Villar for an alleged P200M C-5 Road Extension double insertion in the 2008 GAA. After the Minority Leader (Sen. Pimentel) refused to nominate minority members to the Ethics Committee and Sen. Villar declared he would answer only on the floor, the Senate voted (10-0-5) to transfer the investigation to the Senate Committee of the Whole under Senate President Enrile. The Committee adopted the previously published Ethics Committee Rules (which set a 2-member quorum and had been published on March 23, 2009). Petitioners objected, alleging: (1) transferring the case violated equal protection; (2) applying a 2-member quorum to the Committee of the Whole violated Art. VI, Sec. 16(2); and (3) non-publication of the Rules of the Committee of the Whole violated due process, since Sec. 81 of said rules required publication for effectivity.

The Supreme Court En Banc, through Justice Carpio, GRANTED THE PETITION IN PART. The Court held: (1) Transferring the case did NOT violate equal protection because minority non-nomination stalled the Ethics Committee, making referral to the Committee of the Whole a valid extraordinary remedy; (2) A 2-member quorum cannot apply to the Committee of the Whole—since it comprises all 24 senators, Art. VI, Sec. 16(2) mandates a majority of the Senate for a quorum; and (3) Crucially, while internal congressional rules affecting only members generally do not require publication under the Constitution, publication WAS

MANDATORY HERE because Section 81 of the Committee's own rules explicitly conditioned effectivity upon publication. Due process requires the Senate to follow its own internal rules when members' rights are affected."* [202–210, 212–214, 219–221]

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: Does the Constitution require the Senate to publish its internal rules of procedure governing the discipline of its own members?**
 - **A: No, as a general rule.** Unlike legislative inquiries in aid of legislation under Article VI, Section 21 (where publication is a mandatory constitutional requirement), internal rules under Article VI, Section 16(3) affecting *only members* do not require publication under the Constitution [2, 18, 217–219]. **HOWEVER**, if the Senate explicitly includes a provision in its internal rules conditioning their effectivity upon publication (such as Sec. 81 in *Pimentel*), publication becomes **mandatory to satisfy procedural due process**.
2. **Q: Why was a 2-member quorum rule held unconstitutional when applied to the Senate Committee of the Whole?**
 - **A:** A 2-member quorum is valid for a 7-member standing committee, but the Committee of the Whole consists of **all 24 members of the Senate**. Under Article VI, Section 16(2) of the Constitution, doing business as a full legislative body requires a **majority of the entire Senate** to constitute a quorum.
3. **Q: Did transferring Senator Villar's ethics complaint to the Senate Committee of the Whole violate the Equal Protection Clause?**
 - **A: No.** The transfer was an extraordinary procedural remedy approved by a majority vote of the Senate after minority non-participation deadlocked the standing Ethics Committee. Because the Committee of the Whole includes all senators (Majority and Minority), Villar was granted full, non-discriminatory representation.

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose the Senate creates a special ad hoc committee to investigate a Senator for unethical conduct. The special committee adopts internal disciplinary rules that contain **no provision requiring publication**, nor do they affect non-members. The committee proceeds with hearings without publishing the rules in a newspaper or the Official Gazette. The Senator petitions the Supreme Court to stop the investigation, citing *Pimentel v. Senate Committee of the Whole*. How should the Court rule?
- **Answer: The Supreme Court MUST DENY the petition.** Under *Pimentel*, internal rules governing the discipline of members under Article VI, Section 16(3) do NOT require publication under the Constitution. In *Pimentel*, publication was mandated solely because Section 81 of the Committee's rules **expressly required publication** before taking effect. Absent such a self-imposed publication clause or third-party witness involvement under Section 21, non-publication of purely internal disciplinary rules does not violate due process.

One-Sentence Doctrine Anchor

While internal congressional rules affecting only members do not constitutionally require publication, the Senate must publish its rules if its own provisions explicitly condition effectivity upon publication, and any Committee of the Whole must observe the constitutional majority quorum under Article VI, Section 16(2). [18, 219–221]

Pimentel v. Senate Committee of the Whole (March 8, 2011)

Topic Subtopic	Branches of the Government - Congress Organizations and Sessions - Discipline of Members	GR No. & Ponente	G.R. No. 187714; Justice Carpio (En Banc)
Petitioner/s	Senators Aquilino Q. Pimentel, Jr., Manuel B. Villar, Joker P. Arroyo, Francis N. Pangilinan, Pia S. Cayetano, and Alan Peter S. Cayetano.	Respondent/s	Senate Committee of the Whole, represented by Senate President Juan Ponce Enrile.
Doctrine	Under Section 16(3), Article VI of the 1987 Constitution, each House of Congress has full discretionary authority to determine the rules of its proceedings and discipline its members for disorderly behavior.		

FACTS

- Sept 15, 2008 - Sen Lacson had a privilege speech where he called attention to the congressional insertion in the 2008 GAA, particularly the P200M appropriated for the construction of the President Carlos P. Garcia Avenue Extension from SLEX to Sucat Road in Parañaque City including Right-of-Way (ROW), and another P200M appropriated for the extension of C-5 road including ROW – these cover the same stretch. Senator Lacson inquired from DBM Secretary Rolando Andaya, Jr. about the double entry and was informed that it was on account of a congressional insertion. Senator Lacson further stated that when he followed the narrow trail leading to the double entry, it led to Senator Villar, then the Senate President.
- Oct 8, 2008 - **Sen. Madrigal** filed **Proposed Senate Resolution No. 706** (P.S. Res. 706), directing the Senate Committee on Ethics and Privileges to **investigate** then SP Villar for alleged **unethical conduct** regarding the **realignment and double insertion of ₱200 million for the C-5 Road Extension Project** in the **2008 GAA** to deliberately pass through his properties (such as Brittany Corp. and Camella) for personal financial gain.
 - Evidence that Villar sold his properties as roads right of way to the government, at a grossly overpriced cost. Alleged to be in violation of Anti-Graft Act

Reorganization and Minority Boycott

- Following the election of Senator Enrile as Senate President on November 17, 2008, the Ethics Committee was **reorganized** with Senator Panfilo Lacson elected as Chairperson. Sen. Lacson **repeatedly requested** the Minority bloc to nominate its representatives to the Ethics Committee.
- However, **Minority Leader Senator Pimentel** officially informed the Senate that the Minority **decided not to nominate** any of its members to the Ethics Comm. This stalled the committee's proceedings.

Privilege Speeches and Motion to Transfer

- April 20, 2009: **Sen. Villar** delivered a **privilege speech** declaring that he would **answer the accusations against him** on the **Senate floor** rather than before the Ethics Comm., which he branded a "**kangaroo court.**"
- April 27, 2009: **Chairperson Lacson** delivered a privilege speech moving that the responsibility of the Ethics Committee be **assumed by the Senate acting as a Committee of the Whole**.
 - The Senate **approved the motion** by a vote of 10 in favor, 0 against, and 5 abstentions.

Adoption of Rules and Preliminary Inquiries:

- The **Senate Committee of the Whole** conducted hearings on May 4 and 7, 2009.
 - Petitioners objected to applying the Rules of the Ethics Committee to the Committee of the Whole, particularly **questioning** the rule setting a **quorum at only two members**.
- May 11, 2009: petitioners **proposed 11 amendments to the rules**, three of which were adopted.
- May 14, 2009: Sen. Pimentel raised as an issue the **necessity of publishing the proposed amended Rules** of the Senate Committee of the Whole before conducting hearings.
 - Nonetheless, the Committee proceeded with its preliminary inquiry on P.S. Res. 706.

Adjudicatory Stage and Direct Recourse to the SC

- May 18, 2009: the Chairman submitted a preliminary report
- May 21: the respondent declared that there was substantial evidence to **proceed with an adjudicatory hearing**. The preliminary conference was set on 26 May 2009.
- May 2009: petitioners filed a **petition for prohibition with prayer for issuance of a writ of preliminary injunction and/or temporary restraining order directly with the Supreme Court** to enjoin the Senate

Committee of the Whole from conducting further hearings against Sen. Villar.
 o *Political background: petitioners are part of the minority with Villar; basically allies*

ISSUE 1

Side – Procedural	W/N Sen. Madrigal, who filed the complaint against Sen. Villar, is an indispensable party in this petition	NO
RESPONDENT/S ARGUMENTS:		
The instant petition should be dismissed for failure to join or implead an indispensable party. In the alternative, the instant petition should be archived until such time that the said indispensable party has been joined or impleaded and afforded the opportunity to be heard		
RULING and RATIO DECIDENDI:		
Indispensable party: is a party who has an interest in the controversy or subject matter that a final adjudication cannot be made, in his absence, without injuring or affecting that interest; one who must be included in an action before it may properly go forward. NO. Senator Madrigal is NOT an indispensable party. While it may be true that she has an interest in the outcome of this case as the author of P.S. Resolution 706, the issues in this case are matters of jurisdiction and procedure on the part of the Senate Committee of the Whole which can be resolved without affecting Senator Madrigal's interest. The nature of Senator Madrigal's interest in this case is not of the nature that this case could not be resolved without her participation.		
LEGAL BASES		
Section 7, Rule 3 of the Rules of Court. Compulsory joinder of indispensable parties. — Parties in interest without whom no final determination can be had of an action shall be joined as plaintiffs or defendants.		

ISSUE 2

Side–Proc.	W/N the petition is premature for failure to observe the doctrine of primary jurisdiction or prior resort.	NO
RESPONDENT/S ARGUMENTS:		
- Respondent asserts that the doctrine of primary jurisdiction "simply calls for the determination of administrative questions, which are ordinarily questions of fact, by administrative agencies rather than by courts of justice." - Citing Pimentel v. HRET, respondent avers that primary recourse of petitioners should have been to the Senate and that this Court must uphold the separation of powers between the legislative and judicial branches of the government - Separation of powers		
RULING and RATIO DECIDENDI:		
The doctrine of primary jurisdiction does not apply to this case. The Court has jurisdiction. The doctrine of primary jurisdiction applies to technical administrative questions of fact handled by executive agencies. The issues presented here do not require the expertise, specialized skills and knowledge of respondent for their resolution. On the contrary, the issues here are purely legal questions which are within the competence and jurisdiction of the Court, and not an administrative agency or the Senate to resolve. On Separation of Powers - The Court is not precluded from resolving the legal issues raised by the mere invocation by respondent of the doctrine of separation of powers. On the contrary, the resolution of the legal issues falls within the exclusive jurisdiction of this Court.		

ISSUE 3

Main Substantive –	W/N the transfer of the complaint against Senator Villar from the Ethics Comm. to the Senate Committee of the Whole is violative of Senator Villar's <u>right to equal protection</u>	NO
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
The Senate Committee of the Whole was constituted solely to assume jurisdiction over the complaint against Sen. Villar. This was discriminatory and violated his right to equal protection, removing Sen. Villar's recourse against any adverse report of the Ethics Committee to the Senate as a body.		It is within the constitutional power of Congress to discipline its members for disorderly behavior, and the transfer was an extraordinary procedural remedy necessitated by the Minority's refusal to participate in the Ethics Committee.
RULING and RATIO DECIDENDI:		
The Court reviewed the events leading to the constitution of the Senate Committee of the Whole, and showed that it was the Minority not appointing reps to the Ethics Committee which prevented the investigation. It was Sen. Villar, himself, who stated that he would answer the accusations against him on the floor and not before the Ethics Committee. → this necessitated Sen. Lacson who moved that the responsibility of the Ethics Committee be undertaken by the Senate acting as a Committee of the Whole, which motion was approved with ten members voting in favor, none against, and five abstentions. The Rules of the Ethics Committee provide that "all matters relating to the conduct, rights, privileges, safety, dignity, integrity and reputation of the Senate and its Members shall be under the exclusive jurisdiction of the Senate Committee on Ethics and Privileges." Given the circumstances, the referral of the investigation to the Committee of the Whole was an extraordinary remedy undertaken by the Ethics Committee and approved by a majority of the members of the Senate.		

ISSUE 4

Main Substantive –	W/N the adoption of the Rules of the Ethics Committee as Rules of the Senate Committee of the Whole is violative of Senator Villar's <u>right to due process</u> and of the <u>majority quorum requirement</u> under Art. VI, Section 16(2) of the Constitution	NO
PETITIONER/S ARGUMENTS:		
Adopting the Ethics Committee rules (which allowed a quorum of only two members) violated Sen. Villar's right to due process and the constitutional quorum requirement.		
RULING and RATIO DECIDENDI:		
- Again, we reiterate that, considering the circumstances of this case, the referral of the investigation by the Ethics Committee to the Senate Committee of the Whole is an extraordinary remedy that does not violate Senator Villar's right to due process. In the same manner, the adoption by the Senate Committee of the Whole of the Rules of the Ethics Committee does not violate Senator Villar's right to due process. - Section 16(3), Article VI of the Philippine Constitution states: "Each House shall determine the rules of its proceedings." → The Constitutional right of the Senate to promulgate its own rules of proceedings has been recognized and affirmed by this Court - The only limitation to the power of Congress to promulgate its own rules is the observance of quorum, voting, and publication when required. As long as these requirements are complied with, the Court will not interfere with the right of Congress to amend its own rules. On Quorum - The Committee Rules indicate that only 2 members of the Ethics Committee shall constitute a quorum.		

- However, if the Senate is constituted as a Committee of the Whole, a majority of the Senate is required to constitute a quorum to do business pursuant to Section 16 (2), Article VI of the Constitution.
- Otherwise, there will be a circumvention of this express provision of the Constitution on quorum requirement.
- Obviously, the Rules of the Senate Committee of the Whole require modification to comply with requirements of quorum and voting which the Senate must have overlooked in this case.
- In any event, in case of conflict between the Rules of the Senate Committee of the Whole and the Constitution, the latter will of course prevail

ISSUE 5

Main Substantive –	W/N publication of the Rules of the Senate Committee of the Whole is required for their effectivity.	YES
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
Petitioners assail the non-publication of the Rules of the Senate Committee of the Whole.		Publication was unnecessary because the Committee merely adopted the Rules of the Ethics Committee (which had already been published in the Official Gazette on March 23, 2009) that allow the adoption of supplementary rules to govern adjudicatory hearings.
RULING and RATIO DECIDENDI:		
● Neri v. Senate Committee on Accountability of Public Officers and Investigations - the Court declared void unpublished rules of procedure in Senate inquiries insofar as such rules affect the rights of witnesses. ● Section 21, Article VI of the Constitution - The Senate or the House of Representatives or any of its respective Committees may conduct inquiries in aid of legislation in accordance with its duly published rules of procedure. The rights of persons appearing in or affected by such inquiries shall be respected. ○ Affecting the rights of witnesses ● The Constitution does not require publication of the internal rules of the House or Senate. Since rules of the House or the Senate that affect only their members are internal to the House or Senate, such rules need not be published, unless such rules expressly provide for their publication before the rules can take effect. ● In this case, the proceedings before the Senate Committee of the Whole affect only members of the Senate since the proceedings involve the Senate's exercise of its disciplinary power over one of its members. Clearly, the Rules of the Senate Committee of the Whole are internal to the Senate. ● However, because the Senate Committee of the Whole explicitly incorporated a self-imposed publication clause in Section 81 of its own rules (in Official Gazette or in a newspaper of general circulation), it bound itself to publish them before they can take effect. To satisfy due process, the Senate must comply with its own promulgated rules when the rights of its members are affected		
LEGAL BASES		
Section 21, Article VI of the 1987 Constitution: The Senate or the House of Representatives or any of its respective committees may conduct inquiries in aid of legislation in accordance with its duly published rules of procedure. The rights of persons appearing in or affected by such inquiries shall be respected. Section 81, Rule 15 of the Rules of the Senate Committee of the Whole: These Rules shall be effective after publication in the Official Gazette or in a newspaper of general circulation.		

FINAL DECISION	WHEREFORE, we GRANT the petition in part. The referral of the complaint by the Committee on Ethics and Privileges to the Senate Committee of the Whole shall take effect only upon publication of the Rules of the Senate Committee of the Whole. <i>13 justices concur, 2 on official leave</i>
----------------	--

Council of Teachers and Staff of Colleges and Universities of the Philippines v. Secretary of Education

♥ IDENTITY AND SYLLABUS RELEVANCE

- **◆ Case Title:** *Council of Teachers and Staff of Colleges and Universities of the Philippines (CoTeSCUP), et al. v. Secretary of Education, Secretary of Labor and Employment, Chairperson of the Commission on Higher Education, Secretary of the Technical Education and Skills Development Authority, Secretary General of the House of Representatives, and Miriam College* (G.R. No. 216930) consolidated with G.R. Nos. 217451, 217752, 218045, 218098, 218123, and 218465 [112–118, 124–127].
- **◆ Citation:** G.R. No. 216930, etc., 841 Phil. 724, October 9, 2018 (En Banc).
- **◆ Ponente:** Caguioa, J.
- **◆ Bench Composition:** Leonardo-de Castro, C.J., Carpio, Peralta, Del Castillo, Perlas-Bernabe, Jardeleza, Caguioa, Tijam, and A.B. Reyes, Jr., JJ., concurring; Leonen, J., see separate concurring opinion; Bersamin and Gesmundo, JJ., on official business; J.C. Reyes, Jr., J., on wellness leave [201–202].
- **◆ Syllabus Relevance & Topic:**
 1. **Police Power of the State over Education (Art. XIV, Sec. 1 & Sec. 4(1)):** Plenary authority of the State to regulate and structure basic and tertiary education for the general welfare and public interest [150–154].
 2. **Non-Self-Executing Constitutional Provisions (Art. XIV, Sec. 1, 2, 6; Art. XIII, Sec. 3; Art. II, Sec. 17 & 18):** Declarations of principles, state policies, and rights to quality education, labor protection, and national language serve as legislative moral incentives and aids to judicial review, but do not bestow standalone, judicially demandable rights [154–156, 171–172, 190].
 3. **Delegation of Legislative Power — Completeness and Sufficient Standard Tests:** Permissible delegation of rulemaking power to DepEd, CHED, TESDA, and DOLE to fill in technical details and execute statutory policies [143–147].
 4. **Enrolled Bill Doctrine vs. Journal Entry Rule (Astorga v. Villegas Exception):** Unimpeachable status of an authenticated enrolled bill absent a formal withdrawal of attestation by legislative leaders.
 5. **Substantive Due Process, Equal Protection, and Academic Freedom:** Intrinsic validity of the K to 12 curriculum restructuring under the rational basis test; non-infringement of academic freedom or security of tenure by statutory reorganization [170, 178–188].

♥ CHRONOLOGICAL MATERIAL FACTS

1. **Legislative Origins and Pre-K to 12 Educational Framework:** Prior to 2012, the Philippine basic education system comprised 10 years: 6 years of elementary education and 4 years of secondary education. On March 10, 1917, Act No. 2706 initiated state inspection of private schools, expanded under C.A. No. 180 and B.P. Blg. 232 (Education Act of 1982).
2. **Consultation and Policy Formulation (2011–2012):** DepEd conducted nationwide regional consultations under DepEd Memorandum Nos. 38 and 98 (s. 2011) between February and March 2011 to elicit public input on basic education reform. Congress simultaneously held regional public hearings from March 2011 to February 2012 with parents, teachers, business groups, and school heads.

3. **Enactment of Kindergarten Education Act (R.A. No. 10157):** Enacted on January 20, 2012, making kindergarten compulsory as a prerequisite for Grade 1.
 4. **DepEd Order No. 31, s. 2012:** Issued on April 17, 2012, establishing policy guidelines on the implementation of the Grades 1 to 10 Basic Education Curriculum (BEC).
 5. **Enactment of the K to 12 Law (R.A. No. 10533):** On January 20, 2013, both Houses of Congress passed R.A. No. 10533 (Enhanced Basic Education Act of 2013). It was signed into law by President Benigno S. Aquino III on May 15, 2013, expanding basic education to 13 years: 1 year of Kindergarten, 6 years of Elementary, 4 years of Junior High School (JHS), and 2 years of Senior High School (SHS).
 6. **Promulgation of K to 12 IRR and Joint Guidelines:** DepEd, CHED, and TESDA issued the K to 12 IRR on September 4, 2013. On May 30, 2014, DOLE, DepEd, TESDA, and CHED issued the *Joint Guidelines on the Implementation of the Labor and Management Component of R.A. No. 10533* to address faculty displacement and transition in Higher Education Institutions (HEIs).
 7. **Issuance of CHED Memorandum Order (CMO) No. 20, s. 2013:** CHED revised the General Education Curriculum (GEC) for college degree programs, reducing the core GE units to 36 units and shifting foundational subjects (including introductory Filipino, Panitikan, and Philippine Constitution) to the Senior High School (Grades 11–12) curriculum [127, 133, 172–173].
 8. **Filing of Consolidated Petitions (2015):** Seven consolidated petitions for *certiorari*, prohibition, and mandamus were filed by faculty associations (CoTeSCUP), legislators (Trillanes, Alejandrino, Tinio, Colmenares), teachers, parents, and students (including Manila Science High School students) challenging R.A. No. 10533, R.A. No. 10157, D.O. No. 31, CMO No. 20, and the Joint Guidelines [112–118, 124–127].
-

PROCEDURAL HISTORY

1. **Original Consolidated Actions in the Supreme Court:** Seven petitions under Rule 65 were filed directly before the Supreme Court En Banc [124–127, 208].
 2. **Issuance of Partial TRO (April 21, 2015):** The Supreme Court issued a Temporary Restraining Order (TRO) in G.R. No. 217451 enjoining the implementation of CMO No. 20 insofar *only* as it excluded Filipino and Panitikan from the college curriculum as mandatory core courses.
 3. **Denial of TRO for K to 12 Law:** The Court denied prayers for TRO against R.A. No. 10533, R.A. No. 10157, and related basic education issuances.
 4. **Supreme Court En Banc Decision (October 9, 2018):** The Supreme Court DENIED all consolidated petitions, declared R.A. No. 10533, R.A. No. 10157, CMO No. 20 (s. 2013), D.O. No. 31 (s. 2012), and the Joint Guidelines CONSTITUTIONAL, and LIFTED the TRO dated April 21, 2015.
-

PARTIES' MATERIAL ARGUMENTS

-  **Petitioners (CoTeSCUP, Trillanes, Tinio, Colmenares, Lumbera, MSHS Students, et al.):**
 1. **Defective Enactment & Undue Delegation:** The K to 12 Law lacked mandatory prior stakeholder consultations under Art. XIII, Sec. 16; the enrolled bill differed from Congress's reconciled journal version (*Astorga* rule); and it unconstitutionally delegated legislative power by failing to provide labor displacement standards.
 2. **Violation of Education Rights & Non-Retroactivity:** Compulsory Kindergarten and Senior High School violate Art. XIV, Sec. 2(2) (limiting compulsory education to elementary level), international treaties (UDHR, ICESCR, CRC), and students' vested rights to a 4-year high school curriculum under B.P. Blg. 232 [158, 161–162].
 3. **Violation of Mother Tongue Constraints & Parental Rights:** Using Mother Tongue (MTB-MLE) as the *primary* medium of instruction up to Grade 3 violates Art. XIV, Sec. 7 (which designates regional

languages as *auxiliary* media) and infringes on parents' primary right to rear their children under Art. II, Sec. 12.

4. **Unconstitutionality of CMO No. 20:** Excluding Filipino, Panitikan, and Constitution core courses in college devalues national culture and language (Art. XIV, Sec. 3, 6, 14–16), causes massive teacher displacement, and violates R.A. No. 7104, R.A. No. 7356, and B.P. Blg. 232 [133–134, 171, 174–176].
5. **Due Process, Equal Protection, and External Governance:** The additional 2 years are unduly oppressive under substantive due process; applying K to 12 to Manila Science High School (gifted students) violates equal protection; and DepEd's BEST partnership with Australian firm CardNo violates Art. XIV, Sec. 4 (Filipino control of education).

- **Respondents (DepEd, CHED, TESDA, DOLE, OSG, & Miriam College):**

1. **Justiciability & Police Power:** The petitions present non-justiciable political questions assailing the policy wisdom of Congress; education laws are a valid exercise of State police power [135, 150–151].
2. **Valid Enactment & Delegation:** Prior consultations were extensively conducted; the Enrolled Bill Doctrine applies (*Astorga* is inapplicable as no signature was withdrawn); and R.A. No. 10533 satisfies both completeness and sufficient standard tests [140–143, 147].
3. **Validity of Curriculum & CMO No. 20:** The Constitution sets a *minimum* compulsory standard (elementary), not a maximum ceiling; constitutional provisions on quality education, Filipino language, and labor protection are non-self-executing policies [154–156, 171–172]; subjects are transferred to SHS to prevent duplication; and HEIs retain academic freedom to offer additional Filipino courses.
4. **Equal Protection & Supervision:** No vested rights exist in existing curricula; MSHS students are high school students subject to uniform police regulation [183–184]; and CardNo's role involves technical consultancy for external governance, not school ownership.

ISSUES

1.  **Procedural Issue 1:** Whether the consolidated petitions present an actual justiciable controversy capable of judicial review, and whether petitioners possess legal standing [130, 135–138].
2.  **Substantive Issue 1 (Enactment, Enrolled Bill, & Delegation):** Whether R.A. No. 10533 was validly enacted, and whether it constitutes an undue delegation of legislative power.
3.  **Substantive Issue 2 (Police Power & Basic Education Mandates):** Whether compulsory Kindergarten and Senior High School, non-retroactivity, right to select a course of study, and Mother Tongue-Based Multilingual Education (MTB-MLE) violate constitutional provisions on education, treaties, parental rights, academic freedom, or labor protection [130–132].
4.  **Substantive Issue 3 (Validity of CMO No. 20):** Whether CMO No. 20 (s. 2013) violates constitutional policies on national language (Art. XIV, Sec. 6), culture (Art. XIV, Sec. 14–16), study of the Constitution (Art. XIV, Sec. 3(1)), labor protection, or statutory mandates (R.A. No. 7104, R.A. No. 7356, B.P. Blg. 232) [133–134].
5.  **Substantive Issue 4 (Due Process, Equal Protection, & State Supervision):** Whether R.A. No. 10533 violates substantive due process, equal protection (as applied to gifted students and public/private schools), or Art. XIV, Sec. 4 on State supervision and control.

HOLDINGS AND CONTROLLING REASONING

1. On Procedural Thresholds: **YES.** The controversy is **JUSTICIABLE**, and petitioners **HAVE STANDING** [136–138].

- **♥ Actual Case or Controversy:** The assailed statutes and executive issuances took effect, and faculty, students, and parents face immediate implementation, potential job displacement, or altered degree requirements.
- **♥ Locus Standi:** Faculty associations (CoTeSCUP), union officers, taxpayers, legislators, and parents asserting public rights regarding education—a matter mandated by the Constitution for State protection—possess sufficient legal standing; strict standing rules are relaxed for transcendental public interest [137–138].

2. On Enactment, Enrolled Bill, and Delegation: YES. R.A. No. 10533 was VALIDLY ENACTED and contains NO UNDUE DELEGATION [140–147].

- **♥ Sufficient Prior Consultations:** Belied by evidence showing DepEd and Congressional nationwide regional hearings across Luzon, Visayas, and Mindanao in 2011–2012 [140–141]. Failure to consult, even if true, is a political grievance felt at the ballot box, not a ground for judicial invalidation.
- **♥ Enrolled Bill Rule Applies (*Astorga Distinguished*):** Under the Enrolled Bill Doctrine, the authentication by the Speaker and Senate President is conclusive as to due enactment. *Astorga v. Villegas* does not apply because the Senate President in *Astorga* formally **withdrew his signature**, leaving no enrolled bill; here, no presiding officer withdrew authentication.
- **♥ No Undue Delegation (Completeness & Sufficient Standard Tests):** R.A. No. 10533 is complete in laying down the state educational policy (Sec. 2) and contains sufficient standards throughout its provisions (Sec. 5 & 12) guiding DepEd, CHED, TESDA, and DOLE to fill in details during transition [143–147].

3. On Police Power, Basic Education Mandates, and Mother Tongue: NO Constitutional Breach; Police Power UPHOLD [150–170].

- **♥ Compulsory K to 12 vs. Art. XIV, Sec. 2(2):** Art. XIV, Sec. 2(2) sets a *minimum* constitutional baseline that elementary education be compulsory. It does not bar Congress from exercising police power to expand compulsory education to Kindergarten and Senior High School. Treaties (UDHR, ICESCR, CRC) similarly establish floor standards [161–162].
- **♥ No Vested Right in Old Curriculum:** B.P. Blg. 232 does not grant a vested property right to a 4-year high school curriculum. Police power allows Congress to adjust education duration prospectively for currently enrolled students.
- **♥ Mother Tongue (MTB-MLE) vs. Art. XIV, Sec. 7 & Parental Rights:** Art. XIV, Sec. 7 allows regional languages as auxiliary media, but does not prohibit using Mother Tongue as a primary medium in early grades to enhance learning efficacy. It complements, rather than infringes upon, parents' right to rear their children under Art. II, Sec. 12.
- **♥ Academic Freedom & Security of Tenure:** Security of tenure does not prevent faculty termination or transfer resulting from a *bona fide* statutory reorganization or redundancy under valid labor guidelines.

4. On CMO No. 20 (College GE Curriculum): CMO No. 20 IS CONSTITUTIONAL [171–177].

- **♥ Non-Self-Executing Provisions:** Art. XIV, Sec. 6 (Filipino medium), Art. XIV, Sec. 14–16 (culture), Art. XIII, Sec. 3 (labor protection), and Art. II policies are **non-self-executing declarations** [154–156, 171–172, 174]. They provide aids for interpretation and legislative guidelines, but do not create standalone judicially demandable rights to specific college courses.
- **♥ No Removal, But Rescheduling to Basic Education:** Filipino, Panitikan, and Constitution core requirements were not "removed" from the educational system; they were integrated into Grades 1 to 10 and Senior High School to decongest college GE and prevent duplication [172–173].
- **♥ CHED Authority & HEI Academic Freedom:** CHED sets *minimum* GE standards under R.A. No. 7722. Individual HEIs retain academic freedom to require additional Filipino or Panitikan units above CHED's minimum. No statutes (R.A. No. 7104, R.A. No. 7356, B.P. Blg. 232) mandate tertiary-level Filipino units.

5. On Due Process, Equal Protection, and State Supervision: NO VIOLATION of Due Process, Equal Protection, or Art. XIV, Sec. 4 [178–198].

-  **Substantive Due Process Satisfied:** R.A. No. 10533 satisfies substantive due process under the rational basis test: (1) public interest requires education reform to improve basic learning and align with international standards; and (2) adding 2 years of SHS is a reasonable, non-oppressive means [180–181].
 -  **Equal Protection (Manila Science High School & Private Schools):** Gifted MSHS students belong to the same high school population subject to basic education standards; equal protection does not require excluding them from SHS [183–184]. Furthermore, private schools have historically been allowed to offer enhanced curricula alongside State baselines.
 -  **State Supervision vs. Control (BEST / CardNo Partnership):** Art. XIV, Sec. 4(1)–(2) distinguishes *external governance* (State supervision/regulation) from *internal governance/ownership*. Contracting Australian firm CardNo for technical development assistance constitutes permissible external governance support, not foreign ownership or control of educational institutions.
-

DOCTRINE, TESTS, AND LEGAL STANDARDS

1.  **Non-Self-Executing Nature of Constitutional Educational/Labor Mandates (CoTeSCUP Standard):** Provisions such as Article XIV, Section 1 (quality education), Article XIV, Section 6 (Filipino language), Article XIII, Section 3 (labor protection), and Article II policies are non-self-executing [154–156, 171–172, 174, 190]. They serve as moral incentives for legislation and guidelines for judicial review, but do not confer independent, judicially demandable rights to specific academic curricula or courses.
 2.  **Compulsory Education Baseline Rule:** Article XIV, Section 2(2) establishes a mandatory *minimum* standard that elementary education be compulsory. It does not impose a constitutional ceiling precluding the Legislature from exercising police power to make Kindergarten and Senior High School compulsory.
 3.  **Enrolled Bill Exception Limit (Astorga Distinction):** Courts will not look behind an authenticated enrolled bill unless a presiding officer formally withdraws their signature/attestation, resulting in no enrolled bill existing.
 4.  **External Governance vs. Internal Governance Standard (Art. XIV, Sec. 4):** State supervision and regulation of educational institutions under Article XIV, Section 4(1) refer strictly to *external governance* (setting minimum quality baselines), as distinguished from *internal governance* and ownership under Section 4(2).
-

DISPOSITION

-  **Ruling:** The consolidated petitions are **DENIED**.
 -  **Declaratory Decree:** R.A. No. 10533, R.A. No. 10157, CHED Memorandum Order No. 20 (s. 2013), DepEd Order No. 31 (s. 2012), and the *Joint Guidelines on the Implementation of the Labor and Management Component of R.A. No. 10533* are declared **CONSTITUTIONAL**.
 -  **Injunctive Relief:** The Temporary Restraining Order dated April 21, 2015 issued in G.R. No. 217451 is **LIFTED**.
-

SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLE LINES

Concurring Opinion of Associate Justice Marvic M.V.F. Leonen [208–227]

- **Critique of Shotgun Consolidation & Facial Challenges:** Expressed concern over consolidating diverse petitions raising disparate constitutional issues under a single law, creating a "shotgun approach". Reiterated that facial challenges apply strictly to free speech cases, not education or labor statutes [222–223].
- **Non-Self-Executing Framework:** Agreed with the result that general constitutional policies on education, language, and labor are non-self-executing standards that cannot override legislative police power absent an explicit statutory breach [225–226].

Source-Verified Quotable Lines

- **On Police Power and Education Regulation (Caguioa, J.):**

"The enactment of education laws, including the K to 12 Law and the Kindergarten Education Act... are an exercise of the State's police power. The State has an interest in prescribing regulations to promote the education and the general welfare of the people."

- **On Non-Self-Executing Constitutional Provisions (Caguioa, J.):**

"These constitutional provisions are only policies that may be 'used by the judiciary as aids or as guides in the exercise of its power of judicial review, and by the legislature in its enactment of laws.' The Court reiterates that they do not embody judicially enforceable constitutional rights."

- **On External vs. Internal Governance of Schools (Caguioa, J.):**

"When we speak of State supervision and regulation, we refer to the external governance of educational institutions, particularly private educational institutions as distinguished from the internal governance by their respective boards of directors or trustees... The addition of the word 'reasonable' is meant to underscore... that it does not in any way mean control." [196–197]

RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *CoTeSCUP v. Secretary of Education* (2018), seven consolidated petitions challenged R.A. No. 10533 (K to 12 Law), R.A. No. 10157 (Kindergarten Act), CMO No. 20 (s. 2013), D.O. No. 31 (s. 2012), and the DOLE-DepEd-CHED Joint Guidelines. Petitioners (teachers, parents, students, legislators) argued that: (1) R.A. 10533 lacked prior stakeholder consultations and failed the Enrolled Bill test under Astorga; (2) compulsory K to 12 violates Art. XIV, Sec. 2(2) (limiting compulsory education to elementary) and B.P. Blg. 232; (3) Mother Tongue instruction violates Art. XIV, Sec. 7; and (4) CMO No. 20 unconstitutionally removed Filipino, Panitikan, and Constitution core subjects from college, causing teacher displacement.

The Supreme Court En Banc, through Justice Caguioa, DENIED the petitions and declared all assailed acts CONSTITUTIONAL. The Court held: (1) Pre-enactment regional consultations were amply conducted, and Astorga does not apply because no presiding officer withdrew his signature from the enrolled bill; (2) R.A. 10533 is a valid exercise of State police power; Art. XIV, Sec. 2(2) sets a minimum compulsory floor, not a ceiling; (3) Mother Tongue instruction enhances early learning and aligns with Art. XIV, Sec. 7; and (4) CMO No. 20 is valid because Art. XIV, Sec. 6 (Filipino), Sec. 14–16 (culture), and Art. XIII, Sec. 3 (labor) are non-self-executing policies. Core subjects were not removed but transferred to Senior High School to

decongest college GE, while HEIs retain academic freedom to offer additional Filipino courses."* [124–127, 140, 142, 151, 161, 166, 171–173, 201]

3 Likely Professor Follow-Up Questions & Concise Answers

1.  **Q: Why did the Supreme Court refuse to apply *Astorga v. Villegas* to invalidate R.A. No. 10533 based on alleged journal discrepancies?**
 -  **A:** In *Astorga v. Villegas*, the Senate President explicitly **withdrew his signature** from the enrolled bill upon discovering errors, resulting in no enrolled bill existing. In *CoTeSCUP*, neither the Speaker nor the Senate President withdrew authentication; thus, the **Enrolled Bill Doctrine** applies conclusively.
2.  **Q: Are constitutional declarations on quality education (Art. XIV, Sec. 1), national language (Art. XIV, Sec. 6), and labor protection (Art. XIII, Sec. 3) self-executing provisions that can invalidate CMO No. 20?**
 -  **A: No.** Under *CoTeSCUP*, these provisions are **non-self-executing statements of policy** [154–156, 171–172, 174]. They serve as moral incentives for Congress and aids for judicial interpretation, but do not create standalone, judicially demandable rights to specific college courses.
3.  **Q: Does making Senior High School compulsory violate Article XIV, Section 2(2) of the Constitution?**
 -  **A: No.** Article XIV, Section 2(2) establishes a **minimum constitutional baseline** requiring elementary education to be compulsory. It does not restrict Congress from exercising police power to expand compulsory basic education to Kindergarten and Senior High School.

Changed-Material-Fact Hypothetical

-  **Scenario:** Suppose Congress enacts a law mandating that all private universities must surrender 51% of their Board of Trustees seats to government-appointed officials to ensure compliance with national curriculum standards. The private universities challenge the law under *CoTeSCUP v. DepEd*. How should the Supreme Court rule?
-  **Answer: The Supreme Court MUST DECLARE THE LAW UNCONSTITUTIONAL.** Under *CoTeSCUP v. DepEd*, Article XIV, Section 4(1) grants the State authority over **external governance** (supervision and regulation of educational baselines). The Court explicitly clarified that State supervision does **not** include "control" or the right to dictate **internal governance** or dominate school boards [196–197]. Forcing private universities to cede board control usurps internal governance, violating Article XIV, Section 4 and academic freedom.

One-Sentence Doctrine Anchor

- ◆ **Constitutional policies on education, language, and labor are non-self-executing guidelines that do not restrict the State's police power to expand compulsory basic education or restructure tertiary curricula.**

Council of Teachers and Staff of Colleges and Universities of the Philippines v. Secretary of Education (2018)

Topic Subtopic	Congress - Journal and Record - Enrolled Bill Theory	GR No. & Ponente	216930, 217451, 217752, 218045, 218098, 218123, 328465 Caguioa, J.
Petitioner/s	Council of Teachers and Staff of Colleges and Universities of the Philippines	Respondent/s	Secretary of Education
Doctrine	The enrolled bill doctrine - <i>The signing of a bill by the Speaker of the House and the Senate President and the certification of the Secretaries of both Houses of Congress that it was passed is conclusive not only as to its provisions but also as to its due enactment.</i>		

FACTS

Background to the K-12 Program

- Historically, the Philippines had a 10-year basic education program, with the expansion of basic education being proposed as early as 1925.
 - The country's commitment to the Education for All (EFA) 2015 goals included the goal of increasing the cycle of schooling to reach 12 years of formal basic education.
- Jan. 20, 2012 → Congress enacted RA 10157 or the Kindergarten Education Act
 - Institutionalized one year of kindergarten as part of basic education
 - Made kindergarten mandatory for entrance to Grade 1
 - Mandated the use of the learner's mother tongue or the language first learned by a child as the primary medium of instruction in kindergarten, subject to exceptions.
- May 15, 2013 → Congress passed RA 10533 or the K to 12 Law, which took effect on June 8, 2013.
 - Before this Act, the Philippines was the only country in Asia and among the three remaining countries in the world with a 10-year basic education program.
 - K-12 Law sought to decongest the curriculum, prepare the students for higher education and for the labor market, and comply with global standards.
- RA 10533 expanded basic education to kindergarten, 6 years of elementary, and 6 years of secondary.
 - 2 additional years of SHS will allow students to choose among academic, technical-vocational, or sports and arts as specialization based on aptitude, interest, and school capacity.
 - Law also required coordination among DepEd, CHED and TESDA in developing the enhanced basic education curriculum (BEC) to ensure college readiness & avoid duplication of subjects.
- May 30, 2014 → As result of the tripartite education fora on K-12 (as mandated by the K-12 Law IRRs), the **Joint Guidelines** on the Implementation of Labor and Management Component of RA 10533.
 - Issued to ensure sustainability of educational institutions, protect the welfare of teaching & non-teaching personnel, and optimize employment retention during the transition.
- DepEd Order No. 31 → provided guidelines for the implementation of Grades 1-10 of the K-12 Curriculum
 - For S.Y. 2012-2013, the new K-12 BEC shall be first implemented in Grades 1 and 7 in all public schools + 5 school years from this, the implementation of the BEC was to be completed.
 - In 2018, the first group of Grade 6 and Grade 12 students under K-12 BEC are set to graduate.
- June 28, 2013 → To accommodate changes brought by the law, CHED Memorandum Order (CMO) No. 20, s. 2013 was issued to provide the framework of the revised General Education (GE) curriculum
 - Required the completion of 36 units as compared to the previous 63/51 unit requirement
 - Provided an element of choice through elective courses
- Several groups, teachers, students, parents, legislators, and other individuals filed consolidated petitions questioning the constitutionality of the Kindergarten Education Act, K-12 Law, and related issuances.

ISSUE 1

Main – Procedural	W/N the Court may exercise its power of judicial review over the controversy	YES
-------------------	--	-----

RESPONDENT/S ARGUMENTS:
- Cases filed by the petitioners involve the resolution of purely political questions which go into the wisdom of the law. - Remedies of certiorari and prohibition sought by petitioners are unwarranted because Congress, DepEd, and CHED did not exercise judicial, quasi-judicial, or ministerial functions, nor did they unlawfully neglect the performance of an act
RULING and RATIO DECIDENDI:
<i>Yes, the court may exercise its power of judicial review</i> - The 1987 constitution expands the definition of judicial power. Sec. 1, Article VIII of the constitution, it not only settles actual case controversies involving legally demandable and enforceable rights, but also determines whether there has been grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the Government. - It is of no moment that the assailed laws and executive issuances did not involve the exercise of judicial or quasi-judicial function. - Long judicially settled under Court's expanded jurisdiction that writs of certiorari and prohibition are appropriate remedies to raise constitutional issues and to review and/or prohibit or nullify, on the ground of grave abuse of discretion, any act of any branch or instrumentality of the government, even if the latter does not exercise judicial, quasi-judicial or ministerial function Actual Case or Controversy - There is an actual case or controversy and it is ripe for adjudication. - Similar to <i>Sps. Imbong v Ochoa Jr</i>, where the RH Law and its IRR had already taken effect, the present consolidated cases assail laws and executive issuances already took effect and the petitioners, who are faculty members, students, and parents, are directly considerably affected. Legal Standing - Petitioners have sufficient legal standing. The following are suing in their capacities as... - GR 216930 and 218465 - Organizations/federations representing interest of faculty and staff allegedly threatened to be demoted or removed from employment - GR 217752 and 218045 - Citizens, taxpayers, and in personal capacities as parents whose children would be directly affected by the law - GR 218123 and 217451 - Teachers who allegedly are or will be negatively affected by the implementation of K to 12 law and CMO 20 and as taxpayers. - Instant cases involve issues on education, which under the constitution the State is mandated to promote, protect, the stringent requirement of direct and substantial interest may be dispensed with. - Mere fact petitioners are concerned citizens asserting a public right sufficiently give them standing

ISSUE 2

Main – Substantive	W/N the K to 12 Law was duly enacted <i>Focus on the Enrolled Bill Doctrine for class topic</i>	YES It was validly enacted
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:	
Lack of prior consultation → sectors directly affected by the K-12 program were allegedly deprived of their right under Sec. 16, Art. XIII of the Constitution to be consulted/participate in matters involving their interests . Difference between versions → The Enrolled bill which the president signed into law varies significantly from the version of the bill approved by Congress and reported in the Senate Journal	- Text in the enrolled bill which was eventually signed into law is not different from the consolidated bill drafted by the bicameral Conference Committee and approved by the Senate & House of Representatives. - There is no undue delegation of legislative power because K to 12 Law	

○ The court should look into entries in the Journal to determine whether the K-12 law was duly enacted. ● Law allegedly incomplete → K-12 law failed to provide sufficient standards by which the DepEd, CHED, and TESDA may be guided in addressing the possible impact of the implementation of the K to 12 Law on labor. ● Undue delegation of legislative power → Sec. 31 of the K to 12 IRR and Joint Guidelines, spring forth from an undue delegation of legislative power, which are invalid and unconstitutional.	provides a sufficient standard on the impact on labor due to its implementation ● Law sufficiently provided standards to guide the relevant administrative agencies and the private educational institutions in the implementation of the K to 12 Law and address all labor issues.
--	--

RULING and RATIO DECIDENDI:

Yes, it was validly enacted.

There were prior consultations

- There were nationwide regional consultations conducted by DepEd pursuant of DepEd Memorandum Nos. 38 and 98 series of 2011.
 - Students, parents, teachers and administrators, government representatives, and representatives from private schools and private sectors participated.
 - Philippine Congress, while drafting the law, also conducted regional public hearings with representatives from parents-teachers' organizations, business, public/private school heads, civil society groups/non-government organizations/private organizations and local government officials and staff having participated.
- Even assuming no consultations had been made, the penalty for failure on the part of the government to consult could only be reflected in the ballot box and would not nullify government action.

Enrolled Bill Doctrine applies in this case

- Under the enrolled bill doctrine, the signing of a bill by the Speaker of the House and the Senate President and the certification of the Secretaries of both Houses of Congress that it was passed is conclusive not only as to its provisions but also as to its due enactment.
 - The Court had consistently adhered to this doctrine despite the petitioner's allegations.
- Petitioners' reliance on the *Astorga* case is misplaced. It was the Senate President himself who admitted the mistake and withdrew his signature from the bill, so in effect, there was no longer an enrolled bill to consider. With no enrolled bill, the Court had to resort to consulting entries in the journal
 - In the present case, **no exceptional circumstances justify the departure from the salutary rule.**
 - K to 12 Law was passed by the Senate and HOR, approved by the president, and after publication, took effect on June 8, 2013.

There is no undue delegation of legislative power in the enactment of the K to 12 Law

- Two tests to determine if there is undue delegation of legislative power
 - The completeness test
 - Law must be complete in all its terms and conditions when it leaves the legislature so when it reaches the delegate, the only thing they would have to do is enforce it.
 - The sufficient standard test
 - Mandates adequate guidelines or limitations in the law to determine the boundaries of the delegate's authority and prevent the delegation from running riot
 - Must specify the limits of the delegate's authority, announce the legislative policy, and identify the conditions under which it is to be implemented
- The law adequately provides the legislative policy that it seeks to implement (Section 2 of the K to 12 Law)
- There are standards to guide the DepEd, CHED, and TESDA in carrying out the provisions of the law from the development of the K to 12 BEC, to the hiring and training of teaching personnel and to the formulation of appropriate strategies in order to address the changes during the transition period
- Under the two tests, the law is complete in all essential terms and conditions and contains sufficient

parameters on the power to delegate to the DepEd, CHED, and TESDA.

DO no. 31 is valid and enforceable

- DO 31 is an administrative regulation addressed to DepEd personnel providing for general guidelines on the implementation of a new curriculum for Grades 1 to 10 in preparation for the K to 12 basic education.
- Interpretative regulations and those merely internal in nature, including the rules and guidelines to be followed by subordinates in the performance of their duties are not required to be published.
- DO 31 was already forwarded to the UP Law Center for filing in accordance with Sections 3 and 4 of the Administrative Code of 1987 and took effect pursuant to said provisions.

[The case has more pages left but the syllabus said Enrolled Bill doctrine only so I'll end the issue until there!]

FINAL DECISION

WHEREFORE, the consolidated petitions are hereby DENIED. Accordingly, the Court declares Republic Act No. 10533, Republic Act No. 10157, CHED Memorandum Order No. 20, Series of 2013, Department of Education Order No. 31, Series of 2012, and Joint Guidelines on the Implementation of the Labor and Management Component of Republic Act No. 10533, as CONSTITUTIONAL. The Temporary Restraining Order dated April 21, 2015 issued in G.R. No. 217451 is hereby LIFTED.

United States v. Pons

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *The United States v. Juan Pons*
 - **Citation:** G.R. No. L-11530, August 12, 1916 (34 Phil. 729)
 - **Ponente:** Trent, *J.*
 - **Bench Composition:** Arellano, *C.J.*, Torres, Johnson, Moreland, Trent, and Araullo, *JJ.*
 - **Syllabus Relevance & Topic:**
 1. **Legislative Department — Legislative Journals and Records (Art. VI, Sec. 16(4)):** Probative value and unimpeachability of legislative journals; judicial notice of legislative records; the "Journal Entry Rule" [2, 252–253, 271–273].
 2. **Inadmissibility of Extrinsic/Parol Evidence to Impeach Journals:** Absolute bar against introducing oral testimony, eyewitness accounts, or public rumors (including allegations of "stopping the clock") to contradict clear and explicit legislative journal entries regarding the date and time of legislative adjournment *sine die* [2, 253, 272–273].
 3. **Validity of Act No. 2381 (The Opium Law):** Conclusive presumption that Act No. 2381 was legally passed prior to midnight of February 28, 1914, during the special legislative session called by the Governor-General.
-

CHRONOLOGICAL MATERIAL FACTS

1. **Governor-General's Call for Special Legislative Session (1914):** Pursuant to organic law, the Governor-General issued a proclamation convening a special session of the Philippine Legislature of 1914, explicitly fixing midnight of February 28, 1914 as the final deadline and date of adjournment *sine die* for the special session.
2. **Passage of Act No. 2381:** During the 1914 special session, the Philippine Legislature enacted Act No. 2381, a penal statute prohibiting and punishing the illegal importation, transportation, receipt, and concealment of opium.
3. **Official Legislative Journal Entries:** The official Journal of the Philippine Commission (vol. 7, p. 793) and the official Journal of the Philippine Assembly (vol. 9, p. 1029) recorded that on Saturday, February 28, 1914, upon the arrival of the hour of midnight, both chambers adjourned *sine die*.
4. **Arrival of Opium Shipment (April 5–6, 1915):** Over a year later, the Spanish mail steamer *Lopez y Lopez* arrived at the Port of Manila carrying 25 barrels manifested as "wine" consigned to Jacinto Lasarte and Gabino Beliso.
5. **Customs Investigation and Seizure (April 9–10, 1915):**
 - Customs secret service agents grew suspicious and tracked 5 barrels delivered from Beliso's bodega to a house located at No. 144 Calle General Solano, rented by appellant Juan Pons under the fictitious name "F.C. Garcia" [274–275].
 - Agents searched the premises and discovered that the 5 barrels had been opened and emptied, and found 77 tins of opium hidden inside baskets of lime in the basement.
 - Agents then returned to Beliso's warehouse and opened 3 remaining barrels from the shipment. Each barrel contained a large tin receptacle fitted inside the barrel head, holding 75 small tins of opium (totaling 195 tins of opium in the 3 barrels).
6. **Arrest and Confession of Juan Pons:** On April 10, 1915, Juan Pons arrived at Beliso's office, was placed under arrest, and voluntarily confessed to Customs Secret Service Chief Captain Hawkins that he and Beliso were partners in smuggling the opium shipment (totaling 520 tins containing 125 kilograms valued at ₱62,400) [269, 274–275].

7. **Criminal Prosecution:** The City Fiscal of Manila filed an Information against Gabino Beliso, Juan Pons, and Jacinto Lasarte in the Court of First Instance (CFI) of Manila for the crime of illegal importation of opium under Act No. 2381.
-

● PROCEDURAL HISTORY

1. **Trial Court Disposition (CFI of Manila):** The Court of First Instance of Manila found Juan Pons guilty beyond reasonable doubt of illegal importation of opium under Act No. 2381 and sentenced him to imprisonment and a fine.
 2. **Appeal to the Supreme Court:** Appellant Juan Pons appealed his conviction to the Supreme Court of the Philippine Islands.
 3. **Supreme Court Disposition (August 12, 1916):** The Supreme Court En Banc **AFFIRMED** the judgment of conviction.
-

● PARTIES' MATERIAL ARGUMENTS

- **Appellant (Juan Pons):**
 1. **Non-Existence / Invalidity of Act No. 2381:** Act No. 2381 is null, void, and non-existent because it was enacted on March 1, 1914—*after* the expiration of the special session mandated by the Governor-General's proclamation.
 2. **The "Stopping the Clock" Practice:** The Legislature stopped the hands of the Assembly clock at midnight on February 28, 1914, and left it stopped while continuing to deliberate and pass legislation on March 1, 1914, in direct violation of the Act of Congress of July 1, 1902.
 3. **Admissibility of Extrinsic Parol Evidence:** Appellant contended that courts are not bound by legislative journals and urged the Court to receive extraneous oral evidence (eyewitness accounts, public knowledge, and testimony) to prove the actual physical time of adjournment.
 - **Appellee (The United States / Government):**
 1. **Conclusiveness of Legislative Journals:** The official legislative journals of both the Philippine Commission and the Philippine Assembly are clear, explicit, and unambiguous in stating that the Legislature adjourned *sine die* at 12:00 o'clock midnight on February 28, 1914 [270, 272–273].
 2. **Inadmissibility of Extrinsic Evidence:** Under Section 275 and Section 313 of the Code of Civil Procedure and sound public policy, legislative journals are unimpeachable public records of a co-equal department [271–273]. Courts cannot look behind clear journals to receive parol evidence [2, 253, 272–273].
-

● ISSUES

1. **Whether the Supreme Court is required to take judicial notice of the official legislative journals of the Philippine Legislature.**
2. **Whether courts may look behind clear and explicit legislative journals and admit extrinsic/parol evidence to prove that the Legislature adjourned at a time different from that recorded in its journals.** [2, 253, 272–273]
3. **Whether Act No. 2381 was validly enacted during the 1914 special session prior to adjournment *sine die*.**

HOLDINGS AND CONTROLLING REASONING

1. On Judicial Notice of Legislative Journals: YES. Courts ARE MANDATED to take judicial notice of legislative journals.

- **Ratio:** Under Section 275 of the Code of Civil Procedure, official acts and proceedings of the legislative department shall be judicially recognized by the courts without the introduction of proof [271–272].
- **Application:** While there were no prior adjudicated cases in the jurisdiction on whether courts may take judicial notice of legislative journals, settled American jurisprudence establishes that courts must take judicial notice of legislative journals to determine whether a statute was passed or when the legislature adjourned. The journals of the 1914 special session are official public memorials of which the Court takes mandatory judicial notice [272–273].

2. On Admissibility of Extrinsic/Parol Evidence to Impeach Journals: NO. Legislative Journals are CONCLUSIVE; Courts CANNOT go behind clear journal entries nor receive oral evidence. [2, 253, 272–273]

- **A. The Journal Entry Rule and Public Policy:**
 - To determine the date of legislative adjournment, the legal inquiry belongs entirely to the law of evidence. Appellant relies on the uncertain memory of human witnesses, whereas legislative journals are the official acts of the sovereign government itself.
 - Imperative reasons of public policy demand that the authenticity and existence of laws rest upon public memorials of the most permanent character. Laws must be public so all can conform to them, and permanent so that rights acquired under them are not destroyed tomorrow by oral evidence liable to loss by death, absence, or the treachery of memory.
- **B. Separation of Powers and Co-Equal Respect:**
 - From their very nature, legislative records are as sacred and important as judicial records.
 - Inquiring into the veracity of clear and explicit legislative journals by receiving oral testimony would violate both the letter and spirit of the organic law, invade a coordinate and independent department of government, and impermissibly interfere with legislative functions [2, 253, 272–273].
- **C. Rejection of the "Stopping the Clock" Argument:**
 - Even if the Legislature stopped the clock at midnight on February 28, 1914 to complete its work, *"the resultant evil might be slight as compared with that of altering the probative force and character of legislative records, and making the proof of legislative action depend upon oral evidence..."*
 - Because the legislative journals state with absolute certainty that the Legislature adjourned *sine die* at 12:00 o'clock midnight on February 28, 1914, that entry **settles the question conclusively**. Courts cannot go behind the journals.

3. On the Validity of Act No. 2381 and Appellant's Criminal Liability: YES. Act No. 2381 is VALID, and Pons's conviction IS AFFIRMED.

- **Ratio:** Because the legislative journals conclusively establish that the special session adjourned at midnight on February 28, 1914, Act No. 2381 was validly passed within the period fixed by the Governor-General's proclamation.
- **Application to Merits:** The prosecution proved beyond reasonable doubt that Pons actively participated in smuggling 520 tins of opium hidden inside wine barrels via the steamer *Lopez y Lopez*, rented a house under a

fictitious name to store the contraband, and confessed his partnership with Beliso [269, 274–276]. His conviction under Act No. 2381 is affirmed.

DOCTRINE, TESTS, AND LEGAL STANDARDS

- **Probative Value of Legislative Journals / Journal Entry Rule (*U.S. v. Pons Rule*):** Official legislative journals required to be kept by organic or constitutional law are public memorials of the highest character, possessing equal dignity with judicial records. When clear and explicit, legislative journals constitute **conclusive proof** of legislative proceedings and the date/time of adjournment *sine die* [2, 253, 272–273].
 - 1. **Inadmissibility of Parol Evidence to Impeach Journals:** Courts will not look behind clear legislative journals or admit parol/extrinsic evidence to contradict official journal entries [2, 253, 272–273]. Allegations that the legislature "stopped the clock" cannot be proven by oral evidence to invalidate a published statute.
 - 2. **Separation of Powers Bar:** Prying into the veracity of official legislative records invades a co-equal, independent branch of government and undermines the stability of public law [2, 253, 272–273].
-

DISPOSITION

- **Ruling:** The judgment of conviction rendered by the Court of First Instance of Manila against appellant Juan Pons for violation of Act No. 2381 is **AFFIRMED**, with costs.
-

SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLE LINES

- (*Unanimous decision penned by Justice Trent; Arellano, C.J., Torres, Johnson, Moreland, and Araullo, JJ., concurring*).

Source-Verified Quotable Lines

-  **On the Equal Dignity of Legislative and Judicial Records (*Trent, J.*):**

"From their very nature and object the records of the Legislature are as important as those of the judiciary, and to inquire into the veracity of the journals of the Philippine Legislature, when they are, as we have said, clear and explicit, would be to violate both the letter and spirit of the organic laws... to invade a coordinate and independent department of the Government..."

-  **On the "Stopping the Clock" Policy Rationale (*Trent, J.*):**

"If the clock was, in fact, stopped, as here suggested, 'the resultant evil might be slight as compared with that of altering the probative force and character of legislative records, and making the proof of legislative action depend upon entertain oral evidence, liable to loss by death or absence, and so imperfect on account of the treachery of memory.'"

-  **On the Public Need for Permanent Legislative Records (*Trent, J.*):**

"Imperative reasons of public policy require that the authentic of laws should rest upon public memorials of the most permanent character. They should be public, because all are required to conform to them; they should be permanent, that rights acquired to-day upon the faith of what has been declared to be law shall not be destroyed to-morrow..."

● RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *U.S. v. Pons* (1916), Juan Pons was prosecuted for illegally importing 520 tins of opium hidden inside wine barrels under Act No. 2381. On appeal, Pons challenged the validity and existence of Act No. 2381, arguing that the Legislature enacted the law on March 1, 1914—after the expiration of the special session mandated by the Governor-General's proclamation (which fixed midnight of Feb 28, 1914 as the end). Pons claimed the Legislature 'stopped the clock' at midnight on Feb 28 and continued passing laws on March 1, offering oral eyewitness testimony to prove it. However, the official legislative journals explicitly stated that the session adjourned sine die at 12:00 midnight on February 28, 1914.

The Supreme Court En Banc, through Justice Trent, AFFIRMED Pons's conviction and declared Act No. 2381 VALID. The Court held: (1) Courts must take judicial notice of legislative journals; (2) Under the Journal Entry Rule and separation of powers, clear and explicit legislative journals are CONCLUSIVE evidence of legislative acts and adjournment time; and (3) Extrinsic/parol evidence is strictly INADMISSIBLE to contradict legislative journals. Even if the clock was stopped, public policy demands that law rests on permanent, unimpeachable public memorials rather than the slippery memory of witnesses."* [2, 253, 269, 271–274, 276]

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: Can an accused person present testimony from news reporters or congressmen to prove that a law was enacted after the session officially adjourned?**
 - **A: No.** Under *U.S. v. Pons*, legislative journals are conclusive public memorials [2, 253, 272–273]. Courts are strictly prohibited from receiving parol or extrinsic evidence to contradict clear journal entries, as doing so violates the separation of powers and subjects the stability of laws to human memory [253, 272–273].
2. **Q: What is the rationale behind refusing to investigate the practice of "stopping the clock" in Congress?**
 - **A:** As held in *U.S. v. Pons*, even if the legislative clock was physically stopped, the potential evil of that procedural fiction is slight compared to the catastrophic evil of destroying the verity of public records and making the validity of laws depend upon uncertain oral evidence.
3. **Q: How does *U.S. v. Pons* relate to the Enrolled Bill Doctrine established in later cases like *Arroyo v. De Venecia* and *Tinio v. Duterte*?**
 - **A:** *U.S. v. Pons* established the foundational **Journal Entry Rule** regarding legislative records. Later cases (*Arroyo*, *CoTeSCUP*, *Tinio v. Duterte*) build upon *Pons* by holding that both the Enrolled Bill and official Congressional Journals (Art. VI, Sec. 16(4)) are unimpeachable, conclusive evidence of due enactment that courts will not look behind absent withdrawal of authentication by legislative leaders.

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose during a legislative session, the official Congressional Journal explicitly states: "*At 11:59 PM on February 28, the Chair declared a recess. The House resumed session at 2:00 AM on March 1 and voted on the Tax Bill after the special session deadline passed.*" The Governor-General's proclamation had mandated that no laws could be passed after midnight of February 28. The Executive challenges the Tax Bill. Will the Supreme Court apply *U.S. v. Pons* to uphold the bill?
- **Answer: No, the Court WILL NOT uphold the bill; the law is VOID.** In *U.S. v. Pons*, the legislative journal explicitly stated that the body adjourned *sine die* at 12:00 midnight on February 28. Under the Journal Entry Rule, the Court gave conclusive weight to what was written in the journal. In this hypothetical, because the journal *itself* affirmatively discloses on its face that the vote occurred on March 1 after the deadline, the journal entry itself proves the constitutional/statutory defect without needing extrinsic evidence, rendering the law void under Section 275 [271–272].

One-Sentence Doctrine Anchor

Official legislative journals are unimpeachable public memorials that conclusively prove the proceedings and time of legislative adjournment, and courts will not receive extrinsic parol evidence to contradict clear journal entries. [2, 253, 272–273]

U.S. v. PONS (1916)

Topic Subtopic	Congress Organizations and Sessions – Probative Value of the Journal	GR No. & Ponente	G.R. 11530 TRENT, J.
Petitioner/s	The United States, <i>plaintiff-appellee</i>	Respondent/s	Juan Pons, <i>defendant-appellant</i>
Doctrine	Official legislative journals , of which courts must take judicial notice, constitute conclusive and unimpeachable evidence of <u>legislative proceedings</u> and the <u>exact time of adjournment</u> that cannot be contradicted by extraneous or oral evidence. This affirms the validity of Act No. 2381 and upholds the conviction of an accused whose direct participation and voluntary admissions establish guilt beyond a reasonable doubt for illegal opium importation.		

FACTS

- On or about April 5 or 6, 1915, the Spanish mail steamer *Lopez y Lopez* arrived at Manila from Spain carrying **25 barrels manifested as “wine”** and consigned to Lasarte.
 - Beliso, a wine merchant, received the invoice and **bill of lading** endorsed by Lasarte.
 - Broker Gregorio Cansipit cleared the cargo through customs and all barrels were delivered to Beliso’s warehouse.
- Beliso selected **five barrels** from the 25 and instructed Cornelius Sese, his employee, to deliver them via bull cart to Juan Pons at No. 144 Calle General Solano.
 - Customs secret service agents searched Beliso’s warehouse and found only 20 barrels.
 - Sese was arrested and disclosed that the other five barrels had been delivered to Pons.
- The officers searched No. 144 Calle General Solano and recovered the five missing barrels empty. They **also found baskets of lime** scattered in the basement, with one basket containing **77 tins of opium**.
 - No one was in the house during the search, but clothing bearing the initials “J.P.” were found, so they concluded that Juan Pons owned the place.
 - Agents returned to Beliso’s warehouse and opened 3 of the remaining 20 barrels. They found 75 small tins of opium in the large tins inside the barrels.
 - Pons arrived at Beliso’s office on Apr. 10 and was arrested, voluntarily confessing his participation.
- On April 10, 1915, Gabino Beliso, Juan Pons, and Jacinto Lasarte were charged with the crime of **illegal importation of opium** under **Act No. 2381**.
 - The information alleges that they conspired to fraudulently bring from Spain, on board the *Lopez y Lopez*, 520 tins containing 125kg of opium (valued at P62,400), and subsequently *received, concealed, and assisted* in transporting the drug.

MAIN ISSUE (ON PROBATIVE VALUE OF JOURNALS)

W/N Act No. 2381 is null and void on the ground that the Philippine Legislature adjourned on March 1, 1914, rather than February 28, 1914, and W/N courts can take judicial notice of legislative journals or look behind them using extraneous evidence.	NO
Pons Argument: Act No. 2381 is null and void because the 1914 special session of the Philippine Legislature adjourned on March 1, 1914, and not on February 28, 1914 (the deadline fixed in the Governor-General’s proclamation). They offered evidence to prove that the Assembly’s clock was stopped at midnight on February 28, 1914, and left stopped until pending discussions finished, in direct violation of the Act of Congress of July 1, 1902. Appellee (US) Argument: The legislative journals are conclusive evidence as to the date of adjournment. The journals explicitly state that the Legislature adjourned <i>sine die</i> at 12 o’clock midnight on February 28, 1914. Courts must take judicial notice of these journals and cannot look beyond them to extraneous evidence.	
RULING and RATIO DECIDENDI:	
NO. The SC held that the TC did not err in denying appellant’s motion; Act No. 2381 is valid and enforceable. 1) Courts cannot go behind official legislative journals to investigate extraneous claims or oral evidence.	

- 2) By law (**Sections 275 and 313 of the Code of Civil Procedure**), courts are required to take **judicial notice of official legislative records**.
- 3) A **signed copy** of a **legislative journal** serves as **conclusive proof of its contents and enactment**. Because the official journals of both the Assembly and the Commission clearly record that the Legislature **adjourned *sine die* at 12:00AM on February 28, 1914**, that recorded date is final and binding.
 - a) Volume 7, p.793 of the Commission Journal and Volume 9, p.1029 of the Assembly Journal explicitly record that both bodies adjourned *sine die* at 12 o'clock midnight on February 28, 1914.
 - b) Pursuant to **Act No. 1679** (and **Rules 15 & 16 of the Philippine Commission Procedure**) and **Section 7 of the Act of Congress of July 1, 1902**, both legislative chambers were required to **keep and publish correct journals of proceedings**.
- 4) **Courts cannot go behind clear and explicit legislative journals to receive extraneous or parol evidence** (such as alleged stopping of the clock). Inquiring into the veracity of legislative journals would invade a coordinate and independent department of government, and interfere with legislative functions.
- 5) Imperative reasons of public policy demand that the **authenticity of laws** rest upon **permanent public memorials rather than the uncertain, treacherous memory of witnesses**. The Court cited U.S. jurisprudence holding that legislative journals are **controlling and unimpeachable**:
 - a) ***Heron v. Smith***: Held that courts will not go beyond the proceedings recorded in legislative journals to determine whether a law was adopted, as public rights must rest upon **permanent memorials rather than individual recollection**.
 - b) ***Capito v. Topping***: Held that stopping the clock creates a slight evil compared to altering the probative force of legislative records and leaving the proof of laws to uncertain oral testimony.

ISSUE 2

W/N the legal evidence of record establishes the guilt of Pons beyond a reasonable doubt for the crime of illegal importation of opium under Act No. 2381.	YES
Pons Argument: The legal evidence fails to establish his guilt beyond a reasonable doubt. He claimed the opium was shipped from Spain by a childhood friend named "F. C. Garcia," who wrote a letter asking him to rent the house at 144 Calle General Solano and keep it until Garcia's arrival Appellee (US) Argument: Pons actively participated in the smuggling conspiracy by leasing the house under a fictitious name, receiving the opium barrels, processing them, delivering 250 tins to a buyer. This demonstrates how the opium was concealed, and acknowledges a continuing smuggling partnership with Beliso	
RULING and RATIO DECIDENDI:	
YES. The SC held that the trial court did not err in finding appellant guilty beyond a reasonable doubt. 1) The facts established by the prosecution prove beyond reasonable doubt that Pons took a direct part in a large-scale smuggling transaction for profit. 2) Pons leased 144 Calle General Solano under the name "F. C. Garcia". Here, 77 tins of opium were found, alongside clothing bearing his initials (J.P.). Large tins matching those in the barrels were recovered from both Beliso's warehouse and Pons' yard. 3) Pons made voluntary confessions and demonstrated the exact method used to conceal opium inside the wooden heads of the barrels. He admitted to delivering 250 tins of opium to a Chinaman (as per Beliso's instructions), and admitted to sharing prior smuggling profits with Beliso. 4) His explanation of "F.C. Garcia" was contradictory and utterly unconvincing (varying from a traveling tobacco merchant, to a fictitious name, to his childhood friend). 5) Thus, the sentence imposed was held to be strictly in accordance with law and precedents in similar illegal importation cases.	

FINAL DECISION	For the foregoing reasons, the judgment appealed from is affirmed, with costs. So ordered.
-----------------------	--

Astorga v. Villegas

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Herminio A. Astorga, in his capacity as Vice-Mayor of Manila v. Antonio J. Villegas, in his capacity as Mayor of Manila, The Executive Secretary, Abelardo Subido (Commissioner of Civil Service), Eduardo Quintos (Chief of Police of Manila), Manuel Cudiamat (City Treasurer of Manila), City of Manila, and Members of the Municipal Board*
- **Citation:** G.R. No. L-23475, April 30, 1974 (En Banc; 56 SCRA 714)
- **Ponente:** Makalintal, C.J.
- **Bench Composition:** Castro, Teehankee, Antonio, Esguerra, Fernandez, Muñoz Palma, and Aquino, *JJ.*, concur; Zaldivar, Fernando, and Barredo, *JJ.*, took no part; Makasiar, *J.*, on official leave.
- **Syllabus Relevance & Topic:**
 1. **Legislative Department — Enrolled Bill Doctrine vs. Journal Entry Rule (Art. VI, Sec. 16(4) [formerly Art. VI, Sec. 10(4), 1935 Constitution]):** Attestation by presiding officers as a mere mode of authentication; the conclusive presumption of an enrolled bill is neutralized when the presiding officers disclaim or withdraw their signatures [2, 18, 140–141, 191–192].
 2. **The Astorga Exception to the Enrolled Bill Theory:** In the absence of an authenticated enrolled bill (due to disclaimer/withdrawal of signatures), courts must resort to the official Congressional Journals to determine whether a bill was duly enacted in accordance with the text approved by both Houses [3, 122, 141–142, 192, 236].
 3. **Essence of Legislative Enactment:** The approval of Congress, not the signatures of presiding officers or executive approval of a mismatched text, is what constitutes a valid law.

CHRONOLOGICAL MATERIAL FACTS

1. **Filing and House Approval of HB No. 9266 (March–April 1964):** On March 30, 1964, House Bill No. 9266—a bill of local application amending Sections 10 and 11 of Republic Act No. 409 (Revised Charter of the City of Manila) to redefine the powers, rights, and duties of the Vice-Mayor—was filed in the House of Representatives. On April 21, 1964, it passed third reading in the House without amendments.
2. **Senate Committee Recommendation:** The bill was transmitted to the Senate and referred to the Committee on Provinces and Municipal Governments and Cities, chaired by Senator Gerardo M. Roxas. The Roxas Committee favorably recommended approval with a minor amendment: that in case of the Vice-Mayor's incapacity, the President Protempore of the Municipal Board (rather than the City Engineer) would succeed as Acting Mayor.
3. **Senate Floor Deliberations and Tolentino Amendments (May 20, 1964):** During second reading on the Senate floor, **Senator Arturo Tolentino introduced substantial amendments to Section 11.** The Tolentino amendments were approved *in toto* by the Senate floor. The minor amendment recommended by Senator Roxas was **never acted upon** by the Senate.
4. **Secretariat Error and Transmission of Mismatched Certification (May 21, 1964):** The Secretary of the Senate sent a letter to the House certifying that HB No. 9266 passed the Senate "with amendments". However, the attached certification erroneously reflected **only the minor Roxas amendment**, completely omitting the substantial Tolentino amendments actually approved on the floor.
5. **Enrolment, Authentication, and Presidential Signing (June 1964):** The House agreed to the amendment as transmitted. Copies were printed, certified, and attested by the Secretary of the House, Speaker of the House, Secretary of the Senate, and Senate President Ferdinand E. Marcos. On June 16, 1964, 4 printed copies were transmitted to President Diosdado Macapagal, who signed the bill into law on June 18, 1964 as **Republic Act No. 4065**.

6. **Public Denunciation and Discovered Discrepancy (July 1964):** Following public denunciation by Manila Mayor Antonio J. Villegas, Senator Tolentino issued a press statement on July 5, 1964, revealing that the enrolled copy of HB No. 9266 signed into law was the **wrong version** and did not embody the floor amendments approved by the Senate.
 7. **Senate President's Official Invalidation of Signature:** On July 11 and July 21, 1964, Senate President Marcos addressed letters to President Macapagal explaining that the enrolled bill signed was not the bill approved by Congress, and declared his signature on the enrolled bill **invalid, null, and of no effect**.
 8. **Presidential Withdrawal of Approval (July 31, 1964):** On July 31, 1964, President Macapagal sent an official message to Congress informing them that he was **officially withdrawing his signature** from HB No. 9266, stating it was untenable to convert into law a measure not actually approved by Congress.
 9. **Executive Directive to Disregard Act:** Mayor Villegas issued circulars directing all city department heads and business owners to disregard R.A. No. 4065 and recalled police officers assigned to Vice-Mayor Herminio A. Astorga.
-

● PROCEDURAL HISTORY

1. **Original Action in the Supreme Court:** Vice-Mayor Herminio A. Astorga filed a Petition for *Mandamus* and *Injunction* before the Supreme Court against Mayor Villegas, the Executive Secretary, the Civil Service Commissioner, the Police Chief, and the City Treasurer to compel compliance with R.A. No. 4065.
 2. **Issuance of Restraining Order (April 28, 1965):** The Supreme Court issued a Temporary Restraining Order enjoining Vice-Mayor Astorga from exercising any powers under R.A. No. 4065.
 3. **Supreme Court Decision (April 30, 1974):** The Supreme Court En Banc **DENIED** the petition, declared R.A. No. 4065 **NOT TO HAVE BEEN DULY ENACTED**, and made the Restraining Order **PERMANENT**.
-

● PARTIES' MATERIAL ARGUMENTS

- **Petitioner (Vice-Mayor Herminio A. Astorga):**
 1. **Conclusiveness of Enrolled Bill:** Under the Enrolled Bill Doctrine (*Mabanag v. Lopez Vito*), the attestation of presiding officers and the signature of the Chief Executive constitute conclusive proof of due enactment, binding on the judiciary out of respect for co-equal branches [136–137, 140].
 2. **Irrevocability of Enrolment:** Once a bill is enrolled, signed, and published as a statute, subsequent disclaimers or letters by individual officers cannot undo its legal existence or validity.
 - **Respondents (Mayor Antonio J. Villegas, Executive Officials, et al.):**
 1. **Non-Existence of Enrolled Bill:** R.A. No. 4065 never became law because the text signed was never passed by the Senate.
 2. **Neutralization of Presumption via Disclaimer:** Senate President Marcos's formal disclaimer and President Macapagal's withdrawal of signature invalidated the attestation, leaving no enrolled bill in existence [132–133, 140–141].
 3. **Conclusiveness of Legislative Journals:** In the absence of an authenticated enrolled bill, the Senate Journal is decisive under the Journal Entry Rule, proving that the Tolentino amendments were omitted from the printed text.
-

● ISSUES

1. **Primary Issue:** Whether Republic Act No. 4065 was validly enacted into law under the Enrolled Bill Doctrine, or whether the disclaimer and withdrawal of signatures by the Senate President and Chief Executive neutralized the enrolled bill, compelling the Court to consult the Congressional Journals under the Journal Entry Rule [122, 134, 136, 140–142].

HOLDINGS AND CONTROLLING REASONING

1. On Attestation as a Mode of Authentication: Attestation is **NOT** an indispensable constitutional element of enactment.

- **Ratio:** Under the Constitution, the lawmaking process ends when a bill is **approved by both Houses**. Attestation by presiding officers is merely a procedural mode of authentication; it does not add to the validity of a bill or cure intrinsic defects.
- The essential, indispensable step mandated by the Constitution is the final passage of identical text by both chambers.

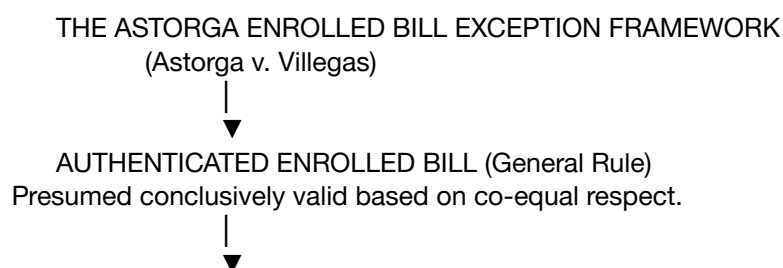
2. On the Neutralization of the Enrolled Bill Presumption: The Enrolled Bill Doctrine **DOES NOT** apply when presiding officers disclaim their signatures [2, 120, 140–141, 192, 236].

- **Ratio:** The Enrolled Bill Theory rests on judicial deference and the "respect due to co-equal and independent departments".
- However, when Senate President Marcos officially declared his signature **invalid** because the bill he signed was never approved by the Senate, that declaration was entitled to greater respect than the attestation it invalidated.
- The Senate President's disclaimer destroyed the authentication. **Absent attestation, there was no enrolled bill to speak of**, and the conclusive presumption of due enactment vanished.

3. On Recourse to the Legislative Journal (*The Journal Entry Rule Exception*): The Court **MUST** consult the Journal, which proves R.A. No. 4065 was **NOT** duly enacted [3, 122–123, 141–142].

- **Ratio:** Without an enrolled bill, the Court must consult the official legislative journals required by Article VI, Section 10(4) of the 1935 Constitution.
- The Senate Journal explicitly disclosed that substantial floor amendments introduced by Senator Tolentino were approved *in toto* by the Senate, but were completely omitted from the printed version transmitted to and signed by the President [123, 130–131, 142].
- Because the text approved by Congress was materially different from the text signed by the President, R.A. No. 4065 was **not duly enacted** [123, 142–143]. For the Court to perpetuate a manifest error rectified by both the Senate President and the Chief Executive would sacrifice truth to fiction.

DOCTRINE, TESTS, AND LEGAL STANDARDS



PRESIDING OFFICER FORMALLY DISCLAIMS / WITHDRAWS SIGNATURE
(Senate President declares signature invalid due to text mismatch)



NEUTRALIZATION OF ENROLLED BILL DOCTRINE

- Attestation destroyed; NO ENROLLED BILL IN EXISTENCE.
- Conclusive presumption DOES NOT APPLY.



RECOURSE TO CONGRESSIONAL JOURNALS (Sec. 16(4))

- Court consults Journal to verify text passed by Houses.
- Journal shows material floor amendments omitted from signed text.
- HELD: Statute NOT DULY ENACTED; NULL AND VOID.

1. **The Astorga Exception to the Enrolled Bill Rule:** The Enrolled Bill Doctrine creates a conclusive presumption of due enactment **ONLY** so long as the enrolled bill remains authenticated by the signatures of the presiding officers of Congress [2, 18, 120, 140–141, 191–192]. If a presiding officer or the Executive formally disclaims or withdraws their signature upon discovering a material discrepancy between the bill passed and the bill signed, the enrolled bill doctrine is neutralized, and no enrolled bill exists [122, 140–141, 192, 236].
2. **Journal Entry Rule as Fallback:** When the enrolled bill is invalidated or non-existent due to disclaimer, courts must consult the official Congressional Journals (Art. VI, Sec. 16(4)) as the best evidence to ascertain whether the identical text was approved by both Houses [3, 122, 141–142].
3. **Requirement of Identity of Text:** A bill signed by the President that omits substantial floor amendments approved by either House fails the constitutional requirement of bicameral passage and is void *ab initio* for lack of due enactment [123, 142–143].

♥ DISPOSITION

- **Ruling:** The Petition for Mandamus and Injunction is **DENIED**.
- **Declaratory Decree:** Republic Act No. 4065 is declared **NOT TO HAVE BEEN DULY ENACTED** and therefore **DID NOT BECOME LAW**.
- **Injunctive Relief:** The Temporary Restraining Order dated April 28, 1965 enjoining Vice-Mayor Astorga from exercising powers under R.A. No. 4065 is made **PERMANENT**. No costs.

● SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLE LINES

- (Unanimous 8-0 decision penned by Chief Justice Makalintal; Castro, Teehankee, Antonio, Esguerra, Fernandez, Muñoz Palma, and Aquino, JJ., concurred. Zaldivar, Fernando, and Barredo, JJ., took no part; Makasiar, J., was on official leave).

Source-Verified Quotable Lines

- 💬 **On the Neutralization of the Enrolled Bill Rule (Makalintal, C.J.):**

"Petitioner's argument that the attestation of the presiding officers of Congress is conclusive proof of a bill's due enactment... is neutralized in this case by the fact that the Senate President declared his signature on the bill to be invalid... Obviously this declaration should be accorded even greater respect than the attestation it

invalidated..."

- **On Approval by Congress vs. Signatures of Officers (Makalintal, C.J.):**

"As far as Congress itself is concerned, there is nothing sacrosanct in the certification made by the presiding officers. It is merely a mode of authentication. The law-making process in Congress ends when the bill is approved by both Houses, and the certification does not add to the validity of the bill or cure any defect already present upon its passage."

- **On Truth vs. Legal Fiction (Makalintal, C.J.):**

"In the face of the manifest error committed and subsequently rectified by the President of the Senate and by the Chief Executive, for this Court to perpetuate that error by disregarding such rectification and holding that the erroneous bill has become law would be to sacrifice truth to fiction and bring about mischievous consequences not intended by the law-making body."

RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Astorga v. Villegas* (1974), HB 9266 (defining Manila Vice-Mayor powers) passed the House and was sent to the Senate. On the Senate floor, Sen. Tolentino introduced substantial amendments to Sec. 11, which were approved in toto. However, the Senate Secretary mistakenly certified to the House a version containing only a minor committee amendment, omitting Tolentino's amendments. The House approved the transmitted text, and printed copies were signed by Speaker Villareal, Senate President Marcos, and President Macapagal, becoming R.A. 4065. After Mayor Villegas denounced the act, Sen. Tolentino exposed that his amendments were omitted. Senate President Marcos officially wrote to President Macapagal invalidating his signature, and President Macapagal officially withdrew his signature. Vice-Mayor Astorga filed a petition for mandamus to enforce R.A. 4065, invoking the Enrolled Bill Doctrine.

The Supreme Court En Banc, through Chief Justice Makalintal, DENIED the petition and declared R.A. 4065 VOID. The Court held: (1) Attestation is a mere mode of authentication; lawmaking is completed by congressional approval of identical text; (2) The Enrolled Bill Doctrine rests on respect for co-equal branches, but when the Senate President explicitly disclaims his signature because the signed text was never passed, the conclusive presumption is neutralized, leaving NO enrolled bill; and (3) Recourse to the Senate Journal (Journal Entry Rule) proved that Tolentino's amendments were approved on the floor but omitted from the enrolled bill, proving R.A. 4065 was not duly enacted."* [3, 120–123, 129–134, 140–143, 192, 236]

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: Why didn't the Supreme Court apply the Enrolled Bill Doctrine in *Astorga v. Villegas* as it did in *Mabanag v. Lopez Vito* and *Arroyo v. De Venecia*?**
 - **A:** In *Mabanag* and *Arroyo*, the authenticated signatures of the presiding officers remained intact. In *Astorga*, Senate President Marcos **formally disclaimed and invalidated his signature** upon discovering the text mismatch, and President Macapagal **withdrew his approval** [132–133, 140, 192]. This

disclaimer destroyed the attestation, leaving no enrolled bill in existence and neutralizing the conclusive presumption [122, 140–141, 192, 236].

2. **Q: What evidence did the Supreme Court examine once the Enrolled Bill Doctrine was neutralized in *Astorga*?**
 - **A:** The Court examined the **official Senate Journal** (under the Journal Entry Rule, Art. VI, Sec. 16(4)). The Journal affirmatively proved that Senator Tolentino's substantial floor amendments were approved *in toto* by the Senate, but were omitted from the printed bill signed by the President [123, 130–131, 142].
3. **Q: Is the signature of the Senate President or Speaker of the House a mandatory constitutional requirement for a bill to become law?**
 - **A: No.** As held in *Astorga*, attestation by presiding officers is merely a procedural mode of authentication. The constitutional essence of enactment is the final passage and approval by both Houses of Congress of the identical legislative text.

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose a congresswoman challenges a newly signed Tax Law, presenting clear video recordings showing that a conference committee inserted a 5% tax increase that was never discussed on the floor of either House. The Speaker of the House and Senate President maintain their signatures on the enrolled bill and certify that the bill was duly passed. The congresswoman petitions the Supreme Court to invalidate the law under *Astorga v. Villegas*. How should the Court rule?
- **Answer: The Supreme Court MUST DISMISS the petition under the Enrolled Bill Doctrine (*Tolentino v. Sec. of Finance / Tinio v. Duterte*).** Unlike *Astorga*, where the Senate President formally withdrew his signature and disclaimed the bill, here the presiding officers **maintained their authentication**. As affirmed in *CoTeSCUP* and *Tinio v. Duterte*, claims of "surreptitious insertions" or procedural irregularities cannot overcome an authenticated enrolled bill unless a presiding officer disclaims their signature [105, 126, 191–192, 235–236]. *Astorga* applies strictly when attestation has been disclaimed or withdrawn.

One-Sentence Doctrine Anchor

The Enrolled Bill Doctrine is neutralized when presiding legislative officers formally disclaim their signatures, compelling courts to consult the Congressional Journal, which invalidates any statute whose signed text materially differs from the text approved by Congress. [3, 120, 122–123, 140–142, 192, 236]

ASTORGA V VILLEGAS (1974)

Topic Subtopic	Branches of Government - Congress Organizations and Sessions - Journal and Record - Journal Entry Rule v. Enrolled Bill Theory	GR No. & Ponente	L-23475 Macalintal, J
Petitioner/s	HERMINIO A. ASTORGA	Respondent/s	ANTONIO J. VILLEGAS et. al.
Doctrine	A bill becomes law through approval by both Houses; an enrolled bill's attestation cannot cure the fact that the version signed by the President was never actually passed by Congress.		

FACTS

- Apr 21, 1964 → HB (House Bill) 9266 was passed by the HoR and referred to the Senate Committee on Provinces and Municipal Governments and Cities headed by Sen. Roxas.
 - Sen. Roxas proposed a minor amendment → The President Protempore of the Municipal Board should succeed the Vice-Mayor in case of the latter's incapacity to act as Mayor.
- When the bill was discussed on the floor on second reading, substantial amendments were introduced by Sen. Tolentino, which was approved *in toto* by the Senate.
 - The amendment recommended by Sen. Roxas did not appear in the journal of the Senate as having acted upon.
- May 21, 1964 → the Secretary of Senate sent a letter to the HoR signifying that HB 9266 was passed by the Senate with amendments, containing a certification of the amendment recommended by Sen. Roxas and not the Tolentino amendments approved by the Senate.
 - The bill was later approved by the HoR and attested by the Secretary and Speaker of HoR, the Secretary of the Senate and the Senate President.
 - HB 9266 was signed by the President and it became RA 4065.
- July 5, 1964 → Public denunciation mounted by Mayor Villegas drew immediate reaction from Sen. Tolentino, who issued a press statement that the enrolled copy of HB 9266 signed into law was the wrong version of the bill actually passed by the Senate containing his amendments.
 - The Senate President then addressed a letter to the President explaining that the enrolled copy signed by the secretaries of both Houses was not the bill duly approved by Congress + he considered his signature on the enrolled bill as invalid.
 - The President then withdrew his signature, adding that it would "against public policy to convert into law what was not actually approved by... Congress."
- Upon the foregoing facts, Mayor Villegas of Manila issued circulars to disregard the provisions of RA 4065 + issued order to the Chief of Police to recall 5 members who had been assigned to the Vice-Mayor.
 - Vice Mayor Astorga filed a Petition for Mandamus, Injunction, and/or Prohibition with Preliminary Mandatory and Prohibitory Injunction with the Supreme Court to compel the respondents to comply with provisions of RA 4065.
- Upon motion of Villegas, who was abroad on an official trip, the Court issued a restraining order, enjoining Vice Mayor Astorga from exercising any of the powers of an Acting Mayor conferred under RA 4065.
 - Original petitioner Astorga has since been succeeded by others as Vice-Mayor of Manila.

ISSUE 1

Main Substantive	– W/N Whether RA 4065 validly became law despite the fact that the enrolled bill signed by the President was not the same bill actually approved by the Senate	NO
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
RA 4065 is valid as it has been passed into law, since it has		RA 4065 never became law because it was not the

been signed and attested by the presiding officers of both Houses. The Senate President's withdrawal should not invalidate the law. The court should also not go further and use the Senate Journal to invalidate the signed statute.	bill passed by the Senate. The entries in the journal of the Senate and not the enrolled bill itself should be used.
--	--

RULING and RATIO DECIDENDI:

- Congress devised its own system of authenticating bills duly approved by both Houses by the signatures of their respective presiding officers and secretaries on the printed copy of the approved bill.
 - Procedure is merely a mode of authentication, to signify to the Chief Executive that the bill being presented to him is ready for his approval or rejection.
 - Attestation is not approval → a bill is considered approved after it has passed both Houses.
- Thus, if the attestation is absent and the same is not required for the validity of the statute, the courts may resort to the journals and other records of Congress for proof of its due enactment.
- The 1935 Constitution is silent on what constitutes proof of enactment of the bill + does not require presiding officers to certify the same. HOWEVER, it does require the ff:
 - **Sec. 10 (4)** → "Each House shall keep a Journal of its proceedings, and from time to time publish the same..."
 - **Sec. 21(2)** → "No bill shall be passed by either House unless it shall have been printed and copies thereof in its final form furnished its Members at least three calendar days prior to its passage, except when the President shall have certified to the necessity of its immediate enactment. Upon the last reading of a bill no amendment thereof shall be allowed, and the question upon its passage shall be taken immediately thereafter, and the yeas and nays entered on the Journal."
- There is nothing sacrosanct in the certification made by the presiding officers. They are merely a mode of authentication → it does not add to the validity nor does it cure any defect.
 - In other words, **it is the approval by Congress and not the signatures of the presiding officers that is essential.**
 - Absent such attestation as a result of the disclaimer, and there being no enrolled bill to speak of, the evidence to determine whether or not the bill had truly been enacted is the **entries** in the Senate Journal.
- The Court declared that the bill was not duly enacted and therefore did not become law.
 - The journal discloses that substantial amendments were introduced on the floor and approved by the Senate BUT were not incorporated in the printed text sent to & signed by the President.
 - In the face of the manifest error committed and subsequently rectified by the President of the Senate and by the Chief Executive, the Court cannot perpetuate the error by disregarding such rectification and holding that the erroneous bill has become law.

LEGAL BASES

Brown vs. Morris, supra the Supreme Court of Missouri, interpreting, a similar provision in the State Constitution, said that the same "makes it clear that the indispensable step is the final passage and it follows that if a bill, otherwise fully enacted as a law, is not attested by the presiding officer, other proof that it has 'passed both houses' will satisfy the constitutional requirement."

FINAL DECISION

In view of the foregoing considerations, the petition is denied and the so-called Republic Act No. 4065 entitled "AN ACT DEFINING THE POWERS, RIGHTS AND DUTIES OF THE VICE-MAYOR OF THE CITY OF MANILA, FURTHER AMENDING FOR THE PURPOSE SECTIONS TEN AND ELEVEN OF REPUBLIC ACT NUMBERED FOUR HUNDRED NINE, AS AMENDED, OTHERWISE KNOWN AS THE REVISED CHARTER OF THE CITY OF MANILA" is declared not to have been duly enacted and therefore did not become law. The temporary restraining order dated April 28, 1965 is hereby made permanent. No pronouncement as to costs.

Morales v. Subido

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Enrique V. Morales v. Abelardo Subido, as Commissioner of Civil Service*
- **Citation:** G.R. No. L-29658, February 27, 1969 (Resolution on Motion for Reconsideration; 27 SCRA 131)
- **Ponente:** Castro, J.
- **Bench Composition:** En Banc
- **Syllabus Relevance & Topic:**
 1. **Legislative Department — Enrolled Bill Theory vs. Journal Entry Rule (Art. VI, Sec. 16(4)):** Conclusiveness of the enrolled bill regarding the text and tenor of a statute; refusal of courts to go behind an enrolled bill to investigate or correct alleged unauthorized staff deletions made during engrossment or proofreading [3, 154–155, 230].
 2. **Hierarchy of Legislative Records:** Rule that with respect to matters not expressly required by the Constitution to be entered on the journal, the enrolled bill prevails over legislative journals, drafts, page proofs, or staff notes in the event of a discrepancy.
 3. **Separation of Powers & Limits of Judicial Review:** Courts will not act as "sleuths" inspecting the internal mechanics of lawmaking; errors committed during the printing or engrossment of a bill before certification must be cured by congressional amendment, not by judicial decree.

CHRONOLOGICAL MATERIAL FACTS

1. **Passage of House Bill No. 6951 (Police Act of 1966):** House Bill No. 6951 was introduced in Congress to establish minimum qualifications for appointment as Chief of Police of a city police agency.
2. **Senate Committee Substitute Version:** In the Senate, the Committee on Government Reorganization reported a substitute bill for Section 10, which originally read:

"No person may be appointed chief of a city police agency unless he holds a bachelor's degree... or any high school graduate who has served the police department of a city for at least 8 years with the rank of captain and/or higher."

3. **Rodrigo Floor Amendment:** On the Senate floor, Senator Francisco Rodrigo introduced an amendment adding the phrase *"or who has served as officer of the Armed Forces"*, expanding the non-degree qualification clause [225–226].
4. **Draft Page Proofs:** Page proofs of the bill prior to final enrolment included both clauses:

"...or any high school graduate who has served the police department of a city or has served as officer in the Armed Forces for at least eight years from the rank of captain and/or higher." [226–227]

5. **Unauthorized Deletion During Engrossment:** During the engrossment of the bill in the Senate bill division (specifically during proofreading), a legislative employee deleted the phrase *["who has served the police department of a city or"]*.
 - A memorandum note signed by a Senate bill division employee attached to the page proofs explained: *"Section 10 was recast for clarity (with the consent of Sen. Ganson & Congressman Montano)".*

- The recast version left high school graduates qualifying **only** if they had served as an officer in the Armed Forces for at least 8 years.
 - 6. **Enrolment, Certification, and Executive Signing:** The bill was printed, certified as correctly passed by Senate President Arturo Tolentino and Speaker of the House Jose Laurel, Jr., and signed into law by President Ferdinand E. Marcos as **Republic Act No. 4864** (The Police Act of 1966) [227–228, 230].
 - 7. **Disqualification of Petitioner Morales:**
 - Petitioner Enrique V. Morales (a high school graduate and 2nd-year law student with long, exemplary service in the Manila Police Department) was considered/appointed for Chief of Police [226–227].
 - Respondent Civil Service Commissioner Abelardo Subido refused to attest/approve Morales's appointment because Morales did not hold a bachelor's degree and had **not** served for 8 years as an officer in the Armed Forces.
 - 8. **Filing of Motion for Reconsideration:** Morales petitioned the Supreme Court, submitting certified photostatic copies of Senate committee drafts, page proofs, and staff notes to prove that the deletion of city police service was an unauthorized staff error during engrossment, urging the Court to correct the text according to true legislative intent.
-

● PROCEDURAL HISTORY

1. **Original Petition in Supreme Court:** Morales filed an original petition for *Certiorari* and *Mandamus* against Civil Service Commissioner Subido.
 2. **Initial Supreme Court Decision:** The Supreme Court dismissed the petition, upholding Commissioner Subido's action.
 3. **Motions for Reconsideration:** Morales filed Motions for Reconsideration presenting documentary evidence (page proofs and staff notes) showing the engrossment error.
 4. **Supreme Court Disposition (February 27, 1969):** The Supreme Court En Banc **DENIED** the Motions for Reconsideration.
-

● PARTIES' MATERIAL ARGUMENTS

- **Petitioner (Enrique V. Morales):**
 1. **Engrossment Alteration:** The deletion of the phrase "*who has served the police department of a city or*" was an unauthorized alteration committed by a legislative staff member during proofreading, not an act of Congress on the floor.
 2. **True Legislative Intention:** The page proofs and floor deliberations show that Congress intended to allow high school graduates with 8 years of city police captain service to qualify as Chief of Police [226–227].
 3. **Power to Correct Engrossment Errors:** The Court should go behind the enrolled bill, inspect the legislative drafts/proofs, and enforce the true measure passed by Congress.
 - **Respondent (Abelardo Subido, Commissioner of Civil Service):**
 1. **Conclusiveness of Enrolled Bill:** The enrolled bill signed by the presiding officers of Congress and approved by the President is conclusive upon the courts.
 2. **Mandatory Statutory Qualifications:** Section 10 of R.A. No. 4864 as enrolled requires high school graduates to have 8 years of service as an officer in the Armed Forces. Since Morales lacked this requirement, his appointment was properly disapproved.
-

ISSUES

1. **Substantive Issue 1 (Enrolled Bill Doctrine vs. Engrossment Errors):** Whether the Supreme Court can go behind an enrolled bill (R.A. No. 4864) and consult legislative drafts, page proofs, or staff notes to correct an alleged unauthorized deletion committed during engrossment before certification [227, 229–230].
2. **Substantive Issue 2 (Qualifications for Chief of Police):** Whether petitioner Morales meets the minimum statutory qualifications for appointment as Chief of Police under Section 10 of R.A. No. 4864.

🌸 HOLDINGS AND CONTROLLING REASONING

1. On Going Behind the Enrolled Bill to Correct Engrossment Errors: NO. The Supreme Court CANNOT go behind an enrolled bill; the enrolled bill is CONCLUSIVE [3, 154–155, 230].

- **A. Reaffirmation of the Enrolled Bill Doctrine (*Mabanag v. Lopez Vito & Casco Philippine Chemical Co. v. Gimenez*):**
 - The Court reaffirmed its firm commitment to the **Enrolled Bill Doctrine** (*Marshall Field & Co. v. Clark*; *Harwood v. Wentworth*; *Mabanag v. Lopez Vito*) [3, 154, 230–232].
 - The signing of an enrolled bill by the Speaker of the House and Senate President is an official attestation by the two Houses that the bill is the measure passed by Congress. When approved by the President and deposited in the archives, its authentication is complete and unimpeachable.
- **B. Rejection of Judicial "Sleuthing" in the Labyrinth of Lawmaking:**
 - The Court explicitly refused to inquire into staff alterations or proofreading deletions made during engrossment.
 - Receptive judicial review over engrossment errors would cast the Court in the unwanted role of a "sleuth trying to determine what actually did happen in the labyrinth of law-making, with consequent impairment of the integrity of the legislative process".
 - Expressed by Justice Castro: "Expressed elsewhere, this is a matter worthy of the attention not of an Oliver Wendell Holmes but of a Sherlock Holmes".
- **C. Distinction Between Enrolled Bill and Journal Entry Rule (*U.S. v. Pons* Distinguished):**
 - Petitioner's reliance on *United States v. Pons* was misplaced because *Pons* did not involve a discrepancy between an enrolled bill and a journal; *Pons* involved taking judicial notice of journal entries regarding adjournment time.
 - **The Enrolled Bill Discrepancy Rule:** With respect to matters **not expressly required by the Constitution to be entered on the journal**, the enrolled bill prevails over legislative journals, drafts, or staff notes in the event of any discrepancy.
 - The Constitution only mandates journal entries for specific items (e.g., yeas and nays on third reading, veto messages, request of 1/5 members present). General statutory wording is not required to be entered in the journal; hence, the enrolled bill is conclusive.
- **D. Legislative Housecleaning as the Sole Remedy:**
 - Housecleaning and text rectification belong to Congress, not the Judiciary.
 - If a staff member erroneously dropped a clause during engrossment, the remedy is **curative legislation or legislative amendment** by Congress, not judicial reconstruction.

2. On Petitioner's Statutory Disqualification: NO. Petitioner Morales DOES NOT meet the qualifications under Section 10 of R.A. No. 4864.

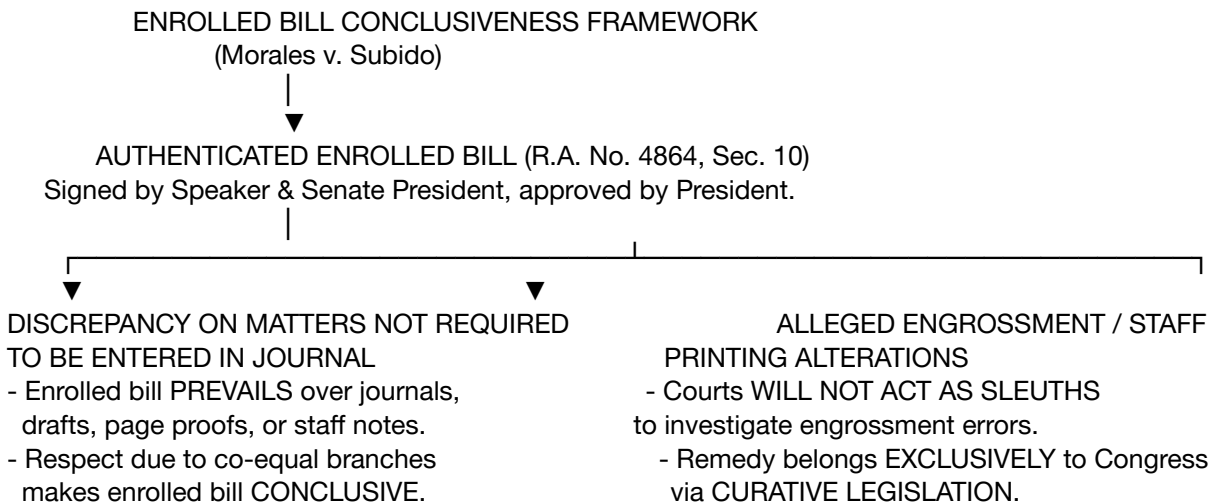
- **A. Textual Command of Section 10:**

- Section 10 of R.A. No. 4864 as enrolled explicitly requires that a non-bachelor's degree holder (high school graduate) must have served as an officer in the Armed Forces for at least 8 years with the rank of captain and/or higher.

- **B. Absence of Military Officer Rank:**

- Because Morales was not a college degree holder and lacked 8 years of service as an officer in the Armed Forces, he failed to satisfy the conclusive statutory text.
- Respondent Civil Service Commissioner Subido acted legally in refusing to approve Morales's appointment.

● DOCTRINE, TESTS, AND LEGAL STANDARDS



1. **Enrolled Bill Conclusiveness Rule (*Morales v. Subido Rule*):** An enrolled bill authenticated by the signatures of the presiding officers of both Houses of Congress and approved by the President imports absolute verity and is conclusive upon the courts as to its tenor and due enactment.
2. **Hierarchy Between Enrolled Bill and Legislative Journals:** With respect to matters not expressly required by the Constitution to be recorded in the journal, the enrolled bill prevails over legislative journals, drafts, page proofs, or staff notes in the event of any discrepancy.
3. **Non-Judicial Correction of Legislative Errors:** Courts have no power to reform, edit, or reinsert clauses dropped during the engrossment or proofreading of a bill prior to certification. Rectifying printing or staff errors is an internal legislative responsibility to be accomplished through amendatory legislation.

♥ DISPOSITION

- **Ruling:** Petitioner's Motions for Reconsideration are **DENIED**.

● SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLE LINES

- (*Unanimous 10-0 Resolution penned by Justice Fred Ruiz Castro; C.J. Concepcion and all Associate Justices concurred*).

Source-Verified Quotable Lines

- **On Respect for Co-Equal Branches and Faith in Attestation (Castro, J.):**

"We cannot go behind the enrolled Act to discover what really happened. The respect due to the other branches of the Government demands that we act upon the faith and credit of what the officers of the said branches attest to as the official acts of their respective departments."

- **On Rejecting the Role of Judicial Sleuth in Lawmaking (Castro, J.):**

"Otherwise we would be cast in the unenviable and unwanted role of a sleuth trying to determine what actually did happen in the labyrinth of law-making, with consequent impairment of the integrity of the legislative process. The investigation which the petitioner would like this Court to make can be better done in Congress... Expressed elsewhere, this is a matter worthy of the attention not of an Oliver Wendell Holmes but of a Sherlock Holmes."

- **On Enrolled Bill Prevailing Over Journal Discrepancies (Castro, J.):**

"All we hold is that with respect to matters not expressly required to be entered on the journal, the enrolled bill prevails in the event of any discrepancy."

RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Morales v. Subido* (1969), petitioner Enrique Morales (a high school graduate and long-serving Manila police officer) was considered for City Chief of Police under R.A. 4864 (Police Act of 1966). Civil Service Commissioner Subido disapproved his appointment because Section 10 of R.A. 4864 as enrolled required high school graduates to have served 8 years as an officer in the Armed Forces. Morales filed a petition in the Supreme Court, presenting page proofs and staff notes showing that Senator Rodrigo's floor amendment was intended as an addition, but a Senate bill division staff member deleted the phrase 'who has served the police department of a city or' during engrossment ('for clarity'). Morales urged the Court to go behind the enrolled bill and correct the text to match Congress's true intent.

The Supreme Court En Banc, through Justice Castro, DENIED the motion for reconsideration. The Court held: (1) Under the Enrolled Bill Doctrine, an authenticated enrolled bill certified by the legislative heads and signed by the President is conclusive on the courts; (2) The Court will not act as a 'Sherlock Holmes' sleuthing into the labyrinth of lawmaking to correct engrossment errors; (3) With respect to matters NOT required by the Constitution to be entered on the journal, the enrolled bill prevails over journals/drafts in case of discrepancy; and (4) The remedy for staff printing errors lies exclusively with Congress through curative legislation, not judicial amendment."* [3, 154–155, 224, 226–230]

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: How does the Supreme Court reconcile *Morales v. Subido* with *Astorga v. Villegas* regarding going behind an enrolled bill?**

- **A:** In *Morales*, the presiding officers **maintained their certification**, and the enrolled bill remained intact; hence, the enrolled bill was conclusive over internal engrossment drafts. In *Astorga v. Villegas*, Senate President Marcos **formally disclaimed and withdrew his signature** upon discovering the text mismatch, thereby destroying the attestation and neutralizing the enrolled bill doctrine, which compelled the Court to consult the Senate Journal [122, 140–141, 192].
- 2. **Q: Does the legislative journal always prevail over an enrolled bill when there is a conflict in statutory text?**
 - **A: No.** Under *Morales v. Subido*, the enrolled bill prevails over legislative journals for all matters **not expressly required by the Constitution to be entered in the journal**. Journals prevail only on matters where the Constitution specifically mandates a journal entry (such as the yeas and nays on third reading or veto overrides).
- 3. **Q: What is the proper remedy if a congressional staff member accidentally deletes a vital clause of a bill during engrossment and the error is discovered after the President signs it?**
 - **A:** As held in *Morales v. Subido*, the remedy belongs strictly to **Congress** through housecleaning and **curative/amendatory legislation**. The Judiciary has no power to edit or reinsert dropped provisions into an enrolled statute.

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose during the engrossment of a tax bill, a staff member accidentally deletes the line recording the **yeas and nays on third reading**, which Article VI, Section 26(2) explicitly requires to be entered in the Congressional Journal. The bill is signed into law. A taxpayer challenges the law, citing the missing journal entry. Does the enrolled bill prevail under *Morales v. Subido*?
- **Answer: No, the enrolled bill DOES NOT prevail.** Under *Morales v. Subido*, the enrolled bill prevails over journals/drafts **only** with respect to matters *not* explicitly required by the Constitution to be recorded in the journal. Because Article VI, Section 26(2) makes entering the yeas and nays on third reading a **mandatory constitutional requirement**, failure to record them in the Journal breaches the Constitution itself, overriding the enrolled bill presumption.

One-Sentence Doctrine Anchor

The enrolled bill is conclusive upon the judiciary as to the tenor of a statute, prevailing over legislative drafts and staff engrossment errors on all matters not constitutionally required to be entered in the journal. [3, 154–155, 230]

MORALES V. SUBIDO (1969)

Topic Subtopic	Journal and Record - Journal Entry Rule v. Enrolled Bill Theory	GR No. & Ponente	G.R. No. L-29658
Petitioner/s	Enrique V. Morales	Respondent/s	Abelardo Subido, as Commissioner of Civil Service
Doctrine	With respect to matters not expressly required to be entered on the journal, the enrolled bill prevails in the event of any discrepancy.		

FACTS

- The Senate Committee on Government Reorganization, to which HB 6951 was referred, reported a substitute measure with the following provision as Sec. 10:
 - "No person may be appointed chief of a city police agency unless he holds a bachelor's degree and has served either in the Armed Forces of the Philippines or the National Bureau of Investigation or police department of any city and has held the rank of captain or its equivalent therein for at least three years or any high school graduate who has served the police department of a city for at least 8 years with the rank of captain and/or higher."*
- At the behest of Sen. Rodrigo, the phrase **"has served as an officer in the Armed Forces"** was inserted as to make the provision read:
 - "... or any high school graduate who has served the police department of a city **or who has served as officer of the Armed Forces** for at least 8 years with the rank of captain and/or higher."*
 - However, somewhere in the legislative process, the phrase **"who has served the police department of a city or"** was dropped and only the Rodrigo amendment retained.
- Petitioner insists that the version of Sec. 10 of HB 6951, as amended by Sen. Rodrigo, was the version approved by the Senate + when the bill emerged from the conference committee, the change made in the provision was the insertion of the phrase **"or has served as chief of police with exemplary record."**
- Petitioner submitted certified photostatic copies of the different drafts of the Bill showing the various changes made, with the bill approved by both Houses containing the ff. provision:
 - "No person may be appointed chief of a city police agency unless he holds a bachelor's degree from a recognized institution of learning and has served either the [AFP] s or has served as chief of police with exemplary record or the [NBI] or the police department of any city and has held the rank of captain or its equivalent therein for at least three years or any high school graduate who has served the police department of a city or has served as officer in the [AFP] for at least eight years from the rank of captain and/or higher."*
- The phrase "who has served the police department of a city or," was still part of the allegedly Senate-approved provision, but the petitioner claims that the House bill division allegedly deleted the entire provision and substituted what is now Sec. 10 of the Police Act of 1996 containing the ff:
 - "No person may be appointed chief of a city police agency unless he holds a bachelor's degree from a recognized institution of learning and has served either in the Armed Forces of the Philippines or the National Bureau of Investigation, or has served as chief of police with exemplary record, or has served in the police department of any city with rank of captain or its equivalent therein for at least three years; or any high school graduate who has served as officer in the Armed Forces for at least eight years with the rank of captain and/or higher."*
- It would thus appear that the omission of the phrase "who has served the police department of a city or," was made not at any stage of the legislative proceedings but only in the course of the engrossment of the bill, more specifically in the proofreading thereof.

ISSUE 1

Main – Procedural	W/N the Court may look into the matter of the omission of the phrase "who has served the police department of a city or" in Sec. 10 of the Police Act of 1996	NO
-------------------	--	----

RULING and RATIO DECIDENDI:

- The Court cannot go behind the Act to discover what really happened due to its duty to act upon the faith and credit of what the officers of the said branches attest to as the official acts of their departments.
 - To determine what actually did happen in the labyrinth of lawmaking would consequently impair the integrity of the legislative process.
 - The investigation which the petitioner desires can be better done in Congress.
- *Marshall Field & Co. v. Clark* and *Hardwood v. Wentworth* → involved claims similar to that of the petitioner + both claims were rejected.
 - Marshall Field & Co → Contended that the Tariff Act was a nullity because it is shown by the congressional records of proceedings that a section of the bill as it finally passed was not in the bill authenticated by the signatures of the presiding officers & approved by the President.
 - US Supreme Court held that the signing by the Speaker of the House of Representatives and by the President of the Senate of an enrolled bill is an official attestation by the two houses that such bill is the one that has passed Congress.
- To what extent the validity of a legislative act may be affected by a failure to have such matters entered on the journal is a question the Court did not decide.
 - All the Court held is that with respect to matters not expressly required to be entered on the journal, the enrolled bill prevails in the event of any discrepancy.

FINAL DECISION	ACCORDINGLY, the motions for reconsideration are denied.
-----------------------	--

Philippine Constitution Association, Inc. v. Mathay

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Philippine Constitution Association, Inc. (PHILCONSA) v. Ismael Mathay, in his capacity as Auditor General of the Philippines, and Jose Velasco, in his capacity as Auditor of the Congress of the Philippines*
- **Citation:** G.R. No. L-25554, October 4, 1966 (En Banc; 18 SCRA 300)
- **Ponente:** Reyes, J.B.L., *J.*
- **Bench Composition:** Concepcion, C.J., Barrera, Dizon, Regala, Makalintal, and Sanchez, JJ., concurring; Concurring opinions by Castro, J. [191–193], Zaldivar, J. [194–207], and Bengzon, J.P., J. [208–210].
- **Syllabus Relevance & Topic:**
 1. **Legislative Department — Compensation and Salary Increases (Art. VI, Sec. 10 [1987 Consti] / Art. VI, Sec. 14 [1935 Consti]):** Constitutional restriction preventing salary increases approved by Congress from taking effect until the expiration of the full terms of **all** members of both chambers who approved the increase.
 2. **Unitary Interpretation of Congress:** The rule that for the purpose of salary effectivity, the Senate and the House of Representatives are treated as an indivisible, single legislative unit.
 3. **Constitutional Deterrent Against Self-Interest:** The purpose of the waiting period requirement as a structural check to deter legislators from yielding to the temptation of increasing their own compensation during their incumbency.
 4. **Taxpayer Standing & Non-Joinder of Indispensable Parties:** Reaffirmation of taxpayer standing to enjoin unlawful expenditure or waste of public funds, and holding that legislators are not indispensable party-defendants in a suit enjoining auditors from passing unauthorized disbursements in audit [179–180].

CHRONOLOGICAL MATERIAL FACTS

1. **Enactment of Republic Act No. 4134 (June 10–20, 1964):** During the third regular session of the Fifth Congress in 1964, Congress passed House Bill No. 6190, which was approved by President Diosdado Macapagal on June 10, 1964 and took effect on June 20, 1964 as **Republic Act No. 4134** [176–177, 191, 194, 206].
2. **Statutory Salary Increases Provided:** R.A. No. 4134 increased the annual salaries of constitutional officials, raising the salary of the Senate President and Speaker of the House from ₱16,000 to ₱40,000 each, and that of Senators and Members of the House of Representatives from ₱7,200 to ₱32,000 each.
3. **Statutory Effectivity Clauses:** Section 1(A) of R.A. No. 4134 expressly mandated that "*the salary increases herein fixed shall take effect in accordance with the provisions of the Constitution*". Section 7 further provided that the salary increase of the presiding officers should take effect simultaneously with the effectivity of the salary increase of Senators and Congressmen.
4. **Composition of the Fifth Congress (1964):** When R.A. No. 4134 was passed in 1964, the approving legislature consisted of:
 - **House of Representatives:** Members elected in November 1961, whose 4-year terms expired on December 29, 1965.
 - **Senate:** Composed of three groups of Senators holding 6-year terms—8 elected in 1959 (term expiring Dec 29, 1965), 8 elected in 1961 (term expiring Dec 29, 1967), and **8 elected in November 1963, whose full terms would expire only on December 29, 1969.**

5. **Enactment of R.A. No. 4642 (General Appropriation Act FY 1965–1966):** Congress subsequently enacted Republic Act No. 4642 (the General Appropriation Act for Fiscal Year 1965–1966), appropriating public funds for the immediate payment of the increased ₱32,000 annual salary to Members of the House of Representatives elected in November 1965 (whose terms commenced December 30, 1965) [178–179, 189–190].
 6. **PHILCONSA Protest & Executive Directive to Pass in Audit:** PHILCONSA sent a formal written protest to Acting Auditor General Amable M. Aguiluz, asserting that paying the increased salaries to House members in 1966 violated Article VI, Section 14 of the Constitution. Although the Auditor General initially referred the matter to the Secretary of Justice, Acting Auditor General Aguiluz (later substituted by Auditor General Ismael Mathay) directed Congressional Auditor Jose Velasco to pass in audit and approve the disbursement of the increased salaries under R.A. No. 4642 starting in 1966.
 7. **Initiation of Prohibition Suit:** On January 1966, PHILCONSA filed an original petition for prohibition in the Supreme Court to permanently enjoin the Auditor General and the Congressional Auditor from passing in audit or authorizing the payment of the increased salaries to House members prior to December 30, 1969.
-

PROCEDURAL HISTORY

1. **Original Action in the Supreme Court:** PHILCONSA filed a Petition for Prohibition (Rule 65) directly before the Supreme Court against the Acting Auditor General (substituted by Ismael Mathay) and Congressional Auditor Jose Velasco.
 2. **Respondents' Defenses:** Respondents filed their Answer raising preliminary procedural defenses (lack of legal standing/personality of PHILCONSA and non-joinder of the Members of the House of Representatives as indispensable parties) and asserting on the merits that the expiration of the 4-year term of the House members who passed R.A. No. 4134 on December 29, 1965 sufficed to make the salary increase operative for the newly elected House in 1966.
 3. **Supreme Court Decision (October 4, 1966):** The Supreme Court En Banc unanimously **GRANTED** the writ of prohibition.
-

PARTIES' MATERIAL ARGUMENTS

- **Petitioner (PHILCONSA):**
 1. **Unitary Expiration Requirement:** Article VI, Section 14 of the 1935 Constitution commands that no salary increase shall take effect until after the expiration of the full term of **all** the Members of the Senate and of the House of Representatives approving the increase [180–181, 189, 193].
 2. **Senatorial Term Baseline:** Because 8 Senators who participated in approving R.A. No. 4134 in 1964 were elected in November 1963, their full 6-year terms will expire only on December 29, 1969. Therefore, no Member of Congress (whether Senator or Representative) can receive the increased salary before December 30, 1969 [189–190].
 3. **Unconstitutionality of R.A. No. 4642:** The General Appropriation Act for FY 1965–1966 (R.A. No. 4642) is unconstitutional insofar as it appropriates funds for the immediate disbursement of increased salaries prior to December 30, 1969 [189–190].
- **Respondents (Auditor General Mathay & Congressional Auditor Velasco):**
 1. **Lack of Locus Standi & Non-Joinder:** PHILCONSA lacks personality or direct injury to sue, and the petition must be dismissed for failure to join the Speaker and Members of the House of Representatives as indispensable party-defendants.
 2. **Separability of Chamber Terms:** Under a bicameral legislature, the House of Representatives is a distinct chamber with 4-year terms. The expiration on December 29, 1965 of the full term of the House members who approved R.A. No. 4134 fully satisfied the constitutional restriction with respect to the

House, allowing newly elected Representatives in 1966 to receive the higher salary regardless of the unexpired terms of sitting Senators.

ISSUES

1. **Procedural Issue 1 (Locus Standi):** Whether PHILCONSA, as a non-stock taxpayer association, has legal standing to file a petition for prohibition to enjoin the disbursement of public funds.
 2. **Procedural Issue 2 (Non-Joinder of Parties):** Whether the Speaker and Members of the House of Representatives are indispensable parties-defendant without whom the petition cannot proceed [179–180].
 3. **Substantive Issue (Effectivity of Legislative Salary Increases):** Whether Article VI, Section 14 of the 1935 Constitution requires that the full terms of **all** the members of both the Senate and the House of Representatives approving a salary increase must have fully expired before the increase becomes operative for any member of either House.
-

HOLDINGS AND CONTROLLING REASONING

1. On Taxpayer Standing & Non-Joinder: PETITIONER HAS STANDING; HOUSE MEMBERS ARE NOT INDISPENSABLE PARTIES [179–180].

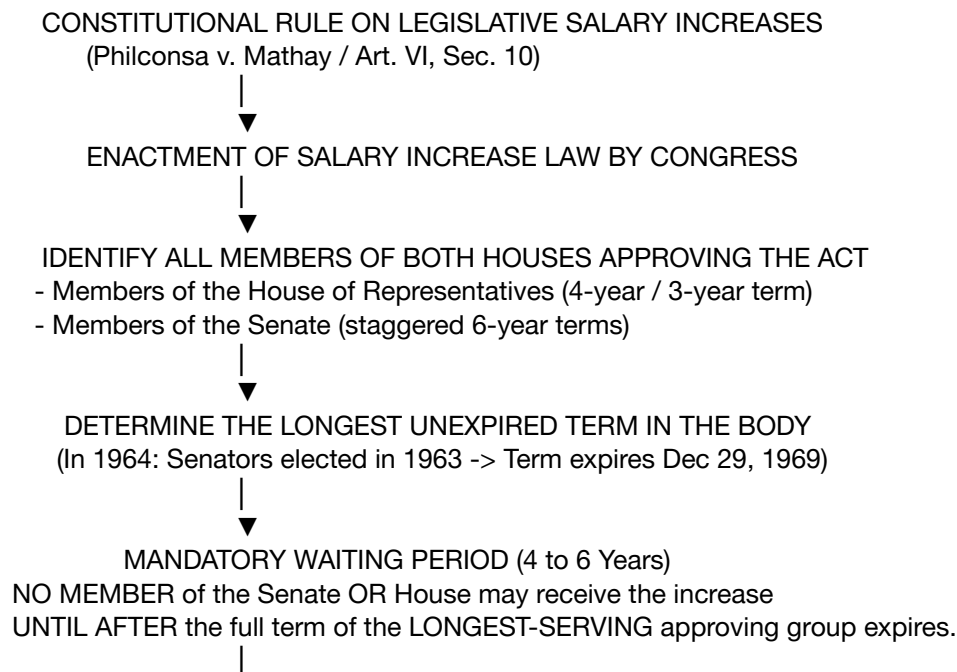
- **A. Taxpayer Standing to Enjoin Waste of Funds:**
 - Reaffirming established jurisprudence (*Pascual v. Secretary of Public Works; Pelaez v. Auditor General; Iloilo Palay & Corn Planters Asso. v. Feliciano*), the Court held that taxpayers have direct legal standing to enjoin the unlawful expenditure or waste of public funds.
 - The rule permitting a taxpayer to bring a suit to enjoin an illegal disbursement of public treasury funds is settled in this jurisdiction.
- **B. Non-Joinder of Legislators:**
 - The relief sought is to enjoin the respondent Auditors from **passing in audit and approving** the payment of the increased salaries—an administrative act performed by the Auditors—not to recover funds already collected by legislators [179–180].
 - Consequently, the Auditors are the only indispensable and proper parties-defendant to this action.

2. On the Main Substantive Issue (Unitary Expiration Rule): YES. The full terms of ALL Members of BOTH Houses approving the increase must expire before the increase becomes effective for ANY legislator.

- **A. Textual & Grammatical Construction of Article VI, Section 14:**
 - Article VI, Section 14 of the 1935 Constitution explicitly states: "*No increase in said compensation shall take effect until after the expiration of the full term of all the Members of the Senate and of the House of Representatives approving such increase*".
 - **Unitary Treatment:** The provision groups "*all the members of the Senate and of the House of Representatives*" together in a single sentence as a single, indivisible unit.
 - **Use of the Singular "Term":** The Constitution uses the singular word "*term*" (not "*terms*"), despite the difference in duration (6 years for Senators, 4 years for Representatives). This grammatical choice underscores that both chambers are considered an indivisible legislative unit for the purpose of salary increases.

- **Conjunction "And":** The conjunction "*and*" is used in its conjunctive sense, requiring the joinder of both chambers. To allow House members to receive the increase earlier would convert "and" into "or", producing an impermissible disparity in compensation between Senators and Representatives.
- **B. Historical Intent and Constitutional Evolution:**
 - In the 1934 Constitutional Convention (under a unicameral National Assembly), the Committee on Legislative Power recommended that no salary increase take effect until after the expiration of the terms of office of all members of the Legislature that approved it [182–183].
 - When bicameralism was restored in the 1940 Constitutional Amendments, the 6-year staggered term for Senators was introduced [184, 197–198]. The framers intentionally retained the rigid restrictive proviso by conditioning effectivity on the expiration of the "*full term of ALL the Members of the Senate and of the House of Representatives approving such increase*".
- **C. Mathematical & Structural Purpose (Deterrent Interval):**
 - The constitutional restriction is designed as a **structural deterrent** to prevent legislators from yielding to the natural temptation of increasing their own salaries during their incumbency.
 - Under the constitutional scheme, a **maximum delay of 6 years and a minimum delay of 4 years** must elapse before a legislative salary increase can take effect [185–188].
 - **Application to the 1964 Approval:**
 - R.A. No. 4134 was passed in 1964 with the participation of Senators elected in November 1963 whose 6-year terms expire on **December 29, 1969**.
 - Because the full terms of all members approving R.A. No. 4134 do not expire until December 29, 1969, **no increased salary can be lawfully disbursed to any Senator or Representative prior to December 30, 1969**.
- **D. Unconstitutionality of R.A. No. 4642:**
 - Insofar as Republic Act No. 4642 (Appropriation Act FY 1965–1966) authorized the immediate disbursement of increased salaries to House members prior to December 30, 1969, it directly violates Article VI, Section 14 of the Constitution and is **null and void** [189–190, 196].

● DOCTRINE, TESTS, AND LEGAL STANDARDS



1. **Unitary Expiration Rule for Legislative Salary Increases (*Philconsa v. Mathay Rule*):** Under the Constitution, a law increasing the compensation of Senators and Representatives cannot take effect for *any* member of Congress until after the full terms of *all* the members of both the Senate and the House of Representatives who approved the increase have fully expired.
 2. **Indivisibility of Bicameral Chambers:** For the purpose of salary effectivity, the Senate and the House of Representatives constitute a single, indivisible legislative unit. Salary increases cannot be staggered or piecemeal between chambers.
 3. **Standing in Public Expenditure Suits:** Taxpayers have automatic legal standing to file prohibition or injunction suits to restrain the unauthorized disbursement or waste of public treasury funds without needing to show special personal injury.
-

♥ DISPOSITION

- **Ruling:** The writ of prohibition prayed for is **GRANTED**.
 - **Declaratory & Injunctive Decrees:**
 1. The items of the Appropriation Act for FY 1965–1966 (Republic Act No. 4642) purporting to authorize the disbursement of increased compensation to members of Congress prior to December 30, 1969 are declared **NULL AND VOID** for violating Article VI, Section 14 of the Constitution [189–190].
 2. Respondents Auditor General and Congressional Auditor are **PERMANENTLY PROHIBITED AND ENJOINED** from approving and passing in audit any disbursements of the increased compensation authorized by R.A. No. 4134 for Senators and Members of the House of Representatives before **December 30, 1969**. No costs.
-

● SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLE LINES

1. Concurring Opinion of Associate Justice Fred Ruiz Castro [191–193]

- **Literal Clarity:** Emphasized that the plain text "*until after the expiration of the full term of all the members of the Senate and of the House of Representatives approving such increase*" impartially commands the joint expiration of both houses. Effectivity cannot be severed by chamber.

2. Concurring Opinion of Associate Justice Calixto O. Zaldivar [194–207]

- **Historical Firsthand Testimony:** Justice Zaldivar (who served as a member of the Second National Assembly in 1940 during the drafting of the 1940 Constitutional Amendments) provided a detailed historical account confirming that the Assemblymen explicitly intended that the expiration of the Senate group holding the longest term (6 years) must be awaited before any salary increase could take effect, ensuring complete parity of compensation between Representatives and Senators at all times [197–200, 207].

3. Concurring Opinion of Associate Justice Jose P. Bengzon [208–210]

- **Addressing Equity Claims:** Noted that while other constitutional officers (like SC Justices) received immediate increases under R.A. No. 4134, legislators were bound by their own constitutional restriction. If

legislators found the delay inequitable, they could have delayed executive/judicial increases to coincide with their own waiting period.

Source-Verified Quotable Lines

- **On the Purpose of the Constitutional Waiting Period (Reyes, J.B.L., J.):**

"It is admitted that the purpose of the provision is to place 'legal bar to the legislators yielding to the natural temptation to increase their salaries. Not that the power to provide for higher compensation is lacking, but with the length of time that has to elapse before an increase becomes effective, there is a deterrent factor to any such measure unless the need for it is clearly felt.'"

- **On the Unitary Treatment of Congress (Reyes, J.B.L., J.):**

"Significantly, in establishing what might be termed a waiting period... the constitutional provision refers to 'all the members of the Senate and of the House of Representatives' in the same sentence, as a single unit without distinction or separation between them. This unitary treatment is emphasized by the fact that the provision speaks of the 'expiration of the full term' of the Senators and Representatives that approved the measure, using the singular form, and not the plural..."

- **On Discouraging Pre-Election Salary Grabs (Reyes, J.B.L., J.):**

"The reason for the minimum interval of four years is plainly to discourage the approval of increases of compensation just before an election by legislators who can anticipate their reelection with more or less accuracy. This salutary precaution should not be nullified by resorting to technical and involved interpretation of the constitutional mandate."

RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Philconsa v. Mathay* (1966), Congress enacted R.A. No. 4134 in June 1964, increasing the annual salaries of Senators and Congressmen from P7,200 to P32,000. R.A. 4134 stated that increases take effect 'in accordance with the Constitution.' However, in the 1965 Appropriation Act (R.A. 4642), Congress allocated funds to immediately pay the higher P32,000 salary to House members elected in November 1965 starting in 1966. Acting Auditor General Aguiluz ordered Congressional Auditor Velasco to pass the payments in audit. PHILCONSA filed a petition for prohibition in the Supreme Court to enjoin the payments prior to Dec 30, 1969. PHILCONSA argued that under Art. VI, Sec. 14 of the 1935 Constitution, no salary increase can take effect until after the expiration of the full term of ALL members of the Senate AND House who approved it—and since 8 Senators approving R.A. 4134 were elected in 1963 with terms expiring Dec 29, 1969, no legislator could receive the increase before Dec 30, 1969.

The Supreme Court En Banc, through Justice J.B.L. Reyes, UNANIMOUSLY GRANTED the petition and declared R.A. 4642 void insofar as it authorized early disbursement. The Court held: (1) PHILCONSA has taxpayer standing to enjoin illegal public expenditures, and House members are not indispensable parties; (2) Art. VI, Sec. 14 treats the Senate and House as a single, indivisible unit using the singular 'term'; (3) The constitutional waiting period (4 to 6 years) is a structural deterrent against self-interest; and (4) Because the

full 6-year terms of Senators elected in 1963 who passed R.A. 4134 expire on Dec 29, 1969, no salary increase can be disbursed to ANY member of Congress before Dec 30, 1969."* [176–181, 187, 189–190, 195–196]

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: How does Article VI, Section 10 of the present 1987 Constitution compare with Article VI, Section 14 of the 1935 Constitution interpreted in *Philconsa v. Mathay*?**
 - **A:** Article VI, Section 10 of the 1987 Constitution provides: "*No increase in said compensation shall take effect until after the expiration of the full term of all the Members of the Senate and the House of Representatives approving such increase.*" [8, 42–43] It retains the exact same unitary rule established in *Philconsa v. Mathay*. Because Senators now serve 6-year staggered terms and House Members serve 3-year terms, any salary increase passed by Congress cannot take effect until the 6-year term of the longest-serving Senate cohort approving the law expires.
2. **Q: Why couldn't the House of Representatives receive the salary increase in 1966 after the 4-year term of the 1961–1965 Congressmen who passed R.A. 4134 expired?**
 - **A:** As held in *Philconsa v. Mathay*, the Constitution treats both chambers as **one indivisible legislative unit**. Allowing Congressmen to receive the increase ahead of Senators would violate the conjunctive requirement ("*Senate and House*") and create an unconstitutional disparity in compensation between the two houses.
3. **Q: Does a retired Congressman benefit from a salary increase passed during his term if the retirement law computes benefits based on the 'prevailing salary' at the time of retirement?**
 - **A: No.** In *Ligot v. Mathay* (1974), the Supreme Court applied the *Philconsa v. Mathay* doctrine to hold that a retiring member of Congress cannot have his retirement gratuity computed based on an increased salary rate that became legally operative only after his term, if he was part of the Congress that approved the increase [8, 47–48].

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose in 2024, the 19th Congress enacts a law increasing the annual salary of Members of the House of Representatives from ₱300,000 to ₱1,000,000, but explicitly provides that the salary of Senators shall remain unchanged at ₱300,000. The law states that it shall take effect on June 30, 2025, immediately upon the commencement of the terms of the House Members elected in the May 2025 elections. A taxpayer challenges the law under *Philconsa v. Mathay*. How should the Supreme Court rule?
- **Answer: The Supreme Court MUST DECLARE THE LAW UNCONSTITUTIONAL AND ENJOIN THE DISBURSEMENT.** Under *Philconsa v. Mathay* and Article VI, Section 10 of the 1987 Constitution, salary increases cannot be severed by chamber or staggered. Because the law was enacted by the 19th Congress, which includes Senators elected in 2022 whose 6-year terms expire in 2028, **no salary increase approved by the 19th Congress can take effect for ANY member of Congress until after the expiration of the full 6-year term of those Senators on June 30, 2028.**

One-Sentence Doctrine Anchor

A legislative salary increase cannot take effect for any member of either chamber until after the full terms of all members of both the Senate and the House of Representatives approving the increase have expired.

PHILCONSA V. MATHAY (1966)

Topic Subtopic	Congress Salaries	GR No. & Ponente	GR No. L-25554
Petitioner/s	Philippine Constitution Association, Inc. (PHILCONSA)	Respondent/s	Ismael Mathay and Jose Velasco
Doctrine	The terms of office of all members of the Legislature that enacted the measure increasing salaries must have expired before the increase in compensation can become operative.		

FACTS

- RA 4134 was assailed by PHILCOSA in the Court, hoping to enjoin the respondents from passing in audit the payment of the increased salaries to the Speaker and Members of the HoR before Dec. 30, 1969.
 - Sec. 1(a) → the annual salary of the Senate President and House Speaker shall be P40,000 + Senators and House Members at P32,000 (both increasing their compensation).
 - Section expressly provides that the salary increases herein fixed shall take effect in accordance with the provisions of the Constitution.
 - Sec. 8 → the salary increase of the President of the Senate and of the Speaker of the House... shall take effect on the effectivity of the salary increase of Congressmen and Senators.
- RA 4642 → Appropriation Act for Fiscal Year July 1, 1965 to June 30, 1966 contained the ff. items for HoR:
 - Speaker → P16,000 from July 1 to Dec. 29, 1965 & P40,000 from Dec. 30, 1965 to June 30, 1966
 - Members → P7,200 from July 1 to Dec. 29, 1965 & P32,000 from Dec. 30, 1965 to June 30, 1966
 - For the Senate, the Senate President's is P16,000 & 23 Senators at P7,200 (same as before).
- Petitioners contend that such implementation is violative of Art. VI, Sec. 14 of the 1935 Constitution
 - "No increase in said compensation shall take effect until after the expiration of the full term of all the Members of the Senate and of the House of Representatives approving such increase."
 - House members' term expired on Dec. 30, 1965, but the Senators' term end on Dec. 30, 1969
- Upon receipt of written protest from petitioners, the Auditor General requested the Solicitor General to secure a judicial construction of the law involved, but SolGen suggested that an opinion on the matter be sought from the Secretary of Justice.
 - Before the Justice Secretary could act, Acting Auditor General Agiluz directed his representative in Congress, Velasco, to pass in audit & approve the payment of the increased salaries.

ISSUE 1

Side – Procedural	W/N the petitioners have legal standing	YES
-------------------	---	-----

RULING and RATIO DECIDENDI:

- Respondents alleged a lack of personality of the petitioners due to lack of showing of injury
 - Court disagreed → as taxpayers, the petitioners may bring an action to restrain officials from wasting public funds through the enforcement of an invalid/unconstitutional law

ISSUE 2

Side – Procedural	W/N the Speaker and Members of the House should be included as respondents/defendants	NO
-------------------	---	----

RULING and RATIO DECIDENDI:

- The acts sought to be enjoined were the respondents' passing in audit and the approval of the payment of Representatives' increased salaries, NOT the collection or receipt thereof

ISSUE 3

Main Substantive	– W/N Sec. 14, Art. VI of the 1935 Constitution require that not only the term of all the House Members but also that of all Senators who approved the increase must have fully expired before the increase becomes effective	YES
-------------------------	---	------------

RULING and RATIO DECIDENDI:

- The constitutional provision refers to “all the members of the Senate and of the House of Representatives as a single unit without distinction between them.
 - Speaks of the “expiration of the full term” of those that approved the measure, using the singular form and not the plural, despite the difference in terms of office
- The terms of office of all members of the Legislature that enacted the measure must have expired before the increase in compensation can become operative.
- Throughout the changes of phraseology during the 1934 Constitutional Convention, the intent of the clause has been to require expiration of the full term of all members.
 - In order to circumvent the influence of self-interest in its adoption.
- The use of the words “of the” before House (of the Senate and of the House) → grammatically correct to include these two words
 - “Members of the Senate and the House” would imply that the members of the Senate also held membership in the House
- Under the 1935 Constitution, if the increase approved in the 1965 sessions immediately preceding the elections in November 1935, the higher compensation would be operative only on Dec. 30, 1969.
 - The most recently elected members of the Senate would then be Senators chosen by electors of Nov. 1963 and their term would not expire until that date.
 - To discourage the approval of increases of compensation just before an election by legislators who can anticipate their reelection.

FINAL DECISION	We concur in the foregoing opinion and in the concurring opinions of Justices Bengzon, Zaldivar and Castro.
-----------------------	---

Ligot v. Mathay

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Benjamin T. Ligot v. Ismael Mathay, Auditor General, and Jose V. Velasco, Auditor, Congress of the Philippines*
- **Citation:** G.R. No. L-34676, April 30, 1974 (First Division; 56 SCRA 823)
- **Ponente:** Teehankee, J.
- **Bench Composition:** Makalintal, C.J., Castro, Esguerra, and Muñoz Palma, JJ., concurring; Makasiar, J., on official leave.
- **Syllabus Relevance & Topic:**
 1. **Legislative Department — Salaries, Privileges, and Disqualifications / Compensation & Salary Increases (Art. VI, Sec. 10 [1987 Consti] / Art. VI, Sec. 14 [1935 Consti]):** Application of the constitutional prohibition against immediate legislative salary increases to retirement gratuities and pensions [4, 36, 50, 127, 129, 138–139].
 2. **Retirement Gratuity as a Species of Compensation or Emolument:** Principle that retirement gratuities are a form or species of compensation for services rendered in office; computing retirement benefits based on an increased salary rate that a legislator was constitutionally prohibited from receiving during his incumbency violates the Constitution [4, 36, 138–139].
 3. **Prevention of Indirect Evasion of Constitutional Ban:** Prohibition against administrative or executive authorities doing indirectly (granting higher retirement gratuities based on uncollected salary increases) what the Constitution directly forbids legislators from receiving during their term.

CHRONOLOGICAL MATERIAL FACTS

1. **Petitioner's Legislative Tenure (1957–1969):** Petitioner Benjamin T. Ligot served as a Member of the House of Representatives of the Congress of the Philippines representing the Second District of Cagayan for three consecutive four-year terms, spanning twelve years from December 30, 1957 to December 30, 1969.
2. **Enactment of Republic Act No. 4134 (June 20, 1964):** During petitioner's second term in office (1961–1965), Congress enacted Republic Act No. 4134 (*"An Act fixing the salaries of constitutional officials and certain other officials of the national government"*), which took effect on July 1, 1964. R.A. No. 4134 increased the annual salary of Senators and Congressmen from ₱7,200.00 to ₱32,000.00 per annum, but explicitly provided in Section 1 that said increases *"shall take effect in accordance with the provisions of the Constitution"*.
3. **Constitutional Bar During Petitioner's Third Term (*Philconsa v. Mathay*):** Petitioner was reelected to a third term covering December 30, 1965 to December 30, 1969. In *Philconsa v. Mathay* (18 SCRA 300, Oct. 4, 1966), the Supreme Court unanimously held that the salary increases under R.A. No. 4134 could not become operative until December 30, 1969, when the full six-year terms of the Senators elected in 1963 who approved the law had expired. Consequently, petitioner was constitutionally prohibited under Article VI, Section 14 of the 1935 Constitution from receiving the ₱32,000.00 salary, and he actually received only the annual salary of ₱7,200.00 throughout his entire incumbency up to December 30, 1969.
4. **Expiration of Term & Application for Retirement:** Petitioner lost his bid for a consecutive fourth term in the November 1969 elections. His term as Congressman expired at noon on December 30, 1969. Possessing over twenty years of total government service, petitioner filed a claim for retirement gratuity under Commonwealth Act No. 186, Section 12(c), as amended by Republic Act No. 4968, which provided that retirement gratuity for elected officials be computed *"on the rates of pay as provided by law"*.

5. **Issuance and Withholding of Treasury Warrant (May–July 1970):** On May 8, 1970, the House of Representatives issued Treasury Warrant No. 04-331006 in the sum of ₱122,429.86 in petitioner's favor as his retirement gratuity, calculating the benefit using the increased salary rate of **₱32,000.00 per annum**. However, respondent Congressional Auditor Jose V. Velasco withheld signature on the warrant pending the Auditor General's decision on a similar claim filed by former Representative Melanio T. Singson, whose term had likewise expired on December 30, 1969.
 6. **Auditor General's Adverse Ruling & Recomputation Request:** On July 22, 1970, Auditor Velasco requested petitioner to return the warrant for recomputation, enclosing the Auditor General's decision in the *Singson* case. The Auditor General ruled that retirement gratuities for outgoing congressmen whose terms ended on December 30, 1969 could **not** be computed on the ₱32,000.00 salary basis, but must be calculated strictly on the ₱7,200.00 rate actually authorized and received during their tenure.
 7. **Denial of Reconsideration (January 20, 1972):** Petitioner's request for reconsideration was denied on January 20, 1972 by the Auditor General through respondent Auditor Velasco, who furnished petitioner a copy of the Executive 2nd Indorsement dated June 29, 1971 from the Office of the President dismissing ex-Congressman Singson's appeal [133, 140–142].
-

PROCEDURAL HISTORY

1. **Original Administrative Claim:** Petitioner submitted his retirement gratuity claim before the House Disbursing Officer and the Auditor of Congress [130–132].
 2. **Adverse Administrative Decision:** Respondent Auditor General Ismael Mathay disallowed the ₱32,000.00 annual salary basis and ordered the recomputation of petitioner's retirement gratuity based on ₱7,200.00 per annum [127, 132–133].
 3. **Petition for Review in the Supreme Court:** Petitioner filed a Petition for Review (appeal by *certiorari* under Rule 44/65) before the Supreme Court seeking to reverse the decision of the Auditor General [127, 133–134].
 4. **Supreme Court Disposition (April 30, 1974):** The Supreme Court First Division **DISMISSED** the petition and **AFFIRMED** the Auditor General's decision.
-

PARTIES' MATERIAL ARGUMENTS

- **Petitioner (Benjamin T. Ligot):**
 1. **Operative Rate at Time of Retirement:** Under C.A. No. 186, Section 12(c) (as amended by R.A. No. 4968), retirement gratuity for elected officials must be computed based on "*the rates of pay as provided by law*". At the exact moment his retirement took effect (noon of December 30, 1969), the rate of pay for Members of Congress "as provided by law" under R.A. No. 4134 was already ₱32,000.00 per annum because the constitutional restriction expired at that exact moment.
 2. **Non-Violation of Salary Ban:** Computing his retirement gratuity using the ₱32,000.00 rate does not violate Article VI, Section 14 of the 1935 Constitution because he is not receiving an increased *salary* during his incumbency, but merely using the statutory benchmark rate to calculate retirement benefits for past public service.
 3. **Simultaneous Effectivity:** His entitlement to retirement benefits arose simultaneously with the commencement of his successor's term, at which point the ₱32,000.00 rate was legally operative for Congress.
- **Respondents (Auditor General Ismael Mathay & Congressional Auditor Jose V. Velasco):**
 1. **Constitutional Rate for Petitioner's Tenure:** Under *Philconsa v. Mathay*, the ₱32,000.00 salary rate under R.A. No. 4134 became operative only for incoming members of Congress whose terms commenced on December 30, 1969. For outgoing members whose terms covered 1965–1969 (such as

petitioner), the only "rate of pay as provided by law" and allowed by the Constitution during their tenure was ₱7,200.00 per annum [135, 141–142].

2. **Indirect Evasion of Constitutional Ban Prohibited:** Allowing petitioner to collect a retirement gratuity computed on ₱32,000.00 per annum would pay prohibited emoluments that effectively increase his compensation beyond what the Constitution permitted during his term, permitting administrative authorities to do indirectly what cannot be done directly.
3. **Retirement Gratuity is an Emolument (*Philconsa v. Jimenez*):** Under *Philconsa v. Jimenez* (15 SCRA 479), retirement benefits are a form or species of emolument and compensation for service [34–35, 138–139]. Thus, increasing retirement gratuities based on uncollected salary increases breaches Article VI, Section 14 of the Constitution [138–139, 141].

ISSUES

1. **Main Substantive Issue:** Whether the retirement gratuity of a Member of Congress whose term of office expired on December 30, 1969 should be computed on the basis of the increased salary rate of ₱32,000.00 per annum under Republic Act No. 4134 (which became legally operative for incoming members on that date), or on the basis of the salary rate of ₱7,200.00 per annum actually authorized and received by him during his incumbency pursuant to the constitutional limitation in Article VI, Section 14 of the 1935 Constitution [36, 127, 134–135].

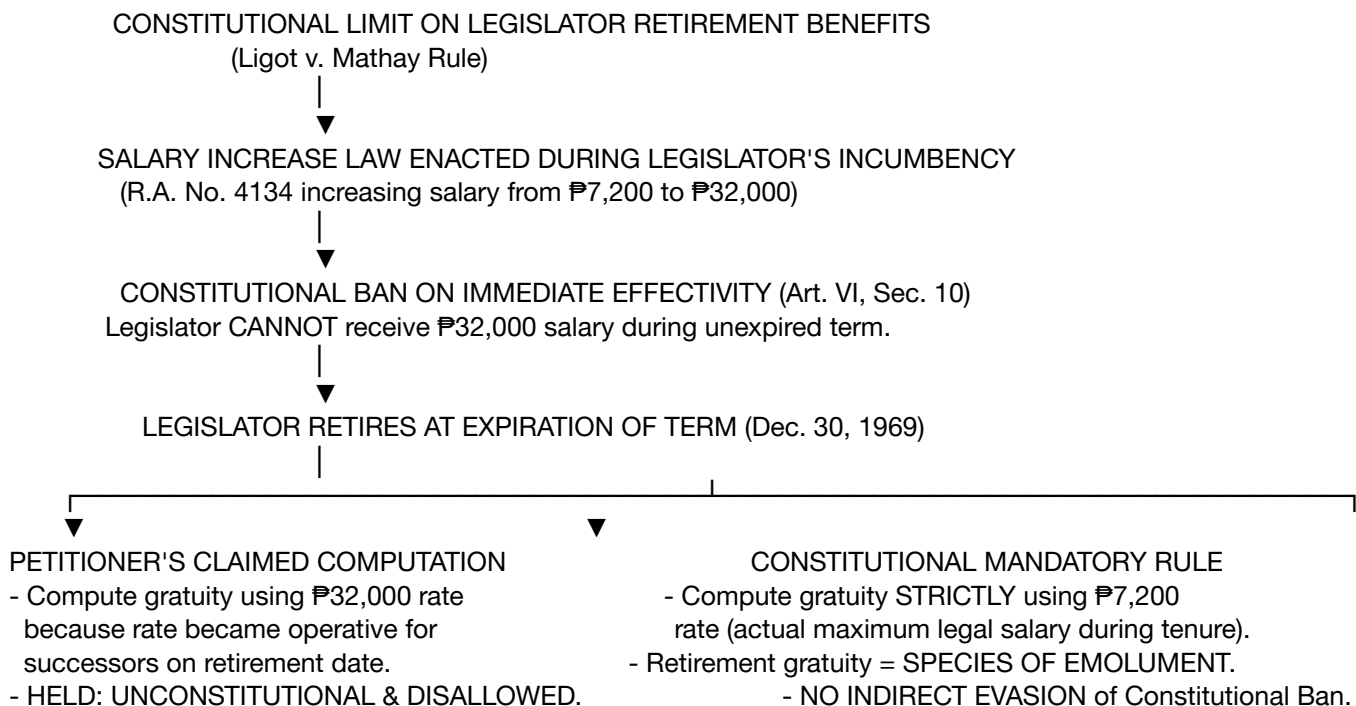
HOLDINGS AND CONTROLLING REASONING

1. On the Computation of Retirement Gratuity: The Retirement Gratuity **MUST BE COMPUTED** on the ₱7,200.00 Salary Basis; the ₱32,000.00 Rate **IS CONSTITUTIONALLY DISALLOWED**.

- **A. Meaning of "Rate of Pay as Provided by Law" for Outgoing Members:**
 - Under Article VI, Section 14 of the 1935 Constitution and *Philconsa v. Mathay*, the salary increase to ₱32,000.00 per annum under R.A. No. 4134 was constitutionally restricted and could become operative **only** for incoming members of Congress whose terms commenced on December 30, 1969.
 - For outgoing members of Congress whose terms covered December 30, 1965 to December 30, 1969 (such as petitioner), the **only** "rate of pay as provided by law" authorized and permitted by the Constitution during their entire tenure was **₱7,200.00 per annum** [135, 141–142].
 - There is no legal or logical basis for equating a constitutionally prohibited compensation rate for petitioner with a statutorily prescribed rate for his successor in office [141–142].
- **B. Prevention of Indirect Evasion of the Constitutional Ban:**
 - To grant a retirement gratuity computed on an increased salary of ₱32,000.00 per annum to a legislator who was constitutionally prohibited from receiving that salary during his incumbency would pay prohibited emoluments.
 - As correctly held by the Auditor General, such a scheme contravenes the Constitution because it enables administrative authorities to do **indirectly** what the Constitution explicitly forbids doing **directly**.
 - It defies logic and reason that while petitioner could not legally receive the ₱32,000.00 rate as salary while actively serving, he would be allowed to enjoy it thereafter in the guise of a retirement gratuity.
- **C. Retirement Gratuity as a Species of Emolument (*Philconsa v. Jimenez* Doctrine):**
 - Petitioner's claim that retirement gratuity is distinct from salary cannot stand. Citing *Philconsa v. Jimenez* (15 SCRA 479), the Court reiterated that "retirement benefit is a form or another species of emolument, because it is a part of compensation for services of one possessing any office" [35, 138–139].

- Article VI, Section 14 of the Constitution limits both compensation and "other emoluments" [138–139]. Because retirement benefits are a species of emolument, granting increased retirement benefits derived from a salary law passed during the legislator's term breaches the constitutional prohibition [138–139, 141].
-  **D. Rejection of Executive / Ancillary Arguments:**
 - The Court fully adopted the reasoning of the Office of the President in the parallel *Singson* case [133, 140–142]: ₱32,000.00 was the statutory rate for incoming members, whereas ₱7,200.00 was the authorized rate for outgoing members [141–142].
 - Calculating retirement gratuity for services rendered in other branches of government using the ₱32,000.00 congressional rate carries its own refutation, as petitioner sought retirement specifically as an "elected official" [142–143].

● DOCTRINE, TESTS, AND LEGAL STANDARDS



1.  **Rule on Legislative Retirement Gratuity Computations (*Ligot v. Mathay* Rule):** A member of Congress who was constitutionally prohibited from receiving a statutory salary increase during his incumbency under Article VI, Section 14 of the 1935 Constitution (now Art. VI, Sec. 10 of the 1987 Constitution) cannot have his retirement gratuity computed on the basis of that increased salary rate, even if the higher rate becomes legally operative for incoming members on the exact date his retirement takes effect.
2.  **Retirement Benefits as Emoluments (*Philconsa v. Jimenez* / *Ligot* Standard):** Retirement gratuities and pensions are a form or species of emolument and compensation for past public service [35, 138–139]. Consequently, any increase in retirement gratuity stemming from a salary law enacted during the legislator's term is subject to the constitutional waiting period and ban [138–139, 141].
3.  **Principle Against Indirect Evasion of Constitutional Prohibitions:** Executive, administrative, and auditing officers cannot grant indirectly through retirement calculations what the Constitution directly forbids legislators from collecting as salary during their incumbency.

♥ DISPOSITION

-  **Ruling:** The petition for review is **DISMISSED**, and the decision of respondent Auditor General disallowing the computation of petitioner's retirement gratuity at the rate of ₱32,000.00 per annum and ordering its recomputation at ₱7,200.00 per annum is **AFFIRMED** [127, 132–133, 143]. No costs.
-

● SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLE LINES

- *(Unanimous 5-0 decision penned by Associate Justice Claudio Teehankee; Chief Justice Makalintal and Associate Justices Castro, Esguerra, and Muñoz Palma concurred; Justice Makaslar was on official leave).*

Source-Verified Quotable Lines

-  **On the Indirect Evasion of the Constitutional Ban (Teehankee, J.):**

"To grant petitioner's contention that the retirement gratuity of members of Congress such as himself whose terms expired on December 30, 1969 should be computed on the basis of an increased salary of P32,000.00 per annum under Republic Act 4134... would be a subtle way of going around the constitutional prohibition and increasing in effect their compensation during their term of office and of doing indirectly what could not be done directly."

-  **On the Illogic of Collecting in Retirement What Was Prohibited in Service (Mathay, Auditor General / Teehankee, J.):**

"It should not escape notice that during his entire tenure as Congressman... the herein claimant-retiree was unable to receive the increased salary of P32,000.00 per annum for Members of Congress precisely because of the constitutional ban. To allow him now to collect such amount in the guise of retirement gratuity defies logic. Nor does it stand to reason that while he could not legally receive such rate as salary while still in the service, he would now be allowed to enjoy it thereafter by virtue of his retirement."

-  **On Retirement Benefits as Species of Emoluments (Teehankee, J.):**

"...a retirement gratuity or benefit is a form of compensation within the purview of the Constitutional provision limiting their compensation and 'other emoluments' to their salary as provided by law... '[I]t is evident that retirement benefit is a form or another species of emolument, because it is a part of compensation for services of one possessing any office'..." [138–139]

● RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Ligot v. Mathay* (1974), petitioner Benjamin Ligot served 3 consecutive terms as Congressman (1957–1969). During his second term, Congress enacted R.A. No. 4134 increasing congressional salaries from ₱7,200 to ₱32,000 per annum. Under *Philconsa v. Mathay*, Ligot was constitutionally barred under Art.

VI, Sec. 14 from receiving the ₱32,000 salary during his 1965–1969 term because the 6-year terms of Senators elected in 1963 who passed the law expired only on Dec 30, 1969. Thus, Ligot actually received ₱7,200 annually throughout his tenure. When his term expired on Dec 30, 1969, he retired under C.A. 186/R.A. 4968, which provided that retirement gratuity be computed on 'rates of pay as provided by law.' The House issued a warrant computing his gratuity using the ₱32,000 rate, arguing that this rate became legally operative for Congress on his exact retirement date. Auditor General Ismael Mathay disallowed the warrant and ordered recomputation based on ₱7,200. Ligot appealed to the Supreme Court.

The Supreme Court First Division, through Justice Teehankee, UNANIMOUSLY DISMISSED the petition and AFFIRMED the Auditor General. The Court held: (1) For outgoing members whose terms ended Dec 30, 1969, the only 'rate of pay as provided by law' permitted by the Constitution was ₱7,200 per annum; (2) Granting retirement gratuities based on ₱32,000 would pay prohibited emoluments and permit administrative authorities to do indirectly what the Constitution directly forbids; and (3) Under *Philconsa v. Jimenez*, retirement benefits are a species of emolument and compensation, making them strictly subject to the constitutional salary ban."* [4, 34–36, 127–132, 135–140, 143]

3 Likely Professor Follow-Up Questions & Concise Answers

1.  **Q: Why couldn't Congressman Ligot use the ₱32,000.00 salary rate for his retirement gratuity if that rate became legally operative on the exact date of his retirement (December 30, 1969)?**
 -  **A:** Because under *Philconsa v. Mathay*, the ₱32,000.00 rate was the authorized "rate of pay provided by law" **only for incoming members** of Congress whose terms commenced on December 30, 1969 [127, 141–142]. For outgoing members like Ligot, the maximum legal salary authorized for their term under the Constitution was ₱7,200.00 per annum [135, 141–142].
2.  **Q: How does the Court answer the argument that retirement gratuity is not 'salary' and therefore not subject to Article VI, Section 10/14?**
 -  **A:** Citing *Philconsa v. Jimenez* (15 SCRA 479), the Court held that a retirement gratuity is a **form or species of emolument and compensation** for services rendered in office [35, 138–139]. Since Article VI, Section 14 restricts both compensation and "other emoluments," retirement gratuities cannot be artificially separated from the constitutional prohibition [138–139].
3.  **Q: What principle of constitutional construction prevents executive auditors from approving retirement computations based on uncollected salary increases?**
 -  **A:** The fundamental principle that **administrative authorities cannot do indirectly what the Constitution directly prohibits**. Allowing a legislator to collect unreceived salary increases under the guise of retirement gratuities indirectly evades the constitutional ban [127, 136–137, 140].

Changed-Material-Fact Hypothetical

-  **Scenario:** Suppose in 2024, Congress passes a law increasing congressional salaries, explicitly stating that the increase takes effect on June 30, 2030 (after the expiration of the full 6-year terms of all sitting Senators approving it, complying with Art. VI, Sec. 10). A Senator who served from 2024 to 2030 retires on June 30, 2030. Can her retirement gratuity be computed using the new increased salary rate starting June 30, 2030?
-  **Answer: YES, her retirement gratuity CAN be computed on the new increased salary rate.** Unlike *Ligot v. Mathay*, where Congressman Ligot retired at the end of a term during which he was *constitutionally forbidden* from receiving the higher salary, here the legislative salary increase fully satisfied the constitutional waiting period required by Article VI, Section 10 prior to taking effect [128–129]. Because the increased salary rate became legally operative for *all* members upon the expiration of the full term, the new rate constitutes the lawful "rate of pay as provided by law" for her retirement.

One-Sentence Doctrine Anchor

- ♦ Retirement gratuities are a species of emolument, and a legislator constitutionally prohibited from receiving a salary increase during his term cannot have his retirement benefits computed on that increased rate upon retirement. [4, 36, 127, 138–139]
-

LIGOT v. MATHAY (1974)

Topic Subtopic	CONGRESS SALARIES	GR No. & Ponente	GR NO. L-34676 TEEHANKEE, J.
Petitioner	BENJAMIN T. LIGOT	Respondent/s	ISMAEL MATHAY & JOSE V. VELASCO
Doctrine	Recruitment gratuity is a form of compensation/emolument within the purview of Article VI, Section 14 (1935 Consti) that prohibits the increase of compensation of Senate and HoR members until the expiration of the full term of such members that approved the increase; as such their retirement benefits cannot be computed on the basis of increased rates that were approved during their term.		

FACTS

- Petitioner **Benjamin T. Ligot** served as member of the HOR representing the 2nd District of Cagayan for three consecutive four-year terms, spanning twelve years from 1957-1969.
- During 2nd term, **RA 4134 was passed by the HOR: increasing salaries of Congress members from 7.2k to 32k per annum**, taking effect on July 1, 1964.
 - Section 1 of RA 4134 explicitly provides that the increase will take effect "in accordance with the Constitution" i.e. **Article VI, Section 14 which prohibits members who passed the increase to benefit from that increase.**
- Ligot was reelected to a 3rd term ending on Dec 30, 1969 but was not entitled to the **salary increase, RA 4134 was not operative until Dec 30, 1969 (as held in Philconsa v. Mathay)** when the full term of the Congress members that approved the law (including Ligot) expired.
- When Ligot lost for his 4th term, his term expired on 1969 and **he then filed a claim for retirement.**
 - Possessing over twenty years of total government service, Petitioner filed a claim for retirement gratuity under Commonwealth Act No. 186, Section 12(c), as amended by Republic Act No. 4968, which provided that retirement gratuity for elected officials **be computed "on the rates of pay as provided by law"**
- HoR issued a treasury warrant in favor of Ligot of **P122K, using the increased salary rate of 32k per annum** under RA 4134. He never received this amount during his incumbency due to the inoperativeness of RA 4134 and which under Philconsa v. Mathay can only be effective starting Dec. 30, 1969.
- Velasco, Congress Auditor, did not sign the warrant, pending resolution by the Auditor General of a similar claim filed by Rep. Singson.
- In 1970, **Velasco requested the petitioner to return the warrant for recomputation**, following the Auditor General Mathay's adverse decision on Ex-Rep. Singson's case **prohibiting/disallowing the 32k per annum as basis for retirement gratuities.**
- Petitioner's request for **reconsideration was denied on January 20, 1972 by the Auditor General** through respondent Auditor Velasco, who furnished petitioner a copy of the Executive 2nd Indorsement dated June 29, 1971 from the Office of the President dismissing ex-Congressman Singson's appeal.
- **Petitioner Ligot filed a Petition for Review** (appeal by certiorari under Rule 44/65) before the Supreme Court **seeking to reverse the decision of the Auditor General**

ISSUE 1

Main – Substantive	W/N petitioner should be entitled to a retirement gratuity computed based on the salary increase of P32k under RA4134	NO
PETITIONER/S ARGUMENTS:		
• His claim for retirement gratuity computed on the basis of the increased salary of P32,000.00 per annum for members of Congress should not have been disallowed, because at the time of his retirement, the increased salary for members of Congress "as provided by law" (under Republic Act 4134) was already P32,000.00 per annum.		
RULING and RATIO DECIDENDI:		

1. "As provided by law"
 - a. Under **Article VI, Section 14 of the 1935 Constitution** and **Philconsa v. Mathay**, the salary increase to ₱32,000.00 per annum under R.A. No. 4134 was constitutionally restricted and could become operative only for incoming members of Congress whose terms commenced on December 30, 1969.
 - b. As such, for outgoing members of Congress whose terms covered December 30, 1965 to December 30, 1969 (such as petitioner), the only **"rate of pay as provided by law"** authorized and permitted by the Constitution during their entire tenure **was ₱7,200.00 per annum**
 - c. **No basis to use the salary of the incoming officer for the retirement benefits of the outgoing officer.**
2. Evades the constitutional prohibitions:
 - a. To grant a retirement gratuity computed on an increased salary of ₱32,000.00 per annum to a legislator who was constitutionally prohibited from receiving that salary during his incumbency would pay prohibited emoluments.
 - b. As correctly held by the Auditor General, such a scheme contravenes the Constitution because it enables administrative authorities to do **indirectly** what the Constitution explicitly forbids doing **directly**.
 - c. It defies logic and reason that while petitioner could not legally receive the ₱32,000.00 rate as salary while actively serving, he would be allowed to enjoy it thereafter **in the guise of a retirement gratuity**.
3. Retirement gratuity or benefit is a form of compensation/emoluments within the purview of the Constitutional prohibition because it is a part of compensation for services of one possessing any office
 - a. Petitioner's claim that retirement gratuity is distinct from salary cannot stand. Citing **Philconsa v. Jimenez**, the Court reiterated that **"retirement benefit is a form or another species of emolument**, because it is a part of compensation for services of one possessing any office"
 - b. Article VI, Section 14 of the Constitution limits both compensation **and "other emoluments"**
 - c. Because retirement benefits are a species of emolument, granting increased retirement benefits derived from a salary law passed during the legislator's term breaches the constitutional prohibition
4. Contentions of petitioner were already refuted by the Office of the President dismissing the appeal in the similar case of Congressman Singson and therefore would likewise show untenability, mutatis mutandis
 - a. Calculating retirement gratuity for services rendered in other branches of government using the ₱32,000.00 congressional rate carries its own refutation, as petitioner sought retirement specifically as an "elected official"

LEGAL BASES

Sec. 14, Art. VI, 1987 Constitution

- No increase in said compensation shall take effect until after the expiration of the full term of all the members of the Senate and of the House of Representatives approving such increase

FINAL DECISION

The petition for review is **DISMISSED**, and the decision of respondent Auditor General disallowing the computation of petitioner's retirement gratuity at the rate of ₱32,000.00 per annum and ordering its recomputation at **₱7,200.00 per annum is AFFIRMED**

People v. Jalosjos

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *People of the Philippines v. Romeo G. Jalosjos*
- **Citation:** G.R. Nos. 132875-76, February 3, 2000 (En Banc; 324 SCRA 689)
- **Ponente:** Ynares-Santiago, J.
- **Bench Composition:** Kapunan, Panganiban, Quisumbing, Purisima, Pardo, Buena, and De Leon, Jr., JJ., concurring; Davide, Jr., C.J., Bellosillo, Melo, Puno, Vitug, and Mendoza, JJ., concurring in the main and separate opinion; Gonzaga-Reyes, J., see separate concurring opinion.
- **Syllabus Relevance & Topic:**
 1. **Legislative Department — Privilege from Arrest / Parliamentary Immunity (Art. VI, Sec. 11):** Constitutional immunity from arrest applies strictly and restrictively only to offenses punishable by *not more than six (6) years imprisonment* while Congress is in session.
 2. **Non-Exemption of Incarcerated Members of Congress:** Membership in Congress and re-election by popular vote do not exempt a validly detained individual from general penal laws and prison regulations [2, 25, 65, 207, 219–220].
 3. **Equal Protection Clause & Strict Scrutiny in Criminal Law Enforcement:** Elective public office does not constitute a substantial distinction that lifts an incarcerated person out of the general class of prisoners [65–66, 218–220].
 4. **Electoral Mandate vs. Supremacy of Constitutional Law:** The "mandate of the people" yields to the majesty of the law and the Constitution; constituents elect an incarcerated candidate with full awareness of the legal limitations on his physical freedom.

CHRONOLOGICAL MATERIAL FACTS

1. **Electoral Background and Criminal Charges:** Accused-appellant Romeo G. Jalosjos was a full-fledged Member of the House of Representatives representing the First District of Zamboanga del Norte.
2. **Conviction by the Trial Court:** The Regional Trial Court of Makati City (Branch 62) convicted Jalosjos of **two (2) counts of statutory rape** and **six (6) counts of acts of lasciviousness**. Statutory rape carries the afflictive penalty of *reclusion perpetua*.
3. **Incarceration Pending Appeal:** Pending the appeal of his conviction before the Supreme Court, Jalosjos was validly incarcerated and confined at the National Penitentiary (New Bilibid Prison in Muntinlupa City).
4. **Flight History:** Prior to his trial and confinement, when a warrant for his arrest was initially issued, Jalosjos fled and evaded capture despite calls from his colleagues in the House of Representatives to surrender voluntarily.
5. **Re-election While Detained:** While confined in prison, Jalosjos ran for re-election in the May 1998 elections and was re-elected by the voters of the First District of Zamboanga del Norte [207–208].
6. **Filing of the Motion:** Jalosjos filed a "*Motion To Be Allowed To Discharge Mandate As Member of House of Representatives*" before the Supreme Court, requesting permission to leave prison to fully discharge his duties as Congressman, including attending daily legislative sessions, committee meetings, and floor debates at the Batasang Pambansa in Quezon City [206–207].

PROCEDURAL HISTORY

1. **Trial Court Ruling (RTC Makati City, Br. 62):** Rendered a judgment of conviction against Jalosjos for statutory rape (2 counts) and acts of lasciviousness (6 counts), sentencing him to *reclusion perpetua*.
 2. **Appellate Proceedings (Supreme Court):** Jalosjos appealed his conviction to the Supreme Court (docketed as G.R. Nos. 132875-76).
 3. **Interlocutory Motion in the Supreme Court:** Jalosjos filed the subject motion to be allowed to leave Bilibid prison five days a week to perform legislative functions.
 4. **Supreme Court En Banc Disposition (February 3, 2000):** The Supreme Court En Banc unanimously **DENIED** the motion.
-

PARTIES' MATERIAL ARGUMENTS

-  **Movant / Accused-Appellant (Romeo G. Jalosjos):**
 1. **Sovereign Mandate of the Electorate:** His re-election by the sovereign voters of his district constitutes an expression of popular will that cannot be defeated or rendered futile by procedural restraints or state police power [207–208].
 2. **Taxation Without Representation:** Preventing him from attending sessions deprives his constituents of representation and a voice in Congress.
 3. **Duty to Legislate Ranks Highest:** The constitutional duty to legislate is paramount; barring him from legislative halls amounts to an unauthorized suspension or removal from office.
 4. **House Recognition and Institutional Respect:** The House of Representatives treats him as a *bona fide* member and urges co-equal branches to respect his mandate.
 5. **No Flight Risk & Precedent:** He maintains a functional office at Bilibid Prison, has complied with previous temporary emergency leaves, and cited U.S. jurisprudence allegedly allowing a detained lawmaker to attend legislative sessions [207–208, 216].
 -  **Respondent (People of the Philippines / Office of the Solicitor General):**
 1. **Strict Constitutional Limits of Immunity (Art. VI, Sec. 11):** Privilege from arrest applies strictly to offenses punishable by *not more than six years imprisonment*. Because statutory rape is punishable by *reclusion perpetua*, no parliamentary immunity exists.
 2. **Equal Protection Violation:** Granting a convicted or detained legislator regular 5-day-a-week leaves creates an unconstitutional privileged class, generating badges of inequality and mocking the penal correctional system [65, 213–214, 218–220].
 3. **Voters Acted with Full Knowledge:** Constituents elected Jalosjos fully aware that he was incarcerated and could only perform duties achievable from within prison confines.
-

ISSUES

1. **Substantive Issue 1 (Scope of Parliamentary Privilege):** Whether membership in Congress (and re-election by popular vote) exempts a validly incarcerated accused-appellant from general statutes and prison rules so as to entitle him to leave jail to attend legislative sessions and committee meetings.
 2. **Substantive Issue 2 (Equal Protection & Classification):** Whether election to public office constitutes a substantial distinction under the Equal Protection Clause that justifies treating an incarcerated Member of Congress differently from all other validly detained prisoners [65, 218–220].
-

HOLDINGS AND CONTROLLING REASONING

1. On Parliamentary Privilege from Arrest (Art. VI, Sec. 11): NO. Constitutional immunity DOES NOT APPLY to offenses punishable by more than six years imprisonment.

-  **Textual and Historical Strict Construction:**
 - Article VI, Section 11 of the 1987 Constitution provides that a Senator or Member of the House shall be privileged from arrest while Congress is in session *only in offenses punishable by not more than six (6) years imprisonment*.
 - History shows that legislative immunity has always been granted in a restrictive sense and cannot be extended by intendment, implication, or equitable considerations.
 - Under the 1935 Constitution (Art. VI, Sec. 15), immunity excluded "treason, felony, and breach of the peace" (which practically limited it to civil arrests) [209–210].
 - Under the 1973 Constitution (Art. VIII, Sec. 9) and the 1987 Constitution (Art. VI, Sec. 11), the threshold was explicitly capped at offenses punishable by *not more than six years*.
-  **Inapplicability to Statutory Rape:**
 - Jalosjos was convicted of statutory rape, an offense carrying the afflictive penalty of *reclusion perpetua* (>6 years).
 - Therefore, he enjoys absolutely **no constitutional immunity from arrest or detention**.

2. On Equal Protection and Classification of Detained Legislators: NO. Election to Congress IS NOT a reasonable classification in criminal law enforcement.

-  **Strict Scrutiny of Prisoner Classifications:**
 - Under the Equal Protection Clause, all persons similarly situated must be treated alike in rights enjoyed and responsibilities imposed.
 - Applying **strict scrutiny**, the Court held that being an elective official does not create a substantial distinction lifting a prisoner out of the general class of incarcerated individuals [65–66, 219–220].
 - Lawful arrest and confinement apply equally to all belonging to the same class of detained persons.
-  **No Exemption for Public Duties:**
 - The performance of essential public duties has never been an excuse to free a person validly in prison.
 - Congress consists of 250+ representatives and 24 senators; Congress continues to function effectively in the physical absence of one or a few members.
 - To allow Jalosjos to leave jail 5 days a week would make him virtually a free man, creating an aberrational privileged class, validating "badges of inequality," and mocking the correctional system.

3. On the Mandate of the Electorate vs. Supremacy of Law: The Sovereign Mandate YIELDS to Constitutional Law.

-  **Majesty of the Law:**
 - All top government officials—executive, legislative, and judicial—are subject to the majesty of the law. High office requires greater obedience, not exemption.
-  **Voters' Presumed Knowledge:**
 - When voters elected Jalosjos while he was in jail, they did so with full awareness of his confinement and the legal restraints on his physical movement.
 - They elected him knowing he could accomplish only such legislative acts as were achievable within prison (e.g., signing bills, receiving staff, and coordinating from his prison office setup) [216–217].
 - The popular mandate cannot override insuperable procedural and penal restraints imposed by law.

4. On Emergency Leaves vs. Regular Attendance:

-  Compelling temporary leaves from jail (e.g., medical emergencies, death of an immediate family member) are allowed to *all* prisoners at the discretion of court or prison authorities.

- 🌸 Jalosjos's request for regular 5-day-a-week leaves to attend legislative sessions is **not of an emergency nature** and cannot be granted.

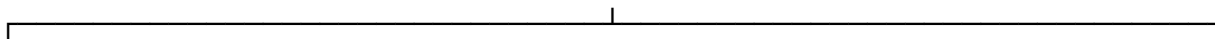
● DOCTRINE, TESTS, AND LEGAL STANDARDS

PARLIAMENTARY IMMUNITY & DETENTION FRAMEWORK

(People v. Jalosjos)



NATURE OF CRIMINAL OFFENSE / PENALTY



PUNISHABLE BY ≤ 6 YEARS IMPRISONMENT

PUNISHABLE BY > 6 YEARS IMPRISONMENT

(Minor / Correctional Offenses)

(Afflictive / Capital / Reclusion Perpetua)

- Covered by Art. VI, Sec. 11 immunity from arrest while Congress is in session.

- ABSOLUTELY NO IMMUNITY from arrest detention.

- Subject to general penal custody.



EQUAL PROTECTION / STRICT SCRUTINY

- Re-election to Congress is NOT a substantial distinction.

- Electorate mandate yields to penal law.

- Cannot leave jail for regular sessions.

1. **Restrictive Boundary of Legislative Immunity (Art. VI, Sec. 11):** Privilege from arrest under Article VI, Section 11 applies exclusively to offenses punishable by *not more than six (6) years imprisonment* while Congress is in session. It cannot be extended by implication, intendment, or equitable considerations.
 2. **Strict Scrutiny Test for Prisoner Classifications (Jalosjos Standard):** Elective public office or the duty to legislate does not constitute a substantial distinction under the Equal Protection Clause to exempt an incarcerated person from general prison confinement and rules [65, 219–220].
 3. **Subordination of Electoral Mandate to Constitutional Custody:** The voters' choice of an incarcerated candidate is bound by the Constitution and statutory law; the electorate chooses such a candidate with full legal awareness that his legislative functions will be restricted to what can be accomplished inside prison.
-

♥ DISPOSITION

- **Ruling:** Accused-appellant Romeo G. Jalosjos's "*Motion To Be Allowed To Discharge Mandate As Member of House of Representatives*" is **DENIED**.
-

● SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLE LINES

Concurring Opinion of Associate Justice Florida Ruth P. Gonzaga-Reyes [221–224]

- **Gravity of Offense Controls:** Emphasized that it was never the intention of the framers to shield a member of Congress from serious crimes. Serious crimes carrying afflictive penalties (*reclusion perpetua*) fall completely outside parliamentary privilege [222–223].
- **Mootness of Immunity Post-Conviction:** Pointed out that the privilege from arrest contemplates the initial stage of acquiring personal jurisdiction over an accused. Once an accused has been tried and convicted, the question of privilege from arrest is moot because jurisdiction has long attached.

Source-Verified Quotable Lines

- 💬 **On Public Duties Not Excusing Incarceration (Ynares-Santiago, J.):**

"The performance of legitimate and even essential duties by public officers has never been an excuse to free a person validly in prison... Never has the call of a particular duty lifted a prisoner into a different classification from those others who are validly restrained by law."

- 💬 **On Equal Protection and Badges of Inequality (Ynares-Santiago, J.):**

"A strict scrutiny of classifications is essential lest wittingly or otherwise, insidious discriminations are made in favor of or against groups or types of individuals. The Court cannot validate badges of inequality."

- 💬 **On Voters' Awareness of Prison Limitations (Ynares-Santiago, J.):**

"When the voters of his district elected the accused-appellant to Congress, they did so with full awareness of the limitations on his freedom of action. They did so with the knowledge that he could achieve only such legislative results which he could accomplish within the confines of prison."

● RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *People v. Jalosjos* (2000), Congressman Romeo G. Jalosjos was convicted by the RTC of statutory rape (2 counts) and acts of lasciviousness (6 counts), receiving a sentence of reclusion perpetua. While detained at New Bilibid Prison pending appeal before the Supreme Court, he was re-elected to Congress by his constituents in Zamboanga del Norte. Jalosjos filed a motion requesting permission to leave jail 5 days a week to attend legislative sessions and committee meetings at the Batasang Pambansa, arguing that: (1) his re-election expressed the supreme mandate of the sovereign people; (2) preventing him deprives his district of representation; and (3) his duty to legislate ranks highest in government.

The Supreme Court En Banc, through Justice Ynares-Santiago, UNANIMOUSLY DENIED the motion. The Court held: (1) Under Art. VI, Sec. 11, parliamentary immunity from arrest applies strictly to offenses punishable by NOT MORE THAN 6 years imprisonment; statutory rape carries reclusion perpetua, so no immunity exists; (2) Under strict scrutiny and equal protection, election to Congress is NOT a reasonable classification in criminal law enforcement that exempts a detainee from penal custody; allowing him regular leave would create an unconstitutional privileged class; and (3) The electorate's mandate yields to the majesty of the law; his constituents elected him knowing he was incarcerated and could perform only such legislative acts as were achievable from within prison."* [2, 24–26, 65–66, 206–211, 217–221]

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: Does a re-elected Senator or Congressman who is held as a pre-trial detainee (or detainee pending appeal) enjoy parliamentary immunity from arrest under Article VI, Section 11?**
 - **A: Only if the offense charged is punishable by NOT MORE THAN six (6) years imprisonment.** As held in *People v. Jalosjos* and *Trillanes IV v. Pimentel, Sr.*, if the offense carries a penalty exceeding 6 years (such as *reclusion perpetua* for rape or rebellion), the legislator enjoys **no immunity whatsoever** and cannot leave detention to attend congressional sessions [2, 26, 211, 222–223].
2. **Q: How does the Supreme Court address the argument that denying a detained Congressman the right to attend sessions deprives his constituents of representation ("taxation without representation")?**
 - **A:** The Court holds that the mandate of the electorate is subject to the Constitution and penal law. When constituents vote for an incarcerated candidate, they do so with full legal awareness of his confinement, expecting only such legislative output as can be accomplished within prison walls (e.g., drafting bills, receiving staff in jail) [216–217].
3. **Q: What is the difference between emergency temporary leaves granted to prisoners versus the leave requested by Congressman Jalosjos?**
 - **A:** Emergency temporary leaves (e.g., medical emergencies, hospitalization, death of an immediate family member) are available to **all prisoners alike** at the discretion of the court or prison authorities. Jalosjos requested regular, non-emergency 5-day-a-week leaves to attend sessions, which would make him virtually a free man and violate equal protection [213, 219–220].

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose a newly elected Congressman is charged with simple Slander (punishable by *arresto mayor*, max 6 months) committed during a campaign rally. While Congress is in active regular session, a local trial court

judge issues a warrant of arrest against the Congressman. Can the Congressman successfully invoke Article VI, Section 11 to prevent his arrest?

- **Answer: YES, the Congressman CAN successfully invoke Article VI, Section 11.** Under the plain text of Article VI, Section 11, a Senator or Congressman is privileged from arrest while Congress is in session for **all offenses punishable by not more than six (6) years imprisonment**. Because simple slander carries a penalty of less than 6 years (*arresto mayor*), he cannot be arrested while Congress is in session.

One-Sentence Doctrine Anchor

Election to Congress is not a substantial distinction that exempts an incarcerated legislator from penal confinement, as Article VI, Section 11 restricts parliamentary immunity from arrest strictly to offenses punishable by not more than six years imprisonment.

PEOPLE v. JALOSJOS (2000)

Topic Subtopic	CONGRESS FREEDOM FROM ARREST	GR No. & Ponente	GR NO. 132875-76 YNARES-SANTIAGO, J.
Petitioner/s	People of the Philippines	Respondent/s	Romeo G. Jalosjos
Doctrine	The performance of legitimate and essential duties by public officers has never been an excuse to free a person validly in prison. Article 6, Section 11 grants parliamentary immunity strictly to offenses punishable by not more than six years.		

FACTS

- **Romeo G. Jalosjos** was a full member of the House of Representatives representing the 1st District of Zamboanga Del Norte
- The RTC of Makati convicted Jalosjos of **two (2) counts of statutory rape** and **six (6) counts of acts of lasciviousness**. Statutory rape carries the afflictive penalty of *reclusion perpetua*.
- Pending the appeal of his conviction before the SC, Jalosjos was incarcerated and confined at the National Penitentiary in New Bilibid, Muntinlupa City.
- Prior to his trial and confinement, when a warrant for his arrest was initially issued, Jalosjos fled and evaded capture despite calls from his colleagues in the HoR to surrender already.
- While confined in prison, Jalosjos ran for re-election in the May 1998 elections and was re-elected by the voters of the first district of Zamboanga.
- Jalosjos is filing this motion asking to be allowed to fully discharge his duties as a Congressman, including leaving Bilibid five days a week to attend at legislative sessions, floor debates and committee meetings in Batasang Pambansa, QC despite his having been convicted of non-bailable offense

ISSUE 1

Main – Substantive	W/N accused-appellant should be allowed to discharge his duties, and attend legislative sessions and committee meetings	NO
--------------------	---	----

PETITIONER/S ARGUMENTS:

1. A member of Congress' function to attend sessions is underscored by Sec. 16(2), Art. VI of the Consti
2. *Aguinaldo v. Santos*: Court held that it should not remove a public officer for acts done prior to his present term of office
3. Plea of the electorate which voted him into office cannot be supplanted by unfounded fears that he might escape eventual punishment
4. On several occasions, he was already granted to temporarily leave his cell
5. His constituents want their voices to be heard through him, their elected representative, and that his mandate should be respected; concept of temporary detention does not necessarily curtail his duty to discharge his mandate and that he has always complied with conditions when allowed to leave jail
6. He maintains a functional office at Bilibid Prison, has complied with previous temporary emergency leaves, and cited U.S. jurisprudence allegedly allowing a detained lawmaker to attend legislative sessions

RULING and RATIO DECIDENDI:

1. Notwithstanding Sec. 16(2), Jalosjos has not given any reason why he should be exempted from the operation of Section 11, Article VI of the Constitution
 - a. Article VI, Section 11 of the 1987 Constitution provides that a Senator or Member of the House shall be privileged from arrest while Congress is in session only in offenses punishable by not more than six (6) years imprisonment.
 - i. Under the 1935 Constitution (Art. VI, Sec. 15), immunity excluded "treason, felony, and breach of the peace" (which practically limited it to civil arrests)
 - ii. Under the 1973 Constitution (Art. VIII, Sec. 9) and the 1987 Constitution (Art. VI, Sec. 11), the threshold was explicitly capped at offenses punishable by not more than six years.
 - b. Jalosjos was convicted of statutory rape, an offense carrying the afflictive penalty of *reclusion perpetua* (>6 years). Therefore, he enjoys absolutely no constitutional immunity from arrest or detention.
2. *Aguinaldo* case involves the administrative removal of a public officer for acts done prior to his present term, it does not apply to imprisonment arising from the enforcement of criminal law
 - Confinement pending approval is not removal, he remains a congressman unless expelled by Congress or disqualified

3. Emergency or compelling temporary leaves from imprisonment are allowed to all prisoners, at the discretion of the authorities or upon court orders. To attend congressional sessions and committee meetings for five days or more in a week, is not of an emergency nature and would make him a free man with all the privileges to his position

LEGAL BASES

Sec. 11, Art. VI, 1987 Constitution

A Senator or Member of the House of Representatives shall, in all offenses punishable by not more than six years imprisonment, be privileged from arrest while the Congress is in session. No Member shall be questioned nor be held liable in any other place for any speech or debate in the Congress or in any committee thereof.

Sec. 16 (2), Art. VI, 1987 Constitution

(2) A majority of each House shall constitute a quorum to do business, but a smaller number may adjourn from day to day and may compel the attendance of absent Members in such manner, and under such penalties, as such House may provide.

ISSUE 2

Main – Substantive	W/N being a Congressman is a substantial distinction that allows different treatment of the accused-appellant from the same class of all persons validly confined.	NO
--------------------	--	----

RULING and RATIO DECIDENDI:

Under the Equal Protection Clause, all persons similarly situated must be treated alike in rights enjoyed and responsibilities imposed.

- Applying strict scrutiny, the Court held that being an elective official does not create a substantial distinction lifting a prisoner out of the general class of incarcerated individuals

Re-election to public office does not give priority to any other right or interest, including the police power of the State.

- All top government officials, executive, legislative, and judicial, are subject to the majesty of the law.
- The performance of legitimate and essential duties by public officers has never been an excuse to free a person validly in prison. Congress consists of 250+ representatives and 24 senators; Congress continues to function well in the physical absence of one or few.
- The functions and duties of the office are not substantial distinctions which lift him from the class of prisoners
- Lawful arrest and confinement are germane to the purpose of the law and shall apply to all those belonging to the same class
- "Imprisonment" is the detention of another against his will depriving him of his power of locomotion and it "is something more than mere loss of freedom. It includes the notion of restraint within limits defined by walls or any exterior barrier." Thus, by its nature, imprisonment changes an individual's status in society
- When voters elected Jalosjos while he was in jail, they did so with full awareness of his confinement and the legal restraints on his physical movement. The popular mandate cannot override insuperable procedural and penal restraints imposed by law.

LEGAL BASES

Equal Protection Clause

"... nor shall any person be denied the equal protection of laws." All persons similarly situated shall be treated

FINAL DECISION	Accused-appellant Romeo G. Jalosjos's "Motion To Be Allowed To Discharge Mandate As Member of House of Representatives" is DENIED .
----------------	--

Trillanes IV v. Pimentel, Sr.

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Antonio F. Trillanes IV v. Gen. Hermogenes Pimentel, Sr., Gen. Hermogenes Esperon, Lt. Col. Antonio Dator, et al.*
- **Citation:** G.R. No. 179817, June 27, 2008 (En Banc; 556 SCRA 471)
- **Ponente:** Carpio Morales, J.
- **Bench Composition:** Puyat-Puno, C.J., Quisumbing, Ynares-Santiago, Sandoval-Gutierrez, Carpio, Austria-Martinez, Corona, Azcuna, Tinga, Chico-Nazario, Velasco, Jr., Nachura, and Reyes, JJ., concurring.
- **Syllabus Relevance & Topic:**
 1. **Legislative Department — Privilege from Arrest / Status of Detained Legislators (Art. VI, Sec. 11):** Inapplicability of parliamentary immunity or custodial exemption to legislators charged with offenses punishable by more than six (6) years imprisonment (e.g., Coup d'état under RPC Art. 134-A).
 2. **Pre-Trial Detainees Elected to Public Office:** Reaffirmation and expansion of the *People v. Jalosjos* doctrine—holding that pre-trial status and the presumption of innocence do not grant an incarcerated legislator the right to leave jail to attend legislative sessions or establish a legislative office outside detention.
 3. **Equal Protection Clause in Criminal Law Enforcement:** Elective public office (even as Senator of the Republic) is not a substantial distinction that lifts an incarcerated person out of the general class of pre-trial detainees.
 4. **Subordination of Electoral Mandate to the Rule of Law:** The "mandate of the electorate" is subordinate to the Constitution and general penal laws.

CHRONOLOGICAL MATERIAL FACTS

1. **Oakwood Mutiny & Criminal Indictment (July 2003):** Navy Lt. Antonio F. Trillanes IV participated in the July 27, 2003 "Oakwood Mutiny." He was charged with **Coup d'état** (under Article 134-A of the Revised Penal Code) before the Regional Trial Court of Makati City (Branch 148). Coup d'état is a non-bailable offense carrying the penalty of *reclusion perpetua*.
2. **Pre-Trial Confinement:** Trillanes was placed in pre-trial detention at the Marine Brig in Fort Bonifacio, Taguig City (and later transferred to the PNP Custodial Center in Camp Crame following subsequent events).
3. **Electoral Victory While Incarcerated (May 2007):** While confined in pre-trial detention without bail, Trillanes ran for Senator in the May 14, 2007 National and Local Elections. He garnered over 11 million votes, won a seat in the Senate, was proclaimed Senator-elect, and took his oath of office on June 29, 2007.
4. **Filing of the Omnibus Motion Before RTC:** Following his election, Senator Trillanes filed an *Omnibus Motion* before the Makati RTC Branch 148 requesting that he be allowed to:
 - (a) Attend all official Senate sessions, committee hearings, and work meetings at the Senate;
 - (b) Set up a functional Senate office inside his place of detention;
 - (c) Receive media reporters, guests, and constituents; and
 - (d) Have access to his Senate staff, equipment, and official communications.
5. **Denial by the Trial Court:** On July 25, 2007 and September 18, 2007, the RTC denied Trillanes's Omnibus Motion and Motion for Reconsideration, relying on the Supreme Court's ruling in *People v. Jalosjos* (2000).
6. **Filing of Petition for Certiorari in the Supreme Court:** Trillanes filed a Petition for *Certiorari* under Rule 65 before the Supreme Court to set aside the trial court's orders.
7. **The Manila Peninsula Standoff (November 29, 2007 - Supervening Event):** During the pendency of his petition before the Supreme Court, on November 29, 2007, Trillanes walked out of his trial at the Makati RTC,

marched to the Manila Peninsula Hotel, and staged an armed standoff ("Manila Pen Incident") before surrendering to government authorities. Following this incident, he was transferred to the PNP Custodial Center at Camp Crame.

● PROCEDURAL HISTORY

1. **Trial Court Disposition (RTC Makati, Br. 148):** Issued Orders denying Senator Trillanes's Omnibus Motion to leave detention for legislative duties and set up an office.
 2. **Original Special Civil Action in the Supreme Court:** Trillanes filed a Petition for *Certiorari* (Rule 65) with a prayer for injunctive relief against military/police custodians.
 3. **Supreme Court En Banc Disposition (June 27, 2008):** The Supreme Court En Banc unanimously **DISMISSED** the petition for lack of merit.
-

● PARTIES' MATERIAL ARGUMENTS

- **Petitioner (Sen. Antonio F. Trillanes IV):**
 1. **Inapplicability of *People v. Jalosjos*:** *Jalosjos* involved a convicted prisoner serving sentence after final judgment. Trillanes is a **pre-trial detainee** who has NOT been convicted and still enjoys the constitutional **presumption of innocence**.
 2. **Non-Turpitudinous / Political Offense:** *Jalosjos* was convicted of statutory rape involving moral turpitude, whereas Trillanes is charged with Coup d'état, which is a political offense lacking moral turpitude.
 3. **No Flight Risk:** He voluntarily surrendered at Oakwood, maintained good behavior, and was previously allowed temporary emergency leaves (to register, vote, and take his oath).
 4. **Sovereign Mandate of the Electorate:** Over 11 million voters elected him to the Senate. Denying him the right to discharge his mandate disenfranchises his constituents, deprives the country of legislative representation, and amounts to an unauthorized suspension or removal from office.
 5. **Precedents for Liberal Treatment:** Cited the liberal accommodation previously extended to other detained public figures like former President Joseph Estrada and former ARMM Governor Nur Misuari.
 - **Respondents (Gen. Pimentel, Sr., Gen. Esperon, et al. / OSG):**
 1. **Strict Application of Equal Protection:** Under the Equal Protection Clause, all pre-trial detainees charged with non-bailable offenses where evidence of guilt is strong must be treated alike. Being an elected Senator is not a substantial distinction in criminal law enforcement.
 2. **Presumption of Innocence vs. Custodial Restraint:** The presumption of innocence does not grant a detainee full civil and political rights or physical freedom of locomotion.
 3. **Demonstrated Flight Risk:** The Manila Peninsula standoff on November 29, 2007 conclusively disproved petitioner's claim that he was not a flight risk.
 4. **Subordination of Electorate Mandate to Rule of Law:** The electorate voted for Trillanes with full knowledge that he was incarcerated. The popular mandate yields to the majesty of the law and the Constitution.
-

● ISSUES

1. **Main Substantive Issue:** Whether an elected Member of the Senate who is incarcerated as a pre-trial detainee charged with a non-bailable offense (Coup d'état) is entitled to leave detention to attend Senate sessions, committee hearings, and perform full legislative duties.
-

HOLDINGS AND CONTROLLING REASONING

1. On Presumption of Innocence vs. Custodial Confinement of Pre-Trial Detainees: **NO**. Presumption of innocence **DOES NOT** grant physical liberty to a pre-trial detainee held without bail.

- **A. Nature of Pre-Trial Detention:**
 - The presumption of innocence guarantees procedural due process during trial, ensuring that guilt must be proven beyond reasonable doubt.
 - However, it does **not** give an accused charged with a non-bailable offense (where evidence of guilt is strong) the right to enjoy full civil and political rights or physical freedom of locomotion while awaiting trial.
 - Detention is a lawful restraint mandated by Section 13, Article III of the Constitution to ensure the administration of justice and secure the presence of the accused at trial.

2. On the Extension of *People v. Jalosjos* to Pre-Trial Detainees: **YES**. The *Jalosjos* doctrine applies **EQUALLY** to pre-trial detainees; election to office **IS NOT** a reasonable classification.

- **A. Reaffirmation of Equal Protection Test:**
 - The Court explicitly extended *People v. Jalosjos* to pre-trial detainees, holding that petitioner is similarly situated with Jalosjos regarding custodial restrictions.
 - Under the **Equal Protection Clause** (Art. III, Sec. 1), election to the position of Senator is **not a reasonable classification** in criminal law enforcement.
 - The functions and duties of high office do not constitute substantial distinctions that lift a detainee out of the class of prisoners interrupted in their freedom and restricted in physical movement.
- **B. Prevention of Unconstitutional Privileged Class ("Badges of Inequality"):**
 - Allowing an elected official to leave jail 5 days a week for regular legislative work would make him virtually a free man, creating an aberrational privileged class, generating "badges of inequality," and undermining custodial security.
 - Emergency or compelling temporary leaves (e.g., medical care, casting votes, registration) are allowed to *all* prisoners at court discretion, but regular leaves for ordinary work are strictly disallowed.

3. On Sovereign Mandate vs. Rule of Law: The Electorate's Mandate **YIELDS** to Constitutional Restraints.

- **A. Subordination to the Rule of Law:**
 - The Court wiped out the "*lingering misimpression that the call of duty conferred by the voice of the people is louder than the litany of lawful restraints articulated in the Constitution and echoed by jurisprudence.*"
 - **The overarching tenet:** "*The mandate of the people yields to the Constitution which the people themselves ordained to govern all under the rule of law.*"
- **B. Presumed Knowledge of the Electorate:**

- When the voters elected Trillanes to the Senate, they did so with full awareness of his incarceration and the legal restraints on his physical movement.
- They elected him knowing he could achieve only such legislative results as were achievable within prison confines (which he was already doing by drafting bills, issuing press releases, and receiving staff at his custodial office).

4. On Flight Risk & Custodial Administration:

- **A. Confirmation of Flight Risk:**
 - The Manila Peninsula standoff on November 29, 2007 conclusively proved that the risk of flight was real, destroying petitioner's argument that he was not a flight risk.
- **B. Discretion of Custodial Officers:**
 - The management of detention facilities and safety measures are within the valid administrative discretion of custodial officers to prevent escape.

● DOCTRINE, TESTS, AND LEGAL STANDARDS

1. **Equal Protection Standard for Detained Officials (*Trillanes Rule*):** Being elected to public office (including the Senate) is not a substantial distinction under the Equal Protection Clause that exempts an incarcerated pre-trial detainee from general custodial rules and restrictions on physical locomotion.
2. **Presumption of Innocence Scope:** The presumption of innocence protects an accused against conviction without proof beyond reasonable doubt, but does not override lawful pre-trial detention for non-bailable offenses or entitle a detainee to exercise full political privileges outside prison.
3. **Subordination of Popular Mandate to Constitutional Law:** The mandate of the electorate is subordinate to the Constitution and general penal laws. The voice of the people yields to the rule of law.

♥ DISPOSITION

- **Ruling:** The Petition for *Certiorari* is **DISMISSED**. The trial court's orders denying petitioner's Omnibus Motion are **AFFIRMED**.

● RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Trillanes IV v. Pimentel, Sr.* (2008), Navy Lt. Antonio Trillanes IV was charged with Coup d'état (a non-bailable offense) before the Makati RTC Br. 148 for the 2003 Oakwood Mutiny. While in pre-trial detention, he ran for and won a seat in the Senate in May 2007. Trillanes filed an Omnibus Motion in the RTC asking to leave jail to attend Senate sessions, committee meetings, set up an office, and meet the media. He argued that: (1) unlike Jalosjos (who was a convicted prisoner), he is a pre-trial detainee enjoying the presumption of innocence; (2) Coup d'état is a political offense lacking moral turpitude; and (3) his 11+ million votes represent the supreme mandate of the electorate which cannot be defeated by procedural restraints. The RTC denied his motion.

The Supreme Court En Banc, through Justice Carpio Morales, UNANIMOUSLY DISMISSED the petition. The Court held: (1) Presumption of innocence guarantees trial due process, but does NOT grant physical freedom or full political rights to a pre-trial detainee validly held without bail; (2) Under equal protection, the Jalosjos doctrine applies equally to pre-trial detainees—election to the Senate is NOT a substantial distinction that exempts a prisoner from custodial confinement; and (3) The mandate of the people yields to the Constitution and the rule of law. Voters elected him knowing he was incarcerated and subject to legal custody."*

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: How did the Supreme Court distinguish the presumption of innocence raised by Senator Trillanes from the status of Congressman Jalosjos?**
 - **A:** The Court held that the presumption of innocence guarantees procedural due process regarding proof at trial, but does **not** grant a pre-trial detainee physical liberty or full civil/political rights. Both pre-trial detainees held without bail and convicted prisoners are similarly situated regarding lawful restrictions on physical movement.
2. **Q: Does an elected official's "mandate of the electorate" override prison regulations and general penal laws?**
 - **A: No.** The Supreme Court laid down the overarching tenet that the mandate of the people yields to the Constitution, which the people themselves ordained to govern all under the rule of law. Voters elect an incarcerated candidate with full legal awareness of his physical confinement.
3. **Q: Can a detained Senator set up an official legislative office outside prison walls or receive regular media visits in jail?**
 - **A: No.** Allowing regular work leaves, external offices, or unrestricted media access would grant special privileges not enjoyed by other detainees, violating the Equal Protection Clause and interfering with valid prison administration and security.

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose a newly elected Senator is charged with Grave Coercion (a bailable offense punishable by *prision correccional*, max 6 years). Prior to trial, the trial court grants him bail, which he posts. While out on bail, the trial court issues an injunction barring him from attending Senate sessions during the pendency of the trial. The Senator petitions the Supreme Court. How should the Court rule?
- **Answer: The Supreme Court MUST GRANT the Senator's petition and SET ASIDE the injunction.** Unlike *Trillanes*, where the Senator was validly detained without bail for a non-bailable capital offense, here the Senator has been released on bail and the offense carries a penalty of not more than six years. Under Article VI, Section 11 of the Constitution, a Member of Congress is privileged from arrest for offenses punishable by not more than six years while Congress is in session. Since he is legally at liberty on bail, barring him from Senate sessions without constitutional or statutory authority violates Article VI, Section 11 and Article III, Section 13.

One-Sentence Doctrine Anchor

Election to the Senate does not exempt a pre-trial detainee held without bail from custodial confinement, as the presumption of innocence does not grant physical locomotion and the popular mandate yields to the rule of law.

TRILLANES IV v. PIMENTEL SR. (2008)

Topic Subtopic	"Branches of the Government - Congress" Freedom from Arrest	GR No. & Ponente	G.R. No. 179817 Carpio-Morales, J.
Petitioner/s	ANTONIO F. TRILLANES IV,	Respondent/s	HON. OSCAR PIMENTEL, SR., IN HIS CAPACITY AS PRESIDING JUDGE, REGIONAL TRIAL COURT-BRANCH 148, MAKATI CITY; GEN. HERMOGENES ESPERON, VICE ADM. ROGELIO I. CALUNSAG, MGEN. BENJAMIN DOLORFINO, AND LT. COL. LUCIARDO OBEÑA,
Doctrine	<i>Being elected into public office does not exempt you from pre-trial detention and restrictions on physical locomotion as a result of custodial confinement (reaffirming Jalosjos, expanding its doctrine to cover not only convicts but also those who are just detained)</i>		

FACTS

- July 27, 2003, a group of more than 300 heavily armed soldiers led by junior officers of the Armed Forces of the Philippines (AFP) stormed into the Oakwood Premier Apartments in Makati City and publicly demanded the resignation of the President and key national officials.
- The mutiny was led by Antonio Trillanes IV, who was later charged with **Coup d'etat** under Article 134-A of the Revised Penal Code, carrying with it a penalty of **reclusion perpetua**.
- Trillanes was placed in pre-trial detention at the Marine Brig in Fort Bonifacio, Taguig.
- While in detention, Trillanes ran for and won a seat in the Senate with a six year term commencing June 30, 2007, garnering over 11 million votes.
- Following his election, and before he took office, Trillanes files an **Omnibus Motion** before the Makati RTC requesting that he be allowed to:
 - a) Attend all official senate sessions, hearings, and meetings
 - b) Set up a functional senate office inside his place of detention
 - c) Receive media reporters, guests, and constituents;
 - d) Have access to his senate staff, equipment, and official communications
- On July 25, 2007 and September 18, 2007, the RTC denied Trillanes's Omnibus Motion and Motion for Reconsideration, relying on the Supreme Court's ruling in *People v. Jalosjos* (2000).
 - Trillanes filed a Petition for Certiorari under Rule 65 before the Supreme Court to set aside the trial court's orders.
- During the pendency of his petition before the Supreme Court, on November 29, 2007, Trillanes walked out of his trial at the Makati RTC, marched to the **Manila Peninsula Hotel**, and staged an armed standoff ("**Manila Pen Incident**") before surrendering to government authorities. Following this incident, he was transferred to the PNP Custodial Center at Camp Crame.

ISSUE 1

Main – Substantive	W/N an elected member of the senate who is incarcerated as a pre-trial detainee with a non-bailable offense is entitled to leave detention to attend Senate sessions/committee hearings, and perform full legislative duties.	NO
--------------------	---	----

PETITIONER/S ARGUMENTS:

- His case is different from *Jalosjos* and thus *Jalosjos* is inapplicable because *Jalosjos* is a convicted prisoner serving sentence from a final judgement, his case involves pre-trial detention NOT conviction
- Jalosjos* was convicted of statutory rape involving moral turpitude, whereas Trillanes is charged with Coup d'etat, a political offense
- He voluntarily surrendered as opposed to *Jalosjos* who fled when arrested
- Over 11 million voters in their sovereign capacity elected him to the senate, giving him proper justification

to discharge his duty and serve his mandate as senator.

- There are enough precedents to allow treatment of detention prisoners who are held without bail (e.g. Erap, and Gov. Nur Misuari)

RULING and RATIO DECIDENDI:

On application of Jalosjos...

- There is no distinction between Jalosjos and Trillanes; Under the Equal Protection Clause (Art. III, Sec. 1), election to the position of Senator is not a reasonable classification in criminal law enforcement.
 - There is no distinction in the political complexion or moral turpitude involved in the crimes alleged (rape and coup de tat)
 - The functions and duties of high office do not constitute substantial distinctions that lift a detainee out of the class of prisoners interrupted in their freedom and restricted in physical movement.

On presumption of innocence...

- Presumption of innocence does not automatically grant physical liberty to a pre-trial detainee without bail or carry with it the full enjoyment of civil and political rights
 - When evidence of guilt is strong, offense may be denied bail and such denial of freedom applies equally to detention prisoners and convicted offenders
 - It is impractical to draw the line between convicted prisoners and detainees (*Alejano v. Cabuay*)
 - All prisoners whether under preventive detention or serving sentence cannot practice their profession nor engage in any business or occupation or hold office, elective, or appointive while in detention (*People v. Hon Maceda*)

On risk of flight...

- The Manila Peninsula standoff on November 29, 2007 conclusively proved that the risk of flight was real, destroying petitioner's argument that he was not a flight risk. Incarceration thus remains necessary.
- The management of detention facilities and safety measures are within the valid administrative discretion of custodial officers to prevent escape.

On supremacy of the mandate of the people...

- The Court wiped out the "lingering misimpression that the call of duty conferred by the voice of the people is louder than the litany of lawful restraints articulated in the Constitution and echoed by jurisprudence."
- The mandate of the people yields to the Constitution which the people themselves ordained to govern all under the rule of law
- Moreover, petitioner's contention is that public officials cannot be removed administratively for actions conducted in prior terms.
 - There is no prior term or speak of
 - Court held that this doctrine of *condonation* does not apply to criminal cases
- Election does not obliterate a criminal charge
 - When the voters elected Trillanes to the Senate, they did so with full awareness of his incarceration and the legal restraints on his physical movement.
 - They elected him knowing he could achieve only such legislative results as were achievable within prison confines (which he was already doing by drafting bills, issuing press releases, and receiving staff at his custodial office).

On supposed double standards/liberal treatment of other detainees...

- By arguing against maintaining double standards in the treatment of detention prisoners, petitioner admits that he did not seek preferential treatment yet at the same time gripes about not getting it to others. (basically contradicting himself)
 - Trial court has already allowed him to register as a voter, file for candidacy, and be proclaimed as senator, petitioner is abusing the grants of the court and insists on unending concessions
- Emergency leaves are allowed to all prisoners and petitioner did not prove grave abuse of discretion in

these other cases.

FINAL DECISION

Petition is **DISMISSED**

Jimenez v. Cabangbang

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Nicanor T. Jimenez, Carlos J. Albert, and Jose L. Lukban v. Bartolome Cabangbang*
- **Citation:** G.R. No. L-15905, August 3, 1966 (En Banc; 17 SCRA 876)
- **Ponente:** Concepcion, C.J.
- **Bench Composition:** Concepcion, C.J. (ponente); J.B.L. Reyes, Barrera, Dizon, Regala, Makalintal, J.P. Bengzon, Zaldivar, Sanchez, and Castro, JJ., concurring.
- **Syllabus Relevance & Topic:**
 1. **Legislative Department — Speech and Debate Clause / Parliamentary Immunity (Art. VI, Sec. 11 [formerly Art. VI, Sec. 15, 1935 Constitution]):** Scope and boundaries of the phrase "*speech or debate therein*"; requirement that statements or acts must be performed in the official discharge of legislative functions to be covered by absolute parliamentary privilege [174–176].
 2. **Non-Coverage of Press Releases and Media Publications During Recess:** Declarations made outside the halls of Congress, published in news media, or issued as open letters while Congress is not in session do not enjoy absolute parliamentary immunity [175–176].
 3. **Elements of Libel / Interpretation of Innuendo:** Evaluation of whether an open letter alleging an aborted coup d'état is defamatory toward individuals characterized merely as unwitting "tools" rather than "planners" [177–178].

CHRONOLOGICAL MATERIAL FACTS

1. **Status of Defendant:** Defendant Bartolome Cabangbang was a Member of the House of Representatives and Chairman of its Committee on National Defense [173–174].
2. **Drafting and Publication of Open Letter (November 14, 1958):** On or about November 14, 1958, while Congress was presumably **not in session** (recess), Representative Cabangbang authored an open letter addressed to the President of the Philippines [173, 176–177].
3. **Contents of the Open Letter:** In the open letter, Cabangbang purported to expose a plot by certain military officers ("planners") to stage a *coup d'état* against the President [177–178]. The letter mentioned plaintiffs Nicanor T. Jimenez, Carlos J. Albert, and Jose L. Lukban (who were military/government officials), characterizing them as unwitting "tools" or "insidious instruments" utilized by the coup planners [177–178].
4. **Media Dissemination:** Cabangbang caused this open letter to be published in several newspapers of general circulation throughout the Philippines.
5. **Institution of Civil Action for Damages:** Plaintiffs Jimenez, Albert, and Lukban filed an ordinary civil action in the Court of First Instance (CFI) of Rizal against Cabangbang to recover damages for the publication of the allegedly libelous letter.

PROCEDURAL HISTORY

1. **Motion to Dismiss in Trial Court:** Upon being summoned, defendant Cabangbang filed a Motion to Dismiss the complaint on two grounds:
 - (a) The letter was not libelous; and

- (b) Even if libelous, the letter constituted an **absolutely privileged communication** under the Speech and Debate Clause (Art. VI, Sec. 15, 1935 Constitution) [173–174].
 - 2.  **Trial Court Disposition (CFI Rizal):** The CFI of Rizal granted Cabangbang's motion and dismissed the complaint, holding that the open letter was an absolutely privileged communication.
 - 3.  **Direct Appeal to the Supreme Court:** Plaintiffs appealed the order of dismissal directly to the Supreme Court.
 - 4.  **Supreme Court Disposition (August 3, 1966):** The Supreme Court En Banc **AFFIRMED** the trial court's order of dismissal, but on the ground that the letter was **not libelous** as to plaintiffs, explicitly rejecting the trial court's finding that the publication was protected by parliamentary privilege.
-

PARTIES' MATERIAL ARGUMENTS

-  **Plaintiffs-Appellants (Nicanor T. Jimenez, Carlos J. Albert, and Jose L. Lukban):**
 1. **Non-Privileged Character of Press Publications:** The open letter published in commercial newspapers during a legislative recess is not a "speech or debate" delivered on the floor of Congress or in a legislative committee; hence, parliamentary immunity does not apply [173–176].
 2. **Libelous Nature of the Imputations:** Associating plaintiffs with an illegal coup d'état—even as "tools"—exposed them to public hatred, contempt, and ridicule, causing serious injury to their reputation and standing in public service [173, 177–178].
 -  **Defendant-Appellee (Rep. Bartolome Cabangbang):**
 1. **Absolute Parliamentary Privilege (Speech & Debate Clause):** As Chairman of the House Committee on National Defense, exposing security threats and military coups to the Commander-in-Chief is an official legislative duty protected under Article VI, Section 15 of the 1935 Constitution [173–175].
 2. **Lack of Defamatory Meaning:** The letter explicitly distinguished between the "planners" of the coup and the plaintiffs, portraying plaintiffs merely as unwitting instruments, which negates libelous intent or damage [177–178].
-

ISSUES

1.  **Issue 1 (Parliamentary Immunity / Speech and Debate Clause):** Whether the open letter authored by Representative Cabangbang and published in newspapers during a legislative recess falls within the constitutional privilege of "*speech or debate therein*" under Article VI, Section 15 of the 1935 Constitution [174–176].
 2.  **Issue 2 (Libelous Character of the Publication):** If the publication is not privileged, whether the open letter is libelous insofar as plaintiffs Jimenez, Albert, and Lukban are concerned [174, 177–178].
-

HOLDINGS AND CONTROLLING REASONING

1. On Parliamentary Privilege (Speech and Debate Clause): NO. The open letter published in newspapers during recess **IS NOT** an absolutely privileged communication [175–176].

-  **Constitutional Text & Scope of "Speech or Debate Therein":**

- Article VI, Section 15 of the 1935 Constitution (now Art. VI, Sec. 11 of the 1987 Constitution) provides that Senators and Members of the House "*for any speech or debate therein, shall not be questioned in any other place*".
- The phrase "*speech or debate therein*" (in Congress) refers strictly to utterances made by legislators **in the performance of their official functions**.
- **Protected Acts Include:**
 1. Speeches delivered on the floor of Congress while in session;
 2. Statements made or votes cast in the halls of Congress while in session;
 3. Bills introduced in Congress, whether in session or not; and
 4. Other official acts performed by Congressmen, inside or outside congressional premises, in the official discharge of their duties as members of Congress or authorized Congressional Committees.
-  **Application to Media Publications During Recess:**
 - Defendant Cabangbang authored the open letter on November 14, 1958, when Congress was **not in session**, and caused it to be published in commercial newspapers of general circulation.
 - In publishing the open letter in newspapers, Cabangbang was **not performing his official legislative duties** as a Member of Congress or as Chairman of the Committee on National Defense.
 - Therefore, the trial court erred in declaring the open letter absolutely privileged.

2. On the Libelous Character of the Letter: NO. The open letter IS NOT libelous as to the plaintiffs [177–178].

-  **Literal Interpretation of the Imputations:**
 - In the open letter, Cabangbang exposed a plan by certain unnamed "planners" to stage a *coup d'état* and asserted that plaintiffs were unwittingly being used as "tools" or "insidious instruments" [177–178].
 - The text clearly implies that plaintiffs were **not among the "planners"** of the coup d'état; otherwise, they could not be described as mere "tools", much less "unwittingly" so.
-  **Conclusions of Law vs. Factual Allegations:**
 - Plaintiffs' allegations in their complaint that the letter alienated them from associates were mere conclusions of law contradicted by the actual text of the letter.
 - Because the letter portrayed plaintiffs as innocent or unwitting instruments rather than co-conspirators or coup plotters, it contained no defamatory imputation against them.
 - Consequently, the dismissal of the complaint was correct, not on the ground of parliamentary privilege, but because the complaint failed to state a cause of action for libel.

DOCTRINE, TESTS, AND LEGAL STANDARDS

1. **Official Function Test for Parliamentary Immunity (*Jimenez Standard*):** The constitutional protection for "*speech or debate therein*" under the Speech and Debate Clause (Art. VI, Sec. 11) covers only utterances, speeches, votes, bills, and acts performed by legislators **in the official discharge of their legislative functions**.
 2. **Non-Privilege of Media Dissemination During Recess:** Releasing open letters or issuing statements to public media during a legislative recess does not constitute an official legislative act and is **not protected** by absolute parliamentary immunity.
 3. **Construction of Alleged Defamatory Language:** In determining whether a written statement is libelous, courts read the text literally; characterizing an individual as an unwitting "tool" of plotters explicitly excludes them from being plotters, negating defamatory imputation.
-

DISPOSITION

-  **Ruling:** The order of the Court of First Instance of Rizal dismissing the complaint is **AFFIRMED** (on the ground that the publication is not libelous as to plaintiffs). No costs.

SEPARATE OPINIONS & SOURCE-VERIFIED QUOTABLE LINES

- *(Unanimous 10-0 decision penned by Chief Justice Roberto Concepcion; J.B.L. Reyes, Barrera, Dizon, Regala, Makalintal, J.P. Bengzon, Zaldivar, Sanchez, and Castro, JJ., concurred).*

Source-Verified Quotable Lines

-  **On the Definition of "Speech or Debate Therein" (Concepcion, C.J.):**

"Said expression refers to utterances made by Congressmen in the performance of their official functions, such as speeches delivered, statements made, or votes cast in the halls of Congress, while the same is in session as well as bills introduced in Congress, whether the same is in session or not, and other acts performed by Congressmen, either in Congress or outside the premises housing its offices, in the official discharge of their duties as members of Congress..."

-  **On Non-Privilege of Newspaper Open Letters During Recess (Concepcion, C.J.):**

"According to the complaint, the communication in question was published on or about November 14, 1958, when Congress presumably was not in session, and defendant caused said letter to be published in several newspapers of general circulation... It is obvious that, in thus causing the communication to be so published, he was not performing his official duty, either as a member of Congress or as officer of any Committee thereof."

RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Jimenez v. Cabangbang* (1966), Congressman Bartolome Cabangbang (Chairman of the House Committee on National Defense), during a legislative recess on November 14, 1958, published an open letter to the President in several newspapers. The letter exposed an alleged coup d'état plan by military officers and mentioned plaintiffs (Jimenez, Albert, and Lukban), describing them as unwitting 'tools' or 'insidious instruments' of the coup planners. Plaintiffs sued Cabangbang for libel damages in the CFI of Rizal. Cabangbang moved to dismiss, arguing that: (1) the letter was an absolutely privileged communication under the Speech and Debate Clause (Art. VI, Sec. 15, 1935 Consti); and (2) it was not libelous. The trial court dismissed the suit, holding the letter absolutely privileged.

The Supreme Court En Banc, through Chief Justice Concepcion, **AFFIRMED** the dismissal, but modified the legal ground. The Court held: (1) Parliamentary immunity ('speech or debate therein') protects **ONLY** acts performed in the official discharge of legislative duties (e.g., floor speeches, votes, bills introduced, or official committee work); publishing an open letter in commercial newspapers during a recess is **NOT** an official legislative duty and is **NOT** privileged; but (2) The letter was **NOT** libelous as to plaintiffs because describing them as unwitting 'tools' explicitly implied they were **NOT** among the planners of the coup."* [173–178]

3 Likely Professor Follow-Up Questions & Concise Answers

1.  **Q: Does parliamentary immunity under Article VI, Section 11 cover a press release issued by a Senator to media reporters outside the Senate session hall?**
 -  **A: No.** Under *Jimenez v. Cabangbang* and *Trillanes IV v. Castillo-Marigomen* (2018), statements made to the press or published in commercial news media outside official legislative proceedings do **not** constitute "speech or debate in Congress" and are not protected by parliamentary privilege [175–176].
2.  **Q: Are bills introduced by a Congressman during a legislative recess protected by the Speech and Debate Clause?**
 -  **A: Yes.** As explicitly held in *Jimenez v. Cabangbang*, introducing bills—whether Congress is in session or in recess—is an official act performed in the discharge of legislative functions, making it an absolutely privileged communication.
3.  **Q: Why did the Supreme Court affirm the dismissal of the complaint in *Jimenez v. Cabangbang* if it found that Cabangbang had no parliamentary immunity?**
 -  **A:** The Court affirmed the dismissal because the open letter was **not libelous** as to the plaintiffs. The letter portrayed plaintiffs merely as unwitting instruments rather than planners or conspirators in the coup, failing to establish a cause of action for defamation.

Changed-Material-Fact Hypothetical

-  **Scenario:** Suppose Representative Cabangbang delivered the exact same speech on the floor of the House of Representatives while Congress was in regular session, and the speech was recorded in the official Congressional Record. Afterward, a newspaper reporter transcribed the floor speech from the Congressional Record and published it in a daily newspaper. Can plaintiffs sue Representative Cabangbang for libel based on the newspaper report?
-  **Answer: NO, plaintiffs CANNOT sue Representative Cabangbang.** The speech delivered on the floor of the House while in session is an official legislative act performed in the discharge of his duties, making it **absolutely privileged** under Article VI, Section 11 ("*speech or debate therein*") [174–175]. Cabangbang cannot be questioned or held liable in any other place for his floor speech. (Furthermore, the newspaper reporter would be protected by qualified privilege for publishing a fair and true report of official legislative proceedings).

One-Sentence Doctrine Anchor

- ◆ **Parliamentary immunity under the Speech and Debate Clause protects only official legislative acts, excluding press releases or open letters published in commercial newspapers during a legislative recess. [175–176]**

Jimenez v. Cabangbang (1966)

Topic Subtopic	"Branches of the Government - Congress" Speech and Debate Clause	GR No. & Ponente	GR L-15905, Concepcion C.J.
Petitioner/s	NICANOR T. JIMENEZ, ET AL.,	Respondent/s	BARTOLOME, CABANGBANG
Doctrine	Parliamentary immunity over privileged 'speech and debate' covers only those made in performance of official duty, and during session of Congress, excluding any made in commercial media or newspapers and those made during legislative recess.		

FACTS

- Plaintiffs Nicanor Jimenez, Carlos Albert, and Jose Lukban (different officers from the Armed Forces) filed an ordinary civil action by way of **damages** for the publication of an allegedly libelous letter by defendant **Bartolome Cabangbang** (then a **Congressman and Chairman of the Committee on National Defense**)

Context/Content of Letter:

- On or about Nov. 14, 1958, while Congress was in recess, Rep. Cabangbang authored an open letter addressed to the President of the Philippines.
 - In the open letter, Cabangbang purported to **expose a plot by certain military planners to stage a coup d'etat** by the President and install Jesus Vargas (then Sec. of National Defense) as the new President.
 - The letter further alleges that the **planners have 'under their control' different officers of the Armed Forces, including herein petitioners Jimenez, Albert, and Lukban**, characterizing them as 'unwitting tools' or 'insidious instruments' utilized by the coup planners.
- Cabangbang caused this open letter to be published in several newspapers of general circulation throughout the Philippines.

Upon being summoned, defendant Cabangbang filed a motion to dismiss on the grounds that:

- (a) the letter was not libelous
- (b) even if libelous, the letter **constituted an absolutely privileged communication** under the Speech and Debate Clause of the Constitution (**Art VI, Sec 15 of the 1935 Consti**)

CFI of Rizal granted Cabangbang's motion and dismissed the complaint, holding that the open letter was privileged communication, hence the current petition for review by the Plaintiffs.

ISSUE 1

Main – Substantive	W/N the open letter authored by Representative Cabangbang and published in newspapers during a legislative recess falls within the constitutional privilege of "speech or debate therein" under Article VI, Section 15 of the 1935 Constitution	NO
---------------------------	---	-----------

RULING and RATIO DECIDENDI:

The open letter published in newspapers of general circulation during recess of Congress is not covered under absolutely privileged communications.

- Article VI, Section 15** of the 1935 Constitution (now Art. VI, Sec. 11 of the 1987 Constitution) provides that Senators and Members of the House **"for any speech or debate therein, shall not be questioned in any other place"**.
- The phrase "speech or debate therein" (in Congress) refers strictly to utterances made by legislators in the performance of their official functions.
- Protected Acts Include:
 - (1) Speeches delivered on the floor of Congress while in session;
 - (2) Statements made or votes cast in the halls of Congress while in session;

- (3) Bills introduced in Congress, whether in session or not; and
- (4) Other official acts performed by Congressmen, inside or outside congressional premises, in the official discharge of their duties as members of Congress or authorized Congressional Committees.
- Defendant Cabangbang authored the open letter on November 14, 1958, when Congress was not in session, and caused it to be published in commercial newspapers of general circulation.
- In publishing the open letter in newspapers, Cabangbang was not performing his official legislative duties as a Member of Congress or as Chairman of the Committee on National Defense.
- Therefore, the trial court erred in declaring the open letter absolutely privileged.

ISSUE 2

Side – Substantive	W/N the open letter is libelous insofar as plaintiffs Jimenez, Albert, and Lukban are concerned	NO
PETITIONER/S ARGUMENTS:		
● Mention of their names in the defamatory letter exposed the plaintiffs to public hatred, contempt, and ridicule, causing serious injury to their reputation and standing in public service (thus civil action for damages was warranted)		
RULING and RATIO DECIDENDI:		
<i>The open letter is not libelous as to the plaintiffs</i> ● In the open letter, Cabangbang exposed a plan by certain unnamed "planners" to stage a coup d'état and asserted that plaintiffs were unwittingly being used as "tools" or "insidious instruments" ● The text clearly implies that plaintiffs were not among the "planners" of the coup d'état; otherwise, they could not be described as mere "tools", much less "unwittingly" so. ○ i.e. Cabangbang did not explicitly say they were behind the coup or that they were actually under their control, but just alleged that they might be unintentionally part of it as officers of the Armed Forces. ○ Because the letter portrayed plaintiffs as innocent or unwitting instruments rather than co-conspirators or coup plotters, it contained no defamatory imputation against them. ● Plaintiffs' allegations in their complaint that the letter exposed them to public hatred and contempt were mere conclusions inconsistent with the actual contents of the said letter. ● Consequently, the dismissal of the complaint was correct, not on the ground of parliamentary privilege, but because the complaint failed to state a cause of action for libel.		
FINAL DECISION	Order appealed from is AFFIRMED .	

Trillanes IV v. Castillo-Marigomen

IDENTITY AND SYLLABUS RELEVANCE

- **Case Title:** *Antonio F. Trillanes IV v. Hon. Evangeline C. Castillo-Marigomen, in her capacity as Presiding Judge of the Regional Trial Court, Quezon City, Branch 101 and Antonio L. Tiu.*
- **Citation:** G.R. No. 223451, March 14, 2018 (First Division; 827 Phil. 154).
- **Ponente:** Tijam, J.
- **Bench Composition:** Leonardo-de Castro, J. (Acting Chairperson, First Division), Del Castillo, and Jardeleza, JJ., concurring; Sereno, C.J., on leave.
- **Syllabus Relevance & Topic:**
 1. **Legislative Department — Speech and Debate Clause / Parliamentary Immunity (Art. VI, Sec. 11):** Boundaries of parliamentary immunity; media interviews, press releases, and declarations made during gaps, breaks, or pauses in legislative hearings are "political in nature" and fall **outside** protected "speech or debate in Congress" [5, 29–30, 226, 230].
 2. **Official Function Test (*Jimenez v. Cabangbang* Reaffirmed):** To be protected under Article VI, Section 11, the statement or act must be performed in the official discharge of legislative functions as part of the due functioning of the legislative process [5, 222–227].
 3. **Non-Immunity of Legislators as "Super-Citizens":** Parliamentary immunity is a grant of privilege to protect the independence and integrity of the legislative body, not a cloak of unqualified impunity for personal or political slander [5, 227, 229–230].
 4. **Jurisdiction of Courts over Defamation Actions vs. Legislative Disciplinary Power:** Distinguishes *Pobre v. Defensor-Santiago*; courts have jurisdiction under B.P. Blg. 129 and Civil Code Article 33 over civil actions for damages arising from non-privileged defamatory statements uttered outside official legislative functions [230–233].
 5. **Procedural Requirements — Hierarchy of Courts:** Strict enforcement of the doctrine of hierarchy of courts when raised in direct petitions for *certiorari* challenging trial court interlocutory orders on parliamentary immunity.

CHRONOLOGICAL MATERIAL FACTS

1. **Senate Blue Ribbon Subcommittee Inquiries (2014):** The Senate Blue Ribbon Subcommittee (SBRS) conducted public hearings regarding alleged corruption, overpriced infrastructure projects, and the so-called "Hacienda Binay" estate in Rosario, Batangas, purportedly owned by then-Vice President Jejomar C. Binay.
2. **Appearance of Businessman Antonio L. Tiu:** Private respondent Antonio L. Tiu—a businessman engaged in agriculture and Chairman/CEO of publicly listed companies AgriNurture, Inc. (AgriNurture) and Greenergy Holdings, Inc. (Greenergy)—testified before the SBRS on October 22 and 30, 2014 [213–214]. Tiu asserted ownership over the 150-hectare Rosario estate through Sunchamp Agri-Tourism Park, presenting a one-page Agreement dated January 18, 2013 between Sunchamp and Laureano Gregorio, Jr..
3. **Senator Trillanes's Media Interviews:** During media interviews conducted at the Senate building—specifically during gaps, breaks, and pauses in plenary and committee hearings, and in response to press queries—petitioner Senator Antonio F. Trillanes IV publicly declared that based on his office's document review, Tiu was a mere "front," "nominee," or "dummy" for Vice President Binay.
4. **Impact on Publicly Listed Companies:** Following Senator Trillanes's repeated media declarations between October 8 and 14, 2014, the share prices of Tiu's companies dropped significantly:
 - **Greenergy Shares:** On October 8, 2014, share prices fell by 10% (from ₱0.011 to ₱0.0099), while trading volume surged over sevenfold (from 61 Million to 475.7 Million shares).

- **AgriNurture Shares:** On October 8, 2014, share prices dropped by 6% (from ₱2.60 to ₱2.45), while trading volume increased over sixfold (from 68,000 to 409,000 shares).
 - 5. **Filing of Civil Action for Damages (October 22, 2014):** Tiu filed a Complaint for Damages for Defamation (Civil Case No. R-QZN-14-10666-CV) against Senator Trillanes before the Regional Trial Court of Quezon City, Branch 101, claiming that Trillanes's false accusations besmirched his reputation, discredited his business standing, and caused severe financial losses [214–215].
 - 6. **Petitioner's Answer with Affirmative Defenses:** Senator Trillanes filed his Answer raising affirmative defenses: (a) his media statements were statements of fact based on official documents; (b) Tiu was a "public figure" subject to fair comment; (c) the statements were made in the performance of his duties as Senator and protected by **parliamentary immunity** under Article VI, Section 11 of the 1987 Constitution; and (d) the RTC lacked jurisdiction. Trillanes subsequently moved for a preliminary hearing on his affirmative defenses or outright dismissal.
-

● PROCEDURAL HISTORY

1. **Trial Court Orders (RTC Quezon City, Branch 101):**
 - **Order dated May 19, 2015:** Public respondent Judge Evangeline C. Castillo-Marigomen denied Senator Trillanes's motion to dismiss / motion for preliminary hearing. The RTC held that whether statements are protected by parliamentary immunity depends on special factual circumstances that must be established through a full-blown trial, especially since the complaint explicitly alleged that the defamatory statements were made to broadcast and print media outside Senate committee proceedings [217–219].
 - **Order dated December 16, 2015:** The RTC denied Senator Trillanes's Motion for Reconsideration.
 2. **Direct Petition for Certiorari in the Supreme Court:** Senator Trillanes filed a Petition for *Certiorari* (Rule 65) directly with the Supreme Court seeking to annul the RTC Orders.
 3. **Supreme Court First Division Decision (March 14, 2018):** The Supreme Court **DISMISSED** the petition for lack of merit and **AFFIRMED** the RTC Orders.
-

● PARTIES' MATERIAL ARGUMENTS

- **Petitioner (Senator Antonio F. Trillanes IV):**
 1. **Parliamentary Immunity (Art. VI, Sec. 11):** His media statements were made in the course of performing his official duties as a Senator investigating high-level government corruption, and are thus protected by absolute parliamentary non-accountability.
 2. **Free Speech & Public Figure / Fair Comment:** Tiu voluntarily thrust himself into a public debate on a matter of public concern ("Hacienda Binay"), acquiring public figure status; thus, Trillanes's statements were protected free expression and fair comment based on documents.
 3. **Lack of Court Jurisdiction:** Citing *Pobre v. Defensor-Santiago*, the authority to discipline a legislator for statements made in connection with legislative work belongs exclusively to the Senate and the electorate, not the courts.
 4. **Direct Recourse Justified:** Direct resort to the Supreme Court was proper due to a clear threat to parliamentary immunity and constitutional rights.
- **Private Respondent (Antonio L. Tiu):**
 1. **Violation of Hierarchy of Courts:** The petition should be dismissed for bypassing the Court of Appeals without compelling justification.
 2. **Non-Coverage of Media Interviews:** Parliamentary immunity covers only "speech or debate" inside Congress or its committees during official proceedings. Giving media interviews during breaks is a non-legislative act outside official duties.

3. **Court Jurisdiction over Civil Defamation:** The RTC has express statutory jurisdiction over civil actions for damages arising from libel and defamation under B.P. Blg. 129 and Civil Code Article 33.
 4. **Sufficiency of Complaint:** The complaint sufficiently stated a cause of action by alleging defamatory imputations, public dissemination, identification, and malice; Trillanes's defenses are evidentiary matters requiring trial [220–221, 235].
-

● ISSUES

1. **Procedural Issue:** Whether petitioner's direct application to the Supreme Court for a Writ of *Certiorari* violated the doctrine of hierarchy of courts.
 2. **Substantive Issue 1 (Parliamentary Immunity / Speech and Debate Clause):** Whether statements uttered by a Senator during media interviews given during gaps and breaks in Senate plenary and committee hearings are protected by parliamentary immunity under Article VI, Section 11 of the 1987 Constitution [5, 30, 225–226].
 3. **Substantive Issue 2 (Jurisdiction of Courts vs. Senate):** Whether the Regional Trial Court has jurisdiction over a civil action for damages for defamatory media statements made by a sitting Senator, or whether jurisdiction belongs exclusively to the Senate and the voters under *Pobre v. Defensor-Santiago* [230–233].
 4. **Substantive Issue 3 (Cause of Action & Preliminary Hearing):** Whether the complaint sufficiently states a cause of action for damages, or whether petitioner was entitled to an outright dismissal or preliminary hearing on his affirmative defenses [234–236].
-

🌸 HOLDINGS AND CONTROLLING REASONING

1. On Hierarchy of Courts: YES. Direct recourse to the Supreme Court VIOLATED the hierarchy of courts.

- **Ratio:** The power to issue writs of *certiorari* is shared concurrently with the Court of Appeals and the RTC. Direct invocation of the Supreme Court's jurisdiction is allowed only for special and compelling reasons.
- Although genuine constitutional issues can justify direct resort, the scope of parliamentary immunity in relation to lawmakers' speech was already settled as early as 1966 in *Jimenez v. Cabangbang* [222–225]. Because established jurisprudence provided clear guidelines for lower courts, no "exceptionally compelling reason" existed to bypass the Court of Appeals.

2. On Parliamentary Immunity (Speech & Debate Clause): NO. Statements made during media interviews ARE NOT covered by parliamentary immunity.

- **A. Reaffirmation of *Jimenez v. Cabangbang* (Official Function Test):**
 - Under Article VI, Section 11 of the 1987 Constitution, parliamentary non-accountability attaches ONLY to "speech or debate in the Congress or in any committee thereof".
 - Reaffirming *Jimenez v. Cabangbang* (17 SCRA 876), the Court held that "speech or debate" refers strictly to utterances made by legislators **in the performance of their official functions**—such as speeches delivered on the floor, votes cast, bills introduced, or official acts performed in committee proceedings [222–226].
- **B. Media Interviews as Non-Legislative, "Political" Acts:**
 - Senator Trillanes admitted making the remarks during media interviews in gaps and breaks of Senate hearings.
 - Remarks made to news reporters during breaks are not part of any speech delivered in the Senate, nor spoken in the course of floor or committee debate, nor integral to the legislative process.

- Adopting U.S. Supreme Court jurisprudence (*United States v. Brewster*, 408 U.S. 501; *Gravel v. United States*, 408 U.S. 606), the Court stressed that while communicating with the press is an ordinary political activity expected of elected officials, it is **"political in nature, rather than legislative"** [227–230].
- Participating in media interviews is not demanded by a lawmaker's sworn duty, nor is it a component of the process of enacting laws.
- **C. Legislators Are Not "Super-Citizens":**
 - The Speech and Debate Clause was not designed to turn legislators into "super-citizens" immune from civil or criminal responsibility for slandering private individuals outside legislative halls [227, 229–230].
 - The privilege exists not for a lawmaker's private indulgence, but for the public good—to preserve the integrity and inviolability of the deliberative legislative process [5, 229–230].

3. On Court Jurisdiction vs. Senate Disciplinary Power: COURTS HAVE JURISDICTION; *Pobre v. Defensor-Santiago* IS INAPPLICABLE [230–233].

- **Ratio:** In *Pobre v. Defensor-Santiago* (2009), the Court held that discipline for offensive floor speeches belongs to the legislative chamber or the voters, not the courts [230–231].
- However, *Pobre* applied strictly to remarks uttered **on the legislative floor or in committee rooms in the performance of legislative functions** [231–232].
- Statements falling outside parliamentary privilege that cause civil injury are not foreclosed from judicial review. Under Article VIII, Section 1 of the Constitution, B.P. Blg. 129, and Article 33 of the Civil Code, courts possess express jurisdiction over civil actions for damages arising from defamation.

4. On Cause of Action & Preliminary Hearing: COMPLAINT IS SUFFICIENT; EVIDENTIARY DEFENSES REQUIRE TRIAL [234–236].

- **Ratio:** A cause of action for defamation under Civil Code Articles 19, 21, 33, 2217, and 2219 requires: (1) an allegation of a defamatory imputation; (2) malice; (3) publication; and (4) identification of the victim. Tiu's complaint satisfied all elements on its face.
- Senator Trillanes's affirmative defenses—that his remarks were factual statements, fair comments, or concerned a public figure—are **evidentiary matters** that cannot be resolved via summary dismissal or preliminary hearing, but must be proved during a full-blown trial on the merits.

● DOCTRINE, TESTS, AND LEGAL STANDARDS

1. **Official Legislative Function Boundary (*Trillanes IV Standard*):** The Speech and Debate Clause (Art. VI, Sec. 11) protects only acts that are an integral part of the deliberative and communicative processes by which members participate in committee and House proceedings.
 2. **Non-Privilege of Media Interviews:** Press releases, media interviews, and public statements made during breaks or pauses in legislative hearings are political activities, not legislative acts; they fall outside parliamentary immunity.
 3. **Jurisdictional Rule for Non-Privileged Defamation:** The exclusive disciplinary rule of *Pobre v. Defensor-Santiago* applies strictly to protected floor/committee speech; courts retain full jurisdiction under B.P. Blg. 129 and Civil Code Article 33 over civil actions for damages arising from non-privileged defamatory statements uttered to media [230–233].
-

♥ DISPOSITION

- **Ruling:** The Petition for *Certiorari* is **DISMISSED** for procedural infirmity and lack of merit.
- **Decree:** The Orders dated May 19, 2015 and December 16, 2015 of the Regional Trial Court of Quezon City, Branch 101 in Civil Case No. R-QZN-14-10666-CV are **AFFIRMED**.

● RECITATION LAYER & CLASSROOM DRILLS

60-Second Recitation Capsule

*"In *Trillanes IV v. Castillo-Marigomen* (2018), businessman Antonio Tiu testified before the Senate Blue Ribbon Subcommittee regarding the 'Hacienda Binay' estate, claiming ownership via Sunchamp Agri-Tourism Park. During gaps and breaks in Senate hearings, Senator Antonio Trillanes IV gave media interviews calling Tiu a 'front,' 'nominee,' or 'dummy' for Vice President Binay. Following these broadcast remarks, stock prices of Tiu's publicly listed companies (Greenenergy and AgriNurture) plummeted. Tiu sued Trillanes for defamation damages in RTC Quezon City Branch 101. Trillanes moved to dismiss based on parliamentary immunity under Art. VI, Sec. 11, arguing that his media statements were made in the performance of his Senate duties and that under *Pobre*, only the Senate could discipline him. The RTC denied his motion. Trillanes filed a Rule 65 petition directly with the Supreme Court.

The Supreme Court First Division, through Justice Tijam, UNANIMOUSLY DISMISSED the petition. The Court held: (1) Direct recourse violated the hierarchy of courts; (2) Reaffirming *Jimenez v. Cabangbang*, parliamentary immunity protects ONLY official legislative acts integral to the lawmaking process; media interviews given during hearing breaks are 'political in nature,' not legislative acts, and fall outside Art. VI, Sec. 11; (3) Legislators are not 'super-citizens' shielded from slander suits; and (4) Courts have full jurisdiction under Civil Code Art. 33 over civil damage suits for non-privileged media defamation, as *Pobre* applies strictly to protected floor/committee speeches."* [5, 29–30, 212–219, 222–233, 237]

3 Likely Professor Follow-Up Questions & Concise Answers

1. **Q: How does the Supreme Court distinguish a Senator's protected speech in committee hearings from non-protected remarks made to media reporters inside the Senate building?**
 - **A:** Under *Trillanes IV v. Castillo-Marigomen*, statements uttered **during official committee deliberations** are protected legislative acts integral to lawmaking. Conversely, statements made to media reporters during **breaks or pauses in hearings** are non-legislative, political activities that fall outside Article VI, Section 11.
2. **Q: Why was Senator Trillanes's reliance on *Pobre v. Defensor-Santiago* rejected by the Supreme Court?**
 - **A:** *Pobre* held that discipline for offensive language belongs exclusively to Congress/voters **only when the statements are made in the performance of official legislative functions on the floor or in committee rooms** [230–232]. When statements are uttered outside protected legislative functions, courts retain full jurisdiction under B.P. Blg. 129 and Civil Code Article 33 to adjudicate damage actions for defamation [232–233].
3. **Q: Are U.S. Supreme Court precedents on parliamentary immunity applicable in Philippine Constitutional Law?**
 - **A: Yes.** The Court explicitly cited U.S. jurisprudence (*United States v. Brewster* and *Gravel v. United States*) to hold that the Speech and Debate Clause protects only acts integral to the legislative process, excluding political communications or media releases [227–230].

Changed-Material-Fact Hypothetical

- **Scenario:** Suppose Senator X formally files a Senate Resolution initiating a legislative inquiry into a land deal. During a live, televised Senate committee hearing on the resolution, Senator X questions witness Y and calls him a "corrupt dummy of the Governor." After the hearing adjourns, Y files a civil action for damages against Senator X in the RTC. Senator X moves to dismiss based on Article VI, Section 11. How should the Court rule?
- **Answer: The Supreme Court MUST GRANT the motion to dismiss and DISMISS the civil action.** Unlike *Trillanes IV v. Castillo-Marigomen*, where the defamatory remarks were uttered during **informal media interviews during breaks**, here the statement was made **on the floor/committee room during an official legislative hearing** in the performance of legislative duties [226, 230–232]. Under Article VI, Section 11 and *Pobre v. Defensor-Santiago*, statements made during official committee hearings are **absolutely privileged** ("speech or debate in any committee thereof"), exempting the Senator from judicial liability and leaving disciplinary authority exclusively to the Senate [225, 230–232].

One-Sentence Doctrine Anchor

Parliamentary immunity under Article VI, Section 11 protects only official acts integral to the legislative process, excluding media interviews or press declarations uttered during breaks in congressional proceedings.

Trillanes IV v. Castillo-Marigomen (2018)

Topic Subtopic	"Branches of the Government - Congress" Speech and Debate Clause	GR No. & Ponente	G.R. No. 223451 Tijam, J.
Petitioner/s	ANTONIO F. TRILLANES IV,	Respondent/s	HON. EVANGELINE C. CASTILLO-MARIGOMEN, IN HER CAPACITY AS PRESIDING JUDGE OF THE REGIONAL TRIAL COURT, QUEZON CITY, BRANCH 101 AND ANTONIO L. TIU,
Doctrine	Parliamentary immunity of absolutely privileged communication under Art. 6, Section 11 protects only official acts integral to the legislative process, excluding media interviews or press declarations uttered during breaks in congressional proceedings or in recess.		

FACTS

- Petitioner Antonio Trillanes, as a Senator of the Republic of the Philippines, filed Proposed Senate Resolution No. 826 (P.S. Resolution No. 826) directing the Senate's Committee on Accountability of Public Officials and Investigations to investigate, in aid of legislation:
 - (1) the alleged P1.601 Billion overpricing of the new 11-storey Makati City Hall II Parking Building,
 - (2) the reported overpricing of the 22-storey Makati City Hall Building at the average cost of P240,000.00 per square meter, and
 - (3) related anomalies purportedly committed by former and local government officials.
- The Senate Blue Ribbon Subcommittee (SBRS) conducted public hearings regarding alleged corruption, overpriced infrastructure projects, and the so-called "Hacienda Binay" estate in Rosario, Batangas, purportedly owned by then-Vice President Jejomar C. Binay.
 - Petitioner alleged that at the October 8, 2014 Senate Blue Ribbon Sub-Committee (SBRS) hearing, former Makati Vice Mayor Ernesto Mercado (Mercado) testified on how he helped former Vice President Jejomar Binay (VP Binay) acquire and expand what is now a 350-hectare estate in Barangay Rosario, Batangas, which has been referred to as the Hacienda Binay,
 - According to petitioner, Mercado related in said hearing that because VP Binay's wife would not allow the estate's developer, Hillmarcs' Construction Corporation (HCC), to charge the development expenses against VP Binay's 13% share in kickbacks from all Makati infrastructure projects, HCC was compelled to add the same as "overprice" on Makati projects, particularly the Makati City Hall Parking Building.
- Petitioner thereafter claimed that **Private Respondent Antonio L. Tiu**, a businessman engaged in agriculture and Chairman/CEO of publicly listed companies AgriNurture, Inc. (AgriNurture) and Greenery Holdings, Inc. (Greenery), testified before the SBRS on October 22 and 30, 2014, and claimed ownership over the 150-hectare estate through his company **Sunchamp Real Estate Corp.**
 - During media interviews conducted at the Senate building—**specifically during gaps, breaks, and pauses in plenary and committee hearings**, and **in response to press queries**, he expressed his **opinion** that based on his office's review of the documents, **private respondent appears to be a "front" or "nominee" or is acting as a "dummy" of the actual and beneficial owner of the estate, VP Binay.**
- Tiu filed a Complaint for Damages for Defamation against Senator Trillanes before the Regional Trial Court of Quezon City, Branch 101, claiming that Trillanes's false accusations besmirched his reputation, discredited his business standing, and caused severe financial losses
 - Following Senator Trillanes's repeated media declarations between October 8 and 14, 2014, the share prices of Tiu's companies allegedly dropped significantly
- Senator Trillanes filed his Answer raising affirmative defenses:**
 - (a) his media statements were statements of fact based on official documents;
 - (b) Tiu was a "public figure" or quasi-public figure subject to fair comment;
 - (c) the statements were made in the performance of his duties as Senator and protected by parliamentary immunity under Article VI, Section 11 of the 1987 Constitution; and

- (d) the RTC lacked jurisdiction. Trillanes subsequently moved for a preliminary hearing on his affirmative defenses or outright dismissal.
- **Order dated May 19, 2015:** Public respondent Judge Evangeline C. Castillo-Marigomen denied Senator Trillanes's motion to dismiss / motion for preliminary hearing. Senator Trillanes filed a Petition for Certiorari (Rule 65) directly with the Supreme Court seeking to annul the RTC Orders.

ISSUE 1

Main – Procedural	W/N petitioner's direct application to the Supreme Court for a Writ of Certiorari violated the doctrine of hierarchy of courts.	YES
RULING and RATIO DECIDENDI:		
● The power to issue writs of certiorari is shared concurrently with the Court of Appeals and the RTC. Direct invocation of the Supreme Court's jurisdiction is allowed only for special and compelling reasons. ● The power to issue writs of certiorari, prohibition, and mandamus is not exclusive to this Court. 27 The Court shares the jurisdiction over petitions for these extraordinary writs with the Court of Appeals and the Regional Trial Courts. ● Although genuine constitutional issues can justify direct resort, the scope of parliamentary immunity in relation to lawmakers' speech was already settled as early as 1966 in Jimenez v. Cabangbang ○ Because established jurisprudence provided clear guidelines for lower courts, no "exceptionally compelling reason" existed to bypass the Court of Appeals. ● The Court is, thus, unconvinced that petitioner has presented an "exceptionally compelling reason" to justify his direct application for a writ of certiorari with this Court. ● Even assuming arguendo that direct recourse to this Court is permissible, the petition must still be dismissed (see other issues below)		

ISSUE 2

Main – Substantive	W/N statements uttered by a Senator during media interviews given during gaps and breaks in Senate plenary and committee hearings are protected by parliamentary immunity under Article VI, Section 11 of the 1987 Constitution	NO
RULING and RATIO DECIDENDI:		
Statements made during interviews during breaks of senate proceedings are not covered by parliamentary inquiry. ● Under Article VI, Section 11 of the 1987 Constitution, parliamentary non-accountability attaches ONLY to "speech or debate in the Congress or in any committee thereof". ● Reaffirming Jimenez v. Cabangbang, the Court held that "speech or debate" refers strictly to utterances made by legislators in the performance of their official functions, such as speeches delivered on the floor, votes cast, bills introduced, or official acts performed in committee proceedings. ● Senator Trillanes admitted making the remarks during media interviews in gaps and breaks of Senate hearings. ○ Remarks made to news reporters during breaks are not part of any speech delivered in the Senate, nor spoken in the course of floor or committee debate, nor integral to the legislative process. ○ Adopting U.S. Supreme Court jurisprudence (United States v. Brewster; Gravel v. United States), the Court stressed that while communicating with the press is an ordinary political activity expected of elected officials, it is "political in nature, rather than legislative" and thus not covered by absolutely privileged communication ○ Participating in media interviews is not demanded by a lawmaker's sworn duty, nor is it a component of the process of enacting laws. Only actions carried in connection with actual legislative work is privileged. ● The Speech and Debate Clause was not designed to turn legislators into "super-citizens" immune from		

civil or criminal responsibility for slandering private individuals outside legislative halls

- The privilege exists not for a lawmaker's private indulgence, but for the public good, to preserve the integrity and inviolability of the deliberative legislative process.

LEGAL BASES

Article VI, Section 11 of the 1987 Constitution

A Senator or Member of the House of Representatives shall, in all offenses punishable by not more than six years imprisonment, be privileged from arrest while the Congress is in session. No Member shall be questioned nor be held

ISSUE 3

Side – Substantive	W/N the Regional Trial Court has jurisdiction over a civil action for damages for defamatory media statements made by a sitting Senator, or whether jurisdiction belongs exclusively to the Senate and the voters under <i>Pobre v. Defensor-Santiago</i>	YES
--------------------	---	-----

RULING and RATIO DECIDENDI:

- In *Pobre v. Defensor-Santiago* (2009), the Court held that discipline for offensive floor speeches belongs to the legislative chamber or the voters, not the courts
 - However, *Pobre* applied strictly to remarks uttered on the legislative floor or in committee rooms in the performance of legislative functions
- Statements falling outside parliamentary privilege that cause civil injury are not foreclosed from judicial review. Under Article VIII, Section 1 of the Constitution, B.P. Blg. 129, and Article 33 of the Civil Code, courts possess express jurisdiction over civil actions for damages arising from defamation.
 - **Only those that are privileged communication (part of speech & debate clause) can be said to be held accountable by the voters/senate itself and not the courts**
 - **Because this was not privileged communication, the court retains the power of judicial review.**

ISSUE 4

Side – Substantive	W/N the complaint sufficiently states a cause of action for damages, or whether petitioner was entitled to an outright dismissal or preliminary hearing on his affirmative defenses	YES
--------------------	---	-----

RULING and RATIO DECIDENDI:

- A cause of action for defamation under Civil Code Articles 19, 21, 33, 2217, and 2219 requires:
 - (1) an allegation of a defamatory imputation;
 - (2) malice;
 - (3) publication; and
 - (4) identification of the victim.
 - Tiu's complaint satisfied all elements on its face.
- Senator Trillanes's affirmative defenses, that his remarks were factual statements, fair comments, or concerned a public figure, are evidentiary matters that cannot be resolved via summary dismissal or preliminary hearing, but must be proved during a full-blown trial on the merits.
- Even granting that the petition for certiorari might be directly filed with this Court, its dismissal must perforce follow because its consideration and resolution would inevitably require the consideration and evaluation of evidentiary matters. **The Court is not a trier of facts, and cannot accept the petition for certiorari for that reason.**

FINAL DECISION

WHEREFORE, the petition is **DISMISSED**. Public respondent's Orders dated

	May 19, 2015 and December 16, 2015 in Civil Case No. R-QZN-14-10666-CV are affirmed insofar as they are consistent with this decision.
--	--

Adaza v. Pacana, Jr.

DOCTRINE

Under Section 10, Article VIII of the 1973 Constitution, the prohibition against a Member of the Batasan Pambansa holding any other public office or employment during his tenure is absolute and self-executing (subject only to specified constitutional exceptions), such that an elected provincial governor who qualifies and takes his oath as a legislator automatically forfeits his gubernatorial office, which is then legally filled by the vice-governor who was merely on forced leave of absence during his own unsuccessful candidacy under Section 13(2) of Batas Pambansa Blg. 697.

RECITATION SUMMARY

In the January 30, 1980 elections, petitioner Homobono A. Adaza was elected Governor and respondent Fernando Pacana, Jr. was elected Vice-Governor of Misamis Oriental for six-year terms ending March 3, 1986. Both officials subsequently ran in the May 14, 1984 Batasan Pambansa elections; petitioner Adaza won and placed first, while respondent Pacana lost. On July 19, 1984, petitioner Adaza took his oath of office as Mambabatas Pambansa (MP) and assumed his legislative duties. On July 23, 1984, respondent Pacana took his oath of office as Governor of Misamis Oriental before President Ferdinand E. Marcos, asserting that the governorship became vacant upon Adaza's qualification as MP. Petitioner filed a petition for prohibition before the Supreme Court, contending that he could hold both offices simultaneously under a parliamentary system and that respondent Pacana had abandoned the vice-governorship by running for MP. The Supreme Court dismissed the petition, holding that: (1) under Section 10, Article VIII of the 1973 Constitution, holding another public office while serving as MP is strictly prohibited, so Adaza automatically forfeited the governorship upon taking his oath as MP; and (2) under Section 13(2) of Batas Pambansa Blg. 697 and Sections 204–205 of Batas Pambansa Blg. 337, Pacana as Vice-Governor (a member of the Sangguniang Panlalawigan) was merely on forced leave during the election, did not abandon his office, and properly succeeded to the vacant governorship pursuant to Section 48(1) of the Local Government Code.

MATERIAL FACTS & PROCEDURAL HISTORY

- **Legally Relevant Parties & Relationship:**
 1. *Petitioner:* Homobono A. Adaza (elected Governor of Misamis Oriental in 1980 and elected Member of the Batasan Pambansa in 1984).
 2. *Respondent:* Fernando Pacana, Jr. (elected Vice-Governor of Misamis Oriental in 1980, unsuccessful candidate for the Batasan Pambansa in 1984, who assumed the governorship).
- **Chronological Material Facts:**
 1. On January 30, 1980, local elections were held where petitioner Homobono A. Adaza was elected Governor and respondent Fernando Pacana, Jr. was elected Vice-Governor of the province of Misamis Oriental. Both took their oaths of office and assumed their respective positions on March 3, 1980, with terms expiring on March 3, 1986.
 2. On March 27, 1984, respondent Pacana filed his certificate of candidacy for the May 14, 1984 Batasan Pambansa elections.
 3. On April 27, 1984, petitioner Adaza likewise filed his certificate of candidacy for the same Batasan Pambansa elections.
 4. In the May 14, 1984 elections, petitioner Adaza won by placing first among the candidates, whereas respondent Pacana lost.
 5. On July 19, 1984, petitioner Adaza took his oath of office as Mambabatas Pambansa (MP) and thereafter discharged the functions of said office.

6. On July 23, 1984, respondent Pacana took his oath of office as Governor of Misamis Oriental before President Ferdinand E. Marcos, and assumed the performance of the duties of Governor on July 25, 1984.

● **Procedural History:**

1. Petitioner Adaza filed a Petition for Prohibition with prayer for a writ of preliminary injunction and/or restraining order directly before the Supreme Court En Banc (G.R. No. 68159) to exclude respondent Pacana from the governor's office.

● **PARTIES' MATERIAL ARGUMENTS**

● **Petitioner's (Homobono A. Adaza) Claims:**

1. *Right to Dual Office Holding:* He remains the lawful Governor until March 3, 1986, because under a parliamentary system (such as in France, Great Britain, and New Zealand), a local elective official can simultaneously hold a local executive office and serve as an elected member of Parliament.
2. *Abandonment/Ineligibility of Respondent:* Respondent Pacana abandoned or resigned from the position of Vice-Governor upon filing his certificate of candidacy for the Batasan Pambansa; having lost the election, Pacana reverted to the status of a mere private citizen with no right to assume the vacant governorship.

● **Respondent's (Fernando Pacana, Jr.) Claims:**

1. *Constitutional Forfeiture:* Under Section 10, Article VIII of the 1973 Constitution, an MP cannot hold any other office in government during his tenure; Adaza forfeited the governorship upon qualifying as MP.
2. *Forced Leave and Rightful Succession:* Under Section 13(2) of Batas Pambansa Blg. 697, local elective officials running for MP were placed merely on "forced leave of absence" rather than deemed resigned; as Vice-Governor and member/presiding officer of the Sangguniang Panlalawigan under Sections 204 and 205 of BP Blg. 337, Pacana validly resumed his vice-governorship upon losing the election and legally succeeded to the vacant governorship under Section 48(1) of BP Blg. 337.

● **ISSUES**

1. **Whether or not a provincial governor** who was elected and had qualified as a Mambabatas Pambansa (MP) can exercise and discharge the functions of both offices simultaneously.
2. **Whether or not a vice-governor** who ran for the position of Mambabatas Pambansa, but lost, can continue serving as vice-governor and subsequently succeed to the office of governor if the said office is vacated.

♥ **HOLDING AND RATIO DECIDENDI**

ISSUE 1: Constitutionality of Dual Holding of Provincial Governor and Mambabatas Pambansa Offices

HOLDING: NO. A provincial governor who qualifies as a Mambabatas Pambansa **CANNOT** hold or discharge the functions of both offices simultaneously. Upon taking his oath of office and qualifying as a Mambabatas Pambansa, petitioner Adaza automatically **FORFEITED** his position as Provincial Governor of Misamis Oriental.

RATIO & DETAILED COURT LOGIC:

1. **Express Text of Section 10, Article VIII of the 1973 Constitution:**

- The Supreme Court stressed that the constitutional prohibition against a Member of the Batasan Pambansa holding any other office or employment in the government during his tenure is clear, explicit, and unambiguous.
- Section 10, Article VIII of the 1973 Constitution provides: "*A member of the Batasan Pambansa shall not hold any other office or employment in the government, or any subdivision, agency, or instrumentality thereof, including government-owned or controlled corporations, during his tenure except that of Prime Minister, Deputy Prime Minister, Member of the Cabinet, or Deputy Minister.*"
- The rule admits of no ambiguity and must be given its literal meaning without attempted interpretation.

2. **Incompatibility of the Office of Provincial Governor:**

- The position of Provincial Governor is an "other office in the government" and does not fall within any of the specifically enumerated constitutional exceptions (Prime Minister, Deputy Prime Minister, Cabinet Member, or Deputy Minister).
- The constitutional provision does not merely prohibit the acceptance of an incompatible office; it prohibits the *holding* of such office during the legislator's tenure.
- Section 1, Article XIII of the 1973 Constitution reinforces this public policy by commanding that "*public office is a public trust*" and requiring public officers to serve with the highest degree of responsibility, integrity, loyalty, and efficiency.
- Allowing a provincial governor to simultaneously sit in the national legislature would divide his time and loyalty, defeating the constitutional mandate of full-time public service.

3. **Automatic Forfeiture upon Qualification as Mambabatas Pambansa:**

- The moment petitioner Adaza took his oath of office as Mambabatas Pambansa on July 19, 1984 and assumed the discharge of its functions, he automatically forfeited his right to hold the position of Provincial Governor of Misamis Oriental.
- Under well-settled public officer jurisprudence, where the Constitution prohibits a legislator from holding another office, the qualification for and assumption of the legislative seat automatically operates as a forfeiture of the former office.

4. **Inapplicability of Foreign Parliamentary System Practices:**

- The Court rejected petitioner's argument invoking the parliamentary practice in France, Great Britain, and New Zealand where local officials may simultaneously sit in Parliament.
- Philippine constitutional law is strictly governed by the specific text of the Philippine Constitution, which contains an express, mandatory prohibition against dual office-holding for members of the legislature.

ISSUE 2: Status of Unsuccessful Vice-Governor Candidate and Right of Succession to Vacant Governorship

HOLDING: YES. Respondent Pacana did **NOT** abandon or resign from his position as Vice-Governor upon running for the Batasan Pambansa. He was merely on forced leave of absence under Section 13(2) of Batas Pambansa Blg. 697, validly resumed the vice-governorship upon losing the election, and **RIGHTFULLY SUCCEEDED** to the office of Governor under Section 48(1) of Batas Pambansa Blg. 337 when the governorship was vacated.

RATIO & DETAILED COURT LOGIC:

1. **Forced Leave of Absence under Section 13(2) of Batas Pambansa Blg. 697:**

- Petitioner contended that respondent Pacana abandoned or resigned from the vice-governorship when he filed his certificate of candidacy for the May 14, 1984 Batasan Pambansa elections.
- The Supreme Court held that this argument directly contradicts Section 13(2) of Batas Pambansa Blg. 697 (the governing law for the 1984 Batasan Pambansa elections), which explicitly provides: *"governors, mayors, members of the various sangguniang or barangay officials shall, upon filing a certificate of candidacy, be considered on forced leave of absence from office."*

2. Inclusion of Vice-Governor as Member of the Sangguniang Panlalawigan:

- Under Sections 204 and 205 of Batas Pambansa Blg. 337 (Local Government Code), the Vice-Governor is an ex-officio member and the presiding officer of the Sangguniang Panlalawigan.
- Therefore, a Vice-Governor falls directly within the scope of "members of the various sangguniang" under Section 13(2) of BP Blg. 697.
- To confirm this statutory coverage, the Court cited the legislative record and deliberations on BP Blg. 697 between Assemblymen San Juan and Hilario G. Davide, Jr.:
 - Assemblyman Davide inquired why "vice-governors and vice-mayors" were not explicitly mentioned alongside governors and mayors in paragraph 2.
 - Assemblyman San Juan clarified on behalf of the sponsoring committee that Vice-Governors and Vice-Mayors are presiding officers and statutory members of their respective sangguniang (Sangguniang Panlalawigan and Sangguniang Bayan), and were thus intentionally included under the omnibus term *"members of the various sangguniang."*

3. Validity of Re-assumption and Automatic Succession:

- Since respondent Pacana was merely on a forced leave of absence during his candidacy, his failure to win a seat in the Batasan Pambansa simply ended his leave of absence, allowing him to automatically resume his duties as Vice-Governor of Misamis Oriental.
- When petitioner Adaza qualified as Mambabatas Pambansa on July 19, 1984, he created a permanent vacancy in the office of Provincial Governor.
- Under Section 48, paragraph 1 of Batas Pambansa Blg. 337 (Local Government Code), whenever a permanent vacancy occurs in the office of the Governor, the Vice-Governor shall automatically succeed to the office of Governor.
- Consequently, respondent Pacana's oath of office as Governor on July 23, 1984 and his assumption of gubernatorial duties on July 25, 1984 were completely valid, lawful, and pursuant to constitutional and statutory mandates.

DECISION & DISPOSITION:

The Supreme Court **DISMISSED** the petition for prohibition. No costs.

Adaza v. Pacana, Jr. (1985)

Topic Subtopic	Branches of the Government - Congress Disqualifications	GR No. & Ponente	G.R. No. 68159 Escolin, J.
Petitioner/s	Homobono Adaza	Respondent/s	Fernando Pacana Jr.
Doctrine	A member of the legislature is constitutionally prohibited from holding any other government office or employment during their tenure. Assuming office as a legislator automatically vacates any local elective post previously held.		

FACTS

- **Homobono A. Adaza** was elected provincial governor of Misamis Oriental in the January 30, 1980 elections. He took his oath of office and started discharging his duties on March 3, 1980.
- Elected vice-governor for said province in the same elections was **Fernando Pacana, Jr.**, who likewise qualified for and assumed office on the same day. Under the law, their respective terms of office would expire on **March 3, 1986**.
- March 27, 1984 - **Pacana** filed his COC for the May 14, 1984 Batasan Pambansa elections. He lost.
- April 27, 1984 - **Adaza** also ran for the 1984 Batasan Pambansa elections. He won and later took his oath of office as Mambabatas Pambansa. Since then, he has discharged the functions of said office.
- July 23, 1984 - Pacana took his oath of office as governor of Misamis Oriental before President Marcos, and started to perform duties on July 25, 1984
- However, Adaza claimed to be the lawful occupant of the governor's office. He then brought this petition for prohibition to exclude Pacana from his position. He argues that he was elected to said office for a term of six years, that he remains the provincial governor of the province until his term expires on March 3, 1986, and that within the context of the **parliamentary system**, a local elective official can hold the position to which he had been elected and simultaneously be an elected member of Parliament.
- He further contends that Pacana should be considered to have abandoned or resigned from his position as vice-governor when he filed his COC for the 1984 Batas Pambansa elections. Additionally, since he had reverted to the status of a mere private citizen after he lost in the said elections, he could no longer continue to serve as vice-governor, much less assume the office of governor.

ISSUE 1

Main – Substantive	W/N a provincial governor who was elected and had qualified as a Mambabatas Pambansa can exercise and discharge the functions of both offices simultaneously	NO
--------------------	--	----

RULING and RATIO DECIDENDI:

The constitutional prohibition against a member of the Batasan Pambansa from holding any other office or employment in the government during his tenure is clear and unambiguous (Sec 10, Art VIII of the 1973 Consti). The only exceptions mentioned therein are the offices of prime minister and cabinet member.

A public office is a public trust. Hence, a holder thereof "is subject to such regulations and conditions as the law may impose" and "he cannot complain of any restrictions which public policy may dictate on his holding of more than one office." It is therefore of no avail to Adaza that the system of government in other states allows a local elective official to act as an elected member of the parliament at the same time. In the PH, the Constitution itself prohibits it.

Hence, when Adaza took his oath of office as an elected Mambabatas Pambansa and performed its duties, **he vacated his former post as provincial governor and cannot continue to occupy it nor attempt to discharge its functions.**

LEGAL BASES

Section 10, Article VIII of the 1973 Constitution - "A member of the National Assembly [now Batasan Pambansa] shall not hold any other office or employment in the government or any subdivision, agency or instrumentality thereof, including government-owned or controlled corporations, during his tenure, except that of prime minister or member of the cabinet . . ."

ISSUE 2

Main Substantive	– W/N a vice-governor who ran for the position of Mambabatas Pambansa, but lost, can continue serving as vice-governor and subsequently succeed to the office of governor if the said office is vacated	YES
-------------------------	--	------------

PETITIONER/S ARGUMENTS:

Pacana should be considered as having abandoned or resigned from the vice-governorship when he filed his certificate of candidacy for the Batas Pambansa elections

RULING and RATIO DECIDENDI:

Under BP Blg. 697, local elective officials, including members of the Sangguniang Panlalawigan such as the vice-governor, are placed on forced leave of absence upon filing a candidacy, rather than deemed resigned or to have abandoned office.

Hence, when Pacana reassumed the position of vice-governor after his loss in the Batas Pambansa elections, he was acting within the law. His succession to the position of provincial governor was equally legal and valid under Section 204(2a) of the Local Government Code.

LEGAL BASES

Section 13(2) of Batas Pambansa Blg. 697 - "Governors, mayors, members of the various sangguniang or barangay officials shall, upon filing a certificate of candidacy, be considered on forced leave of absence from office."

Section 204(2a) of the Local Government Code - Powers, Duties and Privileges: "2) He shall: a) Assume the office of the governor for the expired term of the latter in the cases provided for in Section 48, paragraph 1 6 of this Code."

FINAL DECISION	WHEREFORE, the instant petition is hereby dismissed. No costs.
-----------------------	--

Puyat v. De Guzman, Jr.

DOCTRINE

Under Section 11, Article VIII of the 1973 Constitution, the prohibition against a Member of the Batasang Pambansa appearing as counsel before any administrative body is absolute and extends to indirect appearances; hence, a legislator who is constitutionally disqualified from appearing as counsel for a party in an administrative proceeding cannot circumvent the prohibition by acquiring a nominal stockholding in a corporation after a dispute arises and filing an "intervention" in his own name.

RECITATION SUMMARY

Following a contested election for eleven (11) directors of International Pipe Industries Corporation (IPI) where the "Puyat Group" was declared elected, the "Acero Group" filed a *quo warranto* proceeding before the Securities and Exchange Commission (SEC Case No. 1747). Assemblyman Estanislao A. Fernandez, a member of the Interim Batasang Pambansa, initially entered his oral appearance as counsel for respondent Acero, but withdrew his appearance when petitioners objected on constitutional grounds under Section 11, Article VIII of the 1973 Constitution. Thereafter, Assemblyman Fernandez notarized a purchase of ten (10) shares of stock in IPI (worth P200.00) from a third party and filed an Urgent Motion for Intervention in the SEC proceeding as a stockholder protecting his legal interest. SEC Associate Commissioner Sixto T.J. De Guzman, Jr. granted leave to intervene. Petitioners filed a petition for *certiorari* and prohibition before the Supreme Court. The Supreme Court reversed and set aside the SEC Order, holding that Assemblyman Fernandez's intervention was a mere afterthought and subterfuge to participate in the proceedings, constituting an indirect appearance as counsel before an administrative body in direct circumvention and violation of the constitutional ban.

MATERIAL FACTS & PROCEDURAL HISTORY

- **Legally Relevant Parties & Relationship:**
 1. *Petitioners (Puyat Group)*: Eugenio J. Puyat, Erwin L. Chiongbian, Edgardo P. Reyes, Antonio G. Puyat, Jaime R. Blanco, Rafael R. Recto, and Reynaldo L. Lardizabal (sitting directors and officers of IPI).
 2. *Respondents*: Hon. Sixto T.J. De Guzman, Jr. (Associate Commissioner of the SEC), Eustaquio T.C. Acero, R.G. Vildzius, Enrique M. Belo, Manuel G. Abello, Servillano Dolina, Juanito Mercado (the "Acero Group" challenging the board election), and Assemblyman Estanislao A. Fernandez (Member of the Interim Batasang Pambansa).
- **Chronological Material Facts:**
 1. On May 14, 1979, an election for the eleven (11) Directors of the International Pipe Industries Corporation (IPI), a private corporation with 262,843 outstanding shares, was held. The Puyat Group was ruled elected, giving them control of the Board and management of IPI.
 2. On May 25, 1979, the Acero Group instituted *quo warranto* proceedings before the Securities and Exchange Commission (docketed as SEC Case No. 1747), alleging that stockholders' votes were improperly counted during the election.
 3. Between May 25–31, 1979, at conferences held before SEC Associate Commissioner De Guzman, Assemblyman Estanislao A. Fernandez (then a member of the Interim Batasang Pambansa) orally entered his appearance as counsel for respondent Acero. The Puyat Group objected on constitutional grounds pursuant to Section 11, Article VIII of the 1973 Constitution, which prohibited Assemblymen from appearing as counsel

before any administrative body. Recognizing the prohibition, Assemblyman Fernandez did not pursue his formal appearance as counsel for Acero.

4. On May 15, 1979, Assemblyman Fernandez had agreed to purchase ten (10) shares of stock in IPI for P200.00 from Augusto A. Morales at the request of respondent Acero to qualify Fernandez to run for election as a Director.
5. The deed of sale for the ten shares was notarized on May 30, 1979, and sought to be registered on that date.
6. On May 31, 1979—one day after notarization and during the hearing of the SEC case—Assemblyman Fernandez filed an Urgent Motion for Intervention in SEC Case No. 1747, asserting legal interest as the owner of ten IPI shares.
7. On July 17, 1979, SEC Associate Commissioner De Guzman issued an Order granting Assemblyman Fernandez leave to intervene in SEC Case No. 1747 on the basis of his ownership of the ten shares.
8. (Related Proceeding): On July 3, 1979, Edgardo P. Reyes filed Civil Case No. 33739 before the Court of First Instance of Rizal (Pasig) against Excelsior-De Maas and Acero to annul a stock sale. In that CFI case, Assemblyman Fernandez appeared as counsel for defendant Excelsior (Acero's co-defendant), which the Supreme Court subsequently struck down in G.R. No. L-51928 because a CFI was a court "without appellate jurisdiction".

- **Procedural History:**

1. Petitioners filed a Petition for *Certiorari* and Prohibition with Preliminary Injunction (G.R. No. 51122) before the Supreme Court assailing the SEC Order dated July 17, 1979.
2. On September 4, 1979, the Supreme Court *En Banc* issued a Temporary Restraining Order (TRO) enjoining SEC Associate Commissioner De Guzman from allowing the participation of Assemblyman Fernandez as an intervenor in SEC Case No. 1747.
3. The Solicitor General filed a Comment supporting the SEC Order, which the Court *En Banc* treated as an Answer.

● PARTIES' MATERIAL ARGUMENTS

- **Petitioners' (Puyat Group) Claims:**

1. Assemblyman Fernandez's intervention as a shareholder of 10 shares is a mere subterfuge and indirect appearance as counsel before an administrative body, which circumvents and violates Section 11, Article VIII of the 1973 Constitution prohibiting members of the Batasang Pambansa from appearing as counsel before any administrative body.

- **Respondents' (SEC Commissioner / Assemblyman Fernandez / Acero Group) Claims:**

1. Intervention is lawful because Assemblyman Fernandez was appearing in his own right as a stockholder protecting his personal legal interest in 10 shares of IPI, not as counsel appearing on behalf of another party.
2. The SEC is an administrative body where Fernandez was acting as a property owner protecting his vote and potential election as director, rather than practicing law as an attorney for a litigant.

● ISSUES

1. **Whether an Assemblyman (Member of the Batasang Pambansa)** who is constitutionally prohibited from appearing as counsel before an administrative body under Section 11, Article VIII of the 1973 Constitution may validly intervene as a stockholder in an intra-corporate *quo warranto* proceeding before the Securities and Exchange Commission (SEC).

ISSUE 1: Constitutionality of Assemblyman's Intervention before the Securities and Exchange Commission

HOLDING: NO. The intervention of Assemblyman Fernandez in SEC Case No. 1747 constitutes an **INDIRECT APPEARANCE AS COUNSEL** before an administrative body in circumvention and violation of Section 11, Article VIII of the 1973 Constitution. The SEC Order granting leave to intervene is **REVERSED AND SET ASIDE**.

RATIO & DETAILED COURT LOGIC:

1. Constitutional Command of Section 11, Article VIII of the 1973 Constitution:

- The Supreme Court highlighted the explicit language of Section 11, Article VIII of the 1973 Constitution (as maintained in subsequent constitutional amendments): *"No Member of the Batasang Pambansa shall appear as counsel before any court without appellate jurisdiction... or before any administrative body. Neither shall he, directly or indirectly, be interested financially in any contract with... the Government... He shall not accept employment to intervene in any cause or matter where he may be called to act on account of his office."*
- The Securities and Exchange Commission (SEC) is indisputably an administrative body within the coverage of this constitutional prohibition.

2. Distinction Between Nominal Intervention and Indirect Appearance as Counsel:

- The Court observed that, ordinarily, a person who files a motion for intervention is ostensibly appearing on his own behalf to protect his property rights rather than acting as counsel for another litigant.
- However, the Court held that in applying constitutional prohibitions, courts must look past formal procedural designations to ascertain the true nature and actual impact of the act.

3. Salient Circumstances Establishing Indirect Appearance and Circumvention:

- The Court scrutinized the sequence of events and factual record, finding that multiple compelling circumstances proved the intervention was a mere cover for acting as counsel:
 - *Minimal Stockholding:* Fernandez acquired a insignificant holding of ten (10) shares worth P200.00 out of a total 262,843 outstanding shares of IPI.
 - *Acquisition "After the Fact":* The stock purchase was notarized on May 30, 1979—occurring *after* the contested May 14 election, *after* the *quo warranto* petition had already been filed before the SEC on May 25, and only one day before the scheduled SEC hearing on May 31, 1979.
 - *Prior Attempt to Appear as Counsel:* Before filing the motion for intervention, Fernandez had explicitly entered his oral appearance as counsel of record for respondent Acero, withdrawing only after petitioners raised formal constitutional objections.
 - *Parallel CFI Appearance:* In a related CFI suit involving the same corporate conflict (Civil Case No. 33739), Fernandez actively appeared as counsel for Acero's co-defendant Excelsior.
- Based on these facts, the Court concluded that Assemblyman Fernandez's intervention was a clear afterthought designed to enable him to participate actively in the SEC proceedings under the guise of an intervenor after his direct appearance as counsel was blocked. To believe his claim that he was merely intervening to protect a P200.00 investment would be pure naivete; he would still perform the role and exert the influence of a counsel indirectly.

4. Doctrine Against Doing Indirectly What Is Directly Prohibited:

- Upholding Fernandez's "intervention" would render the constitutional prohibition completely ineffective and impotent.
- If such a scheme were sanctioned, any legislator wishing to exert influence over an administrative body could easily bypass the Constitution by acquiring a nominal financial token or shareholding in his client's cause and appearing as an "intervenor".
- The Court reiterated the fundamental principle of constitutional law: *"That which the Constitution directly prohibits may not be done by indirection or by a general legislative act which is intended to accomplish the objects specifically or impliedly prohibited."*

5. Strict Limitation of the Judicial Ruling:

- The Supreme Court clarified that its ruling is strictly confined to enforcing the constitutional disqualification imposed upon members of the legislature.
- It does not establish a general rule barring ordinary stockholders without constitutional disqualifications from intervening in intra-corporate disputes before the SEC.

DECISION & DISPOSITION:

The Supreme Court **REVERSED and SET ASIDE** respondent Associate Commissioner's Order granting Assemblyman Estanislao A. Fernandez leave to intervene in SEC Case No. 1747, and made the Temporary Restraining Order **PERMANENT**. No costs.

Puyat v. De Guzman, Jr. (1982)

Topic Subtopic	Branches of the Government - Congress Disqualifications	GR No. & Ponente	G.R. No. 51122 Melencio-Herrera, J.
Petitioner/s	Eugenio J. Puyat, Erwin L. Chiongbian, Edgardo P. Reyes, Antonio G. Puyat, Jaime R. Blanco, Rafael R. Recto, and Reynaldo L. Lardizabal	Respondent/s	Hon. Sixto T. J. De Guzman, Jr., Eustaquio T. C. Acero, R.G. Vildzius, Enrique M. Belo, Manuel G. Abello, Servillano Dolina, Juanito Mercado, and Estanislao A. Fernandez
Doctrine	A legislator who is constitutionally disqualified from acting as a lawyer before an administrative body cannot bypass this rule by buying a tiny share in a company just to intervene in the proceedings.		

FACTS

May 14, 1979 - An election for the eleven directors of the International Pipe Industries Corp. (IPI) was held. The following were elected as directors:

- Puyat Group = Puyat, Chiongbian, Reyes, Puyat, Blanco, and Recto
 - In control of the Board and management of IPI
- Acero Group = Acero, Vildzius, Belo, Dolina, and Mercado

May 25, 1979 - The Acero Group filed quo warranto proceedings with the Securities and Exchange Commission (SEC), questioning the May 14 election. They claimed that the stockholders' votes were not properly counted.

May 25-31, 1979 - The Puyat Group claims that at conferences with SEC Commissioner De Guzman, Assemblyman/Justice Fernandez orally entered his appearance as counsel for Acero, which the Puyat Group objected on constitutional grounds.

- *Sec 11 Art 8 of the 1973 Consti - No Assemblyman could “appear as counsel before...any administrative body”*
- SEC was an administrative body, so Assemblyman Fernandez did not continue his appearance for Acero

May 31, 1979 - When the SEC Case was called, it turned out that:

- Assemblyman Fernandez had 10 IPI shares for P200 upon the request of Acero to qualify him to run for election as a Director
- The deed of sale was notarized on May 30, 1979. The day after, Assemblyman Fernandez filed an **Urgent Motion for Intervention** in the SEC Case as a stockholder alleging legal interest in the litigation

July 17, 1979 - SEC granted Fernandez leave to intervene based on his 10 shares. This prompted the Puyat Group to file a petition for Certiorari and Prohibition with Preliminary Injunction before the Supreme Court.

Sept 4, 1979 - The Court issued a TRO enjoining SEC Associate Commissioner De Guzman from allowing Assemblyman Fernandez's participation as an intervenor at the proceedings in the SEC Case.

ISSUE 1

Main Substantive –	W/N Assemblyman Fernandez's intervention in the SEC Case was, in effect, an indirect appearance as counsel before an administrative body in contravention of the Section 11, Article VIII of the Constitution	YES
--------------------	---	-----

RULING and RATIO DECIDENDI:

YES. Assemblyman Fernandez's intervention in the SEC Case constitutes an indirect appearance as counsel before an administrative body.

Ordinarily, an intervenor appears to protect their own legal interest rather than act as counsel for another. In this case, Assemblyman Fernandez's appearance could be for the protection of the 10 IPI shares he owns, and not for the protection of the petitioners nor respondents.

However, certain salient circumstances militate against his intervention in the SEC Case:

- He acquired only 10 shares worth P200 out of 262,843 total outstanding shares
- He acquired the shares after the contested election of Directors, after the quo warranto suit was filed, and just one day before the SEC hearing
- Before he moved to intervene, he had already expressed his intention to appear as counsel for Acero, which was only aborted after the petitioners' objection

Realizing, perhaps, the validity of the objection, he decided, instead, to "intervene" on the ground of legal interest in the matter under litigation. And it may be noted that in the case filed before the Rizal Court of First Instance (L-51928), he appeared as counsel for defendant Excelsior, co-defendant of respondent Acero therein

Under those facts and circumstances, we are constrained to find that there has been an indirect "appearance as counsel before . . . any administrative body" and, in our opinion, that is a circumvention of the Constitutional prohibition. The "intervention" was an afterthought to enable him to appear actively in the proceedings in some other capacity. To believe his claim that he intervened solely to eventually vote and be elected as Director in the event of an unfavorable outcome of the SEC Case would be pure naivete. He would still appear as counsel indirectly.

Upholding the intervention would make **Sec 11. Art VIII of the Constitution** ineffective, as any Assemblyman seeking to influence an administrative body could simply acquire minimal participation in the "interest" of the client and then intervene in the proceedings.

In brief, we hold that the intervention of Assemblyman Fernandez in SEC No. 1747 falls within the ambit of the prohibition contained in Section 11, Article VIII of the Constitution.

LEGAL BASES

Sec 11. Art VIII of the Constitution - No Member of the Batasang Pambansa shall appear as counsel before any court without appellate jurisdiction, before any court in any civil case wherein the Government, or any subdivision, agency, or instrumentality thereof is the adverse party, or in any criminal case wherein any officer or employee of the Government is accused of an offense committed in relation to his office, or **before any administrative body**. Neither shall be, directly or indirectly be interested financially in any contract with, or in any franchise or special privilege granted by the Government, or any subdivision, agency or instrumentality thereof, including any government-owned or controlled corporation, during his term of office. He shall not accept employment to intervene in any cause or matter where he may be called to act on account of his office.

FINAL DECISION

WHEREFORE, respondent Commissioner's Order granting Atty. Estanislao A. Fernandez leave to intervene in SEC Case No. 1747 is hereby **reversed and set aside**. The Temporary Restraining Order heretofore issued is hereby made permanent.

Pangilinan v. Cayetano (Notice) (2018)

Topic Subtopic	Branches of the Government - Congress Disqualifications	GR No. & Ponente	NOTICE G.R. No. 238875 & G.R. No. 239483.
Petitioner/s	G.R. No. 238875 SENATORS FRANCIS PANGILINAN, FRANKLIN DRILON, PAOLO BENIGNO AQUINO, LEILA DE LIMA, RISA HONTIVEROS, AND ANTONIO TRILLANES — G.R. No. 239483 PHILIPPINE COALITION FOR THE INTERNATIONAL CRIMINAL COURT (PCICC), LORETTA ANN P. ROSALES, DR. AURORA CORAZON A. PARONG, EVELYN BALAIS-SERRANO, JOSE NOEL D. OLANO, REBECCA DESIREE E. LOZADA, EDELIZA P. HERNANDEZ, ANALIZA T. UGAY, NIZA CONCEPCION ARAZAS, GLORIA ESTER CATIBAYAN- GUARIN, RAY PAOLO "ARPEE" J. SANTIAGO, GILBERT TERUEL ANDRES, AND AXLE P. SIMEON,	Respondent/s	G.R. No. 238875 ALAN PETER CAYETANO, SALVADOR MEDIALDEA, TEODORO LOCSIN, JR., AND SALVADOR PANELO — G.R. No. 239483 OFFICE OF THE EXECUTIVE SECRETARY, REPRESENTED BY HON. SALVADOR MEDIALDEA, THE DEPARTMENT OF FOREIGN AFFAIRS, REPRESENTED BY HON. ALAN PETER CAYETANO, AND THE PERMANENT MISSION OF THE REPUBLIC OF THE PHILIPPINES TO THE UNITED NATIONS, REPRESENTED BY HON. TEODORO LOCSIN, JR.,
Doctrine	Right to appearance must yield to the fundamental restrictions on her liberty borne by her detention		

FACTS

Context before the actual case (NOTICE): **G.R. No. 238875; G.R. No. 239483** pertains to the filing of the above mentioned petitioners of a petition for certiorari and mandamus questioning the constitutionality of the unilateral withdrawal of the Philippines by President Duterte from the Rome Statute (in which the Philippines was a signatory of in 2000, that established the International Criminal Court) in March 2018 amid the complaints and preliminary investigations relating to Duterte's war on Drugs.

In relation to the context mentioned above:

Senator Leila De Lima is asking that she be allowed “to personally appear and represent herself” during the oral arguments set by this Court in the consolidated petitions. She argues that while she is barred by Article VI, Section 14 of the 1987 Constitution to appear as counsel before any court, she contends that Sec 34, Rule 138 allows her to appear not as counsel for another but in her personal capacity as petitioner. She also cited prior Court decisions such as *Lagman* wherein legislators were allowed to appear before this court in their personal capacity as litigants/petitioners.

The OSG argued that De Lima is a prisoner under detention, charged with a non-bailable offense of violating Sec. 26 of RA 9165 (“conspiracy to engage in illegal drug trading” as mentioned in Section 26(b)). The OSG asserted that Senator De Lima's interests as petitioner can be adequately represented by her fellow petitioners. Also argued that this is a petition for bail that should be filed before the RTC.

ISSUE 1

Main – Substantive	W/N Sen. De Lima is allowed to personally appear and represent herself during the oral arguments set by this Court for the consolidated petitions?	NO
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
Sec 34, Rule 138 allows her to appear in her personal capacity as a petitioner		The petitioner is a prisoner under detention, therefore, she is barred from appearing in the said oral arguments.
RULING and RATIO DECIDENDI:		
NO. De Lima is not allowed to personally appear and represent herself since she is still detained as a prisoner, therefore, it will be a disregard of the lawful restraints impelled upon her by her status.		

Article VI, Section 14 of the 1987 Constitution prevents "Senator[s] or Member[s] of the House of Representatives [from] personally appear[ing] as counsel before any court of justice or before the Electoral Tribunals, or quasi-judicial and other administrative bodies."

- The Court acknowledged that De Lima is correct with regards to the prohibition in appearing as counsel for or in representation of another, as provided in above.
- Rule 138, Sec 34 of the ROC enables "a party [to] to conduct his litigation."
- However, the Court reasoned that "A party's representation on his own behalf is not considered to be a practice of law as "one does not practice law by acting for himself"" (Maderada v. Mediodeda).
- The Court resolved cases relating to appearance of Senators and members of the HoR for themselves as permissible,
 - Puyat - shows that if there are salient circumstances which mitigate against the intervention, and which reveal an intent to enable "indirect appearance as counsel", he is indirectly appearing as counsel before the Court, therefore he is within the ambit of prohibition set by Article VIII, Sec. 11.
 - Lagman - Rep. Lagman was permitted to appear and argue in his capacity as petitioner relating to the petition questioning the constitutionality of the declaration of Martial law in Mindanao by Duterte.
- Puyat shows that the right to personally appear is not always availing. Such as in this instant case, De Lima's right to appearance must yield to the fundamental restrictions on her liberty borne by her detention
 - In contrast to Lagman, the difference is that she is DETAINED FOR A NON-BAILABLE OFFENSE
 - Individuals under preventive detention continue to be presumed innocent but there is still the acknowledgement that the fact of their detention makes their rights more limited than those of the public.
 - People v. Hon Maceda - a person is not allowed to practice his profession as a necessary consequence of his status as a detention prisoner. – the Court qualified this as not applicable to cases where he "would appear in court to defend himself."
 - Consistent with this ruling, De Lima does have the right to appear for herself BUT she cannot insist upon such appearance, since it would be a total disregard of the lawful restraints made by her status.
- This Court finds no compelling reason for lifting the restraint of detention on Senator De Lima. She will not be denied representation before this Court plainly on account of her non-participation in oral arguments. Her right to due process will not be violated. → she is joined by 5 other Senators in their Petition
- The other co-petitioners can also present in the oral arguments - Sen. Drilon and Sen. Pangilinan
 - Yet, the fact that De Lima has co-petitioners that has not manifested anything inconsistent to her Motion means that they have conceded to her exclusive appearance for all six of them -> this will be akin to counsel or represent others
 - Thus, a litigant cannot insist on representation by a lawyer who has been suspended from the practice of law, has been disbarred, or, as in Senator De Lima's case, is incarcerated.
- The court also mentioned that "every man who is his own lawyer, has a fool for a client" - In re: Borromeo; Alpajora v. Calayan; Matter of Zappin
 - Self-appearance can be clouded with sentiment and personal dispositions -> affects objectivity

After careful consideration, this Court elects to deny Senator De Lima's Motion.

**FINAL
DECISION**

WHEREFORE, petitioner Senator Leila M. De Lima's Motion asking that she be allowed to personally appear and represent herself during the oral arguments set by this Court in these consolidated petitions is **DENIED**.

SEPARATE OPINION/S

CARPIO, J,
dissenting

- **As one of the Petitioners, De Lima has the right to argue during the Oral Arguments in accordance with Sec 34 of Rule 138 of the Rules of Court which allows a party to conduct his or her litigation personally.**
 - Her background as a former chairperson of the Commission on Human Rights and former

	Sec. of Justice -> has the background and competence to argue the constitutionality of the withdrawal of the Philippines from the Rome Statute • The Court and Sandiganbayan has allowed Senators and others with non-bailable offenses provisional leave from detention for various reasons: ○ Enrile - plunder; medical attention ○ Bong Revilla - plunder; dental checkup, visit son in the hospital and ailing father, visit family during xmas eve ○ Jinggoy Estrada - plunder; med exams, celebrate 80th birthday of his father, attend graduation of son, and visit ailing MIL ○ GMA - plunder; Christmas furlough, birthday furlough Considering the more justifiable reason of De Lima for a grant of appearance compared to xmas and bdays, the petition should be granted. ACCORDINGLY, I vote to allow petitioner Senator Leila M. De Lima to personally appear and represent herself during the Oral Arguments in these consolidated petitions.
--	---

Liban v. Gordon

DOCTRINE

Under Section 13, Article VI of the 1987 Constitution, the Chairman of the Philippine National Red Cross (PNRC) does not hold an incompatible office or employment in the Government, or in any government-owned or controlled corporation (GOCC), because the PNRC is an autonomous, neutral, voluntary humanitarian organization possessing a *sui generis* character under international humanitarian law and its national charter (R.A. No. 95, as amended) that is neither strictly private nor public, rendering its charter valid in its entirety and allowing an incumbent Senator to serve concurrently as its Chairman without forfeiting his legislative seat.

RECITATION SUMMARY

Petitioners Dante V. Liban, Reynaldo M. Bernardo, and Salvador M. Viari (officers of the Quezon City Red Cross Chapter) filed a petition before the Supreme Court seeking to declare Senator Richard J. Gordon as having automatically forfeited his seat in the Senate under Section 13, Article VI of the 1987 Constitution upon accepting and assuming the position of Chairman of the PNRC Board of Governors. Petitioners relied on *Camporeddo v. NLRC*, which had classified the PNRC as a GOCC because it was created by a special charter. In its initial Decision dated July 15, 2009, the Supreme Court held that Senator Gordon did not forfeit his Senate seat because the PNRC is not a GOCC under the 1987 Administrative Code (as the government neither owns nor controls it), but controversially declared certain provisions of the PNRC Charter (R.A. No. 95) unconstitutional for creating a private corporation by special law. Upon Motions for Reconsideration filed by Senator Gordon and the intervening PNRC, the Supreme Court *En Banc* issued a Resolution on January 18, 2011 modifying its 2009 Decision: holding that (1) the constitutionality of R.A. No. 95 was not the *lis mota* of the case and should not have been passed upon *sua sponte*; (2) the PNRC possesses a unique, *sui generis* legal status derived from international humanitarian law and the Geneva Conventions as a voluntary auxiliary to public authorities, making it neither purely private nor governmental; and (3) reaffirming that Senator Gordon did not forfeit his Senate seat while upholding the constitutionality of the PNRC Charter in its entirety.

MATERIAL FACTS & PROCEDURAL HISTORY

- **Legally Relevant Parties & Relationship:**
 1. *Petitioners*: Dante V. Liban, Reynaldo M. Bernardo, and Salvador M. Viari (officers of the Board of Directors of the Quezon City Red Cross Chapter).
 2. *Respondent*: Senator Richard J. Gordon (incumbent Member of the Senate of the Philippines and elected Chairman of the Board of Governors of the Philippine National Red Cross).
 3. *Intervenor*: Philippine National Red Cross (PNRC).
- **Chronological Material Facts:**
 1. On March 22, 1947, President Manuel A. Roxas signed Republic Act No. 95 (PNRC Charter), creating the PNRC as a voluntary organization designated to assist the Republic of the Philippines in discharging its obligations under the Geneva Conventions.
 2. Senator Richard J. Gordon was elected to the Senate of the Philippines in May 2004. He had served as a Red Cross volunteer for over 40 years and was previously elected PNRC Chairman in 2003 and 2005.
 3. On February 23, 2006, during his incumbency as a Senator, Gordon was elected Chairman of the PNRC Board of Governors during the meeting of its Board of Governors.

4. Under the PNRC Charter (R.A. No. 95, as amended by P.D. Nos. 1264 and 1643), the governing authority is a 30-member Board of Governors: six (6) are appointed by the President of the Philippines, eighteen (18) are elected by chapter delegates, and six (6) are selected by the 24 chosen members. The Board of Governors elects the PNRC Chairman from among its members.

- **Procedural History:**

1. On August 23, 2006, petitioners filed a petition directly before the Supreme Court seeking to declare Senator Gordon as having forfeited his seat in the Senate pursuant to Section 13, Article VI of the 1987 Constitution.
 2. On July 15, 2009, the Supreme Court *En Banc* rendered a Decision (penned by Justice Carpio) holding that Gordon did not forfeit his seat because the PNRC Chairman is not a government officer or GOCC official, but declaring Sections 1–13 of R.A. No. 95 void for unconstitutionally creating a private corporation by special law.
 3. Senator Gordon filed a Motion for Clarification and/or Reconsideration, arguing that the constitutionality of R.A. No. 95 was not raised by the parties and was not the *lis mota* of the case. The PNRC filed a Motion for Intervention and Partial Reconsideration, praying to sustain the charter's constitutionality based on its *sui generis* character under international humanitarian law.
 4. On January 18, 2011, the Supreme Court *En Banc* issued a Resolution (penned by Justice Leonardo-De Castro) granting the motions for reconsideration, deleting the declaration of unconstitutionality, and declaring R.A. No. 95 constitutional in its entirety.
-

● PARTIES' MATERIAL ARGUMENTS

- **Petitioners' Claims:**

1. *Forfeiture of Senate Seat:* Under Section 13, Article VI of the Constitution and *Camporeondo v. NLRC*, the PNRC is a GOCC because it was created by a special charter; thus, Senator Gordon automatically forfeited his Senate seat upon accepting and exercising the office of PNRC Chairman.
2. *Taxpayer Standing:* The petition is a taxpayer's suit questioning the illegal disbursement of public funds, as Gordon draws salaries as a Senator despite having forfeited his seat.

- **Respondent's (Senator Gordon) Claims:**

1. *Lack of Standing:* The petition is an action for *quo warranto* under Section 1(b), Rule 66 of the Rules of Court, which petitioners cannot file in their own names because they do not claim entitlement to the Senate seat.
2. *Non-Governmental Office:* PNRC is not a GOCC or government agency; volunteer service as PNRC Chairman is not a government office or employment under Section 13, Article VI.
3. *Non-Issue of Constitutionality:* The constitutionality of R.A. No. 95 was never raised by the parties and was not the *lis mota* of the case; the Court erred in passing upon it *sua sponte*.

- **Intervenor's (PNRC) Claims:**

1. *Sui Generis Status:* PNRC's structure is *sui generis*—a class of its own created pursuant to the Geneva Conventions as an auxiliary to public authorities; it is neither strictly private nor a GOCC.
 2. *Violation of Due Process:* PNRC was never made a party to the original proceeding when its charter was declared void, violating its right to due process.
-

● ISSUES

1. **Whether petitioners possess legal standing** to institute the action to declare Senator Gordon as having forfeited his seat in the Senate.
 2. **Whether the Office of the PNRC Chairman is a government office or an office in a government-owned or controlled corporation (GOCC)** for purposes of the constitutional prohibition under Section 13, Article VI of the 1987 Constitution.
 3. **Whether the Supreme Court properly declared void certain provisions of the PNRC Charter (R.A. No. 95, as amended)** on the ground that Congress cannot create a private corporation by special law under Section 16, Article XII of the Constitution, or whether the constitutionality of R.A. No. 95 was not the *lis mota* of the case and PNRC possesses a *sui generis* character.
-

 HOLDING AND RATIO DECIDENDI

ISSUE 1: Legal Standing of Petitioners and Nature of the Action

HOLDING: Petitioners **LACK LEGAL STANDING** to institute the action as a *quo warranto* petition under Rule 66. However, due to the fundamental constitutional significance of the issue and the subsequent intervention of the PNRC, the Court passed upon the substantive merits.

RATIO & DETAILED COURT LOGIC:

1. **Action is in the Nature of Quo Warranto:**
 - The petition explicitly alleges that by accepting the position of PNRC Chairman, Senator Gordon automatically forfeited his seat in the Senate, yet continued to exercise the functions and draw the salaries of a Senator.
 - This constitutes an action for usurpation of public office against a public officer who allegedly committed an act constituting a ground for forfeiture of office under Section 1(b), Rule 66 of the Rules of Court.
 2. **Requirement for Private Individuals in Quo Warranto:**
 - Under Section 5, Rule 66 of the Rules of Court, a private individual may commence a *quo warranto* action in his own name only if he claims to be entitled to the public office allegedly usurped or unlawfully held by another.
 - Petitioners do not claim to be entitled to Senator Gordon's Senate seat. Thus, they lack standing to bring a *quo warranto* suit.
 3. **Inapplicability of Taxpayer Standing:**
 - A taxpayer's suit is permissible only when there is an allegation of illegal disbursement of public funds or diversion of public money to an improper purpose.
 - Senator Gordon's collection of legislative salaries derives from his election as a Senator, not from any disbursement of PNRC funds.
 4. **Curing of Procedural Infirmities upon Reconsideration:**
 - In the 2011 Resolution, the Court noted that the intervention of the PNRC—the entity directly affected by the ruling—cured procedural defects.
 - Moreover, where serious constitutional questions and paramount public interests are involved, procedural technicalities may be brushed aside to settle the status of a constitutional officer and a national institution.
-

ISSUE 2: Status of PNRC Chairmanship under Section 13, Article VI of the 1987 Constitution

HOLDING: NO. The Chairman of the PNRC does **NOT** hold a government office or an office in a GOCC for purposes of the prohibition in Section 13, Article VI of the 1987 Constitution; hence, Senator Gordon did **NOT** forfeit his seat in the Senate.

RATIO & DETAILED COURT LOGIC:

- 1. **Text of Section 13, Article VI of the 1987 Constitution:**
 - Section 13, Article VI explicitly commands: *"No Senator or Member of the House of Representatives may hold any other office or employment in the Government, or any subdivision, agency, or instrumentality thereof, including government-owned or controlled corporations or their subsidiaries, during his term without forfeiting his seat"*.
- 2. **Abandonment of the Camporedondo Test and Application of the Administrative Code:**
 - In *Camporedondo v. NLRC*, the Court had applied a simplified test—whether a corporation was created by a special charter or under the general corporation law—to declare PNRC a GOCC.
 - The Court held that *Camporedondo* failed to apply Section 2(13) of the Introductory Provisions of the 1987 Administrative Code, which defines a GOCC as an agency organized as a stock or non-stock corporation, vested with public functions, and *"owned by the Government directly or through its instrumentalities either wholly, or where applicable as in the case of stock corporations, to the extent of at least fifty-one (51) percent of its capital stock"*.
 - The Philippine Government does not own PNRC: PNRC has no capital stock, receives no direct appropriations from Congress, holds no government assets, and is funded primarily by voluntary contributions obtained through independent solicitation campaigns.
- 3. **Absence of Government Control:**
 - Under Section 6 of the PNRC Charter (R.A. No. 95, as amended by P.D. No. 1264), out of the thirty (30) members of the PNRC Board of Governors, only six (6) are appointed by the President of the Philippines. The remaining twenty-four (24) members (an overwhelming 4/5 majority) are elected by chapter delegates and private sector members.
 - The PNRC Chairman is elected by this private sector-controlled Board of Governors, not appointed by the President or any executive department head under Section 16, Article VII of the Constitution.
 - Under Section 17, Article VII, the President exercises control over all executive offices. The President has no power of control over the PNRC Board or Chairman—the President cannot reverse, modify, or revise their decisions. An entity legally outside Presidential control is not part of the Executive branch.
- 4. **Conclusion on Seat Forfeiture:**
 - Because the PNRC is neither owned nor controlled by the government, the office of PNRC Chairman is a private office, not a government office or GOCC position.
 - Consequently, Senator Gordon's acceptance of the PNRC Chairmanship did not violate Section 13, Article VI and did not work a forfeiture of his Senate seat.

ISSUE 3: Validity of the PNRC Charter (R.A. No. 95) & the *Sui Generis* Character of the PNRC

HOLDING: R.A. NO. 95 IS VALID AND CONSTITUTIONAL IN ITS ENTIRETY. The 2009 Decision's declaration voiding Sections 1–13 of R.A. No. 95 is **DELETED AND MODIFIED**. The constitutionality of R.A. No. 95 was not the *lis mota* of the case, and the PNRC possesses a unique, **SUI GENERIS** status under international humanitarian law and domestic law that is neither strictly private nor governmental.

RATIO & DETAILED COURT LOGIC:

- 1. **Absence of Lis Mota and Duty of Judicial Restraint:**
 - Courts will not pass upon a constitutional question unless it is the very *lis mota* (the indispensable cause of the suit) of the case.

- The constitutionality of R.A. No. 95 was never raised by any of the parties in their pleadings.
- Because the petition could be fully disposed of on non-constitutional grounds—namely, that petitioners lacked standing and that the PNRC Chairman is not a government official—the Court erred in its 2009 Decision by reaching out to declare provisions of R.A. No. 95 unconstitutional *sua sponte*. Judicial restraint mandated leaving the charter intact.

2. The *Sui Generis* Character of the PNRC under International Humanitarian Law:

- The PNRC is a National Society of the International Red Cross and Red Crescent Movement, created by legislative fiat (R.A. No. 95, as amended) to assist the Republic of the Philippines in fulfilling its treaty obligations under the 1949 Geneva Conventions.
- Under international humanitarian law and the Statutes of the Movement, National Societies partake of a *sui generis* character: they are protected components regulated directly by international treaties as voluntary aid societies auxiliary to public authorities in the humanitarian field.
- The auxiliary status means the Red Cross is at once a private voluntary institution and a public service organization cooperating with the State. To maintain international recognition and absolute neutrality in armed conflicts, it must remain independent of government control.

3. Reconciliation with Section 16, Article XII of the 1987 Constitution:

- Section 16, Article XII prohibits the creation of private corporations by special charter.
- The clear intent of this constitutional ban was to prevent Congress from granting special economic or commercial privileges to favored private individuals or groups. R.A. No. 95 does not grant private commercial privileges; it creates a humanitarian auxiliary serving the common good pursuant to international commitments.
- Under Section 2, Article II of the Constitution (the Incorporation Clause), the Philippines adopts generally accepted principles of international law as part of the law of the land. The constitutional prohibition against private corporations must be harmonized with the State's international treaty obligations under the Geneva Conventions.
- Requiring the PNRC to register as an ordinary private corporation under the Corporation Code would negate its treaty-recognized status as an auxiliary to public authorities and destroy its international standing.
- Therefore, the PNRC's *sui generis* nature places it in a class of its own—neither purely private nor purely public—rendering R.A. No. 95 completely constitutional.

DECISION & DISPOSITION:

The Supreme Court **GRANTED** respondent Senator Richard J. Gordon's Motion for Clarification and/or Reconsideration and intervenor PNRC's Motion for Partial Reconsideration. The July 15, 2009 Decision was **MODIFIED** by deleting the declaration of unconstitutionality, and Republic Act No. 95, as amended, was declared **VALID AND CONSTITUTIONAL IN ITS ENTIRETY**.

The difference between the **2009 Decision** and the **2011 Resolution** in *Liban v. Gordon* (G.R. No. 175352) lies in how the Supreme Court characterized the **Philippine National Red Cross (PNRC)** and whether its charter (**R.A. No. 95**) was constitutional.

While **both rulings agreed** on the ultimate disposition regarding Senator Richard Gordon's seat—holding that he did **not** forfeit his Senate seat because the PNRC Chairmanship is not a government office or an office in a GOCC—they diverged completely on the constitutionality of the PNRC Charter.

1. The 2009 Decision (July 15, 2009 | Ponente: Carpio, J.)

- **Holding on Senate Seat:** Senator Gordon did **not** forfeit his seat in the Senate. Under the 1987 Administrative Code (E.O. 292), a Government-Owned or Controlled Corporation (GOCC) must be owned or controlled by the State. Because the government does not own

PNRC nor control its Board or Chairman, PNRC is **not a GOCC**. Thus, Section 13, Article VI of the Constitution (prohibiting legislators from holding incompatible government/GOCC offices) does not apply.

- **Holding on the PNRC Charter (R.A. No. 95):** The Court *sua sponte* declared **Sections 1 to 13 of R.A. No. 95 UNCONSTITUTIONAL and VOID**.
- **Ratio & Logic:**
 1. **Dichotomy of Corporations:** The 1987 Constitution recognizes only two types of corporations under Section 16, Article XII: (a) private corporations formed under a general law (Corporation Code); and (b) GOCCs created by special charters.
 2. **Creation by Special Charter:** Since PNRC is not owned or controlled by the government, it is not a GOCC. Therefore, in creating PNRC via a special charter, Congress created a *private corporation* by special law, which directly violates the constitutional ban under Section 16, Article XII.
 3. **Directive:** The Court ruled that if the PNRC wanted to exist as a private corporation, it had to register and incorporate under the Corporation Code with the SEC.

2. The 2011 Resolution (*January 18, 2011 | Ponente: Leonardo-De Castro, J.*)

- **Holding on Senate Seat: Reaffirmed** that Senator Gordon did **not** forfeit his Senate seat.
- **Holding on the PNRC Charter (R.A. No. 95): MODIFIED and DELETED** the declaration of unconstitutionality, upholding **R.A. No. 95 as VALID AND CONSTITUTIONAL IN ITS ENTIRETY**.
- **Ratio & Logic:**
 1. **Sui Generis Character of the PNRC:** The PNRC is neither a GOCC nor a purely private corporation. It possesses a **unique, sui generis legal status** under international humanitarian law and the 1949 Geneva Conventions as an autonomous, neutral, voluntary auxiliary to public authorities in the humanitarian field.
 2. **Harmonization with Section 16, Article XII:** The purpose of prohibiting special charters for private corporations is to prevent Congress from granting special economic/commercial privileges to favored private groups. R.A. No. 95 does not grant commercial privileges; it fulfills the Philippine State's international treaty obligations under the Geneva Conventions (incorporated into domestic law via Art. II, Sec. 2). Requiring PNRC to register under the Corporation Code would destroy its international treaty recognition and neutrality.
 3. **Lack of Lis Mota & Judicial Restraint:** The Court held that it should have exercised **judicial restraint** in 2009. The constitutionality of R.A. No. 95 was **not the lis mota** (the indispensable cause of action) of the case and was never raised by the original parties.
 4. **Due Process Cured:** In 2009, the PNRC was not even a party to the case when its existence was invalidated. The PNRC's subsequent Motion for Intervention cured this due process defect, allowing its *sui generis* nature to be fully recognized.

Comparison Matrix for Recitation Review

- **Status of Senator Gordon: No forfeiture** in *both* 2009 Decision and 2011 Resolution.
- **Status of R.A. No. 95 (PNRC Charter):**
 - *2009 Decision:* **Partially void/unconstitutional** (Sections 1–13).
 - *2011 Resolution:* **Valid and constitutional in its entirety**.
- **Classification of PNRC:**
 - *2009 Decision:* **Private corporation** illegally created by special law.
 - *2011 Resolution:* **Sui generis** entity (neither purely private nor public).
- **Constitutional Test Applied:**
 - *2009 Decision:* Strict application of **Section 16, Article XII** (prohibition on special charters for private entities).

- *2000 Resolution / 2011 Resolution*: Judicial restraint / ***Lis Mota*** paired with the **Incorporation Clause (Art. II, Sec. 2)** for international humanitarian treaty commitments.

LIBAN v. GORDON (2009)

Topic Subtopic	Congress - Disqualifications	GR No. & Ponente	G.R. No. 175352 Carpio, J.
Petitioner/s	Dante V. Liban, Reynaldo M. Bernardo, Salvador M. Viari	Respondent/s	Richard J. Gordon
Doctrine	No Senator or Member of the House of Representatives may hold any other office or employment in the Government, or any subdivision, agency, or instrumentality thereof, including government-owned or controlled corporations or their subsidiaries, during his term without forfeiting his seat. Neither shall he be appointed to any office which may have been created or the emoluments thereof increased during the term for which he was elected.		

FACTS

- Respondent Richard Gordon was elected Senator in May 2004.
- During his incumbency as member of the Senate of the Philippines, he was elected Chairman of the Philippine National Red Cross (PNRC) Board of Governors in Feb. 23, 2006. (note: he was elected in 2003 and re-elected in 2005)
- Petitioners Liban and Viari, who are officers of the Board of Directors of QC Red Cross Chapter, filed for a petition before the SC seeking to declare Senator Gordon as having automatically forfeited his seat in the Senate and the proscription from further acting or representing himself as a Senator and from receiving the salaries, emoluments, compensations, privileges and benefits thereof.
- Petitioners argue that PNRC is a government-owned or controlled corporation (GOCC) and by accepting the chairmanship, Gordon has automatically forfeited his Senate seat as provided in Section 13, Article VI of the Constitution.

ISSUE 1

Side – Procedural	W/N petitioners may legally institute this petition against the respondent.	NO
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
- Not an action for quo warranto / declaratory relief. - Petitioners maintain that it is a taxpayer's suit questioning the unlawful disbursement of funds as Gordon continues to receive salaries and compensation as a Senator when he's no longer entitled to his office. - Petitioners also contend that the Court has jurisdiction since it is a legal/constitutional issue of transcendental importance.		Petitioners have no standing to file the petition - It is essentially an action for <i>quo warranto</i> but they're not entitled to the Senate office. - Section 5, Rule 66 of Rules of Civil Procedure (On taxpayer's suit) No claim that they suffered actual damage/injury as a result of illegal disbursement of funds (On declaratory relief) Court has no jurisdiction—should be the RTC

RULING and RATIO DECIDENDI:

No. Petitioners have no standing to file this petition. A careful reading of the petition reveals that it is an action for quo warranto.

Section 1. Rule 66 of the Rules of Court

Action by Government against individuals. — **An action for the usurpation of a public office, position or franchise may be commenced by a verified petition brought in the name of the Republic of the Philippines against:**

- (b) **A public officer who does or suffers an act which by provision of law, constitutes a ground for the forfeiture of his office;** or

The petition explicitly stated that “by accepting the position of Chairmanship of the Board of Governors of the PNRC on February 23, 2006, respondent has automatically forfeited his seat in the House of Senate and,

therefore, has long ceased to be a Senator.”

By alleging this, the petition they filed is an action for usurpation of public office, which falls under *quo warranto*, specifically under Sec 1 (b), Rule 66 of the Rules of Court.

Under Section 5, Rule 66 of the Rules of Court, an individual may commence a *quo warranto* action if he claims to be entitled to the public office allegedly usurped by another, in which case he can bring the action in his own name.

In the present case, petitioners do not claim to be entitled to the Senate office of respondent. Clearly, petitioners have no standing to file the present petition.

Even if the Court disregards the infirmities of the petition and treats it as a taxpayer's suit, the petition would still fail on the merits

ISSUE 2

Main – Substantive	W/N the Philippine National Red Cross (PNRC) is a government-owned or controlled corporation	NO
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
Camporedondo v. NLRC held that PNRC is a GOCC since it was created under a special charter.		PNRC is not a GOCC, Section 13 Article VI does not apply. Volunteer service to the PNRC is neither an office nor an employment
RULING and RATIO DECIDENDI:		
<u>No. PNRC is a private organization performing public functions. It is a privately owned, privately funded, and privately run charitable organization.</u> Background: - President Roxas signed the PNRC Charter in 1947. The PNRC is a non-profit, donor-funded, voluntary, humanitarian organization whose mission is to bring timely, effective, and compassionate humanitarian assistance for the most vulnerable without consideration of nationality, race, religion, gender, social status, or political affiliation. - Adhering to the Geneva Conventions, the PH established the PNRC as a voluntary organization for the purpose of caring for those affected by war (wounded soldiers) and to promote the health and welfare of the people in peace and in war. - PNRC has Fundamental Principles aligned with the National Society of the Movement, including neutrality and independence. It has to be autonomous, neutral, and independent in relation to the State so that: - volunteers won't be treated as enemies by belligerents when they tend to the wounded during conflicts - they gain the trust of all and carry out its mission PNRC is: - Not owned or controlled by the gov't - Only 6 of the 30 members of the PNRC Board of Governors are appointed by the President of the PH (Sec. 6 of PNRC Charter) - The rest (%) are elected/chosen by private sector members - Does not have gov't assets - Does not receive appropriation from Congress - Financed by donations/solicitation campaigns from private individuals and entities The PNRC is not government-owned but privately owned. The vast majority of the thousands of PNRC members are private individuals, including students. In <u>Camporedondo v. NLRC</u>, the Court ruled that PNRC is a government-owned or controlled corporation because it was created under a special charter. However, it failed to consider the definition in the Section 2 (13) of the		

Introductory Provisions of Administrative Code of 1987. A government-owned or controlled corporation must be owned by the government, and in the case of a stock corporation, at least a majority of its capital stock must be owned by the government. In the case of a non-stock corporation, by analogy at least a majority of the members must be government officials holding such membership by appointment or designation by the government. Under this criterion, and as discussed earlier, the government does not own or control PNRC.

LEGAL BASES

Camporedondo v. NLRC

Section 2 (13) of the Introductory Provisions of Administrative Code of 1987

(13) Government-owned or controlled corporation refers to any agency organized as a stock or non-stock corporation, vested with functions relating to public needs whether governmental or proprietary in nature, and owned by the Government directly or through its instrumentalities either wholly, or where applicable as in the case of stock corporations, to the extent of at least fifty-one (51) percent of its capital stock.

ISSUE 3

Main – Substantive	W/N Section 13, Article VI of the Philippine Constitution applies to the case of respondent who is Chairman of the PNRC and at the same time a Member of the Senate	NO
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
PNRC is a GOCC. Accepting Chairmanship forfeited his seat. Flores v. Drilon - incumbent national legislators lose their elective posts upon their appointment to another government office.		PNRC is not a GOCC, Section 13 Article VI does not apply. Volunteer service to the PNRC is neither an office nor an employment
RULING and RATIO DECIDENDI:		
Section 16, Article VII lists the officials and employees appointed by the President. Since the President does not appoint the PNRC Chairman, the Chairman is not a government employee or officer (not under executive, also certainly not under judiciary or legislature). Under Section 17, the president controls all government offices in the Executive branch. PNRC is neither under the President's control nor part of the Executive branch under Sec. 17. The Chairman of the PNRC: • is elected by the PNRC Board of Governors, which is mostly composed of private sector individuals • decisions/actions of the PNRC Board cannot be modified/reversed by the President since it is not under Sec. 17, Article VII. • It is the PNRC Board that can review, reverse or modify the decisions or actions of the PNRC Chairman. This proves again that the office of the PNRC Chairman is a private office, not a government office The Court held that not being a government official or employee, the PNRC Chairman, as such, does not hold a government office or employment. Thus, his chairmanship does not violate Sec. 13, Article VI of the Constitution.		
LEGAL BASES		

Section 13, Article VI of the 1987 Constitution

No Senator or Member of the House of Representatives may hold any other office or employment in the Government, or any subdivision, agency, or instrumentality thereof, including government-owned or controlled corporations or their subsidiaries, during his term without forfeiting his seat. Neither shall he be appointed to any office which may have been created or the emoluments thereof increased during the term for which he was elected.

Sec 16, ART VII of the 1987 Constitution

The President shall nominate and, with the consent of the Commission on Appointments, appoint the heads of the executive departments, ambassadors, other public ministers and consuls, or officers of the armed forces from the rank of colonel or naval captain, and other officers whose appointments are vested in him in this Constitution. He shall also appoint all other officers of the Government whose appointments are not otherwise provided for by law, and those whom he may be authorized by law to appoint. The Congress may, by law, vest the appointment of other officers lower in rank in the President alone, in the courts, or in the heads of departments, agencies, commissions, or boards.

The President shall have the power to make appointments during the recess of the Congress, whether voluntary or involuntary, but such appointments shall be effective only until after disapproval by the Commission on Appointments or until the next adjournment of the Congress.

Sec. 17

The President shall control of all the executive departments, bureaus and offices. He shall ensure that the laws be faithfully executed.

ISSUE 4

Side – Substantive	W/N the PNRC Charter is violative of the constitutional proscription against the creation of private corporations by special law.	YES
--------------------	---	-----

RULING and RATIO DECIDENDI:

The 1935 Constitution was in force when the PNRC was created by a special charter in 1947. Section 7, Article XIV of the 1935 Constitution, as amended, reads:

SEC. 7. The Congress shall not, except by general law, provide for the formation, organization, or regulation of private corporations, unless such corporations are owned or controlled by the Government or any subdivision or instrumentality thereof.

The subsequent 1973 and 1987 Constitutions contain similar provisions prohibiting Congress from creating private corporations except by general law.

In **Feliciano v. Commission on Audit**: Local Water Districts are GOCCs since they exist by virtue of PD No. 198, which constitutes their special charter. Moreover, their assets and capital are government-owned, their board directors are appointed, and employees are government employees subject to civil service laws.

- Congress cannot enact a law creating a private corporation with a special charter. Such legislation would be unconstitutional. Private corporations may exist only under a general law.
 - The Constitution authorizes Congress to create government-owned or controlled corporations through special charters. Since private corporations cannot have special charters, it follows that Congress can create corporations with special charters only if such corporations are government-owned or controlled.
- The Court held that PNRC, despite being created through a special charter like Local Water Districts, is not a GOCC because it lacks elements of gov't ownership and control. Thus, Congress was in fact creating a private corporation.
 - However, the constitutional prohibition against the creation of private corporations by special charters provides no exception even for non-profit or charitable corporations.
 - Consequently, the PNRC Charter, insofar as it creates the PNRC as a private corporation and grants it corporate powers, is void for being unconstitutional. Thus, Sections 1-3, 4(a), 5-13 of the PNRC Charter, as amended, are void.
 - The other provisions of the PNRC Charter remain valid as they can be considered as a recognition by the State that the unincorporated PNRC is the local National Society of the International Red Cross and Red Crescent Movement, and thus entitled to the benefits, exemptions and privileges set forth in the PNRC Charter

- since the PNRC Charter is void insofar as it creates the PNRC as a private corporation, the PNRC should incorporate under the Corporation Code and register with the Securities and Exchange Commission if it wants to be a private corporation

LEGAL BASES

Sec. 7, Art. XIV of the 1935 Constitution

The Congress shall not, except by general law, provide for the formation, organization, or regulation of private corporations, unless such corporations are owned or controlled by the Government or any subdivision or instrumentality thereof.

Sec. 16, Art. XII of the 1987 Constitution

The Congress shall not, except by general law, provide for the formation, organization, or regulation of private corporations. Government-owned or controlled corporations may be created or established by special charters in the interest of the common good and subject to the test of economic viability.

Feliciano v. Commission on Audit

FINAL DECISION

WHEREFORE, we declare that the office of the Chairman of the Philippine National Red Cross is not a government office or an office in a government-owned or controlled corporation for purposes of the prohibition in Section 13, Article VI of the 1987 Constitution. We also declare that Sections 1, 2, 3, 4 (a), 5, 6, 7, 8, 9, 10, 11, 12, and 13 of the Charter of the Philippine National Red Cross, or Republic Act No. 95, as amended by Presidential Decree Nos. 1264 and 1643, are VOID because they create the PNRC as a private corporation or grant it corporate powers.

SEPARATE OPINION/S

NACHURA, J, *dissenting*

The petition is one for prohibition not quo warranto

- Remedy sought is preventive and restrictive—an injunction against alleged continuing violation of the fundamental law.
- Raised a constitutional issue, the Court has duty to assume jurisdiction

PNRC is a GOCC or Government Instrumentality

- Since private corporations cannot have special charters, it follows that Congress can create corporations with special charters only if such corporations are government-owned or controlled.
- PNRC was incorporated under RA No. 95, a special law, so it is a GOCC
- If the PNRC is "officially designated to assist the Republic in discharging the obligations set forth in the Geneva Conventions" then the PNRC is, perforce, engaged in the performance of the government's public functions.
- In the US, the American Red Cross is a federal instrumentality and is essential to the operation of the federal government. PNRC was also chartered by the PH Gov't to aid it in fulfillment of its obligations under the Geneva Convention.
- PNRC depends primarily on voluntary contributions but receives financial assistance from the National Government, PCSO, and LGUs.
- PNRC also submits an annual report to the President
- Recognized by the government to be an essential component in its operations.

Charter does not violate the constitutional proscription

- Since it is not a private corporation, but a GOCC/gov't instrumentality, it does not violate the constitutional provision on prohibition of forming private corporations unless they are GOCCs.
- Striking down Section 1 (which states its incorporation) but retaining the rest of the provisions would leave the remaining ones without a framework.

Senator Gordon's continuous occupancy is a violation of the Constitution.

- In *Civil Liberties Union v. Executive Secretary*, a position held in ex officio capacity does not violate the Constitution.
 - The term ex officio means "from office; by virtue of office." It refers to an "authority derived from official character merely, not expressly conferred upon the individual character, but rather annexed to the official position."
- Nowhere does it say in the law that a member of the Senate can sit in an ex officio capacity as chairman of the PNRC Board of Governors.
- The chairmanship of the PNRC Board is not held in an ex officio capacity by a member of Congress.
- The language of the Constitution is clear.
- Senator Gordon's dual roles may divide his legislative focus and create conflicts of interest, particularly when Congress considers amendments to the PNRC Charter or conducts inquiries involving the PNRC.

Votes to grant the petition.

LIBAN v. GORDON (2011)

Topic Subtopic	Congress - Disqualifications	GR No. & Ponente	G.R. No. 175352 LEONARDO-DE CASTRO
Petitioner/s	Dante V. Liban, Reynaldo M. Bernardo, Salvador M. Viari	Respondent/s	Richard J. Gordon
Doctrine	No Senator or Member of the House of Representatives may hold any other office or employment in the Government, or any subdivision, agency, or instrumentality thereof, including government-owned or controlled corporations or their subsidiaries, during his term without forfeiting his seat. Neither shall he be appointed to any office which may have been created or the emoluments thereof increased during the term for which he was elected.		

FACTS

Gordon & PNRC filed a motion for partial reconsideration of the 2009 case, arguing that the 2009 decision erred in saying that RA 95 (PNRC Charter) was unconstitutional and void, since it wasn't raised by the parties and the Court went beyond the case in deciding such issue. Further, the petitioners didn't have standing and therefore the pronouncement of the validity of RA 95 should be considered obiter.

PNRC also argued that PNRC was not created by Congress but by President Marcos through PD 1264 which repealed RA 95.

TLDR of previous case:

The Court held that Gordon did not forfeit his seat when he accepted the chairmanship of the PNRC Board of Governors as it is not a government office nor a GOCC. However, the Court declared void the PNRC Charter "insofar as it creates the PNRC as a private corporation" and that the PNRC should incorporate under the Corporation Code and register with the SEC.

ISSUE 1

Main – Procedural	W/N the Court should have declared void certain sections of R.A. No. 95 despite not being the very list mota of the case?	NO
-------------------	---	----

RESPONDENT/S ARGUMENTS:

The validity of R.A. No. 95 was a non-issue; therefore, it was unnecessary for the Court to decide on that question.

Cited Laurel v. Garcia, wherein the Court said that it "will not pass upon a constitutional question although properly presented by the record if the case can be disposed of on some other ground" and goes on to claim that since this Court, in the Decision, disposed of the petition on some other ground, i.e., lack of standing of petitioners, there was no need for it to delve into the validity of R.A. No. 95, and the rest of the judgment should be deemed obiter

RULING and RATIO DECIDENDI:

- The issue of constitutionality of R.A. No. 95 was not raised by the parties, and was not among the issues defined in the body of the Decision; thus, it was not the very lis mota of the case.
- Alvarez v. PICOP Resources, Inc., - This Court will not touch the issue of unconstitutionality unless it is the very lis mota. It is a well-established rule that a court should not pass upon a constitutional question and decide a law to be unconstitutional or invalid, unless such question is raised by the parties
- Under the above, this Court **should not have declared** void certain sections of R.A. No. 95, as amended by Presidential Decree (P.D.) Nos. 1264 and 1643, the PNRC Charter. Instead, the Court should have exercised **judicial restraint** on this matter, especially since there was some other ground upon which the Court could have based its judgment.
- Furthermore, the PNRC, the entity most adversely affected by this declaration of unconstitutionality, which

was not even originally a party to this case, was being compelled, as a consequence of the Decision, to suddenly reorganize and incorporate under the Corporation Code, after more than sixty (60) years of existence in this country

ISSUE 2

Main – Substantive	W/N the character of PNRC is <i>sui generis</i> , that it is neither being exclusively public nor private?	YES
RESPONDENT/S ARGUMENTS:		
PNRC's structure is <i>sui generis</i> ; it is a class of its own. While it is performing humanitarian functions as an auxiliary to the government, it is a neutral entity separate and independent of government control, yet it does not qualify as strictly private in character.		
RULING and RATIO DECIDENDI:		
• Since its enactment, the PNRC has been amended several times. The fact that Congress passed laws recognizing PNRC's existence despite the constitutional ban on creating private corporations by law shows that PNRC is not strictly a private corporation. • A closer look at the nature of the PNRC would show that there is none like it not just in terms of structure, but also in terms of history, public service and official status accorded to it by the State and the international community. There is merit in PNRC's contention that its structure is <i>sui generis</i> • The provisions show the historical background and legal basis of the creation of the PNRC as a voluntary organization impressed with public interest (see PD 1264). • The PNRC is involved with the international humanitarian movement, closely working with the International Committee of the Red Cross. PNRC acts as auxiliaries to the public authorities in humanitarian services. • The International Federation of Red Cross (IFRC) Red Crescent Societies (RCS) position paper states that PNRC is a National Society, which is: • of a <i>sui generis</i> character. ◦ Humanity, Impartiality, Neutrality, Independence, Voluntary Service, Unity and Universality • directly regulated by international humanitarian law, in contrast to other private entities, including NGOs • auxiliaries to public authorities ◦ Private institution and public service organization at the same time, because it cooperates with the authorities (the State) ◦ There is no other organization that has a duty to be its government's humanitarian partner while remaining independent. • The PNRC Charter and its amendatory laws have not been questioned or challenged on constitutional grounds, not even in this case before the Court now • In <u>Feliciano v. Commission on Audit</u>, the Court held that the purpose of the constitutional provision prohibiting Congress from creating private corporations was to prevent the granting of special privileges to certain individuals, families, or groups, which were denied to other groups. ◦ In this case, PNRC does not grant special privileges but strives to serve the common good. • The Geneva Convention has the force and effect of law. ◦ International law is part of the law of the land → Must therefore be reconciled with the Constitution ◦ This Court must recognize the country's adherence to the Geneva Convention and respect the unique status of the PNRC in consonance with its treaty obligations. • By requiring the PNRC to organize under the Corporation Code, it lost sight of PNRC's special status PNRC enjoys a special status as an important ally and auxiliary of the government in the humanitarian field in accordance with its commitments under international law.		

This Court cannot all of a sudden refuse to recognize its existence, especially since the issue of the constitutionality of the PNRC Charter was never raised by the parties. Doing so would only have negative consequences during times of disasters and armed hostilities, as well as cause adverse effects on the PH image in the international community. The sections of the PNRC Charter that were declared void must therefore stay.

LEGAL BASES

RA No. 95, as amended by PD 1264

Section 1. There is hereby created in the Republic of the Philippines a body corporate and politic to be the voluntary organization officially designated to assist the Republic of the Philippines in discharging the obligations set forth in the Geneva Conventions and to perform such other duties as are inherent upon a national Red Cross Society. The national headquarters of this Corporation shall be located in Metropolitan Manila.

Feliciano v. Commission on Audit

FINAL DECISION

WHEREFORE, premises considered, respondent Richard J. Gordon's Motion for Clarification and/or for Reconsideration and movant-intervenor PNRC's Motion for Partial Reconsideration of the Decision in G.R. No. 175352 dated July 15, 2009 are **GRANTED**. The constitutionality of R.A. No. 95, as amended, the **charter of the Philippine National Red Cross, was not raised by the parties as an issue** and should not have been passed upon by this Court. The **structure of the PNRC is sui generis, being neither strictly private nor public in nature. R.A. No. 95 remains valid and constitutional in its entirety**. The dispositive portion of the Decision should therefore be MODIFIED by deleting the second sentence, to now read as follows:

WHEREFORE, we declare that the office of the Chairman of the Philippine National Red Cross is not a government office or an office in a government-owned or controlled corporation for purposes of the prohibition in Section 13, Article VI of the 1987 Constitution.

SEPARATE OPINION/S

CARPIO, J, *dissenting*

Votes to deny the petition

The **issue of constitutionality**, despite not being brought up, was inevitably thrust upon the Court upon its finding that the PNRC is a private corporation.

- Imperative to address the issue.
- Just because it was never questioned does not mean it could no longer be declared unconstitutional

On PNRC's Charter:

- Respondents argue that PD 1264 was issued by President Marcos in exercise of his legislative power during martial law so constitutional provision does not apply.
- President Marcos could not issue decrees contrary to the provisions of the Constitution.
 - Legislative power cannot be exercised in violation of the Constitution from which it draws its existence.

On being sui generis:

- All private charitable organizations are doing public service or activities that also constitute governmental functions
 - Can't claim that it is sui generis just because it is a private organization performing public functions
- Cannot be exempted from the constitutional provision just because it claims it's sui generis

On National Societies:

- | | |
|--|---|
| | <ul style="list-style-type: none">• The conditions for recognition of National Societies do not require that the State itself create the National Society through a special charter.• What's important is that they're recognized by the gov't as auxiliary• Subject to the laws of their respective countries. |
|--|---|

The Court has no power to make PNRC an exception to Section 16, Article XII of the 1987 Constitution.

Firdausi Ismail Abbas v. Senate Electoral Tribunal

● DOCTRINE

Under Section 17, Article VI of the 1987 Constitution, the Senate Electoral Tribunal (SET) is a composite constitutional body whose mandatory composition of three Supreme Court Justices and six Senators requires the co-equal participation of both its judicial and legislative components; hence, a mass compulsory disqualification of all Senator-Members cannot be ordered in a senatorial election contest, nor can the SET's internal rules be amended to allow the three Justice-Members alone to adjudicate the contest, as doing so would strip the Tribunal of its legislative component and prevent it from discharging its exclusive constitutional duty.

● RECITATION SUMMARY

Following the May 11, 1987 congressional elections where 22 candidates of the LABAN coalition were proclaimed senators-elect, 23 losing opposition candidates (led by Firdausi Ismail Abbas and Juan Ponce Enrile) filed an election contest (SET Case No. 002-87) before the Senate Electoral Tribunal (SET) challenging the election of all 22 LABAN senators-elect. Petitioners subsequently filed a Motion for Disqualification or Inhibition seeking the mass disqualification of all six Senator-Members sitting on the SET on the ground that they were interested parties/respondents in the contest. To operationalize this, petitioners proposed amending Section 24 of the SET Rules of Procedure to allow a reduced quorum of three members (consisting exclusively of the three Supreme Court Justice-Members) to hear and decide the contest. The SET issued Resolutions denying the motion for disqualification and motion for reconsideration. Petitioners filed a petition for *certiorari* before the Supreme Court. The Supreme Court dismissed the petition, ruling that: (1) Section 17, Article VI of the 1987 Constitution mandates that senatorial election contests be decided by a composite panel where both SC Justices and Senator-peers share authority in a 2:1 ratio; (2) while individual Senators may voluntarily inhibit themselves as conscience dictates, the SET cannot legally function as a constitutional tribunal absent its entire legislative component; and (3) no amendment of the SET's internal rules can validly confer exclusive adjudicative power upon the three Justice-Members alone, as the SET cannot be prevented from fulfilling its sole, non-delegable constitutional duty.

● MATERIAL FACTS & PROCEDURAL HISTORY

- **Legally Relevant Parties & Relationship:**
 1. *Petitioners:* Firdausi Ismail Abbas, Homobono A. Adaza, Alejandro D. Almendras, Abul Kahyr D. Alonto, Juan Ponce Enrile, Rene G. Espina, Wilson P. Gamboa, Roilo S. Golez, Romeo G. Jalosjos, Eva R. Estrada-Kalaw, Wenceslao R. Lagumbay, Vicente P. Magsaysay, Jeremias U. Montemayor, Blas F. Ople, Rafael P. Palmares, Zosimo Jesus M.

Paredes, Jr., Vicente G. Puyat, Edith N. Rabat, Isidro S. Rodriguez, Francisco S. Tatad, Lorenzo G. Teves, Arturo M. Tolentino, and Fernando R. Veloso (23 defeated opposition candidates in the May 11, 1987 senatorial elections).

2. *Respondent*: The Senate Electoral Tribunal (SET), then composed of three (3) Supreme Court Justices (Senior Associate Justice Pedro L. Yap as Chairman, and Associate Justices Andres R. Narvasa and Hugo E. Gutierrez, Jr.) and six (6) Senators (Joseph E. Estrada, Neptali A. Gonzales, Teofisto T. Guingona, Jose Lina, Jr., Mamintal A.J. Tamano, and Victor S. Ziga).

- **Chronological Material Facts:**

1. On May 11, 1987, national congressional elections were held under the 1987 Constitution, wherein the Commission on Elections proclaimed 22 candidates of the LABAN coalition as senators-elect.
2. On October 9, 1987, petitioners filed an election contest before the SET (docketed as SET Case No. 002-87) against the 22 proclaimed LABAN senators-elect.
3. On November 17, 1987, petitioners (including Senator Juan Ponce Enrile, who had replaced Senator Estrada on the SET after Estrada joined the Liberal Party) filed a Motion for Disqualification or Inhibition seeking to disqualify all six (6) Senator-Members of the SET from hearing and resolving SET Case No. 002-87 because all of them were interested parties/respondents in the contest.
4. To address the resulting lack of quorum, petitioners proposed an amendment to Section 24 of the SET Rules of Procedure: adding a proviso that where more than four (4) members are disqualified, the remaining members shall constitute a quorum if not less than three (3) including one (1) Justice, and may adopt resolutions by majority vote without abstention (effectively leaving the adjudication of the election contest exclusively to the three SC Justice-Members).
5. On February 12, 1988, the SET issued a Resolution denying petitioners' Motion for Disqualification or Inhibition.
6. On May 27, 1988, the SET issued a Resolution denying petitioners' Motion for Reconsideration.

- **Procedural History:**

1. Petitioners filed a Special Civil Action for *Certiorari* before the Supreme Court En Banc (G.R. No. 83767) to nullify and set aside the February 12, 1988 and May 27, 1988 Resolutions of the SET.

● PARTIES' MATERIAL ARGUMENTS

- **Petitioners' Claims:**

1. *Due Process and Fair Play*: Public policy, norms of fair play, and basic due process imperatively require the mass disqualification or inhibition of all six Senator-Members because they are directly interested parties and respondents in the election contest.

2. *Proposed Rule Amendment*: The doctrine of necessity does not preclude a practical and constitutional solution—specifically, amending Section 24 of the SET Rules of Procedure to allow a reduced quorum of three members (the three SC Justice-Members) to hear and decide the contest.

- **Respondent's (SET) Claims:**

1. *Constitutional Composition and Intent*: Section 17, Article VI of the 1987 Constitution mandates that senatorial election contests be resolved by a composite body where Senators' legislative peers are represented alongside SC Justices.
2. *Inability to Function Without Legislative Component*: Mass disqualification of all Senator-Members would leave the SET unable to function as a constitutional tribunal, as it cannot be shorn of its legislative component or abandon a duty that no other court or body can perform.

● ISSUES

1. **Whether the six Senator-Members of the Senate Electoral Tribunal can be subjected to compulsory mass disqualification or forced inhibition** in an election contest where they or their coalition colleagues are respondents.
2. **Whether the SET Rules of Procedure can be validly amended** to permit a senatorial election contest to be heard and decided exclusively by the three (3) Supreme Court Justice-Members of the Tribunal.

♥ HOLDING AND RATIO DECIDENDI

ISSUE 1 & 2: Validity of Mass Disqualification of Senator-Members and Proposed Rule Amendment

HOLDING: NO. The six Senator-Members of the SET **CANNOT** be subjected to compulsory mass disqualification, and the SET Rules **CANNOT** be amended to confer exclusive adjudicative authority upon the three Justice-Members alone. The SET acted well within law and principle in denying petitioners' motion. The petition for *certiorari* is **DISMISSED**.

RATIO & DETAILED COURT LOGIC:

1. **Textual Command and Structural Architecture of Section 17, Article VI of the 1987 Constitution:**
 - Section 17, Article VI explicitly provides: "*The Senate and the House of Representatives shall each have an Electoral Tribunal which shall be the sole judge of all contests relating to the election, returns, and qualifications of their respective Members. Each Electoral Tribunal shall be composed of nine Members, three of whom shall be Justices of the Supreme Court to be designated by the Chief Justice, and the remaining six shall be Members of the Senate or the House of Representatives, as the case may be...*"

- The Constitution deliberately created a composite tribunal staffed by both "judicial" (3 Justices) and "legislative" (6 Senators) components to commonly share the duty and authority of deciding legislative election contests.
- The 2:1 statutory ratio of Senators to Justices (6 to 3) is an unmistakable constitutional indication that the legislative component cannot be totally excluded from participating in the resolution of senatorial election contests without doing violence to the spirit and intent of the Constitution.

2. **Overriding Constitutional Duty of the SET:**

- Where an election contest involves a large number of proclaimed senators such that substituting Senator-Members with other Senate colleagues would invite the exact same disqualification objections, a mass disqualification would leave the SET with no alternative but to abandon its constitutional duty.
- The SET is the **sole judge** of senatorial election contests. No other court, agency, or body in the government possesses the jurisdiction or power to perform this function.
- The overriding consideration is that the Tribunal must not be prevented from discharging a duty that it alone has the power to perform under the fundamental law, which is of the highest public interest.

3. **Framers' Intent Regarding Multi-Member/General Contests:**

- The framers of the Constitution were fully aware of the possibility of election contests involving all or a vast majority of the 24 senators-elect (which would inevitably recur in elections where all 24 seats are at stake).
- Despite this foresight, the framers provided no constitutional scheme or mechanism for substituting Senator-Members in cases of mass disqualification.
- Consequently, litigants in such broad contests must place their trust in the fairness, conscience, and sense of justice of the Members of the Tribunal, both Justices and Senators.

4. **Distinction Between Voluntary Inhibition and Compulsory Mass Disqualification:**

- The Court clarified that individual Senator-Members may voluntarily inhibit themselves from sitting in judgment if their conscience dictates that personal interest or bias prevents an objective judgment.
- However, the SET **cannot legally function as such absent its entire membership of Senators.**
- No amendment of the SET's internal rules can validly confer upon the three Justice-Members alone the power of valid adjudication, as internal procedural rules cannot override or alter the structural composition mandated by Section 17, Article VI of the Constitution.

DECISION & DISPOSITION:

The Supreme Court **DISMISSED** the petition for *certiorari* for lack of merit, upholding the February 12, 1988 and May 27, 1988 Resolutions of the Senate Electoral Tribunal.

ABBAS v. SET (1988)

Topic Subtopic	Branches of Government - Congress Electoral Tribunals	GR No. & Ponente	GR No. 83767 Gancayco, J
Petitioner/s	Firdausi Smail Abbas et al.	Respondent/s	Senate Electoral Tribunal;
Doctrine	The SET's constitutionally prescribed composition cannot be altered/bypassed by its procedural rules; both its judicial and legislative components must participate in deciding Senate election contests.		

FACTS

- **Oct. 9, 1987 - SET Case No. 002-87:** Petitioners filed an **election contest before the SET** against 22 candidates of the LABAN coalition who were proclaimed Senators-elect in the 1987 elections by the COMELEC. The SET consisted of **3 Supreme Court Justices + 6 Senators**.
- Nov 17, 1987 - Petitioners filed with the respondent Tribunal a Motion for Disqualification or Inhibition of the **Senators-Members** of the SET from the hearing and resolution of SET Case No. 002-87 on the ground that all of them are interested parties to said case, as respondents therein
- **SET Rules Section 24** - requiring the concurrence of 5 members for the adoption of resolutions of whatever nature. Petitioners proposed amending the aforesaid provision so that if more than 4 members were disqualified, *the remaining 3 members, including 1 Justice, could constitute a quorum and decide the case*. In this situation, it would leave the **3 Justices alone** to resolve the Senate election contest.
- The SET denied the motion for disqualification. Petitioners then filed **certiorari**, claiming grave abuse of discretion.

ISSUE 1

Main – Substantive	W/N SET Rule 24 could be amended to preclude member-senators who have existing electoral disputes against them from adjudicating in the Senate Electoral Tribunal. Specifically, for the amendment, can SET Rule 24 be amended so that if more than 4 members were disqualified, the remaining 3 SC Justices could constitute a quorum.	NO
-----------------------	--	----

PETITIONER/S ARGUMENTS:

The 6 Senator-members should be disqualified/inhibited. They argued that the Senator-members were **interested parties** because they were themselves respondents in the election contest. Their participation therefore raised concerns of **fair play, due process, and public policy**

Petitioners argued that the mass disqualification did not have to paralyze the SET. They proposed amending **Section 24 of the SET Rules** so that when more than four members were disqualified, the remaining members could constitute a quorum if there were at least three, including one Justice. 3 Justices would make the quorum

RULING and RATIO DECIDENDI:

- **Art.. VI, Sec. 17 of the constitution** expressly creates the SET as a **9 member body: 3 SC Justices + 6 Senators**. The Constitution clearly intended that **both the judicial and legislative members / components** commonly share the duty and authority of deciding all contests relating to the election, returns and qualifications of Senators.
- Under this provision, it is necessary that the Senators are also represented in the Tribunal in all contests.
- The **2:1 ratio of Senators to Justices** further indicates that the legislative component in the Tribunal cannot be completely excluded from participation in the resolution of senatorial election contests, without doing violence to the spirit and intent of the Constitution. Therefore, a rule allowing the SET to function with only the 3

Justices would **be against the constitutionally mandated composition** of the Tribunal.

- The proposed mass disqualification, if sanctioned and ordered, would leave the Tribunal no alternative but to abandon a duty that no other court or body can perform. It cannot lawfully discharge its function if it does not have participation from the Senators.
- The framers of the Constitution could not have been unaware of the possibility of an election contest that would involve all 24 Senators—elect, six of whom would inevitably have to sit in judgment thereon. → Constitution has no scheme or mode for such unusual situation → Litigants must just trust the Members of the Tribunal
- The Court clarified that **individual Senator members may voluntarily inhibit / disqualify themselves when** they believe their personal interests / biases would prevent impartial judgment. What the Constitution does NOT allow is having the SET function **without any Senator-members at all** and that no amendment of its Rules can confer on the three Justices Members alone the power of valid adjudication of a senatorial election contest

FINAL DECISION

The charge that the respondent Tribunal gravely abused its discretion in its disposition of the incidents referred to must therefore fail. In the circumstances, it acted well within law and principle in dismissing the petition for disqualification or inhibition filed by herein petitioners. The instant petition for certiorari is DISMISSED for lack of merit.

Bondoc v. Pineda

DOCTRINE

Members of the House of Representatives Electoral Tribunal (HRET) perform purely judicial functions and enjoy security of tenure during their legislative term; hence, the House of Representatives cannot validly remove or rescind the election of a legislator-member from the HRET for "party disloyalty" (such as casting a conscience vote against his political party's candidate), as doing so violates the member's security of tenure, impairs the independence of the tribunal, and usurps the HRET's constitutional mandate as the "sole judge" of congressional election contests under Section 17, Article VI of the 1987 Constitution.

RECITATION SUMMARY

In the May 11, 1987 elections for Representative of the Fourth District of Pampanga, respondent Marciano M. Pineda (LDP) was proclaimed winner over petitioner Dr. Emigdio A. Bondoc (NP) by 3,300 votes. Bondoc filed an election protest before the HRET (HRET Case No. 25). Following ballot revision, recount, and re-appreciation, Bondoc emerged as the winner by a margin of 107 votes. Respondent Representative Juanito G. Camasura, Jr. (LDP) voted alongside the three Supreme Court Justices and Representative Antonio H. Cerilles (NP) to form a 5–4 majority in favor of proclaiming Bondoc. On March 4, 1991, Camasura revealed his vote to LDP Secretary-General Jose S. Cojuangco, Jr., explaining he voted "consistent with truth and justice." In response, the LDP expelled Camasura for party disloyalty. On March 13, 1991—the eve of the scheduled promulgation of the decision—the House of Representatives voted in plenary session to withdraw Camasura's nomination and rescind his election to the HRET. Consequently, the HRET issued Resolution No. 91-0018 cancelling the promulgation because, without Camasura's vote, the decision lacked the required 5-vote majority under HRET rules. Bondoc filed a petition for *certiorari*, prohibition, and *mandamus* before the Supreme Court. The Supreme Court granted the petition, declaring the House Resolution null and void *ab initio*, ordering Camasura reinstated to the HRET, setting aside HRET Resolution No. 91-0018, and declaring the decision in HRET Case No. 25 duly promulgated in favor of Bondoc.

MATERIAL FACTS & PROCEDURAL HISTORY

- **Legally Relevant Parties & Relationship:**
 1. *Petitioner:* Dr. Emigdio A. Bondoc (candidate of the Nacionalista Party [NP] for Representative, Fourth District of Pampanga, and protestant in HRET Case No. 25).
 2. *Respondents:* Representative Marciano M. Pineda (proclaimed winner, candidate of Laban ng Demokratikong Pilipino [LDP], and protestee); Representative Magdaleno M. Palacol (LDP congressman eyed to replace Camasura); Representative Juanito G. Camasura, Jr. (LDP congressman and member of the HRET); and the House of Representatives Electoral Tribunal (HRET).
- **Chronological Material Facts:**
 1. On May 11, 1987, congressional elections were held. In the Fourth District of Pampanga, Pineda (LDP) received 31,700 votes while Bondoc (NP) received 28,400 votes (a margin of 3,300 votes). On May 19, 1987, Pineda was proclaimed winner.
 2. Bondoc filed an election protest before the HRET (docketed as HRET Case No. 25).
 3. The HRET was composed of nine members: three Supreme Court Justices (Mme. Justice Ameurfina Melencio-Herrera [Chairman], Justice Isagani A. Cruz, and Justice Florentino P. Feliciano) and six Representatives (five from LDP: Honorato Y. Aquino, David A. Ponce De Leon, Simeon E. Garcia, Jr., Juanito G. Camasura, Jr., and Jose E. Calingasan; and one from GAD/NP: Antonio H. Cerilles).
 4. By October 1990, after revision and presentation of evidence, a decision was reached in HRET Case No. 25 where Bondoc won over Pineda by 23 votes. LDP members in the Tribunal requested a re-appreciation and recount of ballots in certain precincts, delaying finalization by four months.
 5. Re-examination and re-appreciation increased Bondoc's lead over Pineda to 107 votes. Representative Camasura (LDP) voted with the three SC Justices and Representative Cerilles (NP) to proclaim Bondoc the winner (a 5–4 majority).
 6. On March 4, 1991, Representative Camasura revealed to LDP Secretary-General Representative Jose S. Cojuangco, Jr. the final tally and his vote in favor of Bondoc, stating he voted "consistent with truth and justice and self-respect" and pursuant to a gentlemen's agreement to abide by the results of ballot appreciation.
 7. On March 5, 1991, the HRET issued a Notice of Promulgation of Decision in HRET Case No. 25 scheduled for March 14, 1991 at 2:30 PM.
 8. On March 12, 1991, the LDP Executive Committee confirmed an earlier Davao del Sur LDP resolution expelling Camasura from the party for allegedly assisting in organizing Eduardo "Danding" Cojuangco's Partido Pilipino. LDP Secretary-General Cojuangco notified Speaker Ramon V. Mitra of Camasura's expulsion.

- 9. On March 13, 1991 (the eve of promulgation), the House of Representatives, during its plenary session, voted to withdraw the nomination and rescind the election of Representative Camasura to the HRET on the basis of the LDP communication.
 - 10. On March 14, 1991 at 9:45 AM, HRET Chairman Justice Melencio-Herrera received formal written notice from the House of Camasura's removal. The three SC Justices promptly wrote to Chief Justice Marcelo B. Fernan asking to be relieved from their assignments in the HRET due to the improper intrusion of political factors.
 - 11. On the afternoon of March 14, 1991, the HRET issued Resolution No. 91-0018 cancelling the scheduled promulgation of the decision in HRET Case No. 25 because, without Camasura's vote, the decision lacked the five concurring votes required under Section 24 of the HRET Rules.
 - 12. On March 19, 1991, the Supreme Court En Banc issued a resolution declining the request of Justices Herrera, Cruz, and Feliciano to be relieved, directing them to resume their duties, and noting that HRET members enjoy security of tenure co-extensive with their legislative term.
- **Procedural History:**
 - 1. On March 21, 1991, petitioner Bondoc filed a petition for *certiorari*, prohibition, and *mandamus* before the Supreme Court (G.R. No. 97710).
 - 2. The Supreme Court required respondents to comment and issued a temporary order enjoining the HRET from reorganizing or allowing Representative Palacol (or any replacement) to sit in place of Representative Camasura.
-

● **PARTIES' MATERIAL ARGUMENTS**

- **Petitioner's (Dr. Emigdio A. Bondoc) Claims:**
 - 1. The House action withdrawing Representative Camasura's membership in the HRET is an unconstitutional interference with the HRET's exclusive jurisdiction as sole judge of congressional election contests and violates Camasura's security of tenure.
 - 2. The HRET's cancellation of the promulgation deprived petitioner of his constitutional right to a speedy disposition of his case and the fruits of a judgment validly rendered in his favor.
 - **Respondents' (Marciano M. Pineda / Magdalena M. Palacol / OSG) Claims:**
 - 1. *Representative Pineda*: The House of Representatives possesses sole authority to nominate and elect its members to the HRET upon party recommendation, and thus retains inherent power to remove and replace them whenever party representation is altered due to expulsion or disaffiliation; HRET members do not enjoy security of tenure co-extensive with their legislative term, and Camasura's expulsion from the LDP is a purely political question beyond judicial review.
 - 2. *Representative Palacol*: Petitioner has no cause of action against him as he was not yet nominated, and the House of Representatives (which executed the removal) was an indispensable party not impleaded.
 - 3. *Solicitor General (for HRET)*: The petition states no cause of action against HRET because HRET did not execute the removal, but merely acknowledged the House plenary action.
-

● **ISSUES**

- 1. **Whether the Supreme Court has jurisdiction** to review and annul the action of the House of Representatives in withdrawing the nomination and rescinding the election of a legislator-member of the HRET, or whether the matter is a non-justiciable political question.
 - 2. **Whether the House of Representatives has the constitutional power** to remove or withdraw the nomination of a legislator-member of the HRET on the ground of "party disloyalty" for casting a conscience vote in a pending election contest.
 - 3. **Whether members of the House of Representatives Electoral Tribunal enjoy security of tenure** during their legislative term.
-

♥ **HOLDING AND RATIO DECIDENDI**

ISSUE 1: Jurisdiction of the Supreme Court and Non-Applicability of the Political Question Doctrine

HOLDING: YES. The Supreme Court has jurisdiction under Article VIII, Section 1 of the 1987 Constitution to review and annul the act of the House of Representatives. The issue is **JUSTICIABLE** and not a political question.

RATIO & DETAILED COURT LOGIC:

1. **Expanded Judicial Power under Article VIII, Section 1:**

- Section 1, Article VIII of the 1987 Constitution explicitly defines judicial power as including the duty of the courts of justice *"to settle actual controversies involving rights which are legally demandable and enforceable, and to determine whether or not there has been a grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the Government."*
- When a petitioner invokes judicial protection against an alleged unconstitutional assertion of power by a legislative chamber, the Court cannot be deaf to the plea or hide behind the political question doctrine.

2. **Legality vs. Policy/Wisdom (*Tañada v. Cuenco* and *Daza v. Singson*):**

- The Court reiterated that a "political question" refers to policy choices to be decided by the people in their sovereign capacity or issues where full discretionary authority is delegated to the legislature or executive. It concerns wisdom, not legality.
- Where the controversy involves determining whether an act of the House of Representatives violates mandatory constitutional limitations—specifically Article VI, Section 17 creating the HRET as an independent, sole judge of election contests—the matter involves the **legality, not the wisdom**, of the legislative act.
- Therefore, passing upon the validity of the House resolution withdrawing Camasura's HRET membership falls squarely within the legitimate province of the Judiciary.

ISSUE 2: Unconstitutionality of the House Resolution Removing an HRET Member for Party Disloyalty and Impairment of HRET Independence

HOLDING: NO. The House of Representatives has **NO CONSTITUTIONAL POWER** to remove or rescind the election of a member of the HRET on the ground of "party disloyalty" or for casting a conscience vote. The House Resolution of March 13, 1991 is **NULL AND VOID AB INITIO**.

RATIO & DETAILED COURT LOGIC:

1. **Constitutional Architecture and Independence of the HRET:**

- Section 17, Article VI of the 1987 Constitution provides: *"The Senate and the House of Representatives shall each have an Electoral Tribunal which shall be the sole judge of all contests relating to the election, returns, and qualifications of their respective Members."*
- Tracing the constitutional history (*Angara v. Electoral Commission*; *Sanidad v. Vera*), the framers explicitly intended to create an independent, composite tribunal removed from the legislative chambers to adjudicate election contests with complete judicial detachment.
- Although six members of the HRET are legislators chosen on the basis of proportional representation of political parties, upon taking their seats in the HRET they do **not** act as agents or representatives of their political parties. They sit as **impartial judges** bound exclusively by law, evidence, and justice.

2. **Disloyalty to Party is NOT a Ground for Removal:**

- As judges, HRET members must discharge their duties with complete detachment and independence—even independence from the political party to which they belong.
- "Disloyalty to party" or "breach of party discipline" for casting a "conscience vote" based on the objective appreciation of ballots does not constitute a valid ground for expulsion from the HRET.
- In expelling Representative Camasura from the HRET because he voted in favor of Bondoc (the Nacionalista candidate) based on the ballot recount results, the House of Representatives committed a grave abuse of discretion, an injustice, and a direct violation of the Constitution.

3. **Destruction of Judicial Integrity and the "Sole Judge" Mandate:**

- Sanctioning the House's action would reduce the HRET to a mere puppet and tool for the aggrandizement of the dominant political party (LDP).
- If the party in power could shuffle, recall, or replace its legislator-members in the HRET whenever a vote goes against its party candidate, a minority party protestant would have no hope of justice, and the judicial proceedings of the HRET would become a farce.
- The stratagem of the LDP and the House was explicitly designed to nullify Camasura's vote, prevent the promulgation of a decision favorable to Bondoc, and substitute a replacement member to alter the final judgment. This directly impaired the constitutional prerogative of the HRET as the **sole judge** of congressional election contests.

ISSUE 3: Security of Tenure of HRET Members

HOLDING: YES. Members of the House of Representatives Electoral Tribunal enjoy **SECURITY OF TENURE** co-extensive with their legislative term.

RATIO & DETAILED COURT LOGIC:

- 1. **Security of Tenure Derived from Judicial Function:**
 - o Because the HRET is a constitutional body performing purely judicial functions as the "sole judge" of election contests, its members are entitled to security of tenure, just as members of the Judiciary enjoy security of tenure under Section 2, Article VIII of the Constitution.
 - o To preserve tribunal independence, a member's term in the HRET is co-extensive with his congressional term and cannot be terminated at the whim or pleasure of the legislative chamber or political party that nominated him.
- 2. **Exclusive Valid Causes for Termination of HRET Membership:**
 - o Membership in the HRET may be legally terminated **ONLY for valid legal cause**, which is limited to:
 - 1. Expiration of the member's congressional term of office;
 - 2. Death;
 - 3. Permanent disability;
 - 4. Resignation from the political party he represents in the tribunal;
 - 5. Formal affiliation with another political party; OR
 - 6. Removal for other valid legal cause.
- 3. **Application to Representative Camasura:**
 - o Expulsion from a political party for "party disloyalty" short of proof that the legislator has formally affiliated with another registered political party does not constitute a valid legal cause for removal from the HRET.
 - o Because the record failed to show that Representative Camasura had formally affiliated with another registered political party, his expulsion from the LDP and his removal from the HRET by the House violated his constitutional right to security of tenure.
- 4. **Refutation of Respondent's Judicial Substitution Argument:**
 - o Respondent Pineda argued that HRET members lack security of tenure because Supreme Court Justices in the HRET had previously been replaced (e.g., Chief Justice Fernan replaced by Justice Feliciano, and Justice Feliciano temporarily replaced by Justice Gancayco).
 - o The Court rejected this comparison: changes in the judicial component occurred voluntarily, for valid personal/administrative reasons (elevation to Chief Justice, leave of absence for lectures), without coercion or political design to derail a pending case. In contrast, Camasura was ousted forcibly to manipulate a pending judicial outcome.

 **DECISION & DISPOSITION:**
The Supreme Court **GRANTED** the petition for *certiorari*, prohibition, and *mandamus*:

- 1. The Decision/Resolution of the House of Representatives dated March 13, 1991 withdrawing the nomination and rescinding the election of Representative Juanito G. Camasura, Jr. as a member of the House of Representatives Electoral Tribunal is declared **NULL AND VOID AB INITIO** for being violative of the Constitution.
- 2. Representative Juanito G. Camasura, Jr. is ordered **REINSTATED** to his position as a member of the House of Representatives Electoral Tribunal.
- 3. HRET Resolution No. 91-0018 dated March 14, 1991, cancelling the promulgation of the decision in HRET Case No. 25 (*Dr. Emigdio Bondoc v. Marciano A. Pineda*), is **SET ASIDE**.
- 4. Considering the unconscionable delay incurred, the Decision of the House of Representatives Electoral Tribunal in HRET Case No. 25 (*Dr. Emigdio Bondoc v. Marciano A. Pineda*) declaring petitioner Dr. Emigdio A. Bondoc winner of the election is declared **DULY PROMULGATED**, effective immediately upon service of copies thereof on the parties. Costs against respondent Marciano A. Pineda.

Bondoc v. Pineda (1991)

Topic Subtopic	Branches of the Gov't Electoral Tribunals	GR No. & Ponente	GR No. 97710 Grino-Aquino, J.
Petitioner/s	DR. EMIGDIO A. BONDOC	Respondent/s	REPRESENTATIVES MARCIANO M. PINEDA, MAGDALENO M. PALACOL, COL. JUANITO G. CAMASURA, JR., or any other representative who may be appointed vice representative Juanito G. Camasura, Jr., and THE HOUSE OF REPRESENTATIVES ELECTORAL TRIBUNAL,
Doctrine	• Grounds for valid termination of membership in the Tribunal: ◦ Expiration of term of office ◦ Death or permanent disability ◦ Resignation from political party ◦ Formal affiliation with another party ◦ Removal for other valid cause • Disloyalty to party and breach of party discipline are not valid grounds for the expulsion of a member of the tribunal.		

FACTS

- In the 1987 Elections, Pineda of the Laban ng Demokratikong Pilipino (LDP) and Bondoc of the Nacionalista Party (NP) were rival candidates for the Rep. of the 4th district of Pampanga. **Pineda** won with 31,700 votes.
- Bondoc filed a protest in the HRET (submitted for decision in 1989)
 - HRET: 9 members → 3 SC justices, 6 from HoR based on proportional representation from political parties (5 from LDP, 1 from NP)
 - October 1990 HRET Decision → Bondoc won over Pineda by 23 votes. Naturally, LDP members of the HRET insisted on recounting votes, which delayed the decision for 4 months → Bondoc's lead increased to 107 votes
- Camasura, an HRET member from LDP, revealed that he voted for Bondoc "consistent with trust and justice and self respect" (despite being an LDP member). He voted alongside the SC Justices and Cong. Cerilles (NP)
 - LDP got pissed → plotted to neutralize the pro-Bondoc majority in the HRET
- March 13, 1991 (night before promulgation of Bondoc decision): Camasura and Bautista were expelled from LDP for having allegedly helped another political party (Partido Pilipino)
- On the morning of Mar. 14, 1991, HRET received a letter saying that the HoR decided to withdraw the nomination and to rescind the election of Camasura to HRET.
 - SC Justices in the HRET recognized the move for what it was (basically removing Camasura Jr. to undermine the HRET decision). They informed the Chief Justice. Among the suggestions was that upon designation to membership in the Electoral Tribunal, those so designated should divest themselves of affiliation with their respective political parties, to insure their independence and objectivity as they sit in Tribunal deliberations
- The Tribunal cancelled the promulgation of the Bondoc case since without Camasura, they would lack the concurrence of 5 members → SC Justices asked to be relieved from membership in the Tribunal + 5 other mems had manifested their intention to resign bcs of what LDP did
- Court noted/resolved:
 - Decline the request of the SC Justices Herrera, Cruz, and Feliciano to be relieved from HRET membership
 - The term of all members of the HRET is co-extensive with the corresponding legislative term and may not be legally terminated except only by death, resignation, permanent disability, or removal for valid cause, not including political disloyalty
- Bondoc filed for a petition for certiorari, prohibition, and mandamus
 - Annul the decision of the HoR to rescind the nomination of Camasura and for Camasura to reassume his position and discharge his functions
 - Prohibit Palacol or anyone who may be designated in place of Camasura from assuming membership in the HRET.

RESPONDENT ARGUMENTS

- Congress has the sole authority to nominate and elect from its members to sit in HRET.
- it allegedly has the sole power to remove any of elected members whenever the ratio in the representation of the political parties in the House or Senate is materially changed on account of death, incapacity, *removal or expulsion from the political party*
- A Tribunal member's term of office is not co-extensive with his legislative term → if his political affiliations changed, the consti provision mandating representation based on political affiliation would be nullified
- Expulsion of Camasura from the LDP is "purely a party affair" → and the decision to rescind his membership in the HRET is the sole prerogative of the House of Representatives, hence, it is a purely political question beyond the reach of judicial review.

ISSUES

Type	Issue	Ruling
Main - Subst... ▾	Whether or not the HoR is empowered to interfere with the disposition of an election contest in the HRET through the ruse of "reorganizing" the representation in the HRET of the majority party?	No ▾

LEGAL BASIS

- Sec. 17, Art. VI of the 1987 Consti
 - The Senate and the House of Representatives shall each have an **Electoral Tribunal** which shall be the **sole judge of all contests** relating to the **election, returns** and **qualifications** of their respective members. Each Electoral Tribunal shall be composed of nine Members, three of whom shall be Justices of the Supreme Court to be designated by the Chief Justice, and the remaining six shall be members of the Senate or House of Representatives, as the case may be, who shall be chosen on the basis of proportional representation from the political parties and the parties or organizations registered under the party list system represented therein. The senior Justice in the Electoral Tribunal shall be its Chairman.

ANSWER

- No. The use of the word "sole" in the Consti underscores the **exclusive** jurisdiction of the HRET as judge of contests relating to election, returns, and qualifications of the members of the HoR.
- The tribunal was created to function as a nonpartisan court although two-thirds of its members are politicians. It is a non-political body in a sea of politicians.
- To be able to exercise exclusive jurisdiction, the HRET must be independent. Its jurisdiction to hear and decide congressional election contests is not to be shared by it with the Legislature nor with the Courts.
- 1986 ConCom indicated the following:
 - ET are constitutional bodies. They are independent, although they are not a separate branch of government
 - These electoral tribunals are independent from Congress, devoid of partisan influence or consideration and, therefore, Congress has no power to regulate proceedings of these electoral tribunals.

APPLICATION

- The resolution of the HoR removing Camasura in the HRET for disloyalty to LDP, because he cast his vote in favor of Bondoc (NP), is a clear impairment of the constitutional prerogative of the HRET to be the sole judge of election contests.
- To sanction such interference would render the HRET to become a mere tool for the aggrandizement of the party in power - LDP

Type	Issue	Ruling
Side - Substa... ▾	Whether or not disloyalty is a valid cause for termination of	No ▾

	membership in the HRET	
ANSWER • No. As judges, the members of the tribunal must be non-partisan. They must discharge their functions with complete detachment, impartiality, and independence — even independence from the political party to which they belong. Hence, "disloyalty to party" and "breach of party discipline," are not valid grounds for the expulsion of a member of the tribunal. • HoR committed a grave abuse of discretion and violated the Constitution in expelling Camasura based on his vote for Bondoc. Its resolution of expulsion against Congressman Camasura is, therefore, null and void		

Type	Issue	Ruling
Side - Substa... ▾	Whether or not the expulsion of Camasura violates his right to security of tenure?	Yes ▾

ANSWER • Yes. Another reason for the nullity of the expulsion resolution of the House of Representatives is that it violates Congressman Camasura's right to security of tenure • Members of the HRET are entitled to security of tenure just as members of the judiciary enjoy security of tenure under the Constitution. • Grounds for valid termination of membership in the Tribunal: ◦ Expiration of term of office ◦ Death or permanent disability ◦ Resignation from political party ◦ Formal affiliation with another party ◦ Removal for other valid cause • A member may not be expelled by the HOR for "party disloyalty" short of proof that he has formally affiliated with another political group. • As the records of this case fail to show that Congressman Camasura has become a registered member of another political party, his expulsion from the LDP and from the HRET was not for a valid cause, hence, it violated his right to security of tenure.		
---	--	--

DISPOSITION
WHEREFORE, the petition for certiorari, prohibition and mandamus is granted. • The decision of the House of Representatives withdrawing the nomination and rescinding the election of Camasura as a member of the HRET is hereby declared null and void ab initio for being violative of the Constitution • Camasura is ordered reinstated to his position as a member of the HRET. • The HRET Resolution No. 91-0018 dated March 14, 1991, cancelling the promulgation of the decision in HRET Case No. 25 ("Dr. Emigdio Bondoc vs. Marciano A. Pineda") is also set aside. • Considering the unconscionable delay incurred in the promulgation on that decision to the prejudice of the speedy resolution of electoral cases, the Court, in the exercise of its equity jurisdiction, and in the interest of justice, hereby declares the said decision DULY PROMULGATED, effective upon service of copies thereof on the parties, to be done immediately by the Tribunal. Costs against respondent Marciano A. Pineda.

DISSENT
• Sarmiento, J. ◦ The ousting of Camasura from the Tribunal was a result of political maneuvers within the lower house. Whether it was valid or not is a political question in which the court cannot intervene. • Padilla, J.

- The act of reviewing and annulling an act of the HoR is violative of the doctrine of separation of powers enshrined in the Consti.
- The HoR can withdraw the nomination extended to a member of the HRET after the majority party in the House has expelled him from its ranks.
 - The power to appoint a member, includes the power to remove said member.
 - A withdrawal to maintain the proportional representation of political parties, as mandated by the Consti, must be observed.
- The judicial department, in my opinion, has no power to review even the most arbitrary and unfair action of the legislative department, taken in the exercise of power committed exclusively to it by the Constitution.
 - The act of the HoR in dismissing Camasura, even if politically motivated, is not sufficient reason to invalidate said act of the House of Representatives, since it is done within the limits of its constitutional power.

Reyes v. Commission on Elections

DOCTRINE

For the House of Representatives Electoral Tribunal (HRET) to acquire exclusive jurisdiction over an election contest involving a candidate for Member of the House of Representatives under Section 17, Article VI of the 1987 Constitution, there must be a concurrence of three cumulative requisites—(1) a valid proclamation, (2) a proper oath of office, and (3) assumption of office—such that prior to the official assumption of office at noon on June 30 following the election, the Commission on Elections (COMELEC) retains jurisdiction to enforce its final resolutions cancelling a candidate's Certificate of Candidacy for material misrepresentations regarding citizenship and residency under Republic Act No. 9225.

RECITATION SUMMARY

On October 1, 2012, petitioner Regina Ongsiako Reyes filed her Certificate of Candidacy (COC) for Representative of the lone district of Marinduque. Respondent Joseph Socorro B. Tan filed a petition before the COMELEC to deny due course or cancel her COC, alleging material misrepresentations regarding her civil status, birthdate, residency, US permanent residency/immigration status, and US citizenship. Tan subsequently submitted Bureau of Immigration (BI) travel records showing Reyes held and used US Passport No. 306278853 until June 30, 2012, entering the Philippines under "balikbayan" status. On March 27, 2013, the COMELEC First Division cancelled Reyes' COC for material misrepresentation regarding her citizenship (failing to reacquire natural-born status under R.A. No. 9225 via an Oath of Allegiance and sworn renunciation) and lack of the one-year constitutional residency requirement. The COMELEC *En Banc* denied her Motion for Reconsideration on May 14, 2013. Four days later, on May 18, 2013, the Marinduque Provincial Board of Canvassers proclaimed Reyes the winner. On June 5, 2013, COMELEC issued a Certificate of Finality, and Reyes took an oath of office before House Speaker Feliciano Belmonte, Jr., though her term was set to begin at noon on June 30, 2013. On June 10, 2013, Reyes filed a petition for *certiorari* before the Supreme Court. The Supreme Court dismissed the petition and upheld the COMELEC resolutions, holding that: (1) COMELEC retained jurisdiction because HRET jurisdiction requires the concurrence of a valid proclamation, proper oath, and assumption of office (which begins June 30), and a local board of canvassers cannot nullify a final COMELEC *En Banc* resolution; (2) COMELEC did not deny due process or commit grave abuse of discretion in evaluating BI travel records in summary COC cancellation proceedings; (3) Reyes failed to present an Oath of Allegiance under R.A. No. 9225, rendering her an American citizen ineligible for office and incapable of establishing a domicile of choice in Boac, Marinduque; and (4) enforcing R.A. No. 9225 merely applies the constitutional requirements of Section 6, Article VI without adding unconstitutional qualifications.

MATERIAL FACTS & PROCEDURAL HISTORY

- **Legally Relevant Parties & Relationship:**
 1. *Petitioner:* Regina Ongsiako Reyes (proclaimed candidate for Representative of the Lone District of Marinduque).
 2. *Private Respondent:* Joseph Socorro B. Tan (registered voter and resident of the Municipality of Torrijos, Marinduque).

3. *Public Respondent*: Commission on Elections (COMELEC).

● **Chronological Material Facts:**

1. On October 1, 2012, petitioner Regina Ongsiako Reyes filed her Certificate of Candidacy (COC) for the position of Representative for the lone congressional district of Marinduque.
2. On October 31, 2012, private respondent Joseph Socorro B. Tan filed an Amended Petition to Deny Due Course to or Cancel the COC of petitioner (docketed as SPA No. 13-053), alleging material misrepresentations under Section 78 of the Omnibus Election Code: (a) stating she is single when she is allegedly married to Congressman Herminaldo I. Mandanas of Batangas; (b) declaring residence in Brgy. Lupac, Boac, Marinduque when her residence is in Bauan, Batangas or Quezon City; (c) stating her birthdate as July 3, 1964 when other documents indicate July 3, 1958 or July 3, 1960; (d) declaring she is not a permanent resident/immigrant of another country when she is a US permanent resident/immigrant; and (e) declaring she is a Filipino citizen when she is an American citizen.
3. In her Answer, petitioner asserted that her religious marriage to Mandanas lacked formal legal requirements and was *void ab initio*, her NSO birth certificate confirms her birthdate as July 3, 1964, and the allegations of US citizenship/residency were unsupported by evidence.
4. On February 8, 2013, respondent Tan filed a Manifestation with Motion to Admit Newly Discovered Evidence consisting of an online database record (blog article by Eli Obligacion) and a Certification of Travel Records issued by Simeon Sanchez of the Bureau of Immigration (BI) showing petitioner held US Passport No. 306278853, used it in various travels abroad until June 30, 2012, and entered the Philippines under "balikbayan" status.
5. On March 27, 2013, the COMELEC First Division issued a Resolution granting Tan's petition and cancelling petitioner's COC. It ruled that petitioner is an American citizen who failed to comply with the dual twin requirements of Republic Act No. 9225 (taking an Oath of Allegiance and executing a sworn renunciation of foreign citizenship before a public officer), and lacked the one-year constitutional residency requirement under Section 6, Article VI of the Constitution.
6. Petitioner filed a Motion for Reconsideration before the COMELEC *En Banc* on April 8, 2013, arguing she was a natural-born citizen whose marriage to an American created dual citizenship without losing natural-born status, while attaching an Affidavit of Renunciation dated September 24, 2012 "as a superfluity".
7. On May 14, 2013, the COMELEC *En Banc* promulgated a Resolution denying petitioner's Motion for Reconsideration for lack of merit.
8. Four days later, on May 18, 2013, the Marinduque Provincial Board of Canvassers (PBOC) proclaimed petitioner as the winning candidate for Representative.
9. On June 5, 2013, the COMELEC *En Banc* issued a Certificate of Finality declaring its May 14, 2013 Resolution final and executory because no restraining order had been issued by the Supreme Court within 5 days of promulgation.
10. On the same day (June 5, 2013), petitioner took her oath of office before Speaker of the House Feliciano R. Belmonte, Jr.. Petitioner had not yet assumed office, as the term was scheduled to begin at noon on June 30, 2013.

● **Procedural History:**

1. On June 10, 2013, petitioner filed a Petition for *Certiorari* with Prayer for TRO/Status Quo Ante Order before the Supreme Court under Rule 64 in relation

● PARTIES' MATERIAL ARGUMENTS

● Petitioner's (Regina Ongsiako Reyes) Claims:

1. *COMELEC Ousted of Jurisdiction*: COMELEC was divested of jurisdiction upon her proclamation on May 18, 2013 and oath-taking; pursuant to Section 17, Article VI of the 1987 Constitution, exclusive jurisdiction moved to the House of Representatives Electoral Tribunal (HRET) as the "sole judge" of election, returns, and qualifications of House Members.
2. *Violation of Due Process*: COMELEC committed grave abuse of discretion by admitting Tan's "newly discovered evidence" (blog article and uncertified BI travel records) without testimony, formal offer, or granting petitioner the opportunity to cross-examine or present controverting evidence.
3. *Retention of Natural-Born Citizenship & Residency*: She is a natural-born Filipino citizen who never lost her citizenship or domicile of origin in Boac, Marinduque; R.A. No. 9225 twin requirements do not apply to dual citizens by marriage, but even if required, her oath of office as Provincial Administrator satisfied the oath requirement.
4. *Unconstitutional Imposition of Qualifications*: Enforcing R.A. No. 9225 unconstitutionally adds qualifications for Members of the House of Representatives beyond those listed in Section 6, Article VI of the Constitution.

● Respondents' (Joseph Socorro B. Tan / COMELEC) Claims:

1. *COMELEC Retained Jurisdiction*: COMELEC retained jurisdiction because HRET jurisdiction requires the concurrence of three requisites—proclamation, oath, and assumption of office (which begins June 30); moreover, the COMELEC *En Banc* decision cancelling her COC became final and executory before her proclamation, making her proclamation void *ab initio*.
2. *Admissibility of Evidence & Burden of Proof*: COC cancellation proceedings under Section 78 OEC are summary in nature and technical rules of evidence do not strictly apply; BI travel records established that she held and used a US passport, shifting the burden of proof to petitioner to show compliance with R.A. No. 9225, which she failed to do.
3. *Lack of Citizenship & Residency*: Petitioner remains an American citizen for failing to execute a valid Oath of Allegiance under R.A. No. 9225; as an American citizen who abandoned her domicile of origin, her brief stay as Provincial Administrator could not establish the 1-year domicile of choice in Boac, Marinduque.

● ISSUES

1. **Whether the COMELEC was divested of jurisdiction in favor of the HRET** upon petitioner's proclamation and oath-taking prior to June 30 of the election year.
2. **Whether COMELEC committed grave abuse of discretion amounting to lack or excess of jurisdiction** in taking cognizance of "newly discovered evidence" regarding petitioner's citizenship and travel records, allegedly violating her right to due process.

- 3. **Whether COMELEC committed grave abuse of discretion** in declaring petitioner ineligible for the position of Member of the House of Representatives for lack of Filipino citizenship and failure to satisfy the one-year residency requirement.
 - 4. **Whether the enforcement of Republic Act No. 9225** unconstitutionally imposes additional qualifications upon Members of the House of Representatives beyond Section 6, Article VI of the Constitution.
-

 HOLDING AND RATIO DECIDENDI

ISSUE 1: Retention of COMELEC Jurisdiction vs. HRET Jurisdiction

HOLDING: NO. COMELEC was **NOT** divested of jurisdiction. Jurisdiction over petitioner's eligibility remained with COMELEC, and HRET did not acquire jurisdiction.

RATIO & DETAILED COURT LOGIC:

- 1. **The Three Requisites for Membership in the House of Representatives:**
 - Under Section 17, Article VI of the 1987 Constitution, the HRET is the sole judge of all contests relating to the election, returns, and qualifications of *Members* of the House of Representatives.
 - Citing *Marcos v. COMELEC*, *Vinzons-Chato v. COMELEC*, *Aggabao v. COMELEC*, *Guerrero v. COMELEC*, *Limkaichong v. COMELEC*, and *Gonzalez v. COMELEC*, the Court held that to be considered a full-fledged "Member of the House of Representatives" whose qualifications fall under HRET's exclusive domain, there must be a **concurrence of three requisites**:
 - 1. A **valid proclamation**;
 - 2. A **proper oath of office**; AND
 - 3. **Assumption of office**.
- 2. **Failure to Satisfy Requisites Prior to June 30:**
 - *Lack of Assumption of Office*: Under Section 7, Article VI of the Constitution, the term of office of a Member of the House of Representatives begins only "at noon on the thirtieth day of June next following their election". When COMELEC issued its Certificate of Finality on June 5, 2013 and when the Court deliberated on June 25, 2013, petitioner had not assumed office.
 - *Defective Oath*: Under Section 6, Rule II of the Rules of the House of Representatives, Members must take their oath of office before the Speaker *in open session*. Petitioner's oath before Speaker Belmonte on June 5, 2013 was not shown to have been made in open session.
- 3. **Inability of Proclamation to Nullify Final COMELEC En Banc Resolution:**
 - The COMELEC *En Banc* issued its Resolution cancelling petitioner's COC on May 14, 2013.
 - Petitioner was proclaimed by the PBOC four days later, on May 18, 2013.
 - The PBOC's ministerial act of proclamation cannot render *nugatory* an earlier final decision of the COMELEC *En Banc* affirming the cancellation of a COC.
 - Under Section 3, Rule 37 of the COMELEC Rules of Procedure, decisions in COC cancellation cases become final and executory 5 days after promulgation unless restrained by the Supreme Court. Petitioner failed to file a petition before the Supreme Court within 5 days of May 14, 2013 (filing only on June 10, 2013). Thus, the cancellation became final on May 19, 2013, rendering her proclamation void.
- 4. **Necessity of a Filed Petition:**

- HRET cannot acquire jurisdiction over a candidate's qualifications or assailed COMELEC resolutions unless an election protest or *quo warranto* petition is actually filed before it. Petitioner did not file any action before the HRET.
-

ISSUE 2: Due Process and Summary Nature of Evidence Evaluation

HOLDING: NO. COMELEC did **NOT** commit grave abuse of discretion or violate due process in admitting and evaluating the BI travel records.

RATIO & DETAILED COURT LOGIC:

1. Summary Nature of Section 78 OEC Proceedings:

- Petitions to deny due course or cancel a COC under Section 78 of the Omnibus Election Code are summary in nature.
- Administrative bodies like COMELEC are not strictly bound by technical rules of procedure and evidence.

2. Satisfaction of Administrative Due Process:

- Administrative due process does not strictly require a formal trial-type hearing, but merely a reasonable opportunity to be heard or present pleadings (*Sahali v. COMELEC*).
 - Petitioner was given full opportunity over five months (from October 2012 to March 2013, and again in her Motion for Reconsideration) to present controverting evidence regarding her US passport usage, but failed to do so.
-

ISSUE 3: Ineligibility Based on Lack of Citizenship and Residency

HOLDING: NO. COMELEC committed **NO GRAVE ABUSE OF DISCRETION** in declaring petitioner ineligible for Member of the House of Representatives.

RATIO & DETAILED COURT LOGIC:

1. Failure to Reacquire Natural-Born Citizenship under R.A. No. 9225:

- Official BI records established that petitioner held US Passport No. 306278853, used it in travels until June 30, 2012, and entered the Philippines as a "balikbayan". This shifted the burden of proof to petitioner to show she had reacquired Filipino citizenship.
- Under R.A. No. 9225 (Citizenship Retention and Re-acquisition Act of 2003), a former natural-born citizen who acquired foreign citizenship must: (1) take an Oath of Allegiance to the Republic; and (2) make a personal and sworn renunciation of foreign citizenship before an authorized public officer prior to filing a COC.
- Petitioner failed to present an Oath of Allegiance executed pursuant to R.A. No. 9225 and its implementing rules (MC No. AFF-04-01 / AFF-05-002).
- Her argument that her oath of office as Provincial Administrator of Marinduque operated as an Oath of Allegiance under R.A. No. 9225 was rejected because it failed to comply with statutory registration and procedural requirements prescribed by the Bureau of Immigration.
- Her execution of an Affidavit of Renunciation on September 24, 2012 was an implicit admission that R.A. No. 9225 applied to her, yet without a valid Oath of

Allegiance, she remained an American citizen. Consequently, her statement in her COC that she was a natural-born Filipino citizen was a false material representation.

2. Failure to Satisfy One-Year Constitutional Residency:

- A Filipino citizen who becomes naturalized elsewhere effectively abandons her domicile of origin.
 - Upon reacquiring Filipino citizenship, a candidate must establish a new domicile of choice in the Philippines through positive acts, with the 1-year period counted from the establishment of such domicile of choice (*Japzon v. COMELEC*).
 - Because petitioner failed to reacquire Filipino citizenship under R.A. No. 9225, she never abandoned her domicile of choice in the USA.
 - Her service as Provincial Administrator from January 18, 2011 to July 13, 2011 was insufficient to establish the 1-year residency requirement in Boac, Marinduque while she legally remained an American citizen.
-

ISSUE 4: Constitutionality of R.A. No. 9225 Enforcement

HOLDING: NO. Enforcing R.A. No. 9225 does **NOT** impose unconstitutional additional qualifications.

RATIO & DETAILED COURT LOGIC:

1. Section 6, Article VI of the 1987 Constitution prescribes that a Member of the House of Representatives must be a natural-born citizen of the Philippines and a resident of the district for at least one year preceding the election.
 2. R.A. No. 9225 does not add qualifications to the Constitution; it merely provides the statutory mechanism and evidentiary conditions by which a former natural-born citizen who acquired foreign citizenship can restore her natural-born status.
 3. COMELEC simply applied the qualifications prescribed by Section 6, Article VI by verifying whether petitioner had validly restored her natural-born citizenship under R.A. No. 9225.
-

 DECISION & DISPOSITION:

The Supreme Court **DISMISSED** the petition for *certiorari*, finding no grave abuse of discretion on the part of the Commission on Elections, and **UPHELD** the May 14, 2013 COMELEC *En Banc* Resolution affirming the March 27, 2013 COMELEC First Division Resolution cancelling petitioner's Certificate of Candidacy.

REYES v. COMELEC (2013)

Topic Subtopic	Branches of Govt, Congress Electoral Tribunals	GR No. & Ponente	G.R. No. 207264 Perez, J.
Petitioner/s	Regina Ongiako Reyes	Respondent/s	Commission on Elections and Joseph Socorro B. Tan
Doctrine			

FACTS

- Regina Ongiako Reyes filed her CoC as representative for the lone district of Marinduque for the 2013 elections.
- Joseph Tan, a registered voter and resident of the Municipality of Torrijos, Marinduque, filed a petition to cancel Reyes' CoC on the grounds that it contained multiple misrepresentations including

	REYES (+ Counters)	TAN
Civil Status	She is single; marriage to Mandanas is void ab initio because it was lacking the formal requisites of marriage as prescribed in the FC	She is actually married to Cong. Mandanas of Batangas
Residence	She is a resident of Boac, Marinduque; she is not duty bound to live with Mandanas so his residence cannot be attributed to her	she's actually a resident of Bauan Batangas (husband's residence) and Quezon City at the same time, as seen from the Directory of Congressional Spouses in the HoR
Birthday	Date of birth is July 3, 1964; her birth certificate from the National Statistics Authority Office shows this	other documents say she was born July 8, 1959 or July 3 1960
Foreign Residence	she is not a permanent resident of another country; there is no evidence to support Tan's claim	she is a permanent resident or immigrant of the USA
Citizenship	She is a Filipino citizen; no evidence to support Tan's claims	She is an American citizen

- Tan submitted an article as additional evidence which included a database record from the Bureau of Investigation showing Reyes as a US Citizen and US passport Holder, and that she uses this US passport when she travels abroad
- COMELEC 1st Div ended up **cancelling her CoC for failure to comply with the requirements of RA 9225**; no oath of allegiance nor personal and sworn renunciation of her American citizenship
 - Also no one-year residency requirement
 - Thus, she is ineligible to run for the position of Representative for the lone district of Marinduque.
- In a motion for reconsideration, Reyes argues that her marriage to an American citizen only resulted in dual citizenship, therefore she does not need to fulfill the twin requirements under RA 9225.
 - However, she still attached an Affidavit of Renunciation of Foreign Citizenship
 - She also argued she never lost her domicile of origin because she never became a naturalized citizen
- COMELEC En Banc denied Reyes' motion for reconsideration and declared their decision final and executory more than 21 days after it was promulgated
- The same day the decision was declared final, Reyes took her oath of Office before the Speaker of the HoR
- Petitioner has yet to assume office, the term of which officially starts at noon of 30 June 2013 [This Decision is 15 June 2013]
- Thus, the Petitioner filed a petition for Certiorari with Prayer for Temporary Restraining Order and/or Preliminary Injunction and/or Status Quo Ante Order

ISSUE 1

Side Substantive –	W/N COMELEC is without jurisdiction over Petitioner who is a duly proclaimed winner and has already taken her oath of office for the position of Member of the HoR for the lone Congressional Dist. of Marinduque	NO
RULING and RATIO DECIDENDI:		
<i>COMELEC retains jurisdiction over the case</i> - HRET does not acquire jurisdiction over the issue of petitioner's qualifications, as well as over the assailed COMELEC Resolutions, unless a petition is duly filed with said tribunal. Petitioner has not averred that she has filed such action. - HRET only has jurisdiction once they are a Member of the HoR. Court clarifies that one is a member once they have - A valid proclamation - Proper oath - Assumption of office <i>Even if the Court has previously ruled that COMELEC lost its jurisdiction after a proclamation has been made, those cases involve a candidate who has also already assumed office</i> - Reyes did not assume office yet at this point (she was going to assume office on June 30, noon), therefore she is not yet a Member of the HoR → COMELEC retains jurisdiction - the term of office of a Member of the House of Representatives begins only "at noon on the thirtieth day of June next following their election." Thus, until such time, the COMELEC retains jurisdiction - Although she took her Oath of Office before the Speaker of the House, there is no indication that she took this Oath in open session → unclear if the oath of office requirement was actually complied with - Before the proclamation of petitioner on 18 May 2013, the COMELEC En Banc had already finally disposed of the issue of petitioner's lack of Filipino citizenship and residency via its Resolution dated 14 May 2013. - The Board of Canvasser which proclaimed petitioner cannot, by such act, be allowed to render a decision of the COMELEC En Banc which affirmed a decision of the COMELEC First Division as nugatory. - Their decision that Reyes was not a Filipino citizen and did not fulfill the residency requirement was already final and executory after 5 days (as per Sec 3, Rule 37 of the COMELEC Rules of Procedures). - Petitioner should have filed a petition with the SC within the five day period before a proclamation is declared final, but she did not.		

ISSUE 2

Side Substantive –	W/N COMELEC committed GADALAEJ and violated petitioner's right to due process when it took cognizance of Respondent Tan's alleged "newly-discovered evidence" without it being testified on and offered and admitted in evidence?	NO
RULING and RATIO DECIDENDI:		
- COMELEC is not bound to strictly follow the technical rules of procedure in the presentation of evidence - Under Section 2 of Rule I, the COMELEC Rules of Procedure "shall be liberally construed in order . . . to achieve just, expeditious and inexpensive determination and disposition of every action and proceeding brought before the Commission." - In view of the fact that the proceedings in a petition to deny due course or to cancel COC are summary in nature, then the "newly discovered evidence" was properly admitted by respondent COMELEC - There was no denial of due process because the petitioner was given every opportunity to argue her case before COMELEC		

- She had 5 months to adduce evidence, from when Tan filed his petition to when COMELEC rendered its resolution
- In administrative proceedings, procedural due process only requires that the party be given the opportunity or right to be heard.

ISSUE 3

Main – Substantive	W/N COMELEC committed GADALAEJ when it declared that petitioner is not a Filipino citizen and did not meet the residency requirement for the HoR	NO
--------------------	--	----

RULING and RATIO DECIDENDI:

COMELEC did not commit any grave abuse of discretion in finding Reyes ineligible for the position of HoR

ON CITIZENSHIP

- After Tan submitted proof that she is a US passport holder and holds the status of a balikbayan, Reyes also had the duty to prove that she did not lose her status as a natural-born Filipino citizen or that she re-acquired such status in accordance with the provisions of R.A. No. 9225.
- Reyes had the burden of proving her compliance with RA 9225 or argue its inapplicability to her, but she failed to do so. Therefore, COMELEC concluded that she falsely represented her status as a natural-born Filipino
- In her MFR, Reyes admitted that she is a holder of a US passport, but that she is only a dual Filipino-American citizen. Thus, the RA9225 requirements do not apply to her. However, the fact that she attached an Affidavit of Renunciation of Foreign Citizenship dated 24 Sept 2012 was seen as an admission that RA 9225 applies to her
 - She cannot claim that she only filed it in compliance with the COMELEC observations from their assailed resolutions because Affidavit was executed a year **before** the assailed Resolutions were promulgated
- In her oath of office as Provincial Administrator of Marinduque, the petitioner included a footnote that essentially stated that she may have taken her oath of allegiance prior to taking her oath of office, but she is saving its presentation for another, more proper proceeding.
 - Court questioned this footnote and asked that if she did execute the oath of allegiance, why did she not present it at the earliest opportunity, and if it was an admission that she lost her natural-born Filipino status
- Reyes cannot claim that because she took her Oath of Allegiance when she was appointed as Provincial Administrator that she is deemed to have reacquired her status as a natural-born Filipino
 - The issue of her Oath of Allegiance is being presented for the first time before the Court, and never raised before the COMELEC
 - The oath of allegiance she took then was not in compliance with the requirements under RA 9225
- Petitioner failed to clear the doubts regarding her citizenship.

ON RESIDENCY REQUIREMENT

- She cannot be considered a resident of Marinduque
- Filipino naturalized elsewhere abandons his domicile of origin. Upon reacquisition, he must show that he chose to establish his domicile in the PH through positive acts and the period of his residency will be counted from the time he made it his domicile of choice
 - Reyes did not prove that she re-acquired her Filipino citizenship, nor did she prove she renounced her American citizenship; no proof she abandoned her domicile of choice in the US
 - Only proof she gave was that she served as Provincial Administrator → still does not show she regained her domicile in Marinduque and abandoned her domicile in the USA

In general, petitioner did not show that there was grave abuse of discretion on COMELEC's end

ISSUE 4

Side – Substantive	W/N COMELEC committed GADALAEJ when by enforcing the provisions of RA 9225, it imposed additional qualifications for members of the HoR	NO
--------------------	---	----

RULING and RATIO DECIDENDI:

COMELEC did not impose additional qualifications on Candidates for the HoR who have acquired foreign citizenship

- It merely applied the qualifications prescribed by Section 6, Article VI of the 1987 Constitution that the candidate must be a natural-born citizen of the Philippines and must have one-year residency prior to the date of elections
- COMELEC did not err when it inquired into Reyes' compliance with RA 9225 to determine if she reacquired her status as a natural-born PH citizen.
- It simply applied the constitutional provision and nothing more.

FINAL DECISION	IN VIEW OF THE FOREGOING, the instant petition is DISMISSED, finding no grave abuse of discretion on the part of the Commission on Elections. The 14 May 2013 Resolution of the COMELEC En Banc affirming the 27 March 2013 Resolution of the COMELEC First Division is upheld. SO ORDERED.
----------------	--

SEPARATE OPINION/S

<i>Brion, J, dissenting</i>	ON PREMATURE COURT RULING: • The Court prematurely dismissed the case after an initial review ◦ Present case is still in its inception stage (newly filed petition) ◦ SC minority justices (including Brion and 3 other justices) believe that Reyes must have been allowed to at least give a comment ◦ The Court cannot simply strike out the petitioner's positions • The Court did not rule on the merits of the case – only said that it does not want to review COMELEC's rulings further • The questions raised in the petition are not too unsubstantial to warrant further proceedings ◦ Reyes raised due process issues against COMELEC ◦ COMELEC issued an additional qualification that is not enshrined in the Constitution ON JURISDICTION - MUST BE HRET: • Majority's ruling that HRET jurisdiction begins only after the candidate assumes office on June 30 is contrary to prevailing jurisprudence ◦ Contrary to HRET rules ◦ Would affect all future proclamations since they cannot be earlier than 15 days counted from the June 30 constitutional cut-off for the assumption to office of the newly elected officials • The jurisdictional component of the petition is actually not covered by the assailed COMELEC rulings ◦ They were intervening events ◦ Majority lumped them together with the assailed rulings and decided that COMELEC did not commit grave abuse of discretion • HRET should have jurisdiction ◦ Reyes was already proclaimed ◦ Proclamation is the 'trigger factor'/ operative fact for HRET jurisdiction (LEGAL BASIS: <i>Jalosjos Jr. v. COMELEC</i> = "the proclamation of a congressional candidate following the election divests COMELEC of jurisdiction over disputes relating to the election, returns, and qualifications of the proclaimed Representative in favor of the
-----------------------------	---

HRET.”)

W/N COMELEC committed grave abuse of discretion – YES

- A quick look at Tan’s presented evidence would show that Reyes’ petition is not without merits:
 - **FIRST EVIDENCE: BLOG ARTICLE (“Seeking and Finding Truth About Regina O. Reyes”)**
 - Cannot be admissible because it does not provide any credible evidence
 - COMELEC solely relied on this piece of evidence
 - **SECOND EVIDENCE: PHOTOCOPY OF CERTIFICATION**
 - Certification issued by issued by Simeon L. Sanchez of the BID showing Reyes’ travel records using US Passport
 - Lacks probative value to be considered as evidence
 - In the absence of sufficient proof other than a photocopy of a certification, no burden of evidence shifts for Reyes to prove anything
 - Since there is no proof of Reyes losing her Filipino citizenship, the twin requirements of RA 9225 (oath of allegiance & renunciation of foreign citizenship) should not apply to her
 - The evidence submitted by Tan against Reyes only shows at best that she is a US Passport holder, not a US citizen

Codilla, Sr. v. De Venecia

DOCTRINE

The execution of a final and executory decision of the COMELEC *En Banc* nullifying the premature proclamation of a losing candidate and ordering the proclamation of the winning candidate is a purely ministerial duty on the part of the Speaker and Secretary-General of the House of Representatives, enforceable by *mandamus*, because the COMELEC *En Banc* retains exclusive jurisdiction over a motion for reconsideration challenging a division's disqualification resolution, and the House of Representatives Electoral Tribunal (HRET) cannot assume jurisdiction when there is no valid proclamation or candidate-elect.

RECITATION SUMMARY

In the May 14, 2001 elections for Representative of the 4th Legislative District of Leyte, petitioner Eufrocino M. Codilla, Sr. garnered 71,350 votes against respondent Ma. Victoria L. Locsin's 53,447 votes (a winning margin of 17,903 votes). Six days before the election, a petition for disqualification was filed against Codilla under Section 68 of the Omnibus Election Code for alleged vote solicitation, and on May 18, 2001, the COMELEC Second Division issued an *ex-parte* order directing the Leyte Provincial Board of Canvassers (PBOC) to suspend Codilla's proclamation without a finding that evidence of guilt was strong. On June 14, 2001, the Second Division disqualified Codilla, declared his votes stray, and ordered the immediate proclamation of Locsin (the runner-up). Locsin was proclaimed on June 15, took her oath on June 18, and assumed office on June 30, 2001. However, Codilla seasonably filed a Motion for Reconsideration before the COMELEC *En Banc* and a Petition for Declaration of Nullity of Proclamation. On August 29, 2001, the COMELEC *En Banc* issued a majority decision reversing the Second Division, lifting the suspension, nullifying Locsin's proclamation as void *ab initio*, and ordering the PBOC to proclaim Codilla. Locsin did not appeal to the Supreme Court; instead, relying on an opinion from House Chief Counsel Palicte that HRET had exclusive jurisdiction, she declared in a privilege speech that she would openly defy the COMELEC ruling. On September 12, 2001, the PBOC proclaimed Codilla, who took his oath of office, but House Speaker Jose De Venecia and Secretary-General Roberto Nazareno refused to administer his oath or enter his name in the Roll of Members. Codilla filed a petition for *mandamus* and *quo warranto* before the Supreme Court. The Supreme Court granted *mandamus*, holding that: (1) Locsin's proclamation was null and void *ab initio* due to gross violations of due process, lack of finality of the Second Division resolution, and the settled rule that a second placer cannot be proclaimed; (2) the COMELEC *En Banc* was not divested of jurisdiction by Locsin's premature proclamation because Codilla's timely motion for reconsideration suspended the execution of the division resolution; (3) the HRET had no jurisdiction because Locsin was never a valid candidate-elect; and (4) Speaker De Venecia and Secretary-General Nazareno had a purely ministerial duty under Rule 65 to enforce the final COMELEC *En Banc* decision by administering Codilla's oath and entering his name in the Roll of Members.

MATERIAL FACTS & PROCEDURAL HISTORY

- **Legally Relevant Parties & Relationship:**
 1. *Petitioner:* Eufrocino M. Codilla, Sr. (duly elected Representative of the 4th Legislative District of Leyte and former Mayor of Ormoc City).
 2. *Respondents:* Hon. Jose De Venecia, Jr. (Speaker of the House of Representatives), Roberto P. Nazareno (Secretary-General of the House of Representatives), and Ma. Victoria L. Locsin (losing candidate and sitting Representative for the 4th Legislative District of Leyte).
- **Chronological Material Facts:**

1. On May 8, 2001, six days before the elections, Josephine de la Cruz (a registered voter of Kananga, Leyte) filed a Petition for Disqualification (SPA No. 01-208) directly with the COMELEC main office against petitioner Codilla under Section 68 of the Omnibus Election Code, alleging he indirectly solicited votes in Kananga and Matag-ob, Leyte. Summons was never served on Codilla.
2. On May 14, 2001, national and local elections were held. Final election results showed petitioner Codilla garnered **71,350 votes**, while respondent Locsin garnered **53,447 votes** (a margin of 17,903 votes in favor of Codilla).
3. On May 18, 2001, respondent Locsin filed a "Second Most Urgent Motion to Suspend Proclamation of Respondent" without attaching a registry receipt proving service of notice to Codilla. On the same day, the COMELEC Second Division issued an *Ex-Parte* Order directing the Provincial Board of Canvassers (PBOC) of Leyte to suspend Codilla's proclamation based merely on the "seriousness of the allegations," without making any finding that evidence of Codilla's guilt was strong.
4. On May 22, 2001, Codilla received a telegraphed order from COMELEC, obtained a copy of the petition on May 23, and filed his Answer on May 24, 2001. No hearing or reception of evidence was conducted by the Regional Election Director.
5. On June 14, 2001, the COMELEC Second Division promulgated a Resolution disqualifying Codilla, declaring all 71,350 votes cast in his favor "stray and invalid," and ordering the Leyte PBOC to immediately reconvene and proclaim the candidate who obtained the next highest number of votes (Locsin).
6. On June 15, 2001, the Leyte PBOC convened and proclaimed respondent Locsin as Representative.
7. On June 18, 2001, Locsin took her oath of office before Speaker-elect De Venecia, and assumed office on June 30, 2001.
8. On June 20, 2001, petitioner Codilla seasonably filed a Motion for Reconsideration before the COMELEC *En Banc* (SPA No. 01-208) challenging the Second Division Resolution.
9. On June 21, 2001, Codilla filed a Petition for Declaration of Nullity of Proclamation (SPC No. 01-324) directly before the COMELEC *En Banc*.
10. On August 29, 2001, the COMELEC *En Banc* issued a majority Decision (Summary of Votes / Vote and Opinion by Chairman Benipayo, joined by Commissioners Borra, Tuason, and Lantion) granting Codilla's Motion for Reconsideration, reversing the Second Division Resolution, lifting the order of suspension, nullifying Locsin's proclamation as void *ab initio*, declaring Codilla's votes valid, and ordering the Leyte PBOC to reconvene and proclaim Codilla.
11. Respondent Locsin did **not** appeal or file a petition for *certiorari* before the Supreme Court from the August 29, 2001 COMELEC *En Banc* Decision. Instead, she obtained an opinion from House Executive Director and Chief Legal Counsel Leonardo B. Palicte III stating COMELEC had no jurisdiction, and delivered a privilege speech in the House on September 4, 2001 declaring she would "openly defy and disobey" the COMELEC ruling.
12. On September 6, 2001, the COMELEC *En Banc* issued an Order directing the Leyte PBOC to reconvene and proclaim the candidate obtaining the highest number of votes.
13. On September 12, 2001, the Leyte PBOC proclaimed petitioner Codilla as the duly elected Representative of the 4th District of Leyte. Codilla took his oath of office before RTC Executive Judge Fortunito L. Madrona on the same day.
14. On September 14, 2001, Codilla wrote to Speaker De Venecia requesting the administration of his oath and assumption of duties. House Legal Affairs Deputy Secretary-General Gaudencio A. Mendoza, Jr. issued a Memorandum on October 8, 2001 stating there was no legal obstacle to implementing the final COMELEC Decision.
15. On October 30, 2001, Speaker De Venecia sent a letter to LAKAS Party leadership, recognizing the finality of the COMELEC decision but stating that Locsin's open defiance deterred the House from taking action, and suggesting that implementation be adjudicated by the Supreme Court.

- **Procedural History:**

1. Petitioner Codilla filed a Petition for *Mandamus* and *Quo Warranto* directly before the Supreme Court against Speaker De Venecia, Secretary-General Nazareno, and respondent Locsin.
-

 PARTIES' MATERIAL ARGUMENTS

- **Petitioner's (Eufrocino M. Codilla, Sr.) Claims:**
 1. *Finality of COMELEC Decision:* The August 29, 2001 COMELEC *En Banc* Decision became final and executory because respondent Locsin failed to appeal it via *certiorari* to the Supreme Court.
 2. *Ministerial Duty of House Officers:* Enforcing and implementing a final and executory decision of the COMELEC is a purely ministerial duty on the part of Speaker De Venecia (to administer his oath) and Secretary-General Nazareno (to register his name in the Roll of Members).
 3. *Nullity of Locsin's Proclamation:* Locsin's proclamation was a complete nullity because she was a repudiated second placer who lost by 17,903 votes, and the COMELEC *En Banc* was never divested of jurisdiction by her premature proclamation.
 4. *Inapplicability of HRET Jurisdiction:* HRET has no jurisdiction over a petition to nullify a void proclamation where the issue is who received the highest number of votes rather than ineligibility or disloyalty.
 - **Respondents' Claims:**
 1. *Speaker De Venecia: Mandamus* does not lie because implementing a COMELEC decision affecting House membership requires the exercise of discretion by the Speaker, and no House rule imposes a ministerial duty to unseat an incumbent member.
 2. *Secretary-General Nazareno:* In reading Locsin's name during roll call, he acted in compliance with legal opinions of House Chief Counsel Palicte stating COMELEC lacked jurisdiction; seating a member is a legislative prerogative, not a ministerial function.
 3. *Respondent Locsin:* The Supreme Court lacks original jurisdiction over *quo warranto* involving a House Member under Article VI, Section 17 of the Constitution because HRET is the sole judge; *mandamus* violates the separation of powers; COMELEC *En Banc* was divested of jurisdiction upon her proclamation and oath-taking; the petition for nullity was an invalid direct pre-proclamation petition before the *En Banc*; and HRET had already dismissed a late *quo warranto* petition (*Travero v. Locsin*).
-

 ISSUES

1. **Whether the proclamation of respondent Locsin** by the COMELEC Second Division was valid.
 2. **Whether the proclamation of respondent Locsin divested the COMELEC *En Banc*** of jurisdiction to review its validity and declare it null and void.
 3. **Whether it is the ministerial duty** of public respondents Speaker De Venecia and Secretary-General Nazareno to recognize petitioner Codilla, Sr. as the legally elected Representative of the 4th Legislative District of Leyte vice respondent Locsin, enforceable by *mandamus*.
-

 HOLDING AND RATIO DECIDENDI

ISSUE 1: Validity of Respondent Locsin's Proclamation

HOLDING: NO. The proclamation of respondent Locsin was **NULL AND VOID AB INITIO**.

RATIO & DETAILED COURT LOGIC:

1. **Gross Denial of Due Process to Petitioner:**
 - Under COMELEC Resolution No. 3402 and Rule 14 of the COMELEC Rules of Procedure, summons must be issued and served upon the respondent candidate within three days of filing a disqualification petition. Summons was never served on Codilla in SPA No. 01-208, denying him notice and an opportunity to be heard before his proclamation was suspended.
2. **Unlawful Ex-Parte Suspension of Proclamation:**
 - Under Section 72 of the Omnibus Election Code and Section 6 of R.A. No. 6646, a candidate voted for and receiving the winning number of votes cannot be prevented from being proclaimed unless declared disqualified by *final judgment* before the election.
 - Under Section 6 of R.A. No. 6646, the COMELEC can order the suspension of proclamation during the pendency of a disqualification case only upon motion and when *evidence of the winning candidate's guilt is strong*.
 - The COMELEC Second Division suspended Codilla's proclamation *ex-parte* on May 18, 2001 based solely on the "seriousness of the allegations," without making any specific factual finding that evidence of Codilla's guilt was strong, thereby committing grave abuse of discretion.
3. **Absence of Hearing and Substantial Evidence:**
 - All throughout the proceedings, no trial or hearing was conducted by the Regional Election Director in gross violation of Section 6 of R.A. No. 6646 and COMELEC Resolution No. 3402.
 - The Second Division disqualified Codilla based exclusively on uncorroborated affidavits attached to the petition without giving Codilla an opportunity to present controverting evidence or cross-examine affiants.
4. **Lack of Finality of Division Disqualification Resolution:**
 - Under Section 6 of R.A. No. 6646 and Section 72 OEC, votes cast for a candidate can be declared "stray" only if there is a *final judgment* of disqualification.
 - Under Section 13, Rule 18 and Section 2, Rule 19 of the COMELEC Rules of Procedure (and COMELEC Resolution No. 4116), a timely Motion for Reconsideration suspends the execution or implementation of a Division resolution or order.
 - Because Codilla seasonably filed a Motion for Reconsideration on June 20, 2001, the June 14, 2001 Division resolution never attained finality. Thus, the Second Division's order excluding Codilla's votes as "stray" and ordering Locsin's immediate proclamation on June 15, 2001 was issued with undue haste and was legally unenforceable.
5. **Violation of the Settled Second-Placer Rule:**
 - Petitioner Codilla garnered 71,350 votes while respondent Locsin obtained 53,447 votes (a margin of 17,903 votes).
 - It is a fundamental principle of election law (*Domino v. COMELEC*; *Trinidad v. COMELEC*) that a defeated second placer who was rejected by the electorate can **never** be proclaimed winner in place of a disqualified winning candidate.
 - The wreath of victory cannot be transferred to the repudiated loser, as doing so subverts the paramount sovereign will of the voters.

ISSUE 2: Jurisdiction of COMELEC En Banc vs. HRET

HOLDING: NO. Respondent Locsin's proclamation did **NOT** divest the COMELEC *En Banc* of jurisdiction. The COMELEC *En Banc* retained exclusive jurisdiction, and the HRET had **NO** jurisdiction over the matter.

RATIO & DETAILED COURT LOGIC:

- 1. **Mandatory Constitutional Jurisdiction of COMELEC En Banc on Reconsideration:**
 - Section 3, Article IX-C of the 1987 Constitution explicitly mandates that motions for reconsideration of division decisions or resolutions shall be decided by the Commission *En Banc*.
 - Because Codilla seasonably filed a Motion for Reconsideration challenging the Second Division's suspension and disqualification orders, jurisdiction over the core validity of those orders and Locsin's resulting proclamation remained firmly vested in the COMELEC *En Banc*.
- 2. **Inability of an Unenforceable Proclamation to Oust Constitutional Jurisdiction:**
 - A premature proclamation based on an unfinalized Division resolution that was seasonably challenged on reconsideration cannot divest the COMELEC *En Banc* of its constitutional duty to resolve the motion for reconsideration.
 - The ministerial act of a local board of canvassers in proclaiming a loser cannot render *nugatory* the pending review before the COMELEC *En Banc*.
- 3. **Inapplicability of HRET Jurisdiction:**
 - Under Section 17, Article VI of the 1987 Constitution, the HRET is the sole judge of all contests relating to the election, returns, and qualifications of *Members* of the House of Representatives.
 - Citing *Puzon v. Cua*, the Court held that the doctrine that proclamation transfers jurisdiction to HRET does not apply where the validity of the very COMELEC pronouncement/proclamation itself is pending review before the COMELEC *En Banc*.
- 4. **Absence of Quo Warranto Grounds:**
 - A *quo warranto* petition before the HRET lies only against one who has been duly elected and proclaimed for obtaining the highest number of votes, but whose eligibility or loyalty is questioned under Rule 17 of the HRET Rules.
 - Neither Locsin's eligibility nor her loyalty was in question; she simply lost the election by 17,903 votes, making her proclamation a patent nullity.
 - It is the height of absurdity for a repudiated loser to tell the elected winner to unseat her via a *quo warranto* proceeding in the HRET.

ISSUE 3: Availability of Mandamus Against House Officers

HOLDING: YES. It is the **MINISTERIAL DUTY** of public respondents Speaker De Venecia and Secretary-General Nazareno to recognize petitioner Codilla, Sr. as the legally elected Representative, enforceable by **MANDAMUS**.

RATIO & DETAILED COURT LOGIC:

- 1. **Requirements for Mandamus under Rule 65, Section 3:**
 - Under Section 3, Rule 65 of the 1997 Rules of Civil Procedure, *mandamus* lies when any officer unlawfully neglects the performance of an act which the law specifically enjoins as a duty resulting from an office, trust, or station, or unlawfully excludes another from the use and enjoyment of an office to which he is entitled, where the duty is purely ministerial and there is no other plain, speedy, and adequate remedy.
- 2. **Conclusive Finality of the COMELEC En Banc Decision:**
 - The issue of who is the rightful Representative of the 4th Legislative District of Leyte was finally and conclusively settled by the COMELEC *En Banc* in its August 29, 2001 Decision, which declared Locsin's proclamation null and void and ordered Codilla's proclamation.
 - Respondent Locsin failed to challenge or appeal the August 29, 2001 Decision before the Supreme Court via *certiorari*, rendering the COMELEC *En Banc* decision **final and executory**.
- 3. **Purely Ministerial Nature of the Implementation:**

- The distinction between a discretionary and ministerial act is clear: an act is ministerial when an officer performs it in a given state of facts, in obedience to the mandate of a legal authority, without regard to the exercise of his own judgment.
 - The administration of oath by Speaker De Venecia and the registration of Codilla's name in the Roll of Members by Secretary-General Nazareno are purely ministerial duties resulting from their offices once the competent constitutional body (COMELEC *En Banc*) has rendered a final decision settling title to the office.
4. **Preservation of the Rule of Law and Non-Violation of Separation of Powers:**
- Enforcing a final decision of the COMELEC against legislative officers does not violate the separation of powers or encroach upon legislative prerogatives.
 - The power to determine who represents a constituency belongs to the sovereign electorate, whose vote was affirmed by the COMELEC *En Banc*. The rule of law demands that COMELEC decisions be obeyed by all officials of the land; there is no alternative to the rule of law except the reign of chaos and confusion.
-

 DECISION & DISPOSITION:

The Supreme Court **GRANTED** the Petition for *Mandamus*:

1. Public respondent Speaker of the House of Representatives Jose De Venecia, Jr. is ordered to **ADMINISTER THE OATH** of petitioner Eufrocino M. Codilla, Sr. as the duly-elected Representative of the 4th Legislative District of Leyte.
2. Public respondent Secretary-General Roberto P. Nazareno is ordered to **REGISTER THE NAME** of petitioner Eufrocino M. Codilla, Sr. in the Roll of Members of the House of Representatives after he has taken his oath of office.
3. The Decision was declared **IMMEDIATELY EXECUTORY**.

Codilla v. De Venecia (2002)

Topic Subtopic	Congress - Electoral Tribunals	GR No. & Ponente	G.R. No. 150605 Puno, J.
Petitioner/s	Eufrocino M. Codillo, Sr.	Respondent/s	Hon. Jose De Venecia, Roberto P. Nazareno, Ma. Victoria L. Locsin
Doctrine	When a candidate has not yet been disqualified by final judgment during the election day and was voted for, the votes cast in his favor cannot be declared stray and the second placer cannot be proclaimed. A proclamation made without due process is void. A motion for reconsideration suspends the effect of a COMELEC Division's ruling, so jurisdiction remains with the COMELEC until its decision becomes final.		

FACTS

Antecedent Facts (just for bg):

- Codilla - Mayor of Ormoc; Locsin - sitting Representative of the 4th district of Leyte.
 - May 8, 2001 - Petition for Disqualification was filed against Codilla for indirectly soliciting votes by distributing gravel and sand to residents using City Government equipment and vehicles.
 - May 14, 2001 - Regional Election Director had yet to hear the case. The petitioner was included in the list of candidates, was voted for, and garnered the highest votes.
 - May 16 & 18 2001 - Locsin filed to suspend proclamation
 - May 18, 2001 - COMELEC 2nd Division ordered to suspend the proclamation due to the seriousness of allegations → As a result, **petitioner was not proclaimed as winner** even though the final election results showed that he garnered 71,350 votes as against respondent Locsin's 53,447 votes.
 - May 24, 2001 - Petitioner filed an Answer and stated that he has not received the summons & copy of petition, became aware only by the telegram, and he obtained a copy at his own instance. Also claimed that the rehab of the roads were done without his authority.
 - June 14, 2001 - COMELEC 2nd Division, through its Resolution, found the petitioner guilty of indirect solicitation of votes and ordered his disqualification. Ordered immediate proclamation of Locsin. Votes for Codilla were declared stray.
 - June 15, 2001 - **Locsin was proclaimed & issued a Cert. of Proclamation**
 - June 18, 2001 - Locsin took her oath of office; June 30, 2001 - Locsin assumed office
 - June 20, 2001 - Codilla filed Motion for Reconsideration w/ COMELEC En Banc
 - August 29, 2001 - COMELEC Chairman issued a "Vote and Opinion, and Summary of Votes", which reversed Second Division's resolution and declared the proclamation of Locsin as null and void.
 - Locsin did not appeal from this decision annulling her proclamation, and instead declared that she will disregard and openly defy and disobey COMELEC reso ordering her to vacate her position
 - Sep. 6, 2001 - COMELEC issued an Order to implement the decision and ordered to proclaim Codilla.
 - Sep. 12, 2001 - Codilla was proclaimed as the duly-elected Representative. He took his oath of office before an RTC judge of Ormoc City
 - Sep. 14, 2001 - Codilla wrote to the HOR, informing them of COMELEC's resolution and that he would assume office.
 - No action was taken. Codilla's party sent a letter to the Speaker
 - Oct. 30, 2001 - De Venecia sent a letter stating that Locsin notified the House of her defiance. That means 2 people would occupy the same congressional seat. With this, he believes that the matter can be best adjudicated by the SC.
-
- Petitioner Eufrocino M. Codilla, Sr., filed a petition for mandamus and Quo Warranto directed against respondents Speaker Jose De Venecia and Secretary-General Roberto P. Nazareno of the House of Representatives to compel them to implement the decision of the Commission on Elections en banc and against respondent Ma. Victoria L. Locsin for usurping, intruding into, and unlawfully holding and exercising the said public office on the basis of a void proclamation.

Main – Substantive Side – Substantive	W/N the proclamation of Locsin by the COMELEC 2nd Division is valid	NO
PETITIONER/S ARGUMENTS:		
- Filed a petition of declaration of nullity of proclamation assailing the validity of the proclamation of respondent Locsin who garnered only the second highest number of votes. - He was deprived of a fair hearing for his case		
RULING and RATIO DECIDENDI:		
<u>Proclamation of Locsin is null and void</u> <u>I. The petitioner was denied due process during the entire proceedings leading to the proclamation of respondent Locsin.</u> <i>No proper notice of the disqualification case</i> Summons and copy of petition COMELEC Resolution No. 3402 requires the COMELEC to issue summons to Codilla with a copy of the petition and its enclosures within 3 days from the filing of the petition for disqualification → this is to afford Codilla the opportunity to answer the allegations and hear his side. Records do not show that summons were served. The petitioner only obtained a copy of the petition and the May 22 Order of the COMELEC Second Division by personally going to the regional office. <i>Suspension of proclamation was improper</i> - Suspension of proclamation of the petitioner violates section 72 of the Omnibus Code since he has not been disqualified by final judgment when the elections were conducted. - No proof/receipt was provided that a copy of the Most Urgent Motion was given to the petitioner -> violates Sections 4 & 5 of COMELEC Rules of Procedure requiring notice and service of motion to all parties → thus, COMELEC 2nd Div cannot act upon it - The second motion was served only by registered mail, and the Second Division acted on it the same day, issued an Order suspending the proclamation of petitioner. - Clearly, the petitioner was not given any opportunity to contest the allegations contained in the petition for disqualification. The Order was issued on the very same day the Second Most Urgent Motion was filed. The petitioner could not have received the Second Most Urgent Motion, let alone answer the same on time as he was served a copy thereof by registered mail - Under Section 6 of R.A. No. 6646, the COMELEC can suspend proclamation only when evidence of the winning candidate's guilt is strong. In the case at bar, the COMELEC Second Division did not make any specific finding that evidence of petitioner's guilt is strong. Its only basis in suspending the proclamation of the petitioner is the "seriousness of the allegations" in the petition for disqualification. - We hold that absent any finding that the evidence on the guilt of the petitioner is strong, the COMELEC Second Division gravely abused its power when it suspended his proclamation. <i>No proper hearing was conducted</i> - All throughout the proceeding, no hearing was conducted on the petition for disqualification. This is in gross violation of Section 6 of R.A. No. 6646 which specifically enjoins the COMELEC to "continue with the trial or hearing of the action, inquiry, or protest." - A hearing on the motion to lift the order of suspension could not substitute for a hearing on the main disqualification case. The pieces of evidence in both proceedings are not the same. <i>No substantial evidence to disqualify the petitioner</i> - COMELEC en banc concluded that the evidence to disqualify the petitioner was insufficient. It is not based on substantial evidence.		

- COMELEC 2nd Div relied merely on affidavits of witnesses attached to the petition for disqualification. They gave credence to the affidavits without hearing the affiants.
- Even without the evidence coming from the petitioner, COMELEC 2nd Div still failed to prove that the petitioner committed the offense he was charged with.
- The affidavits relied upon by the COMELEC Second Division failed to prove the allegations that (a) petitioner ordered the extraction, hauling and distribution of gravel and sand, and (b) his purpose was to induce and influence the voters of Kananga and Matag-ob, Leyte to vote for him
 - Affidavits only showed that the truck had “Ormoc City Government” on it.
 - Truck driver saying “vote for Codilla as congressman during election” is a hearsay. He has no personal knowledge of the supposed order of the petitioner to distribute gravel and sand for the purpose of inducing the voters to vote for him
 - Affidavits alleging that the petitioner ordered the road repair and flatten an area for cockfighting are all extraneous. → also not a ground for disqualification based on Sec 68 of the OEC
 - "Section 68. Disqualifications. — Any candidate who, in action or protest in which he is a party is declared by final decision of a competent court guilty of, or found by the Commission of having **(a) given money or other material consideration to influence, induce or corrupt the voters or public officials performing official functions**, . . . shall be disqualified from continuing as candidate, or if he has been elected, from holding office
- The jurisdiction of the COMELEC to disqualify candidates is limited to those enumerated in Section 68 of the Omnibus Election Code.
- All other election offenses (that they charged the petitioner with) are beyond the ambit of COMELEC jurisdiction, they can only do preliminary investigation (e.g., Sec. 261(a) - vote-buying and vote-selling, Sec 261 (o) - use of public funds, money deposited in trust, equipment, facilities owned or controlled by the govt for an election campaign). It shall be the RTC to have the exclusive original jurisdiction to try these cases.
- The COMELEC Second Division grievously erred when it decided the disqualification case based on Section 261(a) and (o), and not on Section 68 of the Omnibus Election Code.

II. The votes cast in favor of the petitioner cannot be considered “stray” and the respondent cannot be validly proclaimed on that basis

- The COMELEC Second Division ordered the exclusion of the votes cast in favor of the petitioner, and the proclamation of the respondent Locsin, without affording the petitioner the opportunity to challenge the same
- Records reveal that the petitioner received notice of the Resolution of the COMELEC Second Division only through his counsel via a facsimile message in the afternoon of June 15, 2001 when everything was already fait accompli. Undoubtedly, he was not able to contest the issuance of the Certificate of Canvass and the proclamation of respondent Locsin. This is plain and simple denial of due process
- To consider votes as stray, there has to be final judgment of candidate’s disqualification (Sec. 6 of RA No. 6646; Sec 72 of OEC; Section 13, Rule 18 of the COMELEC Rules of Procedure; COMELEC Resolution No. 4116)
 - Hence, when a candidate has not yet been disqualified by final judgment during the election day and was voted for, the votes cast in his favor cannot be declared stray. To do so would amount to disenfranchising the electorate in whom sovereignty resides
 - This principle applies with greater force in the case at bar considering that the petitioner has not been declared by final judgment to be disqualified not only before but even after the elections.
 - In this case, the Resolution disqualifying petitioner did not attain finality, and could not be executed bc of Codilla’s timely filing of a Motion for Reconsideration
 - According to **Section 2, Rule 19 of the COMELEC Rules of Procedure**, timely Motion for Reconsideration shall suspend the execution or implementation of the resolution
- Moreover, proclamation of respondent Locsin violates the settled doctrine (**Domino v. COMELEC; Trinidad v. COMELEC**) that the candidate who obtains the second highest number of votes may not be proclaimed winner in case the winning candidate is disqualified.

LEGAL BASES

COMELEC Resolution No. 3402

COMELEC Rules of Procedure (Rule 14. Summons)

Section 72 of the Omnibus Election Code:

- Sec. 72. Effects of disqualification cases and priority. — The Commission and the courts shall give priority to cases of disqualification by reason of violation of this Act to the end that a final decision shall be rendered not later than seven days before the election in which the disqualification is sought.
Any candidate who has been declared by final judgment to be disqualified shall not be voted for, and the votes cast for him shall not be counted. **Nevertheless, if for any reason, a candidate is not declared by final judgment before an election to be disqualified and he is voted for and receives the winning number of votes in such election, his violation of the provisions of the preceding sections shall not prevent his proclamation and assumption to office."**

Sections 4&5 of COMELEC Rules of Procedure

Section 6 of R.A. No. 6646

- Effect of Disqualification Case. — Any candidate who has been declared by final judgment to be disqualified shall not be voted for, and the votes cast for him shall not be counted. If for any reason, a candidate is not declared by final judgment before an election to be disqualified and he is voted for and receives the winning number of votes in such election, the Court or Commission (COMELEC) shall continue with the trial or hearing of the action, inquiry, or protest and, upon motion of the complainant or any intervenor, may during the pendency thereof order the suspension of the proclamation of such candidate whenever the evidence of his guilt is strong.

Section 13, Rule 18 of the COMELEC Rules of Procedure

-Unless a motion for reconsideration is seasonably filed, a decision or resolution of a Division shall become final and executory after the lapse of five (5) days in Special Actions and Special Cases and after fifteen (15) days in all other actions or proceedings, following its promulgation.

Section 2, Rule 19 of the COMELEC Rules of Procedure

- Section 2. Period for filing Motion for Reconsideration. — A motion to reconsider a decision, resolution, order, or ruling of a Division shall be filed within five (5) days from the promulgation thereof. Such motion, if not pro forma, suspends the execution or implementation of the decision, resolution, order or ruling.

Domino v. COMELEC

- "It would be extremely repugnant to the basic concept of the constitutionally guaranteed right to suffrage if a candidate who has not acquired the majority or plurality of votes is proclaimed winner and imposed as representative of a constituency, the majority of which have positively declared through their ballots that they do not choose him."

Trinidad v. COMELEC

- Second placer could not take place of disqualified winner

ISSUE 2

Main – Substantive	W/N said proclamation divested COMELEC en banc of jurisdiction to review its validity since Locsin is already a HOR member	NO
RESPONDENT/S ARGUMENTS:		
Locsin argues that COMELEC has no jurisdiction to annul her proclamation. Questions on her eligibility/membership should be brought to the HRET (Sec. 17, Art. VI of the 1987 Const.) Quo warranto with the HRET should be filed.		
RULING and RATIO DECIDENDI:		
On the validity of Locsin's proclamation: • The validity of the respondent's proclamation was a core issue in the Motion for Reconsideration filed by the petitioner. • Petitioner argued that "the Second Division's directive for the immediate proclamation of the second highest vote-getter is premature considering that the Resolution has yet to become final and executory." • Section 3, Article IX-C of the 1987 Constitution empowers the COMELEC en banc to review, on motion for reconsideration, decisions or resolutions decided by a division. • Because recon was timely filed (before the proclamation), COMELEC en banc retained full jurisdiction to review the 2nd Div's decision. The Order of the Second Division has not attained finality & motion for recon suspends its execution -> can't be used as basis for assumption of office as duly elected representative.		

ON HRET jurisdiction:

- HRET has no jurisdiction. At the time of Locsin's proclamation, the validity of COMELEC 2nd Div's resolution was challenged by the petitioner. Thus, the issue was still within COMELEC's jurisdiction, not the HRET's. HRET has no jurisdiction to review resolutions or decisions of the COMELEC, whether issued by a division or en banc

On quo warranto:

- A petition for quo warranto may be filed only against one who was duly elected and proclaimed on the grounds of ineligibility and disloyalty to the Republic of the Philippines at the time of such proclamation.
- A petition for quo warranto in the HRET is directed against one who has been duly elected and proclaimed for **having obtained the highest number of votes** but whose eligibility is in question at the time of such proclamation.
- Not the case here. She was not duly elected and there was no issue on her qualifications. Her proclamation was a patent nullity. She can't be subject of quo warranto since she lost the elections.
- Her premature assumption to office as Representative of the 4th legislative district of Leyte was void from the beginning. It is the height of absurdity for the respondent, as a loser, to tell petitioner Codilla, Sr., the winner, to unseat her via a quo warranto proceeding

LEGAL BASES**Section 3, Article IX-C of the 1987 Constitution**

Sec. 3. The Commission on Elections may sit en banc or in two divisions, and shall promulgate its rules of procedure in order to expedite disposition of election cases, including pre-proclamation controversies. All such election cases shall be heard and decided in division, provided that motions for reconsideration of decision shall be decided by the Commission en banc.

Rule 19. Motions for Reconsideration, COMELEC Rules of Procedure**ISSUE 3**

Side – Substantive	Assuming the invalidity of the said proclamation, W/N it is the ministerial duty of the public respondents to recognize petitioner Codilla, Sr. as the legally elected Representative of the 4th legislative district of Leyte vice respondent Locsin.	YES
--------------------	--	-----

RULING and RATIO DECIDENDI:

Under Rule 65, Section 3 of the 1997 Rules of Civil Procedure, for a mandamus petition to prosper, it must be shown that the subject of the petition is a *ministerial act* **not** purely discretionary.

A ministerial duty is one that must be performed in a prescribed manner, without the officer exercising discretion or judgment. An act is discretionary if the officer has the right to decide how/when duty shall be performed.

In this case, administering Codilla's oath and registering him in the House Roll of Members are **ministerial duties**, not discretionary. The facts were settled: Codilla received 71,350 votes, while Locsin received 53,447. The COMELEC en banc overturned its Second Division and ordered Codilla's proclamation, and this decision was not challenged and had become final and executory.

In sum, the issue of who is the rightful Representative of the 4th legislative district of Leyte has been finally settled by the COMELEC en banc, the constitutional body with jurisdiction on the matter. The rule of law demands that its Decision be obeyed by all officials of the land. There is no alternative to the rule of law except the reign of chaos and confusion.

LEGAL BASES**Rule 65, Section 3 of the 1997 Rules of Civil Procedure**

Section 3. Petition for mandamus. — When any tribunal, corporation, board, officer or person unlawfully neglects the performance of an act which the law specifically enjoins as a duty resulting from an office, trust, or station, or unlawfully

excludes another from the use and enjoyment of a right or office to which such other is entitled, and there is no other plain, speedy and adequate remedy in the ordinary course of law,

**FINAL
DECISION**

IN VIEW WHEREOF, the Petition for mandamus is granted. Public Speaker of the House of Representatives shall administer the oath of petitioner EUFROCINO M. CODILLA, SR., as the duly-elected Representative of the 4th legislative district of Leyte. Public respondent Secretary-General shall likewise register the name of the petitioner in the Roll of Members of the House of Representatives after he has taken his oath of office. This decision shall be immediately executory.

Velasco v. Belmonte, Jr.

DOCTRINE

When a winning candidate's Certificate of Candidacy (COC) is cancelled by a final and executory decision of the COMELEC (affirmed with finality by the Supreme Court) prior to election or assumption of office for lack of constitutional eligibility, her proclamation is null and void *ab initio*, her votes are stray, and the qualified candidate obtaining the highest number of valid votes who is duly proclaimed by a Special Board of Canvassers possesses a clear legal right to the office; under such circumstances, the Speaker and Secretary-General of the House of Representatives have a purely ministerial duty under Rule 65 to administer the oath of office to the rightful representative and enter his name in the Roll of Members.

RECITATION SUMMARY

In the May 13, 2013 congressional election for the Lone District of Marinduque between petitioner Lord Allan Jay Q. Velasco and respondent Regina Ongsiako Reyes, the COMELEC First Division cancelled Reyes' COC on March 27, 2013 in SPA No. 13-053 (DC) for lack of Filipino citizenship and failure to meet the 1-year residency requirement under Section 6, Article VI of the Constitution. The COMELEC *En Banc* affirmed the cancellation on May 14, 2013. Despite knowledge of this ruling, the Marinduque Provincial Board of Canvassers (PBOC) prematurely proclaimed Reyes on May 18, 2013. On June 5, 2013, COMELEC issued a Certificate of Finality, and Reyes took an oath before Speaker Belmonte on June 7, 2013. On June 25, 2013, the Supreme Court *En Banc* dismissed Reyes' petition (*Reyes v. COMELEC*, G.R. No. 207264), holding that COMELEC retained jurisdiction because HRET jurisdiction requires the concurrence of a valid proclamation, proper oath, and assumption of office. Subsequently, on July 9, 2013, COMELEC *En Banc* in SPC No. 13-010 declared Reyes' proclamation null and void *ab initio* and proclaimed Velasco; on July 10, 2013, COMELEC ordered a New PBOC to proclaim Velasco, which proclaimed him on July 16, 2013 with 48,396 votes. On October 22, 2013, the Supreme Court denied Reyes' MR in G.R. No. 207264 with finality. Despite Velasco's repeated formal demands, Speaker Belmonte and Sec. Gen. Barua-Yap refused to administer Velasco's oath or enter his name in the Roll of Members, while Reyes continued occupying the seat. Velasco filed a Petition for *Mandamus* before the Supreme Court. The Supreme Court granted *mandamus*, holding that: (1) the petition is one for *mandamus* (to enforce final executory rulings) and not *quo warranto*; (2) Reyes' COC was void *ab initio*, rendering her proclamation void and her votes stray, making Velasco the sole qualified candidate and rightful winner under *Aratea/Maquiling*; (3) HRET had no jurisdiction over Reyes due to her invalid proclamation and lack of status as a bona fide Member (as explicitly acknowledged by HRET itself when it dismissed the twin *quo warranto* cases on December 14, 2015); and (4) Speaker Belmonte and Sec. Gen. Barua-Yap have a purely ministerial duty under *Codilla, Sr. v. De Venecia* to recognize final judgements of COMELEC and the Supreme Court by swearing in Velasco and entering his name in the Roll of Members.

MATERIAL FACTS & PROCEDURAL HISTORY

- **Legally Relevant Parties & Relationship:**
 1. *Petitioner:* Lord Allan Jay Q. Velasco (duly proclaimed Representative of the Lone District of the Province of Marinduque).
 2. *Public Respondents:* Hon. Speaker Feliciano R. Belmonte, Jr. (Speaker, House of Representatives) and Hon. Marilyn B. Barua-Yap (Secretary General, House of Representatives).
 3. *Private Respondent:* Regina Ongsiako Reyes (disqualified candidate occupying the congressional seat for Marinduque).
- **Chronological Material Facts:**
 1. In the May 13, 2013 elections, petitioner Velasco and respondent Reyes were rival candidates for Representative of the Lone District of Marinduque.
 2. On March 27, 2013, the COMELEC First Division issued a Resolution in SPA No. 13-053 (DC) granting Joseph Socorro Tan's petition to cancel Reyes' COC for material misrepresentations regarding her citizenship (failure to comply with R.A. No. 9225) and residency (failure to meet 1-year requirement under Art. VI, Sec. 6).
 3. On May 14, 2013, COMELEC *En Banc* promulgated a Resolution affirming the cancellation of Reyes' COC.

4. On May 18, 2013, despite notice of the May 14 COMELEC Resolution, the Marinduque PBOC prematurely proclaimed Reyes as winner.
5. On June 5, 2013, COMELEC issued a Certificate of Finality in SPA No. 13-053 (DC).
6. On June 7, 2013, Reyes took an oath of office before Speaker Belmonte.
7. On June 10, 2013, Reyes filed a petition for *certiorari* before the Supreme Court (G.R. No. 207264).
8. On June 25, 2013, the Supreme Court En Banc dismissed Reyes' petition in G.R. No. 207264, holding that COMELEC retained jurisdiction because HRET jurisdiction requires the concurrence of a valid proclamation, proper oath, and assumption of office (which begins June 30).
9. At noon on June 30, 2013, Reyes assumed office and began discharging functions.
10. On July 9, 2013, in SPC No. 13-010, COMELEC *En Banc* declared Reyes' May 18, 2013 proclamation null and void *ab initio* and proclaimed Velasco the winning candidate. Reyes did not challenge this Resolution before the Supreme Court.
11. On July 10, 2013, COMELEC *En Banc* in SPA No. 13-053 (DC) granted execution, constituted a New PBOC of Marinduque, and directed the proclamation of Velasco.
12. On July 16, 2013, the New PBOC proclaimed Velasco as the duly elected Representative of Marinduque with 48,396 votes obtained from 245 clustered precincts.
13. On October 22, 2013, the Supreme Court denied Reyes' MR in G.R. No. 207264 with finality and ordered Entry of Judgment.
14. On December 11, 2013, COMELEC issued an Order in SPC No. 13-010 directing that certified copies of all final resolutions and the Certificate of Proclamation of Velasco be served on Speaker Belmonte for guidance and implementation.
15. Velasco sent multiple formal letters (December 2013, February 2014) requesting Speaker Belmonte to administer his oath and Sec. Gen. Barua-Yap to register his name, but public respondents refused to act.
16. On December 14, 2015, the HRET issued a Resolution in HRET Case Nos. 13-036 and 13-037 (*Tan/Mapacpac & Junio v. Reyes*) dismissing the *quo warranto* cases against Reyes for lack of jurisdiction, citing the SC's final ruling in G.R. No. 207264 that Reyes lacked a valid proclamation and was not a Member of the House.

- **Procedural History:**

1. Petitioner Velasco filed a Petition for *Mandamus* with prayer for TRO/Injunction under Rule 65 directly before the Supreme Court (G.R. No. 211140).

● PARTIES' MATERIAL ARGUMENTS

- **Petitioner's (Lord Allan Jay Q. Velasco) Claims:**

1. *Clear Legal Right*: He has a well-defined, clear legal right to the office based on final and executory resolutions of COMELEC (SPA No. 13-053 and SPC No. 13-010) and the Supreme Court (G.R. No. 207264), rendering Reyes' COC cancelled *ab initio*, her proclamation void, and Velasco the duly proclaimed winning candidate.
2. *Ministerial Duty of House Officers*: Under *Codilla, Sr. v. De Venecia*, Speaker Belmonte and Sec. Gen. Barua-Yap have a purely ministerial duty to administer his oath of office and register his name in the Roll of Members.
3. *Unlawful Usurpation*: Reyes is unlawfully holding and usurping the office without valid COC or proclamation, causing him financial and legal prejudice.

- **Respondents' Claims:**

1. *Private Respondent Reyes*: The petition is actually an action for *quo warranto* beyond SC jurisdiction because HRET has sole jurisdiction over House Members under Art. VI, Sec. 17 once proclaimed, sworn, and assumed; Velasco as second placer cannot be declared winner; Velasco is estopped for having filed an *Ad Cautelam* protest in HRET.
2. *Public Respondents Speaker Belmonte & Sec. Gen. Barua-Yap (OSG)*: HRET acquired exclusive jurisdiction upon Reyes' proclamation on May 18, 2013; SC rulings in G.R. No. 207264 did not specifically direct or order the House to swear in Velasco or unseat Reyes; Velasco and House officers were not formal parties in G.R. No. 207264.

● ISSUES

1. **Whether the petition filed by Velasco** is one for *mandamus* or a disguised action for *quo warranto*.
 2. **Whether the House of Representatives Electoral Tribunal (HRET) acquired exclusive jurisdiction** over Reyes' eligibility and the congressional seat to the exclusion of COMELEC and the Supreme Court.
 3. **Whether petitioner Velasco possesses a clear legal right** to the office of Representative for the Lone District of Marinduque, and **whether public respondents Speaker Belmonte, Jr. and Secretary General Barua-Yap have a purely ministerial duty** enforceable by *mandamus* to administer Velasco's oath of office and register his name in the Roll of Members of the House of Representatives.
-

♥ **HOLDING AND RATIO DECIDENDI**

ISSUE 1: Characterization of Action — Mandamus vs. Quo Warranto

HOLDING: The petition is a **PETITION FOR MANDAMUS**, not a *quo warranto* case.

RATIO & DETAILED COURT LOGIC:

1. **Distinction Between Quo Warranto and Mandamus:**
 - A petition for *quo warranto* is a proceeding to determine the right of a person to the use or exercise of an office and to oust the holder from its enjoyment when title to the office is in dispute.
 - A petition for *mandamus* lies to enforce clear legal duties when the petitioner's right is clear and uncontroverted.
 2. **Absence of Disputed Title:**
 - Title to the office is no longer in dispute or subject to triable issue.
 - Final and executory judgments of COMELEC (SPA No. 13-053 and SPC No. 13-010) and the Supreme Court (G.R. No. 207264) have already conclusively settled that Reyes' COC was void *ab initio*, her proclamation was nullified, and Velasco was proclaimed winner.
 - Velasco seeks merely to compel public officers to perform clear, non-discretionary legal duties resulting from these final judgments.
-

ISSUE 2: Jurisdiction of HRET vs. COMELEC and the Supreme Court

HOLDING: NO. The HRET did **NOT** acquire jurisdiction over Reyes or the congressional seat. Jurisdiction remained with COMELEC and the Supreme Court.

RATIO & DETAILED COURT LOGIC:

1. **Requisites for HRET Jurisdiction:**
 - Under Section 17, Article VI of the 1987 Constitution, HRET is the sole judge of all contests relating to the election, returns, and qualifications of *Members* of the House of Representatives.
 - To be considered a "Member of the House of Representatives" over whom HRET assumes jurisdiction, there must be a **concurrence of three requisites**: (a) a valid proclamation, (b) a proper oath, and (c) assumption of office (*Reyes v. COMELEC*, G.R. No. 207264).
2. **Nullity of Reyes' Proclamation and Lack of Valid COC:**
 - The COMELEC cancelled Reyes' COC on May 14, 2013—*before* her premature proclamation by the PBOC on May 18, 2013.
 - Without a valid COC, a candidate is a non-candidate; any proclamation made in defiance of a COMELEC cancellation is null and void *ab initio*.
 - The confluence of taking an oath and physically assuming office under a void proclamation cannot transform a non-candidate into a bona fide Member of the House.
3. **HRET's Own Recognition of Lack of Jurisdiction:**
 - On December 14, 2015, the HRET issued a Resolution in HRET Case Nos. 13-036 and 13-037 (*Tan/Mapacpac & Junio v. Reyes*) explicitly acknowledging that, pursuant to the Supreme Court's final ruling in G.R. No. 207264, Reyes lacked a valid proclamation and was not a

Member of the House, and consequently **dismissed the quo warranto cases for lack of jurisdiction.**

- Because HRET itself ruled it had no jurisdiction, there was no pending proceeding before HRET that barred the Supreme Court from enforcing its own final judgment.

ISSUE 3: Petitioner's Clear Legal Right and Ministerial Duty of House Officers Enforceable by Mandamus

HOLDING: YES. Petitioner Velasco possesses a **CLEAR LEGAL RIGHT** to the office, and public respondents Speaker Belmonte, Jr. and Sec. Gen. Barua-Yap have a **PURELY MINISTERIAL DUTY** to administer his oath and register his name, enforceable by **MANDAMUS**.

RATIO & DETAILED COURT LOGIC:

1. **Application of the Qualified Second-Placer Rule (*Aratea v. COMELEC*; *Maquiling v. COMELEC*):**
 - Where a candidate's COC is cancelled *ab initio* for material misrepresentation/ineligibility, all votes cast in her favor are stray votes.
 - The ineligible candidate is legally a non-candidate who was never a first placer.
 - Consequently, the eligible candidate obtaining the highest number of valid votes (Velasco, with 48,396 votes) is not a "second placer," but the sole winning candidate entitled to proclamation and assumption of office.
2. **Conclusiveness of Judgment and Immutability:**
 - The Supreme Court's final judgment in G.R. No. 207264 affirming the cancellation of Reyes' COC and COMELEC's final resolution in SPC No. 13-010 nullifying Reyes' proclamation and proclaiming Velasco are binding on all public officers, including the House leadership.
 - Under the doctrine of immutability of judgments, a final decision cannot be re-litigated, modified, or disregarded by any official or branch of government.
3. **Ministerial Duty under *Codilla, Sr. v. De Venecia*:**
 - Under Rule 65, Section 3 of the Rules of Court, *mandamus* lies when a public officer unlawfully neglects the performance of an act which the law specifically enjoins as a duty resulting from an office.
 - A duty is ministerial when an officer performs it in a given state of facts, in obedience to the mandate of a legal authority, without regard to or the exercise of his own judgment upon the propriety of the act.
 - Citing *Codilla, Sr. v. De Venecia*, once title to the legislative office is conclusively settled by the competent constitutional authority (COMELEC and the Supreme Court), the House Speaker and Secretary-General have no discretion or judgment to exercise.
 - Administering the oath to the proclaimed winner (Velasco) and entering his name in the Roll of Members are purely ministerial duties resulting from their official stations. The rule of law demands that decisions of the Supreme Court and COMELEC be obeyed by all officials of the land.

DECISION & DISPOSITION:

The Supreme Court **GRANTED** the Petition for *Mandamus*:

1. Public respondent Hon. Feliciano R. Belmonte, Jr., Speaker of the House of Representatives, shall **ADMINISTER THE OATH OF OFFICE** of petitioner Lord Allan Jay Q. Velasco as the duly-elected Representative of the Lone District of the Province of Marinduque.
2. Public respondent Hon. Marilyn B. Barua-Yap, Secretary General of the House of Representatives, shall **REGISTER THE NAME** of petitioner Lord Allan Jay Q. Velasco in the Roll of Members of the House of Representatives after he has taken his oath of office.
3. This Decision was declared **IMMEDIATELY EXECUTORY**.

VELASCO V. SPEAKER (2016)

Topic Subtopic	Electoral Tribunals	GR No. & Ponente	G.R. No. 21140 J. Leonardo-De Castro
Petitioner/s	Lord Allan Jay Q. Velasco	Respondent/s	Hon. Speaker Feliciano R. Belmonter Jr.; Secretary General Marilyn B. Barua-Yap; Regina Ongsiako Reyes
Doctrine	The HRET acquires jurisdiction over an election contest only when the respondent is a bona fide Member of the House. If a person's COC and proclamation are nullified before they (illegally) assume office, the HRET has no jurisdiction over the case.		

FACTS

- **SPA 12-053 (DC) (Oct. 12, 2012)** → Tan (a registered voter and resident of Marinduque) filed with COMELEC a petition to deny due course or cancel the COC of Reyes for the position of Representative
 - Alleged that Reyes made several material misrepresentations in her COC
 - COMELEC First Division granted the petition cancelling Reyes' COC
 - Reyes filed a motion for reconsideration, but while this was pending, the 2013 elections were held
- **May 14, 2013** → COMELEC en banc affirmed the COMELEC First Division resolution
 - Copies of this resolution were received by the Provincial Election Supervisor of Marinduque, as well as Reyes's counsel
- **May 18** → Despite its receipt, the Marinduque PBOC proclaimed Reyes as winner of the elections
 - Velasco filed an *Election Protest Ad Cautelam* against Reyes with the HRET (Case 13-028)
 - On the same date, a *Petition for Quo Warranto Ad Cautelam* was filed against Reyes by Matienzo in the HRET (Case 13-027)
- **SPA 13-053 (DC) (June 5)** → COMELEC en banc issued a Certificate of Finality for the May 14 resolution, given that more than 21 days have lapsed with no order from SC restraining its execution
 - Nonetheless, Speaker Belmonte Jr. administered the oath of office to Reyes
- **G.R. No. 207264 (June 10)** → Reyes filed before the SC a Petition for Certiorari, assailing the May 14 resolution and the June 5 Certificate of Finality
 - June 25 → Court promulgated a resolution dismissing Reyes' petition, holding that Reyes cannot assert that it is HREt which has jurisdiction since she is not yet considered an House Member
- **SPC No. 13-010** → Velasco also filed a Petition for Certiorari before COMELEC assailing the proceedings of the PBOC and the proclamation of Reyes as null and void but was initially denied
 - July 9 → reversed the denial of this petition, and declared the proclamation of Reyes null and void + proclaimed Velasco as the winning candidate
- **July 10** → COMELEC en banc issued an order granting Tan's motion for execution of the May 14 resolution and directing the reconstitution of a new PBOC of Marinduque to proclaim Velasco as Representative
 - July 16 → New PBOC proclaimed Velasco as duly elected House Member
 - July 22 → 16th Congress formally convened, w/ Reyes taking her oath before Speaker Belmonte Jr
- **July 23** → Reyes filed a *Manifestation and Notice of Withdrawal of Petition*, claiming that HRET is now the proper forum
 - Oct. 22 → Reyes's motion for reconsideration was denied by the Court, with her second motion for reconsideration denied once again
- Velasco sent two letters to Reyes thereafter demanding that she vacate the office and relinquish it to him
 - Velasco also wrote a letter to Speaker Belmonte Jr. that he be allowed to assume the position
- **Dec. 11** → COMELEC directed copies of its resolutions in 13-053 + 13-010 + Certificate of Finality + July 10 order + Certificate of Proclamation be forwarded to Speaker Belmonte Jr.
 - Velasco wrote another letter to the Speaker but to no avail, so he wrote another letter to Sec. Gen. Barua-Yap reiterating his earlier requests, but his efforts proved futile
- Velasco filed this Petition for Mandamus with prayer for issuance of a TRO and/or injunction with SC
 - Anchored his position on *Codilla Sr. v. De Venecia* → the Speaker of the HRep has the ministerial duty to recognize the petitioner as the duly elected representative
 - In recent developments, HRET promulgated a resolution dismissing HRET Cases 13-036 and 13-037 (quo warranto petitions against Reyes) → no jurisdiction over petitions because Reyes is not a Member of the house due to her invalid proclamation (nullity of COC upheld by the SC)

ISSUE 1

Main – Procedural	W/N the issuance of a writ of mandamus can compel Speaker Belmonte Jr. and Sec. Gen. Barua-Yap to perform the specific acts sought by Velasco	YES
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
It is the ministerial duty of Speaker Belmonte Jr. to administer the oath to Velasco and allow him to assume the position. The Speaker & Sec. Gen are neglecting the performance of such duties.		Reyes contended that the petition is actually one for <i>quo warranto</i> , not mandamus given that it seeks a declaration that she usurped the subject office. OSG also argued that the petitioner is not entitled to the injunctive reliefs prayed for.
RULING and RATIO DECIDENDI:		
- This special civil action is really one for <i>mandamus</i> and not a <i>quo warranto</i> case - The petition is not one for the determination of the right of Velasco to the claimed office → it is merely the enforcement of clear legal duties - Any person may file a verified petition for mandamus "when any tribunal... or person unlawfully neglects the performance of an act which the law specifically enjoins as a duty..." - A petition for mandamus will proper if it is shown that the subject thereof is a ministerial act/duty - Ministerial act → an officer performs in obedience to the mandate of a legal authority, without regard to the exercise of his own judgment - Discretionary act → if the law gives an officer the right to decide the performance of a duty - Speaker Belmonte Jr. & Sec. Gen. Barua-Yap have no discretion whether or not to administer the oath of office to Velasco and register his name in the Roll of Members due to the final & executory resolutions		
LEGAL BASES		
Rule 65, Sec. 3 of the Rules of Court <i>Petition for mandamus</i> — When any tribunal, corporation, board, or person unlawfully neglects the performance of an act which the law specifically enjoins as a duty resulting from an office, trust, or station, or unlawfully excludes another from the use and enjoyment of a right or office to which such other is entitled, and there is no other plain, speedy and adequate remedy in the ordinary course of law, the person aggrieved thereby may file a verified petition in the proper court alleging the facts with certainty and praying that judgment be rendered commanding the defendant, immediately or at some other specified time, to do the act required to be done to protect the rights of the petitioner, and to pay the damages sustained by the petitioner by reason of the wrongful acts of the defendant.		

ISSUE 2

Main – Substantive	W/N it is actually the HRET that has jurisdiction to resolve petitions regarding Reyes' election / proclamation	NO
RESPONDENT/S ARGUMENTS:		
It is HRET that has jurisdiction given that she has already been proclaimed, taken her oath, and started to discharge her duties as House Member.		
RULING and RATIO DECIDENDI:		
- COMELEC cancelled Reyes' COC due to her non-eligibility to run as representative. Without a valid COC, Reyes could not be treated as a candidate in the election and much less as a duly proclaimed winner. - This COMELEC decision was promulgated even before Reyes' proclamation, and was affirmed by the Court's final and executory resolutions. - Court's declaration of five undisputed facts which supports why Velasco now has a well-defined right to warrant the grant of the petition for mandamus + COMELEC and Court's acts are within their jurisdiction		

- At the time of Reyes' proclamation, COC was already cancelled by COMELEC en banc
 - Since no restraining order was forthcoming, the PBOC should not have proclaimed Reyes
- SC upheld the COMELEC decision cancelling Reyes' COC
- COMELEC cancelled Reyes' proclamation and proclaimed Velasco as the duly elected Member
 - Said resolution has not been challenged by Reyes in any proceeding
- When Reyes took her oath of office, she had no valid COC nor a valid proclamation
- Reyes has absolutely **no legal basis to serve as a Member** and has **no legal personality** to be recognized **as a party-respondent at a quo warranto proceeding** before HRET
 - This is HRET's basis for ruling that it has no jurisdiction over the twin petitions for quo warranto, given that Reyes is not a bona fide member for a lack of a valid proclamation

FINAL DECISION

WHEREFORE, the Petition for Mandamus is GRANTED. Public respondent Hon. Feliciano R. Belmonte, Jr., Speaker, House of Representatives, shall administer the oath of office of petitioner Lord Allan Jay Q. Velasco as the duly-elected Representative of the Lone District of the Province of Marinduque. And public respondent Hon. Marilyn B. Barua-Yap, Secretary General, House of Representatives, shall register the name of petitioner Lord Allan Jay Q. Velasco in the Roll of Members of the House of Representatives after he has taken his oath of office. This Decision shall be IMMEDIATELY EXECUTORY.

DISSENT - Brion

TLDR: The present petition for mandamus must be dismissed as petitioner Velasco failed to comply with all five requirements for the issuance of the writ of mandamus. Most importantly, the petitioner's speedy remedy to address his situation lies with the HRET and the HOR, not with the Court. In any case, the remedy of mandamus does not lie against the HOR, a co-equal branch, under the circumstances of the case and would be an unwarranted intrusion and impermissible usurpation by this Court of the authority and functions of the HOR and of the HRET.

1: Velasco failed to comply with all five reqs for the issuance of the writ of mandamus

1. **No showing of any clear and unmistakable right.** → cited legal grounds are inadmissible
 - a. SPA No. 13-053 (Socorro B. Tan v. Regina Ongsiako-Reyes) and Reyes v. Comelec rulings cannot extend to Reyes' election, returns, and qualification as Marinduque Rep NOR do they vest in Velasco the title to hold the position, even assuming Reyes' COC was properly cancelled
 - i. Velasco not a party
 - ii. Rulings were simply summary in nature (dismissed the case outright)
 1. Outright dismissal made despite plea from Dissent that the case be fully heard because it would benefit the son of a sitting Justice
 2. Didn't hear Tan, HRET, COMELEC, and SolGen on Reyes' positions and args, *particularly on the issue of delineation of jurisdiction between HRET and COMELEC*
 - iii. Courts rulings never declared nor recognized Velasco as duly-elected Rep of Marinduque
 - iv. Didn't consider and rule on any matter other than material misrep allegedly committed
 - v. By outright dismissing certiorari petition, Court's majority declared COMELEC retained its jurisdiction
 - vi. Cannot be used as basis for requested issuance of writ
 - b. SPC No. 13-010's dismissal was only reversed after June 30, when she already underwent proclamation, oath, and assumption. → altered the legal situation, Reyes now Member of the HOR whose election, returns, and qualification are subject to the jurisdiction of the HRET.

- i. COMELEC dismissed the petition to declare Reyes' May 18, 2013 proclamation void on June 19, 2013 → Reyes was candidate COMELEC recognized as duly proclaimed winner when she assumed office on June 30, 2013
- ii. EVEN IF eventually declared proclamation void, the reversal only happened after Reyes had taken her oath and assumed office based on a standing proclamation
- c. Intervening factual developments
 - i. Reyes already assumed office even before Reyes v. COMELEC became final and executory
 - ii. When COMELEC took actions to enforce proclamation of Velasco, Reyes was already member of HOR
 - iii. THUS, mandamus petition is not a continuation of Reyes v. COMELEC and shouldn't be resolved on the basis of bare finality of other cases/petitions because the intervening factual developments significantly altered the *consequent legal effects* of COMELEC and SC's previous rulings.
- d. Reyes' holding of the office could not have worked injustice and seriously prejudiced Velasco with her receipt of the salaries, allowance, bonuses, and emoluments that pertain to the office.
 - i. Public office is a public trust. Salaries are merely secondary to public service.
 - ii. The right to office should be clear and without doubt in order to receive salaries → Velasco's right is not clear and without doubt

2. **No clear, established, and specific duty or unlawful neglect in Speaker Belmonte and SecGen Barua-Yap's performance of ministerial acts.** (*dissent only enumerated 3 requisites, but my assumption is underlined ones here are 3-in-1*)

- a. At the very least, he failed to show that the respondents have the clear and specific legal duty to allow a second-placer candidate like him whose right to the contested congressional seat is substantially doubtful, to assume office until all doubts resolved in his favor.
- b. HOR acted pursuant to law when admitted Reyes. After this admission, they cannot be compelled to remove her without order from HRET.

3. **Absence of any other plain, speedy, and adequate remedy**

- a. Even if the petition was presented as *mandamus*, petition ultimately seeks to oust Reyes → challenge should have been brought up to HRET through a) election protest, or b) verified petition for quo warranto
- b. Velasco knew of these remedies, seen when he filed election protest before HRET on May 31, 2013 but now just glosses over this legal reality

2: **The grant of the writ violates separation of powers.**

- *Mandamus* will not lie against a coordinate branch (aka HOR represented by Belmonte and Barua-Yap) and is only available against inferior court, tribunal, etc.
- No grave abuse of discretion to justify resort to SC's expanded jurisdiction
- No compelling and equitable reasons to justify grant
 - Remedy in law through HRET was available to petitioner

It should not be forgotten that Reyes won by a convincing margin over Velasco, but the latter chose to fight his electoral battle in the Comelec, bypassing thereby the verdict against him of the people of Marinduque. The merits of the Comelec ruling is likewise not beyond doubt from the point of view of the imputed due process violations. The better view, under the circumstances and as posited above, is to allow internal matters within the HOR to take their natural course.

Reyes v. House of Representatives Electoral Tribunal

DOCTRINE

The requirement under Rule 6(a) of the 2015 Revised Rules of the House of Representatives Electoral Tribunal (HRET)—that the presence of at least one Supreme Court Justice and a total of four Members is necessary to constitute a quorum—is constitutional, as it preserves the institutional balance between the Judicial and Legislative departments envisioned by the framers of the Constitution to ensure judicial impartiality in legislative election contests without violating the Equal Protection Clause.

RECITATION SUMMARY

Petitioner Representative Regina Ongsiako Reyes, who had two pending *quo warranto* cases before the HRET, filed a petition for *certiorari* challenging the 2015 Revised Rules of the HRET. She argued that Rule 6(a) unconstitutionally grants Supreme Court Justices virtual veto power and superior status over legislative members by requiring the presence of at least one Justice to form a quorum, and that Rule 15 (in relation to Rules 17 and 18) improperly expanded COMELEC's jurisdiction by conditioning HRET's jurisdiction on three requisites (valid proclamation, proper oath, and assumption of office). The Supreme Court dismissed the petition, ruling that: (1) the quorum requirement preserves the constitutional balance between the 3 Justice-members and 6 Legislator-members, ensuring that neither department is excluded from deliberations and that judicial temper is maintained; (2) there is a valid classification between Justices and Legislators under the Equal Protection Clause; and (3) requiring the concurrence of a valid proclamation, proper oath, and assumption of office to determine HOR membership adheres to settled jurisprudence on when HRET's exclusive jurisdiction attaches.

MATERIAL FACTS & PROCEDURAL HISTORY

- **Legally Relevant Parties & Relationship:** Petitioner Regina Ongsiako Reyes was proclaimed Representative of the Lone District of Marinduque. Respondent House of Representatives Electoral Tribunal (HRET) is the constitutional body created under Section 17, Article VI of the 1987 Constitution as the sole judge of all contests relating to the election, returns, and qualifications of Members of the House of Representatives.
- **Chronological Material Facts:**
 1. Two separate *quo warranto* petitions were filed against petitioner Reyes before the HRET: Case No. 13-036 (*Noeme Mayores Tan and Jeasseca L. Mapacpac v. Regina Ongsiako Reyes*) and Case No. 13-037 (*Eric D. Junio v. Regina Ongsiako Reyes*).

2. On November 1, 2015, the HRET published the 2015 Revised Rules of the House of Representatives Electoral Tribunal (2015 HRET Rules).
 3. Under Rule 6(a) of the 2015 HRET Rules, the presence of at least one (1) Justice and four (4) Members of the Tribunal is necessary to constitute a quorum.
 4. Under Rule 15 (paragraph 2) of the 2015 HRET Rules, to be considered a Member of the House of Representatives, there must be a concurrence of three requisites: (1) a valid proclamation; (2) a proper oath; and (3) assumption of office.
- **Procedural History:** Petitioner filed a Petition for *Certiorari* directly before the Supreme Court under Rule 65, challenging the constitutionality of Rule 6(a), Rule 6 in relation to Rule 69, and Rule 15 (paragraph 2) in relation to Rules 17 and 18 of the 2015 HRET Rules. The HRET filed its Comment through its Tribunal Secretary, while the Office of the Solicitor General (OSG) was excused from representing HRET.
-

● PARTIES' MATERIAL ARGUMENTS

- **Petitioner's (Regina Ongsiako Reyes) Claims:**
 1. *Rule 6(a) (Quorum Requirement):* Grants Justices virtual veto power over proceedings by allowing them to halt deliberations simply by absenting themselves, confers greater individual power on Justices than on legislators (since 6 legislators present cannot form a quorum without 1 Justice), and violates the Equal Protection Clause by making Justices indispensable members.
 2. *Rule 6 in relation to Rule 69 (Voting and Inhibition):* Is ambiguous and undemocratic because if members inhibit, a decision could theoretically be rendered by a minute fraction of remaining members.
 3. *Rule 15, paragraph 2, in relation to Rules 17 and 18 (Jurisdiction & Membership):* Unconstitutionally expands COMELEC's jurisdiction between election day and June 30 (or actual assumption of office) by requiring three concurrent requisites before HRET assumes jurisdiction.
 - **Respondent's (HRET) Claims:**
 1. *Rule-Making Authority & Substantial Distinction:* HRET possesses constitutional power to promulgate its own procedural rules. A substantial distinction exists between 3 Justice-members and 6 Legislator-members, justifying the quorum classification.
 2. *Judicial Equilibrium:* Requiring at least 1 Justice ensures judicial balance in deciding election contests (a judicial function) and guarantees that a 4-member quorum includes at least 2 Legislators; the "veto power" claim is speculative and improperly imputes bad faith.
 3. *Definition of Membership:* Defining HOR membership through valid proclamation, proper oath, and assumption of office reflects established constitutional law and defines when HRET's exclusive jurisdiction attaches.
-

● ISSUES

1. **Whether Rule 6(a)** (requiring the presence of at least one Justice and four Members to constitute a quorum) and **Rule 6 in relation to Rule 69** of the 2015 HRET Rules violate the Equal Protection Clause or unconstitutionally confer superior power upon Supreme Court Justices over Legislators.
 2. **Whether Rule 15 (paragraph 2), in relation to Rules 17 and 18** of the 2015 HRET Rules, unconstitutionally expands the jurisdiction of the COMELEC or encroaches upon the HRET's exclusive jurisdiction under Article VI, Section 17 of the Constitution.
-

♥ HOLDING AND RATIO DECIDENDI

ISSUE 1: Constitutionality of Rule 6(a) (Quorum Requirement) and Rule 6 in relation to Rule 69 (Voting & Inhibition)

HOLDING: NO. Rule 6(a) and Rule 6 in relation to Rule 69 of the 2015 HRET Rules are **CONSTITUTIONAL**.

RATIO & DETAILED COURT LOGIC:

1. Constitutional Architecture and Historical Intent of the Electoral Tribunal:

- Under Section 17, Article VI of the 1987 Constitution, the HRET is a composite, independent, constitutional body composed of nine (9) Members: three (3) Supreme Court Justices designated by the Chief Justice, and six (6) Members of the House of Representatives chosen on the basis of proportional representation.
- Tracing its origin to the Electoral Commissions under the 1935 Constitution (*Tañada v. Cuenco* and *Angara v. Electoral Commission*), the framers deliberately transferred the power to decide legislative election contests from the legislature itself to a composite, quasi-judicial tribunal.
- The primary purpose of placing three Supreme Court Justices alongside six legislators (three from the majority party and three from the minority party) was to neutralize partisan influence, inject judicial temper, and ensure that the decisive balance of power rests in an impartial judicial component.

2. Mathematical and Structural Mechanics of Rule 6(a):

- Petitioner argues that requiring at least one Justice for a quorum subordinates legislators to Justices. The Court rejected this logic.
- Rule 6(a) requires the presence of **at least one (1) Justice AND four (4) Members total** to constitute a quorum.
- Mathematically, even if all three (3) Justices are present, at least two (2) Legislators must be present to form a quorum of four. Conversely, if all six (6) Legislators were allowed to convene without any Justice present, they could hold sessions and decide cases entirely devoid of the judicial component—thereby completely defeating the constitutional mandate creating a multi-departmental tribunal.

- Therefore, Rule 6(a) does not make Justices superior; rather, it renders representatives from **both** the Judicial and Legislative departments mutually indispensable to constitute a quorum, thereby preserving institutional balance.

3. **Equal Protection Analysis:**

- The Equal Protection Clause (Art. III, Sec. 1) permits reasonable classification based on substantial distinctions germane to the purpose of the law.
- There is a clear substantial distinction between Justice-members (3) and Legislator-members (6) in terms of number, department of origin, and institutional function. The classification is directly germane to ensuring dual-department representation in every official meeting.

4. **Rejection of "Veto Power" and Bad Faith Speculation:**

- Petitioner's claim that Justices could exercise "virtual veto power" by intentionally absenting themselves is purely speculative and improperly ascribes bad faith to Members of the Judiciary without evidence.
- Furthermore, Article VI, Section 17 mandates that the Senior Justice shall act as Chairman. If Justices inhibit, the Supreme Court has the authority to designate Special Members as temporary replacements.

5. **Refutation of Petitioner's Ambiguity Claim under Rule 69:**

- Petitioner claimed that under Rule 69, if members present inhibit, a decision could be rendered by a single remaining member.
- The Court held this scenario absurd. A member who inhibits or is disqualified **cannot** sit in deliberations or be counted for quorum purposes.
- Under Rule 69, whenever the required quorum cannot be met due to inhibitions or disqualifications, the Supreme Court or the House of Representatives is expressly authorized to designate Special Members as temporary replacements to ensure a valid quorum and decision.

6. **Validity of Executive Committee Actions (Rule 6(b) & (c)):**

- Under Rule 6(b) and (c), when fewer than a quorum meet (at least 3 members including 1 Justice), they act merely as an Executive Committee on urgent, interlocutory, or administrative matters.
- Crucially, any action taken by the Executive Committee is **provisional and strictly subject to mandatory confirmation** by the full Tribunal at its next meeting where a valid quorum is present.

ISSUE 2: Constitutionality of Rule 15 (Paragraph 2) in relation to Rules 17 and 18 (HOR Membership & HRET Jurisdiction)

HOLDING: NO. Rule 15 (paragraph 2) in relation to Rules 17 and 18 is **CONSTITUTIONAL**.

RATIO & DETAILED COURT LOGIC:

1. The Three Requisites for Membership in the House of Representatives:

- Petitioner asserted that Rule 15 unconstitutionally allowed COMELEC to retain jurisdiction past election day.
- The Court reiterated settled constitutional jurisprudence (*Reyes v. COMELEC*): for the HRET's exclusive jurisdiction to attach, the candidate must first become a full-fledged Member of the House of Representatives.
- Membership in the House of Representatives requires the concurrence of **three cumulative requisites**:
 1. A **valid proclamation**;
 2. A **proper oath** of office; and
 3. **Assumption of office** (typically starting June 30 of the election year).

2. Exclusivity of HRET Jurisdiction:

- Once all three requisites concur, the candidate becomes a Member of the House of Representatives, and HRET's jurisdiction automatically attaches as the **sole judge** of all contests relating to election, returns, and qualifications pursuant to Article VI, Section 17.
- There is no overlap or expansion of COMELEC's jurisdiction; before these three requisites concur, jurisdiction over pre-proclamation and qualification disputes remains with COMELEC; once they concur, HRET assumes exclusive jurisdiction.

3. Clarification of Filing Reckoning Dates (HRET Resolution No. 16, Series of 2018):

- Addressing practical difficulties in tracking exact dates of oath-taking or assumption of office, the Court took judicial notice that the HRET enacted Resolution No. 16 (Series of 2018, effective October 11, 2018), amending Rules 17 and 18.
- *Amended Rule 17 & 18 Standard*: An election protest or petition for *quo warranto* must be filed within **fifteen (15) days from June 30 of the election year** if the winning candidate was proclaimed on or before that date; or within **fifteen (15) days from the date of proclamation** if proclaimed after June 30.
- This amendment provided an objective, fixed reckoning point, eliminating any uncertainty for losing candidates while staying fully within HRET's constitutional rule-making authority.

DECISION & DISPOSITION:

The Supreme Court **DISMISSED** the petition for *certiorari* for lack of merit, upholding the constitutional validity of the 2015 Revised Rules of the House of Representatives Electoral Tribunal.

Reyes v. HRET (2018)

Topic Subtopic	Congress - Electoral Tribunals	GR No. & Ponente	G.R. No. 221193 Carpio, J.
Petitioner/s	Regina Ongsiako Reyes	Respondent/s	House of Representatives Electoral Tribunal
Doctrine	The presence of the three Justices in the HRET is meant to tone down the political nature of the cases involved and do away with the impression that party interests play a part in the decision-making process		

FACTS

- Assailed is the constitutionality of the 2015 Revised Rules of the HRET published by the House of Representatives Electoral Tribunal on 1 November 2015.

Context:

- Petitioner **Regina Ongsiako Reyes** alleges that she has two pending quo warranto cases before the HRET, and the publication of the new rules made by HRET could prejudice her cases pending in HRET.
- Reyes, in her petition for **certiorari**, particularly challenges the constitutionality of several provisions of the **2015 Revised Rules**, particularly:
 - (1) **Rule 6(a) - On Quorum**
 - Mandated that the HRET shall meet at the call of the Chairperson or a majority of its Members, and that the *presence of at least one (1) justice and four (4) members of the tribunal shall be necessary to constitute a quorum*
 - (2) **Rule 6(b) & (c) - Executive Committees**
 - Provided that in the absence of a quorum, *if at least one (1) justice is present, the members present (not less than 3) may constitute an Executive Committee to act on urgent or delegated admin/procedural matters, subject to confirmation by the Tribunal at the next meeting where a quorum is present*
 - (3) **Rule 15 - Requisites of Membership**
 - Declared that to be considered a member of the HOR over whom HRET has jurisdiction over, there must be 3 requisites: *(1) valid proclamation, (2) valid oath, and (3) assumption of office*
 - In relation to Rule 17 & 18 - Filing Deadlines** fixed deadline for filing verified election protests or quo warranto petitions within 15 days from June 30 of the election year or the date of actual assumption of office, whichever is later.
 - (4) **Rule 69 - Decision Voting & Inhibitions**
 - Required that the concurrence of at least five (5) members for the rendition of decisions or formal resolutions, BUT provided that where a member inhibits or cannot take part in deliberations, a majority vote of remaining members shall be sufficient

ISSUE 1

	W/N Rule 6(a) of the 2015 HRET Rules (requiring the presence of at least 1 Justice to constitute a quorum) is constitutional	YES
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
Unconstitutional as it grants more power to Justices over the proceedings by: - simply absenting themselves from hearing - requiring the presence to constitute a quorum -> even if the six legislators are		There are only 3 justice-members vs. 6 legislator members. Requirement of 4 members assures at least 2 legislators to be part of quorum. Presence of at least 1 justice maintains judicial equilibrium – duty to decide election cases is a judicial function

present, they still cannot act as a body.	Assuming absence = imputes bad faith on the justices
RULING and RATIO DECIDENDI:	
The allegation has no merit. • The HRET is a collegial body with members from separate departments of the government (Section 17, Article VI) to ensure impartiality in the judgment of cases. • It is the Framers' intent to make the tribunal an independent constitutional body ◦ <u>Tañada and Macapagal v. Cuenco</u>: ▪ The presence of the 3 Justices is meant to tone down the political nature of the cases involved and do away with the impression that party interests play a part in the decision-making process of the Tribunal. ▪ 3 members of the majority (party having the largest # of votes), 3 members of the minority (party having the second largest # of votes), 3 Justices of the SC (non-partisan) ◦ <u>Angara v. Electoral Commission</u>: A composite body with equal representation of majority and minority parties to offset partisan influence, and 3 SC justices to give it a judicial temper. • Rule 6 does not grant additional powers to the Justices but rather maintains the judicial equilibrium between the members from the Judicial and Legislative branches of the government as envisioned by the framers of the 1935 and 1987 Constitutions. ◦ Ensures that members from both Judicial and Legislative departments become indispensable to constitute a quorum • The requirement under Rule 6(a) of the 2015 HRET Rules means that even when all the Justices are present, at least 2 members of the House of Representatives need to be present to constitute a quorum. ◦ Without this rule, it would be possible for 5 members of the House of Representatives to convene and have a quorum even when no Justice is present, rendering ineffective the rationale contemplated by the framers of the 1935 and 1987 Constitutions for placing the Justices as members of the HRET. • "the senior Justice shall be its Chairman" -> there shd always be 1 member of a Tribunal who is a Justice ◦ The claim that Justices could exercise "veto power" by deliberately absenting themselves is purely speculative and improperly imputes bad faith to members of the Judiciary. Under Section 17, Article VI, the Senior Justice serves as Chairperson. ◦ If Justices inhibit or are absent, the Supreme Court designates Special Members/replacement Justices to ensure continuous operation. • Does not violate the equal protection clause. ◦ A law is not invalid bc of simple inequality. ◦ Distinction between the 3 Supreme Court Justices and 6 House members in the HRET is substantial and reasonable, ensuring representation of both the Judicial and Legislative branches for quorum purposes.	
LEGAL BASES	
Rule 6. Meetings; Quorum; Executive Committee Actions on Matters in between Regular Meetings (a) The Tribunal shall meet on such days and hours as it may designate or at the call of the Chairperson or of a majority of its Members. The presence of at least one (1) Justice and four (4) Members of the Tribunal shall be necessary to constitute a quorum. In the absence of the Chairperson, the next Senior Justice shall preside, and in the absence of both, the Justice present shall take the Chair. Section 17 Art. VI. The Senate and the House of Representatives shall each have an Electoral Tribunal which shall be the sole judge of all contests relating to the election, returns, and qualifications of their respective Members. Each Electoral Tribunal shall be composed of nine Members, three of whom shall be Justices of the Supreme Court to be designated by the Chief Justice, and all the remaining six shall be Members of the Senate or the House of Representatives, as the case may be, who shall be chosen on the basis of proportional representation from the political parties and the parties or organizations registered under the party-list system represented therein. The senior Justice in the Electoral Tribunal shall be its Chairman.	

Section 1 Art. III.

No person shall be deprived of life, liberty, or property without due process of law, nor shall any person be denied the equal protection of the laws.

ISSUE 2

	W/N Rule 6 in relation to Rule 69 of the 2015 HRET Rules is constitutional	YES
PETITIONER/S ARGUMENTS:		
Ambiguous because: - it requires only presence of at least 1 justice and 4 members of the tribunal - For the 4 members, could still include other 2 justices as it is not limited to legislators. - In the case of inhibition, the mere majority of the REMAINING Members shall be sufficient not the majority of ALL the Members to render a decision.		
RULING and RATIO DECIDENDI:		
• The ambiguity allegation is absurd and erroneous • A member who inhibits or is disqualified cannot be counted as present for quorum • Instead, Rule 69 shows that the Supreme Court or HOR may designate a Special Member/s as a temporary replacement when quorum cannot be met due to disqualification/inhibition from the case. • Even if only three members of the HRET acted as an Executive Committee, and even if all these three members are Justices of the Supreme Court, their actions are subject to the confirmation by the entire Tribunal or at least five of its members who constitute a quorum (Rule 69).		
LEGAL BASES		
Rule 69. Votes Required. — In passing on all questions submitted to the Tribunal, all the Members present, including the Chairman, shall vote. For the rendition of decisions and the adoption of formal resolutions, the concurrence of five (5) Members shall be necessary. <i>BUT provided that where a member inhibits or cannot take part in deliberations, a majority vote of remaining members shall be sufficient</i>		

ISSUE 3

	W/N Rules 15 in relation to 17 of the 2015 Rules is constitutional	YES
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:	
Unconstitutionally expanded the jurisdiction of COMELEC (HRET should be sole judge) to retain jurisdiction past election day Previously, proclamation was the operative fact for HRET to acquire jurisdiction. The Revised Rules now requires that to be considered a Member of HOR there should be 1) valid proclamation 2) proper oath 3) assumption of office COMELEC would have enough time to assume juris.	Requirement of the 3 requisites is within the power of HRET to make	
RULING and RATIO DECIDENDI:		
No expansion of COMELEC power - Under the 2015 HRET Rules, the HRET is the sole judge of all contests relating to the election, returns, and qualifications of its Members of the HOR, consistent with Article VI, Section 17 of the 1987 Const. - COMELEC cannot assume jurisdiction.		

- The Court reiterated settled constitutional jurisprudence (*Reyes v. COMELEC*): for the HRET's exclusive jurisdiction to attach, the candidate must first become a full-fledged Member of the House of Representatives
 - Membership in the House of Representatives requires the concurrence of three cumulative requisites:
 - Valid proclamation
 - Proper oath
 - Assumption of office
 - Once all three requisites concur, the candidate becomes a Member of the House of Representatives, and HRET's jurisdiction automatically attaches as the sole judge of all contests relating to election, returns, and qualifications pursuant to Article VI, Section 17
 - There is no overlap or expansion of COMELEC's jurisdiction; before these three requisites concur, jurisdiction over pre-proclamation and qualification disputes remains with COMELEC; once they concur, HRET assumes exclusive jurisdiction

On reckoning dates

- Under the 2015 HRET Rules, the reckoning date for filing an election protest or *quo warranto* petition was uncertain -> it depended on the winning candidate's oath-taking and assumption of office (could be not publicly known -> difficult to keep track for losing candidate)
- With this, the HRET amended Rules 17 and 18 in 2018 to use a definite reckoning point to set deadline and remove uncertainty
 - either June 30 of the election year if the winner was proclaimed by then, or the date of proclamation if proclaimed after June 30 clarifying

Rule 15. Jurisdiction. — The Tribunal is the sole judge of all contests relating to the election, returns, and qualifications of the Members of the House of Representatives.

Amended Rule 17: ...**within fifteen (15) days from June 30 of the election year**, if the winning candidate was proclaimed on or before said date. However, if the winning candidate was proclaimed after June 30 of the election year, a verified election protest shall be filed within fifteen (15) days from the date of proclamation.

Amended Rule 18: ...**within fifteen (15) days from June 30 of the election year**, if the winning candidate was proclaimed on or before said date. However, if the winning candidate was proclaimed after June 30 of the election year, a verified petition for quo warranto shall be filed within fifteen (15) days from the date of proclamation.

FINAL DECISION

WHEREFORE, we DISMISS the petition.

Pimentel, Jr. v. House of Representatives Electoral Tribunal

DOCTRINE

Under Sections 17 and 18, Article VI of the 1987 Constitution, the authority to elect members to the House of Representatives Electoral Tribunal (HRET) and the Commission on Appointments (CA) is vested exclusively in the House of Representatives as a legislative chamber; hence, party-list representatives seeking proportional seats in the HRET and CA must first submit their nominations and demonstrate their numerical claim directly before the House, as neither the HRET nor the CA possesses the internal authority to alter or reconstitute its own membership, rendering direct judicial recourse before the Supreme Court premature under the doctrine of primary jurisdiction.

RECITATION SUMMARY

Following the May 11, 1998 national elections, fourteen (14) party-list representatives were elected to the House of Representatives pursuant to Republic Act No. 7941. When the House subsequently elected its contingents to the HRET and the CA, only district representatives belonging to major political parties were chosen, as party-list groups had not submitted any nominations. Senator Aquilino Pimentel, Jr. wrote to the Chairmen of the HRET and CA requesting the restructuring of both constitutional bodies to allocate seats to party-list representatives pursuant to Sections 17 and 18, Article VI of the Constitution. The HRET referred the letter to the Secretary General of the House of Representatives, as neither tribunal possessed internal authority to alter its own membership. Petitioners then filed consolidated petitions for prohibition and mandamus to compel the HRET and CA to reconstitute themselves. The Supreme Court dismissed the petitions, holding that: (1) primary jurisdiction rests with the House of Representatives, which alone holds the constitutional power to elect its members to the HRET and CA; (2) the petitions were premature because party-list groups never submitted nominations or sought election within the House; (3) neither HRET nor CA committed grave abuse of discretion since neither body has the power under the Constitution or its internal rules to reconstitute its own membership; (4) the party-list petitioners lacked *locus standi* as none had been nominated or unlawfully excluded by the House; and (5) the controversy was rendered moot by the intervening May 14, 2001 national elections.

MATERIAL FACTS & PROCEDURAL HISTORY

• Legally Relevant Parties & Relationship:

1. *Petitioners*: Senator Aquilino Q. Pimentel, Jr. (suing as Senator, member of the CA, and taxpayer) and five (5) party-list representatives: Melvyn D. Eballe (APEC), Leonardo Q. Montemayor (ABA), Cresente C. Paez (COOP-NATCCO), Loretta Ann P. Rosales (AKBAYAN), and Patricia M. Sarenas (ABANSE).

2. *Respondents*: The House of Representatives Electoral Tribunal (HRET), its Chairman Justice Jose A.R. Melo, Justices Vicente V. Mendoza and Jose C. Vitug, and Representatives Asani S. Tammang, Raul M. Gonzales, Didagen P. Dilangalen, Danton Q. Bueser, Napoleon R. Beratio, and Simeon E. Garcia (G.R. No. 141489); the Commission on Appointments (CA), its Chairman Senate President Blas F. Ople, and its Senator and Representative Members (G.R. No. 141490); and Speaker Manuel B. Villar, Jr..

- **Chronological Material Facts:**

1. On March 3, 1995, Republic Act No. 7941 (Party-List System Act) took effect to implement Section 5, Article VI of the 1987 Constitution, allocating 20% of the total seats in the House of Representatives to party-list representatives.
2. On May 11, 1998, national elections were held, resulting in the election and proclamation of 14 party-list representatives from 13 party-list organizations (including APEC with 2 seats, and ABA, COOP-NATCCO, AKBAYAN, and ABANSE with 1 seat each), alongside district representatives.
3. Subsequently, the House of Representatives constituted its contingents to the HRET (6 seats) and the CA (12 seats) by electing district representatives nominated by major political parties. The party-list groups in the House did not nominate any of their representatives to the HRET or the CA, nor did they participate in the election process for these seats.
4. On January 18, 2000, Senator Pimentel wrote separate letters to CA Chairman Senate President Ople and HRET Chairman Justice Melo, requesting the restructuring of both bodies to include party-list representatives pursuant to Sections 17 and 18, Article VI of the Constitution.
5. On January 20, 2000, the HRET resolved to refer Senator Pimentel's letter to the Secretary General of the House of Representatives (Roberto P. Nazareno).

- **Procedural History:**

1. On February 2, 2000, petitioners filed original petitions for prohibition and mandamus with prayer for preliminary injunction (G.R. Nos. 141489 and 141490) before the Supreme Court.
2. On February 8, 2000, the Supreme Court En Banc consolidated the two petitions.
3. On February 11, 2000, petitioners amended their petitions to implead Speaker Manuel B. Villar, Jr. as an additional respondent, which the Court admitted.

● PARTIES' MATERIAL ARGUMENTS

- **Petitioners' Claims:**

1. Under Sections 17 and 18, Article VI of the Constitution and Section 11 of R.A. No. 7941, party-list representatives are entitled to proportional representation in constitutional bodies—specifically 1.2 (or at least 1) seat in the HRET and 2.4 seats in the CA.

2. The HRET and the CA committed grave abuse of discretion in failing or refusing to reconstitute and reconfigure their memberships to include party-list representatives upon Senator Pimentel's request.
 3. Major district political parties (specifically LAKAS and the Liberal Party) were over-represented in the HRET and CA relative to their numerical share in the House, and their members should be ousted and replaced by party-list nominees.
 - **Respondents' (and Solicitor General's) Claims:**
 1. The petitions are procedurally defective and premature because petitioners failed to allege or prove that any party-list representative was ever nominated or elected by the House of Representatives to sit in the HRET or CA.
 2. Neither the HRET nor the CA has the constitutional or internal legal power to alter or reconstitute its own membership; that elective prerogative belongs exclusively to the House of Representatives as a legislative chamber.
-

● ISSUES

1. **Whether the present composition of the House contingent in the HRET and the CA violates the constitutional requirement of proportional representation** under Sections 17 and 18, Article VI of the Constitution due to the absence of party-list representatives.
 2. **Whether the failure or refusal of the HRET and the CA to reconstitute themselves** to include party-list representatives constitutes grave abuse of discretion.
 3. **Whether petitioners possess the requisite *locus standi* to institute the petitions, and whether the controversy was rendered moot** by subsequent supervening elections.
-

♥ HOLDING AND RATIO DECIDENDI

ISSUE 1: Proportional Representation of Party-List Representatives in HRET/CA, Primacy of House Election, and Primary Jurisdiction

HOLDING: NO. The Court cannot declare the composition unconstitutional or compel reorganization at this stage. Direct recourse to the Supreme Court is **PREMATURE** under the doctrine of primary jurisdiction because primary recourse lies exclusively with the House of Representatives.

RATIO & DETAILED COURT LOGIC:

1. **Exclusive Constitutional Elective Prerogative Vested in the House:**
 - Under Section 17, Article VI of the 1987 Constitution, the House of Representatives exercises the power to choose six (6) of its Members to sit in the HRET on the basis of proportional representation.
 - Under Section 18, Article VI of the 1987 Constitution, the House elects twelve (12) of its Members to sit in the CA on the basis of proportional representation.

- The authority to choose and elect Members to the HRET and CA is explicitly granted by the Constitution to the House of Representatives as a legislative chamber, not to the HRET or CA as independent bodies.
- 2. Requirement to Demonstrate Numerical Strength and Nominate Candidates:**
- To operationalize proportional representation, party-list representatives must first organize, demonstrate their combined numerical strength to the House, and submit common nominations for the seats allotted to the House in the HRET and CA.
 - The records show that after the May 11, 1998 elections, party-list groups in the House refrained from participating in the election process and failed to designate nominees for HRET or CA seats.
 - There was no showing that the House or its leadership prevented party-list representatives from nominating candidates or participating in elections for the HRET and CA.
- 3. Doctrine of Primary Jurisdiction & Separation of Powers:**
- Under the doctrine of primary jurisdiction, party-list representatives must first seek relief before the House of Representatives by asserting their numerical entitlement and submitting nominations.
 - Only if the House fails or refuses to comply with the constitutional directive of proportional representation after proper nomination can party-list representatives seek judicial review before the Supreme Court.
 - Under the separation of powers doctrine, the Court cannot interfere with the internal elective functions of the House absent a clear constitutional violation or grave abuse of discretion, nor can it speculate on how the House would act if party-list nominations were actually presented.

ISSUE 2: Absence of Grave Abuse of Discretion and HRET/CA's Lack of Power to Reconstitute Themselves

HOLDING: NO. Neither the HRET nor the CA committed grave abuse of discretion.

RATIO & DETAILED COURT LOGIC:

- 1. Absence of Authority to Reconstitute Membership:**
- Neither the HRET nor the CA possesses the constitutional or statutory authority to alter, reorganize, or reconstitute its own membership.
 - Sections 17 and 18, Article VI of the Constitution, Rules 3 and 4(a) of the 1998 HRET Rules, and Section 1 of the CA Rules explicitly place the power of electing legislative members exclusively in the House of Representatives.
- 2. Proper Action Taken by HRET:**
- When Senator Pimentel sent his letter requesting restructuring, HRET Chairman Justice Melo correctly referred the matter to the Secretary General of the House of Representatives (Roberto P. Nazareno), which was the only appropriate body capable of acting on legislative elections.

- Because neither the HRET nor the CA had the legal power to grant Senator Pimentel's request, their non-reconstitution of their bodies was in complete accord with the Constitution and did not constitute grave abuse of discretion.
-

ISSUE 3: Procedural Thresholds — Lack of Legal Standing (*Locus Standi*) and Mootness

HOLDING: Petitioners **LACK LEGAL STANDING**, and the petitions have been rendered **MOOT AND ACADEMIC**.

RATIO & DETAILED COURT LOGIC:

1. Lack of Personal and Substantial Interest (*Locus Standi*):

- To satisfy the requirements of judicial inquiry, a party raising a constitutional challenge must possess a personal and substantial interest (*locus standi*), demonstrating direct injury or unlawful deprivation of a right.
- The five party-list representative petitioners failed to allege or show that they were actually nominated by the party-list groups in the House to sit in the HRET or CA, or that they were personally entitled to and unlawfully deprived of those seats.
- Without nomination or direct exclusion, petitioners lacked the personal stake necessary to sharp-focus the constitutional issues. Senator Pimentel likewise could not assert standing on behalf of unnominated party-list members.

2. Mootness due to Intervening Elections:

- During the pendency of the case, national elections were held on May 14, 2001, resulting in a new set of district and party-list representatives for the 12th Congress.
 - The numerical composition of the House presented in the pleadings (based on the 11th Congress) no longer existed.
 - Passing upon the proportional representation of the 11th Congress after its term expired would amount to rendering an advisory opinion, which is outside the constitutional jurisdiction of the Supreme Court.
-

DECISION & DISPOSITION:

The Supreme Court **DISMISSED** the consolidated petitions for prohibition and mandamus.

Pimentel v. HRET (2002)

Topic Subtopic	Branches of the Government - Congress Electoral Tribunals	GR No. & Ponente	G.R No. 141489, G.R No. 141490 Carpio, J.
Petitioner/s	SENATOR AQUILINO Q. PIMENTEL, JR., REPRESENTATIVES MELVYN D. EBALLE, LEONARDO Q. MONTEMAYOR, CRESENTE C. PAEZ, LORETTA ANN P. ROSALES and PATRICIA M. SARENAS	Respondent/s	(GR 141489): HOUSE OF REPRESENTATIVES ELECTORAL TRIBUNAL, JUSTICES JOSE A.R. MELO, VICENTE V. MENDOZA and JOSE C. VITUG, and REPRESENTATIVES ASANI S. TAMMANG, RAUL M. GONZALES, DIDAGEN P. DILANGALEN, DANTON Q. BUESER, NAPOLEON R. BERATIO, SIMEON E. GARCIA and SPEAKER MANUEL B. VILLAR, JR., (GR No. 141490): COMMISSION ON APPOINTMENTS, its Chair, SENATE PRESIDENT BLAS F. OPLE, and Members, namely: SENATORS FRANKLIN M. DRILON, RENATO L. CAYETANO, LOREN LEGARDA-LEVISTE, ROBERT Z. BARBERS, ANNA DOMINIQUE M.L. COSETENG, GREGORIO HONASAN, RAMON B. MAGSAYSAY, JR., TERESA, AQUINO-ORETA, RAUL S. ROCO, FRANCISCO S. TATAD, VICENTE C. SOTTO III and REPRESENTATIVES LUIS A. ASISTIO, EMILIO R. ESPINOSA, JR., WIGBERTO E. TAÑADA, MANUEL M. GARCIA, SIMEON A. DATUMANONG, ANTONIO M. DIAZ, FAUSTINO S. DY, JR., PACIFICO M. FAJARDO, ERNESTO F. HERRERA, NUR G. JAAFAR, CARLOS M. PADILLA, ROGELIO M. SARMIENTO and SPEAKER MANUEL B. VILLAR, JR.,
Doctrine			

FACTS

This is a consolidated case of two original petitions for prohibition and mandamus with prayer for writ of preliminary injunction

- Assails the composition of: the House of Representatives Electoral Tribunal (HRET), and Commission on Appointments (CA).
- Prays that respondents be ordered to "alter, reorganize, reconstitute and reconfigure" the composition of the HRET and the CA to include party-list representatives in accordance with Sections 17 and 18, Article VI of the 1987 Constitution and Republic Act No. 7941, otherwise known as the Party-List System Act.
- Prays for enjoinder of HRET and CA from exercise of power until reorganization.

Antecedent Facts

Section 5, Article VI, 1987 Constitution provides for a party-list system in the House of Representatives.

- Section 5(1) provides that representatives who shall be elected from the legislative districts, as well as from registered national, regional, and sectoral parties or organizations on a uniform and progressive ration
- Section 5(2) provides that partylist representatives shall constitute twenty per centum of the total number of representatives, including those under the partylist system.

On March 3, 1995, the Party-List System Act took effect -> promote proportional representation in the House of Representatives, particularly of Filipinos belonging to marginalized and underrepresented sectors by giving them their own representatives

On March 11, 1995, national elections were held and for the first time, election of partylist representatives were held. 14 partylist representatives across 13 organizations were elected. The APEC partylist had 2 seats, while the remaining 12 partylists had 1 each.

The House subsequently constituted its HRET and CA contingents by electing its representatives to both bodies. These representatives are nominated by their respective parties to serve on the HRET and CA. The winning party-lists did not nominate any of their sitting representatives to either body. As a result, both contingents were composed solely of district representatives belonging to the different political parties.

On January 18, 2000, Senator Pimentel Jr wrote to both Senate President Blas F. Ople, as Chairman of the CA, and Associate Justice Melo, as then Chairman of the HRET, to request that they cause the restructuring of their respective bodies to include partylist representatives in compliance with Sections 17 and 18, Article VI, of the 1987 Constitution. Senator Pimentel, Jr's letter was directed to the Secretary of HRET on January 20, who then referred the letter to the Secretary General of the House of Representatives.

On February 2, 2000, the petitioners filed this instant petition for Prohibition, Mandamus, and Preliminary Injunction with Prayer for Temporary Restraining Order against HRET and CA, as well as their Chairmen and Members.

- The petitioners contend that under the Constitution and the Party-List Act that the partylist representatives should have at least 1.2 seat in the HRET, and 2.4 seats in the CA.
- On February 8, these two petitions were consolidated into one. Later on, Speaker Manuel B. Villar, Jr. was additionally impleaded as a respondent as both Speaker of the House, and as a member for the CA.

Senator Pimentel, Jr. filed both petitions as a taxpayer and as a member of the CA, as well as on the strength of his oath to protect, defend, and uphold the Constitution. He was later joined by 5 partylist representatives from APEC, ABA, ABANSE, AKBAYAN, and COOP-NATCO as petitioners. They cited as basis Section 17 of the 1987 Constitution that provides that the electoral tribunals of the Senate and the House of Representatives will be each composed of nine members, six of which are members of either the Senate or the House of Representatives. These members **shall be chosen on the basis of proportional representation from both the political parties and partylists with seats in the House.**

They also cited Section 18 which provided that the Commission on Appointments shall consist of the Senate President as ex officio Chairman, twelve Senators, and twelve members of the House **who shall be elected by each House on the basis of proportional representation from the political parties and partylists represented therein.** Petitioners also invoked **Section 11 of RA 7941** which provides that partylist representatives shall constitute twenty per centum of the total number of the members of the House of Representatives.

The Solicitor General gave its comment that at the time of the petition, the House had 220 members, 14 of whom were partylist representatives. The partylist representatives comprise 6.3636% of the House, while the remaining 206 district representatives comprised the rest. Of the 206 representatives:

- 151 belonged to LAMP (68.6354%)
- 36 belonged to LAKAS (16.3636%)
- 13 belonged to Liberal Party (5.9090%)
- 1 member each to KBL, PDRLM, Aksyon Demokratiko, Reporma, and PROMDI (0.4545%)
- 1 independent (0.4545%)

The petitioners alleged in their reply that based on the Solicitor General's computation, LP and LAKAS were over-represented in the HRET and the CA and they similarly assailed the presence of one LP member in both bodies. They maintain that the LP members should be ousted and replaced with nominees from the 14 party-list representatives.

ISSUE 1

Main – Procedural	W/N the “procedural questions” in this case can be set aside so that the Court can rule on the issues raised in the petition (i.e. on the Composition of HRET/CA)	NO
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:

- Petitioners urge the Court to rule on the issues on the basis of Guingona, Jr. v Gonzales -> procedural questions must be set aside when there are properly raised constitutional issues that are of transcendental importance	- The Solicitor General argued that the instant petitions are procedurally defective and substantially lacking in merit for being filed prematurely as none of the petitioners aver that they were elected by their respective partylists or parties to be a member of the HRET or the CA.
--	--

RULING and RATIO DECIDENDI:

No. Court cannot set aside procedural matters and declare the composition of HRET/CA unconstitutional at this stage.

- **Direct recourse to the SC is premature under the doctrine of primary jurisdiction.**
 - They should have first sought recourse from the HOR directly as it is constitutionally empowered to choose which representatives to send to the HRET and the CA.
 - Under Section 17, Article VI of the 1987 Constitution, the House of Representatives exercises the power to choose six (6) of its Members to sit in the HRET on the basis of proportional representation.
 - Under Section 18, Article VI of the 1987 Constitution, the House elects twelve (12) of its Members each to sit in the CA on the basis of proportional representation.
- **They did not demonstrate numerical strength/nominate candidates in the first place.**
 - Party-list reps must first demonstrate they had the numerical strength to be entitled to the proportional number of seats and they should have common nominations for the seats allotted to them for HRET/CA
 - The records show that after the May 11, 1998 elections, party-list groups in the House refrained from participating in the election process and failed to designate nominees for HRET or CA seats.
 - The partylists do not have members in both bodies simply because they failed to designate nominees resulting in no one from their ranks being considered during the elections.
 - There was no showing that the House or its leadership prevented party-list representatives from nominating candidates or participating in elections for the HRET and CA.
 - They do not allege that they were prevented from participating in the elections of members of the HRET and the CA, nor were they barred from seeking membership in both.
 - They should have gone to the Court only when they have been able to prove the above they had the numbers to be entitled to seats, and the House failed to ensure proportional representation in both bodies.
 - a. Under the separation of powers, the Court cannot interfere with how the House conducts its constitutionally mandated duties if there is no violation of the Constitution or grave abuse of discretion.

LEGAL BASES

Article VI, 1987 Constitution

"Sec. 17. The Senate and the House of Representatives shall each have an Electoral Tribunal which shall be the sole judge of all contests relating to the election, returns and qualifications of their respective Members. Each Electoral Tribunal shall be composed of nine Members, three of whom shall be Justices of the Supreme Court to be designated by the Chief Justice, and the remaining six shall be Members of the Senate or the House of Representatives, as the case may be, who shall be chosen on the basis of proportional representation from the political parties and the parties or organizations registered under the party-list system represented therein. The senior Justice in the Electoral Tribunal shall be its Chairman."

"Sec. 18. There shall be a Commission on Appointments consisting of the President of the Senate, as ex officio Chairman, twelve Senators and twelve Members of the House of Representatives, elected by each House on the basis of proportional representation from the political parties and parties or organizations registered under the party-list system represented therein. The Chairman of the Commission shall not vote, except in case of a tie. The Commission shall act on all appointments submitted to it within thirty session days of the Congress from their

submission. The Commission shall rule by a majority vote of all the Members."

ISSUE 2

Main – Substantive	W/N there was grave abuse of discretion in the action or lack of action by the HRET and the CA in response to the letters of Senator Pimentel.	NO
PETITIONER/S ARGUMENTS:		
- HRET and CA committed grave abuse of discretion by failing to positively act on Senator Pimentel's letters.		
RULING and RATIO DECIDENDI:		
No, the HRET and the CA did not commit grave abuse of discretion in their lack of action on the letters of Senator Pimentel. Sections 17 and 18, Article VI of the 1987 Constitution, and their internal rules, do not confer them the power to reconstitute themselves. • When Senator Pimentel sent his letter requesting restructuring, HRET Chairman Justice Melo correctly referred the matter to the Secretary General of the House of Representatives (Roberto P. Nazareno), which was the only appropriate body capable of acting on legislative elections. • Because neither the HRET nor the CA had the legal power to grant Senator Pimentel's request, their non-reconstitution of their bodies was in complete accord with the Constitution and did not constitute grave abuse of discretion.		
LEGAL BASES		
• Sections 17 and 18, Article VI of the 1987 Constitution • 1998 Rules of the House of Representatives Electoral Tribunal: ○ Rule 3. Composition. — The Tribunal shall be composed of nine Members, three of whom shall be Justices of the Supreme Court to be designated by the Chief Justice, and the remaining six shall be Members of the House of Representatives who shall be chosen on the basis of proportional representation from the political parties and the parties or organizations registered under the party-list system represented therein. The Senior Justice in the Tribunal shall be its Chairman. ○ Rule 4. Organization. — (a) Upon the designation of the Justices of the Supreme Court and the election of the Members of the House of Representatives who are to compose the House of Representatives Electoral Tribunal pursuant to Sections 17 and 19 of Article VI of the Constitution, the Tribunal shall meet for its organization and adoption of such resolutions as it may deem proper." • Rules on the Commission on Appointments: ○ Section 1. Composition of the Commission On Appointments. Within thirty (30) days after both Houses of Congress shall have organized themselves with the election of the Senate President and the Speaker of the House of Representatives, the Commission on Appointments shall be constituted. It shall be composed of twelve (12) Senators and twelve (12) members of the House of Representatives, elected by each House on the basis of proportional representation from the political parties and parties or organizations registered under the party-list system represented herein.		

ISSUE 3

Side – Procedural	W/N the petitioners still possessed locus standi or are the issues now moot and academic due to subsequent events	YES
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:

RULING and RATIO DECIDENDI:

No locus standi

The five party-list representative petitioners failed to allege or show that they were actually nominated by the party-list groups in the House to sit in the HRET or CA, or that they were personally entitled to and unlawfully deprived of those seats.

- To satisfy the requirements of judicial inquiry, a party raising a constitutional challenge must possess a personal and substantial interest (*locus standi*), demonstrating direct injury or unlawful deprivation of a right.

Moot and academic

Yes, the issues are rendered academic because new district and partylists representatives have been elected to the House on May 14, 2001.

- The Court cannot resolve the issue of proportional representation in the HRET and CA based on the "present composition" of the House -> **new Representatives from May 14, 2001 elections**
- The instant petition is not the proper petition to assail the current composition of the HRET and CA -> **petition must fail otherwise ruling on the issues would result in an advisory opinion** (outside the jurisdiction of SC)

FINAL DECISION

WHEREFORE, the consolidated petitions for prohibition and mandamus are DISMISSED.
SO ORDERED.

Abayon v. House of Representatives Electoral Tribunal

DOCTRINE

While the House of Representatives Electoral Tribunal (HRET), as the sole judge of all contests relating to the election, returns, and qualifications of Members of the House of Representatives under Section 17, Article VI of the Constitution, possesses the concomitant quasi-judicial power to annul election results in contested precincts where terrorism or electoral fraud exists (as distinguished from COMELEC's administrative power to declare a failure of elections under R.A. No. 7166), such drastic power can only be exercised under exceptional circumstances upon clear and convincing evidence showing that terrorism affected more than 50% of the votes cast and that it is impossible to distinguish lawful from unlawful ballots.

RECITATION SUMMARY

In the May 13, 2013 elections for Representative of the First Legislative District of Northern Samar, petitioner Harlin C. Abayon won over respondent Raul A. Daza by a margin of 52 votes (72,857 votes against 72,805 votes) and was proclaimed. Daza filed an election protest before the HRET alleging massive fraud, vote-buying, and terrorism committed by the National Democratic Front-Eastern Visayas (NDF-EV) benefiting Abayon, while Abayon filed a counter-protest. Following a ballot revision in protested precincts that increased Abayon's lead by an additional 14 votes, Daza withdrew his cause of action for ballot revision/recount and elected to proceed solely on his cause of action for the annulment of election results in five (5) clustered precincts in Lavezares and Victoria on the ground of terrorism. The HRET dismissed Abayon's counter-protest and subsequently rendered a Decision annulling the election results in the five clustered precincts due to NDF-EV terrorism, deducting the votes therein, re-tabulating the totals (Daza = 72,436; Abayon = 72,002), and proclaiming Daza the winner. The Supreme Court reversed the HRET, holding that: (1) the HRET has jurisdiction to annul election results as an incident of its quasi-judicial mandate under Section 17, Article VI of the Constitution, which differs from COMELEC's administrative authority to declare a failure of elections under R.A. No. 7166; but (2) the HRET committed grave abuse of discretion because Daza failed to present clear and convincing evidence that terrorism affected more than 50% of the votes cast or prevented the majority from voting—since Daza presented only three (3) voter-witnesses who claimed they voted for Abayon out of fear, presented no evidence linking Abayon to the NDF-EV, and failed to overcome official COMELEC and PNP certifications affirming that the elections were peaceful and orderly. Consequently, Abayon was reinstated as the lawfully elected Representative.

MATERIAL FACTS & PROCEDURAL HISTORY

- **Legally Relevant Parties & Relationship:**
 1. *Petitioner:* Harlin C. Abayon (proclaimed winning candidate and Member of the House of Representatives for the First Legislative District of Northern Samar).
 2. *Private Respondent:* Raul A. Daza (losing candidate and protestant).
 3. *Public Respondent:* House of Representatives Electoral Tribunal (HRET).
- **Chronological Material Facts:**
 1. On May 13, 2013, national and local elections were held. Abayon and Daza were contenders for the position of Representative in the First Legislative District of Northern Samar, covering 332 clustered precincts.
 2. Out of the votes cast, Abayon obtained a majority vote of 72,857, while Daza placed second with 72,805 votes—a difference of 52 votes.
 3. On May 17, 2013, the Provincial Board of Canvassers of Northern Samar proclaimed Abayon as the duly elected Representative.
 4. On May 31, 2013, Daza filed an Election Protest before the HRET (HRET Case No. 13-023) challenging election results in 25 clustered precincts across the Municipalities of Biri, Capul, Catarman, Lavezares, San Isidro, and Victoria, alleging massive fraud, vote-buying, intimidation, and terrorism committed by Abayon and his armed cohorts/NDF-EV.
 5. On August 1, 2013, Abayon filed his Verified Answer with special and affirmative defenses and a Counter-Protest challenging the results in all 332 precincts.

6. On February 27, 2014, the HRET issued Resolution No. 14-055 finding both the protest and counter-protest sufficient in form and substance.
 7. On October 14–15, 2014, revision of ballots was conducted on the 25 clustered precincts protested by Daza. After revision, Abayon's votes increased by 28 and Daza's votes increased by 14 (netting Abayon an additional 14-vote lead).
 8. On September 3, 2015, Daza filed an Urgent Manifestation and Omnibus Motion to withdraw his cause of action for recount, revision, and reappreciation of ballots in Biri, Capul, and San Isidro, and prayed to proceed solely on his separate cause of action for the annulment of election results on the ground of terrorism in Lavezares and Victoria.
 9. On September 24, 2015 (Resolution No. 15-052), the HRET granted Daza's motion and directed the Hearing Commissioner to receive evidence on terrorism while holding Abayon's counter-protest in abeyance.
 10. On November 4, 2015, Daza moved to dismiss Abayon's counter-protest. On December 14, 2015 (Resolution No. 15-058), the HRET dismissed Abayon's counter-protest. Reconsideration was denied on January 21, 2016. Abayon filed a Petition for *Certiorari* before the Supreme Court (G.R. No. 222236).
 11. On February 3, 2016, the HRET rendered its Decision annulling the election results in five (5) clustered precincts in Lavezares and Victoria due to "massive terrorism." After deducting the votes cast in those 5 precincts, the HRET adjusted the tally to: Daza = 72,436 votes; Abayon = 72,002 votes (a 434-vote margin for Daza), and declared Daza the winning candidate.
 12. Abayon moved for reconsideration, which the HRET denied on March 7, 2016. Abayon then filed a Petition for *Certiorari* and Prohibition before the Supreme Court (G.R. No. 223032). The Supreme Court consolidated G.R. Nos. 222236 and 223032.
-

● PARTIES' MATERIAL ARGUMENTS

● Petitioner (Harlin C. Abayon) Claims:

1. *Lack of Jurisdiction to Annul Elections*: The HRET lacks jurisdiction to annul election results on the ground of terrorism. Annulment of election results based on terrorism is equivalent to declaring a failure of elections, which falls under the exclusive jurisdiction of the COMELEC *En Banc* pursuant to Section 4 of R.A. No. 7166 and Section 6 of the Omnibus Election Code.
2. *Grave Abuse of Discretion in Annuling Election Results*: Even if HRET had jurisdiction, it committed grave abuse of discretion because Daza failed to establish by clear and convincing evidence that terrorism affected more than 50% of the votes cast or made it impossible to distinguish good votes from bad. Official certifications from COMELEC and the PNP proved the elections were peaceful, orderly, and without failure of elections.
3. *Unlawful Dismissal of Counter-Protest*: The HRET violated Abayon's right to due process when it summarily dismissed his counter-protest merely because Daza withdrew his cause of action for ballot revision, as a counter-protest is an independent remedy that can only be summarily dismissed under Rule 21 of the 2011 HRET Rules.

● Respondents' (Raul A. Daza & HRET/OSG) Claims:

1. *HRET Jurisdiction*: The HRET's power to annul election results in an election protest differs from COMELEC's administrative power to declare a failure of elections; HRET possesses full, exclusive constitutional power under Article VI, Section 17 as sole judge of election contests, which includes annulling results tainted by fraud or terrorism.
 2. *Sufficiency of Evidence*: Clear and convincing evidence was presented—including voter testimonies, comic books, NDF-EV website posts, "pulong-pulong", and armed partisans at polling places—establishing that NDF-EV terrorism created pervasive fear and forced voters to vote for Abayon.
 3. *Procedural Defects & Discretion over Counter-Protest*: G.R. No. 222236 suffered from fatal procedural defects (forum shopping, failure to file MR, lack of case number), and HRET has the inherent prerogative to discontinue revision proceedings and dismiss counter-protests *motu proprio*.
-

● ISSUES

1. **Whether the HRET has jurisdiction** to annul election results in contested precincts on the ground of terrorism in an election protest involving a Member of the House of Representatives.
 2. **Whether the HRET committed grave abuse of discretion** in annulling the election results in the five (5) contested clustered precincts in the Municipalities of Lavezares and Victoria on the ground of terrorism.
 3. **Whether the HRET committed grave abuse of discretion** in dismissing petitioner Abayon's counter-protest, and whether this issue has been rendered moot.
-

 HOLDING AND RATIO DECIDENDI

ISSUE 1: Jurisdiction of the HRET to Annul Election Results vs. COMELEC's Power to Declare Failure of Elections

HOLDING: YES. The HRET has jurisdiction to annul election results in contested precincts as an incident of its constitutional mandate under Section 17, Article VI of the 1987 Constitution.

RATIO & DETAILED COURT LOGIC:

1. **Constitutional Breadth of HRET Jurisdiction:**
 - o Section 17, Article VI of the 1987 Constitution explicitly establishes that the HRET "shall be the sole judge of all contests relating to the election, returns, and qualifications of their respective Members."
 - o The phrase "election, returns, and qualifications" must be interpreted in its totality as referring to all matters affecting the validity of the contestee's title.
 - o The power granted to the HRET by the Constitution is intended to be as complete and unimpaired as if it had remained originally in the legislature.
 2. **Annulment of Elections as a Concomitant Power:**
 - o The power to annul election results is an essential incident concomitant to the HRET's constitutional duty to determine who among the candidates received the majority of valid votes cast.
 - o Depriving the HRET of the prerogative to annul elections when fraud, terrorism, or irregularities exist would undermine its constitutional mandate.
 3. **Distinction Between HRET Annulment and COMELEC Declaration of Failure of Elections:**
 - o *Judicial/Quasi-Judicial vs. Administrative Function:*
 - The HRET exercises a **quasi-judicial function** when it decides election contests between defeated and winning candidates. Annuling election results is an incident of this judicial function.
 - The COMELEC exercises an **administrative function** when it declares a failure of elections pursuant to Section 4 of R.A. No. 7166 and Section 6 of the Omnibus Election Code (*Sambarani v. COMELEC*; *Bedol v. COMELEC*).
 - o *Scope and Objective:*
 - The HRET annuls election results connected *strictly with the election contest before it* to determine who garnered a majority of legal votes cast (deducting invalid votes from the tally). No new election is held.
 - The COMELEC declares a failure of elections for an *entire precinct or political unit* with the objective of holding or continuing elections through **special elections**.
 4. **Absence of Jurisdictional Overlap:**
 - o Because the COMELEC acts administratively while the HRET acts quasi-judicially as sole judge of congressional election contests, there is no conflict or overlap of jurisdiction. Statutory enactments like R.A. No. 7166 cannot curtail the HRET's constitutional authority.
-

ISSUE 2: Grave Abuse of Discretion in Annuling Election Results on the Ground of Terrorism

HOLDING: YES. The HRET committed **GRAVE ABUSE OF DISCRETION** because its decision annulling the election results in the 5 contested clustered precincts was unsupported by clear and convincing evidence.

RATIO & DETAILED COURT LOGIC:

1. **Strict Legal Standard for Annulling Election Results:**

- The power to declare an annulment of election results must be exercised with **utmost care and caution**, and only under exceptional circumstances demonstrating beyond doubt that the disregard of the law was so fundamental or continuous that it is impossible to distinguish lawful from unlawful votes, or where the great body of voters was prevented by violence, intimidation, and threats from exercising their franchise (*Batabor v. COMELEC*).
- A protestant alleging terrorism must establish his claims by **clear and convincing evidence**.

2. **The Two Indispensable Concurrent Requisites:**

- Adopting the framework articulated in Justice Peralta's dissent in the HRET decision, the Court held that two (2) requisites must concur to justify the drastic action of nullifying an election:
 1. The illegality or terrorism must affect **more than fifty percent (50%)** of the votes cast in the specific precinct or precincts sought to be annulled; AND
 2. It is **impossible to distinguish with reasonable certainty** between the lawful and unlawful ballots.

3. **Evidentiary Failure of Protestant Daza:**

- *Insufficiency of Witness Testimonies*: Out of hundreds of registered voters in the 5 clustered precincts, Daza presented only **three (3) voter-witnesses** (Crisanto Camposano, Alex Rimbao, Melquiades Bornillo) who testified that they voted for Abayon out of fear of NDF-EV armed partisans. The other witnesses merely described general NDF-EV activities without stating that voters were actually coerced to vote for Abayon. Three voters cannot represent the majority or establish that over 50% of the votes cast were stifled.
- *Absence of Link to Petitioner Abayon*: Not a single piece of evidence directly connected Abayon as the perpetrator, mastermind, or inducer of the alleged terroristic acts committed by the NDF-EV. Uncorroborated allegations that Abayon gave money and guns to NDF-EV officials do not *per se* make him responsible for terrorism.
- *Lack of Police/Military Corroboration*: Testimonies of P/SSupt. Tonog and Col. Capulong did not state that NDF-EV partisans were deployed inside school premises during voting, nor was such a circumstance recorded in P/SSupt. Tonog's Post-Election Memorandum.
- *Primacy of Official Government Certifications*: Official certifications issued by Provincial Election Supervisor Atty. Antonio G. Gulay, Jr. (COMELEC) and P/SSupt. Lenaming (PNP) affirmed that elections in Northern Samar were generally peaceful, orderly, and without failure of elections. Under the presumption of regularity in the performance of official duty, these official pronouncements outweigh private, unsubstantiated affidavits (*Tan v. COMELEC*).
- *Unnatural Human Conduct*: Neither Daza nor the police reported the alleged massive terrorism to COMELEC or filed criminal complaints during the election period under COMELEC Resolution No. 9583. Failing to report pervasive armed threats to election authorities is contrary to human experience.

4. **Finding of Grave Abuse of Discretion:**

- A decision that is unsupported by substantial or clear and convincing evidence is tainted with grave abuse of discretion (*Tagolino v. HRET*).
- Using the testimonies of a minute fraction of voters to nullify election results disenfranchises the majority and subverts the popular will.

ISSUE 3: Propriety of Dismissal of Abayon's Counter-Protest

HOLDING: The issue regarding the dismissal of Abayon's counter-protest in G.R. No. 222236 is **MOOT AND ACADEMIC**.

RATIO & DETAILED COURT LOGIC:

1. With the Supreme Court's reversal of the HRET Decision and the declaration of Abayon as the lawfully elected Representative of the First District of Northern Samar, passing upon the propriety of the dismissal of his counter-protest serves no practical value.
2. Continuing with Abayon's counter-protest would be a redundancy considering that the Court has already fully upheld his election victory.

DECISION & DISPOSITION:

The Supreme Court **REVERSED and SET ASIDE** the February 3, 2016 Decision and March 7, 2016 Resolution of the House of Representatives Electoral Tribunal in HRET Case No. 13-023. Petitioner Harlin C. Abayon is **DECLARED** to be the lawfully elected Representative of the First Legislative District of Northern Samar in the May 13, 2013 Elections. The decision was ordered to be **IMMEDIATELY EXECUTORY**.

ABAYON v HRET (2016)

Topic Subtopic	Electoral Tribunal	GR No. & Ponente	222236 & 223032, Mendoza, J.
Petitioner/s	Harlin C. Abayon	Respondent/s	House of Representatives Electoral Tribunal, and Raul A. Daza
Doctrine	While HRET is the sole judge of all election, returns, and qualification of its members which includes the annulment of an election, the Court has also the duty to uphold the validity of an election in the exercise of people's free will and expression. In this case, the HRET annulled the election of several precincts without just cause; therefore, the Court ruled that HRET committed a grave abuse of discretion, and ruled to uphold the validity of elections. A decision that is not supported by sufficient evidence amounts to grave abuse of discretion.		

FACTS

- On May 13, 2013, national and local elections were held. Abayon and Daza were contenders for the position of Representative in the **First Legislative District of Northern Samar**, covering 332 clustered precincts.
- Abayon defeated Daza with 52 votes** (72,857 v 72,805). As a response, Daza filed an election protest before the HRET to challenge the election result in 25 clustered precincts due to fraud, vote buying, intimidation, employment of illegal and fraudulent devices and schemes before, during and after the elections benefitting Abayon and that terrorism was committed by the latter and his unidentified cohorts, agents and supporters.
- However, after the revision of ballots in the said precincts, Abayon vote increased by 28, while Daza by only 14; (netting Abayon an additional 14-vote lead)
- On September 3, 2015, Daza filed an Urgent Manifestation and Omnibus Motion to withdraw his cause of action for recount, revision, and reappreciation of ballots in Biri, Capul, and San Isidro, and prayed to proceed solely on his separate cause of action for the annulment of election results on the ground of terrorism in Lavezares and Victoria.
- HRET granted Daza's motion and directed the Hearing Commissioner to receive evidence on terrorism while holding Abayon's counter-protest in abeyance.
 - Daza moved to dismiss Abayon's counter-protest. Eventually, the HRET dismissed Abayon's counter-protest.
- On February 3, 2016, the HRET rendered its Decision annulling the election results in five (5) clustered precincts in Lavezares and Victoria due to "massive terrorism."
 - After deducting the votes cast in those 5 precincts, the HRET adjusted the tally to: Daza = 72,436 votes; Abayon = 72,002 votes (a 434-vote margin for Daza), and declared Daza the winning candidate.
- Abayon moved for reconsideration, which the HRET denied on March 7, 2016. Abayon then filed a Petition for Certiorari and Prohibition before the Supreme Court

ISSUE 1

Side – Substantive	W/N the HRET has jurisdiction to annul the elections in contested precincts	YES
RULING and RATIO DECIDENDI:		
YES. The petitioner erroneously claimed that under Sec 4 RA 7166¹, only COMELEC en banc has the power to annul election or declare failure of election. HRET has also the power to annul election under Sec 17 Art VI (1987)² which provides that HRET is the sole judge of all contests relating to the election, returns, and qualification of its member. The phrase "election, returns, and qualification" should be interpreted in its totality as referring to all matters		

affecting the validity of the contestee's life, and RA 7166 cannot deprive HRET of such power.

With this, the HRET has jurisdiction to determine whether there was terrorism in the contested precincts, and if proven, HRET could annul the election results in the said precincts.

HRET v COMELEC Power to Annul Election Results

Judicial/Quasi-Judicial vs. Administrative Function:

- The HRET exercises a quasi-judicial function when it decides election contests between defeated and winning candidates. Annulling election results is an incident of this judicial function.
- The COMELEC exercises an administrative function when it declares a failure of elections pursuant to Section 4 of R.A. No. 7166 and Section 6 of the Omnibus Election Code (*Sambarani v. COMELEC*; *Bedol v. COMELEC*).

Scope and Objective:

- The HRET annuls election results connected strictly with the election contest before it to determine who garnered a majority of legal votes cast (deducting invalid votes from the tally). No new election is held.
- The COMELEC declares a failure of elections for an entire precinct or political unit with the objective of holding or continuing elections through special elections.

Because the COMELEC acts administratively while the HRET acts quasi-judicially as sole judge of congressional election contests, there is no conflict or overlap of jurisdiction. Statutory enactments like R.A. No. 7166 cannot curtail the HRET's constitutional authority.

LEGAL BASES

1) SEC. 4. Postponement, Failure of Elections and Special Elections. - The postponement, declaration of failure of election and the calling of special elections as provided in Sections 5, 6 and 7 of the Omnibus Election Code shall be decided by the Commission sitting *en banc* by a majority vote of its members. The causes for the declaration of a failure of election may occur before or after the casting of votes or on the day of the election

2) Sec 17 Art VI (1987). The Senate and the House of Representatives shall each have an Electoral Tribunal which shall be the **sole judge of all contests relating to the election, returns, and qualifications of their respective Members**. Each Electoral Tribunal shall be composed of nine Members, three of whom shall be Justices of the Supreme Court to be designated by the Chief Justice, and the remaining six shall be Members of the Senate or the House of Representatives, as the case may be, who shall be chosen on the basis of proportional representation from the political parties and the parties or organizations registered under the party-list system represented therein. The senior Justice in the Electoral Tribunal shall be its Chairman.

ISSUE 2

Main – Substantive	W/N HRET committed grave abuse of discretion in annulling the election on grounds of terrorism	YES
--------------------	--	-----

RULING and RATIO DECIDENDI:

YES. Although HRET has the power to annul an election, this is only warranted in exceptional cases.

The Court agrees with the observation of HRET member Associate Justice Diosdadot Peralta (*since 3 members of HRET come from the SC*), that the case does not warrant the nullification of the election in identified clustered precincts.

- The power to declare an annulment of election results must be exercised with utmost care and caution, and only under exceptional circumstances demonstrating beyond doubt that the disregard of the law was so fundamental or continuous that it is impossible to distinguish lawful from unlawful votes, or where the great body of voters was prevented by violence, intimidation, and threats from exercising their franchise (*Batabor v. COMELEC*).

In *Balindog v Macaramton*, the Court declared that there must be clear and convincing evidence to nullify an election, and it is the duty of the Court to sustain the validity of an election as a free and fair expression of popular will.

There are two (2) indispensable requisites to justify the annulment of an election (which is not present in this case):

1. The illegality of the ballots must affect more than fifty percent (50%) of the votes cast on the specific precinct or precincts sought to be annulled, or in case of the entire municipality, more than fifty percent (50%) of its total precincts and the votes cast therein; and
2. It is impossible to distinguish with reasonable certainty between the lawful and unlawful ballots.

In this case, there is no evidence on reporting to the COMELEC about the massive terrorism. Daza himself did not report the incident to the COMELEC.

- Out of hundreds of registered voters in the 5 clustered precincts, Daza presented only three (3) voter-witnesses (Crisanto Camposano, Alex Rimbao, Melquiades Bornillo) who testified that they voted for Abayon out of fear of NDF-EV armed partisans. The other witnesses merely described general NDF-EV activities without stating that voters were actually coerced to vote for Abayon. Three voters cannot represent the majority or establish that over 50% of the votes cast were stifled.
- Not a single piece of evidence directly connected Abayon as the perpetrator, mastermind, or inducer of the alleged terroristic acts committed by the NDF-EV. Uncorroborated allegations that Abayon gave money and guns to NDF-EV officials do not per se make him responsible for terrorism.
- Testimonies of P/SSupt. Tonog and Col. Capulong did not state that NDF-EV partisans were deployed inside school premises during voting, nor was such a circumstance recorded in P/SSupt. Tonog's Post-Election Memorandum.
- Official certifications issued by Provincial Election Supervisor Atty. Antonio G. Gulay, Jr. (COMELEC) and P/SSupt. Lenaming (PNP) affirmed that elections in Northern Samar were generally peaceful, orderly, and without failure of elections.
- Neither Daza nor the police reported the alleged massive terrorism to COMELEC or filed criminal complaints during the election period under COMELEC Resolution No. 9583. Failing to report pervasive armed threats to election authorities is contrary to human experience.

The Court recognized that the power granted to HRET by the Constitution is full, clear, and complete³, but its independence is not without limit⁴, and a decision that is not supported by sufficient evidence amounts to grave abuse of discretion.

Note: The third issue on whether the HRET committed grave abuse of discretion in dismissing Abayon's counter-protest was not answered since the Court already found sufficient grounds to grant the petition.

LEGAL BASES

3) *Villando v HRET*

4) *Tagolino v HRET*

5) *Leus v St Scholastica's College Westgrove*

FINAL DECISION

WHEREFORE, the February 3, 2016 Decision and the March 7, 2016 Resolution of the House of Representatives Electoral Tribunal are **REVERSED** and **SET ASIDE**. Petitioner Harlin C. Abayon is **DECLARED** to be the lawfully elected Representative of the First Legislative District of Northern Samar in the May 13, 2013 Elections.

Daza v. Singson

DOCTRINE

The House of Representatives has the constitutional authority under Section 18, Article VI of the 1987 Constitution to reorganize its representation in the Commission on Appointments at any time to reflect permanent shifts and realignments in the political composition of its membership, provided that such changes arise from genuine, permanent disaffiliations and shifts of political allegiance rather than temporary voting alliances.

RECITATION SUMMARY

Following the May 11, 1987 congressional elections, the House of Representatives apportioned its twelve (12) seats in the Commission on Appointments (CA) among the political parties represented in the chamber pursuant to Section 18, Article VI of the 1987 Constitution, allocating a seat to petitioner Representative Raul A. Daza as a member of the Liberal Party. On September 16, 1988, the Laban ng Demokratikong Pilipino (LDP) was reorganized, leading to 24 Liberal Party congressmen formally resigning from the Liberal Party and joining the LDP (increasing LDP membership to 159 and reducing the Liberal Party to 17). Consequently, the House revised its CA representation by withdrawing Daza's seat and electing respondent Representative Luis C. Singson as the additional member representing the LDP. Daza filed a petition for prohibition and injunction before the Supreme Court challenging his removal and invoking the permanence of CA membership under *Cunanan v. Tan*. The Supreme Court dismissed the petition, ruling that: (1) the controversy is justiciable (and within the Court's expanded certiorari jurisdiction under Article VIII, Section 1) because it involves the legality, not the wisdom, of the House's act; (2) procedural objections do not bar resolution of cases involving paramount public interest and transcendental importance; and (3) the House validly reorganized its CA representation because the shift in political alignment was a permanent political realignment, thereby altering the ratio of political parties in the House and requiring a corresponding adjustment in CA seats to satisfy the constitutional mandate of proportional representation.

MATERIAL FACTS & PROCEDURAL HISTORY

- **Legally Relevant Parties & Relationship:**
 1. *Petitioner*: Representative Raul A. Daza (member of the House of Representatives representing the Liberal Party and former member of the Commission on Appointments).
 2. *Respondents*: Representative Luis C. Singson (member of the House of Representatives elected by the LDP to replace Daza in the CA) and Hon. Raoul V. Victorino (in his capacity as Secretary of the Commission on Appointments).
- **Chronological Material Facts:**
 1. After the May 11, 1987 congressional elections, the House of Representatives proportionally apportioned its 12 seats in the Commission on Appointments (CA) among the several political parties represented in the chamber (Lakas ng Bansa, PDP-Laban, NP-Unido, Liberal Party, and KBL) in accordance with Article VI, Section 18 of the 1987 Constitution.
 2. Petitioner Raul A. Daza was chosen and listed as a representative of the Liberal Party in the CA.
 3. On September 16, 1988, the Laban ng Demokratikong Pilipino (LDP) was reorganized, resulting in a major political realignment in the House of Representatives.
 4. Twenty-four (24) members of the Liberal Party formally resigned from that party and joined the LDP, swelling the LDP's membership to 159 and correspondingly reducing the Liberal Party from 41 to only 17 members.
 5. On the basis of this political shift, the House of Representatives revised its representation in the CA by withdrawing the seat occupied by petitioner Daza and allocating it to the newly formed LDP.

6. On December 5, 1988, the House elected a new set of CA representatives consisting of the original members except petitioner Daza, and elected respondent Luis C. Singson as the additional member representing the LDP.

- **Procedural History:**

1. On January 13, 1989, petitioner Daza filed a petition for prohibition and injunction before the Supreme Court challenging his removal from the CA and Singson's assumption of his seat.
2. On January 13, 1989, the Supreme Court issued a Temporary Restraining Order (TRO) preventing both Daza and Singson from serving in the CA.
3. The Solicitor General submitted a Comment as *amicus curiae* pursuant to an order of the Court.
4. On November 23, 1989, while the petition was pending, the COMELEC *En Banc* affirmed a First Division resolution officially granting the petition of the LDP for registration as a political party.

● PARTIES' MATERIAL ARGUMENTS

- **Petitioner's (Raul A. Daza) Claims:**

1. *Permanence of CA Seat*: He cannot be removed from the CA because his election thereto is permanent under the doctrine announced in *Cunanan v. Tan*.
2. *Lack of Permanent Alignment & Non-Registration*: The reorganization of House representation in the CA was not based on a permanent political realignment because the LDP was not a duly registered political party with the COMELEC and had not yet attained political stability.
3. *Inability to Claim Rights*: An unregistered political party is not entitled to the rights and privileges granted by law to political parties under Section 160 of Batas Pambansa Blg. 881 (Omnibus Election Code) and cannot claim seats under proportional representation in the CA.

- **Respondent's (Luis C. Singson) Claims:**

1. *Political Question*: The question raised by petitioner is political in nature and beyond the jurisdiction of the Supreme Court as it concerns internal legislative organization.
2. *Improperly Impleaded Party*: Respondent Singson was improperly impleaded because the real party respondent is the House of Representatives, which executed the change in CA representation.
3. *Reorganization Permitted under Cunanan v. Tan*: *Cunanan v. Tan* expressly permits reorganization of CA seats at any time to reflect permanent shifts in political alignments in Congress; the transfer of 24 LP congressmen to the LDP was a permanent political realignment justifying the reduction of LP's seats and the allocation of an additional seat to LDP.
4. *No Registration Requirement in Constitution*: Section 18, Article VI of the Constitution does not require that a political party be registered with COMELEC to be entitled to proportional representation in the CA.

● ISSUES

1. **Whether the Supreme Court has jurisdiction** over the legality of the House of Representatives' act in removing petitioner Daza from the Commission on Appointments and replacing him with respondent Singson, or whether the matter is a non-justiciable political question.
2. **Whether petitioner Daza improperly impleaded respondent Singson**, and whether procedural technicalities bar the Supreme Court from resolving the petition.
3. **Whether the House of Representatives acted validly and constitutionally** under Section 18, Article VI of the 1987 Constitution in reorganizing its representation in the Commission on Appointments to reflect the political realignment resulting from the formation of the LDP and the resignation of 24 members from the Liberal Party.

♥ HOLDING AND RATIO DECIDENDI

ISSUE 1: Jurisdiction of the Supreme Court vs. Political Question Doctrine

HOLDING: YES. The Supreme Court has jurisdiction over the petition. The issue is **JUSTICIABLE** and not a political question.

RATIO & DETAILED COURT LOGIC:

- 1. **Legality vs. Wisdom of Legislative Act:**
 - The Court held that what was presented before it was not a discretionary act of the House of Representatives that may not be reviewed because it is political in nature.
 - What is involved is the **legality, not the wisdom**, of the act of the House in removing petitioner Daza from the Commission on Appointments.
 - Citing *Tañada v. Cuenco*, the term "political question" refers to questions of policy to be decided by the people in their sovereign capacity or issues where full discretionary authority is delegated to the legislature or executive. It is concerned with wisdom, not legality.
 - When the Court is called upon to determine whether an election or selection of public officers to a constitutional body complies with constitutional limitations (such as Section 18, Article VI), the House is not clothed with "full discretionary authority." The exercise of its power is subject to mandatory constitutional restrictions, making the legality of the proceeding a legitimate province of the Judicial Department.
- 2. **Expanded Judicial Power under Article VIII, Section 1:**
 - The Court emphasized that even if the question were assumed to be political in nature, the Supreme Court would still not be precluded from resolving it under the **expanded judicial jurisdiction** conferred by Article VIII, Section 1 of the 1987 Constitution.
 - Article VIII, Section 1 explicitly defines judicial power as including the duty of the courts "to determine whether or not there has been a grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the Government."
 - This constitutional mandate empowers the Court to inquire into acts of Congress whenever grave abuse of discretion or constitutional transgressions are alleged.

ISSUE 2: Procedural Exceptions and Proper Party Respondent

HOLDING: YES. Procedural objections, including the alleged improper impleading of respondent Singson, do not bar the Court from resolving the case.

RATIO & DETAILED COURT LOGIC:

- 1. **Treatment as Quo Warranto and Technicality Waiver:**
 - Respondent Singson argued that he was improperly impleaded because the House of Representatives itself effected the removal.
 - The Court held that while Singson may technically be correct, this objection is not an insuperable obstacle. The Court may treat the proceeding as a petition for *quo warranto*, as petitioner Daza is actually questioning respondent Singson's right to sit as a member of the Commission on Appointments.
- 2. **Doctrine of Transcendental Importance:**
 - Citing *Araneta v. Dinglasan* and *Gonzales v. COMELEC*, the Court reaffirmed its established policy that where serious constitutional questions and paramount public interests are involved, "the transcendental importance to the public of these cases demands that they be settled promptly and definitely, brushing aside, if we must, technicalities of procedure."
 - To prevent a constitutional stalemate between legislative figures and ensure the proper functioning of the Commission on Appointments, strong reasons of public policy required the Court to address and resolve the substantive constitutional question directly.

ISSUE 3: Validity of Reorganization of Commission on Appointments Seats under Article VI, Section 18

HOLDING: YES. The House of Representatives acted **VALIDLY AND CONSTITUTIONALLY** in reorganizing its representation in the Commission on Appointments.

RATIO & DETAILED COURT LOGIC:

1. **Mandate of Proportional Representation under Section 18, Article VI:**
 - Section 18, Article VI of the 1987 Constitution mandates that the 12 Members of the House of Representatives in the CA shall be elected "on the basis of proportional representation from the political parties and parties or organizations registered under the party-list system represented therein."
 - The clear intent of this provision is that CA representation must at all times accurately reflect the actual proportion of political parties in the House.
2. **Reinterpretation and Application of *Cunanan v. Tan*:**
 - Both parties invoked *Cunanan v. Tan*. In *Cunanan*, the Court invalidated a reorganization of the CA because the so-called "Allied Majority" was merely a temporary, floating voting combination where defectors had not permanently disaffiliated from their original political party.
 - However, *Cunanan v. Tan* expressly recognized that if the ratio of political parties in the House is **materially changed** by reason of successful election protests, expulsion, or **formal affiliation with another political party**, the House is clothed with authority to declare vacant the necessary number of seats in the CA and fill them in conformity with proportional representation.
 - Therefore, *Cunanan* does not prohibit reorganization; rather, it authorizes reorganization whenever there is a **permanent shift in political alignments**.
3. **Nature of LDP Formation and Political Realignment:**
 - The reorganization of the LDP on September 16, 1988 involved twenty-four (24) Liberal Party congressmen formally resigning from the Liberal Party and joining the LDP.
 - This was not a mere temporary voting alliance or temporary shift; it was a formal, permanent severance of political loyalties and shift of allegiance.
 - This shift altered the numerical composition of the House dramatically: LDP grew to 159 members while the Liberal Party's strength was cut from 41 to 17 members.
 - To insist that LP retain two CA seats despite its membership dropping from 41 to 17 would result in gross over-representation of LP and under-representation of LDP, directly violating the constitutional mandate of proportional representation.
4. **Resolution of the Party Registration Argument:**
 - Petitioner argued that LDP was not a registered political party and could not claim CA seats.
 - The Court noted that during the pendency of the case, the COMELEC *En Banc* issued a resolution on November 23, 1989 officially granting the LDP's petition for registration as a political party. This supervening event completely defeated petitioner's argument.
 - The Court further rejected petitioner's contention that a newly registered party must "pass the test of time" or survive a general election before being entitled to CA seats. The Court noted historically that when the Liberal Party itself was founded in December 1945 by seceding from the Nacionalista Party, it was granted proportional CA representation only four months later after winning the April 1946 elections, without waiting to "age."

 DECISION & DISPOSITION:

The Supreme Court **DISMISSED** the petition for prohibition and injunction and **LIFTED** the Temporary Restraining Order dated January 13, 1989. Respondent Representative Luis C. Singson was declared to have been **VALIDLY ELECTED** as a member of the Commission on Appointments and entitled to assume his seat in that body pursuant to Article VI, Section 18 of the Constitution. No pronouncement as to costs.

DAZA v. SINGSON (1989)

Topic Subtopic	Branches of Government Commission of Appointments	GR No. & Ponente	86344, Cruz
Petitioner/s	Rep. Raul Daza	Respondent/s	Rep. Luis Singson, Hon. Raoul Victorino (Secretary of Commission on Appointments)
Doctrine	House of Representatives has the authority to change its representation in the Commission on Appointments to reflect, at any time, the permanent changes in the political alignments of its membership		

FACTS

After the May 11, 1987 congressional elections, the House of Representatives proportionally apportioned its 12 seats in the Commission on Appointments (CA) among the several political parties represented in the chamber (Lakas ng Bansa, PDP-Laban, NP-Unido, Liberal Party, and KBL) in accordance with Article VI, Section 18 of the 1987 Constitution.

Petitioner Raul A. Daza was chosen and listed as a representative of the Liberal Party in the CA.

In September 1988, Laban ng Demokratikong Pilipino was reorganized, resulting in a political realignment in the HoR. Twenty-four (24) members of the Liberal Party formally resigned from that party and joined the LDP, swelling the LDP's membership to 159 and correspondingly reducing the Liberal Party from 41 to only 17 members.

Because of this change, the HoR revised its representation in the Commission on Appointments by withdrawing the petitioner Daza's seat and giving it to the LDP. The chamber elected new representatives, consisting of the original members except the petitioner, and including the respondent, Luis Singson, as the additional member for LDP. At this time, LDP is not yet a duly registered political party and has not yet attained political stability.

Petitioner challenges his removal from CoA and assumption of his seat by the respondent. The Court ordered a TRO to prevent both from serving on the CoA.

The Solicitor General submitted a Comment as amicus curiae pursuant to an order of the Court.

On November 23, 1989, while the petition was pending, the COMELEC En Banc affirmed a First Division resolution officially granting the petition of the LDP for registration as a political party.

ISSUE 1

Side – Procedural	W/N the Court has jurisdiction to act on this matter?	YES
-------------------	---	-----

RULING and RATIO DECIDENDI:

This is NOT a discretionary act of the HoR that cannot be reviewed for being political in nature. It is the *legality*, and *not the wisdom* of the act of the chamber in removing the petitioner from the Commission on Appointments that is being questioned, in light of the requirement of the Constitution.

Even if it were political in nature, the Constitution conferred the Court with expanded jurisdiction, if there has been a grave abuse of discretion.

- Citing *Tañada v. Cuenco*, the term "political question" refers to questions of policy to be decided by the people in their sovereign capacity or issues where full discretionary authority is delegated to the legislature or executive. It is concerned with wisdom, not legality.
- When the Court is called upon to determine whether an election or selection of public officers to a constitutional body complies with constitutional limitations (such as Section 18, Article VI), the House is not clothed with "full discretionary authority." The exercise of its power is subject to mandatory

constitutional restrictions, making the legality of the proceeding a legitimate province of the Judicial Department.

- *Cunanan v Tan* - it likewise involved the manner or legality of the organization of the Commission on Appointments, not the wisdom or discretion of the House in the choice of its representatives

On the respondent's contention that he has been improperly impleaded:

Respondent Singson argued that he was improperly impleaded because the House of Representatives itself effected the removal.

The Court held that while Singson may technically be correct in arguing that it is not he who caused the petitioner's removal, this objection is not an insuperable obstacle. The Court may treat the proceeding as a petition for quo warranto, as petitioner Daza is actually questioning respondent Singson's right to sit as a member of the Commission on Appointments.

Citing *Araneta v. Dinglasan* and *Gonzales v. COMELEC*, the Court reaffirmed its established policy that where serious constitutional questions and paramount public interests are involved, "the transcendental importance to the public of these cases demands that they be settled promptly and definitely, brushing aside, if we must, technicalities of procedure."

To prevent a constitutional stalemate between legislative figures and ensure the proper functioning of the Commission on Appointments, strong reasons of public policy required the Court to address and resolve the substantive constitutional question directly.

ISSUE 2

Main Substantive	– W/N the House of Representatives has the authority to change its representation in the Commission on Appointments to reflect, at any time, the permanent changes in the political alignments of its membership?	YES
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
Both parties invoke <i>Cunanan v. Tan</i>, w/c is summarized below: • In the 1961 elections for the HoR, the Nacionalista party won 72 seats, the Liberal Party won 29, and an independent won 1. The representation in the Commission on Appointments were 8 to the Nacionalista, and 4 from the Liberal Party. • 25 members from the Nacionalista defected and formed another group with the Liberal Party, forming the Allied Majority group to install a new speaker and reorganize the chamber. Part of this was that three Nacionalista representatives to the Commission on Appointments were replaced by members of the Allied Majority. • Petitioner Carlos Cunanan's ad interim appointment was rejected by CoA as thus reorganized, and he was replaced thereafter by Respondent Tan. Cunanan filed a petition claiming the rejection of his appointment was invalid b/c the Commission itself was invalidly constituted. • The Court agreed and noted that the Allied Majority was merely temporary combination, as the Nacionalista defectors hadn't disaffiliated from their party. Officially, they were still members of the Nacionalista Party. The reorganization of the Commission on Appointments was invalid because it was not based on the proportional representation of the political parties in the House of Representatives as required by the Constitution <i>Cunanan v. Tan</i> expressly recognized that if the ratio of political parties in the House is materially changed by reason of successful election protests, expulsion, or formal affiliation with another political party, the House is clothed with authority to declare vacant the necessary number of seats in the CA and fill them in conformity with proportional representation. • Therefore, Cunanan does not prohibit reorganization; rather, it authorizes reorganization whenever there is a permanent shift in political alignments.		

(PET SAYS ITS NOT PERMANENT) Petitioner in this case argues that LDP is not a permanent political party and has not been registered.

(RESPONDENT SAYS IT IS PERMANENT) Respondent uses Cunanan to argue that reorganization is allowed at any point to reflect changes in political alignments in Congress, provided that such changes are permanent. The creation of LDP was a permanent change which justified his designation to the Commission on Appointments after the reduction of LP representation.

RULING and RATIO DECIDENDI:

Before the court could rule, an important development occurred:

COMELEC affirmed the registration of the LDP as a political party. Therefore, the petitioner can no longer argue the non-registration of LDP which he claims shows no permanent political realignment.

On the party needing to prove test of time to show permanence:

The Court further rejected petitioner's contention that a newly registered party must "pass the test of time" or survive a general election before being entitled to CA seats. The Court noted historically that when the Liberal Party itself was founded in December 1945 by seceding from the Nacionalista Party, it was granted proportional CA representation only four months later after winning the April 1946 elections, without waiting to "age."

The LDP has been in existence for more than one year now. It now has 157 members in the House of Representatives and 6 members in the Senate, with the President as its titular head. While it has disagreements, it cannot be considered still temporary because of that.

The Court agreed with the principle from *Cunanan* that temporary shifts in votes or temporary alliances are insufficient to justify reorganizing the Commission on Appointments.

- In *Cunanan*, the Nacionalista defectors had not actually disaffiliated from their party and permanently joined another political group; therefore, the reorganization there was invalid.
- However, the present case involved 24 LP members who formally resigned from the LP and joined the LDP, materially changing the proportional representation of the political parties in the House.
- When the political alignment of the House materially changes because of permanent party affiliation changes, the House may declare the necessary CA seats vacant and fill them in accordance with the Constitution.

The reorganization of the LDP on September 16, 1988 involved twenty-four (24) Liberal Party congressmen formally resigning from the Liberal Party and joining the LDP.

- This was not a mere temporary voting alliance or temporary shift; it was a formal, permanent severance of political loyalties and shift of allegiance. This shift altered the numerical composition of the House dramatically: LDP grew to 159 members while the Liberal Party's strength was cut from 41 to 17 members.
- To insist that LP retain two CA seats despite its membership dropping from 41 to 17 would result in gross over-representation of LP and under-representation of LDP, directly violating the constitutional mandate of proportional representation.
-

Ultimately, the Court held that the House has the authority to change its representation in the Commission on Appointments to reflect at any time the changes in the political alignments of its membership. However, the changes must be permanent and must involve severance of political loyalties or formal disaffiliation & permanent shifts of allegiance, not merely temporary alliances or factional divisions.

FINAL DECISION

WHEREFORE, the petition is DISMISSED. TRO lifted. The respondent has been validly elected as a member of the Commission on Appointments.

Coseteng v. Mitra, Jr.

DOCTRINE

Under Section 18, Article VI of the 1987 Constitution, the allocation of seats allotted to the House of Representatives in the Commission on Appointments must be based strictly on proportional representation of the political parties represented therein, such that a political party must command at least 8.4% of the total House membership (or at least 17 members out of a 202-member chamber) to be mathematically entitled to one seat, and members representing political parties are validly elected by the House as a whole upon nomination by their respective floor leaders rather than directly by individual party caucuses.

RECITATION SUMMARY

Following the May 11, 1987 congressional elections, the House of Representatives elected eleven (11) members from the Coalesced Majority and one (1) member from the Coalesced Minority (Rep. Roque Ablan, Jr., KBL) to represent the chamber in the Commission on Appointments (CA) pursuant to Section 18, Article VI of the Constitution. On September 16, 1988, the Laban ng Demokratikong Pilipino (LDP) was organized, resulting in 160 out of 202 House members formally affiliating with the LDP. To reflect this major political realignment, the House reorganized its CA representation on December 5, 1988 by replacing Rep. Raul Daza (LP) with Rep. Luis C. Singson (LDP), thereby allotting 10 seats to the LDP, 1 seat to the Liberal Party (Rep. Lorna Verano-Yap), and 1 seat to the KBL (Rep. Roque Ablan, Jr.). Petitioner Representative Anna Dominique M.L. Coseteng, the sole congresswoman elected under Kababaihan Para sa Inang Bayan (KAIBA), requested a seat in the CA, supported by endorsements from nine (9) other congressmen. When her request was denied, Coseteng and KAIBA filed a petition for *quo warranto* and injunction before the Supreme Court, challenging the CA reorganization as a violation of proportional representation. The Supreme Court dismissed the petition, holding that: (1) the controversy is justiciable (and within the Court's expanded *certiorari* jurisdiction under Article VIII, Section 1) because it involves the legality, not the wisdom, of the House's act under constitutional limits; (2) the reorganization complied strictly with Section 18, Article VI because LDP's 160 members represented 79% (rounded to 80%) of the House, mathematically entitling it to 9.6 (rounded to 10) seats, while KAIBA's lone member represented only 0.4% of the House—far below the 8.4% threshold (at least 17 members) required for 1 CA seat; and (3) CA members are constitutionally elected by the House as a whole upon nomination by floor leaders, not directly by separate political party caucuses.

MATERIAL FACTS & PROCEDURAL HISTORY

- **Legally Relevant Parties & Relationship:**
 1. *Petitioners:* Representative Anna Dominique M.L. Coseteng (sole Member of the House of Representatives elected under KAIBA) and Kababaihan Para sa Inang Bayan (KAIBA, a registered political party).
 2. *Public & Private Respondents:* Hon. Ramon V. Mitra, Jr. (Speaker of the House of Representatives); Hon. Francisco Sumulong (Majority Floor Leader); Hon. Jovito Salonga (Ex-Officio Chairman of the Commission on Appointments); and the twelve (12) House Members elected to the CA: Rep. Roque R. Ablan, Jr. (KBL), Rep. Lorna L. Verano-Yap (LP), and Reps. Miguel Romero, Antonio V. Cuenco, Rogaciano M. Mercado, Alawadin T. Bandon, Jr., Jose L. Cabochan, Carlos R. Imperial, Ma. Clara L. Lobregat, Natalio M. Beltran, Jr., Carmelo J. Locsin, and Luis C. Singson (all LDP).
- **Chronological Material Facts:**
 1. In the May 11, 1987 congressional elections, candidates of diverse political parties (PDP-Laban, Lakas ng Bansa [LB], Liberal Party [LP], NP-Unido, KBL, Panaghiusa, KAIBA, and independents) were elected to the House of Representatives. Petitioner

Anna Dominique M.L. Coseteng was the only candidate elected under the banner of KAIBA.

2. On August 26, 1987, upon nomination by Majority Floor Leader Francisco Sumulong, the House elected 11 congressmen from the Coalesced Majority to the Commission on Appointments (CA): Miguel Romero (LP), Antonio V. Cuenco (LB-Panaghiusa), Rogaciano Mercado (LB), Raul Daza (LP), Alawadin T. Bandon, Jr. (PDP-Laban), Jose Cabochan (PDP-Laban), Lorna L. Verano-Yap (LP), Carlos R. Imperial (Ind.), Ma. Clara L. Lobregat (Ind.), Natalio M. Beltran, Jr. (LB/Unido/NP), and Carmelo J. Locsin (PDP-Laban/LB).
3. On September 22, 1987, upon nomination by the Minority Floor Leader, the House elected Rep. Roque Ablan, Jr. (KBL) as the 12th member of the CA, representing the Coalesced Minority.
4. On September 16, 1988, the Laban ng Demokratikong Pilipino (LDP) was organized as a political party. Out of 202 members of the House, 158 formally affiliated with the LDP (a number that grew to 160 members, including 26 former Liberals, leaving only 15 Liberals in the House).
5. On October 8, 1988, petitioner Coseteng wrote a letter to Speaker Ramon Mitra requesting that, as representative of KAIBA, she be appointed a member of the CA and the House Electoral Tribunal (HRET). Her request was endorsed in writing by nine (9) congressmen (Reps. Laurel-Trinidad, Gillego, Bakunawa, Cabochan, Aspiras, Santos, Joson, Cerilles, and Pelaez).
6. On December 5, 1988, on motion of Majority Floor Leader Sumulong and over the objection of Rep. Raul Daza (LP), the House revised its majority representation in the CA to conform with new political alignments by replacing Rep. Raul Daza (LP) with Rep. Luis C. Singson (LDP). The revised 12-member CA contingent comprised 10 LDP members, 1 LP member (Rep. Lorna Verano-Yap), and 1 KBL member (Rep. Roque Ablan, Jr.).

- **Procedural History:**

1. On February 1, 1989, Congresswoman Coseteng and KAIBA filed a Petition for Extraordinary Legal Writs (treated by the Court as a petition for *quo warranto* and injunction) directly before the Supreme Court En Banc.
2. The Commission on Appointments took a neutral stand, as similar jurisdictional and proportional issues were pending in *Daza v. Singson*.

● PARTIES' MATERIAL ARGUMENTS

- **Petitioners' (Anna Dominique M.L. Coseteng & KAIBA) Claims:**

1. *Violation of Proportional Representation:* The new majority (158 LDP members out of 202 House members) was entitled to only nine (9) seats out of the twelve House seats in the CA, not ten (10) seats.
2. *Party Nomination Requirement:* Members representing political parties or coalitions in the CA must be nominated and elected directly by their respective political parties or coalitions, rather than by House floor leaders.
3. *Invalidity of Minority Seats:* The nomination and election of Rep. Verano-Yap (LP) and the retention of Rep. Ablan (KBL) as minority representatives were invalid because they were neither nominated nor elected by the minority party or parties in the House.
4. *Entitlement to CA Seat:* Coseteng was qualified to sit in the CA as a minority representative because she had the written endorsement of nine (9) other House members, and KAIBA was wrongfully excluded despite being a registered political party.

- **Respondents' Claims:**

1. *House Leadership & LDP Respondents:* The reorganization of House representation in the CA is a political question outside judicial review; in any event, the reorganization complied strictly with Article VI, Section 18 of the Constitution because LDP's 160 members represented 79% (rounded to 80%) of the House, mathematically entitling

LDP to 9.6 seats (rounded to 10); KAIBA was part of the Coalesced Majority bound by the majority's choices, and as a lone-member party (.4% of the House), it fell far short of the numerical threshold required for a CA seat.

2. *Respondent Rep. Lorna Verano-Yap*: Petitioner has no better right to a CA seat; the Constitution was not violated in electing Yap and the 11 other members; and petitioner's claim lacks legal and factual basis.

ISSUES

1. **Whether the Supreme Court has jurisdiction** over the legality of the House of Representatives' reorganization of its membership in the Commission on Appointments, or whether the matter constitutes a non-justiciable political question.
2. **Whether the reorganization of the House representation in the Commission on Appointments violated the constitutional rule on proportional representation** under Section 18, Article VI of the 1987 Constitution.
3. **Whether members of the House of Representatives in the Commission on Appointments must be nominated and elected directly by their respective political parties**, rather than by the House of Representatives upon nomination by its floor leaders.

HOLDING AND RATIO DECIDENDI

ISSUE 1: Jurisdiction of the Supreme Court vs. Political Question Doctrine

HOLDING: YES. The Supreme Court has jurisdiction over the petition. The issue is **JUSTICIABLE** and not a political question.

RATIO & DETAILED COURT LOGIC:

1. **Legality vs. Wisdom of Legislative Reorganization:**
 - Reaffirming the doctrine laid down in *Daza v. Singson* (G.R. No. 86344, December 21, 1989) and *Tañada v. Cuenco*, the Court held that what was presented for determination was not a discretionary political act beyond judicial scrutiny, but the **legality, not the wisdom**, of the manner of filling seats in the Commission on Appointments under Section 18, Article VI of the Constitution.
2. **Expanded Judicial Power under Article VIII, Section 1:**
 - Even if the question were assumed to be political in nature, the Supreme Court would still not be precluded from resolving it under the **expanded judicial jurisdiction** conferred by Article VIII, Section 1 of the 1987 Constitution.
 - Article VIII, Section 1 expressly defines judicial power to include the duty of the courts of justice "*to determine whether or not there has been a grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the Government*".

ISSUE 2: Compliance with Constitutional Proportional Representation under Section 18, Article VI

HOLDING: NO. The reorganization of House representation in the Commission on Appointments did **NOT** violate Section 18, Article VI of the 1987 Constitution. The apportionment complied strictly with the rule on proportional representation.

RATIO & DETAILED COURT LOGIC:

1. **Mathematical Application of Proportionality:**
 - Under Section 18, Article VI of the Constitution, twelve (12) Members of the House of Representatives are elected to the CA on the basis of proportional representation from the political parties represented therein.

- Out of 202 total Members of the House of Representatives, 160 members formally affiliated with the LDP, representing 79% (which may be rounded out to 80%) of the House membership.
 - Eighty percent (80%) of the 12 CA seats allotted to the House equals **9.6 members**, which is mathematically rounded out to **ten (10) members** for the LDP.
2. **Apportionment of Remaining Seats:**
- The remaining two (2) seats were validly apportioned to the Liberal Party (Rep. Lorna Verano-Yap) as the next largest political party in the Coalesced Majority, and the Kilusan ng Bagong Lipunan (Rep. Roque Ablan, Jr.) as the principal opposition party in the House.
 - Thus, the allocation of 10 LDP, 1 LP, and 1 KBL seat strictly reflected proportional representation.
3. **Numerical Threshold Required for CA Representation:**
- To be able to claim a single proportional seat (1/12) in the Commission on Appointments, a political party must represent at least **8.4% of the total House membership**—meaning it must have been able to elect at least **seventeen (17) congressmen or congresswomen**.
 - Petitioner's party, KAIBA, had only one member (petitioner Coseteng), representing a mere **0.4% (less than 1%)** of the House membership.
 - Consequently, KAIBA was mathematically unentitled to a seat in the CA. As a member of the Coalesced Majority, KAIBA and petitioner were bound by the choices of the majority.
4. **Inconsequential Nature of Cross-Party Endorsements:**
- The written endorsements of nine (9) congressmen in favor of petitioner's claim were held to be legally inconsequential because those endorsers were not members of KAIBA, and they had executed identical endorsements in favor of her rival, Rep. Verano-Yap.

ISSUE 3: Procedure for Nomination and Election of CA Members

HOLDING: NO. Members of the Commission on Appointments are **NOT** required to be nominated and elected solely by individual political party caucuses; they are constitutionally elected by the **House of Representatives as a whole** upon nomination by floor leaders.

RATIO & DETAILED COURT LOGIC:

1. **Textual Command of Article VI, Section 18:**
 - Section 18, Article VI explicitly dictates that the twelve House members in the CA shall be "*elected by each House on the basis of proportional representation...*".
 - The power of election is vested by the Constitution in the legislative chamber itself, not in separate political party caucuses.
2. **Validity of Floor Leader Nominations and Plenary Election:**
 - Nomination by the Majority and Minority Floor Leaders in open session, followed by formal election by the House as a plenary body, strictly conforms with Section 18, Article VI.
 - Because eleven (11) members were elected from the Coalesced Majority and one (1) from the Minority, the election and composition of the House contingent in the CA is unassailable.

DECISION & DISPOSITION:

The Supreme Court **DISMISSED** the petition for extraordinary legal writs for lack of merit. Costs against petitioner.

Coseteng v. Mitra, Jr. (1990)

Topic Subtopic	Branches of the Government - Congress Commission on Appointments	GR No. & Ponente	G.R. No. 86649 J. Griño-Aquino
Petitioner/s		Respondent/s	
Doctrine	The twelve House seats in the Commission on Appointments must be apportioned among the political parties in the House strictly on the basis of proportional representation		

FACTS

- In the congressional elections of May 11, 1987, diverse political parties were elected:
 - PDP-Laban Lakas ng Bansa (LB)
 - Liberal Party (LP)
 - NP-Unido
 - Kilusan ng Bagong Lipunan (KBL)
 - Panaghiusa
 - Kababaihan Para sa Inang Bayan (KAIBA)
- Petitioner Coseteng was the only candidate elected under KAIBA.
- The HReps, upon nomination of Majority Floor Leader, Cong. Sumulong, elected from Coalesced majority 11 out of 12 congressmen to represent the house in the Commission of Appointments (CoA).
- Upon nomination of Minority Floor Leader, the House elected Hon. Ablan Jr., KBL, as 12th member of Commission on Appointments representing Coalesced Minority
- Laban ng Demokratikong Pilipino (LDP) was organized as a political party
 - 158 of the HReps formally affiliates with the LDP
 - The House committees, including House representation in Commission on Appointments had to be reorganized.
- Petitioner wrote a letter to Speaker Mitra requesting to be appointed as member of Commission on Appointment and HRET.
- HReps revised House majority membership in the CoA. to conform with new political assignments by replacing Rep. Daza (LP) with Rep. Singson (LDP). 12 seats reserved for the HOR in the CoA were allocated:
 - 10 seats to LDP majority
 - 1 seat to Liberal Party (Rep. Verano-Yap) - Coalesced Majority
 - 1 seat (retained as 12th member) to KBL (Rep. Ablan) – Coalesced Minority
- Cong. Coseteng and KAIBA filed petition for Extraordinary Legal Writs (can be considered quo warranto and injunction) to nullify the elections of the respondents (12 **elected House members**).
 - New Majority is only entitled to 9 seats of out 12 to be filled by the House
 - Members representing political parties must be nominated by their political parties
 - Nomination and election of Rep. Yap by the respondents as rep. Of the minority was invalid
 - Retention of rep. Ablan as Minority member in the Commission invalid (bc. he was neither nominated or elected by minority party)

ISSUE 1

Side – Substantive	W/N the legality of the reorganization of the House delegation to the CoA is a non-justiciable political question	NO
--------------------	---	----

RULING and RATIO DECIDENDI:

NO. *The reorganization of the House delegation is a justiciable question.*

Affirmed Daza v. Singson - the legality, and not the wisdom, of the manner of filling the Commission on Appointments as prescribed by the Constitution" is justiciable, and, "even if the question were political in nature, it

would still come within our powers of review under the expanded jurisdiction conferred upon us by Article VIII, Section 1, of the Constitution, which includes the authority to determine whether grave abuse of discretion amounting to excess or lack of jurisdiction has been committed by any branch or instrumentality of the government."

The Court dismissed the petition not because it raised a political question, because it does not, but because the reorganization was validly based on proportional representation.

LEGAL BASES

Daza v. Singson

- "The legality, and not the wisdom, of the manner of filling the Commission on Appointments as prescribed by the Constitution" is justiciable, and even if the question were political in nature, it would still come within the Court's powers of review under the expanded jurisdiction"

Article VIII, Section 1, 1987 Constitution

- Judicial power includes the duty of the courts of justice to settle actual controversies involving rights which are legally demandable and enforceable, and to determine whether or not there has been a grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the Government.

ISSUE 2

Main – Substantive	W/N the members of the House in the Commission on Appointments were chosen on basis of proportional representation from the political parties as provided in Section 18, Article VI, 1987 Constitution	YES
--------------------	--	-----

RULING and RATIO DECIDENDI:

The revision of the House representation in the Commission on Appointments is based on proportional representation of the political parties therein as provided in Section 18, Article VI of the 1987 Constitution

The threshold for CoA seats is that to be entitled to 1 seat out of 12 House seats in the CoA, a political party must represent **at least 1/12th** or **8.4%** of the total House membership equating to electing at least **17 representatives**.

- LDP had 160 / 202 House members (rounded to 80%), and **80%** of the 12 CoA seats = 9.6 rounded to **10 seats** for LDP.
- Remaining 2 seats – allocated to **Liberal Party** (Rep. Verano-Yap) as next largest party in Coalesced Minority, and **Kilusan ng Bagong Lipunan** (Rep. Alban) as principal opposition party
- KAIBA, with lone member Rep. Coseteng, did not meet this (**0.4%** > 1%). Endorsement from 9 other Congresspersons did not confer entitlement because they are not members of her party and also endorsed another candidate

No merit in claiming CoA mems must be nominated n elected by their own political parties. Records show they were nominated by respective floor leaders and elected by House as a body (not by individual parties (exactly what Sec. 18 mandates).

The validity of their election to the Commission on Appointments — eleven (11) from the Coalesced Majority and one from the minority — is unassailable

LEGAL BASES

Article VI, Section 18, 1987 Constitution

- 12 Members of the HOR in the CoA shall be "elected by each House on the basis of proportional

representation from the political parties or organizations registered under the party-list system represented therein”

FINAL DECISION

WHEREFORE, the petition is **DISMISSED** for lack of merit. Costs against the petitioner. SO ORDERED.

Drilon v. De Venecia, Jr.

DOCTRINE

Under Section 18, Article VI of the 1987 Constitution, the power to elect members to the Commission on Appointments on the basis of proportional representation belongs exclusively to each House of Congress; hence, under the doctrine of primary jurisdiction, legislators claiming entitlement to a seat must first seek recourse within their respective legislative chamber by demonstrating their required numerical strength before judicial review may be invoked, and a petitioner seeking to challenge the composition of the Commission must establish personal and substantial interest (*locus standi*) by showing direct injury.

RECITATION SUMMARY

In August 2007, at the opening of the 14th Congress, the Senate and the House of Representatives elected their respective contingents to the Commission on Appointments (CA). In G.R. No. 180055, Franklin M. Drilon (representing the Liberal Party [LP]) and 19 LP House members filed a petition for prohibition, *mandamus*, and *quo warranto* against House Speaker Jose De Venecia, Jr., Majority Leader Arthur Defensor, Sr., Senate President/CA Chairman Manuel B. Villar, and the House CA contingent, alleging that despite having at least 20 members in the House, the Liberal Party was unlawfully denied its constitutional entitlement to one (1) seat in the CA. In G.R. No. 183055, Senator Ma. Ana Consuelo A.S. Madrigal (PDP-Laban) filed a petition for prohibition and *mandamus* against Senate President Villar, Speaker Prospero Nograles, and the CA, claiming that both the Senate and House contingents in the CA violated proportional representation (e.g., over-representation of Lakas-CMD, KAMPI, PMP, and inclusion of single-member parties/independents). While the consolidated cases were pending, the House elected LP Representative Alfonso V. Umali, Jr. to the CA in replacement of KAMPI Representative Eduardo M. Gullas, prompting the LP petitioners in G.R. No. 180055 to move to withdraw their petition for being moot and academic. The Supreme Court granted the motion to withdraw G.R. No. 180055, and dismissed G.R. No. 183055, holding that: (1) Senator Madrigal lacked *locus standi* because she failed to allege or prove direct injury, nor did she or PDP-Laban claim to be deprived of a CA seat; and (2) Madrigal violated the doctrine of primary jurisdiction because primary recourse rests with the respective legislative chambers (Senate and House) to evaluate party affiliations and numerical strength before judicial review can be sought.

MATERIAL FACTS & PROCEDURAL HISTORY

- **Legally Relevant Parties & Relationship:**
 1. *Petitioners in G.R. No. 180055:* Franklin M. Drilon (as President and in representation of the Liberal Party of the Philippines) and 19 LP Members of the House of Representatives (Reps. Joseph Emilio A. Abaya, Wahab M. Akbar, Maria Evita R. Arago, Proceso J. Alcala, Rozzano Rufino Biazon, Mary Mitzi Cajayon, Fredenil H. Castro, Glenn Ang Chong, Solomon R. Chungalao, Paul Ruiz Daza, Antonio A. Del Rosario, Cecilia S. Luna, Manuel M. Mamba, Hermilando I. Mandanas, Alvin Sandoval, Lorenzo R. Tañada III, Reynaldo S. Uy, Alfonso V. Umali, Jr., and Liwayway Vinzons-Chato).
 2. *Petitioner in G.R. No. 183055:* Senator Ma. Ana Consuelo A.S. Madrigal (PDP-Laban).
 3. *Public & Private Respondents:* Hon. Jose De Venecia, Jr. (Speaker, House of Representatives); Hon. Arthur D. Defensor, Sr. (Majority Floor Leader, HOR); Hon. Manuel B. Villar (Senate President and Ex-Officio Chairman, CA); Atty. Ma. Gemma D. Aspiras (Secretary, CA); Hon. Prospero C. Nograles (subsequent Speaker, HOR); and individual members of the House and Senate contingents in the CA (Reps. Zialcita, Dimaporo, Lacson, Ermita-Buhain, Yap, Albano III, Gullas, Plaza, Estrella,

Taliño-Mendoza, Villanueva; and Senators Arroyo, Cayetano A.P., Lacson, Estrada J., Enrile, Legarda, Gordon, Roxas, Lapid, Defensor-Santiago).

- **Chronological Material Facts:**

1. In August 2007, the Senate and the House of Representatives elected their respective 12-member contingents to the Commission on Appointments (CA) for the 14th Congress.
2. The House CA contingent comprised: 6 Lakas-CMD (Reps. Nograles, Zialcita, Dimaporo, Lacson, Ermita-Buhain, Yap), 2 KAMPI (Reps. Albano III, Gullas), 2 NPC (Reps. Plaza, Estrella), 1 NP (Rep. Taliño-Mendoza), and 1 CIBAC Party-List (Rep. Villanueva). No Liberal Party member was included.
3. The Senate CA contingent comprised: 1 PDP-Laban (Sen. Madrigal), 1 KAMPI (Sen. Arroyo), 2 Lakas-CMD (Sens. Cayetano A.P., Gordon), 1 UNO (Sen. Lacson), 2 PMP (Sens. Estrada J., Enrile), 1 NPC (Sen. Legarda), 1 LP (Sen. Roxas), 1 PRP (Sen. Defensor-Santiago), and 1 Lakas-CMD (Sen. Lapid).
4. In August and September 2007, LP Representative Lorenzo Tañada III repeatedly requested House leadership (Speaker De Venecia, Majority Leader Defensor, and Sec. Gen.) to allocate one seat in the CA to the Liberal Party, pointing out that at least 20 LP House members had signed a demand letter. House leadership referred the matter to its Legal Affairs Bureau (Atty. Grace Andres), which withheld its opinion to verify the actual party affiliations of members.
5. On October 31, 2007, former Senator Drilon (for LP) and 19 LP House members filed a petition before the Supreme Court (docketed as G.R. No. 180055).
6. In April and May 2008, Senator Madrigal sent formal letters to Senate President Villar and Speaker Nograles, claiming that the composition of both the Senate and House contingents in the CA violated constitutional proportional representation (e.g., PMP having 2 Senate seats with only 2 senators; KAMPI and PRP having 1 seat each with only 1 senator; Lakas-CMD having 5 House seats instead of 4; KAMPI having 3 House seats instead of 2). She announced she would refrain from participating in CA proceedings and demanded that all CA actions be held in abeyance.
7. The CA Committee on Rules and Resolutions and Senator Joker Arroyo opined that the CA had no authority to reject or alter members elected by either House, and that complaints must be submitted to the respective electing chamber. Senate President Villar accordingly transmitted Senator Madrigal's letters to the Senate Secretary for inclusion in the Order of Business.
8. On June 13, 2008, Senator Madrigal filed a petition before the Supreme Court (docketed as G.R. No. 183055). The Supreme Court consolidated G.R. No. 180055 and G.R. No. 183055 on July 1, 2008.
9. On August 15, 2008, the LP petitioners in G.R. No. 180055 filed a Motion with Leave of Court to Withdraw Petition, informing the Court that the House of Representatives had designated LP Representative Alfonso V. Umali, Jr. as a member of the CA in replacement of KAMPI Representative Eduardo M. Gullas, thereby rendering their petition moot and academic.

- **Procedural History:**

1. G.R. No. 180055 (Petition for Prohibition, *Mandamus*, and *Quo Warranto*) and G.R. No. 183055 (Petition for Prohibition and *Mandamus*) were consolidated by the Supreme Court En Banc.

● PARTIES' MATERIAL ARGUMENTS

- **Petitioners' Claims:**

- *G.R. No. 180055 Petitioners (Drilon / LP)*: The Liberal Party, having at least twenty (20) Members in the House of Representatives, is constitutionally entitled to one (1) seat in the CA under Section 18, Article VI of the Constitution; House leadership committed grave abuse of discretion in excluding LP from the CA, rendering the CA's composition and proceedings null and void.

- *G.R. No. 183055 Petitioner (Senator Madrigal)*: The composition of both Senate and House contingents in the CA violates constitutional proportional representation because several political parties hold seats in excess of their numerical entitlement while others/independents are improperly represented; CA leadership committed grave abuse of discretion in conducting confirmation hearings despite an unconstitutionally composed body.
- **Respondents' Claims:**
 - *Public Respondents (Senate President Villar, Speaker Nograles, House Leadership, CA Officers)*:
 1. *Mootness of G.R. No. 180055*: The election of LP Rep. Umali, Jr. to replace Rep. Gullas satisfied LP's demand and rendered G.R. No. 180055 moot.
 2. *Lack of Standing (Locus Standi)*: Senator Madrigal sustained no direct personal injury; she did not claim that she or PDP-Laban was unlawfully denied a seat in the CA.
 3. *Primary Jurisdiction / Prematurity*: Primary recourse rests exclusively with the respective legislative chambers (Senate and House), not the Court or the CA itself; members claiming seat deprivation must first present proof of party affiliation and numerical strength to their respective chamber under the doctrine of primary jurisdiction (*Pimentel, Jr. v. HRET*).

● ISSUES

1. **Whether the Motion to Withdraw Petition in G.R. No. 180055** should be granted on the ground of mootness.
2. **Whether petitioner Senator Madrigal in G.R. No. 183055 possesses legal standing (*locus standi*)** to challenge the composition of the Senate and House contingents in the Commission on Appointments.
3. **Whether the petition in G.R. No. 183055 is premature for failure to observe the doctrine of primary jurisdiction** by failing to seek primary recourse before the Senate and the House of Representatives.

♥ HOLDING AND RATIO DECIDENDI

ISSUE 1: Withdrawal and Mootness of G.R. No. 180055

HOLDING: YES. The Motion with Leave of Court to Withdraw the Petition in G.R. No. 180055 is **GRANTED**, and the petition is **WITHDRAWN** for having been rendered moot and academic.

RATIO & DETAILED COURT LOGIC:

1. The core grievance in G.R. No. 180055 was the House of Representatives' failure to allocate one seat in the Commission on Appointments to the Liberal Party.
2. With the subsequent designation and election of Representative Alfonso V. Umali, Jr. (a member of the Liberal Party) to the House contingent in the CA in place of Representative Eduardo M. Gullas, the Liberal Party obtained its desired representation.
3. This supervening event extinguished the actual controversy in G.R. No. 180055, rendering the petition moot.

ISSUE 2: Legal Standing (*Locus Standi*) of Senator Madrigal in G.R. No. 183055

HOLDING: NO. Senator Madrigal **LACKS LEGAL STANDING (*locus standi*)** to maintain the petition.

RATIO & DETAILED COURT LOGIC:

1. **Direct Injury Requirement:**

- To possess legal standing to raise a constitutional challenge, a litigant must establish a personal and substantial interest by showing that he or she has sustained, or is in immediate danger of sustaining, a direct injury as a result of the assailed official act.
- 2. **Absence of Personal or Party Injury:**
 - Senator Madrigal failed to allege or prove that she or her political party (PDP-Laban) was deprived of a seat in the CA to which they were constitutionally entitled.
 - Her petition did not claim that she possessed a personal, direct, and substantial right that was violated by the existing composition of the CA.
- 3. **Inability to Assert Rights of Third Parties:**
 - Demanding the reorganization of the CA on behalf of other senators or congressmen who have not themselves raised the issue or sought judicial relief before the Court is not Senator Madrigal's personal affair.

ISSUE 3: Primary Jurisdiction and Prematurity of Judicial Recourse in G.R. No. 183055

HOLDING: YES. The petition in G.R. No. 183055 is **PREMATURE** for failure to observe the **DOCTRINE OF PRIMARY JURISDICTION**.

RATIO & DETAILED COURT LOGIC:

1. **Constitutional Allocation of Power to Each House:**
 - Section 18, Article VI of the 1987 Constitution explicitly commands that twelve Senators and twelve Members of the House of Representatives shall be "*elected by each House on the basis of proportional representation from the political parties...*".
 - The constitutional power and discretion to elect members to the CA resides exclusively in the Senate and the House of Representatives, respectively—not in the Commission on Appointments as an independent body, nor in the Supreme Court.
2. **Application of the Doctrine in *Pimentel, Jr. v. House of Representatives Electoral Tribunal*:**
 - Citing *Pimentel, Jr. v. HRET* (G.R. Nos. 141489 & 141490), the Court reiterated that members who claim to have been deprived of representation in the CA or HRET must first present their claim directly to their respective legislative chamber (the Senate or the House) and show that they possess the required party affiliation and numerical strength under the rule of proportional representation.
 - Only if the legislative chamber fails or refuses to comply with the constitutional mandate on proportional representation after proper demand can the aggrieved members seek recourse before the Supreme Court under its power of judicial review.
3. **Insufficiency of Informal Letters and Misdirection of Recourse:**
 - Furnishing letters or sending written complaints to the Senate President, Speaker of the House, or the CA does not constitute the requisite primary recourse before the legislative chambers.
 - Determining party affiliations, party realignments, and numerical proportions involves factual determinations that must first be submitted to, deliberated upon, and resolved by the plenary or leadership caucuses of the respective Houses of Congress.
4. **Preservation of Separation of Powers:**
 - Under the doctrine of primary jurisdiction and the principle of separation of powers, courts must refrain from interfering with internal legislative organization until the competent legislative body has been afforded full opportunity to act on the matter within its constitutional domain. Direct resort to the Supreme Court without prior legislative exhaustion is premature.

DECISION & DISPOSITION:

1. In **G.R. No. 180055**, the Motion with Leave of Court to Withdraw the Petition is **GRANTED**, and the Petition is **WITHDRAWN**.
2. In **G.R. No. 183055**, the Petition is **DISMISSED**.

Drilon v. De Venecia (2009)

Topic Subtopic	Commission on Appointments	GR No. & Ponente	180055 Carpio-Morales, J.
Petitioner/s	Franklin Drilon	Respondent/s	Jose De Venecia
Doctrine	Doctrine of primary jurisdiction: prior recourse to the House is necessary before she may bring her petition to court. Each House of Congress has the sole function of reconstituting or changing the composition of its own contingent to the CA		

FACTS

FIRST PETITION (lowkey not even important to the issues lmao)

Petitioners went to Speaker De Venecia to ask for one seat for the Liberal Party in the Commission on Appointments (CA)

Rep. Tañada requested the Secretary General for the reconstitution of the House contingent in the CA to include 1 seat for the Liberal Party

No report or recommendation was proffered by the Legal Dept

- Tanada ended up having to request a report or recommendation on the matter

Atty. Andres of the Legal Affairs Bureau informed Rep. Tañada that the department was constrained to withhold the release of its legal opinion

Former Sen. Drilon filed petition against then-Speaker De Venecia, et al.

Petition prays that the Court would:

- declare the respondents' action in not allotting one seat to petitioners null and void
- Declare the proceedings of CA null and void— violate the rule on proportional representation
- Oust the affected respondents who unlawfully held positions in CA
- Reconfigure the composition of CA in accordance with proportional representation

Aug. 15, 2008 — Petitioners filed motion to withdraw the petition

The designation of Rep. Umali Jr.(Liberal Party) as a member of the HoR contingent in the CA rendered their petition moot and academic

SECOND PETITION

Sen. Madrigal claimed that the composition of the Senate contingent in the CA violated the constitutional requirement of proportional representation

- PMP entitled to 1 seat — yet has 2 seats
- KAMPI not entitled to a seat — has representation
- PRP not entitled to a seat — has representation
- Independents cannot be represented in the CA — there are 3

Also claimed that composition of the HoR contingent the CA violated proportional representation

- Lakas-CMD entitled to 4 representatives — has 5 representatives
- KAMPI entitled to 2 representatives — has 3 representatives
- Liberal party entitled to 1 representative — has no representative
- CIBAC not entitled to any seat — has a representative

Sen. Madrigal requested the reorganization of the membership of the CA

- In the meantime, all actions of the CA should be held in abeyance as it is construed as illegal and unconstitutional

Sen Madrigal wrote to Sen. Villar saying that it is important that the serious constitutional questions she raised should be settled before performing any plenary acts

Sen. Madrigal sent another letter, this time declaring that she cannot continue to participate in CA proceedings until her prior letters get a response and the issue of CA's composition is resolved

Sen. Villar advised Sen. Madrigal that the constitutional issue of the CA's composition had been transmitted to the CA Committee on Rules and Resolutions

- He gave instructions to transmit her letters to the Senate Secretary to be included in the Order of Business of the Session of Senate

Sen. Madrigal, thru another letter, reiterated her request and thereafter filed the second petition

In her petition, she prayed that:

- The CA composition be declared null and void— violates the proportional party representation requirement in Art. 6, Sec. 18, Const.
- Desist respondents from further proceeding with their unlawful actions as officers of the CA
- Command respondents to reorganize the CA in accordance with the Constitution

ISSUE 1

Main – Procedural	W/N Petitioner (Madrigal) has legal standing	NO
RULING and RATIO DECIDENDI:		
• Madrigal failed to show that she sustained direct injury as a result of the act complained of • Did not allege that she or her political party PDP-LABAN was deprived of a seat in the Commission on Appointments • No personal and substantial interest to confer upon her or her political party locus stands		

ISSUE 2

Main – Substantive	W/N Petitioner should have observed the doctrine of primary jurisdiction or prior resort	YES
RULING and RATIO DECIDENDI:		
• Doctrine of primary jurisdiction: prior recourse to the House is necessary before she may bring her petition to court ◦ Each House of Congress has the sole function of reconstituting or changing its composition of its own contingent to the CA • Pimentel v. House of Representatives ◦ Sec 18, Art. 6 of the Constitution — confers on the Senate and on the House the authority to elect the members who would fill the seats for members in the Commission on Appointments • Madrigal's primary recourse rests with the respective Houses of Congress – not this court ◦ Direct recourse to the court is premature • Following the ruling in Pimentel v. HoR, cannot be said that recourse was already had in the House of Representatives • Furnishing a copy of Petitioner's letter to the Senate President and to the Speaker of the House of Rep. does not constitute the primary recourse required • Members who were deprived of a seat in the CA must first show to the House that they possess the required numerical strength to be entitled seats ◦ Not Sen. Madrigal's Affair		

FINAL DECISION	WHEREFORE, the Motion with Leave of Court to Withdraw the Petition in G.R. No. 180055 is GRANTED. The Petition is WITHDRAWN. The Petition in G.R. No. 183055 is DISMISSED.
-----------------------	--

	SO ORDERED.
--	-------------

Guingona, Jr. v. Gonzales

DOCTRINE

Under Section 18, Article VI of the 1987 Constitution, the rule on proportional representation in the Commission on Appointments is mandatory and serves as a constitutional check on the majority party; hence, fractional memberships resulting from mathematical computations cannot be rounded up to convert a half-seat into a full seat at the expense of minority political parties, and a political party or coalition in the Senate must have at least two (2) duly elected senators to be constitutionally entitled to one seat in the Commission on Appointments.

RECITATION SUMMARY

Following the May 11, 1982 national elections, the Senate was composed of 15 LDP senators, 5 NPC senators, 3 LAKAS-NUCD senators, and 1 LP-PDP-LABAN senator. Applying the proportional representation formula for the twelve (12) Senate seats in the Commission on Appointments (CA), the resulting shares were: LDP = 7.5 seats; NPC = 2.5 seats; LAKAS-NUCD = 1.5 seats; and LP-PDP-LABAN = 0.5 seats. During the organization meeting, the LDP majority nominated eight (8) LDP senators, rounding up its 7.5 share to 8. Over the objections of petitioners Senator Teofisto Guingona, Jr. (LAKAS-NUCD) and Senator John Osmeña (NPC), the Senate adopted a temporary compromise proposed by Senator Arturo Tolentino electing 8 LDP, 2 NPC, 1 LAKAS-NUCD, and 1 LP-PDP-LABAN (Senator Wigberto Tañada) senators to the CA, with the understanding that any party could challenge the proportion in court. Senator Guingona filed a petition for prohibition and *mandamus* before the Supreme Court challenging the election of Senator Alberto Romulo (the 8th LDP member) and Senator Tañada (LP-PDP-LABAN) as violative of proportional representation. The Supreme Court granted the petition and issued a writ of prohibition, holding that: (1) the issue is justiciable as it involves the legality, not the wisdom, of filling CA seats under constitutional limits; (2) rounding up LDP's 7.5 share to 8 and LP-PDP-LABAN's 0.5 share to 1 illegally combined fractional memberships and deprived minority parties of their proportional representation; (3) a political party must have at least two (2) senators to claim a seat in the CA, rendering a single-senator party unentitled to representation; (4) the Constitution does not require that all 12 Senate seats in the CA be filled for the body to function, as it can operate as long as a quorum is present; and (5) the Senate majority committed grave abuse of discretion in electing respondents Romulo and Tañada through sheer numerical superiority in disregard of Section 18, Article VI.

MATERIAL FACTS & PROCEDURAL HISTORY

- **Legally Relevant Parties & Relationship:**
 1. *Petitioners*: Senator Teofisto T. Guingona, Jr. (acting on his own behalf and on behalf of Lakas-National Union of Christian Democrats [LAKAS-NUCD]) and Nationalist People's Coalition (NPC, petitioner-in-intervention).
 2. *Respondents*: Senator Neptali A. Gonzales (in his capacity as ex-officio Chairman of the Commission on Appointments); Senator Alberto Romulo (Majority Floor Leader and 8th LDP senator elected to the CA); and Senator Wigberto E. Tañada (lone LP-PDP-LABAN senator elected to the CA).
- **Chronological Material Facts:**
 1. Following the May 11, 1992 national elections, the political composition of the 24-member Senate was as follows: LDP (15 senators); NPC (5 senators); LAKAS-NUCD (3 senators); and LP-PDP-LABAN (1 senator).
 2. Applying the constitutional formula for proportional representation (
$$\frac{\text{No. of senators of a political party} \times 12 \text{ seats}}{\text{Total No. of senators selected}}$$
), the proportional membership of each party in the 12-seat Senate CA contingent was:
 - **LDP**: $15 \times 12 / 24 = 7.5$ members
 - **NPC**: $5 \times 12 / 24 = 2.5$ members
 - **LAKAS-NUCD**: $3 \times 12 / 24 = 1.5$ members
 - **LP-PDP-LABAN**: $1 \times 12 / 24 = 0.5$ members
 3. At the Senate organizational meeting on August 27, 1992, Majority Floor Leader Senator Romulo nominated eight (8) LDP senators for CA membership (Sens. Angara, Herrera, Alvarez,

Aquino, Mercado, Ople, Sotto, and Romulo), effectively rounding up LDP's 7.5 mathematical entitlement to 8 full seats.

- 4. Petitioner Senator Guingona (LAKAS-NUCD) and Senator John Osmeña (NPC) objected to the nomination of the 8th LDP senator as a violation of proportional representation.
- 5. To break the impasse and enable the CA to organize, Senator Arturo Tolentino proposed a temporary compromise: elect 12 members to the CA (8 LDP, 2 NPC, 1 LAKAS-NUCD, and 1 LP-PDP-LABAN), with the express reservation that if the Supreme Court subsequently finds an excess or deficiency in representation, the affected parties would adjust their seats accordingly.
- 6. Over the objections of Senators Guingona and Osmeña, the Senate approved the Tolentino compromise proposal.

- **Procedural History:**

- 1. On September 23, 1992, Senator Guingona (for himself and LAKAS-NUCD) filed a Petition for Prohibition and/or *Mandamus* directly before the Supreme Court against Senate President Gonzales, Senator Romulo, and Senator Tañada (G.R. No. 106971).
- 2. The Nationalist People's Coalition (NPC) subsequently filed a petition-in-intervention joining petitioners.

● **PARTIES' MATERIAL ARGUMENTS**

- **Petitioners' (Teofisto T. Guingona, Jr. / LAKAS-NUCD & NPC Intervenor) Claims:**
 - 1. *Violation of Proportional Representation:* Electing 8 LDP senators and 1 LP-PDP-LABAN senator violates Section 18, Article VI of the Constitution because it rounds up their 7.5 and 0.5 fractional entitlements into full seats, thereby giving LDP and LP-PDP-LABAN more than their proportional shares while correspondingly reducing the representation of minority parties (LAKAS-NUCD and NPC) below their rightful shares.
 - 2. *Right of Minority Factions to Combine Fractions:* Minority parties in the Senate have the constitutional right to combine their fractional representations (e.g., $0.5 + 0.5 = 1.0$) to complete one full seat in the CA and choose who among their ranks shall occupy that additional seat.
- **Respondents' (Gonzales, Romulo, & Tañada) Claims:**
 - 1. *Valid Legislative Compromise:* The composition of the Senate CA contingent was validly approved by the Senate pursuant to a compromise proposed by Senator Tolentino to enable the CA to organize and function.
 - 2. *Mandatory Requirement to Elect 12 Members:* The Constitution requires the Senate to elect a full contingent of twelve (12) senators to the CA.
 - 3. *Physical Impossibility & Republican Principles (Senator Tañada's Specific Argument):* Because a person cannot be physically divided, fractional membership must be rounded up to one full senator; as the sole elected senator of his party, rounding up his 0.5 share into a full seat accords with the spirit of the Constitution and the democratic principles of republicanism.

● **ISSUES**

- 1. **Whether the election of Senators Alberto Romulo and Wigberto E. Tañada** as members of the Commission on Appointments complies with the rule on proportional representation under Section 18, Article VI of the 1987 Constitution.
- 2. **Whether the Senate acted with grave abuse of discretion** in electing respondents Romulo and Tañada to the Commission on Appointments.
- 3. **Whether a writ of prohibition should issue** restraining respondents Romulo and Tañada from sitting as members of, and participating in the proceedings of, the Commission on Appointments.

♥ **HOLDING AND RATIO DECIDENDI**

ISSUE 1: Constitutionality of the Election of Senators Romulo and Tañada under Article VI, Section 18

HOLDING: NO. The election of Senator Alberto Romulo (8th LDP seat) and Senator Wigberto E. Tañada (LP-PDP-LABAN seat) is **UNCONSTITUTIONAL AND VOID**. It violates the mandatory rule on proportional representation under Section 18, Article VI of the 1987 Constitution.

RATIO & DETAILED COURT LOGIC:

1. Mandatory Character of Section 18, Article VI as a Check on the Majority:

- Section 18, Article VI explicitly dictates that twelve (12) Senators shall be elected by the Senate to the CA "*on the basis of proportional representation from the political parties...*".
- The rule on proportional representation is mandatory and does not leave any discretion to the majority party in the Senate to disregard or disobey it by sheer force of numbers.
- Proportional representation acts as a vital constitutional check on the majority party, maintaining the balance of power and preventing the majority from imposing its will on the minority.

2. Illegality of Rounding Up Fractions at the Expense of Minority Representation:

- Under the exact mathematical computation, LDP was entitled to 7.5 seats and LP-PDP-LABAN to 0.5 seats.
- Converting LDP's 0.5 fraction into a whole seat to elect Senator Romulo (giving LDP 8 seats), and converting LP-PDP-LABAN's 0.5 fraction into a whole seat to elect Senator Tañada, effectively added two halves together to create extra seats.
- In doing so, the majority utilized and usurped the fractional memberships belonging to the minority parties (LAKAS-NUCD [1.5] and NPC [2.5]), thereby reducing minority representation to less than their constitutional entitlement.

3. Rejection of Respondent Tañada's Arguments & Distinction from Precedents:

- *Distinction from Lorenzo Tañada Case (1953):* In the time of Senator Lorenzo Tañada, 23 out of 24 senators belonged to the Nacionalista Party, and Senator Lorenzo Tañada was the *sole* opposition senator in the entire Senate. By force of circumstance, he alone represented the entire minority.
- *Distinction from Juan Ponce Enrile Case (1987):* In the 1987 elections, the opposition won two Senate seats (Sens. Enrile and Estrada), which mathematically yielded exactly one full seat ($2 \times 12/24 = 1.0$).
- *The 12-Member Ceiling Anomaly:* In the present Senate, where four political parties are represented, allowing every single-senator party to round up its 0.5 share into a full seat would result in an illegal total of 13 CA members, violating the constitutional cap of 12.

4. Guideline on Minimum Threshold for Senate CA Representation:

- The Court established the following definitive guidelines for Senate representation in the CA:
 1. In the Senate, a political party or coalition must have **at least two (2) duly elected senators** for every seat in the Commission on Appointments (since $2 \times 12/24 = 1.0$).
 2. Where there are more than two political parties represented in the Senate, a political party or coalition with only a single senator (a 0.5 fraction) **cannot constitutionally claim a seat** in the Commission on Appointments.

5. Non-Mandatory Nature of Electing All 12 Members:

- The Court rejected respondents' argument that the Senate is constitutionally required to elect all 12 members.
- The Constitution does not require that the CA must necessarily be fully constituted with 12 senators and 12 representatives to perform its functions.
- Like other constitutional collegial bodies (Supreme Court, COMELEC, COA, CSC), the CA can validly meet, transact business, and rule on appointments as long as a **quorum** (at least 13 members under Section 10 of the CA Rules, with at least 4 from each House) is present. The CA can lawfully function even if only 10 senators are elected.
- Furthermore, nothing prevents minority political parties from forming a coalition with another party to aggregate their numbers and fill the two vacant seats in compliance with proportional representation.

ISSUE 2: Finding of Grave Abuse of Discretion

HOLDING: YES. The Senate majority committed **GRAVE ABUSE OF DISCRETION** in electing respondents Romulo and Tañada to the CA.

RATIO & DETAILED COURT LOGIC:

- 1. **Arbitrary Exercise of Power via Numerical Superiority:**
 - Where power is exercised in a manner inconsistent with the explicit command of the Constitution—and done knowingly by force of numerical strength rather than merely inadvertently—such exercise amounts to an abuse of authority and constitutes grave abuse of discretion.
 - The LDP majority used its superior numbers during the August 27, 1992 organizational meeting to force the election of Senators Romulo and Tañada in direct disregard of Section 18, Article VI.
-

ISSUE 3: Propriety of the Writ of Prohibition

HOLDING: YES. A writ of prohibition **MUST ISSUE** enjoining respondents from assuming or exercising functions as CA members.

RATIO & DETAILED COURT LOGIC:

- 1. **Judicial Duty to Enforce Constitutional Limits:**
 - Treating the petition as one for prohibition, the Supreme Court is duty-bound under Article VIII, Section 1 to keep co-equal branches within the limits of the Constitution.
 - Because respondents were elected in violation of Section 18, Article VI, prohibition lies to restrain them from sitting in the CA and to restrain Senate President Gonzales from recognizing their membership.
-

 **DECISION & DISPOSITION:**
The Supreme Court **DECLARED** the election of Senator Alberto Romulo and Senator Wigberto Tañada as members of the Commission on Appointments **NULL AND VOID** for violating Section 18, Article VI of the 1987 Constitution. A **WRIT OF PROHIBITION** was issued ordering Senators Romulo and Tañada to **DESIST** from assuming, occupying, and discharging the functions of members of the Commission on Appointments, and ordering Senate President Neptali Gonzales to **DESIST** from recognizing their membership and from permitting them to sit and participate as members of said Commission.

Guingona v. Gonzales (1992)

Topic Subtopic	Branches of the Government - Congress Commission on Appointments	GR No. & Ponente	[G.R. No. 106971. October 20, 1992.] CAMPOS, JR.
Petitioner/s	Teofisto T. Guingona Jr Lakas-National Union of Christian Democrats (LAKAS-NUCD)	Respondent/s	Sen. Peers. Neptali A. Gonzales (as ex-officio Chariman of CA), Sen. Romulo, Sen. Tanada
Doctrine			

FACTS

- Following May 1992 National Elections, 24 elected mems of the Senate represented the ff using the formula [(# of senators of party x 12 seats) / total senators elected]:

Party	# of Senators	Proportional Seats
Laban ng Demokratikong Pilipino (LDP)	15	7.5
National People's Coalition (NPC)	5	2.5
LAKAS-NUCD	3	1.5
LD-PDP-LABAN	1 (Sen. Tañada)	0.5

- Majority Floor Leader Romulo nominated 8 (incl. himself) LDP Senators for membership in CA.
 - Sen. Guingona (LAKAS-NUCD) and Sen. Osmeña (NPC) objected on the ground that electing 8 LDP memes exceeded the 7.5 proportional share
- To break impasse, Sen. Tolentino proposed a compromise: elect 12 members (8 LDP; 2 NPC; 1 LP; 1 LAKAS-NUCD)
 - Subject to reservation that should the SC later find any part over or under represented, they may seek judicial relief
- Sen. Guiongon filed petition for prohibition
 - Annul Sen. Romulo's election as 8th LDP mem and Sen. Tañada
 - Argued Tolentino's compromise violated constitutional rule on proportional representation
 - SHOULD BE right of minority to combine fractional shares (2.5 + 1.5 + .5 = 4.5) and decide among themselves who would be additionally nominated

ISSUE 1

Side Substantive –	W/N the election of Senators Romulo and Tañada as members of the CA conforms to Sec. 18, Art. VI, 1987 Constitution	NO
---------------------------	--	-----------

RULING and RATIO DECIDENDI:

Under Sec. 18, Art. VI, 1987 Constitution, it mandates that the 12 senators shall be elected “on the basis of proportional representation from the political parties and parties or organizations registered under the party-list system represented therein.” This is a constitutional requirement that is mandatory and does not leave space for discretionary adjustments.

The LDP majority converted its 7.5 proportional seat share into 8 whole seats by borrowing the missing 0.5 from another minority political party's share (reducing either LAKAS-NUCD or NPC's below what the formula entitles them)

Similarly, rounding up LD-PDP-LABAN's 0.5 share to 1 seat was also at the expense of other parties' fractional entitlements.

Under the Coseteng guideline, LP-PDP-LABAN, with only one elected senator does not even meet the minimum of 2 senators required to claim a single seat in CA [$(2 \times 12) / 24 = 1$]. So, Sen. Tañada's membership already fails outside of the rounding issue.

Reliance on elder Tañada and Enrile precedents is inapplicable.

- **Elder Tañada precedent** — Former Sen. Tañada (Wigberto Tañada's father) was the sole member of the Citizens' party, but was granted a seat in CA. The Senate, here, operated under a two-bloc system (majority vs. minority). He was the sole opposition senator (1 vs. 23 majority senators). Giving him a seat ensured the opposition as a whole was represented.
 - Sen. Wigberto Tañada is not the sole opposition senator.
- **Enrile Precedent** — Enrile's party had 2 senators, earning 1 seat under the formula.

It is not also mandatory that the 12 senators in the CA must be filled, because the CA may validly function with fewer than its full membership so long as a quorum is present. The 2 vacancies (from excluding Romulo and Tañada) will not paralyze the Commission.

LEGAL BASES

Article VI, Section 18, 1987 Constitution

- 12 Members of the HOR in the CoA shall be "elected by each House on the basis of proportional representation from the political parties or organizations registered under the party-list system represented therein"

ISSUE 2

Main Substantive	– W/N the Senate, acting through the LDP majority, committed grave abuse of discretion in electing the respondent Senators despite the constitutional violation	YES
RULING and RATIO DECIDENDI:		
The provision of Section 18 on proportional representation is mandatory in character and does not leave any discretion to the majority party in the Senate to disobey or disregard the rule on proportional representation; otherwise, the party with a majority representation in the Senate or the House of Representatives can by sheer force of numbers impose its will on the hapless minority Sen. Guingona and Osmeña objected to the Tolentino compromise on the Senate floor before it was adopted. Yet, the LDP majority still proceeded with full knowledge that the arrangement was constitutionally contested. • While the legislative branch possesses inherent authority over internal organization or rule-making, it should still be within constitutional limits. A political majority cannot use "by sheer force of superiority in numbers" to override an express, mandatory provision of the law. LDP Majority forced the approval of a compromise allocation that gave 8 seats to LDP and 1 to LP-PDP-LABAN despite the clear and explicit objections of the petitioners / minority members. This ignored the constitutional mandate of proportional representation and deprived minority parties of their mathematical shares.		

ISSUE 3

Main Substantive	– W/N a writ of prohibition should be issued to enjoin the respondent Senators from sitting in, and the Senate President from recognizing them as members of the Commission on Appointments	YES
------------------	---	-----

RULING and RATIO DECIDENDI:

Under Sec. 2, Rule 65, Rules of Court, a petition for prohibition is the proper remedy to restrain an officer from performing functions without or in excess of jurisdiction. Because Sen. Romulo and Tañada's election was declared unconstitutional and void ab initio, neither had the right or constitutional entitlement to sit in the CA.

LEGAL BASES**Sec. 2, Rule 65, Rules of Court**

- Prohibition lies to restrain a tribunal, board, or person from acting without or in excess of jurisdiction, or with grave abuse of discretion.

FINAL DECISION

WHEREFORE, the election of Sen. Romulo and Tañada as members of CA is NULL AND VOID for violating Sec. 18, Art. VI, 1987 Constitution.

Sema v. Commission on Elections

DOCTRINE

The power to create provinces and cities is exclusively vested in Congress under Section 5, Article VI of the 1987 Constitution and Section 3 of the Ordinance appended thereto, because the creation of a province or city inherently involves the creation or reapportionment of a legislative district for the House of Representatives—a national office operating beyond regional territorial jurisdiction—which power cannot be validly delegated by Congress to regional legislative assemblies such as the ARMM Regional Assembly under Section 19, Article VI of R.A. No. 9054.

RECITATION SUMMARY

Under Section 19, Article VI of Republic Act No. 9054 (the amended ARMM Organic Act), Congress delegated to the ARMM Regional Assembly the power to create provinces and cities. Pursuant to this provision, the ARMM Regional Assembly enacted Muslim Mindanao Autonomy Act No. 201 (MMA Act 201) creating the Province of Shariff Kabunsuan out of the municipalities comprising the First Legislative District of Maguindanao (excluding Cotabato City, which voted against ARMM inclusion). Following a ratifying plebiscite on October 29, 2006, Cotabato City requested clarification on its status. The COMELEC issued Resolution No. 7902 maintaining the status quo by designating the district as "Shariff Kabunsuan Province with Cotabato City". Petitioner Bai Sandra S.A. Sema, a candidate for Representative of the district who lost to respondent Didagen P. Dilangalen in the May 14, 2007 elections, filed a petition for certiorari, prohibition, and mandamus arguing that Cotabato City should be excluded from Shariff Kabunsuan and constituted as its own district. The Supreme Court dismissed the petitions and held that: (1) prohibition lies to test the constitutionality of election laws and COMELEC resolutions, and the case was not mooted by Dilangalen's proclamation because the issue involves the future power of ARMM to create provinces and districts; (2) Section 19, Article VI of R.A. No. 9054 is unconstitutional insofar as it grants the ARMM Regional Assembly the power to create provinces and cities, because creating a province or city inherently creates a legislative district—a national office that can only be created by an Act of Congress under Section 5, Article VI of the Constitution; (3) MMA Act 201 creating the Province of Shariff Kabunsuan is void *ab initio*; and (4) COMELEC Resolution No. 7902 preserving the First Legislative District of Maguindanao with Cotabato City is valid.

MATERIAL FACTS & PROCEDURAL HISTORY

- **Legally Relevant Parties & Relationship:**
 1. *Petitioner in G.R. No. 177597:* Bai Sandra S.A. Sema (candidate for Representative of "Shariff Kabunsuan Province with Cotabato City" in the May 14, 2007 elections).
 2. *Petitioner in G.R. No. 178628:* Perfecto F. Marquez (taxpayer and resident voter of Cotabato City).
 3. *Public Respondent:* Commission on Elections (COMELEC).
 4. *Private Respondent in G.R. No. 177597:* Didagen P. Dilangalen (proclaimed winning candidate for Representative of "Shariff Kabunsuan Province with Cotabato City").
- **Chronological Material Facts:**
 1. Under the Ordinance appended to the 1987 Constitution, the Province of Maguindanao was apportioned two legislative districts. The First Legislative District consisted of Cotabato City and eight (8) municipalities (Barira, Buldon, Datu Odin Sinsuat, Kabuntalan, Matanog, Parang, Sultan Kudarat, and Upi). Maguindanao forms part of the Autonomous Region in Muslim Mindanao (ARMM), created under R.A. No. 6734, as amended by R.A. No. 9054. Cotabato City, although forming part of Maguindanao's First Legislative District under the Ordinance, voted against inclusion in the ARMM in the November 1989 plebiscite and is part of Region XII.
 2. On August 28, 2006, exercising its power under Section 19, Article VI of R.A. No. 9054, the ARMM Regional Assembly enacted Muslim Mindanao Autonomy Act No. 201 (MMA Act 201) creating the Province of Shariff Kabunsuan, comprising the nine municipalities of the First Legislative District of Maguindanao (three new municipalities—Sultan Mastura, Northern Kabuntalan, and Datu Blah Sinsuat—were subsequently carved out, bringing the total to 11 municipalities). Section 5 of MMA Act 201 provided: "*Except as may be provided by national law, the existing legislative district, which includes Cotabato as a part thereof, shall remain.*"
 3. Voters of Maguindanao ratified the creation of Shariff Kabunsuan in a plebiscite on October 29, 2006.
 4. On February 6, 2007, the Sangguniang Panlungsod of Cotabato City passed Resolution No. 3999 requesting COMELEC to clarify Cotabato City's status. On March 6, 2007, COMELEC issued Resolution No. 07-0407 adopting its Law Department's recommendation to maintain the status quo with Cotabato City as part of Shariff Kabunsuan in the First District of Maguindanao pending an Act of Congress.
 5. On March 29, 2007, COMELEC issued Resolution No. 7845 stating that Maguindanao's First Legislative District was composed only of Cotabato City because of MMA Act 201.
 6. On May 10, 2007, four days before the elections, COMELEC issued Resolution No. 7902 amending Resolution No. 07-0407, renaming the district as "Shariff Kabunsuan Province with Cotabato City (formerly First District of Maguindanao with Cotabato City)".

7. In the May 14, 2007 elections, Sema and Dilangalen ran for Representative of "Shariff Kabunsuan Province with Cotabato City". On June 1, 2007, Dilangalen was proclaimed the winner.

- **Procedural History:**

1. Sema filed a petition for certiorari, prohibition, and mandamus (G.R. No. 177597) to nullify COMELEC Resolution No. 7902 and exclude Cotabato City votes from the canvass for Shariff Kabunsuan Representative.
2. Marquez filed a petition for declaratory relief, prohibition, and mandamus (G.R. No. 178628) to compel COMELEC to hold a special election for Representative of Cotabato City alone.
3. The Supreme Court consolidated the two petitions, heard oral arguments on November 27, 2007, and required the parties to submit memoranda addressing the constitutionality of Section 19, Article VI of R.A. No. 9054 and whether an ARMM-created province is automatically entitled to a congressional representative without a national law creating a legislative district.

● PARTIES' MATERIAL ARGUMENTS

- **Petitioner Sema's Claims:**

1. *COMELEC Ultra Vires*: COMELEC acted ultra vires and usurped Congress' power in issuing Resolution No. 7902 maintaining the status quo, reversing its earlier Resolution No. 7845 that made Cotabato City the sole component of Maguindanao's First District.
2. *Constitutionality of Section 19, R.A. No. 9054*: Section 19, Article VI of R.A. No. 9054 is a valid delegation of power by Congress under Section 20(9), Article X of the Constitution (general welfare clause for autonomous regions).
3. *Automatic Entitlement to Representative under Felwa v. Salas*: Under *Felwa v. Salas*, Section 5(3), Article VI of the Constitution, and Section 3 of the Ordinance appended thereto, every newly created province is automatically entitled to one representative in Congress by operation of the Constitution without need of a national law creating a legislative district.

- **Petitioner Marquez's Claims:**

1. *Right to Separate Representative*: Cotabato City cannot be conjoined with Shariff Kabunsuan (an ARMM province) into a single district; COMELEC should be compelled to conduct a special election for Cotabato City alone.

- **Respondent Dilangalen's Claims:**

1. *Estoppel & Validity of Resolution No. 7902*: Sema is estopped because in her COC she ran for "Shariff Kabunsuan w/ Cotabato City"; Resolution No. 7902 merely renamed the existing first district of Maguindanao without creating a new district.
2. *Unconstitutionality of Section 19, R.A. No. 9054*: Section 19 is unconstitutional because: (a) power to create provinces was withheld from autonomous regions under Section 20, Article X of the Constitution; (b) allowing ARMM to prescribe standards lower than R.A. No. 7160 violates Section 10, Article X and the Equal Protection Clause; (c) Section 3, Article IV of R.A. No. 9054 explicitly prohibited ARMM from enacting laws relating to national elections; and (d) Cotabato City's population (163,849) falls below the 250,000 threshold required for a city to form a legislative district under Section 5(3), Article VI.

- **Public Respondent COMELEC's Claims (OSG):**

1. *Procedural Objections*: Certiorari is improper against administrative resolutions; Sema's prohibition prayer became moot upon Dilangalen's proclamation on June 1, 2007.
2. *Unconstitutionality of Section 19, R.A. No. 9054 (Position in Memorandum)*: Reversing its earlier position, OSG concurred with Dilangalen that Section 19 of R.A. No. 9054 is unconstitutional because only Congress can create provinces and legislative districts.

● ISSUES

1. **Whether prohibition lies to test the constitutionality of COMELEC Resolution No. 7902**, and whether the proclamation of respondent Dilangalen rendered the petition moot and academic.
2. **Whether Section 19, Article VI of Republic Act No. 9054**, delegating to the ARMM Regional Assembly the power to create provinces, cities, municipalities, and barangays, is constitutional.
3. **If Section 19, Article VI of R.A. No. 9054 is constitutional**, whether a province created by the ARMM Regional Assembly under MMA Act 201 is entitled to one representative in the House of Representatives without need of a national law creating a legislative district.
4. **Whether COMELEC Resolution No. 7902 is valid** in maintaining the status quo of the First Legislative District of Maguindanao with Cotabato City.

♥ HOLDING AND RATIO DECIDENDI

ISSUE 1: Propriety of Prohibition and Non-Mootness

HOLDING: YES. The writ of prohibition is a proper remedy, and Dilangalen's proclamation did **NOT** render the petitions moot.

RATIO & DETAILED COURT LOGIC:

- 1. *Prohibition as Remedy for Election Regulations:* Although COMELEC issued Resolution No. 7902 in the exercise of its administrative (not quasi-judicial) power, the Supreme Court has long recognized prohibition as a proper remedy to test the constitutionality of election laws, rules, and regulations (*Social Weather Stations v. COMELEC*; *Mutuc v. COMELEC*).
- 2. *Non-Mootness Due to Public Interest and Future Application:* While the outcome incidentally affects whether Cotabato City votes are included in the May 14, 2007 canvass, the core issues concern the validity of COMELEC Resolution No. 7902, MMA Act 201, and Section 19, Article VI of R.A. No. 9054. The ruling affects all succeeding national elections and the future power of the ARMM Regional Assembly to create provinces and districts.

ISSUE 2: Unconstitutionality of Section 19, Article VI of R.A. No. 9054 (Delegation of Power to Create Provinces & Cities)

HOLDING: NO. Section 19, Article VI of R.A. No. 9054 is **UNCONSTITUTIONAL** insofar as it grants the ARMM Regional Assembly the power to create provinces and cities.

RATIO & DETAILED COURT LOGIC:

- 1. *Inseparable Link Between Creation of Provinces/Cities and Creation of Legislative Districts:*
 - o Section 5(3), Article VI of the 1987 Constitution commands: "Each city with a population of at least two hundred fifty thousand, or each province, shall have at least one representative."
 - o Section 3 of the Ordinance appended to the Constitution provides: "Any province that may hereafter be created, or any city whose population may hereafter increase to more than two hundred fifty thousand shall be entitled in the immediately following election to at least one Member..."
 - o A province cannot exist without a legislative district because the Constitution guarantees every province at least one representative in the House of Representatives. Similarly, creating a city with a population of 250,000 or more automatically requires a legislative district. Therefore, the power to create a province or city inherently and indispensably includes the power to create or reapportion a legislative district.
- 2. *Exclusive Constitutional Power of Congress to Create Legislative Districts:*
 - o Under Section 5(1), Article VI of the Constitution, the House of Representatives is composed of not more than 250 members, "unless otherwise fixed by law". Under Section 5(4), Congress is mandated to make a reapportionment of legislative districts.
 - o Citing *Montejo v. COMELEC*, the power of redistricting and creating legislative districts is traditionally part of the legislative power vested **exclusively in Congress**.
 - o An increase in the allowable membership of the House of Representatives or the creation of new legislative districts for a national legislature must be embodied in a **national law passed by Congress itself**. An inferior regional legislative body created by a superior national legislature cannot alter or expand the membership of the superior body.
- 3. *District Representative is a National Office Beyond Regional Territorial Jurisdiction:*
 - o Under Section 20, Article X of the Constitution, the legislative powers of regional assemblies are expressly restricted "[w]ithin its territorial jurisdiction".
 - o The office of a legislative district representative to Congress is a **national office**, and its occupant is a **national official** whose salary is paid out of national funds.
 - o Allowing the ARMM Regional Assembly to create a province that automatically generates a national legislative district would allow regional legislative power to operate outside ARMM's territorial jurisdiction, violating Section 20, Article X.
 - o Furthermore, Section 3, Article IV of R.A. No. 9054 explicitly excludes "**National elections**" from the legislative powers of the ARMM Regional Assembly. Since district representatives are elected in national elections, ARMM cannot create a legislative district.
- 4. *Absurd and Catastrophic Consequences of Delegation:*
 - o If the ARMM Regional Assembly possessed the power to create provinces, it could create 100 or 1,000 provinces (prescribing standards lower than R.A. No. 7160 under Section 19) and pack the House of Representatives with its own representatives without Congress' consent, wrecking the constitutional balance of powers and proportional representation based on population.

ISSUE 3: Inapplicability of *Felwa v. Salas* and Invalidity of MMA Act 201

HOLDING: NO. An ARMM-created province is **NOT** automatically entitled to a representative in Congress without an Act of Congress. MMA Act 201 creating Shariff Kabunsuan is **VOID AB INITIO**.

RATIO & DETAILED COURT LOGIC:

- 1. *Distinction from Felwa v. Salas:*
 - o In *Felwa v. Salas* (124 Phil. 1226), R.A. No. 4695 created four new provinces (Benguet, Mountain Province, Ifugao, Kalinga-Apayao) and their corresponding representative districts. The Court held that when a province is created by statute, a representative district comes into existence by operation of the Constitution without needing a separate reapportionment.
 - o The crucial distinction is that in *Felwa*, the new provinces were created by a **national law enacted by Congress itself**. *Felwa* teaches that only an Act of Congress can trigger the constitutional creation of a legislative district. It does not authorize a regional assembly to trigger such creation.
- 2. *Ineffectuality of MMA Act 201:*
 - o Because the ARMM Regional Assembly lacked the constitutional power to create legislative districts or national offices, it could not validly create the Province of Shariff Kabunsuan.
 - o Moreover, if MMA Act 201 were sustained as creating a separate district for Shariff Kabunsuan, it would leave Cotabato City as the sole remaining component of Maguindanao's First District. But Cotabato City's population (163,849 in the 2000 census) fell short of the 250,000 minimum population required for a city to constitute a legislative district under Section 5(3), Article VI, resulting in another constitutional violation.
 - o Consequently, MMA Act 201 is null and void *ab initio*.

ISSUE 4: Validity of COMELEC Resolution No. 7902

HOLDING: YES. COMELEC Resolution No. 7902 is **VALID**.

RATIO & DETAILED COURT LOGIC:

- 1. *Preservation of Constitutional District:*
 - o Because MMA Act 201 creating Shariff Kabunsuan is void *ab initio*, the original First Legislative District of Maguindanao—composed of Cotabato City and the original eight municipalities—remained intact under Section 1 of the Ordinance appended to the Constitution.
 - o COMELEC Resolution No. 7902, in maintaining the status quo by treating the district as "Shariff Kabunsuan Province with Cotabato City (formerly First District of Maguindanao with Cotabato City)," merely preserved the geographic and legislative district created by the Constitution. Thus, Resolution No. 7902 is completely valid.

 **DECISION & DISPOSITION:**
The Supreme Court **DISMISSED** the consolidated petitions for lack of merit:

- 1. Section 19, Article VI of Republic Act No. 9054 is declared **UNCONSTITUTIONAL** insofar as it grants to the Regional Assembly of the Autonomous Region in Muslim Mindanao the power to create provinces and cities.
- 2. Muslim Mindanao Autonomy Act No. 201 creating the Province of Shariff Kabunsuan is declared **VOID**.
- 3. COMELEC Resolution No. 7902 is declared **VALID**.

Let a copy of this ruling be served on the President of the Senate and the Speaker of the House of Representatives.

Sema v. COMELEC (2008)

Topic Subtopic	Powers of Congress General Plenary Powers	GR No. & Ponente	G.R. No. 177597 G.R. No. 178628 J. Carpio
Petitioner/s	BAI SANDRA S. A. SEMA PERFECTO F. MARQUEZ	Respondent/s	COMMISSION ON ELECTIONS
Doctrine	Only Congress has the power to reapportion and create legislative districts because it is a national body. An inferior legislative body, created by a superior legislative body, cannot change the membership of the superior legislative body.		

FACTS

- Under the Ordinance appended to the 1987 Constitution, Maguindanao was apportioned into two legislative districts.
 - The First Legislative District consisted of Cotabato City and eight municipalities.
 - Maguindanao forms part of the Autonomous Region in Muslim Mindanao (ARMM) BUT Cotabato City is not part of ARMM because its residents voted against inclusion during the 1989 plebiscite.
- RA 9054, the Organic Act for ARMM, gave the ARMM Regional Assembly the power under Sec. 19, Article VI to create, divide, merge, abolish, or substantially alter the boundaries of provinces, cities, municipalities, and barangays within the ARMM.
- Aug. 28, 2006 → ARMM Regional Assembly enacted Muslim Mindanao Autonomy Act No. 201 (MMA Act 201), creating the Province of Shariff Kabunsuan from the eight municipalities comprising the First Legislative District of Maguindanao.
 - Cotabato City was not included because it was outside ARMM which created a problem concerning the congressional district.
 - The municipalities that formerly belonged to Maguindanao's First District were now part of the newly created Shariff Kabunsuan, while Cotabato City remained outside ARMM.
- Mar. 29, 2007 → COMELEC issued Resolution No. 7845, stating that Maguindanao's First Legislative District consisted only of Cotabato City, because the other municipalities had been separated from Maguindanao by MMA Act 201.
- May 10, 2007 → only days before the May 14 elections, COMELEC issued Resolution No. 7902, which amended the earlier arrangement and renamed the district as "Shariff Kabunsuan Province with Cotabato City (formerly First District of Maguindanao with Cotabato City)"
 - COMELEC maintained the status quo by treating Shariff Kabunsuan and Cotabato City as one legislative district.
- Bai Sandra Sema, who was a candidate for Representative of "Shariff Kabunsuan with Cotabato City" in the May 2007 elections, challenged COMELEC Resolution No. 7902 (G.R. No. 177597)
 - Argued that Shariff Kabunsuan was entitled to its own representative in the House of Representatives under Section 5(3), Article VI of the Constitution + Section 3 of the Ordinance appended to the Constitution.
 - Argued that COMELEC acted without or in excess of jurisdiction in maintaining the combined district and had effectively usurped Congress' power to create or reapportion legislative districts.
- Perfecto F. Marquez, a taxpayer and resident of Cotabato City, likewise challenged the Resolution.
 - Argued that Cotabato City should have its own congressional representation and sought the conduct of a special election.
- COMELEC initially argued that Sema improperly used certiorari because Resolution No. 7902 was issued in the exercise of COMELEC's administrative, rather than quasi-judicial, power.
 - On the constitutional issue, the respondents argued that the ARMM Regional Assembly had no authority to create a congressional district.
 - Congressional districts and representation in the House are matters governed by the Constitution and national legislation.

Main – Procedural	W/N the writs of Certiorari, Prohibition, and Mandamus are proper to test the constitutionality of COMELEC Resolution No. 7902	YES
RESPONDENT/S ARGUMENTS: COMELEC argues that petitioner wrongfully availed writ of <i>certiorari</i> to nullify COMELEC Resol No. 7902 bc COMELEC exercised administrative power and not quasi-judicial power.		
RULING and RATIO DECIDENDI: <i>Petition for prohibition is proper for testing the constitutionality of election laws, rules, and regulations.</i> Certiorari - correct grave abuse of discretion by “any tribunal, board, or officer exercising quasi-judicial functions Mandamus - to compel a tribunal, corporation, board, officer, or person to perform an act “which the law specifically enjoins as a duty.” Petitioner did not ask for these two only, also prayed for prohibition thus, does not merit an outright dismissal.		

ISSUE 2

Main – Procedural	W/N the proclamation of respondent Dilangalen as representative of Shariff Kabunsuan Province with Cotabato City mooted the petition in G.R. No. 177597	NO
RESPONDENT/S ARGUMENTS: COMELEC: petition for prohibition already moot as Dilangalen has already been proclaimed as representative of the legislative district of Shariff Kabunsuan Province with Cotabato City.		
RULING and RATIO DECIDENDI: <i>The case does not only concern the proclamation of Dilangalen but also the apportionment of the legislative district.</i> The case is concerned with COMELEC Resol. 7902 and MMA Act 201.		

ISSUE 3

Main – Substantive	W/N Sec. 19, Article VI of R.A. 9054, delegating to the ARMM Regional Assembly the power to create provinces, cities, municipalities and barangays, is constitutional	NO
PETITIONER/S ARGUMENTS: <i>Felwa v Salas</i>: “when a province is created by statute, the corresponding representative district comes into existence neither by authority of that statute — which cannot provide otherwise — nor by apportionment, but by operation of the Constitution, without a reapportionment;” - Section 462 of Republic Act No. 7160 (R.A. 7160) “affirms” the apportionment of a legislative district incident to the creation of a province - Section 5 (3), Article VI of the Constitution and Section 3 of the Ordinance appended to the Constitution mandate the apportionment of a legislative district in newly created		RESPONDENT/S ARGUMENTS: - the “province” contemplated in Section 5 (3), Article VI of the Constitution is one that is created by an act of Congress taking into account the provisions in R.A. 7160 on the creation of provinces - Section 3, Article IV of R.A. 9054 withheld from the ARMM Regional Assembly the power to enact measures relating to national elections, which encompasses the apportionment of legislative districts for members of the House of Representatives - recognizing a legislative district in every province the ARMM Regional Assembly creates will lead to the disproportionate representation of the ARMM in the House of Representatives as the Regional

provinces.	Assembly can create provinces without regard to the requirements in Section 461 of R.A. 7160; • Cotabato City, which has a population of less than 250,000, is not entitled to a representative in the House of Representatives.
------------	---

RULING and RATIO DECIDENDI:

Only the Congress has the power to reapportion and create legislative districts.

Art VI, Section 5 (3) of the 1987 Constitution: "...cities with 250,000 population or each province shall have 1 representative in the House of Representatives"

- **Thus, a province cannot be created without a legislative district and legislative districts are created or reapportioned only by an act of Congress.**

Art VI, Section 5 (1): HOR shall be composed of 250 members unless otherwise fixed by law and (4) Congress shall make a reapportionment of Legislative Districts.

- (1) vests Congress the power to increase membership in the HOR while (4) empowers Congress to reapportion legislative districts.
- An inferior legislative body, created by a superior legislative body, cannot change the membership of the superior legislative body.

Art X, Section 20 (powers of autonomous regions) does not include the power to create or reapportion legislative districts for Congress.

Sec 3, Art IV of RA 9054 does not provide legislative powers for the Regional Assembly in matters of National Elections.

Indeed, the office of a legislative district representative to Congress is a national office, and its occupant, a Member of the House of Representatives, is a national official. Thus, a regional or local legislative body cannot influence its membership by creating a province thus creating a legislative district.

- To allow the ARMM Regional Assembly to create a national office is to allow its legislative powers to operate outside the ARMM's territorial jurisdiction (violates Art X, Section 20 of the Consti that limits their coverage within their jurisdiction).

Felwa v Salinas cannot apply.

- It was about whether RA 4695 creating the provinces of Benguet, Mountain Province, Ifugao, and Kalinga-Apayao and providing for congressional representation in the old and new provinces, was unconstitutional for "creati[ng] congressional districts without the apportionment provided in the Constitution."
- In the case, the court held that RA 4695 is constitutional because it validly created legislative districts "indirectly" through a special law enacted by Congress creating a province and the creation of the legislative districts will not result in breaching the maximum number of legislative districts provided under the 1935 Constitution
- In Felwa, the new provinces were **created by Congress**, in the case it is merely a regional law.

The power to create or reapportion legislative districts cannot be delegated by Congress but must be exercised by Congress itself.

TLDR: Creation of province results in entitlement to a representation in Congress -> only Congress has the power to increase its membership or reapportion legislative districts.

Legal Basis

Montejo v. COMELEC: "power of redistricting . . . is traditionally regarded as part of the power (of Congress) to

make laws", and thus is vested exclusively in Congress.

Art VI, Section 5 (1): The House of Representatives shall be composed of not more than two hundred and fifty members, unless otherwise fixed by law, who shall be elected from legislative districts apportioned among the provinces, cities, and the Metropolitan Manila area in accordance with the number of their respective inhabitants, and on the basis of a uniform and progressive ratio, and those who, as provided by law, shall be elected through a party-list system of registered national, regional, and sectoral parties or organizations.

Art VI, Section 5 (4): Within three years following the return of every census, the Congress shall make a reapportionment of legislative districts based on the standards provided in this section.

FINAL DECISION

WHEREFORE, we declare **Section 19, Article VI of Republic Act No. 9054 UNCONSTITUTIONAL** insofar as it grants to the Regional Assembly of the Autonomous Region in Muslim Mindanao the power to create provinces and cities. Thus, we declare **VOID Muslim Mindanao Autonomy Act No. 201 creating the Province of Shariff Kabunsuan**. Consequently, we rule that **COMELEC Resolution No. 7902 is VALID**.

SEPARATE OPINION/S

TINGA, J,
*dissenting/
concurring*

Concurs that the petition must be denied (through a different reason).

- Sema is estopped from challenging the congressional district because her Certificate of Candidacy stated that she was running to represent "Shariff Kabunsuan with Cotabato City."
 - Questioned Sema's standing, since she was challenging the validity of the very legislative district in which she had chosen to run.
- Marquez's petition was procedurally defective → it was filed only after the elections, did not sufficiently establish a cause of action, and failed to implead the proper real party-in-interest.
- *May Congress delegate the power to create provinces to regional or local legislative bodies?*
 - Tinga found no constitutional provision expressly prohibiting Congress from doing so.
 - Sec. 10, Article X does not state that only Congress may create provinces and cities.
 - Consistent with the constitutional policy of local autonomy, Congress could delegate the power to create provinces to the ARMM Regional Assembly through R.A. No. 9054.
- **HOWEVER**, even if the power to create a province could be delegated, only Congress can increase the composition of the House of Representatives.
 - The creation of a province therefore does not automatically create a new congressional district or representative.

Torralba v. Municipality of Sibagat

DOCTRINE

Under Section 3, Article XI of the 1973 Constitution, the creation of a municipal corporation is essentially legislative in nature, and the absence of a Local Government Code at the time a statute creating a municipality is enacted does not curtail or cripple legislative power, which remains plenary in the interregnum subject only to approval by a majority of votes cast in a plebiscite conducted in the unit or units affected.

RECITATION SUMMARY

Petitioners Clementino Torralba and Re L. Rugay, residents and taxpayers of Butuan City, filed a petition directly before the Supreme Court challenging the constitutionality of Batas Pambansa Blg. 56, which created the Municipality of Sibagat in the Province of Agusan del Sur by separating sixteen (16) barangays from the mother Municipality of Bayugan. Petitioners argued that under Section 3, Article XI of the 1973 Constitution, the enactment of a Local Government Code specifying statutory criteria for creating local government units was a mandatory condition precedent, and because no Local Government Code had been enacted when BP 56 was passed on February 1, 1980, the law was null and void. The Supreme Court dismissed the petition, ruling that the absence of a Local Government Code at the time of BP 56's enactment did not cripple legislative competence. The Court held that prior to the passage of the Local Government Code (enacted on February 10, 1983), the legislative power to create municipal corporations remained plenary, provided that the creation was approved by the people in a plebiscite held in the unit or units affected. Because a valid plebiscite was conducted in the area or areas affected and the creation was ratified, the Municipality of Sibagat was validly created as a *de jure* local government entity.

MATERIAL FACTS & PROCEDURAL HISTORY

- **Legally Relevant Parties & Relationship:**
 1. *Petitioners:* Clementino Torralba (member of the Sangguniang Panlungsod of Butuan City) and Re L. Rugay, both suing as residents and taxpayers of Butuan City.
 2. *Respondents:* The Municipality of Sibagat, Province of Agusan del Sur, and its Municipal Officers (local public officials of the newly created municipality).
- **Chronological Material Facts:**
 1. On February 1, 1980, the Interim Batasang Pambansa enacted Batas Pambansa Blg. 56, creating the Municipality of Sibagat in the Province of Agusan del Sur.
 2. Section 1 of BP 56 separated sixteen (16) barangays—namely Ilihan, Sinai, Sibagat, El Rio, Afga, Tabontabon, Perez, Magsaysay, Santa Cruz, Santa Maria, San Isidro, Villagit, Del Rosario, Anahauan, Mahayahay, and San

Vicente—from the mother Municipality of Bayugan, Agusan del Sur, to form the independent Municipality of Sibagat without affecting the legal existence of Bayugan.

3. Section 2 defined the territorial boundaries of the new municipality, Section 3 designated Barangay Sibagat as the seat of government, and Section 5 provided for a plebiscite to be conducted in the area or areas affected within ninety (90) days after approval, following which the President (Prime Minister) would appoint the Mayor and other municipal officials.
4. Pursuant to BP 56, a plebiscite was conducted among the voters in the unit or units affected, wherein the voters endorsed and approved the creation of the new municipality.
5. Following the plebiscite, local public officials for the Municipality of Sibagat were appointed, took their oaths of office, and assumed their positions, discharging their functions as a *de jure* entity.
6. Subsequently, on February 10, 1983, the Batasang Pambansa enacted the Local Government Code (Batas Pambansa Blg. 337); hence, when BP 56 was enacted on February 1, 1980, the Local Government Code was not yet in existence.

- **Procedural History:**

1. Petitioners filed an original petition for prohibition/injunction directly before the Supreme Court En Banc (G.R. No. L-59180), challenging BP 56 for allegedly infringing Section 3, Article XI of the 1973 Constitution.

● PARTIES' MATERIAL ARGUMENTS

- **Petitioners' (Clementino Torralba & Re L. Rugay) Claims:**

1. *Violation of Section 3, Article XI of the 1973 Constitution:* Under Section 3, Article XI, a Local Government Code must first be enacted to determine the criteria for the creation, division, merger, abolition, or substantial alteration of boundaries of LGUs; because no Local Government Code was in existence when BP 56 was enacted on February 1, 1980, BP 56 could not have complied with any statutory criteria and is therefore null and void.

- **Respondents' (Municipality of Sibagat & Municipal Officers) Claims:**

1. *Validity of Legislative Act:* BP 56 was a valid exercise of legislative power vested in the Interim Batasang Pambansa, and the creation of Sibagat fully complied with the constitutional requirement of voter approval through a plebiscite held in the area or areas affected.

● ISSUES

1. **Whether Batas Pambansa Blg. 56 creating the Municipality of Sibagat is unconstitutional** under Section 3, Article XI of the 1973 Constitution for having been enacted prior to the passage of the Local Government Code.

ISSUE 1: Constitutionality of BP 56 Enacted Prior to the Passage of the Local Government Code

HOLDING: NO. Batas Pambansa Blg. 56 is **VALID AND CONSTITUTIONAL**. The petition is **DISMISSED**.

RATIO & DETAILED COURT LOGIC:

1. Plenary Nature of Legislative Power to Create Municipalities:

- The power to create a municipal corporation is essentially legislative in nature.
- In the absence of specific constitutional limitations, the legislative body may create any municipal corporation it deems essential for the more efficient administration of government.
- Under the 1973 Constitution, this legislative authority was plenary and vested in the Interim Batasang Pambansa.

2. The Local Government Code is NOT a Condition Precedent:

- Section 3, Article XI of the 1973 Constitution provides:
"No province, city, municipality, or barrio may be created, divided, merged, abolished, or its boundary substantially altered, except in accordance with the criteria established in the Local Government Code, and subject to the approval by a majority of the votes cast in a plebiscite in the unit or units affected."
- The absence of the Local Government Code at the time BP 56 was enacted did not curtail nor cripple legislative competence to create municipal corporations.
- The 1973 Constitution contains no requirement that the enactment of a Local Government Code is a *condition sine qua non* for the creation of a municipality, in much the same way that creating a municipality does not preclude the subsequent enactment of a Local Government Code.

3. Proper Legal Interpretation of the Constitutional Mandate:

- The true meaning of Section 3, Article XI is that *once* the Local Government Code is enacted, any creation, modification, or dissolution of local government units must conform to the criteria laid down therein.
- In the *interregnum*—before the enactment of the Local Government Code—legislative power to create local government units remains plenary, subject only to the sole constitutional restriction that the creation of the new unit must be approved by the people concerned in a plebiscite called for the purpose.

4. Compliance with the Plebiscite Requirement:

- The creation of the Municipality of Sibagat fully conformed to the sole applicable constitutional limitation.
- A plebiscite was conducted among the people of the unit or units affected, who endorsed and approved the creation of the new municipality.
- The municipal officials took their oaths of office and assumed their positions, establishing a valid *de jure* municipal entity.

5. **Distinction from *Tan v. COMELEC* (142 SCRA 727):**

- The Supreme Court distinguished BP 56 from BP Blg. 885 (which created the Province of Negros del Norte and was declared unconstitutional in *Tan v. COMELEC*) based on four major differences:
 1. *Existence of the LGC*: In *Tan*, the Local Government Code was already in existence when BP Blg. 885 was enacted, yet its statutory criteria were violated; in *Torralba*, the Local Government Code had not yet been enacted.
 2. *Scope of Plebiscite*: In *Tan*, BP Blg. 885 illegally confined the plebiscite to the proposed new province to the exclusion of voters in the remaining area of the mother province; in *Torralba*, BP 56 specifically provided for a plebiscite "in the area or areas affected," and the legality of the plebiscite was undisputed.
 3. *Territorial Area Requirement*: In *Tan*, BP Blg. 885 failed to comply with the minimum land area required for creating a province under the LGC; in *Torralba*, no issue as to land area was raised or present.
 4. *Legislative Process*: In *Tan*, "indecent haste" characterized the enactment of BP Blg. 885 and the holding of its plebiscite; in *Torralba*, BP 56 was enacted in the normal course of legislation, and the plebiscite was held within the statutory period.

 DECISION & DISPOSITION:

The Supreme Court **DISMISSED** the petition for lack of merit. No costs.

TORRALBA v. MUNICIPALITY OF SIBAGAT (1987)

Topic Subtopic	Powers of Congress General Plenary Powers	GR No. & Ponente	L-59180 Melencio-Herrera, J.
Petitioner/s	Clementino Torralba and Re L. Rugay	Respondent/s	The Municipality of Sibagat, Province of Agusan Del Sur and its Municipal Officers
Doctrine	In the interregnum prior to the enactment of the Local Government Code, the prior existence of such Code is not a <i>condition sine qua non</i> for the creation of a municipality; legislative power to create municipal corporations remains plenary, provided the creation is ratified by a majority of votes cast in a plebiscite conducted in the unit or units affected.		

FACTS

Petitioners challenge the constitutionality of **BPB 56**, creating the Municipality of Sibagat, Province of Agusan Del Sur, as violative of **Article XI of the 1973 Constitution**

- This separates sixteen (16) barangays (Ilihan, Sinai, Sibagat, El Rio, Afga, Tabontabon, Perez, Magsaysay, Santa Cruz, Santa Maria, San Isidro, Villagit, Del Rosario, Anahauan, Mahayahay, and San Vicente) from the Municipality of Bayugan, Agusan del Sur, to form the independent Municipality of Sibagat.
- BP 56 provided that the creation would not affect the legal existence of the mother Municipality of Bayugan, designated Barangay Sibagat as the seat of government, and conditioned official appointments on ratification by a majority of votes cast in a plebiscite conducted in the area or areas affected within ninety (90) days from approval.

Petitioners are **residents** and **taxpayers** of Butuan City; Petitioner Torralba is a member of the Sangguniang Panglunsod. Respondent municipal officers are the **local public officials** of the new Municipality.

ISSUE 1

W/N BPB 56 is unconstitutional.		NO
PETITIONER'S ARGUMENT		RESPONDENT'S ARGUMENT
Under Section 3, Article XI of the 1973C, the Local Government Code must first be enacted to establish the criteria for the creation, division, merger, abolition, or substantial alteration of boundaries of LGUs. Since LGC did not exist when BP 56 was enacted, the statute could not have complied with any statutory criteria when creating the Municipality of Sibagat, rendering BPB 56 null and void .		Respondent municipal officers acted as legitimate officials of a <i>de jure</i> municipal corporation established through a valid legislative act subsequently ratified by the affected populace in a plebiscite.
RULING and RATIO DECIDENDI:		
NO. It is NOT unconstitutional. - The absence of the LGC at the time of enactment did not curtail or cripple legislative competence to create municipal corporations. Section 3, Article XI contains no requirement that the LGC is a <i>condition sine qua non</i> for the creation of a municipality. - What the Constitution means is that once the Code is enacted, subsequent creations or boundary alterations must conform to its criteria; in the interregnum prior to its enactment, legislative power remains plenary, subject only to plebiscite approval by the people concerned. - The power to create a municipal corporation is legislative in nature. In the absence of constitutional limitations, a legislative body may create any corporation it deems essential for the efficient administration of government. The enactment of BPB 56 was a valid exercise of legislative power. - The creation satisfied all mandatory requisites: a plebiscite was conducted and approved by the voters of the unit/units affected, and the appointed municipal officers took their oaths and performed their		

duties; thus creating a *de jure* entity.

Distinction from Tan v. COMELEC Case. In Tan,

1. The LGC already existed at the time BPB 885 was enacted.
 - a. In this case, the LGC is not yet existing.
2. The plebiscite was confined to the "proposed new province" & excluded the voters in the remaining areas.
 - a. The Constitution and the LGC mandates the plebiscite to be held "in the unit or units affected."
 - b. In this case, no question is raised as to the legality of the plebiscite conducted.
3. The requisite area for the creation of a new province was not complied with in BPB 885.
 - a. In this case, no such issue in the creation of the new municipality has been raised.
4. An "indecent haste" attended the enactment of BPB 885 and the holding of the plebiscite.
 - a. In this case, BPB 56 was enacted in the normal course of legislation, and the plebiscite was held within the period specified in that law.

LEGAL BASES

Article XI of the 1973 Constitution: *No province, city, municipality, or barrio may be created, divided, merged, abolished, or its boundary substantially altered, except in accordance with the criteria established in the LGC, and subject to the approval by a majority of the votes cast in a **plebiscite** in the unit or units affected.*

LGC Section 10. Plebiscite Requirement. – No creation, division, merger, abolition, or substantial alteration of boundaries of local government units shall take effect unless approved by a majority of the votes cast in a plebiscite called for the purpose in the political unit or units directly affected. Said plebiscite shall be conducted by the COMELEC within one hundred twenty (120) days from the date of effectivity of the law or ordinance effecting such action, unless said law or ordinance fixes another date.

Tan v. COMELEC: BPB 885, creating a new province in the Island of Negros known as the Province of Negros del Norte, was struck down as unconstitutional. The plebiscite held was also declared as illegal.

FINAL DECISION

WHEREFORE, the Petition is hereby **dismissed**. No costs. SO ORDERED.

Abakada Guro Party List v. Purisima

DOCTRINE

Legislative oversight must be limited to scrutiny and investigation once a law is enacted, such that any post-enactment measure requiring congressional approval or congressional committee approval (such as a Joint Congressional Oversight Committee) for the Implementing Rules and Regulations (IRR) of an effective law constitutes an unconstitutional legislative veto that violates the doctrine of separation of powers, bicameralism, and presentment.

RECITATION SUMMARY

Officers and members of the ABAKADA GURO Party List filed a petition for prohibition challenging the constitutionality of Republic Act No. 9335 (The Attrition Act of 2005), which was enacted to optimize the revenue-generation capability of the Bureau of Internal Revenue (BIR) and Bureau of Customs (BOC) through a system of rewards (a Rewards and Incentives Fund) and sanctions (dismissal from service if revenue collection falls short of targets by at least 7.5%). Petitioners argued that: (1) the reward system transforms BIR and BOC personnel into "mercenaries and bounty hunters," violating public officer duties; (2) limiting the law to BIR and BOC personnel violates equal protection; (3) delegating target-setting to the Executive lacks sufficient standards and violates security of tenure; and (4) Section 12, which created a Joint Congressional Oversight Committee (JCOC) to approve the law's Implementing Rules and Regulations (IRR), violates the separation of powers. The Supreme Court partially granted the petition: it upheld the overall constitutionality of R.A. 9335 (finding valid classification, valid legislative delegation, and no violation of public duty or security of tenure), but declared Section 12 unconstitutional. The Court held that once a law is enacted, the legislative function is complete and executive implementation begins; requiring congressional approval of executive IRR constitutes an impermissible post-enactment legislative intrusion into executive enforcement, as well as an usurpation of judicial power. Under the separability clause of R.A. 9335, Section 12 was severed without invalidating the rest of the statute.

MATERIAL FACTS & PROCEDURAL HISTORY

- **Legally Relevant Parties & Relationship:**
 1. *Petitioners:* ABAKADA GURO Party List (formerly AASJS)
Officers/Members Samson S. Alcantara, Ed Vincent S. Albano, Romeo R. Robiso, Rene B. Gorospe, and Edwin R. Sandoval (suing in their capacity as taxpayers).
 2. *Respondents:* Hon. Cesar V. Purisima (Secretary of Finance), Hon. Guillermo L. Parayno, Jr. (Commissioner of Internal Revenue), and Hon. Alberto D. Lina (Commissioner of Customs).
- **Chronological Material Facts:**

1. Congress enacted Republic Act No. 9335 (R.A. 9335), known as the Attrition Act of 2005, aimed at optimizing the revenue-generation capability and collection of the BIR and the BOC by establishing a system of rewards and sanctions through the creation of a Rewards and Incentives Fund and Revenue Performance Evaluation Boards.
2. Under R.A. 9335, the Fund is sourced from collections of the BIR and BOC in excess of their revenue targets for the year, as determined by the Development Budget and Coordinating Committee (DBCC).
3. The Revenue Performance Evaluation Boards in the BIR and BOC are composed of executive officials (DOF Secretary/Undersecretary, DBM Secretary/Undersecretary, NEDA Director General/Deputy Director General, BIR/BOC Commissioners/Deputy Commissioners) and rank-and-file employee representatives.
4. The Boards are tasked with prescribing rules for Fund allocation, setting criteria for removing officials whose revenue collections fall short of target by at least 7.5%, terminating personnel pursuant to civil service laws, and issuing rules and regulations.
5. Section 12 of R.A. 9335 created a Joint Congressional Oversight Committee (JCOC) composed of seven Members from the Senate and seven Members from the House of Representatives, and mandated that the IRR formulated by executive agencies (DOF, DBM, NEDA, BIR, BOC, and CSC) must be approved by the JCOC.
6. On May 22, 2006, the JCOC approved the IRR formulated by the executive agencies, and the IRR were published on May 30, 2006, taking effect 15 days thereafter.

- **Procedural History:**

1. Petitioners filed a Petition for Prohibition under Rule 65 directly before the Supreme Court En Banc (G.R. No. 166715) seeking to prevent respondents from implementing and enforcing R.A. 9335 on constitutional grounds.
2. Respondents, through the Office of the Solicitor General (OSG), filed their Comment asserting that the petition was premature and lacked an actual justiciable controversy, while defending the constitutionality of R.A. 9335.

● PARTIES' MATERIAL ARGUMENTS

- **Petitioners' Claims:**

1. *Violation of Public Officer Duty:* The system of rewards and incentives transforms BIR and BOC officials and employees into "mercenaries and bounty hunters" who will perform their duties only for monetary rewards, inviting corruption and violating the constitutional mandate that public office is a public trust.
2. *Violation of Equal Protection:* Limiting the system of rewards and incentives exclusively to BIR and BOC personnel violates equal protection, as there is no valid distinction or reasonable basis for excluding employees of other government agencies.

3. *Undue Delegation of Power & Lack of Standards*: The law unduly delegates the power to fix revenue targets to the President/DBCC without sufficient statutory standards, allowing the Executive to set unrealistic targets to easily dismiss personnel.
4. *Violation of Security of Tenure*: Automatically dismissing employees whose collection falls short of the target by 7.5% violates civil service security of tenure.
5. *Encroachment on Executive Power / Violation of Separation of Powers*: Section 12 creating a Joint Congressional Oversight Committee to approve the IRR violates separation of powers because legislative power ends upon the enactment of the law; requiring legislative approval for executive IRR permits unconstitutional legislative participation in law enforcement.

- **Respondents' Claims:**

1. *Prematurity & Lack of Justiciable Controversy*: The petition is premature as petitioners fail to show an actual case or controversy or a personal direct injury.
2. *Valid Classification*: BIR and BOC perform distinct revenue-generating functions separate from all other government agencies, satisfying the equal protection test.
3. *Sufficient Standards Provided*: The law provides sufficient standards (optimization of revenue collection for national development) to guide executive target-setting.
4. *Valid Oversight Power*: The creation of the JCOC enhances separation of powers by ensuring legislative policy is fulfilled and checking executive overreach.

● ISSUES

1. **Whether petitioners have presented an actual case or controversy ripe for judicial adjudication.**
 2. **Whether the system of rewards and incentives under R.A. 9335 violates Section 1, Article XI of the Constitution** by turning revenue officials into mercenaries and bounty hunters.
 3. **Whether R.A. 9335 violates the Equal Protection Clause** by limiting its coverage to BIR and BOC officials and employees.
 4. **Whether R.A. 9335 constitutes an undue delegation of legislative power** to the Executive regarding the fixing of revenue targets, and **whether it violates security of tenure.**
 5. **Whether Section 12 of R.A. 9335, creating a Joint Congressional Oversight Committee to approve the Implementing Rules and Regulations (IRR), is unconstitutional** for violating the doctrine of separation of powers.
-

♥ HOLDING AND RATIO DECIDENDI

ISSUE 1: Actual Case and Ripeness

HOLDING: YES. The Court entertained the petition despite procedural objections regarding prematurity, invoking paramount public policy and the necessity of resolving the fundamental constitutional issues raised.

RATIO & DETAILED COURT LOGIC:

1. An actual case or controversy involves a conflict of legal rights susceptible of judicial adjudication, and a constitutional issue is ripe when the challenged act has a direct adverse impact on the challenger.
 2. Although respondents contended that petitioners lacked a personal direct injury, public policy and the transcendental importance of resolving the constitutionality of a major tax reform statute warranted the Court's exercise of judicial review.
-

ISSUE 2: System of Rewards vs. Constitutional Duty of Public Officers

HOLDING: NO. The system of rewards and incentives under R.A. 9335 does **NOT** violate Section 1, Article XI of the Constitution.

RATIO & DETAILED COURT LOGIC:

1. *Speculative Nature of Petitioners' Claim:* The assertion that offering rewards will transform tax collectors into "bounty hunters" and breed corruption is pure speculation and conjecture, which cannot overcome the strong presumption of constitutionality enjoyed by legislative enactments.
 2. *Legitimacy of State Performance Incentives:* R.A. 9335 was enacted to encourage revenue officials to exceed targets in pursuit of national progress. Incentivizing superior public service is a recognized management tool that aligns with, rather than subverts, the constitutional command to serve the people with efficiency and dedication.
-

ISSUE 3: Equal Protection Clause

HOLDING: NO. R.A. 9335 does **NOT** violate the Equal Protection Clause.

RATIO & DETAILED COURT LOGIC:

1. *Test of Valid Classification:* Equal protection does not demand absolute identity of treatment; it permits classification if it rests on substantial distinctions, is germane to the purpose of the law, is not limited to existing conditions only, and applies equally to all members of the same class.
2. *Substantial Distinctions of BIR and BOC:* The BIR and BOC are the primary revenue-generating arms of the National Government. Their functions directly determine the financial capability of the State to fund public expenditures, setting them apart from all other government departments and agencies.

3. *Germane to Statutory Purpose*: Creating performance-based incentives specifically for agencies tasked with national revenue collection is directly germane to the statutory objective of optimizing revenue generation.
-

ISSUE 4: Delegation of Legislative Power & Security of Tenure

HOLDING: NO. R.A. 9335 does **NOT** constitute an undue delegation of legislative power, nor does it infringe upon civil service security of tenure.

RATIO & DETAILED COURT LOGIC:

- 1. *Valid Delegation of Power*:
 - Legislative delegation is valid if the statute passes two tests: (a) the *completeness test* (the law sets forth the policy to be executed); and (b) the *sufficient standard test* (the law defines adequate guidelines to map out the boundaries of administrative discretion).
 - R.A. 9335 satisfies the sufficient standard test. The declared legislative policy of "optimization of the revenue-generation capability and collection of the BIR and BOC" is infused with **public interest, public welfare, and simplicity and economy**—standards repeatedly recognized in jurisprudence as constitutionally sufficient.
 - Target-setting by the DBCC is guided by established macroeconomic parameters, preventing arbitrary target fixing by the Executive.
 - 2. *Preservation of Security of Tenure*:
 - Section 7(b) and (c) sets a 7.5% collection deficit as a reasonable, objective yardstick for employee removal, which is analogous to inefficiency or incompetence under general civil service laws.
 - R.A. 9335 expressly mandates that terminations must comply with civil service laws, rules, and substantive and procedural due process, while explicitly considering natural calamities, force majeure, and economic difficulties before removing any official.
-

ISSUE 5: Constitutionality of the Joint Congressional Oversight Committee (Section 12)

HOLDING: YES. Section 12 of R.A. 9335, requiring the Joint Congressional Oversight Committee (JCOC) to approve the Implementing Rules and Regulations (IRR), is **UNCONSTITUTIONAL** for violating the doctrine of separation of powers.

RATIO & DETAILED COURT LOGIC:

- 1. **Completion of Legislative Power upon Enactment**:
 - Under Article VI, Section 1 of the Constitution, legislative power is vested in Congress. Under Article VI, Section 27, every bill passed by Congress must be presented to the President for approval or veto.

- Once a bill is passed by both Houses and approved by the President (or re-passed over his veto), the law-making function of Congress is **complete and ended**.
- From the moment of enactment, the duty and authority to enforce, execute, and implement the law moves exclusively to the Executive branch pursuant to Section 17, Article VII of the Constitution (the Faithful Execution Clause).

2. **Permissible vs. Impermissible Congressional Oversight:**

- *Permissible Oversight*: Post-enactment legislative oversight is constitutional **ONLY** insofar as it is restricted to **scrutiny and investigation** (e.g., requiring executive reports, conducting inquiries in aid of legislation under Art. VI, Sec. 21).
- *Impermissible Intrusion*: Any post-enactment measure that grants Congress or its committees a direct role or veto in the implementation phase of an already effective law—such as requiring legislative approval of administrative IRR or subjecting executive directives to legislative veto—violates the separation of powers.

3. **Usurpation of Executive and Judicial Functions:**

- *Encroachment on Executive Power*: Drafting and promulgating IRR is an executive function inherent in law enforcement. Requiring the JCOC to approve the IRR constitutes an unauthorized legislative intrusion into executive rulemaking and implementation.
- *Encroachment on Judicial Power*: In passing upon the legality or wisdom of the IRR to grant or withhold its approval, the JCOC arrogates unto itself the power of judicial review—a power exclusively vested by Article VIII, Section 1 in the Judiciary.

4. **Severability and Status of the IRR:**

- Under Section 13 (Separability Clause), the unconstitutionality of Section 12 does not nullify the entire statute. The valid portions of R.A. 9335 remain independent, complete, and fully enforceable.
- The IRR promulgated by the executive agencies (DOF, DBM, NEDA, BIR, BOC, CSC) and published on May 30, 2006 remains valid and effective independently, as administrative regulations carry the presumption of legality without needing congressional approval.

DECISION & DISPOSITION:

The Supreme Court **PARTIALLY GRANTED** the petition:

1. Section 12 of Republic Act No. 9335, creating a Joint Congressional Oversight Committee to approve the implementing rules and regulations of the law, is declared **UNCONSTITUTIONAL** and therefore **NULL AND VOID**.
 2. The constitutionality of the remaining provisions of Republic Act No. 9335 is **UPHELD**, and pursuant to Section 13 thereof, the rest of the statute remains in full force and effect.
-

ABAKADA GURO Party List v. Purisima (2008)

Topic Subtopic	Powers of Congress Procedural Limitations	GR No. & Ponente	GR No. 166715 CORONA, J.
Petitioner/s	ABAKADA GURO Party List Officers/Members	Respondent/s	Hon. Cesar v. Purisima
Doctrine	Any post-enactment congressional measure should be limited to scrutiny and investigation. Any action or step beyond that will undermine the separation of powers, such as legislative vetoes.		

FACTS

- RA 9335 (Attrition Act of 2005): to optimize the revenue-generation capability and collection of BIR and BOC, it provided a system of rewards and sanctions through the creation of a Rewards and Incentives Fund and Revenue Performance Evaluation Board, covering all employees of BIR and BOC with at least 6 mos of service, regardless of employment status.
 - Fund is sourced from the collection of the BIR and BOC in excess of their revenue targets. Incentive or reward is taken from the Fund and allocated to BIR and BOC in proportion to their contribution.
 - Each Board must: (1) prescribe rules and guidelines (2) set criteria for removing employees whose revenue collection falls short (3) terminate personnel based on criteria (4) prescribe a system for perf evaluation (5) perform other functions (6) submit an annual report to Congress.
 - DOF, DBM, NEDA, BIR, BOC, and CSC shall issue the IRR to be approved by a Joint Congressional Oversight Committee
- Petitioners: challenges the constitutionality of RA 9335 on the ground:
 - Law transforms the employees of BIR and BOC into mercenaries and bounty hunters, and invites corruption and undermines the duty of these employees to serve the people with utmost responsibility and integrity
 - Limiting system of rewards and incentives to only to officials and employees of BIR and BOC violates equal protection, as there is no valid basis for classification as to why the system should not apply to all other govt agencies
 - Unduly delegates the power to fix revenue targets to the President as it lacks a sufficient standard: it does not fix the revenue targets to be achieved (Pres. can fix an unrealistic and unattainable target to dismiss BIR and BOC personnel)
 - Creation of a congressional oversight committee violates the doctrine of separation of powers

ISSUE 1

Main – Procedural	W/N there is an actual case or controversy in this case	NO
RULING and RATIO DECIDENDI:		
<i>Petitioners fail to assert any specific and concrete legal claim or to demonstrate any direct adverse of the law on them. Nevertheless, public interest requires the resolution of the constitutional issues raised by petitioners.</i>		

ISSUE 2

Main – Substantive	W/N the implementation of this law will turn the officials and employees of BIR and BOC into bounty hunters and mercenaries	NO
RULING and RATIO DECIDENDI:		
<i>Public officers enjoy the presumption of regularity in the performance of their duties.</i>		
• RA 9335 operates on the basis thereof and reinforces it by providing a system of rewards and sanctions for the purpose of encouragement • The presumption is disputable but proof to the contrary is required to rebut it. Petitioners' claim is without		

any factual and legal basis, and purely speculative.

- RA 9335 establishes safeguards to ensure that the reward will not be claimed if it will be either the fruit of bounty hunting or mercenary activity or the product of the irregular performance of official duties (Sec. 8 of the law)

LEGAL BASES

US v Matthews: US Supreme Court validated a law which awards to officers of the customs an amount not exceeding ½ of the net proceeds of forfeitures in violation of the laws against smuggling.

ISSUE 3

Main – Substantive	W/N RA 9335 is violative of the equal protection clause	NO
RULING and RATIO DECIDENDI:		
<i>The law concerns only the BIR and BOC because they have the common distinct primary function of generating revenues for the national government through the collection of taxes, customs duties, fees, and charges.</i> • Equal protection clause recognizes a valid classification that has a reasonable foundation or rational basis and not arbitrary. • RA 9335's public policy is the optimization of revenue-generation capability of BIR and BOC. Since such is the subject of the law, the incentives and/or sanctions should logically pertain to said agencies. • Such substantial distinction is germane and intimately related to the purpose of the law. Hence, the classification under RA 9335 fully satisfies the demands of equal protection.		

ISSUE 4

Main – Substantive	W/N RA 9335 unduly delegates legislative power to the President	NO
RULING and RATIO DECIDENDI:		
<i>RA 9335 satisfies both the completeness test and sufficient standard test.</i> • Section 2 clearly states the policy: to optimize the revenue-generation capability and collection of the BIR and BOC through a system of rewards and sanctions encouraging employees to exceed revenue targets. • Section 4 sufficiently limits the President's role in fixing revenue targets. The targets refer to the original estimated revenue collection expected of the BIR and BOC for the fiscal year, as stated in the Budget of Expenditures and Sources of Financing (BESF) submitted by the President to Congress. ◦ Revenue targets are based on the original est. revenue collection expected of BIR and BOC as approved by the Devt Budget and Coordinating Committee. Thus, the determination of revenue targets does not rest solely on the President as it also undergoes the scrutiny of the DBCC. • Section 7 specifies the limits of the Board's authority and identifies the conditions under which officials and employees whose revenue collection falls short of the target by at least 7.5% may be removed from service. ◦ RA 9335 also does not violate the security of tenure of officials and employees of BIR and BOC • Court also recognized "public interest", "justice and equity", "public convenience and welfare", and "simplicity, economy and welfare" as sufficient standards		

ISSUE 5

Main – Substantive	W/N Sec. 12 of the law providing for a Joint Congressional Oversight Committee violates the doctrine of separation of powers	YES
RULING and RATIO DECIDENDI:		
<i>Sec. 12 should be struck down as unconstitutional for violating the separation of powers.</i>		

- The Joint Congressional Oversight Committee has already approved the IRR of RA 9335 so it is already considered moot and academic. However, the Court still ruled on it.

Power of oversight - embraces all activities undertaken by Congress to enhance its understanding of and influence over the implementation of legislation it has enacted.

- *Post-enactment measures*: (a) monitor bureaucratic compliance; (b) to determine whether agencies are properly administered; (c) to eliminate executive waste and dishonesty; (d) to prevent executive usurpation of legislative authority; and (e) to assess executive conformity with the congressional perception of public interest

Categories of congressional oversight functions

- Scrutiny** - a lesser intensity and continuity of attention to administrative operations
- Congressional investigation** - a more intense digging of facts
- Legislative supervision** - third and most encompassing form, connoting a continuing and informed awareness on the part of a congressional committee regarding executive operations; allows Congress to scrutinize the exercise of delegated law-making authority
 - Legislative veto - Congress retains a “right” to approve or disapprove any regulation before it takes effect

- Congressional oversight is not unconstitutional per se, it neither necessarily constitutes an encroachment on the executive power to implement laws rather, it is integral to the **checks and balances** inherent in democracy
- To forestall the danger of congressional encroachment “beyond the legislative sphere”, the Constitution imposes two basic constraints on Congress: *it may not vest itself with either executive or judicial power and when it exercises its legislative power, it must follow the “single, finely wrought and exhaustively considered, procedures” specified under the Constitution, including the procedure for enactment of laws and presentment.*
- **Any post-enactment congressional measure should be limited to scrutiny and investigation.** Any action or step beyond that will undermine the separation of powers, such as legislative vetoes.

Justice Tinga:

- **The requirement that the implementing rules of a law be subjected to approval by Congress as a condition for their effectivity violates the cardinal constitutional principles of bicameralism and the rule on presentment**
- From the moment the law becomes effective, any provision that empowers Congress to play any role in the implementation or enforcement of it violates the principle of separation of powers.

FINAL DECISION	WHEREFORE, the petition is hereby PARTIALLY GRANTED. Section 12 of RA 9335 creating a Joint Congressional Oversight Committee to approve the implementing rules and regulations of the law is declared UNCONSTITUTIONAL and therefore NULL and VOID. The constitutionality of the remaining provisions of RA 9335 is UPHELD. Pursuant to Section 13 of RA 9335, the rest of the provisions remain in force and effect.
-----------------------	--

LIDASAN V. COMELEC (1967)

Topic Subtopic	Legislative Process - Titles of bills	GR No. & Ponente	G.R. No. L-28089 Sanchez, J.
Petitioner/s	Bara Lidasan	Respondent/s	COMELEC
Doctrine	The subject of a bill must be expressed in its title. Thus, a statute whose title is misleading is void for deceiving legislators and the public.		

FACTS

June 18, 1966 - Pres. Ferdinand Marcos signed HB 1247 into law **RA 4790 - "An Act Creating the Municipality of Dianaton in the Province of Lanao del Sur"**. Section 1 of the statute reads:

- *"Barrios **Togaig, Madalum, Bayanga, Langkong, Sarakan, Kat-bo, Digakapan, Magabo, Tabangao, Tiongko, Colodan, Kabamawakan**, Bongabong, Aipang, Dagowan, Bakikis, Bungabung, Losain, Matimos and Magolatung, in the Municipalities of **Butig and Balabagan**, Province of **Lanao del Sur**, are separated from said municipalities and constituted into a distinct and independent municipality of the same province to be known as the **Municipality of Dianaton**, Province of **Lanao del Sur**. The seat of government of the municipality shall be in Togaig."*
- The first municipal officials were to be elected in the 1967 general elections.

However, it came to light that 12 of the 21 barrios are NOT in Lanao Del Sur, but are in Cotabato:

- **Togaig and Madalum** are within the municipality of **Buldon, Cotabato**
- **Bayanga, Langkong, Sarakan, Kat-bo, Digakapan, Magabo, Tabangao, Tiongko, Colodan, Kabamawakan** are within **Parang, Cotabato**
- Only the remaining nine barrios were in Lanao del Sur.

This transferred 12 barrios in 2 municipalities in Cotabato to Lanao del Sur, thereby **changing the boundaries of the 2 provinces.**

Aug 15, 1967 - COMELEC adopted a resolution implementing RA 4790 for electoral purposes in the 1967 elections, including the establishment of precincts and registration of voters in the new municipality.

Sept 7, 1967 - The Office of the President, through the Assistant Executive Secretary, recommended COMELEC to suspend the operation of the statute until "clarified by correcting legislation."

Sept 20, 1967 - COMELEC stood by its own interpretation and declared that the statute "should be implemented unless declared unconstitutional by the Supreme Court."

This prompted Bara Lidasan (a resident, voter, and taxpayer of Parang, Cotabato) to file a petition for certiorari and prohibition, praying to **declare RA 4790 unconstitutional and nullify COMELEC's resolutions implementing it for electoral purposes.**

ISSUE 1

Main Substantive	– W/N RA 4790 violates the constitutional requirement that <u>"no bill which may be enacted into law shall embrace more than one subject which shall be expressed in the title of the bill"</u>	YES
-------------------------	---	------------

RESPONDENT/S ARGUMENTS:

The boundary changes of the two provinces resulting in "the substantial diminution of the territorial limits" of Cotabato are merely the incidental legal results of the definition of the boundary of Dianaton. Hence, the fact that portions in Cotabato are taken away "need not be expressed in the title of the law."

RULING and RATIO DECIDENDI:

RA 4790 is unconstitutional and null and void.

The constitutional provision contains dual limitations upon legislative power:

1. Congress is to refrain from conglomeration, under one statute, of heterogeneous subjects
2. The title of the bill is to be couched in a language sufficient to notify the legislators and the public and those concerned of the import of the single subject thereof

The title must serve the purpose of the constitutional demand that it **informs the legislators** (persons interested in the subject of the bill) **and the public** of the **nature, scope and consequences of the proposed law and its operation** to lead them to inquire into the body of the bill and prevent surprise or fraud upon the legislators.

Hence, the subject of the statute must be expressed in the title of the bill, as the Constitution does not mandate Congress to read the entire text of the bill during its deliberations. (only the title is read from introduction to its final approval)

- In this case, **only the title of House Bill 1247 was read** in the House of Representatives (An Act Creating the Municipality of Dianaton, in the Province of Lanao del Sur)
- The title is misleading and deceptive as it implies that only Lanao del Sur is affected by the creation of Dianaton. It contains no intimation that two municipalities in Cotabato are to be dismembered and incorporated in this new town.
 - This is important considering that the transfer of a sizable portion of territory from one province to another involves **reduction of area, population, and income**. This is as important as the creation of a municipality. And yet, the title did not reflect this fact.
- Hence, the title alone failed to inform:
 - **Members of Congress** of the full impact of the law
 - The **people of Buldon, Parang, and Cotabato** that part of their territory is being taken away from their towns and province and added to Lanao del Sur
 - The **public** as to what towns and provinces were actually affected by the bill
- The transfer is substantial. It reduces the territory, population, and income of one province while increasing those of another. **Such a change is as important as the creation of the municipality itself and cannot be concealed as a mere incidental detail.**

Felwa v. Salas does not apply here, as the Court held that an Act creating new provinces naturally implied providing for their own officers, which is manifestly germane to the law's title. In contrast, lumping together barrios from separate provinces is **neither a natural nor logical consequence of the creation of Dianaton**, as altering provincial boundaries may be made without creating a new municipality and vice versa. Hence, such substantial change must have been clearly expressed in the Act's title.

In previous cases, similar statutes aimed at changing boundaries of political subdivisions, whose legislative purpose is not expressed in the title, were likewise declared unconstitutional. **We rule that Republic Act 4790 is null and void**

LEGAL BASES

Section 21(1), Article VI of the 1935 Constitution - "No bill which may be enacted into law shall embrace more than one subject which shall be expressed in the title of the bill."

ISSUE 2

Side Substantive	– W/N RA 4790 may still be salvaged with reference to the 9 barrios in Butig and Balabagan in Lanao del Sur, with the mere nullification of the portion transferring the 12 barrios from Cotabato	NO
------------------	---	----

RULING and RATIO DECIDENDI:

While the valid parts of a statute may generally be upheld if separable from the parts rendered unconstitutional, there is an exception. If the provisions are so mutually dependent and connected to warrant a belief that the legislature intended them as a whole, then if some parts are unconstitutional, all the dependent provisions must fall with them.

- The Town of Dianaton cannot be comprised of just nine barrios. In considering whether a group of barrios is capable of maintaining itself as an independent municipality - it checks population, territory, and income.
- When HB 1247 was presented in Congress, **all 21 barrios were in the mind of the proponent**. With the known premise that Dianaton was created upon the basic considerations of progressive community, large aggregate population and sufficient income, the Court may not say that Congress intended to create Dianaton with only 9 of the original 21 barrios, as this unduly stretches judicial interpretation of congressional intent beyond credibility point.
- With respect to separation of powers, **the Court may not recast RA 4790 to read a Dianaton town composed of 9 barrios**. If they were to constitute a town at all, it is the function of Congress to spell out that congressional will.
- The Court could not assume:
 - That the nine barrios would have sufficient income to discharge municipal responsibilities, including peace and order and sanitation;
 - That their inhabitants would accept the corresponding duties and liabilities; or
 - That Congress would have created the municipality with this substantially reduced territory and population.
 - Moreover, **Togaig, the designated seat of government, was one of the Cotabato barrios that would have to be excluded**. Severance would leave the municipality without its legislatively designated seat.
- **RA 4790 is inseparable and null and void in its totality.**

ISSUE 3

Side – Procedural	W/N petitioner is a real party in interest	YES
RULING and RATIO DECIDENDI:		
The Court recognizes the right of every citizen, taxpayer and voter of a community affected by legislation creating a town to ascertain that the law created was passed in accordance with the Constitution. Lidasan is a qualified voter in the 1967 elections, and his right to vote in his own barrio (before it was annexed to a new town) is affected. He may not want to vote in a town different from his actual residence, and he may not even know the candidates of the new town. He may also feel that his vote should be cast for the officials in his town before dismemberment. Hence, when legislation affects any citizen's constitutional right to vote, they may sue to challenge the constitutionality of the Act passed by Congress.		

FINAL DECISION	For the reasons given, we vote to declare RA 4790 null and void , and to prohibit COMELEC from implementing the same for electoral purposes. No costs allowed. So ordered.
-----------------------	---

SEPARATE OPINION/S

FERNANDO, J, <i>dissenting</i>	Fernando would sustain the statute by construing it to include only the barrios actually situated in Lanao del Sur. • RA 4790 makes its subject matter (i.e., the creation of Dianaton) evident in its title. The mere fact that its body included barrios found in two other municipalities of another province does not suffice for nullifying it.
--	---

- It is sufficient if a statute's title is comprehensive enough to include its general objective. It does not need to express each and every end and means necessary for the accomplishment of that objective. The legislature is not required to make the title of the Act a complete index of its contents. The constitutional provision is satisfied if all parts of an Act which relates to its subject find expression in its title.
- To avoid any doubt as to the law's validity, it must be construed as to exclude from Dianaton all of the barrios stated in Section 1 found in municipalities outside Lanao del Sur. As thus interpreted, the statute can meet the test of the most rigid scrutiny.

Both Philippine and American decisions unite in the view that a legislative measure "should not be given a construction which will imperil its validity where it is reasonably open to construction free from such peril." Hence, RA 4790 as above construed incurs no such risk and is free from the peril of nullity.

- Fernando discussed *Government v. Hongkong & Shanghai Banking Corporation*, where a provision requiring banking institutions to reimburse government supervision expenses was sustained under the title of a reorganization law.
- Although the dissenters there considered the assessment foreign to reorganization, the majority adopted the broader construction. Subsequent cases, including *Sumulong* and *Felwa*, followed the same general approach

Cruz v Paras (1983)

Topic Subtopic	Congress - Legislative Process - Titles of bills	GR No. & Ponente	GR Nos, L-42571-72 Fernando, J
Petitioner/s	VICENTE DE LA CRUZ, RENATO ALIPIO, JOSE TORRES III, LEONCIO CORPUZ, TERESITA CALOT, ROSALIA FERNANDEZ, ELIZABETH VELASCO, NANETTE VILLANUEVA, HONORATO BUENAVENTURA, RUBEN DE CASTRO, VICENTE ROXAS, RICARDO DAMIAN, DOMDINO ROMDINA, ANGELINA OBLIGACION, CONRADO GREGORIO, TEODORO REYES, LYDIA ATRACTIVO, NAPOLEON MENDOZA, PERFECTO GUMATAY, ANDRES SABANGAN, ROSITA DURAN, SOCORRO BERNARDEZ, and PEDRO GABRIEL	Respondent/s	THE HONORABLE EDGARDO L. PARAS, MATIAS RAMIREZ as the Municipal Mayor, MARIO MENDOZA as the Municipal Vice-Mayor, and THE MUNICIPAL COUNCIL OF BOCAUE, BULACAN
Doctrine	Bill titles shall include the subject of the bill (interpretation of statute: the one that makes it constitutional shall uphold)		

FACTS

Bocaue, Bulacan - Ordinance Title: "Prohibition and Closure Ordinance" (night clubs, cabaret, dance halls - where professional hostesses, hospitality girls and professional dancers work)

- Sec 3. Prohibition in the Issuance and Renewal Licenses. due to being principal cause in the decadence of morality + other adverse effects on the community
- Sec 4. Revocation of Permits and Licenses. revoke licenses and permits upon expiration of 30 days given
- Sec 5. Imprisonment not exceeding 3 months or a fine not exceeding P200, or both at the discretion of the Court

November 5, 1975 - **two cases for prohibition+ preliminary injunction was filed with CFI Bulacan**

1. Ordinance No 84 is null and void as a municipality has no authority to prohibit lawful business, occupation or calling
2. Ordinance No 84 violates petitioner's right to due process and equal protection as license previously given was withdrawn without judicial hearing
3. under PD No 189 (amended, PD No 259), Dept of Tourism is the one with power to license and regulate tourist oriented businesses (ie night clubs)

Answer of Respondents:

1. Municipal Council is authorized by law not only to regulate but to prohibit the establishment, maintenance and operation of night clubs [Section 2243 of the RAC, CA 601, Republic Acts Nos. 938, 978 and 1224]
2. property rights are subordinate to public interest
3. PD 189 as amended did not deprive Municipal Councils jurisdiction to regulate or prohibit night clubs

Established facts

1. Petitioners were issued municipal licenses to operate their businesses from 1958, 1960, 1961, & 1972.
2. Petitioners had invested large sums of money in their businesses.
3. The nightclubs were well-lighted, without partitions, and had closely spaced tables.
4. The owners/operators prohibited hospitality girls from engaging in immoral acts or going out with customers.
5. Hospitality girls underwent regular medical check-ups + those infected with venereal diseases or refusing check-ups were not allowed to work.
6. The crime rate in the area was lower than in other parts of Bocaue and other towns in Bulacan.

January 15, 1976 - the court upheld the constitutionality and validity of Ordinance No. 84 and dismissed the cases.

Lower court dismissed petitions

"Those who lust cannot last. This in essence is why the **Municipality of Bocaue, Province of Bulacan**, stigmatized as it has been by innuendos of sexual titillation, and fearful of what the awesome future holds for it, **had no alternative except to order thru its legislative machinery, and even at the risk of partial economic dislocation, the closure of its night clubs and/or cabarets.** This in essence is also why this **Court**, obedient to the mandates of good government, and cognizant of the categorical imperatives of the current legal and social revolution, **hereby [upholds] in the name of police power the validity and constitutionality** of Ordinance No. 84, Series of 1975, of the Municipal Council of Bocaue, Bulacan."

ISSUE 1

Main Substantive –	W/N a municipal corporation, Bocaue, Bulacan can prohibit the exercise of a lawful trade, the operation of night clubs, and the pursuit of a lawful occupation, such as clubs employing hostesses	NO
--------------------	---	----

RULING and RATIO DECIDENDI:

Ordinance No 84 must be null and void. Reliance on police power is insufficient to justify the enactment of the assailed ordinance.

- 1) Police power is granted to municipal corporations in general terms. They should enact ordinances + make regulations, not repugnant to law, as necessary to provide for the health and safety, promote the prosperity, improve the morals, peace, good order, comfort, and convenience of the municipality and the inhabitants thereof, and for the protection of property therein.
 - a) US v Abendan - ordinance is valid only if it is reasonable, lawful, and not oppressive, discriminatory, or against public policy or common rights
 - b) US v Salaveria - general welfare clause allows municipalities to enact ordinances for health, safety, morals, peace, and welfare, but such must be reasonable, within municipal powers, and consistent with national laws and public policy. *"The Judiciary should not lightly set aside legislative action when there is not a clear invasion of personal or property rights under the guise of police regulation."*
 - c) If night clubs were merely regulated, not prohibited, it would pass the validity test. Two cases cited stressed reasonableness. It cannot be said that such a sweeping exercise of a lawmaking power by Bocaue could qualify under the term reasonable.
 - d) The objective of fostering public morals, a worthy and desirable end, can be attained by a measure that does not encompass too wide a field. Certainly the ordinance on its face is characterized by overbreadth. The purpose sought to be achieved could have been attained by reasonable restrictions rather than by an absolute prohibition.
 - e) **Police power cannot be used as a guise to unreasonably invade personal or property rights, including the rights of patrons and the investments and livelihood of nightclub employees.**
- 2) The decision now under review refers to RA No 938 as amended. Title: "AN ACT GRANTING MUNICIPAL OR CITY BOARDS AND COUNCILS THE **POWER TO REGULATE** THE ESTABLISHMENT, MAINTENANCE AND OPERATION OF CERTAIN PLACES OF AMUSEMENT WITHIN THEIR RESPECTIVE TERRITORIAL JURISDICTIONS."
 - a) Sec 1: *"The municipal or city board or council of each chartered city shall have the **power to regulate by ordinance** the establishment, maintenance and operation of night clubs, cabarets..."*
 - b) Later, amended to include not merely the power to regulate, but also "**prohibit...**" **BUT the title remained the same.** The exact wording was followed. Power granted remains that of regulation, NOT prohibition.
 - c) Constitution: *"Every bill shall embrace only one subject which shall be **expressed in the title** thereof."* If there are two possible interpretations, one of which it will be free from constitutional infirmity and by the other tainted by such grave defect, the former is to be preferred (ONLY REGULATE kasi yan nasa title)
 - d) Since there is no dispute as the title limits the power to regulating, not prohibiting, it would result in the statute being invalid if, as was done by the Municipality of Bocaue, the operation of a night club was prohibited.
- 3) The Local Government Code expressly grants municipalities - sangguniang bayan - authority to regulate establishments and forms of entertainment, reinforcing the limitation already found in RA No. 938.
 - a) A municipality's refusal to issue licenses on the ground that nightclubs are completely prohibited may be challenged in court. The law allows nightclubs to continue operating subject to proper regulation. Forcing them to close would temporarily deprive owners of their businesses and employees of their livelihood. Such a prohibition could be considered arbitrary and inconsistent with due process, fairness, and reasonableness.
- 4) The ruling here should not be seen as a deviation from the Court's stance on sustaining police power to

regulate businesses for public morals. There is a clear distinction between regulation and prohibition.

- a) *Ermita-Malate v City Mayor of Manila* - ordinance merely regulated motels to prevent immoral activities, while this case involved an attempted total prohibition of nightclubs, for which the municipality had no valid legal authority (making ordinance void)

**FINAL
DECISION**

WHEREFORE, the writ of certiorari is granted and the decision of the lower court dated January 15, 1976 reversed, set aside, and nullified. Ordinance No. 84, Series of 1975 of the Municipality of Bocaue is declared void and unconstitutional. The temporary restraining order issued by this Court is hereby made permanent. No costs.

Giron v. COMELEC (2013)

Topic Subtopic	Requirements for Bills Titles of Bills	GR No. & Ponente	G.R. No. 188179 Sereno, C.J.
Petitioner/s	HENRY R. GIRON (main) ALMARIO E. FRANCISCO, FEDERICO S. JONG JR., and RICARDO L. BAES JR (petitioners-in-intervention)	Respondent/s	COMELEC (
Doctrine	Constitutional rules about statute titles and subject matters should not be interpreted so strictly that they cripple or impede lawmakers from passing laws. It's sufficient if the title is comprehensive enough to reasonably cover the main purpose of the statute.		

FACTS

- Petitioner Giron filed a special civil action for certiorari and prohibition assailing the constitutionality of Section 12 (Substitution of Candidates) and Section 14 (Repealing Clause) of **RA 9006 (Fair Election Act)**. He stated that these sections violate Section 26 (1), Article VI of the 1987 Constitution, which specifically requires: "Every bill passed by the Congress shall embrace only one subject which shall be expressed in the title thereof." Specifically, that it is unrelated to the main subject of the Fair Election Act (i.e., the lifting of the political ad ban)
 - Section 12 refers to the treatment of votes cast for substituted candidates after the official ballots have been printed
 - Section 14 refers to the repeal of Section 67 of the Omnibus Election Code → the *ipso facto* resignation of elective officials immediately after they file their COCs for an office other than that which they are currently holding in a permanent capacity.
- He also seeks to prohibit COMELEC from implementing said sections, stating these would (a) enable elective officials to gain campaign advantage and (b) allow them to disburse public funds from the time they file their COCs until after elections. Petitions-in-intervention have similar arguments.
- Respondent COMELEC argues *inter alia* that this Court has already resolved this matter in Fariñas v. Executive Secretary.

Main – Substantive	Issue 1: W/N the inclusion of Sections 12 and 14 in the Fair Election Act violates the "one subject-one title" rule in the Constitution	NO
--------------------	---	----

RULING and RATIO DECIDENDI:

- It's a well-settled rule that courts are to adopt a liberal interpretation in favor of the constitutionality of a legislation and that Congress is deemed to have enacted a valid, sensible, and just law.
 - THUS, those asserting its invalidity have to prove a clear, unmistakable, and unequivocal breach of the Consti, or the petition fails.
 - HOWEVER, Petitioner and petitioners-in-intervention DID NOT present a compelling reason to deem the provisions unconstitutional or to reverse the Fariñas ruling.
- Fariñas ruling: To determine whether there has been compliance with the constitutional requirement that the subject of an act shall be expressed in its title, the Court ruled that:
 - Constitutional rules about statute titles and subject matters should not be interpreted so strictly** that they cripple or impede lawmakers from passing laws. It's **sufficient if the title is comprehensive enough to reasonably cover the main purpose of the statute**. It doesn't need to expressly indicate every end and means to accomplish the purpose.
 - An act having a single general subject may contain any number or diversity of provisions, as long as they are not inconsistent with or foreign to the general subject, and may be considered in furtherance of the subject by providing for the method and means of it.
 - Consti intent of the "one subject-one title" rule: (a) To inform legislators of the purposes, nature, and scope of its provisions, and (b) To prevent the enactment into law of matters that have not been notified of, acted on, or studied by the legislators and the public.
- The title of Rep. Act No. 9006 reads: **"An Act to Enhance the Holding of Free, Orderly, Honest, Peaceful and Credible Elections through Fair Election Practices."** Sec 2. Declaration of Policies indicate that it is to

assure free, orderly, honest, peaceful and credible elections. The State shall ensure that bona fide candidates for any public office shall be free from any form of harassment and discrimination.

- a. The Court is convinced that the title and the objectives of Rep. Act No. 9006 are comprehensive enough to include the repeal of Section 67 of the Omnibus Election Code within its contemplation. To require that the said repeal of Section 67 of the Code be expressed in the title is to insist that the title be a complete index of its content.
 - b. The purported dissimilarity of Section 67 of the Omnibus Election Code, which imposes a limitation on elective officials who run for an office other than the one they are holding, to the other provisions of Rep. Act No. 9006, which deal with the lifting of the ban on the use of media for election propaganda, does not violate the "one subject-one title" rule.
 - c. This Court has held that an act having a single general subject, indicated in the title, may contain any number of provisions, no matter how diverse they may be, **so long as they are not inconsistent with or foreign to the general subject, and may be considered in furtherance of such subject by providing for the method and means of carrying out the general subject**
 - d. In this case, it cannot be claimed that the legislators were not apprised of the repeal of Section 67 of the Omnibus Election Code as the same was amply and comprehensively deliberated upon by the members of the House.
4. The reasoning behind Fariñas applies to the claim of Section 12's unconstitutionality. As seen from Bicameral Conference Committee deliberations, Congress didn't limit the law to the lifting of the political ban, and integrated the limitations on other inequitable election practices (e.g., appreciation of votes cast when candidates are substituted late, the *ipso facto* resignation of certain elective officials upon filing COC). They really tried to find an appropriate Title to make the coverage broader, so as to accommodate the provision
- a. Mentioned that Sec 2 - Declaration of Policies is perfectly adequate. It says that it shall ensure candidates for public office that are free from any form of harassment and discrimination. Surely, this provision in Section 67 of the old Election Code of the existing Omnibus Election Code is a form of harassment or discrimination.
 - b. Congress fashioned a law that would address what they determined were unfair election practices; hence, the birth of the Fair Election Act.
5. **THUS, the assailed provisions are germane to the subject expressed in the title of RA 9006** (*An Act to Enhance the Holding of Free, Orderly, Honest, Peaceful and Credible Elections through Fair Election Practices*). **The title was worded broadly enough to include the measures in the assailed provisions.**

Note: Petitioner and petitioners-in-intervention raise other arguments that Court deems matters of policy. The Court won't exercise judicial review in determining the wisdom of a statute → judicial legislation.

FINAL DECISION	WHEREFORE, the Petition is hereby DISMISSED.
-----------------------	--

Guingona v. Carague (1991)

Topic Subtopic	Congress - Requirements as to certain laws - Appropriation Laws	GR No. & Ponente	[G.R. No. 94571. April 22, 1991.] EN BANC GANCAYCO
Petitioner/s	TEOFISTO T. GUINGONA, JR. and AQUILINO Q. PIMENTEL, JR.	Respondent/s	HON. GUILLERMO CARAGUE, in his capacity as Secretary, Budget & Management, HON. ROZALINA S. CAJUCOM, in her capacity as National Treasurer and COMMISSION ON AUDIT
Doctrine	Automatic appropriations for debt service are constitutional and do not violate the constitutional mandate giving priority to education		

FACTS

- The Petitioners question the constitutionality of the **automatic appropriation for debt service** in the 1990 Budget.
- The 1990 budget consists of P98.4 Billion in automatic appropriation (with P86.8 Billion for debt service) and P155.3 Billion appropriated under Republic Act No. 6831, otherwise known as the General Appropriations Act, or a total of P233.5 Billion, while the appropriations for DEPED amounts to P27B.
- The said automatic appropriation for debt service is authorized by PD Nos. 81, 1177, 1967.
- There can be no question that petitioners as Senators of the Republic of the Philippines may bring this suit where a constitutional issue is raised. Indeed, even a taxpayer has personality to restrain unlawful expenditure of public funds.
- The petition seeks the declaration of the unconstitutionality of P.D. No. 81, Section 31 of P.D. No. 1177, and P.D. No. 1967. The petition also seeks to restrain the disbursement for debt service under the 1990 budget pursuant to said decrees

ISSUE 1: Whether or Not the appropriation of P86 billion for debt service is a violation of the Sec. 5 Article XIV of the Constitution (highest budget to DEPED)? NO**PETITIONER/S ARGUMENTS:**

As against this constitutional intention, P86 Billion is appropriated for debt service while only P27 Billion is appropriated for DEPED in the 1990 budget. The appropriation for debt service is inconsistent with the Constitution, hence, void (Art. 7 of CC)

RESPONDENT/S ARGUMENTS:

Contends that the Petition involves a pure political question which is the repeal or amendment of said laws addressed to the legislative body, not this Court.

RULING and RATIO DECIDENDI for ISSUE 1:

- While it is true that under Section 5(5), Article XIV of the Constitution Congress is mandated to "assign the highest budgetary priority to education" in order to "insure that teaching will attract and retain its rightful share of the best available talents through adequate remuneration and other means of job satisfaction and fulfillment," it does not thereby bind the Congress that it deprives it the power to respond to national interest and to attain other state policies.
- Since 1985, the budget for DEPED has tripled to upgrade and improve the facilities, and to increase the compensation of the teachers. The budget for DEPED is the highest budgetary allocation among all department budgets. This is a clear compliance with the aforesaid constitutional mandate according highest priority to education.
- Since the above has been complied with, Congress can reasonably provide an appropriation to service the debt, for the survival of the economy and to protect the country's credit standing. Thus, if in the process Congress appropriated an amount for debt service bigger than the share allocated to education, the Court finds and so holds that said appropriation cannot be thereby assailed as unconstitutional

LEGAL BASES

Art 7. 2. When the courts declare a law to be inconsistent with the Constitution, the former shall be void and the latter shall govern.

ISSUE 2

Side – Substantive	W/N the automatic appropriations under Marcos' PDs are still in effect?	YES
--------------------	---	-----

PETITIONER/S ARGUMENTS:

Argue that the automatic appropriations set forth by Marcos had finished its effectivity when he was ousted; and that the legislative power was restored to Congress. Thus, the said P86.8 Billion automatic appropriation in the 1990 budget is an administrative act that rests on no law, and thus, it cannot be enforced.

Petitioners further asserted that assuming that Marcos' PDs are still in effect, it is a violation of Article XVIII Sec 3 and Article VI Sec 24, and Art VI Sec 29(1)

RULING and RATIO DECIDENDI:

- Art XVIII Sec 3 - transitory provision was adopted to preserve the social order so that the legislation by then Pres. Marcos may be recognized. Such laws are to remain in force and effect unless they are inconsistent with the Constitution or are otherwise amended, repealed or revoked.
- Examining the PDs, it had a clear intent that the amounts needed to cover the payment of the principal and interest on all foreign loans should be made available when they shall become due precisely without the necessity of enacting separate laws appropriating the funds therefor, since both the periods and necessities are incapable of determination in advance
- The automatic appropriation provides flexibility for the execution of debt management policies (take advantage of favorable market, forex rates, and to address delayed payments). OSG stated, "The purpose is foreseen to subsist with or without the person of Marcos."
- On violating Sections 24 and 27 of Article VI - the framers did not contemplate that existing laws in the statute books including existing PDs appropriating public money are reduced to mere "bills" that must again go through the legislative mill. The only reasonable interpretation of said provisions which refer to "bills" is that they mean appropriation measures still to be passed by Congress. If the intention of the framers thereof were otherwise they should have expressed their decision in a more direct or express manner.

LEGAL BASES

Article XVIII Sec 3. All existing laws, decrees, executive orders, proclamations, letters of instructions, and other executive issuances not inconsistent with this Constitution shall remain operative until amended, repealed, or revoked.

Article VI Sec 24. All appropriation, revenue or tariff bills, bills authorizing increase of the public debt, bills of local application, and private bills shall originate exclusively in the House of Representatives, but the Senate may propose or concur with amendments.

Art VI Sec 29(1). No money shall be paid out of the Treasury except in pursuance of an appropriation made by law."

ISSUE 3

Side – Substantive	W/N the PDs give undue delegation of legislative power in the automatic appropriation for debt service	NO
--------------------	--	----

RULING and RATIO DECIDENDI:

- The Court finds that in this case the questioned laws are complete in all their essential terms and conditions and sufficient standards are indicated therein.

- The legislative intention in R.A. No. 4860, as amended, Section 31 of P.D. No. 1177 and P.D. No. 1967 is that the amount needed should be automatically set aside in order to enable the RPH to pay the principal, interest, taxes and other normal banking charges on the loans, credits or indebtedness incurred as guaranteed by it when they shall become due without the need to enact a separate law appropriating funds therefor as the need arises.
- The purpose of these laws is to enable the government to make prompt payment and/or advances for all loans to protect and maintain the credit standing of the country
- While the PDs did not state specific amounts to be paid, it does not confer unlimited discretion, since it specified its mandate to pay only the principal, interest, taxes and other normal banking charges on the debts
- No uncertainty arises in executive implementation as the limit will be the exact amounts as shown by the books of the Treasury

OSG - Government Budgetary Process (Mentioning those Specific to Debt Service)

1. **Budget preparation** - On Executive Branch - the Development Budget Coordinating Council (DBCC) estimates debt service levels based on macroeconomic projections of interest rates and estimated sources of domestic and foreign financing. Then, the Bureau of Treasury computes the interest and principal payments for the year for all direct national government borrowings and other liabilities assumed by the same.
 2. **Legislative Authorization** - On Congress, formulating an appropriation act following the Constitution, which specifies that no money may be paid from the Treasury except in accordance with an appropriation made by law.
 - a. Debt service is not included in the General Appropriation Act, since authorization therefor already exists under RA No. 4860 and 245, as amended and PD 1967. Because of this, Congress does not concern itself with details for implementation by the Executive, but largely with **annual levels and approval thereof** upon due deliberations as part of the whole obligation program for the year. Upon such approval, Congress has spoken and cannot be said to have delegated its wisdom to the Executive, on whose part lies the implementation or execution of the legislative wisdom
 3. **Budget Execution** - On Executive Branch. - BOT requests allotments from the DBM for the release from the debt service fund 1 quarter in advance of the payment schedule to ensure prompt payments. Then, upon receiving the official billings from the creditors, BOT will remit the payment through the Central Bank or to the Sinking Fund established for govt security issues.
 4. **Budget Accountability** - Evaluation of the actual performance
 → No undue delegation of legislative power. PH Constitution does not require a definite, certain, exact or 'specific appropriation made by law.' It only states that it be 'made by law', which was what's written in the PDs - may be impliedly or expressly, specific or general.
- The Court finds that R.A. No. 4860, as amended by P.D. No. 81, Section 31 of P.D. 1177 and P.D. No. 1967, constitute lawful authorizations or appropriations, unless they are repealed or otherwise amended by Congress. The Executive was thus merely complying with the duty to implement the same.

FINAL DECISION

WHEREFORE, the petition is DISMISSED, without pronouncement as to costs.
SO ORDERED

SEPARATE OPINION/S

CRUZ, J, dissenting

- One of the essential requirements of a valid appropriation is that the amount appropriated must be certain, which means that the sum authorized to be released should either be determinate or at least determinable.
- The presidential decrees on which the respondents rely do not satisfy this requirement.
- Section 7 of P.D. 81 - "all the revenue" "such amount necessary" "as and when they shall become due"
- Section 31 of P.D. 1717 - "all expenditures"
- Section 1 of P.D. 1967 - "such amounts as may be necessary"

	• It is easy to see that in none of these decrees is the amount appropriated fixed, either by an exact figure or by an indication at least of its maximum • No parameters set in the PDs. It's all uncertain. • Even Marcos, as legislator, did not know how much he was appropriating. • The ponencia assures us that "no uncertainty arises in executive implementation as the limit will be the exact amounts as shown by the books of the Treasury." → not a comfort. We surely cannot defend an appropriation, say, of "such amounts as may be necessary for the construction of a bridge across the Pasig River" even if the exact cost may be shown later by the books of the Treasury. This would be no different from the uncertain appropriations the Court is here sustaining • I think it is a mistake for this government to justify its acts on the basis of the decrees of President Marcos. These are on the whole tainted with authoritarianism and enfeebled by lack of proper study and draftmanship, let alone suspect motives. I suggest that these decrees must be reviewed carefully and whenever proper, set aright by necessary modification or outright revocation. Instead, the respondents are invoking them blindly
PADILLA, J, <i>dissenting</i>	Agrees with Cruz. Adds: Section 29(1), Article VI of the 1987 Constitution provides: "Sec. 29(1). No money shall be paid out of the Treasury except in pursuance of an appropriation made by law." • It is quite obvious from this provision that there must first be a law enacted by Congress (and approved by the President) appropriating a particular sum or sums before payment thereof from the Treasury can be made. • To construe the term "law" in the above provision to mean the decrees issued by then President Marcos would, in effect, be supporting a continuing governance of a large segment of the Philippine economy by a past regime which, as every one knows, centralized for a good number of years legislative and executive powers in only one person. • Besides, these decrees issued by President Marcos relative to debt service were tailored for the periods covered by said decrees. Today it is Congress that should determine and approve the proper appropriations for debt servicing, as this is a matter of policy that, in my opinion, pertains to the legislative department, as the policy determining body of the Government
PARAS, J, <i>dissenting</i>	I dissent. Any law that undermines our economy and therefore our security is per se unconstitutional.

Philippine Constitution Association v. Enriquez

DOCTRINE

In the General Appropriations Act, the President's line-item veto power extends to inappropriate provisions and riders that attempt to amend substantive laws or impose unconstitutional legislative vetoes, but appropriate conditions or restrictions germane to an appropriation item cannot be vetoed separately from the item itself; furthermore, under Section 25(5), Article VI of the Constitution, the authority to augment items from savings is strictly limited to the high constitutional officials enumerated therein and cannot be extended by statute to subordinate executive officers such as the AFP Chief of Staff.

RECITATION SUMMARY

In December 1993, Congress passed House Bill No. 10900, the General Appropriations Bill of 1994. On December 30, 1993, President Fidel V. Ramos signed the bill into law as Republic Act No. 7663 (GAA of 1994). Simultaneously, President Ramos issued a Presidential Veto Message directly vetoing several special provisions and imposing executive conditions on the release of certain funds. Four consolidated petitions were filed before the Supreme Court by the Philippine Constitution Association (PHILCONSA), taxpayers, and sixteen Members of the Senate (led by Senate President Edgardo Angara, Finance Committee Chair Neptali Gonzales, and Senator Raul Roco) challenging both legislative provisions in the GAA (such as the Countrywide Development Fund, congressional operational realignments, and debt service allocations) and various presidential vetoes/conditions. The Supreme Court sustained the petitions in part and dismissed them in part, establishing key constitutional doctrines on budgetary power: (1) legislators have standing to question presidential acts that infringe on legislative prerogatives; (2) the Countrywide Development Fund (CDF/pork barrel) is constitutional because project identifications by legislators are merely recommendatory to the Executive; (3) realignment of congressional operating expenses requires the final approval of the Senate President or House Speaker pursuant to Section 25(5), Article VI; (4) allocating a larger budget to debt service than education does not violate Article XIV, Section 5(5); (5) the presidential veto of inappropriate riders (such as debt ceiling limits amending automatic debt laws, legislative vetoes on AFP modernization, and contract-impairing prohibitions) is valid; (6) the presidential veto of appropriate conditions germane to specific items (such as DPWH 70/30 maintenance ratios, AFP generic medicine requirements, and debt fund usage provisos) is void; (7) authorizing the AFP Chief of Staff to augment pension funds from savings violates Section 25(5), Article VI; and (8) phasing CAFGU deactivation under presidential approval is a valid exercise of Commander-in-Chief authority rather than unconstitutional impoundment.

MATERIAL FACTS & PROCEDURAL HISTORY

- **Legally Relevant Parties & Relationship:**
 1. *Petitioners in G.R. No. 113105*: Philippine Constitution Association (PHILCONSA), Exequiel B. Garcia, and Ramon A. Gonzales (suing as taxpayers).
 2. *Petitioners in G.R. No. 113174*: Sixteen Members of the Philippine Senate led by Senate President Edgardo J. Angara, Finance Committee Chairman Neptali A. Gonzales, and Senator Raul S. Roco (suing as legislators and taxpayers).
 3. *Petitioners in G.R. No. 113766 & 113888*: Senators Wigberto E. Tañada, Alberto G. Romulo, and Freedom from Debt Coalition (FDC).
 4. *Respondents*: Executive Secretary Teofisto Guingona, Jr., Secretary of Budget and Management Salvador Enriquez, Jr., National Treasurer Vicente C. Tan / Caridad Valdehuesa, and the Commission on Audit (COA).
- **Chronological Material Facts:**

1. On December 17, 1993, Congress passed House Bill No. 10900 (General Appropriation Bill of 1994).
 2. On December 30, 1993, President Fidel V. Ramos signed H.B. 10900 into law as Republic Act No. 7663 (GAA of 1994).
 3. On the same day, President Ramos delivered his Presidential Veto Message, line-vetoing specific special provisions and placing executive conditions/guidelines on the implementation of several items.
 4. Neither House of Congress attempted to override any of the presidential vetoes.
 5. Four separate petitions were subsequently filed directly before the Supreme Court challenging different aspects of R.A. 7663 and the Presidential Veto Message.
- **Procedural History:**
 1. Four special civil actions for prohibition, *certiorari*, and *mandamus* under Rule 65 were consolidated by the Supreme Court En Banc.
 2. The Supreme Court declined to issue temporary restraining orders, according the presumption of validity to the GAA and official acts. The Court invited former Chief Justice Enrique M. Fernando and former Associate Justice Irene Cortes to serve as *amici curiae*.
-

● PARTIES' MATERIAL ARGUMENTS

- **Petitioners' Claims:**
 1. *Countrywide Development Fund (CDF)*: Allows legislators to exercise executive project-implementation functions, violating separation of powers.
 2. *Realignment of Congressional Expenses*: Authorizes individual members of Congress to transfer funds, violating Section 25(5), Article VI.
 3. *Debt Service vs. Education*: Appropriating ₱86.3 Billion for debt service versus ₱37.7 Billion for DECS violates Article XIV, Section 5(5) assigning highest priority to education.
 4. *Veto of Debt Special Provision*: The President cannot veto the debt ceiling proviso without vetoing the entire ₱86.3 Billion debt appropriation item.
 5. *Veto of SUC Income & DPWH/AFP Special Provisions*: The President committed grave abuse of discretion and engaged in unconstitutional item-vetoes by striking down appropriate conditions/provisos attached to SUCs, DPWH road maintenance, AFP medicine purchases, and AFP modernization.
 6. *CAFGU Deactivation Directive*: The President's directive conditioning CAFGU deactivation on prior presidential approval constitutes an unconstitutional impoundment and administrative embargo of congressional intent.
 - **Respondents' Claims (Solicitor General):**
 1. *Procedural / Standing*: Senator-petitioners lack institutional standing because the suit was not authorized by a formal Senate Resolution.
 2. *CDF & Realignment*: CDF project identifications are purely recommendatory; congressional realignments represent valid internal management of savings.
 3. *Education Budget*: Article XIV, Section 5(5) is directory; DECS remains the highest funded executive department.
 4. *Validity of Vetoes*: The President validly vetoed inappropriate provisions/riders that attempted to amend substantive laws (P.D. 1177, E.O. 292), impose unconstitutional legislative vetoes, or impair existing government contracts.
 5. *CAFGU Directive*: The Commander-in-Chief possesses sole executive discretion to time CAFGU deactivation based on national security and peace conditions.
-

● ISSUES & HOLDINGS WITH DETAILED RATIOS

PRELIMINARY ISSUE: Legal Standing (*Locus Standi*) of Legislators and Taxpayers

♥ **HOLDING: YES.** Petitioners possess legal standing.

RATIO & DETAILED COURT LOGIC:

1. *Legislator Standing:* Individual members of Congress have standing to maintain a suit questioning the validity of a presidential veto or executive act when it is claimed that the act infringes upon or usurps their official prerogatives and legislative powers. While a formal chamber resolution (as in *Gonzales v. Macaraig*) is the proper institution-building mechanism, the absence of an enabling resolution does not deprive legislators of standing to protect their official powers.
 2. *Taxpayer Standing:* Taxpayers have standing when the suit involves the alleged unconstitutional expenditure or disbursement of public funds appropriated by law.
-

ISSUE 1: Constitutionality of the Countrywide Development Fund (CDF)

♥ **HOLDING: VALID AND CONSTITUTIONAL.**

RATIO & DETAILED COURT LOGIC:

1. *Power of the Purse:* The spending power belongs exclusively to Congress. Congress has the constitutional authority to define the specific purpose, coverage, and amount of an appropriation act, making it as detailed or as broad as it deems wise.
 2. *Nature of Legislator Proposal:* Under Article XLI of the 1994 GAA, Congress itself defined the public purpose of CDF ("infrastructure, purchase of ambulances, computers, and priority projects").
 3. *Recommendatory Role:* The authority given to individual members of Congress to propose and identify specific projects is merely **recommendatory**. The proposal does not bind the Executive; the implementation, evaluation, and release of funds remain under the exclusive control and discretion of the Executive branch.
-

ISSUE 2: Realignment of Operating Expenses for Members of Congress

♥ **HOLDING: VALID**, provided final approval is granted by the Senate President or House Speaker.

RATIO & DETAILED COURT LOGIC:

1. *Constitutional Limitation on Augmentation:* Under Section 25(5), Article VI of the Constitution, transfers of appropriations are generally prohibited, except that specified high officials (including the Senate President and Speaker of the House) may be authorized by law to augment items in their respective offices from savings in other items.
 2. *Role of Individual Members:* Individual legislators are in the best position to determine operational deficiencies in their offices. However, an individual member merely determines the *necessity* of a realignment.
 3. *Requisite Officer Approval:* The actual legal augmentation/transfer from savings must be explicitly approved by the Senate President or the Speaker of the House, who must verify that: (a) realigned funds are actual savings; and (b) the realignment augments an existing expenditure item.
-

ISSUE 3: Allocation for Debt Service vs. Constitutional Priority for Education

♥ **HOLDING: VALID AND CONSTITUTIONAL.**

RATIO & DETAILED COURT LOGIC:

- 1. *Directory Nature of Article XIV, Section 5(5):* Reaffirming *Guingona v. Carague*, the constitutional command to "assign the highest budgetary priority to education" is directory and does not paralyze Congress from responding to national imperatives, such as servicing sovereign debt to protect national credit and economic survival.
- 2. *Compliance in Executive Budgets:* DECS received ₱29.7 Billion (increased to ₱37.7 Billion), representing the highest allocation among all executive department budgets. Servicing national debt involves statutory automatic appropriations outside ordinary department operational comparisons.

ISSUE 4: Presidential Veto of the Special Provision on Debt Ceiling / Payment

 **HOLDING: PARTIALLY VALID AND PARTIALLY VOID.**

RATIO & DETAILED COURT LOGIC:

- 1. *Valid Veto of Debt Ceiling Proviso:* The proviso stating that "any payment in excess of the amount herein appropriated shall be subject to the approval of the President with the concurrence of Congress" is an **inappropriate provision / rider**. Automatic debt servicing is governed by substantive permanent laws (P.D. 1177, E.O. 292, R.A. 4860). A General Appropriations Act cannot be used to repeal or amend substantive laws. Under *Gonzales v. Macaraig*, inappropriate provisions inserted in a budget bill can be vetoed separately as "items" without vetoing the main appropriation figure.
- 2. *Void Veto of Debt Use Provisos:* The President vetoed the entire Special Provision, including provisos stating that funds shall be used for principal and interest and shall not pay for Central Bank Board of Liquidators liabilities. These provisos are **appropriate provisions** directly germane to the debt service item. The President cannot veto an appropriate condition or restriction without vetoing the underlying item itself. Thus, the veto of these specific provisos was null and void.

ISSUE 5: Presidential Veto of Revolving Funds and Use of Income for SUCs

 **HOLDING: VALID VETO.**

RATIO & DETAILED COURT LOGIC:

- 1. *Compliance with One-Fund Policy:* Under Section 65 of the Government Auditing Code and E.O. 292, all public income must accrue to the General Fund unless a special statutory exception exists.
- 2. *No Unlawful Discrimination:* Vetoing revolving fund provisions for West Visayas State University and Leyte State College while permitting them for agencies like the National Stud Farm or SEC was valid because the latter possessed independent statutory authority under special laws. Allowing new agency retention of income reduces national revenue and inflates fiscal deficits.

ISSUE 6: Presidential Veto of DPWH Road Maintenance Ratio (70% Contract / 30% Administrative)

 **HOLDING: VOID VETO.** The Special Provision remains in full force and effect.

RATIO & DETAILED COURT LOGIC:

- 1. *Appropriate Condition:* The special provision requiring DPWH to execute road maintenance 70% by contract and 30% by force account is an **appropriate provision**. It is not alien to road maintenance; it specifies *how* the appropriated funds shall be spent.
 - 2. *Inseparability from Item:* The President cannot separately line-veto an appropriate condition or restriction attached to an item while retaining the appropriation item itself. If the President dislikes an appropriate condition, he must veto the entire item.
-

ISSUE 7: Presidential Veto of AFP Medicine Purchase Requirement

 **HOLDING: VOID VETO.** The Special Provision remains in full force and effect.

RATIO & DETAILED COURT LOGIC:

- 1. *Appropriate Condition:* The special provision requiring the AFP to purchase medicines in generic form and from local manufacturers is directly related to and inseparable from the item for AFP medicine purchases.
 - 2. *Prohibition on Selective Veto:* Being an appropriate budgetary restriction, it cannot be vetoed separately without vetoing the main medicine appropriation item (*Bolinao Electronics v. Valencia*).
-

ISSUE 8: Presidential Veto of AFP Modernization Fund Provisions (Prior Congressional Approval & Equipment Ban)

 **HOLDING: VALID VETO.**

RATIO & DETAILED COURT LOGIC:

- 1. *Unconstitutional Legislative Veto:* Special Provision No. 2 requiring the President to submit military equipment purchases to Congress for prior approval before releasing funds is an impermissible **legislative veto**. Congress cannot move from legislative oversight to shared executive administration.
 - 2. *Impairment of Contracts:* Special Provision No. 3 prohibiting the use of modernization funds for trainer planes and armored carriers contracted by the AFP violates the Non-Impairment Clause (Art. III, Sec. 10).
 - 3. *Separable Inappropriate Riders:* Both provisions were inappropriate riders that attempted to alter executive Commander-in-Chief powers and contract obligations, making them validly subject to separate item-veto.
-

ISSUE 9: Presidential Veto of AFP Savings Transfer to Pension Fund

 **HOLDING: VALID VETO.**

RATIO & DETAILED COURT LOGIC:

- 1. *Violation of Section 25(5), Article VI:* Section 25(5) restricts the authority to augment items from savings exclusively to the President, Senate President, House Speaker, Chief Justice, and Heads of Constitutional Commissions.

- 2. *Subordinate Officer Ineligibility*: The AFP Chief of Staff is not among the officials enumerated in Section 25(5). A statute or GAA provision authorizing a subordinate executive officer to transfer savings is unconstitutional.

ISSUE 10: Presidential Condition on CAFGU Deactivation (Impoundment Issue)

 **HOLDING: VALID EXECUTIVE DIRECTIVE.**

RATIO & DETAILED COURT LOGIC:

- 1. *Commander-in-Chief Authority*: The President's directive subjecting CAFGU deactivation to prior presidential approval based on peace initiatives falls under his constitutional powers as Commander-in-Chief and Chief Executive under the Faithful Execution Clause (Art. VII, Sec. 17).
- 2. *Non-Impoundment*: Impoundment is an executive refusal to spend funds authorized by Congress. Phasing deactivation in accordance with security conditions is not an administrative embargo, but a legitimate executive timing determination.

 DECISION & DISPOSITION:

The Supreme Court **DISMISSED** the petitions, **EXCEPT** with respect to:

- 1. The veto of the special provisions on debt service specifying payment for principal/interest and prohibiting payment of Central Bank Board of Liquidators liabilities (G.R. Nos. 113105 & 113766), which is **DECLARED NULL AND VOID**;
- 2. The veto of the DPWH 70/30 road maintenance special provision (G.R. No. 113888), which is **DECLARED NULL AND VOID**; and
- 3. The veto of the AFP generic/local medicine purchase special provision (G.R. No. 113888), which is **DECLARED NULL AND VOID**.

The vetoed provisions in items (1), (2), and (3) are declared valid and subsisting.

 **Recitation Synthesis:** *Philconsa v. Enriquez* establishes that while the President can veto inappropriate riders (legislative vetoes, amendments to substantive laws, contract impairments), he **cannot line-veto appropriate restrictions or conditions** attached to an appropriation item without vetoing the item itself. Furthermore, transfers of savings can **only** be made by the five constitutional officers named in Section 25(5), Article VI.

Philconsa v. Enriquez (1994)

Topic Subtopic	"Branches of the Government - Congress" Legislative Process Requirements as to certain laws: Appropriation laws	GR No. & Ponente	G.R. No. 113105, G.R. No. 113174, G.R. No. 113766, G.R. No. 113888.
Petitioner/s	G.R. No. 113105 PHILIPPINE CONSTITUTION ASSOCIATION, EXEQUIEL B. GARCIA and RAMON A. GONZALES, G.R. No. 113174 RAUL S. ROCO, as Member of the Philippine Senate, NEPTALI A. GONZALES, as Chairman of the Committee on Finance of the Philippine Senate, and EDGARDO J. ANGARA, as President and Chief Executive of the Philippine Senate, all of whom also sue as taxpayers, in their own behalf and in representation of Senators HEHERSON ALVAREZ, AGAPITO A. AQUINO, RODOLFO G. BIAZON, JOSE D. LINA, JR., ERNESTO F. HERRERA, BLAS F. OPLE, JOHN H. OSMEÑA, GLORIA MACAPAGAL-ARROYO, VICENTE SOTTO III, ARTURO M. TOLENTINO, FRANCISCO S. TATAD, WIGBERTO E. TAÑADA and FREDDIE WEBB, G.R. No. 113766 WIGBERTO E. TAÑADA and ALBERTO G. ROMULO, as Members of the Philippine Senate and as taxpayers, and FREEDOM FROM DEBT COALITION, G.R. No. 113888 WIGBERTO E. TAÑADA and ALBERTO G. ROMULO, as Members of the Philippine Senate and as taxpayers,	Respondent/s	G.R. No. 113105 HON. SALVADOR ENRIQUEZ, as Secretary of Budget and Management; HON. VICENTE T. TAN, as National Treasurer and COMMISSION ON AUDIT, G.R. No. 113174 THE EXECUTIVE SECRETARY, THE DEPARTMENT OF BUDGET AND MANAGEMENT, and THE NATIONAL TREASURER, THE COMMISSION ON AUDIT, impleaded herein as an unwilling co-Petitioner G.R. No. 113766 HON. TEOFISTO GUINGONA, JR. in his capacity as Executive Secretary, HON. SALVADOR ENRIQUEZ, JR., in his capacity as Secretary of the Department of Budget and Management, HON. CARIDAD BALDEHUESA, in her capacity as National Treasurer, and THE COMMISSION ON AUDIT, G.R. No. 113888 HON. TEOFISTO T. GUINGONA, JR., in his capacity as Executive Secretary, HON. SALVADOR ENRIQUEZ, JR., in his capacity as Secretary of the Department of Budget and Management, HON. CARIDAD BALDEHUESA, in her capacity as National Treasurer, and THE COMMISSION ON AUDIT,
Doctrine			

FACTS

House Bill No. 10900, the General Appropriation Bill of 1994 (GAB 1994) was passed and approved by both houses of Congress on December 17, 1993. The GAB imposed conditions and limitations on certain items that were submitted by the President. **It authorized legislators to propose and identify projects under their Countrywide Development Fund (CDF) allocations, and allowed realignment of their operating expenses**

Congress presented the bill to the President. The president signed the bill into law and declared it to become RA No. 7663 (**The Government Appropriations Act (GAA) of 1994**). On the same day, the president also delivered his Presidential Veto Message, specifying the provisions of the bill he vetoed and on which he imposed certain conditions.

The petitions consisted of writs of prohibition, mandamus, and temporary restraining orders against the respondents

The primary contentions being raised in the consolidated petitions are the following

- **G.R. No. 113105 - PHILCONSA, Garcia and Gonzales sued as taxpayers for prohibition.** To declare as unconstitutional and void:
 - a. (1) Article XLI on the Countrywide Development Fund, (2) the special provision in Article I entitled Realignment of Allocation for Operational Expenses, and (3) Article XLVIII on the Appropriation for Debt Service or the amount appropriated under said Article XLVIII in excess of the P37.9 Billion allocated for the Department of Education, Culture and Sports;
 - b. the veto of the President of the Special Provision of Article XLVIII of the GAA of 1994
- **G.R. No. 113174 - 16 Senators, led by Angara, Gonzales and Roco, sued as legislators and taxpayers for certiorari, prohibition and mandamus.** They question the constitutionality of the following conditions imposed by the President in the items of the GAA below

a. for the Supreme Court, b. Commission on Audit (COA) c. Ombudsman d. Commission on Human Rights, (CHR) e. Citizen Armed Forces Geographical Units (CAFGU'S) and f. State Universities and Colleges (SUC's) g. + the constitutionality of the veto of the special provision in the appropriation for debt service. ● G.R. No. 113766 - Tañada and Romulo, as Senators and taxpayers, joined by the Freedom from Debt Coalition as taxpayer, sought prohibition and mandamus. ○ They challenge the constitutionality of the Presidential veto of the special provision in the appropriation of debt service and the automatic appropriations of funds therefor. ● G.R. No. 113888 - Tanada and Romulo petitioners contest the constitutionality of a. the veto on four special provisions added to items in the GAA of 1994 for the Armed Forces of the Philippines (AFP) and the Department of Public Works and Highways (DPWH) b. The conditions imposed by the President in the implementation of certain appropriations for the CAFGU's, the DPWH, and the National Housing Authority (NHA).
--

ISSUE 1

Main – Procedural	W/N the petitioners have legal standing / whether individual Senators may sue over allegedly unconstitutional vetoes or conditions even without a Senate resolution and despite the possibility of an override?	YES
RESPONDENT/S ARGUMENTS:		
● The remedy of the Senators in the other petitions is political in effect saying that they do not have the requisite legal standing to bring the suits.		
RULING and RATIO DECIDENDI:		
<i>Yes. The petitioners, as members of the Senate and the House of Representatives, have legal standing since the power of Congress is being impaired, and to an extent the impaired power of members of the House also applies.</i> ● The Court acknowledges that the Senate (Gonzales v. Macaraig) or HoR (United States v. American Tel. & Tel. Co.) has the legal standing to sue ○ In Gonzales v. Macaraig, the entire 23-member Senate sued under an enabling Senate resolution. Here, even the petition by 16 Senators had no Senate authorization; neither did Tañada and Romulo's petitions. The Court therefore considered the standing of the individual members themselves ● While one of the petitions was filed by 16 Senators and the suit was not authorized by the Senate itself, likewise with two other petitions from this consolidation (made without a resolution), the Court ruled that a member of the Senate and of the HoR has the legal standing to question the validity of a presidential veto or a condition imposed of a bill. ○ If a veto claimed to be made w/o or in excess of authority vested on the President by the Constitution, it is an intrusion to the domain of the Legislature. ■ Therefore, an act of the Executive which injures the institution of Congress can be questioned by a member of Congress and as such (Kennedy v. Jones), can have a resort to the courts. ● There are mechanisms to override a veto but this applies to political considerations and not to claims of ultra vires. Therefore, it is the duty of the Court to determine the boundaries of where a veto can be a valid exercise of power.		
LEGAL BASES		

Former Chief Justice Enrique M. Fernando, as Amicus Curiae - "What cannot be denied is that a Senator has standing to maintain inviolate the prerogatives, powers and privileges vested by the Constitution in his office"

ISSUE 2

Main – Substantive	W/N the member of Congress can propose and identify projects to be funded by the Countrywide Development Fund?	YES
PETITIONER/S ARGUMENTS:		
- The power to propose and identify projects and activities to be funded by the Countrywide Development fund is an encroachment by the legislature on executive power since it is an IMPLEMENTATION of the law (executive function rather than legislative) - The proposal and identification of the projects do not involve the making of laws or the repeal and amendment thereof		
RULING and RATIO DECIDENDI:		
<i>Context: Article XLI of the GAA of 1994 sets up a CDF of P2.9B with identified projects infrastructure, purchase of ambulances and computers and other priority projects and activities and credit facilities to qualified beneficiaries."</i> <i>Yes. Congress can propose and identify projects to be implemented by the President as it will be subject to the approval of the latter.</i> - Under the Constitution, the spending power called by James Madison as the "power of the purse" belongs to Congress while the veto power is given to the President. - The power of appropriation carries with it the power to specify the project or activity to be funded under the appropriation law which can be as detailed or broad as it wants to be - The Countrywide Development Fund is explicit that it shall be used "for infrastructure, purchase of ambulances and computers and other priority projects and activities and credit facilities to qualified beneficiaries. . . ." It was Congress itself that determined the purposes for the appropriation. - The aforementioned projects involves the Executive function of implementing the said priority projects specified in the law - Therefore, the President must perform examine whether the proposals submitted by the member of Congress falls within the specific items of expenditure. The said proposals are merely recommendatory - The CDF attempts to make equal the unequal since the members of the House are more likely knowledgeable about the needs of their respective constituents as well as its priority.		

ISSUE 3

Main – Substantive	W/N allowing a member of Congress to realign his/her Operation Expenses to any other expense category is unconstitutional as provided by Sec. 25(5) Art. VI of the Constitution?	NO
PETITIONER/S ARGUMENTS:		
- Allowing a member of Congress to realign his allocation for operational expenses to any other expense category is prohibited by Section 25(5) Article VI of the Constitution. - Only the SP or House Speaker is allowed to realign the savings		
RULING and RATIO DECIDENDI:		
<i>Context: The appropriation of operating expenditures are provided for each House, and it is further divided into expenditures for salaries, personal services, other compensation benefits, maintenance expenses and other operating expenses. Each member of Congress is allotted for his own operating expenditure. The special provision in the GAA provides that if he doesn't spend it all -> it can be transferred to another item of expense</i>		

No. Members of Congress are allowed to realign the savings in the allotments for their operating expenses but it should be with approval of the Senate President or Speaker of the House of Representatives.

- Section 25(5) Article VI provides that the Senate President and the House Speaker has the power to augment items in an appropriation act for their respective offices from savings in other items provided that there is an authorizing law
 - However, the special provisions only provides for the members of Congress to determine the necessity of realignment of the savings in their allotments for their operating expenses. They are in the best position to know if there are deficiencies in other items that necessitates the transfer of savings
 - The Senate President or Speaker of the House still needs to approve the realignment provided that (1) the funds to be realigned are actually savings (2) The transfer is for the purpose of augmenting the items of expenditure which said transfer or alignment is to be made.

LEGAL BASES

Section 25(5) Article VI

"No law shall be passed authorizing any transfer of appropriations: however, the President, the President of the Senate, the Speaker of the House of Representatives, the Chief Justice of the Supreme Court, and the heads of Constitutional Commissions may, by law, be authorized to augment any item in the general appropriations law for their respective offices from savings in other items of their respective appropriations."

ISSUE 4

Main Substantive –	W/N the GAA of 1994, providing the highest priority to debt service, is violative Section 5(5), Article XIV wherein the highest priority should have been given to education?	NO
--------------------	---	----

PETITIONER/S ARGUMENTS:

- Under the Constitution, it should be education that is entitled to the highest funding.

RULING and RATIO DECIDENDI:

Context: Congress appropriated P86,323,428,000.00 for debt service (Article XLVII of the GAA of 1994), it appropriated only P37,780,450,000.00 for the Department of Education, Culture and Sports.

No. The cited article by the respondents, which is to provide the highest priority to education, is merely directory.

- This issue has already been raised in *Guingona v. Carague*. The Court held that while Congress is mandated to assign the highest budgetary priority in education, it does not follow that Congress should be restrained to respond to imperatives of the national interest and for the attainment of other state policies.
 - In this case, it was shown that out of all of the departmentary budgets, the DEPED has the highest budgetary allocation. Budgets for upgrade and maintenance have tripled while compensation for teachers have doubled
 - The budget given to debt services addresses the enormous debt that was inherited from the previous admin. The budget was made to protect credit standing and economic survival.

Therefore, applying the ruling in the case above, the appropriation for debt service cannot be ruled as unconstitutional.

ISSUE 5

Main Substantive –	W/N the veto of provision on debt ceiling is unconstitutional	NO - with respect to “ any payment in excess of the amount herein appropriated shall be subject to the
--------------------	---	--

		approval of the President of the Philippines with the concurrence of the congress of the Philippines” YES - with respect to “shall be used for payment of principal and interest of foreign and domestic indebtedness” AND in no case shall this fund be used to pay for the liabilities of the Central Bank Board of Liquidators.
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
President cannot veto the Special Provision on the appropriation for debt service without vetoing the entire amount of P86,323,438.00 for said purpose		the Special Provision did not relate to the item of appropriation for debt service and could therefore be the subject of an item veto
RULING and RATIO DECIDENDI:		
Context: President vetoed the first Special Provision, without vetoing the P86,323,438,000.00 The First Special Provision: 1. Use of the Fund. The appropriation authorized herein shall be used for payment of principal and interest of foreign and domestic indebtedness; PROVIDED, That any payment in excess of the amount herein appropriated shall be subject to the approval of the President of the Philippines with the concurrence of the congress of the Philippines; PROVIDED, FURTHER, That in no case shall this fund be used to pay for the liabilities of the Central Bank Board of Liquidators. He vetoed this because this cannot be done through a GAA as this must be addressed by revisiting debt policies. Appropriation for payment of public debt, whether foreign or domestic must be pursuant to Foreign Borrowing Act, Section 31 of P.D. No. 1177 and E.O. No. 292. TLDR: it is not appropriate legislature to amend the provisions of the aforementioned laws. The Court ruled that the veto of the entire first special provision must not be upheld; only certain parts can be vetoed. - The issue is mere rehash of <i>Gonzales vs. Macaraig</i> (Inappropriate provisions are considered as items which can be vetoed) and utilizing the doctrine in <i>Henry vs. Edwards</i>, Congress cannot include in a GAB matters that should be more appropriate to be enacted in a separate legislation. If it does, then it is an inappropriate provision that must be treated as an item - The Special Provision insofar it refers to the funds in excess of the amount appropriated is an inappropriate provision referring to funds other than the P86B. It was clearly an attempt to repeal P.D. 1177 and E.O. 292 and to reverse the debt payment policy. - Veto power is part of the legislative process as it is in Art. VI rather than VII. The President is only allowed to veto an entire bill, except for particular items in a GAB (Sec. 27, Art VI). - The Constitution is explicit that Congress can include in a GAB must relate specifically to some particular appropriation therein and be limited in its operation to the appropriation it relates. When the legislature inserts inappropriate provisions in a general appropriation bill, such provisions must be treated as 'items' for purposes of the Governor's item veto power over general appropriation bills. - The petitioners contention that the President cannot automatically appropriate the funds without complying with the conditions under RA 4860, as amended by P.D. 81 and 1177 is unfounded since the Petitioners cannot anticipate that the president will not faithfully execute the laws. The writ of prohibition will not be issued out of fear or speculation The Court ruled that the entire provision must not be vetoed as "shall be used for payment of the principal and		

interest of foreign and domestic indebtedness" and that "in no case shall this fund be used to pay for the liabilities of the Central Bank Board of Liquidators." are germane to and have a direct connection with the item on debt service. -> appropriate provisions and cannot be vetoed separately. Hence the item veto of said provisions is void.

What is sustained in the veto is only the "any payment in excess of the amount herein, appropriated shall be subject to the approval of the President of the Philippines with the concurrence of the Congress of the Philippines"

ISSUE 6

Main – Substantive	W/N the following vetoes/conditions are constitutional:	
	6.1 Vetoes of Provisions for Revolving Funds of SUCs	6.1 YES
	6.2 Veto of provision on 70% (administrative)/30% (contract) ratio for road maintenance.	6.2 NO
	6.3 Veto of provision on purchase of medicines by AFP.	6.3 NO
	6.4 Veto of provision on prior approval of Congress for purchase of military equipment.	6.4 YES
	6.5 Veto of provision on use of savings to augment AFP pension funds.	6.5 YES
	6.6 Condition on the deactivation of the CAFGU's	6.6 NO
	6.7 Conditions on the appropriation for the Supreme Court, etc .	6.7 YES

PETITIONER/S ARGUMENTS:

6.1 the President acted with grave abuse of discretion when he disallowed by his veto the "use of income" and the creation of "revolving fund" by the Western Visayas State University and Leyte State Colleges when it was allowed for other government agencies

6.4 Petitioners claim that Special Provision No. 2 on the "Use of Fund" and Special Provision NO. 3 are conditions or limitations related to the item on the AFP modernization plan.

6.5 the Special Provision on AFP Pension and Gratuity Fund is a condition or limitation which is so intertwined with the item of appropriation that it could not be separated therefrom.

6.6 the directive of the President was tantamount to an administrative embargo of the congressional will to implement the Constitution's command to dissolve the CAFGU's

6.7 the conditions imposed by the President violated the independence and fiscal autonomy of the mentioned agencies/institutions

RULING and RATIO DECIDENDI:

6.1 YES. There was no undue discrimination when the President vetoed the special provisions even if other government agencies are allowed the same provisions to use their income and maintain a revolving fund. This is because these agencies were already authorized by law to enjoy such privilege.

Income should accrue to the General Fund of the Government in line with the One Fund Policy pursuant to Sec. 29(1), Article VI and Sec. 22, Article VII of the Constitution. Furthermore, the creation of revolving funds shall be authorized by substantive law pursuant to Sec. 66 of the Govt. Auditing Code of the PH and Sec. 45, Ch. 5, Book VI of EO 292

6.2 NO. The President believed that based on a comprehensive study that an option of 70% for the total appropriation of maintenance of roads is more efficient, economical and practical. Hence the veto.

The special provision in question is not an inappropriate provision which can be subject to a veto. It is not alien to the appropriation of road maintenance and it specifies how the said item shall be expended - 70% by administrative and 30% by contract. Since this is an "appropriate" provision, it cannot be vetoed separately. Therefore, the veto of the second paragraph of Special Provision No. 2 of the item for the DPWH is therefore unconstitutional.

6.3 NO. The special provision which requires that all purchases of medicines by the AFP should strictly comply with the formulary embodied in the National Drug Policy of the DOH is an appropriate provision. It is mere

advertence by Congress to the fact that there is an existing law. The president's belief that there should be a transitory period which leads to the veto is not justified.

Being directly related and inseparable from the appropriation item on purchases of medicines by the AFP, it cannot be vetoed.

6.4 YES. The requirement on the "use of fund" for the AFP modernization program that the President must submit all purchases of military equipment to Congress is a legislative veto

- Legislative veto - the legislature can block or modify administrative action taken under a statute. It is a form of control in the implementation of particular exec action or affirmative, requiring approval of the exec action
 - This is an attempt for the legislative to have a shared administration rather than oversight
- Any provision blocking an administrative action in implementing a law must be incorporated in a separate and substantive bill. Therefore, being "inappropriate" provisions, Special Provisions Nos. 2 and 3 were properly vetoed.
- Special Provision No. 3, prohibiting the use of the Modernization fund for payment of the trainer planes and armored personnel carriers, which have been contracted for by the AFP, is violative of the Constitutional prohibition on the passage of laws that impair the non-impairment of contracts. The veto of said special provision is therefore valid.

6.5 YES. The Special provision, which allows the Chief of Staff to use savings to augment the pension fund for the AFP being managed by the AFP Retirement and Separation fund is violative of Sec 25(5) and 29(1) of Art. VI of the Consti

- Sec 25(5) - no law shall be passed authorizing any transfer of appropriations XPN: President can realign savings to augment items in GAA
- 29(1) - no money shall be paid out of the Treasury except in pursuance of an appropriation in law

While Section 25(5) allows as an exception the realignment of savings to augment items in the general appropriations law for the executive branch, such right must and can be exercised only by the President pursuant to a specific law. Therefore, the veto is constitutional

6.6 What is being questioned here is the power of impoundment by the President

- Impoundment - refusal of the Pres. for whatever reason to spend funds made available by Congress. It is the failure to spend or obligate budget authority of any type.

NO. The Court did not find anything in the language used in the challenged Special Provision that would imply that Congress intended to deny the Pres. to defer or reduce spending, much less to deactivate 11,000 CAFGU members all at once in 1994. But even if such is the intention, the appropriations law is not the proper vehicle for such a purpose. A provision in an appropriations act cannot repeal or amend other laws, in this case, P.D. No. 1597 and R.A. No. 6758.

6.7 YES

(1) the added conditions relate to how the augmentation of savings to other items will be subject to what is authorized by law. Petitioners contend that the President violated the independence and fiscal autonomy of the SC, COA, Ombudsman and CHR

- The questioned conditions were placed in the GAB by Congress itself and not by the President. The Veto message merely highlighted the Consti mandate that additional or indirect compensation can only be given pursuant to law

(2)

- The imposed conditions:
 - To the appropriation of the COA wherein the implementation of the budget is subject to the guidelines issued by the president
 - In the appropriation for the DPWH, the President imposed the condition that in the implementation of DPWH projects, the administrative and engineering overhead of 5% and 3% shall be subject to the necessary administrative guidelines to be formulated by the Executive pursuant to existing laws.

- National Housing Authority (NHA), the President imposed the condition that allocations for specific projects shall be released and disbursed "in accordance with the housing program of the government, subject to prior Executive approval."
 - All are **mere reminders** that the implementation of the items on which the said conditions were imposed should be done in accordance with existing laws, regulations and policies. They did not add anything to what was already in place.

ISSUE 7

Side Substantive	–	W/N the respondents committed without or in excess of jurisdiction or with grave abuse of discretion that will allow the petitioner to be granted of their special civil actions to prosper?	NO
---------------------	---	--	----

RULING and RATIO DECIDENDI:

No. The President, with his veto power, did not commit grave abuse of discretion

- He had only followed what was ruled based on prior jurisprudence - cases of Gonzales and Guingona
 - According to Art 8 of the Civil Code, the Court's interpretation of the law is part of that law as of the date of its enactment as it merely established the contemporary legislative intent that the construed law purports to carry into effect. (People v. Licera). Therefore, it cannot be said that there was grave abuse of discretion when the President was merely following the decisions made by the Court.

FINAL DECISION	WHEREFORE, the petitions are DISMISSED, except with respect to (1) G.R. Nos. 113105 and 113766 only insofar as they pray for the annulment of the veto of the special provision on debt service specifying that the fund therein appropriated "shall be used for payment of the principal and interest of foreign and domestic indebtedness" prohibiting the use of the said funds "to pay for the liabilities of the Central Bank Board of Liquidators", and (2) G.R. No. 113888 only insofar as it prays for the annulment of the veto of: (a) the second paragraph of Special Provision No. 2 of the item of appropriation for the Department of Public Works and Highways (GAA of 1994, pp. 785-786); and (b) Special Provision No. 12 on the purchase of medicines by the Armed Forces of the Philippines (GAA of 1994, p. 748), which is GRANTED.
---------------------------	---

LAMP v. SECRETARY OF BUDGET AND MANAGEMENT (2012)

Topic Subtopic	Congress – Appropriations	GR No. & Ponente	G.R. No. 164987 J. Mendoza
Petitioner/s	Lawyers Against Monopoly and Poverty (LAMP)	Respondent/s	The Secretary of Budget and Management The Treasurer of the Philippines The Commission on Audit The President of the Senate Speaker of the House of Representatives
Doctrine	While taxpayers do have standing to challenge the implementation of an appropriation law, the PDAF execution cannot be declared unconstitutional for violating the separation of powers absent concrete evidence that legislators directly received and spent public funds , as their power is limited to exercising a recommendatory authority to propose priority projects.		

FACTS

Petitioner Lawyers Against Monopoly and Poverty (LAMP), an organization of lawyers dedicated to dismantling political, economic, or social monopolies, filed an **original action for certiorari** assailing the constitutionality and legality of the implementation of the **Priority Development Assistance Fund (PDAF)** under **RA 9206** (General Appropriations Act (GAA) of 2004). LAMP also sought a writ of preliminary injunction or TRO to enjoin the Department of Budget and Management (DBM) from releasing budgetary allocations to individual members of Congress as "pork barrel" funds, and to stop the National Treasurer and COA from enforcing the provision.

The GAA of 2004 appropriated **₱8,327,000,000.00** for the Priority Development Assistance Fund, governed by Special Provision No. 1.

- The amounts shall be used to fund **priority programs and projects** or the **required counterpart for foreign-assisted programs and projects**.
- PROVIDED: 1) amount shall be released directly to the implementing agency or LGU, 2) the allocations authorized may be realigned to any expense class, if necessary, 3) a maximum of 10% of the authorized allocations by district may be used for procurement of rice and other basic commodities which shall be purchased from the National Food Authority.

PDAF traced its origins to the former Countrywide Development Fund (CDF). LAMP claimed that while previous GAAs expressly provided for allocation and project identification by legislators, **the 2004 GAA omitted any reference to individual Members of Congress**. Yet, DBM continued to directly allocate and release PDAF funds to lawmakers based on their project selections

ISSUE/S

ISSUE 1

W/N the mandatory requisites of judicial review are met in this case.		YES
PETITIONER'S ARGUMENT/S		RESPONDENT'S ARGUMENT/S
As citizens and taxpayers, they have legal standing to challenge the improper execution of an unconstitutional statute involving public funds. The direct allocation and release of public funds to Members of Congress, along with their authority to propose and select projects, causes a direct injury to taxpayers through the misapplication and wastage of public funds. Thus, the controversy is real, concrete, and ripe for adjudication.		There is no actual case or controversy. LAMP relied purely on inconclusive media reports, assumptions, conjectures, and unproven accusations of kickbacks, without presenting any probative evidence or documentation. Thus, the case cannot be subjected to judicial notice.

RULING and RATIO DECIDENDI:
1) Actual case or controversy: Ripeness exists when the challenged act/statute has a direct adverse effect on the party challenging it (<i>Lozano v. Nograles</i>). As taxpayers, LAMP is adversely affected because a finding of unconstitutionality equates to a misapplication of public funds. 2) Locus standi: in the claim that PDAF funds have been illegally disbursed and wasted through the enforcement of an invalid or unconstitutional law, LAMP should be allowed to sue as taxpayers. a) <i>Pascual v. Secretary of Public Works</i>: taxpayers have sufficient interest to prevent the illegal expenditure of money that is raised by taxation. 3) The petition involves issues of paramount public interest that concern the <i>alleged</i> unconstitutional spending of public funds, thus warranting the exercise of judicial review.
LEGAL BASES
Lozano v. Nograles, citing Guingona Jr. v. CA: cited to establish the two-fold aspect of ripeness and confirm that judicial review centers on actual injury to the plaintiff. People v. Vera: of greater import than financial damage from illegal spending is the "mortal wound inflicted upon the fundamental law by the enforcement of an invalid statute."

ISSUE 2

W/N the implementation of PDAF by the Members of Congress is unconstitutional and illegal.		NO
PETITIONER'S ARGUMENT/S	RESPONDENT'S ARGUMENT/S	
The omission of direct sum allocations or project selection power for individual lawmakers in the text of Special Provision 1 of the 2004 GAA was an intentional deletion (<i>casus omissus</i>) signifying that Congress and the Executive intended to scrap the "pork barrel" system, rendering it legally defunct. This encroaches upon Executive functions. Under the Constitution, Congress's power of appropriation is a collegial function that does not grant individual members the non-legislative authority to dictate how public money is spent.	Invoking Philconsa v. Enriquez, respondents argued that PDAF/CDF is an imaginative mechanism to fund priority programs. The authority of individual legislators to propose and identify projects is merely recommendatory, which is constitutional because legislators are most knowledgeable about the needs of their local constituents. Emphasizes that Special Provision 1 explicitly mandates releases directly to implementing agencies or LGUs, and not to legislators. LAMP presented no evidence, official documentation, or disbursement records showing that funds were released directly to or spent by lawmakers	
RULING and RATIO DECIDENDI:		
NO. It is not unconstitutional or illegal. 1) Every statute enjoys the presumption of validity. As held in Farinas v. Executive Secretary, "Every presumption should be indulged in favor of the constitutionality and the burden of proof is on the party alleging that there is a clear and unequivocal breach of the Constitution." a) To invalidate a law or its execution, there must be a clear and unequivocal breach of the Constitution proved beyond a reasonable doubt. In case of doubt, legislation must be sustained. 2) No convincing proof was presented by LAMP showing that there were direct releases of funds to the Members of Congress, who actually spend them according to their sole discretion. Even documentation of fund disbursement by the DBM to the Members of Congress was not presented. a) The Court is tied in deference to the presumption of constitutionality lest the Court commits unpardonable judicial legislation. b) Newspaper or electronic reports cannot be appreciated by the court. Facts must be established under the rules of evidence (Lim v. Executive Secretary). Courts cannot annul a statute based on		

speculative allegations of corruption or kickbacks.

- 3) Absent a clear showing that an offense against the principle of separation of powers was committed, the Court is constrained to hold that a lawful and regular gov't budgeting and appropriation process ensued during the enactment and all throughout the implementation of the GAA of 2004. **The four phases of the budgetary process were explained in *Guingona v. Carague*.**
- 4) Under Budget Execution, **DBM sets the disbursement guidelines.** The President merely requests Members of Congress to recommend projects w/c may be funded by PDAF, which are endorsed by the House Speaker to DBM for review to ensure that these are aligned with Executive priorities. **This confirms that spending remains an Executive power.**
- 5) As held in ***Philconsa v. Enriquez***, the proposal of projects by legislators is strictly recommendatory. So long as legislators do not directly participate in the actual spending of the budget, the constitutional boundaries between the Legislative and Executive branches **remain intact.**

LEGAL BASES

Farinas v. Executive Secretary: the legislature is presumed to have enacted a valid, sensible, and just law; the burden of proof is on the party alleging unconstitutionality.

Lim v. Executive Secretary: facts must be established strictly in accordance with the rules of evidence, not through news or electronic reports.

1987 Constitution

1. Art. VI, Sec. 24: all appropriation bills shall originate exclusively from the House of Representatives.
2. Art. VI, Sec. 29(1): no money shall be paid out of the Treasury except in pursuance of an appropriation made by law

Philconsa v. Enriquez: see 4) above.

FINAL DECISION

WHEREFORE, the petition is **DISMISSED** without pronouncement as to costs.
SO ORDERED.

BELGICA v. OCHOA (2013)

Topic Subtopic	"Branches of the Government - Congress" "Legislative Process - Requirements as to certain laws: Appropriation laws	GR No. & Ponente	GR No. 208566, Perlas-Bernabe J.
Petitioner/s	GRECO ANTONIOUS BEDA B. BELGICA, JOSE M. VILLEGAS, JR., JOSE L. GONZALEZ, REUBEN M. ABANTE, and QUINTIN PAREDES SAN DIEGO, petitioners,	Respondent/s	HONORABLE EXECUTIVE SECRETARY PAQUITO N. OCHOA, JR., SECRETARY OF BUDGET AND MANAGEMENT FLORENCIO B. ABAD, NATIONAL TREASURER ROSALIA V. DE LEON, SENATE OF THE PHILIPPINES, represented by FRANKLIN M. DRILON in his capacity as SENATE PRESIDENT, and HOUSE OF REPRESENTATIVES, represented by FELICIANO S. BELMONTE, JR. in his capacity as SPEAKER OF THE HOUSE, respondents.
Doctrine			

FACTS**BACKGROUND FACTS (PORK BARREL SYSTEM)**

- American-English origin, refers to ritual of rolling barrel stuffed with pork to slaves
- In the Philippines, **"Pork Barrel" has now commonly referred to as lump-sum, discretionary funds** of Members of the Legislature or the Executive
- History of Pork Barrel**
 - Pre-martial law era**
 - Public Works Act of 1922** - considered the earliest form of pork barrel in PH, provided sums appropriated for public works distributed and subject to the approval of the joint committee of senate and house
 - In the 1950s, post-enactment legislator participation in public works extended to fund release and project identification (transferring public works discretion from sec of commerce and communication to legislators)
 - Martial law era**
 - Support for Local Development Projects (1982)** - it was under the SLDP that the practice of giving lump-sum allocations to individual legislators began, with each assemblyman receiving P500,000.00. Thereafter assemblymen would communicate their project preferences
 - Post-Martial Law era**
 - Mindanao Development Fund and Visayas Development Fund** - created with lump-sum appropriations of P480 Million and P240 Million, respectively, for the funding of development projects in the Mindanao and Visayas areas. After clamor from Luzon politicians and senators, the Cory administration created the **Countrywide Development Fund (CDF)** in 1990 with an initial funding of 2.3 Billion to cover small local infrastructure and other priority community projects.
 - FVR Administration**
 - CDF expanded to include allocations for the Vice President for the first time. Representatives were allocated P12.5 Million each in CDF funds, Senators, P18 Million each, and the Vice-President, P20 Million.
 - Other forms of "Congressional Pork Barrel" were reportedly fashioned and inserted into the GAA (called **"Congressional Insertions" or "CIs"**) in order to perpetuate the administration's political agenda. Examples include School Building Fund, Public Works Fund, El Nino Fund, Poverty Alleviation Fund.
 - Erap Administration**
 - CDF removed -> replaced by three (3) separate forms of CIs, namely, the "Food Security Program Fund," the "Lingap para sa Mahihirap Program Fund", and the "Rural/Urban Development Infrastructure Program Fund"
 - In 2000, **the Priority Development Assistance Fund (PDAF)** started. requirement of "prior consultation with the respective Representative of the District" before PDAF funds were directly released to the implementing agency
 - GMA Administration**
 - Introduced the **Program Menu** concept for the PDAF, which is essentially a list of general programs and implementing agencies from which a particular PDAF project may be subsequently chosen by the identifying authority.
 - Significantly, it was during GMA admin when **NGOs were allowed formal participation in implementation of gov't projects**, and NGOs were encouraged to participate in appropriations.
 - Present Administration**
 - PDAF gave indiv. Legislators and VP **70 million each**, while **200 million** was given to each senator as well as the VP. **PDAF also now allowed:**
 - LGUs to be listed as implementing agencies
 - For legislators to identify projects **outside of their legislative district** (as long as w consent of the legislator of that district)
 - Any realignment of PDAF funds **must now be approved** by House Committee on Appropriations and Senate Committee on finance.
- While pork barrel = commonly assoc. with legislature, term has now expanded to certain funds of the president -> Malampaya Funds and the Presidential Social Fund.**

- **Malampaya Funds** - special fund issued by then pres. Marcos, to help identify, strengthen, and consolidate gov't efforts to explore, expand, and develop indigenous energy resources
- **Presidential Social Fund** - special fund which the president uses for direct assistance to priority programs and projects not funded under the regular budget (sourced from earnings of PAGCOR)

PAST CONTROVERSIES

- In 1996, the first controversy erupted when Fmr. Marikina City Rep. Romeo Candazo blew the lid on huge sums of gov't money going to legislators in the form of kickbacks, saying they were **standard operation procedure (SOP)** ranging from 19-52% of project costs.
- In 2004, several concerned citizens sought the nullification of PDAF but due to lack of evidence, the petition was dismissed.

PRESENT DAY JANET LIM NAPOLES CONTROVERSY

- NBI began its probe into allegations that gov't has been defrauded **PHP10 billion over the last 10 years** by a syndicate using funds from pork barrel of lawmakers and various gov't agencies for **ghost projects**
 - Investigation was triggered by 6 whistle-blowers who declared that **JLN Corporation (JLN = Janet Lim Napoles)** was swindling billions of PHP for **ghost projects using 20+ dummy NGOs**
 - While NGOs were supposedly the ultimate recipients of PDAF funds, funds were actually diverted to Napoles' private accounts
- After its investigation, criminal complaints in the Ombudsman were filed vs. lawmakers, their chiefs-of-staff or representatives, and heads of agencies and NGOs.
- **On Aug 16, 2013 the Commission on Audit (COA)** released the three-year audit covering the use of legislators' PDAF from 2007-2009 finding that a total of P8.374 Billion in PDAF and P32.664 billion in VILP (Various Infrastructures incl. Local Projects) were made nationwide
- As for the **"Presidential Pork Barrel"**, **whistle-blowers alleged that "[a]t least P900 Million** from royalties in the operation of the Malampaya gas project off Palawan province intended for agrarian reform beneficiaries **has gone into a dummy [NGO]."**

PROCEDURAL FACTS

Spurred in large part by the findings contained in the CoA Report and the Napoles controversy, several petitions were lodged before the Court similarly seeking that the **"Pork Barrel System"** be declared unconstitutional.

- Alcantara petition - prohibition to prevent incumbent legislators from further taking any steps to appropriate funds to the pork barrel system
- **Belgica petition** - an Urgent Petition for Certiorari and Prohibition with Prayer for the Immediate Issuance of Temporary Restraining Order (TRO) seeking that the annual "pork barrel system" (including the PDAF, and the Presidential pork barrel funds for Malampaya and PSF) be declared unconstitutional, null and void, for grave abuse of discretion.
- Nepomuceno petition - seeking that the PDAF be declared unconstitutional, and a cease and desist order be issued restraining President Benigno Simeon S. Aquino III (President Aquino) and Secretary Abad from releasing such funds to Members of Congress

ISSUE 1

Main – Procedural	W/N (a) the issues raised in the consolidated petitions involve an actual and justiciable controversy ; (b) the issues raised in the consolidated petitions are matters of policy not subject to judicial review ; (c) petitioners have legal standing to sue; (d) court's past decisions in Philconsa v. Enriquez and LAMP v. Sec. of Budget and Mgt. bar relitigation of the pork barrel system	YES/NO/UNDECIDED
RULING and RATIO DECIDENDI:		

- (a) the issues raised in the consolidated petitions involve an actual and justiciable controversy? - **YES**
- requirement of **contrariety of legal rights** is clearly satisfied by the antagonistic positions of the parties on the constitutionality of the "Pork Barrel System."
 - **ripe for adjudication** since the challenged funds and the provisions allowing for their utilization (e.g. 2013 GAA) are currently existing and operational, hence there is existing or imminent injury as a result of unconstitutional use of these public funds
 - **Not moot** even with reforms of PDAF undertaken already
 - President Pnoy declaration that he had already "abolished the PDAF" → does not render it moot bcs the **President/Executive has no constitutional authority to legally abolish pdaf** which can only be done by congress
 - Also the said reform is geared for the 2014 budget, the 2013 budget will not be terminated
 - Falls within the exemptions to mootness (grave violation, prima facie pattern of abuse, need for ruling on the system's constitutionality, and that it is capable of repetition)
- (b) the issues raised in the consolidated petitions are matters of policy not subject to judicial review - **NO**
- intrinsic constitutionality of the "Pork Barrel System" is **not an issue dependent upon the wisdom of the political branches** of government but rather **a legal one which the Constitution itself has commanded** the Court to act upon.
 - Falls within expanded judicial review (**Art. 8, Sec 1**)
- (c) petitioners have legal standing to sue - **YES**
- **as taxpayers**, they possess the requisite standing to question the validity of the existing "Pork Barrel System" under which the taxes they pay have been and continue to be utilized.
 - **as citizens**, petitioners have equally fulfilled the standing requirement given that the issues they have raised may be classified as matters "of transcendental importance,
- (d) court's past decisions in Philconsa v. Enriquez and LAMP v. Sec. of Budget and Mgt. bar relitigation of the pork barrel system - **NO**
- **Res judicata does not apply** because the identity of the parties, subject matter, and causes of action are not the same since Philconsa and Lamp
 - Philconsa challenged 1994 CDF; Lamp challenged 2004 PDAF; current case challenges the **entire pork barrel system**
 - Moreover, ruling on LAMP was essentially just a procedural dismissal and did not rule on merits
 - **Stare decisis does not apply** - absent any powerful countervailing considerations, like cases ought to be decided alike.
 - However, the Philconsa resolution was a limited response to a separation of powers problem, On the contrary, the present cases call for a more holistic examination
 - Philconsa ruling was actually riddled with inherent constitutional inconsistencies
 - Philconsa basically allowed individual members to propose and identify projects when this is a power lodged to **congress as a whole**
 - The **Court must partially abandon its previous ruling in Philconsa** insofar as it validated the post-enactment identification authority of Members of Congress (clarified more recent *Abakada v. Purisima* has also overturned *Philconsa*)

ISSUE 2

Main Substantive Congressional Pork Barrel issues	– W/N 2013 PDAF Article and all other Congressional Pork Barrel Laws similar thereto are unconstitutional considering that they violate the principles of/constitutional provisions on (a) separation of powers; (b) non-delegability of legislative power; (c) checks and balances; (d) accountability; (e) political dynasties; and (f) local autonomy.	(a) separation of powers: YES (b) non-delegability of legislative power: YES (c) checks and balances YES (d) Accountability: PARTLY YES (e) political dynasties: NO VERDICT (f) local autonomy: YES
---	--	---

PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
- Petitioners assert pork barrel system is: - Allocated through appropriations to individual officers - Said officer is given sole and broad discretion - Guidelines on spending/using funds are overbroad or nonexistent - Projects are used for political benefit or patronage	the separations of powers principle has not been violated since the President maintains "ultimate authority to control the execution of the GAA" and that he "retains the final discretion to reject" the legislators' proposals.
RULING and RATIO DECIDENDI:	
<u>SEPARATION OF POWERS: YES</u> - there is a violation of the separation of powers principle when one branch of government unduly encroaches on the domain of another either via impermissible interference with and/or assumption of another department's functions Enforcement of national budget is primarily executive branch function - Thus, unless the Constitution provides otherwise, the Executive department should exclusively exercise all roles and prerogatives which go into the implementation of the national budget - Upon approval and passage of the GAA, Congress' law-making role necessarily comes to an end and from there the Executive's role of implementing the national budget begins. - Congress can exercise its oversight function, but any post-enactment congressional measure should be limited to scrutiny and investigation Scrutiny pertaining to Congress' power of appropriation and budget hearing, the power to ask department heads to appear before either of its Houses on any matter pertaining to their departments, and its power of confirmation Investigation is in relation to the power of Congress to conduct inquiries in aid of legislation "[f]rom the moment the law becomes effective, any provision of law that empowers Congress or any of its members to play any role in the implementation or enforcement of the law violates the principle of separation of powers and is thus unconstitutional." (<i>Abakada</i>) Any post-enactment measure allowing legislator participation beyond oversight is bereft of any constitutional basis APPLICATION: - Defining feature of the Congressional Pork Barrel is the power of legislators to participate in post-enactment phases of project implementation - Under the 2013 PDAF Article Legislators can identify PDAF projects as long as the project falls under the general program listed Legislators choose any project under the list provided by implementing agencies and identify PDAF projects outside of their districts as long as the representative of the district concerned concurs in writing - Defines PDAF projects as "projects to be identified by legislators" - Modifications and revisions must be submitted to the House Committee on Appropriations and the Senate Committee on Finance - All requests for the release of funds and its realignment shall be...endorsed by the House Committee on Appropriations and the Senate Committee on Finance - Implementing agencies also require the concurrence of the legislator concerned if they wish for realignment from one project to another - Clearly, these post-enactment measures are not related to functions of congressional oversight and, hence, allow legislators to intervene and/or assume duties that properly belong to the sphere of budget execution → which belongs to Executive	

- It does not stand that these powers are 'recommendatory' because without the individual legislator's participation, the PDAF cannot be utilized.

NON-DELEGABILITY OF LEGISLATIVE POWER: YES

- Legislative power (and the power of the purse) is accorded by Section 1, Article VI of '87 Consti to the Congress as a whole
 - it is clear that only Congress, acting as a bicameral body, and the people, through the process of initiative and referendum, may constitutionally wield legislative power and no other.
 - The only recognized exceptions are a) local governments/ordinances, and b) presidential authority in times of war/emergency,
- Non-delegability of legislative power is not the same as delegate rule-making authority to implementing agencies. **2 kinds of delegated rule-making**
 - **Supplementary:** filling up details of the law for its enforcement
 - **Contingent:** ascertaining facts to bring the law into actual operation
- **APPLICATION:**
 - the 2013 PDAF Article, insofar as it confers post-enactment identification authority to individual legislators, **violates the principle of non-delegability** since said legislators are effectively **allowed to individually exercise the power of appropriation**, which — as settled in *Philconsa* — **is lodged in Congress as a whole**
 - **"No money shall be paid out of the Treasury except in pursuance of an appropriation made by law."** (Sec 29, Art. VI)
 - As ruled in *Bengzon* power of appropriation requires
 - (a) setting apart by law of a certain sum
 - (b) specified purpose
 - Because indiv. Legislators are given discretion to dictate how much funds will go to specific projects under their individual pdaif allocations, it gives them the power to individually legislate appropriations which the constitution does not allow. **Individual legislators cannot pass law → only congress can**

CHECKS AND BALANCES: YES

- One of the constitutionally mandated checks and balance is the **power of the president to veto line-items in the budget** (Sec. 27(2), Article 6)
 - President has the power to veto an item written into an appropriation, revenue, or tariff bill submitted to him by Congress
 - Final step in law-making process is submission of the bill to the President for approval
 - Veto is a legislative act through which the President can defeat the will of the Legislature,
 - Veto is meant to prevent log-rolling legislation, impose fiscal restrictions on the legislature, and fortify the executive branch's role in the budgetary process → prevents the passing of bad laws
- **DOCTRINE OF SINGULAR CORRESPONDENCE** - For the President to exercise his item-veto power, it necessarily follows that **there exists a proper "item" which may be the object of the veto**.
 - to ensure that the President may be able to exercise his power of item veto, **an item of appropriation must be an item characterized by singular correspondence** — meaning an allocation of a specified singular amount for a specified singular purpose, **otherwise known as a "line-item."**
- **APPLICATION:**
 - The P24.79B is a collective allocation limit to be further divided among individual legislators who receive personal lump-sum allocations and appropriate PDAF funds based on their own discretion
 - **Actual PDAF appropriation is not written into the General Appropriations Bill, and is thus effectuated without veto consideration.**
 - President is forced to either accept the entire P24.79B PDAF allocation without knowing the specific projects, or reject the PDAF in its entirety
 - PDAF is also constitutionally flawed because the P24.79B is treated as a funding source for

multiple purposes, meaning there is no discernible item that the President can Veto

- This setup has prevented CoA from obtaining relevant data that would aid in auditing the use of the funds

ACCOUNTABILITY: PARTLY YES

- Public office is a public trust, which connotes accountability
- Post-enactment roles in the implementation of budgets taints the oversight of legislators who would effectively be checking on activities they themselves participate in
- Section 14, Art. VI of the 1987 Constitution prevents legislators from intervening in any matter before any office of the Govt. for his monetary benefit
 - Allowing legislators to intervene in the phases of project implementation makes them susceptible to taking advantage of their own office
- The Court cannot agree that the PDAF allows legislators to perpetuate themselves in office as the use of the PDAF for re-election purposes must be analysed on a case-to-case basis.
- Court cannot agree that the PDAF may affect the process of impeachment as this borders on the domain of politics and not the Pork Barrel System's Constitutionality

POLITICAL DYNASTIES: NO VERDICT

- Political dynasty provision in the constitution is not self-executing due to the qualifying phrase "as may be defined by law", thus without a standing law specifying the policy on political dynasties, the Court cannot rule on the issue

LOCAL AUTONOMY: YES

- Court agrees with petitioners that the Congressional Pork Barrel goes against the principles of local autonomy by allowing district representatives, who are national officers, to substitute their judgements in utilising funds for local developments
- The Philconsa description of the 1994 CDF as an attempt to make equal the unequal is defective
 - Gauge of PDAF/CDF allocation is based on the fact of office → District representatives receive the same allocation regardless of the economic status of their district
 - Senators, Party-lists representatives, and in some years the Vice President, receive funding from the Congressional Pork Barrel despite not representing any district
- The CDF and PDAF conflict with the functions of the Local Development Council (LDC) who assist the sanggunian in setting the direction of economic and social development
 - Policies and programs of the LDC should not be overridden nor duplicated by individual legislators who have no law-making authority except when acting as a body

LEGAL BASES

Section 27 (2), Art. VI of the 1987 Constitution:

The President shall have the power to veto any particular item or items in an appropriation, revenue, or tariff bill, but the veto shall not affect the item or items to which he does not object.

SECTION 14. Art. VI of the 1987 Constitution:

No Senator or Member of the House of Representatives may personally appear as counsel before any court of justice or before the Electoral Tribunals, or quasi-judicial and other administrative bodies. Neither shall he, directly or indirectly, be interested financially in any contract with, or in any franchise or special privilege granted by the Government, or any subdivision, agency, or instrumentality thereof, including any government-owned or controlled corporation, or its subsidiary, during his term of office. **He shall not intervene in any matter before any office of the Government for his pecuniary benefit or where he may be called upon to act on account of his office.**

ISSUE 3

Main	–	W/N Whether or not the phrases	YES
------	---	--------------------------------	-----

Substantive Presidential Pork Barrel issues	(a) "and for such other purposes as may be hereafter directed by the President" under <u>Section 8 of PD 910, 116</u> relating to the Malampaya Funds (b) "to finance the priority infrastructure development projects and to finance the restoration of damaged or destroyed facilities due to calamities, as may be directed and authorized by the Office of the President of the Philippines" under <u>Section 12 of PD 1869, as amended by PD 1993</u>, relating to the Presidential Social Fund, are unconstitutional insofar as they constitute undue delegations of legislative power.	
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
• The assailed sections do not have the primary and specific purpose of authorising the release of public funds from the National Treasury • PD 910's purpose is to create the Energy Development Board and the creation of a Special Fund was only incidental • PD 1869's purpose was to amend the Franchise and Powers of PAGCOR, and the allocation of a Presidential Social Fund was merely incidental • The phrase "and for such other purposes as may be hereafter directed by the President" gives the president unbridled discretion to determine for what purpose the funds will be used for		• Principle of ejusdem generis (of the same kind or class) should be applied to the phrase to only refer to purposes related to energy resource development
RULING and RATIO DECIDENDI:		
<u>On the validity of the appropriation:</u> appropriations are valid • "Appropriation made by law" exists when a provision of a law ◦ sets apart a determinate amount of money ◦ allocates the same for a particular public purpose • If the two are written into law, it reflects legislative intent to appropriate ◦ Constitution does not require a specific form of words for appropriations; the appropriation law may be as detailed or as broad as Congress wants, the only requirement is that it be "made by law" • Section 8 of PD 910 provides ◦ a determinable amount: fees, revenues, and receipts of the Energy Development Board from any and all sources ◦ A specified public purpose: to be used to finance energy resource development and exploitation programs of the government • Section 12 of PD 1869 provides ◦ a determinable amount: after deducting 5% as franchise tax, 50% share of the govt. In the aggregate gross earnings of PAGCOR ◦ A specified public purpose: to finance priority infrastructure development and the restoration of damaged or destroyed facilities due to calamities • Assailed sections of the PDs are not the same as the PDAF as the appropriation made under the 2013 PDAF article was for the post-enactment determinations made by individual legislators ◦ No appropriation made by law because it only authorizes individual legislators to appropriate, thus violating the non-delegability principle <u>On Undue Delegation:</u> YES there is undue delegation		

- If the appropriation law delegates rule-making authority to the executive, there must be adequate legislative guidelines
 - **2 tests** to ensure legislative guidelines for delegated rule-making are adequate
 - **Completeness test:** law is complete when it sets forth the policy to be executed by the delegate
 - **Sufficient standard test:** law must limit the authority of the delegate's authority, announce the legislative policy, and identify the conditions under which the law is to be implemented
- **Section 8 of PD 910** fails the sufficient standard test because it gives the president a wide latitude to use the Malampaya funds for any other purpose he may direct
 - Cannot apply the principle of ejusdem generis (of the same kind or class) because
 - Ejusdem generis only applies when a law lists specific items before adding a general catch-all; the phrase covers a single, broad category rather than a list of specific items. Because of this, it cannot be used to restrict or limit the meaning of the general phrase "for such other purposes."
 - The phrase "energy development" already covers everything related to energy, therefore adding "for such other purposes" could only refer to non-energy related purposes → phrase exhausts the class it represents
 - The executive has already used the Malampaya funds for non-energy related purposes
- **Section 12 of PD 1869** also fails the sufficient standard test
 - Section 12 was amended by PD 1993, so the issue surrounding this section is moot. The court decides to resolve the section's constitutionality anyways because the amendatory provision may be readily examined under the current parameters
 - Law does not provide a definition for "priority infrastructure development projects", hence the President has no guidelines to follow and can use the fund for any project he deems as a priority

LEGAL BASES

- **Sec. 29 (1) Art. VI. of the 1987 Constitution:** No money shall be paid out of the Treasury except in pursuance of an appropriation made by law.

ISSUE 4

Main – Substantive	W/N the Court should grant the following prayers From the petitioners (a) To be furnished lists and detailed reports on the PDAF, VILP, and Malampaya Funds (b) To include all presently, off-budget, lump-sum, discretionary funds in Congressional deliberation From the respondents (c) Lift the TRO which enjoins the release of the remaining PDAF allocated for 2013	NO FOR ALL
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
• <u>Issue (a):</u> They should be furnished a complete list because Sec 28 Art. II and Sec. 7 Art III of the 1987 Constitution highlight the State policy of full public disclosure of all its transactions involving public interest and the right to information on matters of public concern • <u>Issue (c):</u> TRO should not be lifted as the issuance of the Special Allotment Release Order (SARO)		• <u>Issue (c):</u> TRO should be lifted because it only covers the unreleased and unobligated allotments. Once the implementing agency has issued and obligated the SARO, the PDAF funds covered are out of the TRO's reach because they are not considered as "remaining PDAF"

does not involve the release of funds under PDAF	
RULING and RATIO DECIDENDI:	
<u>On the furnishing of lists and detailed reports: NO</u> • The proper remedy to invoke right to information is to file a petition for mandamus ◦ issuance of the writ of mandamus is granted only if the information sought by the petitioner is within the ambit of constitutional guarantee • Right to information does not include the right to compel the preparation of lists • Petitioners failed to establish that they have a clear and well-defined legal right to be furnished by the Executive Secretary and/or the DBM their requested PDAF Use list and Presidential Pork Use report ◦ They also did not assert any law or administrative issuance that shows the Executive Secretary/DBM have the duty of supplying them with the documents they seek • Petitioners cannot argue that the information must be equally released to CoA because CoA is not an impleaded party nor has it filed a petition with the Court to be provided with the information relevant to the conduct of its audit investigations • Even if the information requested is of a matter of public concern, the Court must ensure that the parameters of disclosure are properly followed and that the equally important interests of the State are not unduly hampered • HOWEVER, the Court notes that despite this denial, general public access to official documents already existing and of public record should not be proscribed <u>On including matters in Congressional Deliberations: NO</u> • This is a matter left to the prerogative of the political branches of government, hence the Court must deny their prayer <u>On lifting the TRO: NO</u> • Given the decision of the Court on the unconstitutionality of the 2013 PDAF Article, this issue is actually rendered moot since the release of the remaining PDAF Funds for 2013 is permanently enjoined ◦ But the Court will still rule on it as it has a practical decision on the execution of the current Decision • Funds covered by the Special Allotment Release Order (SARO) are yet to be released under legal contemplation ◦ A SARO is merely an authority issued to identified agencies to incur obligations; agencies can order goods and services but they don't get the actual funds yet ■ Release of funds is still subject to compliance with specific laws and regulations or separate approval by a competent authority ◦ It does not have the immediate effect of placing funds beyond the control of the disbursing authority as it may still be withdrawn • Actual release of funds is brought about by the issuance of the Notice of Cash Allocation (NCA) ◦ Hence, without an NCA, public funds should not be treated as though they have been "released" • Given the unconstitutionality of the 2013 PDAF Article, funds appropriated cannot be disbursed even though they have already been obligated ◦ This must also be applied to the Malampaya funds and funds sourced from the Presidential Social Fund under the phrases that were declared unconstitutional	
FINAL DECISION	WHEREFORE, the petitions are PARTLY GRANTED . In view of the constitutional violations discussed in this Decision, the Court hereby declares as UNCONSTITUTIONAL: • the entire 2013 PDAF Article; • all legal provisions of past and present Congressional Pork Barrel Laws which authorized legislators — whether individually or collectively organized into committees — to intervene, assume or participate in any of the various post-enactment stages of the budget execution,

	• all legal provisions of past and present Congressional Pork Barrel Laws, which conferred personal, lump-sum allocations to legislators from which they are able to fund specific projects which they themselves determine; • all informal practices of similar import and effect, which the Court similarly deems to be acts of grave abuse of discretion • the phrases under the presidential decrees for both failing the sufficient standard test in violation of the principle of non-delegability of legislative power. The Court hereby DENIES petitioners' prayer seeking that the Executive Secretary and/or the Department of Budget and Management be ordered to provide the public and the Commission on Audit complete lists/schedules or detailed reports related to the availments and utilization of the funds subject of these cases. Petitioners' access to official documents already available and of public record which are related to these funds must, however, not be prohibited but merely subjected to the custodian's reasonable regulations or any valid statutory prohibition on the same. The Court also DENIES petitioners' prayer to order the inclusion of the funds subject of these cases in the budgetary deliberations of Congress as the same is a matter left to the prerogative of the political branches of government. Finally, the Court hereby DIRECTS all prosecutorial organs of the government to, within the bounds of reasonable dispatch, investigate and accordingly prosecute all government officials and/or private individuals for possible criminal offenses related to the irregular, improper and/or unlawful disbursement/utilization of all funds under the Pork Barrel System.
--	---

SEPARATE OPINION/S

BRION, J, <i>dissenting/ concurring</i>	Concurs that the PDAF is unconstitutional as it subverts and can fatally strike at our constitutional processes unless immediately stopped, and agrees that the same is true for the phrase "for such other purposes as may be directed by the President" in Section 8 of P.D. No. 910. 1st Dissent: He holds that the first part of Section 8 relating to funds used for "energy resource development and exploitation programs and projects" is likewise unconstitutional, as it is a a discretionary lump sum appropriation whose purpose lacks specificity for the projects or undertakings contemplated, and denies Congress of its constitutional prerogative to participate in laying down national policy on energy matters. • Although the Malampaya Fund was validly created during the Marcos administration, its constitutionality must now be re-evaluated under new constitutional norms ◦ Under the 1987 Constitution, every use of the public fund requires a valid appropriation by Congress. Leaving it to the sole discretion of the President without any legislative participation is no longer constitutional, by virtue of separation of powers and checks and balances. • The Malampaya Fund is an indivisible, accumulating lump sum fund that escapes annual congressional budget review and is intended to support multiple existing and future projects rather than a single energy project ◦ Energy projects are subject to long gestation periods and do not require quick and ready responses like a calamity does. Hence, there is no need for the Malampaya Fund to be held as captive funds. • The constitutional alternative is to subject this fund to regular budgetary processes without removing the "special" nature of the fund and while keeping it exclusive for particular uses • Brion clarifies that not all lump sum appropriations should be disallowed — they just have to be respectful of the constitutional safeguards now in place. Some examples of lump sums are: ◦ Calamity Contingent Funds: Cannot be objectionable despite its size if it is an advance set aside under the regular budget process, reportable at the end of the year if no calamities occur, and subject to annual replenishment if it goes below a certain predetermined level ◦ Intelligence Funds: Can be reasonable unless the size and circumstances of use become scandalously unreasonable
---	--

2nd Dissent: He submits his own reasons for the unconstitutionality of the portion relating to "priority infrastructure projects" under Section 12 of P.D. No. 1869 **as amended**.

- **Original version:** Made allocations to fund specific infrastructure and socio-civic projects within Manila Area (e.g., flood control, sewerage, nutrition, population control, etc.)
- **Amended version:** No longer identifies and specifies the infrastructure and socio-civic projects that can serve as a model for the structures to which the fund shall be devoted. Instead, it now generally refers to "priority infrastructure development projects."
 - **It is now unsupported by any listing or legislative parameters that gave the unamended version a taint of specificity (which saved the original version).**
 - The question of which projects should receive "priority" treatment is also a matter that the legislature itself has not determined and the President alone cannot decide. If the President possesses any prioritization power at all, it is strictly limited to choosing among projects already identified by Congress during a budgetary shortfall.
 - Allowing the President to independently choose which projects to prioritize would make him enjoy the non-delegable legislative power of appropriation denied to him by the 1987 Constitution. **Hence, this part of the law must be struck down.**

3rd Dissent: He believes that the Court should direct Sec. Abad of DBM to show cause **why he should not be held contempt and penalized for defying the TRO** issued by the Court enjoining the release of the remaining 2013 PDAF funds

- Despite the TRO, DBM issued a Circular Letter authorizing implementing agencies to continue with the implementation of PDAF projects and the disbursement of PDAF funds as long as a Special Allotment Order (SARO) has been issued and where the implementing agencies have already obligated the funds.
 - He disagrees with the majority's conclusion that the release of funds covered by obligated SAROs should be forbidden only at the time of this Decision's promulgation. **The permanent injunction must take effect retroactively from the TRO date rather than only upon the promulgation of the final decision.**
 - All public funds released pursuant to the DBM Circular after the TRO date must be returned to the government treasury
- The issuance of the DBM Circular Letter is prima facie an **indirect contempt** for which the DBM Secretary himself should be liable unless he can show why he should not be penalized.

Belgica v. Executive Secretary (2019)

DOCTRINE

Lump-sum appropriations are not unconstitutional *per se*; under the rule on singular correspondence, a lump-sum amount is a valid line-item subject to the President's line-item veto power as long as it serves as a funding source for multiple programs, projects, or activities that are clearly classified as falling under one singular, discernible appropriation purpose.

RECITATION SUMMARY

Following the Supreme Court's 2013 landmark decision in *Belgica v. Ochoa* (which invalidated the PDAF congressional pork barrel system and lump-sum presidential funds lacking sufficient standards), Congress enacted Republic Act No. 10633, the General Appropriations Act (GAA) for Fiscal Year 2014. Petitioner Greco Antonious Beda B. Belgica filed a petition for *certiorari* and *prohibition* challenging the 2014 GAA, contending that all lump-sum appropriations—specifically the Unprogrammed Fund, Contingent Fund, E-Government Fund, and Local Government Support Fund (LGSF)—are unconstitutional *per se* under a literal interpretation of the 2013 *Belgica* "singular correspondence" rule. The Supreme Court dismissed the petition and upheld the constitutionality of all assailed appropriations. The Court held that: (1) the challenge presents an actual justiciable controversy involving taxpayer funds and falls under recognized exceptions to mootness (paramount public interest, need for controlling principles, and capable of repetition yet evading review); (2) lump-sum appropriations are not inherently void so long as the allocation has a discernible singular purpose encompassing the underlying projects; (3) the Unprogrammed Fund has a singular purpose (standby funding for unexpected revenues) with specific projects and amounts detailed in Annex "A"; (4) the Contingent Fund is a valid line-item created to address unforeseen urgent operational needs and travel expenses; (5) the E-Government Fund has a singular cross-agency ICT purpose governed by administrative standards; and (6) the LGSF satisfies both the completeness and sufficient standard tests through statutory limits (capped at ₱405 Million for MOOE) and DBM budget circular guidelines.

MATERIAL FACTS & PROCEDURAL HISTORY

- **Legally Relevant Parties & Relationship:**
 1. *Petitioner:* Greco Antonious Beda B. Belgica (taxpayer challenging the 2014 GAA).
 2. *Public Respondents:* The Executive Secretary, Secretary of Budget and Management (DBM), and the Philippine Congress (represented by the Senate President and Speaker of the House of Representatives).
- **Chronological Material Facts:**
 1. On November 19, 2013, the Supreme Court rendered its Decision in *Belgica v. Ochoa, Jr.* (G.R. No. 208566), declaring unconstitutional the 2013 PDAF Article, past and present Congressional Pork Barrel laws authorizing post-enactment legislator intervention in budget execution, personal lump-sum allocations to legislators, and amorphous lump-sum provisions in P.D. 910 and P.D. 1869.
 2. On December 27, 2013, Congress passed Republic Act No. 10633, known as the General Appropriations Act (GAA) for Fiscal Year 2014.
 3. The 2014 GAA contained special purpose funds and lump-sum allocations, including:
 - *Unprogrammed Fund:* Standby appropriations for projects to be funded if revenue collections exceed targets or foreign loans/grants materialize.
 - *Contingent Fund:* ₱1 Billion allocated to cover new or urgent projects and activities during the year, including official foreign travel.
 - *E-Government Fund:* ₱2.478 Billion allocated for strategic cross-agency information and communication technology (ICT) projects.

- *Local Government Support Fund (LGSF)*: ₱405 Million allocated for financial assistance/MOOE to local government units.
 - 4. On January 13, 2014, petitioner filed the instant petition assailing all lump-sum appropriations in the 2014 GAA as "Presidential Pork Barrel" enacted in violation of the 2013 *Belgica* ruling.
 - **Procedural History:**
 1. Petitioner filed a Petition for *Certiorari* and *Prohibition* under Rule 65 with a prayer for a Status Quo Ante Order before the Supreme Court.
 2. The Supreme Court did not issue a status quo ante order, and respondents filed their Comment through the Office of the Solicitor General (OSG).
-

● PARTIES' MATERIAL ARGUMENTS

- **Petitioner's (Greco Antonious Beda B. Belgica) Claims:**
 1. *Unconstitutionality of Lump-Sums Per Se*: Based on a literal reading of the "singular correspondence" doctrine in the 2013 *Belgica* case, an item of appropriation must be a line-item (singular amount for a singular purpose); thus, all lump-sum discretionary funds are unconstitutional *per se*.
 2. *Unprogrammed Fund*: Lacks an enumerated list of specific purposes in the body of the GAA, avoids regular appropriations procedures, and violates line-item veto.
 3. *Contingent Fund*: Fails as a valid item because Congress failed to identify the specific contingencies to be funded, granting the President unbridled discretion and defeating line-item veto.
 4. *E-Government Fund*: Allocates a lump-sum figure without enumerating specific ICT projects, leaving project selection to executive whim rather than presidential line-item selection.
 5. *Local Government Support Fund (LGSF)*: Grants unfettered discretion to the President to disburse funds to LGUs without legislative guidelines or standards.
 - **Respondents' Claims:**
 1. *Procedural Defects*: Lacks an actual case or controversy as petitioner alleged no COA findings of irregularity; rendered moot by the expiration of FY 2014.
 2. *Substantive Validity*: Lump-sum appropriations are not unconstitutional *per se*. The assailed appropriations comply with singular correspondence because each has a clearly discernible singular purpose:
 - *Unprogrammed Fund*: Specific projects and amounts are detailed in Annex "A" of the 2014 GAA.
 - *Contingent Fund*: Valid line-item (previously upheld in 2013 *Belgica*) designed for unforeseen urgent needs that cannot be itemized two years in advance.
 - *E-Government Fund*: Cross-agency ICT fund governed by administrative standards (CICT Memorandum Order No. 001-2010 / EO 47).
 - *LGSF*: Specific amount (₱405M) and scope (MOOE) fixed by law, guided by DBM Local Budget Circulars No. 104/105.
-

● ISSUES

1. **Whether the petition presents an actual justiciable controversy ripe for adjudication, or whether it should be dismissed for mootness** due to the lapse of Fiscal Year 2014.
2. **Whether lump-sum appropriations are unconstitutional *per se*** under the "singular correspondence" doctrine laid down in the 2013 *Belgica* decision.
3. **Whether the Unprogrammed Fund in the 2014 GAA is unconstitutional** for lacking specific line-item purpose allocations.
4. **Whether the Contingent Fund in the 2014 GAA is unconstitutional** for granting unbridled executive discretion and violating the line-item veto power.

- 5. **Whether the E-Government Fund in the 2014 GAA is unconstitutional** for failing to specify ICT projects in the statute.
 - 6. **Whether the Local Government Support Fund (LGSF) in the 2014 GAA is unconstitutional** for violating the completeness and sufficient standard tests of valid delegation.
-

 HOLDING AND RATIO DECIDENDI

ISSUE 1: Justiciability, Ripeness, and Non-Mootness

HOLDING: YES. The petition presents an **actual justiciable controversy**, and while FY 2014 has lapsed, the case falls squarely under recognized **exceptions to the mootness doctrine**.

RATIO & DETAILED COURT LOGIC:

- 1. *Actual Case and Ripeness*: Challenging the implementation of allegedly unconstitutional lump-sum provisions in a General Appropriations Act involves the potential misapplication of public funds causing hardship to taxpayers, providing sufficient concrete injury and ripeness for judicial review.
 - 2. *Exceptions to Mootness*: Although the 2014 GAA has expired, the Court may resolve moot cases when: (a) paramount public interest is involved; (b) there is a need to formulate controlling principles to guide the branches of government; and (c) the case is capable of repetition yet evading review.
 - 3. *Application*: Budget preparation is an annual constitutional affair. Because subsequent GAAs continue to contain allocations for unprogrammed, contingent, and local support funds, resolving the boundaries of executive authority over lump-sum funds is necessary to prevent recurring constitutional challenges.
-

ISSUE 2: Constitutionality of Lump-Sum Appropriations Per Se

HOLDING: NO. Lump-sum appropriations are **NOT UNCONSTITUTIONAL PER SE**.

RATIO & DETAILED COURT LOGIC:

- 1. *Misinterpretation of 2013 Belgica Precedent*: Petitioner misconstrued the rule on singular correspondence. In *Belgica v. Ochoa*, the Court defined a valid line-item as an allocation of a specified singular amount for a specified singular purpose.
 - 2. *Test of Singular Correspondence for Lump-Sums*: A lump-sum allocation is constitutional as long as the lump-sum amount is designated as a funding source for multiple programs, projects, or activities that can all be **clearly classified as falling under one singular, discernible appropriation purpose**.
 - 3. *Preservation of Line-Item Veto*: When underlying projects fall under a single overarching purpose, the lump-sum functions as a valid "line-item," enabling the President to discernibly exercise his line-item veto power under Article VI, Section 27(2) of the Constitution.
 - 4. *Distinction from 2013 PDAF*: The 2013 PDAF was unconstitutional because a ₱24.79 Billion lump-sum was made a funding source for multiple *unrelated* purposes (roads, medical missions, scholarships) under a vague term, leaving no discernible item for presidential veto and granting individual legislators post-enactment discretion.
-

ISSUE 3: Validity of the Unprogrammed Fund

HOLDING: CONSTITUTIONAL. The Unprogrammed Fund complies with the rule on singular correspondence.

RATIO & DETAILED COURT LOGIC:

1. *Presence of Annex "A"*: Petitioner failed to consider that the 2014 GAA contains **Annex "A"**, which explicitly specifies the exact amounts and public purposes for which the Unprogrammed Fund may be released.
 2. *Singular Purpose*: The Unprogrammed Fund has a clearly discernible singular purpose: providing a standby appropriation to be sourced from unexpected or windfall revenues (or foreign loan releases) to fund the specific programs and projects identified in Annex "A".
-

ISSUE 4: Validity of the Contingent Fund

HOLDING: CONSTITUTIONAL. The Contingent Fund is a valid line-item appropriation.

RATIO & DETAILED COURT LOGIC:

1. *Singular Purpose of Meeting Contingencies*: The singular purpose of the Contingent Fund is to meet the funding requirements of new or urgent projects and official travel expenses that need implementation during the fiscal year but were unforeseen during budget authorization.
 2. *Necessity of Lump-Sum Structure*: Requiring Congress to specify and itemize exact contingencies almost two years before they occur would pervert the purpose of a contingent fund and cripple executive administration.
 3. *Stare Decisis*: The 2013 *Belgica* Decision expressly cited the Contingent Fund (alongside the Calamity and Intelligence Funds) as a model of a valid line-item appropriation subject to item veto.
-

ISSUE 5: Validity of the E-Government Fund

HOLDING: CONSTITUTIONAL. The E-Government Fund has a sufficiently specific cross-agency purpose.

RATIO & DETAILED COURT LOGIC:

1. *Program Budgeting Purpose*: The specific purpose constituting the item of appropriation is the funding of the cross-agency E-Government Program, which subsumes strategic ICT projects across government departments.
 2. *Valid Rule-Making Guidelines*: Administrative guidelines predating the 2014 GAA (e.g., CICT Memorandum Order No. 001-2010 / EO 47) provide clear standards for project selection, representing a valid exercise of subordinate administrative rule-making that does not infringe on the President's veto power.
-

ISSUE 6: Validity of the Local Government Support Fund (LGSF)

HOLDING: CONSTITUTIONAL. The LGSF satisfies both the **completeness test** and the **sufficient standard test**.

RATIO & DETAILED COURT LOGIC:

1. *Completeness Test*: The 2014 GAA sets forth the clear legislative policy to be executed: "genuine local development and the assistance of LGUs".
 2. *Sufficient Standard Test*: The Executive is not given unfettered discretion. The 2014 GAA sets sufficient statutory boundaries by: (a) fixing the total fund cap at exactly ₱405 Million; (b) restricting expenditures strictly to Maintenance and Other Operating Expenses (MOOE); and (c) requiring disbursement in accordance with DBM guidelines (DBM Local Budget Circular Nos. 104/105).
 3. *Singular Correspondence*: The LGSF possesses a single, discernible purpose of providing financial support for LGU local development initiatives.
-

 DECISION & DISPOSITION:

The Supreme Court **DISMISSED** the Petition for *Certiorari* and *Prohibition* for lack of merit, declaring all specifically assailed appropriations in Republic Act No. 10633 (the 2014 GAA)—the Unprogrammed Fund, Contingent Fund, E-Government Fund, and Local Government Support Fund—**VALID AND CONSTITUTIONAL**.

BELGICA v. EXECUTIVE SECRETARY (2019)

Topic Subtopic	"Branches of the Government - Congress" Legislative Process - Requirements as to certain laws: Appropriation laws	GR No. & Ponente	[G.R. No. 210503] <i>Per Curiam</i>
Petitioner/s	GRECO ANTONIOUS BEDA B. BELGICA, petitioner,	Respondent/s	THE HONORABLE EXECUTIVE SECRETARY, THE HONORABLE SECRETARY OF BUDGET, AND THE PHILIPPINE CONGRESS, AS REPRESENTED BY THE HONORABLE SENATE PRESIDENT AND THE HONORABLE SPEAKER OF THE HOUSE OF REPRESENTATIVES, respondents.
Doctrine	Lump-sum appropriation funds are not unconstitutional per se as long as the lump-sum amount serves as a funding source for multiple programs, projects, or activities that are all clearly classified under one singular, discernible appropriation purpose that can enable the president to exercise his veto power.		

FACTS

ASSAILED: Petition for certiorari and prohib assailing the constitutionality of the **lump-sum discretionary funds** in the **2014 General Appropriations Act (GAA)**

Context:

- **Nov 19, 2013** - Court rendered its decision in *Belgica v. Ochoa, Jr. (2013)* declaring certain provisions of the **2013 GAA unconstitutional – in effect abolishing the 'pork barrel system'**
 - Specifically declared unconsti was the entire 2013 Priority Development Assistance Fund (PDAF) all past and present Congressional Pork Barrel Laws such as Countrywide Development Fund (CDF) and various Congressional Insertions
 - Unconstitutional for impinging on the executive branch in implementing nat'l budget
- **December 27, 2013 - RA 10633 or the 2014 General Appropriations Act (GAA)** was subsequently passed.
 - Petitioner **Greco Belgica** filed instant petition seeking to declare all lump-sum appropriations in the 2014 GAA unconstitutional.
 - Including among others the Unprogrammed Fund, the Contingent Fund, the E-Government Fund, and the Local Government Support Fund (LGSF)
 - Petitioner **asserts that the lump-sum discretionary funds in the 2014 GAA were passed in violation of the Constitution**, since these funds are of the **same character as the pork barrel funds** which were declared unconstitutional in the 2013 Belgica case, and should thus be prohibited.
 - Petitioner sought the issuance of a status quo ante order to prevent the use and disbursement of the specifically assailed lump-sum funds pending resolution of this Petition.

ISSUE 1

Side – Procedural	W/N the petition presents an actual case or controversy ripe for adjudication?	YES
RESPONDENT/S ARGUMENTS:		
• Unlike the 2013 Belgica case, which had been prompted by the "findings of irregularities by the Commission on Audit over the use of PDAF, no such findings have been alleged by petitioners		
RULING and RATIO DECIDENDI:		
Actual Case or Controversy - YES, • Petitioner questions the implementation of what he characterizes as unconstitutional provisions of the 2014 GAA. • Such a challenge has been deemed by the Court as sufficient to afford ripeness to a controversy, involving as it does the possible misapplication of public funds which cause "injury or hardship to taxpayers." Mootness - FALLS UNDER EXEMPTIONS • The Petition assails what it considers lump-sum discretionary funds in the 2014 GAA. In view of the lapse of the said year FY 2014 and the enactment of GAAs for subsequent years, this may raise questions on mootness. • however, the Court may resolve cases otherwise moot and academic, when: ◦ (1) there is a grave violation of the Constitution; ◦ (2) <u>the exceptional character of the situation and the paramount public interest is involved;</u> ■ <i>Undoubtedly, this case involves paramount public interest as it deals with the constitutionality of appropriations of public funds.</i>		

○ <u>(3) when constitutional issue raised requires formulation of controlling principles to guide the bench, the bar, and the public; and</u> ■ the case involves issues concerning significant constitutional principles such as separation of powers, valid delegation, and appropriation and requires formulation of controlling principles. ■ While the 2013 Belgica case drew a conceptual distinction between the two kinds of lump-sum discretionary funds, (i.e., the "Congressional Pork Barrel" 14 and the "Presidential Pork Barrel"), the term only referred to the Malampaya Fund and the Presidential Social Fund. ○ <u>(4) the case is capable of repetition yet evading review.</u> ■ the preparation and passage of the national budget is, by constitutional imprimatur, an affair of annual occurrence. ● The Petition falls <u>under the last three exceptions.</u>
--

LEGAL BASES

Section 1, Article VIII of the Constitution, which includes within the sphere of judicial power "the duty x x x to settle actual controversies involving rights which are legally demandable and enforceable, and to determine whether or not there has been a grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the Government."

ISSUE 2

Main – Substantive	W/N all lump-sum appropriations are unconstitutional <i>per se</i> for violating the doctrine on <u>singular occurrence as established by Belgica v. Ochoa (2013)</u>	NO
PETITIONER/S ARGUMENTS:		
● Petitioner cites the 2013 Belgica Case for ruling on the wholesale unconstitutionality of lump-sum appropriations		
RULING and RATIO DECIDENDI:		
<u>NO. Not all lump-sum appropriations are unconstitutional per se</u> ● <u>The Rule of Singular Correspondence:</u> ■ <u>(Belgica v. Ochoa rule)</u> - "an item of appropriation must be an item characterized by singular correspondence — meaning an allocation of a specified singular amount for a specified singular purpose, otherwise known as a "line-item." (this is necessary so the President can properly exercise his power of veto) ● "Likewise, it must be observed that an appropriation may be validly apportioned into component percentages or values; however, it is crucial that each percentage or value must be allocated for its own corresponding purpose for such component to be considered as a proper line-item." ■ TL;DR - both the <u>actual amount</u> to be expended and the <u>actual purpose</u> of the appropriation must be present for it to be considered a valid line-item approp.		
● <u>Prohibited vs Allowed Lump-Sum Appropriation:</u> ○ <u>Prohibited Lump-sum Appropriations</u> - do not indicate a specific appropriation or purpose for the money, hence there is no proper line item the president may veto; pres can only veto it as a whole or not at all – generally unconstitutional ○ <u>Allowed Lump-sum Appropriations</u> - a lump-sum amount may still be considered as a valid item subject to the President's item veto power for as long as: ■ the lump-sum amount is meant as a funding source for multiple programs, projects, or activities that may all be clearly classified as falling under one singular appropriation purpose. ● <u>E.g. Calamity Fund, the Contingent Fund, and the Intelligence Fund</u> ■ This singular purpose may be as general or specific as the legislative department deems it to be, provided that such generality or specificity does not negate the President's proper exercise of his item veto power. ● i.e. it cannot be multiple unrelated purposes (like scholarships and construction) or vague and amorphous (like the "priority development assistance" fund)		

ISSUE 3

Side – Substantive	W/N the <u>Unprogrammed Funds</u> in the 2014 GAA are constitutional?	YES
PETITIONER/S ARGUMENTS:		

Unprogrammed Fund is unconstitutional because it merely provides for a lump-sum figure without any enumerated purposes; further, the Unprogrammed Fund has been noted as susceptible to abuse
RULING and RATIO DECIDENDI:
YES, Constitutional - Unprogrammed Fund serves as a standby appropriation to be sourced exclusively from unexpected or windfall revenues (or foreign loan releases) to finance specified public programs and projects - Contrary to Petitioner's claim, the appropriation for the Unprogrammed Fund under the 2014 GAA, similar to those in previous GAAs, sufficiently identifies the public purposes for which the funds may be used, <u>Annex "A" of the 2014 GAA provides the specific purposes for which the Unprogrammed Fund may be used</u> including: (1) Budgetary Support to Government-Owned and/or Controlled Corporations; (2) Support to Foreign-Assisted Projects; (3) General Fund Adjustments; (4) Support for Infrastructure Projects and Social Programs; (5) AFP Modernization Program; (6) Debt Management Program; (7) Risk Management Program; (8) Disaster Relief and Mitigation Fund; (9) Reconstruction and Rehabilitation Program; (10) Total Administrative Disability Pension; and (11) People's Survival Fund. Such identified purposes serve to constrain executive discretion.

ISSUE 4

Side – Substantive	W/N the <u>Contingent Funds</u> in the 2014 GAA are constitutional?	YES
PETITIONER/S ARGUMENTS:		
Petitioner claims that it fails as an item of appropriation because Congress failed to identify the kinds of contingencies for which the fund may be used.		
RULING and RATIO DECIDENDI:		
YES, Constitutional - The purpose of the Contingent Fund is precisely to cover the funding requirements of new or urgent projects that need to be implemented during the year. These new or urgent projects and the level of expenses that will be incurred during the year are necessarily unknown at the time the budget is prepared the year prior. Specifying amounts for contingencies in advance, besides being impossible to predict, defeats the very purpose of having 'contingency' fund in the first place and deprives Congress the ability to address contingencies. - As such even though it is for different projects in the future and is sometimes unknown, <u>there is still a clearly specified singular purpose encompassing these seemingly unrelated purposes which is the purpose of meeting contingencies.</u> MOREOVER, the Contingent Fund was already enumerated as one of the allowed lump-sum appropriations under the 2013 Belgica v. Ochoa case.		

ISSUE 5

Side – Substantive	W/N the <u>E-Government Funds</u> in the 2014 GAA are constitutional?	YES
PETITIONER/S ARGUMENTS:		
Petitioner claims that instead of enumerating the strategic information and communication technology projects that would be financed, the 2014 GAA simply identifies a lump-sum amount to be allocated again (under the E-Gov't Fund) depending on the whims of the executing authority.		
RULING and RATIO DECIDENDI:		
YES, Constitutional - From its inception, the E-Government Fund has been intended as alternative funding for cross-agency information and communication technology projects including: (i) on-going E-Government funded projects; - and (ii) strategic information and communication technology projects (across diff areas) Its nature as a cross-agency fund requires that the Fund is kept lump-sum, subject to the determination by the administrative agencies of which are ongoing strategic information and communication technology projects in the priority sectors identified by the Legislature in the budget.		

- the E-Government Fund has a clearly specified singular purpose — funding the E-Government Program consisting of strategic ICT programs of various agencies of government.

ISSUE 6

Side – Substantive	W/N the <u>Local Government Support Fund</u> in the 2014 GAA is constitutional?	YES
PETITIONER/S ARGUMENTS:		
• LGSF is a purely discretionary fund given to the President to be disbursed to LGUs without any legislative guidelines in place + unfettered discretion granted to President in disbursing in favor of LGUs		
RULING and RATIO DECIDENDI:		
YES, Constitutional • In order to examine the LGSF's constitutionality, the court must examine it vis-a-vis the completeness test and sufficient standard test of delegating rule making authority (since its a presidential lump sum fund) ◦ "completeness test." A law is complete when it sets forth therein the policy to be executed, carried out, or implemented by the delegate. ■ LGSF satisfies the completeness test. It is clear from the 2014 GAA that the policy consideration for the institution of the LGSF is "genuine local development and the assistance of LGUs." ◦ the "sufficient standard test." To be sufficient, the standard must specify the limits of the delegate's authority, announce the legislative policy, and identify the conditions under which it is to be implemented. • The Court notes that the amount allotted for the LGSF is specifically identified, • LGSF identifies not only the specific purpose for which the same may be expended, but effectively limits, through applicable DBM guidelines, the projects for which the said fund may be utilized.		
FINAL DECISION	WHEREFORE, the Petition is DISMISSED for lack of merit.	

Araullo v Aquino III (2014)

Topic Subtopic	Legislative Process Requirements as to Certain Laws Appropriation Laws	GR No. & Ponente	
Petitioner/s	Collected Petitions	Respondent/s	Benigno Aquino III, President of the Republic of the Philippines
Doctrine			

FACTS

Sen. Jinggoy Estrada delivers a privilege speech revealing that some Senators had been allotted an additional P 50 million as “incentive” for voting in favor of impeaching Chief Justice Corona.

In response, Secretary Abad of the DBM issued a statement explaining that the funds had been part of the **DAP (Disbursement Acceleration Program)**, which was designed by the DBM to ramp up government spending to accelerate economic expansion. The funds under DAP were usually taken from **unprogrammed funds** and **savings** derived from:

- 1) Pooling of unreleased appropriations, like unreleased Personnel Services appropriations that would lapse at the end of the year, those from slow-moving projects, and discontinued projects
- 2) Withdrawal of unobligated allotments also for slow-moving programs and projects that had been earlier released to the agencies of the National Government.

In context: people at the time were still angry over Congressional pork barrel, w/c appropriated government spending for local projects. The revelation of Sen. Estrada and the reactions of Sec. Abad and the DBM brought the DAP to the consciousness of the Nation for the first time, and made this present controversy inevitable.

9 petitions assailing the constitutionality of DAP and issuances related to it were filed within days of each other

Background information (no need to read this out loud in recit, but might come up in follow up q's)

Phases of the Philippine Budget System:

Preparation -> Legislation -> Execution -> Accountability (PLEA)

1) Budget Preparation

- Begins with a **Budget Call**, after which departments and agencies submit their respective budget proposals to DBM
- DBM reviews them, approves, and consolidates the recommended agency budgets into the **National Expenditure Program**
- This is then submitted to the President and the Cabinet for refinements of re-prioritization
- Once submitted, it is prepared for submission to Congress

2) Budget Legislation

- Prerogative of Congress
- Enactment of the General Appropriations Bill
- Series of budget hearings/debate conducted
- Appropriations are approved by the legislative body in the form of the General Appropriations Act (GAA) which covers most of the expenditure in the government
- The GAA is forwarded to the President to sign it into law

3) Budget Execution

- Primarily the function of DBM
- Implementation of the GAA directed by the guidelines issued by DBM (prerogative of the Executive branch)
- DBM prepares an **Allotment Release Program (ARP)**
 - **Allotments:** authorization issued by the DBM to the Agency which allows it to incur obligations on behalf of the government to implement **programs, activities, or projects (PAPs)**
 - To settle the obligations incurred by the agencies, DBM issues a **disbursement authority** so that cash may be allocated in payment of the obligations

4) Accountability

- Allows DBM to assess performance of agencies during the fiscal year for the purpose of implementing reforms and

establishing new policies

ISSUE 1

Side – Procedural	(1) W/N certiorari, prohibition, and mandamus are proper remedies to assail the constitutionality and validity of DAP, National Budget Circular (NBC) No. 541, and all other executive issuances allegedly implementing the DAP? (a) Ripeness (b) Standing of petitioners	YES
RESPONDENT/S ARGUMENTS:		
Petitioners lack actual controversy ripe for adjudication in the absence of adverse claims between the parties; they also lack standing b/c no allegations were made that they had suffered any injury as a result of the adoption of DAP and issuance of NBC 541.		
RULING and RATIO DECIDENDI:		
Power of judicial review allows the Court to investigate when there are allegations of grave abuse of discretion amounting to lack or excess of jurisdiction. All the requisites for judicial review were met. • <i>Actual case or controversy</i> - contrariety of rights exist as a result of DAP's allocation and disbursement of public funds • <i>Legal standing / locus standi</i> - direct injury test satisfied as petitioners have citizen and taxpayer standing. But nonetheless, it can be relaxed in transcendently important cases It also met all of the exceptions for mootness, which the respondents raised as an argument b/c of the termination of DAP as a program. • Sec. Abad manifested in 2014 that DAP as a program has been discontinued • Court cannot agree that DAP termination is a supervening event → even so, it still falls under the 4 exceptions of mootness Petitions for certiorari and prohibition are appropriate remedies to raise constitutional issues and review and/or prohibit or nullify acts of legislative and executive officials.		

ISSUE 2

Main – Substantive	W/N DAP violates Sec 29, Art VI of the Constitution which provides "No money shall be paid out of the Treasury except in pursuance of an appropriation made by law."	NO
RULING and RATIO DECIDENDI:		
<u>NATURE OF THE DAP AS A FISCAL PLAN:</u> A. A program designed to promote economic growth - The Aquino administration focused on efficiency and transparency which improved the gross domestic product of the country but slowed down project implementation and payment schedules - The World Bank observed that the Philippines' economic growth could be reduced, and potential growth could be weakened should the gov't continue underspending and failing to address large deficiencies in infrastructure - DAP as a stimulus package was intended to fast track public spending and push economic growth by investing on high-impact PAPs to be funded by "savings" generated during the year and unprogrammed funds - Did it work? - Partially. Showed GDP growth and increase in infrastructure spending.		

B. History of implementation and sources of funds under the DAP

- **National Budget Circular No. 541** was ordered to implement an earlier memorandum requesting authority to pool savings/unutilized balances from completed and discontinued projects which may be pooled to fund additional projects and expenditures
- Specified that **unobligated allotments of all agencies and departments** were charged against the continuing appropriations for fiscal year 2011 and the 2012 GAA, but these allotments could be either:
 - 1) Reissued for the original PAPs of the concerned agencies from which they were withdrawn
 - 2) **Realigned** to cover additional funding for other existing PAPs of the concerned agencies
 - 3) Used to **augment** existing PAPs of any agency and to fund priority PAPs not considered in the 2012 budget but expected to be started or implemented in 2012

DAP was not an appropriation measure; hence, no appropriation law was required to adopt it. (Not contrary to Sec 29, Art VI of the Constitution).

DAP was a program or system of prioritized spending– the adoption of the DAP was by virtue of the authority of the Chief Executive to ensure that laws were faithfully enacted. In the context of its adoption and implementation being a **function pertaining to the Executive as a main actor during the Budget Execution Stage**, Congress did not need to legislate to adopt or implement the DAP.

Gonzalez v. Raquiza:

In a strict sense, appropriation has been defined as 'nothing more than the legislative authorization prescribed by Consti that money may be paid out of the Treasury' while appropriation by law refers to 'the act of legislature setting apart or assigning to a particular use a certain sum to be used in the payment of debt or dues from the state to its creditors'

The President has sufficient discretion in the execution of the budget to adapt the budget to changes in the country's economic situation and adopt a plan like the DAP for the purpose. He was allowed to pool the savings and identify PAPs to be funded under the DAP. There was no appropriation involved in the strict sense because the money had already been set apart from the public treasury by Congress through the GAAs. Hence, there was no usurpation of the powers vested in Congress under Sec 29 (1), Art VI of the Constitution.

LEGAL BASES

Gonzalez v. Raquiza:

In a strict sense, appropriation has been defined as 'nothing more than the legislative authorization prescribed by Consti that money may be paid out of the Treasury' while appropriation by law refers to 'the act of legislature setting apart or assigning to a particular use a certain sum to be used in the payment of debt or dues from the state to its creditors'

ISSUE 3

Main Substantive –	W/N the DAP, NBC No. 541, and all other issuances allegedly implementing the DAP violate Sec 25 (5), Art VI of the Consti insofar as: a) They treat the unreleased appropriations and unobligated allotments withdrawn from gov't agencies as "savings" as the term is used in Sec 35 (5), in relation to the provisions of the GAAs of 2011, 2012, and 2013 b) They authorize the disbursement of funds for projects or programs not provided in the GAAs for the Executive Department; and c) They "augment" discretionary lump sum appropriations in the GAAs	NO
--------------------	---	----

RULING and RATIO DECIDENDI:

- A. Although **executive discretion and flexibility are necessary** in the execution of the budget, any transfer of appropriated funds **should conform to Sec 25 (5), Art VI of the Constitution**
- assumed that gov't agencies enjoy more flexibility when the GAAs provide broader appropriation items
 - the President's authority to transfer funds from one item to another within the Executive emanates from the law itself and has been subject to differing limits from the time of the American Governors-General to

the present

- in *Demetria v. Alba*, the Court struck down a provision of Sec. 44, PD No. 1177 for allowing indiscriminate transfer of funds between departments without regard as to w/n the funds transferred are actually savings from the item from w/c it is to be taken

B. Valid transfer of appropriated funds under Sec 25 (5), Art VI has requisites:

- 1) Law authorizing the President, Senate President, Speaker of HoR, CJ of SC, and heads of Consti. Commissions to transfer funds within their respective offices;
- 2) Funds to be transferred are saving generated from appropriations for their respective offices; and
- 3) Purpose of the transfer is to augment an item in the general appropriations law for their respective offices

1) The first requisite is missing:

- GAAs of 2011, 2012 did not have valid provisions to authorize fund transfers under DAP; hence, the transfers under DAP were unconstitutional
- 2011 and 2012 GAA provisions authorizing the transfer of funds allowed them to augment **any item in the appropriations act**, which contravenes the Constitutional provision that only allows them to transfer funds **within their respective offices**

2) On the second requisite: There were no savings from which funds could be sourced for DAP

- - savings should be actual– real or substantial, or something that presently exists
- - the power to augment should be used only when the purpose for which the funds had been allocated were already satisfied or when the need for such funds had ceased to exist (plain meaning: unless tapos na yung project, activity or program, wala pa talagang savings kasi di pa tapos yung pag-gamit ng allocated funds)
- - **as applied in the case: (1) unreleased appropriations of slow moving projects and discontinued projects, and (2) unobligated allotments $\neq$ actual “savings” within the context of Sec 25 (5)**
- - funds for slow-moving projects could not be considered savings because the PAPs have not actually been abandoned or discontinued yet
- - also not “impoundment” of funds, w/c refers to the Presiden’t refusal to spend funds made available by Congress → not present here b/c DAP involves the transfer of funds to other PAPs, not suspending or stopping expenditures

3) The third requisite for a valid transfer of funds is that the transfer should be to “augment (enlarge or increase) an item in the general appropriations law for the respective offices”

- on examination, the “savings” pooled under the DAP were allocated to PAPs that **were not covered by any appropriations in the pertinent GAAs**
- **additionally, cross-border augmentations from savings were prohibited by the Constitution**
- transfer of funds between departments is prohibited b/c Sec 25 (5) states that savings can only come from funds from **within the respective office**
- DAP funds were taken from savings from Executive office and transferred to HoR and CoA by their request
- DBM Counsel tried to argue that it wasn’t augmentation, but **aid** based on the **residual powers** from *Marcos v. Manglapus*, but it isn’t accepted by the Court

C. Sourcing the DAP from unprogrammed funds despite the original revenue targets not being exceeded was invalid

- The condition for release of unprogrammed funds was that the revenue collections must meet revenue targets, as provided in the 2011 and 2012 GAAs. They may only be used when there is a certification from the National Treasurer to the same effect.
- Here, no such clear certification was issued by the Bureau of Treasury
- Although respondents obtained certification that dividends from shares of stocks held by the gov’t in government owned and controlled corporations that identified them as a source of revenue, the Court held that this was only from a single revenue source, and not revenue collections as a whole .

LEGAL BASES

Gonzalez v. Raquiza:

In a strict sense, **appropriation has been defined as ‘nothing more than the legislative authorization prescribed by Consti that money may**

be paid out of the Treasury' while appropriation by law refers to 'the act of legislature setting apart or assigning to a particular use a certain sum to be used in the payment of debt or dues from the state to its creditors'

ISSUE 4

Main – Substantive	W/N the DAP violates: (1) the Equal Protection Clause, (2) the system of checks and balances, and (3) the principle of public accountability enshrined in the 1987 Consti considering that it authorizes the release of funds upon request of legislators.	1. NO 2. YES 3. NO
PETITIONER/S ARGUMENTS:		
Some legislators were able to receive funds from the DAP, while others were unaware of the availability. This was thought to be undue favoritism in favor of select legislators.		
No reasonable classification was used to distribute funds under the DAP.		
RULING and RATIO DECIDENDI:		
1) The claims that some legislators were unaware of the existence and implementation of DAP and refusing to accept such funds on that basis was unsupported by relevant data. - This claim should also only be raised by affected parties (legislators who had not claimed the funds), which was not met. 2) Already discussed above, infringes on the separation of powers. 3) DAP and the implementing issuances were policies and acts that the Executive could properly adopt and do in the execution of GAAs to the extent that they sought to implement strategies to ramp up or accelerate the economy of the country.		
LEGAL BASES		

ISSUE 5

Main – Substantive	W/N the doctrine of operative fact applies?	YES
RULING and RATIO DECIDENDI:		
Although certain parts of the DAP, NBC No. 541 and other executive issuances have been declared unconstitutional, actions have been done under the presumption of constitutionality that have consequences that cannot be erased or ignored.		
Doctrine of operative fact nullifies the void law or executive act but sustains its effects.		

FINAL DECISION	WHEREFORE, the Court PARTIALLY GRANTS the petitions for certiorari and prohibition and DECLARES the ff acts and practices UNCONSTITUTIONAL for being in violation of 25 (5), Art VI of the Consti and the doctrine of separation of powers: (a) Withdrawal of unobligated allotments from the implementing agencies, and the declaration of the withdrawn unobligated allotments and unreleased appropriations as savings prior to the end of the fiscal year and without complying with the statutory def'n of savings in the GAAs (b) Cross-border transfers of the savings of the Executive to augment the appropriations of other offices outside the Executive; and
-----------------------	---

(c) Funding of PAPs that were not covered by any appropriation in the GAA

Further declares void the use of unprogrammed funds without certification by the National Treasurer that the revenue collections exceeded the revenue targets for non-compliance with the conditions provided in the relevant GAAs.

SEPARATE OPINION/S

CARPIO, J,
*separate
opinion*

I. Presidential Power to Augment or Realign

- Sec 25(5), Article VI of the 1987 Constitution generally prohibits any transfer of appropriations.
 - exception: specified department heads (President, Senate President, House Speaker, Chief Justice, and heads of Constitutional Commissions) are granted authority to augment items in the GAA.
- **Twin Requisites for Valid Augmentation (Sanchez v. COA, Nazareth v. Villar):**
 1. There must be actual savings in the programmed appropriation of the transferring agency.
 2. There must be an existing item, project, or activity with an appropriation in the receiving agency to which savings are transferred.
- Realignment is restricted strictly to items within the respective offices of the same branch or constitutional body. The President cannot use this power to fund entirely new items or transfer funds to another branch.

II. Definition and Sources of Savings

- **Savings** - unencumbered balances of programmed appropriations. May come from:
 - Excess funds after project completion.
 - Funds from finally discontinued or abandoned projects.
 - Unused compensation from vacant positions and savings from efficiency measures.
- Section 38, Book VI of the Administrative Code permits the President to suspend expenditures temporarily, but suspended funds remain obligated and **do not constitute savings**; only final discontinuance or abandonment generates valid savings.

III. The DAP, NBC 541 and Other Executive Issuances Related to DAP

A. Unobligated Allotments Are Not Savings

- Unspent funds do not automatically become savings just because an agency has low obligations.
- Capital Outlays may remain available for obligation for up to two years.
- MOOE for future months cannot yet be considered savings.
- Unused MOOE from past months may qualify as savings, subject to GAA conditions and exceptions.

B. Unlawful Release of Unprogrammed Funds:

- The Unprogrammed Fund could be released only if government revenue collections exceeded the original revenue targets.
- The government failed to establish that this condition had been met.
- Dividends and proceeds from asset sales are revenues, not savings from programmed appropriations.

C. Prohibition on Cross-Border Transfers

- The President cannot transfer Executive appropriations to the Legislature or constitutional commissions.
 - Transferring Executive funds to the House of Representatives, Commission on Audit, COMELEC, or to augment legislators' PDAF violates Section 25(5).

	- Requests from recipient agencies do not validate cross-border transfers, which undermine fiscal independence and foster political patronage. IV. No Presidential Power of Impoundment - Once a GAA is enacted, the President is bound to faithfully execute it. The President may temporarily suspend expenditures for legitimate administrative reasons (e.g., project anomalies), but permanent cancellation or impoundment of unobligated funds is prohibited. V. The Applicability of the Doctrine of Operative Fact - The doctrine of operative fact applies strictly in equity to protect innocent third parties (e.g., private contractors who constructed public infrastructure in good faith) - cannot be invoked by public officials who acted in bad faith or gross negligence, nor can it validate unconstitutional augmentations of legislators' PDAF allocations. ACCORDINGLY, I vote to declare the following acts and practices under the Disbursement Acceleration Program and the National Budget Circular No. 541 dated 18 July 2012 UNCONSTITUTIONAL for violating Section 25 (5), Article VI of the Constitution: - Transfers of appropriations from the Executive to the Legislature; the Commission on Elections and the Commission on Audit; - Disbursements of unobligated allotments for MOOE as savings and their realignment to other items in the GAAs, where the MOOE that are the sources of savings are appropriations for months still to lapse; - Disbursements of unobligated allotments for Capital Outlay as savings and their realignment to other items in the GAA, prior to the last two months of the fiscal year if the period to obligate is one year, or prior to the last two months of the second year if the period to obligate is two years; and - Disbursements of unobligated allotments as savings and their realignment to items or projects not found in the GAA. In addition, the use of the Unprogrammed Fund without the certification by the National Treasurer that the revenue collections for the fiscal year exceeded the revenue target for that year is declared VOID for being contrary to the express condition for the use of the Unprogrammed Fund under the GAAs.
Brion, J, <i>concurring</i> + <i>dissenting</i>	Unusual to submit Separate Opinion before promised ponencia has been issued but Brion did so bec - sobrang delayed na ng pagresolve ng case - DAP case is a part of PH's biggest scandal PDAF (cause public outrage + emergent public distrust) - amount: ₱10B - personalities: highest level Congress members - circumstances: betrayal of trust in time of poverty and natural calamity DAP ₱150B (PDAF x15) - entanglement with unconstitutional PDAF - highest levels in Executive and Legislative - lack of respect for public funds, institutions and Constitution “Judiciary's complicity — whether by delay or perceptions of mishandling, cover up, whitewash or unacceptable ruling — could already entail a perception of failure of government, constitutionalism and democracy because of the involvement of the three great branches of government. The people's inevitable question could then be: who else is there to trust?” <u>CONCUR</u>

DAP IS UNCONSTITUTIONAL

- the Court has jurisdiction under its expanded power of judicial review
- DAP violates the principles of checks and balances and the separation of powers integrated into the budgetary process by Consti
- DAP violates the constitutional prohibitions against the transfer of appropriations and funds from one branch of the government to another (Sect 25 (5) of Art 6 Consti)
- DAP violates the special conditions for the release of the Unprogrammed Fund

What's involved is **not a one time thing by one of few officials, but a host of public officials** who – their personal objectives. So the Court needs to decide this case. Allowing this system would concentrate power to the Executive. Same thing happened before (“those who do not remember the past are condemned to repeat it”) (“institutions are irreplaceable but public officials are not and should go and fall if they must”)

A. Factual Antecedents - reiterated the facts, etc

B. Preliminary Matters - basically requisites met by petitioners

Imbong v. Executive Secretary Separate Opinion by Brion: Court given 3 powers:

- (1) the traditional justiciable cases involving **actual disputes and controversies based purely on demandable and enforceable rights**;
- (2) the traditional justiciable cases as understood in (1), but **additionally involving jurisdictional and constitutional issues**;
- (3) pure constitutional disputes attended by **grave abuse of discretion** in the process involved or in their result/s -> **case falls here, GAD (grave abuse of discretion) by Executive**

1. The Court's expanded power of judicial review

All courts given expander power, invoke SC's power reqs: prima facie evidence of GAD + (to direct to SC) prove transcendental importance

2. Prima facie showing of grave abuse of discretion - petitioners sufficiently show GAD

- newspaper clippings + media reports (respondents say ito lang so insufficient)

Brion: aside from that...

- quotations from respondents (press release or gov website)
- enumerated disbursements (respondents' website)
- Sec. Abad's admissions
- respondents admissions of details in oral arguments + thru memos

a. The lack of audit findings does not negate grave abuse of discretion - COA can't rule on constitutionality + presumption of constitutionality loses its appeal as presumption is not meant to shield officials from challenges against their act

3. Transcendental importance of the issues presented by the petitions - all determinants are present

CJ Florentino P. Feliciano came up with the following determinants of transcendental importance

1. the character of the funds or other assets involved in the case - **billions**
2. the presence of a clear case of disregard of a constitutional or statutory prohibition by the public respondent agency or instrumentality of the government - **respondents admitted acts**
3. lack of any other party with a more direct and specific interest in raising the questions being raised - none other than **taxpayers (misuse of funds)**

+ aside from these, transcendental importance bec of relation to PDAF (recently decided)

4. Justiciability and Political Questions - case has legal issues (not political or economic) -> about

constitutionality of DAP

5. The Court's boundary-keeping role in times of political upheaval - **CONCUR ON APPLICABILITY OF OPERATIVE FACT DOCTRINE**

C. Substantive Matters

1. The DAP violates the principles of checks and balances and the separation of powers that the 1987 Constitution integrated in the budgetary process

a. The principle of separation of powers and checks and balances in the budgetary process

- Executive - proposal + implementation (can veto items)
- Legislative - Power of the Purse, deliberates + approve budget (can override veto by $\frac{2}{3}$ members vote)
- after passage of general appropriations law, no transfer of appropriations allowed across diff departments unless Consti allowed (aka the exceptions)

b. How the DAP violates these principles

- pooling funds that cannot at all be classified as savings
- using these funds to finance projects outside the Executive or for projects with no appropriation cover

-> these allows Pres to circumvent constitutional budgetary process and to veto GAA without Congress' $\frac{2}{3}$ vote override

-> allows use of non-savings funds for items that were not appropriated

-> worse: funds supposedly for Executive are used for projects of the Legislative dept

2. The DAP violates the prohibition against the transfer of appropriations

a. power to augment is a very narrow exception to the general prohibition against the transfer of appropriations

Consti provisions seek to ensure power of appropriations stay with Legislature but gave flexibility in case of unforeseeable events: transfer of funds allocated for a particular appropriation allowed when they became "savings" (w/in same branch) (safeguard: **ONLY IF CONGRESS AUTHORIZES IT BY LAW**)

1. the transfer may be allowed only when appropriations have become savings;
2. the transfer may be exercised only by specific public officials (i.e., by the President, the President of the Senate, the Speaker of the House of Representatives, the Chief Justice of the Supreme Court, and the heads of Constitutional Commissions);
3. these savings may only be used to augment and only existing items in the GAA can be augmented; and
4. these items must be found within each branch of the government's respective appropriations.

Nazareth v Villar

- General rule: GAA is the limits of funding
- Exception: transfers are allowed from savings

Lokin Jr v COMELEC - exceptions are strictly but reasonably construed, in doubts: follow general provision, not exception

b. need for actual savings before the power to augment may be exercised - precedents: actual savings must exist before power to augment

Dementria v Alba - Court struck down provision that allowed President to "transfer any fund" appropriated for Executive dept (kahit di pa actual savings)

Sanchez v COA - actual savings is a *sine qua non* to valid transfer of funds

c. savings cannot be used to fund programs and projects not appropriated by Congress

Sanchez v COA - illegal transfer of funds from DILG to Office of the President also stems from lack of appropriation for "ad hoc task force" to which funds were transferred

Nazareth v Villar - same ruling, altho there's actual savings, can't be used on non-existing items in GAA

d. additional limitations imposed by Congress under the GAA - stricter and tighter limits

i. definition of savings

ii. two-year period within which appropriations for Capital Outlay and Maintenance and other Operating Expense (MOOE) may be spent

iii. general prohibition against impoundment of releases

(check if not discussed in decision, expound)

e. the sources of DAP funds cannot qualify as savings

i. unobligated allotments

i.1 final discontinuance or abandonment

i.2 use of section 38 as justification

f. the DAP violates the prohibition against impoundment

g. qualifications to the President's flexibilities in budget execution

Ponencia pointed out that DAP is within President's power and he should be given flexibility in budget execution. BUT If DAP was within the President's authority to formulate and implement, and is within the flexibility given to the Executive in budget execution, then how come a majority of this Court is inclined to believe it to be unconstitutional?

- Flexibility in budget execution means discretion in implementation BUT SHOULD STILL BE WITHIN LIMITS PROVIDED BY GAA AND CONSTITUTION.
- Allowing Pres to have all prerogative would rob Congress its power of the purse bec anything they decided may be changed in implementation
- The exceptions (in transfer of funds) + flexibilities given by Congress to President were over-extended thru the DAP (did not meet requisites before power of augmentation and impoundment were exercised)

(1) the transfer of funds from one purpose (project/program/activity) to another where both purposes are covered by the same item of expenditure authorized in the GAA - **no constitutional violation as no transfer of appropriation**

(2) the transfer of funds from one purpose to another where the other purpose is already covered by a different item of expenditure authorized in the GAA - **general rule against transfer of appropriation applies** (transfer of funds is for a purpose no longer within the coverage of the original item of appropriation = constitutes a transfer of appropriation beyond the constitutional limitation)

Economic advances bec of DAP does not negate its overstepping allowed flexibilities. + Court is not a competent authority for economic speculations

h. the DAP, in funding items not found in the GAA, violated the Constitution - agree with ponencia

3. DAP violates the special conditions for the release of the Unprogrammed Fund in the 2011 and 2012 GAAs - agree with ponencia

4. The operative fact doctrine (OFD): concept, limits and application to the DAP's unconstitutionality.

The effect of a determination of unconstitutionality must be taken with qualifications. The actual existence of a statute, prior to such a determination, is an operative fact and may have consequences which cannot justly be ignored. The past cannot always be erased by a new judicial declaration.

OFD is departure from void ab initio doctrine

General: unconsti law is totally ineffective

Exceptions: when nullification of the effects of what used to be a valid law would result in

	inequity and injustice <i>Court also considered reliance in good faith on the unconstitutional laws prior to their declaration of unconstitutionality.</i> Brion agreed that OFD may apply only to DAP programs, projects, and works that can no longer be undone and where beneficiaries relied in good faith on the DAP's validity. The authors, implementors and proponents of the DAP cannot just invoke OFD. Their good or bad faith and possible liability (crim, civil, admin) should be determined by the proper tribunals. (They should prove if they want to claim good faith)
DEL CASTILLO, J, <i>dissenting+ concurring</i>	I. Nature, Scope, and Rationale of Article VI, Section 25(5) • Purpose: Prevents the Executive from gaining political influence over other branches through fund transfers, while allowing flexibility to prevent the underutilization or wastage of public funds • Four requisites for valid augmentation: 1. A law must authorize the transfer 2. Actual savings must exist 3. An existing item requiring augmentation 4. Transfer must remain within the same office II. Definition of Savings and Executive Spending Power • President possesses valid statutory authority under Section 38, Book VI of the Administrative Code of 1987 to permanently stop expenditures on slow-moving projects whenever "public interest" so requires (such as addressing severe government underspending to stimulate economic growth). • He maintained that a permanent stoppage of expenditures under Section 38 constitutes an implied final discontinuance or abandonment of the project, which validly generates "savings" under the statutory definition in the GAAs • DISSENTED FROM INVALIDATING NBC NO. 541 IN ITS ENTIRETY. ○ NBC No. 541, Sections 5.4, 5.5, and 5.7: unconstitutional only insofar as they allowed withdrawals from projects that were not actually discontinued or abandoned. ○ Section 5.7.3: the phrase "priority programs and projects not considered in the 2012 budget" in Section 5.7.3 of NBC No. 541 is void because "not considered" means "not included" ■ improperly permits augmenting non-existent items in the GAA in violation of Article VI, Section 29(1) III. Prohibition on Cross-Border Transfers • Article VI, Section 25(5) is absolute - funds appropriated for the Executive Branch cannot cross borders to other branches or independent bodies • The OSG's theory that transfers are valid if requested by the recipient is untenable.. Cross-border transfers to the House of Representatives (e-library), COA, and COMELEC remain unconstitutional regardless of requests or exigent circumstances, as a supplemental budget passed by Congress is the sole constitutional remedy. Requests from the receiving institutions do not make transfers constitutional. IV. Release of the Unprogrammed Fund • The 2011 and 2012 GAAs allowed releases under specific conditions, including certain collections from sources not included in the original revenue targets.

- Declaring unprogrammed fund releases unlawful merely because the DBM failed to show that total revenue collections exceeded original targets was premature

V. Operative Fact Doctrine

- Completed projects and benefits already delivered to the public in reliance on the DAP cannot be undone.
- Recipient entities (HOR, COA, COMELEC) acted in good faith reliance without knowledge of any source invalidity, making the operative fact doctrine applicable to protect those cross-border transfer effects

ACCORDINGLY, I vote to PARTIALLY GRANT the petitions:

The Disbursement Acceleration Program is PARTIALLY UNCONSTITUTIONAL:

1. Sections 5.4, 5.5 and 5.7 of National Budget Circular No. 541 are VOID insofar as they (1) allowed the withdrawal of unobligated allotments from slow-moving projects which were not finally discontinued or abandoned, and (2) authorized the use of such withdrawn unobligated allotments as "savings" for violating the definition of "savings" under the 2011, 2012 and 2013 general appropriations acts.
2. The admitted cross-border transfers of savings from the Executive Department, on the one hand, to the Commission on Audit, House of Representatives and Commission on Elections, respectively, on the other, are VOID for violating Article VI, Section 25 (5) of the Constitution.
3. The phrase "to fund priority programs and projects not considered in the 2012 budget but expected to be started or implemented during the current year" in Section 5.7.3 of National Budget Circular No. 541 is VOID for contravening Article VI, Section 29 (1) of the Constitution and Section 54 of the 2012 General Appropriations Act.

MACALINTAL v. COMELEC (2023)

Topic Subtopic	Branches of the Government - Congress	GR No. & Ponente	G.R. No. 263590 KHO, JR. J
Petitioner/s	Atty. Romulo B. Macalintal	Respondent/s	COMELEC and The President thru Executive Secretary Lucas Bersamin
Doctrine	Congress has plenary legislative power over election matters, including the power to postpone elections. However, such power is subject to constitutional limitations, and a postponement that arbitrarily infringes the right of suffrage violates substantive due process.		

FACTS

- On October 10, 2022, President Ferdinand Marcos, Jr. approved RA 11935, the salient portions of which include:**
 - The postponement of the BSKE scheduled on December 5, 2022 to a later date, i.e., last Monday of October 2023;
 - The authority given to incumbent BSK officials to remain in office until their successors have been duly elected and qualified, unless sooner removed or suspended for cause.
- Pertinently, Sections 1 and 3 of RA 11935 read:**
 - Sec 1: There shall be synchronized Barangay and Sangguniang kabataan elections, which shall be held on the last Monday of October 2023 and every three (3) years thereafter.
 - Sec 3: Hold Over: Until their successors shall have been duly elected and qualified, all incumbent barangay and Sangguniang kabataan officials shall remain in office, unless sooner removed or suspended for cause.
- G.R. No. 263590 - Petition filed by Atty. Macalintal; he argues that RA 11935 is unconstitutional insofar as the barangay election is concerned.**
 - 1st - Congress has no power to postpone or cancel a scheduled election because this power belongs to the Commission on Elections (COMELEC) .
 - 2nd - RA 11935 gives Congress the power to appoint barangay officials; a "legislative appointment" of these barangay officials, circumventing the legal requirement that these barangay officials must be elected and not appointed.
 - 3rd - Congress effectively amended Section 5 of the OEC by arrogating unto itself the power to postpone the barangay election.
 - 4th - RA 11935 deprives the electorate of its right of suffrage by extending the term of incumbent barangay officials.
 - 5th - While Congress has the power to fix the term of office of barangay officials, it has no power to extend the same.
 - 6th - violates the State's guarantee of equal access to opportunities for public service and deprives those who seek to be elected of an opportunity to serve the public.
 - Finally, it violates the principle that barangay officials should not have a term longer than that of their administrative superiors. (Term of the incumbent brgy. officials would exceed 5 years)
- OSG maintains that RA 11935 is valid and not unconstitutional.**
 - The Congress' power to legislate is plenary in nature.
 - No infringement on the electorate's right of suffrage. - Postponement of the BSKE ≠ depriving them of such right. It merely adjusted the date by which they shall exercise the same.
 - No denial of equal access to opportunities for public service. - RA 11935 does not provide for any restrictions or conditions that would deprive any aspiring individual from joining the BSKE.
 - The hold-over provision in Section 3 of RA 11935 is not tantamount to a legislative appointment. - Case law upholds legality of hold-over provisions; necessary to preserve continuity in the transaction of official businesses and to prevent a hiatus in government office
- G.R. No. 263673 - Petition filed by Atty. Hidalgo, et al., assert that the requisites for the exercise by the Court of its judicial power of review are met.**
 - TLDR; Atty. Hidalgo asserts that there is controversy, legal standing (as lawyers, taxpayers, and registered voters), ripeness (signing of the Pres of RA into Law made it ripe), it was raised on the earliest opportunity, and that a special civil action for certiorari is the proper remedy.
- OSG: There is a compelling state interest behind the postponement of the BSKE.**
 - Cited Sponsorship Speech of Senator Imee R. Marcos;
 - Principal purpose: allowing the Congress more time to review the present BSK systems, among other practical considerations.
 - The 10-month postponement (i.e., from December 5, 2022 to the last Monday of October 2023) is the least restrictive means to protect such compelling state interest as it is narrowly tailored to accomplish the aforesaid

purpose.

(skipped procedural issues)

ISSUE 1

Main – Substantive	Whether RA 11935, insofar as it postponed the December 5, 2022 BSKE to the last Monday of October 2023, is unconstitutional.	YES
--------------------	--	-----

RULING and RATIO DECIDENDI:

1. RA 11935 Does Not Unconstitutionally Encroach on the Power of the COMELEC to Administer the Elections

- The Congress holds plenary legislative power to regulate all matters which, in its discretion, are for the common good of the people.
- Even though COMELEC is an independent constitutional body charged with the administration and enforcement of elections and election laws, the broad and plenary power of the Congress with respect to election matters is not automatically limited by thereby.
- While the power to postpone elections has not been expressly granted to the legislature, neither has it been expressly nor impliedly withheld therefrom.

2. Nonetheless, RA 11935 Unconstitutionally Violates the Freedom of Suffrage for Failing to Satisfy the Due Process Requisites.

Firstly, the legislative measure is not supported by a legitimate government interest or objective.

- RA 11935 itself is silent and does not provide any supporting reasons or justifications for the postponement of the elections.
- Aside from the primary purpose mentioned above, during oral arguments OSG made the ff remarks:
 - According to the Journal of the House: issues pertaining to the budget, as well as proposed increases in the allowances for poll workers were among those that needed to be discussed.
 - Records of Senate: To have enough or some more time to discuss electoral reforms that would also affect the forthcoming barangay elections. The Senate is very busy with the GAA, they would need more time to consider possible electoral reforms.
- Yet COMELEC Chairman Garcia revealed that funds earmarked for the December 2022 BSKE were redirected to other government programs.
- While HB 4673 (RA 11935) omitted specific reasons to project legislative consensus, 43 related House bills offered varied justifications for postponing the December 2022 BSKE. These included reallocating election funds for COVID-19 recovery, ensuring barangay service continuity, preventing voter fatigue, reducing political division, and aligning election schedules with the Local Government Code.
 - It is clear from a reading of the Committee Report for HB 4673 and the various Explanatory Notes that the Congress essentially intended to realign the COMELEC's PHP8.4 billion budget allocation for the December 2022 BSKE towards the government's COVID-19 response programs and to stimulate the country's economic recovery.
 - The same observations can be gleaned from the Explanatory Notes of the bills filed before the Senate that equally sought to postpone the December 2022 BSKE.
- **It is evident that one of the primary reasons for the postponement was to realign the COMELEC's budget allocation for the 2022 BSKE towards the government's other projects and programs.** This is an unconstitutional consideration that therefore taints the law with arbitrariness and unreasonableness.
- This constitutes an impermissible transfer of appropriations. As explicitly provided under Article VI, Section 25 (5) of the Constitution, this COMELEC allocation can only be constitutionally transferred by the COMELEC's chairperson, and only with respect to the COMELEC's "item, project, or activity with an appropriation." It cannot be transferred to another branch or constitutional body.

Secondly, the means employed are unreasonably unnecessary for the attainment of the government interest or purpose sought to be accomplished and are unduly arbitrary or oppressive to the electorate's exercise of their right of suffrage.

- The postponement of the December 2022 BSKE to augment the Executive's funds for its programs and projects is not only an unlawful means to attain the legislative object of augmenting the government's budget for economic and social programs, it also arbitrarily overreaches the exercise of the right of suffrage.

In failing to satisfy the substantive due process requisites of the Constitution, RA 11935 is unconstitutional as it

unreasonably and arbitrarily infringed on the people's right of suffrage.

3. The enactment of RA 11935 by the Congress was attended with grave abuse of discretion amounting to lack or excess of jurisdiction.

While the Congress is granted by the Constitution with the plenary power, this power is not without limitations. Plenary as it is, however, the power of the Congress to legislate is subject to express and implied constitutional limitations.

The postponement of the 2022 BSKE by RA 11935 to augment the Executive's funds for its programs and projects violates the Constitution because:

- it unconstitutionally transgresses the constitutional prohibition against any transfer of appropriations, and
- it unconstitutionally and arbitrarily overreaches the exercise of the rights of suffrage, liberty, and expression.

As such, the Court is convinced that the Congress, in enacting RA 11935, gravely abused its discretion amounting to lack or excess of jurisdiction.

In sum, the Court hereby declares RA 11935 unconstitutional for (i) violating the right to due process of law, and accordingly, infringing the constitutional right of the Filipino people to suffrage, and (ii) having been enacted in patent grave abuse of discretion.

Effects of the Declaration of Unconstitutionality of RA 11935

ISSUE 2

Main - Substantive	W/N The Doctrine of Operative Fact Applies in this Case?	YES
RULING and RATIO DECIDENDI:		
<i>The doctrine of operative fact is an exception to the general rule, such that a judicial declaration of invalidity may not necessarily obliterate all the effects and consequences of a void act prior to such declaration.</i> The Court is of the view that the actual existence of RA 11935, prior to the judicial declaration of its unconstitutionality, is an operative fact which has consequences and effects that <u>cannot be ignored and reversed as a matter of equity and practicality.</u> • The declaration of unconstitutionality of RA 11935 results in the revival of RA 11462. ◦ RA 11462 explicitly set the schedule of the BSKE on December 5, 2022 — which date had already lapsed. ◦ Therefore, to strictly adhere to the provisions of RA 11462 will lead to an incongruent situation where the next BSKE will have to be held in December 2025 or close to seven years from the date of the last BSKE (held in May 2018) — a period unnecessarily longer than "every three [3]-year period" intended by the legislature. • December 5, 2022 had already lapsed without the BSKE scheduled under RA 11462 having been held. Moreover, the COMELEC had taken steps towards the preparation for the BSKE based on the schedule provided under RA 11935, i.e., in October 2023.		
While the Court hereby declares RA 11935 unconstitutional: • It <u>recognizes the legal practicality of proceeding with the holding of the BSKE on the last Monday of October 2023</u>, as provided under RA 11935. • The <u>sitting BSK officials shall continue to hold office until their successors shall have been elected and qualified</u>. But, their term of office shall be deemed to have ended on December 31, 2022, consistent with the provisions of RA 11462. • Further, <u>the succeeding synchronized BSKE shall be held pursuant to the provisions of RA 11462, that is, "on the first Monday of December 2025 and every three years (3) thereafter."</u>		

Main - Substantive	W/N The Continuation in the Office of the Current BSK Officials in a Hold-over Capacity Amount to a Legislative Appointment?	NO
RULING and RATIO DECIDENDI:		

- Kida v. COMELEC: The rule of hold-over can only apply as an available option where no express or implied legislative intent to the contrary exists; it cannot apply where such contrary intent is evident.
 - A statute that provides for hold-over capacity of incumbent officials shall be given respect and full recognition by the Court.
- The Court disagrees with the position advanced by Atty. Macalintal that the "hold-over" principle amounts to an extension of the term in public office of the incumbent barangay officials.
 - "Term" refers to the time during which the officer may claim to hold the office as of right.
 - "Tenure" which refers to the period during which the incumbent actually holds office.
 - **A hold-over essentially extends the tenure, or the actual holding of office, of the officer, not the term which should be deemed to have concluded at the appointed date.**
 - While the tenure can be affected (and extended) by the holdover, the term of office is not affected as it is fixed by the statute.
- **A [hold-over] is not technically an extension of the term of the officer but a recognition of the incumbent as a de facto officer, which is made imperative by the necessity for a continuous performance of public functions.**

(Not really an issue but sir might ask)

Guidelines in the determination of the validity of any future laws or rules postponing elections:

1. The right of suffrage requires the holding of honest, genuine, regular, and periodic elections. Thus, postponement of the elections is the exception.
2. The postponement of the elections must be justified by reasons sufficiently important, substantial, or compelling under the circumstances:
 - a. The postponement must be intended to guarantee the conduct of free, honest, orderly, and safe elections;
 - b. The postponement must be intended to safeguard the electorate's right of suffrage;
 - c. The postponement must be intended to safeguard other fundamental rights of the electorate; or
 - d. Such other important, substantial, or compelling reasons that necessitate the postponement of the elections, i.e., necessitated by public emergency, but only if and to the extent strictly required by the exigencies of the situation.
 - i. Reasons such as election fatigue, purported resulting divisiveness, shortness of existing term, and/or other superficial or farcical reasons, alone, may not serve as important, substantial, or compelling reasons to justify the postponement of the elections. To be sufficiently important, the reason for the postponement must primarily be justified by the need to safeguard the right of suffrage or other fundamental rights or required by a public emergency situation.
3. The electorate must still be guaranteed an effective opportunity to enjoy their right of suffrage without unreasonable restrictions notwithstanding the postponement of the elections.
4. The postponement of the elections is reasonably appropriate for the purpose of advancing sufficiently important, substantial, or compelling governmental reasons.
 - a. The postponement of the elections must be based on genuine reasons and only on objective and reasonable criteria.
 - b. The postponement must still guarantee that the elections will be held at regular periodic intervals that are not unduly long.
 - i. The intervals must still ensure that the authority of the government continues to be based on the free expression of the will of the electorate.
 - ii. Holding the postponed elections at a date so far remote from the original elections date may serve as badge of the unreasonableness of the interval that may render questionable the genuineness of the reasons for the postponement.
 - c. The postponement of the elections is reasonably narrowly tailored only to the extent necessary to advance the government interest.
5. The postponement must not violate the Constitution or existing laws.

**FINAL
DECISION**

In sum, the Court hereby declares RA 11935 unconstitutional for (i) violating the right to due process of law, and accordingly, infringing the constitutional right of the Filipino people to suffrage, and (ii) having been enacted in patent grave abuse of discretion.

Nonetheless, the Court recognizes the existence of the law as an operative fact which had consequences and effects that cannot be justifiably reversed, much less ignored. Thus, these pronouncements shall have the following effects:

1. The conduct of the BSKE on the last Monday of October 2023 shall proceed as scheduled under RA 11935;

	2. Incumbent BSK officials <u>shall continue to hold office</u> until their successors have been duly elected and qualified; 3. Nevertheless, the official term of incumbent BSK officers <u>shall be deemed to have ended on December 31, 2022</u> pursuant to RA 11462; 4. Subsequent synchronized electoral exercises shall be governed by RA 11462, held "<u>on the first Monday of December 2025 and every three (3) years thereafter</u>"; and 5. Congress retains the power to enact future amendments to RA 9164, provided there is <u>strict adherence to the constitutional standards set forth herein</u>. Lastly, for the benchmark guidance of the bench, the bar, and the public, all subsequent state measures delaying elections must comply with these established criteria. ACCORDINGLY, the consolidated petitions are hereby GRANTED. Republic Act No. 11935 is declared UNCONSTITUTIONAL. SO ORDERED.
--	--

SEPARATE OPINION/S

CAGUIOA <i>, J,</i> <i>separate</i> <i>opinion</i>	• Concurs with the majority that Republic Act No. (RA) 11935—which postponed the December 5, 2022 Barangay and Sangguniang Kabataan Elections (BSKE) to the last Monday of October 2023—is unconstitutional and void. ◦ A law which has an invalid reason for its enactment is unreasonable and thus violates substantive due process. ◦ A law making classifications based only on present conditions, but not future ones, is unconstitutional for violating the equal protection clause. Reason for Enactment: • Interpellations during oral argument (specifically confronting COMELEC Chairperson George Erwin M. Garcia with Senate Bill (SB) No. 288 (introduced by Sen. Francis Escudero) and SB No. 453 (introduced by Sen. Jinggoy Estrada)) uncovered that the reason behind Congress enacting RA 11935 was to realign a portion of the ₱8.44 billion budget allocation earmarked for the BSKE towards COVID-19 pandemic response programs and other socioeconomic interventions. • The justifications subsequently offered in the Office of the SolGen's (OSG) Memorandum (such as giving Congress time to study electoral reforms, allowing COMELEC and LGUs to better prepare, and adjusting poll workers' honoraria) were clear afterthoughts conjured after the bills were introduced and passed, which cannot detract from the primary legislative motive. Legal Background: • Under Art VI, Sec 25(5) of the Constitution, cross-border transfers or realignments of appropriations from one branch or independent constitutional body to another are strictly prohibited. Congress cannot postpone an election to divert COMELEC's budget to the Executive. • Under Article IX-A, Section 5 of the Constitution, COMELEC enjoys fiscal autonomy. • Under Section 25(5), Article VI of the Constitution and the 2022 General Appropriations Act (GAA), only the Chairperson of COMELEC—to the exclusion of everyone else, including Congress—is authorized to use savings to augment actual deficiencies in another item within COMELEC's own appropriations. ◦ Unexpended BSKE funds cannot be legally treated as "savings" because the BSKE was merely postponed, not completed, abandoned, or finally discontinued. • Realigning COMELEC's allocated BSKE funds to Executive programs is a legal impossibility; thus, it cannot serve as a compelling state interest to satisfy judicial review. • Less restrictive alternatives exist. Even if the interest were compelling, delaying the right of suffrage is not the least restrictive means because the State has other legitimate, legal sources of funding that do not infringe upon COMELEC's powers or the voters' rights.
--	--

	Unconstitutional Extension of Terms & Legislative Appointment • Caguioa disagrees with the view that the law merely extended tenure under a valid hold-over. ◦ Section 2 of RA 11935 explicitly fixed the commencement of the term of office for newly elected officials to November 30 next following their election, thereby extending the term (not just tenure) of incumbent officials past their expiration on January 1, 2023. • Postponing scheduled elections to extend the terms of incumbent officials amounts to an impermissible legislative appointment. ◦ When voters cast their ballots under RA 11462, their mandate was for a fixed three-year term; the additional term/tenure granted by RA 11935 derives its authority from legislative fiat rather than the mandate of the electorate (<i>Guekeko v. Santos</i>; <i>Topacio Nueno v. Angeles</i>). • The historical pattern of barangay election postponements (RA Nos. 9340, 10923, 10952, 11462, and 11935) creates term extensions that apply only to present conditions but not to future ones of a similar character, violating the equal protection standard established in <i>Ormoc Sugar Co., Inc. v. Treasurer of Ormoc City</i>. Judicial Scrutiny (Strict Scrutiny) • Because suffrage is a primordial, fundamental right that must be regular, genuine, and periodic (Art. 25, ICCPR; Art. 21, UDHR), any law interfering with or postponing its exercise must be subjected to strict scrutiny. ◦ Requisites Under Strict Scrutiny: ■ The postponement of the election must serve a compelling state interest. ■ The postponement must be the least restrictive means (narrowly tailored) for achieving that compelling state interest.
SINGH, J, <i>separate opinion</i>	• Concurs that RA 11935 is unconstitutional and void. • The primary purpose of RA 11935 (allowing an unconstitutional reallocation or transfer of COMELEC's BSKE budget) fails any tier of judicial scrutiny, even the least stringent standard of rational basis. Judicial Scrutiny (Strict Scrutiny) • Suffrage is a fundamental right that is "preservative of all rights" (<i>Yick Wo v. Hopkins</i>; <i>White Light Corp. v. City of Manila</i>; <i>City of Manila v. Laguio</i>). • Under the Footnote 4 doctrine of <i>U.S. v. Carolene Products</i>, legislation dealing with freedom of the mind or restricting the political process is presumptively unconstitutional and demands strict scrutiny. • Rejects the argument that election timing is a mere separable "incident" (unlike time, place, and manner regulations in free speech). ◦ The timely exercise of suffrage at regular, periodic intervals is part and parcel of, and nearly indistinguishable from, the right of suffrage itself. ◦ Postponing an election is a direct infringement, if not total abrogation, of the right to vote. Election Postponement, Hold-Over, and Strict Scrutiny • Hold-over is an emergency stopgap measure valid only in cases of "extreme necessity" (<i>Sambarani v. COMELEC</i>; <i>Adap v. COMELEC</i>). ◦ Because an election postponement created by legislative fiat creates the very hiatus/vacuum in government that hold-over seeks to remedy, the underlying governmental interest must be nothing short of compelling. • Elections are the moment where citizens renew their threshold consent under the social contract (<i>Tolentino v. COMELEC</i>, Puno, J., dissenting).

- Allowing elective officials to remain in office **past their explicit mandate without a fresh vote** disenfranchises the electorate and **undermines the democratic and republican foundations of the nation**.

Guidelines

- Formally **votes to approve the guidelines** enunciated in the ponencia to test the constitutionality of future election postponements, specifically because those guidelines are crafted and informed by the standard of strict scrutiny.

DELA CRUZ v. OCHOA, JR. (2012)

Topic Subtopic	Congress: Legislative Process - Requirements as to certain laws: <u>Appropriation Laws</u>	GR No. & Ponente	G.R. 219683 J. Bersamin
Petitioner/s	Hon. Jonathan A. Dela Cruz and Hon. Gustavo S. Tambunting (members of HOR and as taxpayers)	Respondent/s	Hon. Paquito N. Ochoa Jr., Hon. Joseph Emilio A. Abaya, Hon. Florencio B. Abad, Hon. Rosalia V. De Leon
Doctrine	Under the Performance Informed Budgeting system, an appropriation for a Major Final Output that covers its naturally integrated components is a constitutional line-item with a specific, discernibly vetoable purpose directly enacted by Congress , the sufficiency and legality of which, once definitively ruled upon by the SC to cure earlier procurement defects, constitutes stare decisis that precludes relitigation.		

FACTS

Mandating to register motor vehicles and issue license plates, the LTO created the **Motor Vehicle License Plate Standardization Program (MVPSP)** to supply new standardized plates for old and new vehicles. On February 20, 2013, the DOTC published an Invitation to Bid for the MVPSP (covering July 2013 to June 2018), setting the Approved Budget for the Contract (ABC) at **₱3,851,600,100.00**.

Bids were opened on May 6–7, 2013. Only 2 joint ventures were qualified. **J. Knieriem B.V. Goes and Power Plates Development Concepts, Inc. (JKG-Power Plates)** submitted the lowest bid (₱1.98 Billion for Lot 1 Motor Vehicles and ₱1.196 Billion for Lot 2 Motorcycles). On July 22, 2013, DOTC issued the **Notice of Award** to JKG-Power Plates. On February 17, 2014, DOTC issued the **Notice to Proceed**, and the contract was formally signed on February 21, 2014.

Jacomille v. Abaya: Reynaldo M. Jacomille challenged the procurement of the MVPSP, claiming the contract was void due to insufficient appropriations under the **2013 GAA** and **lack of a Multi-Year Obligational Authority (MYOA)**. On April 22, 2015, the SC dismissed Jacomille's petition for being **moot and academic** because Congress had subsequently enacted RA 10633 (**2014 GAA**), which appropriated **₱4,843,753,000.00**, curing any procurement defects existing under the 2013 GAA.

Meanwhile, the COA issued Notice of Disallowance No. 2015-001-101-(14) on July 13, 2015, disallowing the advance payment of ₱477,901,329.00 to JKG-Power Plates due to **procurement irregularities**. Thereafter, on September 1, 2015, petitioners filed this **original special civil action for certiorari and prohibition**. They directly assailed the **constitutionality of implementing the MVPSP** using funds appropriated under the 2014 GAA (they did not seek a review of the COA Disallowance).

June 14, 2016: the SC issued a TRO enjoining the release and distribution of the standardized license plates. The OSG filed a Manifestation in Lieu of Comment agreeing with petitioners that no appropriation existed for MVPSP in the 2014 GAA, whereas respondent Sec. Abaya and intervenor JKG-Power Plates defended its constitutionality.

ISSUE/S

ISSUE 1

W/N the SC's prior ruling in <i>Jacomille v. Abaya</i> constitutes stare decisis on the existence of an appropriation for the MVPSP under the 2014 GAA.		YES
PETITIONER'S ARGUMENT/S	RESPONDENT'S ARGUMENT/S	
No because the <i>Jacomille</i> ruling was still pending reconsideration when this action was instituted. Any finding regarding 2014 GAA funding in <i>Jacomille</i> was irrelevant because the public bidding	Respondents Sec. Abaya and intervenor JKG-Power Plates contended that <i>Jacomille</i> settled the legality of the funding or the MVPSP under the 2014 GAA. The Court's ruling in <i>Jacomille</i> that the 2014 GAA appropriated the necessary	

conducted in 2013 was void ab initio for lack of an adequate appropriation under the 2013 GAA.	funds for the MVPSP constitutes stare decisis, thus barring the relitigation of the same question of law.
RULING and RATIO DECIDENDI:	
1) Under the principle of <i>stare decisis</i>, when the SC has once laid down a principle of law applicable to a certain state of facts, it will adhere to that principle and apply it to all future cases where facts are substantially the same, regardless of whether the parties or property are identical (<i>Ty v. Banco Filipino Savings and Mortgage Bank</i>). 2) Unlike <i>res judicata</i>, <i>stare decisis</i> is based on the legal principle or rule involved and is grounded on public policy for securing certainty and stability in judicial decisions. 3) Although <i>Jacomille</i> centered on procurement irregularities under the 2013 GAA, the Court specifically examined and declared that Congress had appropriated ₱4,843,753,000.00 for the MVPSP under the 2014 GAA prior to contract execution. <u>The Court held in <i>Jacomille</i> that this appropriation cured earlier procurement defects and rendered the issue moot.</u> The existence and applicability of the 2014 GAA appropriation for the MVPSP constitutes a settled question of law.	
LEGAL BASIS	
Jacomille v. Abaya: the passage of the 2014 GAA appropriating ₱4,843,753,000.00 for the MVPSP cured earlier procurement defects under the 2013 GAA and provided sufficient legal funding before contract execution. The Court held that this prior determination on a question of law constituted stare decisis that barred relitigation.	

ISSUE 2

W/N the implementation of the MVPSP was properly funded under the allocation for <i>Motor Vehicle Registration and Driver's Licensing Regulatory Services (MFO2)</i> in the 2014 GAA, or if it involved an unconstitutional transfer of funds.		NO
PETITIONER'S ARGUMENT/S	RESPONDENT'S ARGUMENT/S	
Since the line-item "Motor vehicle plate making project" appeared in the 2013 GAA but was omitted in the 2014 National Expenditure Program (2014 NEP) and the 2014 GAA, there was no line-item appropriation for the MVPSP in 2014. Using funds allocated for Major Final Output (MFO2) to fund plate-making constituted an unconstitutional transfer/realignment of funds from one item to another prohibited by Art. VI, Sec. 25(5) of Consti.	Sec. Abaya maintains that the ₱4,843,753,000.00 allocation for MFO2 in the 2014 GAA included the specific budget required for the MVPSP. Also contends that DOTC directly requested DBM and Congress to increase the proposed MFO2 budget in the 2014 NEP by ₱2,489,600,100.00 specifically for the LTO Plate Standardization Program, which Congress fully approved and enacted into law.	
RULING and RATIO DECIDENDI:		
NO. There was NO unconstitutional transfer of funds. The MVPSP was directly and properly funded by Congress under the MFO2 appropriation in the 2014 GAA. 1) Pursuant to Title XV, Chapter 1, Sec. 2 of EO 292 (Administrative Code of 1987) and Sections 14 and 17 of RA 4136 (Land Transportation and Traffic Code), LTO is mandated to register motor vehicles and prepare/issue standardized reflective number plates. Under LTO Memorandum Circular No. VPT-2013-1772, the MVPSP was created precisely to replace illegible and counterfeit plates to enhance law enforcement and national security. 2) As held in Goh v. Bayron, an appropriation is valid if it indicates a specific amount and a specific purpose. A purpose remains specific even if broken down into related sub-categories of the same nature. Motor vehicle plate-making is naturally and logically an integral component of the motor vehicle registration process. Thus, an appropriation for motor vehicle registration naturally covers plate-making. 3) The legislative records prove that Congress intended to fund the MVPSP under MFO2.		

- a) The 2014 NEP originally proposed P2,354,653,000.00 for MFO2.
 - b) On Sept 1, 2013, Sec. Abaya wrote to DBM Sec. Abad formally requesting a P2,489,600,100.00 increase/realignment in MFO2 for the immediate implementation of the LTO Plate Standardization Program.
 - c) Transcripts of committee hearings in both the House Committee on Appropriations and Senate Finance Committee confirm that DOTC officials defended this exact budget increase for the MVPSP.
 - d) Congress approved the request and enacted a **total MFO2 appropriation** in the main text of the 2014 GAA of P4,843,753,000.00 (sum of the previous two numbers).
- 4) Under Sec 3 of the General Provisions of the 2014 GAA, in case of any discrepancy between the main text of the GAA and the attached Details of the FY 2014 Budget, the figures in the main text are controlling.
 - 5) Thus, since Congress directly appropriated P4,843,753,000.00 for MFO2 to include the MVPSP, the 2014 GAA itself contained the direct appropriation. **No fund transfer or augmentation occurred.** Thus, Section 25(5), Article VI of the Constitution was **NOT** violated.

LEGAL BASIS

Section 25(5), Article VI of the Constitution: prohibits the transfer or realignment of appropriations except for specific constitutional officers augmenting items in their respective offices from savings.

Goh v. Bayron: see 2) above.

ISSUE 3

W/N the item "Motor Vehicle Registration and Driver's Licensing Regulatory Services" in the 2014 GAA constituted an unconstitutional lump-sum appropriation that undermined the President's item-veto power.		NO
PETITIONER'S ARGUMENT/S	RESPONDENT'S ARGUMENT/S	
Petitioners contended that MFO2 was an invalid lump-sum appropriation because it did not specify "Motor vehicle plate making project" as a distinct line-item, thereby depriving the President of his power to exercise an item-veto under Article VI, Section 27(2) of the Constitution.	Respondent Sec. Abaya submitted that starting 2014, the National Government adopted "Performance Informed Budgeting," wherein programs, activities, and projects are grouped under Major Final Outputs (MFOs), and backed by specific details in the attached budget documents.	
RULING and RATIO DECIDENDI:		
1) Section 2 of the Gen. Provisions of the 2014 GAA formally adopteBd "Performance Informed Budgeting," aligning allocations under Major Final Outputs (MFOs) and Performance Indicators under the Organizational Performance Indicator Framework. 2) Grouping activities into MFOs <u>does not eliminate line-items</u>. As held in <i>Belgica v. Executive Secretary</i>, an "item" in an appropriation bill is a "specific appropriation of money" characterized by singular correspondence. This allows the President to discernibly veto it. 3) <i>Araullo v. Aquino III</i>: the "item" contemplated by Section 25(5) and Section 27(2), Article VI of the Constitution is the last and indivisible purpose of a program in the appropriation law, which is distinct from the expense category or allotment class. The President cannot veto an expense class, but only the specific item to which that expense class belongs. 4) In the 2014 GAA, MFO2 represented the expense class, while the last and indivisible purpose was specifically enumerated in the attached Details of the FY 2014 Budget under MFO2 as "Motor vehicle registration system" (allocated ₱1,527,556,000.00 alongside other items like law enforcement and driver's licensing). This specific purpose satisfied the requirement of a valid line-item that the President <u>could</u> veto.		

LEGAL BASIS

Article VI, Section 27(2) of the Constitution: the President is authorized to exercise an **item-veto** over particular items in an appropriation bill.

Belgica v. Executive Secretary: see 2) above.

Araullo v. Aquino III: see 3) above.

FINAL DECISION

WHEREFORE, the Court **DISMISSES** the petition for certiorari and prohibition; and **DECLARES** the use of the appropriation under ***Motor Vehicle Registration and Driver's Licensing Regulatory Services*** in the General Appropriations Act of 2014 for the implementation of the Motor Vehicle License Plate Standardization Program of the Land Transportation Office of the Department of Transportation as **CONSTITUTIONAL**.

The **TRO** issued by the Court on June 14, 2016 is LIFTED. SO ORDERED.

NO SEPARATE OPINIONS

Pichay, Jr. v. Office of the Deputy Executive Secretary (2012)

Topic Subtopic	Legislative Process - Requirements as to certain laws: Appropriation laws	GR No. & Ponente	G.R. No. 196425 Perlas-Bernabe, J
Petitioner/s	PROSPERO A. PICHAY, JR.	Respondent/s	OFFICE OF THE DEPUTY EXECUTIVE SECRETARY FOR LEGAL AFFAIRS-INVESTIGATIVE AND ADJUDICATORY DIVISION, HON. PAQUITO N. OCHOA, JR., in his capacity as Executive Secretary, and HON. CESAR V. PURISIMA, in his capacity as Secretary of Finance, and as an ex-officio member of the Monetary Board
Doctrine	The President has the authority “to direct changes in the organizational units or key positions in any department or agency,” “even to the extent of modifying and realigning appropriations for that purpose.”		

FACTS

1. In 2001, Pres GMA issued EO 12, creating the Presidential Anti-Graft Commission (PAGC) to investigate or hear admin cases or complaints for possible graft and corruption against presidential appointees and to submit its report and recos to the Pres.
2. In 2010, Pres Aquino issued EO 13, abolishing PAGC and transferring its functions to the Office of the Deputy Executive Secretary for Legal Affairs (ODESLA), specifically to the new Investigative and Adjudicatory Division (IAD).
3. In April 2011, respondent Finance Secretary Purisima filed before the IAD-ODESLA a complaint affidavit for grave misconduct against petitioner Pichay, the Chairman of the Board of Trustees of the Local Water Utilities Administration (LWUA), and its incumbent Board of Trustees members.
 - a. Reason: LWUA's purchase of 445,377 shares of stock of Express Savings Bank
4. Petitioner filed a Motion to Dismiss saying that a case involving the same transaction and charge of grave misconduct was already pending before the Office of the Ombudsman. He also filed an instant petition for certiorari and prohibition, assailing the constitutionality of EO 13.

Main – Substantive

ISSUE 1: W/N the President is authorized to reorganize the Exec Dept?

YES

RULING and RATIO DECIDENDI:

1. Section 31 of EO 292 (Administrative Code of 1987) vests in the president the continuing authority and express grant of power to reorganize the offices under him to achieve simplicity, economy, and efficiency through the following actions:
 - a. Restructuring the internal organization of the Office of the President Proper by abolishing, consolidating, or merging units or transferring functions from one unit to another
 - b. Transfer any function under the Office of the President to any other Department or Agency
 - c. Transfer any agency under the Office of the President to any other Department or Agency
2. Diff between powers to reorganize the Office of the President and the Office of the President Proper:
 - a. Outside the OP: Under Section 31 (2 & 3), the President can only transfer offices or functions back and forth between the OP and other departments or agencies.
 - b. Inside the OP *Proper*: Under Section 31 (1), the President has virtual freedom to change the internal structure, including extreme actions like abolishing, merging, or consolidating units, alongside transferring functions between them.
 - c. Importance: Affects employees' tenurial security and validity of reorganization.
3. Since both PAGC and ODESLA belong to the Office of the President *Proper*, the reorganization through abolishing the PAGC and transferring its functions to ODESLA, is allowed.

LEGAL BASES

Buklod ng Kawaning ElIB v. Zamora - affirmed that the President's authority to carry out a reorganization in any branch or agency of the executive department is an express grant by the legislature by virtue of E.O. 292

Domingo v. Zamora - rationale of Pres' continuing authority: "To remain effective and efficient, the Office of the President must be capable of being shaped and reshaped by the President in the manner he deems fit to carry out his directives and policies."

Side – Substantive	ISSUE 2: W/N the reorganization entailed the creation of a new, separate, and distinct office	NO
Petitioner's Args:		
The President went beyond the authority granted by E.O. 292 for him to reorganize the executive department since his issuance of E.O. 13 did not merely involve the abolition of an office but also creation of one. Nowhere in the legal definition laid down by the Court does a reorganization include the act of creating an office.		
RULING and RATIO DECIDENDI:		
PAGC's abolition just transferred duties and functions to ODESLA, an EXISTING office within OP Proper → was just an alteration of the admin structure of the ODESLA by establishing a third division (IAD).		
LEGAL BASES		
Canonizado v. Aguirre - Reorganization takes place when there is an alteration of the existing structure of government offices or units therein, including the lines of control, authority and responsibility between them. It involves a reduction of personnel, consolidation of offices, or abolition thereof by reason of economy or redundancy of functions.		

Side – Substantive	ISSUE 3: W/N the reorganization was pursued in good faith	YES
RULING and RATIO DECIDENDI:		
1. A reorganization is said to be carried out in good faith if it is done for purposes of economy and efficiency. 2. EO 13 cites the basis for reorganization: to eradicate corruption in the government and promote economy and efficiency in the bureaucracy. 3. THUS, done in good faith → seen in the economical effects of reorg → initial Congress 2010 appropriation for PAGC's operation was P22M, BUT no considerable separate function was required after the transfer of functions (#efficient)		

Main – Substantive	ISSUE 4: W/N there was usurpation of the legislative power to appropriate public funds	NO
Petitioner's Args:		
Since Congress did not indicate the manner the appropriation for the Office of the President was to be distributed, taking from the operational funds of the IAD-ODESLA would be an illegal appropriation by the President.		
RULING and RATIO DECIDENDI:		
1. The powers to run the government dwell in the President → implies he also has authority to determine the most economical and efficient way for agencies to operate 2. Section 78 of the General Appropriations Act (RA 9970) expressly provides for the President's authority "to direct changes in the organizational units or key positions in any department or agency," "even to the extent of modifying and realigning appropriations for that purpose." 3. Pres also has the constitutional authority to transfer any fund appropriated for the different offices of the Exec included in the GAA to the activities of other offices included in the GAA or approved after its		

- enactment + PD 1777 (44) authorizes certain transfers of funds within the executive department.
4. THUS, even if Congress didn't specify an amount for IAD-ODESLA, the funds may be sourced from the Pres' own office budget w/o committing illegal appropriation.

Side – Substantive	ISSUE 5: W/N the IAD-ODESLA is vested with quasi-judicial powers?	NO
Petitioner's Args:		
IAD-ODESLA is illegally vested with judicial power reserved to the Judicial Department and some (expressly granted) admin agencies, evident from name itself (Investigative and <i>Adjudicatory</i> Division)		
RULING and RATIO DECIDENDI:		
1. IAD-ODESLA's authority is limited to its duties to investigate (fact-finding) and submit reports and recommendations to the Pres, same as PAGC as per EO 12 and EO 13. It has no power to settle controversies and adjudicate cases. 2. Under the Consti, the Chief Executive is granted full control over the Exec Dept to ensure the enforcement of laws THUS extending to his authority to issue EO 13 and create IAD-ODESLA as his fact-finding investigator.		
LEGAL BASES		
Cariño v. Commission on Human Rights & Biraogo v. The Philippine Truth Commission: Fact-finding is not adjudication and it cannot be likened to the judicial function of a court of justice, or even a quasi-judicial agency or office. The function of receiving evidence and ascertaining therefrom the facts of a controversy is not a judicial function. To be considered as such, the act of receiving evidence and arriving at factual conclusions in a controversy must be accompanied by the authority of applying the law to the factual conclusions to the end that the controversy may be decided or determined authoritatively, finally and definitively, subject to such appeals or modes of review as may be provided by law. Sec 17, Art VII of Consti: The President shall have control of all the executive departments, bureaus and offices. He shall ensure that the laws be faithfully executed.		

Side – Substantive	ISSUE 6: W/N the IAD-ODESLA encroaches on the Ombudsman's powers and duties.	NO
RULING and RATIO DECIDENDI:		
1. The Ombudsman's authority to investigate both elective and appointive officials in the government is not exclusive. It is shared with other similarly authorized government agencies. 2. Ombudsman determines existence of probable cause and the adjudication of the merits of CRIMINAL accusations. IAD-ODESLA is limited to fact-finding and whose recommendations can only be acted upon by the President.		
LEGAL BASES		
Section 15 (1) of R.A. No. 6770 or the Ombudsman Act of 1989: (1) Investigate and prosecute on its own or on complaint by any person, any act or omission of any public officer or employee, office or agency, when such act or omission appears to be illegal, unjust, improper or inefficient. It has primary jurisdiction over cases cognizable by the Sandiganbayan and, in the exercise of its primary jurisdiction, it may take over, at any stage, from any investigatory agency of government, the investigation of such cases.		

Side – Substantive	ISSUE 7: W/N EO 13 violates petitioner's right to due process and equal	NO
--------------------	---	----

	protection?	
Petitioner's Args:		
It's arbitrary to limit IAD-ODESLA's investigation to only presidential appointees occupying upper-levels in govt. IAD-ODESLA can't impartially perform its duties since they're connected to the president.		
RULING and RATIO DECIDENDI:		
1. EPC was not violated. The equal protection clause is not absolute but subject to reasonable classification (i.e., elective vs appointive officials). a. Elective officials are held accountable by the electorate. Appointive officials must be held accountable by the body that appoints them. 2. Due process was not violated. The minimum requirements of due process for admin proceedings are the (1) filing of charges and (2) the reasonable opportunity to answer accusations against him, both of which are present here. 3. Mere allegation of not being "impartial" != proof. Must present substantial proof against presumption of regularity in the performance of duties → petitioner hasn't done so.		
LEGAL BASES		
Farinas v. Exec Sec: The equal protection clause is not infringed by legislation which applies only to those persons falling within a specified class, if it applies alike to all persons within such class, and reasonable grounds exist for making a distinction between those who fall within such class and those who do not. Salumbides v. Office of the Ombudsman: <u>Substantial distinctions clearly exist between elective officials and appointive officials.</u> The former occupy their office by virtue of the mandate of the electorate. They are elected to an office for a definite term and may be removed therefrom only upon stringent conditions. On the other hand, <u>appointive officials hold their office by virtue of their designation thereto by an appointing authority.</u> Some appointive officials hold their office in a permanent capacity and are entitled to security of tenure while others serve at the pleasure of the appointing authority.		
FINAL DECISION	WHEREFORE, premises considered, the petition is hereby DISMISSED.	

NAZARETH V. VILLAR (2013)

Topic Subtopic	Legislative Process - Requirements as to certain laws: Appropriation laws	GR No. & Ponente	G.R. No. 188635 J. Bersamin
Petitioner/s	Brenda L. Nazareth, Regional Director, DOST Regional Office No. IX, Zamboanga City	Respondent/s	Hon. Reynaldo A. Villar, Hon. Juanito G. Espino Jr. (Commissioners of the Audit) and Dir. Khem M. Inok
Doctrine	Under Sec. 25(5), Art. VI, no law shall be passed authorizing any transfer of appropriations. However, the President may be authorized by law to augment any item in the general appropriations law for their respective offices from savings in other items of their respective appropriations. A law granting benefits does not by itself authorize payment without a corresponding appropriation in the GAA.		

FACTS

- Dec. 22, 1997 → Congress enacted RA 8439 (Magna Carta) to provide a program for human resources development in science and technology.
 - Sec. 7 grants additional allowances and benefits, whose funds are to be appropriated by the General Appropriations Act (GAA) of the year following the enactment of RA 8439.
- DOST Regional Office No. IX in Zamboanga released the Magna Carta benefits to the covered employees in CY 1998 despite the absence of specific appropriation in the GAA.
 - Following post-audit conducted by COA State Auditor Vargas, several Notice of Disallowances (NDs) were issued disapproving payment of the Magna Carta benefits.
- 2000 → Disallowance by the COA prompted DOST Secretary Uriarte Jr. to request the Office of the President through his Memorandum for the authority to utilize DOST's savings to pay the benefits.
 - Sec. Zamora, acting by authority of the President, approved the request through Memorandum.
- 2003 → Petitioner, as DOST Regional Director in Region IX, lodged an appeal with COA Regional Cluster Director Sescon, urging the lifting of the disallowance of the Magna Carta benefits for CY 1998 to CY 2001 amounting to ~P4.3million.
 - Anchored her appeal on Zamora's memorandum and cited Sec. 56 in the GAA of 1998 → "[I]n the use of savings, priority shall be given to the augmentation of the amounts set aside for compensation, bonus... and other personnel benefits authorized by law..."
 - Argued that Zamora's memorandum not only ratified the payment of the benefits out of the savings for CY 1998 & CY 1999 and allowed the use of savings for CY 2000, but also operated as a continuing endorsement of the use of savings to cover the benefits in succeeding years.
- The Regional Legal and Adjudication Director (RLAD), COA Regional Office IX in Zamboanga City denied the appeal & affirmed the grounds stated in the NDs.
- Petitioner elevated the matter to the COA Legal and Adjudication Office in Quezon City which denied her appeal with the modification that only the NDs covering the benefits for CY 2000 were to be set aside in view of the authorization of Zamora's memorandum.
 - Noted that "augmentation" in the above-cited provision was a requisite to make payments for such benefits, which means that the presidential approval was necessary.
 - Acts of the agency in using its savings to pay the said benefits in 1998 and 1999 without presidential approval were illegal considering that during those years there was no appropriations provided in the GAA to pay such benefits.
- Petitioner filed her motion for reconsideration in the COA Legal and Adjudication Office-National in Quezon City, but they denied her motion → she then filed a petition for review in the COA Head Office, insisting that the payment of the benefits to qualified DOST employees had been allowed under RA 8439.
 - COA rendered the assailed decision, further modifying the decision by also setting aside the NDs covering the benefits for CY 1998 and CY 1999 for the same reason as CY 2000 but maintaining the disallowance of benefits for CY 2001 since they were not covered by Zamora authorization.
- Petitioner filed this special civil action for certiorari, insisting that the COA gravely abused its discretion in affirming the disallowance of the Magna Carta benefits for CY 2001 despite the provisions of RA 8439 + ruling that Zamora memorandum did not cover the payment of the benefits for CY 2001.

Main – Substantive	W/N COA committed grave abuse of discretion in issuing the NDs disallowing the Magna Carta benefits for 2001?	NO
--------------------	---	----

RULING and RATIO DECIDENDI:

- The Magna Carta benefits will remain merely paper benefits without the corresponding allocation of funds in the GAA.
- The 2000 Zamora Memorandum cannot be treated as continuing authorization since it is not a blanket authority from the OP to pay the benefits out of DOST's savings.
 - Although the memorandum was silent as to the period covered by the request, it was clear that it encompassed only CY 1998 + 1999 + 2000 based on the tenor of the request of Sec. Uriarte Jr.
 - Memorandum was bereft of any indication that the authorization was to be indefinitely extended to any calendar year beyond CY 2000.
- **Art. VI, Sec. 29(1) of 1987 Constitution** → "No money shall be paid out of the Treasury except in pursuance of an appropriation made by law."
 - The requirement under Sec. 20 of RA 8439 that the amounts needed to fund the benefits were to be appropriated by the GAA only meant that such funding must purposefully be included in GAA.
 - RA 8439 alone could not fund the payment of the benefits because the GAA did not mirror every provision of law that referred to it as the source of funding.
 - DOST itself acknowledged the absolute need for the appropriation because otherwise, he would not have needed to request the Office of the President for authority to use the savings.
 - Thus, COA correctly ruled on the matter at hand
- General rule in funding programs → the budgetary amount contained in the appropriations bill is the extent Congress will determine as sufficient for the budgetary allocation for the proponent agency.
 - Only exception is **Sec. 25(5), Art. VI of the Constitution** by which the President is authorized to transfer appropriations to augment any item in the GAA for their respective offices from the savings in other items of their respective appropriations.
- Petition ignored the important provisions in the 2000 GAA on the use of savings, under which the authority granted to the President was subject to two essential requisites in order that a transfer of appropriation from the agency's savings would be validly effected.
 1. There must be savings from the authorized appropriation of the agency.
 2. There must be an existing item/object of expenditure with an appropriation to which the savings would be transferred for augmentation purposes only.
- *Demetria v. Alba* → declared null and void a provision in PD 1177.
 - Overpowered the President to indiscriminately transfer funds from one department of the Executive to any activity of any department included in the GAA or approved after its enactment.
 - Without regard as to whether the funds transferred are actually savings in the item from which the same are to be taken or whether the transfer is for augmenting the item to which the said transfer is to be made.
- Consequently, the payment of the Magna Carta benefits for CY 2001 without a specific item or provision in the GAA and without due authority from the President to utilize the DOST's savings in other items for the purpose was repugnant to R.A. No. 8439, the Constitution, and the re-enacted GAA for 2001
- COA is generally accorded complete discretion in the exercise of its constitutional duty and responsibility to examine and audit expenditures of public funds.
 - The Court has sustained the decisions of administrative authorities like the COA not only on the basis of the doctrine of SOP but also upon recognition of their expertise. The Court renders their decisions with finality, if not tainted with grave abuse of discretion.
- Nonetheless, the DOST officials who caused the payment of the Magna Carta acted in good faith, so the disallowed benefits received in good faith need not be reimbursed to the government.

FINAL DECISION	WHEREFORE, the Court DISMISSES the petition for certiorari for lack of merit; AFFIRMS the decision issued on June 4, 2009 by the Commission Proper of the Commission on Audit in COA Case No.
-----------------------	---

	2009-045; and DECLARES that the covered officials and employees of the Department of Science and Technology who received the Magna Carta benefits for calendar year 2001 are not required to refund the disallowed benefits received.
--	---

MADERA V. COA (2020)

Topic Subtopic	Legislative Process - Requirements as to certain laws: Appropriation laws	GR No. & Ponente	G.R. No. 244128 Caguioa, J.
Petitioner/s	Mario M. Madera et al.	Respondent/s	Commission on Audit (COA) and COA Regional Office VIII
Doctrine	Approving and certifying officers are not civilly liable to return disallowed amounts when they acted in good faith, in the regular performance of their official functions, and with diligence. Liability attaches only upon a clear showing of bad faith, malice, or gross negligence, while recipients are generally liable only for amounts they received, subject to bona fide exceptions.		

FACTS

- Dec. 2013 → Municipality of Mondragon, Northern Samar passed and approved Sangguniang Bayan (SB) Ordinance No. 08 and SB Resolution Nos. 41, 42, 43, and 48 granting various allowances to its officials and employees. The allowances include the ff.
 - Economic Crisis Assistance (ECA)
 - Monetary Augmentation of Municipal Agency (MAMA)
 - Agricultural Crisis Assistance (ACA)
 - Mitigation Allowance to Municipal Employees (MAME)
- Financial assistance in view of increasing cost of commodities, inflation, agricultural shortage caused by Typhoon Yolanda, and the Municipality's vulnerability to calamities → total amount of ₱7,706,253.10
- On post-audit, the Audit Team Leader and Supervising Auditor of the Municipality issued 11 Notices of Disallowances (NDs) dated Feb. 20, 2014, covering the allowances in its total amount and holding the ff. Municipal officials liable:
 - Mayor Madera liable for certifying appropriations/allotments and approving payment + Accountant Mananguite for certifying the completeness of supporting documents + Treasurer Galing for certifying availability of funds + Budget Officer Pelo for certifying the existence of available appropriation + other payees as claimants/recipients of the allowances
- Petitioners appealed to the COA Regional Director arguing that the RA 7160 or the Local Government Code allowed the municipality to grant additional allowances + the allowances were a customary scheme + the appropriation ordinance had not been declared invalid.
 - COA Regional Director affirmed the NDs, holding that the grant of the allowances was subject to Sec. 12 of RA 6758 or the Salary Standardization Law, which deemed such allowances integrated into standardized salary rates.
 - COA RD also ruled that practice, no matter how long continued, could not give rise to a vested right if contrary to law.
 - Petitioners cannot claim that the subject allowances were given as financial assistance to the employees because good intention cannot be made an excuse for not adhering to the rules.
- Petitioners appealed to the COA, which affirmed the disallowances, but modified the ruling.
 - The officials and employees who unwittingly received the disallowed benefits or allowances are not held liable for their reimbursement since they are recipient-payees in good faith.
 - The approving officer and each employee who received the disallowed benefit or allowance are obligated, jointly and severally, to refund the amount received.
- Petitioners filed a Motion for Reconsideration with COA which was denied, so they filed a petition for certiorari under Rule 64 in relation to Rule 65 with the Supreme Court.
 - While petitioners maintain that the allowances were legal, they also raise the defense of good faith in order to not be held liable for the disallowed amounts.

ISSUE 1

Side – Procedural	W/N the petition for certiorari was timely filed under Rule 64	NO
RULING and RATIO DECIDENDI:		

- The petition was filed out of time → Rule 64 specifically provides that a petition for review of a COA judgment, final order, or resolution shall be filed within 30 days from notice.
 - Rule 65 applies only insofar as Rule 64 does not specifically provide the rules.
- Petitioners received the COA Resolution denying their MR on Nov. 12, 2018 → they had until Dec. 7, 2018 to file the petition, but they filed only on Jan. 11, 2019 (35 days after the last day of filing).
- Nonetheless, the Court relaxed the observance of procedural rules to advance substantial justice + the present petition provides an appropriate avenue to settle the conflicting jurisprudence on the liability for the refund of disallowed allowances.

ISSUE 2

Main – Substantive	W/N COA committed grave abuse of discretion in affirming the Notice of Disallowances for the ECA, MAMA, ACA, and MAME	NO
RULING and RATIO DECIDENDI:		
• The Court upheld the NDs against the subject allowances, finding no grave abuse of discretion on the part of the COA in affirming the disallowance. ◦ While Sec. 447(a)(1)(viii) of RA 7160 gives the Sangguniang Bayan authority to determine the allowances and other benefits of officials and employees paid from municipal funds, the municipality's compensation-setting power cannot prevail over Sec. 12 of RA 6758. ■ No law or administrative issuance authorizes the grant of the subject benefits. • <i>Veloso v. COA</i> → additional allowances and benefits must be shown to be necessary or relevant to the fulfillment of official duties and functions. ◦ Public funds must be used prudently to prevent dissipation and waste. • Thus, the grant of ECA, ACA, MAME, and MAMA to the officials and employees cannot be justified as a simple gesture of gratitude of the municipality to its employees for their great contribution to the delivery of public service.		

ISSUE 3

Main – Substantive	W/N petitioners, as approving and certifying officers, are civilly liable to return the disallowed amounts despite having acted in good faith	NO
RULING and RATIO DECIDENDI:		
<i>Bases for Responsibility/Liability</i> • Personal liability to return the disallowed amounts must be understood as civil liability based on the loss incurred by the government because of the transaction. ◦ Sec. 38 of the Administrative Code → “A public officer shall not be civilly liable for acts done in the performance of his official duties, unless there is a clear showing of bad faith, malice, or gross negligence.” ◦ Sec. 39 → “A subordinate officer or employee shall not be civilly liable for acts done by him in good faith in the performance of his duties.” • Thus, the civil liability of public officers is hinged on the fact that the public officers performed their official duties with bad faith, malice, or gross negligence. • COA issuances likewise recognize that an official's liability for disallowances depends upon his participation in the transaction involved. ◦ Responsibility and accountability do not necessarily give rise to liability for loss of gov't funds. <i>Badges of Good Faith</i> • To determine whether an authorizing officer exercised the diligence of a good father of a family, the Court adopts the following circumstances or badges of good faith: ◦ Certificates of Availability of Funds + in-house or Department of Justice legal opinion + no precedent disallowing a similar case in jurisprudence + traditionally practiced within the agency and no prior disallowance has been issued + reasonable textual interpretation on its legality		

- The presence of any of these factors may tend to uphold the presumption of good faith in the performance of official functions, which must always be examined relative to the circumstances attending therein.

Cases absolving recipients' liability to return based on good faith

- The Court presented jurisprudential history / evolution of the rule.
- History of the rule shows that the original formulation of the "good faith rule" excusing the return by payees based on good faith was not intended to be at the expense of approving and/or certifying officers.
 - Application of this judge made rule of excusing the payees and then placing upon the officers the responsibility to refund amounts they did not personally receive, commits an inadvertent injustice.

Nature of Payee Participation

- Excusing payees from return based on good faith is an exception, because civil liability must still be consistent with solutio indebiti and unjust enrichment.
 - Good faith of payees is not determinative of liability to return → payees who receive undue payment, regardless of good faith, are liable to return the amounts received, unless the Court excuses them.
- Passive payees are generally liable only for the amounts they individually received. They cannot be held solidarily liable with approving/certifying officers beyond their own receipt.
 - EXCEPT where the payee was actually entitled to the amount as a matter of fact or law, including amounts genuinely given in consideration of services rendered, there is no undue payment and no government loss.
- The Court may also recognize bona fide exceptions, such as undue prejudice, social justice, or humanitarian considerations.
 - Thus, amounts for which payees are excused from return do not automatically become the liability of approving/certifying officers.
 - Return remains governed by the principles of unjust enrichment and solutio indebiti.

The Rules on Return

- If the Notice of Disallowance is set aside by the Court → no return shall be required from any person held liable therein.
- If the Notice of Disallowance is upheld:
 - Approving and certifying officers who acted in good faith, in regular performance of official functions, and with the diligence of a good father of the family are not civilly liable to return.
 - Approving and certifying officers clearly shown to have acted in bad faith, malice, or gross negligence are solidarily liable to return only the net disallowed amount, excluding amounts excused in provisions.
 - Recipients are liable to return the disallowed amounts respectively received, unless they show that the amounts were genuinely given in consideration of services rendered.
 - The Court may excuse the return of recipients based on undue prejudice, social justice considerations, and other bona fide exceptions, on a case-to-case basis.
 - The assessment of good faith and regularity in the performance of official functions is likewise made case-to-case.
 - The guidelines on badges of good faith will aid in determining whether officers should be held solidarily liable.

As Applied to the Instant Case

- The Court holds that petitioners, as approving and certifying officers, need not refund the disallowed amounts because they acted in good faith.
- The allowances were primarily intended as financial assistance due to noble purposes.
 - While noble intention is not enough to declare the allowances valid, it supports petitioners' claim of good faith.
- The allowances had been customarily granted over the years, and COA had issued no previous ND against them, leading petitioners to believe they were lawful.
 - The Municipality stopped granting the allowances after the issuance of the NDs in 2014.
 - The customary scheme did not make the allowances valid, but it bolstered petitioners' claim of good faith.
 - Continued grant of an allowance after an ND would not automatically negate good faith, especially where there is sufficient or colorable legal basis.

- Petitioners relied on the SB Resolutions and Ordinance, which had not been invalidated, and believed they were sufficient legal bases for the allowances.
 - Local Government Code empowers the Sangguniang Bayan to approve ordinances and pass resolutions concerning allowances.
 - Following *Veloso v. COA*, reliance on ordinances may be considered a badge of good faith.
- There was no showing of bad faith such as dishonest purpose/moral obliquity, conscious doing of a wrong, ill will, fraud, furtive design or motive of self-interest.
 - Thus, their mistakes were not actionable absent a clear showing of malice or gross negligence amounting to bad faith → shielded from civil liability under Sec. 38 of Admin Code.
- As to the payees, the COA Proper had already excused the payees' return, so they no longer appealed.
 - Their return was properly excused not because of good faith, but because requiring them to return financial assistance intended to tide them over during a natural disaster would cause undue prejudice.

**FINAL
DECISION**

WHEREFORE, the instant petition is PARTIALLY GRANTED. The Commission on Audit Decision No. 2017-454 dated December 27, 2017 affirming the Notice of Disallowance Nos. 14-004-101 (2013) to 14-008-101 (2013) and 14-010-101 (2013) to 14-015-101 (2013) in the total amount of P7,706,253.10 is AFFIRMED with MODIFICATION that petitioners need not refund the said disallowed amount.

Tolentino v. Secretary of Finance (1994)

Topic Subtopic	Legislative Process - Requirements as to certain laws: Tax laws & Procedure for the passage of bills	GR No. & Ponente	G.R. Nos. 115455
Petitioner/s	ARTURO M. TOLENTINO	Respondent/s	THE SECRETARY OF FINANCE and THE COMMISSIONER OF INTERNAL REVENUE
Doctrine	The revenue bill, not the law itself, that must exclusively originate from the House. The Senate has the power to concur or amend the provisions of the bill proposed by the House. What comes after can be an entirely different version of the bill		

FACTS

VAT is levied on the sale, barter or exchange of goods and properties as well as on the sale or exchange of services. It is equivalent to 10% of the gross selling price or gross value in money of goods or properties sold, bartered or exchanged or of the gross receipts from the sale or exchange of services. RA 7716, or the Expanded Value-Added Tax Law seeks to widen the tax base of the existing VAT system and enhance its administration by amending the National Internal Revenue Code.

Various suits for certiorari and prohibition challenged the constitutionality of RA 7716.

Petitioners argue that in enacting Republic Act No. 7716 (Expanded Value-Added Tax Law), the Congress violated the Constitution because, although H. No. 11197 had originated in the House of Representatives, it was not passed by the Senate but was simply consolidated with the Senate version (S. No. 1630) in the Conference Committee to produce the bill which the President signed into law.

They cited Sections 24 and 26(2) of Article VI of the 1987 Constitution in support of the proposition that because Republic Act No. 7716 was passed in such manner¹, it did not originate in the House of Representatives and it has not thereby become a law.

Passage of the Bill

- Between Jul 22, 1992 and Aug 31, 1993, several bills were introduced in the House of Representatives (HOR) seeking to amend certain provisions of the NIRC relative to the VAT. These bills were referred to the House Ways and Means Committee, which recommended for approval a substitute measure: House Bill 11197.
 - November 6, 1993: Considered on second reading
 - November 17, 1993: Approved by HOR after third and final reading
 - November 23, 1993: Sent to the Senate and later referred to its Committee on Ways and Means
- February 7, 1994: Senate Committee submitted its report recommending approval of Senate Bill 1630. The bill was being submitted "in substitution of Senate Bill No. 1129, taking into consideration P.S. Res. No. 734 and HB No. 11197."
- February 8, 1994: Senate began consideration of S. No. 1630.
 - March 24, 1994: The Senate finished debates and approved it on second reading; and also on the same day, it approved the bill on third reading by affirmative votes of 13 members with one (1) abstention.
- H. No. 11197 and its Senate version S. No. 1630 were referred to a Conference Committee.
 - The committee met 4 times on April 13, 19, 21, and 25, 1994.
 - It recommended that "House Bill No. 11197, in consolidation with Senate Bill No. 1630, be approved in accordance with the attached copy of the bill as reconciled and approved by the conferees."
- The Conference Committee Bill entitled "An Act Restructuring the Value-Added Tax (VAT) System Widening Its Tax Base and Enhancing Its Administration and for these Purposes Amending and Repealing the Relevant Provisions of the National Internal Revenue Code, as amended, and for Other Purposes"
 - April 27, 1994: Approved by the HOR
 - May 2, 1994: Approved by the Senate

- May 5, 1994: Signed by the President
- RA 7716 was enacted.
 - May 12, 1994: It was published in two (2) newspapers of general circulation.
 - May 28, 1994: It took effect but its implementation was suspended until June 30 to give business entities time to register.
- It would have been enforced on July 1, 1994 but its enforcement was temporarily restrained by the Court (11-4 vote) on June 30, 1994.

ISSUE 1

Main – Procedural	Does RA 7716 violate Art. VI, Sec. 24 of the Constitution	NO
PETITIONER/S ARGUMENTS:		
Petitioners' contention is that Republic Act No. 7716 did not "originate exclusively" in the House of Representatives as required by Art. VI, § 24 of the Constitution, because it is in fact the result of the consolidation of two distinct bills, H. No. 11197 and S. No. 1630. To be considered as having originated in the House, Republic Act No. 7716 must retain the essence of H. No. 11197.		
RULING and RATIO DECIDENDI:		
It is not the law — but the revenue bill — which is required by the Constitution to "originate exclusively" in the House of Representatives. A bill originating from the house may undergo such extensive changes in the Senate that the result may be a rewriting of the whole. A distinct bill may be produced as a result of Senate action. To insist that it must substantially be the same as the House bill would: ● deny the Senate's power to “concur with amendments” and to “propose amendments.” ● violate the co-equality of legislative power of the two houses of Congress ● make the House superior to the Senate. The Constitution simply means that the initiative must come from the House, considering that in theory, they have a more grounded/local point of view. The Senate is expected to approach the problem from a national perspective. The Constitution does not prohibit the filing in Senate of a substitute bill in anticipation of its receipt of the bill from the House, so long as action by the Senate as a body is withheld pending receipt of the House bill.		
LEGAL BASES		
Art. VI, § 24: All appropriation, revenue or tariff bills, bills authorizing increase of the public debt, bills of local application, and private bills shall originate exclusively in the House of Representatives, but the Senate may propose or concur with amendments.		

ISSUE 2

Main – Procedural	Does RA 7716 violate Art. VI, Sec. 26(2) of the Constitution	YES
PETITIONER/S ARGUMENTS:		
S. No. 1630 did not pass three readings on separate days as required by the Constitution because the second and third readings were done on the same day		
RULING and RATIO DECIDENDI:		

The President certified S. No. 1630 as urgent. The presidential certification dispensed with the requirement not only of printing but also that of reading the bill on separate days.

Before a bill can be passed into a law, Sec. 26(2) Art VI must:

- (i) the bill has passed three readings on separate days and
- (ii) it has been printed in its final form and distributed three days before it is finally approved.

The "unless" clause must be read in relation to the "except" clause, because the two are really coordinate clauses of the same sentence.

It is nonetheless urged that the certification of the bill in this case was invalid because there was no emergency, the condition stated in the certification of a "growing budget deficit" not being an unusual condition in this country.

LEGAL BASES

Id., § 26(2): No bill passed by either House shall become a law **unless it has passed three readings on separate days**, and printed copies thereof in its final form have been distributed to its Members three days before its passage, **except when the President certifies to the necessity of its immediate enactment to meet a public calamity or emergency**. Upon the last reading of a bill, no amendment thereto shall be allowed, and the vote thereon shall be taken immediately thereafter, and the yeas and nays entered in the Journal.

ISSUE 3

Main – Substantive	W/N, in the passage of RA 7716, the Bicam Conference Committee exceeded the power granted to it – NO
--------------------	--

PETITIONER/S ARGUMENTS:

- The bill which became RA 7716 is the bill which the Conference Committee prepared by consolidating H. No. 11197 and S. No. 1630.
- The Conference Committee report included provisions not found in either the House bill or the Senate bill and that these provisions were "surreptitiously" inserted by the Conference Committee. Much is made behind closed doors.
- Under the respective Rules of the Senate and the House of Representatives a conference committee can only act on the differing provisions the bills
- Rules of the two chambers were likewise disregarded in the preparation of the Conference Committee Report because the Report did not contain a "detailed and sufficiently explicit statement of changes in, or amendments to, the subject measure."

RULING and RATIO DECIDENDI:

On the exclusive meeting:

- There is nothing unusual or extraordinary about the fact that the Conference Committee met in executive sessions.
- Often the only way to reach agreement on conflicting provisions is to meet behind closed doors, with only the conferees present. It is a way to compromise.
- Won't take any sinister motive attributed to the conferees just bc of their "secret meetings" or read into the incomplete remarks

On the possibility of an entire new bill emerging from a Conference Committee:

- The Court recently held that **it is within the power of a conference committee to include in its report an entirely new provision that is not found either in the House Bill or in the Senate Bill.**
- If the committee can propose an amendment consisting of one or two provisions, there is no reason why it cannot propose several provisions, collectively considered as an "amendment in the nature of a substitute," so long as such amendment is germane to the subject of the bills before the committee.

- The report was not final but needed the approval of both houses of Congress to become valid as an act of the legislative department.

On the conflicting provisions & Rules:

- Nothing in the Rules limits a conference committee to a consideration of only the conflicting provisions.
 - Rule XLIV, Section 112 of the Rules of the Senate is cited to the effect that "If there is no Rule applicable to a specific case, the precedents of the Legislative Department of the Philippines shall be resorted to."
- The Report used brackets and capital letters to indicate the changes – standard practice in bill drafting
 - The Court is not the proper forum for the enforcement of internal Rules.

On requiring that the Committee's Report must have undergone three readings in each house:

No reason for ^.

The nature of the bill requires that it be acted upon by each house on a "take it or leave it" basis, with the only alternative that if it is not approved by both houses, another conference committee must be appointed. → still result to a compromise measure

- Art 6, Sec 26(2) must be construed as referring only to bills introduced for the first time in either house of Congress, not to the conference committee report.
- We cannot say that, as a matter of fact, the members of Congress were not fully informed of the provisions of the bill.
- The allegation that the Conference Committee usurped the legislative power of Congress is, in our view, without warrant in fact and in law.
- The formal validity of RA7716 also has the basis on the enrolled bill doctrine.
- The law does not violate the one-subject one-title rule. While the Conference Committee bill removed the exemption of PAL transactions from VAT payment, the Court thinks it is still appropriate since the Title of the law states its purpose as expanding the VAT system. One way of doing it is to widen its base by withdrawing some of the exemptions granted before. → If included in the Title, it will be insisting that the Title be a complete index of its content
 - Congress also has the power to expressly amend PAL's franchise (PD No. 1590) by removing its VAT exemption, since it has the power to amend, alter or repeal the franchise it grants for the operation of public utility.

LEGAL BASES

Rules of the Senate

Rule XII:

§ Sec. 26. In the event that the Senate does not agree with the House of Representatives on the provision of any bill or joint resolution, the differences shall be settled by a conference committee of both Houses which shall meet within ten days after their composition.

Rules of the House of Representatives

Rule XIV:

§ Sec. 85. Conference Committee Reports. — In the event that the House does not agree with the Senate on the amendments to any bill or joint resolution, the differences may be settled by conference committees of both Chambers

ISSUE 4

Main – Substantive	W/N RA7716 violates press freedom?	NO
PETITIONER/S ARGUMENTS:		
Philippine Press Institute (PPI) and Philippine Bible Society (PBS) argue that their rights under Secs. 4 and 5 of Art. 3 are violated by the enactment of the VAT law.		

Republic Act No. 7716 results in print media becoming subject to VAT with respect to all aspects of their operations. PPI argues that withdrawing the exemption previously granted to print media transactions has singled out the press for discriminatory treatment.

RULING and RATIO DECIDENDI:

BOR 1 - due process of law + equal protection
 BOR 4 - freedom of speech, of expression, or of the press, or the right to assemble
 BOR 5 - freedom of religion
 BOR 10 - non-impairment of contracts

Press Freedom

The Court says that if the press is now required to pay VAT on its gross receipts of newspapers from advertisements and on their acquisition of paper, ink and services for publication, it is not because it is being singled out, much less targeted, for special treatment but only because of the removal of the exemption previously granted to it by law. → no violation of press freedom, press is not immune from general regulation by the State. Like others, he must pay equitable and nondiscriminatory taxes on his business

The withdrawal of exemption is all that is involved in these cases. Other transactions, likewise previously granted exemption, have been delisted as part of the scheme to expand the base and the scope of the VAT system. The law would perhaps be open to the charge of discriminatory treatment if the only privilege withdrawn had been that granted to the press. But that is not the case.

RA 7716 applies to a wide range of goods and services. The limitations do not apply to the press alone, but to all sales. The registration fee in the VAT system is a mere administrative fee, it is not imposed on the exercise of a privilege, much less a constitutional right.

The attack on RA 7716 on the ground that it offends the free speech, press and freedom of religion guarantees of the Constitution to be without merit.

For the same reasons, we find the claim that the increase in the price of books and other educational materials as a result of the VAT would violate the constitutional mandate to the government to give priority to education, science and technology (Art. II, sec. 17) to be untenable.

ISSUE 5

Main – Substantive	Does RA 7716 violate Art. 6, Sec. 28?	NO
PETITIONER/S ARGUMENTS:		
Taxation must be progressive; It denies the petitioners' right to due process and equal protection.		
RULING and RATIO DECIDENDI:		
<i>Claims of Regressivity, Denial of Due Process, Equal Protection and Impairment of Contracts</i> No justification for the Court upon the claims that the law also violates the rule that taxation must be progressive and that it denies petitioners' right to due process and the equal protection of the laws. → These claims are mere academic discussion of the merits of the law, since there is an absence of threat of immediate harm. No proof that these specific rights of the petitioners are being affected In view of the absence of a factual foundation of record, claims that the law is regressive, oppressive and confiscatory and that it violates vested rights protected under the Contract Clause are prematurely raised and do not justify the grant of prospective relief by writ of prohibition. The Legislature is also not required to adhere to a policy of "all or none" in choosing the subject of taxation, with regard to which cooperatives are exempt from the tax and those that are not.		

Regressivity is not a negative standard for courts to enforce. What Congress is required by the Constitution to do is to "evolve a progressive system of taxation." This is a directive to the Congress, but not a judicially enforceable right.

On Impairment of Contracts - this has never been thought as a limitation on the exercise of the State's power of taxation save only where a tax exemption has been granted for a valid consideration (also not the case for the removal of the PAL exemption)

This case is not ripe for adjudication, and does not warrant to invoke the Court's judicial review.

**FINAL
DECISION**

We hold:

- (1) That the procedural requirements of the Constitution have been complied with by Congress in the enactment of the statute;
- (2) That judicial inquiry whether the formal requirements for the enactment of statutes — beyond those prescribed by the Constitution — have been observed is precluded by the principle of separation of powers;
- (3) That the law does not abridge freedom of speech, expression or the press, nor interfere with the free exercise of religion, nor deny to any of the parties the right to an education; and
- (4) That, in view of the absence of a factual foundation of record, claims that the law is regressive, oppressive and confiscatory and that it violates vested rights protected under the Contract Clause are prematurely raised and do not justify the grant of prospective relief by writ of prohibition.

WHEREFORE, the petitions in these cases are **DISMISSED**.
SO ORDERED.

SEPARATE OPINION/S – waiting from main block digest

SURNAME, CJ/J,
dissenting/concurring

SURNAME, CJ/J,
dissenting/concurring

SURNAME, CJ/J,
dissenting/concurring

LUNG CENTER OF THE PHILIPPINES v. QUEZON CITY (2004)

Topic Subtopic	Congress Reqs. as to Certain Laws Tax Laws	GR No. & Ponente	GR NO. 144104 CALLEJO, SR., J
Petitioner/s	LUNG CENTER OF THE PHILIPPINES	Respondent/s	QUEZON CITY and CONSTANTINO P. ROSAS (City Assessor of QC)
Doctrine	Sec. 28(3), Art. VI: Charitable institutions... and all lands, buildings, and improvements, <u>actually, directly and exclusively</u> used for religious, charitable or educational purposes shall be exempt from taxation.		

FACTS**Lung Center of the Philippines**

- Non-stock and non-profit entity est. Jan 16, 1981 by virtue of PD 1823
- Registered owner of a parcel of land in Quezon City where: in the middle is the Lung Center of the Phil, ground floor is being leased to priv. parties, for canteen and small store spaces and medical or professional practitioners for their private clinics. ½ of the left side is vacant and idle, where right side is for commercial purposes, Elliptical Orchids and Garden Center
- Accepts both paying and non-paying patients and out-patients, and receives annual subsidies from the government

June 7 1993: Both the land and hospital building were assessed for real property taxes

Aug 25, 1993: Petitioner filed a Claim for Exemption from real property taxes on the claim that it is a charitable institution

- **City Assessor** denied → **Local Board of Assessment Appeals of QC** dismissed → **Central Board of Assessment Appeals of QC** affirmed QC-LBAA's decision → **CA** affirmed CBAA's decision (petitioner was not a charitable institution and that its real properties were not actually, directly and exclusively used for charitable purposes; hence, it was not entitled to real property tax exemption under the constitution and the law)

ISSUE 1

Main Substantive	– W/N the Lung Center of the Philippines is a charitable institution within the context of PD 1823, the 1973 Consti, 1987 Consti, and Sec. 234(b) of RA 7160	YES
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
• Its character as a charitable institution is not altered by the fact that it admits paying patients, leases to private parties, and rents out to private medical practitioners from which it derives income for operational expenses. • Its out-patients were charity patients and 60% or 170 of its beds are allotted for charity patients • “Exclusivity” ≠ “solely” • Even if PD 1823 does not exempt it, it is not precluded from seeking exemption under 1987 Consti		• LCP failed to prove that that it is a charitable institution and that the said property is actually, directly, and exclusively used for charitable purposes • There were graft charges against director of petitioner and proprietress of Elliptical Orchids and Garden Center for entering into a lease contract for only 20k/mo when it should be 357k/mo, and instead of complying with COA directive, renewed for 24k/mo • Uses subsidies for charity patients, and its income from property for paying patients • Failed to adduce evidence that 100% of its out-patients and 170 beds are reserved for indigent patients • Before a patient is admitted, it is presumed that it is a pay-patient and must first pay a deposit. And without settling bill, poor patient are not allowed to leave the hospital
RULING and RATIO DECIDENDI:		
Petitioner is a charitable institution within the context of the 1973 Constitution and 1987 Constitution. • “Charity” - a gift, to be applied consistently with existing laws, for the benefit of an indefinite number of		

persons by assisting them to establish themselves in life or otherwise lessening the burden of govt

- The test whether an enterprise is charitable or not: whether it exists to carry out a purpose reorganized in law as charitable or whether it is maintained for gain, profit, or private advantage.
- PD 1823: the petitioner is a non-profit and non-stock corporation. It was organized for the welfare and benefit of the Filipino people principally to help combat the high incidence of lung and pulmonary diseases in the PH.
 - the Government intends to provide material and financial support towards the establishment and maintenance of a Lung Center for the welfare and benefit of the Filipino people → similar indications were also spelled out in its Articles of Incorporation
 - The medical services of the petitioner are to be rendered to the public in general in any and all walks of life including those who are poor and the needy without discrimination.
- As a general principle, a charitable institution does not lose its character as such and its exemption from taxes simply because it derives income from paying patients or receives subsidies from the govt, so long as the money received is devoted to the charitable object which it is intended to achieve, and no money inures to the private benefit of the persons managing the institution
- Under PD 1823: the petitioner is entitled to receive donations. Thus, it does not lose its character as a charitable institution simply because the gift or donation is in the form of subsidies granted by the govt
- There is substantial evidence that the petitioner spent its income and government subsidies for its patients and for the operation of the hospital, even incurring a net loss in 2 years from its operations.

ISSUE 2

Main – Substantive	W/N the real properties of the petitioner are exempt from real property taxes	PARTIALLY
--------------------	---	-----------

RULING and RATIO DECIDENDI:

The Court holds that those portions of its real property that are leased to private entities are not exempt from real property taxes as these are not actually, directly, and exclusively used for charitable purposes.

- Laws granting exemption from tax are construed strictissimi juris against the taxpayer and liberally in favor of the taxing power. *Taxation is the rule and exemption is the exception.* Hence, exemption must be clearly shown and based on language too plain to be mistaken.
- PD 1823: “All donations, contributions, endowments, equipment and supplies **for the actual use and benefit of the Lung Center** shall be exempt from income and gift taxes, the same further deductible in full for the purpose of determining the maximum deductible amount under Sec. 30, par. (h), of the NIRC.”
 - “LCP shall be exempt from the payment of taxes, charges and fees imposed by the Govt or any political subdivision or instrumentality thereof with respect to equipment purchases made by, or for the Lung Center”
 - **Under the decree, the petitioner does not enjoy any property tax exemption privileges for its real properties as well as the building constructed thereon.**
- The exemption must not be so enlarged by construction since the reasonable presumption is that the State has granted in express terms all it intended to grant at all

Sec. 28(3), Art. VI: Charitable institutions, churches and parsonages or convents appurtenant thereto, mosques, non-profit cemeteries, and all lands, buildings, and improvements, *actually, directly and exclusively* used for religious, charitable or educational purposes shall be exempt from taxation.

- The tax exemption under this constitutional provision covers **property taxes** only. CJ Davide Jr. (ConCom member) - “. . . what is exempted is not the institution itself . . .; those exempted from real estate taxes are lands, buildings and improvements actually, directly and exclusively used for religious, charitable or educational purposes.”
- Implemented in the Sec234(b) of the LGC - Exemptions from Real Property Tax.
- Under 1935 Consti: used “exclusively”. However, under 1973 and 1987 Consti, “actually, directly, and exclusively” for charitable purposes. Thus, LCP cannot rely in *Herrera v. QCBA* (before 1973 and 1987 Consti)

- Under the 1973 and 1987 Constitutions and Rep. Act No. 7160 in order to be entitled to the exemption, the petitioner is burdened to prove, by clear and unequivocal proof, that
 - (a) it is a charitable institution; and
 - (b) its real properties are ACTUALLY, DIRECTLY and EXCLUSIVELY used for charitable purposes.
- “Exclusive” - possessed and enjoyed to the exclusion of others; debarred from participation or enjoyment
 - “Exclusively” - in a manner to exclude; as enjoying a privilege exclusively
 - If RP is used for 1 or more commercial purposes, it is not exclusively used for exempted provision but is subject to taxation
- “Actual, direct, and exclusive use” of the property = the direct and immediate and actual application of the property to the purposes the charitable institution is organized; the use of the income is not determinative
 - **The petitioner failed to discharge its burden to prove that the entirety of its real property is actually, directly and exclusively used for charitable purposes**
 - **Other portions of the hospital are leased to private individuals for their clinics and a canteen; Portion of land is being leased for a business enterprise “Elliptical Orchids and Garden Center” - these parts are not exempt from RP taxes**
 - **Portions of land occupied by the hospital and portions of the hospital used for its patients, whether for paying or non-paying, are exempt from RP taxes**

**FINAL
DECISION**

The petition is PARTIALLY GRANTED. The respondent Quezon City Assessor is hereby DIRECTED to determine, after due hearing, the precise portions of the land and the area thereof which are leased to private persons, and to compute the real property taxes due thereon as provided for by law.

GARCIA V. EXECUTIVE SECRETARY (1992)

Topic Subtopic	Legislative Process - Requirements as to certain laws: Tax laws	GR No. & Ponente	G.R. No. 101273 J. Feliciano
Petitioner/s	Cong. Enrique T. Garcia (Second District of Bataan)	Respondent/s	Executive Secretary et al.
Doctrine	Congress may delegate to the President the authority to fix tariff rates, within specified limits and subject to the conditions prescribed by law.		

FACTS

- Nov. 27, 1990 → EO 438 imposed an additional duty of 5% ad valorem on all imported articles. This was subsequently increased to 9% ad valorem through **EO 443**.
- July 24, 1991 → DoF requested the Tariff Commission to initiate the process for the imposition of a specific levy on crude oil & other petroleum products.
 - Covered by HS Heading Nos. 27.09, 27.10 and 27.11 of Sec. 104 of the Tariff and Customs Code
 - Tariff Commission scheduled a public hearing to give interested parties an opportunity to be heard and to present evidence in support of their respective positions.
- Aug. 15, 1991 → **EO 475** was issued reducing the rate of additional duty on all imported articles from 9% back to 5% ad valorem, except in the cases of crude oil & other oil products which continued to be subject to 9% ad valorem.
- Upon completion of the public hearings, the Tariff Commission submitted to the President a "Report on Special Duty on Crude Oil and Oil Products" for consideration and appropriate action.
 - EO 478** → levied (in addition to the 9% additional duty) a special duty of P0.95 per liter / P151.05 per barrel of imported crude oil + P1.00 per liter of imported oil products.
- Garcia filed the present petition for certiorari, prohibition and mandamus assailing the validity of EO 475 and 478 for violating Sec. 24, Art. VI of the 1987 Constitution + Sec. 401 of the Tariff Customs Code
 - Sec. 24** → *All appropriation, revenue or tariff bills, bills authorizing increase of the public debt, bills of local application, and private bills shall originate exclusively in the House of Representatives, but the Senate may propose or concur with amendments.*
 - since the Constitution vests the authority to enact revenue bills in Congress, the President may not assume such power of issuing Executive Orders Nos. 475 and 478 which are in the nature of revenue-generating measures
 - Sec. 401** → Authorizes the President (according to the petitioner) to increase/reduce/remove tariff duties or to impose additional duties *only* when necessary to protect local industries but *not* for the purpose of raising additional revenue for the government.

ISSUE 1

Side – Procedural	W/N the recent promulgation of EO 517 rendered the instant petition moot and academic	NO
-------------------	---	----

RULING and RATIO DECIDENDI:

- Apr. 30, 1992 → EO 517 was promulgated, with Sec. 1 lifting the additional duty imposed on all imported articles as prescribed by the provisions of EO 443, as amended.
 - "Provided, however, that the selected articles covered by HS Heading Nos. 27.09 and 27.10 of Section 104 of the Tariff and Customs Code, as amended... shall continue to be subject to the additional duty of nine (9%) percent ad valorem."*
- Under the above quoted provision, crude oil & other oil products continue to be subject to the additional duty of 9% ad valorem under EO 475 and to the special duty of P0.95 per liter of imported crude oil & P1.00 per liter of imported oil products under EO 478.
- Thus, it is not rendered moot and academic

ISSUE 2

Main – Substantive	W/N EO 475 and EO 478 are constitutional	YES
RULING and RATIO DECIDENDI: • Sec. 24, Art. VI of the Constitution → “All appropriation, revenue or tariff bills... shall originate exclusively in the House of Representatives, but the Senate may propose or concur with amendments.” ◦ HOWEVER, in Sec. 28(2), Art. VI → There is thus explicit constitutional permission for Congress to authorize the President "subject to such limitations and restrictions as [Congress] may impose" to fix "within specific limits" "tariff rates . . . and other duties or imposts" • Secs. 104 and 401 of the Tariff and Customs Code, as invoked by the President in promulgating the EOs ◦ Sec. 104 → “<i>The rates of duty herein provided or subsequently fixed... shall be subject to periodic investigation by the Tariff Commission and may be revised by the President...</i>” ◦ Sec. 401 → “<i>In the interest of national economy, general welfare and/or national security, the President... is hereby empowered to increase, reduce or remove existing protective rates of import duty... and to impose an additional duty on all imports not exceeding 10% ad valorem whenever necessary.</i>” • Court rejected the argument that the President is not authorized to act under the Tariff and Customs Code because EOs 478 and 475 have nothing to do with the protection of local industries & products for the sake of national economy, general welfare, and/or national security ◦ Nothing in the language of Secs. 104 or 401 that suggest such limitation of authority ◦ “Protective” and “protection” in these Secs. are not enough to support the Petitioner’s sought limitation ◦ Theory collides with the fact that the Bureau of Customs is one of the two principal traditional generators of governmental revenue, the other being Bureau of Internal Revenue ◦ Customs duties are very much like taxes which are frequently imposed both for revenue-raising and regulatory purposes. Thus, it has been held that "customs duties" is "the name given to taxes on the importation and exportation of commodities, the tariff or tax assessed upon merchandise imported from, or exported to, a foreign country." ◦ The levying of custom duties on imported goods can be seen as “protecting local industries” if the a) such local industries actually exist and b) are producing comparable goods ◦ At the same time, the very same custom duties have the effect of producing govt revenues ◦ Section 401 of the Tariff and Customs Code establishes general standards with which the exercise of the authority delegated by that provision to the President must be consistent: that authority must be exercised in "the interest of national economy, general welfare and/or national security." ◦ The concept of the “protection of local industries” as the only permissible objective for the exercise of that delegated authority is stiflingly narrow → Court cannot build it into the Constitution and Customs Law. • Accordingly, we believe and so hold that Executive Orders Nos. 475 and 478 which may be conceded to be substantially moved by the desire to generate additional public revenues, are not, for that reason alone, either constitutionally flawed, or legally infirm under Section 401 of the Tariff and Customs Code.		
FINAL DECISION	WHEREFORE, premises considered, the Petition for Certiorari, Prohibition and Mandamus is hereby DISMISSED for lack of merit. Costs against petitioner. SO ORDERED.	

John Hay PAC v. Lim (2003)

Topic Subtopic	Legislative Process - Requirements as to certain laws: Tax laws	GR No. & Ponente	[G.R. No. 119775. October 24, 2003.]
Petitioner/s	JOHN HAY PEOPLES ALTERNATIVE COALITION et al	Respondent/s	VICTOR LIM, PRESIDENT, BASES CONVERSION AND DEVELOPMENT AUTHORITY, et al
Doctrine			

FACTS

RA7227 - Bases Conversion and Development Act of 1992 -

- Set out the policy of the government to accelerate the sound and balanced conversion into alternative productive uses of the former military bases under the 1947 PH-USA Military Bases Agreement, namely, the Clark and Subic military reservations, as well as their extensions including the John Hay Station (Camp John Hay or the camp) in the City of Baguio
- Created Bases Conversion and Development Authority (BCDA)
- Created Subic Special Economic [and Free Port] Zone (Subic SEZ) → w/ incentives ranging from tax and duty-free importations, exemption of businesses therein from local and national taxes, to other hallmarks of a liberalized financial and business climate
- Expressly gave authority to the President to create, through executive proclamation, subject to the concurrence of the LGUs directly affected, other Special Economic Zones (SEZ) in the areas covered respectively by the Clark military reservation, the Wallace Air Station in San Fernando, La Union, and Camp John Hay
- Aug 16, 1963 - BCDA entered into a MOA and Escrow Management with Tuntex (B.V.I.) Co., Ltd. (TUNTEX) and Asiaworld Internationale Group, Inc. (ASIAWORLD), private corporations registered under the laws of the British Virgin Islands. This was preparatory to the formation of a joint venture for the development of Poro Point in La Union and Camp John Hay as premier tourist destinations and recreation centers
- Dec 16, 1993 - BCDA, TUNTEX and ASIAWORLD executed a Joint Venture Agreement → make joint venture company - "Baguio International Development and Management Company → lease areas within Camp John Hay and Poro Point to make it principal tourist and recreation spots

Baguio City Govt Actions

- Resolution of Sept 29, 1993 - Sangguniang Panlungsod of Baguio City (the sanggunian) officially asked BCDA to exclude all the barangays partly or totally located within Camp John Hay from the reach or coverage of any plan or program for its development.
- Resolution dated Jan 19, 1994 - the sanggunian sought from BCDA an abdication, waiver or quitclaim of its ownership over the home lots being occupied by residents of 9 barangays surrounding the military reservation.
- Resolution dated Feb 21, 1994 - Sanggunian adopted and submitted a 15-point concept for CJH Devt. (protect environment, family-oriented tourist destination, prioritize employment opps for Baguio residents, etc.)
- BCDA, TUNTEX and ASIAWORLD agreed to some, and rejected/modified others. They stressed the need to declare CJH a SEZ as a condition precedent to its full development in accordance with the mandate of RA7227
- Res dated May 11, 1994 - Sanggunian requesting the Mayor to order the determination of realty taxes w/c may otherwise be collected from real properties of CJH. → guide Sanggu on whether CJH may be declared a SEZ (w/c would exempt the camp's property and economic activity from local or national taxation)
- Res No. 255 - sought FVR's issuance of a presidential proclamation declaring 288.1 hectares of the CJH as a SEZ, in accordance with RA7227. It submitted a draft of the proposed proclamation for the Pres' consideration
- July 5, 1994 - FVR issued **Proclamation No. 420** - "CREATING AND DESIGNATING A PORTION OF THE AREA COVERED BY THE FORMER CAMP JOHN [HAY] AS THE JOHN HAY SPECIAL ECONOMIC ZONE PURSUANT TO REPUBLIC ACT NO. 7227." which established a SEZ on a 288.1/677 hectares of CJH
- Petitioners filed a PT for prohibition, mandamus and declaratory relief challenging the constitutionality of

Proclamation No. 420, as well as the legality of the MOA and JVA between BCDA and TURNTEX and ASIAWORLD.

- Questions about the MOA and JVA between BCDA and TURNTEX and ASIAWORLD → already rendered moot and academic by the revocation of such agreements

ISSUE 1

Side – Procedural	W/N the direct resort of this case to the SC is valid?	YES
RULING and RATIO DECIDENDI:		
• Court will not entertain direct resort to it except when the redress sought cannot be obtained in the proper courts, or when exceptional and compelling circumstances warrant availment of a remedy within and calling for the exercise of this Court's primary jurisdiction. Neither will it entertain an action for declaratory relief, which is partly the nature of this petition, over which it has no original jurisdiction • However, under Sec 21 of RA7227, only the Supreme Court has the power to enjoin the implementation of projects for the development of the former US military reservations. → what the Petitioners prayed for → Thus, direct filing is allowed • Remanding the case to lower courts now would just unduly prolong the adjudication of the issues • Court will take cognizance of the case because turning CJH as a SEZ assumes importance of national magnitude in view of the nature of the conversion, benefits to be derived, as well as the environmental and social concerns in the case.		

ISSUE 2

Side – Procedural	W/N the PT complies with the judicial review requisites	YES
RULING and RATIO DECIDENDI:		
• Controversy - real clash of interests and rights between petitioners and respondents arising from the issuance of a presidential proclamation that converts a portion of the area covered by Camp John Hay into a SEZ, the former insisting that such proclamation contains unconstitutional provisions, the latter claiming otherwise. • Standing - the interest of petitioners, being inhabitants of Baguio, in assailing the legality of Proclamation No. 420, is personal and substantial such that they have sustained or will sustain direct injury as a result of the government act being challenged. – at stake: economic and social existence of Baguio City people • petitioners Edilberto T. Claravall and Lilia G. Yaranon were duly elected councilors of Baguio at the time, who voted against Sanggunian Res. 225 which supported the issuance of Proclamation No. 420 • Mootness - immaterial. • Earliest Opportunity + Very Lis Mota of the Case - Met. This is an action filed purposely to bring forth constitutional issues, ruling on which this Court must take up		

ISSUE 3

Main Substantive	W/N Proclamation No. 420 is constitutional by providing for national and local tax exemption within and granting other economic incentives to the John Hay SEZ	NO
PETITIONER/S ARGUMENTS:		
Petitioners argue that nowhere in R.A. No. 7227 is there a grant of tax exemption to SEZs yet to be established in base areas, unlike the grant under Section 12 thereof of tax exemption and investment incentives to the therein established Subic SEZ. The grant of tax exemption to the John Hay SEZ thus contravenes Article VI, Section 28(4) of the Constitution which provides that "No law granting any tax exemption shall be passed without the concurrence of a majority of all the members of Congress."		
RULING and RATIO DECIDENDI:		

Sec 3, 2nd sentence of Proclamation No. 420 - Among others, *the zone shall have all the applicable incentives of the Special Economic Zone* under Section 12 of Republic Act No. 7227 and those applicable incentives granted in the Export Processing Zones, the Omnibus Investments Code of 1987, the Foreign Investment Act of 1991, and new investment laws that may hereinafter be enacted

- Court examined RA7227. It is clear that under Section 12 of R.A. No. 7227, it is only the Subic SEZ which was granted by Congress with tax exemption, investment incentives and the like. There is **no express extension of the aforesaid benefits to other SEZs still to be created** at the time via presidential proclamation
- Senate deliberations confirmed the exclusivity of the tax and investment privileges to Subic SEZ, as affording the same privileges to to-be-created SEZs via a President Proclamation may be an unwarranted delegation.
- Under Sec 12 RA 7227 - Subic has the ff privileges: exemption from tariff or customs duties, national and local taxes of business entities therein (paragraphs (b) and (c)), free market and trade of specified goods or properties (paragraph d), liberalized banking and finance (paragraph f), and relaxed immigration rules for foreign investors (paragraph g)
- Proclamation No. 420 grants to the John Hay SEZ the above **PLUS** benefits existing in other laws such as the privilege of export processing zone-based businesses of importing capital equipment and raw materials free from taxes, duties and other restrictions; tax and duty exemptions, tax holiday, tax credit, and other incentives under the Omnibus Investments Code of 1987; and the applicability to the subject zone of rules governing foreign investments in the Philippines
- These grants cannot be sustained. The incentives under R.A. No. 7227 are exclusive only to the Subic SEZ, hence, the extension of the same to the John Hay SEZ finds no support therein

Who Can Vest the Privileges

- More importantly, **the nature of most of the assailed privileges is one of tax exemption**. It is the **legislature**, unless limited by a provision of the state constitution, that has full power to exempt any person or corporation or class of property from taxation. Other than Congress, the Constitution may itself provide for specific tax exemptions, or local governments may pass ordinances on exemption only from local taxes.
- The challenged grant of tax exemption would circumvent the Constitution's imposition that a law granting any tax exemption must have the concurrence of a majority of all the members of Congress.
- The other privileges given to John Hay SEZ are also, by tradition and usage, what Congress legislates on
- The claimed statutory exemption of the John Hay SEZ from taxation should be manifest and unmistakable from the language of the law on which it is based; it must be expressly granted in a statute stated in a language too clear to be mistaken.
- Tax exemption cannot be implied as it must be categorically and unmistakably expressed.
- If it were the intent of the legislature to grant to the John Hay SEZ the same tax exemption and incentives given to the Subic SEZ, it would have so expressly provided in the R.A. No. 7227.

This Court then declares that the grant by Proclamation No. 420 of tax exemption and other privileges to the John Hay SEZ is void for being violative of the Constitution.

ISSUE 4

Side – Substantive	W/N Proclamation No. 420 is constitutional for limiting or interfering with the local autonomy of Baguio City	YES
PETITIONER/S ARGUMENTS:		
Petitioners argue that there is no authority of the President to subject the John Hay SEZ to the governance of BCDA which has just oversight functions over SEZ; and that to do so is to diminish the city government's power over an area within its jurisdiction, hence, Proclamation No. 420 unlawfully gives the President power of control over the local government instead of just mere supervision.		
RULING and RATIO DECIDENDI:		

- Under R.A. No. 7227, the BCDA is entrusted with owning, holding and/or administering the military reservations of John Hay Air Station.
- With such broad rights of ownership and administration vested in BCDA over Camp John Hay, BCDA virtually has control over it, subject to certain limitations provided for by law.
- By designating BCDA as the governing agency of the John Hay SEZ, the law merely emphasizes or reiterates the statutory role or functions it has been granted

- However, the entire Proclamation No. 420 cannot be declared unconstitutional, as the other parts (except Sec. 3 2nd sentence) is not repugnant to the law or the Consti.
- The delineation and declaration of a portion of the area covered by Camp John Hay as a SEZ was well within the powers of the President to do so by means of a proclamation.
- The requisite prior concurrence by the Baguio City government to such proclamation appears to have been given in the form of a duly enacted resolution by the sanggunian. The other provisions of the proclamation had been proven to be consistent with R.A. No. 7227.
- Sec 3 2nd sentence is separable from the rest of the provisions, thus the latter stands.

**FINAL
DECISION**

WHEREFORE, the second sentence of Section 3 of Proclamation No. 420 is hereby declared NULL AND VOID and is accordingly declared of no legal force and effect.
Public respondents are hereby enjoined from implementing the aforesaid void provision. Proclamation No. 420, without the invalidated portion, remains valid and effective.
SO ORDERED

Appendix: Digests Beyond Midterm Coverage

FABIAN v DESIERTO (1998)

Topic Subtopic		GR No. & Ponente	
Petitioner/s		Respondent/s	
Doctrine			

FACTS

--

ISSUE 1

Main – Procedural Main – Substantive Side – Procedural Side – Substantive	W/N	YES/NO/UNDECIDED
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:	
RULING and RATIO DECIDENDI:		
LEGAL BASES		

ISSUE 2

Main – Procedural Main – Substantive Side – Procedural Side – Substantive	W/N	YES/NO/UNDECIDED
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:	
RULING and RATIO DECIDENDI:		
LEGAL BASES		

FINAL DECISION	
----------------	--

SEPARATE OPINION/S

SURNAME, CJ/J, <i>dissenting/concurring</i>	
SURNAME, CJ/J, <i>dissenting/concurring</i>	
SURNAME, CJ/J, <i>dissenting/concurring</i>	

Carpio-Morales v. Court of Appeals (November 10, 2015)

Topic Subtopic	Appellate Jurisdiction	GR No. & Ponente	[G.R. Nos. 217126-27] Perlas-Bernabe, J.
Petitioner/s	Conchita Caprio-Morales (In her capacity as the Ombudsman)	Respondent/s	Court of Appeals (6th Div) Jejomar Erwin S. Binay Jr.
Doctrine	Congress cannot issue legislation that expands the appellate jurisdiction of the Court without its consent, nor can it create or interfere with the Court's exclusive power to promulgate the Rules of Procedure for the courts.		

FACTS

A Petition for certiorari and prohibition assailing 1.) the resolution of Respondent Court of Appeals (CA) granting private respondent's (Binay Jr.) prayer for TRO against the implementation of the Joint Order of the Ombudsman preventively suspending him and other officers of the City Govt. of Makati for 6 months w/o pay; and 2.) the CA ordering the Ombudsman to comment of private Resp's petition for contempt

TLDR: A complaint was filed before the Ombudsman accusing Binay Jr. of violation of RA 3019 for participation/execution of anomalous awards for the 5 phases of the Makati City Hall Parking Building. The Ombudsman investigated, charged him (referred to as the OMB cases), and issued a preventative suspension order on Binay Jr during the pendency of the OMB cases. Binay Jr. filed a petition for certiorari before the CA arguing that he could not be held liable since phase 1 and 2 happened before his term, and phases 3-5 happened during his 1st term, BUT his re-election to a 2nd term as City Mayor of Makati condoned his administrative liability (waw, condonation doctrine). The CA enjoined the preventive suspension order, finding merit in Binay Jr's Condonation Doctrine. Binay Jr. would then file a petition for contempt against the Ombudsman which ordered her to file her comments on why she should not be held in contempt for disobeying a court order to cease the preventative suspension. As such, the Ombudsman files this present petition assailing the CA's order granting the TRO and the contempt order.

22 July, 2014: **A complaint was filed before the Ombudsman against private Binay Jr. et al accusing them of plunder and violation of RA 3019** (Anti-Graft and Corrupt Practices Act) in connection with the 5 phases of the procurement and construction of the Makati City Hall Parking Building

- Complaints allege that **during his 1st term**, he was involved in the awardings and executed contracts for phases 3 - 5 of the Makati Building Project. **During his 2nd term** he approved the release of funds for the the remaining balance of the remaining contracts

The Ombudsman created a Special panel to conduct preliminary investigations, they **charged private respondents with 6 administrative cases for Grave Misconduct, Serious Dishonesty, and Conduct prejudicial to the Best Interest of the Service, and 6 criminal cases for violation of Sec 3(e) RA 3019, Malversation of Public Funds, and Falsification of Public Documents (OMB Cases)**

- A 2nd special panel conducted preliminary investigation and administrative adjudication on the OMB cases. They issued orders requiring Binay Jr. et al to file their counter-affidavits.

Upon filing of the counter-affidavits, **the Ombudsman issued a preventative suspension order, placing Binay Jr. Et al under preventative suspension for not more than 6 months w/o pay, during the pendency of the OMB cases.**

Before the CA

Private Resp. Binay Jr. filed a petition for certiorari before the CA seeking the nullification of the preventative suspension order with a prayer for TRO/Writ of Preliminary Injunction (WPI)

- **Private Resp argued that he could not be held administratively liable** for the anomalous activity since phase 1 and 2 happened before he was elected. **Stages 3-5 happened during his 1st term and his re-election as City Mayor of Makati condoned his administrative liability. (Condonation Doctrine)**
- **Alleged that the Ombudsman's preventive suspension order failed to show that the evidence of guilt presented against him is strong.**

In the meantime, the implementation of the preventative suspension order was underway, Makati City Vice Mayor Romulo V. Pena Jr was administered the oath and assumed office as acting mayor.

The CA would issue a resolution granting Binay Jr's prayer for TRO

- **Binay Jr. then filed a petition for contempt**, accusing Sec Roxas, Director Brion, officials of National Police, Vice Mayor Pena Jr, and later on Petitioner was impleaded as well, for refusing to obey the CA, obstructing justice, and ignoring the TRO issued. (These people were doing things in the background with regards to implementing the preventative suspension order)

Before the Court (Petitioner-Respondent Arguments mostly)

The Ombudsman filed this present petition initially assailing the CA's resolution granting the TRO and CA order directing her to file a comment on Binay Jr. (Contempt order)

- CA has no jurisdiction to grant TRO, Sec 14 RA 6770 (The Ombudsman Act of 1989) (SEE ISSUE 2 for the full provision)
- Order to comment on Binay Jr's petition for contempt is illegal since the Ombudsman is an impeachable officer who can't be subjected to contempt proceedings

Binay Jr. filed his comment

- Sec 1 Art VIII of the 1987 Consti grants the CA Judicial power to review the office of the Ombudsman in cases of Grave Abuse of Discretion amounting to lack or excess of jurisdiction such as (allegedly) in this case
- Ombudsman should have been aware about the Condonation doctrine applicable to him as this would weight heavily on the determination of the issuance of a preventative suspension order
- CA is correct to enjoin the preventative suspension order given his unmistakable right to public office, cleared of any liability by the condonation doctrine
- An action for contempt still imposes a penalty of a fine/imprisonment that does not result in a removal from office, thus it is applicable on an officer like the Ombudsman

The CA issued a resolution granting WPI and further enjoining the implementation of the preventative suspension order

- CA Nullified the preventative suspension order in view of the Condonation Doctrine (Cites *Aguinaldo v. Santos*)
- Condonation doctrine means the Ombudsman cannot impose such a sanction against Binay Jr.; Binay Jr. cannot be held liable based on *Salalima v. Guingona Jr.* and *Mayor Garcia v. Mojica*.
- The Condonation doctrine effectively absolved Binay Jr. of any administrative liability with regards to the anomalies in the Makati Building project

The Ombudsman filed a supplemental petition before the court, arguing that:

- the condonation doctrine is irrelevant to the determination of whether the evidence of guilt is strong for the purposes of issuing preventative suspension orders
- The condonation doctrine is a matter that should have been raised before the Ombudsman
- Condonation doctrine is irrelevant because the acts that are the subject of the OMB complaint were committed after his re-election

ISSUE 1

Main – Procedural	W/N the present petition, and not motions for reconsideration of the assailed CA issuances in CA-G.R. SP No. 139453 and CA-G.R. SP No. 139504, is the Ombudsman's plain, speedy, and adequate remedy	YES
RULING and RATIO DECIDENDI:		
As a general rule, a motion for reconsideration must be filed with the lower court first before an extraordinary		

remedy of certiorari or prohibition can be availed.

- BUT, Jurisprudence reveals that it is the inadequacy of other legal remedies that determine to propriety of certiorari or prohibition
- The above gives way to certain exceptions such as where there is an urgent necessity for the resolution of the question and any further delay would prejudice the interest of the Government; OR where the issue is one purely of law or where public interest is involved

Based on the above exceptions, of importance here is the CA's authority and the limits of the fundamental powers of the Office of the Ombudsman, the Judiciary, and the Legislature.

- It is an issue of transcendental public importance
- Additionally, the issue at hand raises the propriety of the Condonation doctrine

LEGAL BASES

Rule 65 of the 1997 RoC, Sections 1 and 2

ISSUE 2

Main – Substantive	W/N the CA has subject matter jurisdiction over the main petition for certiorari in CA-G.R. SP No. 139453	YES
--------------------	---	-----

PETITIONER/S ARGUMENTS:

- CA lacks jurisdiction under Sec 14, RA 6770 (Ombudsman Act of 1989)
- Senate deliberations on Sec 14 RA 6770 reveal that only a petition for certiorari in the Supreme court may appeal a decision of the Ombudsman. This was by design to make their decisions harder to appeal.

RULING and RATIO DECIDENDI:

Sec 14, RA 6770 can be split into 2, paragraph 1 and paragraph 2: (See Legal Bases for full provision)

- Paragraph 1 is what it says, no prohibitions on a pending case of the Ombudsman by writs of injunction, this is limited to subject matters within their jurisdiction
- Paragraph 2 is primarily relied upon by petitioner to prove that the CA has no authority but rather only the Supreme court does

The Court is not convinced of Petitioner's argument and actually finds the provision INVALID

- For starters, **the Senate deliberations Petitioner speaks of were NOT in consideration for Sec 14, RA 6770**, but rather for Sec 27, RA 6770. It is under this section that the mentions of "Petition for certiorari" and the amendments proposed within actually manifest/textually reflect
- On the matter of Sec 14 RA 6770 providing that the Supreme Court can only appeal on pure questions of law, **it has to be understood that the "appeal on pure question of law" in question here is a RULE 45 Appeal under the 1964 Rules of Court or the 1997 Rules of Civil Procedure. These are the ONLY remedies that are taken to the Supreme Court on "pure questions of law."** (See below in legal basis)
 - Cannot be a petition for certiorari under Rule 65 because that is based on errors of jurisdiction. No procedural rule that grounds a Rule 65 petition on pure questions of law
- The court can apply the Ruling of **Fabian v. Desertio** where Sec 27(4), RA 6770 was struck down as unconstitutional for having the effect of increasing the appellate jurisdiction of the Court without its advice and concurrence in clear violation of **Sec 30, Art VI of the 1987 Constitution**. (See below for more on Fabian)
- Now limited to a Rule 45 appeal, **Paragraph 2 of Sec 14 RA 6770 attempts to increase the Supreme Court's appellate Jurisdiction without its advice and concurrence, therefore the provision is unconstitutional for being in violation of Sec 30, Art VI**. The ruling of Fabian applies as the provisions are in pari materia.

- The 2nd paragraph of sec 14 RA 6770 is determinative of the existence of the CA's subject matter jurisdiction over the petition to enjoin the preventative suspension order and all subsequent proceedings, the court deems it proper to resolve this issue on its own motion despite the petition and the CA now having clear jurisdiction over it.

LEGAL BASES

Sec 14, RA 6770 (Ombudsman Act)

- (Para 1) No writ of injunction shall be issued by any court to delay an investigation being conducted by the Ombudsman under this Act, unless there is a prima facie evidence that the subject matter of the investigation is outside the jurisdiction of the Office of the Ombudsman.
- (Para 2) No court shall hear any appeal or application for remedy against the decision or findings of the Ombudsman, except the Supreme Court, on pure question of law.

Rule 45, 1964 Rules of Court

RULE 45: Appeal from Court of Appeals to Supreme Court

- Section 2. Contents of Petition. — The petition shall contain a concise statement of the matters involved, the assignment of errors made in the court below, and the reasons relied on for the allowance of the petition, and it should be accompanied with a true copy of the judgment sought to be reviewed, together with twelve (12) copies of the record on appeal, if any, and of the petitioner's brief as filed in the Court of Appeals. A verified statement of the date when notice of judgment and denial of the motion for reconsideration, if any, were received shall accompany the petition.
- **Only questions of law may be raised in the petition** and must be distinctly set forth. If no record on appeal has been filed in the Court of Appeals, the clerk of the Supreme Court, upon admission of the petition, shall demand from the Court of Appeals the elevation of the whole record of the case.

Rule 45, 1997 Rules of Civil Procedure

RULE 45: Appeal by Certiorari to the Supreme Court

- Section 1. Filing of petition with Supreme Court. — A party desiring to appeal by certiorari from a judgment, final order or resolution of the Court of Appeals, the Sandiganbayan, the Court of Tax Appeals, the Regional Trial Court or other courts, whenever authorized by law, may file with the Supreme Court a verified petition for review on certiorari. The petition may include an application for a writ of preliminary injunction or other provisional remedies and **shall raise only questions of law, which must be distinctly set forth**. The petitioner may seek the same provisional remedies by verified motion filed in the same action or proceeding at any time during its pendency.

Section 30, Article VI, 1987 Constitution

- No law shall be passed increasing the appellate jurisdiction of the Supreme Court as provided in this constitution without its advice and concurrence.

Fabian Doctrine/Procedure

- In Fabian, we invalidated Section 27 of R.A. No. 6770 (and Section 7, Rule III of A.O.No. 7 and the other rules implementing the Act) insofar as it provided for appeal by certiorari under Rule 45 from the decisions or orders of the Ombudsman in administrative cases. We held that Section 27 of R.A. No. 6770 had the effect, not only of increasing the appellate jurisdiction of this Court without its advice and concurrence in violation of Section 30, Article VI of the Constitution; it was also inconsistent with Section 1, Rule 45 of the Rules of Court which provides that a petition for review on certiorari shall apply only to a review of "judgments or final orders of the Court of Appeals, the Sandiganbayan, the Court of Tax Appeals, the Regional Trial Court, or other courts authorized by law."
- Constitutional questions, not raised in the regular and orderly procedure in the trial are ordinarily rejected unless the jurisdiction of the court below or that of the appellate court is involved in which case it may be raised at any time or on the court's own motion.

Main – Substantive	W/N the CA has subject matter jurisdiction to issue a TRO and/or WPI enjoining the implementation of a preventive suspension order issued by the Ombudsman	YES
PETITIONER/S ARGUMENTS:		
- CA has no jurisdiction to issue any provisional injunctive writ against her office based on the First paragraph (No writ of injunction shall be issued by any court) - The Ombudsman's office is an independent office under the 1987 Constitution, RA 6770 insulated it from judicial intervention - Writs of Injunction would interfere with her work like political pressure/direct harassment.		
RULING and RATIO DECIDENDI:		
(bit on the independence of the Ombudsman is just dicta, might be useful to know, Ratio starts at the bold text) Sec5, Art XI of the 1987 Constitution guaranteed the independence of the Office of the Ombudsman. In light of Gonzales III v. Office of the President (See below in Legal basis), the concept of the Ombudsman's Independence covers 3 things: 1. Creation by the Constitution: The office and its constitutionally specified functions cannot be abolished, removed, altered, or modified by law unless the Constitution allows such or is amended to. 2. Fiscal Autonomy: The office enjoys the freedom to use its funds for purposes related to its functions. Cannot be strategically decreased by other branches of Govt. 3. Insulation from executive supervision and control: The Office can only be disciplined by an internal authority The Court finds that Petitioner erroneously abstracted the independence of her Office and in fact the CA DOES HAVE JURISDICTION. Judicial Power is constitutionally vested in the Supreme Court and all other courts established by law. - In the exercise of Judicial power, a court's exercise of jurisdiction follows the limits and rules of procedure exclusively promulgated by the Supreme Court. It is in this framework that Judicial Power is exercised. - Sec 5(5), Article VIII of the 1987 constitution provides the Supreme Court the exclusive power to promulgate rules for the exercise of Judicial Power - Unlike older provisions, the 1987 constitution removed the concurrent power of congress/congressional participation to amend these rules in order to make a stronger judiciary - The courts possess certain inherent powers - Inherent Powers Doctrine: Principle by which the courts deal with diverse matters over which they are thought to have intrinsic authority; that the powers are reasonably necessary to achieve the specific purpose for which the exercise is sought. Inherent powers enable the judiciary to accomplish its constitutionally mandated functions. When Congress passed the first Paragraph of Sec 14, RA 6770, Congress interfered and took away from the courts their power to issue a TRO and/or WPI and hindered a court's abilities. - It's been held before that the prerogative to amend, repeal or even establish new rules of procedure solely belongs to the Court, to the exclusion of the legislative and executive branches of government. This is merely one of the safeguards of the independence of the Court. - Congress may only create a court and delimits its jurisdiction, BUT the procedure for which jurisdiction is exercised is fixed by the Court and the rules it promulgates The Court recognises the intentions of the assailed provision, and as such, pending deliberation whether or not to adopt the same, the Court must declare it ineffective until it is properly adopted in a Rules of Procedure through an administrative circular duly issued by the Court.		
LEGAL BASES		

Section 5, Article XI, 1987 Constitution

- Section 5. There is hereby created the independent Office of the Ombudsman, composed of the Ombudsman to be known as Tanodbayan, one overall Deputy and at least one Deputy each for Luzon, Visayas[,] and Mindanao. A separate Deputy for the military establishment may likewise be appointed.

Gonzales III v. Office of the President explains the Office of the Ombudsman

- Unlike in the 1973 Constitution, the Office of the Ombudsman is Constitutionally guaranteed
- The constitution saw it fit to insulate the Office from the pressures and influence of partisan politics and fear of external reprisal by making it an independent office to ensure non-impairment of their core functions
- The Office does not owe its creation to congress, but by the Constitution.
- The office enjoys fiscal autonomy, to impose such restrictions on the manner of their allocation and utilisation of funds for their operations would be anathema to their fiscal autonomy.
- The independence of the office also includes freedom from control or supervision of the Executive Department,

Section 5 (5), Article VIII of the 1987 Constitution

Section 5. The Supreme Court shall have the following powers:

- (5) Promulgate rules concerning the protection and enforcement of constitutional rights, pleading, practice, and procedure in all courts, the admission to the practice of law, the Integrated Bar, and legal assistance to the underprivileged. Such rules shall provide a simplified and inexpensive procedure for the speedy disposition of cases, shall be uniform for all courts of the same grade, and shall not diminish, increase, or modify substantive rights. Rules of procedure of special courts and quasi-judicial bodies shall remain effective unless disapproved by the Supreme Court.

ISSUE 4

Side – Substantive	W/N the CA gravely abused its discretion in issuing the TRO and eventually, the WPI in CA-G.R. SP No. 139453 enjoining the implementation of the preventive suspension order against Binay, Jr. based on the <u>condonation doctrine</u>	NO
--------------------	--	----

RULING and RATIO DECIDENDI:

- The CA did NOT commit grave abuse of discretion in issuing the TRO and WPI because it **merely followed settled jurisprudence** (Governor Garcia, Jr., Aguinaldo, Salalima, Mayor Garcia v. Mojica) which **constituted "good law" at the time.**
- **Section 24 of R.A. No. 6770** sets **two requisites**: (1) evidence of guilt is strong; and (2) the charge involves dishonesty, oppression, grave misconduct, or warrants removal, or stay in office may prejudice the case. The CA did not base its writs on non-compliance with these requisites, but strictly on the **Condonation Doctrine** (Governor Garcia, Jr. and Aguinaldo), treating it as an exculpatory affirmative defense.
- The Supreme Court **ABANDONED the condonation doctrine**. However, pursuant to Article 8 of the Civil Code (People v. Jabinal, Spouses Benzonan v. CA), the abandonment is **PROSPECTIVE** in application to protect vested reliance on prior **"good law."**
 - *Note: Elective officials who relied on the doctrine while it remained standing "good law" are protected from retroactive prejudice.*
- The main petition before the CA regarding the preventive suspension was rendered **MOOT** by the Ombudsman's supervening Joint Decision dated October 9, 2015 dismissing Binay, Jr. from public service. However, the Court **resolved the condonation issue** under established **exceptions to mootness** (grave constitutional violation, paramount public interest, need to formulate controlling principles, capable of repetition yet evading review).

LEGAL BASES

[For Abandoning the Condonation Doctrine]

- Background: The Condonation Doctrine was first enunciated in **Pascual v. Hon. Provincial Board of Nueva Ecija (1959)**, holding that the re-election of a public official operates as a condonation of administrative misconduct committed during a prior term. [This was under the 1935 Constitution; Pascual cited US jurisprudence]
 - Neither the 1987 Constitution, R.A. No. 6770, the Local Government Code (R.A. No. 7160), nor Executive Order No. 292 contains any legal basis for condonation. Section 66(b) of the LGC limits suspension to the unexpired term, but does not extinguish administrative liability.
 - Post-1987 cases (Lizares, Ingco, Aguinaldo, Salalima, Mayor Garcia, Salumbides, Governor Garcia, Jr.) adopted Pascual "hook, line, and sinker" without testing it against prevailing legal norms.
 - The Supreme Court uncovered that there was no uniform "weight of authority" in the U.S. At least seventeen U.S. states have **abandoned condonation**, many enforce the "own-successor theory" (treating terms as continuous), and others deny condonation for continuing offenses (e.g. failure to restore public funds).
 - Refutation of Pascual's Premises:
 - **Premise 1 (Each term is separate)**: Penalties for administrative offenses (such as perpetual disqualification under RRACCS and LGC Section 66) explicitly extend beyond the term of office.
 - **Premise 2 (Re-election implies forgiveness)**: Condonation implies forgiveness, which presupposes full knowledge by condoner (electorate). An election cannot condone secret, hidden, or unadjudicated acts of corruption of which the electorate had no conscious knowledge.
 - **Premise 3 (Removal deprives electorate of choice)**: Public office is a public trust (Section 1, Article XI, 1987 Constitution). Sovereign electorate will cannot override explicit constitutional and statutory mandates on public accountability.

[On prospective application]

- Under **Article 8 of the CC** and settled case law (People v. Jabinal, Spouses Benzonan v. CA), judicial decisions overruling established doctrines apply **prospectively** to protect vested rights and reliance on prior "good law".

ISSUE 5

Side – Substantive	W/N the CA's directive for the Ombudsman to comment on Binay, Jr.'s petition for contempt in CA-G.R. SP No. 139504 is improper and illegal	NO
--------------------	--	----

RULING and RATIO DECIDENDI:

The CA's directive was **NOT improper or illegal**; the challenge is **PREMATURE**.

The CA's March 20, 2015 Resolution merely required the Ombudsman to file a comment "without necessarily giving due course" to Binay, Jr.'s contempt petition. The CA had not yet formally subjected the Ombudsman to contempt proceedings or ruled on the petition's merits; hence, judicial intervention by the Supreme Court on this point is **premature and denied**.

FINAL DECISION	[The petition is partly meritorious] WHEREFORE, the petition is PARTLY GRANTED. Under the premises of this Decision, the Court resolves as follows: (a) the second paragraph of Section 14 of Republic Act No. 6770 is declared UNCONSTITUTIONAL, while the policy against the issuance of provisional injunctive writs by courts other than the Supreme Court to enjoin an investigation conducted by the Office of the Ombudsman under the first paragraph of the said provision is DECLARED ineffective until the Court adopts the same as part of the rules of procedure through an administrative circular duly issued therefor; (b) The condonation doctrine is ABANDONED, but the abandonment is PROSPECTIVE in effect; (c) The Court of Appeals (CA) is DIRECTED to act on respondent Jejomar Erwin S. Binay, Jr.'s (Binay, Jr.) petition for certiorari in CA-G.R. SP No. 139453 in light of the Office of the Ombudsman's supervening issuance of its Joint Decision dated October 9, 2015 finding Binay, Jr. administratively liable in the six (6) administrative complaints, docketed as OMB-C-A-15-0058, OMB-C-A-15-0059, OMB-C-A-15-0060, OMB-C-A-15-0061, OMB-C-A-15-0062, and OMB-C-A-15-0063; and (d) After the filing of petitioner Ombudsman Conchita Carpio-Morales's comment, the CA is
-----------------------	---

	DIRECTED to resolve Binay, Jr.'s petition for contempt in CA-G.R. SP No. 139504 with utmost dispatch.
--	--

Gonzales v. Macaraig, Jr. (1990)

Topic Subtopic	Branches of the Government - Congress Legislative Process - Procedure for the passage of bills	GR No. & Ponente	87636 & J. Melencio-Herrera
Petitioner/s	NEPTALI A. GONZALES, ERNESTO M. MACEDA, ALBERTO G. ROMULO, HEHERSON T. ALVAREZ, EDGARDO J. ANGARA, AGAPITO A. AQUINO, TEOFISTO T. GUINGONA, JR., ERNESTO F. HERRERA, JOSE D. LINA, JR., JOHN OSMEÑA, VICENTE T. PATERNO, RENE A. SAGUISAG, LETICIA RAMOS-SHAHANI, MAMINTAL ABDUL J. TAMANO, WIGBERTO E. TAÑADA, JOVITO R. SALONGA, ORLANDO S. MERCADO, JUAN PONCE ENRILE, JOSEPH ESTRADA, SOTERO LAUREL, AQUILINO PIMENTEL, JR., SANTANINA RASUL, VICTOR ZIGA, petitioners	Respondent/s	HON. CATALINO MACARAIG, JR., HON. VICENTE JAYME, HON. CARLOS DOMINGUEZ, HON. FULGENCIO FACTORAN, HON. FIORELLO ESTUAR, HON. LOURDES QUISUMBING, HON. RAUL MANGLAPUS, HON. ALFREDO BENGSON, HON. JOSE CONCEPCION, HON. LUIS SANTOS, HON. MITA PARDO DE TAVERA, HON. RAINERIO REYES, HON. GUILLERMO CARAGUE, HON. ROSALINA CAJUCOM and HON. EUFEMIO C. DOMINGO, respondents
Doctrine	The terms item and provision in budgetary legislation and practice are concededly different. An item in a bill refers to the particulars, the details, the distinct and severable parts of the bill It is an indivisible sum of money dedicated to a stated purpose. The United States Supreme Court, in the case of Bengzon v. Secretary of Justice declared “that an ‘item’ of an appropriation bill obviously means an item which in itself is a specific appropriation of money, not some general provision of law, which happens to be put into an appropriation bill.”		

FACTS

16 Dec 1988: Congress passed HB 19186 or the General Appropriations Bill for FY 1989

- Eliminated or decreased items included in the proposed budget submitted by the President
- Presented bill for President's approval

29 Dec 1988: Pres signed the bill into law → declared it to have become RA 6688

- 7 Special Provisions and Section 55 (a “General Provision”) was vetoed
 - Section 55: *Prohibition Against the Restoration or Increase of Recommended Appropriations Disapproved and/or Reduced by Congress*: No item of appropriation recommended by the President in the Budget submitted to Congress pursuant to Article VII, Section 22 of the Constitution which has been disapproved or reduced in this Act shall be restored or increased by the use of appropriations authorized for other purposes by augmentation. An item of appropriation for any purpose recommended by the President in the Budget shall be deemed to have been disapproved by Congress if no corresponding appropriation for the specific purpose is provided in this Act. **(SUMMARY: if disapproved in GAA, no item may be restored/increased by appropriations used for other purposes by augmentation → item of appropriation by Pres shall be deemed to have been disapproved if no corresponding appropriation is provided)**
 - Section 16 of the Appropriations Act of 1990 **similar to Section 55**: Sec. 16. Use of Savings.—The President of the Philippines, the President of the Senate, the Speaker of the House of Representatives, the Chief Justice of the Supreme Court, the Heads of Constitutional Commissions under Article IX of the Constitution and the Ombudsman are hereby authorized to augment any item in this Act for their respective offices from savings in other items of their appropriations: PROVIDED, THAT NO ITEM OF APPROPRIATION RECOMMENDED BY THE PRESIDENT IN THE BUDGET SUBMITTED TO CONGRESS PURSUANT TO ARTICLE VII, SECTION 22 OF THE CONSTITUTION WHICH HAS BEEN DISAPPROVED OR REDUCED BY CONGRESS SHALL BE RESTORED OR INCREASED BY THE USE OF APPROPRIATIONS AUTHORIZED FOR OTHER PURPOSES IN THIS ACT BY AUGMENTATION. AN ITEM OF APPROPRIATION FOR ANY PURPOSE RECOMMENDED BY THE PRESIDENT IN THE BUDGET SHALL BE DEEMED TO HAVE BEEN DISAPPROVED BY CONGRESS IF NO CORRESPONDING APPROPRIATION FOR THE SPECIFIC PURPOSE IS PROVIDED IN THIS ACT.
 - Both vetoed by Pres b/c it “violates Sec 25(5) of Art 6 of the Constitution - would nullify

Pres + Senate Pres + House Speaker + CJ + Heads of ConComm power to augment any item in the GAA +

2 Feb 1989: Senate in Reso 381 mentioned that the veto of the President by Section 55 is unconstitutional and void

11 April 1989: Petition for Prohibition/Mandamus filed w/ a prayer for the issuance of a Writ of Preliminary Injunction and Restraining Order w/c assailed the constitutionality or legality of the Presidential veto of Section 55

ISSUE 1

Main – Procedural	W/N the Court may take cognizance of the issue of the President’s veto	YES
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:	
	Political question	
RULING and RATIO DECIDENDI:		
<u>YES:</u> 1. There is an actual case or controversy b/c of of the Court’s solemn and sacred duty to determine the scope of intersecting powers in regard to the Executive and the Senate 2. Petitioners have standing as taxpayers + members of Senate have requisite standing where a constitutional issue is raised 3. Political question not an issue under the 1987 Constitution 4. Not the first time that an issue of the Presidential veto is raised to the Court → Bengson v. Secretary of Justice, Bolinao Electronics v. Valencia		
LEGAL BASES		

ISSUE 2

Main – Substantive	W/N the President has the power to veto “provisions” of an Appropriations Bill	YES
	2.1 W/N the exclusion of the word “provision” means a disallowance of the power to veto a provision	NO
	2.2 W/N Sec 55 and Sec 16 are provisions in the budgetary sense of the term	NO
	2.3 W/N conditions may be imposed in an Appropriations Bill by the legislative and thus may not be stricken out by veto power	NO
	2.4 W/N the doctrine of separation of powers has been endangered	NO
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
Sec 55 (FY '89) and Sec 16 (FY '90) are provisions, not items and are therefore outside the scope of the item-veto power of the President Should be strictly construed b/c the Pres veto is a legislative power Congress is free to impose conditions in an Appropriations Bill and where conditions are attached, the veto power does not carry with it the power to strike them out = Sec 55 and Sec		Congress should've overridden the veto instead Sec 55 is a rider b/c extraneous to the Appropriations Act = merits Pres veto Power of President to augment items in the appropriations for the exec branches had already been provided for in the Budget Law Pres empowered by Constitution to veto provisions

16 are such restrictions/conditions and thus beyond the veto power

RULING and RATIO DECIDENDI:

1. SVeto power is expressed in Article 6, Section 27 of the 1987 Constitution
 - a. Paragraph (1) refers to the general veto power of the President
 - b. Paragraph (2) is the “item-veto power” or “line-veto power” = President may not veto less than all of an item of an Appropriations Bill
 - i. I.e. power given the executive to disapprove any item or items in an Appropriations Bill does not grant the authority to veto a part of an item and to approve the remaining portion of the same item
 - ii. Originally referred to veto of items of appropriations bills and first came into being in the former Organic Act (Act of Congress of 29 August 1916) → followed by Sec 11(2), Art 6 of the 1935 Constitution except that the veto power was made more expansive (i.e. when it was affecting 1+ items of the bill, President veto of the **provision** will also veto the other related item/s)
 1. 1935 Constitution broadened President’s veto power to include the veto of item/s of revenue and tariff bills
 - iii. Sec 20 (2), Art 8 of the 1973 Constitution limited the effect of the veto → verbatim reproduced in 1987
 1. I.e. uses the term “item”
2. **SUB-ISSUE 1: Should the exclusion of the word “provision” mean a disallowance of the power to veto a provision as petitioners urge?**
 - a. Court says that they are different:
 - i. Item - particulars, details, distinct and severable parts of the bill
 1. Indivisible sum of money dedicated to a stated purpose
 - ii. Provision - General statement of law
 - b. **COURT ANSWER: The elimination of the reference to a veto of a provision does not change the extent of the President’s veto power as previously defined by the 1935 Constitution b/c the provision merely pronounces the basic principle that a distinct and severable part of a bill may be the subject of a separate veto**
 - c. Petitioner’s claim disregards basic principle that a distinct and severable part of a bill may be the subject of a separate veto + overlooks Consti mandate that any provision in the GAB shall relate specifically to some particular appropriation and any such provision shall be limited in its operation to the appropriation it relates to
 - i. *Provision* in an Appropriations Bill is limited in its operation to some particular appropriation to which it relates, and does not relate to the entire bill = MAY be vetoed
 - ii. Cannot be confined to strict construction b/c of *Bengzon*: Chief Executive may not be confined to the rules of strict construction or hampered by an unwise interference of the judiciary
3. **SUB-ISSUE 2: EVEN IF THE PROVISIONS WERE BEYOND THE EXECUTIVE POWER TO VETO, Sec 55 and Sec 16 are not provisions in the budgetary sense of the term**
 - a. Article 6, Sec 25(2) of the 1987 Constitution provides an explicit requirement that a *provision* in the Appropriations Bill should relate specifically to some “*particular appropriation*” → the challenged provisions do not fulfill this requirement b/c
 - i. ... They do not relate to any particular or distinctive appropriation = apply generally to all items disapproved or reduced by Congress
 - ii. ... The disapproved or reduced items are nowhere to be found on the face of the Bill - resort will have to be made to the original recommendations of the President and the source indicated by petitioners themselves
 - iii. ... Vetoed sections more of an expression of Congressional policy in respect of augmentation from savings rather than a budgetary appropriation
 1. HENCE: Sec 55 and 16 are actually *inappropriate provisions* that should be

treated as *items* for the purpose of the President's veto power

2. When the legislature inserts inappropriate provisions in a GAB, such provisions must be treated as "items" for purposes of the Governor's item veto power over GABs (Henry v. Edwards)

4. SUB-ISSUE 3: FOR THE CONDITIONS/RESTRICTIONS TO NOT BE SUBJECT TO VETO POWER, the conditions/restrictions should be such in the "real" sense of the term and not such matters which are more properly dealt with in a separate legislation = Sec 55 and Sec 16 are INAPPROPRIATE "CONDITIONS"

- a. Test: Appropriateness = not enough that a provision is related, the conditions and limitations in an appropriation bill must exhibit connexity with money items of appropriation that they logically belong in a schedule of expenditures
- b. While drafted to appear as "true conditions" or "limitations", they are actually more appropriate for separate substantive legislation
- c. Neither show connection w/ a schedule of expenditures = items reduced or disapproved by Congress would not appear on the face of the enrolled bill or the Appropriations Act - can only be detected when compared w/ the original budgetary submittals of the President
 - i. *Bolinao Electronics Corporations v. Valencia* NOT applicable b/c in that case, the condition was vetoed by Pres. Macapagal → Court held that the veto was ineffectual and approval carried w/ it the approval of the conditions attached VS in the present case, there is no condition in the budgetary sense of the term attached to an appropriation/item in the appropriation bill which was struck out

5. SUB-ISSUE 4: Statutory authority has been granted so there was no violation of the doctrine of separation of powers

- a. The power to augment savings lies dormant until authorized by law → validity of the power of augmentation from savings upheld in *Demetria v. Alba*; 1973 Constitution also provided for it; statutory authority of President provided for in Sec 44 and 45 of PD 1177, and Sec 12 of the GAA 1989
 - i. HENCE, no question that **statutory authority has been granted** → once given, the heads of the different branches of Government and those of the Constitutional Commissions are afforded considerable flexibility in the use of public funds and resources
 - ii. **NOT endangering doctrine of separation of powers** b/c the transfer is made w/in a department and not from one dept to another
- b. Sec 55 and Sec 16 prohibiting the restoration or increase by augmentation of appropriations disapproved/reduced by Congress = impairs consti and statutory authority of the President and other key officials to augment any item or any appropriation from savings
- c. GAB is a legislative authorization of receipts and expenditures = power of augmentation cannot be considered a specific appropriation of money → non-appropriation item inserted in an appropriation measure
 - i. To sanction petitioners would be to give legislature freedom to grant/withhold power from the Executive and other officials
 - ii. PD 1177 has not been revoked by 1987 Constitution b/c implied repeals are not favored
 - iii. Congress also made no attempt to override the Pres veto = petitioners claim "there is nothing to override" but has lost force and effect w/ the executive veto being upheld in this decision

LEGAL BASES

1935 Constitution: x x x When a provision of an appropriation bill affects one or more items of the same, the President can not veto the provision without at the same time vetoing the particular item or items to which it relates x x x.

1973 Constitution: Section 20 (2). The Prime Minister shall have the power to veto any particular item or items in an appropriation, revenue, or tariff bill, but the veto shall not affect the item or items to which he does not object.

Art 6, Sec 27 of the 1987 Constitution: (1) Every bill passed by the Congress shall, before it becomes a law, be presented to the President. If he approves the same, he shall sign it; otherwise, he shall veto it and return the

same with his objections to the House where it originated, which shall enter the objections at large in its Journal and proceed to reconsider it. If, after such reconsideration, two-thirds of all the Members of such House shall agree to pass the bill, it shall be sent, together with the objections, to the other House by which it shall likewise be reconsidered, and if approved by two-thirds of all the Members of that House, it shall become a law. In all such cases, the votes of each House shall be determined by yeas or nays, and the names of the Members voting for or against shall be entered in its Journal. The President shall communicate his veto of any bill to the House where it originated within thirty days after the date of receipt thereof; otherwise, it shall become a law as if he had signed it.

(2) The President shall have the power to veto any particular item or items in an appropriation, revenue, or tariff bill, but the veto shall not affect the item or items to which he does not object.

Art 6, Sec 25(2) of the 1987 Constitution: No provision or enactment shall be embraced in the general appropriations bill unless it relates specifically to some particular appropriation therein. Any such provision or enactment shall be limited in its operation to the appropriation to which it relates.

Art 6, Sec 25(5) of the 1987 Constitution: No law shall be passed authorizing any transfer of appropriations; however, the President, the President of the Senate, the Speaker of the House of Representatives, the Chief Justice of the Supreme Court, and the heads of Constitutional Commissions may, by law, be authorized to augment any item in the general appropriations law for their respective offices from savings in other items of their respective appropriations

**FINAL
DECISION**

WHEREFORE, the constitutionality of the assailed Presidential veto is UPHELD and this Petition is hereby DISMISSED. No costs.

SEPARATE OPINION/S

**GUTIERREZ,
JR., J, dissenting**

TL;DR violates separation of powers

Fundamental principles underlying doctrine of separation of powers were violated when President vetoed + concerned by consequences

1. Traditional power of Congress over budget NEGATED if functions or offices it has abolished or reduced are restored through the grant of *carte blanche* authority to shift savings from one dept or agency to another
2. Court in effect allowing a modified lump sum appropriation for the entire Exec branch
3. Constitution does not grant fiscal autonomy to the Exec branch - Judiciary has flexibility, but Exec should have tight congressional control
4. Power to augment intended for functions, projects, and offices where both Congress and the President expressly or impliedly concur, not where 1 specifically exercises its constitutional power to regulate/modify the expenditures of the other = Exec should not restore what Congress had abolished
5. Constitution grants President power to veto any particular item or items of an appropriation bill → Consti withholds power to veto *provisions*, Court is rewriting Consti to restore what framers have eliminated when we changed between item and a provision

Absurd to require it to be in a separate provision

**CRUZ, J,
dissenting/conc
urring**

Sec 44 is the rider, not Sec 55 b/c Sec 44 is extraneous to the subject and purpose of pD 1177 - whatever its nature, Sec 55 of GAA cannot be vetoed because it seeks to withdraw a delegated power

Better for President to respect will of the legislature

**PADILLA, J,
dissenting**

1. Questioned veto has no constitutional basis - situation is NOT a general veto so Sec 27(1), Art 6 does not apply
2. Sec 55 and Sec 16 are founded on principles of sound reason and public policy; attempt

	to “veto” them is GAD - no valid reason for condition placed by Congress (that no such savings can be used to augment an appropriation previously disapproved by Congress or to restore an appropriation previously reduced by Congress) to not be accepted
--	---

Bengzon v. Drilon (1992)

Topic Subtopic	Legislative Process - Procedure for the passage of bills	GR No. & Ponente	G.R. No. 103524 Gutierrez, Jr. J.
Petitioner/s	CESAR BENGZON, QUERUBE MAKALINTAL, LINO M. PATAJO, JOSE LEUTERIO, ET AL	Respondent/s	HON. FRANKLIN N. DRILON in his capacity as Executive Secretary; HON. GUILLERMO CARAGUE in his capacity as Secretary of Department of Budget and Management, and HON. ROSALINA CAJUCOM in her capacity as National Treasurer,
Doctrine			

FACTS

- Congress enacted RA 910 providing retirement pensions to Justices of SC and CA.
- RA 1797 was also enacted providing for automatic readjustment of a retired Justice's pensions whenever salary of incumbent Justices was increased/decreased.
- President Marcos issued PD 644, which repealed the automatic readjustment feature of RA 1797. Adjustment for retired Armed Forces members was later restored by PD 1638 and PD 1909, but not for the Justices—leaving them as sole group deprived of adjusted pensions.
 - PD 644 was marked as secret decree “NOT FOR PUBLICATION,” which only appeared in Official Gazette supplement.
- Court declared RA 1797 remained operative and retired Justices entitled to adjusted pensions.
- Congress included the special provisions in the 1992 GAA authorizing payment of adjusted pensions and authorizing Chief Justice (CJ) and Presiding Justice (PJ) to augment pension deficiencies from savings.

President Aquino vetoed the special provisions, claiming claimed SC's resolution effectively nullified President's prior veto of HB 16297 and violated compensation standardization policies

Petitioners, Retired SC Chief Justices, retired Assoc. Justices, and other retired Justices of CA and SC, sue in their own behalf and in representation of all retired Justices similarly situated

- Assailing constitutionality of President's veto of certain provisions of GAA of FY 1992

ISSUE 1

Main – Substantive	W/N the President's veto of the special provisions in the GAA Fiscal Year 1992 was a valid item veto under Art. VI, Sec. 27(2)	NO
--------------------	--	----

RULING and RATIO DECIDENDI:

No. It was an unconstitutional veto of statutory provisions of an existing law and a final judicial resolution rather than item of appropriation. (The vetoed portions were provisions and not items).

Under Art. VI, Sec. 27(2), the Pres. may veto “any particular item or items in an appropriation, revenue or tariff bill,” but the veto shall not affect the item or items to which he does not object.

- “Item” in an appropriation bill → specific, particulars, and distinct and severable parts of a bill; indivisible sum of money dedicated to a stated purpose
- The presidential item-veto power was designed to specifically eliminate “riders” attached to appropriation bills w/o disapproving entire budget

As a general rule, Executive must veto a bill entirely or not at all. For appropriation, revenue, and tariff bills, the Administration needs the money to run the gov't and can't veto the whole bill.

Gonzales v. Macaraig: the power to disapprove an item does not include power to veto part of an item and approve the rest.

The General Fund Adjustment of Php 5M is an item, remained untouched and not vetoed. The President vetoed the statutory mechanism (RA 1797) placed by Congress to ensure continuing obligations to officials would be paid. These portions of an item were chopped into vetoed and inverted parts, so less than all of an item was vetoed

ISSUE 2

Main – Substantive	W/N the veto violates separation of powers by effectively repealing RA 1797 and setting aside the Supreme Court's resolution in A.M. No. 91-8-225-CA	YES
--------------------	--	-----

RULING and RATIO DECIDENDI:

Yes. *The President attempted to veto an existing statute (RA 1797) and final and executory judgment a SC Resolution, which she has no power to do so.*

Under separation of powers, the legislature enacts laws and the executive enforces them. The Executive cannot enact, amend, or repeal statutes.

Now, while the executive is constitutionally vested with the veto power, this is **not absolute**. It is confined to “any particular item or items” in an appropriation bill.

On RA 1797

The veto was beyond the limits of Sec. 27(2) which **only permits the veto of specific, indivisible sums of items**.

- Provisions vs. “item.”
 - Item — which is an indivisible, specific, sum of money dedicated to a stated purpose
- President **did not veto the monetary figures**, what was vetoed were **special provisions** or the methods or systems placed by the Congress to ensure that permanent n continuing obligations to certain official would be paid. These were provisions which:
 - Authorizing the Presiding Justice, subject to the approval of the CJ of the SC, to use savings to augment items
 - Specifying funds to be used to pay adjusted pension rates to retired Justices
 - Struck down the provisions, monetary sums still intact —> severed an item into vetoed and unvetoed parts.
- This was unconstitutional because the line-item veto power does not grant the exec to act like an editor crossing out specific lines, provisions, or paragraphs in a bill that he or she dislikes while approving rest of the bill. Must veto entire monetary item or approve it
- **No authority of the president to repeal or modify statutes under the guise of an item veto**

On SC Resolution

- The resolution held that PD 644 never became a law and that requesting Justices were entitled to their pensions in rela to RA 1797 — with finality — the PD never produced legal effect.
- RA 1797 never validly repealed so it remains fully operative and created an automatic and continuous statutory obligation to pay adjusted retirement pensions to the retired Justices.
- **NO Chief Executive has authority to veto a law enacted 35 yrs prior, and nor can he overrule a final and binding judgment of the SC through a veto.**
- Doing so intrigued on both legislative and judicial functions.

NOTES:

- Pres's argument that her veto was because RA 1797 was repealed – Court rejected assumption that PD 644 repealed it.
 - Requirement of laws to be published in full in the OG and take effect after 15 days following...
 - PD 644 was not published — “NOT FOR PUBLICATION” notation.
- Funds for pensions under these statutes are deemed automatically appropriated every year. As long as it remains in the statute book, government has duty to pay these adjusted rates
- GAA provisions only identified funds and savings for the said obligation, did not create obligation so vetoing it won't nullify or erase it.

ISSUE 3

Main – Substantive	W/N the veto impairs the fiscal autonomy of the Judiciary (Art. VIII, Sec. 3)	YES
RULING and RATIO DECIDENDI:		
YES. <i>The presidential veto impairs the fiscal autonomy of the Judiciary under Article VIII, Sec 3 as it attempts to dictate how judicial funds should be spent and restricts the CJ's constitutional authority to manage internal judicial appropriations and allocate savings.</i> Art. VIII, Sec. 3 provides: "The Judiciary shall enjoy fiscal autonomy. Appropriations for the Judiciary may not be reduced by the legislature below the amount appropriated for the previous year and, after approval, shall be automatically and regularly released." • This authority guarantees full freedom and flexibility from outside control (such as DBM) to allocate and utilize resources with the wisdom their needs deem to require, such as power to levy, assess and collect fees, fix compensation rates, allocate and disburse funds. • (EXAMPLE GIVEN) if the Court says it needs 100 typewriters but DBM rules that it only needs 10, sends this recommendation without informing the Congress, the autonomy given by the Constitution then becomes “an empty and illusory platitdde” (meaningless) because the Executive decides how the Judiciary should perform its functions. Vetoing the special provisions authorizing the CJ of the SC and the Presiding Justice of the Court of Appeals to utilize savings to cover deficiencies in judicial items, attempts to dictate the internal utilization of judicial funds, depriving the CJ of the flexibility to reallocate savings to satisfy its judicial obligations.		

ISSUE 4

Main – Substantive	W/N the retired Justices have a vested right to the adjusted pensions under RA 1797	YES
RULING and RATIO DECIDENDI:		
YES. <i>Retired Justices have a vested right to receive adjusted retirement funds, which cannot be revoked by an executive veto.</i> In <i>Gay v. Whitehorse</i>: while a pension right is statutory, when the judges have complied with its statutory prerequisites for retirement with pay, the right to retire and receive the pension becomes vested and may not be revoked thereafter. The petitioners are retired Justices of the SC and CA who qualified under RA 910 (at least 20 yrs of service and		

age 70 or resign due to incapacity). Under RA 1797, their pensions are deemed to be the salary of Justices in service, which adjusts when that changes. Considering PD 644 never repealed RA 1797, the entitlement is continuously in force.

Retirement laws are liberally construed in favor of the retiree as its purpose is to provide for the sustenance and comfort when the retiree no longer has the capability to earn a livelihood

NOTES:

- Argument of Executive: claims that granting adjusted pensions preferential treatment for officials over the broader civil service.
 - This is a misimpression.
 - The benefits of the RA apply equally to Armed Forces members, which are thousands, while retired Justices are few. So there is no violation of the equal protection clause.
 - SC says that special retirement protections for Justices form an integral part of the constitutional protections that are designed to preserve judicial independence
- Argument of Executive (OSG): giving benefits to retired Justices amounts to paying pub funds from other citizens to select individuals who no longer serve, is likened to “robbery”(citing Law Association v. Topeka but was mis-cited, should be Citizens Savings and Loan Assoc. Of Cleveland, Ohio v. Topeka City)
 - Irrelevant. Case dealt with statue allowing municipal bonds ti aid private roailrods (void bc muni’s taxing power cant be used for private interests) → nothing to do w/ retirement benefits

FINAL DECISION

WHEREFORE, the petition is hereby GRANTED. The questioned veto is SET ASIDE as illegal and unconstitutional. The vetoed provisions of the 1992 Appropriations Act are declared valid and subsisting.

MILLER V MARDO 1961

Topic Subtopic	Congress - Procedure for the Passage of Bills	GR No. & Ponente	BARRERA, J
Petitioners and Respondents	G.R. No. L-15138 Petitioner: Bill Miller Respondents: Atanacio A. Mardo and Manuel Gonzales G.R. No. L-15377 Plaintiff (Appellant): Numeriana Raganas Defendants (Appellees): Sen Bee Trading Company, Macario Tan, and Sergio Tan G.R. No. L-16660 Petitioner: Vicente Romero Respondents: Angel Hernando, etc., and Sia Seng G.R. No. L-16781 Petitioners: Chin Hua Trading Company and Lao Kang Suy Respondents: Atanacio A. Mardo, Jorge Benedicto, and Cresencio Estaño G.R. No. L-17056 Petitioner: Fred Wilson & Co., Inc. Respondents: Meliton C. Parducho, etc., and Mariano Pabillare		
Doctrine	- <i>Unconstitutionality of Lawmaking by Legislative Inaction</i>: A law or reorganization plan cannot be enacted through congressional silence, adjournment, or failure to pass a disapproving resolution. - <i>Separation of Powers and Inviolability of Judicial Power</i>: Judicial power is vested exclusively in the Judiciary (the Supreme Court and inferior courts established by law). Congress cannot delegate to an executive body, such as a reorganization commission, the power to create courts, transfer jurisdiction away from regular judicial tribunals, or confer original judicial power over money claims onto administrative offices - <i>Non-Subversion of the Legislative Process</i>: Executive-formulated proposals cannot automatically become law via legislative inaction.		

FACTS

These joint appeals, originating from various Courts of First Instance, present an identical legal question regarding the validity of Reorganization Plan No. 20-A. The Plan was prepared and submitted by the Government Survey and Reorganization Commission under Republic Act No. 997, as amended by Republic Act No. 1241. Under Section 25, Article VI of Reorganization Plan No. 20-A, Regional Offices of the Department of Labor were granted original and exclusive jurisdiction over cases falling under the Workmen's Compensation law and all money claims of workers (such as unpaid wages, underpayment, overtime, separation pay, and leave pay). The facts per case are as follows:

1. **G.R. No. L-15138 (Miller v. Mardo)**: Manuel Gonzales filed a claim for separation pay against Bill Miller before Regional Office No. 3. Miller petitioned the CFI of Baguio to prohibit the Hearing Officer due to lack of jurisdiction. The CFI ruled that R.A. Nos. 997/1241 and Reorganization Plan No. 20-A did not divest CFIs of their jurisdiction under the Judiciary Act over money claims. The Hearing Officer and claimant appealed.
2. **G.R. No. L-16781 (Chin Hua Trading Co. v. Mardo)**: Cresencio Estaño filed a claim for overtime and vacation leave pay against Chin Hua Trading Co. before Regional Office No. 3. The company petitioned the CFI of Manila for prohibition, which declared Reorganization Plan No. 20-A null and void. The claimant and hearing officers appealed.
3. **G.R. No. L-15377 (Raganas v. Sen Bee Trading Co.)**: Numeriana Raganas filed a civil action in the CFI of Cebu for underpayment, overtime, and leave pay. The CFI dismissed the complaint, ruling that original jurisdiction belonged exclusively to the Department of Labor Regional Office under Reorganization Plan No. 20-A. Raganas appealed.
4. **G.R. No. L-16660 (Romero v. Hernando)**: Vicente Romero obtained a favorable decision for unpaid wages,

overtime, and separation pay from Regional Office No. 2. When the Regional Labor Administrator refused to issue an execution writ and ordered a rehearing, Romero petitioned the CFI of Isabela for mandamus. The CFI ordered the execution writ to issue. The employer and Regional Administrator appealed, challenging the validity of the Reorganization Plan.

5. **G.R. No. L-17056 (Fred Wilson & Co., Inc. v. Parducho):** Mariano Pabillare filed a claim for overtime and separation pay against Fred Wilson & Co. before Regional Office No. 3. The company filed a petition for certiorari/prohibition with the CFI of Manila. The CFI dismissed the petition and upheld the validity of Reorganization Plan No. 20-A on the ground that Congress deemed it approved by non-action. The company appealed.

ISSUE 1

Main – Substantive	W/N Reorganization Plan No. 20-A is valid and constitutional insofar as it confers original and exclusive jurisdiction upon the Regional Offices of the Department of Labor over money claims arising from labor standards and working conditions.	NO
---------------------------	---	-----------

RULING and RATIO DECIDENDI:

Re: Scope of Delegated Authority Under R.A. Nos. 997 and 1241

- Prior to Reorganization Plan No. 20-A, the Department of Labor (excluding the Workmen's Compensation Commission) lacked compulsory authority to adjudicate money claims and could only act as a mediator or arbitrator upon written agreement of the parties. Conferring original and exclusive jurisdiction over money claims constitutes a new grant of judicial power.
- While Section 4 of R.A. No. 997 (as amended by R.A. No. 1241) authorized the Commission to create or abolish "functions" necessary for executive efficiency, "functions" in this context refers solely to administrative functions. Under Section 1, Article VIII of the Constitution, judicial power is vested exclusively in the Supreme Court and inferior courts established by law. Congress cannot delegate its power to create courts or alter judicial jurisdiction to an executive body.

Re: Invalidation of Lawmaking Through Legislative Inaction

- The contention that Reorganization Plan No. 20-A became a valid statute due to congressional non-disapproval under Section 6(a) of R.A. No. 997 is unconstitutional. Section 6(a) provides that a reorganization plan submitted by the President is deemed approved after a set period unless disapproved by a simple resolution of either House.
- Enacting laws through legislative inaction violates the procedure mandated by Sections 20(1) and 21(1), Article VI of the Constitution, which requires:
 - Printing and distribution of bills three days prior to passage;
 - Positive and separate votes (yeas and nays entered in the Journal) in each House of Congress; and
 - Presentation of every passed bill to the President for approval or veto.
 - Allowing an executive plan to become law by mere congressional silence or inaction (aka non disapproval) dissolves democratic processes, abdicates legislative prerogatives to the Executive, and undermines the constitutional tri-departmental (separation of powers)system.

Re: Exception Regarding Workmen's Compensation Claims

- The invalidation of Reorganization Plan No. 20-A applies to money claims generally, but does not affect cases falling under the Workmen's Compensation Law. The Workmen's Compensation Commission already exercised quasi-judicial power over compensation claims prior to the reorganization of the Department of Labor.

LEGAL BASES	
- Section 1, Article VIII of the 1935 Constitution (aka Judicial Power): Vests judicial power exclusively in one Supreme Court and in such inferior courts as may be established by law. The Court ruled that Congress cannot delegate to an executive body (the Government Survey and Reorganization Commission) the legislative authority to create courts or transfer jurisdiction away from regular judicial tribunals to administrative offices. - Republic Act No. 997, as amended by Republic Act No. 1241 (aka Reorganization Act):Authorizes the reorganization of the Executive Branch and the creation/abolition of administrative "functions". The Court interpreted "functions" as strictly administrative, holding that it does not extend to creating judicial or quasi-judicial powers over money claims. - Section 20(1) & Section 21(1), Article VI of the 1935 Constitution (aka Enactment of Laws):Prescribes the mandatory procedure for a bill to become law, requiring printing, distribution, separate reading, positive voting (yeas and nays) in both Houses, and presidential approval or veto.	

FINAL DECISION	G.R. No. L-15138 (Miller): Decision of the CFI of Baguio holding that the Hearing Officer lacked jurisdiction is AFFIRMED. G.R. No. L-16781 (Chin Hua Trading Co.): Decision of the CFI of Manila declaring Reorganization Plan No. 20-A invalid is AFFIRMED. G.R. No. L-15377 (Raganas): Order of the CFI of Cebu dismissing the judicial action is SET ASIDE, and the case is REMANDED to the court of origin for further proceedings. G.R. No. L-16660 (Romero): Decision of the CFI of Isabela ordering the execution of the Regional Office's decision is REVERSED. G.R. No. L-17056 (Fred Wilson & Co., Inc.): Decision of the CFI of Manila dismissing the petition for annulment is REVERSED, and the preliminary injunction against the Regional Office is revived and made PERMANENT.
-----------------------	--

ANG NARS

Kida v. Senate (2011)

Topic Subtopic	Legislative Process Procedure for the Passage of Bills	GR No. & Ponente	G.R. No. 196271 Brion, J.
Petitioner/s	DATU MICHAEL ABAS KIDA, in his personal capacity, and in representation of MAGUINDANAO FEDERATION OF AUTONOMOUS IRRIGATORS ASSOCIATION, INC., HADJI MUHMINA J. USMAN, JOHN ANTHONY L. LIM, JAMILON T. ODIN, ASRIN TIMBOL JAIYARI, MUJIB M. KALANG, ALIH AL-SAIDI J. SAPI-E, KESSAR DAMSIE ABDIL, and BASSAM ALUH SAUPI	Respondent/s	SENATE OF THE PHILIPPINES, represented by its President JUAN PONCE ENRILE, HOUSE OF REPRESENTATIVES, thru SPEAKER FELICIANO BELMONTE, COMMISSION ON ELECTIONS, thru its Chairman, SIXTO BRILLANTES, JR., PAQUITO OCHOA, JR., Office of the President Executive Secretary, FLORENCIO ABAD, JR., Secretary of Budget, and ROBERTO TAN, Treasurer of the Philippines
Doctrine	When the President certifies a bill to be urgent, the three-reading requirement for the passage of a bill can be dispensed with.		

FACTS

Previous ARMM bills passed:

- Aug. 1, 1989: **RA No. 6734** ("An Act Providing for an Organic Act for the Autonomous Region in Muslim Mindanao") was enacted, establishing the Autonomous Region of Muslim Mindanao (ARMM)
 - Lanao del Sur, Maguindanao, Sulu, Tawi-Tawi joined
- **RA No. 9054** ("An Act to Strengthen and Expand the Organic Act for the Autonomous Region in Muslim Mindanao, Amending for the Purpose Republic Act No. 6734, entitled An Act Providing for the Autonomous Region in Muslim Mindanao, as Amended") was passed
- June 22, 2001: **RA No. 9140** → reset the first regular elections to November 26, 2001
- Aug. 14, 2001: RA No. 9054 was ratified via plebiscite
 - Basilan & Marawi City joined ARMM
- **RA No. 9333**: reset the ARMM elections to 2nd Monday of Aug 2005
 - NOT ratified in a plebiscite

Background on RA 10153:

- Originated from the House of Representatives (HOR) as H.B. No. 4146 → seeks the postponement of the ARMM elections on Aug. 8, 2011 (pursuant to RA No. 9333)
 - Passed in HOR → elevated to Senate and became S.B. No. 2756
- June 7, 2011: HOR concurred with Senate amendments
- June 30, 2011: **RA 10153** ("An Act Providing for the Synchronization of the Elections in the Autonomous Region in Muslim Mindanao (ARMM) with the National and Local Elections and for Other Purposes") was enacted
 - **Reset ARMM election to the second Monday of May 2013** instead of Aug. 8, 2011, coinciding with the regular national and local elections (NLE)
 - Granted the President the power to appoint OICs for the Office of the Regional Governor, the Regional Vice-Governor, and the Members of the Regional Legislative Assembly who will perform said duties until before the May 2013 elections

Petitions:

- Petitioners assailing RA No. 9140, RA No. 9333 and RA No. 10153 assert that these laws amend RA No. 9054 and thus, **have to comply with the supermajority vote and plebiscite requirements** prescribed under Sections 1 and 3, Article XVII of RA No. 9094 in order to become effective.
- Petitioners assailing RA No. 10153 holds that it is unconstitutional for its failure to comply with the **three-reading requirement** of Section 26 (2), Article VI of the Constitution.
- Also alleged are violations of the right of suffrage of the people of ARMM, as well as the failure to adhere to the "elective and representative" character of the executive and legislative departments of the ARMM.
- Petitioners also challenged the grant to the President of the power to appoint OICs to undertake the functions of the elective ARMM officials until the officials elected under the May 2013 regular elections shall have assumed office.

--

ISSUE 1

Main – Substantive	W/N the 1987 Constitution mandates the synchronization of elections	YES
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:	
	OSG argues that the Constitution mandates synchronization citing Sections 1, 2 and 5 (Article XVIII - Transitory Provisions of the 1987 Constitution)	
RULING and RATIO DECIDENDI:		
Although the Constitution does not explicitly state the synchronization, the clear intent is seen in the Transitory Provisions (Art. XVIII) which shows the extent to which the Constitutional Commission, by deliberately making adjustments to the terms of the incumbent officials, sought to attain synchronization of elections. Common termination date for all elective officials indicate the intent to synchronize the holding of all future NLEs to once every 3 years. Although called regional elections, the ARMM elections should be included among the elections to be synchronized as it is a "local" election based on the wording and structure of the Constitution.		
LEGAL BASES		
Art. XVIII, Sec. 1 – <i>The first elections of Members of the Congress under this Constitution shall be held on the second Monday of May, 1987. The first local elections shall be held on a date to be determined by the President, which may be simultaneous with the election of the Members of the Congress. It shall include the election of all Members of the city or municipal councils in the Metropolitan Manila area.</i> Art. XVIII, Sec. 2 – <i>The Senators, Members of the House of Representatives and the local officials first elected under this Constitution shall serve until noon of June 30, 1992. Of the Senators elected in the election in 1992, the first twelve obtaining the highest number of votes shall serve for six years and the remaining twelve for three years.</i> Art. XVIII, Sec. 5 – <i>The six-year term of the incumbent President and Vice President elected in the February 7, 1986 election is, for purposes of synchronization of elections, hereby extended to noon of June 30, 1992. The first regular elections for President and Vice-President under this Constitution shall be held on the second Monday of May, 1992.</i>		

ISSUE 2

Main – Substantive	W/N the passage of RA No. 10153 violates Sec. 26(2), Article VI of the 1987 Constitution	NO
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:	
RA No. 10153 failed to comply with Sec. 26(2), Art. VI which provides that before bills passed by either the House or the Senate can become laws, they must pass through three readings on separate days, except when the President certifies to the necessity of the bill's immediate enactment.		
RULING and RATIO DECIDENDI:		

NO, RA No. 10153 did not violate the above provision. Records show that **the President wrote to the Speaker of the House of Representatives to certify the necessity of the immediate enactment of a law** synchronizing the ARMM elections with the national and local elections, therefore exempting the House and Senate with the three-reading requirement. The House of Representatives and the Senate — in the exercise of their legislative discretion — gave full recognition to the President's certification and promptly enacted RA No. 10153.

LEGAL BASES

Tolentino v. Secretary of Finance – “The presidential certification dispensed with the requirement not only of printing but also that of reading the bill on separate days. The phrase “except when the President certifies to the necessity of its immediate enactment, etc.” in Art. VI, Section 26[2] qualifies the two stated conditions before a bill can become a law: [i] the bill has passed three readings on separate days and [ii] it has been printed in its final form and distributed three days before it is finally approved.”

ISSUE 3

Main – Substantive	W/N the passage of RA No. 10153 requires a supermajority vote and plebiscite 3.1. Does the postponement of the ARMM regular elections constitute an amendment to Section 7, Article XVIII of RA No. 9054? 3.2. Does the requirement of a supermajority vote for amendments or revisions to RA No. 9054 violate Section 1 and Section 16 (2), Article VI of the 1987 Constitution and the corollary doctrine on irrevocable laws? 3.3. Does the requirement of a plebiscite apply only in the creation of autonomous regions under paragraph 2, Section 18, Article X of the 1987 Constitution?	3.1. NO 3.2. YES 3.3. YES
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
RA No. 10153 and RA No. 9333 are null and void for they did not comply with Sec. 1& 3, Art. XVII of RA No. 9054 in amending this law.		
RULING and RATIO DECIDENDI:		
3.1. NO, the postponement of ARMM elections does not constitute an amendment because neither RA No. 9333 nor RA No. 10153 amends RA No. 9054. The latter only provided for the schedule of the first ARMM elections and did not mandate/fix the date of the regular elections. To fix the subsequent ARMM regular elections, Congress enacted RA No. 9333 and 10153. These new laws also did not change or revise any provision in RA No. 9054; thus, it cannot be considered as amendments. 3.2. YES, the supermajority (2/3) voting requirement is unconstitutional because it gives RA No. 9054 the character of an irrevocable law by requiring more than what the Constitution demands. Sec. 16(2), Art. VI of the Constitution only provides that as long as the majority of the members of the House of Representatives or the Senate are present, these bodies have the quorum needed to conduct business, hold sessions, and enact laws. Therefore, the 2/3 votes mandated by RA 9054 is higher than what the Constitution requires. 3.3. YES, plebiscites are required only for the creation of autonomous regions, as per Sec. 18(2), Art. X. Thus, Sec. 3, Art. XVII of RA No. 9054 excessively enlarged the scope of the plebiscite requirement when it required a plebiscite for every statutory amendment.		

LEGAL BASES

ISSUE 4

Main – Substantive	W/N RA No. 10153 violates the autonomy granted to the ARMM	NO
PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:	
While synchronization may be constitutionally mandated, it cannot be used to defeat or to impede the autonomy that the Constitution granted to the ARMM. The ARMM elections should not be synchronized with the national and local elections in order to maintain the autonomy of the ARMM and insulate its own electoral processes from the rough and tumble of nationwide and local elections.		
RULING and RATIO DECIDENDI:		
NO, because the framers of the Constitution never equated autonomy with independence. Hence, ARMM as a regional entity continues to operate within the larger framework of the State and is still subject to national policies set by the government. The autonomy granted to the ARMM cannot be invoked to defeat national policies and concerns.		
LEGAL BASES		
Pimentel Jr. v. Hon. Aguirre – “<i>Under the Philippine concept of local autonomy, the national government has not completely relinquished all its powers over local governments, including autonomous regions. Only administrative powers over local affairs are delegated to political subdivisions. The purpose of the delegation is to make governance more directly responsive and effective at the local levels. In turn, economic, political and social development at the smaller political units are expected to propel social and economic growth and development. But to enable the country to develop as a whole, the programs and policies effected locally must be integrated and coordinated towards a common national goal. Thus, policy-setting for the entire country still lies in the President and Congress.</i>”		

ISSUE 5

Side – Substantive	W/N the grant of the power to appoint OICs violates the ff. Provisions of the 1987 Constitution: (a) Sec. 15, Art. X (b) Sec. 16, Art. X (c) Sec. 18, Art. X	NO
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
RULING and RATIO DECIDENDI:		

NO, because the power to appoint is essentially **executive** in nature (Sec. 16, Art. VII). Since the President's authority to appoint OICs emanates from RA No. 10153, it falls under the third group of officials (*those whom the President may be authorized by law to appoint*) that the President can appoint pursuant to Section 16, Article VII of the Constitution.

Based on these considerations, we hold that RA No. 10153 — viewed in its proper context — is a law that is not violative of the Constitution (specifically, its autonomy provisions), and one that is reasonable as well under the circumstances.

LEGAL BASES

ISSUE 6

Side – Substantive	W/N the proposal to hold special elections is constitutional and legal	NO
PETITIONER/S ARGUMENTS:		RESPONDENT/S ARGUMENTS:
COMELEC shall be compelled to immediately conduct special elections pursuant to Sec. 5 & 6 of BP Blg. 881.		
RULING and RATIO DECIDENDI:		
NO, COMELEC cannot be legally compelled to hold special elections. Section 6 of BP 881 applies only to those situations where elections have already been scheduled but do not take place because of (a) force majeure, (b) violence, (c) terrorism, (d) fraud, or (e) other analogous causes the election in any polling place has not been held on the date fixed, or had been suspended before the hour fixed by law for the closing of the voting, or after the voting and during the preparation and the transmission of the election returns or in the custody or canvass thereof, such election results in a failure to elect. In the present case, the postponement of the ARMM elections is by law (congressional policy) and is pursuant to the constitutional mandate of synchronization of national and local elections.		
LEGAL BASES		

FINAL DECISION	WHEREFORE, premises considered, we DISMISS the consolidated petitions assailing the validity of RA No. 10153 for lack of merit, and UPHOLD the constitutionality of this law. We likewise LIFT the temporary restraining order we issued in our Resolution of September 13, 2011. No costs. SO ORDERED.
----------------	---

SEPARATE OPINION/S

CARPIO, J, <i>dissenting</i>	TLDR: Carpio voted to declare RA 9333 constitutional, and RA 9054, RA 10153 partly unconstitutional. While he agreed that synchronizing ARMM elections with national
---------------------------------	--

elections is constitutional, he strongly argued that appointing Officers-in-Charge (OICs) in place of elective local officials violates the core principles of democracy, regional autonomy, and the Constitution. He maintained that the only constitutional remedy was to **hold special elections**. He voted to declare unconstitutional the second sentence of Section 7 (1), Article VII of RA 9054 authorizing ARMM elective officials to hold over until the election and qualification of their successors.

• **The President's Certification on Urgency of Legislation, Not Subject to Heightened Scrutiny**

- **No Heightened Scrutiny for Urgency Certifications:** Citing the landmark ruling in *Tolentino v. Secretary of Finance*, Carpio stressed that the Supreme Court does not subject presidential certifications of urgency to heightened scrutiny or strict judicial review.
- **Distinction in Judicial Review:** Carpio explained that heightened judicial scrutiny applies to executive acts that put basic individual rights at hazard (such as martial law declarations, suspension of the writ of *habeas corpus*, or delegation of emergency powers). In contrast, a different, deferential standard applies to presidential certifications of urgency because they merely dispense with procedural rules designed to ensure bills are duly considered by Congress.
- **No Denial of Opportunity to Study the Bill:** Both the House of Representatives and the Senate accepted the President's certification. Carpio noted that the petitioners presented no evidence showing that members of Congress were denied adequate time or the opportunity to examine, debate, and intelligently respond to House Bill No. 4146 and Senate Bill No. 2756.
- Justice Carpio concluded that there was **no basis to depart from Tolentino**. Therefore, the President's certification of urgency was valid, and Congress committed no constitutional violation or grave abuse of discretion when it dispensed with the three-reading requirement on separate days to pass R.A. No. 10153.
- **RA 9333 and RA 10153 Supplement and do not Amend RA 9054**
 - RA 9054 intent is to govern the **first** regular elections; in subsequent statutes, there are mentions of succeeding regular elections → no amendment
 - Laws remain valid
 - **Section 1, Article XVII of RA 9054 Requiring 2/3 Vote to Amend RA 9054 is Unconstitutional**
 - Consti only requires mere majority of both houses; violates doctrine of barring the passage of irrepealable laws
 - Raised voting threshold compared to constitutional requirement → **Consti should prevail**
 - The high vote threshold takes RA 9054 beyond the reach of Congress' amendatory powers and ensures its immutability
 - The 2/3 vote of Congress to override presidential veto is not a valid argument. It ensures the Executive a substantial voice in legislation by requiring the Legislature to surmount a vote threshold higher than the simple majority required to pass the vetoed legislation.
 - **Plebiscite Mandatory only in Approving Creation or Expansion of the ARMM**
 - Section 3, Article XVII of RA 9054 mandates the holding of a plebiscite in the ARMM to approve "[a]ny amendment to or revision of" RA 9054 → impermissibly expands the scope of the subject matter that the Constitution requires to be submitted to a plebiscite.
 - In Consti, plebiscite only required in creation of an autonomous region and the creation/change of local govt units
- **Congress' Power to Synchronize National and Local Elections does not Encompass Appointment of OICs in Place of Elective Officials**

	○ Consti impliedly requires the synchronization of elections → RA 10153 is aligned with this goal ○ Offices declared by the Constitution as elective must be filled up by election and not by appointment ● Options to Fill Vacancies in the ARMM Elective Offices After 30 September 2011 ○ In its desire to synchronize elections, there is a potential 21-month gap between the electoral cycles. ■ One either allows the elective officials to remain in office in a hold over capacity, authorize the Pres to appoint OICs, or hold special elections in the ARMM (diff term) ○ Sections 3, 4 and 5 of RA 10153 Authorizing the President to Appoint OICs in Elective Local Offices in the ARMM Unconstitutional ■ Pres was previously authorized to appoint in transitional period following the creation of a new LGU ● ARMM is existing, not in transition state → RA 10153 would negate the Consti intent by making positions appointive ■ President may appoint an officer-in-charge in the office of the ARMM Governor pending the holding of special local elections in the ARMM. The appointment of such OIC is absolutely necessary and unavoidable because someone must insure that essential government services continue to function in the ARMM. ○ Second Sentence of Section 7 (1), Article VII of RA 9054 Authorizing the Hold Over of ARMM Officials Unconstitutional ■ This sentence authorizes elective officials to remain in office until successors assume office → would violate Section 8, Article X of the Constitution limiting the term of office of elective local officials, except barangay officials, to three years (similar to Court decision in Osmeña) ● A contrary ruling would allow Congress to pass a law that may extend the term of elective officials ○ Section 5, BP 881 Basis for Holding of Special Elections ■ The holding of special elections is the only constitutionally permissible option to fill up the offices of the ARMM officials after 30 September 2011. ● This is within the powers conferred to COMELEC under BP 881 ● Electoral and Other Reforms Must be Consistent With Principles of Regional Autonomy and Representative Democracy ○ It is a terribly dangerous precedent for this Court to legitimize the cancelation of scheduled local elections in the ARMM and allow the appointment of OICs in place of elected local officials for the purpose of reforming the ARMM society → implies that it can be done to other regions/entire PH ○ This would disenfranchise voters in the ARMM → denying them their fundamental right of electing their leaders and representatives → contrary to intent of Consti in creating autonomous regions. The Court must determine the constitutionality of a law based on the law's adherence to the Constitution, not on the law's supposed beneficial consequences.
VELASCO,J <i>dissenting</i>	SUMMARY: Instead of the President appointing officer-in-charge, the rule on holding over incumbent officials must have been observed. 1. Congress' power to provide for simultaneous holding of election for national and local officials xxx does not encompass the power to authorize the President to appoint officer-in-charge in place of elective officials. This is a perversion of the Philippine State's democratic and republican nature 2. Velasco joined Carpio's dissent on declaring unconstitutional Sec 3,4, and 5 of RA

10153 which authorize the President to appoint OICs in place of elective officials; and, in ordering the COMELEC to hold a special election as soon as possible.

But unlike Carpio's who allowed the President to appoint OICs pending the holding of Special Election, Velasco vote for the holding over of incumbent officials pursuant to Sect 7 (1) Art VII of RA 9054¹

3. The *Osmena v COMELEC* case which was used by the *ponencia* which declared holding over as unconstitutional is not a precedent of this case.
 - a. In *Osmena*, the question of "hold over" was not the very *lis mota* of the case and just a mere obiter dictum which is not binding.
 - b. In *Osmena*, RA 7056 which desynchronized the national and local election for 1992 was declared unconstitutional for violating Sec 2² and 5³ of Art XVIII²; hence
 - c. In *Osmena* relied mainly on the postponement of election which violates Sec 2 and 5 of Art XVIII, and the question of "hold over" was unnecessary
 - d. **In summary**, RA 7056 i) provided for synchronization for the 1995 election, ii) but desynchronized the May 1992 election, and iii) provided no provision for the President to appoint OICs.
 - e. **In this case**, the law i) provided for synchronization for the May 2013 election, ii) but suspended the election scheduled in August 2011, and iii) authorized the President to appoint OICs.
4. A holdover is not technically an extension of the term
 - a. *Apad v Comelec* - the application of the holdover principle preserves continuity in the transaction of official business and prevents hiatus in government pending the assumption of a successor into office
 - b. *State v Clark* - The public interest requires that such officers shall hold over when no successor is ready and qualified to fill the office xxx The rule has grown out of the necessities of the case, so that there may be no time when such offices shall be without an incumbent. But such a hold-over incumbent is not a de jure officer. He is in for no term, but holds the office only temporarily until the vacancy can be filled by competent authority
5. While the Local Government Code does not authorize the holdover of elective officials, there is nothing to prevent Congress from subsequently enacting a law that effectively amends the general law for local governments and empowers, pursuant to its law making power under the Constitution , local officials to hold over in case of failure of elections or in case all the elective officials failed to qualify.
6. Numerous American cases laid down the rule allowing holdover of officials beyond the term set by the Constitution as long as there is no constitutional proscription against it.
7. Sec 8 Art. X⁴ does not prohibit holdover

1. **SEC. 7. RA 9054. Terms of Office of Elective Regional Officials.** — (1) Terms of Office. The terms of office of the Regional Governor, Regional Vice Governor and members of the Regional Assembly shall be for a period of three (3) years, which shall begin at noon on the 30th day of September next following the day of the election and shall end at noon of the same date three (3) years thereafter. The incumbent elective officials of the autonomous region shall continue in effect until their successors are elected and qualified.
2. **Section 2 Art XVIII (1987).** The Senators, Members of the House of Representatives, and the local officials first elected under this Constitution June 30, 1992
3. **Section 5 Art XVIII (1987).** The six-year term of the incumbent President and Vice-President elected in the February 7, 1986 election is, for purposes of synchronization of elections, hereby extended to

noon of June 30, 1992

4. **Section 8 Art X (1987).** The term of office of elective local officials, except barangay officials, which shall be determined by law, shall be three years and no such official shall serve for more than three consecutive terms. Voluntary renunciation of the office for any length of time shall not be considered as an interruption in the continuity of his service for the full term for which he was elected.

Neri v. Senate Committee on Accountability of Public Officers and Investigations

● DOCTRINE

Executive privilege over presidential communications adheres to the Office of the President to protect the public interest in candid, untrammelled advisory exchanges on policy decisions; thus, confidential communications between the President and a Cabinet member relating to a quintessential executive power—solicited or received within operational proximity—are presumptively privileged and cannot be compelled by a congressional legislative inquiry absent a showing of compelling, demonstrated need.

● RECITATION SUMMARY

Petitioner Romulo L. Neri, then NEDA Director-General, testified before respondent Senate Committees during a legislative inquiry into corruption in the National Broadband Network (NBN) Project awarded to Chinese corporation ZTE. Neri revealed he was offered a ₱200 Million bribe by COMELEC Chairman Benjamin Abalos, which he reported to President Gloria Macapagal-Arroyo. However, Neri invoked executive privilege and refused to answer three specific questions concerning his direct discussions with the President regarding her follow-up, prioritization, and approval of the project. When Neri failed to attend a subsequent hearing, the Senate Committees cited him in contempt and ordered his arrest. Neri filed a petition for *certiorari* before the Supreme Court. The Supreme Court granted the petition and set aside the contempt and arrest orders, holding that: (1) the three questions elicited communications covered by the presidential communications privilege because they involved confidential deliberations between the President and her Cabinet member regarding an executive decision; (2) respondents failed to overcome the presumptive privilege by demonstrating a compelling need for the information in lawmaking; and (3) the Senate Committees committed grave abuse of discretion by issuing a contempt order without respecting a valid, formal claim of executive privilege invoked by the Executive Secretary and without complying with procedural standards governing legislative inquiries.

● MATERIAL FACTS & PROCEDURAL HISTORY

- **Legally Relevant Parties & Relationship:**
 1. *Petitioner:* Romulo L. Neri (then Director-General of the National Economic and Development Authority [NEDA] and Cabinet member).
 2. *Respondents:* Senate Committees on Accountability of Public Officers and Investigations (Blue Ribbon), Trade and Commerce, and National Defense and Security.
- **Chronological Material Facts:**
 1. The Department of Transportation and Communications (DOTC) entered into negotiations for the procurement of the National Broadband Network (NBN) Project, which was awarded to Chinese company ZTE.
 2. The respondent Senate Committees initiated a joint legislative inquiry in aid of legislation into alleged bribery and corruption surrounding the NBN-ZTE contract.
 3. Petitioner Romulo L. Neri was invited to testify before the joint committees. During his testimony, Neri disclosed that COMELEC Chairman Benjamin Abalos offered him a ₱200 Million bribe to approve the NBN Project.
 4. Neri testified that he reported this bribe offer to President Gloria Macapagal-Arroyo, who instructed him not to accept the bribe but directed him to continue evaluating the project.

5. When members of the Senate Committees asked Neri further details regarding his conversations with the President, Neri invoked executive privilege and refused to answer three specific questions:
 - *Question 1*: Whether President Arroyo followed up on the NBN Project?
 - *Question 2*: Whether President Arroyo directed him to prioritize the NBN Project?
 - *Question 3*: Whether President Arroyo directed him to approve the proposal?
 6. Executive Secretary Eduardo Ermita formally lodged a written claim of executive privilege on behalf of the President, explaining that the conversations involved confidential Cabinet-level executive deliberations on diplomatic and economic matters.
 7. On November 20, 2007, the respondent Senate Committees issued a subpoena requiring Neri to attend a continuation hearing. When Neri failed to appear, the joint committees cited him in contempt and issued an order for his arrest and detention.
- **Procedural History:**
 1. Petitioner Neri filed a Special Civil Action for *Certiorari* and *Prohibition* before the Supreme Court (G.R. No. 180643) with a prayer for a temporary restraining order to annul the contempt and arrest orders issued by the Senate Committees.
-

● PARTIES' MATERIAL ARGUMENTS

- **Petitioner's (Romulo L. Neri) Claims:**
 1. *Covered by Executive Privilege*: The communications sought to be elicited by the three questions are protected by presidential communications privilege as confidential discussions between the President and a Cabinet member relating to executive policy and foreign economic/diplomatic agreements.
 2. *Formal Claim Lodged*: The privilege was validly invoked through a formal claim lodged by Executive Secretary Ermita upon personal direction of the President, stating precise grounds for confidentiality.
 3. *Invalid Contempt Order*: The contempt and arrest orders were issued in grave abuse of discretion, violating due process and disregarding a legitimate assertion of executive privilege.
 - **Respondents' (Senate Committees) Claims:**
 1. *Broad Power of Legislative Inquiry*: Congress possesses broad auxiliary power under Section 21, Article VI of the Constitution to conduct inquiries in aid of legislation and compel witness attendance.
 2. *Executive Privilege Cannot Cover Crime*: Executive privilege cannot be invoked to shield graft, corruption, or illegal acts surrounding a public contract.
 3. *Overriding Public Interest*: The public interest in exposing corruption and enacting remedial legislation outweighs executive confidentiality.
-

● ISSUES

1. **Whether the communications elicited by the three questions asked of petitioner Neri are covered by Executive Privilege** (specifically Presidential Communications Privilege).
 2. **Whether the respondent Senate Committees committed grave abuse of discretion** in issuing a contempt and arrest order against petitioner Neri.
-

♥ HOLDING AND RATIO DECIDENDI

ISSUE 1: Protection of Communications Under Presidential Communications Privilege

HOLDING: YES. The communications elicited by the three questions are covered by **PRESIDENTIAL COMMUNICATIONS PRIVILEGE**.

RATIO & DETAILED COURT LOGIC:

- 1. **Nature and Purpose of Executive Privilege:**
 - Executive privilege is not a personal immunity of the individual officeholder, but an institutional privilege that adheres strictly to the Office of the President.
 - It is rooted in the separation of powers and guarantees the confidentiality of executive conversations to ensure that the Chief Executive receives candid, objective, and untrammelled advice from advisers when formulating policies and making decisions.
- 2. **Requisites for Presidential Communications Privilege:**
 - To successfully invoke presidential communications privilege, three operational elements must concur:
 - 1. *Quintessential Executive Power*: The protected communication must relate to a non-delegable, core presidential power (in this case, the Chief Executive's power to enter into international contracts, contract foreign loans, and faithfully execute laws).
 - 2. *Operational Proximity*: The communication must be solicited or received by officials within the operational proximity of the President, such as Cabinet members and department heads. Neri, as NEDA Director-General and a Cabinet member, directly advised the President.
 - 3. *Absence of Demonstrated Need*: The presumptive privilege can only be overcome if the investigating body shows an adequate, compelling need—specifically that the information sought likely contains crucial evidence unavailable elsewhere.
- 3. **Failure of Senate Committees to Overcome Presumptive Privilege:**
 - The information requested concerned direct advisory conversations between President Arroyo and Neri regarding an international contract.
 - The Senate Committees failed to demonstrate that obtaining the exact contents of Neri's private dialogue with the President was indispensable or necessary to draft remedial legislation under Article VI, Section 21.
 - Furthermore, Neri had already testified extensively on the NBN-ZTE project and exposed the alleged bribe attempt; withholding his confidential conversations with the President did not impede Congress from exercising its legislative functions.

ISSUE 2: Validity of Contempt Order and Finding of Grave Abuse of Discretion

HOLDING: YES. The respondent Senate Committees committed **GRAVE ABUSE OF DISCRETION** in citing Neri in contempt and ordering his arrest.

RATIO & DETAILED COURT LOGIC:

- 1. **Constitutional Limitations on Congressional Inquiries:**
 - While the power of legislative inquiry under Section 21, Article VI is broad, it is not unlimited. Congress cannot conduct inquiries that encroach upon the exclusive domains of the Executive or Judiciary, nor can an unchecked investigative power generate abuses.
 - Under Section 21, Article VI, legislative investigations must be conducted in aid of legislation, pursuant to duly published rules of procedure, and with full respect for the constitutional rights of persons appearing therein.
- 2. **Formal Assertion of Executive Privilege:**
 - A formal claim of privilege was explicitly lodged by Executive Secretary Ermita by authority of the President, specifying the precise grounds for confidentiality.

- When a formal, valid claim of executive privilege is lodged, Congress cannot arbitrarily disregard it or punish the witness for contempt without demonstrating that the legislative need outweighs executive confidentiality.

3. Failure to Comply with Procedural Guidelines (*Senate v. Ermita*):

- The Senate Committees failed to comply with the mandatory requirements laid down in *Senate v. Ermita*: explicitly establishing the possible needed statute prompting the inquiry, and providing a clear indication of the subject of inquiry and questions relative to lawmaking.
- Consequently, issuing an arrest order against a Cabinet official who properly invoked a legitimate executive privilege suffered from constitutional infirmity and constituted grave abuse of discretion.

DECISION & DISPOSITION:

The Supreme Court **GRANTED** the petition for *certiorari*, **NULLIFIED** the contempt and arrest orders issued by the respondent Senate Committees against petitioner Romulo L. Neri, and **DECLARED** the three questions covered by presidential communications privilege.

Dissenting Opinion of Chief Justice Reynato S. Puno in *Neri v. Senate Committee*

DOCTRINE OF THE DISSENT

Executive privilege is a qualified presumptive privilege created solely to promote the public interest, which yields to a coordinate branch's specific and demonstrated need for information under the function impairment test when the disclosure of presidential communications regarding a shared constitutional power (such as contracting foreign loans under Section 20, Article VII) is demonstrably critical to Congress's legislative function and cannot be substituted elsewhere, nor can the privilege ever be utilized to conceal wrongdoing or shield possible corruption from legislative inquiry.

RECITATION SUMMARY

Chief Justice Reynato S. Puno dissented from the majority ruling that granted petitioner Romulo L. Neri's petition. CJ Puno maintained that the petition should be dismissed and Neri compelled to answer the three disputed questions propounded by the respondent Senate Committees regarding his conversations with President Gloria Macapagal-Arroyo on the NBN-ZTE contract. Applying the "function impairment test," CJ Puno weighed the Executive's generalized interest in confidentiality against Congress's specific, demonstrated need for the information in aid of legislation. He concluded that: (1) the claim of diplomatic/state secrets privilege failed due to a "paucity of explanation" that would force the Court to engage in guesswork; (2) while presidential communications enjoy a qualified presumptive privilege, that presumption was significantly weakened because the NBN project involved a foreign loan contract—a power shared with the Monetary Board under Section 20, Article VII—and the claimed "chilling effect" was unsubstantiated speculation by counsel; (3) the Senate established a compelling, demonstrably critical need for the answers to craft remedial legislation for a "dysfunctional procurement system" and regulate executive agreements; (4) executive privilege "has never justified the concealment of a wrongdoing"; and (5) the Senate is a "continuing body" whose rules of procedure do not expire or require re-publication every three years.

MATERIAL FACTS & PROCEDURAL CONTEXT

- **Context of Testimony:** Petitioner Romulo L. Neri (NEDA Director-General) testified for 11 hours before respondent Senate Committees investigating reported anomalies in the \$329-Million NBN-ZTE Project. Neri disclosed that COMELEC Chairman Benjamin Abalos offered him a ₱200 Million bribe, which he reported to President Arroyo, who told him "Don't accept it."
 - **The Three Questions Refused:** When asked:
 1. *Whether the President followed up the (NBN) project?*
 2. *Were you dictated to prioritize the ZTE?*
 3. *Whether the President said to go ahead and approve the project after being told about the alleged bribe?* Neri refused to answer, invoking executive privilege upon instructions of Executive Secretary Eduardo Ermita.
 - **Grounds Invoked by Executive Secretary Ermita:** In his November 15, 2007 letter, Secretary Ermita invoked: (a) presidential communications privilege (confidentiality of conversations in executive decision-making); and (b) diplomatic/economic relations privilege (alleging disclosure might impair relations with the People's Republic of China). Neri's counsel later added "national security" and "military affairs".
-

● **SUMMARY OF PARTIES' ARGUMENTS (AS EVALUATED IN THE DISSENT)**

- **Petitioner's Claims:** Neri's non-appearance and refusal to answer the three questions were justified by presidential communications privilege and diplomatic/national security confidentiality; invoking the privilege protects presidential decision-making from a "chilling effect."
 - **Respondents' Claims:** The Senate Committees possess broad constitutional authority under Section 21, Article VI to compel testimony in aid of legislation; executive privilege cannot be used to hide wrongdoing or shield corruption in an overpriced public contract; the answers are necessary to craft pending legislation (S.B. 1793, 1794, 1317) amending ODA and procurement laws.
-

● **ISSUES ADDRESSED IN THE DISSENT**

1. **Whether Executive Secretary Ermita validly invoked Executive Privilege** covering (a) Diplomatic/National Security Secrets and (b) Presidential Communications Privilege regarding the three questions asked of petitioner Neri.
 2. **Whether Executive Privilege can be invoked to shield potential criminal wrongdoing** or corruption in a government contract.
 3. **Whether the Senate Committees committed grave abuse of discretion** in issuing the contempt and arrest order against petitioner Neri, including whether the Senate is a continuing body whose rules do not require re-publication.
-

♥ **DETAILED RATIO & LOGIC OF CHIEF JUSTICE PUNO'S DISSENT**

ISSUE 1: Invalidity of the Claim of Executive Privilege under the Function Impairment Test

HOLDING: NO. The claim of executive privilege is **UNJUSTIFIED AND VOID** as applied to the three disputed questions. The balance of interests inclines heavily in favor of the Senate's constitutional lawmaking function.

RATIO & DETAILED LOGICAL FLOW:

1. Rejection of Diplomatic, Military, and National Security Secrets Privilege:

- *Unilateral Expansion Prohibited*: Under *Senate v. Ermita*, only the President or Executive Secretary "by order of the President" can invoke executive privilege. Neri or his counsel could not unilaterally expand the grounds to "national security" or "military affairs."
- *Paucity of Explanation*: For content-based state/diplomatic secrets (*U.S. v. Reynolds*), the Executive must provide sufficient formal explanation showing a "reasonable danger that compulsion of the evidence will expose military [or diplomatic] matters."
- Secretary Ermita offered a mere "bare assertion" that disclosure "might impair our diplomatic as well as economic relations with the People's Republic of China."
- Because of this "**paucity of explanation**," the Court cannot assess whether diplomatic secrets are endangered, and "[t]he Court cannot engage in guesswork in resolving this important issue."

2. Evaluation of Presidential Communications Privilege & The Function Impairment Test:

- *Nature of the Privilege*: Presidential communications enjoy a **qualified presumption** of confidentiality, rooted in the separation of powers, to ensure candor in presidential decision-making (*U.S. v. Nixon*, *In re Sealed Case*, *Senate v. Ermita*).
- *The Function Impairment Test*: Because the privilege is qualified, courts must apply the **function impairment test** to balance "whether the disclosure of the withheld information would impair the President's ability to perform his constitutional duties more than nondisclosure would impair the other branch's ability to perform its constitutional functions."

3. Applying the Balancing Scale:

- **Weakened Executive Interest**:
 - *Shared Constitutional Power*: The strength of the presidential communications privilege is significantly "**weakened by the fact that the subject of the communication involves a contract with a foreign loan.**" Under Section 20, Article VII of the Constitution, the power to contract foreign loans is **not exclusively vested in the President**, but is shared with the Monetary Board (Central Bank).
 - *Unsubstantiated "Chilling Effect"*: The "chilling effect" claimed by Neri's counsel was supported merely by counsel's "personal impression and personal opinion on the subject," rather than specific proof.
 - *Narrow Scope*: The potential chilling effect is "diminished by the nature of the information sought, which is narrow, limited as it is to the three assailed questions."
- **Overriding Legislative Need of the Senate**:
 - The Senate demonstrated a "**specific and demonstrated need for the Presidential communications in reply to the three disputed questions.**"
 - The information requested is directly pertinent to pending legislation (Senate Bill Nos. 1793, 1794, and 1317) aimed at amending the Government Procurement Reform Act (R.A. 9184) and Official Development Assistance (ODA) Act (R.A. 8182), and requiring Senate concurrence for executive agreements used to circumvent public bidding.
 - Without this information, the Senate's function of intelligently enacting laws to remedy a "**dysfunctional procurement system of the government**" and close loopholes against secret commissions "**cannot but be seriously impaired.**"
- *Conclusion of the Balance*: "**With all these considerations factored into the equation, we have to strike the balance in favor of the respondent Senate Committees and compel petitioner Neri to answer the three disputed questions.**"

HOLDING: Executive privilege **CANNOT BE USED AS A SHIELD TO HIDE WRONGDOING** or conceal corruption.

RATIO & DETAILED LOGICAL FLOW:

1. *Historical Mandate:* Tracing back to U.S. President George Washington in 1792, "**executive privilege has never justified the concealment of a wrongdoing.**" President Washington established that while a President may withhold information if disclosure injures the public, it is never appropriate to withhold embarrassing or politically damaging information.
 2. *Jurisprudential Limits (Nixon v. Sirica; Senate Select Committee v. Nixon):* The Executive cannot invoke a general confidentiality privilege to shield officials from investigations into possible criminal wrongdoing or malfeasance in office.
 3. *Application:* When Congress gathers evidence that a major public contract is tainted by bribery and overpricing, a generalized claim of presidential confidentiality cannot be used to block legislative scrutiny into whether the Executive tolerated or participated in the anomaly.
-

ISSUE 3: Validity of Senate Contempt Order and the Senate as a Continuing Body

HOLDING: The Senate Committees acted **WITHOUT GRAVE ABUSE OF DISCRETION** in citing Neri in contempt, and the Senate's Rules of Procedure Governing Inquiries in Aid of Legislation are **VALID**.

RATIO & DETAILED LOGICAL FLOW:

1. *Substantive Contempt Power:* Under *Arnault v. Nazareno*, Congress possesses the inherent compulsory power to cite uncooperative witnesses in contempt to remove obstructions to its legislative function. Neri had no right to snub the November 20, 2007 hearing based on his unilateral assumption that all further questions would be privileged.
 2. *The Senate is a Continuing Body:*
 - Reaffirming *Arnault v. Nazareno* and *McGrain v. Daugherty*, CJ Puno stressed that "**the Senate is a continuing body**" because its members are elected on staggered six-year terms (where two-thirds of the Senate always continues into the next Congress).
 - Because the Senate does not cease to exist or dissolve upon the expiration of a Congress, its internal rules—including its Rules of Procedure Governing Inquiries in Aid of Legislation—**do not expire every three years and do not require re-publication after every election.**
 - Striking down existing Senate rules on the ground of non-republication creates an "unnecessary ritual" that spawns serious, unintended disruptions to legislative oversight and self-preservation.
-

 DISPOSITION OF THE DISSENT:

Chief Justice Puno voted to **DENY** the petition for *certiorari*, **UPHOLD** the validity of the show-cause and contempt/arrest orders issued by the Senate Committees, and **COMPEL** petitioner Romulo L. Neri to appear and answer the three disputed questions.

Pangilinan v. Cayetano

DOCTRINE

The principles of law enunciated in a treaty that reflect customary international law or generally accepted principles of international law remain part of Philippine domestic law pursuant to the Incorporation Clause under Section 2, Article II of the 1987 Constitution, independent of treaty ratification or subsequent withdrawal; moreover, while the President, as chief architect of foreign policy, possesses discretion to withdraw from treaties, such authority is not absolute and cannot be exercised in conflict with an existing implementing statute or a Senate-imposed condition in a resolution of concurrence, but a petition challenging a completed treaty withdrawal becomes moot and academic once the withdrawal takes full legal effect pursuant to the treaty's own international mechanism.

RECITATION SUMMARY

On March 15, 2018, President Rodrigo R. Duterte, through Executive Secretary Salvador C. Medialdea and Foreign Affairs Secretary Alan Peter Cayetano, deposited a formal written notification of withdrawal from the Rome Statute of the International Criminal Court (ICC) with the UN Secretary-General, following ICC Prosecutor Fatou Bensouda's announcement of a preliminary examination into the Philippine anti-illegal drug campaign. Petitioners—including incumbent Senators led by Francis Pangilinan (G.R. No. 238875), the Philippine Coalition for the International Criminal Court (PCICC) (G.R. No. 239483), and the Integrated Bar of the Philippines (IBP) (G.R. No. 240954)—filed petitions for *certiorari* and *mandamus* before the Supreme Court, contending that unilateral executive withdrawal violated Section 21, Article VII of the 1987 Constitution because it lacked the concurrence of at least two-thirds of the Senate. The Supreme Court dismissed the consolidated petitions for being moot and academic and for lack of legal standing. The Court held that: (1) petitioner-legislators lacked standing because the Senate as an institutional body never passed or enforced a resolution (such as Proposed Senate Resolution No. 289) asserting its constitutional prerogative to concur in treaty withdrawal; (2) the notification of withdrawal complied with Article 127 of the Rome Statute and took full legal effect on March 17, 2019 (one year after receipt by the UN), leaving no live justiciable controversy for the Court to resolve; (3) while the President holds discretion as primary architect of foreign relations, unilateral withdrawal is restricted if it contradicts a statute enacted by Congress (especially a statute implementing the treaty) or violates a condition explicitly attached by the Senate in its resolution of concurrence; and (4) withdrawal from the Rome Statute does not discharge the Philippines from obligations or criminal investigations accrued prior to the effective date of withdrawal (pursuant to Article 127 of the Statute), nor does it alter customary international law norms incorporated into domestic law under Section 2, Article II of the Constitution or domestic statutes like R.A. No. 9851.

MATERIAL FACTS & PROCEDURAL HISTORY

- **Legally Relevant Parties & Relationship:**
 1. *Petitioners in G.R. No. 238875:* Senators Francis Pangilinan, Franklin Drilon, Paolo Benigno Aquino, Leila De Lima, Risa Hontiveros, and Antonio Trillanes (incumbent Members of the Senate of the Philippines).
 2. *Petitioners in G.R. No. 239483:* Philippine Coalition for the International Criminal Court (PCICC), Loretta Ann P. Rosales, Dr. Aurora Corazon A. Parong, Evelyn Balais-Serrano, Jose Noel D. Olano, Rebecca Desiree E. Lozada, Edeliza P. Hernandez, Analiza T. Ugay, Niza Concepcion Arazas, Gloria Ester Catibayan-Guarin, Ray Paolo "Arpee" J. Santiago, Gilbert Teruel Andres, and Axle P. Simeon.

3. *Respondents*: Foreign Affairs Secretary Alan Peter Cayetano, Executive Secretary Salvador C. Medialdea, UN Permanent Representative Teodoro Locsin, Jr., and Chief Presidential Legal Counsel Salvador Panelo.
- **Chronological Material Facts:**
 1. On December 28, 2000, the Republic of the Philippines signed the Rome Statute of the International Criminal Court (ICC).
 2. On December 11, 2009, Congress enacted Republic Act No. 9851 (Philippine Act on Crimes Against International Humanitarian Law, Genocide, and Other Crimes Against Humanity), establishing domestic criminal jurisdiction over core international crimes.
 3. On August 23, 2011, the Senate of the Philippines concurred in the ratification of the Rome Statute pursuant to Section 21, Article VII of the 1987 Constitution, transforming the treaty into domestic law effective August 1, 2011.
 4. On February 8, 2018, ICC Prosecutor Fatou Bensouda announced the opening of a preliminary examination into allegations of crimes against humanity committed in the Philippines in the context of the government's anti-illegal drug campaign.
 5. On March 15, 2018, President Rodrigo R. Duterte announced the Philippines' withdrawal from the Rome Statute. On the same day, the Department of Foreign Affairs, through UN Permanent Representative Teodoro Locsin, Jr., deposited a formal written notification of withdrawal with the Secretary-General of the United Nations pursuant to Article 127 of the Rome Statute.
 6. Article 127(1) of the Rome Statute explicitly provides that a State Party may withdraw by written notification to the UN Secretary-General, and that the withdrawal takes effect one (1) year after the date of receipt of the notification.
 - **Procedural History:**
 1. On May 16, 2018, petitioner-Senators filed a Petition for *Certiorari* and *Mandamus* (G.R. No. 238875) before the Supreme Court challenging the constitutionality of the unilateral executive withdrawal.
 2. On June 13, 2018, the PCICC and co-petitioners filed a similar petition (G.R. No. 239483). A third petition was filed by the Integrated Bar of the Philippines (G.R. No. 240954). The Supreme Court consolidated the petitions and conducted oral arguments.
 3. During the pendency of the consolidated petitions, the one-year period under Article 127 elapsed, and the Philippines' withdrawal from the Rome Statute officially took effect on March 17, 2019.

PARTIES' MATERIAL ARGUMENTS

- **Petitioners' Claims:**
 1. *Requirement of Senate Concurrence*: Treaty withdrawal requires Senate concurrence by a two-thirds vote under Section 21, Article VII of the Constitution because treaty-making is a shared constitutional function between the Executive and the Senate; the President cannot unilaterally undo a treaty that has been transformed into part of the law of the land.
 2. *Protection of Constitutional Rights & Incorporation*: The withdrawal unconstitutionally deprives citizens of an important international mechanism for protecting human rights; furthermore, the Rome Statute's principles remain binding domestically under the Incorporation Clause (Section 2, Article II) and R.A. No. 9851.
 3. *Standing of Legislators and Citizens*: Petitioner-legislators possess standing to protect the Senate's constitutional prerogative from executive usurpation, while citizen-petitioners have standing to enforce a public right and public duty.
- **Respondents' Claims:**
 1. *Presidential Authority in Foreign Affairs*: The President is the sole organ and chief architect of foreign relations, possessing discretionary power to withdraw from international agreements without Senate concurrence. Section 21, Article VII of the Constitution explicitly requires Senate concurrence for treaty *entry* (ratification), but contains no text requiring concurrence for treaty *withdrawal*.

- 2. *Lack of Standing & Non-Justiciability*: Petitioner-senators lack standing because the Senate as an institution never passed or enforced a resolution asserting its right to concur in treaty withdrawal; moreover, treaty withdrawal is a non-justiciable political question.
 - 3. *Mootness*: The notification complied with Article 127 of the Rome Statute and took full legal effect on March 17, 2019, rendering the petitions moot and academic.
-

● ISSUES

- 1. **Whether petitioners (legislators, citizens, and human rights coalitions) possess the requisite legal standing (*locus standi*)** to challenge the executive withdrawal from the Rome Statute.
 - 2. **Whether the consolidated petitions were rendered moot and academic** by the effective completion of the Philippines' withdrawal from the Rome Statute on March 17, 2019 pursuant to Article 127 of the treaty.
 - 3. **Whether the President has the constitutional authority to unilaterally withdraw from a treaty** without the concurrence of at least two-thirds of the Members of the Senate.
 - 4. **Whether withdrawal from the Rome Statute discharges the Philippines from its existing legal obligations**, ongoing ICC preliminary examinations/investigations, or principles of customary international law incorporated into domestic law.
-

♥ HOLDING AND RATIO DECIDENDI

ISSUE 1: Legal Standing (*Locus Standi*) of Petitioners

HOLDING: NO. Petitioner-legislators and private petitioners **LACK LEGAL STANDING** to maintain the petitions.

RATIO & DETAILED COURT LOGIC:

- 1. **Refinement of the Doctrine on Legislative Standing:**
 - Prior to *Pangilinan*, the rule on legislative standing permitted an individual legislator to question an official action that claimed to usurp or impair legislative power (*Ople v. Torres*; *Biraogo v. Philippine Truth Commission*).
 - In *Pangilinan*, the Court introduced a variant technicality: when individual legislators assert an impairment of the institutional prerogatives or collective powers vested in their legislative chamber (such as the Senate's power to concur in treaties), standing belongs to the Senate as an institution, not to individual members acting independently.
- 2. **Absence of Institutional Senate Action:**
 - Although Proposed Senate Resolution No. 289 (expressing the sense of the Senate that its concurrence is required for treaty withdrawal) was introduced, the Senate as a collegiate body never formally adopted, passed, or sought to enforce the resolution against the Executive.
 - Because the Senate did not officially assert its institutional prerogative, individual minority Senators could not validly invoke legislative standing to claim an injury to the Senate as a body.
- 3. **Lack of Personal Direct Injury for Private Petitioners:**
 - Taxpayers, citizens, and NGO petitioners failed to establish that they sustained or were in immediate danger of sustaining a direct, concrete personal injury resulting from the withdrawal.
 - Generalized grievances regarding human rights protection do not satisfy the direct injury test required for judicial review.

ISSUE 2: Mootness of the Controversy

HOLDING: YES. The consolidated petitions were rendered **MOOT AND ACADEMIC** by the legal completion of the withdrawal on March 17, 2019.

RATIO & DETAILED COURT LOGIC:

1. **Operation of Article 127 of the Rome Statute:**
 - Article 127 of the Rome Statute prescribes the specific international procedure for withdrawal: a State Party withdraws via written notification to the UN Secretary-General, which takes effect officially one (1) year after receipt.
 - The Philippine government deposited its written notification on March 15, 2018. Under international law, the one-year period ran uninterrupted and expired on March 17, 2019.
2. **Extinction of Live Justiciable Controversy:**
 - A case becomes moot when supervening events extinguish the live controversy, rendering any judicial declaration of no practical legal value.
 - Because the withdrawal process under the treaty's own mechanism had already been fully consummated and taken complete legal effect while the case was pending, the Court could no longer grant the injunctive or *mandamus* relief prayed for by petitioners.
3. **Inapplicability of Exceptions to Mootness:**
 - The Court held that the invocation of "transcendental importance" could not overcome the fatal procedural defects of mootness and lack of proper standing in this case, as there was no illegal disbursement of public funds, no express constitutional prohibition violated, and no proper party suffering direct injury.

ISSUE 3: Executive Power vs. Senate Concurrence in Treaty Withdrawal

HOLDING: QUALIFIED EXECUTIVE DISCRETION. The President, as chief architect of foreign policy, possesses discretion to withdraw from treaties, but this authority is **NOT UNBRIDLED** and is subject to specific constitutional and statutory limitations.

RATIO & DETAILED COURT LOGIC:

1. **Textual Analysis of Article VII, Section 21:**
 - Section 21, Article VII of the 1987 Constitution explicitly requires the concurrence of at least two-thirds of all Members of the Senate to make a treaty valid and effective upon entry.
 - However, the Constitution is silent and contains no express text requiring Senate concurrence for *withdrawal* or termination of treaties.
2. **President as Primary Architect of Foreign Relations:**
 - The President is recognized as the sole organ and authority in external relations (*Pimentel v. Executive Secretary*; *Saguisag v. Ochoa*). In the realm of treaty-making and treaty management, the Executive holds broad leeway and discretion.
3. **Constitutional and Statutory Boundaries Limiting Unilateral Withdrawal:**
 - Despite executive discretion in foreign affairs, the Court established that the President cannot unilaterally withdraw from a treaty under the following circumstances:
 1. *Statutory Conflict*: The President cannot unilaterally withdraw from a treaty if the withdrawal contradicts or conflicts with a prior existing statute passed by Congress—especially a statute enacted specifically to implement the treaty—unless Congress first amends or repeals that statute.
 2. *Senate Condition in Resolution of Concurrence*: The Senate, in exercising its constitutional power to concur in a treaty under Section 21, Article VII, has the

authority to attach explicit conditions to its resolution of concurrence, including a requirement that subsequent withdrawal must be approved by the Senate. When the Senate concurred in the Rome Statute in 2011, it imposed no such condition.

3. *Judicial Review*: Executive action in treaty withdrawal remains subject to judicial review if exercised with grave abuse of discretion amounting to lack or excess of jurisdiction.

ISSUE 4: Effect of Withdrawal on Pre-Existing Obligations, ICC Jurisdiction, and Domestic Law

HOLDING: Withdrawal from the treaty **DOES NOT DISCHARGE** the State from obligations or investigations accrued prior to the effective date of withdrawal, nor does it affect customary international law incorporated into domestic law.

RATIO & DETAILED COURT LOGIC:

1. **Preservation of Jurisdiction under Article 127(2) of the Rome Statute:**
 - Pursuant to Article 127(2) of the Rome Statute, withdrawal does not discharge a State Party from financial or contractual obligations incurred while a party, nor does it affect any duty to cooperate with the ICC in connection with criminal investigations and proceedings initiated *prior* to the date on which withdrawal became effective.
 - Consequently, withdrawal does not affect or extinguish ICC cooperation or investigations concerning alleged crimes committed while the Philippines was a State Party (from August 1, 2011 up to March 16, 2019).
2. **Dual Mechanisms of International Law (Incorporation vs. Transformation):**
 - The Philippine legal system adopts international law via two distinct methods:
 1. *Transformation (Section 21, Article VII)*: Treaties become valid domestic law through formal Senate concurrence.
 2. *Incorporation (Section 2, Article II)*: Customary international law and generally accepted principles of international law (GAPIL) are automatically adopted as part of the law of the land without needing legislative transformation.
3. **Survival of Incorporated Principles and Domestic Statutes:**
 - If the principles enunciated in the Rome Statute reflect customary international law or generally accepted principles of international law, the Philippines remains bound by them domestically under the Incorporation Clause, independent of the treaty's status or subsequent withdrawal.
 - Furthermore, domestic penal legislation punishing core international crimes—specifically Republic Act No. 9851—remains fully valid, active, and enforceable in Philippine courts regardless of withdrawal from the treaty.

 DECISION & DISPOSITION:

The Supreme Court **DISMISSED** the consolidated petitions for *certiorari* and *mandamus* on the grounds of mootness and lack of legal standing.

 RETRIEVAL & RECITATION LAYER

- **60–90 Second Recitation Answer:**

In *Pangilinan v. Cayetano*, the Supreme Court dismissed petitions challenging President Duterte's unilateral withdrawal from the Rome Statute of the ICC on the grounds of mootness and lack of legal standing. First, individual Senators lacked standing because the Senate as

an institution never passed or enforced a resolution asserting its prerogative to concur in treaty withdrawal. Second, the petitions became moot because the notification of withdrawal complied with Article 127 of the Rome Statute and took full legal effect on March 17, 2019, one year after notice. On the merits, the Court clarified that while the President is the chief architect of foreign policy with broad leeway in foreign relations, unilateral withdrawal is restricted if it conflicts with an existing statute or a Senate-imposed condition in a resolution of concurrence. Crucially, the Court held that under Article 127(2) of the Statute, withdrawal does not discharge the State from obligations or ICC investigations incurred prior to withdrawal, nor does it extinguish customary international law principles incorporated into domestic law under Article II, Section 2 of the Constitution.

- **3 Likely Follow-Up Questions & Concise Answers:**

1. *Does individual legislative standing exist when executive action impairs legislative powers?*

Answer: After *Pangilinan*, if an individual legislator asserts an impairment of the institutional power or collective prerogative of a chamber (such as Senate concurrence), standing belongs to the chamber as a body, requiring an official institutional resolution or action to confer standing.

2. *Can the President unilaterally withdraw from any treaty without Senate concurrence?*

Answer: Generally, the President has discretion in foreign relations, but unilateral withdrawal is barred if: (a) it conflicts with an existing statute passed by Congress; or (b) the Senate explicitly attached a condition requiring its concurrence for withdrawal in its original resolution of concurrence.

3. *Does withdrawing from the ICC terminate ongoing ICC preliminary examinations or domestic criminal liability?*

Answer: No. Under Article 127(2) of the Rome Statute, withdrawal does not affect ongoing investigations or duties to cooperate for acts committed prior to withdrawal. Domestically, R.A. No. 9851 and customary international law under Article II, Section 2 remain fully in effect.

- **1 Changed-Material-Fact Hypothetical:**

Hypothetical: What if the Senate had formally adopted Senate Resolution No. 289 declaring that treaty withdrawal requires two-thirds Senate concurrence, and the Senate as a body filed a petition before the UN one-year period elapsed?

Answer: The Senate as an institution would have possessed legal standing because its collective prerogative was officially asserted. If filed before March 17, 2019, the issue would have been ripe and not moot, allowing the Court to directly address whether the Executive committed grave abuse of discretion in overriding a formal Senate condition or institutional assertion.

- **1-Sentence Doctrine Anchor:**

Under *Pangilinan v. Cayetano*, treaty principles reflecting customary international law remain incorporated into domestic law under Article II, Section 2 regardless of treaty withdrawal, while challenges to executive treaty withdrawal become moot once the one-year withdrawal mechanism under Article 127 of the treaty takes full legal effect.